SUPPLEMENT NO. 166
VOLUMES I AND II
July 2026

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50,383, adopted June 9, 2026, effective July 1, 2026.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Acts 2026, Chs. 316, 317 (Resolution No. 1962) effective July 1, 2026.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 165
VOLUMES I AND II
May 2026

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50,248, adopted January 13, 2026.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 164
VOLUMES I AND II
January 2026

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50,139, adopted October 7, 2025, effective January 1, 2026.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 163
VOLUMES I AND II
October 2025

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50,046, adopted July 15, 2025.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 162
VOLUMES I AND II
July 2025

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,966, adopted May 13, 2025.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Acts 2025, Chapter 373.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 161
VOLUMES I AND II
April 2025

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,861, adopted February 11, 2025.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Resolution No. 1,929, adopted December 10, 2024.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 160
VOLUMES I AND II
November 2024

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,658, adopted July 9, 2024.

See the Code Comparative Table—Volume II for further information.

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VOLUMES I AND II
July 2024

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,610, adopted May 28, 2024.

See the Code Comparative Table—Volume II for further information.

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April 2024

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,462, adopted January 9, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 157
VOLUMES I AND II
February 2024

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,415, adopted November 28, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 156
VOLUMES I AND II
November 2023

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,299, adopted August 29, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 155
VOLUMES I AND II
July 2023

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,189, adopted May 9, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 154
VOLUMES I AND II
April 2023

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,078, adopted February 14, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 153
VOLUMES I AND II
January 2023

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49,007, adopted November 29, 2022.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 152
VOLUMES I AND II
September 2022

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,887, adopted August 23, 2022.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 151
VOLUMES I AND II
July 2022

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,804, adopted June 14, 2022.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Acts 2022, Ch. 288.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 150
VOLUMES I AND II
April 2022

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,670, adopted February 8, 2022.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 149
VOLUMES I AND II
February 2022

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,607, adopted December 14, 2021.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 148
VOLUMES I AND II
October 2021

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,485, adopted August 24, 2021.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 147
VOLUMES I AND II
July 2021

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,380, adopted May 11, 2021.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Acts of 2021, Chapter 371.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 146
VOLUMES I AND II
March 2021

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,303, adopted February 9, 2021.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 145
VOLUMES I AND II
December 2020

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,210, adopted November 10, 2020.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 144
VOLUMES I AND II
September 2020

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48,131, adopted September 1, 2020.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 143
VOLUMES I AND II
July 2020

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,999, adopted May 19, 2020.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 142
VOLUMES I AND II
April 2020

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,920, adopted February 25, 2020.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 141
VOLUMES I AND II
January 2020

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,832, adopted November 26, 2019.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
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SUPPLEMENT NO. 140
VOLUMES I AND II
October 2019

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,766, adopted September 10, 2019.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 139
VOLUMES I AND II
July 2019

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,696, adopted June 25, 2019.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Acts 2018, Chapter 314.

See the Charter Comparative Table for further information.

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	VOLUME I
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SUPPLEMENT NO. 138
VOLUMES I AND II
April 2019

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,578, adopted March 26, 2019.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 137
VOLUMES I AND II
February 2019

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,478, adopted December 11, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 136
VOLUMES I AND II
October 2018

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,373, adopted September 11, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 135
VOLUMES I AND II
July 2018

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,280, adopted June 26, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 134
VOLUMES I AND II
April 2018

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,156, adopted February 27, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 133
VOLUMES I AND II
January 2018

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47,108, adopted January 9, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 132
VOLUMES I AND II
October 2017

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,969, adopted September 12, 2017.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 131
VOLUMES I AND II
July 2017

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,881, adopted June 27, 2017.

See the Code Comparative Table—Volume II for further information.

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VOLUMES I AND II
April 2017

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,790, adopted March 28, 2017.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 129
VOLUMES I AND II
January 2017

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,691, adopted December 20, 2016.

See the Code Comparative Table—Volume II for further information.

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VOLUMES I AND II
October 2016

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,558, adopted September 13, 2016.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 127
VOLUMES I AND II
July 2016

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,462, adopted June 28, 2016.

See the Code Comparative Table—Volume II for further information.

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VOLUMES I AND II
April 2016

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,303, adopted March 22, 2016.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 125
VOLUMES I AND II
February 2016

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,185, adopted December 15, 2015.

See the Code Comparative Table—Volume II for further information.

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VOLUMES I AND II
October 2015

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46,077, adopted September 15, 2015.

See the Code Comparative Table—Volume II for further information.

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VOLUMES I AND II
July 2015

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 45,995, adopted June 23, 2015.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 122
VOLUMES I AND II
April 2015

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 45,886, adopted March 10, 2015.

See the Code Comparative Table—Volume II for further information.

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VOLUMES I AND II
February 2015

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 45,826, adopted December 16, 2014.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 120
VOLUMES I AND II
September 2014

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 45,672, adopted September 9, 2014.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 119
VOLUMES I AND II
July 2014

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 45,623, adopted July 8, 2014.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Chapters 235 and 683, Acts of 2014.
(Resolution No. 1,572).

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 118
VOLUMES I AND II
March 2014

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 45,488, adopted March 18, 2014.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 117
VOLUMES I AND II
December 2013

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 45,362, adopted December 10, 2013.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 116
VOLUMES I AND II
March 2013

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 45,013, adopted February 26, 2013.

See the Code Comparative Table—Volume II for further information.

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VOLUMES I AND II
December 2012

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,906, adopted November 13, 2012.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 114
VOLUMES I AND II
September 2012

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,838, adopted September 11, 2012.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 113
VOLUMES I AND II
June 2012

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,720, adopted June 12, 2012.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 112
VOLUMES I AND II
April 2012

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,614, adopted March 27, 2012.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 111
VOLUMES I AND II
January 2012

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,487, adopted December 13, 2011.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 110
VOLUMES I AND II
November 2011

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,400, adopted October 11, 2011.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 109
VOLUMES I AND II
July 2011

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,299, adopted June 28, 2011.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 108
VOLUMES I AND II
April 2011

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,197, adopted April 5, 2011.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 107
VOLUMES I AND II
December 2010

CODE OF THE CITY OF NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44,060, adopted December 7, 2010.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 106
VOLUMES I AND II
September 2010

CODE

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,972, enacted September 14, 2010.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 105
VOLUMES I AND II
June 2010

CODE

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,909, enacted June 22, 2010.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

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SUPPLEMENT NO. 104
VOLUMES I AND II
April 2010
Pamphlet affected this supplement.

CODE OF THE

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,753, adopted March 2, 2010.

See the Code Comparative Table—Ordinances—Volume II for further information.

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SUPPLEMENT NO. 103
VOLUMES I AND II
January 2010

CODE OF THE

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,699, enacted December 15, 2009.

See the Code Comparative Table—Ordinances—Volume II for further information.

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SUPPLEMENT NO. 102
VOLUMES I AND II
October 2009

CODE OF THE

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,606, enacted September 22, 2009.

See the Code Comparative Table—Ordinances—Volume II for further information.

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SUPPLEMENT NO. 101
VOLUMES I AND II
July 2009

CODE OF ORDINANCES

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,482, adopted June 16, 2009.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 100
VOLUMES I AND II
April 2009

CODE OF ORDINANCES

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,413, adopted April 21, 2009.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 99
VOLUMES I AND II
February 2009

CODE OF ORDINANCES

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,312, adopted December 9, 2008.

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SUPPLEMENT NO. 98
VOLUMES I AND II
June 2008

CODE OF ORDINANCES

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 43,070, adopted April 29, 2008.

See the Code Comparative Table for further information.

Included in the Charter is:

Chapter 337, Acts of 2008.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 97
VOLUMES I AND II
March 2008

CODE OF ORDINANCES

City of

NORFOLK, VIRGINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 42, 948, adopted December 18, 2007.

See the Code Comparative Table for further information.

Included in the Charter is:

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SUPPLEMENT NO. 96
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October 2007

CODE OF ORDINANCES

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 95
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CODE OF ORDINANCES

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

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SUPPLEMENT NO. 94
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April 2007

CODE OF ORDINANCES

City of

NORFOLK, VIRGINIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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CODE OF THE CITY

OF

NORFOLK, VIRGINIA, 1979

VOLUME I

Adopted: August 18, 1981

Effective: January 1, 1982

Published in 1981 by Order of the City Council

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CURRENT OFFICIALS

of the

CITY OF NORFOLK

(2026)

Honorable Kenneth Cooper Alexander, Ph.D.
Mayor

Honorable Carlos J. Clanton
Honorable Courtney R. Doyle
Honorable Mamie B. Johnson
Honorable Jeremy D. McGee
Honorable John E. "JP" Paige
Honorable Thomas R. Smigiel Jr.
Honorable Martin A. Thomas Jr.
Council Members

Mr. Patrick "Pat" Roberts
City Manager

Adam D. Melita
City Attorney

Mr. Richard A. Bull
City Clerk

OFFICIALS

of the

CITY OF NORFOLK

AT THE TIME OF THIS CODIFICATION

Vincent J. Thomas
Mayor

Mason C. Andrews, M.D.
Rev. Joseph Green
Elizabeth M. Howell
Joseph A. Leafe
Claude Staylor
Robert Summers
Council Members

Julian F. Hirst
City Manager

Philip F. Trapani
City Attorney

Louis S. Hudgins
City Clerk

PREFACE

This Code constitutes a complete recodification of the ordinances of the City of Norfolk of a general and permanent nature. As expressed in the Adopting Ordinance, the Code supersedes all such ordinances not included herein or recognized as thereto continuing in force by reference thereto.

Source materials used in the preparation of the Code were the 1958 Norfolk City Code as supplemented through August 15, 1978, (Supplement No. 61), and ordinances subsequently adopted by the council. In addition, certain ordinances relating to licenses and taxation not previously codified have been included in chapter 24 and the zoning ordinance has been added as Appendix A. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the Comparative Tables appearing in the back of the volume, the reader can locate any section of the 1958 Code and any subsequent ordinance included herein.

The chapters of the Code are arranged in alphabetical order and the sections within each chapter catchlined to facilitate usage. Footnotes which tie related sections of the Code together and which refer to relevant provisions of the state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in the 1958 Norfolk City Code. Each section number consists of two component parts separated by a dash, the figure before the dash representing the chapter number and the figure after the dash indicating the position of the section within the chapter. Thus, the first section of chapter 1 is numbered 1-1 and the ninth section of chapter 2 is 2-9. Under this system, each section is identified with its chapter, and, at the same time, new sections or even whole chapters can be inserted in their proper places, simply by using the decimal system for amendments. By way of illustration: If new material consisting of three sections that would logically come between sections 4-2 and 4-3 is desired to be added, such new sections would be numbered 4-2.1, 4-2.2 and 4-2.3 respectively. New chapters may be included in the same manner. If the new material is to be included between chapters 12 and 13 it will be designated as chapter 12.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology and still others in language

generally used by government officials and employees. There are numerous cross references within the index itself which stand as guideposts to direct the user to the particular item in which he is interested.

Looseleaf Supplements

A special feature of this Code is the looseleaf system of binding and supplemental service, by which the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages. Each such amendment, when incorporated into the Code, may be cited as a part thereof, as provided in section 5 of the Adopting Ordinance.

The successful maintenance of this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publishers that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The publication of this Code was under the direct supervision of George R. Langford, President, and Robert D. Ussery, Vice President, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publishers are most grateful to Mr. Daniel R. Hagemeister, Assistant City Attorney, and Mr. Louis S. Hudgins, City Clerk, for their cooperation and assistance during the progress of the work on this Code. It is hoped that their efforts and those of the publishers have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

August, 1981

MUNICIPAL CODE CORPORATION
Tallahassee, Florida

ORDINANCE NO. 31,309*

An Ordinance Adopting a New Code of General Ordinances of the City of Norfolk, Which Prescribes Penalties for the Violations of its Provisions, and Repealing, With Certain Limitations and Exceptions, All Ordinances and Parts of Ordinances of a General Nature in Conflict With the Provisions Thereof.

WHEREAS, Council has authorized a general compilation, revision and recodification of the general ordinances of the City of Norfolk to be published by the authority of the Council, and

WHEREAS, such compilation, revision and recodification of such general ordinances has been completed, and has been made available for inspection in the office of the City Clerk for more than two weeks prior to the adoption of this ordinance as required by Section 15.1-37.3 of the Code of Virginia, 1950; now, therefore,

BE IT ORDAINED by the Council of the City of Norfolk:

Section 1. That the ordinances of the City of Norfolk of a general and permanent nature, as revised and codified in the following chapters, namely Chapters 1 to 48, both inclusive, are hereby ordained as general ordinances of the City of Norfolk and are adopted as and shall constitute "The Code of the City of Norfolk, Virginia, 1979".

Section 2. That the provisions of said Code shall be enforced on and after the 1st day of January, 1982, and all ordinances of a general and permanent nature adopted on or before April 17, 1979, and not contained in said Code, are hereby repealed from and after January 1, 1982, except as hereinafter provided.

Section 3. That the repeal provided for in the preceding section of this ordinance shall not affect any offenses or acts committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the 1st day of January, 1982; nor shall such repeal affect any ordinance or resolution promising or guaranteeing the payment of money for the City, or authorizing the issue of any bonds of the City, or any evidence of the City's indebtedness, or any contract or obligation assumed by the City; nor shall such repeal affect the administrative ordinances or resolutions of the Council not in conflict or inconsistent with the provisions of the Code; nor shall it affect any right or franchise conferred by any ordinance or resolution of the Council on any person or corporation; nor shall it affect any prosecution, suit or other proceeding pending or any judgment rendered on or prior to the 1st day of January, 1982; nor shall it affect the following ordinances: The annual appropriation ordinance, any ordinance levying, imposing, or otherwise relating to taxes or licenses, or any amendment thereto; nor shall it affect any ordinance or any amendment to any ordinance adopted after April 17, 1979.

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*__Editor's note—__Ord. No. 31,394, § 1, adopted Oct. 20, 1981, changed the effective date of the adopting ordinance from Oct. 28, 1981, to Jan. 1, 1982.

Section 4. That any person convicted of a violation of any provision of such Code shall be punished as prescribed in Section 1-11 thereof, unless a specific penalty is otherwise provided for such violation in said Code.

Section 5. That any and all additions and amendments to such Code, when passed in such form as to indicate the intention of the Council to make the same a part of such Code, shall be deemed to be incorporated in such Code, so that reference to such Code shall be understood and intended to include such additions and amendments.

Section 6. That all ordinances or parts of ordinances in conflict with such Code, to the extent of such conflict, are hereby repealed.

Section 7. That this ordinance and the Code adopted hereby shall be in effect from and after January 1, 1982.

Adopted by Council August 18, 1981;
Effective October 28, 1981; [as amended, effective January 1, 1982]

TRUE COPY
TESTE:

/s/ Louis S. Hudgins, City Clerk

(SEAL)

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From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Include." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omit."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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44,084	12-21-10	Include	108
44,098	1-11-11	Include	108
44,102	1-11-11	Include	108
44,133	2- 8-11	Include	108
44,134	2- 8-11	Include	108
44,140	2-15-11	Include	108
44,152	3- 1-11	Include	108
44,159	3- 8-11	Include	108
44,161	3- 8-11	Include	108
44,164	3- 8-11	Include	108
44,169	3- 8-11	Include	108
44,170	3-22-11	Include	108
44,178	3-22-11	Omit	108
44,179	3-22-11	Include	108
44,191	3-29-11	Include	108
44,197	4- 5-11	Include	108
Supp. No. 109			
44,198	4-12-11	Include	109
44,200	4-12-11	Include	109
44,223	4-19-11	Include	109
44,224	4-19-11	Include	109
44,226	4-26-11	Include	109
44,229	5-10-11	Include	109
44,246	5-17-11	Include	109
44,247	5-17-11	Include	109
44,248	5-17-11	Include	109
44,253	5-24-11	Include	109
44,275	6-14-11	Include	109
44,278	6-14-11	Include	109
44,297	6-28-11	Include	109
44,299	6-28-11	Include	109

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44,312	7-12-11	Include	110
44,316	7-12-11	Include	110
44,317	7-12-11	Include	110
44,327	8-16-11	Include	110
44,333	8-23-11	Omit	110
44,334	8-23-11	Include	110
44,335	8-23-11	Include	110
44,337	8-23-11	Include	110
44,367	9-13-11	Include	110
44,368	9-13-11	Omit	110
44,381	9-13-11	Include	110
44,400	10-11-11	Include	110
Supp. No. 111			
44,395	10-11-11	Include	111
44,409	10-25-11	Include	111
44,420	10-25-11	Include	111
44,423	10-25-11	Include	111
44,424	11-22-11	Include	111
44,425	11-22-11	Include	111
44,428	11-22-11	Include	111
44,431	11-22-11	Include	111
44,469	12-13-11	Include	111
44,470	12-13-11	Include	111
44,471	12-13-11	Include	111
44,473	12-13-11	Include	111
44,478	12-13-11	Include	111
44,483	12-13-11	Include	111
44,487	12-13-11	Include	111
Supp. No. 112			
44,504	1-10-12	Include	112
44,510	1-10-12	Include	112
44,511	1-10-12	Include	112
44,513	1-10-12	Include	112
44,539	1-24-12	Omit	112
44,540	1-24-12	Include	112
44,554	2-14-12	Include	112
44,555	2-14-12	Include	112
44,556	2-14-12	Include	112
44,557	2-14-12	Include	112
44,558	2-14-12	Include	112
44,568	2-28-12	Include	112
44,580	2-28-12	Include	112
44,583	2-16-12	Include	112
44,584	2-28-12	Include	112

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
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44,593	3-27-12	Include	112
44,594	3-27-12	Include	112
44,596	3-27-12	Include	112
44,614	3-27-12	Include	112
Supp. No. 113			
44,624	4-10-12	Include	113
44,635	4-24-12	Include	113
44,636	4-24-12	Omit	113
44,694	5-22-12	Include	113
44,695	5-22-12	Omit	113
44,700	5-22-12	Omit	113
44,705	6-12-12	Include	113
44,707	6-12-12	Include	113
44,717	6-12-12	Include	113
44,719	6-12-12	Include	113
44,720	6-12-12	Include	113
44,722	6-12-12	Omit	113
Supp. No. 114			
44,727	6-26-12	Include	114
44,741	6-26-12	Include	114
44,771	7-24-12	Omit	114
44,787	8-28-12	Include	114
44,804	8-28-12	Include	114
44,807	8-28-12	Include	114
44,811	8-28-12	Include	114
44,822	8-28-12	Include	114
44,823	8-28-12	Include	114
44,829	9-11-12	Include	114
44,838	9-11-12	Include	114
Supp. No. 115			
44,851	10- 9-12	Include	115
44,870	10- 9-12	Include	115
44,884	10-23-12	Include	115
44,896	10-23-12	Include	115
44,906	11-13-12	Include	115
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44,975	1- 8-13	Include	116
44,998	1-29-13	Include	116
45,007	2-12-13	Include	116
45,009	2-26-13	Include	116
45,013	2-26-13	Include	116
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45,034	3-19-13	Include	117
45,046	3-26-13	Include	117

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45,052	4- 9-13	Include	117
45,063	4- 9-13	Include	117
45,066	4-23-13	Include	117
45,071	4-23-13	Include	117
45,080	5-14-13	Include	117
45,081	5-14-13	Include	117
45,084	5-14-13	Include	117
45,086	5-14-13	Include	117
45,103	5-21-13	Include	117
45,115	5-21-13	Include	117
45,116	5-21-13	Omit	117
45,118	5-21-13	Include	117
45,119	5-21-13	Include	117
45,141	6-11-13	Include	117
45,144	6-11-13	Include	117
45,145	6-11-13	Include	117
45,146	6-11-13	Include	117
45,156	6-25-13	Include	117
45,167	6-25-13	Include	117
45,176	7- 9-13	Include	117
45,180	7- 9-13	Include	117
45,184	7-23-13	Include	117
45,190	7-23-13	Omit	117
45,211	8-27-13	Include	117
45,221	8-27-13	Include	117
45,245	9-10-13	Include	117
45,248	9-10-13	Include	117
45,260	10- 8-13	Include	117
45,296	10-22-13	Include	117
45,305	11-26-13	Include	117
45,362	12-10-13	Include	117
Supp. No. 118			
45,309	11-26-13	Include	118
45,310	11-26-13	Include	118
45,379	12-17-13	Include	118
45,380	12-17-13	Omit	118
45,382	12-17-13	Include	118
45,402	1-14-14	Include	118
45,403	1-14-14	Include	118
45,415	1-14-14	Include	118
45,420	2-11-14	Include	118
45,422	2-11-14	Include	118
45,423	2-11-14	Include	118
45,424	2-11-14	Include	118
45,425	2-11-14	Include	118

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45,448	2-11-14	Include	118
45,457	2-25-14	Include	118
45,460	2-25-14	Include	118
45,470	3- 4-14	Include	118
45,484	3-18-14	Include	118
45,488	3-18-14	Include	118
Supp. No. 119			
1,572 (Res.)	11-26-13	Include	119
45,495	3-25-14	Include	119
45,496	3-25-14	Include	119
45,497	3-25-14	Include	119
45,499	3-25-14	Include	119
45,516	4- 8-14	Include	119
45,518	4- 8-14	Include	119
45,521	4-22-14	Include	119
45,522	4-22-14	Include	119
45,523	4-22-14	Include	119
45,524	4-22-14	Include	119
45,529	4-29-14	Include	119
45,531	5-13-14	Include	119
45,534	5-13-14	Include	119
45,552	5-20-14	Include	119
45,556	5-20-14	Include	119
45,557	5-20-14	Include	119
45,559	5-20-14	Include	119
45,563	5-20-14	Include	119
45,566	5-20-14	Include	119
45,589	6-10-14	Include	119
45,597	6-24-14	Include	119
45,600	6-24-14	Include	119
45,604	6-24-14	Include	119
45,606	7- 8-14	Include	119
45,623	7- 8-14	Include	119
Supp. No. 120			
45,628	7-22-14	Include	120
45,630	7-22-14	Include	120
45,631	7-22-14	Include	120
45,634	7-22-14	Omit	120
45,645	8-26-14	Include	120
45,648	8-26-14	Include	120
45,651	8-26-14	Include	120
45,672	9- 9-14	Include	120
Supp. No. 121			
45,703	10-14-14	Include	121
45,725	10-14-14	Include	121
45,747	10-28-14	Include	121

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45,748	10-28-14	Include	121
45,753	10-28-14	Include	121
45,764	10-28-14	Include	121
45,767	11-25-14	Include	121
45,768	11-25-14	Include	121
45,769	11-25-14	Include	121
45,781	11-25-14	Include	121
45,824	12-16-14	Include	121
45,825	12-16-14	Include	121
45,826	12-16-14	Include	121
Supp. No. 122			
45,843	1-27-15	Include	122
45,863	2-10-15	Include	122
45,867	2-24-15	Include	122
45,886	3-10-15	Include	122
Supp. No. 123			
45,910	4-14-15	Include	123
45,915	4-28-15	Include	123
45,946	5-19-15	Include	123
45,947	5-19-15	Include	123
45,954	5-19-15	Include	123
45,955	5-19-15	Include	123
45,984	6-23-15	Include	123
45,986	6-23-15	Include	123
45,995	6-23-15	Include	123
Supp. No. 124			
46,011	7-21-15	Include	124
46,012	7-21-15	Include	124
46,018	7-21-15	Include	124
46,044	8-25-15	Include	124
46,046	9-15-15	Include	124
46,071	9-15-15	Include	124
46,077	9-15-15	Include	124
Supp. No. 125			
46,081	10-13-15	Include	125
46,108	10-27-15	Include	125
46,113	10-27-15	Include	125
46,117	10-27-15	Include	125
46,136	12- 8-15	Include	125
46,139	12- 8-15	Include	125
46,140	12- 8-15	Include	125
46,150	12- 8-15	Include	125
46,171	12-15-15	Include	125
46,172	12-15-15	Include	125
46,185	12-15-15	Include	125

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Supp. No. 126			
46,210	1-26-16	Include	126
46,252	2- 9-16	Include	126
46,253	2- 9-16	Include	126
46,257	2-23-16	Include	126
46,259	2-23-16	Include	126
46,270	2-23-16	Include	126
46,271	2-23-16	Include	126
46,272	2-23-16	Include	126
46,293	3-22-16	Include	126
46,303	3-22-16	Include	126
Supp. No. 127			
46,349	4-26-16	Include	127
46,354	5-10-16	Include	127
46,383	5-10-16	Include	127
46,385	5-17-16	Include	127
46,387	5-17-16	Include	127
46,390	5-24-16	Include	127
46,391	5-24-16	Include	127
46,392	5-24-16	Include	127
46,441	6-14-16	Include	127
46,445	6-14-16	Include	127
46,447	6-28-16	Include	127
46,452	6-28-16	Include	127
46,462	6-28-16	Include	127
Supp. No. 128			
46,485	7-19-16	Include	128
46,487	7-19-16	Include	128
46,488	7-19-16	Include	128
46,545	8-23-16	Include	128
46,548	9-13-16	Include	128
46,558	9-13-16	Include	128
Supp. No. 129			
46,608	10-25-16	Include	129
46,629	11-15-16	Include	129
46,651	11-22-16	Include	129
46,652	11-22-16	Include	129
46,653	11-22-16	Include	129
46,675	12-13-16	Include	129
46,682	12-20-16	Include	129
46,690	12-20-16	Include	129
46,691	12-20-16	Include	129
Supp. No. 130			
46,731	2-28-17	Include	130
46,732	2-28-17	Include	130
46,753	2-28-17	Include	130

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46,754	2-28-17	Include	130
46,755	2-28-17	Include	130
46,772	3-21-17	Include	130
46,790	3-28-17	Include	130
Supp. No. 131			
46,791	4-11-17	Include	131
46,792	4-11-17	Include	131
46,804	4-11-17	Include	131
46,808	4-11-17	Include	131
46,810	4-25-17	Include	131
46,817	4-25-17	Include	131
46,822	5- 9-17	Include	131
46,848	5-23-17	Include	131
46,854	5-23-17	Include	131
46,866	6-13-17	Include	131
46,881	6-27-17	Include	131
Supp. No. 132			
46,900	7-11-17	Include	132
46,904	7-18-17	Include	132
46,921	8-22-17	Include	132
46,968	9-12-17	Include	132
46,969	9-12-17	Include	132
Supp. No. 133			
47,014	10-10-17	Include	133
47,015	10-10-17	Include	133
47,023	10-24-17	Include	133
47,039	10-24-17	Include	133
47,062	11-21-17	Include	133
47,063	11-21-17	Include	133
47,085	12-12-17	Include	133
47,086	12-12-17	Include	133
47,094	1- 9-18	Include	133
47,108	1- 9-18	Include	133
Supp. No. 134			
47,116	1-23-18	Include	134
47,124	1-23-18	Include	134
47,155	2-27-18	Include	134
47,156	2-27-18	Include	134
Supp. No. 135			
47,177	3-27-18	Include	135
47,210	4-24-18	Include	135
47,223	5- 8-18	Include	135
47,229	5-22-18	Include	135
47,230	5-22-18	Include	135
47,233	5-22-18	Include	135
47,236	5-22-18	Include	135

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47,241	5-22-18	Include	135
47,262	6-12-18	Include	135
47,264	6-12-18	Include	135
47,277	6-26-18	Include	135
47,279	6-26-18	Include	135
47,280	6-26-18	Include	135
Supp. No. 136			
47,289	7-10-18	Include	136
47,294	7-24-18	Include	136
47,332	8-28-18	Include	136
47,336	8-28-18	Include	136
47,337	8-28-18	Include	136
47,346	8-28-18	Include	136
47,362	9-11-18	Include	136
47,373	9-11-18	Include	136
Supp. No. 137			
47,402	10- 9-18	Include	137
47,478	12-11-18	Include	137
47,485	12-18-18	Omit	137
47,486	12-18-18	Omit	137
Supp. No. 138			
47,533	2-26-19	Include	138
47,540	2-26-19	Include	138
47,541	2-26-19	Include	138
47,542	2-26-19	Include	138
47,543	2-26-19	Include	138
47,549	3- 5-19	Include	138
47,578	3-26-19	Include	138
Supp. No. 139			
Acts 2018, Ch. 314	3-19-18	Include	139
47,621	5-14-19	Include	139
47,638	5-14-19	Omit	139
47,663	6-11-19	Include	139
47,666	6-11-19	Include	139
47,667	6-11-19	Include	139
47,676	6-11-19	Include	139
47,681	6-11-19	Include	139
47,696	6-25-19	Include	139
Supp. No. 140			
47,732	7-23-19	Include	140
47,735	7-23-19	Include	140
47,739	8-27-19	Include	140
47,742	8-27-19	Omit	140
47,758	8-27-19	Include	140
47,760	8-27-19	Include	140
47,766	9-10-19	Include	140

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47,780	9-24-19	Omit	140
Supp. No. 141			
47,796	10-22-19	Include	141
47,798	10-22-19	Include	141
47,828	11-26-19	Include	141
47,831	11-26-19	Include	141
47,832	11-26-19	Include	141
Supp. No. 142			
47,869	1-14-20	Omit	142
47,902	2-25-20	Include	142
47,908	2-25-20	Include	142
47,918	2-25-20	Include	142
47,919	2-25-20	Include	142
47,920	2-25-20	Include	142
Supp. No. 143			
47,939	3-24-20	Include	143
47,947	3-24-20	Include	143
47,972	4-28-20	Include	143
47,975	4-28-20	Include	143
47,999	5-19-20	Include	143
48,000	5-19-20	Omit	143
Supp. No. 144			
48,012	6- 9-20	Include	144
48,057	6-23-20	Include	144
48,078	7-14-20	Include	144
48,079	7-14-20	Include	144
48,091	7-14-20	Include	144
48,117	8-25-20	Omit	144
48,130	9- 1-20	Include	144
48,131	9- 1-20	Include	144
Supp. No. 145			
48,182	10-13-20	Include	145
48,193	10-27-20	Include	145
48,194	10-27-20	Include	145
48,197	10-27-20	Include	145
48,210	11-10-20	Include	145
Supp. No. 146			
48,241	12- 8-20	Include	146
48,245	12- 8-20	Include	146
48,246	12- 8-20	Include	146
48,260	12-22-20	Include	146
48,266	12-22-20	Include	146
48,270	1-12-21	Include	146
48,285	1-26-21	Include	146
48,300	2- 9-21	Include	146
48,303	2- 9-21	Include	146

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Supp. No. 147			
47,636	5-14-19	Include	147
48,322	3- 9-21	Include	147
Acts 2021, Ch. 371	3-25-21	Include	147
48,351	4-13-21	Include	147
48,352	4-13-21	Include	147
48,372	5-11-21	Include	147
48,373	5-11-21	Include	147
48,374	5-11-21	Omit	147
48,376	5-11-21	Omit	147
48,378	5-11-21	Omit	147
48,379	5-11-21	Omit	147
48,380	5-11-21	Include	147
48,383	5-11-21	Omit	147
Supp. No. 148			
48,287	1-26-21	Omit	148
48,405	6- 8-21	Include	148
48,408	6- 8-21	Omit	148
48,409	6- 8-21	Omit	148
48,410	6- 8-21	Omit	148
48,411	6- 8-21	Omit	148
48,418	6-22-21	Include	148
48,419	6-22-21	Include	148
48,433	7-13-21	Omit	148
48,434	7-13-21	Omit	148
48,436	7-13-21	Include	148
48,447	7-20-21	Omit	148
48,451	7-20-21	Omit	148
48,452	7-20-21	Omit	148
48,453	7-20-21	Omit	148
48,454	7-20-21	Omit	148
48,455	7-20-21	Omit	148
48,456	7-20-21	Omit	148
48,460	8-24-21	Omit	148
48,476	8-24-21	Include	148
48,477	8-24-21	Include	148
48,478	8-24-21	Include	148
48,479	8-24-21	Omit	148
48,480	8-24-21	Omit	148
48,481	8-24-21	Omit	148
48,485	8-24-21	Include	148
48,486	8-24-21	Omit	148
Supp. No. 149			
48,503	9-14-21	Include	149
48,504	9-14-21	Omit	149
48,510	9-28-21	Omit	149

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48,512	9-28-21	Include	149
48,513	9-28-21	Include	149
48,514	9-28-21	Include	149
48,516	9-28-21	Omit	149
48,524	10-12-21	Include	149
48,530	10-12-21	Omit	149
48,531	10-12-21	Omit	149
48,532	10-12-21	Omit	149
48,546	10-26-21	Include	149
48,547	10-26-21	Include	149
48,552	10-26-21	Omit	149
48,553	10-26-21	Omit	149
48,556	10-26-21	Omit	149
48,557	10-26-21	Omit	149
48,558	10-26-21	Omit	149
48,563	11- 9-21	Omit	149
48,564	11- 9-21	Omit	149
48,565	11- 9-21	Omit	149
48,581	12- 7-21	Omit	149
48,582	12- 7-21	Omit	149
48,583	12- 7-21	Omit	149
48,584	12- 7-21	Omit	149
48,585	12- 7-21	Include	149
48,586	12- 7-21	Include	149
48,606	12-14-21	Include	149
48,607	12-14-21	Include	149
48,609	12-14-21	Omit	149
48,611	12-14-21	Omit	149
Supp. No. 150			
48,623	1-11-22	Omit	150
48,624	1-11-22	Include	150
48,625	1-11-22	Omit	150
48,634	1-25-22	Include	150
48,636	1-25-22	Include	150
48,638	1-25-22	Omit	150
48,639	1-25-22	Omit	150
48,640	1-25-22	Omit	150
48,641	1-25-22	Omit	150
48,642	1-25-22	Omit	150
48,643	1-25-22	Omit	150
48,644	1-25-22	Omit	150
48,645	1-25-22	Omit	150
48,646	1-25-22	Omit	150
48,647	1-25-22	Omit	150
48,648	1-25-22	Omit	150
48,649	1-25-22	Omit	150

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48,650	1-25-22	Omit	150
48,661	2- 8-22	Omit	150
48,662	2- 8-22	Omit	150
48,664	2- 8-22	Omit	150
48,665	2- 8-22	Omit	150
48,666	2- 8-22	Omit	150
48,667	2- 8-22	Omit	150
48,668	2- 8-22	Omit	150
48,669	2- 8-22	Include	150
48,670	2- 8-22	Include	150
48,672	2- 8-22	Omit	150
48,676	2-22-22	Omit	150
48,684	2-22-22	Omit	150
48,685	2-22-22	Omit	150
48,686	2-22-22	Omit	150
Supp. No. 151			
48,687	2-22-22	Include	151
48,715	3-22-22	Include	151
48,719	3-22-22	Include	151
48,720	3-22-22	Include	151
48,721	3-22-22	Omit	151
Acts 2022, Ch. 288	4- 8-22	Include	151
48,734	4-12-22	Omit	151
48,735	4-12-22	Omit	151
48,736	4-12-22	Omit	151
48,737	4-12-22	Omit	151
48,738	4-12-22	Omit	151
48,739	4-12-22	Omit	151
48,747	4-26-22	Include	151
48,750	5-10-22	Omit	151
48,752	5-10-22	Include	151
48,753	5-10-22	Omit	151
48,754	5-10-22	Omit	151
48,757	5-10-22	Omit	151
48,758	5-10-22	Include	151
48,761	5-10-22	Omit	151
48,763	5-10-22	Include	151
48,764	5-10-22	Include	151
48,778	5-24-22	Include	151
48,779	5-24-22	Omit	151
48,780	5-24-22	Include	151
48,782	5-24-22	Omit	151
48,783	5-24-22	Omit	151
48,784	5-24-22	Omit	151
48,785	5-24-22	Omit	151
48,787	5-24-22	Omit	151

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48,797	6-14-22	Omit	151
48,798	6-14-22	Omit	151
48,799	6-14-22	Omit	151
48,800	6-14-22	Omit	151
48,801	6-14-22	Omit	151
48,802	6-14-22	Omit	151
48,804	6-14-22	Include	151
48,825	6-28-22	Omit	151
48,827	6-28-22	Omit	151
Supp. No. 152			
48,833	7-12-22	Omit	152
48,834	7-12-22	Include	152
48,848	7-12-22	Include	152
48,852	7-12-22	Omit	152
48,854	7-12-22	Omit	152
48,855	7-12-22	Omit	152
48,856	7-12-22	Omit	152
48,870	7-19-22	Omit	152
48,871	7-19-22	Include	152
48,874	8-23-22	Include	152
48,879	8-23-22	Include	152
48,880	8-23-22	Include	152
48,881	8-23-22	Include	152
48,885	8-23-22	Include	152
48,887	8-23-22	Include	152
48,888	8-23-22	Omit	152
48,895	8-23-22	Omit	152
Supp. No. 153			
48,905	9-13-22	Include	153
48,909	9-13-22	Include	153
48,923	9-13-22	Include	153
48,924	9-13-22	Include	153
48,927	9-13-22	Include	153
48,949	10-11-22	Include	153
48,954	10-11-22	Include	153
48,965	10-25-22	Include	153
48,976	10-25-22	Include	153
49,007	11-29-22	Include	153
Supp. No. 154			
49,031	12-13-22	Omit	154
49,035	12-13-22	Include	154
49,044	1-10-23	Include	154
49,066	1-24-23	Include	154
49,078	2-14-23	Include	154
Supp. No. 155			
49,114	3-14-23	Include	155

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49,122	3-28-23	Include	155
49,131	3-28-23	Include	155
49,155	4-25-23	Include	155
49,158	4-25-23	Include	155
49,169	5- 9-23	Include	155
49,170	5- 9-23	Include	155
49,181	5- 9-23	Include	155
49,189	5- 9-23	Include	155
49,202	5-23-23	Omit	155
Supp. No. 156			
49,220	6-13-23	Include	156
49,221	6-13-23	Include	156
49,243	6-27-23	Omit	156
49,258	7-11-23	Include	156
49,259	7-11-23	Include	156
49,273	8-29-23	Include	156
49,298	8-29-23	Include	156
49,299	8-29-23	Include	156
Supp. No. 157			
49,314	9-12-23	Include	157
49,382	10-24-23	Include	157
49,415	11-28-23	Include	157
Supp. No. 158			
49,462	1- 9-24	Include	158
49,464	1- 9-24	Omit	158
49,465	1- 9-24	Omit	158
49,466	1- 9-24	Omit	158
49,467	1- 9-24	Omit	158
49,504	2-27-24	Omit	158
49,505	2-27-24	Omit	158
49,506	2-27-24	Omit	158
49,508	2-27-24	Omit	158
Supp. No. 159			
49,515	3-12-24	Include	159
49,526	3-26-24	Include	159
49,543	4- 9-24	Omit	159
49,576	5-14-24	Omit	159
49,590	5-14-24	Include	159
49,591	5-14-24	Omit	159
49,593	5-14-24	Omit	159
49,595	5-14-24	Include	159
49,596	5-14-24	Omit	159
49,602	5-14-24	Include	159
49,609	5-28-24	Omit	159
49,610	5-28-24	Include	159
49,611	5-28-24	Omit	159

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
49,612	5-28-24	Omit	159
49,613	5-28-24	Omit	159
Supp. No. 160			
49,626	6-11-24	Omit	160
49,627	6-11-24	Omit	160
49,628	6-11-24	Omit	160
49,629	6-11-24	Include	160
49,630	6-11-24	Include	160
49,631	6-11-24	Include	160
49,644	6-25-24	Include	160
49,645	6-25-24	Include	160
49,646	6-25-24	Include	160
49,647	6-25-24	Include	160
49,648	6-25-24	Include	160
49,649	6-25-24	Include	160
49,652	6-25-24	Omit	160
49,653	6-25-24	Omit	160
49,656	7- 9-24	Omit	160
49,657	7- 9-24	Include	160
49,658	7- 9-24	Include	160
49,659	7- 9-24	Omit	160
49,660	7- 9-24	Omit	160
49,661	7- 9-24	Omit	160
49,662	7- 9-24	Omit	160
49,663	7- 9-24	Omit	160
49,665	7- 9-24	Omit	160
49,684	7-16-24	Omit	160
49,685	7-16-24	Omit	160
49,686	7-16-24	Omit	160
Supp. No. 161			
49,736	9-24-24	Include	161
49,748	9-24-24	Include	161
1,929 (Res.)	12-10-24	Include	161
49,807	12-10-24	Include	161
49,809	12-10-24	Include	161
49,810	12-10-24	Include	161
49,820	12-10-24	Include	161
49,843	1-28-25	Include	161
49,861	2-11-25	Include	161
Supp. No. 162			
Acts 2025, Ch. 373	3-24-25	Include	162
49,907	3-25-25	Include	162
49,913	4- 8-25	Include	162
49,943	4-29-25	Include	162
49,945	4-29-25	Include	162
49,958	5-13-25	Include	162

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
49,961	5-13-25	Include	162
49,962	5-13-25	Include	162
49,965	5-13-25	Omit	162
49,966	5-13-25	Include	162
Supp. No. 163			
50,029	6-24-25	Include	163
50,030	6-24-25	Include	163
50,039	6-24-25	Include	163
50,044	7- 8-25	Include	163
50,046	7-15-25	Include	163
50,068	7-15-25	Omit	163
Supp. No. 164			
50,126	9-23-25	Include	164
50,127	9-23-25	Include	164
50,139	10- 7-25	Include	164
Supp. No. 165			
50,211	12- 9-25	Include	165
50,212	12- 9-25	Include	165
50,248	1-13-26	Include	165
Supp. No. 166			
1,962 (Res.)	12- 9-25	Include	166
Acts 2026, Ch. 316	4- 6-26	Include	166
Acts 2026, Ch. 317	4- 6-26	Include	166
50,343	4-28-26	Include	166
50,344	4-28-26	Include	166
50,362	5-12-26	Omit	166
50,363	5-12-26	Omit	166
50,374	5-19-26	Include	166
50,381	5-19-26	Omit	166
50,383	6- 9-26	Include	166

CHARTER*

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***Editor's note—**The Charter, as amended, is set out herein as it appeared in the 1958 Norfolk City Code. The basic Charter was enacted by Chapter 34 of the 1918 Acts of the General Assembly. Amendments are indicated by history notes appearing in parentheses ( ) at the end of the amended section. The absence of such a note indicates that the section is derived, unamended, from Acts 1918, Chapter 34. Any words appearing in brackets [ ] were added by the editor.

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Sec. 1. The city and its boundaries.

The inhabitants of the territory comprised within the present limits of the City of Norfolk as hereinafter described, or as the same may be hereafter altered and established by law, shall continue to be a body politic and corporate to be known and designated as the City of Norfolk, and as such shall have perpetual succession, may sue and be sued, contract and be contracted with, and may have a corporate seal which it may alter, renew or amend at its pleasure; the present boundaries of the said city being as follows, to wit:

Beginning at a point on the Port Warden's Line of the Elizabeth River where the northern line of Forty-ninth Street (formerly Forty-fifth Street) intersects said Port Warden's Line, thence S. 24° 55′ W. 4450 feet, more or less, to the coal pier of Norfolk and Western Railway at Lamberts Point, thence following the Port Warden's Line southeasterly and passing across the mouths of all tributary creeks to the intersection of said Port Warden's Line with the centre line of Ohio Creek, thence northwardly along the centre line of Ohio Creek to the centre line of Corprew Avenue, thence westwardly along the centre line of Corprew Avenue to the eastern line of Park Avenue, thence northeastwardly along the eastern side of Park Avenue to the northern side of Princess Anne Avenue, thence westwardly along the northern side of Princess Anne Avenue to the eastern side of the right-of-way of the Norfolk and Western Railway Company, thence northwardly and westwardly along the eastern and northern line of said right-of-way to the centre line of a cove or arm of Tanner's Creek, which said cove divides and separates the land of Lindenwood on the west from the land of Washington Heights on the east, thence northwardly following the centre line of said cove as defined by above mentioned properties to the prolongation of the north side of Hayes Street (formerly Union Street), thence northwestwardly along the prolongation of the north side of Hayes Street and of the north side of Hayes Street to the intersection of Hayes Street and West Street to the head of another cove, thence northwardly and following the centre of the cove, thence continuing northwardly across and to the centre of Tanner's Creek, thence following the centre line of Tanner's Creek, and a branch thereof to the intersection of said centre line with the centre line of Colley Avenue extended northerly, thence southerly along the centre line of Colley Avenue to its intersection with the western boundary of "Highland Park," thence southerly along the western boundary of "Highland Park" to its intersection with the northern side of Forty-ninth Street (formerly Forty-fifth Street), thence westerly along the northern line of Forty-ninth Street to the Port Warden's Line of the Elizabeth River to the point of beginning.

Also, beginning at the point in the harbor line of the south side of the eastern branch of the Elizabeth River where the line between B. A. Colonna and the Hardy heirs intersects the same; and thence about south to the forks of the creek, and thence southeasterly following the middle of the southeast fork of said creek, and the southern boundary of said Colonna's property to the western boundary of the Norfolk and Western Railroad, in such a manner as to exclude the farm of B. A. Colonna from what was formerly the Town of Berkley; thence following southerly along the western line of the Norfolk and Western Railroad Company's right-of-way to its intersection with the Oberndorfer Road; thence continuing along the western side of said road to Liberty Street extended; thence along the north side of Liberty Street to the western line of Chesterfield Street to the centre of Liberty Street to the western line of Chesterfield (formerly of Fourteenth Street), on the Tunis property extended, thence along the western line of said Chesterfield Street to the centre of Mill Run Creek; thence down the centre of said creek to the southern branch of the Elizabeth River; thence down the southern branch to the Elizabeth River proper, along the said river to the eastern branch and up the eastern branch to the point of beginning.

The courts of said city shall have civil and criminal jurisdiction beyond said boundaries as is now provided or may hereafter be provided by law, and the said courts shall have exclusive jurisdiction over that part of the Eastern Branch of the Elizabeth River which lines lies between the portions of said city above described and concurrent jurisdiction with the courts of the County of Norfolk or of the City of Portsmouth over the Elizabeth River and its tributaries lying

between the said City of Norfolk and the said County of Norfolk and between said City of Norfolk and the City of Portsmouth, subject in each case only to the maritime and admiralty jurisdiction of the United States.

Editor's note—The corporate limits of the city were extended on January 1, 1923, by order of court entered on July 24, 1922, as follows: Beginning at a point on Oberndorfer Road where Berkley Avenue extended intersects said Oberndorfer Road, which point is on the southeastern boundary of the present City of Norfolk; thence in a southeast direction and along Berkley Avenue extended, which is the northeast side of South Norfolk, to the point where said Berkley Avenue extended intersects the western line of the right-of-way of the Virginian Railway; thence in a northeast and north direction along the said western line of said right-of-way of the Virginian Railway to a point where the said line intersects the eastern line of Indian Pole Bridge Road; thence in a northerly direction along the said eastern line of the Indian Pole Bridge Road to the point where the same intersects the middle line of the channel of Masons Creek; thence eastwardly along the center line of Masons Creek to a point where the center line of Masons Creek is intersected by the center line of a certain arm of Masons Creek; thence eastwardly along the center line of said arm of Masons Creek, which arm divides the lands of Kight and Watts, to its head, and continuing eastwardly along the boundary line between the lands of Kight and Watts to the eastern side of the old Cottage Toll Bridge Road; thence in a northerly direction along the eastern side of said Cottage Toll Bridge Road 100 feet more or less to its intersection with the southern side of Fishermans Road; thence in a northeastern direction along the southern side of Fishermans Road to the point where the boundary line between the properties of the Bay View Beach Corporation and Simpson touches said Fishermans Road; thence in a southeastern direction along the boundary line between the properties of Bay View Beach Corporation and Simpson to the boundary line between Norfolk and Princess Anne Counties; thence northerly along the Princess Anne County line to the waters of Chesapeake Bay and as far therein as the law allows; thence generally northwesterly and westerly along the waters of Chesapeake Bay and the waters of Hampton Roads and near the north side of the United States Naval Operating Base to the Port Warden Line of Hampton Roads; thence in a southerly direction along said Port Warden Line of Hampton Roads to a point on said Port Warden Line which is the north Port Warden Line of Lafayette River; thence in, a southerly direction to a point on the Port Warden Line of the Elizabeth River, which point is the intersection of the north side of 49th Street and said Port Warden Line, and is the north line of the present boundary of the City of Norfolk; and thence following the said corporate line of the City of Norfolk in an easterly, southeasterly and southerly direction, as the same is now established, to the point of beginning.

The corporate limits of the city were extended on January 1, 1955, by order of court entered on May 25, 1954, as follows: Beginning at a point in the present corporate boundary line of the City of Norfolk, as established by order of the Circuit Court of Norfolk County entered July 24, 1922, in annexation proceedings of the City of Norfolk against Norfolk County, where said present boundary is joined by the boundary line between Norfolk County and Princess Anne County, as established by orders of the Circuit Courts of Norfolk and Princess Anne Counties, both entered the 5th day of December, 1921, said point of beginning being a common corner to the Counties of Norfolk and Princess Anne and the City of Norfolk as presently bounded; thence in a general southerly direction along said boundary line between said counties, the following courses and distances, as shown on the plat recorded pursuant to said orders in the clerk's office of the Circuit Court of said Norfolk County in Map Book 18, at page 13, and in the clerk's office of the Circuit Court of Princess Anne County in Map Book 6, at Pages 220, 221 and 233; S. 64° 27′ W. 2500 feet, more or less, to a point; S. 24° 30′ W. 4341.5 feet to cement post No. 17; S. 21° 30′ W. 1607.3 feet to cement post No. 16; S. 26° 58′ E. 8621.6 feet to cement post No. 15; S. 68° 00′ E. 2955.5 feet to cement post No. 14; S. 68° 00′ E. 56.5 feet to a point; S. 13° 39′ E. 2149 feet to a point; S. 31° 11′ E. 1242.8 feet to a point; 5. 19° 31′ E. 1184.7 feet to a point; S. 13° 54′ W. 870 feet to a point; S. 26° 00′ W. 707.5 feet to cement post No. 13; S. 56° 30′ W. 867.9 feet to a point; N. 69° 05′ W. 1007.8 feet to a point; S. 72° 26′ W. 995.3 feet to a point; S. 45° 19′ W. 1502.8 feet to a point; S. 40° 29′ W. 4114.4 feet to a point; S. 19° 49′ E. 1187.3 feet to a point; S. 24° 48′ W. 1294.9 feet to a point; S. 28° 06′ E. 2136.8 feet to a point; thence continuing southwardly along said boundary line between Norfolk County and Princess Anne County to a point in the center line of the Eastern Branch of the Elizabeth River; then westwardly along the center line of the Eastern Branch of the Elizabeth River to the present eastern corporate boundary of the City of Norfolk, as established in the aforesaid proceedings; thence northwardly and eastwardly along the easternmost line of the present corporate limits of the City of Norfolk established as aforesaid, to the point of beginning; containing 7,143 acres, more or less, all of which lies in Norfolk County, Virginia, and comprises all of the Tanners Creek Magisterial District of said county.

The corporate limits of the city were extended on January 1, 1959, by order of the court entered April 1, 1957, as follows: The metes and bounds of the territory to be annexed, all of which lies in Kempsville Magisterial District of said County of Princess Anne, are as follows: Beginning at a point on the present eastern corporate boundary line of the City of Norfolk, as established by Order of the Circuit Court of Norfolk County, entered July 24, 1922, in annexation proceedings of the City of Norfolk against Norfolk County, and on the line established as the then boundary between Norfolk County and Princess Anne County by Orders of the Circuit Courts of Norfolk and Princess Anne Counties, both entered the 5th day of December, 1921, said point of beginning being the northeasternmost corner of the territory annexed to the City of Norfolk by the Order of the Circuit Court of Norfolk County entered May 25, 1954; thence southwardly along the present corporate boundary, as established by the last mentioned order, to a point in the center line of the Eastern Branch of the Elizabeth River, said point being the southeastern corner of the territory annexed to the City of Norfolk under the terms of the last mentioned Order of Court; thence eastwardly along the center line of the eastern branch Of the Elizabeth River to a point in the prolongation southwardly of the most southerly course in

the western boundary of the J. R. Simpson Farm as shown on a plat thereof recorded in the office of the Clerk of the Circuit Court of Princess Anne County, Virginia, in Map Book 6, Page 49; thence northwardly along said prolongation and along the western boundary of the J. R. Simpson Farm which follows the eastern line of Newtown Cross Road, as shown on said plat of record, to the southern terminus of State Highway 652; thence northwardly along the eastern line of State Highway 652 to a point north of U. S. Highway 58 where said line is intersected by the prolongation eastwardly of the southwestern boundary of property now or formerly owned by Alfalfa Farms, Incorporated, and shown on a plat thereof recorded in the office of the Clerk of the Circuit Court of Princess Anne County, Virginia, in Map Book 11, Page 5; thence northwestwardly along said prolongation and along said southwestern boundary of Alfalfa Farms, Incorporated, to the point where said boundary joins the northeastern boundary of Section B, Hollywood, as shown on a plat thereof recorded in aforesaid Clerk's Office in Map Book 7, Page 55; thence northwestwardly along the northeastern boundary of Section B, Hollywood, and along the northeastern boundary of Section A, Hollywood, as shown on a plat thereof recorded in said Clerk's Office in Map Book 8, Page 51, to the eastern line of Section C, Maple Hall, as shown on the plat thereof of record in the aforesaid Clerk's Office in Map Book 23, Page 12; thence northwestwardly along the northeastern boundary of Section C, Maple Hall, as shown on said plat, to the eastern limit of the City of Norfolk's Lake Taylor property; thence northwardly and northwestwardly along the eastern and northeastern boundaries of aforesaid Lake Taylor property to an arm or branch of said lake extending northwardly and adjacent to the eastern line of property conveyed to the City of Norfolk by P. D. Halstead and lda E. Halstead, his wife, by deed dated June 24, 1929, and recorded in the office of the Clerk of the Circuit Court of Princess Anne County, Virginia, in Deed Book 197, Page 529; thence northwardly along the boundary of Lake Taylor property, as said boundary extends along the eastern side of the aforementioned arm or branch of Lake Taylor, to a point in the center line of a ditch on the southwestern line of State Highway 667; thence eastwardly along the center line of said ditch to a point in the northeastern line of said Highway 667; thence northwestwardly along the northeastern line of State Highway 667 and the prolongation northwestwardly thereof to a point in the northwestern line of U. S. Highway 13; thence northwestwardly in a straight line to a point in the southeastern line of the Norfolk Southern Railway Company's right-of-way, distant 420 feet southwestwardly, as measured along said line, from the southwestern line of Burtons Station Road designated as No. 1 Road on a plat entitled "Property of Mrs. Rosanna Ahman, Princess Anne County, Virginia, July 1908", duly of record in the office of the Clerk of the Circuit Court of Princess Anne County, Virginia, in Map Book 3, Page 185; thence northwestwardly along the prolongation, in a straight line, of the preceding course, to the southeastern boundary of the City of Norfolk Municipal Airport property which follows a line parallel to and distant 60 feet northwestwardly from the center line of the northwesternmost of two main line tracks of the New York—Philadelphia and Norfolk Railroad Company leading to the Little Creek yards of said railroad; thence northeastwardly along the aforesaid boundary to the point where said boundary is intersected by a line parallel to and distant 300 feet northwestwardly from the base line of said Little Creek Yards as shown on a plat entitled "No. 25483 Norfolk Div. Southern Div. P.R.R. Plan Little Creek Yard As Built Scale 1″ = 200′ Engineering Dept. P.R.R. Office of Ass't. Engineer, Baltimore, Md., August 23, 1929", a copy of which is filed with the papers in this cause and also in the office of the Division of Surveys, Department of Public Works of the City of Norfolk; thence northeastwardly along a line parallel to said base line and distant 300 feet northwestwardly therefrom, as measured at right angle thereto, to the northern line of U. S. Highway 60, sometimes known as Shore Drive; thence westwardly and northwestwardly along the northern and northeastern line of said highway to the westernmost corner of the United States Naval Amphibious Base at Little Creek, said corner being near the intersection of State Highway 168 with U. S. Highway 60; thence northeastwardly along the western boundary of said Amphibious Base and the prolongation northeastwardly thereof to a point in the center line of the western branch of Little Creek; thence eastwardly along the center line of the western branch of Little Creek to a point in the prolongation southwardly of the eastern line of 30th Street, as shown on the plat of East Ocean View, recorded in the office of the Clerk of the Circuit Court of Princess Anne County, Virginia, in Map Book 4, Page 79; thence northwardly along the aforesaid prolongation of the eastern line of 30th Street and along the eastern line of said 30th Street to the eastern boundary of the property the City of Norfolk acquired by an order of condemnation entered by the Circuit Court of Princess Anne County, Virginia, on January 29, 1932; thence northwardly along said boundary to the line of mean low water of Chesapeake Bay; thence westwardly along the line of mean low water of Chesapeake Bay to the present eastern corporate boundary of the City of Norfolk, as established by Order of the Circuit Court of Norfolk County entered July 24, 1922, in the first mentioned annexation proceedings of the City of Norfolk against Norfolk County; and thence southwardly along said corporate boundary to the point of beginning. The above described territory contains thirteen and five-tenths (13.5) square miles, more or less.

Sec. 2. Powers of the city.

In addition to the powers mentioned in the preceding section, the said city shall have power:

(1) To raise annually by taxes and assessments in said city such sums of money as the council hereinafter provided for shall deem necessary for the purposes of said city, and in such manner as said council shall deem expedient, in accordance with the Constitution and laws of this state and of the United States; provided, however, that it shall impose no tax on the bonds of said city.

(2) To impose special or local assessments for local improvements and enforce payment thereof; subject, however, to such limitations prescribed by the Constitution of Virginia as may be in force at the time of the imposition of such special or local assessments.

(3) Subject to the provisions of the Constitution of Virginia and of § 86, as amended, of this Charter, to contract debts, borrow money and make and issue evidence of indebtedness.

(4) To expend the money of the city for all lawful purposes.

(5) To acquire by purchase, gift, devise, condemnation or otherwise, property, real or personal, or any estate or interest therein within or without the city or State and for any of the purposes of the city; and to hold, improve, sell, lease, mortgage, pledge or otherwise dispose of the same or any part thereof.

(6) To acquire, in any lawful manner, for the purpose of encouraging commerce and manufacture, lands within and without the city not exceeding at any one time five thousand acres in the aggregate, and from time to time to sell or lease the same or any part thereof for industrial or commercial uses and purposes.

(7) To make and maintain public improvements of all kinds, including municipal and other public buildings, armories, markets and all buildings and structures necessary or appropriate for the use of the departments of fire and police; and to acquire by condemnation or otherwise all lands, riparian and other rights and easements necessary for such improvements, or any of them.

(8) To furnish all local public service; to purchase, hire, construct, own, maintain and operate, or lease local public utilities; to acquire by condemnation or otherwise, within or without the corporate limits, land and property necessary for any such purposes.

(9) To acquire, in any lawful manner, in any county of the State, or without the State, such water, lands and lands under water as the council of said city may deem necessary for the purpose of providing an adequate water supply for said city and of piping or conducting the same; to lay all necessary mains; to erect and maintain all necessary dams, pumping stations and other works in connection therewith; to make reasonable rules and regulations for promoting the purity of its said water supply and for protecting the same from pollution; and for this purpose to exercise full police powers and sanitary patrol over all lands comprised within the limits of the watershed tributary to any such water supply wherever such lands may be located in this State; to impose and enforce adequate penalties for the violation of any such rules and regulations; and to prevent by injunction any pollution or threatened pollution of such water supply and any and all acts likely to impair the purity thereof; and for the purpose of acquiring lands or material for any such use to exercise within the State all powers of eminent domain possessed by railroad corporations under the laws of this state; provided that the lands and lands under water which may be held in this State by said city for such purpose shall not exceed, in the aggregate, thirty thousand acres at any one time. For any of the purposes aforesaid, said city may, if the council shall so determine, acquire by condemnation, purchase or otherwise, any estate or interest in such lands or any of them, or any right or easement therein, or may acquire such lands or any of them in fee, reserving to the owner or owners thereof such rights or easements therein as may be prescribed in the ordinance providing for such condemnation or purchase. The said city may sell or supply to persons, firms or industries residing or located outside of the city limits any surplus of water it may have over and above the amount required to supply its own inhabitants.

(10) To establish, impose and enforce water rates and rates and charges for public utilities, or other service, products or conveniences, operated, rendered or furnished by the city.

(10½) To establish, in the manner hereinafter provided, adjacent to or near the lines of existing streets, on either or both sides thereof, building lines, and to provide that no new buildings shall thereafter be erected upon the property (hereinafter called the "interlying property") lying between said building lines and the street lines. Said building lines may be established for the whole or any part of a street (but not for less than one block or the distance between two cross streets), as the council may determine. Before any such lines shall be established, the council shall cause to be published, for at least ten days in some paper of general circulation in the city, a notice addressed generally, but without naming them, to the owners of the property on which building lines are proposed to be established, stating that it is proposed to establish building lines thereon and naming a day when a hearing will be had in respect thereof. After said hearing the council may proceed to establish such lines, and the ordinance establishing the same shall be recorded by the city clerk and indexed in the name of the street near which said building lines are to be established; and thereafter all persons shall be deemed to be affected with notice of the establishment of such lines, and no permits shall be granted for the construction of any building on the interlying property.

But the ordinance establishing said lines shall become null and void as against any owner of property objecting thereto, unless:

(a) When the interlying property shall be unoccupied by buildings, the city shall, within sixty days after the passage of the ordinance establishing said lines, purchase the same or institute condemnation proceedings for the acquisition thereof; or

(b) When the interlying property is occupied, in whole or in part, by buildings, the city shall, within sixty days after receipt of notice in writing that the said buildings have been removed from said interlying property (it being hereby made the duty of the said owner to give such notice), purchase said interlying property or institute condemnation proceedings for the acquisition thereof, and thereafter complete its acquisition of property in said proceedings.

The rights of the city shall not be prejudiced by any defect in the proceedings instituted under paragraphs (a) and (b) hereof, resulting in their dismissal, if within thirty days after said dismissal new proceedings shall be instituted for the same purpose. Nothing herein contained shall be construed as limiting or abridging in any degree the power of eminent domain now possessed by the city under existing law.

(11) To establish, open, widen, extend, grade, improve, construct, maintain, light, sprinkle and clean public highways, streets, alleys, boulevards and parkways, and to alter or close the same; to establish and maintain parks, playgrounds and other public grounds; to construct, maintain and operate bridges, viaducts, subways, tunnels, sewers and drains and to regulate the use of all such highways, parks, public grounds and works; to plant and maintain shade trees along the streets and upon such public grounds; to prevent the obstructing of such streets and highways, abolish and prevent grade crossings over the same by railroads; regulate the operation and speed of all cars and vehicles using the same as well as the operation and speed of all engines, cars and trains on railroads within the city; to regulate the services to be rendered and rates to be charged by busses, motor cars, cabs and other vehicles for the carrying of passengers, and by vehicles for the transfer of baggage; require all telephone and telegraph wires and all wires and cables carrying electricity to be placed in conduits underground and prescribe rules and

regulations for the construction and use of such conduits; and to do all other things whatsoever adapted to make said streets and highways safe, convenient and attractive.

(12) To construct and maintain, or aid in constructing and maintaining, public roads, boulevards, parkways and bridges, beyond the limits of the city, in order to facilitate public travel to and from said city and its suburbs, and to and from said city and any property owned by said city and situated beyond the corporate limits thereof, and to acquire land necessary for such purpose by condemnation or otherwise.

(13) To establish, construct, maintain and operate public lands [landings], public wharves and docks either within or without the city; to acquire by condemnation or otherwise all lands, riparian and other rights and easements necessary for the purpose aforesaid; to lay and collect reasonable duties or wharfage fees on vessels coming to or using said landings, wharves or docks; to regulate the manner of using other wharves and docks within the city and rates of wharfage to be paid by vessels using the same; to dredge or deepen the harbor or river or any branch or portion thereof; to prescribe and enforce reasonable rules and regulations for the protection and use of its said properties, whether within or without the city; and to impose and enforce adequate penalties for the violation of such rules and regulations.

(14) Subject to the provisions of the Constitution of Virginia and of §§ 100, 104 and 105 of this Charter, both inclusive, to grant franchises for public utilities.

(15) To collect and dispose of sewage, offal, ashes, garbage, carcasses of dead animals and other refuse, and to acquire and operate reduction of or other plants for the utilitization or destruction of such materials, or any of them; or to contract for and regulate the collection and disposal thereof.

(16) To compel the abatement and removal of all nuisances within the city or upon property owned by the city beyond its limits at the expense of the person or persons causing the same, or of the owner or occupant of the ground or premises whereon the same may be; to require all lands, lots and other premises within said city to be kept clean, sanitary and free from weeds, or to make them so at the expense of the owners or occupants thereof; to regulate or prevent slaughterhouses or other noisome or offensive business within said city, the keeping of animals, poultry or other fowl therein, or the exercise of any dangerous or unwholesome business, trade or employment therein; to regulate the transportation of all articles through the streets of the city; to compel the abatement of smoke and dust, and prevent unnecessary noise therein; to regulate the location of stables and the manner iii which they shall be kept and constructed, and generally to define, prohibit, abate, suppress and prevent all things detrimental to the health, morals, comfort, safety, convenience and welfare of the inhabitants of the city.

(17) To inspect, test, measure and weigh any commodity or article of consumption or use within the city and to establish, regulate, license and inspect weights, meters, measures and scales.

(18) To extinguish and prevent fires and to compel citizens to render assistance to the fire department in case of need, and to establish, regulate and control a fire department or division; to regulate the size, materials and construction of buildings, fences and other structures hereafter erected in such manner as the public safety and convenience may require; to remove, or require to be removed, any building, structure or addition thereto which, by reason of dilapidation, defect of structure or other causes may have become dangerous to life or property, or which may be erected contrary to law; to establish and designate from time to time

fire limits, within which limits wooden buildings shall not be constructed, removed, added to or enlarged, and to direct that any or all future buildings within such limits shall be constructed of stone, natural or artificial, concrete, brick, iron or other fireproof material; provided, however, that by a vote of four-fifths of all the members of the council permission may be granted for storage sheds constructed on pile piers or wharves on the waterfront, the side and roofs of which shall be covered with corrugated iron or other fireproof material.

(19) To provide for the care, support and maintenance of children and of sick, aged, insane or poor persons and paupers.

(20) To organize and administer public schools and libraries subject to the general laws establishing a standard of education for the State.

(21) To provide and maintain, either within or without the city, charitable, recreative, curative, corrective, detentive or penal institutions.

(22) To prevent persons having no visible means of support, paupers and persons who may be dangerous to the peace or safety of the city from coming to said city from without the same; and for this purpose to require any railroad company, the master of any ship or vessel or the owners of any conveyance bringing such person to the city, to take such person back to the place whence he was brought, or enter into bond with satisfactory security that such person shall not become a charge upon said city within one year from the date of his arrival; and also to expel therefrom any such person who has been in said city less than ninety days.

(23) To provide for the preservation of the general health of the inhabitants of said city, make regulations to secure the same, inspect all foods and foodstuffs and prevent the introduction and sale in said city of any article or thing intended for human consumption which is adulterated, impure or otherwise dangerous to health, and to condemn, seize and destroy or otherwise dispose of any such article or thing without liability to the owner thereof; prevent the introduction or spread of contagious or infectious diseases, and prevent and suppress diseases generally; to provide and regulate hospitals within or without the city limits, and to enforce the removal of persons afflicted with contagious or infectious diseases to hospitals provided for them; to provide for the organization of a department or bureau of health, to supplement the salary paid by the Commonwealth to the Director of Public Health, to have the powers of a board of health, for said city, with the authority necessary for the prompt and efficient performance of its duties, with power to invest any or all the officials or employees of such department of health with such powers as the police officers of the city have; to establish a quarantine ground within or without the city limits, and such quarantine regulations against infectious and contagious diseases as the said council may see fit, subject to the laws of the State and of the United States; to provide and keep records of vital statistics and compel the return of all births, deaths and other information necessary thereto.

(24) To acquire by purchase, gift, devise, condemnation, or otherwise, lands, either within or without the city, to be used, kept and improved as a place for the interment of the dead, and to make and enforce all necessary rules and regulations for the protection and use thereof; and generally to regulate the burial and disposition of the dead.

(25) To exercise full police powers, and establish and maintain a department or division of police.

(26) To do all things whatsoever necessary or expedient for promoting or maintaining the general welfare, comfort, education,

morals, peace, government, health, trade, commerce or industries of the city or its inhabitants.

(27) To make and enforce all ordinances, rules and regulations necessary or expedient for the purpose of carrying into effect the powers conferred by this Charter or by any general law, and to provide and impose suitable penalties for the violation of such ordinances, rules and regulations, or any of them in a manner consistent with § 2(e), as amended, of this Charter. The city may maintain a suit to restrain by injunction the violation of any ordinance, notwithstanding such ordinance may provide punishment for its violation.

(28) To establish, by ordinance, certain voluntary design guidelines for new construction or rehabilitation of residential real property in certain designated districts. The guidelines shall be voluntary and may only be applied at the request of the property owner. A fee may be charged for review, which shall not exceed the actual cost of such review process, or $200.00, whichever is less.

(29) To require that, on any property where there is a substantial negative impact on public health, safety, and welfare, all land, buildings and structures and uses thereof that do not conform to the regulations and restrictions prescribed for the zoning district in which each is situated shall conform to the regulations and restrictions prescribed for the zone or zones in which each property is situated within a reasonable period of time to be specified by ordinance, including a zoning ordinance, but never less than two years.

The enumeration of particular powers in this Charter shall not be deemed or held to be exclusive, but in addition to the powers enumerated herein, implied thereby, or appropriate to the exercise thereof, the said city shall have and may exercise all other powers which are now or may hereafter be possessed or enjoyed by cities under the Constitution and general laws of this State.

(Acts 1919, Ex. Sess., Ch. 68; Acts 1982, Ch. 289, l; Acts 2000, Ch. 950, § 1; Acts 2004, Ch. 52; Acts 2010, Ch. 34; Acts 2026, Chs. 316, 317 (Res. No. 1,962), § 1)

Sec. 2(a). Admission tax on admission to places of public amusement, etc.

In addition to the other powers conferred by law, the said city shall have the power to impose, levy and collect, in such manner as its council shall deem expedient, an admission tax on admission to any public amusement, entertainment, performance, exhibition, sport or athletic event in said city and may provide that such tax may be added to and collected with the price of admission or other charge for such amusement, entertainment, performance, exhibition, sport or athletic event. Such tax may be imposed, levied and collected in multiples of one cent.

(Acts 1946, Ch. 98)

Sec. 2(b). Consumer or subscriber tax on public utility services.

In addition to the other powers conferred by law, the said city shall have the power to impose, levy and collect, in such manner as its council may deem expedient, a consumer or subscriber tax upon the amount paid for the use of water, gas, electricity, telephone and any other public utility service within the city, or upon the amount paid for any one or more of such public utility services, and may provide that such tax shall be added to and collected with bills rendered consumers and subscribers for such services.

(Acts 1948, Ch. 34)

Sec. 2(c). Financial aid to bridges within city limits authorized.

The city shall have power to aid in financing the construction of any bridge constructed within the corporate limits of the city by either the State of Virginia or by any of its agencies or political subdivisions, and in financing the maintenance and operation of such bridge, upon such terms and conditions as may be prescribed

by an agreement or agreements made by the city with the state or agency or political subdivision constructing such bridge, provided the bridge is, in the opinion of the council, necessary or appropriate to serve the city and its inhabitants.
(Acts 1950, Ch. 436)

Sec. 2(d). Acquisition, maintenance, etc., of public wholesale market.

The city shall have power to acquire, erect, construct, reconstruct, improve, equip, maintain and operate, and lease buildings, structures and other facilities suitable or necessary for a public wholesale market, and to acquire any land or rights in land needed for such purposes. Such buildings, structures or other facilities may include any building, structure or other facility suitable for use by merchants, dealers, farmers and others engaged in the marketing of perishable farm produce, fruits, vegetables, poultry, eggs, horticultural products, dairy products, meats, sea food, dry groceries or frozen foods, and in the operation of freezing and pre-packaging plants, and in the furnishing of baskets and containers

for farm produce and other articles dealt in at said market. The city may make charges for the use of any of the facilities afforded by said market.
(Acts 1956, Ch. 295)

Sec. 2(e). Penalties for violation of ordinances.

The city is empowered to provide and impose punishment for the violation of its ordinances, by fine and imprisonment, either or both, up to the maximum penalty provided for Class 1 misdemeanors under the Code of Virginia, as amended.
(Acts 1956, Ch. 115; Acts 2000, Ch. 950, § 1)

Sec. 2(f). Establishment, maintenance, etc., of city jail.

In addition to the other powers conferred by law, the said city shall have the power to establish, maintain and operate, within or without the city, a jail for the confinement of prisoners ordered or sentenced to be confined therein. The courts, city sergeant [sheriff] and his deputies, and police justices [general district court judges] of the city, shall have the same jurisdiction and powers over any jail that may be established, maintained and operated by the city without its corporate limits as they may now or may hereafter have by law over any jail that may be located within the city.
(Acts 1956, Ch. 115)

Sec. 3. [Repealed by Acts 1992, Ch. 261.]

Editor's note—The repealed provisions which derived from Acts 1992, Ch. 64, pertained to the abolishment of wards and ward lines.

Sec. 3.1. [Repealed by Acts 2005, Ch. 893, § 1.]

Editor's note—The repealed provisions, which derived from Acts 1992, Ch. 261, § 1, pertained to wards.

Sec. 3.2. Wards.

The City of Norfolk shall be divided into five (5) single-member wards numbered one through five, and the city shall also be divided into two single-member superwards numbered six and seven. The boundaries of such wards and superwards shall be established by ordinance of the city council as provided by law.
(Acts 2005, Ch. 893, § 1)

THE COUNCIL

Sec. 4. Creation and [general] powers of council.

There is hereby created a council, which shall have full power and authority, except as herein otherwise provided, to exercise all of the powers conferred upon the city. It shall by ordinance fix the salaries of all officers and employees of the city, except the salaries of its own members, which shall be as provided in this Charter; and may, so far as is not inconsistent with the provisions of this Charter, define the powers and prescribe the duties of all such officers and employees.

Sec. 4(a). Power of council to require certain officers and employees to reside in city during tenure of office.

Notwithstanding the authority granted the civil service commission by paragraph 5 of section 112 of this Charter to establish resident requirements for candidates and eligibles, the council shall have the power to provide by ordinance that the regular, permanent officers and employees of the city in the classified and unclassified services, or any of them, as a condition of holding office or employment, shall reside in the city during their continuance in office or employment, and the council shall have the power to make such exceptions to and to impose such conditions upon any resident requirement prescribed pursuant hereto as it deems to be in the best interest of the city; provided, however, that if the council adopts an ordinance providing for such a resident requirement as is authorized herein the regular, permanent officers and employees of the city who are in office or employment on the effective date of this act and who also reside outside of the city in

homes owned by them shall not be affected by the terms of any such ordinance so long as they continue to reside in their present homes.
(Acts 1962, Ch. 459)

Sec. 5. [Repealed by Acts 2005, Ch. 893, § 1.]

Editor's note—The repealed provisions, which derived from Acts 1950, Ch. 428; Acts 1972, Ch. 706, § 1; and Acts 1992, Ch. 261, § 1, pertained to composition of council.

Sec. 5.1. Composition of council.

On and after July 1, 2006, the city council shall consist of seven members, each elected from single-member wards as provided in section 3.2, and a mayor elected at-large. Any member of city council shall be subject to recall in accordance with the provisions of this Charter.

The council shall be a continuing body and no measure pending before such body shall abate or be discontinued by reason of the expiration of the term of office or removal of the members of said body or any of them.
(Acts 2005, Ch. 893, § 1)

Sec. 6. [Repealed by Acts 2005, Ch. 893, § 1.]

Editor's note—The repealed provisions, which derived from Acts 1992, Ch. 261, § 1, pertained to qualification of members; conduct of candidates.

Sec. 6.1. Qualification of members; conduct of candidates.

Beginning with the municipal election in 2006, any person qualified to vote in said city shall be eligible to the office of mayor or for the office of council member for the ward or superward in which such person resides. No person shall serve on council as both mayor and council member from a ward or superward, nor from more than one ward, including superwards. No candidate for the office of council member, including mayor, shall promise any money, office, employment, or other thing of value to secure a nomination or election, or expend in connection with his candidacy any money except as permitted by the general election laws of the state; and any such candidate violating this provision shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine not exceeding $500, or imprisonment for a term not exceeding six months, or both, in the discretion of the jury, and shall forfeit his office, if elected; in which event, the person receiving the next highest number of votes from the voters for said office, who has not violated the said provision, shall be entitled to said office. Should there be no such candidate, the council shall fill the office with a person from the vacated ward or superward and, in the case of the office of mayor from the city at-large, in accordance with § 7, until a special election pursuant to general law is held.
(Acts 2005, Ch. 893, § 1)

Sec. 7. [Repealed by Acts 2005, Ch. 893, § 1.]

Editor's note—The repealed provisions, which derived from Acts 1950, Ch. 428; Acts 1956, Ch. 115; Acts 1982, Ch. 289, § 1; Acts 1983, Ch. 587, § 1; and Acts 1992, Ch. 261, § 1, pertained to vacancies.

Sec. 7.1. Vacancies.

Any vacancy in the council after July 1, 2006, except as otherwise provided in this Charter, shall be filled by the remaining members. Any person elected to fill an unexpired term for ward representative shall be elected only from among the qualified voters in the ward or superward where such vacancy exists. Any vacancy in the office of mayor shall be filled from among the qualified voters of the city at-large. No candidate shall be elected unless he receives at least five votes in his favor. If by reason of resignation, death, or other circumstances, except in the case of vacancies resulting from a recall election, five or more vacancies exist or occur at the same time in said council, then the members of the civil service commission shall at once convene a majority of said commission and, by a majority vote of the members of said commission present, forthwith make such number of appointments from the wards and superwards where such vacancies exist, or from the city at-large in the case of the mayor, as may be necessary to constitute a council of five qualified members, which five members shall at once proceed to fill the remaining vacancies with qualified members. And in any case the council shall fail to fill a vacancy therein for a period of thirty days after the occurrence of the vacancy, such vacancy shall be filled by said commission as provided herein. The city clerk

shall act as the clerk of the commission so constituted, and shall cause his certificate of its action to be entered on the record of the council.

If the term of office so filled, either by the council or by said commission, does not expire for two years after the next regular election of council members following such vacancy, and such vacancy occurs more than one hundred twenty (120) days prior to that election, an additional council member shall then be elected at such election only by the qualified voters of the ward or superward where such vacancy exists, or in the case of the mayor from the city at-large and after the date of his qualification, succeed such appointee, and serve the unexpired term. When any vacancy is so required to be filled by election, the council or commission shall, within fifteen (15) days of the occurrence of the vacancy, petition the circuit court to issue a writ of election to fill the vacancy at the next general election of council members. In the event that more than one vacancy is to be filled by election, the same provision shall apply. The foregoing provisions of this section are subject to the further provision that any vacancy resulting from a recall election shall be filled in the manner provided in such case.
(Acts 2005, Ch. 893, § 1)

Sec. 8. Compensation of council members.

Each member of the council shall receive such salary as shall be established by state law.
(Acts 1956, Ch. 100; Acts 1970, Ch. 484; Acts. 2005, Ch. 893, § 1)

Sec. 9. Limitations on the powers of the council.

Neither the council, nor any of its members, shall dictate the appointment of any person to office or employment by the city manager, or in any manner interfere with the city manager, or prevent him from exercising his own judgment in the appointment of officers or employees in the administrative service. Except for the purpose of inquiry, the council and its members shall deal with the administrative service solely through the city manager, and neither the council nor any member thereof shall give orders to any of the subordinates of the city manager either publicly or privately. Any such dictation, prevention, orders or other interferences on the part of a member of the council with the administration of the city, shall be deemed a misdemeanor, and upon conviction thereof the member so convicted shall be fined not exceeding one hundred dollars and may, in the discretion of the court, be removed from office.

Sec. 10. [Repealed by Acts 2005, Ch. 893, § 1.]

Editor's note—The repealed provisions, which derived from Acts 1975, Ch. 127; Acts 1976, Ch. 599; and Acts 1982, Ch. 289, § 1, pertained to officers elective by council; rules.

Sec. 10.1. Officers appointed by council; rules.

Effective July 1, 2006, the council shall appoint a city manager, a city clerk, a city attorney, a city auditor, and a high constable. The said council shall also appoint the members of such boards and commissions as are hereinafter provided for. All appointments by the council shall be recorded in the record of the council. The mayor shall serve as chair of the council. The council may determine its own rules of procedure, may punish its members for misconduct, and may compel the attendance of members in such manner and under such penalties as may be prescribed by ordinance. It shall keep a record of its proceedings. A majority of all the members of the council, including the mayor, shall constitute a quorum to do business, but a smaller number may adjourn from time to time.

No member of the council shall be eligible, during the term of office for which he was elected or appointed, to hold any office filled by the council by election or appointment, except that a member of the council may be named a member of such other boards, commissions, and bodies as may be permitted by general law.
(Acts 2005, Ch. 893, § 1; Acts 2018, Ch. 314, § 1)

Sec. 11. Elections by council; when held; terms, etc.

The council shall appoint a city manager, a city assessor, a city clerk, a city attorney, a city

auditor and a high constable, each of whom shall be appointed for an indefinite period and serve at the will of the council.
(Acts 1976, Ch. 599; Acts 1999, Ch. 479, § 1; Acts 1999, Ch. 525, § 1)

Sec. 11(a). [Repealed by Acts 1976, Ch. 599.]

Sec. 11(b). Council authorized to create position of and elect city architect; duties, term, compensation, etc.

The council is authorized to create the position of city architect whose duties shall be to review, advise the council with regard to and recommend approval or disapproval of the plans for the construction or reconditioning of all public buildings to be constructed or reconditioned by the city, and such other duties as the council may prescribe. Such city architect shall be elected by the council for an indefinite period and shall serve at the will of the council, except that he shall not be removed within twelve months from the date he assumes his duties, except for incompetence, malfeasance, misfeasance, or neglect of duty. He shall receive such compensation as may be prescribed by the council, shall be responsible only to the council, shall devote his full time to the duties of his office, shall not be a member of the classified civil service, and shall be a member of the employees' retirement system of the city.
(Acts 1962, Ch. 120)

Sec. 12. Meetings of council.

On the next Tuesday in January after January 1 following the regular municipal election, the council shall meet at the usual place for holding meetings of the legislative body of the city, at which time the newly elected council members shall assume the duties of their office. The time for any such meeting shall be set by ordinance adopted by council not less than thirty nor more than forty-five days prior to the election. Thereafter the council shall meet at such times as may be prescribed by ordinance or resolution. It shall hold at least one regular meeting each month. The mayor, any member of the council, or the city manager, may call special meetings of the council at any time upon at least twelve hours' written notice to each member, served personally or left at his usual place of business or residence; or such meeting may be held at any time without notice, provided all members of the council attend. All meetings of the council shall be public except where closed pursuant to the provisions of general law, and any citizen may have access to the minutes and records thereof at all reasonable times.
(Acts 1952, Ch. 239; Acts 1964, Ch. 24; Acts 1966, Ch. 188; Acts 1988, Ch. 519, § 1; Acts 1995, Ch. 164, § 1; Acts 1997, Ch. 535, § 1; Acts 2004, Ch. 52; Acts 2005, Ch. 893, § 1; Acts 2006, Ch. 152; Acts 2014, Chs. 235, 683 (Res. No. 1,572); Acts 2022, Ch. 288, § 1)

Sec. 13. Penalty for absence.

For each absence of a councilman from a regular meeting of the council, except where such absence is occasioned or required by city business, sickness or other unavoidable cause, in which case the absence of such councilman may be excused by a four-fifths vote of the council, there shall be deducted from his pay a sum equal to two per centum of his annual salary. Absence from five consecutive regular meetings shall operate to vacate the seat of a member, unless the absence is excused by a council resolution setting forth the reason thereof, and entered upon the record.
(Acts 1926, Ch. 289; Acts 1954, Ch. 72; Acts 1982, Ch. 289, § 1)

Sec. 14. [Repealed by Acts 2005, Ch. 893, § 1.]

Editor's note—The repealed provisions, which derived from Acts 1950, Ch. 428; Acts 1958, C. 115; Acts 1966, Ch. 51; and Acts 1982, Ch. 289, § 1, pertained to legislative procedure.

Sec. 14.1. Legislative procedure.

Except in dealing with questions of parliamentary procedure, the council shall act only by ordinance or resolution, which shall be introduced in writing, and all ordinances except ordinances making appropriations, or authorizing the contracting of indebtedness or issuance

of bonds or other evidences of debt, shall be confined to one subject, which shall be clearly expressed in the title.

Ordinances making appropriations or authorizing the contracting of indebtedness or the issuance of bonds or other obligations and appropriating the money to be raised thereby shall be confined to those subjects respectively. Nothing herein shall be construed to prevent the council from authorizing in and by the same ordinance the making of any one public improvement and the issue of bonds therefore.

The enacting clause of all ordinances passed by the council shall be, "Be it ordained by the council of the City of Norfolk"; the enacting clause of all ordinances submitted to popular election by the initiative shall be, "Be it ordained by the people of the City of Norfolk." No ordinance, unless it be an emergency measure, shall be passed until it has been read by its title at two regular meetings not less than one week apart, or the requirements of such reading has been dispensed with by the affirmative vote of five of the members of the council. No ordinance, section, or subsection thereof shall be revised or amended by its title, section number, or subsection number only, but the new ordinance shall contain the entire ordinance, section, or subsection, as revised or amended. The ayes and noes shall be taken upon the passage of all ordinances or resolutions and entered upon the record of the proceedings of the council, and every ordinance or resolution shall require, on final passage, the affirmative vote of at least five of the members. No member shall be excused from voting except on matters involving the consideration of his own official conduct, or where his financial interests are involved.

In authorizing the making of any public improvements, or the acquisition of real estate or any interest therein; or authorizing the contracting of indebtedness or the issuance of bonds or other evidences of indebtedness (except temporary loans in anticipation of taxes or revenues or of the sale of bonds lawfully authorized); or authorizing the sale of any property or rights in property of the City of Norfolk, or granting any public utility franchise, privilege, lease, or right of any kind to use any public property or easement of any description or any renewal, amendment or extension thereof, the council shall act only by ordinance; provided, however, that after any such ordinance shall have taken effect, all subsequent proceedings incidental thereof and providing for the carrying out of the purposes of such ordinance may, except as otherwise provided in this Charter, be taken by resolution of the council.
(Acts 2005, Ch. 893, § 1)

Sec. 15. Effective date of ordinances and resolutions.

All ordinances and resolutions passed by the council shall be in effect from and after thirty days from the date of their passage; provided, however, that the council may, by the affirmative vote of five of its members, pass any ordinance or resolution to take effect at the time indicated therein, but every measure providing for the sale or lease of city property, or making a grant, renewal or extension of a franchise or other special privilege, or regulating the rate to be charged for its service by any public utility, shall be in effect from and after thirty days from the date of its adoption.
(Acts 1950, Ch. 428; Acts 1966, Ch. 50; Acts 1972, Ch. 706, § 1)

Sec. 16. Record of ordinances and resolutions.

Every ordinance or resolution upon its final passage shall be recorded and shall be authenticated by the signature of the presiding officer and the city clerk.

A record or entry made by the city clerk or a copy of such record or entry duly certified by him shall be prima facie evidence of the terms of the ordinance.

All ordinances and resolutions of the council may be read in evidence in all courts and in all other proceedings which it may be necessary to refer thereto, either from a copy thereof certified by the city clerk or from the volume of ordinances printed by authority of the council.
(Acts 1966, Ch. 74; Acts 1982, Ch. 289, § 1; Acts 2018, Ch. 314, § 1)

Editor's note—Acts 1940, Ch. 323, provides as follows: "Whenever the Council of the City of Norfolk shall codify, in

whole or in part, and print at one time, or from time to time, in book or pamphlet form, the general ordinances of the City of Norfolk, or any part thereof, it shall be unnecessary to publish any new or changed ordinances therein contained, or such codification or codifications, in a newspaper or otherwise, as provided by the Charter of said City of Norfolk, and all new or changed ordinances therein contained, and such codification or codifications, shall take effect at such time, but not less than thirty days after such codification or codifications shall have been printed in book or pamphlet form, as may be prescribed by the council by ordinance.

Sec. 17. [Repealed by Acts 2005, Ch. 893, § 1.]

Editor's note—The repealed provisions pertained to president of council.

Sec. 17.1. Mayor.

Effective July 1, 2006, the mayor shall preside at meetings of the council, and perform such other duties consistent with his office as may be imposed by the council. He shall be entitled to a vote, but shall possess no veto power. He shall be recognized as the official head of the city for all ceremonial purposes, by the courts for the purpose of serving civil process, and by the governor for military purposes. He may use said title in any case in which the execution of contracts or other legal instruments in writing, or other necessity arising from the general laws of the state, may so require; but this shall not be construed as conferring upon him the administrative or judicial functions, or other powers or functions, of a mayor, under the general laws of the state. In time of public danger or emergency, he may, with the consent of the council, take command of the police and of the home guards hereinafter provided for and maintain order and enforce laws. During his absence or disability his duties shall be performed by another member appointed by the council.

The powers and duties of the mayor shall be such as are conferred upon him by this Charter, together with such others as may be conferred by the council in pursuance of the provisions of this Charter, and no others.
(Acts 2005, Ch. 893, § 1)

NOMINATIONS AND ELECTIONS

Sec. 18. Time of holding municipal elections and conduct of elections.

In accordance with § 15.2-1400 of the Code of Virginia (1950), as amended, beginning in 2022 municipal elections shall be held at the time of the November general election and every second year thereafter. The elections for wards one through five shall be at the time of the November 2022 general election and every four years thereafter and the elections for superwards designated six and seven and the mayor shall be at the time of the November 2024 general election and every four years thereafter. All terms shall commence on January 1 and end on December 31. Any matter which, by the terms of this Charter, may be submitted to the electors of the city, at any special election, may be submitted at a regular municipal election.
(Acts 1992, Ch. 261, § 1; Acts 2005, Ch. 893, § 1; Acts 2022, Ch. 288, § 1)

Editor's note—For current election date, see Code of Virginia, § 24.1-90.

Sec. 19. Notice of candidacy and petition.

Candidates for the city council shall be qualified voters of the ward or superward from which they seek election, or in the case of the election of the mayor, qualified voters of the city at-large. Such candidates, subject to the provisions of § 21 of this Charter, shall file their notices of candidacy and their petitions in the manner provided by law. No candidate may seek election for more than one seat in an election. A sitting member of council who files his or her candidacy for mayor or for election to a council seat other than reelection to his or her own seat and so appears on the ballot shall be deemed to have resigned his or her seat effective December 31 of the year in which the election is held whether or not he or she is elected to the new seat sought.
(Acts 1992, Ch. 261, § 1; Acts 2003, Ch. 34, § 1; Acts 2005, Ch. 893, § 1; Acts 2022, Ch. 288, § 1)

Sec. 20. [Repealed by Acts 1968, Ch. 117.]

Sec. 21. Ballots.

The ballots used in all elections provided for in this Charter for the election of councilmen shall be without party marks or designations.

There shall not be printed on any such ballot the name of any person who has been nominated, selected or designated for the office of councilman by any primary election conducted or held under the auspices or authority of any political party, faction or combination.

Sec. 22. Method of conducting municipal elections.

The candidate at any regular municipal election who receives the highest number of votes from the ward or superward to which election to city council is sought shall be elected the council member for that ward or superward. Beginning with the municipal election in the year 2006, the candidate for mayor who receives the highest number of votes citywide shall be elected mayor. Each qualified voter shall be entitled to vote for no more than two council members in any election: one member from the ward or superward in which the voter is qualified to vote and the mayor.
(Acts 1992, Ch. 261, § 1; Acts 2005, Ch. 893, § 1)

Sec. 23. Election of other officers.

There shall be elected by the qualified voters of said city, on the Tuesday after the first Monday in November, 1921, and quadrennially thereafter, the following officers: One attorney for the commonwealth, one commissioner of the revenue, one city treasurer and one city sergeant [sheriff], who shall hold their offices for the term of four years from the first day of January ensuing their election and until their successors are duly elected and qualified, unless sooner removed from office; and there shall be elected by the qualified voters of said city on the Tuesday after the first Monday in November, 1921, and every eight years thereafter, one clerk of the corporation court of the City of Norfolk, and one clerk of the circuit court of said City of Norfolk, which terms shall begin and end as is now, or may hereafter be prescribed by the General Assembly of the state; provided, that if the Constitution of Virginia shall at any time hereafter be so amended as to permit it, the said officers mentioned in this section or any of them may be elected or appointed in such manner as the council may by ordinance prescribe, and the council may in such case abolish any one or more of the said offices, if permitted so to do by the Constitution of the state, and prescribe by whom and in what manner the duties thereof shall be performed.

THE RECALL

Sec. 24. Recall procedure.

Any member of city council may be recalled and removed from office only by the qualified voters of the ward or superward from which such member serves, or in the case of the mayor from the qualified voters of the city at-large, and in accordance with the procedure described in this section. A petition for the recall of the council member designated, signed by at least three hundred qualified voters of the council member's ward or superward, or on or after July 1, 2006, at least one thousand qualified voters city-wide in the case of the mayor, and containing a statement in not more than two hundred words of the grounds of the recall, shall be filed with the city clerk, who shall immediately transmit a copy thereof to the city general registrar who shall examine the same, and ascertain and certify to the city clerk whether at least three hundred persons whose names are signed thereto are qualified voters of the said ward or superward or on or after July 1, 2006, one thousand qualified voters city-wide in the case of the mayor. Upon receipt of said certification, the city clerk shall forthwith notify such council member. Such council member may, within five days after such notice, file with such clerk a defensive statement not exceeding two hundred words. The city clerk shall, immediately upon the expiration of said five days, cause sufficient printed or type written copies of such petition, without the signatures, to be made, and to each copy he shall attach a printed or typewritten copy of such defensive statement or statements, if any such shall have been furnished him within the time provided. He shall preserve the original petition and shall cause one copy of such petition with a copy of the defensive statement, if any, attached to be conveniently placed in his office, and provide facilities for there signing the same, and shall also cause one copy, with a copy of the defensive

statement, if any, attached to be placed in at least two public buildings designated by council and located within the council member's ward or superward, or on or after July 1, 2006, in the case of the mayor, in each superward, and provide facilities for there signing the same, and for the proper custody thereof. The city clerk shall immediately cause notice to be published in some newspaper of general circulation published in the city, of the places where the said copies may be found, and of the time within which the same may be signed.

The said copies of such petition shall remain on file in the several places designated for a period of thirty days, during which time any one of them may be signed by any qualified voter of the designated council member's ward or superward, or any qualified voter in the city in the case of the mayor, including those who signed the original petition.
(Acts 1992, Ch. 261, § 1; Acts. 2005, Ch. 893, § 1)

Sec. 25. Notice.

At the expiration of said thirty days, the city clerk shall assemble all of said copies, and shall file the same as one instrument with the clerk of the circuit court of said city, who shall immediately transmit a copy thereof to the city general registrar who shall examine the same, and ascertain and certify to the clerk of the circuit court whether the persons whose names are signed thereto are qualified voters of the said ward or superward, equal in number to fifteen percent of the number of voters in said ward or superward who cast their votes at the last preceding regular municipal election in which such council member was elected, or on or after July 1, 2006, in the case of the mayor, fifteen percent of the number of voters city-wide who cast their votes at the last preceding regular municipal election in which the mayor was elected. If such signatures do amount to fifteen percent, the clerk of the circuit court of said city shall at once serve notice of that fact upon the council member designated in the petition.
(Acts 1992, Ch. 261, § 1; Acts 2005, Ch. 893, § 1)

Sec. 26. Recall election.

If the council member designated in such petition, files with the city clerk, within five days after the last mentioned notice from the clerk of the circuit court of said city, his written resignation, the said city clerk shall at once notify the clerk of the circuit court of said city of that fact, and such resignation shall be irrevocable, and shall be filed and preserved in the offices of the city clerk, and the council shall proceed to fill the vacancy, subject to the provisions of section 7 of this Charter. In the absence of notice from the city clerk that such resignation has been filed, as aforesaid, the clerk of the circuit court of said city shall, upon the expiration of said period of five days, forthwith present to said court, the said copies with his certificate as to the percentage of qualified voters whose names are signed thereto as verified by the city general registrar, and a certificate as to the date of the service of the notice given by him to the council member designated in the petition, as above provided. And thereupon the said court, shall forthwith enter an order calling and fixing a date for holding a recall election for the removal of the council member named in said petition, who has not resigned as aforesaid. Any such election shall be held not less than thirty nor more than sixty days after the date of the entering of said order. If any other election is to be held within the said period, the said court, or the judge thereof in vacation, shall direct that the said recall election be held at the same time and in accordance with state law.
(Acts 1992, Ch. 261, § 1)

Sec. 27. Ballots and method of voting.

The ballots at such recall election shall conform to the following requirements. With respect to each person whose removal is sought, the question shall be submitted:

"Shall (name of person) be removed from the office of council member by recall?"

Immediately following each such question, there shall be printed on the ballots the following:

"□ Yes

□ No"

In any such election if the majority of the votes cast on the question of the removal of any

council member are affirmative, such council member shall be deemed removed from office upon the ascertainment and certification of the results of such election by the city electoral board, and the vacancy caused by such recall shall be filled by the remainder of the council, according to the provisions of section 7 of this Charter.

Sec. 28. Effect of resignations pending proceedings for the recall of all council members.

Should all members of city council be subject to recall proceedings, the civil service commission, as provided in section 7 shall have the power, and it shall be its duty forthwith to fill such vacancy or vacancies which result from resignation of any or all council members. It shall be the duty of such commission to fill such vacancy or vacancies temporarily until successors are elected. The proceedings for the recall of the council members, and the election of their successors, shall continue and have the same effect as though there had been no resignation. (Acts 1992, Ch. 261, § 1)

Sec. 29. Miscellaneous provisions.

No petition to recall any councilman shall be filed within one year after he assumes the duties of his office.

The method of removal herein provided shall not be deemed or held exclusive, but is in addition to such other methods as are now or may hereafter be provided by general law.

INITIATIVE

Sec. 30. Petition [generally].

Any proposed ordinance or ordinances, including ordinances for the repeal or amendment of an existing ordinance, may be submitted to the council by petition signed by qualified voters equal in number to ten percent of the number of electors who cast their votes at the last preceding regular municipal election for the election of councilmen. Such

petition shall contain the proposed ordinance in full, and shall have appended thereto or written thereon the names and addresses of at least five qualified voters, who shall be officially regarded as filing the petition, and who shall constitute a committee of the petitioners for the purposes hereinafter stated.

Sec. 31. Time of filing [petition].

All papers comprising the petition shall be assembled and filed with the city clerk, as one instrument, within one hundred and twenty days from the date of the first signature thereon, and when so filed the clerk shall submit the same to the council at its next regular meeting, and provision shall be made for public hearings upon the proposed ordinance.

Sec. 32. Petition for election.

The council shall at once proceed to consider such petition and shall take final action thereon within thirty days from the date of the submission thereof. If the council rejects the proposed ordinance, or passes it in a form different from that set forth in the petition, or fails to act finally upon it within the time stated, the committee of the petitioners may require that it be submitted to a vote of the electors in its original form, or that it be submitted to a vote of the electors with any proposed change, addition or amendment, by the following procedure: Said committee shall present to the clerk of the corporation [circuit] court of said city a petition for such election, addressed to said court and signed by qualified voters equal in number to twenty-five per cent of the number of electors who cast their votes at the last preceding regular municipal election for the election of councilmen, but in no case signed by less than four thousand qualified voters of the city. Said petition shall contain the proposed ordinance in full in the form in which it is proposed to submit the same to the electors. The said petition and all copies thereof shall be filed with the clerk of said court as one instrument. Within ten days after the filing thereof the said clerk shall ascertain and certify thereon whether the required number of qualified voters have signed the same. If it be found that the required number of qualified voters have signed the said petition, then the said petition, with the certificate of the said clerk thereon, shall be presented by said committee to the corporation [circuit] court of said city, or to the judge thereof in vacation, and thereupon the said court, or the judge thereof in vacation, shall forthwith enter an order calling and fixing a date for holding an election for the purpose of submitting the proposed ordinance to the electors of the said city. Any such election shall be held not less than thirty nor more than sixty days after the date of the entering of said order. If any other election is to be held within the said period said court or the judge thereof shall direct that such proposed ordinance shall be submitted to a vote of the electors at such election. At least ten days before any such election the clerk of the said court shall cause such proposed ordinance to be published once in one or more newspapers of general circulation published in said city. (Acts 1956, Ch. 339)

Sec. 33. Ballots and method of voting.

The ballots used when voting upon any such proposed ordinance shall state the title of the ordinance to be voted on, and the ballots and method of voting shall conform to the provisions of section 24-141 [24.1-165] of the Code of Virginia.

If a majority of the electors voting on such proposed ordinance shall vote in favor thereof, it shall, upon the ascertainment and certification of the results of such election by the commissioners of election, become an ordinance of the city. (Acts 1956, Ch. 339)

Sec. 34. Ordinances adopted by the electors; how amended or repealed.

No ordinance adopted by the vote of the electors, as herein provided, shall be repealed or amended, except by vote of the electors; but the corporation [circuit] court of said city,

or the judge thereof in vacation, may, on request of the council, by resolution, order an ordinance to repeal or amend any ordinance so adopted, to be submitted to the electors at any regular election, or at any special municipal election called for some other purpose, provided that the clerk of said court shall cause notice of the proposed submission of such ordinance repealing or amending an ordinance, to be published once in one or more newspapers of said city not more than sixty nor less than thirty days prior to said election. If an amendment is so proposed such notice shall contain the proposed amendment in full, and submission shall be in the same manner and the vote shall have the same effect as in the case of an ordinance submitted to election by popular petition.

REFERENDUM

Sec. 35. Petition for referendum.

If at any time within a thirty-day period following the adoption of an ordinance a petition, signed by qualified voters equal in number to twenty-five percent of the number of electors who cast their votes at the last preceding regular municipal election for the election of councilmen, but in no case signed by less than four thousand qualified voters of the city, be filed with the city clerk, requesting that any such ordinance be repealed, or amended, as stated in the petition, such ordinance shall not become operative until the steps indicated herein shall have been taken or the time allowed for taking any such step shall have elapsed without action. Such petition shall state therein the names and addresses of at least five electors, who shall constitute a committee to represent the petitioners, who shall be officially regarded as filing the petition, and shall constitute a committee of the petitioners for the purposes hereinafter stated. Referendum petitions need not contain the text of the ordinance or ordinances, the amendment or repeal of which is sought, but shall contain the proposed amendment, if an amendment is demanded. (Acts 1956, Ch. 339; Acts 1972, Ch. 706, § 1)

Sec. 36. Proceedings thereunder.

The city clerk shall present the said petition to the council at its next regular meeting, and thereupon the council shall proceed to reconsider the ordinance. If, within thirty days after the filing of such petition, the ordinance be not repealed or amended as requested in such petition, the city clerk shall, if so requested by a writing signed by a majority of the said committee and presented to the said city clerk within twenty days after the expiration of said period of thirty days, present to the clerk of the corporation [circuit] court of said city, the said petition and all copies thereof as one instrument together with a copy of the ordinance the repeal of which is sought. Within ten days after the filing of said petition, the clerk of said court shall ascertain and certify whether the required number of qualified voters have signed the same. If it be found that the required number of qualified voters have signed the said petition, then within five days after the expiration of said ten days the said petition, with the certificate of the clerk thereon, shall be presented by the said committee to the corporation [circuit] court of said city, or to the judge thereof in vacation, and thereupon the said court, or the judge thereof in vacation, shall forthwith enter an order calling and fixing a date for holding an election for the purpose of submitting the said ordinance to the electors of said city. Thereupon the said ordinance shall ipso facto be further suspended from going into effect until such election shall have been held and shall then be deemed repealed unless approved by a majority of those voting thereon. Any such election shall be held not less than thirty nor more than sixty days after the date of the entering of such order. If any other election is to be held within the said period, said court or the judge thereof in vacation shall direct that the said ordinance shall be submitted to the vote of the electors at such election. At least ten days before any such election the clerk of said court shall cause the said ordinance to be published once in one or more newspapers of general circulation published in said city.

Sec. 37. Ballots and method of voting.

The ballots used when voting upon such ordinance shall conform in all respects to the ballots required for an initiative election under section 33 hereof, and the method of voting in any such election shall be as prescribed in said section.

If in any such election the ordinance so referred or submitted be approved by a majority of the electors voting thereon, the said ordinance shall, upon the ascertainment and certification of the results of such election by the commissioners of election, go into effect as an ordinance of the city.

Sec. 38. Ordinances submitted by popular petition.

Ordinances submitted to the council by initiative petition and passed by the council without change, or passed in an amended form, and not required to be submitted to the vote of the electors by the committee of the petitioners, shall be subject to the referendum in the same manner as other ordinances.

Sec. 39. Conflict of ordinances.

If two or more ordinances adopted or approved at the same election conflict in respect of any of their provisions, such ordinances shall go into effect in respect of such of their provisions as are not in conflict, and the one receiving the highest affirmative vote shall prevail insofar as their provisions conflict.

Sec. 40. Measures not subject to referendum.

Ordinances passed providing for any work, improvement or repairs certified by the city manager to be immediately necessary to protect public property or health from imminent danger, or to protect the city from imminent loss or liability, shall not be subject to the referendum. The certificate of the city manager in any such case shall be conclusive. All other ordinances passed, unless exempted by law, shall be subject to the referendum in like manner as other ordinances, except that they shall go into effect at the time indicated in such ordinances. If, when submitted to a vote of the electors, an ordinance be not approved by a majority of the voters voting thereon, it shall be considered repealed as regards any further action thereunder; but such measure so repealed shall be deemed sufficient authority for payment in accordance with the ordinance of any expenses incurred previous to the ascertainment and certification by the commissioners of election of the result of the referendum vote thereon. (Acts 1972, Ch. 706, § 1)

Sec. 41. Preliminary action.

In case a petition be filed requesting that a measure passed by the council providing for the expenditure of money, for a bond issue or a public improvement be submitted to a vote of the electors, all steps preliminary to such actual expenditure, actual issue of bonds or actual signing of a contract for such improvements may be taken prior to the election.

GENERAL PROVISIONS RELATING TO ELECTIONS AND TO THE INITIATIVE, REFERENDUM AND RECALL

Sec. 42. Elections.

All elections for the election of councilmen, and all initiative, referendum and recall elections, shall be conducted, and the result canvassed and certified, by the regular election officials provided by the general election laws of the state; and, except as otherwise provided in this Charter, all such elections shall be governed by the said general election laws.

Sec. 42.1. Advisory referendum for election of mayor.

Notwithstanding any other provision of law, general or special, to the contrary, the council shall have the sole and exclusive power to authorize the holding of an advisory referendum on the question of whether the mayor shall be popularly elected. The council shall authorize by ordinance the holding of such advisory referendum at the general election to be held in November 2000, and shall determine the circumstances of said advisory referendum; however, no such

referendum shall conflict with any election or voting laws of the United States or the Commonwealth of Virginia.
(Acts 2000, Ch. 950, § 1)

Sec. 43. Petitions.

All petitions for the nomination of councilmen and all petitions in connection with the initiative, referendum or recall shall be signed in ink or indelible pencil by the elector in person and not by agent or attorney. Each person signing any such petition shall place opposite his name the date of his signature, and his place of residence by street and number. The signatures ta [to] any such petition need not all be appended to one paper, but to each such paper (except in the case of copies of recall petitions, which may not be circulated), there shall be attached an affidavit by the circulator thereof stating that each signature appended thereto is the genuine signature of the person whose name it purports to be and that it was made in the presence of the affiant on the date indicated. All copies of any such petition shall be treated as originals. No such petition shall be deemed invalid by reason of the fact that it is signed by one or more persons who are not qualified voters, but the names of such persons shall not be counted. As used in this Charter the terms "elector," "qualified elector," and "qualified voter" are synonymous.

Sec. 44. Presumptions.

All signatures to any petition mentioned in the preceding section hereof shall be accepted and treated as prima facie genuine. For the purpose of certifying the number of qualified voters whose names are signed to any such petition the clerk of the corporation [circuit] court of said city shall presume that any person whose name appears thereon is a qualified voter under the provisions and within the meaning of section 45 hereof, assuming him to be duly registered.

All such petitions substantially complying with the requirements of this Charter and certified by said clerk to bear the required number of signatures of qualified voters shall be accepted and treated as prima facie sufficient. The burden of proving the insufficiency of any such petition in any respect shall be upon the person alleging the same.
(Acts 2021, Ch. 371, § 1)

Sec. 45. Qualifications of persons signing certain petitions.

The question whether any person is a qualified voter for the purpose of signing any nominating petition or any petition in connection with the initiative, referendum or recall shall be determined as follows: If any such petition be signed on or before the second Tuesday in June in any year, the person signing the same shall be deemed a qualified voter for that purpose within the meaning hereof, if qualified to vote on said second Tuesday in June. If such petition be signed after the second Tuesday in June in any year, the person signing the same shall be deemed a qualified voter for that purpose within the meaning hereof, if qualified to vote on the first Tuesday after the first Monday in November of said year.

Sec. 46. Duty of city attorney.

Before any ordinance or amendment proposed by popular petition shall be submitted to the council, it shall first be approved as to form, by the city attorney, whose duty it shall be to draft such proposed ordinance or amendment in proper legal language, and to render such other service to persons desiring to propose such ordinances or amendments as shall be necessary to make the same proper for consideration by the council.

Sec. 47. Offenses.

No person shall:

(a) Falsely impersonate another in the signing of any nominating petition or petition for the initiative, referendum or recall, or forge any name thereto; or deface, destroy, or remove from any of the places designated in this Charter, any copy of a petition for recall with intent to interfere with or defeat such recall;

(b) Sign any nominating petition or petition for initiative, referendum or recall with knowledge that he is not a qualified voter of the city; or purposely write his name or residence falsely in the signing of any such petition; sign or intentionally permit to be signed any petition for recall at any other place than one of the places hereinbefore designated for the signing of such petitions; employ or pay another or accept employment on the basis of the number of signatures subscribed thereto, for circulating any petition permitted by this Charter to be circulated.

Any person violating any of the provisions of paragraph (a) of this section shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined not less than one hundred dollars nor more than five hundred dollars and imprisoned not less than thirty days nor more than six months.

Any person violating any of the provisions of paragraph (b) of this section shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined not less than ten dollars nor more than two hundred dollars.

The foregoing provisions shall not be deemed or held to be exclusive of, but in addition to, all laws of the state prescribing penalties for the same offenses, or for other offenses relating to the same matter.

Sec. 48. Compensation of clerk of the corporation [circuit] court.

For his services in connection with any proceedings under the foregoing sections relating to the initiative, referendum and recall, the clerk of the corporation [circuit] court of said city shall be paid by the city such reasonable fees as are now or may hereafter be provided by law for similar services in other cases.

THE CITY MANAGER

Sec. 49. Appointment, qualifications, etc.

The city manager shall be the administrative head of the municipal government. He shall be chosen by the council without regard to his political beliefs, and solely upon the basis of his executive and administrative qualifications. The choice shall not be limited to inhabitants of the city or state, unless otherwise required by the Constitution of the state. The city manager shall receive such compensation as shall be provided by the council by ordinance. He shall be appointed in the manner and for the term prescribed in § 11 of this Charter. During the absence or disability of the city manager the council shall designate some properly qualified person to perform his duties. (Acts 1999, Ch. 479, § 1; Acts 1999, Ch.525, § 1)

Sec. 50. Powers and duties of the city manager.

The city manager shall be responsible to the council for the efficient administration of all affairs of the city. He shall have power, and it shall be his duty:

(a) To see that all laws and ordinances are enforced.

(b) Except as otherwise provided in this Charter, to appoint all heads or directors of departments, and all subordinate officers and employees of the city in both the classified and unclassified service with the power to discipline and remove any officer or employee so appointed; and in the classified service all appointments and removals to be subject to the civil service provisions of this Charter.

(c) To exercise supervision and control over all departments and divisions created herein, or that may be hereafter created by the council.

(d) To attend all regular meetings of the council, with the right to take part in the discussion, but having no vote. He shall be entitled to notice of all special meetings.

(e) To recommend to the council for adoption such measures as he may deem necessary or expedient.

(f) To see that all terms and conditions imposed in favor of the city, or its inhabitants, in any public utility franchise, are faithfully kept and performed; upon knowledge of any violation thereof, to call the same to the attention of the city

attorney, whose duty it shall be forthwith to take such steps as are necessary to protect and enforce the same.

(g) To make and execute all contracts on behalf of the city except as may be otherwise provided in this Charter or by ordinances passed in pursuance thereof.

(h) To act as a budget commissioner, and as such to prepare and submit to the council the annual budget, after receiving estimates made by the heads or directors of the departments, or of any board or commission not within a department.

(i) To keep the council at all times fully advised as to the financial condition and needs of the city.

(j) To perform all such other duties as may be prescribed by this Charter, or be required of him by ordinance or resolution of the council.

Sec. 51. Investigations.

The council, the city manager and any officer, board or commission authorized by them, or either of them, shall have power to make investigations as to city affairs, and for that purpose of subpoena witnesses, administer oaths, and compel the production of books and papers. The civil service commission shall have power to make investigations relating to the civil service, with the like power to subpoena witnesses, administer oaths and compel the production of books and papers.

Any person refusing or failing to attend, or to testify, or to produce such books and papers, may by summons issued by such board or officer be summoned before the police justice [general district court] of said city by the board or official making such investigation, and upon failure to give satisfactory explanation of such failure or refusal may be fined by the police justice [general district court] not exceeding one hundred dollars or imprisoned not exceeding thirty days, such person to have the right to appeal to the corporation [circuit] court of the city. Any person who shall give false testimony under oath at any such investigation shall be liable to prosecution for perjury.

ADMINISTRATIVE DEPARTMENTS

Sec. 52. Creation of departments.

The following administrative departments are hereby created:

(a) Department of law;

(b) Department of public works;

(c) Department of public welfare;

(d) Department of public safety;

(e) Department of finance.

The council may, by ordinance adopted by the affirmative vote of at least five of its

members, create new departments or subdivisions thereof, combine or abolish existing departments and distribute the functions thereof, or establish temporary departments for special work.

At the head of each department there shall be a director; provided, that until the council shall otherwise provide by ordinance adopted by the affirmative vote of at least five of its members the city manager shall be the director of the department of public safety, and of the department of finance.

The director of each department shall be chosen on the basis of his general executive and administrative ability and experience and of his education, training and experience in the class of work which he is to administer.

The director of each department, except the department of law, shall be appointed by the city manager, and may be removed by him at any time.

The directors of the several departments shall be immediately responsible to the city manager for the administration of their respective departments, and their advice, in writing, may be required by him on all matters affecting their departments. They shall prepare departmental estimates, which shall be open to public inspection, and they shall make all other reports and recommendations concerning their departments at stated intervals, or when required by the city manager, under such rules and regulations as he may prescribe. (Acts 1950, Ch. 428)

DEPARTMENT OF LAW

Sec. 53. The city attorney.

The city attorney shall be head of the department of law. He shall at the time of his appointment have practiced law in the State of Virginia for at least five years and in the City of Norfolk for at least two years. He shall be the legal advisor of and attorney and counsel for the city, and for all officers and departments thereof in matters relating to their official duties. He shall prosecute all suits, actions and proceedings for and on behalf of the city, and defend all suits, actions and proceedings against the same, and shall prepare all contracts, bonds and other instruments in writing, in which the city is interested or concerned, and shall endorse on each his approval of the form and correctness thereof; provided, that in the case of bonds to be issued by the city, it shall be sufficient if he certify to the council his approval thereof as to form in a separate writing, to be filed and preserved with the records of the council.

He shall be the prosecuting attorney for the prosecution of the violation of city ordinances.

He shall have such number of assistants as the council by ordinance may provide, such assistants to be nominated by him and confirmed by the council.

The council, the city manager, the director of any department or any officer, board or commission not included within a department may require the opinion of the city attorney upon any question of law involving their respective powers and duties.

The city attorney shall apply in the name of the city to a court of competent jurisdiction for such injunction or injunctions as may be necessary to restrain and prevent the misapplication of the funds of the city, or the invasion or abuse of its corporate powers, or the usurpation of authority by any city official, or the execution or performance of any contract made in behalf of the city in contravention of law, or which was procured by fraud or corruption.

When an obligation or contract made on behalf of the city granting a right or easement or creating a public duty is being evaded or violated, the city attorney shall institute and prosecute such suit or suits as may be necessary to enforce the forfeiture thereof, or the specific performance thereof, as the nature of the case may require.

In case any officer, board or commission shall fail to perform any duty required by law, the city attorney shall apply to a court of competent jurisdiction for a writ of mandamus to compel the performance of such duty. Whenever the city shall purchase or otherwise acquire real estate or any interest therein, unless other provision is made by the council, the city attorney shall examine and certify the title thereto before the purchase price thereof shall be paid. The city attorney shall perform such other duties as may be required of him by ordinance or resolution of the council.

DEPARTMENT OF PUBLIC WORKS

Sec. 54. General powers and duties.

The head of the department of public works shall be known as the director of public works. He shall be by profession an engineer who has had experience in municipal engineering. Subject to the supervision and control of the city manager in all matters, he shall manage and have charge of the construction, improvement, repair, maintenance and use of streets, sidewalks, alleys, lanes, bridges, viaducts and other public highways; of sewers, drains, ditches, culverts, canals and streams and watercourses; of the municipal water supply, and all works, lands, water, lands under water, dams, pumping stations, ways, mains, pipes and other works connected therewith; of all public landings, public wharves and docks; of all public buildings, boulevards, squares and other public places and grounds belonging to the city or dedicated to public use; of the establishment, development and maintenance of parks, playgrounds and cemeteries, but not the management and supervision of such parks, playgrounds and cemeteries; and shall manage all sewage disposal and reduction plants and all other public utilities owned or operated by the city. He shall have charge of the enforcement of all the obligations of privately owned or privately operated public utilities enforceable by the city. He shall have charge of the making and preservation of all surveys, maps, plans, drawings and estimates for any public work, and shall also have charge of the cleaning, sprinkling and lighting of the streets and public places, the collecting and disposal of waste, and the preservation of contracts, papers, plans, tools, appliances and equipment belonging to the city, and pertaining to said department.

The director of public works shall perform such other duties relating to his department as may be required of him by the city manager.

The council may by ordinance provide for the establishment and organization within the said department and subject to the supervision of the director thereof, of a division of surveying and of such other divisions or bureaus as the council may see fit, and may distribute the functions and duties of said department among such divisions or bureaus as it may deem expedient. The head of the division of surveying shall be by education a civil engineer. All of his acts in the matter of surveys shall be as valid and effectual as are the acts of a county surveyor done within his county. The fees for such services as may be required of him in the capacity of surveyor shall be collected in advance by him and turned into the city treasury. He shall give bond in such penalty as the council may by ordinance provide.

Secs. 55, 56. [Repealed by Acts 1976, Ch. 599.]

Sec. 57. Laying out of streets and rights therein.

Whenever any street, alley or lane shall have been opened to and used as such by the public for the period of five years, the same shall thereby become a street, alley or lane for all purposes, and the city shall have the same authority and jurisdiction over and right and interest therein as it has by law over the streets, alleys and lanes laid out by it. And any street or alley reserved in the division or subdivision into lots of any portion of the territory within the corporate

limits of the city by a plat or plan of record shall be deemed and held to be dedicated to the public use, and the council shall have authority, upon the petition of any person interested therein, to open such street or alley, or any portion of the same. No agreement between or release of interest by the persons owning the lands immediately contiguous to any such alley or street, whether the same has been opened and used by the public or not, shall avail or operate to abolish said alley or street, so as to divest the interest of the public therein, or the authority of the council over the same. No property within the corporate limits of said city shall be laid out by the owner thereof with streets or alleys thereon except upon a plan to be approved by the director of public works. Notwithstanding anything in this section contained, the said city shall not be liable for any accident which may occur upon any street, alley, boulevard or way, whether heretofore or hereafter laid out, until the said street, boulevard, alley or way shall have been accepted by the council.

DEPARTMENT OF PUBLIC WELFARE

Sec. 58. General powers and duties.

The head of the department of public welfare shall be known as the director of public welfare.

Subject to the supervision and control of the city manager in all matters, he shall administer the affairs of his department, which shall include the management and supervision of all charitable, correctional and reformatory institutions and agencies belonging to the city; the use of all recreative facilities of the city, including parks and playgrounds other than school playgrounds; the management and supervision of cemeteries; the maintenance and preservation of shade trees and shrubbery; the inspection and supervision of all public amusements and entertainments, and of the places where the same are held; the enforcement of all laws, ordinances and regulations relative to the preservation and promotion of the public health; the prevention and restriction of all disease, including the enforcement in time of threatened epidemic, of such quarantine and isolation regulations as are appropriate to the emergency; the prevention, abatement and suppression of nuisances; the sanitary inspection and supervision of the production, transportation, storage and sale of food and foodstuffs; the inspecting, testing, measuring and weighing of any commodity or article of consumption or use within the city, as well as the inspection of weights, measures and meters used for the purpose aforesaid. The said department shall keep a complete and accurate system of vital statistics.

The council shall provide for the establishment and organization within the said department and subject to the supervision of the director thereof, of the following divisions or bureaus:

(a) Bureau of public health, which shall be charged with the conservation of the public health, with the supervision, management and control of all hospitals, municipal clinics and dispensaries, of all detention or isolation stations for contagious diseases; with the sanitary supervision of the city water supply and the sanitary policing and patrol of the territory constituting the watershed thereof; the sanitary inspection of all plumbing, buildings, grounds and premises, including public buildings and public school buildings; the physical inspection of the pupils of public schools, and the administration to such pupils of such medical and surgical supervision and attention as the council may by ordinance provide; the sanitary inspection and supervision of the production, transportation, storage and sale of all foods and foodstuffs and of all articles and things intended for human consumption; and the keeping of a complete record of vital statistics.

The superintendent of the bureau of public health shall be the health officer of the city.

He shall be a physician, a graduate of a medical college which is now, or was at the time of his graduation, recognized by the Virginia State Board of Medical Examiners,

and shall have had training in the administration of public health duties.

The appointment of such officer shall not be limited to the inhabitants of the city or state, unless otherwise required by the Constitution of the state. He shall give his entire time to the duties of his position; and shall have such assistants as the council may by ordinance provide; provided, however, that the provisions of paragraph (a) shall be suspended during any period when the city has established a district health department and has contracted with the State of Virginia, or any department, board or agency thereof, for the operation thereof; and during any such contract period, the city manager may appoint the person operating the district health department for the state as the director of public health, and health officer, of the city and when so appointed, such person is empowered and directed to enforce all local laws and ordinances of the city relating to public health and to carry out all duties and responsibilities imposed upon the director of public health, and health officer, of the city by state statute or local ordinances.

(b) Bureau of markets, which shall be charged with the supervision, management and control of all public markets; and with the collection of all market fees, and the proper accounting for the same.

(c) Bureau of recreation and charities, which shall be charged with the supervision and control of all charitable, correctional and reformative institutions belonging to the city, and of all recreational facilities of the city, including parks and playgrounds, other than school playgrounds; with the management and supervision of cemeteries and also with the inspection and supervision of all public amusements and entertainments and of the places where the same are held.

The director of public welfare shall endeavor to correlate all private and public charities within said city, and so far as is practicable to avoid duplication of effort.

The council shall make no appropriation of public funds towards the maintenance and support of any private charity except upon condition that the city shall have representation upon the board of directors, board of managers or other governing body of such private charity, and that a detailed financial report, showing all receipts and disbursements by such private charity, shall be made to the director of public welfare at least once in each year. But nothing herein shall be construed to prevent the city from contracting with any private hospital or similar institution for the care of indigent sick or injured persons, or for other services.

The director of public welfare, or such other person within said department as he may designate, shall represent the city on the board of directors, board of managers or other governing body of any charity to which public funds shall have been contributed upon the conditions aforesaid.

(d) Bureau of standards, which shall be charged with the inspection and testing of all weights, scales, meters and measures for the weighing or measuring of any article or commodity of consumption or use within the city, including the inspection and testing of the quality and sufficiency of electric current and gas and meters used in measuring the same.

The council may by ordinance add to the functions and duties of the said several divisions or bureaus; or rearrange and group the said functions, as said council may deem expedient. (Acts 1944, Ch. 309; Acts 1966, Ch. 52)

Editor's note—The above section is not in accord with the current administrative organization of the city. For instance, the department of public welfare has been replaced by the department of human resources and there is now a separate department of public health. For the current organization, it is suggested that the budget ordinance be consulted.

DEPARTMENT OF PUBLIC SAFETY

Sec. 59. General powers and duties.

The head of the department of public safety shall be known as the director of public safety.

Subject to the supervision and control of the city manager in all matters, he shall be the executive head of the divisions of police and fire. He shall also be the chief administrative authority in all matters pertaining to the erection, maintenance, repair, occupancy and inspection of buildings under such regulations as may be ordained by the council.

Editor's note—The department of public safety has been abolished and the city now has separate fire and police departments.

Sec. 60. Division of police.

The police force shall be composed of a chief of police, deputy chief and of such officers, patrolmen and other employees as the city manager may determine. The chief of police shall have the immediate direction and control of the said force, subject, however, to the supervision of the director of public safety, and to such rules, regulations and orders as the said director may prescribe, and through the chief of police the director of public safety shall promulgate all orders, rules and regulations for the government of the whole force. In case of the disability of the chief of police to perform his duties by reason of sickness, absence from the city or other cause, the director of public safety shall designate an officer of the police force to act as chief of police during such disability, and the officer so designated shall serve without additional compensation. The members of the police force other than the chief and deputy chief shall be selected from the list of eligibles prepared by the civil service commission, and in accordance with such rules as the said commission may prescribe, provided that in case of riot or emergency the director of public safety may appoint additional patrolmen and officers for temporary service, who need not be in the classified service. Each member of the police force, both rank and file, shall have issued to him a warrant of appointment signed by the director of public safety, in which the date of his appointment shall be stated, and such warrant shall be his commission. Each member of the said force shall, before entering upon the duties of his office, take and subscribe an oath that he will faithfully without fear or favor, perform the duties of his office, and such oath shall be filed and preserved with the records of said department. And in addition the several officers of the said force shall, if so required by the council, give bond in such penalty and with such security as the council may by ordinance prescribe.

No person except as otherwise provided by general law or by this Charter shall act as special police, special detective or other special police officer for any purpose whatsoever except upon written authority from the director of public safety. Such authority, when conferred, shall be exercised only under the direction and control of the chief of police and for a specified time.

The officers and privates constituting the police force of said city shall be, and they are, hereby invested with all of the power and authority which pertains to the office of constable at common law in taking cognizance of and in enforcing the criminal laws of the state and the ordinances and regulations of said city, and it shall be the duty of each such officer and private to use his best endeavors to prevent the commission within the said city of offenses against the laws of said state, and against the ordinances and regulations of said city; to observe and enforce all such laws, ordinances and regulations; to detect and arrest offenders against the same; to preserve the good order of said city, and to secure the inhabitants thereof from violence, and the property therein from injury. Such policemen shall have no power or authority in civil matters, but shall execute any criminal warrant or warrant of arrest that may be placed in his hands by any justice of the city, and shall make due return thereof. Such policemen shall not receive any fee or other compensation for any services rendered in the performance of his duty, other than the salary paid him by the city, nor shall he receive a fee as a witness in any case arising under the criminal laws of the said state, or under the ordinances or regulations of the said city.

The director of public safety shall prescribe the uniforms and badges for the members of the police force, and direct the manner in which the members of said force shall be armed. Any person other than a member of said force who shall wear such uniform or badge as may be prescribed as aforesaid, may be subjected to such fine or imprisonment, or both, as may be prescribed by the council by ordinance.
(Acts 1950, Ch. 93; Acts 2014, Chs. 235, 683 (Res. No. 1,572))

Editor's note—See note following § 59.

Sec. 61. [Repealed by Acts 2021, Ch. 371, § 2.]

Sec. 62. Division of fire.

The fire force shall be composed of a chief, deputy chief and of such other officers, firemen and employees as the city manager may determine. The fire chief shall have immediate direction and control of the said force, subject, however, to the supervision of the director of public safety, and to such rules and regulations and orders as the said director may prescribe, and through the fire chief the director of public safety shall promulgate all orders, rules and regulations for the government of the whole force.

The members of the fire force other than the chief and deputy chief shall be appointed from the list of eligibles prepared by the civil service commission and in accordance with such rules and regulations as may be prescribed by the said commission; provided, however, that in case of riot, conflagration or emergency, the director of public safety may appoint additional firemen and officers for temporary service who need not be in the classified service.

The chief of the fire department and his assistants are authorized to exercise the powers of police officers while going to, attending or returning from any fire or alarm of fire. The fire chief and each of his assistants shall have issued to him a warrant of appointment signed by the director of public safety, in which the date of his appointment shall be stated, and such warrant shall be his commission. The director of public safety shall prescribe the uniform and badges for the members of the fire force.
(Acts 2018, Ch. 314, § 1; Res. No. 1,929, § 1(Att. A), 12-10-24; Acts 2025, Ch. 373, § 1)

Editor's note—See note following § 59.

Sec. 63. Supervision in divisions of fire and police.

The chief of police and the fire chief, with the approval of the director of public safety, except as hereinafter provided, shall have the right and power to reprimand, or to suspend, for a given number of days or indefinitely, any of the sworn officers and sworn employees in their respective divisions who may be under their management and control, for incompetence, neglect of duty, immorality, drunkenness, failure to obey orders given by proper authority, or for any other just and reasonable cause. This section does not apply to the deputy chief of police or the deputy fire chief, who, like the chief of police and the fire chief are appointed by and serve at the will the city manager. If any such officer or employee be suspended for more than ten days or be suspended indefinitely, the chief of the division concerned shall forthwith certify in writing the fact, together with the cause for such suspension, to the trial board hereinafter provided for, and a copy of such certificate of suspension, and the cause therefor, shall be promptly served on such officer or employee, which service may be by an officer of his division or in the manner prescribed by law for the service of civil process.

Any such officer or employee so suspended may, within ten days after he shall have been so served with such certificate of suspension and the cause therefor, file with said trial board a written request for a hearing upon the accusations so made against him, whereupon said trial board shall, after not less than five days' written notice to such officer or employee, and to the chief of the division by whom he has been suspended, hold and conduct a hearing, which shall be open to the public, upon such accusations, at a time and place to be specified in such notice, and may render judgment thereon. Such judgment, in the event said accusations or any of them are, in the opinion of said trial board,

sustained, may be a reprimand, extra duty without extra compensation, suspension for a fixed time, reduction in rank, or dismissal, as to said trial board may seem proper, which judgment shall be final.

Whenever the judgment of the said trial board is that the accusations were not sustained, it may order the reinstatement of such officer or employee in the office or position from which he was suspended. Such order of reinstatement may, in the discretion of said trial board, be retroactive and provide that such officer or employee shall be entitled to compensation for all or part of the time he was so suspended.

In the event any such officer or employee who is suspended for more than ten days or suspended indefinitely shall not file with said trial board a written demand for a hearing as hereinabove provided, the suspension of such officer or employee shall become final, and if the suspension be for an indefinite period, such officer or employee may be discharged by the city manager without a hearing.

The trial board above referred to shall be known as the Norfolk Police-Fire Trial Board, and the members thereof shall be appointed by the council. It shall consist of not less than three nor more than five members, in the discretion of the council, who shall be qualified voters residing in the city, none of whom shall be in any way connected with any other city office. The first appointment of the members of the said trial board shall be for a term of one year commencing July 1, 1950, and all subsequent appointments shall be for consecutive terms of one year. Any member may be appointed for a consecutive term or terms, and any vacancy shall be filled by appointment by the council for the remainder of the unexpired term. The judgment of a majority of the members appointed on said trial board shall control. The members shall receive such compensation as may be provided by council. Each member shall, before entering upon the duties of his office, take and subscribe the oaths provided by section 133 of this Charter for city officers.

The council shall designate one member of said trial board as chairman thereof. The chairman shall have the power to subpoena witnesses, administer oaths and compel the production of any books and papers in connection with any hearing held hereunder by said trial board. Any person refusing or failing to appear and testify or to produce such books and papers, or who shall testify falsely under oath at any hearing held by said trial board, may be proceeded against in the same manner and shall be subject to the same penalties as provided by section 51 of this Charter relating to investigations as to city affairs.

The council shall also designate one member of said trial board as vice-chairman thereof to act in the absence, disability or inability to act of the chairman, and when so acting, the said vice-chairman shall have all the powers herein conferred upon the chairman.

Any such officer or employee against whom accusations are so filed shall have the right to be represented by counsel at any hearing before said trial board. All notices required to be given the trial board may be given to the chairman thereof, or in his absence, to the vice-chairman. (Acts 1936, Ch. 283; Acts 1950, Ch. 430; Acts 1970, Ch. 484; Acts 1977, Ch. 42, § 1; Acts 1978, Ch. 80, § 1; Acts 2014, Chs. 235, 683 (Res. No. 1,572); Res. No. 1,929, § 1(Att. A), 12-10-24; Acts 2025, Ch. 373, § 1)

Editor's note—See note following § 59.

Sec. 64. Suspension and dismissal of the chief of police, deputy chief of police, fire chief and deputy fire chief.

The city manager shall have the power to suspend or dismiss the chief of police, the deputy chief of police, the fire chief, and the deputy fire chief at any time, and his action in every such case shall be final; provided that in the event the chief of police, the deputy chief of police, the fire chief, or the deputy fire chief was appointed to such position from the membership of his respective division, he shall, at the time of any such suspension or dismissal, or at any time prior thereto, at his request, be restored to the rank he held in the classified service in such division at the time of his appointment as such chief or

deputy chief, without being required to take any examination, subject, however, to the provisions of section 63 of this Charter.
(Acts 1952, Ch. 21; Acts 2014, Chs. 235, 683 (Res. No. 1,572); Res. No. 1,929, § 1(Att. A), 12-10-24; Acts 2025, Ch. 373, § 1)

Editor's note—See note following § 59.

DEPARTMENT OF FINANCE

Sec. 65. General powers and duties.

The head of the department of finance shall be known as the director of finance. The director shall have direct supervision over the department of finance and over the administration of the financial affairs of the city, including the keeping of accounts and financial records, special assessments and other revenues, and the custody and disbursement of city funds and moneys, and shall perform such other duties as the council may by ordinance provide.

The director shall devise and promulgate accounting procedures that are adequate to record in detail all transactions affecting the acquisition, custody and disposition of values, including case receipts and disbursements. The director shall cause a monthly statement to be presented to the council at a regular meeting in each month showing the aggregate receipts and expenditures of

each department of the city for the preceding month, and such statement shall be published by the council in such manner as to afford full publicity thereto.

At the end of each fiscal year, the director of finance shall cause to be printed an annual report giving a classified statement of all receipts and expenditures, assets and liabilities of the city, a detailed comparison of the revenues and expenditures for such year with those of the preceding year, a summary of the proceedings of the council, and a summary of the operations of the administrative departments for the preceding twelve months. The said report shall contain a certificate by the certified public accountant mentioned in §99 of this Charter, to the effect that the financial statement contained herein is a true and accurate statement of the financial condition of the city as shown by the books of account of the several departments thereof. A copy of this report shall be furnished to any citizen who may apply therefor at the office of the city clerk.
(Acts 2000, Ch. 950, § 1)

Sec. 66. The city auditor.

The city auditor shall be appointed in the manner and for the term prescribed in § 11, as amended, of this Charter. The city auditor shall be experienced in municipal auditing. The city auditor shall perform such auditing and other duties as prescribed by this Charter or as required by ordinance.
(Acts 2000, Ch. 950, § 1)

Sec. 66(a). Deputies and assistants of the city auditor.

The city auditor may, by and with the consent of the council, appoint one or more deputies and such number of assistants as may be provided by ordinance. Any of the official duties of the city auditor may be performed by any of his deputies.
(Acts 1952, Ch. 239)

Sec. 67. The annual budget.

At least sixty days before the end of each fiscal year, the city manager shall prepare and submit to the council an annual budget for the ensuing fiscal year, based upon detailed estimates furnished by the several departments and other divisions of the city government according to a classification as nearly uniform as possible. The budget shall present the following information:

(a) An itemized statement of the appropriations recommended, with comparative statements in parallel columns showing estimates of the expenditures for the current year and the actual expenditures for the next preceding year.

(b) An itemized statement of the taxes required and of the estimated revenues of the city from all other sources for the ensuing fiscal year, with comparative statements in parallel columns of the taxes and other revenues for the current and next preceding year, and of the increases or decreases estimated or proposed.

(c) Such other information as may be required by the council.

(d) When putting a fiscal year from July first through June thirtieth into effect, the comparative statements required by the provisions of subsections (a) and (b) above shall not strictly apply for the fiscal years 1968-1969 and 1969-1970, but the city manager shall show in the budget such comparative figures as shall best carry out the intent of subsections (a) and (b) above. Copies of such budget shall be printed and available for distribution after its submission to the council; and a public hearing shall be given thereon by the council before final action.
(Acts 1956, Ch. 115; Acts 1968, Ch. 174)

Sec. 68. The annual appropriation; council may provide that taxes continue from year to year.

At least thirty days before the end of each fiscal year the council shall pass an annual appropriation ordinance which shall be based on the budget submitted by the city manager; and shall levy such taxes for the ensuing fiscal year, if not theretofore levied, as may be necessary, together with other revenues of the city, including taxes theretofore levied, to meet the appropriations made and all sums required by law to be raised for account of the city debt, together with such addition, not exceeding five per cent of the total

appropriations, as may be necessary to meet any abatements from and deficiencies in the actual collection and receipt of the estimated taxes and other revenues of the city. The total amount of appropriations shall not exceed the estimated revenues of the city.

In levying taxes the council may provide that any tax so levied shall continue from year to year unless otherwise changed by the council.
(Acts 1952, Ch. 18)

Sec. 69. Fiscal year.

From and after January 1, 1920, and until otherwise provided by the council by ordinance, the fiscal year for said city shall begin on the first day of January and end with the thirty-first day of December of each year. Not later than June first, 1919, a budget shall be prepared and an appropriation ordinance adopted, covering the period from July first, 1919, to January first, 1920. Licenses for the privilege of doing business in the year 1919, from and after May first of said year, shall cover the period from May first to and including December thirty-first of said year, and the taxes thereon shall be apportioned accordingly. Thereafter the budget shall be prepared annually as above provided. From and after January first, 1920, and until otherwise provided by the council by ordinance, city license taxes for doing business shall be payable during the month of January of each year, and city taxes on real estate shall be payable during the month of July of each year, and city taxes on personal property shall be payable during the month of November of each year.

Sec. 69(a). When budget may be on basis of six months or eighteen months; authority of council to levy taxes on real estate, etc., on calendar year basis; tax year for other taxes.

Should the council of said city change the fiscal year thereof to begin on the first day of July and end on the thirtieth day of June of the succeeding year, for the purpose of putting such new fiscal year into effect, it is hereby authorized and empowered to provide for and adopt a budget, and appropriation ordinance to cover, for a six months' or for an eighteen months' period; and said council is further authorized and empowered to levy and impose taxes on real estate, tangible personal property and machinery and tools, on a calendar year basis, and in levying and imposing any such taxes on a calendar year basis the ordinance levying and imposing the same may be adopted at any time before the beginning of the calendar year for which the same are levied and imposed. The tax year for all other taxes shall be fixed by the council by ordinance.
(Acts 1948, Ch. 353)

Sec. 70. Unencumbered balances.

At the close of each fiscal year, or upon the completion at any time within the year of any project for which a specific appropriation has been made, the unencumbered balance of each appropriation, with the exception of those projects funded by sources with spending requirements and limitations specified by the grantor, shall revert to the respective fund from which it was appropriated and shall be subject to further appropriation. No money shall be drawn from the treasury of the city nor shall any obligation for the expenditure of money be incurred except pursuant to the appropriations made by the council.
(Acts 1978, Ch. 80, § 1; Acts 2000, Ch. 950, § 1)

Sec. 71. Payment of claims.

Payments by the city shall be made only upon vouchers certified in such manner as the council, by ordinance, may prescribe, and by means of warrants on the city treasurer, issued by the director of finance and countersigned by the city treasurer. During such time as the city manager shall act as director of finance such warrants shall be issued by the assistant director of finance or the city controller and countersigned by the city treasurer. The director of finance, or, if the city manager be acting as director of finance, then the assistant director of finance or the city controller shall examine all payrolls, bills and other claims and demands against the city; and shall issue no warrant for payment unless he finds that the claim is in proper form, correctly computed and duly certified; that it is justly and legally due

and payable; that an appropriation has been made therefor which has not been exhausted, or that the payment has been otherwise legally authorized; and that there is money in the city treasury to make payment. The city manager, or the assistant director of finance or city controller, as appropriate pursuant to this section, may require any claimant to make oath to the validity of a claim; may investigate any claim, and for such purposes may examine any witnesses under oath; and if such claim be found fraudulent, erroneous or otherwise invalid, shall not issue a warrant therefor.
(Acts 1926, Ch. 289; Acts 1958, Ch. 115; Acts 2000, Ch. 950, § 1)

Sec. 72. Certification of funds.

No contract, agreement or other obligation involving the expenditure of money shall be entered into nor shall any ordinance, resolution or order for the expenditure of money be passed by the council or be authorized by any officer of the city, unless the director of finance shall first certify to the council or to the proper officer, as the case may be, that the money required for such contract, agreement, obligation or expenditure is in the city treasury to the credit of the fund from which it is to be drawn, and not appropriated for any other purpose, which certificate shall be filed and preserved. During such time as the city manager shall act as director of finance the aforesaid certification shall be made by the assistant director of finance or the city controller. The sum so certified shall not thereafter be considered unencumbered, until the city is discharged from the contract, agreement or obligation.
(Acts 1972, Ch. 706, § 1; Acts 2000, Ch. 950, § 1)

Sec. 73. Money in fund.

All moneys actually in the treasury to the credit of the fund from which they are to be drawn and all moneys applicable to the payment of the obligation or appropriation involved that are anticipated to come into the treasury before the maturity of such contract, agreement or obligation from taxes, assessments, license fees, or from sales of property or of services, products or by-products of any city undertaking or federal or state grants, and moneys to be derived from lawfully authorized bonds, for the purpose of such certificate shall be deemed in the treasury to the credit of the appropriate fund and subject to such certification.
(Acts 1956, Ch. 115)

Sec. 74. City treasurer generally.

The city treasurer shall be elected at the time, in the manner and for the term provided in section 23 of this Charter. He shall give bond in such sum not less than one hundred thousand dollars, as the council may prescribe, with surety to be approved by the council, conditioned for the faithful discharge of his official duties in relation to the revenue of the city, and of such other official duties as may be imposed upon him by this Charter and the ordinances of the city. Subject to the supervision of the city manager, he shall collect and receive all city taxes, levies, assessments, license taxes, rents, water rents, fees and all other revenues or moneys accruing to the city, and for that purpose shall be vested with any and all powers which are now or may hereafter be vested in such city treasurer as collector of state taxes. He shall be the custodian of all public money of the city, and of all other money coming into his hands as city treasurer. The city treasurer shall keep and preserve such moneys in such banks or trust companies as may be determined by ordinance or by the provisions of any law applicable thereto. When city moneys have been deposited in such banks or trust companies as designated by ordinance, the city treasurer shall not be liable for any loss sustained as to funds of the city so deposited. It shall be the duty of said city treasurer to conduct all of the proceedings and render all services necessary to perfect the sale and transfer of real estate in said city where the same shall be sold or advertised for sale for the nonpayment of any taxes or assessments imposed by the council. He shall perform such other duties, have such powers and be liable to such penalties as are now or may hereafter be prescribed by law or ordinance.
(Acts 1950, Ch. 107; Acts 1974, Ch. 11; Acts 1976, Ch. 599)

Sec. 74(a). Supplementing salary of city treasurer.

The city may supplement the salary of the city treasurer for additional services not required by state law; provided, however, that such supplementary salary shall be paid wholly by the city.
(Acts 1956, Ch. 115)

Sec. 75. Commissioner of the revenue generally.

The commissioner of the revenue shall be elected at the time, in the manner and for the term provided in § 23 of this Charter. He shall give bond in such sum not less than ten thousand dollars, as the council may by ordinance prescribe, with surety to be approved by the council, conditioned for the faithful performance of all of his duties under this Charter, and under any ordinance of the city. He shall, subject to the supervision of the city manager, perform such duties not inconsistent with the laws of the state in relation to the assessment of property and licenses as may be required by the council for the purpose of levying city taxes and licenses. He shall have power to administer such oaths as may be required by the council in the assessment of license taxes or other taxes for the city. He shall make such reports in regard to the assessment of both property and licenses, or either, as may be required by the council or by the city manager. The council may by ordinance require that all tax bills shall be made out by the commissioner of the revenue and delivered in such manner as said ordinance may prescribe. For all such services the said commissioner of the revenue shall receive such compensation as the council may from time to time prescribe by ordinance.
(Acts 1976, Ch. 599)

Sec. 75(a). Supplementing salary of commissioner of the revenue.

The city may supplement the salary of the commissioner of the revenue for additional services not required by state law; provided, however, that such supplementary salary shall be paid wholly by the city.
(Acts 1956, Ch. 115)

Sec. 76. Vacancies in the office of city treasurer or commissioner of the revenue.

In case of a vacancy in the office of the city treasurer or of commissioner of the revenue the council shall elect a qualified person to fill the office in which such vacancy occurs for the unexpired term; provided, that if the term of office so filled does not expire for two years or more after the next regular municipal election for the election of councilmen following such vacancy, and such vacancy occurs in time to permit it, a city treasurer or a commissioner of the revenue, as the case may be, shall then be elected and shall from and after the date of his qualification succeed such appointee and serve the unexpired term.

Sec. 77. City purchasing agent.

The city purchasing agent shall, under the supervision of the director of finance, and until the council shall otherwise provide by ordinance, purchase all goods and services for the city, and sell all personal property of the city that may have been condemned as useless by the director of a department of the city, except the purchase of such goods and services and the sale of such personal property for which the council may make other provisions.

He may require from the director of each department, at such times as contracts for goods and services are to be let, a requisition for the quantity and kind of goods and services to be paid for from the appropriations of the department. Upon certification that funds are available in the proper appropriations, such goods and services shall be purchased and shall be paid for from funds in the proper department for that purpose. He shall not purchase any goods and services for any department unless there be to the credit of such department an available appropriation balance sufficient to pay for such goods and services. However, this procedure shall not prevent him from purchasing goods and services for cash on account of storehouse stock for future use by the various departments under such regulations as the director of finance may prescribe.

Before making any purchase or sale, he shall give opportunity for competition under such rules and regulations as may be established by the director of finance.

He shall perform such other duties in connection with the purchase of goods and services and the sale of personal property of the city as may be from time to time prescribed by the council.
(Acts 1956, Ch. 115; Acts 2000, Ch. 950, § 1)

Sec. 78. Emergency purchases.

ln cases of emergency, purchases may be made without competition, if a sufficient appropriation has theretofore been made against which such purchases may lawfully be charged. In such cases a copy of the order issued shall be filed with the city purchasing agent, together with a certificate by the head of the department, stating the facts constituting the emergency.
(Acts 2000, Ch. 950, § 1)

Sec. 79. Contingent fund.

Provision shall be made in the annual budget and in the annual appropriation ordinance for a reasonable contingent fund under the exclusive control of the city manager to be expended for use in the administration of the city's affairs in emergency situations as certified to by the city manager and under such rules of procedure therefor as the council shall prescribe. The city manager shall at least once in each quarter report to the council in writing all such emergency payments together with a statement of the facts constituting the emergency in each case.
(Acts 1976, Ch. 599)

Sec. 80. Public improvements.

Any public work or improvement costing more than fifteen thousand dollars, except as provided in the next succeeding section, shall be executed by written contract. All contracts for more than fifteen thousand dollars shall be awarded to the lowest responsible bidder after public advertisement and competition, as may be prescribed by ordinance. No contract may be split or divided to avoid the requirement of competition. But the city manager shall have the power to reject any and all bids and all advertisements shall contain a reservation of this right.
(Acts 1958, Ch. 115; Acts 1972, Ch. 706, § 1; Acts 1978, Ch. 80, § 1)

Sec. 81. Improvements by direct labor; emergency work.

After bids shall have been advertised for and received for making any public improvement or doing any public work, or if no bids are received, the council may authorize the making of such improvement or doing of such work by the direct employment of the necessary labor and purchase of the necessary materials and goods and services on the basis of detailed estimates submitted by the department authorized to execute such work or improvement; provided, the probable cost of such work or improvements as shown by such estimate is less than the bid of the lowest responsible bidder for the same work or improvement; and provided further, that the city manager shall certify to the council that in his opinion the cost of making such improvement or doing such work will not exceed the said estimate. Separate accounts shall be kept of all work and improvements so done or made.

In an emergency requiring immediate action the city manager may cause any such improvement to be made or other public work to be done by direct employment of the necessary labor and purchase of the necessary material and goods and services without previously advertising for or receiving bids therefor. Every such case shall be reported by him in writing to the council at its next regular meeting with a statement of the facts constituting such emergency. Separate accounts shall be kept of all such work; provided that nothing in this or the next preceding section shall prevent the said city from doing maintenance and repair work by direct labor and from maintaining a reasonable force of men for that purpose.
(Acts 1974, Ch. 11)

Sec. 82. Alteration or modification of contracts.

When it becomes necessary in the performance of any work under contract to make amendments or modifications to such contract, such amendments or modifications shall be made only upon the order of the city manager, unless otherwise provided by council by ordinance. No such order shall be effective until the price to be paid for the work and material, or both, and the credits, if any,

to be allowed the city, under the altered or amended contract, shall have been agreed upon in writing and signed by the contractor and by the city manager, or by the person designated by the council by ordinance.
(Acts 1970, Ch. 484; Acts 2000, Ch. 950, § 1)

Sec. 83. Contracts for public advertising.

All public advertising or publications necessary under this Charter shall be in a daily newspaper of general circulation, published in the city, and shall be done by contract; or in a journal published by the city as may be determined by ordinance; provided, that the publication of notice of the sale of lands for delinquent taxes and assessments thereon under § 90 of this Charter shall only be in a newspaper of general circulation published in said city. If such contract shall be with the publisher of a newspaper it shall be entered into only after opportunity has been given for competition under such rules and regulations as the council may provide and for a term not exceeding one year.

Sec. 84. [Repealed by Acts 1976, Ch. 559.]

Sec. 85. [Repealed by Acts 1983, Ch. 587, § 2.]

Sec. 86. Bond issues, etc., generally.*

(1) The council may in the name and for the use of the city contract debts and make and issue or cause to made and issued as evidence thereof, bonds, notes or other obligations, upon the credit of the city or solely upon the credit of specific property owned by the city, or personal property including investments and other securities deposited in a separate account and held for, and pledged to, the payment of principal of and interest on such bonds, notes or other obligations, or solely upon the credit of income derived from property used in connection with any public utility owned and operated by the city, such bonds and notes or other obligations to be either coupon or registered bonds, or coupon bonds with the privilege to the holder of having same registered as to principal or as to both principal and interest. Such bonds may be made subject to redemption prior to maturity, with or without premium, and subject to such notice as may be provided in the ordinance

*__Editor's note—__Code of Virginia section 15.1-171.1 required a public hearing before a bond ordinance may be adopted.

authorizing such bonds or in a resolution adopted in connection with the sale of such bonds. But except as provided in clause (4) of this section no debt shall hereafter be contracted for a longer period than that of the probable life of the work or object for which the debt is to be contracted, to be determined by the director of public works and by him certified as hereinafter provided. In determining the probable life or probable average life of works or objects as hereinafter provided, the director of public works shall not deem the life of the following classes of work or objects to exceed the following periods, namely: Roadways of streets having, at the time the debt is contracted, railroad or street railway tracks thereon, fifteen years; roadways of all other streets, twenty years; school houses, thirty years; other public buildings, forty years; iron bridges, thirty years; concrete bridges, forty years; parks or other real estate, fifty years; and all other works or objects not hereinabove specified, thirty years. In the event that a debt shall be authorized for purposes falling within two or more of the above-named classes, it shall be the duty of the director of public works to determine and certify as hereinafter provided the probable average life of the works or objects for which said debt is contracted, taking into consideration the nature of said works or objects and the portion of said debt applicable to said works or objects, respectively. The words "probable life," as herein used, shall be construed to mean the length of time that will probably elapse before any particular improvement (assuming it to be kept in reasonable current repair) will reasonably require replacement.

(2) No bond, note or other obligation of the city shall hereafter be issued except as hereinafter provided in the case of temporary loans, unless and until there is filed with the city clerk a certificate from the director of public works in substantially the following form:

"I hereby certify that the probable life (or 'the probable average life') of the work or object (or 'the works or objects') for which the debt authorized by the ordinance entitled (naming it) is contracted is as great as the longest period fixed for the maturity of any obligation issued or to be issued under the same ordinance";

and the said certificate shall be conclusive.

(3) The maximum periods hereinabove fixed for the contracting of debts for the several purposes hereinabove set forth may be changed at any time by the General Assembly, or under its authority, as to any bonds to be issued after said change is made, and such change shall not be deemed to constitute an impairment of the obligation of the contract of the city as to any bonds theretofore issued.

(4) Notwithstanding any other provisions of this section the city may issue, without the certification of the director of public works above-mentioned, bonds, notes or other obligations for the purpose of refunding any obligations of the city at any time, whether or not prior to the maturity or earliest redemption date of the obligations to be refunded and including interest on the obligations to be refunded; but no such refunding bonds, notes or obligations shall be issued for a period which exceeds twenty-five years.

(5) Bonds issued by the city may be either serial bonds or term bonds. Serial bonds shall be payable in annual installments, the first of which shall be payable at any time within two years of the date of the bonds, and the last of which shall be payable within the period of probable life of the work or object for which the debt evidenced by said bonds was created, ascertained and certified as hereinabove provided. Such installments may be in amounts determined by the council either in the ordinance authorizing such bonds or in a resolution adopted in connection with the sale of such bonds. Unless otherwise provided by ordinance for bonds issued for the purposes of refunding of outstanding bonds of the city, no installment shall be greater than double the amount of the smallest. If term bonds are issued which mature prior to the first principal repayment date of an issue of serial bonds, the first annual installment of such serial bonds may be more than two years after the date of such bonds. Term bonds must be payable within the period of the probable life of the work or object for which the debt evi-

denced by said bonds was created, ascertained and certified as hereinabove provided; and the council, either in the ordinance authorizing such bonds or in a resolution adopted in connection with the sale of the bonds, shall establish a sinking fund into which deposits shall be made for the payment of the principal of such bonds, in such amounts and in such times as may be determined by the council so that such bonds will be fully retired either by redemption or by payment at maturity by the maturity date thereof.

(6) [Repealed.]

(7) All bonds issued after April 1, 1916, shall be paid at their respective maturities, and, except in the case of obligations of said city issued after April 1, 1916, and prior to the enactment of this Charter, which mature not more than three years from the date thereof, no refunding bonds shall be issued for the payment thereof; provided, however, that if for any reason there shall not at the time of the maturity of any such bonds be sufficient funds of said city available for the payment thereof, it shall be lawful for the city to borrow money and issue negotiable notes to the amount required to pay such maturing bonds, which bonds shall be paid out of taxes to be levied and collected within the three years next succeeding the year in which such notes were issued. The payment out of the proceeds of the sale of any bonds of temporary loans made in anticipation of the sale of such bonds shall not be deemed a refunding of such temporary loans within the meaning of this clause. If the council shall fail to make provision for the payment of any sinking fund installment required as to any bonds lawfully issued under this section, or of any installment of serial bonds lawfully issued under this section, and such default shall continue for sixty days, then, and in either of said events, the city treasurer shall, without further direction from the council, and notwithstanding any contrary direction from the council, pay such sinking fund or serial bond installments from moneys then in his hands, if sufficient; and, if not, then from the first moneys that shall come into his hands thereafter.

(8) Pending the issuance or sale of any bonds, notes or other obligations by this section authorized, or in anticipation of the receipt of taxes and revenues of the current fiscal year, or of either of the two fiscal years immediately preceding the current fiscal year, it shall be lawful for the city to borrow money temporarily and issue notes or other evidences of indebtedness therefor, and from time to time to renew such temporary loans to be ultimately repaid from the proceeds of said bonds, notes or other obligations, or from the city taxes and revenues, as the case may be; provided that such temporary loans, including all renewals thereof, if made pending the issuance or sale of bonds, notes or other obligations, issued under clause (5) hereof, shall not be made for a period greater than five (5) years, nor shall they exceed in the aggregate at any one time the amount of such bonds, notes or other obligations remaining unissued and unsold; and temporary loans made in anticipation of the receipt of taxes and revenues of any fiscal year including all renewals thereof, shall not be made for a period greater than the period ending two years after the expiration of such fiscal year and shall not exceed in the aggregate at any one time the uncollected portion of the taxes and revenues in anticipation of which such notes or other evidences of indebtedness are issued. All such temporary loans shall be evidenced by instruments upon the face of which there shall be plainly written "temporary loans." No such loan made pending the issuance or sale of bonds, notes or other obligations under the provisions of clause (5) hereof shall be valid unless the said bonds, notes or other obligations shall have been first legally authorized. The provisions of clauses (1) to (5) inclusive, of this section, shall not apply to said temporary loans.

(9) The credit of the city shall not, directly or indirectly, under any device or pretense whatsoever, be granted to or in aid of any person, association or corporation. The council shall not issue any bonds, notes or other obligations of the city, or increase the indebtedness thereof, to an amount greater than ten percent of the assessed valuation of the real estate in the city subject to taxation as shown by the last preceding assessment for taxation; provided, however, that in determining the limitation of the power of the city to incur indebt-

edness there shall not be included the classes of indebtedness mentioned in numbered subdivisions (1), (2), (3) and (4) of subsection (a) of section 10, article VII of the Constitution of Virginia.

(10) Bonds of the city, the principal and interest on which are payable exclusively from the revenues and receipts of a water system or other specific undertaking or undertakings from which the city may derive a revenue, or secured solely or together with such revenues, by contributions of other units of government, may be issued pursuant to the provisions of this Charter and any general law of the State of Virginia as the council may deem applicable with regard to the funds and revenues pledged, covenants by the city with regard to fees and charges and other matters required for the protection of bondholders, remedies of bondholders and appointment of a trustee as well as the right of such trustee to the appointment of a receiver. The provisions of clause (5) of this section shall not apply to such bonds and the ordinance authorizing such bonds shall not be subject to a vote of the qualified voters. Such bonds shall not be a debt of the city and the city shall not be liable thereon except to the extent set forth in the ordinance pursuant to which the bonds are authorized and in no event shall such bonds be payable out of any funds other than those referred to in such ordinance. The bonds shall not constitute an indebtedness within the meaning of any debt limitation or restriction.

(10a) Bonds pledging the full faith and credit of the city authorized by an ordinance enacted in accordance with article VII of the Constitution of Virginia and approved by the affirmative vote of the qualified voters of the city voting upon the question of their issuance, for a supply of water or other specific undertaking from which the city may derive a revenue, may be issued without being included in determining the limitation on indebtedness set forth in clause (9) of this section and in article VII, section 10 of the Constitution of Virginia, but from and after a period to be determined by the council not exceeding five years from the date of such election, whenever and for so long as such undertaking fails to produce sufficient revenue to pay for the cost of operation and administration (including interest on bonds issued therefor), the cost of insurance against loss by injury to persons or property, and an annual amount to be placed into a sinking fund sufficient to pay the bonds at or before maturity, all outstanding bonds issued on account of such undertaking shall be included in determining the limitation on indebtedness set forth in clause (9) of this section and in article VII, section 10 of the Constitution of Virginia.

(11) Every ordinance authorizing the issuance of bonds shall specify the purpose or purposes for which they are to be issued, the aggregate amount of the bonds, the term for which they shall be issued, and the rate or maximum rate of interest to be paid thereon. Any such ordinance may be amended by ordinance at any time before the bonds to be affected by such amendment have been sold. All other matters relating to such bonds may be determined by resolution, within the limitations prescribed by such ordinance or by this act.

(12) All bonds shall be under the seal of the city and shall be signed by the city treasurer or one of his deputies and by such other officer or officers of the city as may be designated in the ordinance authorizing the bonds. If such ordinance shall so determine, the officer or officers signing the bonds, other than the city treasurer or his deputy, may sign the bonds by their facsimile signatures, in lieu of manual signatures; but the signature of the city treasurer or his deputy on such bonds shall be in his own proper handwriting, provided that the treasurer may cause the bonds to be executed by a facsimile of his signature if a fiscal agent, transfer agent or registered agent is appointed with authority to manually authenticate each bond. Coupons attached to a bond shall be authenticated by the facsimile signature of the city treasurer. (Acts 1932, Ch. 93; Acts 1950, Ch 436; Acts 1964, Ch. 23; Acts 1972, Ch. 706, § 1; Acts 1983, Ch. 587, § 1; Acts 1988, Ch. 519, § 1)

Sec. 86(a). Serial bonds issued prior to 1952.

Notwithstanding anything contained in this Charter or in any other law, any serial bonds issued by said city prior to the first day of January, nineteen hundred and fifty-two, in accordance with subdivision (6) of section 86 of this Charter, may, in the discretion of the council, be made payable in annual installments, the first of which shall be payable in the fiscal year nineteen hundred and fifty-three and the last of which shall be payable within the period of the probable life, ascertained and certified as provided in said section 86, of the work or object for which the debt evidenced by said bonds is created. (Acts 1942, Ch. 99)

Sec. 86(b). Further provisions as to bond issues.

Any ordinance authorizing the issuance of bonds adopted pursuant to section 86 may specify one or more single specific objects or purposes as the purposes for which the bonds are to be issued and the maximum principal amount of bonds to be issued for each such specific object or purpose or may specify one or more classes of objects or purposes, each to be described in brief and general terms sufficient for reasonable identification, and the maximum principal amount of bonds to be issued for each such class of objects or purposes. Bonds authorized for a single specific object or purpose shall not be issued until an ordinance authorizing the carrying out of such object or purpose has been adopted and taken effect. Bonds authorized for a class of objects or purposes may be issued either before or after ordinances authorizing the carrying out of such objects or purposes have been adopted and taken effect, but none of the moneys raised by the issuance of the bonds issued for such class of objects or purposes shall be applied to the financing of an object or purpose included in such class of objects or purposes until an ordinance authorizing the carrying out of such object or purpose has been adopted and taken effect, and the aggregate amount of the moneys so applied shall not exceed the amount appropriated to said object or purpose and directed to be expended from the moneys raised by the issuance of the bonds authorized for such class of objects or purposes, either by said ordinance or by a resolution adopted by the council. (Acts 1956, Ch. 124)

Sec. 86(c). Use of facsimile seal on bonds.

Notwithstanding anything contained in this Charter bonds issued pursuant thereto need not be under the seal of the city, provided they bear a facsimile of such seal. (Acts 1956, Ch. 124)

Sec. 87. Special assessments.

All local or special assessments shall be made and collected by the director of finance under such regulations as the council may by ordinance prescribe.

Provision shall be made by ordinance for the method of levying and apportioning such special assessments, for the publication of plans, for serving notice upon the owners of property affected, and for giving to such owners an opportunity to be heard before final action on the assessment.

Any person affected by such special or local assessment may appeal from the decision of the director of finance as to any such assessment against him to the corporation [circuit] court of said city.

Sec. 87(a). [Repealed by Acts 1976, Ch. 599.]

Sec. 88. Levy for taxes.

All goods and chattels of any person against whom taxes for the city are assessed may be distrained and sold for said taxes when due and unpaid in the same manner and to the same extent that goods and chattels may be distrained and sold for state taxes.

A tenant by whom payment is made or from whom payment is obtained, by distress or otherwise, of taxes or levies due the city by a person under whom he holds, shall have credit for the same against such person out of the rents he may owe him, except when the tenant is bound to pay such taxes and levies by an express contract with such person. And where taxes or levies are paid to the city by any fiduciary on any estate in his hands or for which he may be liable, such taxes and levies shall be refunded out of the said estate.

Sec. 88(a). Assessment and equalization of assessments of real estate.

The council of said city shall have the right and power, in lieu of any other method prescribed by law, to provide for the annual assessment and reassessment of real estate for taxation, and to that end may appoint in the manner and for the term prescribed in § 11 of this Charter a single assessor to assess such real estate for taxation, may prescribe the duties and term of office of said assessor, may require that he shall give his entire time to the duties of his office, may remove him for cause, may fix his compensation, which shall be payable out of the local treasury, and may likewise provide for such technical and clerical assistance as may be necessary or advisable and for the payment of any other expenses that may be properly incident thereto. Such person as appointed shall be the city assessor and shall have such number of assistants as the council by ordinance may provide, such assistants to be nominated by him and confirmed by the council. Said annual assessments or reassessments shall be completed by said assessor by the thirty-first day of March of the year in which they are made.

All such real estate shall be assessed at its fair market value and the taxes for each year on such real estate shall be extended on the basis of the last assessment made prior to such year, subject to such changes as may have been lawfully made.

Notwithstanding any of the provisions of sections 58-895 and 58-899 to 58-901, inclusive, of the Code of Virginia, the circuit court of said city or the judge thereof in vacation shall, annually, appoint for the city a board of review of real estate assessments, to be composed of three members, who shall be freeholders of said city. The terms of such members shall commence on their appointment and shall expire on the thirtieth day of November of the year in which they are appointed unless such terms are extended. Such court or the judge thereof in vacation may extend the terms of the members of the said board of review and shall fill any vacancy therein for the unexpired term. The members of the said board shall receive per diem compensation for the time actually engaged in the duties of the board, to be fixed by the council of said city, and to be paid out of the treasury of said city, provided, however, that the council of said city may limit the per diem compensation to such number of days as, in its judgment, is sufficient for the completion of the work of the board.

Such board of review shall have and may exercise the power to revise, correct and amend any assessments of real estate made by said assessor in the year in which they serve, and to that end shall have all the powers conferred upon boards of equalization by sections 58-903 and [to] 58-912, inclusive, of the Code of Virginia. Notwithstanding any provision of said sections, however, the board of review may adopt any regulations providing for the oral presentation, without formal petitions or other pleadings of requests for review, and looking to the further facilitation and simplification of proceedings before the board.

Any person of said city aggrieved by any assessment made by said assessor or board of review may apply for relief in the manner provided by sections 58-1145 to 58-1151, inclusive, of the Code of Virginia.

This section shall not apply to the assessment of any real estate assessable under the law by the state corporation commission.
(Acts 1950, Ch. 488; Acts 1983, Ch. 587, § 1; Acts 1999, Ch. 479, § 1; Acts 1999, Ch. 525, § 1)

Sec. 88(b). Annual assessment, reassessment and equalization of real estate taxes.

Notwithstanding the August thirty-first date prescribed by section 88(a) of the Charter, in the event the council, pursuant to state law, provides that the assessment of real property whenever

made, except that of public service corporations which is assessed by the State Corporation Commission, shall become effective for city tax purposes on the first day of July of each year then the annual assessment or reassessment of such property shall be completed by the assessor by the last day of February of the fiscal year in which they are made.
(Acts 1968, Ch. 219)

Sec. 89. Lien for taxes, etc.

There shall be a lien on all real estate and on each and every interest therein for the city taxes assessed thereon, from the commencement of the year for which they were assessed and also for all local assessments which may be made thereon according to law. There shall also be a lien on any land or premises for the amount of expense incurred by said city in abating any nuisance thereon or cutting or removing weeds therefrom, after notice to the owner thereof by publication or otherwise as may be provided by ordinance; provided, however, that the lien for the amount of any such local assessment or for the expense of abating any nuisance or cutting or removing weeds from any premises shall not be good against a purchaser of such land or premises for value without notice except and until from the time that the same shall be docketed in a book or books kept for that purpose in the office of the city treasurer and indexed in the name of the person or persons owning such estate or land at the time the said lien accrued. The council may require such real estate in the city delinquent for the nonpayment of taxes, or assessments or expenses incurred as above provided, to be sold for said taxes or assessments or expenses, with interest thereon at the rate of six per centum per annum, and such percentage as may be prescribed for charges.

Secs. 90—97. [Repealed by Acts 1976, Ch. 599.]

Sec. 98. Sales for local assessments, etc.

The council may by ordinance provide the method of making sale of any lands, lots or premises for nonpayment of the amount of any local or special assessments thereon, or for the nonpayment of any expense incurred by the city in abating any nuisance thereon, or cutting or removing weeds therefrom as provided in section 89 hereof.

Sec. 99. Audit of official accounts.

Upon the death, resignation, removal or expiration of the term of any fiscal officer of the city, other than the director of finance, the director of finance shall make an audit and investigation of the accounts of such officer, and shall report the result thereof to the city manager and to the council. As soon as practicable after the close of each fiscal year an annual audit shall be made of all the accounts of all city officers, and upon the death, resignation, removal or expiration of the term of the director of finance, an audit shall be made of his accounts. Such annual audits and the audit of the accounts of the director of finance shall be made by certified public accountants selected by the council, who have no personal interest, direct or indirect, in any of the officers or employees of said city, or in the financial affairs of said city; provided that no such certified public accountant who is otherwise qualified shall be disqualified to make such audits by reason of his being a resident of said city and taxpayer therein. The council may at any time provide for the examination or audit of the accounts of any officer or department of the city government.

PUBLIC PROPERTY AND FRANCHISES

Sec. 100. Sale of public property.

The rights of the City of Norfolk in and to its waterfront, wharf property, public landings, wharves, docks, streets, avenues, parks, bridges and other public places and its gas, water, electric and other works, shall not be sold except by an ordinance passed by a recorded affirmative vote of three-fourths of all the members elected to the council and under such other restrictions as may be imposed by law.
(Acts 2006, Ch. 152)

Secs. 101—103.[Repealed by Acts 1976, Ch. 599.]

Sec. 104. Transfer of franchise.

No public utility franchise shall be transferable except with the approval of the council expressed by ordinance, and copies of all transfers and mortgages or other

documents affecting the title or use of any such public utility shall be filed with the city manager within ten days after the execution and delivery thereof.

Sec. 105. Rights reserved to the city.

All grants, renewals, extensions or amendments of public utility franchises, whether so provided in the ordinance or not, shall be subject to the right of the city:

(1) To repeal the same by ordinance at any time for misuse or nonuse, or for failure to begin construction within the time prescribed or otherwise to comply with the terms prescribed.

(2) To require proper and adequate extensions of plant and services and the maintenance of the plant and fixtures at the highest practical standard of efficiency.

(3) To establish reasonable rates and standards of service and quality of products and prevent unjust discrimination in service or rates.

(4) To prescribe the form of accounts and at any time to examine and audit the accounts and other records of any such utility; and to require annual and other reports by each such public utility; provided that if forms of account shall have been prescribed by the State Corporation Commission of Virginia for public utilities throughout the state, the forms so prescribed shall be controlling so far as they go, but the council may prescribe more detailed forms for the utilities within its jurisdiction.

(5) To impose such other regulations as may be conducive to the safety, welfare and convenience of the public.

Sec. 106. [Repealed by Acts 1976, Ch. 599.]

PUBLIC SCHOOLS

Secs. 107, 108. [Repealed by Acts 1976, Ch. 599.]

Sec. 109. Powers and duties of the school board.

The school trustees of said city shall be a body corporate under the name and style of the school board of the City of Norfolk and shall have all the powers, perform all of the duties and be subject to all the limitations now provided or which may hereafter be provided by law in regard to school boards of cities, except that all real estate with the buildings and improvements thereon purchased with money appropriated by the council or received from any other source for the purpose of public education, shall be the property of the said City of Norfolk unless such money so received from any other source be received on other conditions. The said school board shall on the first days of the months of January and July in each year transmit to the council and to the director of finance a detailed statement of all money received by said board or placed to its credit and all moneys disbursed by said board during the preceding six months, whether such moneys shall have been appropriated by the council or received from any other source for the purpose of public education. Separate accounts shall be kept by the said board of the moneys appropriated by the council, and moneys received from other sources, and every such statement shall show the balance of each class of funds on hand or under control of said board as of the date thereof.

The said school board shall on or before the first day of October of each year prepare and submit to the city manager for his information in making up the annual budget a detailed estimate of the amount of money required for the conduct of the public schools

of the city for the ensuing fiscal year, with an estimate of the amount of all funds which will probably be received by said board for the purpose of public education from sources other than appropriations by the council.

CIVIL SERVICE COMMISSION

Sec. 110. Creation of civil service commission.

Prior to the first day of December, nineteen hundred and eighteen, the council shall elect three qualified voters to constitute the civil service commission of said city, who shall be elected for terms of two, four and six years respectively, from the first day of January, nineteen hundred and nineteen, and until their respective successors shall have been elected and qualified; and prior to the first day of December of every second year thereafter, the council shall elect a qualified voter as a member of the said commission who shall serve for a term of six years from the first day of January next following the date of his election, and until his successor shall have been elected and qualified.

The commission shall elect one of its members president and two commissioners shall constitute a quorum for the transaction of business at any meeting thereof. It shall appoint as secretary to the commission a man who by education and experience is qualified to conduct the ordinary examinations required by section 113 hereof, and to act as secretary of the efficiency bureau hereafter provided for. Each commissioner, before entering upon the duties of his office, shall take the oaths prescribed by the Constitution of this state. Any vacancies in the commission shall be filled by election by the council for the remainder of the unexpired term.

Sec. 111. Classification.

The civil service commission shall classify all the offices and places of employment in the city with reference to the examinations hereinafter provided for, except those offices and places mentioned in section 114 of this Charter. The offices and places so classified by the commission shall constitute the classified civil service of the city, and no appointment to any such offices and places shall be made except according to the rules hereinafter mentioned.

Sec. 112. Rules.

The civil service commission shall prescribe, amend and enforce rules for the classified service, which shall have the force and effect of law, shall keep minutes of its proceedings and records of its examinations, and shall make investigations concerning the enforcement and effect of said rules. It shall make an annual report to the council.

Rules shall provide:

(1) For the classification of all positions in the classified service.

(2) For open, competitive examinations to test the relative fitness of the applicants for such positions.

(3) For public advertisement of all examinations at least ten days in advance in at least one newspaper of general circulation, published in the City of Norfolk.

(4) For the creation of eligible lists, upon which shall be entered the names of successful candidates in the order of their standing in examination. Selections for positions to be filled in the classified service shall be made from the five standing highest on said list. Such lists shall remain in force not longer than two years.

(5) For the rejection of candidates or eligibles who fail to comply with the reasonable requirements of the commission in regard to age, residence, sex, physical condition, or who have been guilty of crimes or of infamous or disgraceful conduct, or who have attempted any deception or fraud in connection with an examination.

(6) For the furnishing of the eligible list to the city manager or other appointing power.

(7) For a period of probation not to exceed twelve months in the case of members of the divisions [departments] of fire and police, and not to exceed six months in the case of other officers and employees in the classified service, before appointment or promotion is made complete, during which periods a probationer may be discharged or reduced at the will of the city manager. After such period of probation, no officer or employee in the classified service shall be reduced in rank, removed or discharged except for cause and upon written charges, and after an opportunity to be heard in his own defense. Such charges shall be investigated and disposed of by the city manager, whose decision shall be final.

(8) For noncompetitive examinations for menial positions in the city institutions, when competition is found to be impracticable.

(8a) For appointment to positions in the classified service, without competitive examination, of persons previously employed by the city manager pursuant to section 114.1 of this Charter, upon such conditions and after such determinations of fitness and eligibility as the commission may prescribe, and after service of the period of probation provided for in (7) above.

(9) [Repealed.]

(10) For transfer from one position to a similar position in the same class and grade, and for reinstatement within one year of persons who, without fault or delinquency, are dismissed from the service or reduced.

(11) For promotion, based on competitive examination and records of efficiency, character, conduct and seniority. Lists shall be made and promotions made therefrom in the same manner as prescribed for original appointment. An advancement in rank or increase in salary beyond the limit fixed for the grade by the rules shall constitute promotion. Whenever practicable, vacancies shall be filled by promotion.

(12) For the appointment of unskilled laborers and such skilled laborers as the commission may determine and after such tests of fitness as the commission may prescribe.

(Acts 1956, Ch. 115; Acts 1976, Ch. 599)

Sec. 113. Examinations.

All applicants for offices or places in the classified service, except as otherwise provided in this Charter, shall be subjected to examination, which shall be public, competitive and free to all persons eligible under the law, with specified limitations as to residence, age, health, habits and moral character. Such examinations shall be practical in their character, and shall relate to those matters which will fairly test the relative capacity of the persons examined to discharge the duties of the positions to which they seek to be appointed, and shall include tests of physical qualifications and health, and, when appropriate, of manual skill. No questions in any examination shall relate to political or religious opinions or affiliations. The commission shall control all examinations and may, whenever an examination is to take place, unless the same is to be conducted by the secretary, designate a suitable number of persons, either in or not in the official service of the city, to be examiners; and it shall be the duty of such examiners, and, if in the official service, it shall be a part of their official duty, without extra compensation, to conduct such examinations as the commission may direct, and to make return or report thereof to said commission, and the commission may at any time substitute any other person, whether or not in such service, in the place of any one so selected; and the members of the commission may themselves at any time act as examiners, and without appointing examiners.

Sec. 114. Officers exempted from classified service.

Officers who are elected by the people or who are elected or confirmed by the council, pursuant

to this Charter, members of the school board, the teachers in the public schools and all other persons employed by said school board, heads of the administrative departments of the city, the deputy chief of police, the deputy fire chief, assistant city managers, employees who report directly to and whose positions require the personal trust and confidence of the city manager, employees, regardless of their positions, hired and permanently assigned to work for and under the supervision of the constitutional officers of the city or of the circuit court judges of the city, assistant heads of administrative departments and heads or chiefs of bureaus and divisions within said departments, but not including such positions within the departments of fire and police other than those of the deputy chief of police and the deputy fire chief, members of the law department and civil service examiners, shall not be included in such classified service; provided, however, that the council may by ordinance provide that the health officer of said city and such of his trained medical assistants as may be required to give full time to the duties of their positions shall be included in the classified service.
(Acts 1977, Ch. 42: § 1: Acts 1982, Ch. 289, § 1; Acts 2004, Ch. 52; Acts 2008, Ch. 337; Acts 2014, Chs. 235, 683 (Res. No. 1,572); Res. No. 1,929, § 1(Att. A), 12-10-24; Acts 2025, Ch. 373, § 1)

Sec. 114.1. Employees exempt from classified or unclassified service; power of the council to authorize employment of; and to make rules and regulations for certain employees.

Notwithstanding the provisions of sections 110, 111, 112, 113, 114, 116, 117, 118 or 119 of this Charter, the council is hereby empowered to authorize or ratify by ordinance the employment of persons by the city manager for temporary service not to continue longer than six months, for substitute service not to continue longer than twelve months, for trainee service not to continue longer than twenty-four months, for service on specific projects or programs, and for part-time, service, which persons shall not be members of the classified or unclassified service unless specifically so provided by council, and to adopt rules and regulations governing the employment, establishment and definition of positions, status, discipline, leave, transfer, limitations on length of employment, dismissal, compensation and other rights and benefits of such persons. In no event shall successive employments for any of the foregoing categories of service, the employment of any person for a greater period than that specified for the type of service for which he is employed, the employment of any person in more than one of such categories of service, or the transfer of any person from one category to another for the purpose of continuing or lengthening his term of employment, be allowed.
(Acts 1976, Ch. 599; Acts 1978, Ch. 80, § 1; Acts 1988, Ch. 519, § 1)

Sec. 115. [Repealed by Acts 1954, Ch. 72.]

Sec. 116. Suspension of competition.

In case of a vacancy in a position requiring peculiar and exceptional qualifications of a scientific, professional or expert character, upon satisfactory evidence that competition is impracticable and that the position can best be filled by the selection of some designated person of recognized attainments, the civil service commission may, after public hearing and by the affirmative vote of all three commissioners, suspend competition, and recommend to the appointing power the appointment of the person so selected, but no such suspension shall be general in its application to such position, and all such cases of suspension shall be reported, together with the reason therefor, in the annual report of the commission.

Sec. 117. Application to incumbents.

All persons in the city service who, at the time this Charter takes effect, hold positions in the classified service as established pursuant to the provisions hereof, shall be deemed to be on probation for six months from that date in accordance with paragraph (7) of section 112 hereof. If retained at the completion of the period of probation, they shall hold their posi-

tions until discharged, reduced, promoted or transferred in accordance with the provisions of this Charter.

Sec. 118. List of classified employees.

The civil service commission shall maintain a list of all persons in the classified service, showing in connection with each name the position held, the date and character of every appointment and of every subsequent change in status. The head of each administrative department shall promptly transmit to the commission all information required for the establishment and maintenance of said list.

Sec. 119. Salaries to be paid only after certification.

Neither the city treasurer nor any other disbursing officer shall pay any salary or compensation for service to any person holding or performing the duties of a position in the classified service unless the persons paid shall have been appointed or employed and are performing service in accordance with the provisions of this Charter relating to civil service and of the rules established thereunder.

It shall be the duty of the civil service commission to furnish the treasurer and all other disbursing officers a list of all persons in the classified service, together with the changes from time to time.

Any taxpayer of the city may maintain an action in the name of the city in any civil court of record to recover in its behalf any sums paid contrary to the provisions of this section from the person or persons making such payment or to enjoin the payment of any sums of money in violation hereof.

Sec. 120. Political or religious discrimination prohibited.

No person in the classified service, or seeking admission thereto, shall be appointed, promoted, reduced or removed, or in any way favored or discriminated against because of his political or religious opinions or affiliations.

Sec. 121. Soliciting political assessments, subscriptions or contributions prohibited.

No officer or employee of the city shall, directly or indirectly, solicit or receive, or be in any manner concerned in soliciting or receiving, any assessment, subscription or contribution for any political party or political purpose whatever, or for a testimonial for any official. No person shall, orally or by letter, solicit, or be in any manner concerned in soliciting any assessment, subscription or contribution for any political party or purpose whatever from any person holding a position in the classified service.

Sec. 122. Political activity prohibited.

No person holding a position in the classified service shall take any part in political management or in political campaigns other than to cast his vote and to express privately his opinion.

Sec. 123. Penalties for violation of provisions of sections 120 to 122.

Any person willfully violating any of the provisions of sections 120,121 and 122 hereof shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not less than ten dollars ($10.00), nor more than one hundred dollars ($100.00).

Sec. 124. Appropriations for expense of civil service commission.

The council shall appropriate each year a sum of money sufficient to defray the expenses of the civil service commission, and the city manager shall include the same in the annual budget.

Sec. 125. Annual report to be made to the council.

Within thirty days after the first day of January, nineteen hundred and twenty, and within thirty days after the first day of January of each succeeding year, the civil service commission shall make a report to the council showing its own action, the rules in force, the practical effects thereof, and any suggestions it may have for the improvement of the classified service. The council may require a report from said commission at any other time.

OTHER CITY OFFICIALS

Sec. 126. City clerk.

The city clerk shall be elected at the time, in the manner and for the term provided by § 11 of this Charter. He may by and with the consent of the council appoint one or more deputies and such number of assistants as may be provided for by ordinance. He shall be the clerk of the council; shall keep a record of its proceedings and either he or one of his deputies shall attend all meetings thereof. He shall keep all records which by the provisions of this Charter or by direction of the council are required to be kept by or filed with him. He shall be the keeper of the city seal and shall affix and attest the same when so directed by the council. He shall transmit to the city auditor and the city treasurer copies of all ordinances or resolutions appropriating money or authorizing the payment of money or the issue of bonds or notes, and shall likewise transmit to the city manager copies of all ordinances and resolutions relating to the administrative departments of the city. He shall give information to persons presenting communications or petitions to the council of the final action of the council thereon. He shall, except as otherwise expressly provided in this Charter, publish or cause to be published, all reports, ordinances and other documents required by this Charter to be published, and also such other reports as the council may by ordinance or resolution direct. He shall perform such other duties as are required by this Charter, and in general shall perform such acts and duties as the council shall by ordinance or resolution require of him. Any of the duties of said city clerk may be performed by any of his deputies. The city clerk and his deputy or deputies shall receive such compensation and give such bond as the council may by ordinance provide.
(Acts 1950, Ch. 78; Acts 1982, Ch. 289, § 1)

Secs. 127, 128. [Repealed by Acts 1976, Ch. 599.]

Sec. 129. High constable.

The high constable for said city shall be elected at the time and in the manner provided in § 11, as amended, of this Charter. He shall qualify in the circuit court of the City of Norfolk and shall give bond with surety to be approved by said court in the penalty of fifty thousand dollars ($50,000.00), payable to the Commonwealth of Virginia, and conditioned for the faithful performance of his duties, said bond to be filed in the office of the clerk of said court. He shall execute all civil processes, warrants, summonses and notices as may lawfully be directed to him, including those issued outside the city, and shall have the same powers, duties and authority with respect to the execution of such civil processes, warrants, summonses and notices as are now or may hereafter be prescribed by law for the city sheriff. He shall further have such other powers, duties and authority as may otherwise be prescribed by law or by the council by ordinance. He shall charge and collect for services rendered by him and his deputies the fees and sums now or hereafter prescribed by law for the city sheriff for like services. The Authority hereby conferred shall in no way limit or prevent the execution or service of any such civil process, warrant, notice or summons returnable before the general district court of the city by the city sheriff, or by any other lawful means. Said high constable may, with the approval of the council, appoint one or more deputies to execute the duties of his office; but the surety on the bond of said high constable shall be equally liable for the acts of the said deputy or deputies as for those of the principal. The council shall have power to remove the high constable or any of his deputies for cause and appoint others in their places. He shall keep a full, accurate and detailed account of all such fees and sums and shall pay over to the city treasurer on the first day of each month all fees and sums collected and received during the preceding month, accompanied by an itemized statement of such fees and sums verified by his oath. For his services he shall receive such compensation as the council may by ordinance provide, and the council shall make provision by ordinance for the necessary and reasonable expense of conducting his office, including compensation to his deputy or deputies, which compensation shall be fixed by the council.
(Acts 1952, Ch. 239; Acts 2000, Ch. 950, § 1)

MISCELLANEOUS PROVISIONS

Sec. 130. Courts, fees, etc.

Wherever power is conferred upon said city by this Charter to make rules and regulations, and

impose and enforce penalties for the protection of any property owned by said city, but situated beyond the corporate limits thereof, the circuit court of the county or city in which such property is located shall have exclusive jurisdiction of all offenses committed in such county or city against ordinances of said city prescribing such rules and regulations, and imposing such penalties; and jurisdiction of injunction suits for the protection of any such property shall be as is now, or may hereafter be, provided by general law.

In all civil actions filed by said city in the general district courts, the said city shall be exempt from the payment of fees required by the general law.
(Acts 1992, Ch. 261, § 1)

Sec. 131. Jurisdiction of offenses.

The corporation [circuit] court of said city shall have exclusive jurisdiction of offenses §§ 6, 9, 47, 123 and 132 of this Charter. Prosecutions under said sections may be begun by presentment, indictment or information.

Sec. 132. Records.

All records used by any city officer in his office or pertaining to his duties shall be deemed the property of said city, and the chief officer in charge of such office shall be responsible therefor. Any such officer or person made by this section responsible for the keeping of such records shall, within ten days after the end of his term of office, or within ten days after the date of his resignation or removal from office, as the case may be, deliver to the city clerk all such records. Any such officer or person failing to deliver such records as required by this section, shall be deemed guilty of a misdemeanor, and upon conviction thereof, shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or imprisoned not exceeding six months, or both, in the discretion of the jury.
(Acts 1982, Ch. 289, § 1)

Sec. 133. Qualification of members of the council and other officials.

The members of the council before entering upon the duties of their respective offices shall each take the oaths prescribed by the laws of this State for state officers. Such oaths may be administered by any judge of a court of record commissioned to hold such court within said city, or by any justice of the peace within said city, and the certificate thereof shall be filed with the city clerk and entered upon the record of the council. Every other person elected or appointed to any office under this Charter or under any ordinance of the council, except clerks and laborers, shall before entering upon the duties of his office take and subscribe said oaths together with such other oaths as may be required by ordinance, before the city clerk, and the certificate of the same shall be kept on file in the office of said city clerk. The clerk of the corporation [circuit] court of said city shall notify all persons elected by the people or appointed under this Charter of their election or appointment, and the city clerk shall notify all persons elected by the council of their election. If any person elected or appointed to any office in the said city shall for ten days after receiving notice of election fail to take such oaths and give such bonds, with security, as may be required by law or ordinance, he shall be considered as having declined said office and the same shall be deemed vacant and such vacancy shall be filled according to the provisions of this Charter.
(Acts 1982, Ch. 289, § 1; Acts 2021, Ch. 371, § 1)

Sec. 134. Bonds of officers.

Except in the case of officers whose bonds are specially provided for by this Charter, the council in fixing the salary of any officer, clerk or employee of the city, shall determine whether such officer, clerk or employee shall give bond and the amount or penalty thereof.

All officers required by this Charter to give bond, and all officers, clerks and employees of whom bond is required by the council shall, before entering upon their respective duties, give bond with surety to be approved by the council, conditioned for the faithful performance of the duties of their respective offices, which bond, unless otherwise specially provided by this Charter, shall be payable to the said city, and in such penalty as the council may by ordinance prescribe. The council shall accept as surety on

any such official bond only a good, solvent surety or fidelity company authorized to do business in this State. The council may provide that the premium on any such bond shall be paid by the city. The sureties on the bond of any such officer shall be equally liable for the acts of any deputy or deputies of such officer as for those of such officer himself. Unless otherwise specially provided in this Charter, all such bonds shall be filed with and preserved by the city clerk. The parties to bonds taken in pursuance of this section shall be subject to the same proceedings on said bonds for enforcing the conditions and terms thereof by motion or otherwise before the corporation [circuit] court or circuit court of said city, as are now or may hereafter be provided by law in the case of collectors of the county levy and the sureties on their bonds for enforcing payment of the county levies.

Sec. 135. [Repealed by Acts 1976, Ch. 599.]

Sec. 136. General laws to apply.

All general laws of the State applicable to municipal corporations now in existence or hereafter enacted and which are not in conflict with the provisions of this Charter or with ordinances or resolutions hereafter enacted by the council pursuant to authority conferred by this Charter shall be applicable to said city; provided, however, that nothing contained in this Charter shall be construed as limiting the power of the council to enact any ordinance or resolution not in conflict with the Constitution of the State or with the express provisions of this Charter.

Sec. 136(a). Procedure upon exercise of right of eminent domain.

In addition to the other powers conferred by law the city may, in exercising the right of eminent domain, make use of the procedure prescribed by the general law or may elect to proceed as hereinafter provided. In the latter event the ordinance directing acquisition of any property shall provide therein in a lump sum the total funds necessary to compensate the owners thereof for the property to be acquired or damaged. Upon the adoption of such ordinance the city may file a petition in the clerk's office of a court having jurisdiction, which shall be signed by the city manager and set forth the interest or estate to be taken in the property and the uses and purposes for which the property or the interest or estate therein is wanted; or when property is not to be taken but is likely to be damaged, the necessity for the work or improvement which will cause or is likely to cause such damage. There shall also be filed with the petition a plat of a survey of the property with a profile showing cuts and fills, trestles and bridges, if any, and a description of the property which, or an interest or estate in which, is sought to be taken or likely to be damaged and a memorandum showing names and residences of the owners and tenants of the property, if known, and showing also the quantity of property which, or an interest or estate in which, is sought to be taken or which will be or is likely to be damaged. There shall be filed also with the petition a notice thereof directed to the owners and tenants of the property, if known, copies of which shall be served on such owners as well as on the tenants of such property, if known. If any such person be unknown or a nonresident of the State or cannot with reasonable diligence be found in the State, or if his residence be unknown, he may be proceeded against by order of publication published once a week for two successive weeks in a daily newspaper published in the City of Norfolk, and shall be posted at a main entrance to the courthouse.

Upon the filing of the petition and the funds provided by the council for the purpose having been duly deposited to the credit of court, if the court is of the opinion that the property or interest or estate therein to be acquired is for the uses and purposes of the city as provided by law, it shall order that the interest or estate of the owner of such property shall terminate and the title of such property or the interest or estate to be taken in such property shall be vested absolutely in the city and such owner shall have such interest or estate in the funds so deposited as he had in the property taken or damaged and all liens by deed of trust, judgment or otherwise upon said property or estate shall be transferred to such funds and the city shall have the right to

enter upon and take possession of such property for its uses and purposes and to construct its works or improvements. The clerk of the court in which such proceeding is instituted shall make and certify a

copy of the order and deliver or transmit the same to the clerk of the court in which deeds are admitted to record, who shall record the same in his deed book and index it in the name of the record title owner of such property and in the name of the city, for which he shall receive the fees prescribed for recording a deed, which shall be paid by the city.

If the city and the owner of property so taken or damaged agree upon compensation therefor, upon filing such agreement in writing in the clerk's office of such court the court or judge thereof in vacation shall make such distribution of such funds as to it may seem right, having due regard to the interest of all persons therein whether such interest be vested, contingent or otherwise, and to enable the court or judge to make a proper distribution of such money it may in its discretion direct inquiries to be taken by a special commissioner in order to ascertain what persons are entitled to such funds and in what proportions and may direct what notice shall be given of the making such inquiries by such special commissioner.

If the city and the owner cannot agree upon the compensation for the property taken or damaged, if any, upon the filing of a memorandum in the clerk's office of said court to that effect, signed by either the city or the owner, the court shall appoint commissioners provided for in section 25-46.20 of the Code of Virginia, and shall in the order appointing such commissioners designate the day and hour for them to meet, and all proceedings thereafter shall be had as provided in sections 25-46.20 through 25-46.34 of the Code of Virginia insofar as they are then applicable and not inconsistent with the provisions of this section, and the court shall order the deposit in bank to the credit of the court such additional funds as appear to be necessary to cover the award of the commissioners or shall order the return to the city of such funds deposited that are not necessary to compensate such owners for property taken or damaged. The commissioners so appointed shall not consider improvements placed upon the property by the city subsequent to its taking nor the value thereof nor the enhancement of the value of the property by such improvements in making their award. Provided, however, that the provisions of section 25-233 of the Code of Virginia, as now or hereafter in effect, shall apply to any property belonging to any corporation possessing the power of eminent domain that may be taken hereunder.

Provided, however, that nothing herein contained shall give the said city the Authority to acquire by condemnation property belonging to another city or county. (Acts 1948, Ch. 233; Acts 1964, Ch. 62)

Sec. 137. Existing ordinances.

All ordinances and resolutions in force at the time of the taking effect of this Charter not inconsistent with its provisions shall continue in force until amended or repealed.

Sec. 138. Continuance of present officers.

Upon the taking effect of this Charter on the first day of September, nineteen hundred and eighteen, all members of the present council of said city, members of the board of control, and the mayor, shall go out of office and their respective offices shall be abolished. The judges of the several courts of said city, the clerks of such courts, the attorney for the Commonwealth, the commissioner of the revenue, the city treasurer and the city sergeant then in office shall continue in office to the end of the respective terms for which they were elected and until their respective successors shall have been elected and qualified. All other persons holding office in said city on the first day of September, nineteen hundred and eighteen, shall continue in office and in the performance of their duties until provision shall have been made in accordance with the provisions of this Charter for the performance or discontinuance of the duties of any such office. When such provision shall have been made the term of any such officer shall expire and the office shall be ipso facto abolished. In case of dispute, the council may by resolution declare when the functions and duties of any such office or position have been provided for and the said office or position abolished, and its decision thereon shall be final. The powers which are conferred and the duties which are imposed upon any officer, board, commission or department of the city under the laws of the State shall, if such

office, board, commission or department is abolished by this Charter, be thereafter exercised and discharged by the officer, board, commission or department upon whom are imposed corresponding functions, duties and powers under the provisions of this Charter.

Sec. 139. Continuance of contracts.

All contracts entered into by the city or for its benefit prior to the taking effect of this Charter shall continue in full force and effect. All public works begun prior to the taking effect of this Charter shall be continued and completed hereunder. Public improvements for which legislative steps shall have been taken under laws in force at the time this Charter takes effect may be carried to completion in accordance with the provisions of such laws.

Sec. 140. Hours of labor.

The council shall have power to provide by ordinance that on any public work carried on by the municipality, whether done by contract or otherwise, not to exceed eight hours a day shall constitute a day's work; but such ordinance shall not prevent persons who may be employed for one week or longer from making up lost time by working longer than eight hours in any one day; provided they are not required to work more than forty-eight hours in any one week, nor shall such ordinance apply in cases of emergency.

Sec. 141. Power to appoint boards or commissions of citizens.

The council may at the request of the city manager appoint boards or commissions, to be composed of such number of citizens regardless of sex, as the council may deem expedient, to act in an advisory capacity in conjunction with any one or more of the departments created or authorized hereby. The members of all such boards and commissions shall serve without compensation.

Sec. 142. Removal of members of boards and commissions.

The members of all boards and commissions, whose members are by this Charter elected or appointed by the council, may be removed by the council at any time for malfeasance or misfeasance or for failure or neglect to perform any of the duties of their respective offices or positions.

Sec. 143. Working prisoners.

Subject to the general laws of the State regulating the working of those convicted of offenses against the State, the council shall have the power to provide by ordinance for the employment or the working, either within or without the city limits, or within or without any city prison or jail, of all persons sentenced to confinement in said prison or jail for the violation of the laws of the State of Virginia or the ordinances of the City of Norfolk.

Sec. 143(a). Pension funds—Generally.

In addition to the other powers conferred by law, the council of said city shall have the right and power to establish and maintain, in such manner and to such extent and in such combination thereof as said council may deem desirable, a system or systems of pensions and retirement allowances for, and death benefits for the designated beneficiaries of, the officers and employees of said city, including policemen and firemen and such other officers and employees whose entire compensation is paid directly by said city but not to include officials elected by the people or the General Assembly, except that the council of said city may, in its discretion, include therein members of the city council, the city treasurer and the employees in that office, the commissioner of the revenue and the employees in that office, the city sheriff and the employees in that office, the clerks of the courts of record of the city and the employees in their respective offices, the Commonwealth's attorney of the city and the employees in that office, the employees in the welfare department of the city, and any person who becomes a State employee by virtue of an agreement between the city and the State, or any department, board or agency thereof, affiliating the city's department of public health with the State Health Department, provided such person was a city employee and a member of the employees' retirement system of the city on the effective date of any such agreement and does not elect, in writing, and within sixty days after the effective date of any such

agreement, to become a member of the State's retirement system, or any of them, and to that end, shall have authority to establish a fund or funds for the payment of such pensions, retirement allowances and death benefits by making appropriations out of the treasury of said city, by requiring contributions from time to time from those participating in any such system, or by any other mode not prohibited by law, or by any combination of said methods, to make rules and regulations for the management, investment and administration of such fund or funds, and the payment of such pensions, retirement allowances and death benefits, and to do all such other things that may be deemed necessary or advisable to carry into effect the provisions of any such system or systems.

The pensions accruing and to accrue to any such officer or employee or to the beneficiary thereof, under any such system, and the accumulated contributions, securities, moneys and assets of any such fund, are hereby exempted from State, county and municipal taxation to the extent permitted by other law, and shall not be subject to execution, attachment or garnishment, or any other process whatsoever, and shall be unassignable except as provided by a regulation of such system.

The council shall have the continuing right and power to amend at any time any ordinance adopted pursuant to the provisions hereof, which right and power is expressly reserved to them, but no such amendment shall be adopted which will reduce the then accrued benefits of such officers and employees and beneficiaries covered by any such system or systems below to the extent they may be then covered by accumulative reserves in any such fund or funds, which shall constitute a trust fund or funds for the payment of such benefits.

The inclusion in the system of pensions, retirement allowances and death benefits heretofore established by the city of any of the officers or employees embraced within the provisions of this section as above amended, but not embraced within the provisions thereof prior to the above amendment, by an ordinance effective January 1, 1954, are hereby authorized, ratified and confirmed, and said ordinance shall have the same force and effect as if this section had become effective on January 1, 1954.

In addition to the foregoing powers the council is hereby authorized to make the necessary appropriation for supplemental payments to retired city employees or to other persons retired under a city pension system. Such payments are in addition to their regular retirement benefits. The amount, manner and terms and conditions of payment shall be as the council may prescribe. In so doing, the council may create or designate classes of the foregoing persons and may distinguish with respect to the amount of payment or otherwise between such classes. No person or class of persons receiving such supplemental payment shall have any vested interest in the same beyond the fiscal year in which the appropriation for such payment is made.
(Acts 1950, Ch. 72; Acts 1954, Ch. 72; Acts 1966, Ch. 160; Acts 1970, Ch. 484; Acts 1995, Ch. 164, § 1; Acts 2000, Ch. 950, § 1)

Sec. 144. [Repealed by Acts 1976, Ch. 599.]

NORFOLK PORT AND INDUSTRIAL AUTHORITY

Sec. 144(a). Establishment; power to sue, plead, contract, etc.

There is hereby created in the City of Norfolk a political subdivision of the Commonwealth, with such public and corporate powers as are hereinafter set forth, to be known as the "Norfolk Airport Authority." Such Authority may sue and be sued, plead and be impleaded, and shall have the power and authority to contract and be contracted with and to exercise and discharge all the powers and duties imposed and conferred upon it, as hereinafter provided.
(Acts 1948, Ch. 463; Acts 1960, Ch. 408; Acts 1988, Ch. 519, § 1; Acts. 2007, Ch. 193, § 1)

Sec. 144(b). How governed; board of port commissioners.

(1) Such authority shall be governed by a board of not less than seven nor more than nine commissioners, one-third of whom may be from areas

outside of the City of Norfolk, who shall be known as commissioners, and who shall be appointed by the Council of the City of Norfolk, and who shall be residents of the City of Norfolk at the time of their appointment and during the term of their office except as herein provided. All of the powers and duties conferred upon such authority shall be exercised through said board of commissioners.

(2) All members shall be appointed for terms of four years. Any vacancy shall be filled by appointment by the Council for the unexpired term. Each commissioner shall continue, however, to hold office until his successor has been appointed and qualified. Each commissioner, before entering upon the duties of his office, shall take and subscribe the oath provided by the Norfolk Charter of 1918 for city officers, and a certificate of the same shall be filed with the city clerk.

(3) Immediately after their appointment such commissioners shall enter upon the performance of their duties. Said commissioners shall annually elect one of its members as chairman and another as vice-chairman, and shall also elect annually a secretary and a treasurer, each of whom may or may not be one of the said commissioners. The positions of secretary and treasurer may be held by the same person. A majority of the commissioners shall constitute a quorum for the transaction of business. The board of commissioners shall make rules and regulations for its own government and procedure and shall hold such special meetings as it may deem necessary.

(4) The commissioners shall receive no salaries but shall be entitled to reimbursement for necessary traveling and other expenses incurred while engaged in the performance of their duties.

(5) Any of said commissioners may be removed from office by the Council of the City of Norfolk for malfeasance, misfeasance, incompetence or gross neglect of official duty, but a commissioner may be removed only after he shall have been given a copy of the charges against him at least ten days prior to the hearing thereon before the Council and had an opportunity to be heard in person and by counsel. In event of the removal of any commissioner a record of the proceedings, together with the charges and findings thereon, shall be filed in the office of the city clerk.
(Acts 1948, Ch. 463; Acts 1980, Ch. 42, § 1; Acts 1988, Ch. 519, § 1; Acts 2007, Ch. 193, § 1)

Sec. 144(c). Powers and duties.

Such Authority shall have the following powers:

(1) To adopt and use a corporate seal, and to alter the same at its pleasure.

(2) To acquire, hold and dispose of such personal property as may be necessary for its purposes.

(3) To acquire by purchase, lease, gift, devise, condemnation or otherwise, property, real and personal, or such riparian and other rights, easements, or estate or interest therein as may be necessary for its purposes, and to hold, improve, sell, lease, mortgage, pledge or otherwise dispose of the same or any portion thereof or interest therein, whenever it shall become expedient to do so; provided, however, that the Authority shall have the power of condemnation only within the corporate limits of the City of Norfolk, unless agreed to by the governing body or bodies of the locality or localities so affected and provided further, that the Authority may exercise its power of condemnation only in furtherance of one or more of its public purposes and any property so acquired may be improved, sold, leased, mortgaged, pledged or otherwise disposed of only after a determination by the Authority that such improvement, sale, lease, mortgage, pledge or disposition will be consistent with and in furtherance of such public purposes or after a determination by the Authority that such property is no longer needed for such public purposes.

(4) To acquire, lease, construct or maintain and operate, landings, wharves, docks and piers, commodity elevators, and the approaches to and appurtenances thereof, tracks, spurs, crossings, switchings, terminals, warehouses and terminal facili-

ties of every kind and description necessary or useful in the transportation and storage of goods, wares and merchandise, to perform any and all services at said facilities in connection with the receipt, delivery, shipment and transfer in transit, weighing, marking, tagging, ventilating, fumigating, refrigerating, icing, storing and handling of goods, wares and merchandise, to prescribe and collect charges from vessels coming into or using any landings, wharves, docks, piers, and commodity elevators operated and maintained by said Authority and from persons using any of the other facilities of the Authority, and to lease any and all of such facilities or any concessions properly incident thereto to any person, firm or corporation for the maintenance and operation of any and all of such facilities on such terms and conditions as it may deem proper.

(5) To acquire, purchase, construct, lease, operate, maintain and undertake any bus, railroad or airline terminal facility and to make charges for the use thereof.

Before the powers set forth in this paragraph are exercised by the Authority prior approval of the council shall be first obtained.

(6) For the purpose of encouraging and promoting industry and manufacturing; the development of trade by inducing manufacturing, industrial, governmental, educational, commercial and retail enterprises to locate in or remain in the City of Norfolk; the using of the natural resources and advantages of the City of Norfolk and the Commonwealth; the development and increase of the commerce of the City of Norfolk and the Commonwealth; the promotion of the safety, welfare, education, convenience and prosperity of the inhabitants of the City of Norfolk and the Commonwealth; and to carry out all other purposes of the Authority, the Authority shall have the power: 1) to acquire by purchase, exchange, gift, lease or otherwise (including condemnation subject to the limitations set forth in § 144(c)(c) [§ 144(c)(3)], as amended), and to improve, maintain, equip and furnish one or more facilities including all real and personal properties and any interest or estate therein which the Authority may deem necessary to accomplish said purposes and regardless of whether or not any of such facilities shall then be in existence; 2) to lease to others any or all of its facilities and to charge and collect rent therefor and to terminate any such lease upon the failure of lessee to comply with any of the obligations thereof, and to include in any such lease, if desired, a provision that the lessee thereof shall have options to renew such lease or to purchase any or all of the leased facilities, or that upon payment of all of the indebtedness of the Authority it may lease or convey any or all of its facilities to the lessee thereof, with or without consideration; 3) to sell, exchange, donate, and convey any or all of its properties whenever its Board of Commissioners shall find any such action to be in furtherance of the purposes for which the Authority was established; and, 4) as security for the payment of the principal of and interest on any bonds, notes, or other evidences of debt so issued and any agreements made in connection therewith, to mortgage and pledge any or all of its facilities or any part or parts thereof, whether then owned or thereafter acquired, and to pledge the revenues therefrom or from any part thereof.

The term "facility" or "facilities" used in this section and in other sections enumerating the powers of the Authority shall mean any or all industrial, manufacturing, commercial, retail, governmental, education or other facilities described herein and located within or without or partially within or without the City of Norfolk now existing or hereafter acquired or constructed by the Authority pursuant to its powers, together with any or all buildings, improvements, additions, extensions, replacements, appurtenances, lands,

rights, interests and estates in land including interest and estates in land acquired by mortgage, deed of trust or otherwise, water rights, franchises, machinery, equipment, furnishings, landscaping, utilities, approaches, roadways and other facilities necessary or desirable in connection therewith or incidental thereto, acquired or constructed by the Authority. This section shall be liberally construed.

(7) To establish, construct, acquire, purchase, lease, maintain and operate any airport and air navigational facilities now or hereafter owned by the Authority or the City of Norfolk with the same powers and authority thereover that said city may have or as provided by law, subject, however, to the provisions of § 144(d), as amended, with respect to the operation and maintenance of any airport and air navigational facility now or hereafter owned by the City of Norfolk.

(8) To make capital improvements on any airport and air navigational facility, any port terminal facility described in § 144(c)(d) [§ 144(c)(4)], as amended, and on any other facility and public utility now or hereafter owned or leased by the City of Norfolk and transferred to said Authority to operate and maintain, or title to which is transferred to said Authority, with the same powers to issue its bonds therefor as it has for its other purposes, subject, however, to the approval of the council of the City of Norfolk.

(9) To foster and stimulate the commerce of the Port of Virginia and the shipment of freight through such port and to investigate and handle matters pertaining to all transportation rate structures affecting the commerce of the port.

(10) To establish, acquire, lease, maintain and operate, within the corporate limits of the city, a public transportation system, when and as authorized by the council of the City of Norfolk.

To extend the operation and maintenance of such transportation system in territory adjoining the City of Norfolk when and as authorized so to do by the governing body of the political subdivision in which extended and as otherwise provided by law.

(11) To establish, acquire, lease, maintain and operate such other public utilities and facilities as may be required of said Authority by the council of the City of Norfolk and as may be otherwise authorized by law.

(12) To establish, acquire, lease, maintain and operate places for the parking or storage of vehicles by the public; to operate and maintain such places; to authorize or permit others to use, operate or maintain such places upon such terms and conditions as it may prescribe; to charge or authorize the charging of compensation for the parking or storage of vehicles at or in such places; and to accept from others donations of money or other property, or the right to use such property, to aid, in whole or in part, in the acquisition, maintenance and operation of such places. Before the powers set forth in this paragraph are exercised by the Authority prior approval of the council shall be first obtained.

(13) To fix and charge tolls, fees and other charges for the use of, or for services rendered by, any of the facilities it is authorized to establish, construct, acquire, lease, maintain and operate.

(14) To appoint and employ such officers, agents and employees as may be necessary to carry out the purposes of said Authority, to fix their compensation and to prescribe their duties.

(i) To exercise full law-enforcement powers upon all property owned, operated, managed, leased or maintained by the Authority and to establish and maintain a police department; and to appoint and employ police officers to enforce the laws of the Commonwealth and the ordinances of the Cities of Norfolk and Virginia Beach, whichever may be applicable.

The Authority, its police force and its police officers shall have all the powers vested in localities, police forces, and its police officers under Chapter 17 of Title 15.2, Chapter 11 of Title 16.1, Title 18.2, Title 19.2 and Title 46.2 of the Code of Virginia as those titles may be amended from time to time. The police department and police officers shall have jurisdiction to enforce the applicable laws (aa) upon all property owned, operated, managed, leased or maintained by the Authority; (bb) upon the following areas in the City of Norfolk through concurrent jurisdiction with the police officers of the city:

1. All of Departures Boulevard.
2. All of Arrivals Boulevard.
3. All of Terminal Road.
4. All of Motel Lane.
5. All of Entrance Road.
6. All of Exit Road.
7. All of International Road.
8. Norview Avenue, from its intersection and Azalea Garden Road, east to Arrivals Boulevard, including the Norview Avenue bridge.
9. Robin Hood Road, from its intersection with Military Highway, east to International Road.
10. Miller Store Road, from its intersection with Robin Hood Road, west to Gurley Street.
11. All of Gurley Street, Purdy Court, Dorothy Court, and Emma Court.
12. Miller Store Road, from its intersection with Robin Hood Road, east to Burton Station Road.
13. All property between the streets listed above and the Airport perimeter; and (cc) upon the following areas in the City of Virginia Beach through concurrent jurisdiction with the police officers of the city: within one mile of the Airport.

A local governing body may petition the appropriate circuit court to reduce or eliminate the concurrent jurisdiction granted in this section.

Such police officers appointed by the Authority may issue summons to appear, or arrest on view or on information without warrant as permitted by law, within the jurisdiction of this Commonwealth, and conduct before the courts of competent jurisdiction of the Cities of Norfolk or Virginia Beach, any person violating, within or upon the airport or other property under the control of the Authority, any law of this Commonwealth or any ordinance of the City of Norfolk or the City of Virginia Beach.

For the purposes of enforcing such laws and ordinances the court or courts having jurisdiction for the trial of criminal offenses in the Cities of Norfolk or Virginia Beach wherein the offense was committed shall have jurisdiction to try a person charged with violating any such law, whether statute or ordinance, and any fine imposed for violation of an ordinance shall be paid into the general fund of the City of Norfolk or the City of Virginia Beach, depending on which city shall have jurisdiction of the offense committed.

(ii) To make and enforce all rules, resolutions, and regulations necessary or expedient for the purpose of carrying into effect the powers conferred by this charter or by any general law concerning all property owned, operated, leased, managed or maintained by the Norfolk Airport Authority, and to provide suitable penalties for the violation of such rules, resolutions, and regulations, or any of them, by fine not exceeding

one thousand dollars or confinement in jail not exceeding twelve months, either or both.

(15) To do all other acts and things which may be reasonably necessary and convenient to carry out the purposes and powers given herein.

The powers conferred upon the Authority by this section except the powers conferred by clauses 7, 8, 9 and 10 of this section shall be exercised solely within the corporate limits of the City of Norfolk; provided further that rentals and charges for any and all facilities constructed and/or operated pursuant to subdivisions (f) and (g) shall, as near as possible, be at commercial rates for like facilities or services, and include a sum equivalent to real estate taxes at current rates on such property.

Whenever in this act approval of the council of the City of Norfolk is required to enable the Authority to exercise any power herein granted it, such approval shall be only by a formal ordinance.

(Acts 1948, Ch. 463; Acts 1954, Ch. 564; Acts 1956, Ch. 391; Acts 1958, Ch. 131; Acts 1960, Ch. 408; Acts 1964, Ch. 287; Acts 1968, Ch. 196; Acts 1970, Ch. 484; Acts 1972, Ch. 760, § 1; Acts 1976, Ch. 599; Acts 1978, Ch. 186, § 1; Acts 2000, Ch. 950, § 1; Acts 2007, ch. 193, § 1)

Sec. 144(d). Transfer of city's facilities.

The council of the City of Norfolk is hereby authorized and empowered to transfer to said Authority the operation and maintenance of such of the above or other facilities as are now or may be hereafter owned by the City of Norfolk, on such terms and conditions as said council may prescribe. Nothing herein contained shall be construed as authorizing such Authority to maintain and operate such facilities now or hereafter owned by the City of Norfolk unless and until the operation thereof has been transferred by said council.

The council of the City of Norfolk is also hereby authorized and empowered to transfer the operation and maintenance and all rights, title and interest of the City of Norfolk to the above facilities as are now or may be hereafter owned by the City of Norfolk to said Authority or to any other authority or body politic authorized by law to maintain, operate or own such facilities, on such terms and conditions as said council may prescribe, reserving to the City a reversionary interest in such facilities if the council so determines.

The council of the City of Norfolk is further authorized and empowered to acquire by gift, purchase, lease, condemnation or otherwise, from time to time, whether before or after it transfers all right, title and interest of such facility or facilities to said Authority or such other authority or body politic, additional lands or interest in lands necessary or desirable for the operation of said facility or facilities. If the council so determines, it may transfer all right, title and interest of such additional lands or interest in lands to said Authority or such other authority or body politic on such terms and conditions as said council may prescribe, reserving to the city a reversionary interest in such additional lands or interest in lands if the council so determines. The right of the city to acquire such additional lands or interest in lands shall be the same as it had prior to the transfer of the right, title and interest of such facility to said Authority or such other authority or body politic.

(Acts 1948, Ch. 463; Acts 1968, Ch. 196; Acts 1970, Ch. 484; Acts 2007, Ch. 193, § 1)

Sec. 144(e). Contributions by city.

The City of Norfolk is authorized and empowered to make such appropriations, to provide such funds, and to make such loans and charge interest thereon to said Authority for the operation of the said Authority and for said Authority to operate and maintain, including the making of capital improvements thereon, any public utility or facility it has the power to acquire, lease, maintain and operate either directly or by transfer by the City of Norfolk to the said Authority and for the general operation of said Authority in carrying out its functions and powers, as its council may deem proper.

(Acts 1948, Ch. 463; Acts 1968, Ch. 196; Acts 2007, Ch. 1 93, § 1)

Sec. 144(f). Bonds—Power to issue.

The Authority shall have the power to borrow money on either a short-term or a long-term basis and to issue from time to time its notes, bonds and other evidences of debt payable on such terms, conditions and provisions as in its discretion may be advisable, for any of its corporate purposes, including the payment or retirement of bonds, notes or other evidences of debt previously issued by it. The cost of carrying out its corporate purposes shall include discount on bonds, cost of issuance of bonds, engineering and inspection costs and legal expenses, costs of financial, professional and other estimates, advice, administrative, operating and other expenses of the Authority prior to and during acquisition or construction including the payment of interest on bonds during the period of construction and for not exceeding one year thereafter and also such provision or reserves for working capital, operating, maintenance or replacement expenses or for payment or security of principal of and interest on bonds during and after such acquisition or construction as the Commissioners of the Authority may determine, and also reimbursements to the city of Norfolk or to any other person or corporation on account of any moneys therefore expended for the purpose of the Authority. The Authority may issue such types of bonds as it may determine, including (without limiting the generality of the foregoing) bonds payable, both as to principal and interest:

(1) from its revenues generally;

(2) exclusively from the income and revenues of a particular "facility"; which term shall mean a particular building or structure or particular buildings or structures including all equipment, appurtenances and accessories necessary or appropriate for the operation of such facility; or

(3) exclusively from the income and revenues of certain designated facilities whether or not they are financed in whole or in part from the proceeds of such bonds. Any such bonds may be additionally secured by a pledge of any grant or contributions from the federal government, Commonwealth of Virginia, or City of Norfolk, or a pledge of any income or revenues of the Authority, or a mortgage, deed of trust, or other lien of any particular facility or facilities or other property of the Authority.

Except as to provisions of subsection (6) of section 144(c), the power to issue bonds shall not be exercised prior to July 1, 1950.

Whenever in this or other sections relating to the power of the Authority to issue its bond or bonds, the term "bond" or "bonds" is used, it shall be construed to mean and embrace its bonds, notes or other evidences of debt or any other obligations of said Authority.
(Acts 1948, Ch. 463; Acts 1968, Ch. 196; Acts 1970, Ch. 484; Acts 2007, Ch. 193, § 1)

Sec. 144(g). Same—Liability.

Neither the commissioners of the Authority nor any person executing the bonds shall be liable personally on the bonds by reason of the issuance thereof. The bonds and other obligations of the Authority (and such bonds and obligations shall so state on their face) shall not be a debt of the Commonwealth or any political subdivision thereof and neither the Commonwealth nor any political subdivision thereof nor the city of Norfolk shall be liable thereon, nor in any event shall such bonds or obligations be payable out of any funds or properties other than those of the Authority. The bonds shall not constitute indebtedness within the meaning of any debt limitation or restriction. Bonds of the Authority are declared to be issued for an essential public and governmental purpose and to be public instrumentalities.
(Acts 1948, Ch. 463; Acts 2007, ch. 193, § 1)

Sec. 144(h). Same—Provisions.

(1) Bonds of the Authority shall be authorized by resolutions adopted by the Board of Commissioners and may be issued in one or more series and shall bear such date or dates, mature at such time or times, bear interest at such rate or rates, may be sold at such price, be in such denomination or denominations, be in such form, either coupon or registered, carry such conversion or registration privileges, have such rank or priority, be executed in such manner, be payable in such medium of payment, at such place or places, and

be subject to such terms of redemption (with or without premium) as such resolution or its trust indenture or mortgage may provide. The bonds may be sold at public or private sale.

(2) Issuance by the Authority of one or more series of bonds for one or more purposes shall not preclude issuing other bonds in connection with the same facility or any other facility, as may be authorized by the provisions of the bond resolution, trust indenture or mortgage. Any bonds of the Authority at any time outstanding may from time to time be refunded by the Authority by the issuance of its refunding bonds in such amount as the Board of Commissioners may deem necessary.

(3) If the proceeds derived from a particular bond issue due to error of estimates or otherwise shall be less than the cost of the Authority facilities for which such bonds were issued, additional bonds may in like manner be issued to provide the amount of such deficit, and unless otherwise provided in the proceedings authorizing the issuance of the bonds of such issue or in the trust indenture securing the same, shall be deemed to be of the same issue and shall be entitled to payment from the same fund without preference or priority of the bonds of the first issue. If the proceeds of the bonds of any issue shall exceed such costs, the surplus may be deposited to the credit of the sinking fund for such bonds or may be applied to the payment of the cost of any additions, improvements or enlargements of the Authority facilities for which such bonds shall have been issued.

(4) Prior to the preparation of definitive bonds, the Authority may, under like restriction, issue interim receipts or temporary bonds, with or without coupons, exchangeable for definitive bonds when such bonds shall have been executed and are available for delivery. Bonds may be issued under the provisions of this section without obtaining the consent of any department, division, commission, board, bureau or agency of the Commonwealth, and without any other proceedings or the happening of any other conditions or things other than those proceedings, conditions or things which are specifically required by this section, provided, however, that nothing contained in this section shall be construed as affecting the powers or duties now conferred by law upon the State Corporation Commission.

(5) The bonds issued pursuant to this section shall be and are hereby declared to be legal and authorized investments for banks, savings banks, trust companies, building and loan associations, insurance companies, fiduciaries, trustees, guardians and for all public funds of the Commonwealth of Virginia or other political corporations or subdivisions of the Commonwealth. Such bonds shall be eligible to secure the deposit of any and all public funds of cities, towns, counties, school districts or other political corporations or subdivisions of the Commonwealth of Virginia, and such bonds shall be lawful and sufficient security for said deposits to the extent of their value when accompanied by all unmatured coupons appertaining thereto.
(Acts 1948, Ch. 463; Acts 1970, Ch. 484; Acts 2007, Ch. 193, § 1)

Sec. 144(i). Same—Validity.

In case any of the commissioners or officers of the Authority whose signatures appear on any bonds or coupons shall cease to be such commissioners or officers before the delivery of such bonds, such signatures shall, nevertheless, be valid and sufficient for all purposes, the same as if such commissioners or officers had remained in office until such delivery. Any provision of any law to the contrary notwithstanding, any bonds issued pursuant to this act shall be fully negotiable within the meaning and for all the purposes of Chapter 233 of the Code of Virginia.
(Acts 1948, Ch. 463; Acts 2007, ch. 193, § 1)

Sec. 144(j). Same—Powers of authority with respect to securing payment.

In order to secure the payment of such bonds or other obligations the Authority shall have power by provision or provisions included in any resolution authorizing such bonds or in any indenture made to secure their payment:

(1) To pledge all or any part of its gross or net rents, fees or revenues to which its right then exists or may thereafter come into existence.

(2) To mortgage all or any part of its real or personal property, then owned or thereafter acquired.

(3) To covenant against pledging all or any part of its rents, fees and revenues, or against mortgaging all or any part of its real or personal property, to which its right or title then exists or may thereafter come into existence or against permitting or suffering any lien on such revenues or property; to covenant with respect to limitations on its right to sell, lease or otherwise dispose of any facility or any part thereof; and to covenant as to what other, or additional debts or obligations may be incurred by it.

(4) To covenant as to the bonds to be issued and as to the issuance of such bonds in escrow or otherwise, and to the use and disposition of the proceeds thereof; to provide for the replacement of lost, destroyed or mutilated bonds; to covenant against extending the time for the payment of its bonds or interest therein; and to redeem the bonds, and to covenant for their redemption and to provide the terms and conditions thereof.

(5) To covenant as to the rents and fees to be charged in the operation of a facility or facilities, the amount to be raised each year or other period of time by rents, fees and other revenues, and as to the use and disposition to be made thereof; to create or to authorize the creation of special funds for moneys held for construction or operating costs, debt service, reserves, or other purposes, and to covenant, as to the use and disposition of the moneys held in such funds.

(6) To prescribe the procedure, if any, by which the terms of any contract with bondholders may be amended or abrogated, the amount of bonds the holders of which must consent thereto and the manner in which such consent may be given.

(7) To covenant as to the use of any or all of its real or personal property; and to covenant as to the maintenance of its real and personal property, the replacement thereof, the insurance to be carried thereon and the use and disposition of insurance moneys.

(8) To covenant as to the rights, liabilities, powers and duties arising upon the breach by it of any covenant, condition, or obligation; and to covenant and prescribe as to events of default and terms and conditions upon which any or all of its bonds or obligations shall become or may be declared due before maturity, and as to the terms and conditions upon which such declaration and its consequences may be waived.

(9) To vest in a trustee or trustees or the holders of bonds or any proportion of them the right to enforce the payment of the bonds or any covenant securing or relating to the bonds; to vest in a trustee or trustees the right, in the event of a default by said Authority, to take possession and use, operate and manage any facility or any part thereof, and to collect the rents and revenues arising therefrom and to dispose of such moneys in accordance with the agreement of the Authority with said trustee; or to appoint a receiver of any facility or part thereof to carry out such right, to provide for the powers and duties of a trustee or trustees or the holders of bonds or any proportion of them who may enforce any covenant or rights securing or relating to the bonds.

(10) To exercise all or any part or combination of the powers herein granted; to make covenants other than and in addition to the covenants herein expressly authorized, of like or different character; to make such covenants and to do any and all such acts and things as may be necessary or convenient or desirable in order to secure its bonds, or in the absolute discretion of said Authority, as will tend to make the bonds more marketable notwithstanding that such covenants, acts or things may not be enumerated herein.

(Acts 1948, Ch. 463; Acts 1960, Ch. 408; Acts 1970, Ch. 484; Acts 1978, Ch. 186, § 1; Acts 2007, Ch. 193, § 1)

Sec. 144(k). Rights of obligees.

An obligee of [the] Authority shall have the right in addition to all other rights which may be conferred on such obligee, subject only to any contractual restrictions binding upon such obligee;

(1) By mandamus, suit, action or proceeding at law or in equity to compel the Authority and the commissioners, officers, agents or employees thereof to perform each and every term, provision and covenant contained in any contract of the Authority with or for the benefit of such obligee, and to require the carrying out of any or all such covenants and agreements of the Authority and the fulfillment of all duties imposed upon the Authority by this chapter.

(2) By suit, action or proceedings in equity, to enjoin any acts or things which may be unlawful, or the violation of any of the rights of such obligee of the Authority.

(Acts 1948, Ch. 463; Acts 2007, Ch. 193, § 1)

Sec. 144(l). Revenues.

The Authority established under section 144(a) shall fix and revise from time to time the rents, fees and other charges to be paid by persons for the use of the various facilities of the Authority and for any other service furnished or provided by the Authority. Such rents, fees and charges shall be fixed so as to provide at least sufficient funds to pay the cost of maintaining, repairing and operating such facilities and the principal and interest of any bonds issued by the Authority or other debts contracted as the same shall become due and payable. A reserve may be accumulated and maintained out of the revenues of such Authority for extraordinary repairs and expenses and for such other purposes as may be provided in any resolution authorizing a bond issue or in any trust indenture securing such bonds. Subject to such provisions and restrictions as may be set forth in the resolution or in the trust indenture authorizing or securing any of the bonds or other obligations issued hereunder, such Authority shall have exclusive control of the revenues derived from any facility or facilities operated and controlled by it and the right to use such revenues in the exercise of its powers and duties set forth in this section. No individual, firm, association or corporation shall receive any profit or dividend from the revenues, earnings or other funds or assets of such Authority other than for debts contracted, for services rendered, for materials and supplies furnished and for other value actually received by the Authority.

(Acts 1948, Ch. 463; Acts 2007, Ch. 193, § 1)

Sec. 144(m). Aid from federal government.

In addition to the other powers conferred by this Act, such Authority shall have the power to borrow money and to accept contributions, grants, and other financial assistance from the federal government and other agencies and agency or instrumentality thereof for or in aid of the construction and equipment of its facilities or the retirement or refunding of its bonds. To these ends such Authority shall have the power to comply with such conditions and to execute such mortgages, trust indentures and agreements as may be necessary, convenient or desirable and not in conflict with any provision of the Norfolk Chapter [Charter] of 1918.

(Acts 1948, Ch. 463; Acts 2007, ch. 193, § 1)

Sec. 144(n). Consent of council prerequisite to use of land, streets, buildings, etc.

Nothing contained in any of the foregoing sections 144(a) to 144(m), inclusive, shall be deemed to authorize the Authority to occupy or use any land, streets, buildings, structures or other property of any kind, owned or used by the City of Norfolk, or any public improvement or facility maintained by the City for the use of its inhabitants, without first obtaining the consent of the council of the City.

(Acts 1948, Ch. 463; Acts 2007, Ch. 193, § 1)

Sec. 144(o). Separability of sections 144(a) to 144(m).

The powers granted and the duties imposed in any of the foregoing sections 144(a) to 144(m), inclusive, shall be construed to be independent and severable. If any one or more sections, subsections, sentences, or parts of any of sections

144(a) to 144(m), inclusive, shall for any reason be questioned in any court and shall be adjudged unconstitutional or invalid, such judgment shall not affect, impair or invalidate the remaining provisions thereof, but shall be confirmed in its operation to the specific provisions so held unconstitutional or invalid.
(Acts 1948, Ch. 463; Acts 2007, Ch. 193, § 1)

Sec. 144(p). Construction of powers conferred in sections 144(a) to 144(m).

The powers conferred by any of sections 144(a) to 144(m), inclusive, shall be in addition to and not in substitution for any powers conferred on the City of Norfolk or its Council by any other laws.
(Acts 1948, Ch. 463; Acts 2007, Ch. 193, § 1)

Sec. 144(q). [Reserved.]

Editor's note—Section 144(q) of the city's Charter was repealed by § 2 of Acts 2000, Ch. 950. Said section previously contained provisions pertaining to the annual budget of the Port Authority and was derived from Acts 1960, Ch. 408.

[SEPARABILITY; CITATION; EFFECTIVE DATE; ETC.]

Sec. 145. Partial invalidity or separability.

If any clause, sentence, paragraph or part of this act shall for any reason be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair or invalidate the remainder of said act, but shall be confined in its operations to the clause, sentence, paragraph or part thereof directly involved in the controversy in which such judgment shall have been rendered.

Sec. 146. Citation of act.

This act may for all purposes be referred to or cited as the Norfolk Charter of nineteen hundred and eighteen.

Sec. 147. When Charter takes effect; repeal of previous Charter, etc.

It being necessary to hold a municipal election in said city for the election of councilmen on the second Tuesday in June, nineteen hundred and eighteen, an emergency is hereby declared to exist, and by reason thereof this Charter shall, for the purpose of nominating and electing councilmen and authorizing the council to employ a city manager as provided herein, be in effect from and after the date of its passage. For all other purposes said Charter shall take effect on the first day of September, nineteen hundred and eighteen, from and after which date the existing Charter of said city, approved March fourteen, nineteen hundred and six, and the several acts amendatory thereof approved respectively March twelve, nineteen hundred and eight, March fourteen, nineteen hundred and eight, March seven, nineteen hundred and twelve, March thirteen, nineteen hundred and twelve, March thirteen, nineteen hundred and fourteen, March seventeen, nineteen hundred and fourteen, March twenty-four, nineteen hundred and fourteen, March twenty-five, nineteen hundred and fourteen, March twenty-five, nineteen hundred and fourteen, February five, nineteen hundred and fifteen, March four, nineteen hundred and sixteen, March eleven, nineteen hundred and sixteen, March sixteen, nineteen hundred and sixteen, March seventeen, nineteen hundred and sixteen, March twenty, nineteen hundred and sixteen, March twenty, nineteen hundred and sixteen, and March twenty, nineteen hundred and sixteen, and all other acts and parts of acts inconsistent with this Charter so far as they relate to the City of Norfolk shall be repealed.

[The next page is 121]

CHARTER COMPARATIVE TABLE

Year	Chapter	Section	Disposition
1918	34	1—147	1—147
1919	68		2
1926	289		13
			71
1932	93		86
1936	283		63
1942	99		86(a)
1944	309		58
1946	98		2(a)
1948	34		2(b)
	233		136(a)
	353		69(a)
	463		144(a)—144(c), 144(e)—144(p)
1950	72		143(a)
	78		126
	93		60
	107		74
	428		5, 7, 14, 15, 27, 52
	430		63
	436		2(c), 85, 86
	488		88(a)
1952	18		68
	21		64
	239		12, 66(a), 129
1954	72		13, 143(a)
			Rpld 115
	564		144(c)
1956	100		8
	115		2(e), (f), 7, 67, 73, 74(a), 75(a), 77, 112
	124		86(b), (c)
	295		2(d)
	339		32, 33, 35
	391		144(c)
1958	115		14, 71, 80
	131		144(c)

Year	Chapter	Section	Disposition
1960	408		144(a), 144(c), 144(j), 144(q)
1962	120		11(b)
	459		4(a)
1964	23		86
	24		12
	62		136(a)
	287		144(c)
1966	50		15
	51		14
	52		58
	74		16
	160		143(a)
	188		12
1968	117		19, Rpld 20
	174		67
	196		144(c), 144(e), 144(f)
	219		88(b)
1970	484		8, 63, 82, 143(a), 144(c), 144(f), 144(h), 144(j)
1972	706	1	5, 15, 35, 40, 72, 80, 85, 86
	760	1	144(c)
1974	11		74, 81
1975	127		10
1976	599		10, 11, 74, 75, 79, 112, 114.1, 144(c), Rpld 11(a), 55, 56, 84, 87(a), 90—97, 101—103, 106—108, 127, 128, 135, 144
1977	42	1	63, 114
1978	80	1	63, 70, 80, 114.1
	186	1	144(j)

Year	Chapter	Section		Disposition
1980	42	1		144(b)
1982	289	1		2, 7, 10, 13, 14, 16, 114, 126, 132, 133
1983	587	1		7, 86, 88(a)
		2	Rpld	85
1988	519	1		12, 86, 114.1, 144(a), 144(b)
1992	261	1		5—7, 18, 19, 22, 24—28, 130
			Added	3.1
		2	Rpld	3
1995	164	1		12
				143(a)
1997	535	1		12
1999	479	1		11, 49, 88(a)
	525	1		11, 49, 88(a)
2000	950	1		2, 2(e)
			Added	42.1
				65, 66
				70—72
				77, 78
				82
				129
				143(a)
				143(c)
		2	Rpld	144(q)
2003	34	1		19
2004	52	1	Added	2(28)
				12, 114
2005	893	1	Rpld	3.1
			Added	3.2
			Rpld	5
			Added	5.1
			Rpld	6
			Added	6.1
			Rpld	7
			Added	7.1
				8
			Rpld	10
			Added	10.1
				12
			Rpld	14
			Added	14.1
			Rpld	17
			Added	17.1
				18
				19
				22

Year	Chapter	Section		Disposition
				24
				25
2006	152	1		12, 100
2007	193	1		144(a)—144(p)
2008	337			114
2010	34	1		2(23)
2014 (Res. No. 1,572)	235, 683	1		12
				60,
				63, 64,
				114
2018	314	1		10.1
				16
				62
2021	371	1		44
				133
		2	Rpld	61
2022	288	1		12
				18, 19
2024 (Res. No. 1,929)	—	1(Att. A)		62, 63, 64, 114
2025	373	1		62, 63, 64, 114
2026 (Res. No. 1,962)	316, 317	1		2

CODE OF THE CITY

Chapter 1

GENERAL PROVISIONS

§ 1-1. How Code designated and cited.
§ 1-2. Rules of construction and definitions.
§ 1-3. Catchlines of sections.
§ 1-4. Provisions of Code considered as continuations of existing ordinances.
§ 1-5. Miscellaneous ordinances not affected by Code.
§ 1-6. Code does not affect prior offenses, rights, etc.
§ 1-7. Effect of new ordinances on former ordinances.
§ 1-8. Supplementation of Code.
§ 1-9. Copies of Code and supplements to be available for public inspection.
§ 1-10. Sale of copies of Code and ordinances; free distribution thereof.
§ 1-11. Classification of and penalties for violations; continuing violations.
§ 1-12. Separability of parts of Code.

Sec. 1-1. How Code designated and cited.

The ordinances embraced in this and the following chapters and sections shall constitute and be designated the "Code of the City of Norfolk, Virginia, 1979," and may be so cited. Said Code may also be cited as the "Norfolk City Code, 1979".

Charter reference—Codification of ordinances, § 16 (note).

State law reference—Authority of city to codify and recodify its ordinances, Code of Virginia, § 15.1-37.3.

Sec. 1-2. Rules of construction and definitions.

(a) *Generally.* In the construction of this Code and of all ordinances of the city, the rules and definitions set out in this section shall apply and be observed, unless such construction would be inconsistent with the manifest intent of the council, or unless the context clearly requires otherwise.

(b) *And, or.* The word "and" shall be read as "or" and the word "or" as "and," where the sense requires it.

(c) *Charter.* The word "Charter" shall mean the Norfolk Charter of 1918, as amended from time to time.

(d) *City.* The words "city", "the city" and "this city" shall be construed as if the words "of Norfolk, Virginia" followed them.

(e) *Code.* Whenever the term "Code" or "this Code" is used without further qualification, it shall mean the Code of the City of Norfolk, Virginia, 1979, as designated in section 1-1. Whenever reference is made to chapters or sections by number only, and without further qualification, the reference shall apply to the appropriate chapter or section of this Code.

(f) *Computation of time.* Whenever a notice is required to be given, or an act to be done, a certain length of time before any proceeding shall be had, the day on which such notice is given, or such act is done, shall be counted in computing the time, but the day on which such proceeding is to be had shall not be counted.

(g) *Council.* Wherever the term "council" or "city council" is used, it shall be construed to mean the council of the City of Norfolk, Virginia.

(h) *Gender.* A word importing the masculine gender only shall extend and be applied to females and to firms, partnerships and corporations, as well as to males.

(i) *Number.* A word importing the singular number only may extend and be applied to several persons or things as well as to one person or thing; and a word importing the plural number only may extend and be applied to one person or thing, as well as to several persons or things.

(j) *Oath.* The word "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath.

(k) *Officers, boards, etc.* Whenever reference is made to a particular officer, department, board, commission or other agency, such reference shall be construed as if followed by the words "of the City of Norfolk, Virginia."

Any reference to any specific officer shall be deemed to include his duly authorized deputy, agent or representative.

(l) *Person.* The word "person" may extend and be applied to associations, firms, partnerships and bodies politic and corporate as well as to individuals.

(m) *Preceding, following.* The words "preceding" and "following" mean next before and next after, respectively.

(n) *State* or *Commonwealth.* The word "state" or "commonwealth" shall be construed as if the words "of Virginia" followed it.

(o) *State Code.* References to the "State Code" or "Code of Virginia" shall mean the Code of Virginia, 1950, as amended.

(p) *Street.* The word "street" shall include streets, avenues, boulevards, highways, roads, alleys, lanes, viaducts, bridges and the approaches thereto and all other public

thoroughfares in the city, and shall mean the entire width thereof between abutting property lines. It shall be construed to include a sidewalk or footpath.

(q) *Swear; sworn.* The words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed" in all cases in which, by law, an affirmation may be substituted for an oath.

(r) *Written; in writing.* The words "written" or "in writing" shall be construed to include any representation of words, letters or figures, whether by printing or otherwise. (Code 1958, § 1-2)

State law reference—Similar definitions and rules of construction applicable to state law, Code of Virginia, § 1-13.3 et seq.

Sec. 1-3. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted. (Code 1958, § 1-4)

State law reference—Similar provisions as to sections of state code, Code of Virginia, § 1-13.9.

Sec. 1-4. Provisions of Code considered as continuations of existing ordinances.

The provisions appearing in this Code, so far as they are the same as the Code of the City of Norfolk, Virginia, 1958, and all ordinances adopted subsequent to such Code and included herein, shall be considered as continuations thereof and not as new enactments.

Sec. 1-5. Miscellaneous ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall affect:

(1) Any ordinance promising or guaranteeing the payment of money by or for the city or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness or any contract or obligation assumed by the city;

(2) Any ordinance granting any franchise or right;

(3) Any ordinance appropriating funds, levying or imposing taxes or relating to an annual budget;

(4) Any ordinance relating to salaries of city officers and employees or to compensation or pay plans or classification plans for such officers or employees;

(5) Any ordinance authorizing, providing for or otherwise relating to any public improvement;

(6) Ordinance No. 24,504, being the zoning ordinance set out in Appendix A of this Code, or any amendment thereto, including amendments to the zoning map and ordinances zoning or rezoning specific property;

(7) Any ordinance regulating or otherwise relating to the subdivision of land;

(8) Any ordinance adopted for purposes which have been consummated; or

(9) Any ordinance which is temporary, although general in effect, or special, although permanent in effect;

and all such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code.

Sec. 1-6. Code does not affect prior offenses, rights, etc.

Nothing in this Code or the ordinance adopting this Code shall affect any offense or act committed or done, or any penalty or forfeiture incurred, or any contract or right established or accruing, or any prosecution, suit or proceeding pending or any judgment

rendered, on or before the effective date of this Code.

Sec. 1-7. Effect of new ordinances on former ordinances.

No new ordinance shall be construed to repeal a former ordinance as to any offense committed against the former ordinance, or as to any act done, any penalty, forfeiture or punishment incurred, or any right accrued, or claim arising under the former ordinance, or in any way whatsoever to affect any such offense or act so committed or done, or any penalty, forfeiture or punishment so incurred, or any right accrued, or claim arising before the new ordinance takes effect, save only that the proceedings thereafter had shall conform, so far as practicable, to the ordinance in force at the time of such proceedings. (Code 1958, § 1-10)

State law reference—Similar provisions applicable to state statutes, Code of Virginia, § 1-16.

Sec. 1-8. Supplementation of Code.

(a) By contract or by municipal personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city council. A supplement to the Code shall include all substantive permanent and general parts of ordinances adopted during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been replaced shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections —to—" (inserting section numbers to indicate the sections of the Code which embody the substantive sections to the ordinance incorporated into the Code); and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

State law reference—Authority to supplement Code, Code of Virginia, § 15.1-37.3.

Sec. 1-9. Copies of Code and supplements to be available for public inspection.

At least three (3) copies of this Code and every supplement thereto shall be kept in the office of the city clerk and shall there be available for public inspection, during normal business hours.

State law reference—Similar provisions, Code of Virginia, § 15.1-37.3.

Sec. 1-10. Sale of copies of Code and ordinances; free distribution thereof.

Except as otherwise provided, the city clerk shall sell copies of this Code and supplements thereto and copies of other codes and copies of ordinances at reasonable prices which do not exceed the cost

of such codes and ordinances and the costs of handling the same, which prices shall be published annually by the city clerk, by posting in his office and mailing to the council. The city clerk shall provide, without charge, copies of such codes and copies of such ordinances to officials of the city who require the same and to such public agencies as, in the city clerk's opinion, should receive free copies. (Code 1958, § 2-6.1; Ord. No. 29, 796, § 1-1-16-79)

Sec. 1-11. Classification of and penalties for violations; continuing violations.

(a) Whenever in this Code or any other ordinance of the city or any rule or regulation promulgated by any officer or agency of the city, under authority duly vested in such officer or agency, it is provided that a violation of any provision thereof shall constitute a Class 1, 2, 3 or 4 misdemeanor, such violation shall be punished as follows:

(1) *Class 1 misdemeanor:* Confinement in jail for not more than twelve (12) months and a fine of not more than two thousand five hundred dollars ($2,500.00), either or both.

(2) *Class 2 misdemeanor:* Confinement in jail for not more than six (6) months and a fine of not more than one thousand dollars ($1,000.00), either or both.

(3) *Class 3 misdemeanor:* A fine of not more than five hundred dollars ($500.00).

(4) *Class 4 misdemeanor:* A fine of not more than two hundred fifty dollars ($250.00).

(b) Whenever in any provisions of this Code or in any other ordinance of the city or any rule or regulation promulgated by an officer or agency of the city, under authority duly vested in such officer or agency, any act is prohibited or is made or declared to be unlawful or an offense or misdemeanor, or the doing of any act is required, or the failure to do any act is declared to be unlawful or an offense or a misdemeanor, where no specific penalty is provided for the violation of such provision and such violation is not described as being of a particular class of misdemeanor, such violation shall constitute a Class 1 misdemeanor and be punished as prescribed in subsection (a)(1) above.

(c) Each day any violation of this Code or any other ordinance, rule or regulation referred to in this section shall continue shall constitute a separate offense, except where otherwise provided. (Code 1958, § 1-6; Ord. No. 34,667, § 1, 8-25-87; Ord. No. 36,110, § 1, 7-17-90)

Charter reference—Authority of city to provide and impose penalties for ordinance violations, § 2(e).

State law references—Classification of misdemeanors and punishment therefor, Code of Virginia, §§ 18.2-9, 18.2-11; authority of city to provide penalties for violation of ordinances, Code of Virginia, § 15.1-901; authority of court trying case, upon conviction, to require bond conditioned that the person convicted will not violate the ordinance for the breach of which he was convicted for a period of not more than one year, Code of Virginia, § 15.1-902; injunctive relief for continuing violations of ordinances, Code of Virginia, § 15.1-905.

Sec. 1-12. Separability of parts of Code.

If any part, section or subsection, sentence, clause or phrase of this Code is, for any reason, declared to be unconstitutional or invalid, such decision shall not affect the validity of the remaining portions of this Code. (Code 1958, § 1-3)

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Chapter 2

ADMINISTRATION*

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§ 2-1. City seals.
§ 2-2. City mace and replica.
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§ 2-16. Authority of city manager to grant use of city property in Norfolk and Isle of Wight counties and cities of Virginia Beach and Suffolk.
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Article I.5. Records Management

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§ 2-20. City records declared public property.
§ 2-21. Custody and preservation of the records of the council.
§ 2-22. Records management program established; duty of the city clerk.
§ 2-23. Responsibilities of department heads; records officers.
§ 2-24. Archives and records management division.
§ 2-25. City records committee; responsibilities.
§§ 2-26—2-32. Reserved.

Article II. Officers and Employees Generally

Division 1. Generally

§ 2-33. Absence or disability of city manager.

***Cross references—**Personnel system, Ch. 2.1; buildings and building regulations, Ch. 11.1; superintendent and other cemetery officers and employees to be special policemen, § 12-4; department and director of civic facilities, § 13-2 et seq.; civic facilities commission, § 13-25 et seq.; elections, Ch. 14.1; finance, Ch. 16; director of finance, § 16-25 et seq.; city auditor, § 16-58 et seq.; city treasurer, § 16-82 et seq.; commissioner of the revenue, § 16-115 et seq.; department of fire-rescue, § 17.1-1 et seq.; library board, § 23-24 et seq.; licenses and taxation, Ch. 24; planning department and director of planning, §§ 32-1, 32-2; planning commission, § 32-21 et seq.; architectural review board, § 32-61 et seq.; public arts commission, § 32-72.1; department of police, § 33-21 et seq.; procurement advisory committee, § 33.1-24; retirement system, Ch. 37.

§ 2-33.1. City manager to act as director of public safety.
§ 2-33.2. Liaison with public bodies.
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§ 2-125. Defense by city attorney of city council, officers and employees, and members of boards and commissions appointed by council; costs and expenses therefor.
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ARTICLE I. IN GENERAL

Sec. 2-1. City seals.

(a) There shall be two (2) seals of the city. One seal of the city shall be represented by a design formed within two (2) concentric circles, the outer circle having a diameter of two and one-eighth (2⅛) inches. The second seal of the city shall be represented by the same design formed within two (2) concentric circles, the outer circle having a diameter of one and five-eighths (1⅝) inches. Between the circles on both seals shall be the following legend:

"City of Norfolk, Virginia;
Town, 1682: Borough, 1736: City, 1845"

in Roman characters. Within the inner circle, on both seals, the design shall consist of a ship under full sail, typifying maritime commerce, beneath which shall be a field with plow and wheat sheaves, typifying agriculture. In the inner circle, on both seals, in small Roman characters, there shall appear the Latin motto "Crescas" and the legend "Et terra et mare divitae tuae."

(b) No other design or seals shall be used as the seals of the city, and no paper issued with municipal authority which requires the seal of the city shall be valid, unless one of the seals described in this section shall be affixed to the same.

(c) The city clerk shall be the keeper of the city seals.
(Code 1958, § 1-11; Ord. No. 33,379, § 1, 4-2-85)

Charter references—Authority of city to have corporate seal, § 1; city clerk to be keeper of the seal, § 126.

Sec. 2-2. City mace and replica.

(a) The city clerk is authorized to place the city mace, for safekeeping, at the Chrysler Museum in the city, where the same may remain on public exhibition in an enclosed glass case. The mace shall not be removed from such case or otherwise used without the authority of the city council.

(b) The city clerk shall have the care and custody of the replica of the city mace and shall maintain the same at such location as the council, by resolution, shall designate. The mace shall not otherwise be displayed without the authority of the council.
(Code 1958, § 1-12; Ord. No. 35,385, § 1, 1-31-89)

Sec. 2-3. City flower.

The crape myrtle is hereby designated as the official city flower and the city authorities and citizens of the city are hereby requested to care for and to encourage the planting and culture of the crape myrtle, as far as possible.
(Code 1958, § 1-13)

Sec. 2-4. Time and place of council meetings.

(a) The regular meetings of the council shall be held on Tuesdays. Another day of the week may only be substituted for a Tuesday by the affirmative vote of five (5) members of the council. In the event that another day is substituted for a Tuesday, the clerk of the council shall endeavor to cause notice of the change to be published in a paper of general circulation prior to the meeting day chosen to substitute for a Tuesday.

(b) The place for holding the voting portion of the meetings shall be the council chambers on the 11th floor of the City Hall Building.

(c) The formal, voting portion of the regular meetings to be held on the second and fourth Tuesdays of each month shall commence at 6:00 p.m. These meetings are intended for the conduct of voting and to hear from the public. These meetings may from time to time be referenced as voting meetings. Subject to the presiding officer's governance and the council's rules of procedure, the public may speak on non-agenda items at the conclusion of the formal agenda after each of these meetings. The place for holding voting meetings shall be the council chamber on the 11th floor in City Hall.

(d) The regular meetings on the third and fifth Tuesdays will be scheduled on an as-needed basis. Upon council's determination of a need to schedule a meeting on a third or fifth Tuesday,

the clerk of the council shall endeavor to cause notice thereof to be published in a newspaper of general circulation prior to the meeting day.

(e) In the event that regular meetings are to be moved to a neighborhood facility or otherwise, the clerk of the council shall endeavor to provide reasonable notice.

(Ord. No. 33,310, § 1, 2-12-86; Ord. No. 40,237, § 1, 2-27-01; Ord. No. 42,296, § 1, 6-6-06; Ord. No. 44,102, § 1, 1-11-11; Ord. No. 44,197, § 1, 4-5-11; Ord. No. 47,108, § 1, 1-9-18; Ord. No. 49,299, § 1, 8-29-23)

Charter reference—Council meetings, § 12.

Cross reference—Disruption of council meeting, § 29-11.

Sec. 2-5. Franchises to be printed before presentation to council.

Every proposed franchise asked for from the council shall be presented in printed form at the expense of the petitioner, and a copy of the same provided for each member of the council at the meeting when such franchise is so presented, and no request for a franchise shall be considered as having been presented to the council until so printed.

(Code 1958, § 17)

Cross reference—Franchises not affected by Code or ordinance adopting Code, § 1-5.

Sec. 2-6. Expense of publication of ordinances or resolutions granting rights or privileges.

(a) Whenever any ordinance or resolution granting any right or privilege to any corporation, receiver or private person named therein shall be published in the newspapers of the city, in the manner prescribed by law, the expense of such publication shall be borne entirely by such corporation, receiver or private person, who shall be deemed to have assumed such expense by the acceptance of the provisions of such ordinance or resolution.

(b) Any city officer or other person violating the provisions of this section shall pay to the city the cost of such publication.

(Code 1958, § 1-8)

Sec. 2-7. Signing and sealing of deeds, contracts, etc.

All deeds, leases, contracts, conveyances and instruments of whatsoever nature or description, except bonds, notes or other obligations issued under the provisions of section 86 of the Charter, authorized to be made or entered into by the city, unless otherwise specifically provided by the council, shall be signed by either the city manager, a deputy city manager, a city officer designated in writing by the city manager to act as a deputy city manager for a specified period; and the city attorney when the instrument relates to the employment of counsel for the city, expert witnesses or consultants in matters related to actual or potential litigation, the director of public works when the instrument is a contract for public works, by the director of utilities when the instrument is a contract for utility work, and attested by the city clerk, and such deeds, leases, contracts, conveyances and instruments, when so signed, shall be taken as and for the true act of the city; provided that nothing herein contained shall apply to the conveyance of lands sold for delinquent taxes, required to be made and executed by the Charter, or by ordinance or resolution of the council. Notwithstanding the foregoing, for the purchase of goods in an amount not exceeding one hundred thousand dollars ($100,000.00) or the procurement of services in an amount not exceeding twenty-five thousand dollars ($25,000.00), the purchasing agent may issue a purchase order using a form prepared by the city attorney, without following the requirements set forth in this section. Deeds, leases, contracts, conveyances, purchase orders and instruments of whatsoever nature or description, except bonds, notes or other obligations issued under the provisions of section 86 of the Charter may be executed by electronic means.

(Code 1958, § 2-76; Ord. No. 30,811, § 1, 10-21-80; Ord. No. 32,439, § 1, 7-12-83; Ord. No. 33,011, § 1, 7-17-84; Ord. No. 35,595, § 1, 6-27-89; Ord. No. 35,727, § 1, 9-12-89; Ord. No. 36,166, § 1, 8-21-90; Ord. No. 36,272, § 1, 11-27-90; Ord. No. 47,279, § 1, 6-26-18; Ord. No. 47,667, § 1, 6-11-19)

Cross reference—Directors of public utilities and public works authorized to make certain procurements without processing by the office of the purchasing agent, § 33.1-23.

Sec. 2-8. Power to sign certain procured contracts.

The chief procurement officer, the purchasing agent and the director of finance are authorized to execute contracts for good and services procured by the purchasing office if the total value of a contract is less than two million dollars ($2,000,000.00).

(Ord. No. 47,766, § 1, 9-10-19)

Editor's note—Prior to reenactment by Ord. No. 47,766, § 1, adopted Sept. 10, 2019, Section 2 of Ord. No. 33,095, adopted Sept. 11, 1984, repealed § 2-8, "Alteration or modification of contracts for work or improvements," as derived from Code 1958, § 2-76.1 and Ord. No. 32,439, § 1, adopted July 12. 1983.

Sec. 2-9. Form, signing and sealing of bonds, notes and other obligations.

Unless otherwise provided in the ordinance and resolution authorizing their issuance, all

bonds, notes or other obligations issued by the city under the provisions of section 86 of the Charter shall be issued in such form as the city manager shall adopt, and shall be signed by the president of the council, the city manager and the city treasurer, and the corporate seal of the city shall be affixed thereto and attested by the city clerk.
(Code 1958, § 2-77)

Sec. 2-10. City may accept liability insurance in lieu of indemnity bond.

Wherever by ordinance a bond is required to be given to save the city harmless, or to protect it in any manner from liability on account of any work or other operations in the city, a liability insurance policy covering such indemnity to the city, and issued by a company authorized to do business in this state, and approved by the city attorney, may be accepted in lieu of such bond.
(Code 1958, § 2-78)

Sec. 2-11. Reserved.

Editor's note—Ord. No. 33,095, § 2, adopted Sept. 11, 1984, repealed, § 2-11, "Bonds of contractors doing work for the city," as derived from § 2-79 of the 1958 Code.

Sec. 2-12. Procedure for sale of city owned real estate not needed for municipal purposes.

(a) Unless otherwise provided by the council, in the sale of city owned real estate not needed for municipal purposes, the following procedure shall be followed with respect to advertising for bids:

(1) Where the real estate has been appraised by a competent appraiser at the request of the city and the proposed purchaser offers the appraised price, regardless of the number of separate parcels of real estate and the aggregate sum involved, no advertisement for bids shall be necessary.

(2) Where the offer to purchase real estate is for five thousand dollars ($5,000.00) or less for one or more parcels and the real estate has not been appraised and, in the judgment of the city manager, should be sold for five thousand dollars ($5,000.00) or less, no advertisement for bids shall be necessary.

(3) Where the offer to purchase real estate is for more than five thousand dollars ($5,000.00) for one or more parcels and the real estate has not been appraised and, in the judgment of the city manager, should be sold for more than five thousand dollars ($5,000.00), advertisement for bids for the sale thereof is required.

(b) Notwithstanding the provisions of paragraphs (1) and (2) of subsection (a) above, the city real estate agent may, in his discretion, require the advertisement for bids for the sale of any property.

(c) No parcel of city owned real estate shall be sold or contracted to be sold without proper authority from the council.
(Code 1958, § 279.1)

Cross reference—Disposition of surplus property, § 33.1-28.

Sec. 2-13. Real estate commissions in connection with sale of city property.

(a) The payment to a licensed real estate broker for finding and delivering to the city a purchaser for property owned by the city, which the city is willing to sell, of real estate commissions at the following rates is hereby authorized:

(1) For any sale of one million dollars ($1,000,000.00) or less, five (5) percent of the first two hundred thousand dollars ($200,000.00), four (4) percent of the next three hundred thousand dollars ($300,000.00) and two (2) percent of the next five hundred thousand dollars ($500,000.00).

(2) For any sale exceeding one million dollars ($1,000,000.00), the commission shall be as agreed upon between the city and the broker.

(b) Such real estate commission shall only be paid to a licensed real estate broker when a transaction involving the sale of property owned by the city has been, in the judgment of the city, initiated as the result of the efforts of such

licensed real estate broker, settlement of such transaction has been concluded, and such licensed real estate broker is designated by the purchaser to be entitled to such commission.

(c) No commissions will be paid on the sale of city-owned property in the following instances:

(1) No commissions shall be paid on the sale of property in Norfolk Industrial Park or Norfolk Commerce Park to a person who owns land in said park at the time of such sale.

(2) No commissions shall be paid on property sold to a person when such property was previously leased from the city by the purchaser.

(3) No commissions shall be paid to a real estate broker which is a subsidiary or division of the person who is the purchaser of the property, except in instances where the parent company's ownership in the land and improvements to be built thereon constitutes less than fifty (50) percent of the total ownership.

(d) Except as noted in paragraph (3), above, no person affiliated with purchaser of property from the city shall be paid a commission. Two (2) persons shall be deemed affiliated with each other, if either of such persons, or any officer or employee of such persons or the spouse or any other relative of such person, officer or employee who resides in the same household with such person, officer or employee, has an ownership interest of five (5) percent or more in the other or receives an aggregate annual income, exclusive of dividend income and interest income, of five thousand dollars ($5,000.00) or more from the other.

(Code 1958, § 2-79.2; Ord. No. 33,076, § 1, 8-28-84)

Sec. 2-14. Temporary leasing of city property and leasing of space in public parking garages.

The city manager is authorized to negotiate for the rental of parcels of real estate owned by the city for which only transient or temporary tenants can be obtained; provided, that no lease for a longer period than six (6) months shall be so made; and provided further, that the city manager shall report to the council all such temporary leases promptly after they are consummated. In addition to such temporary leasing, the city manager is authorized to enter into leases or subleases for the rental of those portions of garages owned or leased by the city and designated for use other than parking; provided, that no such retail lease for a period longer than five (5) years shall be so made.

(Code 1958, § 2-81; Ord. No. 29,726, § 1, 11-21-78; Ord. No. 37,025, § 1, 10-13-92; Ord. No. 38,317, § 1, 3-26-96)

Sec. 2-15. Leases or permits to facilitate operation of city's ticketing services for public assembly facilities.

The city manager is authorized to negotiate leases or permits for property to facilitate the operation of the city's ticketing services for publicly owned public assembly facilities. Funds necessary for rents, which shall satisfy the requirements of section 73 of the Charter, may be provided, without further appropriation, by stated amounts contained in such leases or permits to be derived from the sale of such tickets for admissions or from funds previously appropriated to the Scope Promotional Fund.

(Ord. No. 29,726, § 1, 11-21-78)

Cross reference—Civil facilities, Ch. 13.

Sec. 2-16. Authority of city manager to grant use of city property in Norfolk and Isle of Wight counties and cities of Virginia Beach and Suffolk.

The city manager is authorized to use his discretion and allow the property in Norfolk, Isle of Wight counties and the cities of Virginia Beach and Suffolk owned by this city, to be occupied and used by persons satisfactory to him who will, in occupying and using such city property, keep the buildings on the property in repair, keep down the growth of weeds and generally act as caretakers of the property.

(Code 1958, § 2-80)

Sec. 2-17. Authorities, commissions, boards and committees; continuation of membership until successor appointed.

Notwithstanding any other provisions of this Code, in the absence of the appointment by the council of a person to any authority, commission, board or committee upon the expiration of a term of office, the person whose term of office expires shall serve on such authority, commission, board or committee until the council shall appoint a successor. The appointment of a successor shall be for the remainder of the term.
(Ord. No. 31,406, § 1, 10-27-81)

Editor's note—Ord. No. 31,406, § 1, adopted Oct. 27, 1980, added § 2-1.2 to the 1958 Code, which provisions the editor has designated as § 2-17 hereof.

Sec. 2-18. Operation of city government and city council during inclement weather and emergency conditions.

(a) Notwithstanding the provisions of any law to the contrary, when the city manager shall determine the existence of inclement weather conditions or other emergency or disaster conditions of such intensity or severity as to threaten or endanger the safety and/or welfare of the community, and that as a result all or a part of the city's buildings or facilities should be closed and/or all or a part of the city's operations should be suspended, in order to mitigate the impact of such conditions on city employees, city operations, and the public, the city manager is authorized to close such buildings or facilities, and to suspend such operations, and to determine which city employees shall be excused from duty, and which employees shall be required to continue to render services. The compensation of city employees in such circumstances shall be as provided in the regulations for the administration of the compensation plan of the city or by separate ordinance. The city manager is authorized to make and promulgate such rules and regulations, not inconsistent with this section, as may be necessary to carry out the policy stated herein.

(b) Each scheduled meeting of the city council, in addition to being a regular meeting, shall also serve as the date and time upon which the council will conduct all hearings and other matters that are carried over from an immediately prior, scheduled meeting that did not occur because it was continued due to hazardous weather or other conditions pursuant to the process set forth in section 15.2-1416 of Code of Virginia.
(Ord. No. 34,617, § 1, 7-14-87; Ord. No. 45,484, § 1, 3-18-14)

ARTICLE I.5. RECORDS MANAGEMENT*

Sec. 2-19. Definition of city records.

City records are defined as all written books, papers, letters, documents, photographs, tapes, microfiche, microfilm, photostats, sound recordings, maps, other documentary materials or information in any recording medium regardless of physical form or characteristics, including data processing devices and computers, made or received in pursuance of law or in connection with the transaction of public business by any office or department of the city.

Nonrecord materials, meaning reference books and exhibit materials made or acquired and preserved solely for reference use or exhibition purposes, extra copies of documents preserved only for convenience or reference, and stocks of publications shall not be included within the definition of city records.
(Ord. No. 35,044, § 1, 5-24-88)

Sec. 2-20. City records declared public property.

All city records as defined in section 2-19 are hereby declared to be the property of the City of Norfolk. No city official or employee has, by virtue of their position, any personal or property right to such records.

Pursuant to the Norfolk City Charter, section 132, any custodian of any city records shall, at the expiration of the term of office, appointment

*__Editor's note—__Ord. No. 35,044, § 1, adopted May 24, 1988, adding Article I.1 hereto, has been included as Article I.5 at the editor's discretion, for consistency with the numbering system used herein.

Cross references—Authority to obtain criminal history record information of applicants for city employment, § 2-134; public inspection of procurement records, § 33.1-9.

or employment, deliver to the city clerk all books, writings, letters, documents, public records, or other information recorded on any medium kept or received in the transaction of official business.
(Ord. No. 35,044§ 1, 5-24-88)

Sec. 2-21. Custody and preservation of the records of the council.

The city clerk shall retain the records of the council. The minutes of the meetings of the council shall be microfilmed for security purposes and the master microfilm copy shall be stored in the Virginia State Library.
(Ord. No. 35,044, § 1, 5-24-88)

Sec. 2-22. Records management program established; duty of the city clerk.

In addition to the duty set forth in section 2-21, it is hereby declared to be the duty of the City Clerk of the City of Norfolk to develop a comprehensive records management program establishing procedures for the management of all city records, as such records are defined in section 2-19, from their creation to their ultimate disposition to provide for the efficient and economical creation, distribution, maintenance, use, preservation and disposition of said records.
(Ord. No. 35,044, § 1, 5-24-88)

Sec. 2-23. Responsibilities of department heads; records officers.

It shall be the duty of all department heads to cooperate with the city clerk in implementing the provisions of the records management program. Nothing in this article shall be construed to compel the removal of records from the custody of the department head when such records are deemed necessary in the performance of statutory duties. Each department head shall designate from the staff personnel a records officer. The records officer shall report directly to the department head and shall be responsible for coordinating the records management program for their office or department. The records officer shall work with the archivist/records manager in ensuring that the provisions of this article are complied with by departmental or office personnel. The records officer shall monitor compliance with the terms of records retention and disposition schedules for departmental records.
(Ord. No. 35,044, § 1, 5-24-88)

Sec. 2-24. Archives and records management division.

There is hereby created in the office of the city clerk a division known as the archives and records management division which shall be responsible for the maintenance and management of city records as defined in section 2-19. The head of the division shall be the archivist records manager who shall be the deputy city clerk/records management, whose duties shall be such as may be prescribed by the city clerk or by ordinance. For purposes of the city's employee grievance procedure and disciplinary actions involving members of the classified service in such division, the city clerk shall execute the functions of a department head.
(Ord. No. 35,044, § 1, 5-24-88)

Sec. 2-25. City Records Committee; responsibilities.

The Norfolk City Records Committee is hereby created which shall be composed of nine (9) members as follows: the city clerk or deputy city clerk/records management who is the archivist/records manager; and the following eight (8) members or their designee: city attorney, city manager, director of finance, director of data processing, director of libraries, director of general services, Clerk of the Circuit Court of the City of Norfolk and Chief Judge of the General District Court of the City of Norfolk. It shall be the responsibility of the committee to advise the city clerk on matters relating to record management, to review completed record retention and disposition recommendations as to city records to ensure that they are in accord with administrative, fiscal, legal and historical guidelines and to review all requests for destruction of records prior to requesting clearance from the state archivist or the auditor of public accounts.
(Ord. No. 35,044, § 1, 5-24-88)

Secs. 2-26—2-32. Reserved.

ARTICLE II. OFFICERS AND EMPLOYEES GENERALLY*

DIVISION 1. GENERALLY

Sec. 2-33. Absence or disability of city manager.

Pursuant to the provisions of section 49 of the Charter, the deputy city manager, a properly qualified person, is hereby designated to perform the duties of the city manager during the absence or disability of the city manager. In the event such deputy is disabled or absent, then the deputy city manager senior in length of service with the city, followed by the deputy city manager next senior in length of service, properly qualified persons, are hereby designated to perform the duties of the city manager during the absence or disability of the city manager. In the event that there is no deputy city manager available, as set forth aforesaid, then the director of public works, a properly qualified person, shall perform the duties of the city manager during the absence or disability of the city manager.
(Code 1958, § 2-1.1; Ord. No. 32,458, § 1, 7-19-83; Ord. No. 38,980, § 1, 11-25-97; Ord. No. 47,279, § 1, 6-26-18)

Charter reference—City manager, § 49 et seq.

Sec. 2-33.1. City manager to act as director of public safety.

Until otherwise changed by the council, the city manager shall act as the director of public safety, and in such capacity shall perform all duties specified by the City Charter for such office.
(Ord. No. 31,711, § 1, 5-18-82)

Charter reference—General powers and duties of director of public safety, § 59.

Sec. 2-33.2. Liaison with public bodies.

(a) The city manager is hereby authorized to appoint members of his staff to liaison positions with various public bodies so as to become familiar with the current activities of said bodies on behalf of the city and report to the city council. Such staff members so appointed shall not be participating members of the public body nor shall they be entitled to vote.

(b) Members of council when designated by council may act as liaisons to various public bodies so as to become familiar with the current activities on behalf of the city and to report to the council. Such person so appointed shall not be a participating member of the public body.
(Ord. No. 34,962, § 1, 3-22-88)

Sec. 2-34. City clerk's deputies and assistants.

The city clerk elected as provided by section 11 of the Charter shall have one or more deputies and such number of assistants as may be provided for by ordinance.
(Code 1958, § 2-4)

Charter reference—Similar provisions, § 126.

Sec. 2-35. Reserved.

Editor's note—Section 2 of Ord. No. 33.095, adopted Sept. 11, 1984, repealed § 2-35, "Selection of architects and engineers," as derived from Code 1958, § 2-7.1.

Sec. 2-36. Composition of police-fire trial board.

Until otherwise provided by the council, the police-fire trial board prescribed by section 63 of the Charter, as amended, shall consist of three (3) members, to serve as such without compensation.
(Code 1958, § 2-8)

Cross references—Department of fire, § 17-27 et seq.; department of police, § 33-21 et seq.

Sec. 2-37. Employing relatives.

(a) The city manager is directed to ascertain and report to the city council the names of all employees of the city who may be related by blood or marriage, to the fourth degree, to the persons employing such employees, the retention of any such related person in the employ of the city to be subject at all times to the approval of the city manager.

*__Charter reference—__Civil service, § 110 et seq.
Cross reference—Retirement system, Ch. 37.

(b) The employment of any persons so related to the person employing them shall have the approval of the city manager before employment commences.

(c) The city manager is directed to report to the city council from time to time the names of all employees of the city designated in subsection (b) of this section.

(d) The provisions of this section shall not apply to any employee in the unclassified service, nor to any person whose appointment is required by the Charter to be made or confirmed by the city council.
(Code 1958, § 2-14)

Sec. 2-38. Bonds—Generally.

(a) It shall be the duty of the city manager to secure the issuance to the city of a bond or bonds, with corporate surety, covering all officers and employees of the city, except the officers set forth in subsection (c) of this section, in the maximum amount of ten thousand dollars ($10,000.00) for each such officer or employee, with the following respective excess coverage in addition to such ten thousand dollars ($10,000.00) for the following officers and employees.

(1) Cashier, division of water accounts: Forty thousand dollars ($40,000.00).

(2) Assistant cashier, division of water accounts: Fifteen thousand dollars ($15,000.00).

(b) Such bond or bonds shall be conditioned for the faithful performance of the duties of such officers and employees incident to their respective offices and positions and to indemnify the city against any and all pecuniary loss sustained as the result of any act or acts of any of such officers and employees; shall be in form satisfactory to the city attorney; and the surety thereon shall be a corporation or company approved by the city manager and authorized to do such business in the state.

(c) In addition to such bond as may be required by state law, the officers hereinafter named shall give bond, payable to the city, in the amounts set opposite their respective titles, with surety to be approved by the council, approved as to form by the city attorney, and conditioned as prescribed by law:

(1) City treasurer: Two hundred thousand dollars ($200,000.00).

(2) Commissioner of the revenue: Ten thousand dollars ($10,000.00).

(Code 1958, § 2-11)

Charter reference—Bonds of officers, § 134.

Cross references—Bond of director and other personnel in department of civic facilities, § 13-4; city treasurer, § 16-82 et seq.; commissioner of the revenue, § 16-115 et seq.

Sec. 2-39. Same—Payment of premiums.

The premiums on the bonds of all city officials and employees are to be paid from funds to the credit of the general insurance fund, upon vouchers properly approved.
(Code 1958, § 2-12)

Charter reference—Authority to provide that premiums on bonds be paid by city, § 134.

Sec. 2-40. Salaries.

Except where otherwise expressly provided by the Charter or by statute, the several officers and employees of the city shall be paid such salaries as the council shall, from time to time, authorize by annual appropriation ordinance or other ordinance in regard thereto, and at such periods as may be provided by ordinance or by regulation of the director of finance.
(Code 1958, § 2-9)

Charter reference—Council to fix salaries of officers and employees, § 4.

Cross reference—Ordinances prescribing compensation not affected by Code or ordinance adopting Code, § 1-5.

Sec. 2-41. Payroll procedure upon death of officer or employee.

Whenever any officer or employee, except a per diem employee, who is in service or on leave with pay dies during the bi-weekly pay period, their salary shall be paid to the qualified entity for the full bi-weekly period during which they died.
(Code 1958, § 2-22; Ord. No. 48,351, § 1, 4-13-21)

Sec. 2-42. Reimbursement for travel on city business by private transportation.

When reimbursement of city employees traveling on city business by private transportation is on a mileage basis, the rate of such reimbursement shall be at the rate established by Internal Revenue Service's standard mileage rate.
(Code 1958, § 2-9.1; Ord. No. 30,003, § 1, 7-3-79; Ord. No. 30,653, § 1, 6-17-80; Ord. No. 32,645, § 1, 11-15-83; Ord. No. 36,053, § 1, 6-12-90; Ord. No. 38,758, § 1, 5-20-97; Ord. No. 40,725, § 1, 5-21-02; Ord. No. 42,098, § 1, 11-29-05; Ord. No. 47,636, § 16, 5-14-19, eff. 7-1-19)

Sec. 2-42.1. Use of private vehicles by city employees on city business; insurance requirements; reimbursement for additional insurance costs.

No city employee shall use his or her personal motor vehicle for the performance of city business unless such use shall have first been approved annually by the employee's department head, and unless the employee has liability insurance in full force and effect with respect to such vehicle, with minimum policy limits as provided in Virginia Code section 46.1-504, and the risk of loss from collision or comprehensive damage shall be upon the employee. In the event an employee uses his or her personal vehicle for the performance of city business more than an average of fifty (50) percent of his or her scheduled work days, such insurance shall include coverage for use of the vehicle on city business, and upon the recommendation of the employee's department head, he or she shall be reimbursed for any actual additional costs of such insurance for such purpose in an amount not to exceed twenty-five dollars ($25.00) per annum.
(Ord. No. 30,204, § 1, 11-27-79)

Editor's note—Ord. No. 30,204, § 1, adopted Nov. 27, 1979, added § 2-9.2 to the 1958 Code. The editor has designated these provisions as § 2-42.1 hereof.

Sec. 2-43. Employee educational contracts.

(a) The city manager is hereby authorized to execute and implement any educational contract (including tuition assistance agreements under section 2-43.1 of this Code) which he may approve between the city and an employee of the city, whereby the city makes available, at the city's expense by use of funds appropriated for such purpose, a training program for such employee in an area of education related to the employment of the employee.

(b) Department heads are hereby authorized to execute tuition assistance agreements under section 2-43.1 of this Code.

(c) The city clerk is hereby directed to affix the city's seal and attest the same to any contract described in this section and executed by the city manager or a department head.
(Code 1958, § 2-15.1; Ord. No. 36,541, § 1, 8-27-91)

Sec. 2-43.1. Employee tuition assistance.

(a) The city manager is hereby authorized to administer a tuition assistance program for employees of the city, whereby members of the classified service of the city who have successfully completed their probationary period, members of the unclassified service who have completed six (6) months of continuous service and police cadets who have graduated from high school may be provided prepaid tuition assistance to support attendance at local accredited high schools, junior or community colleges, colleges, universities, and technical, vocational or trade schools, for special educational courses, when the courses taken are directly related to an employee's present job or a reasonable promotional objective. The city manager is authorized and directed to prescribe and promulgate administrative regulations necessary to implement this section, and setting forth the terms conditions and procedures by which tuition assistance is to be made, which regulations shall be consistent with this section.

(b) The availability of funds for tuition payments under this section shall be dependent upon an appropriation of funds by the council, and in no event shall any tuition reimbursements exceed the sum appropriated by the council for that purpose.
(Ord. No. 34,780, § 1, 11-10-87; Ord. No. 35,885, § 1, 2-13-90; Ord. No. 36,858, § 1, 5-26-92; Ord. No. 37,772, § 2, 9-27-94; Ord. No. 43,451, § 12, 5-19-09)

Sec. 2-44. Reports to city manager.

It shall be the duty of all officers, heads of all departments and all the commissions and other divisions of the city government to make to the city manager such reports as shall be called for by him.
(Code 1958, § 2-13)

Sec. 2-45. Reports by employees becoming incapacitated.

It shall be the duty of any employee of the city who becomes incapacitated to perform his usual services to the city to make report in regard thereto through the head of the department to which he is attached, such report to be forwarded to the city manager with such recommendations as the head of the department may deem proper.
(Code 1958, § 2-15)

Sec. 2-46. Standard workday.

(a) The standard workday for all members of the classified and unclassified service shall normally not exceed eight (8) hours in accordance with promulgated departmental work schedules; deviations from the standard workday may be approved by the city manager or designee(s) after review and approval for compliance with applicable employment law by the department of human resources.

(b) As used in this section, the term "firefighter" means any member of the department of fire-rescue whose primary and usual duties involve the suppression of fires and the rendering of emergency medical care.
(Code 1958, § 2-17; Ord. No. 33,497, § 1, 6-11-85; Ord. No. 36,380, § 1, 4-9-91; Ord. No. 37,391, § 1, 9-14-93; Ord. No. 38,677, § 1, 3-11-97; Ord. No. 38,849, § 1, 7-15-97; Ord. No. 42,676, § 12, 5-22-07; Ord. No. 44,741, § 11.1(a), 6-26-12, eff. 6-23-12)
Cross reference—Division of fire, § 17.1-18 et seq.

Sec. 2-47. Standard workweek.

(a) The standard workweek for all members of the classified and unclassified service, except firefighters, as defined in section 2-46, and except uniformed police officers and per diem employees, shall consist of five (5) consecutive work days, including designated holidays as provided in section 2-48. Deviations from the standard workweek shall be approved and published by the city manager or designee(s) after review and approval by the department of human resources and thereafter shall constitute the standard workweek for those employees.

(b) The standard workweek for firefighters, as defined in section 2-46, and uniformed police officers shall consist of the established work periods as designated in the departmental work schedules approved by the respective department heads.
(Code 1958, § 2-18; Ord. No. 38,677, § 1, 3-11-97; Ord. No. 44,741, § 11.1(a), 6-26-12, eff. 6-23-12)
Cross reference—Division of fire, § 17.1-18 et seq.

Sec. 2-48. Holidays.

(a) Except as hereinafter provided, all members of the classified and unclassified services of the city shall receive the following holidays off with pay, as well as any other holidays designated by the council:

(1) *January first*—New Year's Day.

(2) *Third Monday in January*—Birthday of Dr. Martin Luther King, Jr.

(3) *Third Monday in February*—Washington's Birthday.

(4) *Last Monday in May*—Memorial Day.

(5) *June nineteenth*—"Juneteenth Day" - celebrating the legal and practical end of human slavery within the United States.

(6) *July fourth*—Independence Day.

(7) *First Monday in September*—Labor Day.

(8) *The Tuesday following the first Monday in November*—Election Day, for the right of citizens of a free society to exercise the right to vote.

(9) *November eleventh*—Veteran's Day.

(10) *Fourth Thursday in November*—Thanksgiving Day.

(11) *Fourth Friday in November*—Day after Thanksgiving.

(12) *December twenty-fourth*—Christmas Eve.

(13) *December twenty-fifth*—Christmas Day.

(14) *Employee's birthday.* Subject to the provisions of subsection (c), this holiday may be taken on the employee's birthday; however, the employee's department head may authorize the leave day to be taken at any time during the calendar year in which the birthday falls. New hires may take the birthday holiday in the initial calendar year only if their birthday occurs on or after their hire date.

(15) *Diversity day.* One day of leave with pay (based on an employee's approved standard work schedule), on a day to be chosen during a calendar year by each individual employee, for all employees except fire-rescue employees on a twenty-four-hour shift schedule, who shall be granted twenty-four (24) hours of such leave. This day may be taken in half-day increments (based on an employee's approved standard work schedule). This day shall recognize the personal and religious diversity of the city's workforce. All such leave is to be taken at a time approved by the director or the director's designee(s) of the department concerned, consistent with the staffing and operational needs of the department.

(16) *Wellness days.* Ordinary city employees shall be entitled to two (2) days of wellness leave with pay (based on an employee's approved standard work schedule) each calendar year, which shall be taken in full day increments. Fire-rescue city employees on twenty-four-hour shift schedules shall be entitled to one day of wellness leave with pay (not two) each calendar year, consisting of two (2) twelve (12) hour blocks for a total of twenty-four (24) hours of such leave, which shall be taken in twelve (12) hour increments. Wellness leave shall be taken at a time approved by the director (or a designee thereof) of the department concerned, consistent with the staffing and operational needs of the department.

(b) If any holiday listed above shall be a Saturday, it shall be observed on the preceding day, and if any holiday listed above shall be a Sunday, it shall be observed on the day following; except that if Christmas Eve is on a Saturday or a Sunday, it shall be observed on the Friday before Christmas Day.

(c) In order to be eligible to receive holiday pay, a member of the classified or unclassified service must actually work the last scheduled working day before and the first scheduled working day after such holiday, or be on annual, sick or otherwise authorized leave with pay on such days.

When any employee's normal work schedule includes a Saturday or a Sunday, and a designated holiday falls on a scheduled weekend work day, the holiday shall be observed by those employees so affected on the actual work day on which it occurs, as opposed to the preceding Friday or the Monday thereafter, as observed by employees with no scheduled work days on weekends.

When any employee is not scheduled to work on a holiday, and is not scheduled to work on the day preceding a holiday which falls on a Saturday, or the day following a holiday which falls on a Sunday, such employee shall work his or her normal work schedule for the week the holiday is observed and shall be granted one (1) compensatory day off as a holiday. A compensatory day off granted in lieu of a holiday shall be equivalent in hours to the number of hours such class of employees would accrue as defined by section 2-48 for holiday leave accrual.

A compensatory day earned as specified by any section contained herein may only be used after the occurrence of the holiday.

[(d) Reserved.]

(e) In all cases where, in the opinion of the city manager, services are necessary on any of the above named holidays, the persons required to perform such services shall receive compensatory time off and/or monetary compensation as provided in the regulations for the administration of the compensation plan of the city.

(f) Firefighters and paramedic employees, as defined in section 2-46, shall be entitled to ten and four-tenths (10.4) hours' leave of absence, with pay, for each holiday. Paramedic employees as defined in section 2-46, shall be entitled to eight and four-tenths (8.4) hours of leave of absence, with pay, for each holiday.

(g) Pursuant to section 2.2-3008 of the Code of Virginia, 1950, as amended, and section 2.1-10 of the Code of the City of Norfolk, 1970, as amended, at the request of the city's constitutional officers, on the recommendation of the city manager, and with the approval of the council by ordinance, the city executed written agreements with the several individual constitutional officers to accept their employees into the city's personnel system for the limited purpose of allowing their employees to become eligible for certain paid holidays, provided by this section, otherwise only available to employees of the City of Norfolk. Notwithstanding any benefits ordinarily limited to city employment that may be extended to the employees of a constitutional officer pursuant to these agreements, such employees shall not be considered employees of the city for any reason. To the extent that the timing of taking any of these holidays is said to be at the discretion of a City of Norfolk department head, in the case of these non-city employees, that is at the discretion of the constitutional officer who employes them. The employees of the city's constitutional officers are eligible for the following paid city holidays set out above, and no others, pursuant to the authority stated above and executed agreements on file with city's department of human resources:

(1) Employee's birthday.

(2) Diversity day.

(3) Wellness days.

(h) Employees of the City of Norfolk appointed pursuant to section 114 of the City Charter, and permanently assigned to work for and under the supervision of the constitutional officers of the city or of the circuit court judges of the city, take the paid holidays that the employees of the constitutional officers take, including those authorized in subsection (g) above.

(Code 1958, § 2-19; Ord. No. 29,754, § 1, 12-12-78; Ord. No. 33,495, § 1, 6-11-85; Ord. No. 33,496, § 1, 6-11-85; Ord. No. 33,527, § 1, 6-25-85; Ord. No. 33,566, § 1, 7-16-85; Ord. No. 36,856, § 1, 5-26-92; Ord. No. 37,391, § 2, 9-14-93; Ord. No. 39,267, § 1, 8-18-98; Ord. No. 39,596, § 2, 5-18-99; Ord. No. 41,055, § 1, 6-3-03; Ord. No. 41,082, § 1, 7-1-03; Ord. No. 42,124, § 1, 12-20-05; Ord. No. 42,279, § 12, 5-16-06; Ord. No. 43,451, § 12, 5-19-09; Ord. No. 44,741, § 11.1(a), 6-26-12, eff. 6-23-12; Ord. No. 45,589, § 19(e), 6-10-14, eff. 1-1-15; Ord. No. 46,387, § 19, 5-17-16, eff. 7-1-16; Ord. No. 47,230, § 18, 5-22-18, eff. 7-1-18; Ord. No. 48,057, § 1, 6-23-20, eff. 6-19-20; Ord. No. 48,193, § 1, 10-27-20; Ord. No. 48,197, § 1, 10-27-20; Ord. No. 48,606, § 1, 12-14-21; Ord. No. 48,752, § 16, 5-10-22, eff. 7-1-22; Ord. No. 48,848, § 1, 7-12-22, eff. 7-1-22; Ord. No. 49,114, § 1, 3-14-23; Ord. No. 49,736, § 1, 9-24-24)

Sec. 2-49. Annual vacation/leave—Employees generally.

(a) *Definitions.* The following terms shall have the meaning attached to them in this subsection unless the context clearly indicates otherwise.

(1) *Constitutional officer.* The five (5) popularly elected constitutional officers of the city elected pursuant to Article VII, Section 4 of the Constitution of Virginia, as amended: Treasurer, Commissioner of the Revenue, Commonwealth Attorney, Sheriff, and Clerk of the Circuit Court.

(2) *Constitutional officer employee.* Those non-city employees appointed to their positions by the constitutional officers.

(3) *Council appointee.* Those city officers appointed to their positions directly by the city council pursuant to sections 10 or 11 of the Charter, but not including the city manager or city attorney.

(4) *Department head.* The heads of those city departments established in the City Charter by the General Assembly or in the City Code by the city council (as required by Charter).

(5) *Executive.* The chief deputy city manager, deputy city managers, chief deputy city attorneys, and deputy city attorneys.

(6) *Firefighters.* As defined in City Code section 2-46(b), as amended.

(7) *General employee.* All city employees, including those who work in the offices of and under the direct supervision of constitutional officers or the circuit court judges; but not including council appointees, the city manager, the city attorney, executives, department heads, or firefighters.

(b) *Annual leave accrual.* In all cases where an individual does not work a full month due to Leave Without Pay status, that individual shall be entitled to a proportionate period of leave based on the number of hours actually worked. Periods of leave without pay shall not be counted for the purpose of accumulation of annual leave.

All annual leave accrual shall be accumulated at a monthly rate equal to the yearly hourly accrual divided by twelve (12).

(1) *Accrual general employees.* All general employees, except firefighters, as defined in City Code section 2-46(b), including members of the classified and the unclassified service and members of neither service if authorized to accrue leave, who have been employed by the city:

(A) For less than five (5) years shall be entitled to ninety-six (96) hours' annual leave with pay each year.

(B) For five (5) years but less than ten (10) years, shall be entitled to one hundred twenty (120) hours' annual leave with pay each year.

(C) For ten (10) years but less than fifteen (15) years, shall be entitled to one hundred forty-four (144) hours of annual leave with pay each year.

(D) For fifteen (15) years but less than twenty (20) years, shall be entitled to one hundred sixty-eight (168) hours' annual leave with pay each year.

(E) For twenty (20) years but less than twenty-five (25) years, shall be entitled to one hundred ninety-two (192) hours' annual leave with pay each year.

(F) For at least twenty-five (25) years shall be entitled to two hundred sixteen (216) hours' annual leave with pay each year.

(2) *Accrual department heads, executives, council appointees, city manager, and city attorney.* Department heads, executives, council appointees, the city manager and the city attorney shall be entitled to accrue annual leave on the same schedule of years as general city employees, but at the following rates:

(A) For less than five (5) years: One hundred twenty (120) hours' annual leave with pay each year.

(B) For five (5) years but less than ten (10) years: One hundred forty-four (144) hours' annual leave with pay each year.

(C) For ten (10) years but less than fifteen (15) years: One hundred sixty-eight (168) hours' annual leave with pay each year.

(D) For fifteen (15) years but less than twenty (20) years: One hundred ninety two (192) hours' annual leave with pay each year.

(E) For twenty (20) years but less than twenty-five (25) years: Two hundred sixteen (216) hours' annual leave with pay each year.

(F) For at least twenty-five (25) years: Two hundred forty (240) hours' annual leave with pay each year.

(c) *Maximum caps on annual leave accrual.* All individuals with a right to accrue annual leave through the city's personnel leave policies shall have the right to forego all or part of such leave in any one or more years, subject to the cumulative maximums set out within this subsection. Annual leave in excess of the maximum work days may be accrued, but shall not be carried beyond December 31 of each year, and any such accrued leave in excess of the maximums shall be forfeited at the end of the first pay period in January of the following year.

(1) *Maximum general employees.* Those within this group may forego all or part of such leave in any one or more years, in which event the same may be cumulative to a maximum of fifty-eight (58) work days (four hundred sixty-four (464) hours) as of December 31 of each year.

(2) *Maximum department heads.* Those within this group may forego all or part of such leave in any one or more years, in which event the same may be cumulative to a maximum of seventy-five (75) work days (six hundred (600) hours) as of December 31 of each year.

(3) *Maximum executives and council appointees (except city manager and city*

attorney). Those within this group may forego all or part of such leave in any one or more years, in which event the same may be cumulative to a maximum of ninety (90) work days (seven hundred twenty (720) hours) as of December 31 of each year.

(4) *Maximum city manager and city attorney.* Those within this group may forego all or part of such leave in any one or more years, in which event the same may be cumulative to a maximum of one hundred (100) work days (eight hundred (800) hours) as of December 31 of each year.

(d) *Use of leave.* For those officers and employees whose use of such leave is subject to a superior officer's approval, the use of such leave, whether regular or cumulative, must be approved by the appropriate superior officer.

(e) *Constitutional officers and employees—Contracts to come under city personnel leave policies.*

(1) Pursuant to section 15.2-1605 of the Code of Virginia, 1950, as amended, any Constitutional officer may choose to forgo the annual leave provisions guaranteed by section 15.2-1605 and execute an agreement to bring his or her office under the personnel leave policies of the city. Upon approval of such an agreement by council by ordinance and its subsequent execution, that officer and his or her employees shall earn annual leave at the following rates, subject to the following caps:

(A) *Annual leave accrual—Constitutional officers and employees.*

(i) Constitutional officer employees shall earn annual leave at the same rate as general city employees.

(ii) Constitutional officers shall earn annual leave at the same rate as council appointees (other than the city manager and city attorney).

(B) *Maximum caps on annual leave accrual—Constitutional officers and employees.*

(i) Constitutional officer employees' accrual of annual leave shall be capped in the same amount as for general city employees.

(ii) Constitutional officers' accrual of annual leave shall be capped in the same amount as for council appointees (other than the city manager and city attorney).

(Code 1958, § 2-20; Ord. No. 33,591, § 1, 7-30-85; Ord. No. 36,632, § 1, 11-12-91; Ord. No. 36,857, § 1, 5-26-92; Ord. No. 37,150, § 1, 2-16-93; Ord. No. 40,739, § 1, 6-4-02; Ord. No. 41,163, § 1, 9-9-03; Ord. No. 41,447, § 1, 6-15-04; Ord. No. 42,676, § 12, 5-22-07; Ord. No. 44,741, § 11.1(a), 6-26-12, eff. 6-23-12; Ord. No. 48,260, § 1, 12-22-20, eff. 12-30-20)

Sec. 2-49.1. Annual vacation/leave—Firefighters.

(a) For the purpose of this section, the term "firefighter" shall have the meaning ascribed to it in section 2-46(b) of the City Code, as amended.

(b) General rules.

(1) In all cases where an individual does not work a full month due to Leave Without Pay status (LWOP), that individual shall be entitled to a proportionate period of leave based on the number of hours actually worked. Periods of leave without pay shall not be counted for the purpose of accumulation of annual leave.

(2) All annual leave accrual shall be accumulated at a monthly rate equal to the yearly hourly accrual divided by twelve (12).

(3) All such leave, shall be taken at a time to be designated by the chief of fire-rescue; provided, however, that for leave of absence of more than one hundred fifty-six (156) hours, the approval of the city manager shall be first obtained.

(c) Annual leave accrual—Firefighters subject to Fair Labor Standards Act exemption under 29 USC Section 207 of the United States Code, as amended.

(1) Firefighters who have been employed by the city for less than five (5) years shall be entitled to one hundred twenty-four and eight-tenths (124.8) hours' leave of absence, with pay, each year.

(2) Firefighters who have been employed by the city for five (5) years, but less than ten (10) years, shall be entitled to one hundred fifty-six (156) hours' leave of absence, with pay, each year.

(3) Firefighters who have been employed with the city for ten (10) years, but less than fifteen (15) years, shall be entitled to one hundred eighty-seven and two-tenths (187.2) hours of leave of absence, with pay, each year.

(4) Firefighters who have completed fifteen (15) years of service with the city, but less than twenty (20) years, shall be entitled to two hundred eighteen and four tenths (218.4) hours of leave of absence, with pay, each year.

(5) Firefighters who have completed twenty (20) years or more of employment with the city shall be entitled to two hundred forty-nine and six tenths (249.6) hours of leave of absence, with pay, each year.

(6) Firefighters who have completed at least twenty-five (25) years of employment with the city shall be entitled to two hundred eighty and eight tenths (280.8) hours of leave of absence, with pay, each year.

(d) Maximum cap on annual leave accrual—Firefighters subject to Fair Labor Standards Act exemption under 29 USC Section 207 of the United States Code, as amended.

Any firefighter shall have the right to forego all or part of such leave of absence in any one or more years, in which event the same may be cumulative to a maximum of six hundred three and two tenths (603.2) hours.

(e) Annual leave accrual and maximum caps—Other employees within the department of fire-rescue.

(1) All city employees not firefighters but working within the department of fire-rescue shall accrue annual leave at the rate of and subject to the cap upon that earned by a general employee under section 2-49 of this Code.

(2) All firefighters other than the chief not working an extended schedule pursuant to a claim of exemption from the ordinary overtime rules pursuant to 29 USC Section 207 of the United States Code, as amended, shall accrue annual leave at the rate of and subject to the cap upon that earned by a general employee under section 2-49 of the City Code, as amended.

(3) The chief of the department of fire-rescue, not working an extended schedule pursuant to a claim of exemption from the ordinary overtime rules pursuant to 29 USC Section 207, as amended, shall accrue annual leave at the rate of and subject to the cap upon that earned by a department head under section 2-49 of the City Code, as amended.

(Ord. No. 42,382, § 1, 8-29-06; Ord. No. 42,676, § 12, 5-22-07; Ord. No. 42,781, § 1, 7-24-07; Ord. No. 48,260, § 2, 12-22-20, eff. 12-30-20)

Sec. 2-50. Sick leave; absence because of sickness.

(a) All members of the classified and unclassified service, except employees in the department of fire-rescue assigned to twenty-one (21) day work cycles and work schedules of a minimum of one hundred fifty-six (156) hours during such cycles, shall be credited with one work day of sick leave with pay for each full month employed by the city, whether such employment occurs before or after the effective date of this section. Credit for such leave shall be computed by multiplying the employee's usual scheduled monthly work hours, based upon an average monthly work period of twenty-two (22) days, by .04545455. Fire-rescue employees assigned to twenty-one (21) day work cycles shall be credited with

twelve (12) hours of sick leave for each full month of service. In the event an employee does not work a full month, he or she shall be entitled to a proportionate period of leave, computed by multiplying the number of hours actually worked by .0532544. Periods of leave without pay shall not be counted for the purposes of accumulation of sick leave with pay. Such sick leave, if not used as hereinafter provided, may be cumulative without limit to any number of work days.

(b) When, any member of the classified or unclassified service is absent due to his own sickness, visits to licensed health care providers for examination or treatment, or the sickness or health care provider visits of immediate family members or immediate household members, he shall be compensated at his regular rate of pay for each work day absent, up to and including the total number of work days of sick leave previously accumulated as provided in (a) above. Sick leave used during work hours for visits to doctors, dentists and other licensed health care providers requires prior permission from an immediate supervisor. "Immediate family members," for purposes of this section, are defined as parents, spouses, children, siblings, and legal wards. Relatives by adoption and step relatives in the described relationships are also immediate family members. "Immediate household members" are defined, for the purposes of this section, to mean relatives, either by blood, adoption, or marriage, who permanently reside in the employee's primary residence. "Parents" are defined, for the purposes of this section, to include the natural or adoptive parents of an employee.

(c) All leave because of sickness shall be substantiated by a certificate from a physician if requested by the head of the department. Periods of leave without pay shall not be counted for the purpose of accumulation of sick leave with pay. All sickness resulting in absence in excess of three (3) consecutive work days shall be reported to the director of human resources.

(d) The sick leave bank authorized by this subsection shall continue for those employees entered before July 25, 2022, but no new members shall be added. The sick leave bank is a voluntary cooperative program by which employees who have accumulated no less than ten (10) sick leave days pursuant to this section, and newly hired employees who have accumulated one (1) day of sick leave credit pursuant to this section, within the first two (2) months after employment, may voluntarily, at their sole option, contribute sick leave credit to a "sick leave bank," and thereby become eligible, under specific circumstances and regulations, to be granted the use of additional sick leave from the aggregate voluntarily contributed by employees. This leave may only be used for the participating employee's illness. The city manager, with regard to the sick leave bank established previously, hereby is authorized and directed to prescribe regulations for the administration of such system, and may discontinue such program at any time. Under no circumstances shall the city incur any expense or make any contribution respecting leave accumulated in a "sick leave bank" or be responsible for the funding of any sick leave other than that earned by individual employees pursuant to this section. The city's undertaking regarding such program shall be strictly limited to the administration of the program.

(e) Pursuant to section 15.2-1605 of the Code of Virginia, 1950, as amended, any Constitutional officer may choose for their employees to forgo the sick leave provisions guaranteed by section 15.2-1605 and execute an agreement to bring them under the personnel leave policies of the City of Norfolk regarding sick leave except that the accumulated sick leave of such employees shall have no financial value and shall be forfeited upon termination of employment. Upon approval of such an agreement by council by ordinance and its subsequent execution by that constitutional officer, their employees shall accrue and accumulate sick leave at the same rate as employees of the City of Norfolk.

(Code 1958, § 2-16; Ord. No. 29,947, § 1, 5-29-79; Ord. No. 33,496, § 2, 6-11-85; Ord. No. 33,566, § 2, 7-16-85; Ord. No. 33,594, § 1, 7-30-85; Ord. No. 35,263, § 1, 10-11-88; Ord. No. 36,156, § 1, 7-31-90; Ord. No. 36,274, § 3, 11-27-90; Ord. No. 36,433, § 1, 5-21-91; Ord. No. 36,434, § 1, 5-21-91; Ord. No. 37,260, § 1, 5-18-93; Ord. No.

37,387, § 1, 8-31-93; Ord. No. 37,391, § 3, 9-14-93; Ord. No. 44,741, § 11.1(a), 6-26-12, eff. 6-23-12; Ord. No. 48,885, § 1, 8-23-22)

Sec. 2-50.1. Paid family leave.

(a) *In general.* All members of the classified and unclassified services of the city shall be eligible for paid family leave (hereinafter "PFL") upon the occurrence of a qualifying event not exceeding a total of six (6) workweeks or two hundred forty (240) hours (or 312 hours for sworn fire-rescue employees who work a 52-hour workweek). No employees shall be eligible for such leave more than one time within the 12-month period beginning with the occurrence of a qualifying event. When granted, PFL shall run concurrently with leave granted pursuant to the Federal Family and Medical Leave Act, statute and regulations, as amended (hereinafter "FMLA") and the city manager's Policy and Administrative Regulations Manual concerning FMLA, including but not limited to Policy 4.11, as amended (hereinafter "Policy 4.11").

All requests for PFL are subject to the conditions set out in this section and final approval by the department of human resources. PFL shall be granted to city employees regardless of race, ethnicity, religion, gender, gender identity, sexual orientation, marital status, or any other status protected by the laws of the United States or the Commonwealth of Virginia law, or the ordinances of the city council. PFL leave shall consist of PFL—Bonding leave and PFL—Family member leave.

(b) *PFL—Bonding leave.* PFL—Bonding leave may be used for parent-child bonding in relation to child birth, adoption or foster care placement events that are approved under the FMLA and Policy 4.11. PFL—Bonding leave shall only be granted for one of the following reasons:

(1) Bonding with a child, starting with the date of birth, where the city employee is the birthing parent, except that PFL cannot be taken during the same time period that the birthing employee is receiving any type of short-term disability or sick leave bank benefits following the birth of a child.

(2) Bonding with a child, starting with the date of birth, where the city employee is not the birthing parent but the birthing parent and child reside with the city employee and the birthing parent is the spouse through marriage or domestic partner of the city employee.

(3) Bonding with a child placed with the city employee as a result of adoption, or foster placement where the child is younger than age eighteen (18), starting with the date of adoption or foster care placement.

(c) *PFL—Family member leave.* PFL—Family member leave may be used to care for a qualifying immediate household member or family member with a serious health condition as defined in the FMLA and Policy 4.11. For the purposes of PFL—Family member leave, qualifying immediate family members and immediate household members are defined as:

(1) "Immediate family members" are city employees' parents (natural, adoptive or foster), spouses or domestic partners, children, siblings, and legal wards. City employees' relatives by adoption, step-relatives and foster families in the described relationships are also "immediate family members."

(2) "Immediate household members" are city employees' relatives, either by blood, adoption, or through a marriage or domestic partner, who are not "immediate family members" but permanently reside with city employees in their primary residence.

(d) *Employee eligibility—Initial conditions.* To be considered for any type of PFL, an eligible city employee must first be approved for FMLA leave and must have:

(1) Worked for the city for at least twelve (12) months; and

(2) Worked for the city at least one thousand two hundred fifty (1,250) hours over the past twelve (12) months.

(e) *Employee eligibility—Additional conditions.* In addition to any other conditions upon eligibility, to be eligible for any type of PFL, city employees must meet the following conditions:

(1) City employees must submit required documentation in accordance with the FMLA and Policy 4.11. When granted PFL it shall run concurrently with FMLA leave.

(2) An eligible city employee who is the birthing, non-birthing, adoptive, or foster parent of a child may use PFL—Bonding leave for the purposes of bonding with that child.

(3) An eligible city employee may use PFL—Family member leave for the purposes of assisting and responding to a qualifying family member with a serious illness or injury.

(4) An eligible city employee may not use any type of PFL benefits for his or her own health condition(s).

(5) When granted, PFL leave of any type must be taken within the 12-month period of the qualifying event. This 12-month period is measured the same as the 12-month period for qualifying absences under the FMLA and Policy 4.11.

(6) Requests for any type of PFL leave must be submitted and approved in the same manner as other types of leave, but in the case of PFL leave thirty (30) days' advance notice is required. The director of human resources may waive this deadline where unique circumstances prevent the employee from meeting it.

(7) A city employee may not be absent from work beyond twelve (12) weeks in total while utilizing any type of PFL leave in combination with any other type of leave.

(8) PFL leave may be used intermittently if requested and approved under the FMLA and Policy 4.11. If taken intermittently, such leave must be taken in full day increments up to a total of six (6) workweeks or two hundred forty (240) hours (three hundred twelve (312) hours for sworn fire-rescue employees who work a 52-hour workweek). If the employee requires additional leave once the 6-week PFL leave is exhausted, they must use their accrued leave.

(9) An eligible city employee may not use flexible or alternative work schedules beyond scheduled working hours to adjust PFL leave.

(10) An eligible city employee may not telework when on PFL leave.

(11) All types of PFL leave are provided with the continuation of group health insurance coverage under the same terms and conditions as if the employee had not taken leave.

(12) No type of PFL leave may accrue after a city employee's separation from employment. All previously granted PFL leave and PFL leave compensation ends upon a city employee's separation from employment. Upon a city employee's separation from employment, unused PFL leave is lost. It shall not be paid out in the form of terminal leave under section 2-54 of the City Code, as amended, nor shall it be counted as creditable service towards retirement under section 37-41 of the City Code, as amended, or any similar sections of the City Code.

(13) If both parents are employed by the city and meet all other eligibility criteria, each employee is separately entitled to up to six (6) weeks of paid PFL leave.

(f) *Notice and certification.*

(1) *Employee notice.*

a. A city employee seeking to use any type of PFL leave must provide thirty (30) days' advance notice of such leave, unless that deadline is waived by the director of human resources pursuant to other subsections of this section.

b. A city employee must provide such initial notice to his or her supervi-

sor and the department human resources, using forms provided by human resources.

c. Required PFL forms must be submitted to the department of human resources along with required FMLA leave forms for each qualifying event.

d. If the city employee is unable to provide thirty (30) days' notice, he or she must provide such notice as soon as is practical along with a request for a waiver, generally, either the same or next business day and must comply with their department's specific call-in procedures.

e. Absent unusual circumstances, a waiver from the director of human resources, city employees requesting any type of PFL leave must comply with all the city's procedural requirements for requesting leave.

(2) *Employer notice.* The city shall simultaneously notify the employee of its approval or disapproval of both the PFL leave request, and the underlying FMLA leave request that is the PFL leave request is conditioned on.

(Ord. No. 48,752, § 17, 5-10-22, eff. 7-1-22)

Sec. 2-51. Emergency leave.

When, in the opinion of the head of any department in which a member of the classified or unclassified service is assigned, an emergency exists and it is proper that an emergency leave of absence with pay be granted to such person, then this fact shall be reported to the city manager who shall, in his discretion, grant such leave of absence with pay; provided, however, that no emergency leave of absence with pay shall be granted to anyone having been employed by the city for less than six (6) months immediately preceding the date of such application for emergency leave; and further provided, that no emergency leave of absence with pay shall be for a period longer than one work day for each calendar month such person has been in the service of the city. Such emergency leaves of absence shall not be deducted from leave of absence accumulated in accordance with the provisions of section 2-49.

(Code 1958, § 2-20.1)

Sec. 2-52. Civil leave.

(a) Pursuant to section 18.2-465.1 of the Code of Virginia, 1950, as amended, no employee of the city who is summoned to serve on jury duty or summoned or subpoenaed to appear in any court of law or equity, except if a defendant in a criminal case, or who, having thus appeared, is required in writing by the court to appear at any future hearing, shall be discharged from city employment or have any adverse personnel action taken against him, and he shall not be required to use sick leave or annual leave, so long as he gives reasonable notice of such court appearance or summons. No city employee summoned to serve on jury duty shall be required to work on the calendar day of his service on a jury.

(b) Police officers required to appear in court under the circumstances of this section and when they are not working on a regular tour of duty shall be governed by the applicable provisions of the regulations for administration of the compensation plan of the city to the extent they are not inconsistent with subsection (a) above.

(c) Civil leave, not to exceed one (1) hour, may also be granted for the purpose of voting in any local, state or federal election, when it is established that normal working hours would otherwise prevent such activity.

(d) Any payment an employee receives from the courts or pursuant to law for service on a jury or attendance at court under the circumstances set out in subsection (a) above may be retained by the employee.

(Code 1958, § 2-20.3; Ord. No. 41,842, § 12B, 5-17-05)

Sec. 2-53. Reserved.

Editor's note—Ord. No. 39,596, § 1, adopted May 18, 1999, repealed § 2-53, which pertained to funeral leave and which derived from Code 1958, § 2-20.4; Ord. No. 29,824, adopted Feb. 29, 1979; Ord. No. 31,844, adopted July 20, 1982; and Ord. No. 34,035, adopted June 10, 1986.

Sec. 2-53.1. Bereavement leave.

(a) Members of the classified and unclassified service, and special project employees granted leave benefits by ordinance, shall be excused from work upon the death of a member of their immediate family, and shall be paid at their regular rate of pay for the period prescribed by this section.

(b) Eligible employees, other than department of fire-rescue employees on twenty-four-hour shift schedules, shall be granted three (3) working days of leave, based on the particular employee's standard work day, to be used at any time, at the employee's option, in whole or in part, within fourteen (14) calendar days after the death of the immediate family member. The standard work day for city employees is eight (8) hours; however, in some instances the city manager has changed that pursuant to her authority under section 2-46. Eligible department of fire-rescue employees on 24-hour shift schedules shall be granted forty-eight (48) hours of leave to be used at any time at the employee's option, within fourteen (14) calendar days after the death of the immediate family member. Any such leave desired to be used beyond fourteen (14) calendar days after the death of the immediate family member must be approved in the same manner as leave under section 2-49.

(c) For the purposes of this section, "immediate family member" shall be defined as parents, grandparents, spouse, children, grandchildren, sisters and brothers, father-in-law, mother-in-law, brother-in-law, sister-in-law, son-in-law, daughter-in-law, and any relative residing in the employee's home at the time of death. Relatives by adoption and step-relatives in the described relationships, for the purposes of this section, shall be treated as immediate family members.
(Ord. No. 39,560, § 3, 5-18-99; Ord. No. 40,571, § 1, 12-18-01; Ord. No. 42,676, § 12, 5-22-07)

Sec. 2-54. Terminal leave.

(a) Upon separation from the service of the city, all members of the classified and unclassified service, except firefighters, as defined in section 2-46, shall be granted compensation for terminal leave of absence in an amount equal to their pay for the number of days leave of absence accumulated in accordance with the provisions of section 2-49.

(b) Firefighters, as defined in section 2-46, upon separation from the service of the city, shall be granted compensation for terminal leave of absence in an amount equal to their pay for the number of hours of leave accumulated in accordance with the provisions of section 2-49.1.

(c) In addition to the compensation provided hereinabove in this section, members of the classified and unclassified service shall, upon their separation from the service from the city, receive payment for accrued compensatory time off to the extent required by the Fair Labor Standards Act.

(d) Employees terminating from city employment may take earned annual leave, up to the limits specified in the applicable compensation plan for annual leave carry forward, or compensatory leave as terminal leave.
(Code 1958, § 2-20.2; Ord. No. 36,449, § 1, 5-28-91; Ord. No. 42,676, § 12, 5-22-07; Ord. No. 44,741, § 11.1(a), 6-26-12, eff. 6-23-12)

Sec. 2-54.1. Administrative medical leave.

(a) Any employee of the city who is totally disabled from working by preventative medical treatment for a work-related exposure to an infectious disease or a potentially infectious disease, or an illness caused by vaccines or other inoculations required or approved by the city or physicians retained by the city, shall be entitled to leave with pay for the period of total disability certified by one or more physicians retained by the city, but in no event shall the period of liability for such leave extend beyond forty-five (45) calendar days from the date of initial preventative medical treatment or inoculation.

(b) In order for an employee to qualify for leave with pay under this section, the need for the preventative medical treatment or inoculation causing disability, the existence of the total disability, and its causation by the treatment or inoculation referred to above must be certified by one or more physicians retained by the city, or by one or more treating physicians, at the sole

option of the city. In the event of any dispute, the city shall have the right, in its sole discretion, to accept or reject the opinion of any physician.

(c) In order for an employee to qualify for leave under this section, the employee must not be eligible for benefits under the Virginia Workers Compensation Act.
(Ord. No. 39,892, § 1, 3-14-2000)

Sec. 2-54.2. Volunteer leave.

All regular, full-time (not temporary or part-time) city employees are granted four (4) hours of paid leave per calendar year for community service within the Norfolk Public School Division or in service to an established not-for-profit community organization within the City of Norfolk.

This leave must be approved in advance through normal departmental processes. The city manager shall designate eligible community organizations. Unused volunteer leave during each year will be forfeited.
(Ord. No. 44,741, § 11.1(a), 6-26-12, eff. 6-23-12; Ord. No. 47,758, § 1, 8-27-19; Ord. No. 49,221, § 16, 6-13-23, eff. 7-1-23)

Sec. 2-54.3. Administrative leave.

(a) The city manager or designee may authorize administrative leave, with pay, for all members of the classified and unclassified service for administratively justifiable reasons. Administrative leave may be provided for, but is not limited to, relocation, transition, recruitment and performance.

(b) Administrative leave must be taken within one year of being granted; however, the city manager or designee may authorize, in writing, an additional extension of up to six (6) months for taking such leave.

(c) Authorized but unused administrative leave will not be paid out upon separation of employment.
(Ord. No. 45,589, § 19(a), 6-10-14, eff. 7-1-14)

Sec. 2-54.4. Reserved.

Editor's note—Ord. No. 49,658, § 1, adopted July 9, 2024, repealed § 2-54.4, which pertained to contracts with constitutional officers; personnel system and derived from Ord. No. 48,954, § 1, adopted Oct. 11, 2022. The user's attention is directed to § 2.1-1.10.

Sec. 2-54.5. Dependent care assistance program.

(a) Pursuant to federal law, as amended, the City of Norfolk will provide a dollar-for-dollar match of up to two thousand five hundred dollars ($2,500.00) to those of its employees who participate through the city in the Federal Flexible Spending Assistance (FSA) - Dependent Care Assistance Program.

(b) The city's match shall be provided as required by Federal law to make it exempt from the participating city employees' income for tax purposes. The city's match shall not be such as to exceed the cap on such flexible spending accounts imposed by federal law when added to the employees' contribution.

(c) The program shall be administered consistent with all federal requirements. The city employee's contribution shall be made prior to the city's match, through monthly payroll withholdings.

(d) Pursuant to deadlines established by federal law, a participating city employee shall lose access to any funds remaining in their dependent care assistance program account after the deadline.
(Ord. No. 49,035, § 1, 12-13-22)

Sec. 2-55. Worker's compensation.

(a) When a city employee sustains an occupational injury or contracts an occupational disease which is determined to be compensable under the provisions of the Virginia Workers Compensation Act ("the Act"), such employee will be eligible to receive the statutory compensation and medical treatment provided for in the Act, and to such supplemental payments as are described below:

(1) *Worker's compensation wage payments.* Worker's compensation wage payments shall be paid to an employee in such amounts and upon such terms and conditions as provided for under the provisions of the Act. Such payments are

based upon two-thirds (2/3) of the employee's average weekly wage, as defined in the Act, and shall neither exceed the statutory maximum nor fall below the statutory minimum amount established within the Act. If the employee qualifies for and elects to receive a normal service, early service, ordinary disability or accidental disability retirement allowance under the provisions of Chapter 37 of this Code, such allowance shall be offset in accordance with section 37-77 thereof.

(2) *Supplemental payments.* Supplements to worker's compensation wage payments shall be limited to those supplements provided for under the provisions of the Act, and to the following supplements for which an employee receiving worker's compensation wage payments shall be eligible so long as the employee does not resign, retire, abandon or be suspended without pay from or discharged from city employment, and so long as the employee's worker's compensation wage payments are not terminated, suspended, abandoned, relinquished or lump-sum settled under the provisions of the Act:

(i) For a six-month period following the initial date from which the employee receives worker's compensation wage payments under the Act, the employee shall receive a weekly supplement amount equal to the difference between the employee's weekly worker's compensation wage payment and the employee's weekly net pay as determined under the compensation plan in effect on the date upon which said weekly supplement amount paid. The term "weekly net pay" is defined to mean the employee's weekly gross pay as determined under said compensa-

tion plan less federal tax, Social Security tax and state tax deductions required by applicable law.

(ii) Following said six-month period, the employee may elect, in writing, to use accrued compensatory time, sick leave, and/or annual leave to fund a continuation of said weekly supplement amount. Accrued compensatory time and leave benefits shall be charged off at the rate of one-third of a day for each full day that the employee continues to receive worker's compensation wage payments, or at such higher rate as is necessary to maintain the difference between the employee's worker's compensation wage payment and the employee's weekly net pay, until such compensatory time and accrued leave benefits are exhausted, at which time all supplement amounts shall cease to be paid to the employee.

(iii) A city employee who has sustained an occupational injury or contracted an occupational disease which is determined to be compensable under the provisions of the Act, but who, under the provisions of Virginia Code section 65.1-62, fails to qualify to receive worker's compensation wage payments for time missed from work as a result of said injury or disease during the first seven (7) calendar days following total incapacity therefrom, shall receive an amount equal to the employee's daily net pay, determined on a pro rata basis, for each day missed from work during said seven-day period. The term "daily net pay" is defined to mean the employee's daily gross pay as determined under the compensation plan in effect on the first date of such incapacity, less federal tax, social security tax and state tax deductions required by applicable law.

(3) *Medical treatment.* Medical treatment shall be provided to an employee to such extent and upon such terms and conditions as provided for under the provisions of the Act.

(b) The city manager, acting himself or through an authorized designee, shall have the authority and he is directed, in compliance with and subject to the provisions of the Act, to determine which employee applications for worker's compensation are compensable, and he is directed to authorize payment pursuant to such employee applications from funds appropriated therefor by the council.
(Ord. No. 34,835, § 1, 12-22-87)

Secs. 2-56—2-65. Reserved.

DIVISIONS 2—4. RESERVED*

Secs. 2-66—2-99. Reserved.

*__Editor's note—__Ord. No. 41,482, § 12A, adopted May 17, 2005, repealed Divs. 2—4. Division 2 pertained to employee relations and derived from Code 1958, §§ 2-2.1—2-2.4.

Division 3 pertained to temporary, substitute, trainee and special project employees and derived from Code 1958, § 2-13.1; Ord. No. 30,010, § 1, adopted July 10, 1979; Ord. No. 35,152, § 1, adopted July 5, 1988; Ord. No. 38,735, §§ 1, 2, adopted May 13, 1997; Ord. No. 39,421, § 1, adopted Jan. 12, 1999.

Division 4 pertained to part-time employees and derived from Code 1958, § 2-13.2; Ord. No. 35,317, § 1, adopted Nov. 29, 1988; Ord. No. 36,274, §§ 1, 2, adopted Nov. 27, 1990; Ord. No. 36,814, § 1, adopted May 12, 1992; Ord. No. 38,385, § 1, adopted May 21, 1996; Ord. No. 38,400, § 1, adopted May 28, 1996; and Ord. No. 39,421, § 2, adopted Jan. 12, 1999.

ARTICLE III. ADMINISTRATIVE DEPARTMENTS*

Sec. 2-100. Created.

The departments listed in this Article III are created pursuant to the provisions of section 52 of the Charter.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-101. Director as department head.

Except when otherwise designated, the head of each department shall be known as the director of the department. The director of each department is responsible for the overall administration of the affairs of the department. Directors shall perform such other duties as may be prescribed by the city manager or by the council.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-102. Departments with dedicated chapters.

Each of the following administrative departments is codified in a separate chapter:

Finance: Chapter 16.

Fire-rescue: Chapter 17.1.

Human resources: Chapter 2.1.

Community services board: Chapter 2.1.

Cultural facilities, arts and entertainment: Chapter 13.

Libraries: Chapter 23.

Parks and recreation; Chapter 30.

Planning: Chapter 32.

Police: Chapter 33.
(Ord. No. 48,503, § 7, 9-14-21)

*__Editor's note—__Ord. No. 48,322, § 1, adopted March 9, 2021, repealed Arts. II.1—XIX, §§ 2-115—2-611, which pertained to various departments and derived from Code 1958, §§ 2-23.1, 2-23.2, 2-23.4, 2-23.5—2-23.10-3, 2-23.12, 2-23.13, 2-24.1—2-24.5, 2-25.1—2-25.9, 2-26.1—2-26.12, 2-36—2-49, 2-51—2-55, 2-64, 2-65, 2-72—2-75, 2-98.1—2-98.4, 2-107—2-113, 2-116.1—2-116.5, 2-117—2-120, 25-1, 25-2, 25-4, 25-5, as amended. See the Code Comparative Table for complete derivation.
Additionally, §§ 2 and 3 of said ordinance enacted new Arts. III and IV, as set out herein.

Secs. 2-103—2-109. Reserved.

Sec. 2-110. Executive department.

An administrative department of the city is hereby created to be known as the executive department (city manager's office).
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 48,503, § 6, 9-14-21)

Sec. 2-111. Reserved.

__Editor's note—__Ord. No. 49,515, § 1, adopted March 12, 2024, repealed § 2-111, which pertained to department head and derived from Ord. No. 48,322, § 2, March 9, 2021.

Sec. 2-112. Responsibilities.

The executive department provides organizational leadership and management in accordance with policies and direction of the city council. It conducts policy analysis and process facilitation to improve the efficiency and effectiveness of government services and programs to the community. It staffs regional and local boards and commissions and responds to citizen and council concerns. It serves as the liaison between the city, other governmental entities and agencies at the state and federal level.
(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-113—2-119. Reserved.

Sec. 2-120. Department of law.

The city attorney shall give the whole of his time to the discharge of his duties as city attorney, except that any professional business which the city attorney, upon taking office, is under contract to perform on behalf of other persons may be completed.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-121. Assistants to city attorney.

The city attorney may appoint from time to time subject to confirmation by the council, such number of assistants as council may authorize, who shall have been admitted to practice in the court of the state. Said assistants to serve at the pleasure of the city attorney. The assistant city attorneys shall, so far as required by the city attorney, discharge and perform any of the duties

imposed upon the city attorney and, in the discharge of such duties, shall be under the direction and control of the city attorney and they shall give the whole of their time to the discharge of their duties as assistant city attorneys, except that any professional business which they are, when undertaking office, under contract to perform on behalf of other persons, may be completed.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-122. Duty of city attorney to keep docket of cases.

In addition to the duties with which the city attorney is charged in section 53 of the Charter, it shall be his duty to keep in his office a docket of all cases to which the city may be a party in any court of record, in which it is his duty to represent the city, in which docket shall be briefly entered all steps taken in such cases. Such docket shall be at all times open to the inspection of the city manager and the city council.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-123. Disposition of city money received by city attorney.

The city attorney shall pay to the city treasurer all money of the city received by him.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-124. Travel expenses for city attorney.

The city attorney shall be entitled to the necessary traveling expenses incurred by him in the performance of the duties of his office.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-125. Defense by city attorney of city council, officers and employees, and members of boards and commissions appointed by council; costs and expenses therefor.

(a) In accordance with the provisions of section 53 of the Charter and Code of Virginia, § 15.2-1520, the city, acting by and through the city attorney, shall defend any employee of the city, which term shall include the council, or any member thereof, or any officer or employee of the city, or any trustee or member of any board or commission appointed by the council in any civil legal proceeding instituted against them, including claims and litigation, when such proceeding arises out of and by virtue of any actions in furtherance of their duties undertaken during the term of office or employment thereof. The term "employee" shall also include any former employee, his estate or personal representative. For the purposes of this section, the term "officer of the city" shall also include persons serving as members of grievance panels convened pursuant to the city's employee grievance procedure, when a civil legal proceeding against them arises out of such service, regardless of the decision rendered by the panel.

(b) When such representation shall, in the judgment of the city attorney, be inappropriate under the code of professional responsibility for the city attorney to undertake, private legal representation shall be retained by the city attorney. When proceedings are instituted against a group or multiple groups of employees, the same private counsel may be retained to represent more than one employee or group.

(c) All judgments, claim settlements, costs and expenses of defense, including private counsel fees arising out of any such legal proceeding, shall be paid by the city from a fund established and maintained by the city therefor, provided such claim settlements, costs and expenses are authorized by the city attorney in the same manner as claims, litigation or legal proceedings involving the city. Such payments shall not be contingent upon the continued establishment or maintenance of such a fund.

(d) Payments shall only be made if the claim or claims resulted from actions which:

(1) Were done in good faith; and

(2) Were done in the reasonable belief that such actions were in furtherance of the official practices and policies of the city; and

(3) Were within the scope of authority of the person so acting; and

(4) Were within the course of employment of the person so acting; and

(5) Were not willful, malicious, or wanton.

(e) Payments shall not be made for punitive or exemplary damages, fines or penalties.

(f) Employee shall deliver process and a written request for defense to the city attorney and thereafter the city attorney shall take the necessary steps on behalf of the employee which in his judgment will avoid entry of a default judgement pending resolution of any question pertaining to the obligation to provide for a defense.

(g) Upon entry of a final judgment against an employee, or upon a settlement of the claim, the employee shall serve a copy of such judgment or settlement, personally or by certified or registered mail within thirty (30) days of the date of entry, or settlement, upon the city attorney; and if not inconsistent with the provisions of this section, the amount of such judgment or settlement, and all costs and expenses of the defense, including private counsel fees incurred, shall be paid by the city.

(h) The duty to defend or pay costs and expenses prescribed herein shall be conditioned upon:

(1) The prompt reporting by the employee of every accident and of every incident in which the employee is involved which may result in the assertion of a claim or suit; the prompt transmission by the employee of every claim or demand made relating to any such accident or incident; and the full cooperation of the employee in the investigation of every such accident and incident.

(2) The truthful reporting by the employee of all facts known to him or her about every such accident or incident.

(3) Delivery by the employee to the city attorney of a written request to provide for a defense together with the original or a copy of any summons, complaint, process, notice, demand or pleading within ten (10) days after he is served with such document, and

(4) The good faith cooperation of the employee, in the defense of any action or proceeding against the city, based upon the same act or omission, and in the prosecution of any appeal.

(5) The employee's delivery to the city attorney of a written request to provide for a defense as outlined in (h)(3) above, the employee's request for representation, and/or the employee's acceptance of representation under the provisions of this Code section shall constitute consent by the employee to the city's authority to resolve, by compromise settlement, authority which has been delegated to the city attorney, any action or proceeding for which representation is accepted, without any further consent or authorization of the employee.

(i) Amendments to or repeal of this section shall not affect either the duty to defend or to make payments as aforesaid, both of which shall be governed by this section as it is or was in effect at the time the alleged act or omission complained of occurred or allegedly occurred.

(j) All such litigation or proceeding shall be recorded as provided by this Code. The city attorney shall provide necessary information for and support programs of risk management instituted by the city manager.

(k) Determinations (1) whether the defense of a particular civil legal proceeding is required under this section, (2) whether payment is required or prohibited under this section, and (3) whether the employee has satisfied the requirements and conditions imposed upon him by this section will be made by the city attorney in his discretion. In any proceeding challenging a determination made by the city attorney under this section, the standard of review shall be for abuse of discretion.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-125.1. Defense of volunteers; costs and expenses thereof; indemnification.

(a) In accordance with Code of Virginia, § 15.2-1518, the city shall provide legal representation to city volunteers in any civil legal proceeding

which arises out of and by virtue of any actions undertaken in the performance of duties specifically assigned to them by authorized city officials or employees, and when legal representation is not available through a volunteer's private insurance, or other insurance providing coverage or defense, it being the specific intent of this section that any undertaking by the city to provide legal representation be conditioned on the unavailability of legal representation from any insurance covering a volunteer.

(b) When it is determined by the city attorney that a city volunteer is eligible for legal representation, private legal representation shall be retained for the volunteer by the city attorney. If a proceeding be instituted against more than one volunteer, the same private counsel may be retained to represent more than one volunteer. A volunteer, by accepting representation, consents to city's authority to resolve, by compromise settlement, authority which has been delegated to the city attorney, any action or proceeding for which representation is accepted, without any further consent or authorization of the volunteer.

(c) All judgments, claim settlements, costs and expenses of defense, including private counsel fees arising out of any such legal proceeding, to the extent not covered by a volunteer's private insurance, or other insurance providing coverage, shall be paid by the city from a fund established and maintained by the city therefor, provided such judgments, claim settlements, costs and expenses are authorized by the city attorney in the same manner as claims, litigation, or legal proceedings involving employees and officials of the city. Such payments shall not be contingent upon the continued establishment or maintenance of such a fund.

(d) Payments shall only be made to the extent a claim or judgment is not covered by a volunteer's private insurance, or other applicable insurance providing coverage, it being the specific intent of this section that any payment by the city be conditioned upon the absence of any applicable insurance coverage and that any undertaking by this section be secondary to any such applicable insurance coverage, and only if the claim or claims resulted from actions which:

(1) Were done in good faith; and

(2) Were done in the reasonable belief that such actions were in furtherance of the official practices and policies of the city; and

(3) Were within the authorized scope of activity of the volunteer so acting and of the city official or employee ordering much actions; and

(4) Were within the course of employment of the city official or employee ordering such actions; and

(5) Were not willful, malicious, or wanton.

(e) Payments shall not be made for punitive or exemplary damages, fines or penalties.

(f) A volunteer shall immediately deliver process and a written request for defense to the city attorney.

(g) Upon entry of a final judgment against a volunteer, or upon a settlement of the claim, the volunteer shall serve a copy of such judgment or settlement, personally or by certified or registered mail within thirty (30) days of the date of entry, or settlement, upon the city attorney; and if not inconsistent with the provisions of this section, the amount of such judgment or settlement, and all costs and expenses of the defense, including private counsel fees incurred, to the extent not covered by a volunteer's private insurance, or other applicable insurance providing coverage, shall be paid by the city.

(h) The duty to defend or pay costs and expenses prescribed herein shall be conditioned upon:

(1) Delivery by the volunteer to the city attorney of a written request to provide for a defense together with the original or a copy of any summons, complaint, process, notice, demand or pleading within ten (10) days after he is served with such document, and

(2) The full, good faith cooperation of the volunteer in the defense of the action or proceeding, in the defense of any action or proceeding against the city based upon the same act or omission, and in the prosecution of any appeal.

(i) Amendments to or repeal of this section shall not affect either the duty to defend or to make payments as aforesaid, both of which shall be governed by this section as it is or was in effect at the time the alleged act or omission complained of occurred or allegedly occurred.

(j) All such litigation or proceedings shall be recorded as provided by this Code. The city attorney shall provide necessary information for and support programs of risk management instituted by the city manager.

(k) The city manager is authorized and directed to adopt regulations limiting and restricting the operation of city vehicles by volunteers to activities essential to the effective implementation of necessary work and when use of a volunteer's private vehicle is impractical, establishing mandatory screening and training prerequisites to the operation of any such city vehicle, and restricting volunteer service to non-hazardous activities.

(l) Determinations (1) whether the defense of a particular civil legal proceeding is required under this section, (2) whether the volunteer is eligible for legal representation, (3) whether payment is required or prohibited under this section and (4) whether the volunteer has satisfied the requirements and conditions imposed upon him by this section will be made by the city attorney in his discretion. In any proceeding challenging a determination made by the city attorney under this section, the standard of review shall be for abuse of discretion.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-126. Examination of title to real estate.

Whenever the city shall purchase or otherwise acquire real estate or any interest therein, the city attorney, in his discretion, shall either (a) examine and certify the title thereto, or (b) cause the title thereto to be examined by a reputable title insurance company, and, in appropriate cases, obtain a policy of title insurance for the benefit of the city sufficient to protect the city's interests in such real estate.
(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-127—2-129. Reserved.

Sec. 2-130. Department of public works.

The department of public works is hereby created with the following functions:

(a) *Surveying.* The division of surveying shall be charged with the ascertainment, fixing and marking of the lines of streets, lanes and alleys and boundaries of lots and the regulation of party walls and partition fences. The city surveyor shall be the head of the division of surveys and his duties shall be such as may be prescribed by ordinance or by the director of public works.

(b) *Waste management.* The division of waste management shall be charged with the collection and disposal of solid waste and matters relating thereto. The waste management superintendent shall be the head of the division of waste management and his duties shall be such as may be prescribed by ordinance or by the director of public works.

(c) *Streets and bridges.* The division of streets and bridges shall be charged with the minor alteration, repair and maintenance of streets, bridges, seawalls, groins, bridge culverts, sidewalks, alleys, lanes, roadside ditches and other public highways and matters relating thereto. The street engineer shall be the head of the division of streets and bridges and his duties shall be such as may be prescribed by ordinance or by the director of public works.

(d) *Design.* The division of design shall be charged with planning and engineering of all public works and the administration and inspection of all construction, major repair and alteration contracts and matters relating thereto. The city engineer shall be the head of the division of design and his duties shall be as prescribed by ordinance or by the director of public works.

(e) *Environmental stormwater management.* The division of environmental stormwater management shall be responsible for the construction, repair and maintenance of the stormwater system and for the cleaning of streets. The stormwater engineer shall be the head of the division of environmental stormwater management, with duties prescribed by ordinance or by the director of public works.

(f) *Management services.* The division of management services shall be charged with investigating and resolving unique problems in the department of public works; functioning as the department's primary point of contact for public inquiries; developing, coordinating and overseeing the department's public education efforts in support of departmental programs; and providing payroll and personnel administration for the department. The head of the division shall be the management services administrator, whose duties shall be such as may be prescribed by ordinance or by the director of public works.

(g) *Financial management.* The division of financial management shall be charged with all matters relating to the provision of budget and accounting services to all bureaus and divisions of the department, including the collection of stormwater fees. The manager of budget and accounting shall be the head of the division of financial management, and his duties shall be such as may be prescribed by ordinance or the director of public works.

(h) *Towing.* The towing division shall be charged with all matters relating to the city's towing and recovery operations. The towing manager shall be the head of the towing division, and his duties shall be such as may be prescribed by ordinance or the director of public works.

(i) *Right-of-way.* The right-of-way division shall be charged with all matters relating to the management of the city's right-of-way, including private utilities, encroachments, code enforcement and permitting. The right-of-way administrator shall be the head of the right-of-way division, and his/her duties shall be such as may be prescribed by ordinance or the director of public works.

(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 48,778, § 2, 5-24-22)

Sec. 2-131. Application and compensation for departmental services.

When the services of the department of public works are needed by any citizen, to make any survey, define the lines of any lot, give levels, grades or diagrams or render any other like service, application for such services shall be made at the office of the department of public works and entered in a book kept for the purpose. The department of public works shall establish reasonable rates of compensation for such services, to be collected by the department in advance from the party for whose benefit the same may be rendered, and paid into the city treasury.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-132. Authority of director to fix lines of streets and lots.

(a) The director of public works shall have full power and authority to ascertain and fix the lines of any streets, lanes and alleys, or any boundaries of any of the lots within the city, and having fixed and established the same, to put up stones or landmarks, to be provided by the person requiring the same to be done, and to keep a record, with the proper description thereof, in his office.

(b) For the purpose of making surveys, fixing lines of streets and boundaries of lots and doing all acts in pursuance thereof, the director of public works and the city surveyor, and their agents, shall at all times have the right and authority to enter upon any adjoining land or premises.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-133. Application to fix street line and grade prerequisite to construction work.

No owner of any lot in the city shall dig or lay the foundation of any house in front of any

street, or erect any wall or fence fronting thereon, before he shall have applied to the director of public works to make out the true line and grade of such street, and the building official is required to see that such foundation, building, house or wall does not encroach upon the line or vary from such grade. Every person neglecting to apply, as aforesaid, shall be guilty of a Class 4 misdemeanor.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-134. Disputes as to lines fixed by director.

(a) If any person shall think himself aggrieved by the determination of the director of public works in fixing the lines of any street or the boundary of any lot, such person may, within five (5) days after such determination, appeal from the same to the city manager, who shall appoint three (3) disinterested persons to settle all matters in dispute within ten (10) days thereafter, and return their award to the city manager, to be recorded. The decision of such persons, or a majority of them, shall be final.

(b) The persons appointed pursuant to subsection (a) above shall receive from the director of public works all information which influenced him in the determination from which the appeal was made, and each such person shall receive, from the person making the appeal, the sum of twenty-five dollars ($25.00) for every day he shall attend.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-135. Pay for per diem employees.

The city treasurer is hereby authorized and directed to pay the per diem employees in the department of public works at their respective places of employment, to be designated by the director of public works, and at such time as may be prescribed by the director, not in conflict with the ordinances of the city. The director of finance is authorized to make all warrants issued for such payments payable to the order of the treasurer.
(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-136—2-139. Reserved.

Sec. 2-140. Department of utilities.

The department of utilities is hereby created with the following divisions and bureaus:

(a) *Bureau of engineering.* The bureau of engineering of the department of utilities shall be charged with making special studies and long range plans for current and future needs of the water and sewer systems, conducting field surveys and inspections, preparing plans, designs, specifications, estimates and contracts for the construction, improvement and repair of the water and sewer systems, and providing resident engineering and inspection for projects during construction. The engineering manager shall be head of the bureau of engineering, and his duties shall be such as may be prescribed by ordinance or by the director of utilities.

(b) *Bureau of financial control.* The bureau of financial control shall be charged with all matters relating to the provision of budget and accounting services to all bureaus and divisions of the department and the collection of water and sewer service charges. The enterprise controller shall be the head of the bureau of financial control, and his duties shall be such as may be prescribed by ordinance or the director of utilities. There shall be in the bureau of financial control the division of water accounts and the division of accounting and budget.

(1) *Division of water accounts.* The division of water accounts of the bureau of financial control shall be charged with the preparation and issuance of public service bills, the reading and servicing of water meters, the maintenance of records of water services and meters, the collection and maintenance of public service bill payments, the sale of water and sewer taps, and the coordination of public service programs for the department. The utility accounts administrator shall be the head of

the division of water accounts, and his duties shall be such as may be prescribed by ordinance, by the director of utilities, or by the head of the bureau of financial control.

(2) *Division of accounting and budget.* The division of accounting and budget of the bureau of financial control shall be charged with all matters relating to the financial activities of the department's water and sewer funds. The utility supervising accountant shall be the head of the division of accounting and budget, and his duties shall be such as may be prescribed by ordinance, by the director of utilities, or by the head of the bureau of financial control.

(c) *Bureau of utility operations.* The bureau of utility operations shall be charged with all matters relating to water distribution, water production, sewers, drains and related pumping stations. The utility operations manager shall be the head of the bureau of utility operations and his duties shall be such as may be prescribed by ordinance or by the director of utilities. There shall be in the bureau of utilities the following divisions:

(1) *Division of water distribution.* The division of water distribution of the bureau of utility operations shall be charged with the construction, maintenance and repair of the water distribution system, including water mains, meters, taps, valves and fire hydrants. A superintendent of utility division shall be the head of the division of water distribution, and his duties shall be such as may be prescribed by ordinance, by the director of department of utilities or by the head of the bureau of utility operations.

(2) *Division of water production.* The division of water production of the bureau of utility operations shall be charged with the operation and maintenance of raw water lines, water pumping stations, dams, treatment plants, buildings and equipment, watersheds, reservoirs, and other structures in connection with the collection, storage, purification and pumping of the city's water supply. The water production manager shall be the head of the division of water production and his duties shall be such as may be prescribed by ordinance, by the director of utilities or by the head of the bureau of utility operations.

(3) *Division of wastewater.* The division of wastewater of the department of utilities shall be charged with the construction, repair, and maintenance of sewers, drains, related pumping stations and all matters relating thereto. A superintendent of utility division shall be the head of the division of wastewater, and his duties shall be such as may be prescribed by ordinance, by the director of utilities or by the head of the bureau of utility operations.

(d) *Division of water quality.* The division of water quality of the department of utilities shall be charged with the management of the water treatment laboratories, reservoir inspection program, and reservoir and watershed management program. The water quality manager shall be the head of the division of water quality and his duties shall be such as may be prescribed by ordinance or by the director of utilities.

(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-141—2-149. Reserved.

Sec. 2-150. Department of economic development.

The department of economic development is hereby created.

(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-151. Duties of director.

Except as otherwise provided by the Charter, the director of development shall generally oversee and coordinate the economic development activities of the city.
(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-152—2-159. Reserved.

Sec. 2-160. Department of neighborhood services.

The department of neighborhood services is hereby created with the following bureau:

Bureau of neighborhood quality (code enforcement). Strives to maintain a clean and desirable living and working environments for all residents by addressing blight and nuisances; works in partnership with the residents of Norfolk, seeks voluntary compliance with applicable city codes, and develops and implements public outreach programs.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 49,610, § 1, 5-28-24; Ord. No. 49,961, § 1, 5-13-25)

Sec. 2-161. Duties of director.

The director shall generally oversee and coordinate the preservation and improvement of the physical, social and economic health of Norfolk's housing and neighborhoods.
(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-162—2-164. Reserved.

Sec. 2-165. Office of citizen services.

The office of citizen services is hereby created.
(Ord. No. 49,961, § 3, 5-13-25)

Sec. 2-166. Responsibilities.

The office of citizen services is responsible for the Norfolk Cares Center and for connecting residents to city services. The office answers citizen calls and manages the My Norfolk portal.
(Ord. No. 49,961, § 3, 5-13-25)

Secs. 2-167—2-169. Reserved.

Sec. 2-170. Department of human services.

The department of human services is hereby created. Notwithstanding the aforesaid designation, where required by law, the department of human services may, without further action by the council of the city, be designated as the department of public welfare.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-171. General responsibilities.

The department of human services is and shall be charged with the supervision and management of public welfare, social services and manpower services.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-172. Director as board of public welfare.

The director shall be the board of social services of the city. All and singular applicable powers and duties imposed by Title 63.2 of the Code of Virginia, as now or hereafter in effect, relating to the board of social services, are hereby conferred and imposed upon the director.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-173. Organization of department generally.

The department shall be comprised of the following:

(a) *Division of social services.* The division of social services shall be charged with providing to the inhabitants of the city services heretofore provided by the social service bureau and as prescribed by state law.

(b) *Foster care bureau.* The foster care bureau shall be responsible for providing community-based, out-of-home foster care placement services to youth with special needs and/or those at risk for institutional placements, including, when appropriate, structured family settings and/or treatment plans, and support services.

(c) *Division of youth services.* The division of youth services shall be responsible for coordinating youth service delivery

programs, and for the operation of the juvenile detention program and group care facilities, consistent with state law.

(d) *Juvenile detention facilities.* The juvenile detention facilities shall be known as the Norfolk Secure and Less Secure Detention Homes. The director shall make all proper regulations for their government and for the reception and maintenance of the residents. Under the supervision and control of the superintendent of the bureau of juvenile services, there shall be such assistants of the detention programs as may be authorized by the council, whose duties, consistent with state law, shall be such as are or may hereafter be prescribed by the council, the city manager or by the superintendent of the bureau of juvenile services.

(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-174—2-179. Reserved.

Sec. 2-180. Department of general services.

The department of general services is hereby created with the following divisions:

(a) *Division of facility maintenance.* The division of facility maintenance shall be responsible for the maintenance of the city's building inventory and the security of structures and facilities assigned to the division's control.

(b) *Division of parking.* The division of parking shall be responsible for the maintenance and operation of and collection of rental fees for off-street parking lots, metered curb parking, municipal parking garages and related matters.

(c) *Division of fleet operations.* The division of fleet operations shall be responsible for the maintenance, servicing, management, and repair of all city-owned vehicles.

(d) *Animal Care Center (NACC).* NACC ensures the welfare of companion animals, NACC provides care for stray, confiscated, surrendered, or abandoned companion animals and facilitates effective placement and community engagement programs to promote welfare and responsible pet ownership. The center adopts animals into permanent homes, reduces the pet population through spay and neuter programs, and transfers animals to responsible fostering and rescue groups.

(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-181—2-189. Reserved.

Sec. 2-190. Department of information technology.

The department of information technology is hereby created.

(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-191. Chief information officer as department head.

The head of the department of information technology shall be known as the chief information officer (CIO).

(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-192. Duties of director.

The CIO shall be in charge of all matters relating to the operation of the city's computers and related information processing systems, and all other matters pertaining to such computers and systems.

(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-193—2-199. Reserved.

Sec. 2-200. Department of budget and strategic planning.

The department of budget and strategic planning is hereby created.

(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-201. Responsibilities.

The department of budget and strategic planning maintains the financial and economic integrity of the city and provides comprehensive and integrated financial, policy, and performance

management to the city manager and other city departments. The department develops and monitors the city's annual budget, provides policy analysis and program evaluation services and performs advanced analytics.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 49,610, § 6, 5-28-24)

Secs. 2-202—2-209. Reserved.

Sec. 2-210. Department of communications and marketing.

The department of communications and marketing is hereby created.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 49,610, § 2, 5-28-24)

Sec. 2-211. Responsibilities.

The department serves as the central location for all communication, brand management, and media relations. The department also creates and implements the city's crisis communication plan and manages the Joint Information Center during a city emergency. The department oversees all aspects of public record requests and ensures compliance with applicable Freedom of Information Act (FOIA) laws.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 49,610, § 2, 5-28-24)

Secs. 2-212—2-219. Reserved.

Sec. 2-220. Department of transportation.

The department of transportation is hereby created.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 49,610, § 3, 5-28-24)

Sec. 2-221. Responsibilities.

The department is responsible for planning, developing, designing and operating a transportation system that supports all modes of transportation, including biking, walking, and public transportation. The department manages transportation construction for the city and Virginia Department of Transportation projects. It operates and maintains the traffic signal and traffic management systems, maintains all street signs and pavement markings, coordinates the installation of street-lighting and assists with special events.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 48,778, § 1, 5-24-22; Ord. No. 49,610, § 3, 5-28-24)

Secs. 2-222—2-229. Reserved.

Sec. 2-230. Department of housing and community development.

The department of housing and community development is hereby created.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-231. Responsibilities.

The department of housing and community development shall be responsible for increasing access to quality affordable housing opportunities in thriving, resilient, and connected communities. It is responsible for maintaining and enhancing the quality of existing housing and neighborhood conditions. It oversees and utilizes federally funded community development programs to implement initiatives and services which benefit lower income persons and neighborhoods, and address community development needs.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 48,503, § 5, 9-14-21)

Secs. 2-232—2-239. Reserved.

Sec. 2-240. The office of emergency management.

The office of emergency management is hereby created as an administrative department.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 49,595, § 1, 5-14-24)

Sec. 2-241. Responsibilities.

The office of emergency management shall be responsible for providing coordination of city, state, regional and federal capabilities to plan for, respond to and recover from hazards such as hurricanes, floods, and pandemics.
(Ord. No. 48,322, § 2, 3-9-21; Ord. No. 49,595, § 2, 5-14-24)

Secs. 2-242—2-249. Reserved.

Sec. 2-250. Department of resilience.

The department of resilience is hereby created.
(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-251. Responsibilities.

The department of resilience collaborates with city departments and community/business partners to enhance the city's capacity to proactively, effectively, and sustainably address issues arising from changing environmental and economic conditions. The department has three primary goals:

(a) Designing the coastal community of the future to live with the impacts of recurrent flooding.

(b) Creating economic opportunity by advancing efforts to grow existing and creating new sectors.

(c) Advancing initiatives to connect communities, deconcentrate poverty and strengthen neighborhoods.

(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-252—2-259. Reserved.

Sec. 2-260. Virginia Zoological Park.

The Virginia Zoological Park is hereby created as an administrative department.
(Ord. No. 48,322, § 2, 3-9-21)
Cross reference—Zoological park, § 50-1 et seq.

Sec. 2-261. Responsibilities.

The department provides animal services, veterinary services, horticulture services, operations and maintenance, visitor services to manage the welfare of the animal collection at the Virginia Zoological Park.
(Ord. No. 48,322, § 2, 3-9-21)

Secs. 2-262—2-269. Reserved.

Sec. 2-270. Nauticus.

Nauticus is hereby created as an administrative department with the following functions:

(a) To the extent consistent with the Charter and bylaws of the Nauticus Foundation and by delegation from the board of directors, the department shall be responsible for the management and operation of Nauticus.

(b) The cruise bureau shall be charged with the marketing, logistical planning and compliance with all federal, state and local security requirements. The manager of cruise operations and marketing shall be the head of the bureau and his duties shall be such as may be prescribed by ordinance or by the Director of Nauticus. The manager of cruise operations and marketing will be the primary liaison between the city and the cruise industry.

(Ord. No. 48,322, § 2, 3-9-21)

Sec. 2-271. Reserved.

Editor's note—Ord. No. 48,503, § 2, adopted Sept. 14, 2021, repealed § 2-271, which pertained to St. Paul's transformation and derived from Ord. No. 48,322, § 2, adopted March 9, 2021.

Sec. 2-272. Reserved.

Editor's note—Ord. No. 48,503, § 2, adopted Sept. 14, 2021, repealed § 2-272, which pertained to responsibilities and derived from Ord. No. 48,322, § 2, adopted March 9, 2021.

Secs. 2-273—2-279. Reserved.

Sec. 2-280. Department of diversity, equity and inclusion.

The department of diversity, equity and inclusion is hereby created.
(Ord. No. 48,503, § 7, 9-14-21)

Sec. 2-281. Responsibilities.

The department works internally, and externally with residents, businesses and com-

munity organizations to advance equity and inclusion through policy, programming and service delivery.
(Ord. No. 48,503, § 7, 9-14-21)

Secs. 2-282—2-289. Reserved.

Sec. 2-290. Department of military and community affairs.

The department of military and community affairs is hereby created.
(Ord. No. 49,961, § 2, 5-13-25)

Sec. 2-291. Responsibilities.

(a) The department serves as the support and hub to strengthen the city's relations with the military and with other federal entities.

(b) The department will facilitate efforts to address crime through community-based intervention and training of strategic community partners.
(Ord. No. 49,961, § 2, 5-13-25)

Secs. 2-292—2-299. Reserved.

Sec. 2-300. Office of Norfolk Arts.

The Office of Norfolk Arts is hereby created.
(Ord. No. 49,961, § 4, 5-13-25)

Sec. 2-301. Responsibilities.

The Office of Norfolk Arts serves to promote and support artistic and cultural programs and organizations. The office supports the public arts commission and its grants process.
(Ord. No. 49,961, § 4, 5-13-25)

Secs. 2-302—2-399. Reserved.

ARTICLE IV. BOARDS AND COMMISSIONS

Sec. 2-400. Created.

Except when otherwise specified, the boards and commissions listed in this Article IV are created pursuant to the provisions of section 141 of the Charter.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-401. Members not compensated.

Pursuant to section 141 of the Charter, members of the boards and commissions shall serve without compensation, unless otherwise specified.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-402—2-409. Reserved.

Sec. 2-410. Animal welfare board of review.

The board hears appeals of the decision of animal control officers regarding animal welfare.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-411—2-414. Reserved.

Sec. 2-415. Architectural review board.

Refer to sections 32-61 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-416—2-419. Reserved.

Sec. 2-420. Bicycling, pedestrian, and active transportation commission; membership.

The bicycling, pedestrian, and active transportation commission shall consist of nine (9) members who shall be citizens resident of the city and who shall be appointed by the council.
(Ord. No. 48,322, § 3, 3-9-21; Ord. No. 49,122, § 1, 3-28-23)

Sec. 2-420.1. Terms of members; vacancies.

All members shall be appointed for a term of three (3) years. Any vacancy shall be filled by the council to complete the unexpired term.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-420.2. Duties of the commission.

The commission shall serve in an advisory capacity to the council with respect to infrastructure improvements, advocacy and implementation of policies to encourage safe use of biking and pedestrian trails.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-420.3. Chairperson; meetings; quorum.

The commission members shall elect a chairperson who shall serve at the pleasure of the membership. A majority of the members of the commission shall constitute a quorum for the transaction of business.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-421—2-424. Reserved.

Sec. 2-425. Board of building code appeals.

Refer to sections 11.1-5 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-426—2-434. Reserved.

Sec. 2-435. Civic facilities commission.

The civic facilities commission shall consist of seven (7) members, who shall be citizens of the city and who shall be appointed by the council.
(Ord. No. 48,322, § 3, 3-9-21; Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-435.1. Term of members; filling of vacancies.

All members of the commission shall serve a term of three (3) years. Vacancies shall be filled by the council for the unexpired term.
(Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-435.2. Election and terms of officers.

The commission shall elect a chairperson and a vice chairperson from its membership, who shall serve at the pleasure of the commission.
(Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-435.3. Functions.

The commission shall act in an advisory capacity to the director of the department of civic facilities and the city manager in all matters pertaining to policy, promotion of attractions, expenditures, use and operation of all facilities.
(Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-435.4. Meetings; quorum; rules.

The commission shall meet at least once each month. A quorum, for all purposes, shall consist of five (5) members. Rules for the internal operation of the commission shall be adopted by the commission.
(Ord. No. 48,503, § 5, 9-14-21)

Secs. 2-436—2-439. Reserved.

Sec. 2-440. Civil service commission.

The commission is created pursuant to sections 110, 11 and 112 of the Charter. It prescribes and enforces rules for city employees within the classified service.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-441—2-444. Reserved.

Sec. 2-445. Coastal management and review board.

Refer to sections 49-38 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-446—2-449. Reserved.

Sec. 2-450. Commission for persons with disabilities.

The commission advises the department of human services.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-450.1. Composition; appointment of members.

The commission shall consist of fifteen (15) members who shall be citizens of the city and who shall be appointed by city council. The membership shall be selected to include, as a majority, persons with disabilities or members of their immediate families. Persons with disabilities shall be defined as including those persons who have a physical or mental impairment which substantially limits one or more major life activities. Appointments shall reflect, whenever possible, the diversity of functional groups within that population, including the blind, deaf, amputees, paralytics and the mentally

handicapped. Representatives from existing organizations of persons with disabilities (both physical and mental) shall be included. Membership shall also include representatives selected from several types of organizations provide services to persons with disabilities. These include representatives of the following groups:

(1) Employment training and placement services.

(2) Relevant sectors of the medical establishment.

(3) Building industry.

(4) Businesses.

(5) Educational institutions.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-450.2. Term of members; filling of vacancies.

The members of the commission shall be appointed for terms of three (3), staggered to provide continuity of membership, as the city council may desire. Any vacancy on the commission shall be filled by the city council for the unexpired term.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-450.3. Chairperson; meetings; records; rules of procedure.

The commission shall elect a chairperson from its membership who shall serve at the pleasure of the membership. The commission shall hold regular meetings bimonthly, or more frequently at the call of the chairperson.

The commission shall establish its own rules of procedure.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-450.4. Powers and duties.

The commission shall serve in an advisory capacity to the department of human services. It shall assist persons with disabilities in achieving more independent and full lives by promoting awareness of the needs of persons with disabilities, coordinating and advising appropriate agencies and organizations regarding the needs of persons with disabilities and providing a focal point for input from persons with disabilities into the city's decision making process. Specifically, the commission is empowered to do the following:

(1) Promote and cooperate with other groups on the development and conduct of educational programs for the general

public, professional personnel, employers, the families of persons with disabilities and the like.

(2) Analyze the needs of persons with disabilities in the city.

(3) Determine and assess resources available to meet the needs of persons with disabilities.

(4) Cooperate with other committees, agencies, and organizations in the development of programs designed to address unmet needs of persons with disabilities.

(5) Cooperate with and advise relevant agencies and other groups to encourage compliance with legislative mandates regarding persons with disabilities.

(6) Advise the city council on the needs of persons with disabilities.

(7) Review and make recommendations on legislative matters which concern the welfare of persons with disabilities.

(8) Cooperate and coordinate with the Governor's and President's committees for persons with disabilities.

(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-451—2-454. Reserved.

Sec. 2-455. Commission on aging/long-term care.

The commission advises the director of human services on the coordination of programs to solve the needs of elderly persons in the city.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-455.1. Composition; appointment of members.

The commission shall consist of fifteen (15) members who shall be citizens of the city appointed by the council. The commission shall be composed of one representative from the department of public health who shall be a member from the local nursing home preadmission screening team, one representative from the department of human services, one representative from the community services board, one representative from the Southeastern Virginia Areawide Model Program (area agency on aging), one representative from a local nursing home, one representative from the Norfolk Task Force on Aging, one representative from a local adult care residence, one medical practitioner, and seven (7) citizens-at-large.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-455.2. Terms of members; vacancies.

All members appointed or reappointed to the commission shall be for terms of three (3) years. Any vacancy on the commission shall be filled by the council for the unexpired term.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-455.3. Chair; meetings; procedure.

The commission shall elect a chair and other such officers as it deems appropriate from its membership. A majority of the members shall constitute a quorum for the transaction of business.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-455.4. Duties and powers.

(a) The commission shall act in an advisory capacity to the director of the department of human services on the coordination, extension and improvement of the services provided by public and private agencies whose purposes relate to the problems, needs and programs of the aged of the city, to the end that these services, so rendered, shall be more beneficial to the aged of the city.

(b) Specifically, the commission is empowered to do the following:

(1) To promote and cooperate with other groups in the development and conduct of educational programs for the general public, professional personnel, employers, the families of older persons, etc.

(2) To analyze the needs of older persons in Norfolk.

(3) To determine and assess resources available to meet the needs of older persons.

(4) To cooperate with other committees, agencies and organizations in the development of programs designed to address unmet needs of older persons.

(5) To cooperate with and advise relevant agencies and other groups to encourage compliance with legislative mandates regarding older persons.

(6) To review and make recommendations on legislative matters which concern the welfare of older persons.

(7) To maintain liaison with the Southeastern Virginia Areawide Model Program, Norfolk Task Force on Aging, the department of city planning and codes administration, the Norfolk Commission for Persons with Disabilities, the office of consumer protection, and the advisory commission to the department of human services.

(8) To appoint committees to advise the commission on matters relating to legislation, housing, health and transportation affecting older person and such other subcommittees as may be necessary for the commission's purposes.

(9) To guide the coordination and administration of public long-term care services in the city. In connection therewith, the commission shall have the following duties and responsibilities:

(i) Identify the impaired elderly population.

(ii) Identify services needed for the impaired elderly.

(iii) Identify services available to the impaired elderly.

(iv) Identify gaps in services available to the impaired elderly.

(v) Develop and submit to city council a long-term care plan which includes a design to attain a goal of providing a range of services within the continuum of long-term care. The long-term services shall include the following categories as in Code of Virginia, § 2.1-373.8: Socialization services, health care services, nutrition services, daily living services and supportive services, including mental health services.

(vi) Encourage cooperation and coordination between public agencies and the private sector for the development of community-based long-term care services.

(vii) Make recommendations, either administrative or legislative, to assure appropriate care for the impaired elderly in a cost-effective manner.

(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-456—2-459. Reserved.

Sec. 2-460. Norfolk Arts Commission; Composition and appointment of members.

The commission consists of fifteen (15) members. The members shall be citizens of the city who shall be appointed by the council. The membership shall be selected to include persons having particular interest or association with any or all of the following specific areas:

(1) Dance.

(2) Letters.

(3) Music.

(4) Theatre.

(5) Visual arts.

(6) Education.

(7) Member of the planning commission or architectural review board.

(8) Building architect.

(9) Landscape architect.

(10) Six (6) citizens at large.

(Ord. No. 48,322, § 3, 3-9-21; Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-460.1. Terms of members; filling of vacancies.

All members shall be appointed for up to two (2) terms of three (3) years. Any vacancy on the commission shall be filled by the council for the unexpired term.
(Ord. No. 48,322, § 3, 3-9-21; Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-460.2. Chairpersons; meetings; quorum.

The commission shall elect a chairperson and a vice chair from Its membership, who shall serve at the pleasure of the membership, The commission normally shall hold regular meetings once a month and keep a written record of its proceedings, which shall be a public record. A quorum shall consist of eight (8) members. No act of the commission shall be valid unless authorized by a majority of the quorum.
(Ord. No. 48,322, § 3, 3-9-21; Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-460.3. Powers and duties.

(a) The commission shall act in an advisory capacity to promote the further development and awareness of public art, artistic and cultural programs in the city and to provide a coordinated method of city support of cultural organizations and programs.

(b) The commission shall review and evaluate requests for city funds for artistic and cultural purposes and make recommendations regarding such requests as part of the normal city budgeting process and make recommendations to be acted on by the city manager concerning commissioning and purchasing works of public art with appropriated city funds for public art, except for those decisions concerning the placement of works of art within the city's Historic districts which must follow the procedural provisions of the city's Zoning Ordinance, as amended.
(Ord. No. 48,322, § 3, 3-9-21; Ord. No. 48,503, § 5, 9-14-21)

Secs. 2-461—2-464. Reserved.

Sec. 2-465. Community policy and management team.

There is hereby established the Community Policy and Management Team (CPMT) for the City of Norfolk which shall have and administer all powers and services designated in the Children's Services Act codified as Code of Virginia, Title 2.2 Chapter 52, as amended.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-465.1. Membership.

Pursuant to the Children's Services Act, the community policy and management team to be appointed by city council shall include the following members or their designees:

(1) An elected or appointed official of the city;

(2) The Executive Director of the Norfolk Community Services Board;

(3) The Director of the Norfolk Juvenile Court Services Unit;

(4) The Director of the Norfolk Department of Public Health;

(5) The Director of the Department of Human Services;

(6) The Superintendent of the Norfolk Public Schools;

(7) The representative of a private organization or association of providers for children's or family services located in the city, who shall be appointed for a two-year term; and

(8) A parent representative who is not an employee of any public or private program which serves children or families, who shall be appointed for a two-year term.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-465.2. Chairperson; appointment.

The city council shall appoint a member of the community policy and management team as chairperson. The term of the chairperson shall be for two (2) years from the first day of July of

the year of appointment. The chairperson may be removed by city council upon receipt of written notice.

The chairperson shall be accountable and responsible to the city council for the proper administration of the powers and duties of the community policy and management team in accordance with this article, the Children's Services Act and all applicable federal, state and local laws and regulations.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-465.3. Vacancies; removal of appointees.

Vacancies shall be filled as original appointments to preserve the ordained membership. Any member may be removed for cause by city council.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-465.4. Immunity from civil liability.

Persons who serve on the community policy and management team shall be immune from any civil liability for decisions made about the appropriate services for a family or the proper placement or treatment for a child who comes before the team, unless it is proven that such person acted with malicious intent.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-465.5. Filing of statements of economic interest.

If required to do so, any person serving on the community policy and management team shall file a statement of economic interests as set out in the State and Local Government Conflict of Interests Act.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-465.6. Powers and duties.

The community policy and management team shall manage the cooperative effort in the city to better serve the needs of troubled and at-risk youth and their families to maximize the use of state and community resources. The team shall:

(1) Develop interagency policies and procedures to govern the provision of services to children and families in the city;

(2) Develop interagency fiscal policies governing access to the state pool of funds by the eligible populations including immediate access to funds for emergency services and shelter care;

(3) Coordinate long-range, community-wide planning which ensures the development of resources and services needed by at-risk youth and families in the city;

(4) Establish policies to assess the ability of parents or legal guardians to contribute financially to the cost of services to be provided and, when not specifically prohibited by federal or state law or regulation, provide for appropriate parental or legal guardian financial contribution, utilizing a standard sliding fee scale based on ability to pay;

(5) Establish policies governing referrals and reviews of at-risk children and families to the family assessment and planning teams and a process to review the teams' recommendations and requests for funding;

(6) Establish quality assurance and accountability procedures for program utilization and funds management;

(7) Establish procedures for obtaining bids on the development of new services;

(8) Manage funds in the interagency budget allocated to the community from the state pool of funds, the trust fund, and any other source;

(9) Authorize and monitor the expenditure of funds by each family assessment and planning team or a collaborative, multidisciplinary team process;

(10) Submit grant proposals which benefit the city to the state trust fund and enter into contracts for the provision or operation of services upon approval of the city council;

(11) Serve as the city's liaison to the office of children's services, reporting on its programmatic and fiscal operations and on its recommendations for improving the service system, including consideration of realignment of geographical boundaries for providing human services.

(12) Collect and provide uniform data to the council as requested by the office of children's services;

(13) Review and analyze data in management reports provided by the office of children's services to help evaluate child and family outcomes and public and private provider performance in the provision of services to children and families through the Children's Services Act program. Every team shall also review local and statewide data provided in the management reports on the number of children served, children placed out of state, demographics, types of services provided, duration of services, service expenditures, child and family outcomes, and performance measures. Additionally, teams shall track the utilization and performance of residential placements using data and management reports to develop and implement strategies for returning children placed outside of the commonwealth, preventing placements, and reducing lengths of stay in residential programs for children who can appropriately and effectively be served in their home, relative's homes, family-like setting, or their community;

(14) Administer funds;

(15) Have authority, upon approval of the city council, to enter into a contract with another community policy and management team to purchase coordination services provided that state pool funds are not used;

(16) Submit to the State Department of Behavioral Health and Developmental Services information on children under the age of fourteen (14) and adolescents ages fourteen (14) through seventeen (17) for whom an admission to an acute care psychiatric or residential treatment facility, exclusive of group homes, was sought but was unable to be obtained. Such information shall be gathered from the family assessment and planning team or participating community agencies. Information to be submitted shall include:

a. The child or adolescent's date of birth;

b. Date admission was attempted; and

c. Reason the patient could not be admitted into the hospital or facility;

(17) Establish policies for providing intensive care coordination services for children who are at risk of entering, or are placed in, residential care through the Children's Services Act program; and

(18) Establish policies and procedures for appeals by youth and their families of decisions made by local family assessment and planning teams regarding services to be provided to the youth and family pursuant to an individual family services plan developed by the local family assessment and planning team.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-465.7. Fiscal agent; legal services; contracting agent.

Consistent with services provided to city departments, the director of finance shall act as the designated fiscal agent for the community policy and management team and shall be responsible for matters associated with the receipt and disbursement of funds, accounting, and financial reporting standards as required by the various entities and the annual audit.

The city attorney shall provide legal services for the community policy and management team.

The community policy and management team shall comply with all local laws, ordinances, regulations and procedures.

The city manager is hereby designated as the contracting agent who shall be authorized to execute contracts on behalf of the community policy and management team. The community policy and management team shall comply with all city contracting and purchasing procedures.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-466—2-469. Reserved.

Sec. 2-470. Erosion advisory commission.

Refer to sections 49-34 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-471—2-474. Reserved.

Sec. 2-475. Military economic development advisory committee.

Refer to sections 2.1-57 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-476—2-479. Reserved.

Sec. 2-480. City planning commission.

Refer to sections 32-22 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-481—2-484. Reserved.

Sec. 2-485. Norfolk Community Services Board.

Refer to sections 2.1-46 et seq. of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-486—2-489. Reserved.

Sec. 2-490. Norfolk Criminal Justice Board; composition and appointment of members.

The board shall at a minimum include the following:

The city manager or a city executive (designee of the city manager) to represent the city council; a general district court judge; a circuit court judge; a juvenile and domestic relations district court judge; the chief magistrate; a member of the Virginia Department of Corrections, Probation & Parole, District 2; a member of 4th District of the Court Services Unit of the Virginia Department of Juvenile Justice; the chief of police; the sheriff; an attorney for the commonwealth and an attorney who is experienced in the defense of criminal matters; a local educator; an administrator of the community services board; a representative of the YWCA, South Hampton Roads or an organization with a similar mission; and five (5) citizens.
(Ord. No. 48,322, § 3, 3-9-21; Ord. No. 49,258, § 1, 7-11-23)

Sec. 2-490.1. Terms of members; vacancies.

All members shall be appointed for a term of three (3) years. Any vacancy on the board shall be filled by council for the unexpired term.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-490.2. Powers and duties.

The board shall develop, establish and maintain community-based corrections programs to provide the judicial system with sentencing alternatives for certain misdemeanors or persons convicted of nonviolent felonies, as defined in Section 19.2-316.1 of the Code of Virginia, 1950, as amended, for whom the court may impose a jail sentence and who may require less than institutional custody.

The board shall have the responsibility to:

(1) Provide for the purpose, development and operation of community programs, services, and facilities for use by the courts in diverting offenders from local correctional facility placement.

(2) Assist community agencies and organizations in establishing and modifying programs and services for offenders on the basis of an objective assessment of the community's needs and resources.

(3) Evaluate and monitor community programs, services and facilities to determine their impact on offenders.

(4) Develop and amend the community corrections plan in accordance with guidelines and standards set forth by the Department of Criminal Justice Services for approval by the City of Norfolk.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-490.3. Chairperson; meetings; procedure.

The board shall select a chairperson and other such officers, as it deems appropriate from its membership. A majority of the members shall constitute a quorum for the transaction of business.

(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-491—2-499. Reserved.

Sec. 2-500. Norfolk Employees' Retirement System Board of Trustees.

Refer to sections 37-96 et sequitur of the Code.

(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-501—2-504. Reserved.

Sec. 2-505. Norfolk Environmental Commission; composition and appointment of members.

The commission shall consist of twenty-two (22) members who shall be citizens of the city and who shall be appointed by the city council. Members shall include, among others, representatives selected from the following major segments of the city: citizen interest; business and industry; professions; communications; schools; armed forces; and community organizations. Ex officio members with no voting authority shall be appointed from the municipal operations staff representing: The director of public works; the superintendent of waste management; the director of public health; the environmental services manager; and the stormwater engineer.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-505.1. Terms of members; vacancies.

All members shall be appointed for terms of three (3) years. Any vacancy on the commission shall be filled by the city council for the unexpired term.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-505.2. Chairperson; vice-chairperson; quorum; subcommittees.

The membership shall elect a chairperson and two (2) vice chairpersons and other such officers as it deems appropriate, who shall serve at the pleasure of the membership. Officers may be removed from office by a vote of a majority of all commission members eligible to vote. A majority of the commission members eligible to vote shall constitute a quorum for the transaction of business. Such committees and advisors as are deemed appropriate may be appointed by the membership. Other rules and procedures pursuant to the operation and business of the commission may be adopted from time to time by a vote of a majority of all commission members eligible to vote.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-505.3. Executive coordinator.

An executive coordinator shall serve as the staff person for the commission. Such executive coordinator shall be a full-time employee of the department of public works and shall serve pursuant to a job description agreed upon by the commission, the director of public works and the executive coordinator.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-505.4. Meetings.

The commission shall meet regularly at the call of the chairperson or at the request of the director of public works.

(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-505.5. Duties.

The commission shall act in an advisory capacity to the director of public works and the other ex-officio members on matters affecting the qual-

ity of the local environment. The commission shall endeavor to empower the citizens of Norfolk with a sense of pride and individual environmental stewardship involving land, air and water quality issues. In this effort the commission shall strive to develop educational programs, foster awareness, promote effective waste management strategies, and encourage communication among city, regional, and state governments and agencies.

The commission shall provide the director of public works and other ex-officio members with advice and information concerning factors affecting the quality of life of citizens arising from the local environment, with special emphasis upon methods of preventing damage to, and the enhancement of the quality of local land, air water.

The commission shall have the continuing function of pursuing further studies and rendering advice concerning other factors influencing the quality of the local environment. It shall, whenever possible, use in part as its guidelines the clean community system developed by Keep America Beautiful, Inc.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-505.6. Bylaws.

The commission shall adopt bylaws for the purpose of conducting its business in an orderly fashion. Bylaws may be satisfied or amended by a majority vote of all commission members eligible to vote.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-506—2-509. Reserved.

Sec. 2.2-510. Norfolk Police-Fire Trial Board.

Refer to section 63 of the Charter and sections 2-36 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-511—2-514. Reserved.

Sec. 2-515. Reserved.

Editor's note—Ord. No. 48,503, § 2, adopted Sept. 14, 2021, repealed § 2-515, which pertained to Norfolk Public Arts Commission and derived from Ord. No. 48,322, § 3, adopted March 9, 2021.

Secs. 2-516—2-519. Reserved.

Sec. 2-520. Norfolk Public Library Board.

Refer to sections 23-24 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-521—2-524. Reserved.

Sec. 2-525. Norfolk Recreation Commission.

The commission shall act in an advisory capacity to the director of parks and recreation in all matters pertaining to public recreation in the city.
(Ord. No. 48,322, § 3, 3-9-21; Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-525.1. Board composition and appointment.

The commission shall consist of not less than six (6) nor more than eight (8) members who shall be citizens of the city and shall be appointed by the council.
(Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-525.2. Term of members; filling of vacancies.

Members of the recreation commission shall be appointed for terms of three (3) years. Any vacancy on the commission shall be filled by the council for the unexpired term.
(Ord. No. 48,503, § 5, 9-14-21)

Sec. 2-525.3. Election of officers; quorum.

The commission shall elect its own chairperson and a vice-chairperson should it deem it necessary. A majority of the members of the commission shall constitute a quorum for the transaction of business.
(Ord. No. 48,503, § 5, 9-14-21)

Secs. 2-526—2-529. Reserved.

Sec. 2-530. Norfolk Towing Advisory Board.

The board acts in an advisory capacity regarding the appropriate provisions of towing ordinances.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-530.1. Board composition and appointment.

The board shall consist of two (2) members of the Norfolk Police Department designated by the city manager, two (2) representatives from licensed towing and recovery operators and one (1) member of the general public designated by city council.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-530.2. Meetings; election of chair.

The board shall meet at least once a year at the call of the chairman, who shall be elected annually from among the members of the board by majority vote.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-531—2-534. Reserved.

Sec. 2-535. Norfolk Wetlands Board.

Refer to sections 49-4 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-536—2-539. Reserved.

Sec. 2-540. Public vehicle driver-appeals board of review.

Refer to Code section 34.1-54.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-541—2-544. Reserved.

Sec. 2-545. Real estate assessment board of review.

Refer to sections 24-195 and 24-196 of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-546—2-549. Reserved.

Sec. 2-550. Social services advisory commission; composition and appointment of members.

The commission shall consist of thirteen (13) members who shall be citizens of the city and who shall be appointed by the council.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-550.1. Terms of members; filling of vacancies.

Of the members of the commission first appointed by the council one shall be appointed for a term of one year, four (4) shall be appointed for a term of two (2) years, four (4) shall be appointed for a term of three (3) years, and four (4) shall be appointed for a term of four (4) years. Subsequent appointments shall be for a term of four (4) years each, except that appointments to fill vacancies shall be for the unexpired terms. No person shall serve more than two (2) consecutive terms. The director of the department of human services shall be an ex-officio member, without vote, of the commission.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-550.2. Chairperson; quorum.

The commission shall elect a chairperson and shall meet at least bimonthly. In addition to regularly scheduled meetings it may meet at the call of the chairperson or on the petition of at least one-half (½) of the members. A majority of the commission shall constitute a quorum for the transaction of all business and all matters shall be decided by a majority vote.
(Ord. No. 48,322, § 3, 3-9-21)

Sec. 2-550.3. Powers and duties.

The commission shall perform the following duties:

(1) Advise the director of the department of human services generally in all matters relating to the operation of the division of social services.

(2) Interest itself in all matters pertaining to the social welfare of the people of the city.

(3) Monitor the formulation and implementation of social welfare programs in the city.

(4) Meet with the director of the department of human services and the director of social services, at least four (4) times a year for the purpose of making recommendations on policy matters concerning the division of social services.

(5) Submit to the council, from time to time, other reports that the commission deems appropriate.

(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-551—2-554. Reserved.

Sec. 2-555. Tree commission.

Refer to sections 45-27 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Secs. 2-556—2-559. Reserved.

Sec. 2-560. Veterans affairs advisory commission.

Refer to sections 2.1-62 et sequitur of the Code.
(Ord. No. 48,322, § 3, 3-9-21)

Chapter 2.1

PERSONNEL SYSTEM

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ARTICLE I. IN GENERAL

Sec. 2.1-1. Personnel system notwithstanding contrary provisions of general or special law.

(a) The provisions of this chapter, which may be amended from time to time by ordinance on the recommendation of the city manager, shall constitute, along with provisions of the City Charter and the City Code not altered by this chapter, the Personnel System of the City of Norfolk, pursuant to section 15.2-1131 of the Code of Virginia, 1950, as amended. In any instance of conflict between this chapter and any provisions of general or special law except the aforesaid statute, this chapter shall prevail.

(b) The city manager is hereby authorized, with the advice of the city attorney, to promulgate regulations consistent with the provisions of this chapter.

(c) Notwithstanding any general provisions of this chapter to the contrary, unless expressly stated otherwise, the provisions of this chapter shall not apply to sworn law enforcement officers in the department of police or sworn members of the department of fire and paramedical services.
(Ord. No. 40,400, §§ 1—15, 6-26-01)

Sec. 2.1-1.1. Advertisement for employment—Classified service.

(a) Vacancies within positions classified by the civil service commission and all competitive examinations related to them shall be advertised for at least ten (10) days in advance in a manner reasonably likely to provide general notice to the public of such vacancies.

(b) The manner of advertising may include, but is not limited to, advertising in or on: at least one newspaper of general circulation published in the city; the internet; and, in certain limited circumstances authorized within this article, the city intranet.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-1.2. Internal promotion.

(a) The director of human resources may, with the approval of the city manager after written certification stating that competition limited to individuals already employed by the city should allow enough competition to provide an adequate pool of qualified candidates for a particular vacancy in the classified service under the circumstances, proceed to advertise for that vacancy through the city's intranet only, so as to create a pool of candidates from current city employees only.

(b) Notwithstanding any other provisions to the contrary, vacancies within the classified service to be filled by internal promotion shall be advertised for no less than five (5) days in advance. Other than the exceptions included in this section, such advertisement shall be done pursuant to all the other rules for advertising classified positions as set out in this article.

(c) If, subsequent to the internal advertisement, the director of human resources determines that, contrary to expectation, the pool of applicants initially created by internal advertisement failed to provide an adequate pool of qualified candidates, the director of human resources may, with the approval of the city manager after written certification of the failure, thereafter advertise such a vacancy in the usual process. In such circumstances, the existing applicants shall be considered with any additional ones pursuant to the usual civil service commission rules, as amended, governing the certification of competitors to eligible lists.

(d) The director of human resources shall provide the civil service commission with copies of all certifications required under this section at the next regular meeting of the commission after the position opened to limited competition pursuant to this section is filled.
(Ord. No. 41,842, § 12C, 5-17-05; Ord. No. 42,279, § 13, 5-16-06)

Sec. 2.1-1.3. Officers exempted from the classified service.

Officers who are elected by the people or who are elected or confirmed by the council, the

heads of the administrative departments of the city, assistant city managers, employees who report directly to and whose positions require the personal trust and confidence of the city manager, employees regardless of their positions, hired and permanently assigned to work for and under the supervision of the constitutional officers of the city or of the circuit court judges of the city, employees in positions requiring a Doctor of Medicine degree or requiring they be a licensed clinical psychologist, licensed professional counselor, licensed nurse practitioner or licensed clinical social worker, assistant heads of administrative departments and heads or chiefs of bureaus and divisions within said departments except for the departments of fire-rescue and police other than those of the deputy chief of police and the deputy fire chief, and members of the law department shall not be included within the classified service.
(Ord. No. 44,717, § 2, 6-12-12, eff. 7-1-12; Ord. No. 45,086, § 15, 5-14-13, eff. 7-1-13; Ord. No. 50,039, § 15, 6-24-25, eff. 7-1-25)

Sec. 2.1-1.4. City manager authority for personnel actions—Generally.

(a) Except as otherwise provided in this chapter or the charter, the city manager or designee(s) shall have the power and it shall be their duty to appoint all heads or directors of departments, and all subordinate officers and employees of the city in both the classified and unclassified service, and with the power to take personnel actions, including, but not limited to, promoting, demoting, providing bonuses, exemplary performance awards or administrative pay adjustments, disciplining and terminating any officer or employee so appointed, except that in the case of the classified service such actions shall be subject to the civil service provisions of the charter and the rules of the Civil Service Commission.

(b) The city manager may delegate the power as deemed appropriate.
(Ord. No. 44,741, § 11.1(b), 6-26-12, eff. 6-23-12)

Editor's note—Ord. No. 44,741, § 11.1(b), adopted June 26, 2012, effective June 23, 2012, set out provisions intended for use as § 2.1-1.3. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 2.1-1.4.

Sec. 2.1-1.5. City attorney authority—Department of law.

The city attorney is the head of the city's department of law and is directly appointed by the council. Anyone holding a position within the department of law is a member of the law department. The city attorney shall have, notwithstanding any provision to the contrary elsewhere within this Code, the sole power and it shall be his or her duty to take all personnel actions concerning members of the law department, including, but not limited to, promoting, demoting, providing bonuses, exemplary performance awards or administrative pay adjustments, disciplining and terminating any member of the law department. Any compensation adjustments hereunder shall be subject to the availability of funding, including, but not limited to, funding outside of the city attorney's budget which is created exclusively for the provision of bonuses. The director of human resources and the director of budget and management shall be notified of any such compensation adjustments.
(Ord. No. 44,741, § 11.1(b), 6-26-12, eff. 6-23-12)

Editor's note—Ord. No. 44,741, § 11.1(b), adopted June 26, 2012, effective June 23, 2012, set out provisions intended for use as § 2.1-1.4. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 2.1-1.5.

Sec. 2.1-1.6. Employment conditioned on residency prohibited; exceptions.

Pursuant to section 15.2-1505 of the Code of Virginia, 1950, as amended, city employment or any aspect of city employment, including promotion, shall not be conditioned on the basis of residency within the city. This section shall not apply to: (a) appointees of elected groups or individuals; (b) officials and employees who by charter or other law serve at the will or pleasure of an appointing authority; (c) deputies and executive assistants to the chief administrative officer of a locality; or (d) agency heads, department heads or their equivalents or chief executive officers of government operations.
(Ord. No. 45,589, § 19(b), 6-10-14, eff. 7-1-14)

Sec 2.1-1.7. Equal employment opportunity.

The core of equal employment opportunity is the right to work and advance on the basis of

merit, ability, and potential, free from prejudice or discrimination. In accordance with this principle, the city prohibits discrimination in city employment on the basis of race, color, religion, sex, sexual orientation, gender identity, national origin, age, disability, genetic information, marital status, political affiliation, whistleblower activity, parental status, military service or any other characteristic protected by federal or state law.
(Ord. No. 46,754, § 1, 2-28-17)

Sec. 2.1-1.8. Employment standards.

(a) The city manager or director of human resources shall establish minimum employment standards for all city employment, including, but not limited to, employment in sworn police officer, firefighter/paramedic, and emergency dispatcher positions.

(b) All such standards shall be in writing, approved for content by the city manager or the director of human resources, and approved for form and correctness by a city attorney.
(Ord. No. 47,732, § 1, 7-23-19)

Sec. 2.1-1.9. Deputy chief of police suspension and removal.

The city manager shall have the power to suspend or dismiss the deputy chief of police and his action in every such case shall be final; provided that in the event that the deputy chief of police was appointed to such position from a permanent position in the sworn classified membership of the department of police he shall, at the time of any such suspension or dismissal, or at any time prior thereto, at his request, be restored to the rank he held in the department at the time of his appointment as deputy chief, without being required to take any examination, subject, however, to the provisions of Section 63 of the Charter of the City of Norfolk concerning supervision in the divisions of fire-rescue and police.
(Ord. No. 48,091, § 1, 7-14-20)

Sec. 2.1-1.10. Employees of constitutional officers accepted into city personnel system—Contracts.

(a) Pursuant to section 2.2-3008 of the Code of Virginia, 1950, as amended, the City of Norfolk may accept the employees of a constitutional officer for the City of Norfolk into the city's personnel system pursuant to a written agreement between that officer and the city's governing body. Such agreements shall not provide the employees of any constitutional officer the right to access the city's grievance procedure.

(b) Upon approval of such an agreement by council by ordinance and its subsequent execution by the city manager and a constitutional officer, that constitutional officer's employees shall be accepted into the city's personnel system under the limits and conditions set out within this section and the agreement. Such agreements may not be altered except pursuant to formal amendments first approved by ordinance by council.

(c) Notwithstanding any benefits ordinarily limited to city employment that may be extended to the employees of a constitutional officer pursuant to such an agreement, such employees shall not be considered employees of the city for any reason.
(Ord. No. 49,526, § 1, 3-26-24)

ARTICLE II. CREATION AND DELETION OF VACANT POSITIONS BY THE CITY MANAGER*

Sec. 2.1-2. In general.

(a) The city manager or the council may create and delete positions. The city manager shall create and delete vacant positions only under the circumstances and after satisfying the requirements described in this article.

*__Editor's note—__Ord. No. 41,070, § 13, adopted June 17, 2003, amended art. II in its entirety and adopted similar provisions as set out herein. The former art. II derived from Ord. No. 40,400, §§ 1—15, adopted July 26, 2001.

(b) The city manager shall act pursuant to this article only through regulations and instruments consistent with this chapter and this article and certified as required by this article.

(c) At the end of each quarter of the fiscal year, the director of human resources shall provide a report to the city manager identifying each position and stating the total number of positions that the city manager has created or deleted during the quarter.

(d) On or before the end of each fiscal year, the director of human resources shall report in writing to the city manager certifying the total number of positions at that time, and reconciling that number with the number of positions initially set forth by council in the annual compensation plan ordinance as of the start of the fiscal year. The director shall explain in her report any difference between the two (2) numbers.

(e) The provisions of this article shall apply to sworn law enforcement officers in the department of police and sworn members of the department of fire and paramedical services.
(Ord. No. 41,070, § 13, 6-17-03)

Sec. 2.1-3. Creation of vacant positions.

(a) The city manager may only create vacant positions pursuant to this article through a written instrument executed by the city manager after the availability of the necessary funds is certified on the face of the instrument by the director of finance or his designee, pursuant to Charter section 72. The regulations and the form of the instrument to be used for creating positions shall be approved as to form and correctness by the city attorney or his designee pursuant to Charter section 53.

(b) The city manager shall not create a new position within a department if the creation of a new position will: (i) require the expenditure of funds from that department's personal services account in excess of the total sum appropriated for personal services within that department for the fiscal year; or (ii) require the expenditure of funds from the city manager's staffing and organizational redesign reserve account in excess of the total sum approved therefor by the council at the start of the fiscal year.
(Ord. No. 41,070, § 13, 6-17-03; Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-4. Deletion of vacant positions by the city manager.

(a) The city manager may only delete existing vacant positions pursuant to this article through a written instrument created and executed by the city manager. The regulations and the form of the written instrument to be used for deleting existing vacant positions shall be approved as to form and correctness by the city attorney or his designee pursuant to Charter section 53.

(b) The city manager's deletion of vacant existing positions from a department shall not exceed ten (10) percent of the total positions authorized for that department at the beginning of the fiscal year, unless first approved by the council through a resolution or ordinance.
(Ord. No. 41,070, § 13, 6-17-03; Ord. No. 41,842, § 12C, 5-17-05)

ARTICLE III. CLASSIFICATION AND REGRADE

Sec. 2.1-5. Definitions.

For the purposes of this article, unless the context clearly indicates otherwise, the following terms are defined as follows:

(a) *Classification.* A group of positions or other employments authorized by ordinance which are sufficiently alike in powers and duties that they are described by the same title and are assigned to the same pay grade in a compensation plan.

(b) *Position.* An individual job; a group of powers and duties assigned to one person.

(c) *Regrade.* To change the pay grade assigned to a classification.
(Ord. No. 40,400, §§ 1—15, 6-26-01)

Sec. 2.1-6. Powers.

(a) *Council powers.* The council shall by ordinance fix the salaries of all officers and employees of the city, except the salaries of its own members and may, so far as is not inconsistent with the provisions of the Charter or this chapter, define the powers and prescribe the duties of all such officers and employees.

(b) *Civil service commission powers*. The civil service commission shall classify all the offices and places of employment in the city with reference to the examinations provided for in the Charter, except those offices and places mentioned in section 114 of the Charter. The offices and places so classified by the commission shall constitute the classified civil service of the city, and no appointment to any such offices and places shall be made except according to the commission's rules. The civil service commission may delegate its authority to implement its rules, except as prohibited by subsection 2.1-1(c) of this Code, as amended, to the director of human resources, but the commission shall continue to review and approve any revisions to its rules.
(Ord. No. 40,400, §§ 1—15, 6-26-01; Ord. No. 46,691, § 1, 12-20-16)

Sec. 2.1-7. Classification and regrades.

(a) *Generally.* The council shall by ordinance establish and regrade the compensation of every classification within the city.

(b) *Conditional classification.* The council may establish or regrade the compensation of classifications within the classified civil service of the city before formal classification or reclassification by the civil service commission. Under such circumstances, for the purpose of fixing compensa-

tion, the director of human resources shall file with the city clerk a writing certifying the existence of conditional classifications, classifications contingent upon subsequent civil service commission approval. These conditional classifications, and the compensation based upon them, shall be valid from the effective date of the ordinance fixing compensation until the civil service commission's final approval of them. The provisions of this subsection shall apply to sworn law enforcement officers in the department of police and sworn members of the department of fire and paramedical services.

(c) *Recruit classification.* Persons appointed to positions within the classification specification of police recruit or firefighter recruit, or any similar entry-level training classification for those departments if the current classification titles are ever revised, shall be members of their respective departments for purposes of calculating their probationary or at-will employment period under [sub]section 112(7) of the Charter of the City of Norfolk, 1918, as amended.

(d) *[Authority to establish new classifications.]* Pursuant to section 2.1-1 of the City Code, the city manager, or designee, has the authority to establish new classifications, during the fiscal year, as determined by operational needs.
(Ord. No. 40,400, §§ 1—15, 6-26-01; Ord. No. 43,139, § 1, 6-24-08; Ord. No. 45,954, § 18(A), 5-19-15, eff. 7-1-15)

ARTICLE IV. BONUSES AND ADMINISTRATIVE PAY ADJUSTMENTS*

Sec. 2.1-8. Authority.

The city manager is authorized to approve compensatory bonuses and administrative pay adjustments, pursuant to promulgated regulations.
(Ord. No. 41,070, § 13, 6-17-03; Ord. No. 44,741, § 11.1(c), 6-26-12, eff. 6-23-12)

*__Editor's note—__Ord. No. 44,741, § 11.1(c), adopted June 26, 2012, effective June 23, 2012, amended the title of Art. IV to read as herein set out. The article was formerly entitled "Bonuses."

Sec. 2.1-9. Limits upon bonuses.

The yearly limits upon compensatory bonuses and administrative pay adjustments are defined in the compensation plans and shall not exceed funding in departments' salary accounts.
(Ord. No. 41,070, § 13, 6-17-03; Ord. No. 44,741, § 11.1(c), 6-26-12, eff. 6-23-12)

ARTICLE V. SPECIAL PROJECT, LIMITED TERM EMPLOYMENT, AND PART-TIME EMPLOYMENT

DIVISION 1. SPECIAL PROJECT AND LIMITED TERM EMPLOYMENT

Sec. 2.1-10. Definitions.

(a) *Generally.* Certain terms used in this division shall have the meanings ascribed to them in this section, unless clearly indicated to the contrary.

(b) *Special project employee.* The term "special project employee" means an employee appointed for employment on projects or programs, who is qualified or eligible for appointment to the position in the classified service of the city. Special project employment may be for an unlimited term.

(c) *Substitute employee.* The term "substitute employee" means an employee appointed for a term not to exceed twelve (12) months, to fill an interim vacancy left by the absence of a permanent employee on military, educational or other extended leave or to fill an interim vacancy left by the appointment of a permanent employee to fill another position on an interim basis; and every such substitute employee shall be qualified or eligible for appointment to such position in the classified service of the city.

(d) *Temporary employee.* The term "temporary employee" means an employee appointed for a term not to exceed six (6) months.

(e) *Trainee employee.* The term "trainee employee" means an employee appointed for a term not to exceed twenty-four (24) months, who

at the time of his or her employment is not qualified or eligible for appointment to the position for which he or she is to be trained.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-11. Appointment of special project or limited term employees; application of article.

(a) The city manager, when authorized by ordinance, or in the case of substitute employees by either a writing created and executed by the city manager or by ordinance, may appoint persons to positions of limited term employment in the service of the city, which persons shall not be members of the classified or unclassified service and shall be identified as temporary, intermittent temporary, substitute or trainee employees. The conditions of employment, rights, benefits and limitations of persons appointed pursuant to this section shall be as prescribed in this division, unless otherwise specifically provided by ordinance, or in the case of substitute employees in either a writing created and executed by the city manager or by ordinance.

(b) The city manager, when authorized by either a writing created and executed pursuant to this article or when authorized by ordinance, may appoint persons to positions of special project employment or substitute employment in the service of the city, which persons shall not be members of the classified service under any circumstance, nor members of the unclassified service unless the writing or the ordinance so directs. The conditions of employment, rights, benefits and limitations of persons appointed pursuant to this subsection shall be as prescribed in this article, unless otherwise specifically provided in the writing or ordinance.

(c) The city manager may convert a special project position to a permanent classified position if the employee within the position has served at least six (6) months in a special project capacity, and has satisfactorily discharged the duties of the position while serving in it. Upon conversion of the position to permanent classified, the employee shall serve a period of probation of six (6) months, during which he shall remain an at will employee.
(Ord. No. 41,842, § 12C, 5-17-05; Ord. No. 46,969, § 1, 9-12-17)

Sec. 2.1-12. General restrictions on limited term employment.

In no event shall successive employments in any of the categories of limited term employment defined in section 2.1-10 or the employment of any person for a greater period than that specified for the type of limited term service for which he or she is employed, or the employment of any person in more than one of such categories of limited term service, or the transfer of any person from one category to another category of limited term service for the purpose of continuing or lengthening his or her term of employment, be allowed.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-13. Qualifications and eligibility.

The qualifications and eligibility for employment of substitute and special project employees shall be equivalent to those required by the civil service commission for appointment to comparable positions in the classified service of the city, unless otherwise specifically provided by ordinance or by a writing created and executed by the city manager. Trainee positions shall be created by ordinance as adjuncts to such principal positions in the classified service of the city as may be appropriate, and the qualifications and eligibility of persons for appointment to such positions shall be as provided by ordinance. The qualifications and eligibility for employment of temporary and intermittent temporary employees shall be as determined by the city manager, unless otherwise specifically provided by ordinance.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-14. Creation of new job classifications.

In the event that a job classification does not exist in the classification plan of the city for a position to which a person is to be appointed pursuant to this division, the civil service com-

mission shall create such a classification in the same manner as classifications for the classified service are established; provided, however, that the appointment of a person pursuant to this division to such a position shall not constitute him or her a member of the classified service of the city.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-15. Status, compensation and term of service.

The status, compensation and term of service of persons appointed pursuant to this division shall be fixed by the ordinance creating their positions or authorizing their appointment, except in the case of special project employment, when they shall be fixed by a writing created and executed by the city manager or by ordinance. However any permanent employee who is a member of the classified service immediately before his or her appointment, not on probation, and who is appointed for a term as a substitute or special project employee, shall retain all of the rights and benefits of classified status, and upon the expiration of such term of substitute or special project service, shall be entitled to resume his or her service in a classified position of no lesser rank than that held immediately prior to such substitute or special project service.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-16. Register; personnel records.

A separate register of all persons appointed pursuant to this division shall be maintained, and the individual personnel records of such employees shall reflect their employment status and the ordinance or executed writing by which their positions were created or their employment was authorized.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-17. Leave.

Trainee, substitute and special project employees shall be entitled to the same leave benefits that are provided for members of the classified service of the city, unless otherwise specifically provided by ordinance, or in the case of special project or substitute employees, by an ordinance or a writing created and executed by the city manager. Temporary and intermittent temporary employees shall not be entitled to leave benefits, unless otherwise specifically provided by ordinance.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-18. Insurance benefits.

No person appointed pursuant to this division, except substitute and special project employees who, immediately prior to their appointment in such capacity, were permanent members of the classified service and not on probation, shall be entitled to participate in health insurance programs made available to permanent, full-time city employees, unless specifically provided by ordinance, or in the case of substitute or special project employees, by an ordinance or a writing created and executed by the city manager.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-19. Reserved.

Editor's note—Ord. No. 48,436, § 1, adopted July 13, 2021, repealed § 2.1-19, which pertained to membership in retirement system and derived from Ord. No. 41,842, § 12C, adopted May 17, 2005. The user's attention is directed to Ch. 37, Retirement System.

Sec. 2.1-20. Discipline.

All persons appointed pursuant to this division, except officers in the departments of police and fire subject to the provisions of section 63 of the Charter, shall be subject to the disciplinary rules of the civil service commission applicable to general employees of the city.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-21. Dismissal.

All persons appointed pursuant to this division, except substitute and special project employees who, immediately prior to their appointment in such capacity, were permanent members of the classified service and not on probation, shall serve at the will of the city manager, and shall be subject to dismissal by him or her upon such conditions as he may prescribe, unless otherwise specifically provided by ordinance.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-22. Grievance procedure.

Persons appointed pursuant to this division shall not be entitled to utilize the city's grievance procedure unless expressly provided otherwise elsewhere within this Code.
(Ord. No. 41,842, § 12C, 5-17-05; Ord. No. 44,741, § 11.1(e), 6-26-12, eff. 6-23-12)

DIVISION 2. PART-TIME EMPLOYMENT

Sec. 2.1-23. Appointment generally; application of division.

The city manager may appoint persons to positions of employment in the service of the city which require fewer work hours than those required of full-time employees, to be designated as permanent part-time employees or casual part-time employees. The conditions of employment, rights, benefits and limitations of persons appointed pursuant to this section shall be as prescribed in this division.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-24. Permanent part-time employees—Defined; membership in classified service; method of appointment.

Permanent part-time employees shall be those appointed to positions requiring twenty (20) or more regularly scheduled hours of work per week, and service during at least thirty-six (36) calendar weeks each calendar year. Such employees shall be members of the classified service of the city and shall be certified as eligible by the civil service commission and appointed in the same manner as full-time members of the classified service.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-25. Same—Probationary period; disciplinary action or discharge.

Permanent part-time employees shall serve a probationary period of six (6) months before appointment or promotion is made complete, during which they may be discharged or reduced at the will of the city manager. After such period of probation, they shall not be reduced in rank, removed or discharged except in accordance with the provisions of subsection 112(7) of the Charter. Such employees, except officers in the departments of police and fire subject to section 63 of the Charter, shall be subject to the disciplinary rules of the civil service commission applicable to general employees of the city.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-26. Same—Leave and retirement benefits.

Permanent part-time employees shall be entitled to leave benefits and shall be entitled to participate in health insurance programs made available to permanent members of the classified service in the proportion which their hours of work bear to that of full-time members of the classified service. Beginning January 1, 1997, such employees shall be members of or entitled to benefits of the employees' retirement system of the city in the proportion which their hours bear to that of full-time members of the classified service.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-26.5. Retiree part-time employees defined; not members of classified or unclassified service; method of appointment; compensation.

(a) Retiree part-time non-sworn employees shall be those city retirees employed on an impermanent but regular, irregular, fluctuating or otherwise scheduled basis, so long as they work no more than one thousand forty (1,040) hours during any twelve-month period of time. Such employees shall not be members of either the classified or the unclassified service of the city, shall not be entitled to any leave or other benefits, and shall not be entitled to utilize the city's grievance procedure. They shall not be members of or entitled to any benefits under the employees' retirement system of the city of Norfolk or the Virginia retirement system, except for the purpose of collecting the pension from their previous service. They shall serve at the will of the city manager.

(b) Retiree part-time sworn employees shall be those city retirees who have reached public safety normal retirement age of fifty-five (55) or over, have had a break in service of at least sixty (60) days prior to commencing part time employment, and are employed on an impermanent but regular, irregular, fluctuating or otherwise scheduled basis. They may work no more than fifty percent (50%) of the average of their working hours before retirement during any twelve-month period. Such employees shall not be members of either the classified or the unclassified service of the city; shall not be entitled to any leave or other benefits; shall not be entitled to utilize the city's grievance procedure; and shall not be entitled to utilize the Norfolk Police Fire Trial Board or any other procedure that might accrue to non-probationary full-time Norfolk Police Officers or ordinary Norfolk employees under Norfolk's Charter and ordinances, codified or uncodified. They shall not be members of or entitled to any benefits under the Employees' Retirement System of the City of Norfolk or the Virginia retirement system, except for the purpose of collecting the pension from their previous service. They shall serve at the will of the city manager.

(c) The qualifications and eligibility of persons for employment pursuant to this Code section, as amended, beyond the criterion that they must be city retirees, shall be determined by the city manager; their compensation shall be as authorized in the ordinance creating their position or in the annual compensation plan ordinance and its attachments.

(d) Contingent upon the appointment not including membership in the employees' retirement system, the city manager may appoint city retirees to positions created pursuant to this Code section, as amended, without discontinuance of the pension part of their retirement allowance.

(Ord. No. 44,223, § 1, 4-19-11; Ord. No. 48,871, § 1, 7-19-22)

Sec. 2.1-27. Periodic part-time employees—Defined; not members of classified or unclassified service; compensation.

Periodic part-time employees shall be those employed for not more than nineteen and one-half (19½) or less than five (5) hours of regularly scheduled service per week, on a periodic or recurrent basis, and for service for some periods during at least twenty-seven (27) calendar weeks during a calendar year. Such employees shall not be members of the classified or unclassified service, and shall receive such compensation as is provided for by the ordinance authorizing their employment or the compensation plan of the city.

(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-28. Same—Method of appointment; qualifications; duration of service; employee benefits.

Periodic part-time employees shall be appointed by the city manager and shall have such qualifications as may be determined by the city manager. Such employees shall not be entitled to any leave benefits except such sick leave benefits as may be provided for in section 2-50 of this Code, funeral leave benefits as provided in section 2-53 of this Code, to the extent of their scheduled work hours during the period covered and birthday holiday leave, as provided for in subsection 2-48(11). Periodic part-time employees shall not be members of or entitled to any benefits under the employees' retirement system of the city; and shall serve at the will of the city manager.

(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-29. Intermittent part-time employees—Defined; not members of classified or unclassified service; compensation.

Intermittent part-time employees shall be those employed for indeterminate, fluctuating periods of hourly service, whose hours of work are not regularly scheduled, and who shall in no event work more than one thousand forty (1,040) hours

during a twelve-month period of time. Determinations of hourly service for such employees must be based upon a department's actual operational needs. Such employees shall not be members of the classified or the unclassified service of the city and shall receive such compensation as is provided for by the ordinance authorizing their employment or the compensation plan of the city.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-30. Same—Qualifications and eligibility; employee benefits; etc.

The qualifications and eligibility of persons for employment as intermittent part-time employees shall be determined by the city manager. Such employees shall not be entitled to any leave or other benefits, shall not be entitled to utilize the city's grievance procedure, shall not be members of or entitled to any benefits under the employees' retirement system of the city, and shall serve at the will of the city manager.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-31. Casual part-time employees—Defined; not members of classified or unclassified service; method of appointment; compensation.

Casual part-time employees shall be those employed for indeterminate, infrequent periods of hourly service and whose hours of work are not regularly scheduled, and who shall in no event, work more than twenty (20) hours per week. Persons who are regularly scheduled to work on a continuing basis shall not be characterized as casual part-time employees. Such employees shall not be members of the classified or the unclassified service of the city, and shall be appointed in such manner and shall receive such compensation as the ordinance authorizing their employment provides.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-32. Same—Qualifications and eligibility; employee benefits; etc.

The qualifications and eligibility of persons for employment as casual part-time employees shall be determined by the city manager. Such employees shall not be entitled to any leave or other benefits, shall not be entitled to utilize the city's grievance procedure, shall not be members of or entitled to any benefits under the employees' retirement system of the city and shall serve at the will of the city manager.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-33. Same—Register; personnel records.

A separate register of all persons employed as casual part-time employees shall be maintained, and the individual personnel records of such persons shall reflect their employment status and the ordinance by which their employment was authorized.
(Ord. No. 41,842, § 12C, 5-17-05)

ARTICLE VI. DIRECTOR OF HUMAN RESOURCES PERSONNEL MATTERS

DIVISION 1. DIRECTOR OF HUMAN RESOURCES

Sec. 2.1-34. Created.

Pursuant to the provisions of section 52 of the Charter, an administrative department of the city is hereby created to be known as the department of human resources.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-35. Director as department head.

The head of the department of human resources shall be known as the director of human resources.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-36. Duties of director.

Except as otherwise provided by the Charter and other laws of the state, and subject to the supervision and control of the city manager in all matters, the director of human resources shall be charged with the administration of the affairs of his or her department, shall be in charge of all matters relating to the recruiting, in-service training, transfers, vacations and sick leaves of all the employees of the city who are appointed

or employed by the city manager, and all other matters pertaining to such employees as relate to their service with the city which may be prescribed from time to time by the city manager, and shall perform such other duties as may be prescribed by the city manager or by the council.
(Ord. No. 41,842, § 12C, 5-17-05)

Sec. 2.1-37. Reserved.

Editor's note—Ord. No. 45,589, § 19(c), adopted June 10, 2014, effective July 1, 2014, repealed § 2.1-37, which pertained to bureaus created and derived from Ord. No. 41,842, § 12C, adopted May 17, 2005.

Sec. 2.1-38. Authority to obtain criminal history record information.

(a) It is the intent of the city council in adopting this section to comply with the provisions of the Code of Virginia, sections 15.2-1503.1, 15.2-1505.1 and 19.2-389 and Code of Virginia, Title 63.2, Subtitle IV, Chapter 17, Article 3 to enable the city manager and the director of human resources or designee, in the interest of public welfare and safety, to require fingerprinting and to access state and national criminal history record information to determine whether the past criminal, child protective services and/or sex offender registry searches of applicants, employees or volunteers for employment or service is compatible with the nature of each person's employment. The director of human resources shall determine the type and scope of the criminal record checks and any other background checks required for applicants, employees and volunteers of the city.

(b) Any applicant, employee or volunteer of the city shall, if required, submit to fingerprinting and provide personal descriptive information and any other necessary paperwork to be forwarded along with the fingerprints through the Virginia State Police Central Records Exchange to the Federal Bureau of Investigation for the purpose of obtaining state and national history record information regarding such applicant, employee or volunteer.

(c) Past criminal conduct shall not automatically disqualify applicants from employment and the information obtained as provided above in subsection (a) is to be considered only in instances when it is specifically relevant to the particular employment sought.
(Ord. No. 41,842, § 12C, 5-17-05; Ord. No. 45,084, § 14, 5-14-13, eff. 7-1-13)

DIVISION 2. EMPLOYEE RELATIONS*

Sec. 2.1-39. Consideration of employment matters.

It is the policy of the city to consider, regularly and with each annual budget, the wants and needs of both its employees and its citizens concerning public employment matters; and to promote orderly and constructive relationships between the city and its employees subject to the supreme right of the citizens of the city as exercised through the city council that their government honor guarantees for their health, safety, welfare, and the uninterrupted operations and functions of government. The city manager is directed to precede his or her annual budget recommendation with active attention to those interests as they may bear on compensation, benefits, working conditions, manning levels and efficiency. Upon submitting his or her budget recommendation, the city manager shall also submit a report to the council describing his or her compliance with the obligations prescribed in this division.
(Ord. No. 49,415, § 2, 11-28-23)

Sec. 2.1-39.1. City's rights and authority.

This division shall not be deemed in any way to limit or diminish the authority of the city to manage and direct the operations and activities of the city to the fullest extent authorized and permitted by law. Thus, the city retains exclusive rights including, but not limited to, the rights:

(a) to determine the type, location, and scope of work to be performed by city employees, and the manner in which services are to be provided;

*__Editor's note—__Ord. No. 49,415, § 2, adopted Nov. 28, 2023, amended Div. 2 in its entirety to read as herein set out. Former Div. 2, §§ 2.1-39—2.1-45, pertained to similar subject matter, and derived from Ord. No. 41,842, § 12C, adopted May 17, 2005.

(b) to direct the work of employees and determine the number of employees to perform any work or service;

(c) to hire, promote, transfer, assign, retain, classify and schedule all employees and to suspend, demote, discharge, or take other disciplinary action against employees;

(d) to set the salaries and wages of employees and to administer general or specific salary and wage increases, decreases, or other modifications;

(e) to relieve employees from duties by layoff or other reduction-in-force due to lack of work, changed working conditions/requirements, budget limitations or for other reasons in the city's reasonable business judgment and not prohibited by law;

(f) to introduce new, or different services, methods, equipment, or facilities;

(g) to contract for, expand, reduce, sell, transfer, convey, eliminate or change in any way the operations of general government, as well as any department, office or part thereof;

(h) to establish and change standards of behavior or performance, staffing levels, job qualifications and job descriptions;

(i) to determine the kind, type, location and use of city-owned equipment or facilities; provided that the city does not require use or operation of unsafe equipment or the unsafe operation of equipment;

(j) to maintain the efficiency and integrity of the operations entrusted to the city;

(k) to determine, maintain, and change the manner of execution, frequency, and other matters related to the payment, withholding, and other disposition of wages and salaries as well as the creation, maintenance, and disposition of personnel, pay, and other employment information systems and records;

(l) to establish, govern, modify, and administer the Employees' Retirement System of the City of Norfolk established under this Code and any other retirement programs or systems established or joined to benefit the employees of the City of Norfolk;

(m) to establish, modify, and administer employment benefits including healthcare, supplemental retirement, and other benefits of employment available to all permanent employees of the City of Norfolk;

(n) to determine its tax levies, budgets, and appropriations; and

(o) to do all things reasonable and necessary to carry out the mission of the city.

(Ord. No. 49,415, § 2, 11-28-23)

Sec. 2.1-40. Rules and regulations of city manager.

The city manager shall make and promulgate such additional rules and regulations as may be necessary to carry out the policy stated in this division. The city manager may designate the chief deputy city manager or a deputy city manager to perform the duties stated in this division only by a written directive issued prior to the obligation or as soon as practicable after the obligation has been fulfilled which sets forth the reason for the designation.

(Ord. No. 49,415, § 2, 11-28-23)

Sec. 2.1-41. Employee committees generally.

(a) The city manager shall arrange for the creation of employee committees to complement the communications described in this division. Only active, regular, full-time employees are eligible to vote and to serve on such committees. The size, form and tenure of the committees shall be prescribed by the city manager, subject to the minimum standards established herein. The city manager shall establish no fewer than four (4) committees. The city manager shall establish a police committee representing the department of police and a fire rescue committee representing the department of fire rescue. The city manager shall establish an operations committee representing the departments of public works and utilities, and may in his or her sole

discretion assign additional departments to the operations committee. The city manager shall establish a general employee committee representing the remaining departments of the city, and in his or her sole discretion may establish additional committees consistent with this subsection (a). Committees shall consist of at least three (3) and no more than twelve (12) members, subject to the following additional requirements. Committees representing more than one municipal department shall include at least one (1) representative from each represented department. For departments with more than four hundred (400) permanent employees, such departments shall have a committee member for every two hundred (200) permanent employees assigned to the department, with a maximum of four (4) members from that department. The city manager shall conduct elections through some neutral agency and shall not permit a committee member to sit more than three (3) years without standing for election; may appoint replacement members for employees resigned or removed, pending election; and may appoint additional committee members in excess of the twelve (12) prescribed above, not to exceed one-half (½) the original number, if the election for a committee unfairly excludes spokesmen for a distinct unit or type of employees.

(b) No meetings of a committee shall be on paid time, unless called as such by the city manager. The committees shall meet and confer with the city manager or designee no less than two (2) times per year.

In addition, the committees shall be available for further consultation with the city manager or his or her designee.
(Ord. No. 49,415, § 2, 11-28-23)

Sec. 2.1-42. Meetings of city manager with employee committees.

(a) The city manager shall meet with all employees in the various municipal departments through their appropriate employee committees, to discuss the subjects listed in section 2.1-39 and matters reasonably related thereto. To facilitate an orderly discussion, all such meetings shall be pursuant to reasonable notice and, as far as practicable, in accordance with a published agenda.

(b) The city manager shall submit to the council, with his or her budget recommendations, the agenda, dates, frequency, duration, procedures, employee groupings and location of the meetings required by this section, including a summary of matters discussed and his or her reasons for final action; provided, that:

(1) The city manager may initiate means other than the procedures prescribed by this division for communicating with supervisors and managers or may include all or some such persons in the employee meetings.

(2) The city manager shall schedule no less than two (2) meetings per fiscal year with each employee committee. Such meetings shall be no less than ninety (90) days apart and of no more than four (4) hours each.

(3) Only active, regular, full-time municipal employees may participate in the meetings prescribed herein; however, they shall endeavor to present the views of all employees.

(4) Subject to the law and to reasonable rules of order as the city manager may prescribe for such meetings, eligible employees shall be free to speak their minds on the topics without any fear or threat of reprisal.

(Ord. No. 49,415, § 2, 11-28-23)

Sec. 2.1-43. Work stoppages.

(a) In accordance with the provisions of Virginia law, employees or employee groups shall not engage in or encourage any work stoppage. For the purposes of this section, the term "work stoppage" includes, but is not limited to, a concerted failure to report for work, the willful absence from one's position or job assignment, the stoppage of work or the abstinence in whole or in part from the full, faithful and proper performance of the duties of employment by an employee, for the purpose of inducing, influenc-

ing or coercing a change in the conditions, compensation or the rights, privileges or obligations of employment. Failure to perform one's duty by respecting any picket line shall be considered participation in a work stoppage prohibited by this section. Nothing contained in this section shall be construed to limit, impair or abridge the right of any employee to the expression or communication of a view, grievance, complaint or opinion on any matter related to the conditions or compensation of his or her employment betterment, so long as the same is not designed to and does not interfere with the full, faithful and proper performance of the duties of employment.

(b) In addition to the sanctions against individual employees provided by section 40.1-55 of the Code of Virginia, if an employee or employee group shall give the city manager reasonable cause to believe that any violation of subsection (a) hereof has occurred, then the city manager shall request the city attorney to effect such restraints and sanctions as the city manager shall deem advisable, such as:

(1) Apply to any court of competent jurisdiction for enforcement of this section and section 40.1-55 of the Code of Virginia and other appropriate relief, including judicial sanctions for contempt, if necessary; and/or

(2) Suspend, discharge or take other disciplinary action against employees. In taking action pursuant to this subparagraph, the city shall not be required to exact equal discipline on all striking employees, but may impose equitable discipline to avoid crippling public services; and/or

(3) If the city or the public welfare is injured by reason of a violation of this section, the city may sue in any court of competent jurisdiction, and shall recover damages sustained by the city or the public welfare and the costs of such suit; and/or

(c) Nothing contained in this section shall limit the rights and remedies of the city under any state or federal law or before any court or tribunal of competent jurisdiction.
(Ord. No. 49,415, § 2, 11-28-23)

Sec. 2.1-44. Employee organizations; no legislative power or authority of employees or employee organizations to negotiate.

In accordance with the provisions of Virginia law, employees may form associations. Additionally, employees individually or through such associations may join or otherwise affiliate with labor organizations for the purpose of promoting their interests. Employees may elect to have membership dues in such organizations automatically deducted from their pay pursuant to rules and regulations promulgated by the city manager. Such election shall include the express agreement of the employee to hold the city harmless from any liability to any person or organization arising from the city's execution of the election, and such election shall be revocable upon the giving of reasonable notice of the employee to the city to suspend or terminate the deduction.

Nothing in this division shall ordain any committee, committee member, employee association, or labor organization with authority to engage in collective bargaining pursuant to Virginia Code section 40.1-57.2.
(Ord. No. 49,415, § 2, 11-28-23)

Sec. 2.1-45. Division not deemed inconsistent with state law, powers of civil service commission, etc.

Nothing in this division shall be deemed to be inconsistent with:

(1) Section 40.1-55 of the Code of Virginia, concerning prohibitions of strikes by public employees.

(2) The duties and powers of the civil service commission or the city manager with respect to the classification, qualifications, hiring, and other matters pertaining to the classified employees of the city.

(3) The employee grievance procedure required by section 15.2-1507 of the Code of Virginia, as it may be amended from time to time.

(4) The powers of the city, as prescribed in its Charter, to set the terms of employment for its employees, in the public interest.

(5) The powers of the city council, as prescribed in the Constitution of Virginia, the Virginia Code, or the City Charter, to set the city's budget and appropriate funds for the payment of all salaries, benefits, and other costs of employment of the city's employees.

(Ord. No. 49,415, § 2, 11-28-23)

ARTICLE VII. NORFOLK COMMUNITY SERVICES BOARD

DIVISION 1. CREATION AND DESIGNATION

Sec. 2.1-46. Creation.

Pursuant to the provisions of sections 52 and 141 of the Charter, as amended, and Code of Virginia, section 37.2-501, as amended, there is hereby created a new city department and a board of directors to it, with the name and designation assigned below. The board of directors shall participate in many of the duties and functions of the new department as further detailed below.

(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12)

Sec. 2.1-47. Name and designation.

The community services board for the city is hereby named the Norfolk Community Services Board (hereinafter "department") and its board of trustees are hereby designated as a policy advisory board functioning through the city as a city department, pursuant to section 37.2-500 of the Code of Virginia (1950), as amended.

(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12; Ord. No. 47,798, § 1, 10-22-19)

DIVISION 2. BOARD OF DIRECTORS

Sec. 2.1-48. Board of directors; composition and appointment of members.

(a) The board of directors of this new department shall consist of not less than six (6) or more than eighteen (18) persons approved and appointed by the council. The exact number of members is at the sole discretion of the council, so long as these limits are not exceeded. All members shall be citizens of the city. The membership of the board shall be as broadly representative as possible of all lay and professional elements of the community. One-third (⅓) of the appointments to the board shall be identified consumers or family members of consumers, at least one of whom shall be an individual receiving public or private mental health, developmental or substance abuse services.

(b) One (1) or more appointments may be non-governmental service providers. The sheriff or his or her designee also shall be appointed, when practical. No one performing the work of the department, or any employee or board member of an organization that receives funding from it or any other community service board, shall be appointed a member of the board of directors to the department. The board of directors shall not be composed of a majority of local government officials, elected or appointed; however, the council may appoint up to two (2) city officials, elected or appointed, including but not limited to council members, to the board of directors.

(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12)

Sec. 2.1-49. Terms of office; vacancies; removal.

(a) The term of office for each of member of the board of directors shall be for three (3) years from January 1 of the year of appointment. No person shall be eligible to serve more than three (3) full terms in a row; however, a person first appointed to fill an unexpired term may serve three (3) additional full three-year terms. The remainder of a term to which a member is first appointed to fill a vacancy shall not constitute a term in determining the members eligibility for reappointment. After the passage of a one-year period beginning with the end of the member's last consecutive three-year term, the council may reappoint that member, who may then serve, at the sole discretion of the council, an additional series of consecutive three-year terms.

(b) Pursuant to Code of Virginia, section 37.2-502, as amended, any member of the board of directors may be removed by the council for

cause after being given a written statement of the causes and an opportunity to be heard thereon. The term "cause" as used in this subsection includes, but is not limited to, a member's failure to regularly attend the meetings of the board of directors.

(c) Members of the board of directors shall serve without compensation.
(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12)

Sec. 2.1-50. Powers and duties.

The Norfolk Community Services Board shall have these powers and duties, and no others, as granted to such advisory boards pursuant to section 37.2-504(B) of the Code of Virginia (1950), as amended:

(a) Advise the local government regarding policies or regulations for the delivery of services and operation of facilities by this department, subject to applicable policies and regulations adopted by the Virginia Board of Behavioral Health and Developmental Services (hereinafter "board");

(b) Review and evaluate the operations of this department and advise the local governing body as to its findings;

(c) Review the community mental health, developmental, and substance abuse services provided by this department and advise the local governing body as to its findings;

(d) Review and comment on the performance contract, performance reports, and comprehensive state plan information developed by this department. These comments shall be attached to the performance contract, performance reports, and comprehensive state plan information prior to their submission to the local governing body;

(e) Advise the local government as to the necessary and appropriate actions to maximize the involvement and participation of individuals receiving services and family members of individuals receiving services in policy formation and services planning, delivery, and evaluation; and

(f) Participate in the selection of and in the annual performance evaluation of the local government department director employed by the city.

(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12; Ord. No. 47,798, § 2, 10-22-19)

DIVISION 3. DEPARTMENT OF LAW

Sec. 2.1-51. Legal advisor.

The city attorney shall be the legal advisor of the board of directors and the department, pursuant to the City's Charter provisions and ordinances, as amended, concerning the role and authority within the city government of the department of law and the city attorney.
(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12)

DIVISION 4. DEPARTMENT OF THE NORFOLK COMMUNITY SERVICES BOARD

Sec. 2.1-52. Initial appointments.

Those former employees of the independent corporate entity known prior to the effective date of this article as the Norfolk Community Services Board entering city service as a consequence of the dissolution of that entity shall be initially appointed to positions within the different services at the discretion of the city manager. After that initial appointment, any changes concerning those employees initially appointed to the classified service, including, but not limited to, discipline and promotion, shall be governed by the Charter, policies, City Code provisions and uncodified ordinances applicable to the classified service.
(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12)

Sec. 2.1-53. Executive director.

The head of the department shall be known as the executive director who shall be chosen pursuant to the requirements of section 50 of the Charter and Code of Virginia, section 37.2-504, as amended. For all other purposes, the employee

in the position of executive director shall be an ordinary department head and member of the ordinary unclassified service of the city.
(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12)

Sec. 2.1-54. Organization of department generally.

This department shall be composed of the following divisions:

(a) The division of community support services, which is charged with management of the following programs: Mental Health Case Management, Mental Health Support Services, Programs for Assertive Community Treatment, Projects for Assistance in Transition from Homelessness, Benefits Acquisition Program and Housing Liaison. The head of this division shall report directly to the executive director or the director's designee and be titled the assistant director for the division of community support services.

(b) Division of crisis and recovery services, which is charged with managing the following programs: Emergency, Forensics, Reinvestment, Census Management, Crisis Stabilization, Intensive Outpatient, Substance Abuse Case Management, Opiod Treatment Program and Disaster Response Services. The head of this division shall report directly to the executive director or the director's designee and be titled the assistant director of the division of crisis and recovery services.

(c) Division of developmental and assessment services, which is charged with managing the following programs: ID Group Homes, ID Case Management, Child and Adolescent Services, Infant Programs, Intake, Outpatient and VICAP. The head of this division shall report directly to the executive director or the director's designee and be titled the assistant director of the division of developmental and assessment services.

(d) The division of medical services, which is charged with managing the following programs: Medical, Nursing, Pharmacy, Integrated Care Clinic and Psychiatry. The head of this division shall report directly to the executive director or the director's designee and be titled the assistant director of the division of medical services.

(e) The division of administration, which is charged with managing the following programs: Finance, Health Care Informatics (IT), Contracts and Grants, Human Resources and Health Information Management. The head of this division shall report directly to the executive director or the director's designee and be titled the assistant director of the division of administration.

(f) The division of compliance, which is charged with managing the following programs: Consumer Relations, Quality Management and Regulatory Compliance. The head of this division shall report directly to the executive director or the director's designee and be titled the assistant director of the division of consumer relations and regulatory compliance.

This department shall also be composed of the following bureaus, the heads of which shall report directly to the executive director or the director's designee:

(a) The bureau of special management projects I, which is charged with assisting with individual management projects, as assigned by the executive director and at the director's sole discretion. The head of this bureau shall be titled the assistant director of the bureau of special management projects I.

(b) The bureau of special management projects II, which is charged with assisting with individual management projects, as assigned by the executive director and at the director's sole discretion. The head of this bureau shall be titled the assistant director of the bureau of special management projects II.

(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12)

Sec. 2.1-55. Duties and functions.

The department is charged with the supervision, management and performance of the provi-

sion of mental health, intellectual disability and substance abuse services for the city. In such activities the department will act in concert with the board of directors and its authority as established earlier in this article. The department shall provide services authorized under the annual performance contract, but only within amounts appropriated for that purpose. In accordance with the annual performance contract and in a manner consistent with all City Charter and Code provisions concerning agreements binding upon the city, the city may upon recommendation by the executive director and board of directors enter into contracts with other such service providers for the operation of facilities or the delivery of such services. Notwithstanding the provisions of Code of Virginia, section 37.2-400, as amended, or any regulations adopted thereunder, the department may release data and information about individual consumers to the Virginia Department of Behavioral Health and Developmental Services so long as that Virginia department implements procedures to protect the confidentiality of that data and information.
(Ord. No. 44,717, § 3, 6-12-12, eff. 7-1-12)

ARTICLE VIII. ADVISORY COMMITTEES AND COMMISSIONS

DIVISION 1. MILITARY ECONOMIC DEVELOPMENT ADVISORY COMMITTEE

Sec. 2.1-56. Definitions.

Certain words and phrases, when used in this division shall, for the purposes of this division, have the following meanings ascribed to them by this section, except where the context clearly indicates a different meaning.

(1) As used in this division, the word *"committee"* shall mean the military economic development advisory committee, herein established.

(2) As used in this division, the phrase *"senior officer"* shall mean a retired commissioned officer of the United States Armed Services or the uniformed services of any Federal department or agency having attained the rank of O-5 to O-10 (or equivalents), inclusive.

(3) The phrase *"senior enlisted person"* shall mean a retired enlisted member of the United States Armed Services having attained the rank of E-7 or above in the United States Armed Services or the uniformed services of any Federal department or agency, inclusive.

(4) As used in this division, the phrase *"qualified civilian"* shall mean a person having attained the grade of GS-15 (or equivalent) in the United States Civil Service, or who was appointed to the Senior Executive Service, U.S. Office of Personnel and Management, and having experience in the military areas represented by the various commands located in Norfolk.

(5) The word "council" shall mean the Council of the City of Norfolk.

(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-57. Established.

Pursuant to Section 141 of the Charter, an advisory committee to be known as the military economic development advisory committee is hereby established.
(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-58. Members; terms of members and vacancies.

The committee shall consist of at least ten (10) members who are retired senior officers, senior enlisted persons, or qualified civilians. Council may, in its discretion, instead appoint members who are not retired senior officers, senior enlisted persons, or qualified civilians. Of the initial members of the committee appointed by the council, the first appointments shall be as follows: three (3) members shall be appointed for a term of three (3) years, three (3) members shall be appointed for a term of two (2) years; and, the remaining members shall be appointed for a term of one (1) year. Subsequent appointments by the council shall be for a term of three (3)

years. Vacancies of council appointees on the committee shall be filled by the council for the unexpired terms.

The President of the Virginia Ship Repair Association and the Executive Vice President of the Virginia Maritime Association shall be invited to serve on the committee.

The Executive Director of the Hampton Roads Military and Federal Facilities Alliance shall be invited to serve on the committee.

The Special Assistant to the Norfolk City Manager for Veteran Services and Military Affairs shall be an advisor to the committee and will lead administration efforts.

The chairperson of the committee shall be a retired flag or general officer and shall serve for such term as the committee may determine; however, such term shall not exceed the chairperson's term of appointment by the council.
(Ord. No. 44,822, § 1, 8-28-12; Ord. No. 46,253, § 1, 2-9-16; Ord. No. 49,259, § 1, 7-11-23)

Sec. 2.1-59. Chairperson; quorum.

The committee shall elect a chairperson from its members and its meetings shall be held at the call of the chairperson. A majority of the committee members shall constitute a quorum for the transaction of all business and all matters shall be decided by a majority vote. Rules for the internal operation of the committee shall be adopted by the committee.
(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-60. Powers and duties.

The committee shall act in an advisory capacity to the mayor, city council, and city manager and shall have the following powers and duties:

(1) Support and strengthen city relations with all military and federal entities and their tenant commands;

(2) Identify for the city economic development opportunities with the various military and Federal agency commands that engage defense contractors in support of their mission, including working with the various military commands to assist private contractors in locating to and conducting business in Norfolk;

(3) As coordinated by the department of economic development with input from other regional workforce activities, and with the support of the military, seek to identify those service members who are separating from the military and who may be candidates for employment with businesses in Norfolk or other areas within the Hampton Roads; and

(4) Through regular liaison and communications, provide information to the city manager's office and the city council concerning military issues that may be addressed by the city to assist the various commands to carry out their respective missions.

(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-61. Members to serve without compensation.

The members of the committee shall serve as such without compensation.
(Ord. No. 44,822, § 1, 8-28-12)

DIVISION 2. VETERANS AFFAIRS ADVISORY COMMISSION

Sec. 2.1-62. Definitions.

As used in this division, the word *"commission"* shall mean the mayor's advisory commission on veterans affairs created by this division.
(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-63. Created.

Pursuant to Section 141 of the Charter, a commission is hereby created to be known as the mayor's advisory commission on veteran affairs.
(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-64. Members; terms of members and vacancies.

The commission shall consist of no less than ten (10) members to be appointed by the city council from the following Veteran Service

Organizations: Fleet Reserve Association, Disabled American Veterans, the Hampton Roads Chapter of the Military Officers Association of America, Veterans of Foreign Wars, American Legion, and the Vietnam Veterans of America. The Director of the MacArthur Memorial shall serve in an ex-officio capacity.

The commission shall consist of retired senior officers, senior enlisted persons or qualified civilians. Of the initial members of the commission appointed by the council, the first appointments shall be as follows: three (3) members shall be appointed for a term of three (3) years, three (3) members shall be appointed for a term of two (2) years; and, the remaining members shall be appointed for a term of one (1) year. Subsequent appointments by the council shall be for a term of three (3) years. Vacancies of council appointees on the commission shall be filled by the council for the unexpired terms.
(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-65. Chairperson; quorum.

The commission shall elect a chairperson from its members and its meeting shall be held at the call of the chairperson. A majority of the members shall constitute a quorum for the transaction of business. If any one Veteran Service Organization is represented by more than one (1) member, only one (1) member may cast a vote for that particular organization.
(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-66. Powers and duties.

The commission shall act in an advisory capacity to the mayor and shall have the following powers and duties:

(1) To advise on issues that may affect veterans.

(2) To make recommendations regarding city policies and ordinances that may affect veterans, including provision of benefits and services.

(3) To assist the city in organizing and conducting services and ceremonies appropriate to patriotic holidays.

(4) To offer assistance in the maintenance and upkeep of the Homecoming statue, the Lone Sailor statue, the Armed Forces Memorial and any other veteran statuary located on public property within the City of Norfolk.

(Ord. No. 44,822, § 1, 8-28-12)

Sec. 2.1-67. Members not compensated.

Members of the commission shall serve as such without compensation.
(Ord. No. 44,822, § 1, 8-28-12)

ARTICLE IX. ELIGIBLE LISTS

DIVISION 1. PUBLIC SAFETY

Sec. 2.1-68. Eligible lists for entry level positions within the department of police.

(a) *List formation.* Eligible lists for entry level positions within the department of police, regardless of classification but currently classified as police recruit, shall be formed and certified pursuant to the City Charter and the Rules of the Civil Service Commission.

(b) *List amendment.* Notwithstanding anything to the contrary in the Charter or the Rules, the civil service commission may amend such lists after initially certifying them so as to add new names to them at appropriate ranks and recertify the entire list, subject to the following restrictions: (i) no candidate may be added to an eligible list after its initial formation unless that candidate was chosen and ranked pursuant to the same tests and procedures used to form that list initially; and (ii) no amendment to a list shall extend the life of that list, which shall be determined from the date of the commission's initial certification of the list.
(Ord. No. 48,303, § 1, 2-9-21)

ARTICLE X. CLASSIFIED SERVICE—LIMITED COMPETITION FOR INITIAL APPOINTMENT AND PROMOTION—PROCEDURES

DIVISION 1. EMERGENCIES

Sec. 2.1-69. Emergency initial appointments and promotions within the classified service.

(a) *Policy.* The council hereby grants the city manager power only for use when emergencies require the city manager to fill vacant positions by initial appointment or promotion within specific classification specifications making up the classified service of the city as established by Sections 110 through 113 of the City Charter, as amended.

(b) *Authority.* This section authorizes the city manager in such emergencies, subject to the restrictions included within this section, to ignore the requirements of the City Charter and the Rules of the Civil Service Commission governing initial appointment into positions within the classified service, including but not limited to those applicable to the creation of eligible lists and the appointment or promotion of applicants off those lists.

(c) *Limitations on authority.* Such powers are granted pursuant to section 2.1-1 of this Code, as amended, and section 15.2-1131 of the Code of Virginia, 1950, as amended. Such powers shall not extend to the initial appointment of applicants into recruit or sworn classified positions within the departments of police and fire-rescue. However, such powers shall extend to promotions within sworn classified positions in those two departments.

(d) *Justification of emergency action.* The exercise of this power may be justified for various reasons or combinations of reasons resulting in emergency circumstances, including but not limited to a sustained health emergency affecting the ability to fill positions within specific classifications within the classified service, such as the continuing COVID-19 pandemic beginning in the United States in approximately January of 2020.

(e) *Written declaration of emergency circumstances.* The city manager or appropriate designee, such as the director of human resources, shall initiate an emergency action instituted pursuant to this authority with a written statement as to the nature of the emergency dictating the necessity to exercise the power granted by this section. This statement shall include the specific beginning and ending dates for such emergency actions. No such emergency action shall be for more than three months. Each emergency action declared pursuant to this section shall list all classifications within the classified service whose positions will be subject to initial appointment or promotion under the emergency action. The list of classifications subject to initial appointment or promotion under the emergency action may be amended in writing up to the beginning date of the emergency action and during it as necessary. The written declaration required by this subsection shall constitute conclusive evidence that the declared emergency qualifies for the use of the authority granted in this section.

(f) *Procedures to be competitive to the extent practicable.* In exercising the power granted by this section and initiating an emergency action pursuant to this section, the city manager shall to the maximum extent practicable follow competitive principles in choosing amongst applicants for initial appointment or promotion. However, the city manager is authorized to waive competition entirely where circumstances preclude it, such as the promotion of all members within a classification specification to positions in another classification specification. Examinations conducted pursuant to this power shall be practical in their character and related to those matters which will fairly test the relative capacity of the persons examined to discharge the duties of the positions to which they seek to be appointed. The city manager is hereby authorized to promulgate regulations governing procedures for these appointments and promotions consistent with this section.

(g) *Probationary period.* All applicants appointed or promoted into positions within classification specifications of the classified service of the city pursuant to the authority of this section shall serve a probationary period of twelve (12) months.

(h) *Exclusions.* In addition to the exclusion above regarding initial appointments but not promotions to sworn positions, this section shall not apply to initial appointments or promotions to positions excluded from the classified service by section 114 of the City Charter, as amended, or to initial appointments or promotions to positions excluded from both the classified and unclassified service by section 114.1 of the City Charter, as amended.

(Ord. No. 48,687, § 1, 2-22-22; Ord. No. 48,804, § 1, 6-14-22)

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Chapter 3

RESERVED*

*__Editor's note—__Section 1 of Ord. No. 37,191, adopted April 13, 1993, repealed Ch. 3, which consisted of §§ 3-1—3-9. Former Ch. 3 pertained to advertising and derived from Code 1958, §§ 3-1—3-3, 3-5—3-7, 3-7.1, 3-8, 3-9.

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Chapter 4

AIRPORT*

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ARTICLE I. IN GENERAL

Sec. 4-1. Definitions.

(a) *Generally.* Certain words and terms used in this chapter shall have the meanings ascribed to them in this section, unless clearly indicated to the contrary.

(b) *Airport.* The word "airport" means the Norfolk International Airport, the boundaries of which are as shown on a master plan on file with the director of public works.

(c) *Airport manager.* The term "airport manager" means the manager of the Norfolk International Airport, or his duly authorized representative.

(d) *Port authority.* The term "port authority" means the Norfolk Port and Industrial Authority established by the Acts of the General Assembly 1948, Chapter 463, as amended.
(Code 1958, § 4-1)

Charter reference—Port and industrial authority, § 144(a) et seq.

Sec. 4-2. Violations of chapter.

Unless otherwise specifically provided, a violation of any provision of this chapter shall constitute a Class 2 misdemeanor.
(Code 1958, § 4-67)

Sec. 4-3. Operation and maintenance by port authority; adoption of rules and regulations.

The operation and maintenance of the airport is hereby placed under the management and control of the port authority. The authority is authorized to adopt, from time to time, such rules and regulations, and to establish such fees and charges for the operation, maintenance and use of such airport, as it may deem expedient and necessary, and shall have the authority to enforce the same.
(Code 1958, § 4-2)

Charter reference—Port authority, § 144(a) et seq.

Sec. 4-4. Person entering airport property to be governed by certain laws, orders, etc.

All persons having entered on the airport property shall be governed by all pertinent federal, state and local laws, by the provisions of this chapter and by orders and instructions of the port authority relative to the use or occupation of any part of the airport property.
(Code 1958, § 4-3)

Sec. 4-5. Conduct of business or commercial activities generally.

No person shall engage in any business or commercial activity of any nature whatsoever on the airport, except by special written agreement with the port authority and under such terms and conditions as it may prescribe.
(Code 1958, § 4-4)

Sec. 4-6. Commercial photography.

No person shall take still, motion or sound pictures for commercial purposes on the airport, except by special agreement with the port authority, with the right reserved to the port authority to deny permission to any person to take pictures of any nature, where such denial is in the interest of public safety or national defense.
(Code 1958, § 4-8)

Sec. 4-7. Solicitation of funds.

No person shall solicit funds for any purpose on the airport, except as provided in chapter 40 of this Code.
(Code 1958, § 4-7)

Sec. 4-8. Entering restricted areas.

No person shall enter any restricted area at the airport, which area is posted as being closed to the public, except:

(1) Persons assigned to duty therein.

(2) Persons under the supervision and control of the airport manager or other personnel duly authorized to enter such restricted area.

(3) Passengers under appropriate supervision entering the apron for the purposes of embarkation and debarkation.

(Code 1958, § 4-5)

Sec. 4-9. Use of roads and walks; obstruction thereof.

No person shall travel on the airport Other than on the roads, walks or places provided for the particular class of traffic; nor shall any person use the airport roads or walks in such manner as to hinder or obstruct their proper use.
(Code 1958, § 4-9)

Sec. 4-10. Animals prohibited on Norfolk Airport Authority property.

(a) No animals shall be permitted on Norfolk Airport Authority property unless such animals are being shipped by air.

(b) This section shall not apply to:

(1) Every totally or partially blind person shall have the right to be accompanied by a dog/ animal, in harness, trained as a guide animal, every deaf or hearing-impaired person shall have the right to be accompanied by a dog/animal trained as a hearing animal on a blazed orange lease, and every mobility-impaired person shall have the right to be accompanied by a dog/animal, in a harness or backpack, trained as a service dog/animal; provided that he shall be liable for any damage done to the premises or facilities by such dog/animal.

(2) As used in this section, "hearing dog/ animal" means a dog/animal trained to alert its owner by touch to sounds of danger and sounds to which the owner should respond.

(3) As used in this section, "service dog/ animal" means a dog/animal trained to accompany its owner for the purpose of carrying items, retrieving objects, pulling a wheelchair or other such activities of service or support.

(4) As used in this section, "mobility-impaired person" means any person who has completed training to use a dog/animal for service or support because he/she is unable to move about without the aid of crutches, a wheelchair or any other form of support or because of limited functional ability to ambulate, climb, descend, sit, rise or perform any related function.

(5) Any animal utilized in law enforcement.

(c) Any violation of this section shall constitute a Class 1 misdemeanor.
(Code 1958, § 4-10; Ord. No. 35,735, § 1, 9-19-89)

Sec. 4-11. Disposition of lost articles.

Any person finding lost articles at the airport shall deposit them at the office of the airport manager, who shall return such articles to the lawful owner upon proper identification. Unclaimed articles shall be held by the airport manager for a period of sixty (60) days and disposed of as determined by the Norfolk Airport Authority.
(Code 1958, § 4-11; Ord. No. 46,150, § 1, 12-8-15)

Sec. 4-12. Disposition of waste material.

Garbage, paper, refuse and other waste material at the airport shall be placed in receptacles provided for that purpose.
(Code 1958, § 4-12)

Cross reference—Solid waste, Ch. 41.

Sec. 4-13. Accident reports.

Witnesses of, and participants in, accidents on or within the airport shall make a full report thereof to the airport manager as soon after the accident as possible, together with their names and addresses.
(Code 1958, § 443)

Sec. 4-14. Reserved.

Editor's note—Ord. No. 42,851, § 1, adopted Sept. 18, 2007, repealed § 4-14, which pertained to possession of firearms, explosives, etc., and derived from Code 1958, §§ 4-14, 4-15.

Secs. 4-15—4-30. Reserved.

ARTICLE II. MOTOR VEHICLE REGULATIONS*

Sec. 4-31. Driving on apron of terminal building and landing areas.

No person shall drive a vehicle on the aprons of the airport terminal building or the aircraft landing areas, except:

(1) Persons assigned to duty thereon.

(2) Persons authorized by the airport manager in cases of emergency involving danger to life or property, or where it is necessary for the operation of the airport. (Code 1958, § 4-6)

Sec. 4-32. Speed limits.

(a) *Thirty-five miles per hour.* No person shall drive any vehicle along the following streets at the airport at a speed in excess of thirty-five (35) miles per hour:

(1) Departures Boulevard West, from the airport boundary to a point two hundred (200) feet west of the intersection of Departures Boulevard West and Motel Lane.

(2) Arrivals Boulevard, from Departures Boulevard West to one hundred fifty (150) feet north of Arrivals Boulevard West.

(3) International Road, from Robin Hood Road to the juncture of International Road East and International Road West.

(b) *Twenty-five miles per hour.* No person shall drive any vehicle along the following streets at the airport at a speed in excess of twenty-five (25) miles per hour:

(1) Departures Boulevard West, from a point two hundred (200) feet west of the intersection of Departures Boulevard West and Motel Lane to Departures Boulevard East.

(2) Departures Boulevard East, from Terminal Road to Arrivals Boulevard.

(3) Entrance Road, from Arrivals Boulevard to the long term parking lot.

(4) International Road East and International Road West.

(c) *Fifteen miles per hour.* No person shall drive any vehicle along the following streets and public parking lots at the airport at a speed in excess of fifteen (15) miles per hour:

(1) Departures Boulevard East, from Departures Boulevard West to Terminal Road.

(2) Arrivals Boulevard, from a point one hundred fifty (150) feet north of Arrivals Boulevard West to Arrivals Boulevard West.

(3) Arrivals Boulevard West, from Arrivals Boulevard to Arrivals Boulevard East.

(4) Arrivals Boulevard East, from Arrivals Boulevard West to Arrivals Boulevard.

(5) Terminal Road, from Arrivals Boulevard West to Departures Boulevard East.

(6) Motel Lane, from Departures Boulevard West to the airport motel.

(7) Exit Road, from the long term parking lot to International Road East.

(8) All public parking lots.

(d) *Five miles per hour.* No person shall drive any vehicle in the following areas of the airport at a speed in excess of five (5) miles per hour:

(1) Passenger terminal building merchandise delivery area.

(2) Tug drive within the passenger terminal building.

(e) *Limits to be posted.* No person shall be convicted of a violation of this section unless the speed limits are clearly indicated by conspicuous signs or markers. (Code 1958, § 4-19)

Sec. 4-33. One-way streets.

(a) *Generally.* No person shall drive any vehicle upon the streets designated in the

*Cross reference—Motor vehicle code, Ch. 25.

following subsections of this section, between the designated points, in a direction other than that indicated for the particular streets in such subsections; provided, however, that no person shall be convicted of a violation of this section unless signs or markers, indicating the direction in which traffic is to travel, have been properly posted.

(b) *Departures Boulevard West.* Departures Boulevard West shall be a one-way street for southbound traffic only, from the airport boundary to Departures Boulevard East.

(c) *Departures Boulevard East.* Departures Boulevard East shall be a one-way street for northbound traffic only, from Departures Boulevard West to Arrivals Boulevard.

(d) *Arrivals Boulevard West.* Arrivals Boulevard West shall be a one-way street for southbound traffic only, from Arrivals Boulevard to Arrivals Boulevard East.

(e) *Arrivals Boulevard East.* Arrivals Boulevard East shall be a one-way street for northbound traffic only, from Arrivals Boulevard West to Arrivals Boulevard.

(f) *International Road West.* International Road West shall be a one-way street for southbound traffic only, from International Road to B Street.

(g) *Entrance Road.* Entrance Road shall be a one-way street for southbound traffic only, from Arrivals Boulevard to the long term parking lot.

(h) *Exit Road.* Exit Road shall be a one-way street for westbound traffic only, from the long term parking lot to Departures Boulevard East.

(i) *Motel Lane.* Motel Lane shall be a one-way street for southbound traffic only, from Departures Boulevard West to the airport motel. (Code 1958, § 4-19.1)

Sec. 4-34. Stop intersections.

(a) *Generally.* The drivers of vehicles at the airport shall obey the directions prescribed in this section; provided, however, that no person shall be convicted of a violation of this section, unless clearly indicated stop signs or markers are erected and maintained at the intersections designated.

(b) *Exit Road and Departures Boulevard East.* The driver of every vehicle proceeding west on Exit Road shall, immediately before crossing or entering the intersection of Exit Road and Departures Boulevard East, shall bring his vehicle to a complete stop and, upon crossing or entering Departures Boulevard East, shall yield the right-of-way to vehicles approaching on Departures Boulevard East.

(c) *Exit Road and Departures Boulevard West.* The driver of every vehicle proceeding east on Exit Road shall, immediately before crossing or entering the intersection of Exit Road and with Departures Boulevard West, shall bring his vehicle to a complete stop and, upon crossing or entering Departures Boulevard West, shall yield the right-of-way to vehicles approaching on Departures Boulevard West. (Code 1958, § 4-19.2)

Sec. 4-35. Yield intersections.

The driver of every vehicle proceeding on the first hereinafter designated street shall, upon crossing or entering the second hereinafter designated street, yield the right-of-way to vehicles approaching on the second designated street:

(1) Arrivals Boulevard East, at its intersection with Arrivals Boulevard West, where vehicles on Arrivals Boulevard East shall, upon crossing or entering Arrivals Boulevard West, yield the right-of-way to vehicles approaching on Arrivals Boulevard West.

(2) International Road East, at its intersection with Exit Road, where northbound vehicles on International Road East shall, upon crossing or entering Exit Road, yield the right-of-way to vehicles approaching on Exit Road.

No person shall be convicted of a violation of this section, unless clearly indicated signs or markers are erected and maintained at the intersections designated. (Code 1958, § 4-19.3)

Sec. 4-36. Intersections where right turns prohibited.

It shall be unlawful for any person driving any vehicle to make or attempt to make the following right turns:

(1) No right turn as to southbound traffic on Arrivals Boulevard West, from Arrivals Boulevard West into the Service area.

(2) No right turn as to traffic on Departures Boulevard East, from Departures Boulevard East into Exit Road.

No person shall be convicted of a violation of this section, unless signs or markers, clearly indicating no such right turns, are erected and maintained at the intersections designated. (Code 1958, § 4-19.4)

Sec. 4-37. Intersections where left turns prohibited.

It shall be unlawful for any person driving any vehicle to make or attempt to make the following left turns:

(1) No left turn as to traffic on Departures Boulevard West, from Departures Boulevard West into Exit Road.

(2) No left turn as to westbound traffic on Terminal Road, from Terminal Road into Departures Boulevard East.

No person shall be convicted of a violation of this section, unless signs or markers, clearly indicating no such left turns, are erected and maintained at the intersections designated. (Code 1958, § 4-19.5)

Sec. 4-38. Zones for regulating parking and stopping—Generally.

(a) *Generally.* For the purpose of regulating the parking and stopping of vehicles at the airport, the classes of zones specified in the following subsections of this section are hereby authorized and adopted.

(b) *Public parking zone.* A public parking zone is a zone where all vehicles shall be parked, except vehicles for which a special parking zone is provided herein. It may be designated by signs erected at the entrance to the zone. Persons using the public parking zone shall pay the rates posted at the entrance to the zone.

(c) *No parking zone.* A no parking zone is a zone in which parking of all vehicles shall be prohibited. It may be designated by painting on the roadway or curb or by the erection of a sign so indicating or by both such painting and signs.

(d) *Passenger loading zone.* A passenger loading zone is a zone in front of the entrances to the terminal building exclusively set apart for the loading and unloading of passengers and their baggage. It may be designated by the painting of the curb or roadway or by the erection of a sign or by both such painting and signs. After passengers and their baggage are loaded or unloaded, vehicles using the zone for this purpose shall immediately leave the zone.

(e) *Merchandise loading zone.* A merchandise loading zone is a zone exclusively set apart for the loading and unloading of merchandise, freight, fuel and supplies for airlines and concessionaires operating at the airport and for the airport management. It may be designated as a merchandise, freight or fuel loading and unloading zone, in which event it shall be for the exclusive use indicated. It may be designated by the painting of the curb or roadway or by the erecting of a sign so indicating or by both such painting and signs.

(f) *Limousine parking zone.* A limousine parking zone is a zone exclusively set apart for the concessionaire operating vehicles carrying passengers and their baggage to and from the airport pursuant to a written contract with the port authority, and may, by a sign so indicating, be designated for the exclusive use of such vehicles.

(g) *Car rental zone.* A car rental zone is a zone exclusively set apart for vehicles rented to patrons of the airport, without an operator or chauffeur, pursuant to a written contract

with the port authority, and may, by a sign so indicating, be designated for the exclusive use of such vehicles.

(h) *Employee parking zone.* An employee parking zone is a zone exclusively set apart for vehicles of tenants, employees and concessionaires of the airport, and may, by a sign so indicating, be designated for the exclusive use of such vehicles.

(i) *Nonstop zone.* A nonstop zone is a zone in which it shall be unlawful for the operator of any vehicle to stop such vehicle, except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or traffic sign or signal. Such space may be designated by a painted curb or roadway or by a sign reading "Stopping Prohibited," or other words clearly so indicating, or by both such painting and signs. (Code 1958, § 4-16)

Sec. 4-39. Same—Authority of city manager; violations.

The city manager is hereby authorized to designate such portions of the streets, lanes, alleys or roadways at the airport as, in his judgment, will be most compatible with the public interest for creating the zones referred to in section 4-38, to regulate the stopping and parking of vehicles, and to put the regulations for such zones into effect. Whenever any such zone is established, it shall be appropriately designated and marked by painting or signs or both, and when so designated or marked, it shall be unlawful for any person to stop or park or cause or permit to be stopped or parked any vehicle contrary to such sign or marking. (Code 1958, § 4-17)

Sec. 4-40. Operation of or soliciting for public vehicles.

It shall be unlawful for any person operating a taxicab, for-hire car, bus or other public conveyance licensed to carry passengers or property for hire to pick up passengers or property for transportation from the terminal building at the airport, or ways adjacent thereto, to points beyond the airport, or to solicit, by hand, signal or otherwise, employment for such vehicles at the terminal building, or ways adjacent thereto, unless such operation or service is by special agreement, in writing, with the port authority, for a fixed term and under such terms and conditions and for such fees and charges as are agreed upon in the written agreement. A "public conveyance," under the provisions of this section, shall also be deemed to include any vehicle, the owner or operator of which has a contract with, or is subject to call by, any airline, concessionaire or other person doing business at the airport, with or without compensation, to pick up persons or property for transportation from the terminal building, or ways adjacent thereto, to points beyond the airport. (Code 1958, § 4-18)

Cross reference—Public vehicles, Ch. 34.

Secs. 4-41—4-56. Reserved.

ARTICLE III. FIRE PREVENTION GENERALLY*

Sec. 4-57. Standards for heating equipment and fuel-burning appliances.

All heating equipment and fuel-burning appliances installed on the airport shall be in accordance with the standards established by the American Insurance Association. (Code 1958, § 4-31)

Sec. 4-58. Fire-fighting appliances.

All buildings on the airport shall be provided with first-aid fire-fighting appliances in accord with the standards established by the American Insurance Association. (Code 1958, § 4-32)

Sec. 4-59. Use of flammable liquids for cleaning aircraft, parts, etc.

No person shall use, at the airport, flammable volatile liquids in the cleaning of aircraft, aircraft engines, propellers and appliances

*Cross reference—Fire prevention, Ch. 17.

unless such cleaning operations are conducted in open air or in a room sufficiently set aside for that purpose, which room shall be properly ventilated, fireproofed and equipped with adequate and readily accessible fire extinguishing apparatus. (Code 1958, § 4-21)

Sec. 4-60. Use of flammables for cleaning of floors.

No person shall use volatile flammable substances for cleaning floors in the hangars or in other buildings of the airport. (Code 1958, § 4-28)

Sec. 4-61. Floors to be free of flammable material.

All lessees on the airport shall keep the floors of the hangars and hangar and terminal apron pits and areas adjacent thereto, leased by them respectively, free and clear of oil, grease and other flammable material. (Code 1958, § 4-29)

Sec. 4-62. Open-flames operations.

No person shall conduct any open-flame operations in any hangar or part thereof at the airport. This section shall not apply to the machine shop of a base operator. (Code 1958, § 4-22)

Sec. 4-63. "Doping" operations.

"Doping" processes shall be conducted at the airport only in designated and properly fireproofed and ventilated rooms or buildings in which all illumination, wiring, heating, ventilation equipment, switches, outlets and fixtures shall be spark-proof and vapor-proof. No person shall enter or work in a "dope" room while "doping" processes are being conducted, unless such person wears spark-proof shoes. (Code 1958, § 4-30)

Sec. 4-64. Storage of material or equipment so as to institute fire hazard.

No person shall store or stock material or equipment in such manner as to constitute a fire hazard at the airport. (Code 1958, § 4-23)

Sec. 4-65. Storage of flammable material generally.

No person shall keep, store or discard any flammable liquids, gases, signal flares or other similar material in the hangars or in any building on the airport; provided, that such materials may be kept in aircraft for such purpose, or in rooms or areas specifically approved for such storage by the airport manager. (Code 1958, § 4-24)

Sec. 4-66. Storage of oils in hangars.

No person shall keep or store lubricating oils in the hangars at the airport; provided, that such material may be kept in aircraft in proper receptacles installed in the aircraft for such purpose or in containers provided with suitable draw-off devices, or in sealed containers at locations approved by the airport manager. (Code 1958, § 4-25)

Sec. 4-67. Waste containers in hangars; removal of waste.

Lessees of hangars at the airport shall provide suitable metal receptacles, with self-closing covers, for the storage of oily wastes, rags and other rubbish. All such waste shall be removed by the lessees daily. (Code 1958, § 4-26)

Sec. 4-68. Smoking in prohibited areas.

No person shall smoke in any hangar, building, room or other place on the airport where smoking is specifically prohibited. (Code 1958, § 4-26)

Secs. 4-69—4-84. Reserved.

ARTICLE IV. GENERAL AIRCRAFT REGULATIONS

Sec. 4-85. Compliance with federal and state rules and regulations.

No person shall navigate any aircraft, land the same on, or fly the same from, the airport, or service, maintain or repair any aircraft, or conduct any aircraft operations on

or from the airport otherwise than in conformity with current federal aviation agency rules and regulations established under federal authority, and rules and regulations established by the state corporation commission. (Code 1958, § 4-33)

Sec. 4-86. Air traffic rules.

The air traffic rules established by the federal aviation agency, are hereby adopted by reference and made a part of this article as fully as if the same and each and all of them were set forth herein. (Code 1958, § 4-34)

Sec. 4-87. Authority of airport manager to delay or restrict flight.

The airport manager may delay or restrict any flight or other operations at the airport and may ground any aircraft in case of an emergency, in the interest of safety, or where the rules and regulations in this chapter are being violated. (Code 1958, § 4-40)

Sec. 4-88. Pilot, members of crew, etc., not to be under influence of liquor or drugs.

No pilot or other member of the crew of an aircraft in operation on the airport, or any person attending or assisting in such operation, shall be under the influence of intoxicating liquor or habit-forming drugs. (Code 1958, § 4-41)

Sec. 4-89. Take-offs and landings generally.

All aircraft take-offs and landings at the airport shall be made by contact with the control tower and shall be made at safe distances from other aircraft and from all buildings, automobile parking areas and other obstructions. (Code 1958, § 4-39)

Sec. 4-90. Brakes and radio receiver.

No person shall land any aircraft at the airport, or take off any aircraft from the airport, unless the aircraft is equipped with brakes and a functioning radio receiver capable of receiving radio instructions from the airport air traffic control tower, unless he has received permission for such landing or take-off from the control tower. (Code 1958, § 4-35)

Sec. 4-91. Payment for service to be made before request for flight clearance.

Payment for storage, repairs, supplies or other service rendered by the airport shall be made before request for flight clearance, unless satisfactory credit arrangements have been made with the base operator or, if there is no base operator, with the airport manager. (Code 1958, § 4-36)

Sec. 4-92. Restrictions on starting and running engines.

(a) Aircraft shall be started and warmed up at the airport only in places designated for such purposes by the airport manager. Whenever possible, engines shall not be operated in such a position that hangars, shops or other buildings or spectators shall be in the path of the propeller slip stream.

(b) No aircraft engine shall be started or run at the airport, unless a licensed pilot or mechanic shall be attending the controls. Blocks equipped with ropes or other suitable means of blocking an aircraft shall always be placed in front of the main landing wheels before starting the engine, unless the aircraft is equipped with adequate locking brakes.

(c) No aircraft engine shall be run in any hangar at the airport.

(d) No person shall start the engine of any aircraft when there is gasoline or other flammable material on the ground under such aircraft. (Code 1958, §§ 4-47—4-49, 4-66)

Sec. 4-93. Taxiing generally.

Following a landing or prior to take-off and while taxiing, the pilot of an aircraft at the airport shall assure himself that there is no danger of collision with other aircraft taking

off, landing or taxiing. All aircraft shall be taxied under full control and at reasonable speeds. (Code 1958, § 4-46)

Sec. 4-94. Right-of-way of taxiing aircraft.

Taxiing aircraft shall have the right-of-way at the airport over all ground self-propelled vehicles. (Code 1958, § 4-50)

Sec. 4-95. Taxiing into or out of hangars.

Aircraft shall not be taxied into or out of hangars at the airport. (Code 1958, § 4-45)

Sec. 4-96. Storage and repairs to be in designated spaces.

Aircraft shall be stored and repairs made in the spaces designated for the purpose by the base operator or, if there is no base operator, by the airport manager. (Code 1958, § 4-37)

Sec. 4-97. Unattended aircraft.

No aircraft shall be left unattended on the airport, unless properly secured or within a hangar. Owners of aircraft shall be held responsible for any damage resulting from failure to comply with this section. (Code 1958, § 4-38)

Sec. 4-98. Disposal of disabled aircraft and parts.

Aircraft owners, their pilots or agents, shall be responsible for the prompt disposal of disabled aircraft and parts thereof, unless required or directed to delay such action pending an investigation of an accident. (Code 1958, § 4-42)

Sec. 4-99. Unauthorized persons not to take or use aircraft or parts, etc., thereof.

No person shall take or use any aircraft or parts, instruments or tools thereof, owned, controlled or operated by any other person, while the same are stored, housed or otherwise left on the airport or within its hangars, without the written consent of the owner or operator thereof, or satisfactory evidence of the right to do so duly presented to the airport manager. (Code 1958, § 4-44)

Sec. 4-100. Helicopters—Clearance between rotors and other aircraft or movable objects.

Helicopters shall not be taxied, towed or otherwise moved at the airport, with rotors turning, unless there is a clear area of at least fifty (50) feet from the outer tip of each rotor and any other aircraft or movable object. (Code 1958, § 4-51)

Sec. 4-101. Same—Braking devices or rotor mooring blocks.

Helicopters operated at the airport shall have braking devices or rotor mooring blocks applied to the rotor blades. (Code 1958, § 4-52)

Secs. 4-102—4-117. Reserved.

ARTICLE V. FUELING AND DEFUELING AIRCRAFT

Sec. 4-118. Not to be conducted near hangar or other building.

The fueling and draining of aircraft shall be conducted at least fifty (50) feet from any hangar or other building at the airport. (Code 1958, § 4-64)

Sec. 4-119. Prohibited while engine running.

No aircraft shall be fueled or drained of fuel at the airport while the engine is running. (Code 1958, § 4-53)

Sec. 4-120. Maintenance of hoses and equipment.

Fueling hoses and draining equipment used at the airport shall be maintained in a safe, sound and nonleaking condition. (Code 1958, § 4-62)

Sec. 4-121. Grounding requirements.

(a) During the fueling of an aircraft at the airport, the aircraft and the fuel-dispensing apparatus shall both be grounded to a point or points of zero electrical potential.

(b) All hoses, funnels and appurtenances used in fueling and draining operations at the airport shall be equipped with a grounding device to prevent ignition of volatile liquids. (Code 1958, §§ 4-56, 4-63)

Sec. 4-122. Overflow prevention.

Persons engaged in the fueling and draining of aircraft at the airport shall exercise care to prevent overflow of fuel. (Code 1958, § 4-57)

Sec. 4-123. Use of material likely to cause static discharge.

No person shall use any material, which is likely to cause a static discharge, during the fueling of, or draining of fuel from, an aircraft at the airport. (Code 1958, § 4-60)

Sec. 4-124. Fire extinguishers.

Adequate fire extinguishers shall be within ready reach of personnel engaged in fueling and draining an aircraft at the airport. (Code 1958, § 4-61)

Sec. 4-125. Radio and electrical appliances to be off.

No person shall operate any radio transmitter or receiver, or switch electrical appliances off or on in an aircraft, while the aircraft is being fueled or drained of fuel at the airport. (Code 1958, § 4-55)

Sec. 4-126. Restrictions on smoking.

(a) No smoking shall be permitted within fifty (50) feet of an aircraft's fuel tank, while the aircraft is being fueled or drained of fuel at the airport.

(b) No smoking shall be permitted within fifty (50) feet of any fuel carrier when not in motion or when it is being utilized for fueling or draining of fuel from an aircraft at the airport. (Code 1958, §§ 4-54, 4-65)

Sec. 4-127. Passengers not permitted in aircraft during fueling; exception.

No passengers shall be permitted in any aircraft during fueling at the airport, unless a cabin attendant is present at or near the cabin door. (Code 1958, § 4-58)

Sec. 4-128. Unauthorized persons near aircraft during fueling.

Only personnel concerned with the fueling, maintenance and operation of an aircraft shall be permitted within fifty (50) feet of the fuel tanks of such aircraft when it is being fueled at the airport, except as provided in section 4-127. (Code 1958, § 4-59)

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Chapter 5

AMUSEMENTS*

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***Cross references—**Civic facilities, Ch. 13; license tax for various amusements and entertainment businesses, § 24-72 et seq.; tax on amount paid for admission to places of amusement or entertainment, § 24-288 et seq.; obscene motion pictures, exhibitions, performances, etc., § 28-3 et seq.; minors prohibited in places of amusement between certain hours, § 29-3; scalping tickets to public events, § 29-35; coin-operated amusement devices in Town Point Park, § 30-268; coin-operated amusement devices prohibited on pedestrian malls, § 31-21; archery ranges, § 47-22 et seq.

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ARTICLE I. IN GENERAL

Sec. 5-1. Permit for operation of theater, motion picture establishment, etc.

(a) It shall be unlawful and a Class 3 misdemeanor for any person to operate a theater, motion picture establishment or other similar exhibition in the city, without first obtaining a permit so to do from the city council.

(b) No license shall be issued by the commissioner of the revenue for the operation of a theater, motion picture establishment or other similar exhibition in the city, until the permit required by this section has been granted.

(c) Any person desiring to obtain a permit required by this section shall make application, in writing, to the council, stating in such application the place of the proposed operation and the name and address of the person who is to operate the same.

(d) Upon receipt of an application for a permit under this section, the council may hear statements and evidence of citizens and others desiring to be heard as to the suitability of the location of the proposed theater, motion picture establishment or other exhibition, and as to the fitness of the person who proposed to conduct the same, and shall grant the permit, unless it appears to the council, from such statements and evidence, that such operation will be detrimental to the health, morals, comfort, safety, convenience or welfare of the inhabitants of the city, in which latter event the permit shall be refused.

(e) The provisions of this section shall not apply to any theater, motion picture or other similar exhibition in operation on February 23, 1932.

(Code 1958, § 31-75)

Cross reference—Obscenity, Ch. 28.

Sec. 5-2. Sign required for business establishments providing go-go dance entertainment.

(a) Any person operating a business establishment in the city which provides go-go dancing entertainment shall post a conspicuous sign at the entrance to the premises indicating the fact that such entertainment is provided.

(b) Any person violating this section shall be guilty of a Class 3 misdemeanor.

(Code 1958, § 31-83)

Secs. 5-3—5-18. Reserved.

ARTICLE II. PUBLIC DANCE HALLS*

DIVISION 1. GENERALLY

Sec. 5-19. Definition.

A "public dance hall" within the meaning of this article is any place open to the general public where dancing is permitted, to which an admission fee is charged, or for which compensation is in any manner received, either directly or indirectly, by cover charge or otherwise, or where refreshments or food or any form of merchandise is served for compensation before, during or after dancing; provided, however, that a restaurant, licensed under sections 4-98.1 and 4-98.2 of the Code of Virginia to serve food and beverages, having a dance floor with an area not exceeding ten (10) percent of the total floor area of the establishment, shall not be considered a public dance hall. The sale of any refreshments, food or any form of merchandise at any such place, or the exhibiting of such for sale, shall be deemed direct compensation for any such dance hall within the meaning of this section.

(Code 1958, § 15.1-1; Ord. No. 33,802, 12-23-85)

Sec. 5-20. Violations of article.

Unless otherwise specifically provided, a violation of any provision of this article shall constitute a Class 3 misdemeanor.

Sec. 5-21. Reserved.

Editor's note—Ord. No. 33,802, § 2, adopted Dec. 23, 1985, repealed § 5-19, which required council approval of changes in ownership, location, etc., and which has derived from Code 1958, § 15.1-11.

***Cross reference—**License tax for dance halls, § 24-100.

State law reference—Authority of city to regulate public dance halls. Code of Virginia, § 18.2-433.

Sec. 5-22. Right of entry of police.

Members of the city police department may enter any public dance hall operated pursuant to a permit issued under the provisions of this article at all hours, to insure that the peace and quiet of the city are preserved and that the conditions and restrictions of this article are observed.
(Code 1958, § 15.1-14)

Sec. 5-22.1. Security requirements.

Each such place authorized shall provide minimum security as follows: one uniformed security guard per one hundred (100) attendees with a minimum of five (5) uniformed security guards for the first three hundred (300) attendees.
(Ord. No. 33,802, § 3, 12-23-85; Ord. No. 46,210, § 1, 1-26-16)

Sec. 5-23. Reserved.

Editor's note—Ord. No. 46,210, § 1, adopted Jan 26, 2016, repealed § 5-23, which pertained to minimum seating requirements and derived from Code 1958, § 15.1.13.

Sec. 5-24. Closing hours.

The closing hour of any place used as a public dance halls shall not be later than 2:00 a.m. and such place shall not open as a public dance hall until 12:00 noon.
(Code 1958, § 15.1-12; Ord. No. 46,210, § 1, 1-26-16)

Sec. 5-25. Operator not to permit intoxicated or disorderly persons on premises.

It shall be unlawful for any person operating a public dance hall in the city to suffer or permit any person under the influence of alcoholic beverages or any disorderly person to enter or remain in such dance hall, whether participating in the dancing or not.
(Code 1958, § 15.1-6)
Cross reference—Public intoxication, § 29-17.

Sec. 5-26. Reserved.

Editor's note—Ord. No. 46,210, § 1, adopted Jan 26, 2016, repealed § 5-26, which pertained to minors prohibited if alcoholic beverages are sold; exception and derived from Code 1958, § 31-43.

Sec. 5-27. Lewd, indecent, etc., dances, etc.

It shall be unlawful for any person operating a public dance hall in the city to suffer or permit in such dance hall any lewd, indecent or immoral dance, posture, performance or conduct by any person.
(Code 1958, § 15.1-7)
Cross reference—Obscenity, Ch. 28.

Secs. 5-28—5-38. Reserved.

DIVISION 2. PERMIT

Sec. 5-39. Required.

(a) No person shall operate a public dance hall in the city, without having first obtained a permit issued pursuant to this article.

(b) No license shall be granted by the commissioner of the revenue for the operation of a public dance hall in the city, until the permit required by this section has been issued.
(Code 1958, § 15.1-2)
Cross reference—License tax for dance halls, § 24-100.

Sec. 5-40. Application generally.

Any person desiring to obtain a permit for the operation of a public dance hall shall make written application therefor to the city council. Such application shall be filed with the department of planning and shall contain the following information:

(1) The location of the proposed dance hall.

(2) The names and addresses of all persons who are owners, operators or managers of such dance hall, together with the names and addresses of all persons having a financial interest in such dance hall, including stockholders, lien holders or partners.

(3) If the owner or operator is a corporation, the names and addresses of the true or equitable owners of the stock of such corporation.

(4) A detailed statement of the facilities to be provided, including type of food or beverages to be offered, the seating capac-

ity of the dance hall and the amount of off-street parking space available for patrons.

(Code 1958, § 15.1-3; Ord. No. 46,210, § 1, 1-26-16)

Sec. 5-41. Applicant's deposit.

A deposit of twenty dollars ($20.00) is hereby required to be made by every person making an application for a permit under this division, for the purpose of making the necessary investigation in connection therewith. No such application shall be considered, until such deposit is made.

(Code 1958, § 1-9)

Sec. 5-42. Referral of application to city manager.

The department of planning is hereby authorized and directed to transmit directly to the city manager, for review and report to the council at a subsequent meeting, each application for a permit under this division, without first submitting the same to the council.

(Code 1958, § 2-6; Ord. No. 46,210, § 1, 1-26-16)

Sec. 5-43. Hearing on application; issuance or refusal.

Upon the filing of an application for a public dance hall permit, and upon receipt of the report referred to in section 5-42, the city manager or his designee may hear statements and receive evidence relevant to the permit application. The permit may be refused if there is reasonable cause to believe:

(1) That the applicant, or if the applicant is a partnership or association, any partner or member thereof, or if the applicant is a corporation, any officer, director, or manager thereof or shareholder owning ten (10) per centum or more of its capital stock:

a. Has been convicted of a felony under the laws of any state, or of the United States, or has been convicted of any crime or offense involving moral turpitude.

b. Has maintained a noisy, lewd, disorderly or unsanitary establishment.

c. Has demonstrated by his police record a lack of respect for law and order.

d. Is a person to whom alcoholic beverages may not be sold under the provisions of title 4 of the Code of Virginia.

e. Has misrepresented a material fact in applying for a license.

(2) That the place to be occupied by the applicant:

a. Does not conform to the requirements of the ordinances of the city in which such place is located with respect to sanitation, health, construction or equipment.

b. Is so located that violations of this chapter or the laws of the commonwealth or ordinances relating to peace and good order would result from the issuance of such license and operation thereunder by the applicant.

(Code 1958, § 15.1-4; Ord. No. 33,802, § 4, 12-23-85)

Sec. 5-44. Permit subject to article provisions.

Every permit to operate a public dance hall in the city shall be subject to the conditions and restrictions of this article.

(Code 1958, § 15.1-9)

Sec. 5-45. Transfer.

A permit to operate a public dance hall shall not be transferable, without the approval of the city council.

(Code 1958, § 15.1-10)

Sec. 5-46. Suspension or revocation.

The city manager or his designee may suspend or revoke a permit granted under this article upon the violation of any provision thereof and

may also suspend or revoke a permit if there is reasonable cause to believe [that the permit holder]:

(1) Has misrepresented a material fact in applying for such permit.

(2) Has been convicted of a felony or of any crime or offense involving moral turpitude in any court.

(3) Is not the legitimate owner of the business conducted under the permit issued or other persons have ownership interests in the business which have not been disclosed.

(4) Has allowed noisy, lewd, or disorderly conduct upon the premises, or has maintained such premises in an unsanitary condition, or allowed such premises to become a meeting place or rendezvous for persons of ill repute, or has allowed any form of illegal gambling to take place upon such premises.

(5) Has demonstrated by his police record subsequent to the issuance of his original license a lack of respect for law and order.

(Code 1958, § 15.1-5; Ord. No. 33,802, § 5, 12-23-85)

Secs. 5-47—5-62. Reserved.

ARTICLE III. POOLROOMS*

DIVISION 1. GENERALLY

Sec. 5-63. Violations of article.

Unless otherwise specifically provided, a violation of any provision of this article shall constitute a Class 3 misdemeanor.

Sec. 5-64. Council approval required for change of ownership, management or location.

The ownership, management or location of a poolroom shall not be changed without the permission of the city council.
(Code 1958, § 37-8)

Sec. 5-65. Minors prohibited.

(a) No minor shall be allowed in any public pool or billiard room in the city. The proprietor or manager of each such place

*__Cross reference—__License tax for billiard and pool tables, § 24-80.

shall have posted conspicuously at the entrance of such place a sign in bold letters, not less than two (2) inches in height, as follows: "NO MINORS ALLOWED."

(b) Any proprietor or person in charge of a pool or billiard room, who knowingly or negligently allows any minor to be or remain in such place shall be guilty of a violation of this section.

(c) In any prosecution for a violation of this section, proof of the presence of a minor in a pool or billiard room shall constitute prima facie evidence of knowledge on the part of the proprietor or other person then in charge. (Code 1958, § 31-44)

State law reference—Authority of city to regulate presence of minors in poolrooms, Code of Virginia, § 18.2-432.

Secs. 5-66—5-76. Reserved.

DIVISION 2. PERMIT

Sec. 5-77. Required.

(a) No person shall operate a poolroom in the city, without having obtained a permit issued pursuant to this article.

(b) No license shall be issued by the commissioner of revenue for the operation of a poolroom within the city, until the permit required by this section has been issued. (Code 1958, § 37-1)

Cross reference—License tax for billiard and pool tables, § 24-80.

Sec. 5-78. Application generally.

Any person desiring to obtain a permit for the operation of a poolroom within the city shall make written application therefor to the city council. Such application shall be filed with the city clerk and shall contain the following information:

(1) The place where the proposed poolroom is to be located.

(2) The name and address of all persons who are or who will be owners, operators or manager of such poolroom, together with the name and address of all persons having a financial interest in the poolroom, including stockholders, lienholders or partners.

(3) If the owner or operator is a corporation, the names and addresses of the true or equitable owners of the stock of such corporation. (Code 1958, § 37-2)

Sec. 5-79. Applicant's deposit.

A deposit of twenty dollars ($20.00) is hereby required to be made by every person making an application for a permit under this division, for the purpose of making the necessary investigation in connection therewith. No such application shall be considered, until such deposit is made. (Code 1958, § 1-9)

Sec. 5-80. Referral of application to city manager.

The city clerk is hereby authorized and directed to transmit directly to the city manager, for investigation and report to the council at a subsequent meeting, each application for a permit under this division, without first submitting the same to the council. (Code 1958, § 2-6)

Sec. 5-81. Council hearing on application; issuance or refusal.

Upon the filing of an application for a permit under this division and upon receiving the report referred to in section 5-80, the council may hear statements and receive evidence as to the suitability of the location of the proposed poolroom, preference being given to ground floor locations; as to the suitability and adequacy of the facilities; and as to the fitness and financial responsibility of the person who will own, manage or conduct the same. The council shall, by resolution upon a record vote, grant or refuse the permit; provided, however, that no such permit shall be issued unless it shall appear that all persons having a financial interest in, or connected with the management or operation of, the poolroom, including stock-

holders and lienholders, are of good reputation and are otherwise acceptable to the council. (Code 1958, § 37-3)

Sec. 5-82. Permit subject to article provisions.

Every permit for the operation of a poolroom shall be subject to the conditions and restrictions of this article. (Code 1958, § 37-6)

Sec. 5-83. Transfer.

A permit for the operation of a poolroom shall not be transferable, without the approval of the council. (Code 1958, § 37-7)

Sec. 5-84. Revocation.

Upon the violation of any provision of this article the city council shall have the right, in addition to any other remedies allowed by law, to revoke the permit for the operation of the poolroom involved in such violation, after due hearing and upon not less than five (5) days' notice in writing to the holder of the permit. Such notice shall be sent by registered mail to the address given by the holder of the permit when applying for such permit. (Code 1958, § 37-4)

Secs. 5-85—5-100. Reserved.

ARTICLE IV. RECREATION OR AMUSEMENT CLUBS

DIVISION 1. GENERALLY

Sec. 5-101. Definition.

A "club," within the meaning and application of this article, shall include any room or place to which the membership of such club may resort for recreation or amusement, wherein or whereat food or other refreshments are sold or furnished for compensation. (Code 1958, § 12-1)

Sec. 5-102. Violations of article.

Unless otherwise specifically provided, a violation of any provision of this article shall constitute a Class 2 misdemeanor. (Code 1958, § 12-8)

Secs. 5-103—5-113. Reserved.

DIVISION 2. PERMIT

Sec. 5-114. Required.

It shall be unlawful for any person to maintain, conduct or operate any club in the city, without a current permit so to do issued pursuant to this division. (Code 1958, § 12-2)

Sec. 5-115. Filing and contents of application.

Any person desiring a permit required by this division shall make application therefor to the chief of police on a form prescribed by him, which application shall state:

(1) The name of the club and the location where the same will be maintained, conducted or operated.

(2) The name and address of all persons interested in the ownership thereof, if privately owned, and the names and addresses of all officers and trustees thereof, if owned by a nonincorporated association.

(3) The purpose for which such club is organized.

(4) The name and address of the person who will be in actual charge of the operation of the club.

(5) Such other pertinent information as the chief of police may require. (Code 1958, § 12-3)

Sec. 5-116. Investigation of application; issuance or refusal.

The chief of police shall promptly investigate the facts stated in the application referred to in section 5-115 and, if it shall appear to him that such club is organized and will be conducted for a lawful purpose, that the person who will be in actual charge of the operation thereof is of good moral character

and a proper person to operate the same, that the operation of such club will not disturb or tend to disturb the public peace and that the same will be operated at a location permitted by the zoning ordinance of the city, the chief of police shall issue the permit; otherwise, he shall refuse the same.
(Code 1958, § 12-4)

Sec. 5-117. Conditioned upon right of entry by police.

By accepting a permit required by this division, the permittee shall be deemed to agree and consent, for himself and the club's officers, employees and members, as one of the conditions of its issuance, that the club may be entered and inspected, at any and all times when open to its members or patrons, by any member of the department of police of the city, without procurement of any special or other warrant therefor, for the purpose of ascertaining whether such club is being maintained, conducted and operated in a manner permitted by the laws of the state and the ordinances of the city, or in violation thereof.
(Code 1958, § 12-5)

Sec. 5-118. Grants no vested rights.

No permit issued under the provisions of this division shall be taken or construed as granting any vested rights of the permittee to the assignment, renewal, reissuance or continuance of such permit, and such rights shall be and remain at all times vested in the council of the city.
(Code 1958, § 12-7)

Sec. 5-119. Expiration.

A permit issued under this division shall expire at the end of one year from the date of its issuance.

Sec. 5-120. Not transferable.

No permit issued under this division shall be transferable.
(Code 1958, § 12-4)

Sec. 5-121. Suspension or revocation.

(a) The chief of police, after due hearing and upon not less than five (5) days' notice in writing to the permittee, such notice to be sent by registered letter to the address given by the permittee on the application for a permit, which shall constitute sufficient notice in the premises, may suspend, for such length of time as he may deem proper, or revoke any permit issued under this division for the following causes:

(1) Fraud or misrepresentation in the procurement of such permit.

(2) A final conviction, after the issuance of such permit, of the permittee or of the officers, agents or employees of the permittee or of any member of such club, of a violation of any federal or state statute or ordinance of the city relating to gambling or the sale of alcoholic beverages or intoxicating liquors, committed or permitted on the premises of the permittee.

(3) Any other act or conduct of the permittee or the officers, agents or employees of the permittee or of the members of such club, committed or permitted on the premises of the permittee, tending to render such premises a common nuisance or a menace to the peace and morals of the city.

(b) It shall be unlawful for any person to maintain, conduct or operate any club during the time the permit therefor is suspended or after such permit is revoked.
(Code 1958, §§ 12-6, 12-8)

Cross reference—Gambling, Ch. 19.

Secs. 5-122—5-137. Reserved.

ARTICLE V. RESERVED*

Secs. 5-138—5-162. Reserved.

*__Editor's note—__Ord. No. 33,945, § 1, adopted Apr. 8, 1986, repealed Art. V, §§ 5-138—5-162, concerning bingo games and raffles, as derived from Ord. No. 30,023, § 1, adopted July 10, 1979; and Ord. No. 30,155, §§ 1, 2, adopted Oct. 16, 1979. New provisions regulating bingo games and raffles, deriving from Ord. No. 33,882 adopted Feb. 18, 1986, are included in Art. V.1, §§ 5-162.1—5-162.28.

ARTICLE V.1. RESERVED*

Secs. 5-162.1—5-162.28. Reserved.

ARTICLE V.2. BINGO GAMES AND RAFFLES†

Sec. 5-162.29. Application of state charitable gaming law.

The provisions of sections 18.2-340.15 through 18.2-340.37, article 1.1:1, chapter 8, title 18.2 of the Code of Virginia, 1950, as amended, "Charitable Gaming", as now in effect and with such future amendments as may from time to time be made by the General Assembly, are hereby adopted and incorporated by reference and made applicable within the city upon their effective dates.
(Ord. No. 37,514, § 2, 2-8-94; Ord. No. 41,031, §§ 1, 2, 5-6-03)

Sec. 5-162.30 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.30, which pertained to annual permit required; application fee; form of application and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.31 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.3q, which pertained to limit on number of organizations for which a person may manage, operate or conduct bingo games and raffles and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.32 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.32, which pertained to special requirements for issuance of permit; membership; duration of existence and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.33 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.33, which pertained to use of percentage of gross receipts and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.34 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.34, which pertained to reports of gross receipts and disbursements and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.35 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.35, which pertained to independent accounting procedure; waiver of requirement for opinion of licensed independent certified public accountant and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.36 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.36, which pertained to audit reports; promulgation of accounting procedures; audit fees and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.37 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.37, which pertained to limitation of bingo games conducted and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.38 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.38, which pertained to hours of operation for bingo games and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Sec. 5-162.39 Reserved.

Editor's note—Ord. No. 41,031, § 3, adopted May 6, 2003, repealed § 5-162.39, which pertained to penalties; enforcement of article; injunctive relief and derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

***Editor's note—**Section 1 of Ord. No. 37,514, adopted February 8, 1994, repealed Ch. 5, Art. V, §§ 5-162.1—5-162.28, which pertained to bingo games and raffles and derived from Ord. No. 33,882, § 1, adopted February 18, 1986; Ord. No. 33,951, § 1, adopted April 15, 1986; Ord. No. 34,748, § 3, adopted October 13, 1987; Ord. No. 36,791, § 1, adopted April 14, 1992 and Ord. No. 36,898, § 1, adopted June 30, 1992. Section 2 of Ord. No. 37,514 added a new Art. V.2 to read as herein set out as §§ 5-162.29—5-162.39.

†**Editor's note—**Ord. No. 41,031, §§ 1—3, adopted May 6, 2003, amended art. V.2 in its entirety. The former art. V.2, also titled Bingo Games and Raffles, derived from Ord. No. 37,514, § 2, adopted Feb. 8, 1994.

Cross reference—Anti-gambling ordinances not applicable to bingo games conducted pursuant to this article, § 19-11.

State law reference—Bingo games, Code of Virginia, § 18.2-340,1 et seq.

ARTICLE VI. COMMERCIAL RECREATION CENTERS

DIVISION 1. GENERALLY

Sec. 5-163. Definition.

For the purposes of this article, a commercial recreation center shall be considered to be any establishment where the principal use is not the serving of food and beverages for on-premises consumption, where pool or billiards, bingo, football, table tennis, shuffleboard, video games or any other game of recreation or amusement is provided for public patronage, where the insertion of a coin, slug or token or the payment of a fee is required, and where five (5) or more such tables or game machines are present.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-164. Violations of article.

Unless otherwise specifically provided, a violation of any provision of this article shall constitute a Class 3 misdemeanor.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-165. Management.

Every center shall have a designated manager, who is at least twenty-one (21) years of age, present and in actual charge at all times during the hours of operation. The name of the manager shall be kept posted in a conspicuous place in the center, in letters not less than one inch in size, during the time he is in charge.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-166. Access and observation.

Every center shall be constructed and arranged to provide ready access to and reasonable observation of all parts of its area when games are installed. Provision of reasonable observation shall include windows or other openings of not less than one hundred (100) square feet in area which shall not be covered or otherwise obstructed to vision during the hours of business and which shall be accessible from outside the center's premises. Every center shall be open at all times during business hours for inspection by municipal authorities.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-167. Partitioned areas prohibited; exceptions.

No center shall have partitioned or closed-off areas other than those for toilet facilities, office space and storerooms.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-168. Restroom facilities.

Every center shall provide separate restroom facilities for both sexes.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-169. Off-street parking facilities.

Every center operating under this article shall be provided with off-street parking facilities as required by the zoning ordinance.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-170. Minors prohibited between 12:01 a.m. and 5:00 a.m.; exceptions.

No persons under the age of eighteen (18) years shall be allowed to remain in any center between the hours of 12:01 a.m. and 5:00 a.m., unless accompanied by his parent or guardian.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-171. Illumination; levels required throughout interior and in required parking facilities.

Each center shall be illuminated throughout its interior at an average level of not less than five (5) footcandles. The required off-street parking facilities serving each center shall be illuminated during the hours of darkness while the center is open for business to an average maintained illumination level of not less than one footcandle.
(Ord. No. 32,063, § 1, 12-7-82)

DIVISION 2. OPERATING PERMIT

Sec. 5-172. Required.

No person shall operate a commercial recreation center within the city, without first obtaining a permit from the city manager or his authorized representative.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-173. Filing and contents of application.

Application for a permit required by this division shall be filed in the office of the city manager and shall contain the following information:

(1) The name, address, age, race and sex of the applicant, date and place of his birth and, where pertinent, the relationship of the applicant to any company, corporation or other entity which has any interest in the ownership or management of the center.

(2) Prior criminal convictions, excluding traffic infractions, of the applicant, if any.

(3) Prospective location of the center.

(4) Maximum number of patrons the center will accommodate.

(5) A list of all employees who are expected to serve in a managerial capacity in the center.

(6) A certification by the applicant that all requirements of this article have been complied with.

(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-174. Fee.

Each application for a permit under this division shall be accompanied by a fee of twenty dollars ($20.00), which shall not be refundable.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-175. Investigation of applicant and proposed center; grant or denial.

Upon receipt of an application for a permit under this division, the city manager shall immediately cause an investigation to be made concerning the qualifications of the applicant and whether the proposed center is in compliance with this article. The city manager shall grant or deny such permit and shall notify the applicant of his action within thirty (30) days of the filing of the application. If the city manager denies such permit, he shall state, in writing, his reasons for such action. The following factors shall constitute grounds for denial of the permit:

(1) A finding by the city manager that the applicant has falsified his application in a material manner.

(2) A finding by the city manager that the applicant or any of his designated managerial employees has a criminal record which reveals any convictions for violations of any drug control laws or any other pattern of criminal misconduct involving moral turpitude.

(3) A finding by the city manager that the applicant consistently fails to cooperate with law enforcement personnel in the exercise of their official duties.

(4) A finding by the city manager that the application is not properly completed as required in this division.

(5) A finding by the city manager that the proposed center fails to comply with the provisions of this article.

No other factors shall be sufficient grounds for denial of a permit applied for under this division.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-176. Not assignable; void if center not operated for sixty days.

No permit issued under this division shall be assignable in any manner whatsoever. When the permittee shall cease to operate the center for a period of sixty (60) days, the permit shall be void.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-177. Revocation or suspension.

(a) The city manager may revoke or suspend for a period of thirty (30) days the permit for the operation of a commercial recreation center if he finds:

(1) That the premises have been declared a common nuisance by a court of competent jurisdiction.

(2) That the permittee has consistently failed to operate the center in an orderly manner.

(3) That the permittee has failed to take prompt and vigorous action to prevent violations of criminal statutes occurring on the premises which are known or should have been known to the permittee.

(4) That circumstances exist which would have justified a denial of such permit at the time of its issuance.

(5) That the permittee has failed to comply with the provisions of this article.

(b) A permittee shall be entitled to a hearing before the city manager or his designee before his permit is revoked or suspended under this section. The city manager shall give the permittee thirty (30) days' notice of his intention to revoke or suspend such permit along with his grounds for revocation or suspension by certified mail, return receipt requested. The hearing shall be held not more than twenty (20) days after giving of the notice.
(Ord. No. 32,063, § 1, 12-7-82)

Sec. 5-178. Permit applicability.

(a) Establishments heretofore legally in operation under the zoning ordinance use classifications of amusement enterprises including amusement arcades or amusement and recreational enterprises which would fall within the definition of commercial recreation center in section 5-163 and which are in operation on the effective date of this article shall not have to seek a permit as required by division 2 of this article until or unless transfer or assignment of ownership of the establishment occurs or the existing establishment ceases operation for a period of sixty (60) days.

(b) Establishments and the current owners thereof which fall under the provisions of subsection (a) of this section shall be deemed to have been issued a permit as contemplated in section 5-172, shall comply with the provisions of sections 5-165 through 5-172, and shall be subject to the provisions of section 5-177 of this article.
(Ord. No. 32,063, § 1, 12-7-82)

[The next page is 489]

Chapter 6

RESERVED*

*__Editor's note__—Ord. No. 39,717, § 1, adopted Aug. 31, 1999, repealed Ch. 6, Animals and Fowl, in its entirety and enacted new provisions designated as a new Ch. 6.1. Former Ch. 6 derived from Code 1958, §§ 2-71.1, 2-71.1-1, 5-1, 5-4, 5-6, 5-7, 5-9, 5-9.1, 5-22, 5-26.1, 5-27, 5-29.1, 5-31—5-35, and 5-37—5-42; and from the following ordinances:

Ord. No.	Date	Ord. No.	Date
29,792	1-16-79	35,583	6-20-89
30,266	1-15-80	37,354	7-27-93
30,597	5-13-80	37,586	4-26-94
30,719	7-22-80	37,708	7-12-94
31,722	5-25-82	37,761	9-13-94
32,010	10-26-82	37,861	1-10-95
32,315	5-10-83	37,989	5-23-95
33,238	12-18-84	38,021	6-20-95

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Chapter 6.1

ANIMAL CONTROL AND WELFARE*

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__Cross references—__Animals prohibited from running at large at airport, § 4-10; riding or driving horses on shores or in water of Chesapeake Bay, § 9-21; animals and fowl prohibited in cemeteries, § 12-31; animals not to be buried in city cemeteries, § 12-32; hunting or fishing in cemeteries, § 12-34; live animals or fowl in food establishments, § 18-70; application of traffic regulations to persons riding or driving animals, § 25-3; noisy animals, § 26-15; general regulations for domestic animals in parks, § 30-63; horseback riding in parks, § 30-64; hunting, molesting, etc., animals or birds in parks, § 30-70; animals in Town Point Park, §§ 30-259, 30-260; animals and fowl prohibited at public swimming pools, § 43-36; animals not to run at large in trailer coach parks, § 44-51.

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ARTICLE I. GENERAL PROVISIONS

Sec. 6.1-1. Violations of chapter; penalties.

Unless otherwise provided, a violation of any provision of this chapter shall constitute a class 1 misdemeanor. Each day's continuance of the violation shall constitute a separate offense. In addition to any penalties imposed by the court for any violation of this chapter, the court may require that restitution be paid to the city for any costs expended for investigation, handling, care, housing or medical care for the animals. (Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-2. Definitions.

The following words as used in this chapter shall have the following meanings:

Abandon means to desert, forsake, or absolutely give up an animal without having secured another owner or custodian for the animal or by failing to provide the elements of basic care as set forth in Virginia Code, Section 3.2-6503, as amended, for a period of four (4) consecutive days.

Adequate care or *care* means the responsible practice of good animal husbandry, handling, production, management, confinement, feeding, watering, protection, shelter, transportation, treatment, and, when necessary, euthanasia, appropriate for the age, species, condition, size and type of the animal and the provision of veterinary care when needed to prevent suffering or impairment of health.

Adequate exercise or *exercise* means the opportunity for the animal to move sufficiently to maintain normal muscle tone and mass for the age, species, size, and condition of the animal.

Adequate feed means access to and the provision of food which is of sufficient quantity and nutritive value to maintain each animal in good health; is accessible to each animal; is prepared so as to permit ease of consumption for the age, species, condition, size and type of each animal; is provided in a clean and sanitary manner; is placed so as to minimize contamination by excrement and pests; and is provided at suitable intervals for the species, age, and condition of the animal, but at least once daily, except as prescribed by a veterinarian or as dictated by naturally occurring states of hibernation or fasting normal for the species.

Adequate shelter means provision of and access to shelter that is suitable for the species, age, condition, size, and type of each animal; provides adequate space for each animal; is safe and protects each animal from injury, rain, sleet, snow, hail, direct sunlight, the adverse effects of heat or cold, physical suffering, and impairment of health; is properly lighted; is properly cleaned; enables each animal to be clean and dry, except when detrimental to the species; and, for dogs and cats, provides a solid surface, resting platform, pad, floormat, or similar device that is large enough for the animal to lie on in a normal manner and can be maintained in a sanitary manner. Under this chapter, shelters whose wire, grid, or slat floors (i) permit the animals' feet to pass through the openings, (ii) sag under the animals' weight, or (iii) otherwise do not protect the animals' feet or toes from injury are not adequate shelter.

Adequate shelter for animals kept outdoors must comply with the following standards:

(1) The shelter must be a well-constructed structure with a roof, enclosed sides, one of which must contain an entry way and a solid, level floor raised at least two (2) inches from the ground. The entry way openings shall not comprise an entire side of the structure.

(2) The shelter must have no cracks or openings other than the entrance.

(3) The shelter must be small enough to allow an animal to warm the interior of the structure and maintain body heat, but large enough to allow the animal to stand, turn and lie down.

(4) Between November 1 and March 31 and whenever the real or effective temperature is forty-five (45) degrees Fahrenheit or lower, the entryway must be protected by a self-closing door, an offset outer door, or a flexible flap, and a sufficient amount of dry bedding material must be provided to insulate against cold and damp.

(5) The shelter must be placed where it will be adequately shaded in hot weather and protected from the wind in cold weather.

Adequate space means sufficient space to allow each animal to (i) easily stand, sit, lie, turnabout, and make all other normal body movements in a comfortable, normal position for the animal and (ii) interact safely with other animals in the enclosure. When an animal is tethered, "adequate space" means a tether that permits the above actions and is appropriate to the age, size, and health of the animal; is attached to the animal by a properly applied collar, halter, or harness configured so as to protect the animal from injury, with enough room between the collar and the dog's throat through which two (2) fingers may fit, and prevent the animal or tether from becoming entangled with other objects or animals, or from gaining access to public thoroughfares, or from extending over an object or edge that could result in the strangulation or injury of the animal; weighs not more than one-eighth (⅛) of the body weight of the animal tethered; and is at least ten (10) feet in length or three (3) times the length of the animal whichever is longer, as measured from the tip of its nose to the base of its tail, except when the animal is being walked on a leash or is attached by a tether to a lead line. When freedom of movement would endanger the animal, temporarily and appropriately restricting movement of the animal according to professionally accepted standards for the species is considered provision of adequate space.

Adequate water means provision of and access to clean, fresh, potable water of a drinkable temperature which is provided in a suitable manner, in sufficient volume, and at suitable intervals, appropriate for the weather and temperature, to maintain normal hydration for the age, species, condition, size and type of each animal, except as prescribed by a veterinarian or as dictated by naturally occurring states of hibernation or fasting normal for the species; and is provided in clean, durable receptacles which are accessible to each animal and are placed so as to minimize contamination of the water by excrement and pests or an alternative source of hydration consistent with generally accepted husbandry practices.

Adoption means the transfer of ownership of a dog or cat from a releasing agency to an individual.

Adult dog or *cat* means any dog or cat over the age of four (4) months.

Agricultural animal means all livestock and poultry.

Ambient temperature means the temperature surrounding the animal.

Animal means any nonhuman vertebrate species except those fish captured and killed or disposed of in a reasonable and customary manner.

Animal control officer means the person employed, contracted, or appointed by the City of Norfolk who has attended training in animal welfare programs as recommended and/or certified by the State Veterinarian and the Department of Criminal Justice System, for the purpose of aiding in the enforcement of this law or any other law or ordinance relating to the licensing of dogs and cats, control of animals, cruelty to animals, or seizure and impoundment of animals, and who is appointed as special police officer and who meets the requirements of Virginia Code, section 3.1-796.104. The term "animal control officer" shall also include his designee.

Animal shelter means a facility which is used to house or contain animals, and which is owned, operated, or maintained by a duly incorporated humane society, animal welfare society, society for the prevention of cruelty to animals, or other nonprofit organization devoted to the welfare, protection, and humane treatment of animals.

Boarding establishment means a place or establishment other than a pound or animal shelter where companion animals not owned by the proprietor are sheltered, fed, and watered in exchange for a fee or barter.

Collar means a well-fitted device, appropriate to the age and size of the animal, attached to the animal's neck in such a way as to prevent trauma or injury to the animal.

Companion animal means any domestic or feral dog, domestic or feral cat, nonhuman primate, guinea pig, hamster, rabbit not raised for human food or fiber, exotic or native animal, reptile,

exotic or native bird, or any feral animal or any animal under the care, custody, or ownership of a person or any animal which is bought, sold, traded, or bartered by any person. Agricultural animals, game species, or any animals regulated under federal law as research animals shall not be considered companion animals for the purposes of this chapter.

Consumer means any natural person purchasing an animal from a dealer or pet shop or hiring the services of a boarding establishment. The term "consumer" shall not include a business or corporation engaged in sales or services.

Dangerous animal means a canine or canine crossbreed that has bitten, attacked, or inflicted injury on a person or companion animal that is a dog or cat, or killed a companion animal that is a dog or cat.

Dealer means any person whom in the regular course of business for compensation or profit buys, sells, transfers, exchanges, or barters companion animals. Any person who transports companion animals in the regular course of business as a common carrier shall not be considered a dealer.

Deputy animal control officer means any person who is appointed to assist the animal control officer in the performance of his duties who is appointed as a special police officer and who meets the requirements of Virginia Code, section 3.1-796.104.1.

Domestic animal means a dog or cat.

Ear-tipping means the removal of the distal one-quarter of a free-roaming cat's left ear, which is approximately three-eighths (⅜) inch, or one (1) centimeter, in an adult and proportionally smaller in a kitten. This procedure is performed under sterile conditions while the cat is under anesthesia, in compliance with any applicable federal or state law, and under the supervision of a licensed veterinarian. Ear-tips are designed to identify a free-roaming cat as being sterilized and vaccinated for rabies at least one time.

Emergency veterinary treatment means veterinary treatment to stabilize a life-threatening condition, alleviate suffering, prevent further disease transmission, or prevent further disease progression.

Enclosure means a structure used to house or restrict animals from running at large.

Euthanasia means the humane destruction of an animal accomplished by a method that involves instantaneous unconsciousness and immediate death or by a method that involves anesthesia, produced by an agent which causes painless loss of consciousness, and death during such loss of consciousness as prescribed in state veterinary guidelines.

Exhibitor means any person who has animals for or on public display, excluding an exhibitor licensed by the United States Department of Agriculture.

Exotic animal means any live monkey (nonhuman primate), raccoon, skunk, wolf, wolf-canine hybrid, exotic feline hybrid, squirrel, fox, porcine, leopard, tiger, lion, panther, ratites, or any other warm-blooded animal, poisonous reptile, or nonpoisonous reptile six (6) feet or longer in length which can normally be found in the wild state or any other member of the crocodilian, including, but not limited to, alligators, crocodiles, caimans, and gavials. Ferrets, birds which are normally purchased through pet stores (with the exception of ratites), nonpoisonous reptiles less than six (6) feet in length, domestic rabbits and domestic rodents which have been bred in captivity and which never have known the wild shall be excluded from this definition.

Exposure means any bite, scratch, or other situation where saliva or central nervous system (CNS) tissue or fluid of a rabid animal or potentially rabid animal enters an open fresh wound or comes in contact with a mucous membrane by entering the eyes, nose or mouth.

Free-roaming cat means a domestic, outdoor cat that is (i) unowned, or (ii) lost or abandoned and whose owner cannot be ascertained from a microchip, tag, license, collar, tattoo, or other visible form of identification. Ear-tipped free-roaming cats are sterilized and vaccinated against rabies at least one time.

Free-roaming cat caregiver means a person who, as part of a Trap-Neuter-Return program, provides care to one of more free-roaming cats. This includes providing food, shelter, and medical care to a free-roaming cat or cats.

Groomer means a person who for a fee cleans, trims, brushes, makes neat, manicures, or treats for external parasites any animal.

Housing facility means any room, building, or area used to contain a primary enclosure or enclosures.

Humane means any action taken in consideration of and with the intent to provide for the animal's health and well-being.

Humane society means any chartered, nonprofit organization incorporated under the laws of this commonwealth and organized for the purpose of preventing cruelty to animals and promoting humane care and treatment of animals.

Immediate threat means a situation or condition having a high probability that serious or severe or irreparable harm or injury to an animal is imminent, has already occurred, or may occur again if the animal is not protected from harm or the danger is not removed.

Kennel means any establishment in which five (5) or more canines, felines, or hybrids of either are kept for the purpose of breeding, hunting, training, renting, buying, boarding, selling, or showing.

Leashed or lead control means a suitable restraint no longer than twenty (20) feet in length and in good repair which is affixed to the collar, halter or harness of an animal and is held or controlled by a person capable of exercising adequate control over the animal.

Livestock means one or more of the same species and includes all domestic or domesticated: bovine animals; equine animals; ovine animals; porcine animals; cervidae animals; capradae animals; animals of the genus Lama; ratites; fish or shellfish in aquaculture facilities; enclosed domesticated rabbits or hares raised for human food or fiber; or any other individual animal specifically raised for food or fiber, except companion animals.

Other officer includes all other persons employed or elected by the people of Virginia, or by any municipality, county, or incorporated town thereof, whose duty it is to preserve the peace, to make arrests, or to enforce the law.

Owner means any person who: (i) has a right of property in an animal, (ii) keeps or harbors an animal, (iii) has an animal in his care, or (iv) acts as a custodian of an animal. A free-roaming cat caregiver is not an owner.

Person means any individual, firm, owner, sole proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporations, executor, administrator, trustee, guardian, agent, occupant, or other legal entity.

Pet shop means an establishment where companion animals are bought, sold, exchanged, or offered for sale or exchange to the general public.

Poultry includes all domestic fowl and game birds raised in captivity.

Pound means a facility operated by the commonwealth, or any political subdivision, for the purpose of impounding or harboring seized, stray, homeless, abandoned, or unwanted animals; or a facility operated for the same purpose under a contract with any county, city, town, or incorporated society for the prevention of cruelty to animals.

Primary enclosure means any structure used to immediately restrict an animal or animals to a limited amount of space, such as a room, pen, cage, compartment, or hutch. For tethered animals, the term includes the shelter and the area within reach of the tether.

Properly cleaned means that carcasses, debris, food waste and excrement are removed from the primary enclosure with sufficient frequency to minimize the animals' contact with the above-mentioned contaminants; the primary enclosure is sanitized with sufficient frequency to minimize odors and the hazards of disease; and the primary enclosure is cleaned so as to prevent the animals confined therein from being directly or indirectly

sprayed with a stream of water, or directly or indirectly exposed to hazardous chemicals or disinfectants.

Properly lighted means sufficient illumination to permit routine inspections, maintenance, cleaning, and housekeeping of the shelter, and observation of the animal; to provide regular diurnal lighting cycles of either natural or artificial light, uniformly diffused throughout the animal facilities; and to promote the well-being of the animals.

Public health officer means the director of public health or his designee.

Quarantine means restriction of the activities of an animal which has been exposed or is suspected of being exposed to a communicable disease during a period of communicability or incubation to prevent further disease transmission. Such quarantines shall meet the criteria set forth by the director of public health or her designee in accordance with the current guidelines in the "Compendium of Animal Rabies Control" and the Virginia Comprehensive Animal Laws, as amended. Absolute or complete quarantine means the restriction of contact between exposed subjects and other animals and/or humans for a period of time not longer than the longest usual incubation of the disease. Modified quarantine means a selective, partial limitation of freedom of movement and contact between exposed and nonexposed humans and/or animal as deemed appropriate to prevent transmission of the disease.

Releasing agency means a pound, animal shelter, humane society, animal welfare society, society for the prevention of cruelty to animals, or other similar entity that releases companion animals for adoption.

Sanitize means to make physically clean and to remove and destroy, to a practical minimum, agents injurious to health.

Sterilize or *sterilization* means a surgical or chemical procedure performed by a licensed veterinarian that renders an animal permanently incapable of reproducing.

Trap-Neuter-Return means the nonlethal process of humanely trapping, sterilizing, vaccinating for rabies, ear-tipping, and returning free-roaming cats to the location where they were trapped. Such program may include provision of urgent veterinary treatment as needed.

Treatment or *adequate treatment* means the responsible handling or transportation of animals in the person's ownership, custody or charge, appropriate for the age, species, condition, size and type of the animal.

Veterinary treatment means treatment by or on the order of a duly licensed veterinarian.

Vicious dog means a canine or canine cross breed which has done any of the following: (1) killed a person; (2) inflicted serious injury to a person or animal, including multiple bites, serious disfigurement, serious impairment of health, or serious impairment of bodily function; (3) continued to exhibit behavior which resulted in a previous court or administrative finding that the animal is dangerous, provided that the owner or custodian had been given notice of such finding; or (4) has demonstrated a trend towards continually exposing humans to the potential of rabies as recorded through the rabies quarantine program administered by the Norfolk Department of Public Health.

Weaned means that an animal is capable of and physiologically accustomed to ingestion of solid food or food customary for the adult of the species, and has ingested such food, without nursing, for a period of at least five (5) days.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 42,466, § 1, 11-21-06; Ord. No. 45,824, § 1, 12-16-14; Ord. No. 45,886, § 1, 3-10-15; Ord. No. 47,831, § 1, 11-26-19; Ord. No. 49,155, § 2, 4-25-23)

Sec. 6.1-3. Division of animal protection—Animal control officer.

In the department of police, there shall be an animal protection unit, the head of which shall be Commanding Officer of the Police Department's Second Patrol Division. The animal protection unit will have a humane officer II as its supervisor, with the appropriate training and certification therefor, as required by the Code of Virginia, 1950, as amended. The supervisor shall be known

also as the animal control officer. The unit shall be charged with the enforcement of the city ordinances and state laws relating to animals.

The animal protection unit shall be under the immediate control and direction of its supervisor, a humane officer II, and under the ultimate control and direction of the chief of police, or his designee. There shall also be designated in the animal protection unit humane officer I who shall assist the supervisor of the animal protection unit in inspection activities and enforcement of ordinances and laws relating to animals. The supervisor of the animal protection unit and his subordinates shall have the power to issue a summons or obtain a felony warrant within the city to any person found in the act of violating applicable local, state or federal regulation, law or ordinance related to animals.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 42,782, § 1, 7-24-07; Ord. No. 45,824, § 2, 12-16-14)

Sec. 6.1-4. Animal care and adoption center.

The division of animal care shall be under immediate control and direction of its head, the Manager of the Norfolk Animal Care and Adoption Center, and under the ultimate control of the director of general services. The division shall be charged with managing the animal care and adoption center. All ordinances and laws relating to rabies shall be enforced by the director of public health who may also designate the animal care and adoption center to enforce such ordinances. All ordinances relating to the animal license taxes shall be enforced by the animal care and adoption center in conjunction with the city treasurer's office.

(a) Any animal picked up or impounded by the animal protection unit and not immediately returnable to its owner or custodian, shall be impounded by the city. The city animal pound shall be known as the animal care and adoption center and shall be accessible to the public at reasonable hours during the week for redemption of impounded animals. The animal care and adoption center shall be under the control and direction of the director of the department of general services, or his designee.

(b) Owners may release their animals for adoption or disposal at the city's animal management center upon completion of a release form and payment of the first day's impoundment fee. Such impoundment fee may be waived by the city manager, or his designee. Release of an animal to the animal care and adoption center shall not be construed to be abandonment of the animal.

(c) Animal carcasses may be brought to the city's animal care and adoption center for disposal. Disposal fees shall be set by city manager, or his designee and shall cover the cost of incineration or other method of disposal. Such fees may be waived by the city manager, or his designee.

(d) Any person surrendering a live or deceased animal to the animal care and adoption center for disposal shall certify that the animal has not potentially exposed any person to rabies in the last ten (10) days. Failure to truthfully certify shall constitute a class 1 misdemeanor.

(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 45,824, § 3, 12-16-14)

Sec. 6.1-5. Disposal of dead animals.

The owner or custodian of any animal which has died from disease or other cause and is not the subject of a rabies exposure as defined in article III shall forthwith bury with at least twelve (12) inches of fill dirt flush with the ground surface, or sanitarily cause disposal of the same in accordance with guidelines set by the superintendent of waste management. If, after receiving written notice from the city, any owner or custodian fails to do so, the animal control officer or his designee, or other city official shall cause disposal of the animal, and may recover on behalf of the city from the owner or custodian the cost for this service. The carcasses of dead animals may be disposed of in accordance with procedures set by the superintendent of waste management, through the city animal

management center, or through private vendors. Dead companion animals may be brought to the animal management center for disposal for a ten-dollar disposal fee. In the event the owner or custodian of the animal cannot be ascertained, the property owner or occupant shall be responsible for disposal in accordance with this section.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 40,876, § 1, 11-5-02)

Sec. 6.1-6. Animal traps.

(a) The animal care and adoption center shall maintain an inventory of various-sized live animal traps, which may be made available to the citizens of Norfolk for a period of up to seven (7) days. A further seven-day extension may be allowed at the discretion of the animal care and adoption center depending on current inventory, public demand, or citizen need. A deposit of fifty dollars ($50.00) shall be made with the animal care and adoption center for the use of any animal trap. When a trap is destroyed, lost or damaged through negligence, those persons responsible for the trap shall reimburse the city for the full cost of the repair or replacement of the trap. All animal traps shall be clearly marked with the owner's name and address.

(b) Prior to utilizing any trap set for the capture of any wild or fur bearing animal, the person acquiring such trap must first present any required permit issued by the Commonwealth Department of Wildlife and Game pursuant to Virginia Code, section 29-300.1, as amended, and register with the animal protection unit. A permit is not required for capture of stray domestic animals, mice, rats or nuisance rodents upon a private property.

(c) No person may interfere with the lawful use of an animal trap. This subsection will not apply to the animal control officer, deputy animal control officer, the director of public health or his designee, any city employee dealing with a trap placed upon city property without consent of the city, the fire chief or his designee, or a state or federal game warden.

(d) Any violation of this section shall constitute a class 1 misdemeanor.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 45,824, § 4, 12-16-14)

Sec. 6.1-7. Keeping of certain animals within the city.

(a) It shall be unlawful for any person to keep in any building or on any premises within the limits of the city any livestock or any poultry other than chickens. No chicken shall be kept within the limits of the city without a permit issued by the department of public health. Such permit shall only be granted and held in accordance with the following provisions:

(1) Prior to keeping any chicken, the applicant seeking a permit shall provide all of the following to the department of health:

(A) Name and mailing address of applicant.

(B) Physical address where the chickens will be housed and signed, written consent of property's owner.

(C) Drawings showing design of coop and location of placement of the coop on the property.

(D) Nonrefundable application fee of an amount established by the director of the department of health.

(2) No permit allowing the keeping of chickens shall be issued when the property proposed for housing the chickens is:

(A) Improved with a two-family or multiple-family residential use, a manufactured home, or a day care facility licensed by the commonwealth;

(B) Less than five thousand (5,000) square feet in area;

(C) Located within fifty (50) feet of the point of mean high water of any waterway, measured from the nearest property line, except where applicable provisions of the Chesapeake Bay Preservation Act

require a greater setback, in which case the greater setback shall be required; or

(3) The holder of any permit allowing the keeping of chickens shall be in violation of this section and may have the permit revoked in the event any of the following conditions are not consistently and adequately maintained:

(A) No more than six (6) hens and no rooster or capon shall be kept on any lot.

(B) When kept at a residential property, no eggs or chicken meat may be sold from the property.

(C) Chickens shall be kept at least fifteen (15) feet from any property line and any occupied building, at least twenty (20) feet from the nearest boundary of any city drainage easement, and shall be located on areas of the property that, at all times, are not visible from any improved public right-of-way.

(D) Each chicken shall be tagged with an identification band provided at the time the permit is issued, which shall be attached to either the leg or wing.

(E) All chickens shall be kept in a coop consisting of a covered, predator-proof shelter that is thoroughly ventilated, provides adequate protection from elements, is designed to be easily cleaned, can be accessed with at least one door sufficient to accommodate a human, and provides a feeder and watering space sufficient for the number of birds being kept.

(F) Coops shall provide not less than six (6) square feet of total area for each chicken authorized to be kept and one-half (½) of the total area shall be a weatherproof, inside area.

(G) Any electrical power provided to the coop shall be installed according to applicable building code requirements and no extension cord shall be used.

(H) All coops shall be maintained in orderly and working condition at all times and must be cleaned regularly so as to prevent odors from being perceptible from other properties. All feed shall be stored and waste shall be disposed of in a manner that prevents the attraction of rodents, flies, and other pests.

(I) Neither the chickens nor the coop shall be permitted to create or constitute a nuisance in accordance with the provisions of section 6.1-76 of this chapter or chapter 27.

(J) No chicken shall be killed nor kept in any manner or condition that constitutes either cruelty to animals, in accordance with the provisions of section 6.1-78 of this chapter, or a failure to perform any duties of ownership, in accordance with the provisions of section 6.1-77 of this chapter.

(K) All exterior areas of the property in the vicinity of where the chickens are kept, the coop, and any chicken kept on the property shall be made available for immediate inspection on request by any city law enforcement officer, duly designated sworn special police officer, the fire marshal or any of his assistants, the director of public health or his authorized designee, or the Virginia State Veterinarian or his authorized designee.

(L) At all times a copy of the permit shall be maintained on the property where the chickens are kept.

(4) Each permit shall be effective through December 31 of the year in which it is issued.

(b) It shall be unlawful for the owner or any person having charge or control of any chicken to permit it to be at large within the limits of the city.

(c) The provisions of this section shall not apply to slaughterhouses lawfully operating within the city, authorized shows or exhibits, except regarding strays from the above-listed operations, licensed kennels, veterinarians, animal shelters or humane societies, licensed temporary exhibits, licensed pet shops, licensed/authorized training facilities, nor on any property controlled and managed by the Virginia Zoological Park or by the department of public health. No other exceptions or exemptions to this section are authorized.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 45,248, § 1, 9-10-13; Ord. No. 45,764, § 1, 10-28-14)

Sec. 6.1-8. Limitation on keeping of dogs or cats.

(a) No more than four (4) adult dogs and four (4) adult cats may be kept in any one dwelling unit or premises within the city limits.

(b) Prior to October 1, 1999, any person owning or having custody of more than the allowable number of dogs or cats shall apply for licenses for each adult dog or cat and such person shall not be charged with a violation of this section for the period which the licensed dogs or cats remain in the custody of such person. Only adult dogs or cats licensed by the owner or custodian prior to October 1, 1999, shall be allowed over the limit set by this section. The owner or custodian may not transfer the exemption to other dogs or cats not specifically licensed prior to October 1, 1999. Upon the death, loss or transfer of ownership of the licensed dogs or cats, the owner or custodian is prohibited from owning more dogs or cats than allowed by this section.

(c) This section shall not apply to licensed kennels, veterinarians, animal shelters or humane societies, licensed temporary exhibits, licensed pet shops or kennels housing law enforcement animals or free-roaming cat caregivers. No other exceptions or exemptions to this section are authorized.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 42,466, § 2, 11-21-06; Ord. No. 49,155, § 3, 4-25-23)

Sec. 6.1-8.1. Limitation on keeping of rabbits.

No more than four (4) adult rabbits may be kept in any one dwelling unit or premises within the city limits.
(Ord. No. 40,877, § 1, 11-5-02)

Sec. 6.1-9. Permits for companion pet dealers, grooming salons, pet shops, or sale of pets.

(a) Any person operating a pet shop or grooming salon, operating as a dealer in companion animals, or offering for sale any companion animal, is required to obtain a permit from the animal control officer no later than January 31 of each year. The animal control officer shall inspect the facility prior to permit issuance. Such permit will be renewable each January 31 thereafter subject to the approval of the animal control officer. The cost for each permit will be fifty dollars ($50.00) per year.

(b) Any person obtaining a permit pursuant to this section will be required to maintain records as specified by the city on the application form. The animal control officer or public health officer will be allowed to inspect any facility at which the permittee is maintaining the animals without prior notice to the permittee. The permit shall be conspicuously displayed in an area of public view.

(c) Applications and renewals for permits issued pursuant to this section may be denied by the animal control officer if the applicant or permittee has demonstrated fraudulent practices, inhumane treatment of animals, or violation of local, state or federal laws applicable to animals. An applicant may appeal any denial for permit or renewal to the animal welfare board of review as set forth in article VII.

(d) A permit may be revoked after investigation and hearing by the animal control officer. The animal control officer will serve at least five (5) days' written notice of intent to revoke a permit on the permittee either in person or by posting of the notice to the front door of the facility where such animals are kept. A hearing will be held within ten (10) days of service of the

notice. Testimony by the serving officer that notice was served upon the permittee or posted at the facility where the animals are maintained will constitute prima facia evidence of proper service. A permit may be revoked for fraudulent practices, inhumane treatment of animals, or a violation of local, state or federal laws applicable to animals. The animal control officer will provide written reasons for any determination of revocation within five (5) days of hearing. A permittee may appeal any decision of the animal control officer to the animal welfare board of review as set forth in article VII.

(e) Any companion animal dealer, pet shop, grooming salon, or person who offers for sale any companion animal or who continues operation after revocation of their permit shall be guilty of a class 1 misdemeanor for each day of operation after revocation.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 42,466, § 3, 11-21-06)

Sec. 6.1-10. Prohibition of keeping or exhibiting of wild, exotic or poisonous animals within the city.

(a) It shall be unlawful for any person to keep or exhibit or permit to be kept or exhibited upon any property within the city limits any wild, exotic, and/or poisonous animal without a permit from the animal control officer. In no case, however, shall any such wild, exotic, and/or poisonous animal(s) be exhibited, displayed, or kept in such a manner so as to permit said animal(s) to escape, be at large, or to otherwise come in direct physical contact with any person unless under the direct care and control of the handler.

(b) The owner or custodian of any wild, exotic and/or poisonous animal shall apply to the animal control officer within ten (10) working days of acquisition of said animal, within ten (10) working days of becoming a new resident of Norfolk, within ten (10) working days of changing address within the city, or in the case of an exhibition (10) working days prior to the exhibition, for a permit authorizing the keeping of said animal within the city limits. Each applicant for a wild, exotic or poisonous animal permit shall by affidavit provide the following:

(1) Name and street address of each owner(s)/custodian(s);

(2) Location of animal(s) storage facility;

(3) The common and scientific name of the subject animal(s);

(4) The date of acquisition of each animal;

(5) The source of acquisition of each animal;

(6) The sex, age, height and/or length of each animal;

(7) Any identifying marks or numbers unique to each animal;

(8) A statement of understanding signed by the owner(s)/custodian(s) concerning human exposures in relation to the current state and local laws involving rabies control;

(9) The current phone number and street address of owner(s)/custodian(s) and animal(s), if storage location differs from residence of owner(s)/custodian(s).

(10) At least one emergency phone number where owner(s)/custodian(s) can be contacted in case of emergency.

(c) The permit shall not be transferable and shall be valid through December 31 of the year of issue and shall be renewed by January 31 of each subsequent year. Permits for temporary exhibit shall be valid for the time period specified in the permit. One permit per address will be required within the Norfolk City limits. On the permit shall be listed each animal held within the city limits as identified in subsection (b). The City of Norfolk's wild, exotic and/or poisonous animal permit shall be required in addition to any required federal or state permits. Information supplied on such permit shall be provided to relevant city departments as notification for public health and safety purposes.

(d) It shall be unlawful to release any wild, exotic, and/or poisonous animal(s) into the wild.

(e) The initial fee to cover the cost of the permit administration shall be twenty-five dollars ($25.00) per address. A charge of fifteen dollars ($15.00) will be collected for annual permit renewal, the adding of additional animals to an existing permit, or the duplication of an existing permit.

(f) It shall be unlawful for any person to furnish false information for the purpose of obtaining a permit pursuant to subsection (b). Any permit obtained under fraudulent pretenses shall be null and void with any animals named thereon subject to impoundment by the animal control officer pending a determination by a court of competent jurisdiction as to the appropriate disposition of said animal(s).

(g) Any person applying for a wild, exotic or poisonous animal permit shall provide evidence of surety bond or liability insurance in the amount of fifty thousand dollars ($50,000.00) which covers incidences or occurrences involving the wild, exotic or poisonous animals.

(h) The animal control officer or his designee may reject an application for a wild, exotic or poisonous animal permit, renewal of a permit, or the addition of an animal to an existing permit for any of the following reasons:

(1) Failure to comply with or supply any information required in subsection (b); or

(2) Falsification of any information required in subsection (b); or

(3) Previous or current violations of any provisions of this section; or

(4) Previous or current violations of any local, state, or federal law relating to animals; or

(5) The history or demonstration of a vicious or dangerous nature of an animal.

Any person whose application is rejected pursuant to this subsection may appeal this decision to the animal welfare board of review as set forth in article VII.

(i) The animal control officer or his designee may revoke a wild, exotic or poisonous animal permit and impound the animals for any of the following reasons:

(1) Failure to comply with the terms of this section; or

(2) Falsification of any information required in subsection (b); or

(3) Violation of any local, state or federal law applicable to animals.

Any person whose permit is revoked pursuant to this subsection may appeal this decision to the animal welfare board of review as set forth in article VII.

(j) The permittee shall post a placard provided by the animal control officer in an area of public view on any premises, building or structure where the wild, exotic or poisonous animal is kept or housed. Failure to post the placard shall be a violation of this section.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-10.1. Traveling animal exhibit; permit required.

(a) It shall be unlawful for any person to have, stage, maintain, show or perform any traveling animal exhibit upon any property within the city limits without a permit from the animal control officer.

(b) Any person desiring to have, stage, maintain, show or perform a traveling animal exhibit shall apply to the animal control officer, thirty (30) working days prior to the exhibition, for a permit authorizing the exhibit within the city limits. Each applicant for a permit shall by affidavit provide the following:

(1) Name and street address of each owner(s)/custodian(s);

(2) Location of animal(s) storage facility;

(3) The common and scientific name of each animal(s);

(4) The date of acquisition of each animal;

(5) The source of acquisition of each animal;

(6) The sex, age, height and/or length of each animal;

(7) Any identifying marks or numbers unique to each animal;

(8) A statement of understanding signed by the owner(s)/custodian(s) concerning human exposures in relation to the current state and local laws involving rabies control;

(9) The current phone number and street address of owner(s)/custodian(s) and animal(s), if storage location differs from residence of owner(s)/custodian(s);

(10) At least one emergency phone number where owner(s)/custodian(s) can be contacted in case of emergency.

(c) The permit shall not be transferable and shall be valid for the time period specified in the permit. On the permit shall be listed each animal held within the city limits as identified in subsection (b). The city's permit shall be required in addition to any required federal or state permits. Information supplied on such permit shall be provided to relevant city departments as notification for public health and safety purposes.

(d) The fee to cover the cost of the permit administration shall be twenty-five dollars ($25.00).

(e) It shall be unlawful for any person to furnish false information for the purpose of obtaining a permit pursuant to subsection (b). Any permit obtained under fraudulent pretenses shall be null and void with any animals named thereon subject to impoundment by the animal control officer pending a determination by a court of competent jurisdiction as to the appropriate disposition of said animal(s).

(f) Any person applying for a permit shall provide evidence of surety bond or liability insurance in the amount of fifty thousand dollars ($50,000.00) which covers incidences or occurrences involving animals.

(g) The animal control officer or his designee may reject an application for a wild, exotic or poisonous animal permit for any of the following reasons:

(1) Failure to comply with or supply any information required in subsection (b); or

(2) Falsification of any information required in subsection (b); or

(3) Previous or current violations of any provisions of this section; or

(4) Previous or current violations of any local, state, or federal law relating to animals; or

(5) The history or demonstration of a vicious or dangerous nature of an animal.

(i) The animal control officer or his designee may revoke a permit and impound the animals for any of the following reasons:

(1) Failure to comply with the terms of this section; or

(2) Falsification of any information required in subsection (b); or

(3) Violation of any local, state or federal law applicable to animals.

(Ord. No. 42,466, § 4, 11-21-06)

Sec. 6.1-11. City as a bird sanctuary.

(a) The entire area within the corporate limits of the City of Norfolk shall be a bird sanctuary for the protection of all birds, except starlings, pigeons and English sparrows. Signs stating that the city is a bird sanctuary may be erected in this city; provided, that the types of signs and locations thereof are first approved by the city manager.

(b) It shall be unlawful for any person within the city to kill or injure any bird or to destroy or injure the nest or eggs of any bird, except starlings, pigeons (other than homing pigeons which are banded for identification) and English sparrows, and the nests or eggs thereof.

(c) The animal control officer is hereby authorized to designate some member of the animal protection unit who shall, when so designated be then authorized to humanely remove or frighten from points of concentration on any property, any or all nuisance birds there harboring or concentrated.

(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-12. Pigeons.

(a) It shall be unlawful for any person to permit any pigeons, except homing pigeons, to fly at large within the limits of the City of Norfolk. The owner or occupant of the lot or premises upon which pigeons are kept or permitted to harbor shall be responsible for any violation of this section.

(b) The concentration of pigeons constitutes a public nuisance in the city. The animal control officer is hereby authorized to designate some member of the animal protection unit who shall, when so designated, be then authorized to humanely remove or frighten from points of concentration on any property, any or all pigeons there harboring or concentrated.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-13. Feeding of wildlife.

It shall be unlawful to feed any native Virginia wildlife within the city limits except in areas designated for that purpose. This section shall not apply to bird feeders.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 42,840, § 1, 9-18-07)

Sec. 6.1-14. Animals in motor vehicles.

No person shall leave any animal in any standing or parked vehicle in such a way as to endanger the animal's health, safety, or welfare. Any animal control officer, firefighter, fire marshal, or police officer is authorized to use reasonable force to remove the animal from the vehicle whenever it appears that its health is endangered after making reasonable attempt to contact the owner. The animal will be impounded and taken to a veterinarian for any care needed and then placed at the animal shelter. A written notice will be left attached to the vehicle with the officer's name, badge number, time, date, location of where the animal is being held and a contact number to call. Any person violating this section shall bear the full cost and expense incurred by the city in the care, medical treatment, impound cost, including any repairs to vehicle or removal costs.
(Ord. No. 40,878, § 1, 11-5-02)

Sec. 6.1-15. Adequate space for animals; required.

Except under a traveling animal permit, it shall be unlawful for any person to fail to provide adequate space, as that term is defined in this chapter, for any animal. The holder of a traveling animal permit shall abide by the USDA and other applicable laws including the terms of their permits.
(Ord. No. 42,466, § 5, 11-21-06)

Secs. 6.1-16—6.1-49. Reserved.

ARTICLE II. LICENSING OF DOGS AND CATS

Sec. 6.1-50. License for dog or cat required.

(a) It shall be unlawful for any person other than a releasing agency that has registered as such annually with the animal care and adoption center, to own in the city a dog or a cat four (4) months old or older unless such dog or cat is licensed under the provisions of this article. New residents of the city must obtain the required dog or cat licenses within ten (10) days of bringing the animal into the city. Free-roaming cat caregivers are not required to license free-roaming cats.

(b) The first violation of this section shall constitute a class 4 misdemeanor. The second violation on the same animal shall constitute a class 3 misdemeanor. Subsequent violations on the same animal shall constitute a class 2 misdemeanor. Upon being found guilty of a third or subsequent violation related to the same animal, the court may also order the confiscation and the proper disposition of the animal.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 40,089, § 1, 8-22-00; Ord. No. 45,824, § 5, 12-16-14; Ord. No. 49,155, § 4, 4-25-23)

Sec. 6.1-51. License application.

(a) A dog or cat license shall be obtained by a resident of the city by presentation of a written or oral application, evidence of current rabies vaccination and payment of the license tax to the

city treasurer or his designee. The city treasurer shall only be authorized to license dogs or cats of resident owners or custodians who reside within the corporate city limits. Any owner or custodian making application for a license may be required to provide evidence of residency. Licensure of a dog or cat by another political subdivision or state will not act to relieve the resident owner or custodian of responsibility to obtain a license for the dog or cat in the city.

(b) It shall be unlawful for any person to make any false statement in or present any false evidence with an application submitted under this section. Violation of this subsection shall constitute a class 1 misdemeanor.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-52. Dog or cat license tax.

(a) A license tax shall be imposed on all dogs or cats aged four (4) months old or older in the following manner:

For each male, unneutered.....	$25.00
For each male, neutered	5.00
For each female, unspayed.....	25.00
For each female, spayed	5.00

(b) Any senior citizen may obtain a dog or cat license for neutered or spayed animals at a discount rate of two dollars ($2.00) per animal. No discount shall be given for unneutered or unspayed animals. Any person fifty-five (55) years of age or older shall be deemed to be a senior citizen upon proof of age.

(c) A written veterinarian's certification showing that a dog or cat has been spayed or neutered shall be presented at the time of application to qualify for the lower tax. Failure to provide such certification shall result in imposition of the rate for unneutered or unspayed animals. Such certification shall indicate the species, breed, name, address and color of said animal and the name, address and signature of a licensed veterinarian.

(d) No license tax shall be levied under this section on any dog that is trained and serves as a guide dog for a blind person, that is trained and serves as a hearing dog for a deaf or hearing impaired person, or serves as a service dog for a mobility-impaired person, or is a police or detection dog used by a local, state or federal enforcement agency. For purposes of this subsection, "hearing dog" is a dog trained to alert its owner by touch to sounds of danger and sounds to which the owner should respond. "Service dog" shall mean a dog trained to accompany its owner for the purpose of carrying items, retrieving objects, pulling a wheelchair or other such activities or service or support.

(e) Any person giving false information in the procurement of a license pursuant to this section shall be deemed guilty of a class 1 misdemeanor.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-53. When license tax is due and payable.

The license tax imposed on dogs and cats in section 6.1-52 shall be due and payable as follows:

(a) On or before January 31 of each year the owner of any dog or cat four (4) months old or older or any owner of a kennel shall pay the tax.

(b) If a dog or cat shall become four (4) months old or older and come into the possession of any person between January first and November first of any year, the license tax for the current year shall be paid within ten (10) working days of the date of possession.

(c) If a dog or cat shall become four (4) months old or older and come into the possession of any person between November first and December thirty-first of any year, the license tax for the succeeding calendar year shall be paid within ten (10) working days of the date of possession and the owner of such animal shall be protected from prosecution.

(d) Licenses for the forthcoming year shall be available for purchase November first of the preceding year.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-54. Failure to pay license tax when due.

(a) It shall be unlawful for any person to fail to pay the dog or cat license tax when such tax is due. Payment of the license tax subsequent to a summons to appear before a court for failure to pay within the time required shall not operate to relieve such owner from the penalties provided for such failure.

(b) The first violation of this section shall constitute a class 4 misdemeanor. The second violation on the same animal shall constitute a class 3 misdemeanor. Subsequent violations on the same animal shall constitute class 2 misdemeanors. Upon being found guilty of a third or subsequent violation related to the same animal, the court may also order the confiscation and the proper disposition of the animal.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-55. Issuance, composition and contents of license.

(a) Upon receipt of a proper application and the prescribed license tax, the city treasurer or his designee shall issue a license; provided that no such license shall be issued for any animal unless there is presented to the city treasurer or his designee a current rabies certificate for such animal.

(b) Each license shall consist of a license tax receipt and a metal tag. Such receipt shall have recorded thereon the amount of the tax paid, the name, address and telephone number of the owner or custodian of the animal, the date of payment, the year for which the license was issued, the serial number of the tag, a general description including color, sex, name and breed of the animal, and whether the animal has been neutered or spayed. The metal tag issued hereunder shall be for the calendar year for which issued and shall bear a serial number.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-56. Preservation and exhibition of license receipt; tag to be worn by dog or cat; exceptions.

(a) Animal license receipts shall be carefully preserved by the owner or custodian and exhibited promptly on request for inspection by the animal control officer, any deputy animal control officer, police officer or public health officer. Dog or cat license tags shall be securely fastened to a substantial collar by the owner or custodian and worn by such animal. The owner of a licensed animal may remove the collar and license tag required by this section when a dog or cat is:

(1) Engaged in lawful hunting;

(2) When a dog or cat is competing in a licensed or permitted show;

(3) When the dog or cat has a skin condition diagnosed by a licensed veterinarian which would be exacerbated by the wearing of a collar and such is stated in writing and signed by the veterinarian making the diagnosis; or

(4) When the dog or cat is confined within the owner's or custodian's dwelling unit.

(b) Any dog or cat not wearing a collar bearing a license tag of the proper calendar year shall be deemed to be unlicensed, and in any proceedings under this section, the burden of proof of the fact that such dog or cat has been licensed or is otherwise not required to bear a tag at the time is on the owner of the animal. This section does not apply to free-roaming cats.

(c) Violation of this section shall constitute a class 4 misdemeanor.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 49,155, § 5, 4-25-23)

Sec. 6.1-57. Removal of tag.

It shall be unlawful for any person, except the owner, custodian, or any law enforcement officer, the animal control officer, deputy animal control officer, or special police officer, to remove a legally acquired license tag from a dog or cat. Violation of this section shall be a class 1 misdemeanor.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-58. Duplicate tags.

If a dog or cat license tag shall become lost, destroyed or stolen, the owner or custodian shall at once apply to the city treasurer or his designee for a duplicate tag, presenting the original license

receipt. Upon affidavit of the owner or custodian, before the city treasurer or his designee, that the original license tag has been lost, destroyed or stolen, the city treasurer or his designee shall issue a duplicate license tag, which the owner or custodian shall immediately affix to the collar of the animal. The city treasurer or his designee shall endorse the number of the duplicate and the date issued on the face of the original license receipt. The fee for a duplicate tag shall be one dollar ($1.00).
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-59. Substations and agents for collections of taxes and issuance of licenses and requirement for surety bonds.

The city treasurer may establish substations in convenient locations in the city and appoint agents for the collection of dog and cat license taxes and issuance of dogs and cat licenses and may require surety bonds from said agents for the faithful performance of their duties including the payment to him of collected taxes. Appointed agents shall be entitled to a one dollar ($1.00) handling fee per license to be deducted from the cost of the tax imposed by section 6.1-52 in accordance with procedures established by the city treasurer.
(Ord. No. 39,717, § 2, 8-31-99)

ARTICLE III. RABIES CONTROL

Sec. 6.1-60. Rabies vaccination or inoculation of cats, dogs and ferrets.

(a) It shall be unlawful for any person to own, keep, hold or harbor any cat, dog or ferret over the age of four (4) months within the city limits unless such cat, dog or ferret shall have been vaccinated with a vaccine licensed by the U.S. Department of Agriculture (USDA) as recommended in the current "Compendium of Animal Rabies Control," prepared by the National Association of State Public Health Veterinarians, Inc. If, however, the requirement of vaccination or inoculation threatens the physical well-being of such cat, dog or ferret, the owner or custodian of such animal shall have a certificate signed by a licensed veterinarian certifying the same; and the owner shall provide a copy of the signed veterinarian certificate to the city's animal protection unit. A copy of such certificate will be forwarded to the director of public health within one (1) working day of receipt by the animal protection unit. The owner or custodian of a dog, cat or ferret shall furnish upon request of an animal control officer, deputy animal control officer, humane investigator, law enforcement officer or official of the public health department, the current certificate of vaccination for such animal.

(b) Any person transporting a cat, dog or ferret into the city from another jurisdiction shall immediately conform with the provisions of this section.

(c) The first violation of this section shall constitute a class 4 misdemeanor. The second violation on the same animal shall constitute a class 3 misdemeanor. Subsequent violations on the same animal shall constitute class 2 misdemeanors. Upon being found guilty of a third or subsequent violation related to the same animal, the court may also order the confiscation and the proper disposition of the animal.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-61. Rabies vaccination or inoculation certificate and collar tag.

(a) A suitable and distinctive collar tag and certificate of rabies vaccination or inoculation certifying that the animal in question has been vaccinated or inoculated shall be issued to the owner or custodian at the time of vaccination or inoculation. The collar tag shall be securely affixed to the cat's, dog's or ferret's collar and shall be worn at all times when the animal is not confined within the owner's or custodian's dwelling unit. Proof of rabies inoculation or vaccination in the form of a written certificate must be produced when requested. Free-roaming cats are not required to wear a collar tag.

(b) A certificate of rabies vaccination or inoculation issued under this section shall mean either: N.A.S.P.H.V. form #50; or veterinary clinic

computer printout; or handwritten invoice signed by a veterinarian, any of which must show all of the following:

(1) Owner's name;

(2) Owner's telephone number;

(3) Owner's address;

(4) Species dog, cat or ferret;

(5) Sex of animal;

(6) Age of animal;

(7) Size of animal;

(8) Breed of animal;

(9) Colors of animal;

(10) Name of animal;

(11) First three (3) letters of the vaccine producer's name;

(12) Duration of vaccination: one-year or three-year;

(13) Vaccination serial (lot) number;

(14) Date of vaccination;

(15) Rabies tag number;

(16) Veterinarian's license number; and

(17) Veterinarian's, or authorized representative's, signature.

Such certificate shall certify that the cat, dog or ferret has been properly vaccinated with animal rabies vaccine licensed by the U.S. Department of Agriculture as recommended in the current "Compendium of Animal Rabies Control," prepared by the National Association of State Public Health Veterinarians, Inc. All veterinarians doing business in the city shall provide monthly a copy of any issued certificate of rabies vaccination or inoculation to the animal protection unit.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 49,155, § 6, 4-25-23)

Sec. 6.1-62. Authority to investigate.

Notwithstanding any of the provisions of this chapter, it shall be the duty of the director of public health or his designee to investigate any report of an animal having caused an exposure to any person or another animal to its saliva or mucous membranes in the city. The director of public health or his designee shall ensure that all quarantine procedures defined by the current "Compendium of Animal Rabies Control" issued from the Office of Epidemiology, Virginia Department of Health, and the Virginia Comprehensive Animal Laws are carried out as necessary to prevent the spread of rabies or other epidemiological animal diseases.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-63. Report of animal or human exposure.

(a) It shall be the duty of the animal control officer, any deputy animal control officer, any police officer, any veterinarian, emergency service attendant, any private physician, any hospital, any urgent care facility or any other person having knowledge of an animal exposure to a human, to report it within one working day after its occurrence to the director of public health or his designee.

(b) It shall be the duty of any person who has knowledge of the existence of a suspected rabid animal, or an animal exposed to a suspected rabid animal, to immediately report the existence and whereabouts of such animal to the animal protection unit who will then notify the director of public health or his designee.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-64. Notice of exposure and access to animal; concealing or harboring such animal to prevent investigation or destruction.

(a) The director of public health or his designee shall notify the owner or custodian of an animal suspected of exposing any person or animal or having been himself exposed to a potentially rabid animal. Once notified of the suspected exposure, any person failing to contact the director of public health or her designee within one working day shall be in violation of this section. Each subsequent day's failure to contact the director of public health or his designee shall be a separate offense. Notice to the owner or

custodian will be deemed adequate if executed in any of the following manner: by telephone or facsimile communication; by delivery or posting of notice at the owner's or custodian's last known address; by delivery or oral communication to any other resident of the owner's or custodian's home or a family member over the age of sixteen (16) years; or posting at the location of the exposure (when no address or telephone number can be obtained). Testimony of the issuing official as to the manner of service of the notice will constitute prima facia proof of service.

(b) The owner or custodian of any animal reported to have exposed a person or other animal shall give the director of public health or his designee prompt access to the animal at any time as may be necessary for verification of quarantine or as may be required to prevent the spread of rabies and thereby safeguard human life. Any owner or custodian of an animal for which a notice has been issued concerning an exposure and who thereafter fails to provide prompt access to the animal shall be guilty of a violation of this article.

(c) It shall be unlawful for any person to evade or elude the director of public health or his designee or to dispose of, conceal, harbor, or remove from the city any animal to keep the animal from being quarantined, destroyed or confined in accord with this article.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-65. Quarantine of animals suspected of rabies.

(a) Any animal suspected of having rabies, showing active signs of rabies, or having been exposed to a suspected rabid animal will be inspected by the director of public health or his designee and may be ordered confined under such conditions as the director of public health or his designee determines are necessary to safely quarantine and observe the animal. If the director of public health or his designee determines that such animal cannot be safely and appropriately confined under the owner's, free-roaming cat caregiver's, or custodian's control, the director of public health or his designee may cause such animal to be impounded at the city animal management center facility or other appropriate facility, including but not limited to at the owner's free-roaming cat caregiver's or custodian's premises if deemed appropriate. The owner, free-roaming cat caregiver, or custodian of the animal will bear the expense of such quarantine for a period between one day and six (6) months unless sooner released by the director of public health or his designee.

(b) Any animal quarantined pursuant to this section will be so kept as to be available for inspection by any duly authorized officer of the department of public health or the animal protection unit and such quarantined animal will not be removed or released or destroyed by any person or agency from the place of quarantine without the express consent of the director of public health or his designee.

(c) In the event an animal in quarantine needs to be relocated the owner, custodian, or other person undertaking the relocation will notify the director of public health prior to the relocation occurring. Failure to so notify is a violation of this section.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 49,155, § 7, 4-25-23)

Sec. 6.1-66. Confinement or destruction of animal bitten by rabid animal.

Any animal suspected of being infected with the rabies virus shall be destroyed immediately in accordance with guidelines approved by the state veterinarian or confined in a pound, kennel or enclosure approved by the director of public health or his designee for a period not to exceed six (6) months at the expense of the owner or custodian. If the exposed animal has evidence of a current vaccination, the animal shall be revaccinated within one working day of notification and confined to the premises of its owner or custodian for the period of time determined by the director of public health or his designee in accordance with the current "Compendium of Animal Rabies Control" issued from the Office of Epidemiology, Virginia Department of Health.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-67. Destruction of animals known or suspected to have rabies.

It shall be the duty of any person owning or having custody of any animal declared rabid by a currently licensed veterinarian, in writing, to immediately sign over to the animal control officer said animal. In addition, the director of public health or his designee shall have authority to direct the confiscation and destruction of any animal suspected to have rabies. The animal control officer working with the representative of the director of public health, shall carry out disposition of the animal in accordance with state directives and guidelines. Detailed written records shall be maintained in the animal control officer's and public health rabies control records.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-68. Animal dying during quarantine.

If any animal shall die while it is quarantined pursuant to the provisions of this article and such animal is known to have exposed another animal or person at any time during a period of two (2) weeks immediately preceding such death, it shall be the duty of the owner or custodian of such animal to immediately contact the director of public health or his designee and obtain instructions for the testing and/or disposal of the body.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-69. Rabies clinics.

The director of public health is hereby authorized to periodically, but not less than once a year, review the need for reduced cost neighborhood rabies clinics to encourage citizens to comply with City Code sections requiring the vaccination of dogs, cats and ferrets against rabies. The director shall base his decision to authorize such clinics upon the availability of veterinarian services to citizens. The director of public health may authorize reduced cost rabies clinics for citizens at which rabies vaccinations shall be administered by a veterinarian, duly licensed in the Commonwealth of Virginia, and conducted in accordance with the current "Compendium of Animal Rabies Control" and local, state and federal law.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-70. Declaration of rabies emergency.

When sufficient evidence exists to believe that a rabid or potentially rabid animal is at large within the corporate city limits or surrounding cities, the director of public health or his designee may undertake any actions necessary to immediately contain and prevent the spread of rabies within the city. This action requires the immediate cooperation of other city agencies in the abatement of the emergency situation. City council may pass an emergency ordinance (which shall become effective upon passage) which shall require owners and custodians of dogs and cats to keep the same confined upon their premises unless under leash and under the control of the owner or custodian so as not to subject their animals to contact with the rabid animal.
(Ord. No. 39,717, § 2, 8-31-99)

ARTICLE IV. OFFENSES REGARDING ANIMALS

Sec. 6.1-71. Use of animals as prizes or inducements.

No person shall give away any live vertebrate animals as a prize for or as an inducement to enter any contest, a game or other competition or as an inducement to enter a place of amusement or offer such vertebrate as an incentive to enter into any business agreement, whereby the offer was for the purpose of attracting trade.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-72. Allowing animals to defecate on public property or on private property of other persons.

It is unlawful for any owner or custodian of any animal to allow any animal to defecate on the property of other persons without their consent or that of the authorized agent or persons having control of the premises or on public

property. Immediate removal and sanitary disposal of the defecated matter shall not constitute a violation of this section. The defecated matter shall be placed in a container and disposed of in a proper waste receptacle. A violation of this section shall constitute a class 3 misdemeanor.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 49,155, § 8, 4-25-23)

Sec. 6.1-73. Dead or disabled animals.

(a) It shall be unlawful for any person to place, cast, or throw any dead animal into a street, road, waterway, or other public place, to knowingly permit any dead animal to remain unburied upon his property, to retain custody of any maimed, diseased, disabled or infirm animal, or leave it to lie or be in a street, road, or public place.

(b) Violation of this section shall constitute a class 3 misdemeanor.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-74. Animals riding in open vehicles.

(a) It shall be unlawful for the operator of any motor vehicle to place or keep an animal in any portion of such vehicle that is open in such a manner so as to permit such animal to jump out of or escape the vehicle or to be thrown from the vehicle by acceleration or stopping of the vehicle or by an accident involving the vehicle. The prohibited portions of a motor vehicle shall include, but not be limited to:

(1) The open bed of a truck or upon a motorcycle; or

(2) The rear storage portion of a vehicle with the tailgate, trunk or hatchback portion open or down.

For the purposes of this section, the operator of a motor vehicle shall be deemed to have control of any animal found therein.

(b) The provisions of this section shall not apply to:

(1) Any person who operates a motor vehicle in which an animal is secured in a cage or carrier of adequate design and shape to protect the animal and prevent its escape;

(2) Any animal which is properly secured; or restrained, or tethered.

(3) Law enforcement animals.

(c) Violations of this section shall constitute a class 2 misdemeanor.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-75. Abandonment of animals.

Any person who abandons any companion animal in any public place including the right-of-way of any public highway, road or street or on the property of another shall be guilty of a class 2 misdemeanor. Returning free-roaming cats to the location where they were trapped as part of the Trap-Neuter-Return will not be deemed abandonment under this section.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 42,466, § 6, 11-21-06; Ord. No. 49,155, § 9, 4-25-23)

Sec. 6.1-76. Nuisance animals.

(a) It shall be unlawful for any owner or custodian of an animal to fail to exercise proper care and control of his animal to prevent it from becoming a public nuisance. Excessive, continuous or untimely barking, molesting of passersby, chasing vehicles, attacking other domestic animals, or trespassing upon school grounds or trespassing upon private or public property shall be deemed a nuisance.

(b) It shall be unlawful for any person owning or having in his possession or under his control any female dog or cat in estrus to fail to exercise proper care and control over such animal to prevent it from becoming a nuisance. Allowing said animal to be at large or to be tied or confined outside so as to attract other animals shall constitute a nuisance.

(c) It shall be unlawful for any person to carry or wear any live snake or reptile in public unless such snake or reptile is securely placed in an

acceptable animal carrier so as to prevent escape or injury to the snake or reptile, another animal or a human being.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 42,466, § 7, 11-21-06)

Sec. 6.1-77. Failure to perform duties of ownership; penalty.

(a) An owner or custodian of an animal shall provide for each of his animals all the following:

(1) Adequate feed;

(2) Adequate water;

(3) Adequate shelter that is properly cleaned and sanitized;

(4) Adequate space for the particular type of animal depending upon its age, size, species, and weight;

(5) Adequate exercise;

(6) Adequate care, treatment, and transportation; and

(7) Veterinary care when needed or to prevent suffering or disease transmission.

(b) The provisions of this section shall also apply to every animal shelter, pound, dealer, pet shop, exhibitor, kennel, groomer, and boarding establishment. This section shall not require that animals used as food for other animals be euthanized.

(c) The animal control officer, law enforcement officer or special police officer may enter any facility listed in subsection (b) during the facility's normal working hours to inspect for compliance with the provisions of this chapter or related laws.

(d) It shall be unlawful for any animal to be tethered unless the owner or custodian is outside with the animal and the animal is in sight view.

(e) Game and wildlife species shall be cared for in accordance with regulations promulgated by the Virginia Department of Game and Inland Fisheries.

(f) Violation of this section shall constitute a class 3 misdemeanor. The second violation on the same animal shall constitute a class 2 misdemeanor. A subsequent violation on the same animal shall constitute a class 1 misdemeanor. Upon being found guilty of a third or subsequent violation related to the same animal, the court may order the confiscation of and the proper disposition of the animal.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 40,089, § 2, 8-22-00; Ord. No. 42,466, § 8, 11-21-06; Ord. No. 45,886, § 2, 3-10-15; Ord. No. 46,140, § 1, 12-8-15)

Sec. 6.1-78. Cruelty to animals.

(a) It shall be unlawful and shall constitute cruelty to animals for any person to:

(1) Override, overdrive, overload, torture, ill-treat, abandon, willfully inflict inhumane injury or pain not connected with bona fide scientific or medical experimentation, or cruelly, maliciously or unnecessarily beat, maim, mutilate, or kill any animal, whether belonging to himself or another;

(2) Deprive any animal of necessary sustenance, food, drink, medical care, or shelter;

(3) Willfully set on foot, instigate, engage in, or in any way further any act of cruelty to any animal;

(4) Carry or cause to be carried in or upon any vehicle, vessel or otherwise any animal in a cruel, brutal, or inhumane manner, so as to produce imminent threat of harm, torture or unnecessary suffering; or

(5) Cause, permit or allow any of the above.

(b) A person found guilty of cruelty to animals may be ordered by a court not to own an animal within the city limits for a period of two (2) years from the date of conviction. Prosecution for violations of this section shall commence within five (5) years after commission of the offense. Prosecutions of this subsection regarding agricultural animals shall commence within one year after commission of the offense.

(c) Nothing in this section shall be construed to prohibit the dehorning of cattle.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-78.1. Cosmetic alterations to companion animals prohibited.

It shall be unlawful for any person to cosmetically alter any companion animal. The only exception to this shall be for procedures performed under proper anesthesia, by a veterinarian licensed in the commonwealth. For purposes of this section, "tail docking", "ear cropping", "debarking" and "declawing" shall be considered cosmetic alterations. "Microchipping", "tattooing"; and "ear tipping" shall not be considered cosmetic alterations.
(Ord. No. 42,466, § 9, 11-21-06; Ord. No. 42,541, § 1, 1-30-07)

Sec. 6.1-79. Animals at large.

(a) It shall be unlawful for the owner, custodian or other person in charge or control of any animal but not including free-roaming cat caregivers to permit or allow such animal to be at large within the city limits or to negligently fail to prevent such animal from being at large within the city limits. Animals are prohibited from being at large in trailer coach parks, mobile home parks, and apartment complexes and must be maintained in accordance with lease provisions. This section does not apply to law-enforcement animals or to free-roaming cats.

(b) For the purpose of this section, an animal is deemed to be at large while roaming, running, flying or self-hunting off the property of its owner or custodian and not under the owner's or custodian's immediate leashed or lead control or secured in an appropriate animal carrier. An owner or custodian of an animal which has completed a certified off-leash obedience class may acquire an animal off-leash permit from the animal control officer. The animal control officer shall require proof of such class. Said permit shall be carried by the owner or custodian when the animal is off the owner's or custodian's premises. Said permit shall not apply to those public parks surrounding or adjacent to schools during days and hours that on-leash animals are prohibited pursuant to chapter 25.2 of this Code, 1979, as amended. Said permit shall not be needed when the animal is confined within an area designated by the city manager for having animals off leash. The requirements of this subsection relating to leash control shall not apply to cats.

(c) Animals are prohibited at public swimming pools.

(d) Any animal picked up or detained by any city employee or on city property at any time shall become the custodial property of the city. If, after a five-day period commencing the day after it is impounded, an animal is not redeemed by the owner, the animal shall become the property of the city for disposition, except that certain wildlife or non-native species may be delivered to the zoological park for proper care and disposition. Such animals may be retained by the zoological park for display, exchange or may be reintroduced to the wild if such action is appropriate.

(e) The first violation of this section shall constitute a class 4 misdemeanor. The second violation on the same animal shall constitute a class 3 misdemeanor and subsequent violations on the same animal shall constitute a class 2 misdemeanor. Any owner cited for three (3) violations of this section may have his animals impounded or spayed and neutered at the owner's or custodian's expense. Costs for spaying or neutering shall be borne by the owner or custodian.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 43,299, § 1, 11-25-08; Ord. No. 49,155, § 10, 4-25-23)

Sec. 6.1-80. Dangerous animals.

(a) It shall be unlawful for any person to keep, harbor or maintain within the city a dangerous animal as defined in this chapter unless authorized pursuant to this section.

(b) The owner or custodian of any animal found to be a dangerous animal shall obtain a dangerous animal registration certificate from the animal control officer. Such registration shall be obtained within ten (10) working days of

the determination. The fee for such registration shall be one hundred fifty dollars ($150.00) in addition to other fees that may be authorized by law. The registration certificate shall be renewed annually. If the owner or custodian of an animal found pursuant to this section to be a dangerous animal is a minor, the custodial parent or legal guardian shall be responsible for obtaining the necessary certificates and complying with the terms of this section.

(c) The animal control officer shall provide the owner or custodian with a tag which identifies the animal as a dangerous animal. The owner or custodian shall affix the tag to the animal's collar and ensure that the animal wears the collar and tag at all times. Failure to display the tag as required herein shall constitute a violation.

(d) All certificates or renewals which are required to be obtained under this section shall only be issued to persons eighteen (18) years of age or older who present satisfactory evidence of all of the following:

(1) The animal's current rabies vaccination and that the animal has been spayed or neutered;

(2) That the animal is and will be confined in a proper enclosure or is and will be confined inside the owner's residence or is and will be muzzled and confined in the owner's fenced-in yard until the proper enclosure is constructed. Such enclosure shall be a secure and locked structure of sufficient height and design to prevent escape or direct contact with or entry by minors, adults or other animals. Such structure shall provide the animal with shelter from the elements of nature;

(3) That the owner's residence is and will continue to be posted with clearly visible signs warning both minors and adults of the presence of a dangerous animal on the property;

(4) That the animal shall be kept muzzled and on a leash in such a manner as not to cause injury to people, other animals or itself whenever the animal is off the owner's property;

(5) That the animal has been permanently identified by a means of a tattoo on the inside thigh or by electronic implantation, or other appropriate method; and

(6) That the owner has obtained liability coverage of at least one hundred thousand dollars ($100,000.00) that covers animal bites.

(7) That the owner will immediately upon learning of any of the following incidents, notify the animal control officer or his designee if the animal:

a. Is loose or unconfined;

b. Bites a person or attacks another animal;

c. Is sold, given away or dies; or

d. Has been moved to a different address.

Failure to perform each of the above items, shall constitute a violation of this section.

(e) No animal shall be found to be dangerous for any of the following reasons:

(1) Solely because it is a particular breed or species;

(2) If the injury, damage or threat was sustained by a person or animal who was, at the time:

a. Committing a crime upon the premises occupied by the owner or custodian; or

b. Committing a willful trespass or other tort upon the owner or custodian's premises; or

c. Provoking, tormenting, or physically abusing the animal or can be shown to have repeatedly provoked, tormented abused or assaulted the animal in the past; or

d. A law enforcement animal which is engaged in the performance of its duties at the time of the acts.

(f) The finding of any court as to the guilt of the owner or custodian of the animal under the provisions of this section shall not be construed in any way to affect the decision of the court as to the disposal of the animal in cases where the court may consider disposal advisable. Where an animal is dangerous without the knowledge of the owner, the court may order the animal destroyed without penalizing the owner. The owner or custodian shall bear the cost of impoundment and disposal of such animal.

(g) Notwithstanding the provisions of this chapter, upon the hearing or trial of any person charged with owning or having custody of a dangerous animal, the animal welfare board or the court in its discretion may find the person not guilty of this section, but guilty of nuisance animal, section 6.1-76.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 40,089, § 3, 8-22-00; Ord. No. 42,466, § 10, 11-21-06; Ord. No. 45,824, § 6, 12-16-14)

Sec. 6.1-81. Vicious animal.

(a) It shall be unlawful for any person to keep, harbor or maintain within the city a vicious animal as defined in this chapter.

(b) No animal shall be found to be vicious for any of the following reasons:

(1) Solely because it is a particular breed or species; or

(2) If the injury, damage or threat was sustained by a person or animal who was at the time:

a. Committing a crime upon the premises occupied by the owner or custodian; or

b. Committing a willful trespass or other tort upon the owner's or custodian's premises; or

c. Provoking, tormenting, or physically abusing the animal or can be shown to have repeatedly provoked, tormented abused or assaulted the animal in the past; or

d. A law enforcement dog which is engaged in the performance of its duties at the time of the acts.

(c) Any animal found to be a vicious animal shall be euthanized in accordance with the appropriate state code provisions.

(d) The finding as to the guilt of the owner or custodian of the animal under the provisions of this section shall not be construed in any way to affect the decision of a court as to the disposal of the animal in cases where the court may consider disposal advisable. Where an animal is vicious without the knowledge of the owner, the court may order the animal destroyed without penalizing the owner. The owner or custodian shall bear the cost of impoundment and disposal of such animal.

(e) Upon trial or hearing of any owner or custodian charged with a violation of this section, animal welfare board or the court, in its discretion, may find the owner or custodian not guilty of this section but guilty of dangerous animal section 6.1-80.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-81.1. Procedural requirements to obtain summons for dangerous and vicious animals.

Any animal control officer or any deputy animal control officer who has reason to believe that a canine or canine crossbreed within the city is a dangerous or vicious animal as defined in this chapter shall apply to a magistrate of the city for the issuance of a summons requiring the owner or custodian, if known, to appear before the general district court at a specified time. The summons shall advise the owner or custodian of the nature of the proceeding and the matters at issue. The animal control officer shall confine the animal until such time as evidence shall be heard and a verdict rendered. If the animal control officer determines that the owner or custodian can confine the animal in a manner that protects public safety, he may permit the owner or custodian to confine the animal until such time as the evidence is heard and verdict rendered. The court hearing the case, through its contempt powers, may compel the owner,

custodian or harborer of the animal to produce the animal. If after hearing the evidence, the court finds that the animal is a dangerous animal, the court shall order the animal's owner or custodian to comply with the provisions of section 6.1-80. If after hearing the evidence, the court finds that the animal is a vicious animal, the court shall order the animal euthanized pursuant to the requirements of section 6.1-81(c).
(Ord. No. 39,770, § 1, 11-9-99; Ord. No. 40,089, § 4, 8-22-00)

ARTICLE V. AUTHORITY FOR SEIZURE, IMPOUNDMENT, RECLAMATION AND DISPOSITION OF ANIMALS

Sec. 6.1-82. Authority to impound animals found within city limits.

(a) The animal control officer is hereby authorized to seize and impound any animal suspected of:

(1) Suffering a direct or immediate threat to its life, safety or health which the owner or custodian has failed or refused to remedy;

(2) Being abandoned or at large;

(3) Being cruelly treated;

(4) Being unlicensed;

(5) Being used for gaming or other illegal activity;

(6) Being a dangerous animal in violation of section 6.1-80;

(7) Being a vicious animal in violation of section 6.1-81;

(8) A violation of section 6.1-8;

(9) A violation of section 6.1-10;

(10) A violation of any other state or federal law or regulation concerning animals; or

(11) A violation of section 6.1-76.

(b) Any animal seized pursuant to this section will be impounded at the animal care and adoption center or at another city-designated facility. Animals requiring specialized veterinary or other care may be impounded at another city-designated facility. Any expense incurred in seizure or impoundment including, but not limited to, boarding, veterinary care, or license fee is the responsibility of the owner or custodian of the animal and becomes a lien on the animal impounded and must be discharged before the animal is released from the facility. The city is not required to hold the seized animal for a period longer than thirty (30) days from the date of the seizure unless a bond as provided for in section 6.1-94 has been posted. In the event no bond has been posted, at the expiration of the thirty-day period, the animal may be disposed of, unless the city is holding the animal pursuant to section 6.1-83(d)(2)(e). In those cases, the city shall hold the seized animal until the conclusion of the litigation under the jurisdiction of state or federal laws related to the animal being prohibited or endangered, unless otherwise ordered by the court or circumstances of section 6.1-83(e) apply. The expenses incurred during impoundment without bond shall still be the responsibility of the owner or custodian of the animal, and become a lien of the animal impounded that must be discharged before release.

(c) The impoundment of any animal pursuant to this section is in addition to any other remedy, action, or process available for any violation of this chapter.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 42,466, § 11, 11-21-06; Ord. No. 45,824, § 7, 12-16-14; Ord. No. 47,832, § 1, 11-26-19; Ord. No. 49,155, § 11, 4-25-23)

Sec. 6.1-83. Notice and hearing for temporary impoundment and notice for seizure.

(a) Written notice of the impoundment of any animal seized pursuant to section 6.1-82 will be given to the identifiable owner or custodian of the animal at the time of seizure. If the owner or custodian is not on the premises from which the animal is seized, notice shall be posted upon the door or other structure in plain view. If such owner or custodian can not be located or identified, written notice shall be given to any family member or person sixteen (16) years old or older residing at the owner's or custodian's last known

address; by posting of the notice at the owner's or custodian's last known address or at the site of the seizure; or by delivery or facsimile to the owner's or custodian's last known place of employment.

(b) The written notice of the seizure shall contain the following information:

(1) The time, date and place of the hearing;

(2) Basic identification of the animal seized;

(3) A written statement of the factual circumstances for seizing and impounding the animal;

(4) Notice of the owner's or custodian's financial obligation for the board, necessary medical care, and costs incident to seizure of the animal and that a lien may be placed against the owner or custodian for such costs; and

(5) Notice of the owner's right to surrender all property rights to the seized animal and thereby avoid incurring further costs after such surrender.

(c) A seizure hearing shall be conducted by the animal control officer as soon as practicable after the seizure but in no event earlier than forty-eight (48) hours after the seizure notice has been issued. The purpose of the seizure hearing is to determine whether such animals should continue to be impounded or whether such animal can be safely returned to the owner, custodian or other interested party before final disposition of any suspected violation of state, federal or local law pursuant to which such animal was impounded. The owner or the custodian shall be permitted to attend the hearing to present information concerning the violation.

(d) The animal control officer may make either of the following determinations within five (5) working days of the seizure hearing regarding the continued necessity of impounding the seized animal:

(1) The seized animal(s) can be returned to the owner, custodian or other individual under the conditions set by the animal control officer for one of the following reasons:

a. The owner or custodian has provided evidence to the animal control officer that such owner or custodian can provide adequate care, for the seized animal or any number of seized animals pending the court hearing on any violation related to the animal(s) in a manner in which will ensure public safety. Animals will be returned to their owner or custodian upon payment of the boarding, medical care, and license fees incurred during seizure and impoundment by the city and upon bail set for the safe keeping of the animal(s) pending the trial of the criminal matters. Any animal returned pursuant to this subsection will be required to be kept in the city limits and available for inspection by the animal control officer until any criminal matter has concluded; or

b. Another interested party has provided adequate evidence of ownership of the animal(s) and can provide adequate care, for the animal(s) in a manner which will ensure public safety; or

c. A private veterinarian or kennel facility will continuously board the animal(s) at the owner's or custodian's expense pending the conclusion of any criminal matters. Such veterinarian must be appropriately licensed to board animals and must provide written agreement to board such animal(s) under the conditions set by the court. Seized animals will be released to such a private veterinarian or kennel facility upon payment by the owner or custodian of all boarding, medical care, license and related seizure expenses incurred by the city and arrangement by the owner or

custodian to have such animal transported to the boarder. Failure to pay the private veterinarian or kennel facility shall constitute a violation of the conditions of the pre-trial release of the animal(s) by the court. All expenses due to the boarder shall be a private matter between the owner or custodian and the boarder. The city shall not be held responsible for any such costs.

(2) The seized animal(s) cannot be returned to the owner or custodian and should be retained by the city or other authority for boarding or other disposition for one of the following reasons:

a. The owner or custodian has not provided adequate evidence that the animal(s) seized can be safely returned to the owner or custodian pending the final disposition of any criminal violations related to such animal(s); or

b. The owner or custodian will be incarcerated and unable to provide for the animal(s); or

c. The owner or custodian has not appeared at the seizure hearing after notice was given or posted upon the premises; or

d. The animal(s) seized will require veterinary treatment, care or rehabilitation beyond the abilities of the city's animal management center or other facility to provide pending the court hearing on any violation related to the animal(s) and the owner or custodian has not provided evidence of the ability to provide adequate care for such animal(s) and to ensure public safety; or

e. Such animal(s) comes under the jurisdiction of state or federal laws related to endangered or prohibited animal(s); or

f. The animal(s) is prohibited within the jurisdictional limits of the city.

(e) Nothing in this section shall prohibit the immediate humane destruction or euthanasia of any seized animal which is unweaned, critically ill or injured, suspected of being rabid, or which attacks another person or animal while being seized or impounded.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-84. Disposition of vicious and feral animals found at large.

Any vicious or feral animal found at large in the city which, because of its disposition or diseased condition, is too hazardous to apprehend may be destroyed when so ordered by the animal control officer. Any vicious or feral animals found to be at large on Virginia Zoological park property may be destroyed by authorized Virginia Zoological personnel.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 49,155, § 12, 4-25-23)

Sec. 6.1-85. Confinement and disposition of stray animals.

(a) All stray animals seized by the animal control officer shall be impounded at the city animal care and adoption center or other designated facility. The owner or custodian of the animal shall be responsible for all costs of seizure, impoundment, board and veterinary care for the seized animal. Such costs shall become a lien against the owner or custodian and must be discharged prior to release of the animal. Costs and fees of impoundment may be reduced or waived at the discretion of the city animal care and adoption center or other designated facility.

(b) It shall be unlawful for any person to harbor or keep a stray or an ownerless animal for more than forty-eight (48) hours without notifying the animal protection unit. This does not apply to a free-roaming cat caregiver.

(c) An animal confined pursuant to subsection (a) shall be kept for a period of not less than five (5) days, such period to commence on the day immediately following the day the animal is initially confined in the facility, unless sooner claimed by the rightful owner thereof. The animal control officer shall make a reasonable effort to ascertain whether the animal has a collar, tag,

license, tattoo, or other form of identification. If such identification is found on the animal, the animal shall be held for an additional five (5) days, unless sooner claimed by the rightful owner. If the rightful owner of the animal can readily be identified, the animal control officer shall make a reasonable effort to notify the owner of the animal's confinement within the next forty-eight (48) hours following the confinement.

(d) If the rightful owner claims the animal prior to the expiration of the holding period, such owner shall be charged the actual expenses incurred in impoundment and keeping of the animal. Any person claiming to be the owner of an impounded animal shall provide adequate proof of ownership prior to redeeming the animal. It shall be unlawful for any person to present false evidence of ownership in order to redeem or gain possession of an impounded animal. Violations of this subsection shall constitute a class 1 misdemeanor.

(e) The fee for redeeming an animal shall be fifteen dollars ($15.00) for the first twenty-four (24) hours or any part thereof and ten dollars ($10.00) per day thereafter to cover the cost of maintaining and safekeeping the animal. Fee for large livestock or animals requiring special handling shall be fifteen dollars ($15.00) per twenty-four (24) hours plus any transportation, boarding and other fees incurred by the city in keeping such animals. Owners or custodians of an impounded animal shall be responsible for any medical cost related to such animal. Said fees may be waived at the discretion of the animal control officer.

(f) If any animal confined pursuant to this section is not claimed by its rightful owner upon expiration of the holding period, such animal shall be deemed abandoned and will become the property of the city. If such abandoned animal did not bear any form of identification when delivered to the animal management center, such animal may be humanely destroyed or disposed of by:

(1) Sale or gift to a federal agency, state-supported institution, agency of the commonwealth, or agency of another state, provided that such agency, or institution is not engaged in animal research and agrees to confine the animal for an additional period of not less than five (5) days;

(2) Delivery to any humane society or animal shelter within the commonwealth;

(3) Adoption by any person provided the animal is spayed or neutered prior to adoption;

(4) Adoption by a resident of a neighboring political subdivision of the commonwealth; or

(5) Delivery, for the purposes of adoption, another live outcome or euthanasia to a humane society or an animal shelter located in and lawfully operating under the laws of another state, provided that such humane society or animal shelter: a) maintains records which would comply with Virginia Code, section 3-796.105; b) requires that adopted dogs and cats be sterilized; and c) has been approved by the State Veterinarian or his designee as a facility which maintains such records, requires adopted dogs and cats to be sterilized, and provides adequate care and euthanasia.

If such abandoned animal did bear a form of identification when delivered to the animal management center, such animal may be humanely destroyed or disposed of only by the methods set forth in paragraphs (2) through (5) above.

(g) No provision herein shall prohibit the immediate destruction of a critically injured or critically ill animal for humane purposes. Any animal destroyed pursuant to the provisions of this section shall be euthanized by one of the methods prescribed or approved by the State Veterinarian. Neither shall any provision in this section prohibit the immediate destruction, for humane purposes, of any animal not weaned, whether or not the animal is critically injured or critically ill.

(h) Nothing in this section shall prohibit the immediate destruction or disposal by the methods listed in subsection (g) of an animal that has

been delivered voluntarily or released to the city animal management center by the animal's rightful owner after the rightful owner has, in writing, surrendered all property rights in such animal and has read and signed a statement which: 1) certifies that no other person has a right of property in the animal; 2) certifies that the animal has not exposed any person in the last twenty (20) days; and 3) acknowledges that the animal may be immediately euthanized or disposed of by the methods listed in subsection (g).

(i) Free-roaming cats shall not be impounded as a stray animal pursuant to this section unless ill, injured, or under sixteen (16) weeks of age. If a free-roaming cat is inadvertently impounded as a stray animal, it may be immediately returned to the location it was found or to the free-roaming cat caregiver of that cat.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 45,824, § 8, 12-16-14; Ord. No. 49,155, § 13, 4-25-23)

ARTICLE VI. MANDATORY STERILIZATION OF DOGS AND CATS ADOPTED FROM CITY ANIMAL MANAGEMENT CENTER

Sec. 6.1-86. Sterilization of adopted dogs and cats.

A dog or cat shall not be released for adoption from the SPCA, the animal care and adoption center, any humane society or animal shelter unless the animal has already been sterilized, except that an individual may adopt an animal before it has been sterilized if its health may be jeopardized by sterilization.

(a) Should the animal not be sterilized for the exception allowed in this section, the individual adopting the animal shall, at the time of adoption:

1. Sign an agreement to have the animal sterilized through the releasing agency or by a licensed veterinarian within thirty (30) days after the date of the agreement;

2. Deposit with the SPCA, the animal care and adoption center, or any animal shelter from which the dog or cat is adopted, a fee set by the releasing agency, in the amount that it would charge to sterilize the animal. The deposit will be remitted to the adopting individual, if the adopted animal is sterilized by a licensed veterinarian, upon receipt of a written confirmation signed by the veterinarian who performed the sterilization.

(b) Violations of subsection (a) of this section shall constitute a class 4 misdemeanor.

(c) Upon the petition of the animal control officer to the general district court, the court may order the individual adopting the animal to take any steps necessary to comply with the requirements of this article. This remedy shall be exclusive of and in addition to any civil or criminal penalty which may be imposed under this chapter.

(d) Any person giving false information in the adoption of an animal pursuant to this section, including misrepresentation of spaying or neutering, shall be guilty of a class 1 misdemeanor.

(e) The animal control officer shall have the authority necessary to administer this section efficiently, including, but not limited to, the implementation of subsection (a).

(f) All fees forfeited for failure to sterilize any animal adopted from the animal management center shall be deposited into a special fund for care and treatment of animals held at the animal management center.

(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 40,800, § 1, 8-20-02; Ord. No. 45,824, § 9, 12-16-14)

Sec. 6.1-87. Sterilization agreement.

The agreement pursuant to subsection (b) of section 6.1-86 shall contain:

a. The date of the agreement;

b. The names, addresses, and signatures of the releasing agency and the new owner;

c. A description of the dog or cat to be adopted;

d. The date by which the dog or cat is required to be sterilized; and

e. A statement printed in conspicuous, bold print, that sterilization of the dog or cat is required under this article; that a person who violates this article is subject to a criminal penalty; and that the new owner may be compelled to comply with the provisions of this article.

(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-88. Sterilization confirmation.

Each new owner who signs a sterilization agreement shall, within seven (7) days of the sterilization, cause to be delivered or mailed to the animal control officer written confirmation signed by the veterinarian who performed the sterilization. The confirmation shall describe the dog or cat; include the new owner's name and address; certify that the sterilization was performed; and specify the date of the procedure. Violations of this section shall constitute a class 4 misdemeanor.

(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-89. Notification concerning lost, stolen or dead dogs or cats.

If an adopted dog or cat is lost or stolen or dies before the animal is sterilized and before the date by which the dog or cat is required to be sterilized, the new owner shall, within seven (7) days of the animal's disappearance or death, notify the animal control officer of the animal's disappearance or death. Violations of this section shall constitute a class 4 misdemeanor.

(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-90. Exemptions to mandatory sterilization

The provisions for mandatory sterilization shall not apply to:

a. An owner reclaiming his dog or cat from the city animal management center;

b. The disposal of an animal by sale or gift to a federal agency, state-supported institution, agency of the commonwealth or agency of another state.

(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-91. Reserved.

Editor's note—Ord. No. 40,801, § 1, repealed § 6.1-91, which pertained to the releasing agency; fees and deposits and derived from Ord. No. 39,717, § 2, adopted Aug. 31, 1999.

ARTICLE VII. ANIMAL WELFARE BOARD OF REVIEW

Sec. 6.1-92. Creation of animal welfare board.

(a) For the purposes of hearing appeals as provided by this chapter of the Norfolk City Code, there is hereby established in the city a board to be called the animal welfare board of review. Such board shall consist of five (5) members: the chief of police or his designee; the director of public health or his designee; and the Superintendent of the Virginia Zoological Park or his designee; and two (2) citizens appointed by council. Members of the animal protection unit or the department of public health's rabies team may not serve on the board.

(b) The chief of police or his designee shall serve as the chairperson of the animal welfare board of review.

(c) Three (3) concurring votes shall be necessary for a decision by the animal welfare board of review at any hearing or meeting. The board may establish rules and regulations for its own procedures.

(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-93. Appeals to the board.

(a) Appeal to the animal welfare board of review may be taken of any decision by the animal control officer denying a permit required by this chapter, revoking a permit issued pursuant to this chapter, or the impoundment of any animal pursuant to this chapter. Notice of appeal shall be in writing and filed with the animal

control officer within five (5) days of said decision. The animal control officer shall forward such appeal, along with a copy of his decision and all papers pertaining thereto, to the animal welfare board of review within two (2) working days of receipt.

(b) The animal welfare board of review, after hearing, may affirm, modify or reverse the decision of the animal control officer. The board shall act within ten (10) working days of receipt of the notice of appeal. Every decision shall be final, subject to such remedy as any aggrieved party might have at law or at equity. Such decision shall be in writing and shall indicate the vote on the decision. Every decision shall be filed in the office of the chief of police, shall be open for inspection and a copy thereof delivered to the appellant.

(c) The animal(s) which constitute the subject of the appeal will remain impounded by the animal control officer pending the decision of the board and any appeal to a court of competent jurisdiction. The owner shall bear the cost of board and care of any animal impounded.
(Ord. No. 39,717, § 2, 8-31-99)

Sec. 6.1-94. Posting of bond for boarding of animals.

(a) Any owner or custodian of an animal seized and impounded by the animal control officer for violations of this chapter shall post a bond, cash or surety for the cost of impoundment, boarding and medical costs of any animal which is held for longer than ten (10) days after impoundment. The bond shall be for a period of thirty (30) days.

(b) Such bond or security shall not prevent the animal control officer from disposing of such animal at the end of the thirty-day period covered by the bond or security unless (i) the person claiming an interest posts an additional bond, cash or corporate surety, with the city treasurer to secure payment of reasonable expenses for additional thirty-day periods and does so prior to the expiration of the previous thirty-day period; (ii) the city is holding the animal pursuant to section 6.1-83(d)(2)(e). In those cases, the city shall hold the seized animal until the conclusion of the litigation under the jurisdiction of state or federal laws related to the animal being prohibited or endangered, unless otherwise ordered by the court or circumstances of section 6.1-83(e) apply. The expenses incurred during impoundment without bond shall still be the responsibility of the owner or custodian of the animal, and become a lien of the animal impounded that must be discharged before release.

(c) The amount of the bond shall be determined by the animal control officer based on the current rate for board and medical condition of the animal as determined by the animal control officer.

(d) At the conclusion of the case, the bond shall be forfeited to the city unless there is a finding that the owner is able to adequately provide for such animal and is a fit person to own the animal. If the animal is returned to the owner or another individual despite a violation of this chapter, the person posting the bond will be entitled to receive the bond less the incurred costs of boarding, medical care and impoundment of the animal.

(e) If a cash bond is paid to the city treasurer and a judicial determination is made that the owner or custodian was not in violation of this chapter and also that the owner or custodian can adequately provide for such animal and is a fit person to own the animal, the person posting the cash bond shall be entitled to a refund of the cash bond from the treasurer. If the court finds that the animal may be released to the owner or another individual despite any violation of this chapter, the person posting the bond will be entitled to a return of the cash bond less the incurred costs of boarding, medical and impoundment.
(Ord. No. 39,717, § 2, 8-31-99; Ord. No. 47,832, § 2, 11-26-19)

Secs. 6.1-95—6.1-100. Reserved.

ARTICLE VIII. FREE-ROAMING CATS*

Sec. 6.1-101. Caregiver requirements.

Any person or group of persons providing care to a free-roaming cat must comply with the following requirements:

(1) All managed free-roaming cats must be maintained on private property with appropriate permission.

(2) All cats that are part of Trap-Neuter-Return must be sterilized, vaccinated against rabies and ear-tipped for easy identification.

(3) Free-roaming cat caregivers are required to provide necessities to the free-roaming cats, including, but not limited to proper nutrition and medical care as needed.

(4) Any food provided to free-roaming cats must be provided in accordance with the following:

a. Feeding should be done primarily during daylight hours, no more than twice a day. If feeding is done before or after daylight hours, food must be provided for no more than thirty (30) minutes.

b. The free-roaming cat caregiver must be present and within sight of the feeding while feeding is occurring.

c. Food must not be placed or left unattended in such a manner so as to be accessible to wildlife.

d. Using automatic feeders, dumping food on the ground, and leaving open food packages is not permitted.

(5) Free-roaming cat caregivers must make every effort to remove free-roaming kittens sixteen (16) weeks or younger for placement with a releasing agency or foster home.

(6) Free-roaming cat caregivers must maintain the following documentation for each free-roaming cat in their care:

a. The veterinarian issued rabies vaccination; and

b. Written confirmation of sterilization by the veterinarian who performed sterilization.

(Ord. No. 49,155, § 1, 4-25-23)

*__Editor's note—__Prior to reenactment by Ord. No. 49,155, § 1, adopted April 25, 2023, Ord. No. 46,445, § 1, adopted June 14, 2016, repealed Art. VIII, § 6.1-100, which pertained to animal advisory board—Creation, terms, duties, responsibilities and reports and derived from Ord. No. 44,823, § 1, adopted August 28, 2012; Ord. No. 44,998, §§ 1, 2, adopted Jan. 29, 2013.

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Chapter 7

BARBERING AND BEAUTY CULTURE*

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***Editor's note—**Ord. No. 38,730, § 1, adopted May 13, 1997, amended and reordained Ch. 7 to read as herein set out. Prior to its amendment, Ch. 7 contained to similar subject matter and was derived from provisions presumably enacted during the 1981 codification and from Code 1958, §§ 7-1—7-13, 7-16—7-23, and 7-25—7-35.

Cross references—Barbershops and beauty parlors not within definition of "health parlor," § 21-1; license tax for barbering and beauty culture activities, §§ 24-75, 24-76, 24-79.

State law references—Barbers, Code of Virginia, §§ 54-83.2—54-83.28; cosmetologists, §§ 54-112.1—54.112.29.

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ARTICLE I. IN GENERAL

Sec. 7-1. Definitions.

Certain words and phrases used in this chapter shall have the meanings ascribed to them in this section, unless clearly indicated to the contrary.

Barber. Any person who is engaged in the business or occupation of barbering, as defined in this section.

Barbering. Any one or any combination of the following acts when done on the human body for pay or reward and not for the treatment of disease: shaving, shaping and trimming the beard; cutting, singeing, shampooing or dyeing the hair or applying lotions thereto; applications, treatment or massages of the face, neck or scalp with oils, creams, lotions, or trimming the hair or a beard. The term "barbering" shall not apply to such acts, however, when performed by any person in his own home when such service is not offered to the public.

Barbershop. Any establishment or place of business within which the practice of barbering is engaged in or carried on by one or more barbers.

Beauty culture. The art of enhancing human hair or skin via such practices as cosmetology, electrolysis or tanning.

Board. The Virginia Board of Barbers or the Virginia Board of Cosmetology, or both.

Cosmetologist. Any person licensed by the board who cuts, curls, or dresses human hair and practices cosmetology for compensation.

Cosmetology. Any one of the following practices or combination of practices which include, but are not limited to, the following: arranging, dressing, curling, waving, cleansing, cutting, shaping, singeing, waxing, tweezing, shaving, bleaching, coloring, relaxing, straightening, or similar work upon the hair of any person, or wig or hair piece of any person, by any means, including hands or mechanical or electrical apparatus of appliances, but shall not include such acts as adjusting, combing, or brushing prestyled wigs or hairpieces when such acts do not alter the prestyled nature of the wig or hairpiece [or] manicuring or pedicuring the nails of any person.

Cosmetology salon. Any commercial establishment, residence, vehicle or other establishment, place or event wherein cosmetology is offered or practiced on a regular basis for compensation and may include the training of apprentices under regulations of the board.

Disinfection. The killing of most germs which cause illness from surfaces, however, lacking the ability to destroy all germs. The type and number of germs on the surface, the amount of organic material (blood, body fluids, soil, etc.), the surface or instrument to be cleaned, and the disinfectant selected can change the effectiveness of the result.

Electrologist. An electrologist, who may be called a thermologist, hypertrichologist or cosmetic therapist, shall be one who practices and/or teaches permanent hair removal utilizing only needle/probe electrode type epilation, which would include electrolysis (direct current/DC), thermolysis (alternating current/AC), or a combination of both (superimposed or sequential blend).

Electrology. The removal of hair through the use of electrical instruments.

Electrology salon. Any commercial establishment, residence, vehicle or other establishment, place or event wherein electrology is offered or practiced for compensation.

Establishment. Any place licensed by the board (barber or cosmetology) for the practice of cosmetology or barbering for compensation, including training of apprentices or students under the regulations of the board.

Hospital disinfectants. EPA (Environmental Protection Agency) registered with no label claim for tuberculocidal activity.

Nail salon. Any place or establishment licensed by the board for the practice of manicuring, pedicuring, and applying artificial nails for compensation. A nail salon may provide for the training of apprentices under the regulations of the board.

Nail technician. Any person licensed under chapter 12 of title 54.1 of the Code of Virginia who for compensation manicures or pedicures natural nails or who perform artificial nail services for compensation, or any combination thereof.

Person. An individual, partnership, corporation, or association.

Phototherapy device. A piece of equipment that emits ultraviolet radiation and that is used by a health care professional in the treatment of disease. This chapter shall not apply to phototherapy device used by or under the supervision of a licensed physician trained in the use of phototherapy devices.

Sterilization. Destroys all forms of microbial life, including high numbers of bacterial spores.

Tanning device. Any equipment that emits electromagnetic radiation with wavelengths in the air between two hundred (200) and four hundred (400) nanometers and that is used for tanning of human skin, including a sunlamp, tanning booth or tanning bed. The term also includes any accompanying equipment, including protective eyewear, timers and handrails. A tanning device utilized by a tanning facility shall comply with all applicable laws and regulations.

Tanning facility. A business that provides persons access to tanning devices.

Tuberculocidal hospital disinfectants. EPA (Environmental Protection Agency) registered hospital disinfectants with a label claim as tuberculocidal.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-2. Regulations of director of public health to implement chapter.

The director of public health may, from time to time, make such reasonable regulations, not inconsistent with this chapter, as shall be deemed necessary to carry out the purposes and provisions of this chapter, and from time to time, may alter, repeal or amend such regulations, or any of them; provided, however, that such regulations and any alteration, repeal or amendment thereof shall not be effective until approved by the council by ordinance or resolution.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-3. Violations of chapter generally.

Unless otherwise specifically provided, a violation of any provision of this chapter shall constitute a Class II misdemeanor.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-4. Inspectors to enforce chapter.

Environmental health specialists of the public health department shall inspect each establishment subject to the requirements of this chapter regularly with regard to the health and safety of the public. infractions shall be immediately reported to the department of public health and, when warranted, to the executive secretary of the appropriate board for disciplinary action.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-5. Permit from public health department required.

The services provided shall determine the classification and code application required for operation.

(a) No person shall operate an establishment for barbering, cosmetology, tanning, electrology, or nail service without first obtaining a permit from the director of public health.

(b) The permit shall be prominently displayed in the establishment.

(c) The permit shall be valid and shall remain in effect indefinitely unless suspended or revoked by the director of public health, as provided in this chapter.

(d) The permit shall not be transferable from one person to another or from one location to another.

(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-6. Submission of plans.

(a) Whenever an establishment for barbering, cosmetology, or nail service is constructed or remodeled and whenever an existing structure is converted to use as such an establishment, properly prepared plans and specifications for such construction, remodeling or conversion shall be submitted to the director for review and approval

before construction, remodeling or conversion is begun. The plans and specifications shall indicate the proposed layout, arrangement, mechanical plans, and construction materials or work areas, and the type of proposed fixed equipment and facilities. The director or the designee shall approve the plans and specifications if they meet the

requirements of these regulations. No establishment for barbering, cosmetology, electrology, or nail service shall be constructed, remodeled, or converted except in accordance with plans and specifications approved by the director or the designee. The director may waive the requirement for plans or specifications.

(b) The director's or designee's approval of any plans or specifications is no guarantee that plans or specifications are without error and the owner shall have final responsibility for the accuracy and completeness of the plan and specifications, including subsequent construction and installation.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-7. Application for health department permit.

Application for health department permit shall be made in writing on a form prescribed by the director of public health, wherein the applicant shall agree to conform to the ordinances, rules and regulations governing such establishments and to permit inspection of the establishment as deemed necessary by the director.

(a) The director shall refuse to issue a permit if the conditions of the establishment do not conform to the requirements of this chapter.

(b) A valid health department permit is a prerequisite to the applicant's obtaining a business license under chapter 24 of this Code for the conduct of an establishment regulated by this chapter.

(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-8. Suspension or revocation of health department permit.

(a) If the operation of any establishment for barbering, cosmetology, tanning, electrology, or nail service violates the provisions of this chapter, the director of public health may suspend or revoke the health department permit issued hereunder or the deputy director of environmental health services may suspend the permit issued hereunder.

(b) If the violation creates an imminent health hazard as determined by the director of public health or deputy director of environmental health, the director or deputy director of environmental health shall close the establishment until the violations are corrected. In other cases, suspension or revocation shall become effective only after the permit holder is notified in writing of the violation and of the impending suspension or revocation of the health department permit and of the opportunity to be heard by the director prior to the suspension or revocation.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-9. Reinstatement of suspended or revoked permit.

The holder of a permit that was suspended or revoked pursuant to this chapter may request reinstatement of such permit. Within three (3) working days of the request, the director or designee shall inspect the establishment to assure that the permit holder and the establishment comply with the requirements of this chapter. If the director finds that the permit holder complies with the requirements of this chapter, the director shall reinstate the permit.
(Ord. No. 38,730, § 1, 5-13-97)

ARTICLE II. STRUCTURAL AND EQUIPMENT REQUIREMENTS

Sec. 7-10. In general.

The establishments governed under this chapter shall conform to the Virginia Uniform Statewide Building Code.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-11. Ventilation.

All rooms shall have sufficient ventilation to keep them free of hazardous odors, vapors and/or fumes. In new or extensively remodeled establishments, each work station from which such odors, vapors and /or fumes originate is to have a direct exhaust vent to the outside or the establishment shall be provided with a positive air supply and exhaust air fans. Material safety data sheets, available from the chemical manufacturer, shall

be maintained for all hazardous chemicals in a readily accessible location for reference. Manufacturer's instructions shall be followed.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-12. Floors, walls and ceilings.

The floors, walls and ceilings shall be constructed of material easily cleanable. They shall be maintained in a state of good repair. No carpeting shall be permitted in the work areas.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-13. Lighting.

Every room used in the establishment shall be properly lighted. A minimum of twenty (20) footcandles of light at the working surface, as provided by natural and artificial sources, shall be maintained during hours of operation.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-14. Toilet facilities.

Every establishment shall have conveniently located toilet facilities as required by the Uniform Statewide Building Code which shall be connected to an approved sewer system. The doors to all toilet rooms shall fit tightly and be self-closing. Toilet rooms shall be cleaned and maintained in good repair, provided with a minimum of ten (10) footcandles of light and mechanically vented to the outside air.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-15. Hand washing facilities.

Adequate hand washing facilities conveniently located to each toilet room and easily accessible to each work area shall be provided and shall be connected to an approved sewer system. Each hand washing facility shall have hot and cold running water, tempered by means of a mixing valve or combination faucet. Each facility shall also have a soap dispenser with soap, an approved sanitary towel dispenser with towels or hot-air dryer, and waste receptacle for disposal of trash and debris. The use of common towels is prohibited.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-16. Shampoo basins.

(a) Each establishment providing cosmetology and barbering services shall provide the following minimum shampoo basins:

(1) One wash or shampoo basin for every barber shop and beauty salon.

(2) One wash or shampoo basin for every ten (10) students for each school of cosmetology or barber school.

(b) Shampoo basins shall be properly connected to an approved sewer system and shall be equipped with a continuous flow of hot and cold water under pressure. They shall be maintained in a state of good repair and cleanliness. All shampoo basins shall be provided with proper, approved backflow prevention devices and be installed, sized and maintained in accordance to the Virginia Uniform Statewide Building Code.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-17. Cabinets and counters.

Every establishment shall be equipped with cabinets of sufficient size to contain in an orderly and easily accessible fashion all clean items, including linens, towels, combs, brushes, scissors, clipper plates, razors and all other linens and instruments used in the establishment. Cabinet shelves and counters shall be made of impervious material with smooth surfaces which may be easily cleaned.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-18. Tanning device law compliance; application of chapter.

A tanning device utilized by a facility in which tanning services are offered shall comply with all applicable laws and regulations. This chapter shall not apply to a phototherapy device used by or under the supervision of a licensed physician trained in the use of phototherapy devices.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-19. Notice to tanning facility customer; liability.

A tanning facility shall give each customer obtaining tanning services a written statement warning that:

(1) Failure to use the eye protection provided to the customer by the tanning facility may result in damage to the eyes;

(2) Overexposure to ultraviolet light causes burns;

(3) Repeated exposure may result in premature aging of the skin and skin cancer;

(4) Abnormal skin sensitivity or burning may be caused by reactions of ultraviolet light to certain (i) foods; (ii) cosmetics; or (iii) medications, including tranquilizers, diuretics, antibiotics, high blood pressure medicines, or birth control pills; and

(5) Any person taking a prescription or over-the-counter drug should consult a physician prior to using a tanning facility.

(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-20. Warning sign upon entrance to tanning facility.

A tanning facility shall post a warning sign in a conspicuous location where it is readily readable by persons entering the tanning section of the establishment. The sign shall contain the following warning:

"DANGER: ULTRAVIOLET RADIATION

"Repeated exposure to ultraviolet radiation may cause chronic sun damage to the skin characterized by wrinkling, dryness, fragility, and bruising of the skin, and skin cancer.

"Failure to use protective eyewear may result in severe burns or permanent injury to the eyes.

"Medications or cosmetics may increase your sensitivity to ultraviolet radiation. Consult a physician before using a sunlamp if you are using medications, have a history of skin problems, or believe you are especially sensitive to sunlight. Pregnant women or women taking oral contraceptives who use this product may develop discolored skin.

"IF YOU DO NOT TAN IN THE SUN,
YOU WILL NOT TAN FROM USE
OF AN ULTRAVIOLET SUNLAMP."

(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-21. Warning sign for each tanning device.

A tanning facility shall post a warning sign, one sign for each tanning device, in a conspicuous location that is readily readable to a person about to use the device. The sign shall contain the following:

"DANGER: ULTRAVIOLET RADIATION

"1. Follow the manufacturer's instructions for use of this device.

"2. Avoid too frequent or lengthy exposure. As with natural sunlight, exposure can cause serious eye and skin injuries and allergic reactions. Repeated exposure may cause skin cancer.

"3. Wear protective eyewear. Failure to use protective eyewear may result in severe burns or permanent damage to the eyes.

"4. Do not sunbathe before or after exposure to ultraviolet radiation from sunlamps.

"5. Medications or cosmetics may increase your sensitivity to ultraviolet radiation. Consult a physician before using a sunlamp if you are using medication, have a history of skin problems, or believe you are especially sensitive to sunlight. Pregnant women or women using oral contraceptives who use this product may develop discolored skin.

"IF YOU DO NOT TAN IN THE SUN,
YOU WILL NOT TAN FROM USE
OF THIS DEVICE."

(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-22. Operational requirements of a tanning facility.

(a) A tanning facility shall have an operator present during operating hours. The operator shall be sufficiently knowledgeable in the correct

operation of the tanning devices used at the facility and shall inform and assist each customer in the proper use of the tanning device.

(b) Before each use of a tanning device, the operator shall provide the customer with properly disinfected protective eyewear that protects the eyes from ultraviolet radiation and allows adequate vision to maintain balance. The operator shall not allow a person to use a tanning device if that person has not been provided protective eyewear. The operator shall also instruct each customer how to use suitable physical aids, such as handrails and markings on the floor, to maintain proper exposure distance as recommended by the manufacturer of the tanning device.

(c) The tanning facility shall use a timer with an accuracy of at least plus or minus ten (10) percent of any selected time interval. The facility shall limit the exposure time of a customer on a tanning device to the maximum exposure time recommended by the manufacturer. The facility shall control the interior temperature of a tanning device so that it may not exceed one hundred (100) degrees Fahrenheit.

(d) Either each time a customer uses a tanning facility or each time a person executes or renews a contract to use a tanning facility, the person shall sign a written statement acknowledging that the person has read and understood the required warnings before using the device and agrees to use the protective eyewear that the tanning facility provides.

Secs. 7-23—7-26. Reserved.

ARTICLE III. SANITATION

Sec. 7-27. In general.

All floors, walls, ceiling, doors, windows, furniture and equipment shall be kept clean and in good repair.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-28. Care of tools and instruments.

(a) Combs, brushes and other instruments of whatsoever nature used in the care of hair, scalp, and body, except razors, clippers, clipper plates and other sharp objects which may cut or be placed under the skin, shall be thoroughly cleaned and rinsed after each use and then immersed in an EPA-registered hospital grade disinfectant or EPA-registered hospital grade tuberculocidal disinfectant per manufacturer's instructions.

Razors, clipper plates, clippers, other sharp objects or any object that becomes contaminated with blood or body fluids must be thoroughly cleaned, rinsed, dried, and then immersed in an EPA-registered tuberculocidal disinfectant. Strict adherence to manufacturer's directions including dilution, temperature, and time for immersion must be followed. Fresh solution must be prepared daily and changed more often if visibly cloudy or dirty. Sterilization is the only alternative method permitted.

Items used to penetrate the skin, including needles/probes used in electrology, must be presterilized, prewrapped, disposable needles, for the prevention of infection, to protect the health, safety, and welfare of the patient. Such needles shall be discarded after each patient treatment, in a sharp-safe container and disposed of according to existing biohazard waste regulations.

(b) When not in use, sterilized instruments must be stored to maintain sterility. All other instruments must be kept in a clean receptacle or cabinet. Combs may be kept immersed in a properly prepared and maintained EPA-registered hospital disinfectant rather than stored in a receptacle or cabinet, provided they are not reused before the minimum immersion time has been completed, and the manufacturer's directions are followed.

(c) A supply of EPA-registered tuberculocidal hospital disinfectant must be maintained to be used in the event that a person's skin is accidentally broken during any procedures, including, but not limited to, shaving, manicuring and pedicuring. In that event, all implements in contact with the involved skin must be thoroughly cleaned to remove all blood and body tissues, rinsed, dried, and then immersed in the tuberculocidal hospital disinfectant or sterilized.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-29. Single-use items.

All instruments and supplies which come into direct contact with a patron and cannot be disinfected (for example, cotton pads, sponges, emery boards, and neck strips) must be disposed of in a waste receptacle immediately after single use.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-30. Lotions, tonics, astringents, balms and cosmetics.

(a) Lotions, tonics, astringents, and other balms and cosmetics shall be kept free of contamination. When only a portion of a preparation is to be used on a patron, it shall be removed from the container in such a way as not to contaminate the remaining portion.

(b) Alum or any other astringent in stick form shall not be used. Whenever it is necessary to use such preparation to stop the flow of blood or body fluid, it must be applied in the form of one-time use liquid or powder.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-31. Prohibition of powder puffs, sponges, neck dusters and shaving brushes.

Use of powder puffs, sponges, neck dusters, and shaving brushes on more than one patron is prohibited.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-32. Reserved.

Editor's note—Ord. No. 47,663, § 1, adopted June 11, 2019, repealed § 7-32, which pertained to permanent makeup and derived from Ord. No. 38,730, § 1, adopted May 13, 1997.

Sec. 7-33. Towels.

No towels shall be used for more than one person without being properly laundered. Closed containers shall be required for storage of wet or soiled towels or linens. Storage of used towels on work surfaces or in wash basins is prohibited.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-34. Covering of head rests; neck bands.

The head rest of each chair when used shall be covered with a clean towel or unused sheet of paper for each patron. A previously unused neck band/strip or clean towel shall be applied about the neck before the covering drape is placed. The edge of the drape shall be placed snugly about the neck band to prevent contact with the skin of the patron.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-35. Sewage disposal.

All sewage and liquid waste shall be disposed of in a public sanitary system or by another method approved the director of public health.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-36. Refuse.

All outdoor refuse shall be stored in suitable vermin-tight containers with lids. Refuse disposal method shall meet applicable city ordinances.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-37. Condition of premises.

(a) All establishments shall be maintained in a clean condition and free of litter, rubbish, refuse or other material which affords the development or harborage for rats, flies, mosquitos or other vermin.

(b) All outer openings shall be effectively screened and vermin-proofed to prevent the entrance of flies, mosquitos, rats and vermin.
(Ord. No. 38,730, § 1, 5-13-97)

Secs. 7-38—7-46. Reserved.

ARTICLE IV. PERSONNEL AND HYGIENE

Sec. 7-47. Certification.

All barbers, cosmetologists, nail technicians, teachers, students, and apprentices employed in any establishment shall have a certificate of registration issued by the appropriate board.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-48. Cleanliness of employees.

All employees shall wear clean outer clothing and maintain a high degree of personal cleanliness while on duty. They shall wash their hands thoroughly in an approved hand washing facility before starting service to and completing service for each patron, after using toilet facilities, and as often as may be necessary to remove soil and contamination.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-49. Infectious or communicable disease.

(a) No person with an infectious or communicable skin disease shall be served in any establishment.

(b) No person having an infectious or communicable skin disease shall perform any service for any person in any establishment.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-50. Treatment of disease prohibited.

(a) No barber, cosmetologist, nail technician, electrologist, teacher, student, or apprentice shall treat any infectious or communicable disease of the skin, remove any growth, or drain any abscess of any person in any establishment.

(b) An artificial nail shall only be applied to a healthy natural nail.
(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-51. Health of employees generally.

(a) No person with a communicable disease shall work as a barber, cosmetologist, nail technician, electrologist, teacher, student, or apprentice in any establishment. No establishment shall employ a person who has a communicable disease. It shall be the duty of each employee concerned to notify the manager of such establishment immediately if such condition exists and to obtain from a physician licensed in the state a certification that the employee may safely provide service.

(b) When the director of public health has reason to believe that a communicable disease may be transmitted from any barber, cosmetologist, nail technician, electrologist, tanning parlor technician, teacher, student, or apprentice the director may require any of the following measures:

(1) The employee suspected of having a communicable disease to submit himself for examination by a physician licensed in the state; such examination to be at the expense of the employee.

(2) Immediate exclusion of the employee from any establishment.

(3) Immediate closing of the establishment concerned until the director determines that the danger of disease transmission has passed.

(Ord. No. 38,730, § 1, 5-13-97)

Sec. 7-52. Service when persons exhibit skin disorders.

(a) No person shall provide any of the services of a barber, cosmetologist, electrologist, or nail technician to any patron exhibiting symptoms of being infected with any fungus or other skin infections, nor shall service be performed on any patron exhibiting skin inflammation, eruptions or conditions, unless a physician licensed in the state certifies that the person may be safely served.

(b) No person shall provide any of the services of a barber, cosmetologist, electrologist, or nail technician if that person exhibits symptoms of being infected with any fungus or other skin infections, nor shall service be performed by any employee exhibiting skin inflammation, eruptions or conditions, unless a physician licensed in the state certifies that the employee is free of communicable disease, and may safely provide service.
(Ord. No. 38,730, § 1, 5-13-97)

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Chapter 8

RESERVED*

*__Editor's note—__Ord. No. 42,900, § 1, repealed §§ 8-1 and 8-47.6, then repealed the remaining sections of Ch. 8 and reordained them as Ch. 25, Art. X. The former Ch. 8 derived from Code 1958, §§ 8—8-14.2, 8-16, 8-18—8-21, 8-23.1, 8-25—8-27, 29-3, and 29-749; Ord. No. 30,162, § 1, adopted Oct. 23, 1979; Ord. No. 36,143, § 1, adopted July 31, 1990; Ord. No. 36,545, § 1, adopted Aug. 27, 1991; Ord. No. 37,608, § 2, adopted May 17, 1994; Ord. No. 39,618, § 1, adopted June 8, 1999; Ord. No. 40,476, §§ 1—7, and 9—13, adopted Sept. 25, 2001; Ord. No. 40,505, § 1, adopted Nov. 6, 2001; Ord. No. 41,551, §§ 3—6, adopted Aug. 24, 2004; and Ord. No. 41,568, § 1, adopted Aug. 23, 2004.

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Chapter 9

RESERVED*

*__Editor's note__—Ord. No. 39,590, § 1, adopted May 18, 1999, repealed Ch. 9, Boats, Docks, Wharves and Waterways, which derived from provisions presumably enacted during the 1981 codification; Code 1958, §§ 31-5, 31-5.1, 31-19, 31-25—31-25.3, 31-31, 31-61, 31-62, 31-62.3, 54-1, 54-2, 54-4—54-7, 54-20—54-29, 54-32—54-36, 54-38—54-40, 54-52—54-62, 54-62.1, 54-63—54-67; and from the following ordinances:

Ord. No.	Date	Ord. No.	Date	Ord. No.	Date
30,132	5-12-81	30,332	3-18-80	30,594	5-13-80
31,302	8-18-81	32,344	5-24-83	33,393	4-09-85
33,808	12-23-85	33,817	12-31-85	35,054	5-24-88
36,905	6-30-92	37,971	5-16-96	38,602	12-17-96
38,828	7-15-97	38,840	7-15-97		

[The next page is 717]

Chapter 10

RESERVED*

*__Editor's note__—Section 1 of Ord. No. 37,088, adopted Dec. 15, 1992, repealed Ch. 10, §§ 10-1—10-7, which pertained to bondsmen and derived from Code 1958, §§ 14-32, 14-34—14-38.

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Chapter 11

RESERVED*

*__Note__—See the editor's footnote to Ch. 11.1.

Chapter 11.1

BUILDINGS AND BUILDING REGULATIONS*

Article I. Virginia Uniform Statewide Building Code

§ 11.1-1. Adoption.
§ 11.1-1.1. Applicability.
§ 11.1-2. Code violations prohibited.
§ 11.1-2.1. Enforcement.
§ 11.1-2.1.1. Disconnection of storm water drainage systems connected to sanitary sewer system.
§ 11.1-3. Fee schedules.
§ 11.1-4. Local criteria.
§ 11.1-5. Board of building code appeals.
§ 11.1-5.1. Membership of the board.
§§ 11.1-6—11.1-10. Reserved.

Article II. Local Requirements

§ 11.1-11. Trailer signs.
§ 11.1-11.1. Inspection of discontinued electrical service.
§ 11.1-12. Disregard of unsafe notices, emergency demolitions, temporary safeguards and emergency repairs.
§ 11.1-13. Barbed or razor wire.
§ 11.1-14. Smoke detectors in certain buildings.
§ 11.1-15. Reserved.
§ 11.1-16. Vacant building registration; penalty.
§§ 11.1-17—11.1-20. Reserved.

Article III. Bonding of Contractors

§ 11.1-21. Reserved.

***Editor's note—**Ord. No. 34,384, § 2, adopted March 17, 1987, repealed Ch. 11 in its entirety, consisting of §§ 11-1—11-13, 11-18—11-23, 11-40—11-59, 11-61—11-63, 11-75—11-77, 11-79—11-87, 11-100—11-114, 11-132—11-162, 11-174—11-190, 11-202—11-215, 11-232—11-245, 11-257—11-263, 11-280—11-287, concerning use of barbed wire to enclose lots; fire district; certificates of competency for mechanical workers; Virginia Uniform Statewide Building Code; electrical work; Minimum Housing Standards Code; dwelling occupancy permits; and maintenance of nonresidential structures; as derived from Code 1958, §§ 9-1, 9-2, 9-2.1, 9-2.2, 9-3, 9-3.1, 9-4, 9-4.1, 9-5—9-10, 9-10.1, 9-11—9-20, 9-20.1, 9-20.2, 9-21, 9-22, 9-24—9-29, 9-31—9-36, 9-39—9-43, 9-43.1—9-43.4, 9-44—9-61, 9.1-1—9.1-13, 9.1-15, 25-8, and 31-38; and the following legislation:

Ord. No.	Sec.	Date	Ord. No.	Sec.	Date
29,720	1	11-21-78	31,177	1—3	5-26-81
30,175	1	11-13-79	31,180	1, 2	5-26-81
30,229	1, 2	12-11-79	32,514	1	8-16-83
31,051	1	3-24-81	32,876	1	5- 8-84
31,052	1	3-24-81	33,399	1	4-16-85

Section 1 of Ord. No. 34,384 added new provisions designated as Ch. 11.1, as herein set out.

Charter reference—Authority of city relative to building regulations, § 2(18).

Cross references—Application to fix street line and grade prerequisite to construction work, § 2-133; erosion and sediment control, Ch. 15; fire-rescue, Ch. 17.1; food and food establishments, Ch. 18.1; garages and service stations, Ch. 20; health parlors, Ch. 21; hotels and similar establishments, Ch. 22; licenses and taxation, Ch. 24; nuisances, Ch. 27; unlawful excavations and required backfilling of excavations made during construction operations, § 29-45; protection of surfaces of pedestrian malls from damage resulting from work on adjacent buildings, § 31-17; planning, Ch. 32; rat and mosquito control in buildings, Ch. 36; sewer use, Chs. 39.1, 39.2; solid waste, Ch. 41; street encroachments and obstructions by buildings or projections therefrom, § 42-10 et seq.; street numbers for buildings, § 42-196 et seq.; subdivisions, Ch. 42.5; swimming pools, Ch. 43; trailer coaches and trailer coach parks, Ch. 44; temporary use of trailer coach for dwelling purposes on construction, § 44-4(d); urban enterprise zones, Ch. 45.5; water supply, Ch. 46.1; zoning ordinance, App. A.

§ 11.1-22. Contract bond for moving buildings or other structures.
§ 11.1-23. Reserved.
§§ 11.1-24—11.1-40. Reserved.

Article IV. Reserved

§§ 11.1-41—11.1-60. Reserved.

Article V. Reserved

§§ 11.1-61—11.1-70. Reserved.

Article VI. Dwelling Occupancy Permits

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§ 11.1-71. Definitions.
§ 11.1-72. Required.
§ 11.1-73. Application.
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§ 11.1-79. Enforcement of article.
§ 11.1-80. Effective date and applicability of article.
§ 11.1-81. Effect of article on agreements between owners and occupants, etc.
§ 11.1-82. Article does not affect building code requirement for certificate of occupancy.
§ 11.1-83. Violations of article.
§ 11.1-84. Permitting less than full compliance with article.
§§ 11.1-85—11.1-95. Reserved.

Division 2. Occupancy Permit Review Board

§ 11.1-96. Established; composition; appointment and terms of members.
§ 11.1-97. Election of chairman and vice-chairman.
§ 11.1-98. Secretary designated.
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§§ 11.1-103—11.1-109 Reserved.

Article VII. Cross Connections

§ 11.1-110. Definitions.
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§ 11.1-116. Protective devices for fire service systems.

§ 11.1-117. Low-pressure cutoff for booster pumps installed in the potable water system.
§ 11.1-118. Submission of plans prior to construction of certain facilities.
§ 11.1-119. Location and installation requirements for protective devices.
§ 11.1-120. Responsibility of owner as to testing, repair, etc., of protective devices.
§ 11.1-121. Certification of testers—Generally.
§ 11.1-122. Same—Procedures.

ARTICLE I. VIRGINIA UNIFORM STATEWIDE BUILDING CODE*

Sec. 11.1-1. Adoption.

The Uniform Statewide Building Code, including the property maintenance provisions, as promulgated by the Virginia State Board of Housing and Community Development, as amended, along with its associated referenced standards hereby are adopted by the City of Norfolk as a comprehensive body of law which is and shall hereafter be cited as the Uniform Statewide Building Code, USBC, or the Building Code of the City of Norfolk.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-1.1. Applicability.

The construction, reconstruction, alteration, conversion, repair, maintenance, or use of structures and buildings within the City of Norfolk, and installation of equipment therein shall be governed by the USBC as adopted and promulgated by the Virginia State Board of Housing and Community Development, together with the local fee schedule and special climatic and geographic design criteria established by this article.
(Ord. No. 34,384, § 1, 3-17-87)

Sec. 11.1-2. Code violations prohibited.

No person, partnership, firm or corporation shall construct, alter, extend, repair, remove, demolish, maintain or use any building or equipment regulated by the USBC or this code, or cause the same to be done, in conflict with or in violation of any of the provisions of the USBC or this code.
(Ord. No. 34,384, § 1, 3-17-87)

Sec. 11.1-2.1. Enforcement.

The code official shall be responsible for the administration and enforcement of Uniform Statewide Building Code and all regulations adopted as part of the building code of the city. The property maintenance code official shall be responsible for the administration and enforcement of the property maintenance provisions of the USBC.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 1, 7-5-89; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-2.1.1. Disconnection of storm water drainage systems connected to sanitary sewer system.

All storm water drainage systems connected to the city sanitary sewer system prior to January 1, 1975, shall be disconnected and capped.
(Ord. No. 36,069, § 1, 6-19-90)

*__State law reference—__Virginia Uniform Statewide Building Code, Code of Virginia, § 36-97 et seq.

Sec. 11.1-3. Fee schedules.

As provided for by section 36-105, Code of Virginia, 1950, as amended, the city council levies certain fees for plan examination, permits, inspections and to defray the costs of enforcement and appeals under the Uniform Statewide Building Code. A schedule of fees is set forth in the table below, entitled "Building Permit Fee Schedule," and the final amount of each fee that shall be charged for each activity shall be computed by identifying the fee shown in the schedule and then increasing it by two percent (2%) to support training programs of the Building Code Academy, as required under section 36-137, Code of Virginia, 1950, as amended, and also by fifteen dollars ($15.00) for processing.

Building Permit Fee Schedule	
Permitting Activity	*Fee*
Administrative Fees	
Minimum Permit Fee (Building and PME only)	$50
Administrative Fee for work begun without a permit	$150
Appeal to the Board of Building Code Appeals	$75
Re-inspection Fee	$50
Changes or corrections to the application or approved plans	$50
Certificate of Occupancy or Certificate of Compliance	$50 (no charge when issued in connection with building permit)
Temporary C.O. for 30 days	$600 (plus $600 for each additional 30 days, if granted)
Building Plan Review Fees	
New Construction, Alterations, and Repairs	
0—2,500 sq. ft.	$35
2,501—5,000 sq. ft.	$75
5,001 sq. ft.—Unlimited	$100
Fire Protection Systems (includes all Fire Protection Systems and Alarms)	$75
Swimming pools, commercial fences, riprap, bulkheads, piers and similar accessory structures (includes signs, communication towers, pump stations, vaults)	$50
Building Permit/Inspection Fees	
Residential	
New Construction (includes additions that increase the gross area of the existing structure)	$0.15/sq. ft.
Alterations/Repairs	$100 (flat fee)
Accessory Structures	$0.15/sq. ft.
Commercial/Other	
New Construction (including additions), Alterations, and Repairs	$0.16/sq. ft.
Demolition (any building or structure)	$50 each
New Hydraulic and Traction Elevators, Escalators (Acceptance Tests)	
Hydraulic Elevators	$250 per unit
Traction Elevators	$350 per unit
Escalators/Moving Walkways	$350 per unit
Miscellaneous Elevators (chair lifts, dumbwaiters, pneumatics, material lifts, etc.)	$250 per unit

Building Permit Fee Schedule	
Permitting Activity	*Fee*
Elevator Maintenance Certificates	
Annual Elevator Certificate	$80 per unit
5-Year Elevator Certificate	$100 per unit
Fire Protection Systems (New/Existing Sprinkler Systems)	$100 per system or alarm
Piers and Bulkheads	
Residential bulkhead without tiebacks, and/or open pile pier up to 100 linear feet	$50 (plus $50 for each additional 100 linear feet or fraction thereof)
Residential bulkhead with tiebacks, and riprap up to 100 linear feet	$75 (plus $75 for each additional 100 linear feet or fraction thereof)
Commercial bulkhead and piers	$50 plus $1 per linear foot
Porches and Decks (uncovered, one-story)	
Up to 100 sq. ft.	$50
101—400 sq. ft.	$100
401 sq. ft. and above	$125
Re-roof and Siding	
Residential	No permit required
Commercial	$150 (flat fee)
Signs	
Any new sign	$80
Alteration or modification of a sign	$50
Swimming Pools (Plumbing and Electrical Permits may also be required)	
Above ground pool	$50
In-ground pool	$125
Pool barrier	$50
Tents (901 sq. ft. or greater and Other Temporary)	$50
Communication Tower	$50
Amusement Devices and Rides	
Mechanical rides/device inspections	$50
Small mechanical rides or inflatable amusement devices/device inspections (per Code of Virginia sections 36-98.3 and 36-105)	$35
Tower Cranes	$250
Electrical Fee Schedule	
Electrical Service (Single-Phase or Three Phases)	
0—200 AMP	$50
201—400 AMP	$100
401—600 AMP	$150
Each additional 100 AMP up to 1000 AMP	$25
Each additional 100 AMP over 1000 AMP without limit	$50
For each piece of equipment and each circuit or feeder installed, extended, relocated, or repaired	$3 per circuit up to 100 circuits, then $4 per circuit
Miscellaneous	
Pool Grounding	$50
Temporary Release	$50
Temporary Electrical Construction Pole	$50

Building Permit Fee Schedule	
Permitting Activity	*Fee*
Mechanical Fee Schedule	
• Burner Replacement • Chiller • Cooling Tower/Water Tower • Grease Duct • Commercial Hoods • Condensate • Hydronic Piping (each zone) • Incinerator/Crematory • Prefab Gas Fireplace • Wood Stove, Fireplace Insert • Gas Logs • Replacement for Chimney or Vents	$40 each
• Air Conditioning Equipment • Boiler • Combination Unit (gas, oil, electric) • Furnace • Heat Pump • Space Heater • Replacement Water Heater • Gas Line • Regulated equipment not addressed	$20 each
• Air Handler • Commercial Clothes Dryer • Kitchen Cooking Equipment • Refrigerator Equipment ($10 per compressor) • Dispenser (pump)	$10 each
• Air Distribution System • Exhaust Duct System • Fan Exhaust • Make Up Air (Ventilation) • Fire/Smoke Dampers • Fueling Piping System (gasoline and oil) • Gas Light • Residential Hood/Duct • Residential Dryer • VAV Box • Ventilation Duct System • Medical Gas Piping • Residential Bath Fan ($5 each) • Residential Bathroom Exhaust Duct	$5 each
Plumbing Fee Schedule	
Plumbing Equipment/Fixtures/Piping Systems (indoor)	$7 per fixture/device/system
Plumbing Site Work (outdoor)	$20 per sewer/storm drain/ service line

Building Permit Fee Schedule	
Permitting Activity	*Fee*
Backflow Device	$20 per device
Sewer Caps	$50 each
Refunds	
Inspections Completed—Percentage of Refund Allowed	
Building Foundation Inspection	75%
Building Framing Inspection	25%
Electrical, Mechanical, Plumbing Rough-In	40%

(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 1, 7-5-89; Ord. No. 39,590, § 9, 5-18-99; Ord. No. 47,229, § 16, 5-22-18, eff. 7-1-18)

Sec. 11.1-4. Local criteria.

As provided for by the USBC, the following standards are established by the City of Norfolk to address those climatic and geographic conditions unique thereto:

11.1-4.1. Wind load.

All exposed structures or parts of structures shall be designed to resist the pressures due to wind in any direction, as set forth in applicable sections of the USBC, based on a minimum sustained (1-minute measured wind) wind speed of 100 MPH.

11.1-4.2. Climatic and geographic design criteria.

Design criteria for the City of Norfolk is established as follows:

Climatic and Geographic Design Criteria

Roof Load[1] *(lbs. per sq. ft.)*	*Live Load*[1] *(lbs. per sq. ft.)*	*Wind Velocity (base wind speed)*	*Seismic Condition by Zone*	*Subject to Damage from:*			
				Weathering	*Frost Line Depth*	*Termite*	*Decay*
20	10	100 MPH	Zone 1	Yes[2]	Yes[3]	Yes	Yes

[1] Roof live load and snow load are addictive.

[2] Two thousand five hundred (2,500) pound compressive strength concrete required grade.

[3] Minimum footing depth twelve (12) inches below finished grade.

11.1-4.3. Base flood level.

The base flood level (100-year flood level), shall be as established by the zoning ordinance of the City of Norfolk.

11.1-4.4. Public systems available.

A public water supply system or public sewer system shall be deemed available to premises used for human occupancy if such premises are within twenty-five (25) feet (measured along a street, alley, or easement) of the public water supply system or public sewer system, and a connection conforming with the standards set forth in the USBC can be made thereto.

11.1-4.5. Freezing.

Water service piping and sewers shall be installed below recorded frost penetration but not less than eighteen (18) inches below grade for water piping and twelve (12) inches below grade for sewers. (Ord. No. 36,932, § 2, 7-28-92)

Sec. 11.1-5. Board of building code appeals.

As provided for by the USBC, the board of building code appeals for the city shall be appointed by the council to consider appeals as indicated by the USBC. The board shall meet not less than once per year and shall annually select one member to serve as chairman.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 1, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,070, § 1, 3-3-98; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 44,596, § 1, 3-27-12)

Sec. 11.1-5.1. Membership of the board.

The board of building code appeals shall consist of not less than five (5) members to be appointed by the council on the basis of their technical ability to render fair and competent decisions regarding application of the USBC, who shall to the extent possible represent different occupational or professional fields. Employees or officials of the city shall not serve as board members. Of the five (5) members, at least one shall be a building construction or home improvement professional with at least ten (10) years of experience in such field, one shall be an architect or professional engineer licensed by the commonwealth to practice as such, and three (3) shall be citizens of the city at large. Three (3) alternate members shall be appointed to serve in the absence of any regular member of the board.
(Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99; Ord. No. 44,596, § 1, 3-27-12)

Secs. 11.1-6—11.1-10. Reserved.

ARTICLE II. LOCAL REQUIREMENTS

Sec. 11.1-11. Trailer signs.

Signs mounted on trailers shall not be parked or left on any premises except in conformity with USBC and the zoning ordinance. Any trailer sign not complying with these provisions shall be towed and impounded by the department of police upon the request of the code official. The owner of such sign may recover same by paying such towing and impoundment charges as are assessed for impounded vehicles.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 1, 7-5-89; Ord. No. 39,268, § 1, 8-18-98)
Cross reference—Zoning ordinance, App. A.

Sec. 11.1-11.1. Inspection of discontinued electrical service.

The code official shall require reinspection before service may be restored to a residential electrical installation from which electrical service has been discontinued for a period of ninety (90) days or more, and prior to reconnection of any change in service to a commercial installation.
(Ord. No. 39,184, § 1, 5-26-98; Ord. No. 39,268, § 2, 8-18-98)

Sec. 11.1-12. Disregard of unsafe notices, emergency demolitions, temporary safeguards and emergency repairs.

Upon the refusal or neglect of any person served with an unsafe notice of any kind to comply with the requirement to abate a hazardous or unsafe condition, or in the event of an emergency wherein time is not available to serve an unsafe notice on an owner or other responsible person, the code official or property maintenance code official shall cause such hazardous or unsafe condition to be abated. Costs incurred in abatement of such condition shall be paid from the city treasury on certification of the code official, and a lien in the amount of such costs shall be placed against the property and remain in force until paid. All unpaid liens shall accrue interest at the rate specified for nuisance abatement liens.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 1, 7-5-89; ; Ord. No. 36,932, § 2, 7-28-92; ; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-13. Barbed or razor wire.

No barbed or razor wire shall be used for the purpose of wholly or partially enclosing any lot or premises within the city, except that barbed ends of fences, barbed wire and razor wire may be used on top of any wall or fence wholly or partially enclosing any lot or premises in any

commercial or manufacturing district, as defined by the zoning ordinance, and barbed wire may be used on top of any wall or fence wholly or partially enclosing any public school, park, recreational or playground site in any residential, commercial or manufacturing district, provided that such wall or fence is at least six (6) feet in height, that the barbed wire or razor wire is installed on arms or brackets extending from the top of such wall or fence inwardly over the private property to be wholly or partially enclosed, that not more than three (3) strands of barbed wire shall be so installed, and the first strand shall be at least six (6) inches from the face of the wall or fence.

(Ord. No. 34,384, § 1, 3-17-87)

Cross reference—Zoning ordinance, App. A.

Sec. 11.1-14. Smoke detectors in certain buildings.

Smoke detectors shall be installed in the following structures or buildings, regardless of their date of construction: (i) any building containing one or more dwelling units, (ii) any hotel or motel regularly used, offered for, or intended to be used to provide overnight sleeping accommodations for one (1) or more persons, and (iii) rooming houses regularly used, offered for, or intended to be used to provide overnight sleeping accommodations. Smoke detectors installed pursuant to this section shall be installed in conformance with the provisions of the Uniform Statewide Building Code. Smoke detectors may be either battery-operated or AC-powered units. The owner of any unit which is rented or leased, at the beginning of each tenancy and at least annually thereafter, shall furnish the tenant with a certificate that all required smoke detectors are present, have been inspected, and are in good working order. Except for smoke detectors located in hallways, stairwells, and other public or common areas of multifamily buildings, interim testing, repair, and maintenance of smoke detectors in rented or leased units shall be the responsibility of the tenant; however, the owner shall be obligated to service, repair, or replace any malfunctioning smoke detectors within five (5) days of receipt of written notice from the tenant that such smoke detector is in need of service, repair, or replacement.

(Ord. No. 36,932, § 3, 7-28-92)

Sec. 11.1-15. Reserved.

Editor's note—Ord. No. 39,590, § 1, adopted May 18, 1999, repealed § 11.1-15, which pertained to the schedules of fees for plan examination, permits and inspections and derived from Ord. No. 38,567, adopted Nov. 12, 1996.

Sec. 11.1-16. Vacant building registration; penalty.

It is unlawful for any owner or owners of buildings or structures which have been vacant for a continuous period of twelve (12) months or more, and (i) that meet the definition of "derelict building" under Virginia Code, § 15.2-907.1, (ii) that meet the definition of "criminal blight" under Virginia Code, § 15.2-907, or (iii) in which the department of neighborhood services or other city manager designee has determined a person is living without the owner or owners authority, fail to register on an annual basis the vacant buildings or structures with the department of neighborhood services. Such registration must be on a form prescribed by the bureau of property maintenance.

The annual fee for such registration will be one hundred dollars ($100.00). Failure to register will result in a two hundred dollar ($200.00) civil penalty or in a four hundred dollar ($400.00) civil penalty if the property is located in a conservation or rehabilitation district or in a designated blighted area. Upon reoccupancy, the owner must notify the department of neighborhood services. Notice will be mailed to the owner or owners, at the address to which property tax notices are sent, at least thirty (30) days prior to assessment of the civil penalty.

(Ord. No. 39,654, § 1, 6-22-99; Ord. No. 45,518, § 1, 4-8-14; Ord. No. 49,945, § 1, 4-29-25)

Secs. 11.1-17—11.1-20. Reserved.

ARTICLE III. BONDING OF CONTRACTORS

Sec. 11.1-21. Reserved.

Editor's note—Section 1 of Ord. No. 36,631, adopted Nov. 12, 1991, repealed former § 11.1-21, which pertained to completion bonds for contractors and derived from Ord. No. 34,384, § 1, adopted Mar. 17, 1987.

Sec. 11.1-22. Contract bond for moving buildings or other structures.

The owner of any building or accessory structure which is to be moved from one location in the city to another location therein shall post to the city a contract bond executed and endorsed by a surety company or corporation licensed to do business in Virginia.

11.1-22.1. Amount of bond. Such bond shall be in the amount of ten thousand dollars ($10,000.00), except as to a one-story garage or a one-story accessory or out-building without living quarters, in which case the bond shall be in the amount of one thousand dollars ($1,000.00).

11.1-22.2. Conditions of bond. The condition of said contract bond shall be that such building or structure, within six (6) months of the date of the moving permit, will be located on the new site and be in full compliance with the provisions of the Property Maintenance Code of the USBC, the zoning ordinance and all other applicable codes and ordinances. The bond shall provide for the payment to the city of one hundred dollars ($100.00) per day as liquidated damages for each day over six (6) months that such building or structure does not comply with the conditions of the bond.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-23. Reserved.

Editor's note—Section 1 of Ord. No. 36,932, adopted July 28, 1992, repealed former § 11.1-23, which pertained to forfeiture of bonds and derived from Ord. No. 34,384, § 1, adopted Mar. 17, 1987, and Ord. No. 35,627, § 1, adopted July 5, 1989.

Secs. 11.1-24—11.1-40. Reserved.

ARTICLE IV. RESERVED*

Secs. 11.1-41—11.1-60. Reserved.

ARTICLE V. RESERVED†

Secs. 11.1-61—11.1-70. Reserved.

ARTICLE VI. DWELLING OCCUPANCY PERMITS‡

DIVISION 1. GENERALLY

Sec. 11.1-71. Definitions.

(a) *Generally.* Certain words and phrases used in this article shall have the meanings prescribed to them by this section, except in the instances where the context clearly indicates a different meaning.

(b) *Board.* The word "board" means the board of building codes appeal provided for in division 2 of this article.

(c) *Dwelling.* A "dwelling" is any building or structure which meets the definition of "dwelling" found in article 2 of the USBC Volume II Building Maintenance Code.

(d) *Dwelling unit.* The term "dwelling unit" shall be as defined by article 2 of the USBC Volume II Building Maintenance Code.

(e) *Reserved.*

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*__Editor's note—__Section 1 of Ord. No. 36,932, adopted July 28, 1992, repealed former Art. IV, which pertained to the certification of tradesmen and derived from Ord. No. 34,384, adopted Mar. 17, 1987 and Ord. No. 35,627, adopted July 5, 1989.

†__Editor's note—__Ord. No. 39,928, § 1, adopted April 25, 2000, repealed Ch. 11.1, Art. V, which pertained to rooming houses and derived from the following ordinances:

Ord. No.	Date	Ord. No.	Date
34,384	3-17-87	39,268	8-18-98
35,627	7- 5-89	39,590	5-18-99
36,932	7-28-92		

‡__Cross reference—__Site plan review, Ch. 32.1.

(f) *Occupancy.* The word "occupancy" means uninterrupted use of a dwelling or dwelling unit as a place of abode by an owner or tenant, except for temporary absences for business, vacation or other similar reasons.

(g) *Occupancy permit.* An "occupancy permit" is a written document, signed by the code official or one of his designated representatives, authorizing an applicant, or other persons designated by the applicant, to move into a vacant dwelling or dwelling unit, for the purpose of residing therein, subject to the limitations specified in such permit.

(h) *Occupy; reoccupy.* The words "occupy" or "reoccupy" mean the act of an owner or tenant first moving into a dwelling or dwelling unit for the purpose of using same as a place of abode.

(i) *Owner.* The word "owner" includes his duly authorized agent or attorney, a devisee, fiduciary, or a person having a vested or contingent interest in the property in question.

(j) *Vacant, vacancy.* A "vacancy" is deemed to have occurred or a unit is deemed to be "vacant" when the occupancy of a dwelling or dwelling unit by owner(s) or tenant(s) ceases, or, when any person who is occupying a rental unit jointly with unrelated persons, regardless of the nature of the rental agreement or payments, ceases to use the dwelling unit as a place of abode.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, §§ 2, 3, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98)

Sec. 11.1-72. Required.

In areas designated by this article, or by any further amendments thereto, it shall be unlawful for any person to reoccupy or for any owner or agent thereof to permit the reoccupation of any dwelling unit vacant on or vacated after the effective date of this article until an occupancy permit has been issued by the property maintenance code official.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-73. Application.

The owner or agent of any vacant dwelling or dwelling unit shall apply to the property maintenance code official for an occupancy permit, and shall provide such information as required by said property maintenance code official. Such application shall be submitted at least five (5) working days prior to the proposed occupancy date. It shall be unlawful for any person knowingly to make any false statement in an application for an occupancy permit.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-74. Inspection generally; issuance.

(a) After receipt of an application for an occupancy permit, the property maintenance code official shall cause an inspection to be made of the dwelling or dwelling unit specified in the application, unless the dwelling or dwelling unit already is certified with section 11.1-75 below. After the inspection, the owner or his agent will be pro-

vided a list of violations, if any, that must be corrected before the dwelling or dwelling unit can be occupied. Any inspection report shall become invalid and a new inspection will be required if correction of cited violations is not commenced or diligently pursued within six (6) months of the initial inspection.

(b) Upon determination that the dwelling or dwelling unit is in compliance with all applicable codes and standards, an occupancy permit will be issued to the applicant.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-75. Special inspection procedures.

For the convenience of owners, the property maintenance code official may establish special inspection procedures for the purpose of expediting occupancy or changes in occupancy in cases of:

(1) Occupied dwellings or dwelling units expected to be vacated within sixty (60) days.

(2) Structures containing multiple dwelling units.

(3) Newly constructed or rehabilitated structures.

The special procedures shall be applied only upon application of the owner or his agent.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-76. Duration of validity.

An occupancy permit once issued to an owner or agent shall remain valid for the duration of the occupancy or a period of one year, whichever event comes later, unless otherwise specified by the property maintenance code official or unless sooner terminated as a result of the findings of an investigation upon the complaint of an occupant or other person to said property maintenance code official, alleging violation of the provisions of this article or the applicable provisions of other codes or standards. During the period of validity of the occupancy permit, as recorded thereon, the owner or agent may permit change in occupancy of the dwelling or dwelling unit without further application to the property maintenance code official, provided the number of occupants permitted does not exceed the number authorized for that dwelling or dwelling unit by the occupancy permit. Any dwelling or dwelling unit becoming vacant after the expiration date of an existing occupancy permit shall require a new occupancy permit prior to any reoccupancy.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-77. Temporary permits.

Temporary occupancy permits may be issued by the property maintenance code official when existing violations pose no serious or immediate threat to the health or safety of an occupant and when the following conditions exist:

(1) The owner has been delayed in correcting violations necessary to permit the issuance of an occupancy permit but has a valid contract in writing with a qualified person for the performance of work and the furnishing of the materials to correct such violations and such contract specifies the dates for commencement and completion of the work, or the owner provides an affidavit stipulating that the work is to be accomplished by the owner and specifying the date by which the work is to be completed; and,

(2) The owner or his agent petitions the property maintenance code official in writing for a temporary waiver of compliance with prescribed housing standards or other code or ordinance violations.

The property maintenance code official must find that the delay in the correction of the violations and the plans for such correction are reasonable and the work can be undertaken and completed while the premises are occupied. The temporary occupancy permit shall expire at the time set forth herein. On or before the expiration

of the temporary occupancy permit, the property maintenance code official shall reinspect the dwelling or dwelling unit.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-78. Status report upon sale or exchange of property.

(a) Prior to the sale or exchange of ownership of any dwelling or dwelling unit, the owner thereof or his authorized agent shall obtain from the property maintenance code official a "status of occupancy permit report," which sets forth the existing status of the dwelling or dwelling unit with regard to future occupancy. Such report shall be delivered by the owner or his authorized agent to the buyer of such property prior to the consummation of the sale thereof, and the buyer shall file with the property maintenance code official a receipt therefor.

(b) It shall be unlawful for the owner of a dwelling or dwelling unit to sell the same without first having obtained and delivered to the buyer the report required herein; provided, however, that nothing in this section shall affect the validity of the title as between the grantor and grantee.

(c) Such report shall contain, in respect to such dwelling or dwelling unit:

(1) A notice of the requirements of this article.

(2) The date of the last occupancy permit inspection and the results thereof.

(d) On request of the seller or his agent, the property maintenance code official will cause an occupancy permit inspection to be made and will include the results of such inspection in the report required herein.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-79. Enforcement of article.

The property maintenance code official and authorized agents are hereby empowered to enforce all the provisions of this article, to act pursuant to authority contained therein and to perform all the duties required thereby.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-80. Effective date and applicability of article.

(a) The provisions of this article shall become effective in areas specified and on dates indicated in the following subsections of this section. In the specified areas, provisions of this article shall be applicable to all dwellings and dwelling units vacant on the effective date indicated or becoming vacant thereafter, except that vacant dwellings or dwelling units may be occupied within a grace period of thirty (30) days after the effective date indicated without a requirement for or the issuance of an occupancy permit. The USBC and the applicable provisions of other general codes and ordinances of the city shall be applicable in the conduct of occupancy permit inspections.

(b) On November 1, 1973, the provisions of this article shall become effective in city planning district fifty-three (53), known as Colonial Place-Riverview and encompassing that area of the city north of the center of 38th Street and LaVallette Avenue, east of West Mayflower Drive and bordered on the north and east by the Lafayette River.

(c) On July 1, 1978, the provisions of this article shall become effective in city planning district sixty-four (64), portions of city planning district sixty-two (62) and city planning district sixty-three (63), known as Ghent and encompassing that area of the city adopted as the Ghent Conservation District (Project VA-R-43).

(d) On August 1, 1978, the provisions of this article shall become effective in city planning district fifty-two (52), known as Park Place and encompassing that portion of that area beginning at the point of intersection of the northern line of West 38th Street and the western line of Colley Avenue; thence westwardly along the northern line of West 38th Street to its intersection with the eastern line of Granby Street; thence southwardly along the eastern line of Granby

Street to its intersection with the southern line of West 35th Street; thence westwardly along the southern line of West 35th Street to its intersection with the western line of Colley Avenue; thence northwardly along the western line of Colley Avenue to the point of beginning.

(d-1) On September 1, 1988, the provisions of this section shall become effective in Planning District 52 and part of 58 (identified as Park Place). This area is more fully described as beginning at the intersection of Llewellyn Avenue and 35th Street; thence along 35th Street to Granby Street/Church Street to the intersection of Church Street and 26th Street; thence westwardly along 26th Street to Monticello Avenue; thence southwardly along Monticello Avenue to the middle of the block between 25th and 26th Street; thence westwardly along the rear property lines of the property fronting on 26th Street to Llewellyn Avenue; thence northwardly along Llewellyn Avenue to the point of beginning.

(e) On February 1, 1980, the provisions of this article shall become effective in that portion of city planning district fifty-one (51) known as Lafayette-Winona and encompassing that area of the city beginning at the point of intersection of the transverse center line of Seeley's Bridge and the eastern right-of-way line of Tidewater Drive; thence northwardly along the eastern right-of-way line of Tidewater Drive to its intersection with the eastward projection of the northern right-of-way line of Willowood Drive; thence westwardly across Tidewater Drive to the northwest corner of Tidewater Drive and Willowood Drive, thence westwardly with the northern line of Willowood Drive 80.64 feet, more or less, to the eastern line of Lot 29, Block 1 as shown on a plat entitled Plat No. 1 of Lakehurst, recorded in Map Book 5 at page 57 in the clerk's office of the circuit court of the city; thence northwardly along the eastern line of said Lot 29 a distance of 106 feet, more or less, to the northeast corner of Lot 29; thence westwardly and parallel to Willowood Drive, along the rear property line of property fronting on Willowood Drive 625 feet, more or less, to the northwest corner of Lot 5, Block 1 as shown in the said Plat No. 1 of Lakehurst; thence southwardly along the western line of said Lot 5 a distance of 106 feet, more or less, to a point in the northern line of Willowood Drive; thence westwardly along the northern line of Willowood Drive 405 feet, more or less, to the eastern line of the entrance of Lakewood Park; thence southwardly across Willowood Drive and continuing along said line to its intersection with the southern line of Cromwell Drive; thence southeastwardly along the southern line of Cromwell Drive to its intersection with the western line of Elmore Place; thence westwardly 70 feet to the rear property line of property fronting on Elmore Place; thence (with the following courses and distances as shown on the plat of Northwest Homes Corporation dated March 8, 1948 and recorded in circuit court of the city in Map Book 13 at pages 25 and 26) south 14 degrees thirty-three minutes thirty seconds west a distance of 249.38 feet to a point in the northern line of Tarrall Avenue; thence north seventy-five degrees twenty-six minutes thirty seconds west a distance of 30 feet to a point; thence along the rear property lines of property fronting on Elmore Place, south fourteen degrees thirty-three minutes thirty seconds west a distance of 818.65 feet, more or less, to a point in the southern line of Alsace Avenue; thence along the southern line of Alsace Avenue south seventy-five degrees fifty-nine minutes thirty seconds east a distance of 100 feet to the southwest corner of Alsace Avenue and Elmore Place; thence with the western line of Elmore Place south fourteen degrees zero minutes thirty seconds west a distance of 370 feet, more or less, to the southern end of Elmore Place; thence westwardly, along the southern property line of property now or formerly owned by the Community Association for Boys, a distance of 110 feet, more or less, to the southwestern corner of said property; thence south eighty-two degrees nine minutes west a distance of 16.42 feet to a point thence south sixty-one degrees fourteen minutes west a distance of 400 feet to a point; thence south forty-two degrees two minutes west a distance of 187 feet to a point; thence south eighty-four degrees twenty-four minutes west a distance of 192 feet to a point; thence north seventy-three degrees fifty-six minutes west a distance of 306 feet to a point; thence north fifty-two degrees two minutes west a distance of 733 feet to a point; thence south eighty-six degrees eighteen minutes west a distance of 438.26 feet to a point; thence south eighty-six degrees

eighteen minutes west to a point where the said line intersects the center line of the Lafayette River; thence westwardly, southwardly and eastwardly along the meandering center line of the Lafayette River to the point of beginning at Seeley's Bridge.

(f) On June 1, 1985, the provisions of this article shall become effective in that section of the city which constitutes a part of Action Area III West Park Place, as defined by the supplement to the general development plan for Park Place dated March, 1982. This area is more fully described as beginning at the point of intersection of the center line of West 35th Street and Llewellyn Avenue; thence running south along the center line of Llewellyn Avenue to its intersection with the center line of West 27 Street; thence running west along the center line of West 27th Street to its intersection with the center line of Colley Avenue; thence running north along the center line of Colley Avenue to its intersection with the center line of West 35th Street; thence running east along the center line of West 35th Street to its intersection with the center line of Llewellyn Avenue, the point of beginning.

(g) On June 1, 1985, the provisions of this article shall become effective in those sections of the city constituting Action Area II (Kensington/ Old Dominion), those portions of Action Area III (West Park Place) and a portion of Action Area IV (Central Park Place) not covered by subsection (f) above, as those particular sections are defined by the supplement to the general development plan for Park Place dated March, 1982. This area is more fully described as beginning at the point of intersection of Colley Avenue and West 38th Street; thence running southwardly along the center line of Colley Avenue to its point of intersection with West 27th Street; thence running easterly along the center line of West 27th Street to its point of intersection with Llewellyn Avenue; thence southwardly along the center line of Llewellyn Avenue to its point of intersection with the right-of-way of Norfolk and Southern Railroad; thence running westwardly along the right-of-way of the Norfolk and Southern Railroad to its point of intersection with Hampton Boulevard; thence running northwardly along the center line of Hampton Boulevard to its point of intersection with West 38th Street; thence running eastwardly along the center line of West 38th Street to its point of intersection with Colley Avenue, the point of beginning.

(h) On June 1, 1985, the provisions of this article shall become effective in that section of the city defined by the supplement to the general development plan for Park Place dated March, 1982, as Action Area VI (Villa Heights) of the Park Place neighborhood. This section is more fully described as beginning at the point of intersection of Church Street and East 30th Street; thence running eastwardly along the center line of East 30th Street to the shoreline of the Lafayette River; thence running eastwardly along the shoreline of the Lafayette River to the point of intersection of Rialto Place and Villa Circle and Leo Street to the intersection of Leo Street with Rugby Street; thence running westwardly along the center line of Rugby Street to its point of intersection with Church Street; thence running northwardly along the center line of Church Street to its point of intersection with east 30th Street, the point of beginning. On September 1, 1988, the following area is deleted from the Occupancy Permit Program: Beginning at the intersection of 26th Street and Church Street; thence eastwardly along 26th Street to Leo Street; thence southwardly along Leo Street to Rugby Street; thence westwardly along Rugby Street to Church Street; thence northwardly on Church Street to the point beginning.

(i) On October 1, 1987, the provisions of this article shall become effective in those areas of the city known as Planning Districts 4 and 5, which constitute Central Ocean View, as identified by the department of city planning in the 1978 General Development Plan for Willoughby-Ocean View and the 1987 Central Ocean View Sector Plan. This area is more fully described as beginning at the point of intersection of the center line of East Leicester Avenue and Chesapeake Boulevard; thence running north along the center line of Chesapeake Boulevard and continuing through the property known as 800 East Ocean View Avenue, for approximately 230 feet, to the shoreline of the Chesapeake Bay; thence running east along the shoreline of the Chesapeake Bay to its intersection with the center line of 1st Bay Street

(paper street); thence running south along the center line of 1st Bay Street to the center line of the intersection of Pretty Lake Avenue and continuing south along the property line known as 9531 1st Bay Street, approximately 400 feet to the shoreline of the body of water known as Little Creek; thence running west along the shoreline of the body of water known as Little Creek, to its intersection with the center line of Inlet Road (paper street); thence running north along the center line of Inlet Road to its intersection with the center line of Parkview Avenue; thence running west along the center line of Parkview Avenue to its intersection with the center line of Beaumont Street and the center line of Virgilina Avenue; thence running west along the center line of Virgilina Avenue (paper street at middle of 1100 block) to its intersection with the center line of Atlans Street (also, paper street at this point); thence running south along the center line of Atlans Street to its intersection with the center line of East Leicester Avenue; thence running west along the center line of East Leicester Avenue to the point of beginning.

(j) On July 1, 1989, the provisions of this article shall become effective in the portions of Planning District 50 known as Ballentine Place and encompassing that area of the city adopted as the Ballentine Place Neighborhood Conservation Project. This area is more fully described as beginning at the point of intersection of the eastern line of Chesapeake Boulevard with the northern line of Lafayette Boulevard; thence eastwardly along the northern right-of-way line of Lafayette Boulevard to its intersection with the western right-of-way line of the Norfolk & Western Railroad; thence southwardly along the western right-of-way line of the Norfolk & Western Railroad to its intersection with the southern right-of-way line of Princess Anne Road; thence southwestwardly along the southern right-of-way line of Princess Anne Road to the eastern property line of Roberts Park East; thence northwestwardly along the eastern line of Roberts Park East to its intersection with the Norfolk and Southern Railroad; thence, crossing the Norfolk and Southern Railroad in a northwardly direction, to the southeast corner of the City of Norfolk Sewer Maintenance Yard; thence northwardly along the eastern property line of property of the City of Norfolk to the northeast corner of said property; thence westwardly along the centerline of a drainage ditch flowing to the Lafayette River to a point due south of the P. C. of a curve in the Tait Terrace right-of-way, approximately 330 feet west of the southwestern corner of Tait Court; thence northwardly to the P. C. as described above; thence northwardly across Tait Terrace to the southeastern corner of former Davis Street and Gornto Avenue; thence northeastwardly along the southern line of former Davis Street to the southwestern corner of Davis Street and Shoop Avenue; thence northwardly along the western line of Shoop Avenue to the southwestern corner of Shoop Avenue and Chesapeake Boulevard; thence northeastwardly along the eastern line of Chesapeake Boulevard to the point of beginning

(k) On January 1, 1990, the provisions of this article shall become effective in the Edgewater-Edgemere neighborhood, being the property described as follows: Beginning at a point where the northern line of 48th Street intersects the eastern shoreline of the Elizabeth River; thence running northwardly along the eastern shoreline of the Elizabeth River to a point where said shoreline intersects with the southern line of Longwood Drive; thence running eastwardly along the southern line of Longwood Drive to a point in the western line of Bluestone Avenue; thence running southwardly along the western line of Bluestone Avenue to a point in the northern line of 49th Street; thence running westwardly along the northern line of 49th Street to a point in the western line of Powhatan Avenue; thence running southwardly along the western line of Powhatan Avenue to a point in the northern line of 48th Street; thence running westwardly along the northern line of 48th Street to a point where said line intersects the eastern shoreline of the Elizabeth River, said point being the true point of beginning.

(l) On January 1, 1990, the provisions of this article shall become effective in the Bayview neighborhood, said neighborhood being described as follows: Beginning at the point of intersection of the southern line of Evelyn Street and the eastern line of Chesapeake Boulevard; thence northwardly along the eastern line of Chesapeake

Boulevard to a point ninety (90) feet, more or less, south of the southern line of Dune Street; thence eastwardly along the rear property lines of the properties fronting the southern line of Dune Street to a point on the western line of Devon Street, ninety (90) feet, more or less, south of the southern line of Dune Street; thence northwardly along the western line of Devon Street to its intersection with the southern line of Dune Street; thence eastwardly along the southern line of Dune Street to a point eighty-one (81) feet east of the eastern line of Devon Street; thence northwardly along the rear property lines of the properties fronting the eastern line of Devon Street to a point one hundred (100) feet, more or less, south of the southern line of Beach View Street; thence eastwardly along the rear property lines of the properties fronting the southern line of Beach View Street to their intersection with the projected eastern line of Beach View Street; thence northwardly along the eastern line of Beach View Street to its intersection with the southern line of Virgilina Avenue; thence eastwardly along the southern line of Virgilina Avenue, which becomes the southern line of Park View Avenue at the intersection of Beaumont Street and Virgilina Avenue to its intersection with the projected eastern line of 1st Bay Street; thence southwardly six hundred (600) feet, more or less, to the eastern property line of the property fronting the eastern terminus of Inlet Point Road; thence southwardly along the eastern property lines of the properties fronting the eastern line of Inlet Point Road; thence westwardly along the rear property lines of the properties fronting the southern line of Lynn River Road, which becomes Cape View Avenue; thence southwardly along the rear property lines of the properties fronting the eastern line of Cape View Avenue; thence westwardly along the rear property lines of the properties fronting the southern line of Sunset Drive to a point at the intersection of the eastern line of Carlton Street and the extended southern line of Evelyn Street; thence westwardly along the southern line of Evelyn Street to the point of beginning.

(m) The provisions of this article shall be effective in an additional part of the Bayview neighborhood known as Kenilworth, being the property described as follows: Beginning at the point on the eastern line of Chesapeake Boulevard ninety (90) feet, more or less, south of the southern line of Dune Street; thence eastwardly along the rear property lines of the properties fronting the southern line of Dune Street to a point on the western line of Devon Street, ninety (90) feet, more or less, south of the southern line of Dune Street; thence northwardly along the western line of Devon Street to its intersection with the southern line of Dune Street; thence eastwardly along the southern line of Dune Street; thence eastwardly along the southern line of Dune Street to a point eighty-one (81) feet east of the eastern line of Devon Street; thence northwardly along the rear property lines of the properties fronting the eastern line of Devon Street to a point one hundred (100) feet, more or less, south of the southern line of Beach View Street; thence eastwardly along the rear property lines of the properties fronting the southern line of Beach View Street to their intersection with the projected eastern line of Beach View Street; thence northwardly along the eastern line of Beach View Street to its intersection with the southern line of Virgilina Avenue; thence westwardly along the southern line of Virgilina Avenue to its intersection with the eastern line of Atlans Street; thence southwardly along the eastern line of Atlans Street to its intersection with the southern line of Leicester Avenue; then southwestwardly along the southern line of Leicester Avenue to its intersection with the eastern line of Chesapeake Boulevard; and thence southeastwardly along the eastern boundary of Chesapeake Boulevard to the point of beginning.

(n) On June 1, 1999, the provisions of this article shall become effective in the Berkley Neighborhood, being the property described as follows:

> Beginning at State Street where it intersects with Emmet Place, move northwardly along Emmet Place to its termination; continue in a northeastwardly direction across the Eastern Branch of the Elizabeth River to a point on South Main Street at its most northerly terminus; thence southwardly along South Main Street until it meets the rear property line of properties on the north side of Bellamy Avenue; thence eastwardly along the rear property line of properties on the north side of Bellamy Avenue until it intersects the current or former

right-of-way of the Norfolk and Portsmouth Belt Line; thence southeasterwardly along the Norfolk and Portsmouth Belt Line right-of-way, across Indian River Road and Pescara Creek, until it intersects with the Norfolk and Western right-of-way; thence southeastwardly along the Norfolk and Western right-of-way until it intersects Berkley Avenue Extended; thence northwesterly along Berkley Avenue Extended until it intersects Obendorfer Road; thence southwesterly along Obendorfer Road until it intersects Liberty Street; thence southeasterly along Liberty Street to Chesterfield Boulevard; thence southwesterly along Chesterfield Street to Bainbridge Boulevard; then northwesterly along Bainbridge Boulevard to South Main Street; thence northeasterly along South Main Street to Liberty Street; thence northwesterly along Liberty Street to State Street; then northwesterly along State Street to the point of beginning.

(o) On June 1, 2002, the provisions of this article shall become effective in the Five Points Area, being the property described as follows:

All that certain lot, piece or parcel of land situate, lying and being in the City of Norfolk, Virginia, said parcel being bounded on the west by Sewells Point Road, on the north and east by Interstate Route 64 and on the south by Norview Avenue, said parcel being further described as follows: Beginning at a point that is the intersection of the eastern line of Sewells Point Road and the southern line of Interstate Route 64; thence, from the point of beginning thus described, eastwardly and southwardly along the southern line and the western line, respectively, of said Interstate Route 64 to a point that is the intersection of the said western line of Interstate Route 64 and the northern line of Norview Avenue; thence, westwardly along said northern line of Norview Avenue to its intersection with the eastern line of Sewells Point Road; thence, northwardly along said eastern line of Sewells Point Road to the point of beginning.

(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 34,725, § § 1, 10-2-87; Ord. No. 35,211, § 1, 8-23-88; Ord. No. 35,212, § 1, 8-23-88; Ord. No. 35,612, § 1, 6-27-89; Ord. No. 35,784, § 1, 11-14-81; Ord. No. 35,823, § 1, 12-12-89; Ord. No. 35,867, § 1, 1-16-90; Ord. No. 36,890, § 1, 6-23-92; Ord. No. 39,526, § 1, 3-23-99; Ord. No. 39,590, § 9, 5-18-99; Ord. No. 40,698, § 1, 5-14-02)

Editor's note—Ord. No. 35,784, § 1, adopted Nov. 14, 1989, amended the Code by adding new provisions designated as § 11.1-80(j). Inasmuch as there already exists provisions so designated, the editor has redesignated the provisions of Ord. No. 35,784 as § 11.1-80(k). Subsequently, Ord. No. 35,823, § 1, adopted Dec. 12, 1989, added provisions designated as § 11.180(k), which have been redesignated as § 11.1-80(l) by the editor, and Ord. No. 35,867, § 1, adopted Jan. 16, 1990 added provisions designated as § 11.1-80(k) which have been construed as being amendatory of § 11.1-80(l).

Sec. 11.1-81. Effect of article on agreements between owners and occupants, etc.

The provisions of this article shall not affect any obligation, responsibility or liability imposed by any agreement between any owner or any occupant and another, as between the parties to any such agreement; provided, however, that no such agreement shall relieve any such owner or occupant of the respective duties, responsibilities and liabilities imposed upon them by the provisions of this article or by the USBC.
(Ord. No. 34,384, § 1, 3-17-87)

Sec. 11.1-82. Article does not affect building code requirement for certificate of occupancy.

The provisions of this article shall not relieve any owner or agent of a newly constructed dwelling or dwelling unit of the requirement to obtain a certificate of occupancy as provided for in the USBC.
(Ord. No. 34,384, § 1, 3-17-87)

Sec. 11.1-83. Violations of article.

(a) Any owner, agent or occupant who shall fail, refuse or neglect to comply with the provisions of this article shall be deemed guilty of a Class 4 misdemeanor.

(b) Upon determination that any owner, agent or occupant has violated the provisions of this article, the property maintenance code official or his designee shall cause a summons to be issued

requiring such owner, agent or occupant to appear in a court of competent jurisdiction to answer a charge of such alleged violation.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-84. Permitting less than full compliance with article.

The property maintenance code official may, with the approval of the occupancy permit review board, upon written application of the owner or occupant, permit less than full compliance with any of the provisions of this article when, in the judgment of said property maintenance code official and of the board, immediate compliance would operate as an undue hardship upon said applicant.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Secs. 11.1-85—11.1-95. Reserved.

DIVISION 2. OCCUPANCY PERMIT REVIEW BOARD

Sec. 11.1-96. Established; composition; appointment and terms of members.

(a) An occupancy permit review board is hereby established, to be composed of six (6) regular members, appointed by the council for terms and in the manner as follows:

(1) One member shall be appointed from a list of three (3) nominees submitted by the Norfolk/Chesapeake Board of Realtors.

(2) Four (4) members shall be appointed from the areas to which this article is applicable.

(3) One member shall be appointed from an area not covered by this article.

(4) Of the members first appointed, two (2) shall be for terms of one year each, two (2) for terms of two (2) years each, and two (2) for a term of three (3) years. Thereafter, all members shall be appointed for terms of three (3) years.

(b) One representative from the department of city planning and codes administration and one from the department of public health shall serve as advisory members of the board. They shall be appointed by the directors of their respective departments.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 5, 7-5-89)

Charter reference—Authority of council to appoint boards, § 141.

Sec. 11.1-97. Election of chairman and vice-chairman.

The board shall elect its own chairman and vice-chairman.
(Ord. No. 34,384, § 1, 3-17-87)

Sec. 11.1-98. Secretary designated.

The property maintenance code official or his designee shall serve as secretary to the board, but shall have no vote thereon.
(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-99. Meetings generally.

The board shall meet on call or on dates to be established by the board when cases are pending to be heard.
(Ord. No. 34,384, § 1, 3-17-87)

Sec. 11.1-100. Members' right to vote; quorum, etc.

All members of the board, except the advisory members, shall be entitled to vote. A quorum shall consist of four (4) regular members. Except as provided in section 11.1-102, below, action will be carried by a majority vote of those present.
(Ord. No. 34,384, § 1, 3-17-87)

Sec. 11.1-101. Appeals to board generally.

(a) Any applicant for an occupancy permit under this article who deems himself aggrieved by any decision of the property maintenance code

official or who considers compliance with such decision to pose an undue hardship, may, by written request within fifteen (15) days of such decision, and without payment of a fee, have the entire matter of his grievance docketed for hearing by the board. The written request shall set forth in full the applicant's grounds for contesting the decision.

(b) Requests for a hearing by the board shall be acted upon within thirty (30) days of receipt by the board of such request.

(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 4, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98; Ord. No. 39,590, § 9, 5-18-99)

Sec. 11.1-102. Approval, modification or revocation of action appealed from.

The board shall have the power, with the concurring vote of four (4) regular members, if all regular members are present, otherwise with the concurring vote of three (3) regular members, to approve, modify or revoke the action taken by the code official pursuant to the provisions of this article in any case brought before the board pursuant to section 11.1-101 above.

(Ord. No. 34,384, § 1, 3-17-87; Ord. No. 35,627, § 6, 7-5-89; Ord. No. 36,932, § 2, 7-28-92; Ord. No. 39,268, § 1, 8-18-98)

Secs. 11.1-103—11.1-109. Reserved.

ARTICLE VII. CROSS CONNECTIONS

Sec. 11.1-110. Definitions.

(a) *Generally.* For the purposes of this article, certain words and phrases shall have the meanings ascribed to them in this section:

Air gap means the unobstructed vertical distance through a free atmosphere between the lowest perimeter of a water outlet and the flood level rim of any receptacle. This distance will be a minimum of one inch or two (2) times the diameter of the outlet. In case of near-walls, this distance will be three (3) times the diameter of the outlet.

Auxiliary supply means any water source or system other than the public water supply that may be available in the building or premises.

Backflow means the reversal of flow from its intended direction as a result of backsiphonage or backpressure.

Backsiphonage means the reversal of the normal direction of flow in a system caused by negative pressure (vacuum or partial vacuum) in the supply line.

Backpresssure means the condition existing when the pressure within a system exceeds the supply pressure and tends to create backflow.

Code official means the executive official in charge of inspections and administering the Virginia Uniform Statewide Building Code (USBC) as defined in Section 1041 of the USBC, or his designated agent.

Contamination means any introduction into potable water of toxins, micro-organisms, wastes, wastewater, undesirable chemicals, gases or other substances as may be deemed harmful by the director of utilities or the code official.

Cross-connection means any physical connection between a potable water supply and any waste pipe, soil pipe, sewer, drain, or any unapproved source or system; or [one that] can be submerged in waste and/or other source of contamination.

Director means the director of the Norfolk Department of Utilities, or his designated representative.

Double-check valve assembly means an assembly of two (2) internally loaded, specially designed and independently operating check valves, together with a tightly closing shut off valve on the upstream and the downstream side of the check valves, equipped with properly placed female threaded test cocks.

Existing ground level means the level above which surface water will not accumulate under normal conditions.

Flood-level rim means the top edge of the receptacle over which water could overflow.

Hazard means any condition, device or practice in the water usage system and its operation which creates or reasonably tends to create a danger to the health and wellbeing of the water customer.

Owner means the person having legal title to the property or who is in charge, care and control of the property where the facilities in question are located; or the tenant of such property; or the customer who applied for water service for such property.

Pollution means the presence of any foreign substance (chemical, physical, radiological or biological) in water that tends to degrade its quality so as to constitute unnecessary risk or impair the usefulness of the water.

Readily accessible means that which enables a fixture, appliance or equipment to be directly reached without requiring the removal or movement of any panel, door or similar obstruction.

Reduced pressure zone (RPZ) backflow preventer means an assembly of differential valves and check valves, including an automatically opened spillage port to the atmosphere, designed to prevent backflow.

Service connection means the terminal end of a service line from the waterworks. If a meter is installed at the end of the service, then the service connection means the downstream end of the meter.

Service line means that portion of the waterline from the consumer's side of the water meter to the first water outlet.

Toxin means any substance of solids or liquids harmful for human consumption.

Vacuum breaker, atmospheric means a vacuum breaker designed so as not to be subjected to continuous static line pressure.

Vacuum breaker, pressure type means a vacuum breaker designed to operate under conditions of static line pressure.
(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-111. Violations.

Any person violating any provision of this article shall be guilty of a class 1 misdemeanor. Each day of violation shall constitute a separate offense. In addition to any penalty imposed, a judge hearing the case shall direct the person responsible for the violation to correct the violation and each day's default in the connection shall constitute a violation of and a separate offense under this article.
(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-112. Inspections generally; notice to correct defects.

The code official shall inspect the plumbing in every building or premises in the city as frequently as may be necessary at reasonable times to ensure that such plumbing has been installed and is maintained in such a manner as to prevent the possibility of pollution or contamination of the public water supply. The code official shall notify or cause to be notified, the owner, occupant or authorized agent of the owner of any such building or premises to correct, within a time set by the code official, any plumbing installed or existing contrary to or in violation of this article and which may create the risk of pollution of the city water supply or otherwise adversely effect the public health, which shall be corrected within the time set by the code official.
(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-113. Termination of service to uninspected premises.

Should any owner refuse to allow the code official access to the premises for the purpose of conducting an inspection, or should the code official not be able to contact the owner for purposes of obtaining permission to inspect and the code official has cause to believe that a cross-connection hazard exists in the subject premises and such hazard jeopardizes the integrity or the purity of the city water supply, the code official shall request the director of utilities to terminate the water service to the subject premises.
(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-114. General design installation and maintenance standards for potable water supply system.

A potable water supply system shall be designed, installed and maintained in such a manner as to prevent contamination from nonpotable liquids, solids or gases, either harmful or benign, from being introduced into the potable water supply through cross-connections or any other piping connections to the system. This shall be accomplished by protecting every water outlet from the potable water system which poses a possible cross-connection. Wherever such outlets cannot be protected in accordance with the minimum air gap, a mechanical device shall be utilized to prevent backflow from backsiphonage or backpressure. The appropriate device shall be determined by code official, in cases where water usage is sufficiently complex or the severity of the hazard warrants, the director or his representative may require an air gap or backflow prevention device immediately downstream from tile service connection or at a point approved by the code official. The code official shall have authority to promulgate rules, standards and regulations regarding the design installation and the maintenance of any system or connection.
(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-115. Service line protection.

Whenever it is determined by the code official that the potential hazard within any premises requires isolation from the system, an approved

backflow preventer shall be installed on the service line. Whenever continuous service is imperative, a pair of backflow preventers shall be installed in parallel.
(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-116. Protective devices for fire service systems.

(a) Fire service systems having direct connections from the waterworks shall be provided with an air gap or a reduced pressure zone backflow preventer.

(b) In systems such as those referred to in subsection (a) which have booster pumps installed in the connection from the waterworks, provision shall be made to avoid lowering the pressure at the connection below ten (10) psi.

(c) Systems with direct connections to the waterworks, which are comparable to the systems described in subsections (a) and (b), must provide an air gap or a reduced pressure zone backflow preventer.

(d) Systems having direct connections to the waterworks and interconnections to auxiliary supplies, such as pumps taking suction from raw water sources, exposed storage tanks, industrial water supplies, connections to unapproved ground waters, or to which antifreeze or other chemicals are added, or other applications as determined by the code official or director of utilities must be protected by an air gap or a reduced pressure zone backflow preventer.

(e) Systems having direct connections to the waterworks from buildings having combined industrial and fire systems, either with or without storage tanks or pump connections, must provide an air gap or a reduced pressure zone backflow preventer.
(Ord. No. 40,553, § 1, 12-11-01; Ord. No. 43,836, § 1, 5-18-10)

Sec. 11.1-117. Low-pressure cutoff for booster pumps installed in the potable water system.

A low-pressure cutoff switch shall be installed on all booster pumps on potable water pressure booster systems in such a manner as to maintain a minimum pressure of ten (10) psi on the suction side of the pump.
(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-118. Submission of plans prior to construction of certain facilities.

Certified plans for construction of the following types of facilities shall be submitted in duplicate to the code official for review and approval prior to issuance of a water service available statement.

(1) Hospitals, mortuaries, clinics, veterinary establishments, nursing homes and medical buildings;

(2) Laboratories;

(3) Piers, docks and waterfront facilities;

(4) Sewage treatment plants, sewage pumping stations, or stormwater pumping stations;

(5) Food and beverage processing plants;

(6) Chemical plants, dyeing plants and pharmaceutical plants;

(7) Metal plating industries;

(8) Petroleum or natural gas processing or storage plants;

(9) Radioactive materials processing plants or nuclear reactors;

(10) Car washes or laundries;

(11) Lawn sprinkler systems, irrigation systems;

(12) Fire service systems;

(13) Slaughter houses and poultry processing plants;

(14) Farms, where the water is used for other than household purposes; plants;

(15) Commercial greenhouses and nurseries;

(16) Health clubs with swimming pools, baths, hot tubs or saunas;

(17) Paper and paper products plants and printing plants;

(18) Pesticide or exterminating companies and their vehicles with storage or mixing tanks;

(19) Schools or colleges with laboratory facilities;

(20) Highrise buildings (four (4) or more stories);

(21) Multiuse commercial, office or warehouse facilities; and

(22) Others specified by the code official or his representative, or director or his representative when reasonable cause can be shown for a potential backflow or cross connection hazard.

(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-119. Location and installation requirements for protective devices.

Backflow prevention devices shall be readily accessible, preferably in the same room with the fixture they serve. Installation shall be in accordance with manufacturer's recommendations.

(1) Devices shall be located in enclosures such that they are protected from physical damage and freezing.

(2) Reduced pressure zone backflow preventers shall be installed a minimum of twelve (12) inches above the existing ground level/100-year flood elevation, whichever is whichever is higher, in a location readily accessible for testing and maintenance.

(3) Devices installed on domestic service lines shall be protected by a strainer installed on the inlet side of the device.

(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-120. Responsibility of owner as to testing, repair, etc., of protective devices.

(a) The owner of any premises where backflow protective devices are installed shall have such devices tested at least once yearly, beginning at installation. Testing shall be accomplished by a backflow prevention device tester certified by the code official or the director of utilities in accordance with this article or such other certification program as may be approved by the code official or the director. The date of annual testing shall be within thirty (30) days before or thirty (30) days after the anniversary date of installation. If the code official or the director of utilities concludes that more frequent tests are required, he shall notify the owner.

(b) Backflow prevention devices shall be tested, repaired, overhauled or replaced as necessary at the expense of the owner. The results of such tests, repairs or overhauls shall be recorded upon the approved form and the original of that form submitted to the office of cross connection.

(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.2-121. Certification of testers—Generally.

Plumbing/mechanical tradesmen, maintenance personnel, employees of owners or owners of backflow prevention devices may become certified to test and repair such devices, by completing a written and performance examination to the satisfaction of the cross connection control officer.

Testers shall be classified as follows:

(1) *Limited tester:* A person who has completed certification training and is qualified to perform the periodic testing, inspection and repairs on those devices installed within a specific building, plant or institution.

(2) *General tester:* An individual who has completed certification training and a. holds a valid plumbing/mechanical masters, certificate or b. is a journeyman employed by and performing device testing under the aegis of a master.

General testers are qualified to inspect, test and repair all approved devices.

(Ord. No. 40,553, § 1, 12-11-01)

Sec. 11.1-122. Same—Procedures.

(a) Examination for backflow prevention device testers shall be given at such times as may be fixed by the cross connection control officer. In case of the failure of any applicant to pass the examination, he shall be eligible for reexamination at the next scheduled examination.

(b) Applicants achieving a passing score on the written and performance examinations shall be certified and issued a license valid for a period of one year or until such time as applicant may change employment, whichever occurs first.

(c) The holder of a license as a backflow prevention device tester shall renew his license annually and upon changing employment. Renewal licenses shall be issued upon written application to the cross connection control officer, unless it is made to appear, by affidavit filed with the cross connection control officer, that the applicant is no longer competent or entitled to such renewal license, in which event the renewal license shall not be granted until the applicant has undergone and passed another examination.

(d) All licenses provided for herein shall be valid for one year from the date of issuance; provided, that any licenses may be revoked by the code official at any time, upon sufficient written sworn charges filed with the code official showing the holder of the license to be then incompetent or guilty of a willful breach of the rules, regulations or requirements of the code official, or the provisions of this policy or other causes, sufficient for the revocation of his license, of which charges the holder of such license shall have written notice and shall have the right to be heard.

(e) If any license is not renewed in the thirty (30) days next following the expiration date thereon or the date of changing employers, the license of the holder shall be void and any device tests performed by such holder will not be recognized, unless and until he shall have made application and been reexamined in accordance with the procedure described in this section,
(Ord. No. 40,553, § 1, 12-11-01)

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Chapter 12

CEMETERIES*

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ARTICLE I. IN GENERAL

Sec. 12-1. Definition.

As used in this chapter, the term "superintendent" shall mean the superintendent of cemeteries or any of his duly authorized assistants or agents.

Sec. 12-2. Violations of chapter.

Unless otherwise specifically provided, any person violating any of the provisions of this chapter shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 10.1-35)

Sec. 12-3. Cemeteries a division of the department of parks and recreation.

Cemeteries are a division of the department of parks and recreation.
(Ord. No. 49,610, § 4, 5-28-24)

Editor's note—Prior to reenactment by Ord. No. 49,610, Ord. No. 35,799, § 6, adopted Nov. 14, 1989, repealed § 12-3, which pertained to the superintendent of cemeteries generally and derived from Code 1958, §§ 10.1-2, 10.1-3, 10.1-10.

Sec. 12-4. Superintendent and other cemetery officers and employees to be special policemen.

The superintendent and all officers and employees connected with the cemeteries are hereby constituted special policemen. They shall have power to compel any person disturbing the quiet or good of the peace to leave the grounds immediately, and they shall have the power to arrest any person who shall violate any provision of this chapter or commit any trespass or depredation upon the premises of any cemetery.
(Code 1958, § 10.1-5)

Sec. 12-5. Division of cemeteries into lots; record of lots and interments.

The cemeteries shall be divided into lots and graves of suitable and uniform size, with alleys and cross-alleys, and ornamented with trees. The superintendent shall keep a record of the lots and graves so that the same may be known and easily found should the boundaries become obliterated, and each lot shall have a separate number, and his records shall contain an account of all interments in the cemeteries.
(Code 1958, § 10.1-6)

Sec. 12-6. Bodies to be buried only in designated cemeteries.

The public burying grounds, known as Forest Lawn, Cedar Grove, Elmwood, Magnolia, Calvary, Calvary Annex, Hebrew and West Point Cemeteries and Riverside Memorial Park, the privately owned Catholic cemetery and Woodlawn Memorial Park are hereby set apart for the burying of the dead. It shall be unlawful for any person to bury the body of any person within the limits of the city, except in such cemeteries or in such other burying grounds as the council may establish or designate for the purpose of burying the dead.
(Code 1958, § 10.1-1)

Sec. 12-7. Supervision of burial of paupers.

The burial of a pauper shall be under the supervision of the superintendent.
(Code 1958, § 10.1-4)

Sec. 12-8. Single graves.

The director of facilities and enterprise management shall set apart a portion of each cemetery for single graves. Before any such grave shall be opened by the superintendent, the party applying therefor shall produce the receipt and written order of the city treasurer.
(Code 1958, § 10.1-15; Ord. No. 40,343, § 1, 6-5-01)

Sec. 12-9. Sale of lots generally.

(a) The city treasurer shall keep in his office a copy of the plan of each cemetery, and he shall sell the lots and graves at such prices as shall be from time to time fixed by ordinance, giving a receipt therefor to the purchaser, specifying the number and location thereof, and enter the same on his records. Such receipt and entry shall give to the purchaser a title to the lot or grave, subject to such regulations as the council may establish for the government of the cemetery; but no person shall be allowed to purchase a lot

or grave except for the use of his own family. Any lot that may be irregular in size shall be sold at prices in proportion of the regular lot. Installment payment plans for the purchase of lots and graves shall be allowed in accordance with the policies and procedures set forth by the city manager. In establishing such policies and procedures the city manager shall consider the following: (1) deposits; (2) installment sums; (3) maximum payment periods; (4) default; (5) interment; (6) and multiple grave lot procedures.

(b) The city treasurer is hereby authorized to issue duplicate receipts to cemetery lots in cases where the originals are lost or misplaced.
(Code 1958, §§ 10.1-7, 10.1-8; Ord. No. 37,321, § 1, 6-29-93)

Sec. 12-10. Limitation on sale of lots in Calvary Cemetery and Calvary Cemetery Annex.

Lots in Calvary Cemetery and Calvary Cemetery Annex shall not be sold in any unit less than the size of the lot included in any given lawn or section.
(Code 1958, § 10.1-109)

Sec. 12-11. Council approval required for sale of certain areas of Forest Lawn Cemetery.

There are certain triangles and circles in Forest Lawn Cemetery that could accommodate a mausoleum or certain types of memorials, but they shall not be sold except on terms and conditions approved by the city council.
(Code 1958, § 10.1-106)

Sec. 12-12. Exchange of lots and graves; purchase of lots and previously sold lots.

The director of facilities and enterprise management is hereby authorized to exchange city-owned lots or graves for cemetery lots or graves heretofore purchased in the same cemetery. The exchange shall be made upon the terms and conditions which the director of facilities and enterprise management deems in the best interest of the city, but in no event shall any refund be made by the city. The city shall allow the original purchase price towards the purchase of the new lots or graves less a transfer fee as specified in section 12-270 of the City Code.

The director of facilities and enterprise management is hereby authorized to purchase graves from lot owners or their legal heirs under terms and conditions which the director of facilities and enterprise management deems in the best interest of the city. The amount to be paid to the lot owner, or his legal heirs, shall be the original purchase price less the transfer fee as specified in section 12-270, less a maintenance fee of five dollars ($5.00) per grave, per year, or any portion of a year, since the time of the original purchase by the lot owner. There shall be a minimum price of fifty (50) percent of the price of graves as specified in section 12-290.1 of the City Code.
(Code 1958, § 10-1.9; Ord. No. 36,485, § 1, 6-25-91; Ord. No. 40,343, § 2, 6-5-01)

Sec. 12-13. Approval of transfer of ownership of property.

The superintendent must approve the transfer of the ownership of all cemetery properties.
(Code 1958, § 10.1-28)

Sec. 12-14. Maintenance of sunken graves.

The superintendent shall cause sunken graves to be kept filled, the grass and weeds cut and the trees and shrubbery on and around each lot to be trimmed.
(Code 1958, § 10.1-10)

Sec. 12-15. General restrictions on work.

(a) All work pertaining to all city-owned cemeteries, including turfing, filling lots, filling graves, cutting of grass and cleaning of lots, shall be done by the superintendent for the benefit of the city, and no person shall do, or cause to be done, any work in any cemetery, without the written permit of the director of facilities and enterprise management.

(b) It shall be unlawful for the superintendent or any employee of the city to do any work required to be done on any lot in the cemeteries for any person who is in debt to the city for work

previously done in such cemeteries, unless and until the person shall have paid his indebtedness.
(Code 1958, § 10.1-11; Ord. No. 40,343, § 3, 6-5-01)

Sec. 12-16. Permit for planting or removal of plants, shrubbery or trees.

No person shall plant or remove any plants, shrubbery or trees in any lot in any of the cemeteries of the city without first securing a permit from the director of facilities and enterprise management to do so. Such permit shall be in writing and in such form as may be prescribed by the director. After such plants, shrubbery or trees have been planted or removed, the permit shall be surrendered to the director and cancelled.
(Code 1958, § 10.1-26; Ord. No. 40,343, § 4, 6-5-01)

Sec. 12-17. Burial orders.

For all burials in all city-owned cemeteries, the owner of any lot or grave must sign a burial order furnished by the city for the burial of any person on his lot or grave, other than his wife, his mother and father, his children or grandchildren. In case the owner is deceased at the time of the burial, his wife, if living, may sign the burial order. If she is deceased, then the nearest of blood line kin shall sign. If such burial order is not furnished, the superintendent may deny the right of such interment.
(Code 1958, § 10.1-29)

Sec. 12-18. Order for digging or opening of grave.

No grave shall be dug or opened in any lot or other place in any of the cemeteries or burying grounds, except by order of the superintendent.
(Code 1958, § 10.1-12)

Sec. 12-19. Depth of graves.

All adult and child graves shall be four (4) feet in depth, except that, for children under one year of age, the grave shall not be less than three (3) feet deep.
(Code 1958, § 10.1-19)

Sec. 12-20. Transcript of burial permits; return of permits to director.

The superintendent shall make a transcript of all burial permits, in a book to be kept for that purpose, and he shall return such permits to the director of facilities and enterprise management on the third day of the month following their receipt.
(Code 1958, § 10.1-13; Ord. No. 40,343, § 5, 6-5-01)

Sec. 12-21. Approval of disinterments.

The superintendent must approve disinterment of all bodies in all the cemeteries. Proper approved papers must be presented to the superintendent at least forty-eight (48) hours before the disinterment is to take place. In case of emergencies, they may be presented twenty-four (24) hours in advance. If all papers and signatures are in order the superintendent may approve the disinterment, and if they are not, he shall deny the same until they are correct.
(Code 1958, § 10.1-27)

Sec. 12-22. Disinterments on Saturdays, Sundays and holidays.

(a) No disinterments shall be made at city cemeteries on Saturdays, Sundays or holidays, unless required by the director of the department of public health.

(b) For the purposes of this section, the following are designated as holidays:

(1) January first—New Year's Day.

(2) Third Monday in January—Martin Luther King, Jr. Day.

(3) Third Monday in February—Washington's Birthday.

(4) Last Monday in May—Memorial Day.

(5) July fourth—Independence Day.

(6) First Monday in September—Labor Day.

(7) November eleventh—Veteran's Day.

(8) Fourth Thursday in November—Thanksgiving Day.

(9) Fourth Friday in November—Day after Thanksgiving.

(10) One-half day on December twenty-fourth—Christmas Eve

(11) December twenty fifth—Christmas Day.

Whenever a holiday listed above shall be a Saturday, the preceding Friday will be considered the holiday, and if any holiday listed above shall be a Sunday, the following Monday will be considered the holiday.
(Code 1958, § 10.1-53; Ord. No. 43,288, § 1, 11-18-08; Ord. No. 43,379, § 1, 3-3-09)

Sec. 12-23. Joint Hebrew cemetery committee; certificate authorizing purchase of lot and burial in Hebrew Cemetery and Hebrew section of Forest Lawn Cemetery.

Congregations of the Jewish temples and synagogues of the city, or such of them as may act hereunder, shall elect a committee of five (5), from each congregation, who shall form a committee to be known as the "joint Hebrew cemetery committee." Such committee shall appoint a secretary who should issue to each applicant entitled thereto a certificate stating that the applicant is entitled to purchases or burials in the Hebrew Cemetery or in that part of Forest Lawn Cemetery set apart for the burial of persons of the Hebrew faith. No lot shall be sold in the cemeteries mentioned in this section, nor shall a permit for burial therein be issued, unless upon such a certificate. In the absence or inability of such secretary to serve, the joint Hebrew cemetery committee or a majority thereof may appoint a secretary or someone to act in his stead. All control, preservation, improvement, embellishment of grounds and the like in the cemeteries mentioned in this section will be under the supervision of the director of facilities and enterprise management.
(Code 1958, § 10.1-16; Ord. No. 40,343, § 6, 6-5-01)

Sec. 12-24. Beth Abraham cemetery committee; certificate authorizing purchase of lot and burial in Beth Abraham Section of Forest Lawn Cemetery.

The Beth Abraham congregation shall elect a committee of five (5) from such congregation, who shall form a committee to be known as the "cemetery committee." Such committee shall appoint a secretary, who shall issue to each applicant entitled thereto a certificate stating that the applicant is entitled to purchases or burials in the Beth Abraham Cemetery Section of Forest Lawn Cemetery. No lot shall be sold in such section, nor shall a permit for burial therein be issued, unless upon such a certificate. In the absence or inability of such secretary to serve, the cemetery committee or a majority thereof may appoint another secretary or someone to act in his stead. All control, preservation, improvement, embellishment of grounds and the like in such section, shall be under the supervision of the director of facilities and enterprise management.
(Code 1958, § 10.1-17; Ord. No. 40,343, § 7, 6-5-01)

Sec. 12-25. Required use of gates and entrances.

No person shall be permitted to enter or leave the grounds of the cemeteries, except by the way of the gates or entrances for that purpose.
(Code 1958, § 10.1-34)

Sec. 12-26. Entering at night.

(a) If any person, without the consent of the owner, proprietor or custodian, go or enter, in the nighttime, upon the premises, property, driveways or walks of any cemetery, either public or private, for any purpose other than to visit the burial lot or grave of some member of his family, he shall be guilty of a Class 4 misdemeanor.

(b) This section shall not apply to any person who lives in a city-owned cemetery, or to any person who is visiting or working for any person who lives therein, or to any person who is employed by the city, the state, the United States of America or any of their agencies, and whose duties require him to enter, be in or pass through any city-owned cemetery in the nighttime.
(Code 1958, §§ 10.1-34.2, 31-78)

State law reference—Provisions similar to subsection (a), Code of Virginia, § 18.2-125.

Sec. 12-27. Limited use of lawns.

No person shall go unnecessarily upon the lawns of the cemeteries or push or ride any bicycle or take any tractor, truck or car upon the lawns of the cemeteries.
(Code 1958, § 10.1-31)

Sec. 12-28. Speed of vehicles.

No person shall drive a vehicle within the confines of the cemeteries at a speed in excess of fifteen (15) miles per hour.
(Code 1958, § 10.1-22)
Cross reference—Motor vehicle code, Ch. 25.

Sec. 12-29. Soliciting prohibited.

It shall be unlawful for any person to solicit in any manner in any of the cemeteries of the city or at any funeral conducted therein, for the sale of any services or any goods, wares or merchandise or any articles of value.
(Code 1958, § 10.1-20)
Cross reference—Solicitations generally, Ch. 40.

Sec. 12-30. Signs, notices or advertisements.

No sign, notice or advertisement of any kind will be permitted upon any part of the grounds of the cemeteries, except those erected by the superintendent in connection with the operation of the cemeteries. It shall be the duty of the superintendent to cause the immediate removal of all signs, notices or advertisements found in violation of this section.
(Code 1958, § 10.1-33)
Cross reference—Advertising, Ch. 3.

Sec. 12-31. Animals and fowl prohibited; exceptions.

(a) Notwithstanding any provisions to the contrary elsewhere within this Code, it shall be unlawful and a class 4 misdemeanor for any person to allow any animal or fowl to enter the cemeteries or burying grounds of the city, except under the following conditions.

(b) This restriction shall not apply to any domestic animal, including, but not limited to, dogs, under the immediate leashed or lead control of their owners or custodian or secured in an appropriate animal carrier as required by section 6.1-79 of this Code, 1979, as amended. The owners or persons in control of such an animal, when the animal is on leash within a cemetery, shall obey all laws governing the disposal of animal feces.

(c) No person may have any domestic animal off leash within the cemeteries and burial grounds of the city, even if that person holds an off-leash license issued by the city under chapter 6.1 of this Code, 1979, as amended.
(Code 1958, § 10.1-25; Ord. No. 43,606, § 1, 9-22-09)
Cross reference—Animals and fowl, Ch. 6.

Sec. 12-32. Burial of animals prohibited.

Burial of the body of any animal is prohibited in any cemetery owned by or under the supervision of the city.
(Code 1958, § 10.1-21)

Sec. 12-33. Riding horseback.

No person shall ride horseback within the confines of the cemeteries, except on special ceremonial occasions approved by the director of facilities and enterprise management, or as a part of a burial ceremony.
(Code 1958, § 10.1-30; Ord. No. 40,343, § 8, 6-5-01)

Sec. 12-34. Hunting, shooting and fishing.

No person shall fish or hunt or shoot within the grounds of the cemeteries or to discharge any firearms or fireworks on or over the same.
(Code 1958, § 10.1-24)

Sec. 12-35. Injuries to churches, church property, cemeteries, burial grounds, etc.; penalty.

(1) Any person who willfully or maliciously commits any of the following acts is guilty of a Class 1 misdemeanor:

(a) Destroys, removes, cuts, breaks or injures any tree, shrub or plant on any church property or within any cemetery or lot of any memorial or monumental association;

(b) Destroys, mutilates, injures or removes and carries away any flowers, wreaths, vases or other ornaments placed within any church or on church property, or placed upon or around any grave, tomb, monument or lot in any cemetery, graveyard or other place of burial; or

(c) Obstructs proper ingress to and egress from any church or any cemetery or lot belonging to any memorial or monumental association.

(2) This section shall not apply to any work which is done by the authorities of a church or congregation in the maintenance or improvement of any church property or any burial ground or cemetery belonging to it and under its management or control and which does not injure or result in the removal of a tomb, monument, gravestone, grave marker or vault. The purposes of this section, "church" shall mean any place of worship, and "church property" shall mean any educational building or community center owned or rented by a church.
(Code 1958, § 10.1-23; Ord. No. 36,111, § 1, 7-17-90)

Cross reference—Damaging property generally, § 29-36.

State law reference—Damaging cemetery property, Code of Virginia, § 18.2-127.

Sec. 12-36. Overturning, damaging or removing monuments, tombstones, etc.

(a) It shall be unlawful for any person, except the owner thereof, to overturn, damage or remove any monument, tombstone, gravestone or vase on any lot in any city-owned cemetery. Any person violating the provisions of this section shall be guilty of a Class 1 misdemeanor.

(b) Any person furnishing information to the department of police leading to the apprehension, attest and conviction of any person violating this section shall receive a reward of five hundred dollars ($500.00) for such information. This reward shall not be paid to any regular or special police officer.
(Code 1958, § 10.1-34.1; Ord. No. 32,575, § 1, 10-11-83)

State law reference—Similar provisions, Code of Virginia, § 18.2-127.

Sec. 12-37. Cutting or picking flowers, plants or shrubs.

No person shall cut, pick or pluck any plant, flower or shrub in any of the cemeteries.
(Code 1958, §§ 10.1-23, 10.1-32)

Cross reference—Trees and other vegetation, Ch. 45.

State law reference—Similar provisions, Code of Virginia, § 18.2-127.

Secs. 12-38—12-53. Reserved.

ARTICLE II. SUBDIVISION OF CEMETERIES

DIVISION 1. GENERALLY

Secs. 12-54—12-64. Reserved.

DIVISION 2. FOREST LAWN CEMETERY

Sec. 12-65. Live Oak Lawn generally.

(a) That part of the plat entitled "Lot Layout of Forest Lawn Cemetery" compiled in 1913 that shows an area comprising lots numbered 1 to 372 and designated on such plat as "West Lawn" is hereby vacated.

(b) The resubdivision of the aforesaid area as shown on a plat entitled "Forest Lawn Cemetery," "Live Oak Lawn," dated October, 1953, and prepared by Frank D. Tarrall, Jr. and Associates, is hereby approved and the area is hereby designated as "Live Oak Lawn."

(c) In case a tree is planted at the intersection of any two (2) or more lots, the area occupied by such tree shall be considered as part of such lot in computing the number of adult burial spaces the purchaser of such lot shall pay for. Should any such tree, by reason of its growth, later occupy an increased area of any lot, the number of adult burial spaces in such a lot shall be reduced accordingly.
(Code 1958, § 10.1-88)

Sec. 12-66. Blocks B and C in Live Oak Lawn.

The subdivision of the area, as shown on the plat entitled "Subdivision of Blocks B and C, Live Oak Lawn, Forest Lawn Cemetery," dated January, 1974, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-102.6)

Sec. 12-66.1. Resubdivision of Block D, Live Oak Lawn.

The subdivision of the area as shown on the plat entitled "Resubdivision of Block D, Live Oak Lawn, Forest Lawn Cemetery for Two-Grave Lots," dated August 5, 1985, and prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 33,649, § 1, 9-10-85)

Sec. 12-67. Pine Gardens, Section I.

The subdivision of the area as shown on a plat entitled "Forest Lawn Cemetery, Pine Gardens," dated February 19, 1955, and prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Pine Gardens, Section I."
(Code 1958, § 10.1-89)

Sec. 12-68. Pine Gardens, Section II.

The subdivision of that part of Forest Lawn Cemetery as shown on a plat entitled "Forest lawn Cemetery, Pine Gardens, Section II," dated November, 1965, made by C. A. Bamforth, C.L.S., into a four-grave lot section to be known as "Pine Gardens Section II" is hereby authorized.
(Code 1958, § 10.1-90)

Sec. 12.68.1. Pine Gardens III.

The subdivision of the area as shown on the plat entitled "Forest Lawn II and Pine Gardens III, Forest Lawn Cemetery Norfolk, Virginia," dated September 12, 1986, prepared by Donald W Drewes and Assoc., is hereby approved.
(Ord. No. 36,334, § 1, 2-12-91)

Sec. 12-69. Holly Lawn.

The subdivision of the area into deluxe two-grave lots, as shown on the plat entitled "Holly Lawn, Forest Lawn Cemetery, Center Lawn, Deluxe Two—Grave Section, September, 1958," made by Frank D. Tarrall, Jr. and Associates, is hereby approved and such area is designated "Holly Lawn."
(Code 1958, § 10.1-91)

Sec. 12-70. Crape Myrtle Lawn.

The subdivision of the area shown on the plat entitled "Crape Myrtle Lawn, Forest Lawn Cemetery in Northeast Center Lawn, Section 3," dated March, 1957, and prepared by Frank D. Tarrall, Jr. and Associates is hereby approved and such area is designated as "Crape Myrtle Lawn."
(Code 1958, § 10.1-92)

Sec. 12-71. Grecian Gardens generally.

The subdivision of the area as shown on the plat entitled "Forest Lawn Cemetery," revised plat of Greek section dated December, 1959, prepared by C. A. Bamforth, C.L.S., is hereby approved and such area is designated as "Grecian Gardens."
(Code 1958, § 10.1-93)

Sec. 12-72. Grecian Gardens, Hellenic Section.

The subdivision of the area, as shown on the plat entitled "Grecian Gardens, Hellenic Section, Forest Lawn Cemetery," which plat is a resubdivision of Lots 72 to 83 and Lots 93 to 98, inclusive, of the Greek Section, such plat being dated March, 1970, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Grecian Gardens, Hellenic Section."
(Code 19.58, § 10.1-102.2)

Sec. 12-72.1. Grecian Gardens, Block H.

The subdivision of the area as shown on the plat entitled "Resubdivision of Lots 1 through 10, Lots 21 through 42 and an unnumbered parcel, Block H, Grecian Gardens, Forest Lawn Cemetery," dated February 19, 1980, prepared by the division of surveys, department of public works is hereby approved.
(Ord. No. 30,330, § 1, 3-18-80)

Editor's note—Ord. No. 30,330, § 1, adopted March 18, 1980. added § 10.1-102.12 to the 1958 Code; the editor has numbered these provisions as § 12-72.1.

Sec. 12-72.2. Grecian Gardens, Revised Flat of Greek Section.

The subdivision of that part of Forest Lawn Cemetery on the plat entitled "Grecian Gardens

Forest Lawn Cemetery Revised Plat of Greek Section" dated Dec. 1959, Revised February 19, 1980, Revised June 2, 1988, which resubdivides Lots 11 through 14 in Block B, Lots 9 through 16 in Block D, and Lots 3 through 16 in Block G, is hereby approved.
(Ord. No. 35,161, § 1, 7-12-88)

Sec. 12-73. Maple Lawn.

The subdivision of the area as shown on the plat entitled "Forest Lawn Cemetery, Maple Lawn Single Graves," dated November, 1959, and prepared by Armistead and Beck, C.E., is hereby approved and such area is designated as "Maple Lawn."
(Code 1958, § 10.1-94)

Sec. 12-74. Section "L" of Center Lawn.

The subdivision of the area as shown on the plat entitled "Forest Lawn Cemetery, Center Lawn, Section "L" dated March, 1960, prepared by C. A. Bamforth, C.L.S., is hereby approved.
(Code 1958, § 10.1-95)

Sec. 12-75. Section "K" of Center Lawn.

The subdivision of the area of Forest Lawn Cemetery as shown on the plat entitled "Forest Lawn Cemetery, Center Lawn, Section "K" dated June, 1964, prepared by C. A. Bamforth, C.L.S., is hereby approved.
(Code 1958, § 10.1-96)

Sec. 12-75.1. South Center Lawn.

The subdivision of the area as shown on the plat entitled "Resubdivision of Lot 151, Forest Lawn Cemetery Plan of South Center Lawn," dated March 27, 1981, prepared by the division of surveys, department of public works is hereby approved.
(Ord. No. 31, 166, § 1, 5-26-81)

Editor's note—Ord. No. 31,166, § 1, adopted May 26, 1981, added § 10.1-102.13 to the 1958 Code; the editor has designated the provisions as § 12-75.1 hereof.

Sec. 12-76. Cedar Lawn.

The subdivision of the area of Forest Lawn Cemetery as shown on the plat entitled "Forest Lawn Cemetery, Cedar Lawn Four Grave Section," dated October, 1965, made by Armistead and Beck, is hereby approved.
(Code 1958, § 10.1-97)

Sec. 12-77. Linden Lawn.

The subdivision of the area of Forest Lawn Cemetery as shown on the plat entitled "Forest Lawn Cemetery—Linden Lawn—Single Grave Section," dated October, 1965, made by Armistead and Beck, is hereby approved.
(Code 1958, § 10.1-98)

Sec. 12-78. Locust Lawn.

The area of Forest Lawn Cemetery as shown on a plat entitled "Forest Lawn Cemetery Locust Lawn—Single Grave Section," dated January, 1969, is hereby approved.
(Code 1958, § 10.1-99)

Sec. 12-79. Tree of Life Lawn, Sections I and II.

All that portion of Forest Lawn Cemetery marked on plats A, B, C and D, containing nineteen (19) acres, as shown on the plat in the office of the city engineer, marked "Plat showing a portion of Forest Lawn Cemetery set apart for Jewish burial" and that part or portion of Forest Lawn Cemetery, as shown on a plat entitled "Forest Lawn Cemetery, Tree of Life Lawn," dated January, 1960, and shown on a plat entitled "Forest Lawn Cemetery, Tree of Life Section II" dated January, 1960, are hereby set apart solely and exclusively for the burial of persons of the Hebrew faith.
(Code 1958, § 10.1-100)

Sec. 12-80. Resubdivision of certain lots in Tree of Life Lawn.

The subdivision of the area, as shown on the plat entitled "Resubdivision of Lots 4 through 21, inclusive, Block E, Forest Lawn Cemetery, Tree of Life Lawn," dated November, 1971, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-102.3)

Sec. 12-81. Tree of Life Lawn, Section III.

The subdivision of the area, as shown on the plat entitled "Forest Lawn Cemetery, Tree of Life Lawn, Section III," dated December, 1971, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-102.8)

Sec. 12-82. Beth Abraham Section.

All that portion of Forest Lawn Cemetery as is bounded on the south by Star of David Drive, on the west by Olive Circle, on the north by Canaan Road and on the east by Esther Lane is hereby set apart for the sole and exclusive use of the Beth Abraham Congregation as a burial place for its members.
(Code 1958, § 10.1-101)

Sec. 12-82.1. Prayer Lawn.

The resubdivision of the area as shown on the plat entitled "Prayer Lawn, Forest Lawn Cemetery," dated December 6, 2007, and signed August 16, 2012, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 45,145, § 1, 6-11-13)

Sec. 12-83. Lawn A, Jewish Section.

The resubdivision of Lots 141 to 150 inclusive; Lots 171 to 181 and Lots 203 to 212 inclusive, as shown on the revised plan of Lawn A, Jewish Section, Forest Lawn Cemetery, into six-grave lots, as shown on a plat entitled "Resubdivision of Lots 141-150 inclusive; Lots 171-180 inclusive; and Lots 203-212 inclusive," as shown on the revised plan of Lawn A, Jewish Section, Forest Lawn Cemetery, dated July, 1956, is hereby authorized.
(Code 1958, § 10.1-102)

Sec. 12-84. Ash Lawn.

The subdivision of the area as shown on the plat entitled "Forest Lawn Cemetery, Ash Lawn," dated July, 1970, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Ash Lawn."
(Code 1958, § 10.1-102.1)

Sec. 12-85. Spruce Lawn.

The subdivision of the area, as shown on the plat entitled "Forest Lawn Cemetery, Single Grave Section, Spruce Lawn," dated March, 1972, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-102.4)

Sec. 12-86. David's Garden generally.

The subdivision of the area, as shown on the plat entitled "David's Garden, Forest Lawn Cemetery," dated October, 1973, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-102.5)

Sec. 12-86.1. David's Garden, Section 2.

The subdivision of the area as shown on the plat entitled "Section 2, David's Garden, Forest Lawn Cemetery," dated November, 1974, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 29,884, § 1, 4-10-79)

Sec. 12-86.2. David's Garden, Section 3.

The subdivision of the area as shown on the plat entitled "David's Garden, Section 3, Forest Lawn Cemetery", dated March 31, 1989, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 35,780, § 1, 10-31-89)

Sec. 12-86.3. David's Garden Blocks 1, 2, 3, 4, and 5.

The resubdivision of the area, as shown on the plat entitled "David's Garden - Block 5, Forest Lawn Cemetery, Norfolk, Virginia" dated June 27, 2022, prepared by the division of surveys, department of public works, converting eighty-

five (85) infant graves in Blocks 1, 2, 3, 4, and 5 into adult graves and thereby creating fifty-one (51) new adult graves, is hereby approved.
(Ord. No. 48,880, § 1, 8-23-22)

Sec. 12-87. Elm Lawn.

The subdivision of the area, as shown on the plat entitled "Elm Lawn, Forest Lawn Cemetery, 4 Grave Section," dated March, 1973, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-102.7)

Sec. 12-88. Fir Lawn.

The subdivision of the area, as shown on the plat entitled "Fir Lawn, Forest Lawn Cemetery, Single Grave Section," dated September, 1974, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-102.9)

Sec. 12-88.1. Fir Lawn II.

The subdivision of the area as shown on the plat entitled "Fir Lawn II and Pine Gardens III, Forest Lawn Cemetery Norfolk, Virginia," dated September 12, 1986, prepared by Donald W. Drewes and Assoc., is hereby approved.
(Ord. No. 36,334, § 1, 2-12-91)

Sec. 12-89. Red Oak Lawn.

The subdivision of the area, as shown on the plat entitled "Red Oak Lawn, Forest Lawn Cemetery, Two Grave Lots," dated August, 1975, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, 10.1-102.10)

Sec. 12-89.1. Child Section D.

The subdivision of that part of Forest Lawn Cemetery shown on the plat entitled "Child Section D, Forest Lawn Cemetery" dated November 4, 1982, prepared by the department of public works, is hereby approved.
(Ord. No. 32,042, § 11, 11-23-82)

Sec. 12-89.1.1. Child Section D extended.

The subdivision of the area as shown on the plat entitled "Child Section D Extended, Forest Lawn Cemetery," dated August 9, 1985 and prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 33,649, § 1, 9-10-85)

Sec. 12-89.1.2. Child Section "D" extended Phase Two.

The subdivision of the area, as shown on the plat entitled "New Grave Sites At Child Section 'D' Extended, Phase Two," dated October 16, 2000, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 40,345, § 1, 6-5-01)

Sec. 12-89.2. Pear Lawn.

The subdivision of that part of Forest Lawn Cemetery shown on the plan entitled "Pear Lawn Forest Lawn Cemetery" dated March, 1980, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 32,554, § 1, 9-27-83)

Sec. 12-89.3. Parcel A resubdivision of unnumbered parcel in Block 11, Section B Center Lawn.

The subdivision of that part of Forest Lawn Cemetery shown on the plat entitled "Parcel A Resubdivision of Unnumbered Parcel in Block 11, Section "B" Center Lawn Forest Lawn Cemetery" dated July 30, 1986, revised September 9, 1986, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 34,174, § 1, 10-14-86)

Sec. 12-89.4. Center Park North.

The subdivision of that part of Forest Lawn Cemetery shown on the plat entitled "Center Park North Forest Lawn Cemetery Norfolk, Virginia" dated February 5, 1986, amended September 4, 1986, is hereby approved.
(Ord. No. 34,990, § 1, 4-19-88)

Sec. 12-89.4.1. Center Park North extended.

The resubdivision of part of Forest Lawn Cemetery as shown on the plat entitled "Subdivision of Center Park North Extended of Forest Lawn Cemetery," dated May 9, 2012, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 45,144, § 1, 6-11-13)

Sec. 12-89.4.2. Center Park North extended Block E.

The subdivision of the area, as shown on the plat entitled "Block E - Central Park North Extended," dated June 29, 2021, prepared by the division of surveys, department of public works, creating four hundred ninety-five (495) new graves, is hereby approved and such area is designated as "Block E."
(Ord. No. 48,478, § 1, 8-24-21)

Sec. 12-89.5. Triangle North of Eagles Circle.

The subdivision of that part of Forest Lawn Cemetery shown on the plat entitled "Plat Showing Triangle North of Eagles Circle Forest Lawn Cemetery," dated December 15, 1987, is hereby approved provided that only a monument to the memory of the 29th Infantry Division, 111th Field Artillery Battalion may be erected thereon.
(Ord. No. 35,162, § 1, 7-12-88)

Sec. 12-89.6. Resubdivision of Live Oak Lawn.

The resubdivision of that part of Forest Lawn Cemetery on the plat entitled "Live Oak Lawn" dated October 1953, revised June 1988, is hereby approved.
(Ord. No. 35,437, § 1, 3-21-89)

Sec. 12-89.7. West Lawn.

The subdivision of the area as shown on the plat entitled "West Lawn, Forest Lawn Cemetery", dated January 31, 1985, prepared by Donald W. Drewes and Associates, is hereby approved.
(Ord. No. 35,780, § 1, 10-31-89)

Sec. 12-89.7.1. West Lawn Block III.

The resubdivision of the area, as shown on the plat entitled "West Lawn III, Portion of Forest Lawn Cemetery, Norfolk, Virginia," dated May 10, 2012, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 45,146, § 1, 6-11-13)

Sec. 12-89.8. Tree of Life IV.

The subdivision of the area as shown on the plat entitled "Tree of Life IV, Forest Lawn Cemetery Norfolk, Virginia," dated October 8, 1986, prepared by Donald W. Drewes and Assoc., is hereby approved.
(Ord. No. 36,334, § 1, 2-12-91)

Sec. 12-89.9. Holly Circle.

The subdivision of the area as shown on the plat entitled "Holly Circle, Forest Lawn Cemetery, Ash Niches" dated November 8, 1984, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 37,900, § 1, 2-21-95)

Sec. 12-89.10. East Center Subdivision.

The subdivision of the area, as shown on the plat entitled "New Grave Sites at East Center Lawn, Blocks A through I," dated December 7, 1999, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 40,346, § 1, 6-5-01)

Sec. 12-89.10.1. East Center Lawn Section A, Block 3.

The resubdivision of the area identified as the planting area, as shown on the plat entitled "Burial Ground Site - East Center Lawn A-3, Forest Lawn Cemetery" dated June 14, 2022, prepared by the division of surveys, department of public works, creating forty-four (44) new double monument graves, for a total of eighty-eight (88) graves, is hereby approved.
(Ord. No. 48,879, § 1, 8-23-22)

Sec. 12-89.11. Southwest Center Lawn Subdivision.

The subdivision of the area, as shown on the plat entitled "New Graves at Southwest Center Lawn, Blocks A through J", dated December 7, 1999, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 40,346, § 1, 6-5-01)

Sec. 12-89.12. Northwest Lawn Subdivision.

The subdivision of the area, as shown on the plat entitled, "Subdivision of Section of Northwest Lawn Section of Forest Lawn Cemetery Norfolk, Virginia," dated January 20, 2003, and prepared by Baldwin & Gregg, is hereby approved.
(Ord. No. 41,333, § 1, 3-2-04)

Sec. 12-89.12.1. Block E, resubdivision of a portion of Northwest Lawn Blocks C and D.

The resubdivision of a portion of Northwest Lawn Blocks C and D in Forest Lawn Cemetery to establish Block E, as shown on the plat entitled "Forest Lawn Cemetery, Northwest Lawn Block E. Norfolk, Virginia," dated February 1, 2018, prepared by the division of surveys, department of public works, creating one hundred thirty-eight (138) new graves, is hereby approved.
(Ord. No. 47,155, § 1, 2-27-18)

Sec. 12-89.13. Pine Circle.

The subdivision of the area, as shown on the plat entitled "Plat Showing New Grave Sites At Pine Circle in Forest Lawn Cemetery," dated June 15, 2004, and prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 41,607, § 1, 10-19-04)

Sec. 12-90. Mausoleum sites generally.

(a) The designation of a certain area of Forest Lawn Cemetery as a mausoleum site area, as shown on plat entitled "Topograph of Mausoleum Site—Forest Lawn Cemetery," dated January, 1951, is hereby approved and authorized.

(b) The designation of a certain area of Forest Lawn Cemetery as a mausoleum site area, as shown on a plat entitled "Plat Showing Mausoleum Sites in Forest Lawn Cemetery," dated March, 1973 is hereby approved and authorized.

(c) Site 17, Section "K," Center Lawn; Block 3, Cedar Lawn; and Block 19, Ash Lawn, all in Forest Lawn Cemetery, are hereby set aside exclusively for one mausoleum on each site. In Section I, Pine Gardens, twelve-grave lots, one mausoleum may be constructed on not less than one lot. In Section II, Pine Gardens, one mausoleum may be constructed on not less than the combination of two (2) four-grave lots.

(d) The designation of a certain area of Forest Lawn Cemetery as a mausoleum site area, as shown on a plat entitled "Resubdivision of Lots 184 and 185, West Center Lawn, Forest Lawn Cemetery For Mausoleum Site," dated July 13, 1983, is hereby approved and authorized.
(Code 1958, §§ 10.1-103, 10.1-105; Ord. No. 32,507, § 1, 8-16-83)

Sec. 12-91. Public mausoleums.

(a) The mausoleum in Forest lawn Cemetery purchased from Forest Lawn Mausoleum, Inc. authorized by ordinance adopted June 6, 1950, is approved for the interment of the dead.

(b) The subdivision of the area as shown on the plat entitled "Plat of Forest Lawn Mausoleum, Norfolk, Virginia," dated June 4, 2014, prepared by the division of surveys, department of public works, is hereby approved for the interment of the dead and such area is designated a public mausoleum site.
(Code 1958, § 10.1-107; Ord. No. 45,955, § 15, 5-19-15, eff. 7-1-15)

Sec. 12-92. Memorial Columbaria, Section I.

The north middle wall of the chapel of Forest Lawn Mausoleum is hereby set aside for ash crypts and shall be known as Memorial Columbaria, Section I.
(Code 1958, § 10.1-108)

Sec. 12-93. Mausoleum sites.

The subdivision of the area, as shown on the plat entitled "Plat Showing Mausoleum Sites 6, 7, 8 and 9, On South Side Of Woodside Drive, Forest Lawn Cemetery", dated May 4, 1999, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as mausoleum sites.
(Ord. No. 40,908, § 1, 12-17-02)

Sec. 12-94. Tree of Life Section V and Child Section D Phase 3.

The creation of a new lawn, as shown on the plat entitled "Tree of Life Section V and Child Section "D" — Phase 3" dated June 21, 2022, prepared by the division of surveys, department of public works, creating seventy-three (73) two-grave adult lots creating a total one hundred forty-six (146) new adult graves and fifty-seven (57) new infant graves, is hereby approved.
(Ord. No. 48,965, § 1, 10-25-22)

Secs. 12-95—12-103. Reserved.

DIVISION 3. CALVARY CEMETERY

Sec. 12-104. Generally.

All that piece or parcel of land belonging to the city, purchased from T. R. Ballentine, lying on Tanners Creek north of Princess Anne Road, is hereby set apart and appointed as a burial ground for the citizens of the city and shall be known as Calvary Cemetery. The director of facilities and enterprise management shall have general control and management of interments in such cemetery and persons employed therein and of the preservation, improvement and embellishment of the grounds. The director of facilities and enterprise management shall, from time to time, visit and inspect the cemetery.
(Code 1958, § 10.1-109; Ord. No. 40,343, § 8, 6-5-01)

Sec. 12-105. Division of grounds; streets; etc.

The grounds of Calvary Cemetery shall be divided into sections of suitable size with streets and cross streets and ornamented with trees.
(Code 1958, § 10.1-109)

Secs. 12-106—12-116. Reserved.

DIVISION 4. CALVARY CEMETERY ANNEX

Sec. 12-117. Lot sizes.

The size of lots in Calvary Cemetery Annex plotted after May 15, 1951, shall be ten (10) by eighteen (18) feet for six-grave lots, seven (7) by eighteen (18) feet for four-grave lots and seven (7) by ten (10) feet for two-grave lots, unless otherwise specified.
(Code 1958, 10.1-109)

Sec. 12-118. Block 13.

The subdivision of Block 13 in Calvary Cemetery Annex into two-grave lots, as shown on the plat entitled "Plat of Block 13, Calvary Cemetery Annex—Two-Grave Section," dated November, 1956, is hereby authorized.
(Code 1958, § 10.1-114)

Sec. 12-118.1. Resubdivision of Block 13.

The resubdivision of Block 13 in Calvary Cemetery Annex into single graves as shown on the plat entitled "Resubdivision of Block 13 Calvary

Cemetery Annex Single Grave Section" date April 13, 1990, as prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 35,993, § 1, 5-15-90)

Sec. 12-119. Blocks 23 and 24 generally.

The subdivision of Blocks 23 and 24 of Calvary Cemetery Annex into four-grave sections is hereby authorized.
(Code 1958, § 10.1-116)

Sec. 12-119.1. Resubdivision of a portion of Block 23.

The subdivision of that part of Calvary Cemetery Annex shown on the plat entitled "Resubdivision of a Portion of Block 23, Calvary Cemetery Annex," dated June 3, 1981, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 31,312, § 1, 8-25-81)

Editor's note—Ord. No. 31,312, § 1, adopted Aug. 25, 1981, adding § 10.1-119.4 to the 1958 Code, has been numbered as § 12-119.1 hereof at the editor's discretion.

Sec. 12-119.2. Block 23C resubdivision of a portion of Block 23.

The subdivision of that part of Calvary Cemetery Annex shown on the plat entitled "Block 23C Resubdivision of a Portion of Block 23 Calvary Cemetery Annex," dated November 24, 1981, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 31,691, § 1, 5-11-82)

Sec. 12-120. Block 23, mausoleum sites.

The following lots in Block 23, Calvary Cemetery Annex, are hereby designated mausoleum sites: Lots 1, 2 and 3 for one site; Lots 28, 29 and 30 for one site; Lots 211 and 212 for one site; Lots 239 and 240 for one site; Lots 388, 389 and 390 for one site; Lots 361, 362 and 363 for one site. Not more than one mausoleum shall be erected on each of the above sites.
(Code 1958, § 10.1-117)

Sec. 12-121. Resubdivision of Lots 181-210, Block 23.

The subdivision of that part of Calvary Cemetery Annex shown on the plat entitled "Resubdivision of Lots 181-210, Incl., Block 23, Calvary Cemetery Annex," dated May, 1978, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-119.2)

Sec. 12-121.1. Resubdivision of certain lots in Block 23.

The subdivision of that part of Calvary Cemetery Annex shown on the plat entitled "Resubdivision of Lots 71 to 75, inclusive, Lots 81 to 84, inclusive, Lots 97 to 116, inclusive, Lots 128 to 138, inclusive, Lots 140 to 143, inclusive, Lots 145 to 147, inclusive, Lots 158 to 165, inclusive, Lot 168, Lot 170, Lots 211 to 217, inclusive, Lot 227, Lot 236, Lot 239, Lot 240, Lot 244, Lot 245, Lots 258 to 288, inclusive, Lot 290, Lots 292 to 294, inclusive, Lots 296 to 298, inclusive, Lots 303 to 314, inclusive, Lots 316 to 330, inclusive, Lots 332 to 339, inclusive, Lots 342 to 357, inclusive, Block 23, Calvary Cemetery Annex," dated January 5, 1984, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 33,099, § 1, 9-18-84)

Sec. 12-122. Block 25.

The subdivision of Block 25 of Calvary Cemetery Annex into six-grave lots, as shown on the plat entitled "Plat of Block 25, Calvary Cemetery Annex—Six-Grave Section," dated July, 1954, is hereby authorized.
(Code 1958, § 10.1-118)

Sec. 12-122.1. Resubdivision of certain lots (83 to 97 et al.) in Block 25.

The subdivision of that part of Calvary Cemetery Annex shown on the plat entitled "Resubdivision of Lots 83 to 97, inclusive, Lots 103 to 117, inclusive, Lots 123 to 137, inclusive, and Lots 143 to 157, inclusive, Block 25, Calvary

Cemetery Annex," dated December, 1979 prepared by division of surveys, department of public works, is hereby approved.
(Ord. No. 30,254, § 1, 1-8-80)

Editor's note—Ord. No. 30,254, § 1, adopted Jan. 8, 1980, added § 10.1-119.3 to the 1958 Code; the editor has redesignated said provisions as § 12-122.1 hereof.

Sec. 12-122.2. Resubdivision of certain lots (44 to 47 et al.) in Block 25.

The subdivision of that part of Calvary Cemetery Annex shown on the plat entitled "Resubdivision of Lots 44, 45, 46, 47, 51, 52, 53, 54, 63, 70, 71, 72, 73, 74, 75, 76, 77, 78, 98, 121, 122, 138, 141 and 158, Block 25, Calvary Cemetery Annex," dated January 18, 1983, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 32,170, § 1, 3-8-83)

Sec. 12-123. Block 26.

The resubdivision of Block 26 of Calvary Cemetery Annex into single graves as shown on the plat entitled "Revised Plat of Section 26 Calvary Cemetery Annex" dated February 2, 1990, as prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-110; Ord. No. 35,930, § 1, 3-20-90)

Sec. 12-124. Block 27.

The subdivision of Block 27 of Calvary Cemetery Annex into a single grave section is hereby authorized.
(Code 1958, § 10.1-111)

Sec. 12-125. Ash Lawn.

The subdivision of that part of Calvary Cemetery Annex as shown on the plat entitled "Plat of Ash Lawn, Calvary Cemetery Annex, Single Grave Section," dated January, 1964, made by C. A. Bamforth, C.L.S., into a single grave section to be known as "Ash Lawn" is hereby authorized.
(Code 1958, § 10.1-112)

Sec. 12-126. Cedar Lawn.

The subdivision of that part of Calvary Cemetery Annex, as shown on the plat entitled "Cedar Lawn, adult single grave section, Calvary Cemetery Annex," dated August, 1975, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-112.1)

Sec. 12-127. Elm Lawn.

The subdivision of that part of Calvary Cemetery Annex, as shown on a plat entitled "Plat of Elm Lawn, Calvary Cemetery Annex, Single Grave Section," dated April, 1967, made by C. A. Bamforth, C.L.S., into single grave sections, to be known as Elm Lawn, is hereby authorized.
(Code 1958, § 10.1-113)

Sec. 12-128. Pine Lawn, Children's Section.

The subdivision of Blocks E, F, G and H of Calvary Cemetery, as shown on the plat entitled "Pine Lawn, Children's Section, Calvary Cemetery Annex, Norfolk, Va.," dated September, 1962, made by the division of surveys, department of public works, is hereby authorized. Blocks E and F are hereby designated for infants under one year; Block G for infants one year to twelve (12) years; and Block H for infants one year or under whose parents are paupers.
(Code 1958, § 10.1-119)

Sec. 12-129. Pine Lawn, Part 2, Children's Section.

The subdivision of the area, as shown on the plat entitled "Pine Lawn, Part 2, Children's Section, Calvary Cemetery Annex," dated December, 1971, made by the division of surveys, department of public works, is hereby approved. Graves 1 through 102 in Block I are hereby designated for infants one year of age or under. Graves 226 through 270 in Block H are hereby designated for infants one year of age or under whose parents are paupers.
(Code 1958, § 10.1-119.01)

Sec. 12-129.1. Subdivision of Block J, Pine Lawn, Part 2, Children's Section.

The subdivision of the area as shown on the plat entitled "Subdivision of Block J, Pine Lawn, Part 2, Children's Section, Calvary Cemetery Annex," dated October, 1983, made by the division of surveys, department of public works, is hereby authorized.
(Ord. No. 32,711, § 1, 1-10-84)

Sec. 12-129.2. Subdivision of Block K, Pine Lawn, Part 4, Children's Section.

The subdivision of the area as shown on the plat entitled "Subdivision of Block K, Pine Lawn, Part 4, Children's Section, Calvary Cemetery Annex," dated July 27, 1990, made by the division of surveys, department of public works, is hereby approved.
(Ord. No. 36,262, § 1, 11-20-90)

Sec. 12-130. Oak Lawn.

The subdivision of the area, as shown on the plat entitled "Calvary Cemetery Annex—Oak Lawn—Single Grave Section," dated December, 1970, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Oak Lawn."
(Code 1958, § 10.1-119.1)

Sec. 12-131. Turner Gardens.

The subdivision of that part of Calvary Cemetery, as shown on a plat entitled "Turner Gardens, Calvary Cemetery Annex, Two-Grave Section," and to be known as Turner Gardens, is hereby authorized.
(Code 1958, § 10.1-115)

Sec. 12-132. Block S, single grave section.

The subdivision of the area, as shown on the plat entitled "Calvary Cemetery Annex, single grave section, Part No. 2, showing new graves in Block S", dated September 12, 1991, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Block S."
(Ord. No. 36,617, § 1, 1029-91)

Sec. 12-133. Revised plan of Old Calvary Cemetery Phase I.

The subdivision of the area as shown on the plot entitled "The Revised Plan Of Old Calvary Cemetery Phase I," dated June 7, 1993, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 37,401, § 1, 9-14-93)

Sec. 12-133.1. Revised plan of Old Calvary Cemetery Phase II.

The subdivision of the area as shown on the plat entitled "The Revised Plan of Old Calvary Cemetery Phase II," dated June 1, 1993, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 37,786, § 1, 10-11-94)

Sec. 12-134. King's Garden, Children's Section.

The subdivision of the area as shown on the plat entitled "Resubdivision Of An 18` Lane Between Block 1 & 2, Calvary Cemetery Annex, For The Creation Of Children's Graves," dated September 26, 1994, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 38,326, § 1, 4-9-96)

Sec. 12-135. Section 12A, single grave section.

The subdivision of the area as shown on the plat entitled "Section 12A, a Resubdivision Of A Portion Of The Right-Of-Way Between Blocks 12 and 15, Calvary Cemetery," single grave section, showing new graves in Section 12A, dated April 5, 1999, prepared by the division of surveys, department of public works, is hereby approved and such area is designed as "Section 12A".
(Ord. No. 40,344, § 1, 6-5-01)

Sec. 12-136. Block 4A, single-grave section.

The subdivision of the area, as shown on the plat entitled "Section 4A, a Resubdivision of a Portion of the Right-of-Way Between Blocks 4 and 6, Calvary Cemetery," single grave section, showing new graves in Block 4A, dated April 5, 1999, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Block 4A".
(Ord. No. 40,344, § 1, 6-5-01)

Sec. 12-137. Reserved.

Editor's note—Ord. No. 40,908, § 1, adopted Dec. 17, 2002, deleted § 12-137, which pertained to mausoleum sites and derived from Ord. No. 39,746, adopted Oct. 26, 1999. Ord. No. 40,908 enacted similar provisions set out as § 12-93.

Sec. 12-138. Section 3A, single-grave section.

The subdivision of the area as shown on the plat entitled "Section 3A, a Resubdivision of a Portion of the Right-of-Way between Blocks 3 and 5, Calvary Cemetery", dated September 26, 2002, prepared by the division of surveys, department of public works is hereby approved.
(Ord. No. 40,911, § 1, 12-17-02)

Sec. 12-139. Section 15A, single-grave section.

The subdivision of the area as shown on the plat entitled "Section 15A, a Resubdivision of a Portion of the Right-of-Way Between Blocks 15 and 17 Calvary Cemetery Annex," single-grave section, showing new graves in Section 15A, dated May 29, 2003, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Section 15A."
(Ord. No. 41,207, § 1, 10-28-03)

Sec. 12-140. Section 9A, single-grave section.

The subdivision of the area as shown on the plat entitled "Section 9A, a Resubdivision of a Portion of the Right-of-Way North of Block 9, Calvary Cemetery Annex," single-grave section, showing new graves in Block 9A, dated May 29, 2003, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Section 9A."
(Ord. No. 41,207, § 1, 10-2-03)

Sec. 12-141. Section 17A, single-grave section.

The subdivision of the area, as shown on the plat entitled "Revised Section 17A, a Resubdivision of a Portion of the Right-of-Way Between Blocks 17 And 19, Calvary Cemetery Annex," single-grave section, showing new graves in section 17A dated June 9, 2004, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 41,606, § 1, 10-19-04)

Sec. 12-141.1. Section 21A, single-grave section.

The subdivision of the area as shown on the plat entitled "Section 21-A, a Resubdivision of a Portion of Calvary Cemetery Annex Between Blocks 21 and 24," showing new graves in section 21-A, single-grave section, dated August 22, 2005, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 42,063, § 1, 10-25-05)

Sec. 12-141.2. Section 24-A, single-grave section.

The subdivision of the area as shown on the plat entitled "Section 24-A, a Resubdivision of a Portion of Calvary Cemetery Annex, North of Block 24," single-grave section, showing new graves in section 24-A dated April 20, 2007, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 42,767, § 1, 7-24-07)

Sec. 12-141.3 Section 23-D, single-grave section.

The subdivision of the area, as shown on the plat entitled "Section 23-D, a Re-subdivision of a Portion of Calvary Cemetery Annex, North of Block 23" single-grave section, showing new

graves in Section 23-D dated April 20, 2007, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 42,768, § 1, 7-24-07)

Sec. 12-141.4. Section 22-A, single-grave section.

The subdivision of the area, as shown on the plat entitled "Section 22-A, a Re-subdivision of a Portion of Calvary Cemetery Annex Between Blocks 22 And 23," single-grave section, showing new graves in Section 22-A dated August 8, 2009, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 43,894, § 1, 6-15-10)

Sec. 12-141.5. Section 105-A, subdivision of portion of Calvary Cemetery Annex.

The re-subdivision of the area, as shown on the plat entitled "Section 105-A Subdivision of Portion of Calvary Cemetery Annex North of Blocks 99 and 100," showing new graves in Section 105-A dated September 25, 2013, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 45,516, § 1, 4-8-14)

Sec. 12-141.6. Section 26-A, subdivision of portion of Calvary Cemetery Annex.

The re-subdivision of the area, as shown on the plat entitled "Section 26-A Subdivision of Portion of Calvary Cemetery Annex South of Block 26 Norfolk, Virginia," showing new graves in Section 26-A dated May 23, 2016, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 46,462, § 1, 6-28-16)

Sec. 12-141.7. Section 10-A, Subdivision of Portion of Calvary Cemetery Annex.

The re-subdivision of the area, as shown on the plat entitled "Section 10-A Subdivision Of Portion Of Calvary Cemetery Annex North of Block 10 Norfolk, Virginia," showing new graves in Section 10-A dated April 7, 2017, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 46,866, § 1, 6-13-17)

Sec. 12-141.8. Mausoleum between Block 19 and Block 21.

The designation of a certain area of Cavalry Cemetery Annex as a mausoleum site area consisting of three (3) new mausoleum buildings, as shown on plat entitled "Mausoleum Site Between Block 19 and Block 21," dated May 3, 2024, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 49,629, § 1, 6-11-24)

Sec. 12-142. Reserved.

DIVISION 5. HEBREW CEMETERY

Sec. 12-143. Generally.

(a) That certain tract of land, known as "The Hebrew Cemetery," situated in the city on the north side of Princess Anne Road, at its intersection with Tidewater Drive and bounded and described as provided in Ordinance No. 18,877, adopted April 23, 1957, shall be used as a place for burial for persons of the Hebrew faith.

(b) The director of facilities and enterprise management shall have general control and management of interments in the Hebrew Cemetery and all persons employed therein and of the preservation, improvement and embellishment of the grounds. The director of facilities and enterprise management shall, from time to time, visit and inspect such cemetery.
(Code 1958, § 10.1-120; Ord. No. 40,343, § 9, 6-5-01)

Sec. 12-144. Garden of Eternal Life.

The subdivision of a portion of the Hebrew Cemetery, as shown on the plat entitled "Plat of Garden of Eternal Life—Hebrew Cemetery," dated June, 1963, is hereby authorized and such section shall be known as the "Garden of Eternal Life."
(Code 1958, § 10.1-121)

Secs. 12-145—12-155. Reserved.

DIVISION 6. MAGNOLIA CEMETERY

Sec. 12-156. Single-grave and four-grave section of certain blocks.

The subdivision of the area of Magnolia Cemetery, as shown on the plat entitled "Magnolia Cemetery Single Grave and Four-Grave Sections Additions to Blocks B, D, G, I, L, N, Q, S, V and X," dated November, 1969, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-122)

Sec. 12-157. Mausoleum site areas.

In single grave and four-grave sections additions to Blocks B, D, G, I, L, N, Q, S, V and X, one mausoleum may be constructed on not less than the combination of two (2) four-grave lots.
(Code 1958, § 10.1-123)

Sec. 12-158. Single graves, blocks 21 through 51.

The subdivision of the areas as shown on the plat entitled "Magnolia Cemetery, Single Grave Sections" dated January 16, 1987, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 35,780, § 1, 10-31-89)

Secs. 12-159—12-168. Reserved.

DIVISION 7. WEST POINT CEMETERY

Sec. 12-169. Sycamore Gardens generally.

The subdivision of the area, as shown on the plat entitled "Sycamore Gardens—West Point Cemetery—Single Grave Section," dated December, 1966, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Sycamore Gardens."
(Code 1958, § 10.1-124)

Sec. 12-170. Blocks F, G and H, Sycamore Gardens.

The subdivision of the area, as shown on the plat entitled "Subdivision of Blocks F, G and H, Sycamore Gardens, West Point Cemetery," dated June, 1971, prepared by the division of surveys, department of public works, is hereby approved and such area is designated as "Subdivision of Blocks F, G and H, Sycamore Gardens."
(Code 1958, § 10.1-125)

Secs. 12-171—12-181. Reserved.

DIVISION 8. RIVERSIDE MEMORIAL PARK

Sec. 12-182. Lot 627, Walnut Section.

The subdivision of the area, as shown on the plat entitled "Subdivision of Lot 627, Riverside Memorial Park, Walnut Section" dated May, 1977, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-128)

Sec. 12-183. Lots 680 to 701, Walnut Section.

The subdivision of the area, as shown on the plat entitled "Subdivision of Lots 680 to 701, Incl., Walnut Section, Riverside Memorial Park," dated December, 1972, prepared by the division of surveys, department of public works, is hereby approved and such area is designated "Subdivision of Lots 680 to 701, Incl., Walnut Section."
(Code 1958, § 10.1-126)

Sec. 12-184. Maple Grove.

The subdivision of the area, as shown on the plat entitled "Resubdivision of Lots 511 to 527, Incl., Lots 536 to 552, Incl., Lots 679 to 698, Incl., and Lots 589 to 608, Incl., Maple Grove Section, Riverside Memorial Park," dated December, 1974, prepared by the division of surveys, department of public works, is hereby approved.
(Code 1958, § 10.1-127)

Sec. 12-185. Resubdivision of Lilac Section, single-grave section.

The subdivision of the area as shown on the plat entitled "Resubdivision of Lilac Section, Riverside Memorial Park, Single Grave Section," dated May, 1979, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 30,149, § 1, 10-9-79)

Editor's note—Section 1 of Ord. No. 30,149, enacted Oct. 9, 1979, added § 10.1-129 to the 1958 Code; these provisions have been numbered as § 12-185 hereof by the editor.

Sec. 12-186. Resubdivision of Maple Grove Section.

The subdivision of the area as shown on the plat entitled "Resubdivision of Maple Grove Section, Riverside Memorial Park Cemetery," dated September 23, 1983, prepared by the division of surveys, department of public works, is hereby approved. This subdivision is a resubdivision of Lots 44, 45, 62, 71, 73, 78, 79, 142, 143, 159, 197, 222, 297, 342, 382, 384, 419, 424, 425, 433 through 440, 448, 468, 478, 479, 491, 494, 495, 496, 509, 510, 533, 535, 566 through 575, 577, 584 through 586, 609, 613 through 619, 622 through 628, 630 through 634, 636 through 641, 646 through 651, 653 through 662, 664, 665, 667 through 677 and 699 Maple Grove Section, Riverside Memorial Park, revised April 1935.
(Ord. No. 32,579, § 1, 10-11-83)

Sec. 12-187. Resubdivision of Wisteria Section.

The subdivision of the area as shown on the plat entitled "Wisteria Section of Riverside Cemetery," dated January 19, 1990, prepared by the division of surveys, department of public works, is hereby approved.
(Ord. No. 35,913, § 1, 3-13-90)

Sec. 12-188. Resubdivision of Lots 305 through 314 and 319 through 328, Wisteria Children's Section.

The resubdivision of the area as shown on the plat entitled "Resubdivision of Lots 305 to 314 and 319 to 328 Wisteria Section of Riverside Cemetery, dated May 15, 1991, by the division of surveys, department of public works, is hereby approved.
(Ord. No. 36,554, § 1, 9-10-91)

Sec. 12-189. Laurel Grove.

The subdivision of the area, as shown on the plat entitled "Burial Ground Site - Revised. Located at the Laurel Grove Section of Riverside Memorial Park, Norfolk, Virginia," dated March 19, 2021, prepared by the division of surveys, department of public works, creating 1,172 new graves, is hereby approved and such area is designated as "Laurel Grove."
(Ord. No. 48,372, § 1, 5-11-21)

Secs. 12-190—12-194. Reserved.

Sec. 12-195. Division 9—Elmwood Cemetery.

The subdivisions of the area, as shown on the maps entitled "Elmwood Cemetery Fourth Cross Section Block 'A'"; "Elmwood Cemetery Fourth Cross Section Blocks 'C', 'D', 'E' and 'F'"; "Elmwood Cemetery Fourth Cross Section Blocks 'G', 'H', 'J' and 'K'"; and "Elmwood Cemetery Fourth Cross Section Blocks 'M', 'N', and 'P'," dated March 19, 2001, prepared by the division of surveys, department of public works are approved.
(Ord. No. 40,348, § 1, 6-5-01)

Sec. 12-196. Division 10—Cedar Grove Cemetery.

The subdivision of the area as shown on the map entitled "Cedar Grove Cemetery First Cross Section North Blocks 'A' thru 'E'," dated March 8, 2001, prepared by the division of surveys, department of public works are approved.
(Ord. No. 40,348, § 1, 6-5-01)

Secs. 12-197—12-200. Reserved.

ARTICLE III. GENERAL RULES AND REGULATIONS

Sec. 12-201. Application of article.

Except as otherwise provided, the rules and regulations set out in this article for the manage-

ment and control of cemeteries shall apply to all cemeteries, except the old parts of Elmwood, Cedar Grove, West Point, Magnolia, Hebrew, Calvary and Calvary Annex.
(Code 1958, § 10.1-54)

Sec. 12-202. Availability of copies of article.

A printed copy of the rules and regulations set out in this article may be obtained by each applicant from the cemetery office concerned or from monument dealers in the city.
(Code 1958, § 10.1-56)

Sec. 12-203. Abatement of violations of article.

In the event any boundary marker, steps, gravestone, slab, vase or monument is erected in any cemetery, or any hedge or border is placed around any lot or grave, or any object or article is placed on any lot or grave, contrary to the provisions of this article, and shall not be either removed or made to conform to the requirements of this article, after five (5) days' written notice from the superintendent to the owner of the lot or grave on which the violation exists, and to the person whose work actually caused the violation, the superintendent shall have the right, in his discretion, to either remove the same or make the same conform to the requirements of this article, and the owner of such lot or person responsible for the violation, or both, shall be liable to the city for the cost incurred in abating such violation.
(Code 1958, § 10.1-58)

Sec. 12-204. Allotment of space.

No allotment of space in the cemeteries shall be made except upon application to the superintendent, signed by the person in whose name the allotment is to be made. Every such application shall contain a stipulation to the effect that, in consideration of the allotment of the space so applied for, the applicant shall abide by all the rules and regulations made and hereafter enacted by the city council for the management and control of cemeteries. Every allotment of space in cemeteries shall be deemed to be made subject to the condition that all such rules and regulations shall be complied with.
(Code 1958, § 10.1-55)

Sec. 12-205. Grade of lots.

The grade of all lots shall be established by the city engineer and no change shall be made in any grade so established.
(Code 1958, § 10.1-57)

Sec. 12-206. Permit to erect, markers, steps, gravestones, etc.

No boundary marker, steps, gravestone, vase or monument shall be erected on any lot in the cemeteries, unless the person erecting the same shall first have secured a written permit therefor from the superintendent. If markers, steps, gravestones, vases or monuments conform to the requirements of this article, the superintendent shall grant such permit, and if not, he shall refuse the same.
(Code 1958, § 10.1-86)

Sec. 12-206.1. Foundations for gravestones, markers and monuments, etc.

The foundations for all gravestones, markers, monuments or other such structures shall be installed by the bureau of cemeteries, in accordance with specifications approved by the department of public works.
(Ord. No. 37,360, § 1, 5-24-94)

Sec. 12-207. Specifications for lot boundary markers.

The boundaries of all lots may be defined by means of corner posts. Such posts shall be six (6) inches square, and must be set within lot lines and to a depth not less than six (6) inches and, in addition thereto, have a concrete footing to help prevent settling. All corner posts must be ground level. The number of each lot is to be designated on one of such posts. Corner posts will not be permitted on the corners of single graves or around a portion of any lot. All corner posts

installed in any cemetery subdivision established subsequent to March 1, 1974, shall be of granite or bronze.
(Code 1958, § 10.1-58)

Sec. 12-208. Enclosures or coping around lot, grave, etc.

No enclosures or coping will be permitted around the borders of any lot, grave or mausoleum site.
(Code 1958, § 10.1-59)

Sec. 12-209. Lot steps.

Steps for lots must be built of stone or concrete and must be set on a foundation approved by the director of facilities and enterprise management. No steps shall be permitted where the grade of the lot is too close to the grade of the road, nor in the sections designated as Live Oak Lawn, Maple Lawn, Linden Lawn, Cedar Lawn, Sections K and L of Center Lawn, Locust Lawn, Tree of Life (Sections I and II) Grecian Gardens, Pine Gardens, Sections I and II, Ash Lawn and Grecian Gardens, Hellenic Section, in Forest Lawn Cemetery and Ash Lawn, Turner Gardens, Elm Lawn, Sections 24, 25, 26 and 27, and Oak Lawn, in Calvary Cemetery and single grave and four-grave sections additions to Blocks B, D, G, I, L, N, Q, S, V and X in Magnolia Cemetery and in Sycamore Gardens and the subdivision of Blocks F, G, and H, Sycamore Gardens, in West Point Cemetery. No steps shall be permitted in any cemetery subdivision established subsequent to November 30, 1971.
(Code 1958, § 10.1-60; Ord. No. 40,343, § 10, 6-5-01)

Sec. 12-210. Burial containers.

Every grave opened and used for burials on and after September 1, 1975, shall contain a burial container, which burial container shall be so constructed, installed and reinforced as to effectively prevent settling of the ground of the lot or grave space. Concrete grave liners shall be constructed around a 14 gauge 4" × 4" galvanized steel mesh cage. The cover shall be reinforced with 10 gauge 6" × 6" steel mesh with galvanized lift hooks with exceptional shoulders to prevent pullouts and must have static compressive strength of five thousand (5,000) pounds per square foot at twenty-eight (28) days of curing time. Grave liners made of fiberglass or plastic may not produce a deflection of more than one-half inch on the top surface, nor more than three-eighths inch on the longitudinal and transverse walls under a load of five thousand (5,000) pounds per square foot.
(Code 1958, § 10.1-57.1; Ord. No. 40,343, § 11, 6-5-01)

Sec. 12-211. Limitations on burial of ashes.

(a) Not more than six (6) urns of ashes shall be buried in an adult grave (two (2) at the west end, two (2) in the center, and two (2) at the east end), with one memorial marker to honor all who are buried in such grave.

(b) Not more than two (2) urns of ashes shall be buried in an adult grave where a vault or box is already buried in such grave.
(Code 1958, § 10.1-85; Ord. No. 43,893, § 1, 6-15-10)

Sec. 12-211.1. Placing, depositing, or scattering of ashes on graves prohibited.

(a) It shall be unlawful for any person to place, deposit, or scatter the ashes of a deceased human or animal on, over or beside any grave located in any of the public cemeteries or burial grounds of the city set forth in section 12-6, except as may be authorized by the Council.

(b) In the event any such ashes have been so placed, deposited, or scattered, the ashes shall be handled by duly authorized city cemetery personnel in accordance with the policies and procedures set forth by the city manager.
(Ord. No. 44,039, § 1, 11-9-10)

Sec. 12-212. Use of crypts in Memorial Columbaria, Section I, Forest Lawn Cemetery.

Only one urn or other container of ashes shall be allowed in each ash crypt in Memorial Columbaria, Section I, in Forest Lawn Cemetery. All

such containers must be of a size that will fit in the crypt and allow the marble facing of the crypt to be in line and properly sealed. All inscriptions on crypts shall be of a decent nature and professionally done.
(Code 1958, §§ 10.1-85, 10.1-108)

Sec. 12-213. Public mausoleum, Forest Lawn Cemetery.

The following provisions apply to the public mausoleum located in Forest Lawn Cemetery:

(1) Either one body or not more than two (2) sets of ashes shall be permitted in each adult crypt.

(2) Only one set of ashes shall be permitted in each ash crypt.

(3) All inscriptions on crypts shall be of a decent nature and professionally done.

(4) All ledges for flowers in the deluxe crypts must be as prescribed by the director of facilities and enterprise management.

(Code 1958, § 10.1-107; Ord. No. 34,463, § 1, 5-12-87; Ord. No. 40,343, § 12, 6-5-01)

Sec. 12-214. Mausoleums generally.

(a) Mausoleums may be erected only in those sections reserved for that purpose and so located as to conform with the overall plan provided for that section. Complete plans and specifications for a mausoleum must be submitted to and approved by the director of facilities and enterprise management and by the building official of the city.

(b) Materials for all mausoleums must be of good quality. The frame of the mausoleum shall be reinforced concrete or virgin marble or granite. The skin of the mausoleum shall be of virgin marble or granite.
(Code 1958, § 10.1-61; Ord. No. 40,343, § 13, 6-5-01)

Sec. 12-215. Minimum frontage or size of mausoleum sites in Forest Lawn Cemetery.

No mausoleum site shall be established in Forest Lawn Cemetery, unless it has a frontage of not less than ten (10) feet and a total square footage of not less than one hundred fifty (150) square feet.
(Code 1958, §§ 10.1-47, 10.1-104; Ord. No. 30,637, § 1, 6-10-80; Ord. No. 30,981, § 1, 2-10-81)

Sec. 12-216. Gravestones and markers generally.

(a) No gravestone or marker shall be less than four (4) inches thick or wide or more than sixteen (16) inches thick or wide at the base, nor more than thirty (30) inches long at the base, exclusive of the apron thereof, nor more than thirty (30) inches above the top of the apron or the general level of the ground; provided, however, the length of any gravestone or marker may be doubled for two (2) adjacent graves or tripled for three (3) adjacent graves; provided further, however, that the purchaser agrees to move the same for subsequent burials in such graves, if necessary, and to then properly replace the same at his expense. Not more than one gravestone or marker shall be permitted for any grave.

(b) All gravestones or markers shall be set next to the ends of the lot, the only exception being for child graves, which may not be next to the ends, and unless specified differently in other sections of this chapter.

(c) All gravestones and markers shall be set on a solid foundation installed by the bureau of cemeteries, in accordance with specifications supplied by the department of public works.

(d) The superintendent may authorize exceptions to this section, in hardship cases, in the Crape Myrtle Lawn section of Forest Lawn Cemetery.
(Code 1958, §§ 10.1-62, 10.1-92; Ord. No. 37,630, § 2, 5-24-94)

Sec. 12-217. Location of gravestones or markers on single grave spaces.

All burial spaces which are used as single graves, such as occurs in the Chinese, New Greek and Beth Abraham sections at Forest Lawn Cemetery, also in the regular single grave sections both at Forest Lawn and Calvary

Cemetery, shall have their gravestones or markers installed at the head of the grave (west or south), unless otherwise specified.
(Code 1958, § 10.1-63)

Sec. 12-218. Regulations for slabs in Forest Lawn and Calvary Cemeteries and cemetery subdivisions established subsequent to February 1, 1873.

(a) No slab (also known as ledger) will be permitted in that portion of Forest Lawn Cemetery designated Live Oak Lawn; and no slab will be permitted in any other portion of Forest Lawn Cemetery or in Calvary Cemetery or in Calvary Cemetery Annex, except for duplicates to match those in existence prior to October 1, 1959, or in any cemetery subdivision established subsequent to February 1, 1973, unless and until the owner of the grave:

(1) Submits to the director of facilities and enterprise management a request in writing for a permit to lay a slab on a designated grave.

(2) Pays to the city the sum of one hundred dollars ($100.00).

(3) Releases the city from liability for any damage which may occur to the slab.

(4) Obtains from the director of facilities and enterprise management a permit to lay the slab.

If the owner of a lot or grave submits such a request and pays the required sum of money and gives to the city such a release, the director of facilities and enterprise management shall grant a permit for the laying of the requested slab, and if the owner of a lot does not comply with these requirements, the director shall refuse such a permit.

(b) Notwithstanding the above provisions of this section, no slab shall be permitted in any cemetery subdivision established subsequent to March 1, 1974.
(Code 1958, § 10.1-64; Ord. No. 40,343, § 14, 6-5-01)

Sec. 12-219. Location of gravestones or markers for certain four-grave lots.

Gravestones or markers for two (2) tier, four-grave lots on the following lawns shall not, including the apron thereof, be placed any closer than fifteen (15) inches from the ends of the lot:

(1) At Forest Lawn: Crape Myrtle, Cedar Lawn, Tree of Life Sections I, II and III, Grecian Gardens, Section K Cedar Lawn, Section "L" Cedar Lawn and Ash Lawn.

(2) At Hebrew Cemetery: Garden of Eternal Life.

(3) At Magnolia Cemetery, single grave and four (4) grave section additions to Blocks B, D, G, I, L, N, Q, S, V and X.
(Code 1958, § 10.1-65)

Sec. 12-220. Location of gravestones or markers for certain two and single grave sections.

(a) For all gravestones and markers for the following two and single grave sections, the center line of the width of the base of the marker shall be at least twelve (12) inches, excluding the apron thereof, from the western boundary of the grave space:

(1) At Forest Lawn: Northeast corner Section II, Maple Lawn, Linden Lawn, Holly Lawn, Crape Myrtle, Tree of Life Lawn I and II, Grecian Gardens, Section K Center Lawn, Ash Lawn, Grecian Gardens Hellenic Section and Resubdivision of Lots 4 through 21, inclusive, Block E Tree of Life Lawn.

(2) At Calvary Cemetery: Block 27, Ash Lawn, Elm Lawn, Section 13.

(3) At Hebrew Cemetery: Garden of Eternal Life.

(4) At West Point Cemetery: Sycamore Gardens and subdivision of Blocks F, G and H Sycamore Gardens.

(5) At Magnolia Cemetery: All single graves in Blocks B, D, Q, S, V and X on the plat

entitled "Single Grave and Four-Grave Sections Additions to Blocks B, D, G, I, L, N, Q, S, V and X."

(b) For all gravestones and markers for single graves in Blocks G, I, L and N on the plat entitled "Single Grave and Four-Grave Sections Additions to Blocks B, D, G, I, L, N, Q, S, V and X, Magnolia Cemetery," the center line of the width of the base of the marker shall be at least twelve (12) inches, excluding the apron thereof, from the eastern boundary of the grave space.

(c) All markers for any other adult single grave shall be placed at the head of the grave.
(Code 1958, § 10.1-66)

Sec. 12-221. Gravestones or markers for single graves for children in certain cemeteries.

For regular single-child graves in single grave sections, Grecian Gardens, Tree of Life Sections I and II, Grecian Gardens Hellenic Section and David's Garden in Forest Lawn Cemetery, for all child sections in Calvary Cemetery and for child graves in Garden of Eternal Life, Hebrew Cemetery; for all child graves in Sycamore Gardens and Subdivision of Blocks F, G and H Sycamore Gardens in West Point Cemetery, the following are sizes of markers or gravestones permitted:

(1) Grave for child under one year of age: The marker shall not exceed twenty (20) inches in length, sixteen (16) inches in depth or width or thirty (30) inches in height, except in David's Garden in Forest Lawn Cemetery, in which the marker shall not exceed twenty-four (24) inches in length, sixteen (16) inches in depth or width or thirty (30) inches in height.

(2) Grave for child one to twelve (12) years of age: The marker shall not exceed twenty-four (24) inches in length, sixteen (16) inches in depth or width or thirty (30) inches in height.

(3) All markers are to be set at the head of the grave (the superintendent of cemeteries will decide the head). There shall be not more than one marker to each grave. The foundation will be in accordance with section 12-216,

(Code 1958, § 10.1-67)

Sec. 12-222. Flat grave markers in portions of Forest Lawn Cemetery, Riverside Memorial Park, and Magnolia Cemetery.

(a) The following provisions shall apply to West Lawn; Live Oak Lawn; the resubdivision of Live Oak Lawn; the subdivision of Blocks B, C, and D Live Oak Lawn; Elm Lawn, four-grave section; and Tree of Life Lawn, Section III, four-grave section, all in Forest Lawn Cemetery and to the graves on the resubdivided lots on the plat entitled "Resubdivision of Maple Grove Section, Riverside Memorial Park Cemetery," dated September 23, 1983 and the "Magnolia Cemetery, Single Grave Sections" dated January 16, 1987 and the plat entitled "Wisteria Section of Riverside Cemetery," dated January 19, 1990.

(1) Each grave shall be marked by a flat marker of the following dimension: Not less than four (4) inches thick, if of bronze.

(2) Not less than ten (10) or more than sixteen (16) inches wide and not less than twenty (20) nor more than thirty (30) inches long, if plain surface.

(b) In Live Oak Lawn, the markers referred to in this section are to be set in the center of the grave space at the extreme ends of the lot. In the resubdivision of Live Oak Lawn, such markers, including the apron, shall be next to the western end of the grave. In the subdivision of Blocks B, C and D, Live Oak Lawn, such markers, including the apron shall be set next to the western end of the grave space. In Elm Lawn, four-grave section and Tree of Life Lawn, Section III, four-grave section, such markers, excluding the aprons thereof, shall be set fifteen (15) inches from the ends of the lot. In West Lawn such markers, including the aprons thereof, shall be set at the west end of the grave and extend to the east. On graves shown on the resubdivided lots on the plat entitled "Resubdivision of Maple Grove Section, Riverside Memorial Park

Cemetery," dated September 23, 1983, all markers, including the apron thereof, for the east graves shall be placed next to the east line of the grave and extend toward the west and all markers, including the apron thereof, for west graves shall be placed next to the west line of the grave and extend toward the east. On graves shown on the plat entitled "Magnolia Cemetery, Single Grave Sections" such markers, including the aprons thereof, shall be placed next to the west end of the grave and extend to the east for all "east/west" oriented graves and such markers, including the apron thereof, shall be placed next to the south end of the grave and extend to the north for all "north/south" oriented graves. On graves shown on the plat entitled "Wisteria Section of Riverside Cemetery" all markers, including the apron thereof, shall be placed at the east end of the east graves and extend to the west and at the west end of the west graves and extend to the east.

(c) The markers referred to in this section shall be set on suitable foundations prescribed by the superintendent and such markers, the height of which are not to exceed the general level of the ground, are to be of virgin granite or bronze of good quality. Double markers will be permitted.

(d) In event vases are included in the body of a marker regulated by this section, they shall be countersunk, so that the top or any part of the casing of the vase does not extend above the surface of the marker.
(Code 1958, § 10.1-68; Ord. No. 32,579, § 2, 10-11-83; Ord. No. 33,649, § 2, 9-10-85; Ord. No. 35,437, § 2, 3-21-89; Ord. No. 35,780, § 2, 10-31-89; Ord. No. 35,913, § 2, 3-13-90)

Sec. 12-223. Markers for twelve-grave lots in Pine Gardens, Section I, Forest Lawn Cemetery.

The following provisions apply to twelve-grave lots in Pine Gardens, Section I, Forest Lawn Cemetery:

(1) Markers, including the apron thereof, for the tier of graves next to the monument space shall be set next to and inside a line nine (9) feet from the monument space.

(2) Markers, including the apron thereof, for the tier of graves on the front of the lot, shall be set two (2) feet from the front and inside the lot.

(3) Markers in other respects shall be according to section 12-216.

(Code 1958, § 10.1-69)

Sec. 12-224. Markers or gravestones for four-grave lots in Pine Garden, Section II, Forest Lawn Cemetery.

All markers or gravestones for four-grave lots in Pine Garden, Section II, Forest Lawn Cemetery, shall be set at the head of each grave and all gravestones or markers for ashes or children, which are not placed in the space provided for regular markers, shall be level with the ground and any vase erected in connection with the marker shall be of the ground-level type. Except as above, all markers shall be in accordance with section 12-216.
(Code 1958, § 10.1-70)

Sec. 12-225. Location of markers in Locust Lawn, Forest Lawn Cemetery.

The following provisions shall apply to Locust Lawn in Forest Lawn Cemetery:

(1) Markers for Blocks 1 and 14, excluding the apron thereof, are to be placed next to the west end or head of the grave and extend toward the east.

(2) All markers for the west graves of Blocks 2 through 13 and 15 through 25, excluding the apron thereof, shall begin at the east line of the grave and extend toward the west.

(3) All markers for the east graves of Blocks 2 through 13 and 15 through 25, excluding the apron thereof, shall begin at the west line and extend toward the east.

In all other respects, markers shall be in accordance with section 12-216.
(Code 1958, § 10.1-71)

Sec. 12-226. Location of markers or gravestones in Spruce Lawn, Forest Lawn Cemetery.

(a) In Spruce Lawn, Forest Lawn Cemetery, all markers or gravestones, excluding the apron thereof, of the east graves in Blocks 1 through 11 and of all graves in Block 12 shall be placed next to the west line of the grave and extend toward the east.

(b) In Spruce Lawn, Forest Lawn Cemetery, all markers or gravestones, excluding the apron thereof, of the west graves in Blocks 1 through 11 shall be placed next to the east line of the grave and extend toward the west.
(Code 1958, § 10.1-71.2)

Sec. 12-227. Location of markers or gravestones in David's Garden, Forest Lawn Cemetery.

(a) All markers or gravestones, excluding the apron thereof, of the east graves in Blocks 1 through 16 of David's Garden, Forest Lawn Cemetery, shall be placed next to the vest line of the grave and extend toward the east.

(b) All markers or gravestones, excluding the apron thereof, of the west graves in Blocks 1 through 16 of David's Garden, Forest Lawn Cemetery, shall be placed next to the east line of the grave and extend toward the west.
(Code 1958, § 10.1-71.4)

Sec. 12-227.1. Location of markers or gravestones in David's Garden, Section 2, Forest Lawn Cemetery.

(a) The provisions of this action shall apply to David's Garden, Section 2, of Forest Lawn Cemetery.

(b) All markers or gravestones, excluding the apron thereof, of the east graves in Blocks 17 through 19 shall be placed next to the east line of the grave and extend toward the west.

(c) All markers or gravestones, excluding the apron thereof, of the vest graves in Blocks 17 through 19 shall be placed next to the west line of the grave and extend toward the east.

(d) All markers or gravestones shall be set flush with the ground level.
(Ord. 29,884, § 1, 4-10-79)

Sec. 12-227.2. Location of markers or gravestones in David's Garden, Section 3, Forest Lawn Cemetery.

(a) The provisions of this article shall apply to David's Garden, Section 3, Forest Lawn Cemetery.

(b) All markers or gravestones, including the apron thereof, for four-grave lots numbered 1 through 58 shall be placed at the ends of the lot and extend toward the center of the lot. All such markers must be placed flush with the general level of the ground.

(c) All markers or gravestone, including the aprons thereof, for two-grave lots numbered 59 through 116 shall be placed next to the west end of the lot and extend to the east. All such markers must be placed flush with the general level of the ground.

(d) No markers or gravestones are allowed on lots numbered 117 through 145. Monuments on these lots, excluding the apron thereof, shall be placed in accordance with section 12-237 of this code and shall be placed at the west end of the lot and extend to the east.
(Ord. No. 35,780, § 1, 1031-89)

Sec. 12-228. Location of markers or gravestones on certain lots in Tree of Life Lawn, Forest Lawn Cemetery.

(a) All markers or gravestones, excluding the apron thereof, of the west graves in Blocks 4, 5, 6, 7, 9, 10, 11, 12, 13, 14, 15 and 16 in Tree of Life Lawn, Section III, two-grave and single grave sections, Forest Lawn Cemetery, shall be placed next to the east line of the grave and extend toward the west.

(b) All markers or gravestones, excluding the apron thereof, of the east graves in Blocks 4, 5, 6, 7, 9, 10, 11, 12, 13, 14, 15 and 16 in Tree of Life Lawn, Section III, two-grave and single grave Sections, Forest Lawn Cemetery, shall be placed next to the west line of the grave and extend toward the east.

(c) All markers or gravestones, excluding the apron thereof, of graves in Blocks 8 and 17 in Tree of Life Lawn, Section III, two-grave and single grave sections, Forest Lawn Cemetery, shall be placed next to the west line of the grave and extend toward the east.
(Code 1958, § 10.1-71.6)

Sec. 12-229. Locations of markers or gravestones for certain lots in Fir Lawn, Forest Lawn Cemetery.

(a) All markers or gravestones, excluding the apron thereof, for the east graves in Blocks 1 through 26 of Fir Lawn, single grave section, in Forest Lawn Cemetery shall be placed next to the west line of the grave space and extend toward the east.

(b) All markers or gravestones, excluding the apron thereof, for the west graves in Blocks 1 through 26 of Fir Lawn, single grave section, in Forest Lawn Cemetery shall be placed next to the east line of the grave space and extend toward the west.
(Code 1958, § 10.1-71.8)

Sec. 12-230. Location of markers or gravestones in Red Oak Lawn, Forest Lawn Cemetery.

(a) All markers or gravestones, excluding the apron thereof, for the east graves in Blocks A through F in Red Oak Lawn, Forest Lawn Cemetery, shall be placed next to the west line of the grave space and extend toward the east.

(b) All markers or gravestones, excluding the apron thereof, for the west graves in Blocks A through F in Red Oak Lawn, Forest Lawn Cemetery, shall be placed next to the east line of the grave space and extend toward the west.
(Code 1958, § 10.1-71.9)

Sec. 12-230.1. Location of markers on gravestones on certain resubdivided lots in Grecian Gardens, Forest Lawn Cemetery.

The location of markers or gravestones on property shown on the plat of resubdivision of Lots 1 through 10, Lots 21 through 42 and an unnumbered parcel, Block H, Grecian Gardens, Forest Lawn Cemetery shall be as follows: All markers or gravestones, including the apron thereof, shall be placed next to the west line of the grave and extend to the east.
(Ord. No. 30,330, § 1, 3-18-80)

Editor's note—Ord. No. 30,330, § 1, enacted March 18, 1980, added 10.1-71.15 to Code 1958; the editor has included these provisions as § 12-230.1.

Sec. 12-230.2. Location of markers or gravestones on certain resubdivided lots in South Center Lawn, Forest Lawn Cemetery.

The location of markers or gravestones on Lot 151A of resubdivision of Lot 151, Forest Lawn Cemetery Plan of South Center Lawn shall be as follows:

(1) All markers or gravestones, including the apron thereof of the west graves on Lot 151A, shall be placed next to the west line of the grave space and extend to the east.

(2) All markers or gravestones, including the apron thereof of the east graves on Lot 151A, shall be placed next to the east line of the grave space and extend to the west.

(Ord. No. 31,166, § 1, 5-26-81)

Editor's note—Section 1 of Ord. No. 31,166, enacted May 26, 1981, added § 10.1-71.16 to the 1958 Code; the editor has codified these provisions as § 12-230.2 hereof.

Sec. 12-230.3. Location of markers or gravestones in Child Section D, Forest Lawn Cemetery.

The location of markers or gravestones on property shown on the plat entitled "Child Section D, Forest Lawn Cemetery" shall be as follows:

(1) All markers or gravestones, including the apron thereof, in Row 2, shall begin at the west line of the grave and extend toward the east.

(2) All markers or gravestones, including the apron thereof, in Row 3, shall begin at the east line of the grave and extend toward the west.

(Ord. No. 32,042, § 1, 11-23-82)

Sec. 12-230.3.1. Location of markers or gravestones in Child Section D extended, Forest Lawn Cemetery.

The location of markers or gravestones on property shown on the plat entitled "Child Section D Extended, Forest Lawn Cemetery" shall be as follows:

(1) All markers or gravestones for Rows 5 through 12, including the apron thereof, shall begin at the west line of the grave and extend toward the east.

(2) All markers or gravestones for Rows 6 through 12 shall be placed ground level. Such markers shall not exceed eighteen (18) inches in length, twelve (12) inches in width, and shall be a thickness of not less than four (4) inches.

(Ord. No. 33,649, § 3, 9-10-85)

Sec. 12-230.4. Location of markers or gravestones in Pear Lawn, Forest Lawn Cemetery.

The location of markers or gravestones on property shown on the plat entitled "Pear Lawn, Forest Lawn Cemetery," shall be as follows:

(1) All markers or gravestones, excluding the apron thereof in Blocks A, B, C, D and E, shall be placed next to the south line of the lot and extend toward the north.

(2) All markers or gravestones, excluding the apron thereof in Blocks F and G shall be placed next to the east line of the lot and extend toward the west.

(3) All markers or gravestones excluding the apron thereof for the east graves in Blocks H through Z, inclusive, shall be placed next to the west line of the grave and extend toward the east.

(4) All markers or gravestones excluding the apron thereof for the west graves in Blocks H through Z, inclusive, shall be placed next to the east line of the grave and extend toward the west.

(Ord. No. 32,554, § 1, 9-27-83)

Sec. 12-230.5. Location of markers or gravestones in Center Park North, Forest Lawn Cemetery.

(1) All markers or gravestones, including the apron, for lots 1 through 449, shall be placed at the west end of the lot and extend toward the east.

(2) All markers or gravestones, including the apron, for lots 450 through 483 shall be placed next to the east line of the lot and extend toward the west.

(3) All markers or gravestones, including the apron, for lots 484 through 571, shall be placed next to the north line of the lot and extend toward the south.

(Ord. No. 34,990, § 1, 4-19-88)

Sec. 12-230.6. Location of markers or gravestones in Grecian Gardens, Revised Plat of Greek Section.

The location of markers or gravestones on property shown on the plat entitled "Grecian Gardens Forest Lawn Cemetery, Revised Plat of

Greek Section" dated Dec. 1959, Revised February 19, 1980, Revised June 2, 1988, shall be as follows:

(1) All markers or gravestones, excluding the apron thereof, for the east lots (those lettered "a") shall be placed fifteen (15) inches in from the east end of the lot and extend toward the west.

(2) All markers or gravestones, excluding the apron thereof, for the west lots (those lettered "b") shall be placed fifteen (15) inches in from the west end of the lot and extend toward the east.

(Ord. No. 35,161, § 1, 7-12-88)

Sec. 12-231. Location of markers or gravestones in Cedar Lawn, Calvary Cemetery Annex.

(a) All markers or gravestones, excluding the apron thereof, of the east graves in Blocks 1 through 27 of Cedar Lawn, adult single grave section, in the Calvary Cemetery Annex shall be placed next to the west line of the grave and extend toward the east.

(b) All markers or gravestones, excluding the apron thereof, of the west graves in Blocks 2 through 27 of Cedar Lawn, adult single grave section, in the Calvary Cemetery Annex shall be placed next to the east line of the grave and extend toward the west.

(Code 1958, § 10.1-71.7)

Sec. 12-232. Location of markers or gravestones in Turner Gardens, Calvary Cemetery Annex.

In Turner Gardens, Calvary Cemetery Annex, all gravestones or markers for lots on the east side of Turner Street in Blocks 1, 4, 6, 8 and 10 shall be placed on the west end of the lot. All gravestones for lots on the west side of Turner Street in Blocks 11, 12, 15, 17 and 19 shall be on the east end of the lots. In all other respects, markers and gravestones shall be in accord with section 12-216.

(Code 1958, § 10.1-115)

Sec. 112-233. Location of markers in Oak Lawn, Calvary Cemetery Annex.

(a) In Oak Lawn, Calvary Cemetery, Annex, all markers for the west graves of Blocks 1 through 10, excluding the apron thereof, shall begin at the east line of the grave and extend toward the west.

(b) In Oak Lawn, Calvary Cemetery, Annex, all markers for the east graves of Blocks 1 through 10, excluding the apron thereof, shall begin at the west line of the grave and extend toward the east.

(Code 1958, § 10.1-71.1)

Sec. 12-234. Location of markers or gravestones on certain resubdivided lots in Calvary Cemetery Annex.

(a) The following provisions shall apply to property shown on a plat entitled "Resubdivision of Lots 181 to 210, inclusive, Block 23, Calvary Cemetery Annex":

(1) All markers or gravestones, including the apron thereof, on Lots 1 through 30, shall be placed next to the east line of the lot and extend toward the west.

(2) All markers or gravestones, including the apron thereof, on Lots 31 through 60, shall be placed on the west line of the lot and extend toward the east.

(b) The following provisions shall apply to property shown on a plat entitled "Resubdivision of Lots 83 to 97, inclusive, Lots 103 to 117, inclusive, Lots 123 to 137, inclusive, and Lots 143 to 157, inclusive, Block 25, Calvary Cemetery Annex":

(1) All markers or gravestones, excluding the apron thereof, of the west graves in Blocks A, B and C shall be placed next to the east line of the grave and extend toward the west.

(2) All markers or gravestones, excluding the apron thereof of the east graves in

Blocks A, B and C shall be placed next to the west line of the grave and extend toward the east.

(c) The following provisions shall apply to property shown on a plat entitled "Resubdivision of a Portion of Block 23, Calvary Cemetery Annex": All markers or gravestones, excluding the apron thereof, of Lots 1 through 60 in Section 23B shall be placed next to the west line of the grave and extend toward the east.

(d) All markers or gravestones, including the apron thereof, on Lots 1 through 60 in Block 23C shall be placed next to the east line of the lot and extend toward the west.

(e) All markers or gravestones, including the apron thereof on the resubdivided Lots 44, 45, 46, 47, 51, 52, 53, 54, 63, 70, 71, 72, 73, 74, 75, 76, 77, 78, 98, 121, 122, 138, 141 and 158, Block 25, Calvary Cemetery Annex as shown on the plat entitled "Resubdivision of Lots 44, 45, 46, 47, 51, 52, 53, 54, 63, 70, 71, 72, 73, 74, 75, 76, 77, 78, 98, 121, 122, 138, 141 and 158, Block 25, Calvary Cemetery Annex" shall be placed next to the west line of the grave and extend to the east.

(f) All markers or gravestones, including the apron thereon on the subdivision entitled "Subdivision of Block J, Pine Lawn, Part 2, Children's Section, Calvary Cemetery Annex" shall be placed next to the west line of the grave and extend toward the east.

(g) All markers and gravestones, including the apron thereon on the resubdivided lots as shown on the plat entitled "Resubdivision of Lots 71 to 75, inclusive, Lots 81 to 84, inclusive, Lots 97 to 116, inclusive, Lots 128 to 138, inclusive, Lots 140 to 143, inclusive, Lots 145 to 147, inclusive, Lots 158 to 165, inclusive, Lot 168, Lot 170, Lots 211 to 217, inclusive, Lot 227, Lot 236, Lot 239, Lot 240, Lot 244, Lot 245, Lots 258 to 288, inclusive, Lot 290, Lots 292 to 294, inclusive, Lots 296 to 298, inclusive, Lots 303 to 314, inclusive, Lots 316 to 330, inclusive, Lots 332 to 339, inclusive, Lots 342 to 357, inclusive, Block 23, Calvary Cemetery Annex," shall be placed next to the west line of the grave and extend toward the east.

(h) All markers and gravestones, including the apron, for graves 571 through 684 as shown on the plat entitled "Revised Plat of Section 26 Calvary Cemetery Annex" shall be placed next to the west end of the grave and extend toward the east.

(Code 1958, § 10.1-71.11; Ord. No. 30,254, § 1(10.1-71.14), 1-8-80; Ord. No. 31,312, § 1(10.1-71.17), 8-25-81; Ord. No. 31,691, § 2, 5-11-82; Ord. No. 32,170, § 2, 3-8-83; Ord. No. 32,711, § 2, 1-10-84; Ord. No. 33,099, § 2, 9-18-84; Ord. No. 35,930, § 2, 3-20-90)

Sec. 12-234.1. Flat grave markers in portions of Calvary Cemetery and Calvary Annex.

The following provisions shall apply to the resubdivision of Block 13, Calvary Cemetery Annex:

(a) Each grave shall be marked by a flat marker of the following dimensions: Not less than four (4) inches thick, if of granite; standard thickness, if of bronze. Not less than ten (10) nor more than sixteen (16) inches wide and not less than twenty (20) nor more than thirty (30) inches long. Double markers will be permitted for adjacent graves.

(b) The markers referred to in this section shall be set on suitable foundations prescribed by the superintendent. Such markers, the height of which are not to exceed the general level of the ground, are to be virgin granite or bronze of a good quality.

(c) Vases must be included in the body of the marker and shall be of the type that, when not in use, may be inverted even with the top of the marker.

(d) In the Block 13 resubdivision, all markers, including the apron, shall be placed next to the north end of the grave and extend to the south.

(Ord. No. 35,993, § 1, 5-15-90)

Sec. 12-235. Location of markers on or gravestones on certain lots in Riverside Memorial Park.

(a) All markers or gravestones, including the apron thereof, on Lots 680 to 701, including the Walnut Section, in Riverside Memorial Park, shall be placed next to the east line of the grave and extend toward the west.

(b) In the resubdivision of Lots 511 to 527, 536 to 552, 679 to 698 and 589 to 608, in the Maple Grove Section of Riverside Memorial Park, all markers or gravestones, including the apron thereof, shall be placed next to the west line of the grave and extend toward the east.

(c) All markers or gravestones, including the apron thereof, on Subdivision Lot 627, Walnut Section, Riverside Memorial Park, shall be placed next to the west line of the grave and extend toward the east.

(d) The following provisions shall apply to markers or gravestones on the resubdivision of Lilac Section, Riverside Memorial Park:

(1) All markers or gravestones excluding the apron thereof, of the west graves in Blocks A, B, C, D, E, F, G and H shall be placed next to the east line of the grave and extend toward the west.

(2) All markers or gravestones of the east graves, excluding the apron thereof, in Blocks A, B, C, D, E, F and G shall be placed next to the west line of the grave and extend toward the east.

(Code 1958, §§ 10.1-71.3, 10.1-71.5, 10.1-71.10; Ord. No. 30,149, § 1(10.1-71.13), 10-9-79)

Sec. 12-236. Markers or gravestones in city poor section.

(a) No gravestone or marker shall be erected for an adult grave in any city poor section, except a marker or gravestone which shall be not more than twelve (12) inches wide by twenty-four (24) inches long and not less than four (4) inches thick, which marker or gravestone shall be ground level. Child graves in a city poor section shall be marked in the same manner, except that the length of the marker for children under one year that are buried at Calvary shall not exceed eighteen (18) inches in length.

(b) Any marker or gravestone existing in any city poor section which does not conform with the requirements of this section shall be relocated by the superintendent so as to conform with such requirements in all respects.

(Code 1958, § 10.1-72)

Sec. 12-237. Monuments generally.

(a) Not more than one monument may be erected on any lot. Any stone that projects more than thirty (30) inches above the grade of the lot shall be deemed a monument. No monument will be permitted in any lot or fraction thereof, or any part of a lot having a superficial area of less than one hundred twenty-six (126) square feet.

(b) Foundations for monuments shall be installed by the bureau of cemeteries, in accordance with specifications supplied by the department of public works.

(c) All monuments for two (2) tiered lots must be set as near as possible at right angles to the length of the grave. Each such monument must be set at a point which is equidistant from the front and rear lot line and equidistant from each side of the lot, and in no case shall extend more than twelve (12) inches in either direction from the center line of the lot drawn parallel to the front of the lot, excluding the apron thereof. The length of such monument, including the apron thereof, may cover the entire width of the lot. The director of facilities and enterprise management shall make no exceptions to the above, except where authorized by ordinance.

(d) Monuments for three (3) tiered lots must be placed on a common boundary line between the first and second tier, or a common boundary line between the first and second tier, or a common boundary line between the second and third tier. Such monument also must be at a point which is equidistant from the side of the lot. No monument shall be more than four (4) feet thick at the base, excluding the apron thereof. The length of any monument, including the apron thereof, may extend the entire width of

the lot. Any monument the thickness of which exceeds four (4) feet shall be classified as a mausoleum and be governed by the regulations concerning mausoleums.

(e) In no event shall a monument, excluding the apron thereof, extend any closer than six (6) feet to the front or the rear of the lot. All monuments must be set as near as possible at right angles to the length of the grave space.

(f) When an owner has two (2) or more lots which are adjacent to each other lengthwise and in the same line, whether such lots are two (2) or three (3) tiered, the monument may be placed at a point equidistant from the sides of the combination of lots.
(Code 1958, § 10.1-73; Ord. No. 37,360, § 3, 5-24-94; Ord. No. 40,343, § 15, 6-5-01)

Sec. 12-238. Special monument on certain lots in Grecian Gardens, Forest Lawn Cemetery.

Lots 12, 13, 14 and 15 in Block C of Grecian Gardens in Forest Lawn Cemetery are hereby set aside for the erection of a special monument to be constructed thereon by the Greek Church, at no expense to the city and with plans approved by the director of facilities and enterprise management.
(Code 1958, § 10.1-74; Ord. No. 40,343, § 16, 6-5-01)

Sec. 12-239. Monuments in Forest Lawn Cemetery, Sections H and J.

In Forest Lawn Cemetery, Sections H and J, center lawns, no portion of any monument, excluding the apron thereof, shall extend more than ten (10) inches in either direction from the center line drawn parallel with the front line of the lot.
(Code 1958, § 10.1-75)

Sec. 12-240. Monuments in Live Oak Lawn, Forest Lawn Cemetery.

(a) The provisions of this section shall apply to monuments in Live Oak Lawn, Forest Lawn Cemetery.

(b) A flat monument may be placed on the lot. Each monument must be set at a point which is equidistant from the front and rear lot lines and equidistant from each side of the lot. In no case shall the monument, excluding the apron thereof, extend more than twelve (12) inches in either direction from the center line of the lot drawn parallel to the front of the lot. The monument shall have the name of the family inscribed thereon and other useful information and it shall be of the following dimensions: Not less than four (4) inches thick, if of granite, and standard thickness, if of bronze; the length, including the apron thereof, shall not exceed the width of the lot and the width, excluding the apron thereof, shall not be less than twelve (12) inches nor more than twenty-four (24) inches.

(c) A monument governed by this section must be placed on a solid masonry foundation (poured wet), approved by the superintendent. Only one monument will be permitted for each lot. The monument shall not extend above the general level of the ground. Monuments for three (3) tiered lots shall be placed in accordance with section 12-237.

(d) In the event vases are included in the body of the monument, they are to be countersunk so that the top of any part of the casing or base does not extend above the surface of the monument.
(Code 1958, § 10.1-76)

Sec. 12-241. Monuments in Section II of Pine Gardens, Forest Lawn Cemetery.

(a) The provisions of this section shall apply to monuments in Section II of Pine Gardens, Forest Lawn Cemetery.

(b) All monuments, excluding the apron thereof, must be set on a line parallel to and beginning three (3) feet six (6) inches from the rear or east end of the lot. The width or thickness of the monument is to extend toward the east or toward the back of the lot and, in no case, shall it exceed thirty-six (36) inches in width or thickness at the base. The length of the monument, including the apron thereof, may extend the entire width of the lot.

(c) Where an owner has two (2) or more lots which are adjacent to each other lengthwise and in the same line, the monument may be placed at a point equidistant from the sides of the combination of lots.

(d) In other respects the monument shall be in accordance with section 12-237.
(Code 1958, § 10.1-77)

Sec. 12-242. Monuments for twelve-grave lots in Section I of Pine Gardens, Forest Lawn Cemetery.

(a) The provisions of this section shall apply to monuments for twelve-grave lots in Section I of Pine Gardens, Forest Lawn Cemetery.

(b) All monuments, excluding the apron thereof, shall begin at a line four (4) feet from the back of the lot and parallel to it. The width or depth of the monument shall progress toward the back line and may, including the apron thereof, extend all the way to it. Any monument exceeding the given space or width shall fall in the category of a mausoleum. The length of the monument, including the apron thereof, shall be within and equidistant from the sides of the lot. Only one monument will be permitted on a lot.

(c) In other respects the monument shall be in accordance with section 12-237.
(Code 1958, § 10.1-78)

Sec. 12-243. Monuments and markers not to extend above general ground level in certain areas of Forest Lawn Cemetery.

(a) No monument or marker shall extend above the general level of the ground in that part of Forest Lawn Cemetery known as:

(1) Live Oak Lawn and Subdivision of Blocks B and C, Live Oak Lawn.

(2) That certain area two hundred ten (210) feet wide adjacent to and parallel to the east side of Granby Street and extending from the main entrance to such cemetery northwardly and to the northern boundary of such cemetery.

(b) No marker shall extend above the general level of the ground in that part of Forest Lawn Cemetery known as Elm Lawn, four-grave section, and in Tree of Life Lawn, Section III, four-grave section.
(Code 1958, § 10.1-87)

Sec. 12-244. Vases generally.

(a) All vases shall be of the permanent type, with the center line of the vase placed adjacent to and in line with the center line of the length of any marker or monument. No vase shall be placed in the center of a grave space. No vase, including the base, shall extend more than fifteen (15) inches outward from the base of the monument or marker.

(b) All vases used in connection with graves for adult ashes or a child, where the marker for such grave is not in the place provided for it, shall be of the inverted type, which can be made flush with the ground when not in use, and shall conform to subsection (a) of this section.

(c) All permanent vases for city poor sections in all cemeteries are to be of the type which, when inverted, shall be, in their entirety, level with the ground. The position of the vase shall be as set out in subsection (a) of this section.

(d) All vases for Live Oak Lawn and the Subdivision of Blocks B and C, Live Oak Lawn, in Forest Lawn Cemetery, shall be of the ground level type, inverted when not in use. The position of the vase shall be as described in subsection (a) of this section. All vases not included in the monument or marker shall be enclosed in an apron of concrete or granite, so that the top of any part of the vase or casing does not extend above the surface of the apron.

(e) All vases installed in connection with any ground level type of monument or marker on any lawn are to be in accordance with those of Live Oak Lawn and the Subdivision of Blocks B and C, Live Oak Lawn.
(Code 1958, § 10.1-79)

Sec. 12-245. Reserved.

Editor's note—Section 4 of Ord. No. 37,630, adopted May 24, 1994, repealed § 12-245, which pertained to aprons for gravestones, markers, monuments and vases and derived from Code 1958, § 10.1-81.

Sec. 12-246. Mounds.

No grave shall have a mound more than three (3) inches above the ground level, after a reasonable time for settling of the dirt has elapsed. No mounds shall be permitted in the sections designated: Maple Lawn, Linden Lawn, Crape Myrtle Lawn, Cedar Lawn, Locust Lawn, Sections K and L, Tree of Life, Sections I and II, Grecian Gardens, Live Oak Lawn, Pine Gardens, Sections I and II, Ash Lawn and Grecian Gardens, Hellenic Section, in Forest Lawn Cemetery; in Elm Lawn, Ash Lawn, Turner Gardens, Section 23, and Oak Lawn in Calvary Cemetery; in Single Grave and Four-Grave Sections Additions to Blocks B, D, G, I, L, N, Q, S, V and X in Magnolia Cemetery; or in Sycamore Gardens and Subdivision of Blocks F, G and H, Sycamore Gardens, in West Point Cemetery. No mounds shall be permitted in any cemetery subdivision established subsequent to November 30, 1971.
(Code 1958, §§ 10.1-80, 10.1-92)

Sec. 12-247. Ornaments and decorations.

(a) No ornaments or decorations, other than cut flowers, small designs of artificial flowers, certain nonpermanent wreaths to celebrate certain seasons of the year and flags on decoration days and memorial days established by law shall be permitted in the cemeteries. These are to be removed and destroyed at the judgment and discretion of the superintendent.

(b) No other ornament or design shall be permitted, such as large artificial plants or trees, glass blocks containing flower designs and statues separate from monuments and markers.
(Code 1958, § 10.1-82)

Sec. 12-248. Planting shrubs, plants and trees.

(a) The director of facilities and enterprise management may grant to any person entitled to use a lot in Forest Lawn, Calvary, Calvary Cemetery Annex and any new sections in other cemeteries, such as Garden of Eternal Life, except that part as designated Live Oak Lawn and Subdivision of Blocks B and C, Live Oak Lawn, to plant and cultivate shrubs, plants and trees in such lot; provided, such person shall release the city of any obligation for the care and upkeep of such lot, which care and upkeep shall thereafter be at the cost and expense of such person. In the event such lot is not kept in good condition to the satisfaction of the director of facilities and enterprise management for any period of more than forty-five (45) consecutive days, the director of facilities and enterprise management shall remove such shrubs, plants and trees so planted and the care and upkeep of such lot shall thereafter be at the cost and expense of the city, as is now or may hereafter be provided by ordinance.

(b) Planting will not be permitted on less than a four-grave lot or on less than any whole lot.

(c) No planting on Pine Gardens, Sections I and II, shall be permitted in the front and rear of the lots, unless the same shall be done under the supervision of the cemetery management.

(d) There will be no planting on Live Oak Lawn and Subdivision of Blocks B and C, Live Oak Lawn, at Forest Lawn, except that done by the city for the maintenance and beautification of the lawn.
(Code 1958, § 10.1-83; Ord. No. 40,343, § 17, 6-5-01)

Cross reference—Trees and other vegetation, Ch. 45.

Sec. 12-249. Chairs and other seating accommodations.

(a) No chair or other seating accommodation may be placed in any cemetery lot, unless it is made of metal and is movable. Every such seating device shall be removed by the superintendent, whenever it shall become dilapidated or unsightly.

(b) No chairs or seating accommodations shall be permitted in that section of Forest Lawn Cemetery designated as Live Oak Lawn and Subdivision of Blocks B and C, Live Oak Lawn.
(Code 1958, § 10.1-84)

Secs. 12-250—12-265. Reserved.

ARTICLE IV. SERVICE CHARGES AND LOT OR GRAVE PRICES*

DIVISION 1. GENERALLY

Sec. 12-266. Charges for grave openings and closings—Mausoleum burials.

The charges for opening and closing graves for mausoleum burials in the city cemeteries shall be as follows:

(1) *Regular crypt—Public mausoleums.* Monday through Friday, 8:30 a.m. to 4:00 p.m.: The fee shall be one thousand dollars ($1,000.00).

(2) *Ash crypt—Public mausoleums.* Monday through Friday, 8:30 a.m. to 4:00 p.m.: The fee shall be eight hundred dollars ($800.00).

(3) *Servicing burial—Private mausoleums.* Monday through Friday, 8:30 a.m. to 4:00 p.m.: The fee shall be one thousand dollars ($1,000.00).

(4) *Regular crypt—Public mausoleums.* Saturday: The fee shall be one thousand two hundred dollars ($1,200.00).

(5) *Ash crypt—Public mausoleums.* Saturday: The fee shall be nine hundred dollars ($900.00).

(6) *Servicing burial—Private mausoleum.* Saturday: The fee shall be one thousand two hundred dollars ($1,200.00).

(7) *Regular crypt—Public mausoleums.* Sunday and holidays: The fee shall be one thousand three hundred dollars ($1,300.00).

(8) *Ash crypt—Public mausoleums.* Sunday and holidays: The fee shall be one thousand dollars ($1,000.00).

(9) *Servicing burials—Private mausoleum.* Sunday and holidays: The fee shall be one thousand three hundred dollars ($1,300.00).

(Ord. No. 43,848, § 1, 5-18-10; Ord. No. 45,955, § 16, 5-19-15, eff. 7-1-15; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-267. Same—Ground burials.

The charges for opening and closing graves for ground burials in the city cemeteries shall be as follows:

(1) *Adult grave.* Monday through Friday, 8:30 a.m. to 4:00 p.m.: The fee shall be one thousand three hundred dollars ($1,300.00)

(2) *Child under twelve (12) years.* Monday through Friday, 8:30 a.m. to 4:00 p.m.: The fee shall be five hundred dollars ($500.00). For a child twelve (12) years or over, adult prices shall be charged.

(3) *Ash opening.* Monday through Friday, 8:30 a.m. to 4:00 p.m.: The fee shall be eight hundred dollars ($800.00).

(4) *Adult grave.* Saturday: The fee shall be one thousand five hundred dollars ($1,500.00).

(5) *Child under twelve (12) years.* Saturday: The fee shall be six hundred dollars ($600.00).

*__Editor's note—__Ord. No. 43,848, §§ 1, 2, adopted May 18, 2010, amended art. IV in its entirety and enacted similar provisions as set out herein. The former art. IV derived from Code 1958, §§ 10.1-7.1, 10.1-9.1, 10.1-14, 10.1-18, 10.1-43, 10.1-51, 10.1-52; Ord. No. 30.637, § 1, adopted June 10, 1980; Ord. No. 34,509, § 1; adopted May 26, 1987; Ord. No. 34,517, § 1, adopted June 2, 1987; Ord. No. 34,990, § 3, adopted April 19, 1988; Ord. No. 35,052, § 1, adopted May 234, 1988; Ord. No. 35,162, § 2, adopted July 12, 1988; Ord. No. 36,029, § 1, adopted May 22, 1990; Ord. No. 36,083, § 1, adopted June 26, 1990; Ord. No. 36,333, § 1, adopted Feb. 12, 1991; Ord. No. 36,486, § 1, adopted June 25, 1991; Ord. No. 34,517, § 1, adopted June 2, 1987; Ord. No. 36,029, § 1, adopted May 22, 1990; Ord. No. 37,245, § 1, adopted May 18, 1993; Ord. No. 37,360, §§ 1, 2, adopted May 24, 1994; Ord. No. 37,900, § 2, adopted Feb. 21, 1995; Ord. No. 39,030, § 2, adopted Jan. 27, 1998; Ord. No. 39,591, §§ 1—9, adopted May 18, 1999; Ord. No. 40,315, §§ 1—7, adopted May 15, 2001; Ord. No. 40,343, § 18, adopted June 5, 2001; Ord. No. 41,047, § 11, adopted May 20, 2003; Ord. No. 41,333, § 2, adopted March 2, 2004; Ord. No. 41,408, § 10, adopted May 18, 2004; and Ord. No. 41,607, § 2, adopted Oct. 19, 2004.

(6) *Ash opening.* Saturday: The fee shall be nine hundred dollars ($900.00).

(7) *Adult grave.* Sunday and holidays: The fee shall be one thousand seven hundred dollars ($1,700.00).

(8) *Child under twelve (12) years.* Sunday and holidays: The fee shall be seven hundred dollars ($700.00).

(9) *Ash opening.* Sunday and holidays: The fee shall be one thousand dollars ($1,000.00).

(Ord. No. 43,848, § 1, 5-18-10; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-268. Charges for disinterments—Mausoleums.

The charges for mausoleum disinterments at city cemeteries shall be as follows:

(1) *Regular crypt*—Public mausoleum: $2,000.00.

(2) *Ash crypt*—Public mausoleum: $1,000.00.

(Ord. No. 43,848, § 1, 5-18-10; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-269. Same—Ground.

The charges for ground disinterments at city cemeteries shall be as follows:

(1) *Adult:* $2,000.00.

(2) *Child under twelve (12) years:* $1,000.00

For a child twelve (12) years or over adult prices shall be charged.

(3) *Ashes:* $900.00.

(Ord. No. 43,848, § 1, 5-18-10; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-270. Fee for transfer of lots or grave sites.

The cemetery superintendent shall charge and collect a fee of two hundred dollars ($200.00) for the transfer of ownership of any lot or grave site previously sold.

There shall be an additional fee of two hundred dollars ($200.00) per grave for the transfer of ownership of any grave sold prior to March 11, 1969, in Forest Lawn, Calvary, Elmwood, Cedar Grove, West Point, Hebrew, and Magnolia cemeteries for which there has been no previous endowed care fund contributions.

(Ord. No. 43,848, § 1, 5-18-10; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-271. Delayed payment for lots and services when funeral home acting as agent for buyer.

Whenever any funeral home licensed to do business in the state is the agent for the purchase of any cemetery lot or services, payment for the lot or services may be made within ninety (90) days of the date of purchase, provided that such funeral home provides the city a bond, with a corporate surety authorized to do business in the state, approved as to form by the city attorney, in such amount as may be determined by the city manager.

(Ord. No. 43,848, § 1, 5-18-10)

Sec. 12-272. Accounting for and disposition of money received for opening graves and other work.

All money received by the superintendent for opening graves or other work shall be for the use of the city, and shall be accounted for by him, and paid daily, unless otherwise authorized by the director of finance, to the treasurer, who shall receipt for the same, and a record thereof shall be kept by the superintendent.

(Ord. No. 43,848, § 1, 5-18-10)

Sec. 12-273. Adjustment of grievances as to prices.

All grievances as to prices between lot owners and others and the superintendent shall be referred to the director of facilities and enterprise management for adjustment.

(Ord. No. 43,848, § 1, 5-18-10)

Sec. 12-274. Charges for tents.

(1) One (1) tent shall be provided at no charge for committal services, subject to weather conditions.

(2) The charge for additional tents shall be seventy-five dollars ($75.00) per tent.

(Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18)

Sec. 12-275. Charges for installation of foundations.

The charge for the installation of a foundation for a gravestone, marker, monument or other such structure shall be one dollar and twenty-five cents ($1.25) per square inch of the base surface. There shall be a minimum charge of one hundred twenty-five dollars ($125.00) for the installation of upright markers supplied by the Veterans Administration. Payment shall be made upon application for a foundation.

(Ord. No. 43,848, § 1, 5-18-10; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-276. Charge for each additional interment.

The charge for each additional right of interment shall be seven hundred dollars ($700.00).

(Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Secs. 12-277—12-288. Reserved.

DIVISION 2. LOT OR GRAVE PRICES

Sec. 12-289. Reserved.

Sec. 12-290. Adult grave for child.

Any child requiring an adult grave shall be charged the price of an adult grave.

(Ord. No. 43,848, § 2, 5-18-10)

Sec. 12-290.1. Prices for adult graves in city cemeteries.

Except as otherwise provided, the price of adult graves in Calvary Cemetery, Hebrew Cemetery, and Riverside Memorial ark shall be one thousand five hundred dollars ($1,500.00) per single-grave lot, three thousand dollars ($3,000.00) per two-grave lot, for graves requiring flush, ground-level markers, and one thousand seven hundred dollars ($1,700.00) per single-grave lot, three thousand four hundred dollars ($3,400.00) per two-grave lot, for graves permitting upright markers. Except as otherwise provided, the price for adult graves in Forest Lawn Cemetery shall be one thousand seven hundred dollars ($1,700.00) per single-grave lot, three thousand four hundred dollars ($3,400.00) per two-grave lot, for graves requiring flush, ground-level markers, and two thousand four hundred dollars ($2,400.00) per single-grave lot, four thousand eight hundred dollars ($4,800.00) per two-grave lot, for graves permitting upright markers.

(Ord. No. 43,848, § 2, 5-18-10; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-290.2. Price for child's grave in city cemeteries.

Except as otherwise provided, the price of a grave for a child in Cedar Grove Cemetery, Elmwood Cemetery, Forest Lawn Cemetery, Calvary Cemetery, Magnolia Cemetery, West Point Cemetery and Riverside Memorial Park shall be five hundred dollars ($500.00).

(Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-290.3. Special prices—Forest Lawn Cemetery.

Notwithstanding the provisions of Section 12-290.1, the following prices shall be charged for lots and graves in Forest Lawn Cemetery:

(1) Lots 1 through 40 Pine Gardens III; lots 344 through 369 Fir III; lot 458, lots 467 through 483, lots 505 and 506, and lots 529 through 571 Center Park North: One thousand five hundred dollars ($1,500.00) per grave.

(2) Lots 1 through 58 David's Garden III; lots 393 through 410 in Block B and lots 397 through 414 in Block C of Tree of Live IV; lots 427 through 437 Pine Gardens III; lots 713 through 720 Fir Lawn II:

Two thousand four hundred dollars ($2,400.00) per single-grave lot, four thousand eight hundred dollars ($4,800.00) per double-grave lot and nine thousand six hundred dollars ($9,600.00) per quadruple-grave lot.

(3) Lots 331 through 382 Fir II; lots 41 through 80 Pine Gardens III; lots 450 through 457, lots 459 through 466, lots 484 through 504 and lots 507 through 528 Center Park North: Two thousand dollars ($2,000.00) per single-grave lot and four thousand dollars ($4,000.00) per double-grave lot.

(4) Mausoleum sites: Twenty dollars ($20.00) per square foot.

(5) Ash niches—Holly Circle: Two thousand four hundred dollars ($2,400.00) per niche.

(6) Ash niches—Pine Circle: Two thousand six hundred dollars ($2,600.00) per lot.

(7) Lots 1 through 13, 15, 16, 18 through 24, 26, 27, 30 through 32, 43, 44, 47 through 50, 52 through 56 and 259 through 286 in Block A; Lots 355 through 386 in Block B; Lots 1 through 3, 6 through 9, 11 through 18, 21 through 24, 26 through 30, 33 through 38, 41 through 45, 48 through 52, 54 through 59, 426, 442, 467 through 507 in Block C; and Lots 1 through 25, 48 through 65, 66 through 85, 189, 190, 221, 222, 337, 338, 369, 370 and 474 through 484 in Block D Northwest Lawn, which will be two thousand six hundred dollars ($2,600.00) per grave.

(8) Casket spaces: Community mausoleum—Level G: Three thousand four hundred dollars ($3,400.00) for a single casket space, five thousand dollars ($5,000.00) for a tandem casket space;

Level F: Three thousand eight hundred dollars ($3,800.00) for a single casket space, six thousand dollars ($6,000.00) for a tandem casket space;

Level E: Four thousand two hundred dollars ($4,200.00) for a single casket space, six thousand eight hundred dollars ($6,800.00) for a tandem casket space;

Level D: Four thousand seven hundred dollars ($4,700.00) for a single casket space, seven thousand four hundred dollars ($7,400.00) for a tandem casket space;

Level C: Four thousand eight hundred dollars ($4,800.00) for a single casket space, eight thousand one hundred dollars ($8,100.00) for a tandem casket space;

Level B: Five thousand dollars ($5,000.00) for a single casket space, eight thousand six hundred dollars ($8,600.00) for a tandem casket space;

Level A: Four thousand seven hundred dollars ($4,700.00) for a single casket space, eight thousand one hundred dollars ($8,100.00) for a tandem casket space.

(9) Ash niches: Community mausoleum—Levels J through L: One thousand two hundred dollars ($1,200.00) per niche;

Levels G through I: One thousand six hundred dollars ($1,600.00) per niche;

Levels C through F: Two thousand hundred dollars ($2,000.00) per niche;

Levels A through B: One thousand six hundred dollars ($1,600.00) per niche.

(Ord. No. 43,848, § 2, 5-18-10; Ord. No. 45,955, § 17, 5-19-15, eff. 7-1-15; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 15, 6-13-23, eff. 7-1-23)

Sec. 12-290.4. Special prices—Magnolia Cemetery.

Notwithstanding the provisions of section 12-290.1, the following price shall be charged for lots and graves in Magnolia Cemetery: one thousand four hundred dollars ($1,400.00) per grave.

(Ord. No. 43,848, § 2, 5-18-10; Ord. No. 47,229, § 17, 5-22-18, eff. 7-1-18)

Sec. 12-290.5. Special prices—Cavalry Cemetery Annex.

The following prices shall be charged for casket spaces and ash niche spaces in Buildings A, B, and C in the mausoleum site between Block 19 and Block 21 in Cavalry Cemetery Annex:

(1) *Single casket spaces:*

Level F: Three thousand eight hundred dollars ($3,800.00);

Level E: Four thousand two hundred dollars ($4,200.00);

Level D: Four thousand seven hundred dollars ($4,700.00);

Level C: Four thousand eight hundred dollars ($4,800.00);

Level B: Five thousand dollars ($5,000.00);

Level A: Four thousand seven hundred dollars ($,4,700.00).

(2) *Ash niche spaces:*

Level J: One thousand two hundred dollars ($1,200.00) per niche;

Level I: One thousand six hundred dollars ($1,600.00) per niche;

Level H: One thousand six hundred dollars ($1,600.00) per niche;

Level G: One thousand six hundred dollars ($1,600.00) per niche;

Level F: Two thousand dollars ($2,000.00) per niche;

Level E: Two thousand dollars ($2,000.00) per niche;

Level D: Two thousand dollars ($2,000.00) per niche;

Level C: Two thousand dollars ($2,000.00) per niche;

Level B: One thousand six hundred dollars ($1,600.00) per niche;

Level A: One thousand six hundred dollars ($1,600.00) per niche.

(Ord. No. 49,630, § 1, 6-11-24)

Secs. 12-291—12-300. Reserved.

Editor's note—Ord. No. 34,517, § 2, adopted June 2, 1987, effective July 1, 1987, repealed §§ 12-291—12-300, pertaining to lot or grave prices in Elmwood Cemetery, Cedar Grove Cemetery, Forest Lawn Cemetery, Calvary Cemetery, Calvary Annex Cemetery, Hebrew Cemetery, Magnolia Cemetery, West Point Cemetery, and Riverside Memorial Park, as derived from Code 1958, §§ 10.1-44—10.1-47, 10.1-47.1, 10.1-48—10.1-50, 10.1-50.1—10.1-50.4; Ord. No. 29,884, § 2, adopted 4-10-79; Ord. No. 30,149, § 2, adopted 10-9-79; Ord. No. 30,330, § 2, adopted 3-18-80; Ord. No. 30,637, §§ 1—3, adopted 6-10-80; Ord. No. 31,166, § 2, adopted 5-26-81; Ord. No. 32,554, § 2, adopted 9-27-83; Ord. No. 32,579, §§ 1, 2, adopted 10-11-83; Ord. No. 33,099, § 1, adopted 9-18-84; Ord. No. 33,649, § 4, adopted 9-10-85; Ord. No. 34,174, § 2, adopted 10-14-86.

Secs. 12-301—12-315. Reserved.

ARTICLE V. ENDOWED CARE

DIVISION 1. GENERALLY

Secs. 12-316—12-326. Reserved.

DIVISION 2. LOTS SOLD PRIOR TO MARCH 11, 1969, IN CEDAR GROVE, ELMWOOD, HEBREW AND WEST POINT CEMETERIES

Sec. 12-327. Amount to be paid city.

(a) The amount to be paid into the city treasury to provide endowed care of any lot, plat or grave sold prior to March 11, 1969, in Elmwood, Cedar Grove and West Point Cemeteries shall be as follows:

(1) For any area between sixty (60) and three hundred (300) square feet, one dollar and twenty-five cents ($1.25) per square foot.

(2) For any area in excess of three hundred (300) square feet, three hundred seventy-five dollars ($375.00), plus one dollar ($1.00) per square foot in excess of three hundred (300) square feet.

(b) The amount to be paid into the city treasury to provide endowed care of any lot, plot or grave sold prior to March 11, 1969, in the Hebrew Cemetery shall be as follows:

(1) One grave (one in which a child under thirteen (13) years of age is buried), forty-five dollars ($45.00).

(2) One adult grave, seventy-five dollars ($75.00).

(3) Two (2) adult graves registered in the name of the same person, one hundred thirty dollars ($130.00).

(4) For each grave in excess of two (2) registered in the name of the same person, forty-five dollars ($45.00).

(c) Nothing contained in this section shall alter or impair any contract for endowed care any person had with the city on September 28, 1976.
(Code 1958, §§ 10.1-36, 10.1-38)

Sec. 12-328. Duty of treasurer; receipts for amount paid.

It shall be the duty of the city treasurer to receive all monies tendered in accordance with section 12-327 and to issue proper receipts therefor, and to notify the superintendent of cemeteries of the date and amount of every such collection and the lot, plot or grave on account of which the same was made. Every such receipt shall contain a stipulation on the part of the city to the effect that, in consideration of and during the use of any enjoyment by the city of the monies so paid, the lot, plot or grave referred to in such receipt shall be cared for as provided by city ordinance, at the sole expense of the city.
(Code 1958, § 10.1-37)

Sec. 12-329. Devotion of percentage paid to care; what care consists of.

Whenever any person makes payment to the city treasurer pursuant to section 12-328, it shall be the duty of the superintendent of cemeteries to devote to the care of such lots, plots or graves, as the case may be, an average sum of money to equal four (4) percent of the amount so paid. The care so provided shall, insofar as is practicable, consist of cutting the grass on the average of once in each fifteen (15) days between April fifteenth and October twentieth in each year and renewing the grass as often as necessary, and of doing all necessary pruning of the vines and shrubbery, and of keeping the gravestones upright.
(Code 1958, § 10.1-36)

Sec. 12-330. Investment of money received.

It shall be the duty of the city treasurer to invest all money received by him under the provisions of this division, as soon as practicable, in securities approved by the board of trustees of the employees' retirement system. Such securities shall be of the same type as approved for investment of the retirement system funds. The city treasurer shall collect all income accruing on all such investments and treat such collections as if the same were appropriated by ordinance for the care of the cemetery lots. Any money so collected on account of any lot, plot or grave and remaining unexpended at the end of the fiscal year continue to be available for the care of such lot, plot or grave, notwithstanding the close of each year.
(Code 1958, § 10.1-39)

Cross reference—Investment of retirement system funds, § 37-111 et seq.

Sec. 12-331. Records to be kept.

It shall be the duty of the superintendent of cemeteries to keep in his office, in a well-bound box, used exclusively for such purpose, a record showing all money paid to him by the city treasurer under the provisions of this division, the date of every such payment, and the lot, plot or grave on account of which every such payment was made, and showing also the date and amount of all expenditures made by him on account of every such lot, plot or grave.
(Code 1958, § 10.1-40)

Secs. 12-332—12-342. Reserved.

DIVISION 3. FOREST LAWN, CALVARY, CEDAR GROVE, ELMWOOD, WEST POINT, MAGNOLIA AND HEBREW CEMETERIES ON AND AFTER MARCH 11, 1969 AND RIVERSIDE MEMORIAL PARK AFTER JANUARY 20, 1971

Sec. 12-343. What care consists of.

Endowed care for Forest Lawn, Calvary, Cedar Grove, Elmwood, West Point, Magnolia and Hebrew Cemeteries on and after March 11, 1969,

and Riverside Memorial Park after January 20, 1971, shall provide for the following: Cutting the grass on the average of every fifteen (15) days from April fifteenth through October twentieth of each year, when such cutting is necessary; trimming around monuments, markers and vases as often as funds and labor conditions permit; and filling of graves where needed and seeding of bare spots of ground within the lot. No planting shall be permitted except under provisions of sections 12-16 and 12-248.
(Code 1958, § 10.1-41)

Sec. 12-344. Allocation of portion of sale price for endowed care fund.

It shall be the duty of the superintendent of cemeteries to show, on the receipt given to the purchaser of cemetery property mentioned in section 12-343, that thirty (30) percent of the sale price is to be put in an endowed care fund. It shall be the duty of the city treasurer, in cooperation with the city auditor, to set aside thirty (30) percent of the sale price of all such property to provide for an endowed care fund.
(Code 1958, § 10.1-42)

Sec. 12-345. Investment of funds.

It shall be the duty of the city treasurer to invest the funds referred to in section 12-344, as soon as practicable, in securities approved by the board of trustees of the employees' retirement system. Such securities shall be of the same type as approved for investment of the retirement system funds. The city treasurer shall collect all income accruing on all such investments and treat such collections as if the same were appropriated by ordinance for the care of cemetery lots. Any money so collected from the investments and remaining unexpended at the end of the fiscal year shall continue to be available for endowed care of the cemeteries, notwithstanding the close of each year.
(Code 1958, § 10.1-42)

Cross reference—Investment of retirement system funds, § 37-111 et seq.

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Chapter 13

CULTURAL FACILITIES, ARTS AND ENTERTAINMENT*

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§ 13-48. Authority of director to enter into rental agreements.
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***Editor's note—**Ord. No. 48,503, § 3, adopted Sept. 14, 2021, amended the title of Ch. 13 to read as herein set out. The former Ch. 13 was titled "Civic Facilities."

Cross references—Municipal off-street parking facilities, § 25-376 et seq.; scalping tickets to public events, § 29-35.

§ 13-51. Lessee waives claims against city and indemnifies city; arrangements for protection of city.
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§ 13-54. Lessee bound by director's decisions as to matters not covered by chapter.
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ARTICLE I. IN GENERAL*

Sec. 13-1. Department created.

An administrative department is hereby created to be known as the department of cultural facilities, arts, and entertainment.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-2. Director and staff members to be bonded.

The director and each member of the departmental staff involved in the handling of money shall be bonded in the amount of one hundred thousand dollars ($100,000.00) by a bonding company licensed to do business in Virginia.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-3. General powers and duties of director and assistant director.

Subject to the supervision and control of the city manager in all matters, the director shall be charged with the administration of the affairs of the department. The director shall have full responsibility for the operation, management and promotion of Scope Arena, Chrysler Hall, the Attucks Theatre, Town Point Park, Ocean View Park and Harbor Park. The director shall also have responsibility for the physical maintenance of the Wells Theatre, the Monroe Building and Harrison Opera House, as well as for the promotion of events and performances in the theatres, for the use of Harrison Opera House and the Wells Theatre for such events and performances, and for the collection of license fees for such uses. The director or assistant director of the department is authorized to enter into permits or agreements for events which, in the director's or assistant director's opinion, are in the best interest of the city, with groups, individuals and firms for the use of city facilities. The director shall be responsible for the supervision of the MacArthur Memorial Bureau and for the performance of such other duties as may be prescribed by the city manager.
(Ord. No. 48,503, § 3, 9-14-21)

*__Editor's note—__Ord. No. 48,503, § 3, adopted Sept. 14, 2021, amended Art. I in its entirety to read as herein set out. Former Art. I, §§ 13-1—13-8, pertained to similar subject matter, and derived from Code 1958, § 2-86—2-89, 12.3-1, 12.3-30, 12.3-34; Ord. No. 29,814, §§ 1, 2, adopted Feb. 13, 1979; Ord. No. 31,289, § 1, adopted July 28, 1981; Ord. No. 31,605, § 1, adopted March 16, 1982; Ord. No. 32,949, §§ 1, 2, adopted June 19, 1984; Ord. No. 34,279, § 1, adopted Dec. 23, 1986; Ord. No. 35,252, adopted Sept. 27, 1988; Ord. No. 35,754, adopted Oct. 10, 1989; Ord. No. 36,308, § 1, adopted Jan. 8, 1991; Ord. No. 36,346, adopted Feb. 19, 1991; Ord. No. 37,258, § 1, adopted May 18, 1993; Ord. No. 39,590, § 1, adopted May 18, 1999.

Sec. 13-4. Authority of director to promote and to enter into co-promotion agreements.

The director and assistant director are authorized to enter into agreements with groups, individuals and entities whereby the city shares the cost of promotion ("co-promotion agreements") to bring to the city a broad range of activities and entertainment of unproven commercial value, or initiate new programs of a special cultural or educational nature, or encourage multiple-period, multiple-day or multiple-event use of the facilities or maximize utilization of the facilities through arrangements which are competitive with those available from other facilities.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-5. Authority of director as to ticketing service agreements with other political subdivisions, ticketing outlets and purchase of tickets by credit card.

The director and assistant director are authorized to enter into agreements with other political subdivisions of the commonwealth to provide ticketing services for events sponsored by or held at facilities owned or operated by the political subdivision requesting ticketing services. All such agreements shall be in writing on forms approved by the city attorney. The director and assistant director are further authorized to enter into agreements for the placement of ticketing outlets and to allow purchase of tickets by credit card.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-6. MacArthur Memorial Bureau.

There is hereby created in the department the MacArthur Memorial Bureau. The superintendent of the bureau shall be the administrator of the MacArthur Memorial. Under the supervision of the director of the department, the administrator shall be responsible for the maintenance and operation of the MacArthur Memorial and shall perform such other duties as may be prescribed by the director of the department.
(Ord. No. 48,503, § 3, 9-14-21)

ARTICLE II. USE OF FACILITIES, USE REGULATIONS*

Sec. 13-7. Definitions.

As used in this article, the term "gross receipts" shall mean the total income from ticket sales after deduction of all applicable taxes and the term "licensee" shall mean a person or entity with a permit or agreement for the use of any facility included in this chapter.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-8. Form, approval and execution of agreements/permits.

All agreements and permits for any facility governed by this chapter shall be in writing on forms approved by the city attorney and executed on behalf of the city by the director, assistant director or bureau manager of the department at the discretion of the director.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-9. Fees for agreements.

Fees in agreements for use of city facilities will be negotiated based on comparable market rates and best practices of the industry.
(Ord. No. 48,503, § 3, 9-14-21)

*__Editor's note—__Ord. No. 48,503, § 3, adopted Sept. 14, 2021, amended Art. II in its entirety to read as herein set out. Former Art. II, §§ 13-25—13-30, pertained to civic facilities commission, and derived from Code 1958, § 12.3-35; Ord. No. 32,949, §§ 3, 4, adopted June 19, 1984; Ord. No. 40,981, § 1, adopted March 11, 2003.

Sec. 13-10. Right of department to deny use.

The departmental staff may deny the use of any facility if, in their professional opinion, such use request is not in the best interest of the city.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-11. Information to be furnished by licensee.

The licensee shall furnish before the performance, as required by any agreement or permit, any information requested by the department, to determine facilities, arrangements and any special services and equipment necessary for the staging and proper management of any event scheduled.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-12. Licensee waives claims against city and indemnifies city; arrangements for protection of city.

(a) A licensee, by entering into the agreement, shall indemnify, save and hold harmless the city and its agents and employees from any claim for any damages to the premises, fittings, equipment and furnishings of the facilities, during the time the premises are used or occupied under such agreement, and against claims of any and all persons for injury to persons or damage to property occasioned by the negligence of the lessee in connection with the use of the premises by the licensee.

(b) Licensees may be required to make suitable arrangements with the director or assistant director for the protection of the city.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-13. Director's discretion on matters not covered by this chapter.

As to matters not expressly provided for in this chapter, the director or assistant director shall have discretion to enter into special agree-

ments and use arrangements or modify the rules and regulations, as deemed to be in the best interest of the city.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-14. Licensee to comply with laws, ordinances, rules and regulations.

All licensees of the facilities shall comply with all laws of the United States and the state, and with all ordinances of the city, including any rules and regulations for the facilities. Violations by the licensee may result in cancellation of the agreement or permit and discontinuance of use of the facilities unless satisfactory compliance is assured.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-15. Licensee to obtain all required permits, licenses and permit inspections.

A licensee has the responsibility to obtain any additional permits and licenses required by state law or city ordinances and shall permit inspection by appropriate departments of the city.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-16. Licensee to employ required security and safety personnel.

The licensee shall employ, at its expense, such security and safety personnel as required and approved by the director or assistant director.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-17. Licensee's responsibility as to copyright infringement.

A licensee must accept all responsibility for and absolve the city from any liability or expense arising out of the use of any composition, work or material covered by copyright.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-18. Use period.

The use period for all events shall be governed by the agreement, but in no event shall be later than midnight.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-19. Certain space may be provided at no charge.

The director or assistant director may provide office, and meeting space as they deem advisable to accommodate conventions and other licensees use of major areas of any facility, at no charge.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-20. Overnight equipment storage.

At the discretion of the director or assistant director, the licensee may be authorized to store equipment at no additional charge, at licensee's sole risk, immediately preceding or following a licensed use.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-21. Catering and concessions; radio and television rights.

The city reserves and retains unto itself the sole right to conduct or control, either directly or through separate licensees, all concessions and catering, including, but not limited to food, beverages, programs, novelties, souvenirs, records, books and pictures and parking for motor vehicles, and all radio and television rights. The sale or dispensing of any item must have prior approval.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-22. Ticketing procedures and settlement; charge for box office service.

All admissions tickets shall be issued from the ticketing system employed by the facility, unless otherwise agreed. All tickets and money received therefrom shall at all times be under the charge and control of the director or his/her designee. The director shall, at the satisfactory termination of the event, make all necessary payments to the licensee of money received from the sale of tickets, less expenses incurred therefor and less any other expenses incurred as a result of the licensee's use of the facility. The director or assistant director may, waive the requirements of this section by prior written agreement.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-23. Responsibility for damages; restrictions on use of decorative or flammable materials.

(a) The licensee shall be responsible for any and all damage to the building, furnishings, fixtures or equipment resulting from their use of the facilities, ordinary wear and tear excepted.

(b) No decorative or other materials shall be attached to any part of the building so as to damage the building. Written approval of the director or his/her designee must be obtained prior to the use of any flammable materials.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-24. General requirements for advertisements of events.

The licensee shall not advertise any performance or the appearance of any performer, unless and until contracts/permits between all parties involved have been properly executed and provided to the director or assistant director prior to the execution of the agreement or permit, unless otherwise agreed upon.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-25. Distribution of advertising matter or programs.

A licensee shall not distribute or circulate, or permit to be circulated, any advertising matter or programs at the entrance to or on any part of the premises that does not pertain completely to the immediate attraction. Such material must have prior approval of the department and at no time shall any such advertising matter or programs be distributed or circulated on parking facilities or sidewalks adjacent to the facilities.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-26. Solicitations.

No collections or donations, whether for charity or otherwise, shall be made, attempted or announced on the premises of any facility without prior written approval of the department.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-27. Overcrowding.

Persons will not be permitted inside any facility beyond the established capacity.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-28. Required use of designated entrances and exits.

All persons shall enter and leave a facility building, and articles, exhibits, fixtures, displays and other equipment shall be brought into and out of the building, only at designated entrances and exits.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-29. Objectionable activities or persons.

Any use of the facilities which is contrary to public policy or not in the best interest of the city shall be denied and any agreement previously granted may be revoked for such cause and any and all sums paid refunded. Any performer or any other person whose conduct is objectionable, disorderly or disruptive to facility use shall be refused entrance or shall be ejected from the premises. The licensee shall hold the city harmless from any claim for such action.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-30. Liability for licensee's property.

The city, its officials, agents or employees, shall not be liable for any loss, damage or injury to properties of any kind that are shipped or otherwise delivered to or stored in or on the premises of the facilities. Properties shall not be received, until the licensee has made proper arrangements for receiving, handling and storage of such material.
(Ord. No. 48,503, § 3, 9-14-21)

Sec. 13-31. Property abandoned by licensee.

Any equipment or effects of the licensee remaining on the licensed premises for more than ten (10) days after the expiration of the license shall

be deemed abandoned and disposed of by the director or assistant director as they deem advisable.
(Ord. No. 48,503, § 3, 9-14-21)

Secs. 13-32—13-46. Reserved.

ARTICLE III. RENTAL OF FACILITIES; USE REGULATIONS*

Sec. 13-47. Definitions.

As used in this article, the term "gross receipts" shall mean the total income from ticket sales after deduction of all applicable taxes and the term "lessee" shall mean a lessee of any facility subject to the provisions of this article.
(Code 1958, 12.3-3; Ord. No. 31,605, 1, 3-16-82)

Sec. 13-48. Authority of director to enter into rental agreements.

The director is authorized to enter into agreements with groups, individuals and firms for the use of any of the facilities which, in the director's opinion, are in the best interest of the city.
(Code 1958, § 12.3-1)

Sec. 13-49. Right of director to deny rental.

The director may deny rental of any facility if, in his professional opinion, there would be an excessive or unfair degree of competition as a result of bookings of a similar nature in the same promotional period of time, or if such rental request is not in the best interests of the city.
(Code 1958, § 12.3-29)

Sec. 13-50. Form, approval and execution of lease.

All leases for any facility governed by this chapter shall be in writing on forms approved by the city attorney, furnished by the city and executed for and on behalf of the city by the director.
(Code 1958, § 12.3-6)

*__Cross references—__Leases or permits to facilitate operation of city's ticketing services for public assembly facilities, § 2-15; rental charges for municipal auditorium, § 30-179.

Sec. 13-51. Lessee waives claims against city and indemnifies city; arrangements for protection of city.

(a) A lessee, by entering into the lease agreement, shall thereby waive any claim against and shall indemnify, save and hold harmless the city and its agents and employees for any damages to the premises, fittings, equipment and furnishings of the facilities, during the time the premises are used or occupied under such agreement, and against claims of any and all persons for injury to persons or damage to property occasioned by the negligence of the lessee in connection with the use of the premises by the lessee.

(b) Lessees may be required to make suitable arrangements with the director for the protection of the city.
(Code 1958, §§ 12.3-6, 12.3-8)

Sec. 13-52. Information to be furnished by lessee.

The lessee shall furnish, in writing, not less than ten (10) days before the performance, any information requested by the director to determine facilities, arrangements and any special services and equipment necessary to the staging and proper management of any event scheduled. In case of an exhibit presentation, drawings shall be furnished as to the exact location of all booths and equipment, indicating utility connections and requirements, which drawings must have the written approval of the director prior to the presentation.
(Code 1958, § 12.3-6)

Sec. 13-53. Insurance provisions.

No use of the facilities may be made which will violate the terms of any insurance policy upon the premises or upon the building or contents thereof. The director may require in the lease agreement that the lessee provide additional property damage or bodily injury liability insurance if the nature of the event is not included in or will increase the cost of the liability coverage maintained by the city. The city shall not be liable or responsible for any loss or damage to machinery, equipment, paraphernalia, costumes,

clothing, scenery, exhibit materials, musical instruments or cases, or any other property of the lessee caused by theft, fire, riot, war, civil disturbance, weather and conditions arising therefrom, existence of any emergency, acts of God, or any other cause of whatever nature or kind. If, in the judgment of the city, any such cause shall require a delay or cancellation of one or more of the performances of an event, the remaining performances shall be presented and the terms and conditions of the city's lease agreement, except as to the number of performances and the rental fee shall be in full force and effect. If, in the judgment of the city, and such cause shall render the fulfillment of the entire lease agreement impossible or impractical, the lease agreement shall be terminated and the lease expressly waives and releases any and all claims for damages, compensation or profit on account of such termination. The city shall give notice of such termination to the lessee, or his agent, in a manner which the city deems appropriate under the particular circumstances, and such notice shall be sufficient to effect the termination of the lease agreement.
(Code 1958, 12.3-9; Ord. No. 31,605, 1, 3-16-82)

Sec. 13-54. Lessee bound by director's decisions as to matters not covered by chapter.

Any matters, rules or regulations, or special rental and use arrangements, not expressly provided for in this chapter shall be decided by the director, whose decision shall be binding upon the lessee.
(Code 1958, § 12.3-33)

Sec. 13-55. Lessee to comply with laws, ordinances, etc.

All lessees of the facilities shall comply with all laws of the United States and the state, and with all ordinances of the city, including any rules and regulations for the facilities. Violations by the lessee may result in cancellation of the lease and discontinuance of use of the facilities unless satisfactory compliance is assured.
(Code 1958, § 12.3-27)

Sec. 13-56. Lessee to obtain required permits and licenses and permit inspections.

A lessee has the responsibility to obtain any additional permits and licenses required by city ordinances, and shall permit inspection by appropriate departments of the city.
(Code 1958, § 12.3-25)

Sec. 13-57. Lessee to employ required security and safety personnel.

The lessee shall employ, at his expense, such security and safety personnel as are required and approved by the director.
(Code 1958, § 12.3-26)

Sec. 13-58. Lessee's responsibility as to copyright infringement.

A lessee must accept all responsibility for and absolve the city from any liability or expense arising out of the use of any composition, work or material covered by copyright.
(Code 1958, § 12.3-31)

Sec. 13-59. Rental periods for determining charges.

The charges for the use of the facilities shall be determined "on a daily basis" which shall be designated 7:30 a.m. to midnight; and an hourly overtime rental rate for use which shall apply before or beyond the contracted period.
(Code 1958, § 12.3-3; Ord. No. 31,289, § 1, 7-28-81; Ord. No. 31,605, § 1, 3-16-82; Ord. No. 37,258, § 1, 5-18-93)

Sec. 13-60. Rental rates prescribed—SCOPE Arena.

(a) *Generally.* For rental of the SCOPE Arena, the lessee shall pay one of the rates set out in this section.

(b) *Ticketed events.* The rental rate for ticketed events (events subject to the city admissions tax) shall be nine (9) percent of the gross receipts, excluding taxes, but not less than five thousand dollars ($5,000.00) except for copromotion agreements under section 13-6.

(c) *Nonticketed events.* The rental rate for nonticketed events shall be five thousand dollars ($5,000.00) per day.

(d) *Conventions.* The rental rate for conventions shall be two thousand five hundred dollars ($2,500.00) per day.

(e) *Overtime rates.* Hourly overtime rates for use which extends beyond the contract period shall be one thousand dollars ($1,000.00) per hour.

(Code 1958, § 12.3-3; Ord. No. 31,289, § 1, 7-28-81; Ord. No. 31,605, § 1, 3-16-82; Ord. No. 37,258, § 1, 5-18-93; Ord. No. 41,408, § 11, 5-18-04)

Cross reference—Admissions tax, § 24-288 et seq.

Sec. 13-61. Same—Chrysler Hall.

(a) *Generally.* For rental of Chrysler Hall, the lessee shall pay one of the rates set out in this section.

(b) *Ticketed events.* The rental rate for ticketed events (events subject to the city admissions tax) shall be two thousand five hundred dollars ($2,500.00) or nine (9) percent of the gross receipts, excluding taxes, whichever is greater.

(c) *Nonticketed events.* The rental rate for nonticketed events shall be two thousand five hundred dollars ($2,500.00) per day.

(d) *Conventions.* The rental rate for conventions shall be one thousand two hundred fifty dollars ($1,250.00) per day.

(e) *Overtime rates.* Hourly overtime rates for use which extends beyond the contracted period shall be five hundred dollars ($500.00) per hour.

(f) *Lower lobby use.* The lower lobby use rate shall be five hundred dollars ($500.00) per use.

(g) *Dress circle use.* The dress circle use rate shall be one thousand dollars ($1,000.00) per use.

(Code 1958, § 12.3-3; Ord. No. 31,289, § 1, 7-28-81; Ord. No. 31,605, § 1, 3-16-82; Ord. No. 37,258, § 1, 5-18-93; Ord. No. 41,408, § 11, 5-18-04)

Cross reference—Admissions tax, § 24-288 et seq.

Sec. 13-62. Same—Little Hall.

The rental rate for all events in Little Hall, except rehearsals, shall be two hundred dollars ($200.00) per day or nine (9) percent of gross receipts, excluding taxes, whichever is greater. The rental rate for rehearsals shall be one hundred dollars ($100.00) per day.

(Code 1958, § 12.3-3; Ord. No. 31,289, § 1, 7-28-81; Ord. No. 31,605, § 1, 3-16-82; Ord. No. 41,408, § 11, 5-18-04)

Sec. 13-63. Same—Exhibition hall and meeting rooms.

(a) *Daily rate for exhibit hall and areas.* The daily rental rate for the exhibit hall and exhibit areas shall be as follows:

(1) *Exhibit hall, including exhibition hall lobby.* Two thousand five hundred dollars ($2,500.00). If ticketed event, two thousand five hundred ($2,500.00) vs. nine (9) percent of gross receipts, excluding taxes, whichever is greater.

(2) *Exhibit area "A".* Six hundred dollars ($600.00).

(3) *Exhibit area "B".* Six hundred dollars ($600.00).

(4) *Exhibit area "C".* Eight hundred dollars ($800.00).

(5) *Exhibit area "D".* One thousand dollars ($1,000.00).

(6) *Exhibition hall lobby.* Two hundred fifty dollars ($250.00).

(b) *Daily rate for meeting rooms.* The daily rental rate for meeting rooms shall be as follows:

(1) *M-1.* One hundred fifty dollars ($150.00).

(2) *M-2.* Two hundred dollars ($200.00).

(3) *M-3.* Two hundred fifty dollars ($250.00).

(4) *M-4.* Three hundred dollars ($300.00).

(5) *All meeting rooms.* Six hundred dollars ($600.00)/per event day.

(Code 1958, § 12.3-3; Ord. No. 31,289, § 1, 7-28-81; Ord. No. 31,605, § 1, 3-16-82; Ord. No. 37,258, § 1, 5-18-93; Ord. No. 41,408, § 11, 5-18-04)

Sec. 13-64. Same—Harrison Opera House.

(a) *Generally.* For rental of Harrison Opera House, the lessee shall pay one of the rates set out in this section.

(b) *Ticketed events.* The rental rate for ticketed events (events subject to the city admissions tax) shall be one thousand five hundred dollars ($1,500.00) or nine (9) percent of the gross receipts, excluding taxes, whichever is greater.

(c) *Nonticketed events.* The rental rate for nonticketed events shall be one thousand five hundred dollars ($1,500.00) per day.

(d) *Overtime rates.* Hourly overtime rates for use which extends beyond the contracted period shall be three hundred dollars ($300.00) per hour.

(e) *Lower lobby use.* The lower lobby use rate shall be seven hundred fifty dollars ($750.00) per day.

(f) *Upper lobby use.* The upper lobby use rate shall be one thousand dollars ($1,000.00) per day.

(Ord. No. 37,258, § 3, 5-18-93; Ord. No. 41,408, § 11, 5-18-04)

Cross reference—Admissions tax, § 24-288 et seq.

Sec. 13-64.1. Same—Wells Theatre.

(a) *Generally.* For rental of the Wells Theatre, the lessee shall pay one of the rates set out in this section.

(b) *Ticketed events.* The rental rate for ticketed events (events subject to the city admissions tax) shall be six hundred fifty dollars ($650.00) or nine (9) percent of the gross receipts, excluding taxes, whichever is greater.

(c) *Nonticketed events.* The rental rate for nonticketed events shall be six hundred fifty dollars ($650.00) per day.

(d) *Overtime rates.* Hourly overtime rates for use which extends beyond the contracted period shall be one hundred thirty dollars ($130.00) per hour.

(e) *Lobby use.* The lobby use rate shall be two hundred dollars ($200.00) per use.

(Ord. No. 37,258, § 3, 5-18-93; Ord. No. 41,408, § 11, 5-18-04)

Sec. 13-65. Metropolitan Memorial Park, also known as "Metro Baseball Park."

(a) *High school sports.* For high school sports, for each event, three hundred dollars ($300.00) or ten (10) percent of gross receipts from all activities, excluding city admissions taxes, whichever is greater.

(b) *Other uses.* For all other uses, five hundred dollars ($500.00) for each rental period or ten (10) percent of gross receipts, excluding city admissions tax, whichever is greater.

(c) *Parking lot.* The entire parking lot is not to be rented. The reserved section adjacent to the Metro Baseball Park and adequate space for public parking for scheduled events shall always be excluded. The rentable portions shall be the area west of the traffic lane running north through the parking lot, and the area east of that lane (exclusive of the area adjacent to the Metro Baseball Park).

Rental Areas and Daily Rates	*Daily*
Area A—West of traffic lane	$250.00
Area B—West of traffic lane	250.00
Areas A and B—West of traffic lane	350.00
Area C—East of traffic Lane	350.00

(Code 1958, § 12.3-3; Ord. No. 31,289, § 1, 7-28-81; Ord. No. 31,605, § 1, 3-16-82)

Sec. 13-65.1. Same—Harbor Park.

(a) *High school sports.* For high school sports, for each event, five hundred dollars ($500.00) or ten (10) percent of gross receipts from all activities, excluding city admissions taxes, whichever is greater.

(b) *Other uses.* For all other uses, five thousand dollars ($5,000.00) for each rental period or ten (10) percent of gross receipts, excluding city admissions tax, whichever is greater.

(c) *Nonticketed.* The rental rate for nonticketed events shall be five thousand dollars ($5,000.00) per day.

(d) *Conventions.* The rental rate for conventions shall be two thousand five hundred dollars ($2,500.00) per day.

(e) *Overtime rates.* Hourly overtime rates for use of Harbor Park which extends beyond the contracted period shall be one thousand dollars ($1,000.00) per hour.
(Ord. No. 37,258, § 3, 5-18-93; Ord. No. 37,629, § 1, 5-24-94; Ord. No. 41,408, § 11, 5-18-04)

Sec. 13-65.2. Same—Attucks Theatre.

(a) *Ticketed uses.* For all ticketed uses, five hundred dollars ($500.00) for each rental period or nine (9) percent of gross receipts, excluding city admissions tax, whichever is greater.

(b) *Nonticketed.* The rental rate for nonticketed events shall be five hundred dollars ($500.00) per day.

(c) *Lobby use.* The lobby use rate shall be one hundred dollars ($100.00) per use.

(d) *Lower and upper meeting rooms.* The lower and upper meeting rooms will be one hundred dollars ($100.00) and one hundred fifty dollars ($150.00) per use.
(Ord. No. 42,615, § 1, 3-27-07)

Sec. 13-66. Reserved.

Editor's note—Section 2 of Ord. No. 37,258, adopted May 18, 1993, repealed § 13-66, which pertained to reduction of rates for not-for-profit organizations and derived from Code 1958, § 12.3-2.

Sec. 13-67. What rental charge includes.

The rental charges prescribed by this article shall include only the space rented, including normal heat, overhead illumination and air conditioning.
(Code 1958, § 12.3-3; Ord. No. 37,258, § 1, 5-18-93)

Sec. 13-68. Charge for additional performances in one rental period.

If the lessee has more than one performance, with a change of audience, in the same rental period, the rental for each additional performance shall be at the rate set forth in this article.
(Code 1958, § 12.3-3; Ord. No. 37,258, § 1, 5-18-93)

Sec. 13-69. Charge for moving in, moving out, rehearsals, etc.

The lessee shall pay fifty (50) percent of the established rental rate for such usage as moving in, moving out, setting up equipment or rehearsal for a stated period of time, other than the event period, provided such use immediately precedes or follows an event leased at the established rental rate, the public is not admitted, there is no profit motive and the facility is available.
(Code 1958, § 12.3-3; Ord. No. 37,258, § 1, 5-18-93)

Sec. 13-70. Charges and lessee's responsibility for special services and equipment.

The lessee of a facility has the responsibility to arrange, through the director, and pay for the following services and equipment and persons including but not limited to: stagehands, projectionists, public address system and operator, tickets, ticket sellers, ticket takers, ushers, scorekeepers, police guards, maids, porters, extra electrical consumption, timekeepers, decorations, booth equipment, piano tuning, telephone service, permits, licenses, signs, portable stages, portable public address system, radio and television requirements, electrical wiring, extra lights, tables, extra chairs, boxing ring, follow spots, pianos, organs, special and overtime labor requirements and such other services, equipment and installations incidental to the event which are in addition to regular services. Charges for special services, equipment and various miscellaneous uses not specified shall be established and shall be kept on file in the director's office.
(Code 1958, § 12.3-3; Ord. No. 37,258, § 1, 5-18-93)

Sec. 13-71. Certain space may be furnished at no charge.

The director may, at no charge, provide such office, news and meeting space as he deems advisable to accommodate conventions and other lessees leasing major areas of any facility.
(Code 1958, § 12.3-3)

Sec. 13-72. Occupancy of night period for equipment only at no charge.

When the lessee rents at the rental rates prescribed in this article, the night period from midnight to 7:30 a.m. may be granted for occupancy of equipment only, at no charge provided such use immediately precedes or follows an event leased at the established rental rate and provided the public is not admitted, all operations have ceased and the doors are locked and provided the facility is available.
(Code 1958, § 12.3-3; Ord. No. 37,258, § 1, 5-18-93)

Sec. 13-73. Catering and concessions; radio and television rights.

The city reserves and retains unto itself the sole right to conduct or control, either directly or through separate lessees, all concessions and catering, including, but not limited to, food, beverages, programs, novelties, souvenirs, records, books and pictures and parking for motor vehicles, and all radio and television rights. The sale or dispensing of any item must have prior approval. The percentage charged will be on file in the director's office.
(Code 1958, § 12.3-4)

Sec. 13-74. Ticketing procedures and settlement; charge for box office service.

All tickets used for admissions shall be for the ticketing system employed by the facility. All tickets and money received therefrom shall at all times be under the charge and control of the director. The director shall, at the satisfactory termination of the event, make all necessary payments to the lessee for money received from the sale of tickets, less expenses incurred therefor and less any other expenses incurred as a result of the lessee's use of the facility. A listing of charges for box office services will be on file in the director's office. The director may, at his option, waive the requirements of this section by prior written approval.
(Code 1958, § 12.3-5)

Sec. 13-75. When and how rental payable.

(a) Upon execution of the contract, a deposit fee shall be paid. The amount of such payment shall be at the discretion of the director, depending on the type of the event and the length of time intervening between the execution of the contract and the date of the event. The balance of the rental may be required, plus fees for use of any special services and equipment, prior to the performance date. If more than one request is received for the same space on the same date, the director may require full payment in advance and upon demand. All payments shall be nonrefundable in the event of cancellation by the lessee.

(b) When consecutive days are rented, or when the lessee is renting two (2) or more spaces in any facility jointly and the ticketed event rental rate applies to any or all spaces, payments shall be due, if applicable, before the close of the last performance, but in no case shall payment be less than the established rental rate, plus any additional charges for storage, ticket sales, meeting rooms, special services, equipment, rehearsals, move-in and move-out.

(c) All rental fees provided for in this article shall be paid in lawful money of the United States, certified check or such other manner as is deemed adequate by the director.
(Code 1958, 12.3-7; Ord. No. 31,605, § 1, 3-16-82; Ord. No. 37,258, § 1, 5-18-93)

Sec. 13-76. Reletting.

The city reserves the right to relet any portion of the facilities which become vacant during the term of any lease or any area wherein the lease therefor has been voided or cancelled by either party. If the city relets because of the lessee's default, no refund will be due the first lessee of any sums paid in advance.
(Code 1958, § 12.3-14)

Sec. 13-77. Subleases.

No lessee shall assign any lease on any of the facilities or any area therein or any rights under such lease, without prior written approval of the director.
(Code 1958, § 12.3-15)

Sec. 13-78. Alteration of leased premises.

Each lessee shall take the premises in the condition he finds them, and in the event any lessee finds it necessary to remove or change the location of any stage, rigging or equipment, such changes shall be made at his expense and the lessee shall agree to change all such equipment, stages and rigging back to the condition in which they were found. No lessee shall make any such changes or alterations without prior written approval of the director.
(Code 1958, § 12.3-16)

Sec. 13-79. Termination of lease in case of fire, casualty, etc.

In case of fire, casualty or other unforeseen occurrences which render impossible the fulfillment of a lease by the city, such lease shall be immediately terminated. In such case, rental and advance payments shall be paid only for the time the premises are actually used. The lessee shall waive any and all claims for damages in the event of such termination.
(Code 1958, § 12.3-20)

Sec. 13-80. Reserved.

Editor's note—Section 2 of Ord. No. 37,258, adopted May 18, 1993, repealed § 13-80, which pertained to intermissions and derived from Code 1958, § 12.3-24.

Sec. 13-81. Responsibility for damages; restrictions on use of decorative or flammable materials.

(a) All parties using the facilities shall be responsible for the payment of any and all damage to the building, furnishings, fixtures or equipment, sustained from such use, whether caused by the lessee or his patrons, ordinary wear and tear excepted.

(b) No decorative or other materials shall be attached to any part of the building so as to damage the building. Written approval of the director must be obtained prior to the use of any flammable materials.
(Code 1958, § 12.3-8)

Sec. 13-82. Erection of machinery; use of gas, electricity, etc.

No lessee or other person shall erect any engine, motor or other machinery on the premises of any facility or use any gas, electricity, flammable liquid or charcoal therein, without prior written approval of the director. All electrical connections of any kind must be made by the "house electrician" and all house equipment must be operated by house personnel or personnel approved by the director.
(Code 1958, § 12.3-10)

Sec. 13-83. Obstruction of doors, passageways, sidewalks, etc.

No portions of the sidewalks, entries, passageways, doors, aisles, elevators, vestibules, windows, ventilators, lighting fixtures or ways of access to the public utilities of the premises of any facility shall be obstructed or caused to be obstructed, or caused to be used for any purpose other than ingress and egress.
(Code 1958, § 12.3-11)

Sec. 13-84. General requirements for advertisements of performances or attractions.

All advertisements of performances or attractions at any facility, for which an admission is to be charged, must state the total admission price. The lessee shall not advertise any performance or the appearance of any performer, unless and until contracts between all parties involved have been properly executed and exhibited to the director prior to signing the lease.
(Code 1958, § 12.3-28)

Cross reference—Advertising, Ch. 3.

Sec. 13-85. Posting of signs, show bills, etc.

The lessee shall not post or permit to be posted any sign upon the premises or anything

that will tend to injure, mar or in any manner deface the premises, and shall not permit nails, hooks, adhesive fasteners, tacks or screws to be installed on any part of the building or premises. Signs may only be posted on billboards provided for such use, and all signs, advertisements, show cards and posters must relate to the performance or exhibition to be given on the premises. The hanging of pictures, banners or any other items on walls or draperies requires prior written approval of the director.
(Code 1958, § 12.3-12)

Sec. 13-86. Distribution of advertising matter or programs.

A lessee shall not distribute or circulate, or permit to be circulated, any advertising matter or programs at the entrance to or on any part of the premises that does not pertain completely to the immediate attraction. Such material must have prior approval of the director and at no time shall any such advertising matter or programs be distributed or circulated on parking facilities or sidewalks adjacent to the facilities.
(Code 1958, § 12.3-12)

Sec. 13-87. Solicitations.

No collections or donations, whether for charity or otherwise, shall be made, attempted or announced on the premises of any facility without prior written approval of the director.
(Code 1958, § 12.3-32)

Cross reference—Solicitations generally, Ch. 40.

Sec. 13-88. Overcrowding.

Persons will not be permitted inside any facility in excess of the established capacity.
(Code 1958, § 12.3-13)

Sec. 13-89. Required use of designated entrances and exits.

All persons shall enter and leave a facility building, and articles, exhibits, fixtures, displays and other equipment shall be brought into and out of the building, only at designated entrances and exits.
(Code 1958, § 12.3-21)

Sec. 13-90. Objectionable performances or persons.

Any use of the facilities which is contrary to public policy or not in the best interests of the city, as determined by the director, shall be denied and any lease previously consummated may be revoked for such cause and any and all sums paid refunded. Any performer or any other person whose conduct is objectionable, disorderly or disruptive to facility use, as determined by the director, shall be refused entrance or shall be ejected from the premises. The lessee shall hold the city harmless from any claim for such action.
(Code 1958, § 12.3-17)

Sec. 13-91. Control of premises and right of entry.

All facilities shall at all times be under the control of the director. The right is reserved for any or all employees of the city designated by the director to enter the premises at all times and to require a reasonable number of admission tickets or passes for that purpose without charge.
(Code 1958, § 12.3-18)

Sec. 13-92. Liability for lessee's property.

The city, its officials, agents or employees, shall not be liable for any loss, damage or injury to properties of any kind that are shipped or otherwise delivered to or stored in or on the premises of the facilities. Properties shall not be received, until the lessee has made proper arrangements for receiving, handling and storage of such material.
(Code 1958, § 12.3-22)

Sec. 13-93. Property abandoned by lessee.

Any equipment or effects of the lessee remaining on the leased premises for more than ten (10) days after the expiration of the lease shall be deemed abandoned and disposed of by the director as he deems advisable.
(Code 1958, § 12.3-19)

Sec. 13-94. Disposition of property left by patrons; city not responsible for theft or disappearance of property.

The city shall have the sole right to collect and have the custody of articles left on the premises

by the lessee's patrons, and to provide for the disposition thereof. Such articles shall be kept on the premises for sixty (60) days and then disposed of as the director deems advisable. The city shall assume no responsibility for losses suffered by the lessee, his agents, servants or employees which are occasioned by theft or disappearance of equipment, articles or other personal property.
(Code 1958, 6 12.3-23)

Chapter 14

RESERVED*

*Editor's note—Section 1 of Ord. No. 36,727, adopted Jan. 28, 1992, repealed former Ch. 14, §§ 14-1—14-3, 14-20—14-75 and 14-92—14-148, pertaining to elections. Section 2 of this ordinance enacted a new Ch. 14.1 relative to the same subject matter. For a listing of ordinances from which the repealed provisions derived, please refer to the Code Comparative Tables beginning on pages 3729 and 3753.

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ARTICLE I. IN GENERAL

Sec. 14.1-1. Powers and duties of city manager as to elections.

The city manager is empowered to provide, from time to time, such support as may be required for holding elections in the city, according to law, and, further, to make all necessary, suitable and proper arrangements at the several voting places for the convenience of the voters and the officers of the election.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-2. Reserved.

Editor's note—Ord. No. 47,346, § 1, adopted August 28, 2018, repealed § 14.1-2, which pertained to compensation of officers of election and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-3. Division of city into wards and precincts.

(a) The city shall be divided into seven (7) wards, the respective designations and boundaries of which shall be as provided in Article II of this chapter.

(b) The city shall be divided into election precincts, the respective designations and boundaries of which shall be as provided in Article III of this chapter.
(Ord. No. 36,727, § 2, 1-28-92)

ARTICLE II. WARD BOUNDARIES

Sec. 14.1-4. Ward 1.

Ward No. 1 shall consist of that part of the City of Norfolk which is bounded as follows:

Beginning at the intersection of Granby Street and Kingsley Lane; thence westerly along Kingsley Lane to the western right-of-way line of a forty-foot private road as shown on that certain plat entitled "Riverpoint Apartments," dated May, 1949, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13 at Page 71; thence northerly and westerly along the western and southern right-of-way lines of said forty-foot private road to the centerline of the Lafayette River; thence westerly along the centerline of the Lafayette River to the Elizabeth River; thence northerly and northeasterly along the corporate limits line of the city to the intersection of the corporate limits line of the city and Interstate Highway Route 64 and the shore line of the Chesapeake Bay; thence meandering easterly and southeasterly along the shore line of the Chesapeake Bay to its intersection with the extension of the eastern right-of-way line of 3rd View Street extended to the shoreline of the Chesapeake Bay; thence southwesterly along the said extension of the eastern right-of-way line extended to its intersection with Ocean View Avenue; thence southeasterly along Ocean View Avenue to its intersection with Tidewater Drive; thence southeasterly along Tidewater Drive to its intersection with Mason Creek Road; thence southwesterly along Mason Creek Road to its intersection with W. Government Avenue; thence northwesterly along W. Government Avenue to its intersection with Interstate Highway Route 64; thence southerly along Interstate Highway Route 64 to its intersection with the northern line of Block 2 as shown on that certain plat entitled, "Corrected Replat of Subdivision of Lots 6, 7 & 8, Block 2, Willoughby Bay Corp.," dated November, 1926, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 6 at Pages 54A & 54B; thence northwesterly along said northern line of Block 2 to the west line of Lot 10, in said Block 2; thence southwesterly along the west line of Lot 10 in said Block 2 to its intersection with Orange Avenue; thence southeasterly along Orange Avenue to its intersection with Rippard Avenue; thence southwesterly along Rippard Avenue to its intersection with Ridgewell Avenue; thence southeasterly along Ridgewell Avenue to its intersection with West Patrol Road; thence southwesterly along West Patrol Road to its intersection with 1st View Street; thence southwesterly along 1st View Street to its intersection with Bay Avenue; thence easterly along Bay Avenue to the intersection of Hammett Avenue; thence northerly along Hammett Avenue to the intersection of Tidewater Drive; thence southeasterly along Tidewater Drive to its intersection with Interstate Highway Route 64; thence northwesterly along Interstate Highway Route 64 to its intersection with E. Little Creek

Road; thence southwesterly along E. Little Creek Road to its intersection with the Norfolk and Southern Railway; thence northwesterly along the Norfolk and Southern Railway to its intersection with Granby Street thence southwesterly along Granby Street to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 1, 7-27-93; Ord. No. 40,475, § 1, 9-25-01; Ord. No. 44,299, § 1, 6-28-11; Ord. No. 48,763, § 1, 5-10-22)

Sec. 14.1-5. Ward 2.

Ward No. 2 shall consist of that part of the City of Norfolk which is bounded as follows:

Beginning at the intersection of Granby Street and Kingsley Lane; thence northeasterly along Granby Street to the intersection with the Norfolk and Southern Railway; thence southeasterly along the Norfolk and Southern Railway to its intersection with E. Little Creek Road; thence easterly along E. Little Creek Road to its intersection with Interstate Highway Route 64; thence southeasterly along Interstate Highway Route 64 to its intersection with Tidewater Drive; thence southerly along Tidewater Drive to the intersection of Lafayette Boulevard; thence westerly and southwesterly along Lafayette Boulevard to the intersection of Villa Circle; thence northwesterly along Villa Circle to the intersection of Rialto Place; thence southwesterly along Rialto Place to the intersection of Druid Circle; thence westerly along Druid Circle to its intersection with Leo Street and 30th Street; thence southwesterly along 30th Street to the intersection of Gazel Street; thence southeasterly along Gazel Street to the intersection of 29th Street; thence southwesterly along 29th Street to the intersection of Church Street; thence southeasterly along Church Street to the intersection of Norfolk and Southern Railway property; thence westerly along the Norfolk and Southern Railway property to its intersection with Monticello Avenue; thence southerly and southeasterly along Monticello Avenue to the intersection of St. Pauls Boulevard; thence southeasterly and southwesterly along St. Pauls Boulevard to the intersection of Waterside Drive; thence easterly along Waterside Drive to the intersection of the Berkley Bridge; thence southerly along the Berkley Bridge to the centerline of the Eastern Branch of the Elizabeth River; thence westerly along the centerline of the Eastern Branch of the Elizabeth River to the centerline of the Elizabeth River; thence northwesterly and northerly along the centerline of the Elizabeth River to the centerline of the Lafayette River; thence northerly and easterly along the centerline of the Lafayette River to its intersection with the extension of the southern right-of-way line of a forty-foot private road as shown on that certain plat entitled "Riverpoint Apartments," dated May, 1949, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13 at Page 71; thence easterly and southerly along the said extension and the southern and western right-of-way lines of the 40-foot private road to the intersection of Kingsley Lane; thence easterly along Kingsley Lane to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 1, 7-27-93; Ord. No. 40,475, § 2, 9-25-01; Ord. No. 44,299, § 2, 6-28-11; Ord. No. 48,763, § 2, 5-10-22)

Sec. 14.1-6. Ward 3.

Ward No. 3 shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of the Norfolk and Southern Railway property and Corprew Avenue; thence northerly and westerly along the Norfolk and Southern Railway property to the intersection of Church Street; thence northwesterly along Church Street to the intersection of 29th Street; thence northeasterly along 29th Street to the intersection of Gazel Street; thence northwesterly along Gazel Street to the intersection of 30th Street; thence northeasterly along 30th Street to its intersection with Leo Street and Druid Circle; thence easterly along Druid Circle to the intersection of Rialto Place; thence northeasterly along Rialto Place to the intersection of Villa Circle; thence southeasterly along Villa Circle to the intersection of Lafayette Boulevard; thence northeasterly and easterly along Lafayette Boulevard to the intersection of Tidewater Drive; thence northerly along Tidewater Drive to the intersection of E. Little Creek Road; thence easterly along E. Little Creek Road to the intersection of N. Military Highway; thence

southeasterly along N. Military Highway to the intersection of Azalea Garden Road; thence southwesterly and southerly along Azalea Garden Road to the intersection of Virginia Beach Boulevard; thence westerly along Virginia Beach Boulevard to the intersection of Oaklawn Avenue; thence southerly along Oaklawn Avenue to the intersection of Corprew Avenue; thence westerly along Corprew Avenue to the point of beginning. (Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 1, 7-27-93; Ord. No. 40,475, § 3, 9-25-01; Ord. No. 44,299, § 3, 6-28-11)

Sec. 14.1-7. Ward 4.

Ward No. 4 shall consist of that part of the City of Norfolk which is bounded as follows:

Beginning at the intersection of N. Military Highway and Longdale Drive; thence northeasterly to the intersection of Fordwick Drive; thence southeasterly along Fordwick Drive to the northwest corner of Parcel "A" (6610 Fordwick Drive) as shown on that certain plat entitled "Revised Plat of Part of Subdivision of Meadowbrook Terrace", dated May 02, 1961," and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 18, at Page 85; thence northerly and easterly along the northern boundary line of said Parcel A to its intersection with the northern line of that certain subdivision plat entitled "Subdivision of 'Bromley' Incorp. Princess Anne County, Va.," dated February, 1955, and recorded in the City of Virginia Beach clerk's office of the circuit court in Map Book 38, at Page 40; thence northeasterly along the north boundary line of said "Bromley" subdivision plat to its eastern boundary line; thence north to the centerline of the southern branch of the western branch of Lake Whitehurst; thence northeasterly along the centerline of the southern branch of the western branch of Lake Whitehurst to its intersection with the centerline of the western branch and the centerline of the northern branch of the western branch of Lake Whitehurst; thence southeasterly along the centerline of the western branch of lake Whitehurst, across Azalea Garden Road to the centerline of Lake Whitehurst; thence northeasterly easterly and northeasterly along the centerline of Lake Whitehurst to a point opposite and southwest of the Lake Whitehurst spillway; thence northeasterly across the spillway to the intersection with Shore Drive; thence southeasterly along Shore Drive to the intersection of Shore Drive and the easterly corporate limits line of the City of Norfolk; thence meandering southerly along the easterly corporate limits line of the City of Norfolk and the westerly corporate limits line of the City of Virginia Beach to the intersection of the easterly corporate limits line of the city with Newtown Road; thence southwesterly along the easterly corporate limits line of the City of Norfolk as it follows Newtown Road to the intersection of the Eastern Branch of the Elizabeth River; thence westerly along the corporate limits lines of the cities of Norfolk, Virginia Beach and Chesapeake as it follows the eastern branch of the Elizabeth River to the intersection of the Norfolk and Southern Railway property; thence southwesterly along the corporate limits line of the city, as it follows the Norfolk and Southern Railway property to its intersection with Berkley Avenue Extended; thence northwesterly along the corporate limits line of the city as it follows Berkley Avenue Extended to the intersection of Berkley Avenue Extended and Obendorfer Road; thence meandering southwesterly and westerly along the corporate limit lines of the cities of Norfolk and Chesapeake to its intersection with the southern branch of the Elizabeth River; thence northerly along the southern branch of the Elizabeth River to the intersection of the southern and eastern branches of the Elizabeth River; thence easterly along the eastern branch of the Elizabeth River to its intersection with the line of the Berkley Bridge; thence northerly along the line of the Berkley Bridge to the intersection of Waterside Drive; thence westerly along Waterside Drive to the intersection of St. Pauls Boulevard; thence northerly along St. Pauls Boulevard to the intersection of Monticello Avenue; thence northerly along Monticello Avenue to the intersection of the Norfolk and Southern Railway property; thence easterly and southerly along the Norfolk and Southern Railway property to the intersection of Corprew Avenue; thence easterly along Corprew Avenue to the intersection of Oaklawn Avenue; thence northerly along Oaklawn Avenue to the intersection of Virginia Beach Boulevard; thence easterly along Virginia Beach Boulevard

to the intersection of Azalea Garden Road; thence northerly and northeasterly along Azalea Garden Road to the intersection of Azalea Garden Road and N. Military Highway; thence northwesterly along N. Military Highway to the point of beginning at the intersection of Military Highway and Longdale Drive.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 1, 7-27-93; Ord. No. 40,475, § 4, 9-25-01; Ord. No. 44,299, § 4, 6-28-11; Ord. No. 48,763, § 3, 5-10-22)

Sec. 14.1-8. Ward 5.

Ward No. 5 shall consist of that part of the City of Norfolk which is bounded as follows:

Beginning at the intersection of N. Military Highway and Longdale Drive; thence northwesterly along N. Military Highway to the intersection of E. Little Creek Road thence westerly along E. Little Creek Road to the intersection of Tidewater Drive; thence northerly and northwesterly along Tidewater Drive to the intersection of Hammett Avenue; thence southerly along Hammett Avenue to the intersection of Bay Avenue; thence westwardly along Bay Avenue to its intersection with 1st View Street; thence northeasterly along 1st View Street to its intersection with West Patrol Road; thence northerly along West Patrol Road to its intersection with Ridgewell Avenue; thence northwesterly along Ridgewell Avenue to its intersection with Rippard Avenue; thence northeasterly along Rippard Avenue to its intersection with Orange Avenue; thence along Orange Avenue to the west line of Lot 10, Block 2, as shown on that certain plat entitled, "Corrected Replat of Subdivision of Lots 6, 7 & 8, Block 2, Willoughby Bay Corp.," dated November, 1926, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 6 at Pages 54A & 54B; thence northwardly along the west line of Lot 10 to the northern line of Block 2 on said plat; thence easterly along the northern line of Block 2 to its intersection with Interstate Highway Route 64; thence northerly along Interstate Highway Route 64 to its intersection with W. Government Avenue: thence southeasterly along W. Government Avenue to its intersection with Mason Creek Road; thence northeasterly along Mason Creek Road to its intersection with Tidewater Drive; thence northwesterly along Tidewater Drive to its intersection with W. Ocean View Avenue; thence northwesterly along W. Ocean View Avenue to its intersection with the extension of the eastern right-of-way line of 3rd View Street extended northerly; thence northerly along said extension of 3rd View Street to the shore line of the Chesapeake Bay; thence southeasterly along the shore line of the Chesapeake Bay to the eastern corporate limit line of the City of Norfolk at Little Creek Inlet; thence southerly, westerly and southwesterly along the said eastern corporate limits lines of the cities of Norfolk and Virginia Beach to Shore Drive; thence continuing along the said eastern corporate limits line and Shore Drive to the intersection of the spillway at Lake Whitehurst; thence southwesterly across the spillway to the centerline of Lake Whitehurst; thence southwesterly, southerly and southwesterly to its intersection with the centerline of the western branch of Lake Whitehurst; thence northwesterly along the centerline of the western branch of Lake Whitehurst to its intersection with the centerlines of the northern and southern branches of the western branch of Lake Whitehurst; thence southwesterly along the centerline of the southern branch of the western branch of Lake Whitehurst to a point opposite and north of the northeast corner of property shown on that certain subdivision plat entitled "Subdivision of 'Bromley' Incorp. Princess Anne County, Va.," dated February, 1955, and recorded in the City of Virginia Beach clerk's office of the circuit court in Map Book 38, at Page 40; thence south to the said northeast corner; thence southwesterly along the north boundary line of said "Bromley" subdivision plat to the eastern boundary line of Parcel A as shown on that certain plat entitled "Revised Plat of Part of Subdivision of Meadowbrook Terrace", dated May 02, 1961 and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 18, at Page 85; thence northerly and westerly along the northern boundary line of said Parcel A to its intersection with Fordwick Drive; to the intersection of Fordwick Drive; thence northwesterly along Fordwick Drive to

the intersection of Longdale Drive; thence southwesterly along Longdale Drive to the point of beginning at N. Military Highway.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 1, 7-27-93; Ord. No. 40,475, § 5, 9-25-01; Ord. No. 44,299, § 5, 6-28-11; Ord. No. 48,763, § 4, 5-10-22)

Sec. 14.1-9. Superward 6.

Ward No. 6 shall consist of that part of the City of Norfolk which is bounded as follows:

Beginning at the intersection of Shore Drive and E. Little Creek Road; thence, southeasterly along Shore Drive to the intersection of the easterly corporate limits line of the City of Norfolk; thence, meandering southerly along the easterly corporate limits line of the City of Norfolk, the westerly corporate limits line of the City of Virginia Beach, and along Shore Drive to its intersection with the outfall canal from Lake Whitehurst to the southern branch of Little Creek; thence, generally southwesterly across the Lake Whitehurst spillway and along the centerline of Lake Whitehurst to its intersection with the extension of the eastern line of Parcel "A" (6610 Fordwick Drive) as shown on that certain plat entitled "Revised Plat of Part of Subdivision of Meadowbrook Terrace", dated May 02, 1961 and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 18, at Page 85; thence northerly and westerly along the northern boundary line of said Parcel A to its intersection with Fordwick Drive; thence northwesterly along Fordwick Drive to its intersection with Longdale Drive; thence, westerly along Longdale Drive to its intersection with N. Military Highway; thence, northwesterly along N. Military Highway to the intersection of E. Little Creek Road; thence, westerly along E. Little Creek Road to the intersection of Tidewater Drive; thence, northerly along Tidewater Drive to the intersection of the northern boundary line of Northside Park; thence, westerly along the northern boundary line of Northside Park to the centerline of Mason Creek; thence, northwesterly along the centerline of Mason Creek to the intersection of the line dividing Merrimac Park and the Norfolk Naval Base; thence, northerly along said dividing line between Merrimac Park and the Norfolk Naval Base to its intersection with Bay Avenue; thence, easterly along Bay Avenue to the intersection of First View Street; thence, northeasterly along First View Street to the intersection of Ridgewell Avenue; thence, northerly and northwesterly along Ridgewell Avenue to the intersection of Rippard Avenue; thence, northeasterly and northerly along Rippard Avenue to the intersection of O'Conner Crescent; thence, northeasterly and northerly along O'Conner Crescent to the intersection of 4th View Street; thence, northeasterly along 4th View Street to the intersection of Interstate Highway Route 64; thence, northerly and northwesterly along Interstate Highway Route 64 to the intersection of the eastern shoreline of Willoughby Bay; thence, southerly, westerly and southerly along the eastern shoreline of Willoughby Bay to the intersection of said shoreline and Bellinger Boulevard; thence, westerly along Bellinger Boulevard to the intersection of Admiral Tausig Boulevard; thence, westerly along Admiral Tausig Boulevard to the intersection of Hampton Boulevard; thence, southerly along Hampton Boulevard to the westerly extension of the northern boundary line of Glenwood Annex as shown on that certain plat entitled "Amended Plat property of Glenwood Annex Corporation," dated October, 1909, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 10, at Pages 71, 72 and 73; thence, easterly along said westerly extension of the northern boundary line and the said northern boundary line said of Glenwood Annex to the eastern boundary line of said Glenwood Annex in Boush Creek; thence, southerly along said eastern boundary line of Glenwood Annex along the meanders of Boush Creek to the northeast corner of Terminal Heights as shown on that certain plat entitled "Terminal Heights," dated July 9, 1913, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 13, at Page 97; thence, southerly, westerly and northerly along the eastern, southern and western boundary lines of said Terminal Heights to the southeast corner of Glenwood Park as shown on that certain plat entitled "Glenwood Park," date of recordation being November 26, 1907, in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 8, at Page 1; thence, westerly

along the said southern boundary line of Glenwood Park to the intersection of Hampton Boulevard; thence, southeasterly along Hampton Boulevard to the intersection of an extension of the northern boundary line of the property shown on that certain plat entitled "Subdivision of Property of Catherine I. Gilleland," dated October 3, 1985, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 42, at Page 17, said northern boundary line also being the southern boundary line of the Virginia Ports Authority; thence, easterly along the extension of the said northern boundary line and the said southern boundary line of the Virginia Ports Authority to the intersection with Harrison Road, shown as "Road" on plat entitled "White Town" dated August 26, 1918, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 16, at Page 31; thence eastward along Harrison Road to the intersection with Meads Road; thence along Meads Road to the intersection with the prolonged line between Lot 11 as shown on plat entitled "Boulevard Homes", dated November 1946 recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 12, at Page 88A and Lot 8 as shown on plat entitled "North Shore Gardens", dated May 1950 recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13, at Page 110; thence northeastward along the line between said Lots 11 and 8 to the southern boundary line of the Virginia Ports Authority; thence easterly along said southern boundary line of the Virginia Ports Authority to the western boundary line of North Titustown as shown on that certain plat entitled "Subdivision of Lots 1 to 28 incl., Block 14 Amended Plat of North Titustown," dated September, 1962, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 19, at Page 61; thence, southerly along the said western boundary line of said North Titustown to the intersection of W. Little Creek Road; thence, westerly along W. Little Creek Road to the intersection of Tapley Avenue; thence, southerly along Tapley Avenue to the intersection of Milton Street; thence, easterly along Milton Street to the intersection of Milton Street and the westerly boundary of Logan Park as shown on that certain plat entitled "Logan Park," dated 1909 and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 9, at Pages 69 and 71; thence, southerly, southwesterly and easterly along the boundary lines of said Logan Park to the intersection of the easterly extension of the southern boundary line of said Logan Park and Diven Street; thence, southerly along Diven Street to the intersection of Diven Street and the westerly extension of the northern line of Lot 43A as shown that certain plat entitled "Plat of property of A. T. Stroud at Sewells Point Norfolk Co. Va. known as Titustown," dated April, 1901, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 10, at Page 25; thence easterly along the northern line of Lot 43A to where it intersects with the western line of Lot 44B as shown on "Titustown" plat; thence southward along the back property lines of Lots 43A and 45 as shown on "Titustown" plat to the southern boundary of "Titustown"; thence easterly along the southern boundary line of said Titustown to the western boundary line of Colony Point as shown on that certain plat entitled "Colony Point," dated March, 1947, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13, at Page 9; thence, northerly along the western boundary line of said Colony Point to the southern boundary line of Colony Point Apartments as shown on that certain plat entitled "Resubdivision of Colony Point Apartments," dated June, 1964, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 21, at Page 23; thence, southwesterly, northwesterly and northerly along the southern and western boundary lines of said Colony Point Apartments and its western boundary line extended to the intersection with W. Little Creek Road; thence, easterly along W. Little Creek Road to the intersection with the southerly extension of the western line of Block 1, as shown on that certain plat entitled "Sussex at Norfolk," dated June 1, 1947, and duly recorded in the Clerk's Office of the Circuit Court of City of Norfolk, Virginia in Map Book 12, at Page 119; thence, northerly along the western line of Block 1, across Meads Road and long the western and northern lines of Block 9 of aforesaid plat to its intersection with Ruthven Road; thence, northerly along Ruthven Road to its intersection with Terminal Boulevard; thence, easterly along

Terminal Boulevard to the intersection of Interstate Highway Route 564; thence, southeasterly along Interstate Highway Route 564 to the intersection of Interstate Highway Route 64; thence, southeasterly along Interstate Highway Route 64 to the intersection of Tidewater Drive; thence, southerly along Tidewater Drive to the intersection of Lafayette Boulevard; thence, westerly and southerly along Lafayette Boulevard to the intersection of Lafayette River; thence, northerly and northwesterly along the Lafayette River to the intersection of the Lafayette River and the easterly extension of La Valette Avenue; thence, westerly along said easterly extension of La Valette Avenue and La Valette Avenue to the intersection of Granby Street; thence, northerly along Granby Street to the intersection of Delaware Avenue; thence, westerly along Delaware Avenue to the intersection of Omohundro Avenue; thence, southerly along Omohundro Avenue to the intersection of 38th Street; thence, westerly along 38th Street to the intersection of Colley Avenue; thence, northerly along Colley Avenue to the intersection of 39th Street; thence, easterly along 39th Street to the intersection of Mayflower Road; thence, northerly along Mayflower Road to the intersection of the easterly extension of 47th Street; thence, westerly along the said easterly extension of 47th Street and 47th Street to the intersection of 47th Street and Hampton Boulevard; thence, southerly along Hampton Boulevard to the intersection of 43rd Street; thence, westerly along 43rd Street to the intersection of Powhatan Avenue; thence, southerly along Powhatan Avenue to the intersection of 38th Street; thence, easterly along 38th Street to the intersection of Parker Avenue; thence, southerly along Parker Avenue to the intersection of property of the Norfolk and Southern Railway; thence, southeasterly along the property of Norfolk and Southern Railway to the intersection of Monticello Avenue; thence, southwesterly along Monticello Avenue to the intersection of St. Pauls Boulevard; thence, southerly along St. Pauls Boulevard to the intersection of Waterside Drive; thence, easterly along Waterside Drive to the line of the Berkley Bridge; thence, southerly along the line of the Berkley Bridge to the Eastern Branch of the Elizabeth River; thence, westerly along the Eastern Branch of the Elizabeth River to its intersection with the corporate limits line of the city; thence, northerly and easterly along the corporate limits line as it follows the Elizabeth River to the Chesapeake Bay; thence, easterly and southeasterly along the corporate limits line of the city as it follows the southerly shoreline of the Chesapeake Bay to the easternmost corporate limits line of the city at Little Creek Inlet; thence, southerly, westerly and southwesterly along the corporate limits lines of the cities of Norfolk and Virginia Beach near the intersection of E. Little Creek Road and Shore Drive; thence, westerly to the point of beginning at the intersection of E. Little Creek Road and Shore Drive.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 1, 7-27-93; Ord. No. 40,475, § 6, 9-25-01; Ord. No. 44,299, § 6, 6-28-11; Ord. No. 47,294, § 1, 7-24-18; Ord. No. 48,763, § 5, 5-10-22)

Sec. 14.1-10. Superward 7.

Ward No. 7 shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of the eastern corporate limits line of the City of Norfolk, the western corporate limits line of the City of Virginia Beach, and Northampton Boulevard; thence, northwesterly, northeasterly and northwesterly along the said corporate limits line to the intersection of the corporate limits line along Shore Drive with the outfall canal from Lake Whitehurst to the southern branch of Little Creek; thence, generally southwesterly across the Lake Whitehurst spillway and along the centerline of Lake Whitehurst to its intersection with the extension of the eastern line of Parcel "A" (6610 Fordwick Drive) as shown on that certain plat entitled "Revised Plat of Part of Subdivision of Meadowbrook Terrace", dated May 02, 1961 and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 18, at Page 85; thence northerly and westerly along the northern boundary line of said Parcel A to its intersection with Fordwick Drive; thence northwesterly along Fordwick Drive to its intersection with Longdale Drive; thence, westerly along Longdale Drive to its intersection with N. Military Highway; thence, northwesterly along N. Military Highway to the intersection of E. Little Creek

Road; thence, westerly along E. Little Creek Road to the intersection of Tidewater Drive; thence, northerly along Tidewater Drive to the intersection of the northern boundary line of Northside Park; thence, westerly along the northern boundary line of Northside Park to the centerline of Mason Creek; thence, northwesterly along the centerline of Mason Creek to the intersection of the line dividing Merrimac Park and the Norfolk Naval Base; thence, northerly along said dividing line between Merrimac Park and the Norfolk Naval Base to its intersection with Bay Avenue; thence, easterly along Bay Avenue to the intersection of First View Street; thence, northeasterly along First View Street to the intersection of Ridgewell Avenue; thence, northerly and northwesterly along Ridgewell Avenue to the intersection of Rippard Avenue; thence, northerly and northwesterly along Ridgewell Avenue to the intersection of Rippard Avenue; thence, northeasterly and northerly along Rippard Avenue to the intersection of O'Conner Crescent; thence, northeasterly and northerly along O'Conner Crescent to the intersection of 4th View Street; thence, northeasterly along 4th View Street to the intersection of Interstate 64; thence, northerly and northwesterly along Interstate Highway Route 64 to the intersection of the eastern shoreline of Willoughby Bay; thence, southerly, westerly and southerly along the eastern shoreline of Willoughby Bay to the intersection of said shoreline and Bellinger Boulevard; thence, westerly along Bellinger Boulevard to the intersection of Admiral Tausig Boulevard; thence, westerly along Admiral Tausig Boulevard to the intersection of Hampton Boulevard; thence, southerly along Hampton Boulevard to the westerly extension of the northern boundary line of Glenwood Annex as shown on that certain plat entitled "Amended Plat Property of Glenwood Annex Corporation," dated October, 1909, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 10, at Pages 71, 72 and 73; thence, easterly along said westerly extension of the northern boundary line and the said northern boundary line of Glenwood Annex to the eastern boundary line of said Glenwood Annex in Boush Creek; thence, southerly along said eastern boundary line of Glenwood Annex, along the meanders of Boush Creek, to the northeast corner of Terminal Heights as shown on that certain plat entitled "Terminal Heights," dated July 9, 1913, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 13, at Page 97; thence, southerly, westerly and northerly along the eastern, southern and western boundary lines of said Terminal Heights to the southeast corner of Glenwood Park as shown on that certain plat entitled "Glenwood Park," date of recordation being November 26, 1907, in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 8, at Page 1; thence, westerly along the said southern boundary line of Glenwood Park to the intersection of Hampton Boulevard; thence, southeasterly along Hampton Boulevard to the intersection of an extension of the northern boundary line of the property shown on that certain plat entitled "Subdivision of Property of Catherine I. Gilleland," dated October 3, 1985, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 42, at Page 17, said northern boundary line also being the southern boundary line of the Virginia Ports Authority; thence, easterly along the extension of the said northern boundary line and the said southern boundary line of the Virginia Ports Authority to the intersection with Harrison Road, shown as "Road" on plat entitled "White Town" dated August 26, 1918, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 16, at Page 31; thence eastward along Harrison Road to the intersection with Meads Road; thence along Meads Road to the intersection with the prolonged line between Lot 11 as shown on plat entitled "Boulevard Homes", dated November 1946 recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 12, at Page 88A and Lot 8 as shown on plat entitled "North Shore Gardens", dated May 1950 recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13, at Page 110; thence northeastward along the line between said Lots and 8 to the southern boundary line of the Virginia Ports Authority; thence easterly along said southern boundary line of the Virginia Ports Authority to the western boundary line of North Titustown as shown on that certain plat entitled "Subdivision of Lots 1 to 28 incl., Block 14 Amended Plat of North Titus-

town," dated September, 1962, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 19, at Page 61; thence, southerly along the said western boundary line of said North Titustown to the intersection of W. Little Creek Road; thence, westerly along W. Little Creek Road to the intersection of Tapley Avenue; thence, southerly along Tapley Avenue to the intersection of Milton Street; thence, easterly along Milton Street to the intersection of Milton Street and the westerly boundary of Logan Park as shown on that certain plat entitled "Logan Park," dated 1909 and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 9, at Pages 69 and 71; thence, southerly, southwesterly and easterly along the boundary lines of said Logan Park to the intersection of the easterly extension of the southern boundary line of said Logan Park and Diven Street; thence, southerly along Diven Street to the intersection of Diven Street and the westerly extension of the northern line of Lot 43A as shown that certain plat entitled "Plat of property of A. T. Stroud at Sewells Point Norfolk Co. Va. known as Titustown," dated April, 1901, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 10, at Page 25; thence easterly along the northern line of Lot 43A to where it intersects with the western line of Lot 44B as shown on "Titustown" plat; thence southward along the back property lines of Lots 43A and 45 as shown on "Titustown" plat to the southern boundary of "Titustown"; thence easterly along the southern boundary line of said Titustown to the western boundary line of Colony Point as shown on that certain plat entitled "Colony Point," dated March, 1947, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13, at Page 9; thence, northerly along the western boundary line of said Colony Point to the southern boundary line of Colony Point Apartments as shown on that certain plat entitled "Resubdivision of Colony Point Apartments," dated June, 1964, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 21, at Page 23; thence, southwesterly, northwesterly and northerly along the southern and western boundary lines of said Colony Point Apartments and its western boundary line extended to the intersection with W. Little Creek Road; thence, easterly along W. Little Creek Road to the intersection with the southerly extension of the western line of Block 1, as shown on that certain plat entitled "Sussex at Norfolk," dated June 1, 1947, and duly recorded in the Clerk's Office of the Circuit Court of City of Norfolk, Virginia in Map Book 12, at Page 119; thence, northerly along the western line of Block 1, across Meads Road and long the western and northern lines of Block 9 of aforesaid plat to its intersection with Ruthven Road; thence, northerly along Ruthven Road to its intersection with Terminal Boulevard; thence, easterly along Terminal Boulevard to the intersection of Interstate Highway Route 564; thence, southeasterly along Interstate Highway Route 564 to the intersection of Interstate Highway Route 64; thence, southeasterly along Interstate Highway Route 64 to the intersection of Tidewater Drive; thence, southerly along Tidewater Drive to the intersection of Lafayette Boulevard; thence, westerly and southerly along Lafayette Boulevard to the intersection of Lafayette River; thence, northerly and northwesterly along the Lafayette River to the intersection of the Lafayette River and the easterly extension of La Valette Avenue; thence, westerly along said easterly extension of La Valette Avenue and La Valette Avenue to the intersection of Granby Street; thence, northerly along Granby Street to the intersection of Delaware Avenue; thence, westerly along Delaware Avenue to the intersection of Omohundro Avenue; thence, southerly along Omohundro Avenue to the intersection of 38th Street; thence, westerly along 38th Street to the intersection of Colley Avenue; thence, northerly along Colley Avenue to the intersection of 39th Street; thence, easterly along 39th Street to the intersection of Mayflower Road; thence, northerly along Mayflower Road to the intersection of the easterly extension of 47th Street; thence, westerly along the said easterly extension of 47th Street and 47th Street to the intersection of 47th Street and Hampton Boulevard; thence, southerly along Hampton Boulevard to the intersection of 43rd Street; thence, westerly along 43rd Street to the intersection of Powhatan Avenue; thence, southerly along Powhatan Avenue to the intersection of 38th Street; thence, easterly along 38th Street to the intersection of Parker Avenue;

thence, southerly along Parker Avenue to the intersection of property of the Norfolk and Southern Railway; thence, southeasterly along the property of Norfolk and Southern Railway to the intersection of Monticello Avenue; thence, southwesterly along Monticello Avenue to the intersection of St. Pauls Boulevard; thence, southerly along St. Pauls Boulevard to the intersection of Waterside Drive; thence, easterly along Waterside Drive to the line of the Berkley Bridge; thence, southerly along the line of the Berkley Bridge to the eastern branch of the Elizabeth River; thence, westerly along the eastern branch of the Elizabeth River to its intersection with the corporate limits line of the city; thence, southerly along the corporate limits line of the city as it follows the southern branch of the Elizabeth River; thence, meandering easterly and northeasterly along the corporate limits lines of the cities of Norfolk and Chesapeake to the intersection of Obendorfer Road and Berkley Avenue Extended; thence, southeasterly along of the corporate limits line of the city as it follows Berkley Avenue Extended to its intersection with the property of Norfolk and Southern Railway; thence, northeasterly along the corporate limits line of the city as it follows the property of Norfolk and Southern Railway to its intersection with the eastern branch of the Elizabeth River; thence, easterly along the corporate limits lines of the cities of Norfolk, Chesapeake and Virginia Beach as it follows the eastern branch of the Elizabeth River to its intersection with Newtown Road extended; thence, northeasterly along the corporate limits line of the City of Norfolk as it follows the extension of said Newtown Road and Newtown Road to the extension of the northern boundary line of property as shown on that certain plat entitled "Subdivision #3 of property of H.H.B. Inc.," dated September 26, 1963, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 20, at Page 63; thence, northwesterly along said northern boundary line and continuing along the eastern corporate limits line of the City of Norfolk, meandering northwesterly and northerly to the point of beginning at the intersection of the eastern corporate limits line of the City of Norfolk with Northampton Boulevard.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 1, 7-27-93; Ord. No. 40,475, § 6, 9-25-01; Ord. No. 44,299, § 7, 6-28-11; Ord. No. 47,294, § 2, 7-24-18; Ord. No. 48,763, § 6, 5-10-22)

ARTICLE III. PRECINCT BOUNDARIES

DIVISION 1. WARD 1

Sec. 14.1-11. Second Presbyterian Precinct.

Second Presbyterian Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of the center of Crab Creek and the center of the Lafayette River; thence westerly along the Lafayette River to the Elizabeth River and the corporate limits line of the city; thence northerly and northeasterly along the corporate limits line of the city to the intersection of the corporate city limits line of the City of Norfolk and Interstate Highway Route 64; thence southeasterly along Interstate Highway Route 64 to the intersection of Interstate Highway Route 64 and the northerly shoreline of Willoughby Bay; thence southerly and southeasterly along the northerly shoreline of Willoughby Bay to its intersection with the northerly extension of the eastern shoreline of Willoughby Bay across Little Bay; thence meandering southerly, westerly and southerly along the eastern shoreline of Willoughby Bay to the intersection of said shoreline and Bellinger Boulevard; thence westerly along Bellinger Boulevard to the intersection of Admiral Tausig Boulevard; thence westerly along Admiral Tausig Boulevard to its intersection with Hampton Boulevard; thence southerly along Hampton Boulevard to the westerly extension of the northern boundary line of Glenwood Annex as shown on that certain plat entitled "Amended Plat property of Glenwood Annex Corporation," dated October, 1909, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 10, at Pages 71, 72 and 73; thence easterly along said westerly extension of the

northern boundary line and the said northern boundary line said of Glenwood Annex to the eastern boundary line of said Glenwood Annex in Boush Creek; thence southerly along said eastern boundary line of Glenwood Annex along the meanders of Boush Creek to the northeast corner of Terminal Heights as shown on that certain plat entitled "Terminal Heights," dated July 9, 1913, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 13, at Page 97; thence southerly, westerly and northerly along the eastern, southern and western boundary lines of said Terminal Heights to the southeast corner of Glenwood Park as shown on that certain plat entitled "Glenwood Park," date of recordation being November 26, 1907, in the; thence westerly along the said southern boundary line of Glenwood Park to its intersection with Hampton Boulevard; thence southeasterly along Hampton Boulevard to its intersection with an extension of the northern boundary line of the property shown on that certain plat entitled "Subdivision of Property of Catherine I. Gilleland," dated October 3, 1985, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 42, at Page 17, said northern boundary line also being the southern boundary line of the Virginia Ports Authority; thence easterly along the extension of the said northern boundary line and the said southern boundary line of the Virginia Ports Authority to the intersection with Harrison Road, shown as "Road" on plat entitled "White Town" dated August 26, 1918, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 16, at Page 31; thence eastward along Harrison Road to the intersection with Meads Road; thence along Meads Road to the intersection with the prolonged line between Lot 11 as shown on plat entitled "Boulevard Homes", dated November 1946 recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 12, at Page 88A and Lot 8 as shown on plat entitled "North Shore Gardens", dated May 1950 recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13, at Page 110; thence northeastward along the line between said Lots 11 and 8 to the southern boundary line of the Virginia Ports Authority; thence easterly along said southern boundary line of the Virginia Ports Authority to the western boundary line of North Titustown as shown on that certain plat entitled "Subdivision of Lots 1 to 28 incl., Block 14 Amended Plat of North Titustown," dated September, 1962, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 19, at Page 61; thence southerly along the said western boundary line of said North Titustown to its intersection with W. Little Creek Road; thence westerly along W. Little Creek Road to its intersection with Tapley Avenue; thence southerly along Tapley Avenue to its intersection with Milton Street; thence easterly along Milton Street to the intersection of Milton Street and the westerly boundary of Logan Park as shown on that certain plat entitled "Logan Park," dated 1909 and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 9, at Pages 69 and 71; thence southerly, southwesterly and easterly along the boundary lines of said Logan Park to the intersection of the easterly extension of the southern boundary line of said Logan Park and Diven Street; thence southerly along Diven Street to the intersection of Diven Street and the westerly extension of the northern line of Lot 43A as shown that certain plat entitled "Plat of property of A. T. Stroud at Sewells Point Norfolk Co. Va. known as Titustown," dated April, 1901, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 10, at Page 25; thence easterly along the northern line of Lot 43A to where it intersects with the western line of Lot 44B as shown on "Titustown" plat; thence southward along the back property lines of Lots 43A and 45 as shown on "Titustown" plat to the southern boundary of "Titustown"; thence easterly along the southern boundary line of said "Titustown" to the western boundary line of Colony Point as shown on that certain plat entitled "Colony Point," dated March 1947 and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13, at Page 9; thence southeasterly along the dividing line between Colony Point and Algonquin Park and the center of the northwestern branch of Crab Creek to its intersection with the center of Crab Creek; thence

southerly along the center of Crab Creek to the center of the Lafayette River, the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,495, § 5, 10-9-01; Ord. No. 46,791, § 1, 4-11-17; Ord. No. 48,764, § 1, 5-10-22)

Sec. 14.1-12. Granby Precinct.

Granby Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of W. Little Creek Road and the southerly extension of the western line of Block 1, as shown on that certain plat entitled "Sussex at Norfolk," dated June 1, 1947, and duly recorded in the Clerk's Office of the Circuit Court of City of Norfolk, Virginia in Map Book 12, at Page 119; thence, northerly along the western line of Block 1, across Meads Road and long the western and northern lines of Block 9 of aforesaid plat to its intersection with Ruthven Road; thence, northerly along Ruthven Road to its intersection with Terminal Boulevard; thence easterly along Terminal Boulevard to its intersection with Interstate Highway Route 564; thence, southeasterly along Interstate Highway Route 564 to its intersection with Granby Street; thence, southerly along Granby Street to its intersection with Kingsley Lane; thence, westerly along Kingsley Lane to the western right-of-way line of a 40-foot private road as shown on that certain plat entitled "Riverpoint Apartments," dated May, 1949, and duly recorded Clerk's Office of the Circuit Court of City of Norfolk, Virginia in Map Book 13 at Page 71; thence, northerly and westerly along the western and southern right-of-way lines of said 40-foot private road to the centerline of the Lafayette River; thence, continuing northerly and northwesterly along the center of Crab Creek and the northwestern branch of Crab Creek to its intersection with the dividing line of the subdivisions of Algonquin Park and Colony Point; thence northwesterly along the dividing line between the subdivisions of Algonquin Park and Titustown from Colony Point and Colony Point Apartments to its intersection with Little Creek Road; thence, easterly along Little Creek Road to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 36,785, § 1, 3-31-92; Ord. No. 38,313, § 1, 3-26-96; Ord. No. 40,495, § 6, 10-9-01; Ord. No. 47,294, § 3, 7-24-18; Ord. No. 48,764, § 2, 5-10-22)

Sec. 14.1-13. Ocean View School Precinct.

Ocean View School Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of Tidewater Drive and Mason Creek Road; thence southwesterly along Mason Creek Road to its intersection with W. Government Avenue; thence northwesterly along W. Government Avenue to its intersection with Interstate Highway Route 64; thence southerly along Interstate Highway Route 64 to its intersection with the northern line of Block 2 as shown on that certain plat entitled, "Corrected Replat of Subdivision of Lots 6, 7 & 8, Block 2, Willoughby Bay Corp.," dated November, 1926, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 6 at Pages 54A & 54B; thence northwesterly along said northern line of Block 2 to the west line of Lot 10, in said Block 2; thence southwesterly along the west line of Lot 10 in said Block 2 to its intersection with Orange Avenue; thence northwesterly along Orange Avenue to its intersection with O'Connor Crescent; thence northeasterly along O'Conner Crescent to the intersection of 4th View Street; thence northeasterly along 4th View Street to the intersection of Interstate Highway Route 64; thence northerly and northwesterly along Interstate Highway Route 64 to its intersection with the northern shoreline of Willoughby Bay; thence meandering in a generally westerly direction along the northern shoreline of Willoughby Bay to the intersection of the shoreline of Willoughby Bay and Interstate Highway Route 64 near the southern shoreline of the Chesapeake Bay; thence northwesterly along Interstate Highway Route 64 to its intersection with the corporate limits line of the City of Norfolk; thence easterly and southeasterly along said corporate limits line as it follows the southerly shoreline of Chesapeake Bay to its intersection with the extension of the eastern right-of-way line of 3rd View Street extended to the shore line of the Chesapeake Bay; thence southwesterly along the said extension of the eastern right-of-way line extended to its intersection with W. Ocean View Avenue; thence southeasterly along W. Ocean View Avenue to its intersection with

Tidewater Drive; thence southeasterly along Tidewater Drive to its intersection with Mason Creek road, the point of beginning.
(Ord. No. 48,764, § 3, 5-10-22)

Editor's note—Prior to reenactment by Ord. No. 48,764, Ord. No. 38,313, § 2, adopted March 26, 1996, repealed § 14.1-13, which described the boundaries of the Granby High Precinct, and which was derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-14. Northside Precinct.

Northside Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Bay Avenue and Granby Street; thence easterly along Bay Avenue to its intersection with Hammett Avenue; thence northerly along Hammett Avenue to its intersection with Tidewater Drive; thence southeasterly along Tidewater Drive to its intersection with the northern boundary line of Northside Park; thence westerly along the northern boundary line of Northside Park and the northern boundary extended to its intersection with the centerline of Mason Creek; thence westerly along the centerline of Mason Creek to its intersection with Granby Street; thence westerly and northwesterly along the centerline of Mason Creek to the intersection of the line dividing Merrimac Park and the Norfolk Naval Base; thence northerly along said dividing line between Merrimac Park and the Norfolk Naval Base to its intersection with Bay Avenue; thence easterly along Bay Avenue to the intersection of Granby Street, the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,495, § 7, 10-9-01)

Sec. 14.1-15. Reserved.

Editor's note—Section 1 of Ord. No. 37,346, adopted July 27, 1993, repealed § 14.1-15, which pertained to the Atwood Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-16. Titustown Precinct.

Titustown Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of Granby Street and the centerline of Mason Creek; thence northwesterly along the centerline of Mason Creek to the intersection of the line dividing Merrimac Park and the Norfolk Naval Base; thence northerly along said dividing line between Merrimac Park and the Norfolk Naval Base to its intersection with Bay Avenue; thence easterly along Bay Avenue to its intersection with First View Street; thence northeasterly along First View Street to its intersection with Ridgewell Avenue; thence northerly and northwesterly along Ridgewell Avenue to its intersection with Rippard Avenue; thence northeasterly and northerly along Rippard Avenue to its intersection with O'Conner Crescent; thence northeasterly and northerly along O'Conner Crescent to its intersection with 4th View Street; thence northeasterly along 4th View Street to its intersection with Interstate Highway Route 64; thence northerly and northwesterly along Interstate Highway Route 64 to its intersection with the eastern shoreline of Willoughby Bay; thence meandering southerly, westerly and southerly along the eastern shoreline of Willoughby Bay to the intersection of said shoreline and Bellinger Boulevard; thence westerly along Bellinger Boulevard to its intersection with Admiral Tausig Boulevard; thence westerly along Admiral Tausig Boulevard to its intersection with Hampton Boulevard; thence southerly along Hampton Boulevard to its intersection with the westerly extension of the northern boundary line of Glenwood Annex as shown on that certain plat titled "Amended Plat property of Glenwood Annex Corporation," dated October, 1909, and duly recorded in Clerk's Office of the Circuit Court of City of Chesapeake, Virginia in Map book 10, at Pages 71, 72 and 73; thence easterly along said westerly extension of the northern boundary line and the said northern boundary line said of Glenwood Annex to the eastern boundary line of said Glenwood Annex in Boush Creek; thence southerly along said eastern boundary line of Glenwood Annex along the meanders of Boush Creek to the northeast corner of Terminal Heights as shown on that certain plat entitled "Terminal Heights," dated July 9, 1913, and duly recorded in the Clerk's Office of the Circuit Court of City of Chesapeake, Virginia in Map book 13, at Page 97; thence southerly, westerly and northerly along the eastern, southern and western boundary lines of said Terminal Heights to the southeast

corner of Glenwood Park as shown on that certain plat entitled "Glenwood Park," date of recordation being November 26, 1907, duly recorded Clerk's Office of the Circuit Court of City of Chesapeake, Virginia in Map book 8, at Page 1; thence westerly along the said southern boundary line of Glenwood Park to its intersection with Hampton Boulevard; thence southeasterly along Hampton Boulevard to its intersection with an extension of the northern boundary line of the property shown on that certain plat titled "Subdivision of Property of Catherine I. Gilleland," dated October 3, 1985, and duly recorded in the Clerk's Office of the Circuit Court of City of Norfolk, Virginia in Map book 42, at Page 17, said northern boundary line also being the southern boundary line of the Virginia Ports Authority; thence easterly along the extension of the said northern boundary line and the said southern boundary line of the Virginia Ports Authority to the intersection with Harrison Road, shown as "Road" on plat entitled "White Town" dated August 26, 1918, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 16, at Page 31; thence eastward along Harrison Road to the intersection with Meads Road; thence along Meads Road to the intersection with the prolonged line between Lot 11 as shown on plat entitled "Boulevard Homes", dated November 1946 recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 12, at Page 88A and Lot 8 as shown on plat entitled "North Shore Gardens", dated May 1950 recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 13, at Page 110; thence northeastward along the line between said Lots 11 and 8 to the southern boundary line of the Virginia Ports Authority; thence easterly along said southern boundary line of the Virginia Ports Authority to the western boundary line of North Titustown as shown on that certain plat entitled "Subdivision of Lots 1 to 28 incl., Block 14 Amended Plat of North Titustown," dated September, 1962, and duly recorded in the Clerk's Office of the Circuit Court of City of Norfolk, Virginia in Map book 19, at Page 61; thence southerly along the said western boundary line of said North Titustown to its intersection with W. Little Creek Road; thence westerly along W. Little Creek Road to its intersection with Tapley Avenue; thence southerly along Tapley Avenue to its intersection with Milton Street; thence easterly along Milton Street to the intersection of Milton Street and the westerly boundary of Logan Park as shown on that certain plat entitled "Logan Park," dated 1909 and duly recorded in the Clerk's Office of the Circuit Court of City of Chesapeake, Virginia in Map book 9, at Pages 69 and 71; thence southerly, southwesterly and easterly along the boundary lines of said Logan Park to the intersection of the easterly extension of the southern boundary line of said Logan Park and Diven Street; thence southerly along Diven Street to the intersection of Diven Street and the westerly extension of the northern line of Lot 43A as shown that certain plat entitled "Plat of property of A. T. Stroud at Sewells Point Norfolk Co. Va. known as Titustown," dated April, 1901, and recorded in the City of Chesapeake Clerk's Office of the Circuit Court in Map Book 10, at Page259; thence easterly along the northern line of Lot 43A to where it intersects with the western line of Lot 44B as shown on "Titustown" plat; thence southward along the back property lines of Lots 43A and 45 as shown on "Titustown" plat to the southern boundary of "Titustown"; thence easterly along the southern boundary line of said "Titustown" to the southeastern most corner of Lot 59 as shown on the aforementioned plat; thence northwesterly and northerly along the eastern line of the said Titustown plat to its intersection with W. Little Creek Road; thence, easterly along W. Little Creek Road to its intersection with the southerly extension of the western line of Block 1, as shown on that certain plat entitled "Sussex at Norfolk," dated June 1, 1947, and duly recorded in the Clerk's Office of the Circuit Court of City of Norfolk, Virginia in Map Book 12, at Page 119; thence, northerly along the western line of Block 1, across Meads Road and long the western and northern lines of Block 9 of aforesaid plat to its intersection with Ruthven Road; thence, northerly along Ruthven Road to its intersection with Terminal Boulevard; thence easterly along Terminal Boulevard to its intersection with Interstate Highway Route 564; thence, southeasterly along Interstate Highway Route 564 to its intersection with Granby Street; thence

northerly along Granby Street to its intersection with the centerline of Mason Creek, the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93; Ord. No. 40,495, § 8, 10-9-01; Ord. No. 44,568, § 1, 2-28-12; Ord. No. 47,294, § 4, 7-24-18; Ord. No. 48,764, § 4, 5-10-22)

Sec. 14.1-17. Wesley Precinct.

Wesley Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of E. Little Creek Road and Tidewater Drive; thence southerly along Tidewater Drive to its intersection with Interstate Highway Route 64; thence northwesterly along Interstate Highway Route 64 to its intersection with E. Little Creek Road; thence southwesterly along E. Little Creek Road to its intersection with the Norfolk and Southern Railway; thence northwesterly along the Norfolk and Southern Railway to its intersection with Granby Street; thence northerly along Granby Street to its intersection with the centerline of Mason Creek; thence easterly along the centerline of Mason Creek to the extension of the northern boundary line of Northside Park; thence easterly along said extension and the northern boundary line of Northside Park to its intersection with Tidewater Drive; thence southerly along Tidewater Drive to its intersection with Little Creek Road, the point of beginning.
(Ord. No. 48,764, § 5, 5-10-22)

Editor's note—Prior to reenactment by Ord. No. 48,764, Ord. No. 44,568, § 14, adopted Feb. 28, 2012, repealed § 14.1-17, which pertained to Tucker House Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992; Ord. No. 37,346, § 2, adopted July 27, 1993; and Ord. No. 40,495, § 9, adopted Oct. 9, 2001.

DIVISION 2. WARD 2

Sec. 14.1-18. Ghent Square Precinct.

Ghent Square Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Princess Anne Road and Monticello Avenue; thence southerly along Monticello Avenue to its intersection with St. Paul's Boulevard; thence southerly along St. Paul's Boulevard to its intersection with Brambleton Avenue; thence westerly along Brambleton Avenue to its intersection with Smith Creek; thence easterly along the southern bank of Smith Creek to its intersection with Memorial Place; thence northerly along Memorial Place to its intersection with Mowbray Arch; thence westerly along Mowbray Arch to its intersection with Colonial Avenue; thence northerly along Colonial Avenue to its intersection with Beechwood Place; thence easterly and northerly along Beechwood Place to its intersection with Pembroke Avenue; thence westerly along Pembroke Avenue to its intersection with Colonial Avenue; thence northerly along Colonial Avenue to its intersection with Westover Avenue; thence southeasterly along Westover Avenue to its intersection with Botetourt Gardens at the square; thence northeasterly and southeasterly around the square, and northeasterly along Botetourt Gardens to its intersection with Princess Anne Road; thence southeasterly along Princess Anne Road to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-19. Chrysler Museum Precinct.

Chrysler Museum Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Brambleton Avenue and St. Paul's Boulevard; thence southerly along St. Paul's Boulevard to the intersection of St. Paul's Boulevard and Waterside Drive; thence easterly along Waterside Drive to the line of the Berkley Bridge; thence southerly along the line of the Berkley Bridge to the Eastern Branch of the Elizabeth River; thence westerly along the Eastern Branch of the Elizabeth River to its intersection with the corporate limits line of the city; thence northerly along the corporate limits line as it follows the Elizabeth River to the intersection with the Midtown Tunnel; thence northeasterly along the Midtown Tunnel and its approach ramp to its intersection with Hampton Boulevard at Redgate Avenue; thence easterly along Redgate Avenue to its intersection with Colonial Avenue; thence southerly along Colonial Avenue to its intersection with Pembroke Avenue; thence easterly along Pembroke Avenue to its intersection with Beechwood Place; thence southerly and westerly along Beechwood Place

to its intersection with Colonial Avenue; thence southerly along Colonial Avenue to its intersection with Mowbray Arch; thence easterly along Mowbray Arch to its intersection with Memorial Place; thence southerly along Memorial Place to its intersection with Smith Creek; thence westerly along the southern bank of Smith Creek to its intersection with Brambleton Avenue; thence easterly along Brambleton Avenue to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 41,121, § 1, 8-19-03)

Sec. 14.1-20. Taylor Elementary School Precinct.

Taylor Elementary School Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of the Norfolk and Southern Railroad and Colley Avenue; thence southerly along Colley Avenue to its intersection with Redgate Avenue; thence westerly along Redgate Avenue to its intersection with Hampton Boulevard at the approach ramp to the Midtown Tunnel; thence southwesterly along the approach ramp to the Midtown Tunnel and the Midtown Tunnel to its intersection with the corporate limits line of the city as it follows the Elizabeth River; thence northerly along the corporate limits line of the city as it follows the Elizabeth River to its intersection with the western prolongation of the northern property line of the Norfolk and Southern Railroad; thence easterly along the prolongation of the northern property line of the Norfolk and Southern Railroad, and along the northern property line of the Norfolk and Southern Railroad to its intersection with Parker Avenue; thence southerly along Parker Avenue and its southerly prolongation to its intersection with Norfolk and Southern Railroad; thence easterly along Norfolk and Southern Railroad to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 41,756, § 1, 3-22-05)

Sec. 14.1-21. Maury Precinct.

Maury Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of the centerline of Colley Avenue with the centerline of Redgate Avenue; thence running northwardly along the centerline of Colley Avenue to the Norfolk and Western Railway; thence eastwardly along the centerline of the Norfolk and Western Railway to Monticello Avenue; thence southwardly along the centerline of Monticello Avenue to Princess Anne Road; thence westwardly along the centerline of Princess Anne Road to Botetourt Gardens; thence southwardly along the centerline of Botetourt Gardens to the square; thence northwestwardly and southwestwardly around the square to Westover Avenue; thence westwardly along Westover Avenue to the centerline of Colonial Avenue to Redgate Avenue; thence westwardly along the centerline of Redgate Avenue to Colley Avenue, the point of the beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 36,785, § 2, 3-31-92)

Sec. 14.1-22. Virginia Zoo Precinct.

Virginia Zoo Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of 38th Street and Colley Avenue; thence northerly along Colley Avenue to its intersection with Michigan Avenue; thence easterly along Michigan Avenue to its intersection with Mayflower Road; thence northerly along Mayflower Road and along its northerly prolongation to its intersection with the center of the Lafayette River; thence easterly and southerly along the center of the Lafayette River to its intersection with the easterly prolongation of La Vallette Avenue; thence westerly along the prolongation of and along La Vallette Avenue to its intersection with Granby Street; thence northerly along Granby Street to its intersection with Delaware Avenue; thence westerly along Delaware Avenue to its intersection with Omohundro Avenue; thence southerly along Omohundro Avenue to its intersection with 38th Street; thence westerly along 38th Street to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 48,764, § 6, 5-10-22))

Sec. 14.1-23. Larchmont School Precinct.

Larchmont School Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of Hampton Boulevard and the centerline of Magnolia Avenue; thence, eastwardly along the centerline of Magnolia Avenue to the centerline of Jamestown Crescent; thence, southwardly along the centerline of Jamestown Crescent to the centerline of Colley Bay; thence, eastwardly to the centerline of the Lafayette River to the centerline of Knitting Mill Creek; thence, southwardly along the centerline of Knitting Mill Creek to the eastwardly prolongation of the centerline of 47th Street; thence, westwardly along the prolongation and centerline of 47th Street to the centerline of Hampton Boulevard; thence, southwardly along the centerline of Hampton Boulevard to its intersection with the centerline of 43rd Street; thence, westerly along the centerline of 43rd Street to its intersection with the centerline of Powhatan Avenue; thence southerly along the centerline of Powhatan Avenue to its intersection with the centerline of 38th Street; thence, easterly along the centerline of 38th Street to its intersection with the centerline of Parker Avenue; thence, southerly along the centerline of Parker Avenue to its intersection with the northern line of the Norfolk and Southern Railway; thence, northwesterly and westerly along the northern line of the Norfolk and Southern Railway and the westerly prolongation of the northern line to its intersection with the western corporate limits line of the city in the Elizabeth River; thence, northerly along the western corporate limits line of the city in the Elizabeth River to its intersection with the westerly prolongation of the centerline of Magnolia Avenue; thence easterly along the westerly prolongation of the centerline of Magnolia Avenue to the centerline of Hampton Boulevard, the point of beginning.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,617, § 2, 2-19-02; Ord. No. 44,568, § 2, 2-28-12; Ord. No. 46,921, § 1, 8-22-17)

Sec. 14.1-24. Larchmont UMC Precinct.

Larchmont UMC Precinct shall consist of that part of the city which is bounded as follows: Beginning at the centerline of Hampton Boulevard and the centerline of Magnolia Avenue; thence, westwardly along the centerline of Magnolia Avenue, and along the prolongation westwardly thereof into the Elizabeth River and the western corporate limits line of the city in the Elizabeth River; thence, northwardly along the western corporate limits line of the city in the Elizabeth River to a point opposite the mouth and centerline of the Lafayette River; thence, eastwardly and southwardly along the centerline of the Lafayette River to its intersection with the centerline of Colley Bay; thence, westwardly along the centerline of Colley Bay to the centerline of Jamestown Crescent; thence, northwardly along the centerline of Jamestown Crescent to the centerline of Magnolia Avenue; thence, westwardly along the centerline of Magnolia Avenue to the centerline of Hampton Boulevard, the point of beginning.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 46,921, § 4, 8-22-17; Ord. No. 50,046, § 1, 7-15-25)

Sec. 14.1-25. Reserved.

Editor's note—Ord. No. 44,568, § 15, adopted Feb. 28, 2012, repealed § 14.1-25, which pertained to Larchmont Recreation Center Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-26. Suburban Park Precinct.

Suburban Park Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Afton Avenue and Granby Street; thence northerly along Granby Street to its intersection with the Norfolk and Southern Railroad; thence southeasterly along the Norfolk and Southern Railroad to its intersection with Little Creek Road; thence northeasterly along Little Creek Road to its intersection with Interstate Highway Route 64; thence southeasterly along Interstate Highway Route 64 to its intersection with Tidewater Drive; thence southerly along Tidewater Drive to its intersection with the easterly prolongation of the Northern Branch of the Lafayette River; thence westerly along the prolongation of the Northern Branch of the Lafayette River, and southwesterly along the Northern Branch of the Lafayette River to its intersection with the easterly prolongation of Afton Avenue, as said river divides the subdivisions of Cromwell Farm and Suburban Acres

from Roland Park; thence westerly along the prolongation of Afton Avenue and Afton Avenue to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-27. Willard Precinct.

Willard Precinct shall consist of that part of the City of Norfolk which is bounded as follows: Beginning at the intersection of Tidewater Drive and Cromwell Drive; thence southerly along Tidewater Drive to its intersection with Lafayette Boulevard; thence westerly and southwesterly along Lafayette Boulevard to its intersection with the center of the Lafayette River; thence northerly, northwesterly, and northerly along the Lafayette River to its intersection with the westerly prolongation of Kingsley Lane; thence easterly along the prolongation of Kingsley Lane and Kingsley Lane to its intersection with Granby Street; thence northerly along Granby Street to its intersection with Afton Avenue; thence easterly along Afton Avenue and its easterly prolongation to its intersection with a northern branch of the Lafayette River; thence northerly and northeasterly along said northern branch of the Lafayette River and its northeasterly prolongation to its intersection with Tidewater Drive, as said river divides the subdivisions of Cromwell Farm and Suburban Acres from Roland Park; thence southerly along Tidewater Drive to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 36,785, § 3, 3-31-92; Ord. No. 44,568, § 3, 2-28-12)

Sec. 14.1-28. Reserved.

Editor's note—Ord. No. 44,568, § 16, adopted Feb. 28, 2012, repealed § 14.1-28, which pertained to Lafayette Precinct and derived from Ord. No. 36, 727, § 2, adopted Jan. 28, 1992; Ord. No. 36,785, § 2, adopted March 31, 1992; and Ord. No. 40,617, § 4, adopted Feb. 19, 2002.

Sec. 14.1-29. Reserved.

Editor's note—Ord. No. 40,617, § 1, adopted Feb. 19, 2002, repealed § 14.1-29, which pertained to the Lafayette Presbyterian Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-30. Crossroads Precinct.

Crossroads Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Fishermans Road and Chesapeake Boulevard; thence southerly along Chesapeake Boulevard to the intersection of Chesapeake Boulevard and Little Creek Road; thence westerly along Little Creek Road to the intersection of Little Creek Road and Tidewater Drive; thence northerly along Tidewater Drive to the intersection of Tidewater Drive and Hammett Avenue; thence northerly along Hammett Avenue to the intersection of Hammett Avenue and Old Ocean View Road; thence southeasterly along Old Ocean View Road to the intersection of Old Ocean View Road and Dune Street; thence easterly on Dune Street to the intersection of Dune Street and Chesapeake Boulevard; thence southerly along Chesapeake Boulevard to the intersection of Fishermans Road and Chesapeake Boulevard, the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,495, § 10, 10-9-01)

Sec. 14.1-31. Reserved.

Editor's note—Section 1 of Ord. No. 40,495, adopted Oct. 9, 2001, repealed § 14.1-31, which pertained to boundaries of the Therapeutic Center Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-32. Park Place Precinct.

Park Place Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Llewellyn Avenue and the Norfolk and Southern Railway; thence westerly along the Norfolk and Southern Railway to its intersection with Colley Avenue; thence northerly along Colley Avenue to its intersection with 24th Street; thence westerly along 24th Street to its intersection with Morton Avenue; thence southerly along Morton Avenue to its intersection with 23rd Street; thence westerly along 23rd Street to its intersection with Killam Avenue; thence northerly along Killam Avenue to its intersection with 35th Street; thence easterly along 35th Street to its intersection with Granby Street; thence northerly along Granby Street to its intersection with La Vallette Avenue; thence easterly along La Vallette Avenue and its easterly extension to its intersection with the center of the Lafayette River; thence southerly along the center of the Lafayette River to its intersection with 26th Street; thence southwesterly along

26th Street to its intersection with Villa Circle; thence northwesterly along Villa Circle to its intersection with Rialto Place; thence southwesterly along Rialto Place to its intersection with 30th Street; thence westerly along 30th Street to its intersection with Gazel Street; thence southerly along Gazel Street to its intersection with 29th Street; thence westerly along 29th Street to its intersection with Church Street; thence southerly along Church Street to its intersection with the Norfolk and Southern Railway; thence westerly along the Norfolk and Southern Railway to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,617, § 5, 2-19-02)

Sec. 14.1-33. Reserved.

Editor's note—Ord. No. 44,568, § 17, adopted Feb. 28, 2012, repealed § 14.1-33, which pertained to Immanuel precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992; and Ord. No. 37,346, § 2, adopted July 27, 1993.

Sec. 14.1-34. Lambert's Point Precinct.

Lambert's Point Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of 35th Street and Killam Avenue; thence southerly along Killam Avenue to its intersection with 23rd Street; thence southeasterly along 23rd Street to its intersection with Morton Avenue; thence northerly along Morton Avenue to its intersection with 24th Street; thence southeasterly along 24th Street to its intersection with Colley Avenue; thence southwesterly along Colley Avenue to its intersection with the Norfolk and Southern Railroad; thence northwesterly along the Norfolk and Southern Railroad to its intersection with Parker Avenue; thence northerly along Parker Avenue to its intersection with 38th Street; thence westerly along 38th Street to its intersection with Powhatan Avenue; thence northerly along Powhatan Avenue to its intersection with 43rd Street; thence easterly along 43rd Street to its intersection with Hampton Boulevard; thence northerly along Hampton Boulevard to its intersection with 47th Street; thence easterly along 47th Street and the easterly prolongation of 47th Street to its intersection with Mayflower Road; thence southerly along Mayflower Road to its intersection with Michigan Avenue; thence westerly along Michigan Avenue to its intersection with Colley Avenue; thence southerly along Colley Avenue to its intersection with 38th Street; thence easterly along 38th Street to its intersection with Omohundro Avenue; thence northerly along Omohundro Avenue to its intersection with Delaware Avenue; thence easterly along Delaware Avenue to its intersection with Granby Street; thence southerly along Granby Street to its intersection with 35th Street; thence westerly along 35th Street to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 44,568, § 4, 2-28-12)

Sec. 14.1-35. Reserved.

Editor's note—Ord. No. 48,764, intro ¶, adopted May 10, 2022, repealed § 14.1-35, which pertained to Wesley Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992; Ord. No. 40,495, § 11, adopted Oct. 9, 2001.

DIVISION 3. WARD 3

Sec. 14.1-36. Broad Creek Precinct.

[Broad Creek Precinct] Bowling Park Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Virginia Beach Boulevard and the Norfolk and Southern Railway; thence westerly along Virginia Beach Boulevard to its intersection with Oaklawn Avenue; thence southerly along Oaklawn Avenue to its intersection with Corprew Avenue; thence westerly along Corprew Avenue to its intersection with Park Avenue; thence northerly along Park Avenue to its intersection with Princess Anne Road and Lead Street; thence northeasterly and northerly along Lead Street to its intersection with St. Julian Avenue; thence easterly along St. Julian Avenue to its intersection with a branch of the Lafayette River; thence northerly and westerly along a branch of the Lafayette River to its intersection with the southwesterly extension of Chesapeake Boulevard; thence northeasterly along the extension of Chesapeake Boulevard, and Chesapeake Boulevard to its intersection with Tait Terrace; thence easterly along Tait Terrace to its intersection with Ingleside Road; thence southeasterly along Ingleside Road to its intersection with the

Norfolk and Southern Railway; thence southerly along the Norfolk and Southern Railway to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,617, § 11, 2-19-02; Ord. No. 42,312, § 1, 6-20-06; Ord. No. 46,792, § 1, 4-11-17)

Sec. 14.1-37. Union Chapel Precinct.

Union Chapel Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Tidewater Drive and the Norfolk and Southern Railway; thence northerly along Tidewater Drive to its intersection with the Lafayette River; thence easterly and southerly along the Lafayette River to its intersection with St. Julian Avenue; thence westerly along St. Julian Avenue to its intersection with Lead Street; thence southerly and southwesterly along Lead Street to its intersection with Princess Anne Road and Park Avenue; thence southerly along Park Avenue to its intersection with Corprew Avenue; thence westerly along Corprew Avenue to its intersection with the Norfolk and Southern Railway; thence northerly along the Norfolk and Southern Railway to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,617, § 12, 2-19-02; Ord. No. 42,312, § 2, 6-20-06)

Sec. 14.1-38. Lindenwood Precinct.

Lindenwood Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Tidewater Drive and the Norfolk and Southern Railroad; thence westerly along the Norfolk and Southern Railroad to its intersection with Church Street; thence northerly along Church Street to its intersection with 29th Street; thence easterly along 29th Street to its intersection with Gazel Street; thence northerly along Gazel Street to its intersection with 30th Street; thence easterly along 30th Street to its intersection with Rialto Place; thence northeasterly along Rialto Place to its intersection with Villa Circle; thence southeasterly along Villa Circle to its intersection with 26th Street; thence northeasterly along 26th Street and Lafayette Boulevard to its intersection with Tidewater Drive; thence southerly along Tidewater Drive to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-39. Reserved.

Editor's note—Ord. No. 40,617, § 1, adopted Feb. 19, 2002, repealed § 14.1-39, which pertained to the Monroe Precinct and derived from Ord. No. 36.727, § 2, adopted Jan. 28, 1992; and Ord. No. 37,346, § 2, adopted July 27, 1993.

Sec. 14.1-40. Ballentine Precinct.

Ballentine Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of the Norfolk and Southern Railroad and Argonne Avenue; thence southerly along the Norfolk and Southern Railroad to its intersection with Ingleside Road; thence northwesterly along Ingleside Road to its intersection with Tait Terrace; thence westerly along Tait Terrace to its intersection with Chesapeake Boulevard; thence southwesterly along the southern prolongation of Chesapeake Boulevard to its intersection with the southern branch of the Lafayette River; thence northwesterly along the southern branch of the Lafayette River to its intersection with Tidewater Drive; thence northerly along Tidewater Drive to its intersection with Pershing Avenue; thence easterly along Pershing Drive to its intersection with Marne Avenue; thence northerly along Marne Avenue to its intersection with Cromwell Road; thence northwesterly along Cromwell Road to its intersection with Argonne Avenue; thence northeasterly along Argonne Avenue to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-41. Coleman Place School Precinct.

Coleman Place School Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Birch Street and Princess Anne Road; thence westerly along Princess Anne Road to its intersection with the Norfolk and Southern Railroad; thence northerly along the Norfolk and Southern Railroad to its intersection with Hanbury Street; thence easterly along Hanbury Street to its intersection with Montana Avenue; thence northerly along Montana

Avenue to its intersection with Lafayette Boulevard; thence easterly along Lafayette Boulevard to its intersection with Oklahoma Avenue; thence southerly along Oklahoma Avenue to its intersection with Peterson Street; thence easterly along Peterson Street to its intersection with Birch Street; thence southerly along Birch Street to its intersection with Cape Henry Avenue; thence easterly along Cape Henry Avenue to its intersection with Azalea Garden Road; thence southerly along Azalea Garden Road to its intersection with South Cape Henry Avenue; thence westerly along South Cape Henry Avenue to its intersection with Birch Street; thence southerly along Birch Street to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-42. Reserved.

Editor's note—Ord. No. 44,568, § 18, adopted Feb. 28, 2012, repealed § 14.1-42, which pertained to Sherwood School Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-43. Sherwood Precinct.

Sherwood Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Birch Street and Peterson Street; thence westerly along Peterson Street to its intersection with Oklahoma Avenue; thence northerly along Oklahoma Avenue to its intersection with Lafayette Boulevard; thence westerly along Lafayette Boulevard to its intersection with Montana Avenue; thence southerly along Montana Avenue to its intersection with Hanbury Street; thence westerly along Hanbury Street to its intersection with the Norfolk and Southern Railroad; thence northerly along the Norfolk and Southern Railroad to its intersection with Argonne Avenue; thence easterly and northerly along Argonne Avenue and its northerly prolongation to its intersection with a branch of the Lafayette River known as Wayne Creek; thence southerly and southeasterly along Wayne Creek to its intersection with Chesapeake Boulevard; thence continuing southeasterly along Wayne Creek along the dividing line of the subdivisions of Estabrook to the southwest and Norview Heights to the northeast to its intersection with the subdivisions of Estabrook, Plat #4 Norview Heights, and Greenwood Park; thence easterly along the dividing line of the subdivisions of Estabrook and Sherwood Forest Gardens from Greenwood Park to its intersection with the southern terminus of Essex Circle; thence northerly along Essex Circle to its intersection with Bankhead Avenue; thence northeasterly along Bankhead Avenue to its intersection with Sewells Point Road; thence southerly along Sewells Point Road to the intersection with Texas Avenue; thence northeasterly along Texas Avenue and the prolongation of Texas Avenue to its intersection with Interstate Highway Route 64; thence southeasterly along Interstate Highway Route 64 to its intersection with Azalea Garden Road; thence southwesterly and southerly along Azalea Garden Road to its intersection with Virginia Beach Boulevard; thence westerly along Virginia Beach Boulevard to its intersection with the Norfolk and Southern Railroad; thence northerly along the Norfolk and Southern Railroad to its intersection with Princess Anne Road; thence northeasterly along Princess Anne Road to its intersection with Birch Street; thence northerly along Birch Street to its intersection with South Cape Henry Avenue; thence easterly along South Cape Henry Avenue to its intersection with Azalea Garden Road; thence northeasterly along Azalea Garden Road to its intersection with Cape Henry Avenue; thence westerly along Cape Henry Avenue to its intersection with Birch Street; thence northerly along Birch Street to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93; Ord. No. 44,568, § 5, 2-28-12)

Sec. 14.1-44. Reserved.

Editor's note—Ord. No. 44,568, § 19, adopted Feb. 28, 2012, repealed § 14.1-44, which pertained to Norview Methodist Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992; and Ord. No. 37,346, § 2, adopted July 27, 1992.

Sec. 14.1-45. Norview Precinct.

Norview Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of Pugh Street and Widgeon Road; thence easterly along Widgeon Road to its intersection with Sewells Point Road;

thence northerly along Sewells Point Road to its intersection with Interstate Highway Route 64; thence easterly and southeasterly along Interstate Highway Route 64 to its intersection with the northeasterly prolongation of Texas Avenue; thence southwesterly along the prolongation of Texas Avenue and Texas Avenue to its intersection with Sewells Point Road; thence northerly along Sewells Point Road to its intersection with Bankhead Avenue; thence southwesterly along Bankhead Avenue to the intersection with Essex Circle; thence southeasterly along Essex Circle to its intersection with Windermere Avenue; thence westerly along Windermere Avenue and its westerly prolongation to its intersection with the dividing line of the subdivisions of Norview Heights and Greenwood Park; thence southwesterly along the dividing line of the subdivisions of Norview Heights and Plat #4 Norview Heights from Greenwood Park to its intersection with a branch of the Lafayette River known as Wayne Creek; thence northwesterly along Wayne Creek at the dividing line of the subdivisions of Estabrook to the southwest and Plat #4 Norview Heights to the northeast to its intersection with Chesapeake Boulevard; thence continuing northwesterly along Wayne Creek to its intersection with the Norfolk and Southern Railroad; thence northerly along the Norfolk and Southern Railroad to its intersection with Norview Avenue; thence easterly along Norview Avenue to its intersection with Sedgefield Drive; thence northerly along Sedgefield Drive to its intersection with the dividing line of Green Hill Farms, Plat 1, and Norview, Subdivision B; thence easterly and northerly along the dividing line of Green Hill Farms, Plats 1 and 2, from Norview, Subdivision B, Brock Tract, Sewells Gardens, and Property Market, Inc., to its intersection with the dividing line between Green Hill Farms, Plat 2, and the western terminus of the property line between lots 2 and 3, as shown on subdivision of property of Property Market, Inc. recorded in Map book 35 at Page 95; thence easterly along the property line between lots 2 and 3 of Property Market, Inc. to its intersection with Teal Court; thence easterly along Teal Court to its intersection with Devonshire Road; thence northerly along Devonshire Road to its intersection with Philpotts Road; thence westerly along Philpotts Road to its intersection with Pugh Road; thence northerly along Pugh Road to the point of beginning.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 41,520, § 2, 8-17-04; Ord. No. 44,568, § 6, 2-28-12; Ord. No. 48,764, § 7, 5-10-22)

Sec. 14.1-46. Lafayette-Winona Precinct.

Lafayette-Winona Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of Pershing Avenue and Tidewater Drive; thence northerly along Tidewater Drive to its intersection with Widgeon Road; thence easterly along Widgeon Road to its intersection with Pugh Street; thence southerly along Pugh Street to its intersection with Philpotts Road; thence easterly along Philpotts Road to its intersection with Devonshire Road; thence southerly along Devonshire Road to its intersection with Teal Court; thence westerly along Teal Court to its intersection with the eastern terminus of the property line between lots 2 and 3 as shown on subdivision of property of Property Market, Inc., recorded in Map Book 35 at Page 95; thence westerly along the property line between lots 2 and 3 of Property Market, Inc. to its intersection with the dividing line of Green Hill Farms, Plat 2; thence southerly and westerly along the dividing line of Green Hill Farms, Plats 1 and 2, from Norview, Subdivision B, Brock Tract, Sewells Gardens, and Property Market, Inc. to its intersection with Sedgefield Drive; thence southerly along Sedgefield Drive to its intersection with Norview Avenue; thence westerly along Norview Avenue to its intersection with the Norfolk and Southern Railroad; thence southerly along the Norfolk and Southern Railroad to its intersection with a northern branch of the Lafayette River known as Wayne Creek; thence southeasterly along Wayne Creek to its intersection with the northerly prolongation of Argonne Avenue; thence southerly, westerly and southwesterly along the prolongation of Argonne Avenue and Argonne Avenue to its intersection with Cromwell Drive; thence southeasterly along Cromwell Drive to its intersection with Marne Avenue; thence southerly along

Marne Avenue to its intersection with Pershing Avenue; thence westerly along Pershing Avenue to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 48,764, § 8, 5-10-22)

Sec. 14.1-47. Tanner's Creek Elementary School Precinct.

Tanner's Creek Elementary School Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Longdale Drive and West Tanners Creek Drive; thence easterly along Longdale Drive to its intersection with Military Highway; thence southerly along Military Highway to its intersection with Azalea Garden Road; thence southwesterly along Azalea Garden Road to its intersection with Interstate Highway Route 64; thence northerly along Interstate Highway Route 64 to its intersection with Picadilly Street; thence easterly along Picadilly Street to its intersection with Edward Street; thence northerly along Edward Street to its intersection with West Tanners Creek Drive; thence northerly along West Tanners Creek Drive to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93)

Sec. 14.1-48. Rosemont Precinct.

Rosemont Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Little Creek Road and Military Highway; thence southeasterly along Military Highway to its intersection with Longdale Drive; thence westerly along Longdale Drive to its intersection with West Tanners Creek Drive; thence southeasterly along West Tanners Creek Drive to its intersection with Edward Street; thence southerly along Edward Street to its intersection with Picadilly Street; thence westerly along Picadilly Street to its intersection with Interstate Highway Route 64; thence northwesterly along Interstate Highway Route 64 to its intersection with Sewells Point Road; thence southerly along Sewells Point Road to its intersection with Widgeon Road; thence westerly along Widgeon Road to its intersection with Tidewater Drive; thence northerly along Tidewater Drive to its intersection with Little Creek Road; thence easterly along Little Creek Road to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92)

DIVISION 4. WARD 4

Sec. 14.1-49. Barron F. Black Library Precinct.

Barron Black Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of N. Military Highway and Longdale Drive; thence southeasterly along N. Military Highway to its intersection with Interstate Highway Route 64; thence easterly and southeasterly along said Interstate Highway Route 64 to its intersection with Northampton Boulevard; thence northeasterly along Northampton Boulevard to its intersection with the eastern corporate city limits line of the cities of Norfolk and Virginia Beach; thence northwesterly and northeasterly along said corporate city limits line to its intersection with Shore Drive; thence northwesterly along Shore Drive and the eastern corporate city limits line to its intersection with the spillway at Lake Whitehurst; thence southwesterly across the spillway to the centerline of Lake Whitehurst; thence southwesterly, southerly and southwesterly along the centerline of Lake Whitehurst to its intersection with the centerline of the western branch of Lake Whitehurst; thence northwesterly along the centerline of the western branch of Lake Whitehurst to its intersection with the centerlines of the northern and southern branches of the western branch of Lake Whitehurst; thence southwesterly along the centerline of the southern branch of the western branch of Lake Whitehurst to a point opposite and north of the northeast corner of property shown on that certain subdivision plat entitled "Subdivision of "Bromley" Incorp., Princess Anne County, Va.," dated February, 1955, and recorded in the City of Virginia Beach clerk's office of the circuit court in Map Book 38, at Page 40; thence southerly to the said northeast corner; thence southwesterly along the north boundary line of said "Bromley" subdivision plat to the eastern boundary line of

Parcel A as shown on that certain plat entitled "Revised Plat of Part of Subdivision of Meadowbrook Terrace", dated May 02, 1961 and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 18, at Page 85; thence northerly and westerly along the northern boundary line of said Parcel A to its intersection with Fordwick Drive; thence northwesterly along Fordwick Drive to its intersection with Longdale Drive; thence southwesterly along Longdale Drive to its intersection with N. Military Highway, the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93; Ord. No. 40,495, § 12, 10-9-01; Ord. No. 48,764, § 9, 5-10-22)

Sec. 14.1-50. Reserved.

Editor's note—Ord. No. 48,764, intro ¶, adopted May 10, 2022, repealed § 14.1-50, which pertained to Azalea Gardens Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992; Ord. No. 37,346, § 2, adopted July 27, 1993; Ord. No. 40,495, § 13, adopted Oct. 9, 2001.

Sec. 14.1-51. Campostella Precinct.

Campostella Precinct shall consist of that part of the city which is bounded as follows: On the north by the Eastern Branch of the Elizabeth River, on the east and south by the limits of the city, which is to say, beginning at the Norfolk and Western Railway bridge at the junction of the Eastern Branch of the Elizabeth River and the Indian River; thence southwestwardly along the Norfolk and Western Railway to the center of Berkley Avenue Extended; thence northwestwardly along the center of Berkley Avenue Extended to its intersection with the centerline of the Norfolk and Western Railway Company right-of-way which lies immediately west of Marsh Street; and bounded on the west by the centerline of the Norfolk and Western Railway Company right-of-way which extends northwestwardly from Berkley Avenue Extended, to the Eastern Branch of the Elizabeth River.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-52. Berkley Precinct.

Berkley Precinct shall consist of that part of the city which is bounded as follows: On the west by the Southern Branch of the Elizabeth River, on the north by the Eastern Branch of the Elizabeth River, on the east by the Norfolk and Western Railway Company right-of-way, and on the south by the southern limits of the city, which is to say, beginning at the intersection of the centerline of the Norfolk and Western Railway Company right-of-way which lies immediately west of Marsh Street, and the center of Berkley Avenue Extended; thence northwestwardly along the center of Berkley Avenue Extended to the center of Obendorfer Road; thence southwestwardly along the center of Obendorfer Road to the center of Liberty Street; thence southeastwardly along the center of Liberty Street a distance of about one hundred fifty (150) feet to the center of the railroad spur in Chesterfield Street; thence southwestwardly along the line of the railroad spur, and the extension southwestwardly thereof to a point distant about three hundred thirty (330) feet southwestwardly from Bainbridge Boulevard; thence westwardly to the center of Mile Run Creek, and thence continuing westwardly along the center of Mile Run Creek to the Southern Branch of the Elizabeth River.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-53. Chesterfield Precinct.

Chesterfield Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Virginia Beach Boulevard and the Norfolk and Southern Railroad; thence southerly along the Norfolk and Southern Railroad to its intersection with Westminster Avenue; thence easterly along Westminster Avenue to its intersection with Cedar Point Drive; thence southerly along Cedar Point Drive and its extension thereof to its intersection with the corporate limits line of the city at the Eastern Branch of the Elizabeth River; thence westerly along the corporate limits line of the cities of Norfolk and Chesapeake along the Eastern Branch of the Elizabeth River and continuing westerly along the Eastern Branch of the Elizabeth River to its intersection with Brambleton Avenue; thence northerly along Brambleton Avenue to its intersection with Park Avenue; thence northerly along Park Avenue to its intersection with Corprew Avenue; thence easterly along Corprew Avenue to its intersec-

tion with Oaklawn Avenue; thence northerly along Oaklawn Avenue to its intersection with Virginia Beach Boulevard; thence easterly along Virginia Beach Boulevard to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 47,294, § 5, 7-24-18)

Sec. 14.1-54. Reserved.

Editor's note—Ord. No. 47,294, § 7, adopted July 24, 2018, repealed § 14.1-54, which pertained to Brambleton Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-55. Young Park Precinct.

Young Park Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Tidewater Drive and the Norfolk and Southern Railroad; thence southerly along Tidewater Drive to its intersection with Virginia Beach Boulevard; thence westerly along Virginia Beach Boulevard to its intersection with Church Street; thence southerly along Church Street to its intersection with Brambleton Avenue; thence westerly along Brambleton Avenue to its intersection with St. Paul's Boulevard; thence northerly along St. Paul's Boulevard to its intersection with Monticello Avenue; thence northerly along Monticello Avenue to its intersection with the Norfolk and Southern Railroad; thence easterly along the Norfolk and Southern Railroad to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-56. Ruffner Academy Precinct.

Ruffner Academy Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Brambleton Avenue and St. Paul's Boulevard; thence, easterly along Brambleton Avenue to its intersection with Church Street; thence, northerly along Church Street to its intersection with Virginia Beach Boulevard; thence, easterly along Virginia Beach Boulevard to its intersection with Tidewater Drive; thence northerly along Tidewater Drive to its intersection with Norfolk and Southern Railroad; thence southerly along the Norfolk and Southern Railroad to its intersection with Corprew Avenue; thence easterly along Corprew Avenue to its intersection with Park Avenue; thence southwesterly along Park Avenue to its intersection with Brambleton Avenue; thence southeasterly along Brambleton Avenue to its intersection with Eastern Branch of the Elizabeth River; thence westerly along Eastern Branch of the Elizabeth River to its intersection with the Berkley Bridge; thence northerly along Berkley Bridge to its intersection with Waterside Drive; thence westerly along Waterside Drive to its intersection with St. Paul's Boulevard; thence northerly along St. Paul's Boulevard to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 45,672, § 1, 9-9-14, eff. 11-5-14; Ord. No. 47,294, § 6, 7-24-18)

Sec. 14.1-57. Ingleside Precinct.

Ingleside Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of the centerline of the Norfolk and Southern Railway Company right-of-way and the centerline of Westminster Avenue; thence eastwardly along Westminster Avenue to its intersection with Cedar Point Drive; thence southerly along Cedar Point Drive and its elongation thereof to its intersection with the corporate city limit lines in the Eastern Branch of the Elizabeth River; thence eastwardly along the corporate boundary line of the city in the Eastern Branch of the Elizabeth River to Broad Creek; thence northwardly along the centerline of Broad Creek to Virginia Beach Boulevard; thence westwardly along the centerline of Virginia Beach Boulevard to the Norfolk and Western Railway Company right-of-way; thence southeastwardly along the centerline of said right-of-way to Westminster Avenue, the point of the beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-58. Poplar Halls Precinct.

Poplar Halls Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of the centerline of Military Highway and the southern corporate boundary line of the City of Norfolk in the centerline of the Elizabeth River; thence running southwestwardly and northwestwardly along said

corporate boundary line to Broad Creek; thence northwardly and northeastwardly along the centerline of Broad Creek to Military Highway; thence southwardly along the centerline of Military Highway to the southern corporate boundary line of the City of Norfolk in the Eastern Branch of the Elizabeth River, the point of the beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-59. Eastside Precinct.

Eastside Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Military Highway and Virginia Beach Boulevard; thence easterly along Virginia Beach Boulevard to its intersection with Newtown Road; thence southerly along Newtown Road, being the city limits line, and the southerly prolongation of Newtown Road to its intersection with the Eastern Branch of the Elizabeth River; thence westerly along the Eastern Branch of the Elizabeth River, being the city limits line to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 48,874, § 1, 8-23-22; Ord. No. 49,913, § 1, 4-8-25)

Sec. 14.1-60. Fairlawn Precinct.

Fairlawn Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Virginia Beach Boulevard and Military Highway; thence northerly along Military Highway to its intersection with Northampton Boulevard; thence easterly along Northampton Boulevard to its intersection with Cornick Road; thence northerly and northwesterly along Cornick Road to its intersection with Elizabeth Avenue; thence westerly along Elizabeth Avenue to its intersection with Military Highway; thence northerly along Military Highway to its intersection with Interstate Highway Route 64; thence southeasterly along Interstate Highway Route 64 to its intersection with Northampton Boulevard; thence northeasterly along Northampton Boulevard to its intersection with the corporate city limits line; thence southeasterly, southerly, southeasterly, and southerly along the corporate city limits line to its intersection with Virginia Beach Boulevard; thence westerly along Virginia Beach Boulevard to the point of beginning.

Sec. 14.1-61. Reserved.

Editor's note—Ord. No. 40,617, § 1, adopted Feb. 19, 2002, repealed § 14.1-61, which pertained to the Houston Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-62. Lake Taylor High School Precinct.

United Way Precinct [Lake Taylor High School Precinct] shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Azalea Garden Road and Robin Hood Road; thence northeasterly along Azalea Garden Road to its intersection with Military Highway; thence southerly along Military Highway to its intersection with Elizabeth Avenue; thence easterly along Elizabeth Avenue to its intersection with USAA Drive; thence southerly and southeasterly along USAA Drive its intersection with Northampton Boulevard; thence westerly along Northampton Boulevard to its intersection with Military Highway; thence southerly along Military Highway to its intersection with the center of Broad Creek; thence southwesterly along the center of Broad Creek to its intersection with Virginia Beach Boulevard; thence westerly along Virginia Beach Boulevard to its intersection with Azalea Garden Road; thence northerly and northeasterly along Azalea Garden Road to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,617, § 3, 2-19-02; Ord. No. 45,013, § 1, 2-26-13)

DIVISION 5. WARD 5

Sec. 14.1-63. Tarrallton Precinct.

Tarrallton Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of the centerline of Bi-County Road and the centerline of Hilton Street; thence eastwardly along the centerline of Hilton Street to the centerline of Gifford Street; thence northwardly along the centerline of Gifford Street to the centerline of Little Creek Road; thence running southeastwardly and eastwardly along the centerline of Little Creek Road to Mona Avenue; thence northeastwardly along the centerline of Mona Avenue to the intersection with Dominion Avenue; thence eastwardly along the Dominion

Avenue to its intersection with the southwesterly prolongation of the western line of North Camelia Acres, Section 2 and the eastern line of Roosevelt Gardens, section 1 and 2; thence northeasterly along said prolongation to a branch of Little Creek which lies between Roosevelt Gardens and North Camellia Acres; thence northeasterly and northwardly along the centerline of said branch to the western branch of Little Creek; thence westwardly along the centerline of the western branch of Little Creek to the branch of Little Creek that lies southeast of Bay View Beach; thence southwestwardly along the center line of said branch to the branch of Little Creek that divides Hewitt Farms and Bel Aire from Forest Park; thence southwestwardly along the centerline of said branch and along the prolongation of said branch to its intersection with the centerline of Elk Avenue and Bi-County Road; thence along the centerline of Bi-County Road to the centerline of Hilton Street, the point of beginning.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93)

Sec. 14.1-64. Larrymore Precinct.

Larrymore Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of Military Highway and Hilton Street; thence easterly along Hilton Street to its intersection with Gifford Street; thence northerly along Gifford Street to its intersection with Little Creek Road; thence easterly along Little Creek Road to its intersection with Halprin Drive; thence southwesterly along Halprin Drive to a point distant about six hundred five (605) feet from the intersection of Halprin Drive and Little Creek Road; thence southeasterly along the southern boundary of the property of St. Pius Catholic Church to the northern terminus of the branch of Lake Whitehurst that lies southeast of Saratoga and East Lynne; thence southerly along the branch of Lake Whitehurst, dividing Saratoga and East Lynne from Hunt Club Point, to its intersection with a point in Lake Whitehurst, said point lying between Hunt Club Point on the west, East Lynne on the northeast, and Glengariff on the southwest; thence southwesterly along a branch of Lake Whitehurst to its western terminus, lying between Meadowbrook Terrace, Hunt Club Point, and Wilburn Farms; thence continuing southwesterly along the dividing line of Hunt Club Point and Meadowbrook Terrace from Wilburn Farms and Bromley to its intersection with the eastern boundary of Parcel A on Revised Plat of Meadowbrook; thence along the northern line of Parcel A to the southern end of Fordwick Drive; thence northwesterly along Fordwick Drive to its intersection with Longdale Drive; thence southwesterly along Longdale Drive to its intersection with Military Highway; thence northwesterly along Military Highway to the point of beginning.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93; Ord. No. 48,764, § 10, 5-10-22)

Sec. 14.1-65. Little Creek Precinct.

Little Creek Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of the centerline of Mona Avenue and the centerline of Little Creek Road; thence running eastwardly along the centerline of Little Creek Road, crossing Shore Drive, to the eastern corporate boundary line, and continuing eastwardly along said corporate boundary line, which is to say the centerline of Little Creek Road, to the fence on the western boundary line of the United States Naval Amphibious Base; thence northeastwardly along said fence, which is to say the eastern corporate boundary line, and along its northeast prolongation to a point in the center of the western branch of Little Creek; thence westwardly along the centerline of said branch of Little Creek to the branch of Little Creek that lies between North Camelia Acres and Roosevelt Gardens; thence southerly and southwesterly along said centerline of the branch of Little Creek to its intersection with the southwesterly prolongation of the western line of North Camelia Acres, Section 2 and the eastern line of Roosevelt Gardens, Sections 1 and 2; thence northeasterly along said prolongation to its intersection with Dominion Avenue; thence westerly along Dominion Avenue to its intersection with Mona Avenue; thence southerly along Mona Avenue to the point of beginning.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 36,785, § 6, 3-31-92; Ord. No. 37,346, § 2, 7-27-93)

Sec. 14.1-66. East Ocean View Precinct.

East Ocean View Precinct shall consist of that part of the city which is bounded as follows: Beginning at the point in the shore of Chesapeake Bay where the northern corporate boundary line of the City of Norfolk intersects the eastern corporate boundary line; thence southwardly along the eastern corporate boundary line of the city in the channel of Little Creek to Little Creek Harbor, to the mouth of the western branch of Little Creek; thence westwardly along the center of the western branch of Little Creek to its intersection with the prolongation southwardly of the centerline of First Bay Street; thence northwardly along said prolongation and along the centerline of First Bay Street and along its prolongation northwardly to the northern corporate boundary line of the city in the Chesapeake Bay; thence southwardly along the northern corporate boundary line of the city in the Chesapeake Bay to the eastern corporate boundary line of the city, the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-67. Bayview Precinct.

Bayview Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Bayview Boulevard and Chesapeake Boulevard; thence northerly along Chesapeake Boulevard to its intersection with Beach View Street; thence easterly and northeasterly along Beach View Street and its northeasterly prolongation to its intersection with the corporate limits line of the city; thence easterly along the corporate limits line of the city to its intersection with the northerly prolongation of 1st Bay Street; thence southerly along the northerly prolongation of 1st Bay Street, 1st Bay Street, and the southerly prolongation of 1st Bay Street to its intersection with Little Creek; thence southwesterly along Little Creek to its intersection with the southern prolongation of Inlet Road, said Little Creek lying between the subdivisions of Bay View Beach, Brookfield Park, and Forest Park on the northwest, and Roosevelt Shores, Tarrallton Elementary School, and Hewitt Farm on the southeast; thence northerly along the southern prolongation of Inlet Road and Inlet Road to its intersection with Bayview Boulevard; thence northwesterly and westerly along Bayview Boulevard to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 44,568, § 7, 2-28-12)

Sec. 14.1-68. Mary D. Pretlow Library Precinct.

Mary D. Pretlow Library Precinct shall consist of that part of the City of Norfolk which is bounded as follows:

Beginning at the intersection of Interstate Highway Route 64 and Bay Avenue; thence westerly along Bay Avenue to its intersection with First View Street; thence northeasterly along First View Street to its intersection with West Patrol Road; thence northerly along West Patrol Road to its intersection with Ridgewell Avenue; thence northwesterly along Ridgewell Avenue to its intersection with Rippard Avenue; thence northeasterly and northerly along Rippard Avenue to its intersection with Orange Avenue; thence northwesterly along Orange Avenue to its intersection with the west line of Lot 10, Block 2 as shown on that certain plat entitled, "Corrected Replat of Subdivision of Lots 6, 7 & 8, Block 2, Willoughby Bay Corp.," dated November, 1926, and recorded in the City of Norfolk Clerk's Office of the Circuit Court in Map Book 6 at Pages 54A & 54B; thence northeasterly along the west line of said Lot 10 in Block 2 to the north line of said Block 2; thence southeasterly along said north line of Block 2 to its intersection with Interstate Highway Route 64; thence northerly and northwesterly along Interstate Highway Route 64 to its intersection with the western prolongation of W. Government Avenue; thence southeasterly along W. Government Avenue to its intersection with Mason Creek Road; thence northeasterly along Mason Creek Road to its intersection with Tidewater Drive; thence northwesterly along Tidewater Drive to its intersection with W. Ocean View Avenue and the extension of the eastern right-of-way line of 3rd View Street extended to the shore line of the Chesapeake Bay; thence northeasterly along said eastern right-of-way line of 3rd View Street extended to the corporate limits line of the City of Norfolk and the southern shoreline of the

Chesapeake Bay; thence southeasterly along the said corporate limits line to its intersection with the northern prolongation of Chesapeake Boulevard; thence southwesterly along said northern prolongation of Chesapeake Boulevard to its intersection with E. Ocean View Avenue; thence northwesterly along E. Ocean View Avenue to its intersection with Granby Street, thence westerly, southwesterly and southerly along Granby Street to its intersection with Bay Avenue; thence westerly along Bay Avenue to its intersection with Interstate Highway Route 64, the point of beginning.
(Ord. No. 44,327, § 3, 8-16-11)

Sec. 14.1-69. Third Presbyterian Precinct.

Third Presbyterian Precinct shall consist of that part of the city which is bounded as follows: Beginning at the intersection of Frank Street and Chesapeake Boulevard; thence northerly along Chesapeake Boulevard to its intersection with Bay View Boulevard; thence easterly and southeasterly along Bay View Boulevard to its intersection with Inlet Road; thence southerly along Inlet Road and along the southerly prolongation of Inlet Road to its intersection with Little Creek; thence southwesterly along Little Creek to its intersection with Bi-County Road, said Little Creek lying between the subdivisions of Bay View Beach, Brookfield Park, and Forest Park on the northwest, and Tarrallton Elementary School, Hewitt Farm, and Bel Aire on the southeast; thence southerly along Bi-County Road, and its southerly extension, to its intersection with Hilton Street; thence westerly along Hilton Street to its intersection with Military Highway; thence northwesterly along Military Highway to its intersection with Little Creek Road; thence westerly along Little Creek Road to its intersection with Chesapeake Boulevard; thence northerly along Chesapeake Boulevard to the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 36,785, § 8, 3-31-92; Ord. No. 40,495, § 14, 10-9-01)

Sec. 14.1-70. Azalea Garden Precinct.

Azalea Gardens precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of E. Little Creek Road and the eastern corporate limits line of the City of Norfolk, along Shore Drive; thence southeasterly along the said easterly corporate limits line of the City of Norfolk, along Shore Drive to the intersection of the spillway at Lake Whitehurst; thence southwesterly across the spillway to the centerline of Lake Whitehurst; thence southwesterly, southerly and southwesterly to its intersection with the centerline of the western branch of Lake Whitehurst; thence northwesterly along the centerline of the western branch of Lake Whitehurst to its intersection with the centerlines of the northern and southern branches of the western branch of Lake Whitehurst, said point lying between the subdivisions of Hunt Club Point on the west, East Lynne on the northeast, and Glengariff on the southwest; thence continuing northwesterly along Lake Whitehurst to its intersection with the branch of Lake Whitehurst lying southwest of East Lynne and Saratoga; thence northwesterly along said branch lying southwest of East Lynne and Saratoga to its intersection with the southern property line of St. Pius Catholic Church; thence northwesterly along the said boundary line of St. Pius Catholic Church to its intersection with a point on Halprin Drive distant about six hundred five (605) feet from the intersection of Halprin Drive and Little Creek Road; thence northeasterly along Halprin Drive to its intersection with Little Creek Road; thence easterly along Little Creek Road to its intersection with the easterly corporate limits line of the City of Norfolk and Shore Drive, the point of beginning.
(Ord. No. 48,764, § 11, 5-10-22)

Editor's note—Prior to reenactment by Ord. No. 48,764, Ord. No. 44,327, § 7, adopted Aug. 16, 2011, repealed § 14.1-70, which pertained to Oceanair Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-71. Ocean View Golf Course Precinct.

Ocean View Golf Course Precinct shall consist of that part of the city which is bounded as follows:

Beginning at the intersection of Beach View Street and Chesapeake Boulevard; thence southerly along Chesapeake Boulevard to its intersection with Dune Street; thence westerly along Dune Street to its intersection with Old Ocean View Road; thence northwesterly along

Old Ocean View Road to its intersection with Hammett Avenue; thence southerly along Hammett Avenue to its intersection with Bay Avenue; thence westerly along Bay Avenue to its intersection with Granby Street; thence northerly, northeasterly, and easterly along Granby Street to its intersection with E. Ocean View Avenue; thence southeasterly along E. Ocean View Avenue to its intersection with Chesapeake Boulevard; thence northeasterly along the northerly prolongation of Chesapeake Boulevard to the corporate limits line of the City of Norfolk and the southern shoreline of the Chesapeake Bay; thence southeasterly along said corporate limits line to its intersection with the northerly prolongation of Beach View Street; thence southerly and southwesterly along the northerly prolongation of Beach View Street and Beach View Street its intersection with Chesapeake Boulevard, the point of beginning.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,495, § 15, 10-9-01; Ord. No. 44,327, § 1, 8-16-11; Ord. No. 48,764, § 12, 5-10-22)

Sec. 14.1-72. Reserved.

Editor's note—Ord. No. 48,764, intro ¶, adopted May 10, 2022, repealed § 14.1-72, which pertained to Ocean View School Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992; Ord. No. 37,346, § 2, adopted July 27, 1993; Ord. No. 40,495, § 16, adopted Oct. 9, 2001; Ord. No. 44,327, § 2, adopted August 16, 2011.

Sec. 14.1-73. Central Absentee Voter Election Precinct.

Central Absentee Voter Election Precinct is hereby established as the central absentee voter election precinct for the city, which shall receive, count and record all absentee ballots cast within the city.
(Ord. No. 36,727, § 2, 1-28-92)

DIVISION 6. SUPERWARD 6

Sec. 14.1-74. Precincts.

Superward 6 shall consist of the following precincts:

(1) Second Presbyterian Precinct as described in section 14.1-11;

(2) Granby as described in section 14.1-12;

(3) Northside as described in section 14.1-14;

(4) Ghent Square as described in section 14.1-18;

(5) Chrysler Museum as described in 14.1-19;

(6) Taylor Elementary School as described in section 14.1-20;

(7) Maury as described in section 14.1-21;

(8) Virginia Zoo as described in section 14.1-22;

(9) Larchmont School Precinct as described in section 14.1-23;

(10) Larchmont UMC Precinct as described in section 14.1-24;

(11) Reserved;

(12) Suburban Park as described in section 14.1-26;

(13) Willard as described in section 14.1-27;

(14) Reserved;

(15) Crossroads as described in section 14.1-30;

(16) Mary D. Pretlow Library as described in section 14.1-68;

(17) Azalea Gardens as described in section 14.1-50;

(18) Tarrallton as described in section 14.1-63;

(19) Larrymore as described in section 14.1-64;

(20) Little Creek as described in section 14.1-65;

(21) East Ocean View as described in section 14.1-66;

(22) Bayview as described in 14.1-67;

(23) Third Presbyterian as described in section 14.1-69;

(24) Reserved;

(25) Ocean View Golf Course as described in section 14.1-71;

(26) Ocean View School as described in section 14.1-13.

(Ord. No. 36,727, § 2, 1-28-72; Ord. No. 37,346, § 2, 7-27-93; Ord. No. 38,313, § 1, 3-26-96; Ord. No. 40,495, § 17, 10-9-01; Ord. No. 40,617, § 6, 2-19-02; Ord. No. 41,756, § 5, 3-22-05; Ord. No. 44,327, §§ 5, 9, 8-16-11; Ord. No. 44,568, §§ 13, 26, 2-28-12; Ord. No. 46,791, § 2, 4-11-17; Ord. No. 46,921, § 2, 8-22-17; Ord. No. 48,764, § 15, 5-10-22; Ord. No. 50,046, § 2, 7-15-25)

DIVISION 7. SUPERWARD 7

Sec. 14.1-75. Precincts.

Superward 7 shall consist of the following precincts:

(1) Titustown as described in section 14.1-16;

(2) Reserved;

(3) Park Place as described in section 14.1-32;

(4) Azalea Garden as described in section 14.1-70;

(5) Lambert's Point as described in section 14.1-34;

(6) Wesley as described in section 14.1-17;

(7) Broad Creek Precinct as described in section 14.1-36;

(8) Union Chapel as described in section 14.1-37;

(9) Lindenwood as described in section 14.1-38;

(10) Ballentine as described in section 14.1-40;

(11) Coleman Place School as described in section 14.1-41;

(12) Reserved;

(13) Sherwood as described in section 14.1-43.

(14) Reserved;

(15) Norview as described in section 14.1-45;

(16) Lafayette-Winona as described in section 14.1-46;

(17) Tanner's Creek Elementary School as described in section 14.1-47;

(18) Rosemont as described in section 14.1-48;

(19) Campostella as described in section 14.1-51;

(20) Berkley as described in section 14.1-52;

(21) Chesterfield as described in section 14.1-53;

(22) Reserved;

(23) Young Park as described in section 14.1-55;

(24) Ruffner Academy as described in section 14.1-56;

(25) Ingleside as described in section 14.1-57;

(26) Poplar Hall as described in section 14.1-58;

(27) Eastside Precinct as described in section 14.1-59;

(28) Fairlawn as described in section 14.1-60;

(29) Lake Taylor High School Precinct as described in section 14.1-62;

(30) Barron F. Black Library Precinct as described in section 14.1-49.

(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93; Ord. No. 40,617, § 7, 2-19-02; Ord. No. 41,520, § 3, 8-17-04; Ord. No. 44,327, § 6, 8-16-11; Ord. No. 44,568, §§ 14, 27, 2-28-12; Ord. No. 45,013, § 2, 2-26-13; Ord. No. 45,672, § 2, 9-9-14, eff. 11-5-14; Ord. No. 46,792, § 2, 4-11-17; Ord. No. 47,294, § 7, 7-24-18; Ord. No. 48,764, § 16, 5-10-22; Ord. No. 48,874, § 2, 8-23-22; Ord. No. 49,913, § 2, 4-8-25)

ARTICLE IV. VOTING PLACES

Sec. 14.1-76. Generally.

The voting places in the respective election precincts of the city shall be as provided in this article.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-77. Second Presbyterian Precinct.

The voting place for the Second Presbyterian Precinct shall be at Second Presbyterian Church, 7305 Hampton Boulevard.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 46,791, § 3, 4-11-17)

Sec. 14.1-78. Granby Precinct.

The voting place for the Granby Precinct shall be at Granby Elementary School, 7101 Newport Avenue.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 38,313, § 1, 3-26-96)

Sec. 14.1-79. Reserved.

Editor's note—Ord. No. 38,313, § 2, adopted March 26, 1996, repealed § 14.1-79, which pertained to the voting place for the Granby High Precinct, and which derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-80. Northside Precinct.

The voting place for the Northside Precinct shall be at Therapeutic Recreation Center, 180 East Evans Street.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 41,756, § 2, 3-22-05)

Sec. 14.1-81. Reserved.

Editor's note—Ord. No. 37,346, § 1, adopted July 27, 1993, repealed § 14.1-81, which pertained to the Atwood Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-82. Titustown Precinct.

The voting place for the Titustown Precinct shall be at Titustown Recreation Center, 7545 Diven Street.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,457, § 1, 8-28-01; Ord. No. 41,119, § 1, 8-19-03; Ord. No. 44,568, § 8, 2-28-12)

Sec. 14.1-83. Reserved.

Editor's note—Ord. No. 44,568, § 20, adopted Feb. 28, 2012, repealed § 14.1-83, which pertained to Tucker House Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-84. Ghent Square Precinct.

The voting place for the Ghent Square Precinct shall be at Ghent Square Recreation Center, 852 Mowbray Arch.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-85. Chrysler Museum Precinct.

The voting place for the Chrysler Museum Precinct shall be at the Chrysler Museum, One Memorial Place.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 41,120, § 1, 8-19-03; Ord. No. 45,013, § 3, 2-26-13; Ord. No. 45,725, § 1, 10-14-14)

Sec. 14.1-86. Taylor Elementary School Precinct.

The voting place for the Taylor Elementary School Precinct shall be at W.H. Taylor Elementary School, 1122 West Princess Anne Road.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 41,756, § 3, 3-22-05)

Sec. 14.1-87. Maury Precinct.

The voting place for the Maury Precinct shall be at Maury High School, 322 Shirley Avenue.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-88. Virginia Zoo Precinct.

The voting place for the Virginia Zoo Precinct shall be in the administration building of the Virginia Zoo at 3500 Granby Street.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 44,469, § 1, 12-13-11; Ord. No. 48,764, § 13, 5-10-22)

Sec. 14.1-89. Larchmont School Precinct.

The voting place for the Larchmont School Precinct shall be at Larchmont Elementary School, 1145 Bolling Avenue.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,617, § 8, 2-19-02; Ord. No. 41,756, § 4, 3-22-05; Ord. No. 46,921, § 3, 8-22-17)

Sec. 14.1-90. Larchmont UMC Precinct.

The voting place for the Larchmont UMC Precinct shall be at Larchmont United Methodist Church, 1101 James Crescent.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 50,046, § 3, 7-15-25)

Sec. 14.1-91. Reserved.

Editor's note—Ord. No. 44,568, § 21, adopted Feb. 28, 2012, repealed § 14.1-91, which pertained to Larchmont Recreation Center Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-92. Suburban Park Precinct.

The voting place for the Suburban Park Precinct shall be at Suburban Park Elementary School, 320 Thole Street.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-93. Willard Precinct.

The voting place for the Willard Precinct shall be at Willard Model School at Lakewood, 1511 Willow Wood Drive.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-94. Reserved.

Editor's note—Ord. No. 44,568, § 22, adopted Feb. 28, 2012, repealed § 14.1-94, which pertained to Lafayette Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992; and Ord. No. 40,617, § 10, adopted Feb. 19, 2002.

Sec. 14.1-95. Reserved.

Editor's note—Ord. No. 40,617, § 1, repealed § 14.1-95, which pertained to the Lafayette Presbyterian Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-96. Crossroads Precinct.

The voting place for the Crossroads Precinct shall be at Crossroads Elementary School, 7920 Tidewater Drive.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 44,469, § 2, 12-13-11)

Sec. 14.1-97. Reserved.

Editor's note—Section 3 of Ord. No. 40,495, adopted Oct. 9, 2001, repealed § 14.1-97, which pertained to the voting place for the Therapeutic Center Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-98. Park Place Precinct.

The voting place for the Park Place Precinct shall be at Park Place Multi-Service Center, 606 West 29th Street.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-99. Reserved.

Editor's note—Ord. No. 44,568, § 23, adopted Feb. 28, 2012, repealed § 14.1-99, which pertained to Immanuel Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-100. Lambert's Point Precinct.

The voting place for the Lambert's Point Precinct shall be at Lambert's Point Community Center, 1251 W. 42nd Street.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 42,073, § 1, 11-8-05; Ord. No. 44,568, § 9, 2-28-12)

Sec. 14.1-101. Wesley Precinct.

The voting place for the Wesley Precinct shall be at Wesley Grace United Methodist Church, 288 East Little Creek Road.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 47,094, § 1, 1-9-18)

Sec. 14.1-102. Broad Creek Precinct.

The voting place for the Broad Creek Precinct shall be at Richard Bowling Elementary School, 2700 East Princess Anne Road.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 46,792, § 3, 4-11-17)

Sec. 14.1-103. Union Chapel Precinct.

The voting place for the Union Chapel Precinct shall be at the Union Chapel A.M.E. Church, 1200 St. Julian Avenue.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-104. Lindenwood Precinct.

The voting place for the Lindenwood Precinct shall be at Lindenwood Elementary School, 2700 Ludlow Street.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-105. Reserved.

Editor's note—Ord. No. 40,617, § 1, adopted Feb. 19, 2002, repealed § 14.1-105, which pertained to the Monroe Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-106. Ballentine Precinct.

The voting place for the Ballentine Precinct shall be at the Ray & Joan Kroc Corps Community Center, 1401 Ballentine Boulevard.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 45,606, § 1, 7-8-14)

Sec. 14.1-107. Coleman Place School Precinct.

The voting place for the Coleman Place School Precinct shall be at Coleman Place Elementary School, 2450 Rush Street.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-108. Reserved.

Editor's note—Ord. No. 44,568, § 24, adopted Feb. 28, 2012, repealed § 14.1-108, which pertained to Sherwood School Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-109. Sherwood Precinct.

The voting place for the Sherwood Precinct shall be at Sherwood Forest Recreation Center, 4537 Little John Drive.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 44,568, § 10, 2-28-12)

Sec. 14.1-110. Reserved.

Editor's note—Ord. No. 44,568, § 25, adopted Feb. 28, 2012, repealed § 14.1-110, which pertained to Norview Methodist Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-111. Norview Precinct.

The voting place for the Norview Precinct shall be at Norview Middle School, 6325 Sewell's Point Road.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 41,520, § 1, 8-17-04; Ord. No. 44,568, § 11, 2-28-12)

Sec. 14.1-112. Lafayette-Winona Precinct.

The voting place for the Lafayette-Winona School Precinct shall be at Lafayette-Winona Middle School, 1701 Alsace Avenue.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-113. Tanner's Creek Elementary School Precinct.

The voting place for the Tanner's Creek Elementary School Precinct shall be Tanner's Creek Elementary School, 1335 Longdale Drive.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93)

Sec. 14.1-114. Rosemont Precinct.

The voting place for the Rosemont Precinct shall be at Rosemont Middle School, 1401 Auburn Avenue.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-115. Barron F. Black Branch Library Precinct.

The voting place for the Barron F. Black Branch Library Precinct shall be at Barron F. Black Branch Library, 6700 East Tanner's Creek Drive.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 37,346, § 2, 7-27-93)

Sec. 14.1-116. Azalea Gardens Precinct.

The voting place for the Azalea Gardens Precinct shall be at Azalea Garden Middle School, 7721 Azalea Garden Road.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-117. Campostella Precinct.

The voting place for the Campostella Precinct shall be at the Southside Aquatics Center, 1750 Campostella Road.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 45,156, § 1, 6-25-13)

Sec. 14.1-118. Berkley Precinct.

The voting place for the Berkley Precinct shall be at Berkley Recreation Center, 89 Liberty Street.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-119. Chesterfield Precinct.

The voting place for the Chesterfield Precinct shall be at Chesterfield Heights Elementary School, 2915 Westminster Avenue.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-120. Reserved.

Editor's note—Ord. No. 47,294, § 7, adopted July 24, 2018, repealed § 14.1-120, which pertained to Brambleton Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-121 Young Park Precinct.

The voting place for the Young Park Precinct shall be at Young Terrace Community Center, 804 Whitaker Lane.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 45,915, § 1, 4-28-15)

Sec. 14.1-122. Ruffner Academy Precinct.

The voting place for the Ruffner Academy Precinct shall be at Ruffner Academy, 610 May Avenue.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 45,672, § 3, 9-9-14, eff. 11-5-14)

Sec. 14.1-123. Ingleside Precinct.

The voting place for the Ingleside Precinct shall be at the Ingleside Community Gymnasium, 960 Ingleside Road.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 49,273, § 1, 8-29-23)

Sec. 14.1-124. Poplar Halls Precinct.

The voting place for the Poplar Halls Precinct shall be at New Life Worship Center, 925 Briar Hill Road.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 47,739, § 1, 8-27-19)

Sec. 14.1-125. Eastside Precinct.

The voting place for the Eastside Precinct shall be at Aldersgate United Methodist Church, 5767 Sellger Drive.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 48,874, § 3, 8-23-22; Ord. No. 49,913, § 3, 4-8-25)

Sec. 14.1-126. Fairlawn Precinct.

The voting place for the Fairlawn Precinct shall be at Fairlawn Elementary School, 1132 Wade Street.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-127. Reserved.

Editor's note—Ord. No. 40,617, § 1, repealed § 14.1-127, which pertained to the Houston Precinct and derived from Ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-128. Lake Taylor High School Precinct.

The voting place for the Lake Taylor High School Precinct shall be at Lake Taylor High School, 1384 Kempsville Road.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 40,617, § 9, 2-19-02; Ord. No. 45,013, § 4, 2-26-13)

Sec. 14.1-129. Tarrallton Precinct.

The voting place for the Tarrallton Precinct shall be at Tarrallton Recreation Center, 2100 Tarrallton Drive.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-130. Larrymore Precinct.

The voting place for the Larrymore Precinct shall be at Larrymore Elementary School, 7600 Halprin Drive.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-131. Little Creek Precinct.

The voting place for the Little Creek Precinct shall be at Little Creek Elementary School, 7900 Tarpon Place.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-132. East Ocean View Precinct.

The voting place for the East Ocean View Precinct shall be at East Ocean View Recreation Center, 20th Bay Street and Pretty Lake Avenue.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-133. Bayview Precinct.

The voting place for the Bayview Precinct shall be at Bayview Recreation Center, 8613 Willow Terrace.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 44,568, § 12, 2-28-12)

Sec. 14.1-134. Mary D. Pretlow Library Precinct.

The voting place for the Mary D. Pretlow Library Precinct shall be at the Mary D. Pretlow Library, 111 West Ocean View Avenue.
(Ord. No. 44,327, § 4, 8-16-11)

Sec. 14.1-135. Third Presbyterian Precinct.

The voting place for the Third Presbyterian Precinct shall be at Third Presbyterian Church, 8065 Carlton Street.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-136. Reserved.

Editor's note—Ord. No. 44,327, § 8, adopted Aug. 16, 2011, repealed § 14.1-136, which pertained to Oceanair Precinct and derived from ord. No. 36,727, § 2, adopted Jan. 28, 1992.

Sec. 14.1-137 Ocean View Golf Course Precinct.

The voting place for the Ocean View Golf Course Precinct shall be in the administration building of the Ocean View Golf Course at 9610 Norfolk Avenue.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 46,172, § 1, 12-15-15; Ord. No. 48,764, § 14, 5-10-22)

Sec. 14.1-138. Ocean View School Precinct.

The voting place for the Ocean View School Precinct shall be at Ocean View Elementary School, 350 West Government Avenue.
(Ord. No. 36,727, § 2, 1-28-92)

Sec. 14.1-139. Central Absentee Voter Precinct and voter satellite offices.

(a) The voting place for the Central Absentee Voter Precinct shall be in the City Hall Building, 810 Union Street.

(b) A voter satellite office for in person absentee voting shall be at the Mary D. Pretlow Anchor Branch Library, 111 W. Ocean View Avenue.

(c) A voter satellite office for in person absentee voting shall be at the Jordan-Newby Anchor Branch Library, 1425 Norchester Avenue.

(d) A voter satellite office for in person absentee voting shall be at Lambert's Point Community Center, 1251 W. 42nd Street.

(e) A voter satellite office for in person absentee voting shall be at Berkley Community Center, 121 W. Liberty Street.
(Ord. No. 36,727, § 2, 1-28-92; Ord. No. 41,443, § 1, 6-15-04; Ord. No. 41,467, § 1, 6-29-04; Ord. No. 41,468, § 1, 6-29-04; Ord. No. 46,921, § 5, 8-22-17; Ord. No. 48,130, § 1, 9-1-20)

ARTICLE V. TIME AND HOLDING OF ELECTIONS AND ASSUMPTION OF OFFICE

Sec. 14.1-140. Meetings of council.

On the next Tuesday in January after January 1 following the regular municipal election, the council shall meet at the usual place for holding meetings of the legislative body of the city, at which time the newly elected council members shall assume the duties of the office. The time for any such meeting shall be set by ordinance adopted by council not less than thirty (30) nor more than forty-five (45) days prior to the election. Thereafter the council shall meet at such times as may be prescribed by ordinance or resolution. It shall hold at least one regular meeting each month. The mayor, any member of the council, or the city manager, may call special meetings of the council at any time upon at least twelve (12) hours' written notice to each member, served personally or left at his usual place of business or resident; or such meeting may be held at any time without notice, provided all members of the council attend. All meetings of the council shall be public except where closed pursuant to the provisions of general law, and any citizen may have access to the minutes and records thereof at all reasonable times.
(Ord. No. 48,669, § 1, 2-8-22)

Sec. 14.1-141. Time of holding municipal elections and conduct of elections.

In accordance with § 15.2-1400 of the Code of Virginia (1950), as amended, beginning in 2022 municipal elections shall be held at the time of the November general election and every second year thereafter. The elections for wards 1 through 5 shall be at the time of the November 2022 general election and every four (4) years thereafter and the elections for superwards designated 6 and 7 and the mayor shall be at the time of the November 2024 general election and every four (4) years thereafter. All terms shall commence on January 1 and end on December 31. Any matter which, by the terms of the Charter of the City of Norfolk, as amended, may be submitted to the electors of the city, at any special election, may be submitted at a regular municipal election.
(Ord. No. 48,669, § 1, 2-8-22)

Sec. 14.1-142. Notice of candidacy and petition.

Candidates for the city council shall be qualified voters of the ward or superward from which they seek election, or in the case of the election of the mayor, qualified voters of the city at-large. Such candidates, subject to the provisions of section 21 of the Charter of the City of Norfolk, as amended, shall file their notices of candidacy and their petitions in the manner provided by law. No candidate may seek election for more than one seat in an election.

A sitting member of council who files his or her candidacy for mayor or for election to a council seat other than reelection to his or her own seat and so appears on the ballot shall be deemed to have resigned his or her seat effective December 31 of the year in which the election is held whether or not he or she is elected to the new seat sought.
(Ord. No. 48,669, § 1, 2-8-22)

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Chapter 14.5

ENVIRONMENTAL OFFENSES*

§ 14.5-1.	Violations.
§ 14.5-2.	Enforcement.
§ 14.5-3.	Definitions.
§ 14.5-4.	Illegal dumping prohibited.
§ 14.5-5.	Unlawful storage and accumulation of solid waste.
§ 14.5-6.	Failure to keep property clean and free of accumulations of solid waste.
§ 14.5-7.	Removal of certain substances thrown, dropped or deposited on highway at scene of motor vehicle accident.
§ 14.5-8.	Proof of proper disposal required.
§ 14.5-9.	Authority of city attorney to prosecute misdemeanors committed within the city.

*Cross references—Erosion and sediment control, Ch. 15; noise, Ch. 26; nuisances generally, Ch. 27; protection from lead poisoning, 27-31 et seq.; public sewer use, Ch. 39.1; private sewer use, Ch. 39.2; solid waste, Ch. 41; stormwater management, Ch. 41.1; water supply generally, Ch. 46.1; pollution of water supply generally, protection of watershed, § 46.1-46, cross-connection control and backflow, § 46.1-57 et seq.

Sec. 14.5-1. Violations.

Any person violating any provisions of this chapter shall be guilty of a Class 1 misdemeanor. Each day of violation shall constitute a separate offense. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the violation to correct the violation and restore the site and each day's default in such correction, remediation or restoration shall constitute a violation of and a separate offense under this section. A judge hearing the case may also order the person responsible for the violation to perform public service relating to restoration of an area polluted by solid waste.
(Ord. No. 38,339, § 1, 5-14-96)

Sec. 14.5-2. Enforcement.

Any city law enforcement officer, duly designated sworn special police officer, the director of public health or his designee, or the fire marshal or any of his assistants, is authorized and shall have authority to enforce all provisions of this chapter.
(Ord. No. 38,339, § 1, 5-14-96)

Sec. 14.5-3. Definitions.

The following definitions shall apply to this chapter:

Bulk waste: Appliances, furniture, bedding material, automobile parts, mechanical equipment, mechanical parts, and carpet.

Commercial waste: All materials or substances from any retail, wholesale, or commercial establishment.

Dump: To dump, throw, release, spill, leak, discard, place, deposit or dispose of or allow to be dumped, released, spilled, leaked, discarded, placed, deposited or disposed.

Hazardous waste: Insecticides, poisons, corrosives, combustibles, caustics, acids, infectious materials, explosives, compressed gases, biological and chemical materials, radioactive materials, flammable materials, and petroleum products.

Industrial waste: All materials or substances related to manufacturing, processing or production.

Litter: Any can, bottle, box, carton, container, paper, wrapper, tobacco product, rag, cloth or newspaper.

Permit: A valid written document issued by a federal, state or local entity authorizing the work or activity described in the document.

Person: Any individual, firm, owner, sole proprietorship, partnership, corporation unincorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant or other legal entity.

Solid waste: Litter, garbage, trash, industrial waste, bulk waste, yard waste, commercial waste, hazardous waste, structural waste, tires, or any other condition, substance, material, product or thing which may be detrimental or potentially harmful to health, safety, comfort and general welfare of the public or the environment.

Stormwater system: All man-made facilities, structures, and natural watercourses used for collecting and conveying stormwater to, through, and from drainage areas to the points of final outlet, including, but not limited to, streets, curbs and gutters, inlets, conduits and appurtenant features, canals, creeks, channels, catch basins, ditches, drains, sewers, streams, gulches, gullies, flumes, culverts, siphons, retention or detention basins, dams, floodwalls, levees, pumping stations, and wetlands.

Structural waste: All building materials resulting from erecting, removing, repairing, remodeling or razing buildings or other structures.

Waters: Any waters adjacent to or within the city or owned by the city, including, but not limited to, rivers, lakes, bays, tributaries or ponds.

Yard waste: All materials derived from trees, shrubbery, leaves, fallen branches, lawn trimmings, and other woody waste.
(Ord. No. 38,339, § 1, 5-14-96)

Sec. 14.5-4. Illegal dumping prohibited.

It shall be unlawful for any person to dump any solid waste on any property, in any waters, or in any stormwater system, except as authorized by applicable permit. It shall be the burden of the alleged violator to show proof of any applicable

permits. When a violation of the provisions of this section has been observed by any person and the matter dumped has been ejected from a motor vehicle or watercraft, the owner or operator of such motor vehicle or watercraft shall be deemed to be the person ejecting such solid waste.
(Ord. No. 38,339, § 1, 5-14-96)

Sec. 14.5-5. Unlawful storage and accumulation of solid waste.

It shall be unlawful for any person to accumulate, store, leave, place or deposit or allow to be accumulated, stored, left, placed or deposited, any solid waste on any property within the city, except as authorized by applicable permit. It shall be the burden of the alleged violator to show proof of an applicable permit.
(Ord. No. 38,339, § 1, 5-14-96)

Sec. 14.5-6. Failure to keep property clean and free of accumulations of solid waste.

It shall be unlawful for any person to fail to keep property within the city clean and free of accumulations or deposits of solid waste.
(Ord. No. 38,339, § 1, 5-14-96)

Sec. 14.5-7. Removal of certain substances thrown, dropped or deposited on highway at scene of motor vehicle accident.

Any person removing a wrecked or damaged motor vehicle from a highway (as defined in chapter 25 of this Code) shall remove any glass, metal, plastic, liquid or other injurious substance dropped, thrown or deposited upon the highway from such vehicle. Failure to remove such materials shall constitute an offense under this chapter.
(Ord. No. 38,339, § 1, 5-14-96)

Sec. 14.5-8. Proof of proper disposal required.

Any person required to remove any solid waste from any property, waters, or stormwater system, as required by this chapter, shall provide proof that the solid waste removed was disposed of in accordance with all applicable local, state and federal regulations. A disposal receipt showing proper disposal indicating date, time, identifiable quantity, and place of disposal shall be submitted to the law enforcement officer, sworn special police officer, director of public health or his designee, or the fire marshal or any of his assistants, who originated the charge or complaint. Failure to submit the required disposal receipt or failure to dispose of solid waste in accordance with all applicable local, state and federal regulations shall constitute an offense under this chapter.
(Ord. No. 38,339, § 1, 5-14-96)

Sec. 14.5-9. Authority of city attorney to prosecute misdemeanors committed within the city.

In addition to the authority of the city attorney to prosecute violations of the Norfolk City Code, the city attorney shall also have authority to prosecute misdemeanors committed within the city pursuant to the provisions of section 15.2-1542 of the Code of Virginia.
(Ord. No. 38,339, § 1, 5-14-96; Ord. No. 39,546, § 1, 4-13-99)

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Chapter 15

EROSION AND SEDIMENT CONTROL*

§ 15-1. Violations.
§ 15-2. Definitions.
§ 15-3. Minimum standards.
§ 15-4. Program administration.
§ 15-5. Exemptions from chapter.
§ 15-6. Chesapeake Bay Preservation Areas.
§ 15-7. Engaging in land-disturbing activity without a permit prohibited.
§ 15-8. Submission and approval of erosion and sediment control plans for land-disturbing activity permit.
§ 15-9. Land-disturbing activity permit, plan review fees, bonding, etc.
§ 15-10. Enforcement and inspections.
§ 15-11. Failure to conform with requirements of approved plan, permit, minimum standards, or chapter prohibited.
§ 15-12. Monitoring compliance.
§ 15-13. Stop work order.
§ 15-14. Injunctions and other legal actions.
§ 15-15. Appeals and judicial review.

*__Editor's note—__Ord. No. 38,347, § 1, adopted May 14, 1996, amended Ch. 15 in its entirety to read as herein set out. Prior to this amendment, Ch. 15 pertained to similar subject matter and was derived from Ord. No. 37,037, § 1, adopted Oct. 27, 1992.

__Cross references—__Building regulations, Ch. 11.1; site plan review, Ch. 32.2; sewers and drains, Ch. 39; stormwater management, Ch. 41.1; Virginia Erosion and Stormwater Management Program, Ch. 41.2; subdivision regulations, Ch. 42.5; wetlands and coastal primary sand dunes, Ch. 49; zoning ordinance, App. A.

__State law references—__Erosion and Sedimentation Control Law, Code of Virginia, §§ 21-89.1—21-89.15; local control programs, § 21-89.5.

Sec. 15-1. Violations.

Any person violating any provisions of this chapter shall be guilty of a Class 1 misdemeanor. Each day of violation shall constitute a separate offense. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the violation to correct the violation and restore the site and each day's default in such correction, remediation or restoration shall constitute a violation of and a separate offense under this section.
(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98)

Sec. 15-2. Definitions.

As used in this chapter, unless the context requires a different meaning, the following definitions shall have the meanings set out below:

Agreement in lieu of a plan: A contract between the city and the owner that specifies conservation measures that must be implemented in the construction of a single-family residence; this contract may be executed by the city in lieu of a formal site plan.

Applicant: Any person submitting an erosion and sediment control plan for approval or requesting the issuance of a permit, when required, authorizing land-disturbing activities to commence.

Board: Virginia Department of Soil and Water Conservation Board.

Chesapeake Bay Preservation Area or *CBPA:* Any land designated by the city pursuant to Part III of the Chesapeake Bay Preservation Area Designation and Management Regulations, 9 VAC 10-20-70, and section 62.1-44.15:52 of the Code of Virginia. A Chesapeake Bay Preservation Area consists of a resource protection area, intensely developed area, and a resource management area. The general limits of the CBPA are shown on the official zoning map and the general requirements pertaining to CBPAs are detailed in section 11-2 of the zoning ordinance.

Construction footprint: The area of impervious surface, including, but not limited to, buildings, roads and drives, parking areas, sidewalks, and the area necessary for construction of such improvements.

Erosion and sediment control plan, conservation plan or plan: A document containing material for the conservation of soil and water resources of a unit or group of units of land. It may include appropriate maps, an appropriate soil and water plan inventory, and management information with needed interpretations and a record of decisions contributing to conservation treatment. The plan shall contain all major conservation decisions and all information deemed necessary by the plan-approving authority to assure that the entire unit or units of land will be so treated to achieve the conservation objectives.

Erosion impact area: An area of land not associated with current land-disturbing activity but subject to persistent soil erosion resulting in the delivery of sediment onto neighboring properties or into state waters. This definition shall not apply to any lot or parcel of land ten thousand (10,000) square feet or less used for residential purposes or to shorelines where the erosion results from wave action or other coastal processes.

Land disturbance or land-disturbing activity: Any man-made change to the land surface, including, but not limited to, clearing, grading, excavating, transporting and filling of land, or other construction activities which would disturb the natural vegetation or the existing contours of the land, which may result in soil erosion from water or wind and the movement of sediments into public or private storm drainage facilities, state waters, or onto lands in the commonwealth.

Natural channel design concepts: The utilization of engineering analysis and fluvial geomorphic processes to create, rehabilitate, restore, or stabilize an open conveyance system for the purpose of creating or recreating a stream that conveys its bankfull storm event within its banks and allows larger flows to access its bankfull bench and its floodplain.

Owner: The owner or owners of the freehold of the premises or lesser estate therein, a mortgagee

or vendee in possession, assignee of rents, receiver, executor, trustee, lessee or other person, firm or corporation in control of a property.

Peak flow rate: The maximum instantaneous flow from a given storm condition at a particular location.

Permittee: The person to whom the permit authorizing land-disturbing activities is issued or the person who certifies that the approved erosion and sediment control plan will be followed.

Person: Any individual, landowner, occupier, owner's agent, contractor, subcontractor, permittee, equipment operator, partnership, firm, association, joint venture, public or private corporation, trust, estate, commission, board, public or private institution, utility, cooperative county, city, town or other political subdivision of the commonwealth, any interstate body, or any other legal entity.

Responsible land disturber: An individual from the project or development team, who will be in charge of and responsible for carrying out a land disturbing activity covered by an approved plan or agreement in lieu of a plan, who (i) holds a Responsible Land Disturber certificate of competence, (ii) holds a current certificate of competence from the Board in the areas of Combined Administration, Program Administration, Inspection, or Plan Review, (iii) holds a current Contractor certificate of competence for erosion and sediment control, or (iv) is licensed in Virginia as a professional engineer, architect, certified landscape architect or land surveyor pursuant to Article 1 (section 54.1-400 et seq.) of Chapter 4 of Title 54.1.

Runoff volume: The volume of water that runs off the land development project from a prescribed storm event.

Virginia Erosion and Sediment Control Program or *VESCP:* A program approved by the Board that has been established by a VESCP authority for the effective control of soil erosion, sediment deposition, and nonagricultural runoff associated with a land-disturbing activity to prevent the unreasonable degradation of properties, stream channels, waters, and other natural resources and shall include such items where applicable as local ordinances, rules, permit requirements, annual standards and specifications, policies and guidelines, technical materials, and requirements for plan review, inspection, enforcement where authorized in this article, and evaluation consistent with the requirements of this article and its associated regulations.

Virginia Erosion and Sediment Control Program authority or *VESCP authority:* An authority approved by the Board to operate a Virginia Erosion and Sediment Control Program. An authority may include a state entity, including the Department; a federal entity; a district, county, city, or town; or for linear projects subject to annual standards and specifications, electric, natural gas and telephone utility companies, interstate and intrastate natural gas pipeline companies, railroad companies, or authorities created pursuant to section 15.2-5102.

State waters: All waters on the surface and under the ground wholly or partially within or bordering the commonwealth or within its jurisdictions.

Water quality volume: The volume equal to the first one-half inch of runoff multiplied by the impervious surface of the land development project.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98; Ord. No. 41,726, § 1, 2-15-05; Ord. No. 45,600, § 1, 6-24-14, eff. 7-1-14)

Sec. 15-3. Minimum standards.

The minimum standards for the control of erosion and sediment in the city shall be those standards in the regulations adopted in the State Erosion and Sediment Control Program and in the Virginia Erosion and Sediment Control Handbook.

(a) In accordance with section 62.1-44.15:52 of the Code of Virginia, stream restoration and relocation projects that incorporate natural channel design concepts are not man-made channels and shall be exempt from any flow rate capacity and velocity requirements for natural or man-made channels as defined in any

regulations promulgated pursuant to this section or sections 62.1-44.15:54 or 62.1-44.15:65.

(b) For any plan approved on and after July 1, 2014, through June 30, 2024, the flow rate capacity and velocity requirements of this section shall be satisfied by compliance with water quantity requirements in the Stormwater Management Act (Virginia Code section 62.1-44.15.24 et seq., effective until July 1, 2024) and attendant regulations unless such land-disturbing activities are in accordance with the grandfathering provisions of the Virginia Stormwater Management Program (VSMP) Permit Regulations as defined in any regulations promulgated pursuant to the Stormwater Management Act or Virginia Code sections 62.1-44.15:54 or 62.1-44.15:65. For plans approved on or after July 1, 2024, the flow rate capacity and velocity requirements of this section shall be satisfied by compliance with water quantity requirements in the Virginia Erosion and Stormwater Management Act (Virginia Code section 62.1-44.15.24 et seq., effective July 1, 2024) and attendant regulations.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98; Ord. No. 45,600, § 2, 6-24-14, eff. 7-1-14; Ord. No. 49,649, § 1, 6-25-24, eff. 7-1-24)

Sec. 15-4. Program administration.

The manager of the bureau of environmental services in the department of planning and community development shall serve as the program administrator. The program administrator shall have the responsibility for coordination of the city's erosion and sediment control program, including program development, implementation, training, and review for consistency with state and federal regulations.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98; Ord. No. 41,726, § 2, 2-15-05)

Sec. 15-5. Exemptions from chapter.

The provisions of this chapter shall not apply to the following:

(1) Minor land-disturbing activities such as home gardens and. individual home landscaping, repairs and maintenance work.

(2) Individual service connections.

(3) Septic tank lines or drainage fields unless included in an overall plan for land-disturbing activity relating to construction of the building to be served by the septic tank system. However, where the installation of septic tank lines or drainage fields are in a Chesapeake Bay Preservation Area, this exemption is not applicable.

(4) Repair or rebuilding of the tracks, right-of-way, bridges, communication facilities and other related structures and facilities of a railroad company.

(5) Disturbed land areas of less than twenty-five hundred (2,500) square feet in size.

(6) Emergency work to protect life, limb or property, and emergency repairs; provided, that if the land-disturbing activity would have required an approved erosion and sediment control plan if the activity were not an emergency, then the land area disturbed shall be shaped and stabilized in accordance with the requirements of this article.

(7) Installation of fence and sign posts or telephone and electric poles and other kinds of posts or poles.

(8) Installation, maintenance, or repair of any underground public utility lines when such activity occurs on an existing hard-surfaced road, street or sidewalk.

(9) Surface or deep mining.

(10) Exploration or drilling for oil and gas.

(11) Shoreline erosion control projects on tidal waters when all of the land disturbing activities are within the regulatory authority of and approved by local wetlands boards, the Marine Resources Commission, or the United States Army Corps of Engineers; however, any associated land that is disturbed outside of this exempted area shall remain subject to this ordinance.

(12) Tilling, planting, or harvesting of agricultural, horticultural, or forest crops, or livestock feedlot operations, or as additionally set forth by the board in regulation, including engineering operations as follows: construction of terraces, terrace outlets, check dams, desilting basins, dikes, ponds, ditches, strip cropping, lister furrowing, contour cultivating, contour furrowing, land drainage, and land irrigation; however, this exception shall not apply to harvesting of forest crops unless the area on which harvesting occurs is reforested artificially or naturally in accordance with Chapter 11 (section 10.1-1100 et seq.) of the Code of Virginia or is converted to bona fide agricultural or improved pasture use as described in subsection B of section 10.1-1163;

(13) Agricultural engineering operations, including but not limited to the construction of terraces, terrace outlets, check dams, desilting basins, dikes, ponds not required to comply with the provisions of the Dam Safety Act (section 10.1-604 et seq.), ditches, strip cropping, lister furrowing, contour cultivating, contour furrowing, land drainage, and land irrigation.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98; Ord. No. 41,726, § 3, 2-15-05; Ord. No. 45,600, § 3, 6-24-14, eff. 7-1-14)

Sec. 15-6. Chesapeake Bay Preservation Areas.

(a) Any land disturbance or land-disturbing activity in a Chesapeake Bay Preservation Area exceeding two thousand five hundred (2,500) square feet, including construction of all single-family houses, shall comply with the applicable provisions of this chapter.

(b) During construction, and in accordance with an approved site plan, the limits of any land disturbance or land-disturbing activity in a Chesapeake Bay Preservation Area shall be strictly confined to the construction footprint. The limits shall be clearly shown on submitted plans and physically marked on the construction site. The manager of the bureau of environmental services may review and approve the erosion and sediment control plan and issue a land-disturbing activity permit prior to site plan approval.

(c) Ingress and egress during construction shall be limited to one access point unless otherwise approved by the appropriate city official.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98; Ord. No. 41,726, § 4, 2-15-05)

Sec. 15-7. Engaging in land-disturbing activity without a permit prohibited.

Except as provided herein, it shall be unlawful for any person to engage in any land-disturbing activity until he has submitted an erosion and sediment control plan to the appropriate city official designated in section 15-8, such plan has been reviewed and approved, a land-disturbing activity permit has been issued, and fees have been paid add [and] the required bond posted.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98)

Sec. 15-8. Submission and approval of erosion and sediment control plans for land-disturbing activity permit.

(a) The director of the department of public works. or his designee, shall review and approve erosion and sediment control plans and issue land-disturbing permits in cases of land-disturbing activity in public rights-of-way and drainage easements, and in cases of installation of stormwater best management practices and other construction projects managed by the director of the department of public works which result in land-disturbing activity.

(b) Except as otherwise provided in paragraph (a) above, the director of city planning or his designee, shall review and approve erosion and sediment control plans and issue land-disturbing permits. Additionally, where site plan review is required as provided for in the zoning ordinance of the City of Norfolk, as amended, an erosion and sediment control plan shall be submitted to the bureau of zoning services in the department of city planning when the site plan is submitted. The erosion and sediment control plan shall be

forwarded for review and approval to the manager of the bureau of environmental services, or authorized agent, as part of the site plan review process. The manager of the bureau of environmental services, or authorized agent, may review and approve the erosion and sediment control plan and issue a land-disturbing activity permit prior to site plan approval.

(c) The manager of the bureau of environmental services may develop, in consultation with the code official, standardized agreements in lieu of a plan for land-disturbing activities. The code official, or authorized agent, shall have authority to utilize agreements in lieu of a plan without additional approval by the manager of the bureau of environmental services. When approved, the agreement in lieu of a plan shall be deemed to be the land-disturbing activity permit.

(d) The appropriate city official, as set forth in paragraphs (a) through (c) above, shall, within thirty (30) days of the receipt of a plan, approve any such plan if he determines that the plan meets the requirements of this article and if the person responsible for carrying out the plan certifies that he will properly perform the erosion and sediment control measures included in the plan and will conform to the provisions of this article, and Title 62.1, Chapter 3.1, Article 2.4, of the Code of Virginia, including the applicable regulations. In addition, as a prerequisite to engaging in the land disturbing activity shown on the approved plan, the person responsible for carrying out the plan shall provide the name of a responsible land disturber, who will be in charge of and responsible for carrying out the land-disturbing activity, in accordance with the approved plan.

(e) The plan shall be acted upon within thirty (30) days from receipt thereof by either approving said plan in writing or by disapproving said plan in writing and giving specific reasons for its disapproval. When the plan is determined to be inadequate, the appropriate city official, as set forth in paragraphs (b) through (d) above, shall specify such modifications, terms, and conditions that will permit approval of the plan. If no action is taken within thirty (30) days, the plan shall be deemed approved and the person authorized to proceed with the proposed activity.

(f) An approved plan may be changed or modified when:

(1) The inspection reveals that the plan is inadequate to satisfy applicable regulations; or

(2) The person responsible for carrying out the approved plan finds that because of changed circumstances or for other reasons the approved plan cannot be effectively carried out, the proposed amendments to the plan, consistent with the requirements of this article, are agreed to by the appropriate city official, or his designee, and the person responsible for carrying out the plan.

(g) In order to prevent further erosion, the manager of the bureau of environmental services, or authorized designee, may require an erosion and sediment control plan for any land identified as an erosion impact area.

(h) Upon approval, the erosion and sediment control plan shall become a permit document and shall be a condition precedent to issuing a building permit. The applicant's signing of the permit shall be prima facie evidence of his acceptance of such conditions.

(i) Where land-disturbing activities involve lands under the jurisdiction of more than one local control program, an erosion and sediment control plan may, at the option of the applicant, be submitted to the soil and water conservation board for review and approval rather than to each jurisdiction concerned.

(j) When the land-disturbing activity will be required of a contractor performing construction work pursuant to a construction contract, the preparation, submission and approval of an erosion and sediment control plan shall be the responsibility of the owner.

(k) Electric, natural gas and telephone utility companies, interstate and intrastate natural gas pipeline companies and railroad companies shall file general erosion and sediment control specifica-

tions annually with the board for review and written comments. The specifications shall apply to:

(1) Construction, installation or maintenance of electric, natural gas and telephone utility lines, and pipelines: and;

(2) Construction of the tracks, rights-of-way, bridges, communication facilities and other related structures and facilities of the railroad company.

Individual approval of separate projects within subdivisions (1) and (2) of this subsection is not necessary when board approved specifications are followed, however, projects included in subdivisions (1) and (2) must comply with board approved specifications. Projects not included in subdivisions (1) and (2) of this subsection shall comply with the requirements of the City of Norfolk erosion and sediment control program.

(l) State agency projects are exempt from the provisions of this ordinance except as provided for in the Code of Virginia section 62.1-44.15:56.
(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98; Ord. No. 41,726, § 5, 2-15-05; Ord. No. 45,600, § 4, 6-24-14, eff. 7-1-14)

Sec. 15-9. Land-disturbing activity permit, plan review fees, bonding, etc.

(a) A plan review and inspection fee as set by the city manager shall be paid to the appropriate city official, as set forth in section 15-8.

(b) The appropriate city official, as set forth in section 15-8, prior to issuing a permit, may require any applicant to submit a reasonable performance bond with surety, cash bond, letter of credit, any combination thereof, or such other legal arrangement acceptable to the appropriate city official to ensure that measures could be taken by the City of Norfolk at the applicant's expense should he fail, after proper notice, within the time specified, to initiate or maintain appropriate conservation action. Upon such failure by the permittee, the City of Norfolk may collect from the permittee the difference should the amount of the reasonable cost of such action exceed the amount of the security held. Within sixty (60) days of the achievement of adequate stabilization of the land-disturbing activity, such bond, cash bond, letter of credit, or other legal arrangement, or the unexpended or unobligated portion thereof, shall be refunded to the applicant or terminated. These requirements are in addition to all other provisions relating to the issuance of such permits and are not intended to otherwise affect the requirements for such permits.

(c) On and after July 1, 2024, no land disturbing activity permit or building permit shall be issued until the applicant provides proof of project registration and permit coverage under the General Virginia Pollutant Discharge Elimination System (VPDES) Permit for Discharges of Stormwater from Construction Activities or other permit required by law for regulated land disturbing activities requiring permit coverage.
(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98; Ord. No. 45,600, § 5, 6-24-14, eff. 7-1-14; Ord. No. 49,649, § 2, 6-25-24, eff. 7-1-24)

Sec. 15-10. Enforcement and inspections.

(a) The director of the department of public works or his authorized agent shall have enforcement and inspection authority for all cases of land-disturbing activity in public rights-of-way and drainage easements and in cases of installation of stormwater best management practices and other construction projects overseen by the director of the department of public works which results in land-disturbing activity.

(b) The code official or his authorized agent shall have enforcement and inspection authority for all cases of land-disturbing activity wherein a building permit is issued, except those cases where a land-disturbing activity permit has been issued prior to site plan approval as authorized in section 15-8(b).

(c) The manager of the bureau of environmental services or his authorized agent shall have enforcement and inspection authority in all cases of land-disturbing activity except those cases covered under paragraphs (a) and (b) above.
(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98)

Sec. 15-11. Failure to conform with requirements of approved plan, permit, minimum standards, or chapter prohibited.

It shall be unlawful for any person to:

(1) Fail or neglect to comply with an approved erosion and sediment control plan;

(2) Fail or neglect to comply with the terms and conditions of a land-disturbing activity permit or agreement in lieu of a plan;

(3) Fail or neglect to comply with the Virginia Erosion and Sediment Control Law and Regulations, which have been adopted as the city's minimum standards pursuant to section 15-3;

(4) Fail or neglect to comply with the standards and specifications of the *Virginia Erosion and Sediment Control Handbook* (as periodically amended), which have been adopted as the city's minimum standards pursuant to section 15-3; or

(5) Violate any provision of this chapter.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98)

Sec. 15-12. Monitoring compliance.

The appropriate city official, as specified in section 15-10, or their authorized agent, shall provide for periodic inspections of the land-disturbing activity and may require monitoring and reports from any person undertaking land-disturbing activity pursuant to an approved erosion and sediment control plan or a land-disturbing activity permit to ensure that the measures required are effective in controlling erosion and sedimentation. The right of inspection shall be inherent in the issuance of a permit and shall be deemed a condition of the permit.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98)

Sec. 15-13. Stop work order.

Upon determination of a violation of this chapter by the appropriate city official, as specified in section 15-10, or their authorized agent, the appropriate city official or authorized agent may issue an order requiring that all or part of the land-disturbing activity on the site be stopped until the specified corrective measures have been taken. The stop work order shall be served in person or by registered or certified mail on the owner, permittee or person engaging in land-disturbing activity. The stop work order shall remain in effect until corrective action is completed. Once corrective action is completed to the satisfaction of the appropriate city official, as specified in section 15-10, or their authorized agent, the stop work order shall be lifted. Violation of a stop work order, or failure to comply with the terms of a stop work order, shall be deemed a separate violation. Nothing in this section shall be deemed to prevent the appropriate city official, or designated agent, from taking any other action authorized by this chapter or other provision of law.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98; Ord. No. 41,726, § 6, 2-15-05)

Sec. 15-14. Injunctions and other legal actions.

(a) The city attorney may apply to the Circuit Court of the City of Norfolk to enjoin a violation or a threatened violation of this chapter without the necessity of showing that an adequate remedy at law does not exist.

(b) In addition to any criminal penalties provided under this section, any person who violates any provision of this chapter may be liable to the City of Norfolk in a civil action for damages.

(c) Without limiting the remedies which may be obtained in this section, any person violating or failing, neglecting, or refusing to obey any injunction, mandamus or other remedy obtained pursuant to this chapter, in the discretion of the court, shall be subject to a civil penalty not to exceed two thousand dollars ($2,000.00) for each violation.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98)

Sec. 15-15. Appeals and judicial review.

(a) Final decisions of the appropriate city officials, or their authorized agents, respecting issuance of a land-disturbing activity permit shall be subject to review by the city manager, or his appointed assistant, provided a written appeal is filed within thirty (30) days from the date of any written notification denying a land-disturbing activity permit. A decision on such appeal shall be issued within thirty (30) days of the date the appeal is filed.

(b) Final decisions of the City of Norfolk under this section shall be subject to review by the Circuit Court, provided an appeal is filed within thirty (30) days from the day of any written notification denying a land-disturbing activity permit.

(Ord. No. 38,347, § 1, 5-14-96; Ord. No. 39,340, § 1, 10-20-98)

Chapter 15.1

FAMILY DAY HOMES*

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§ 15.1-51. Swimming and wading activities.

*__Editor's note—__Ord. No. 49,907, § 1, adopted March 25, 2025, amended Ch. 15.1 in its entirety to read as herein set out. Former Ch. 15.1, §§ 15.1-1—15.1-56, pertained to similar subject matter, and derived from Ord. No. 48,887, § 1, adopted August 23, 2022; Ord. No. 49,181, §§ 1—6, adopted May 9, 2023.

§ 15.1-52. Drowning hazards.
§ 15.1-53. Transportation and field trips.
§ 15.1-54. Animals and pets.
§ 15.1-55. Nighttime care.
§ 15.1-56. Misleading advertising.

Sec. 15.1-1. Violations.

It shall be a Class 1 misdemeanor for any person who is required to be licensed pursuant to section 15.1-4 to operate a family day home in which one through four (4) children are received without a valid license issued pursuant to this chapter. Each day of violation shall constitute a separate offense.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-2. Definitions.

The following words and terms, when used in this chapter, shall have the following meanings unless the context clearly indicates otherwise:

Accessible means capable of being entered, reached, or used.

Adult means any individual eighteen (18) years of age or older.

Age-appropriate means suitable to the chronological age and individual needs of a child.

Assistant means an individual who helps the provider or substitute provider in the care, protection, supervision, education, and guidance to children in the home.

Attendance means the actual presence of an enrolled child.

Body fluids means urine, feces, vomit, blood, saliva, nasal discharge, and tissue discharge.

Caregiver means an individual who provides care, protection, supervision, and guidance to children in the home and includes the provider, substitute provider, and assistant.

Child means any person under eighteen (18) years of age.

Child day program means a regularly operating service arrangement for children where, during the absence of a parent or guardian, a person or organization has agreed to assume responsibility for the supervision, protection, wellbeing, and education of a child under the age of thirteen (13) for less than a twenty-four (24) hour period.

Child with special needs means a child with developmental disabilities, intellectual disabilities, emotional disturbance, sensory or motor impairment, or significant chronic illness who requires special health surveillance or specialized programs, interventions, technologies, or facilities.

City manager means the City Manager of the City of Norfolk.

Cleaned means treated in such a way as to remove dirt and debris by scrubbing and washing with soap and water or detergent solution and rinsing with water.

Communicable disease means a disease caused by a microorganism (bacterium, virus, fungus, or parasite) that can be transmitted from person to person via an infected body fluid or respiratory spray, with or without an intermediary agent (such as a louse, mosquito) or environmental object (such as a table surface). Some communicable diseases are reportable to the local health authority.

Corrective action plan means a written plan listing non-compliance that details corrective actions that the licensee will take within an established period of time to address violations or actions to prevent the recurrence of violations.

Department means the Norfolk Department of Human Services.

Department's representative means an employee or designee of the Norfolk Department of Human Services, acting as the authorized agent of the city manager.

Director means the Director of the Norfolk Department of Human Services.

Evacuation means movement of occupants out of the building to a safe area near the building.

Family day home means a child day program offered in the residence of the provider or the home of any of the children in care for one through twelve (12) children under the age of thirteen (13), exclusive of the provider's own children and any children who reside in the home, when at least one child receives care for compensation.

Good character and reputation means knowledgeable and objective people agree that

the individual (i) maintains business, professional, family, and community relationships that are characterized by honesty, fairness, and truthfulness; and (ii) demonstrates a concern for the well-being of others to the extent that the individual is considered suitable to be entrusted with the care, guidance, and protection of children. Relatives by blood or marriage, and people who are not knowledgeable of the individual, such as recent acquaintances, shall not be considered objective references.

Homeless child means a child who lacks a fixed, regular, and adequate nighttime residence and who is:

(a) Living in a car, park, public space, abandoned building, substandard housing, bus or train station, or similar setting;

(b) Sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason, sometimes referred to as doubled-up;

(c) Living in motels, hotels, or camping grounds due to lack of alternative adequate accommodations;

(d) Living in congregate, temporary, emergency, or transitional shelters;

(e) Awaiting or in foster care placement;

(f) Abandoned in a hospital;

(g) A migratory child who qualifies as homeless because the child is living in circumstances described in the federal Elementary and Secondary Education Act of 1965, P.L. 89-10 (20 USC § 6399); and

(h) Living in a primary nighttime residence that is a public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings.

Inaccessible means not capable of being entered, reached, or used.

Infant means a child from birth through twenty-three (23) months of age.

Lockdown means a situation where children are isolated from a security threat and access within and to the home is restricted.

Nighttime care means care provided between 7:00 p.m. and 6:00 a.m.

Parent means the biological, foster or adoptive parent, legal guardian, or any individual with responsibility for, or custody of, a child enrolled in or in the process of being enrolled in a family day home.

Physician means an individual licensed to practice medicine in any of the fifty (50) states or the District of Columbia.

Preschool means children from three (3) years up to the age of eligibility to attend public school, age five (5) by September 30 of that same year.

Programmatic experience means time spent working directly with children in a group that is located away from the child's home. Work time shall be computed on the basis of full-time work experience during the period prescribed or equivalent work time over a longer period. Experience settings may include a child day program, family day home, child day center, boys and girls club, field placement, elementary school, or a faith-based organization.

Provider means an individual who is issued the family day home license by the department of human services and who has primary responsibility in providing care, protection, supervision, education, and guidance of children in the family day home.

Relocation means movement of occupants of the building to a safe location away from the vicinity of the building.

Residence means principal legal dwelling or abode that is occupied for living purposes by the provider and contains the facilities necessary for sleeping, eating, cooking, and family living.

Sanitized means treated in such a way as to remove bacteria and viruses from inanimate surfaces through first cleaning and secondly using a solution of one tablespoon of bleach mixed with one gallon of water and prepared fresh daily or using a sanitizing solution approved

by the U.S. Environmental Protection Agency. The surface of the item is sprayed or dipped into the sanitizing solution and then allowed to air dry for a minimum of two (2) minutes or according to the sanitizing solution instructions.

School age means eligible to attend public school, age five (5) or older by September 30 of that same year.

Serious injury means a wound or other specific damage to the body that requires medical attention beyond basic first aid, such as unconsciousness; broken bones; dislocation; deep cut requiring stitches; poisoning; concussion; and a foreign object lodged in eye, nose, ear, or other body orifice.

Shaken baby syndrome or *abusive head trauma* means a traumatic injury that is inflicted upon the brain of an infant or young child. The injury can occur during violent shaking, causing the child's head to whip back and forth, the brain to move about, and blood vessels in the skull to stretch and tear.

Shelter-in-place means movement of occupants of the building to designated protected spaces within the building.

Staff means administrative, activity, and service personnel including the licensee when the licensee is an individual who works in the family day home, and any persons counted in the staff-to-child ratios or any persons working with a child without sight and sound supervision of a staff member.

Substitute provider means an individual who meets the qualifications of a provider; is designated by the provider; and who provides care, protection, supervision, education, and guidance for children in the family day home when the provider is absent from the home for more than two (2) hours.

Time out means a discipline technique in which a child is moved for a brief time away from the stimulation and reinforcement of ongoing activities and other children in the group to allow the child who is losing self-control to regain composure.

Toddler means a child who is two (2) years old.

Violation means a breach or infraction of a licensing law or rule. Violation is sometimes referred to as noncompliance.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-3. Authority to regulate.

(a) It is hereby declared to be the policy of the City of Norfolk to protect the public health, safety and general welfare by providing for the licensing and regulation of family day homes in order to adequately protect the children of the City of Norfolk. To do so, the city adopts the following regulations to safeguard the children and families in the City of Norfolk pursuant to its authority under Virginia Code, § 15.2-914.

(b) Nothing in this chapter shall be construed to contradict or negate any provisions of the Norfolk City Code, the Norfolk City Charter, or the Code of Virginia which may apply to family day homes.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-4. Regulated service.

(a) All family day homes serving one to four (4) children in the City of Norfolk are subject to the regulations of this chapter, except for family day homes which are:

(1) Licensed by the department of education;

(2) Licensed by a family day home system;

(3) Only serving dependent children of military personnel and either (i) are located on a military base or federal property or (ii) are certified as a family child-care provider by any branch of the Armed Forces of the United States or its agent;

(4) Only serving children who are related to the provider by blood, adoption, or marriage, or who reside in the same home as the provider; or

(5) Operated by a religious institution which is exempt from licensure pursuant to Virginia Code, § 22.1-289.031.

(b) The City of Norfolk has the right to inspect, monitor, and enforce the regulations of this chapter.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-5. License required, posting of license.

It shall be unlawful to operate a family day home as defined herein which is required to be regulated pursuant to section 15.1-4 without a valid license issued pursuant to this chapter. Such license shall be posted in a visible location within the licensed premises where it can be easily seen by parents and other visitors of the home.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-6. Application for license.

(a) Any person who operates or maintains, or intends to operate or maintain, a family day home which is required to be licensed pursuant to section 15.1-4 must submit an application (on forms provided by the department) to the department for a license in the name of the person for the specified structure to which the application relates. The application must identify the owner with responsibility for and authority over the operation of the family day home. No license issued pursuant to this chapter shall be transferable.

(b) Any person who intends to provide a family day home which is required to be licensed pursuant to section 15.1-4 shall file an application for a license at least two (2) months in advance of the planned opening date.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-7. Procedures for license.

(a) Upon receipt of the application, the department will begin an inquiry into the activities, services and facilities of the applicant, and of the applicant's character and reputation.

(b) The applicant must afford the representative of the department a reasonable opportunity to make a pre-licensing inspection of the facilities and to interview the applicant and the applicant's agents, household members, and employees for the purpose of determining whether the applicant can proceed through the licensing process.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-8. Issuance of the initial license.

The director or the director's designee shall grant a license in writing to any applicant thereof upon completion of all licensure requirements and production of evidence satisfactory to the department that the applicant and the applicant's facilities, services and activities are in compliance with the provisions of this chapter, the Norfolk City Code, the Code of Virginia and the standards and policies prescribed hereunder.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-9. Types of licenses.

(a) *Conditional license:* A license issued to a new family day home to allow for the licensee to demonstrate compliance with sections of the regulations which could not be determined during the initial inspection.

(1) The conditional license will be issued for a period up to six (6) months to allow time for all requirements to be met, including staffing, training, and record-keeping.

(2) If at the end of the six (6) month conditional period, the licensee is in full compliance with the regulations of this chapter, a regular license will be issued.

(3) If at the end of the six (6) month conditional period, the licensee is not in full compliance with the regulations of this chapter, a regular license will not be issued and the licensee will be notified in writing.

(b) *Regular license:* A license issued to a family day home whose program, facilities, and operations fully comply with regulations of this chapter.

(1) A regular license will be issued for a period of one year initially. Upon renewal, a regular license will be issued for a period of two (2) years.

(c) *Provisional license:* A license issued to an operating family day home at the time of renewal, when the licensee is temporarily unable to comply with the regulations of this chapter. There cannot be any serious risk to the health, safety and well-being of children, and the licensee must agree to operate under conditions as stated in a correction action plan.

(1) The provisional license will be issued for a period of up to six (6) months. An extension beyond this time period requires department approval.

(2) If, at the end of the six (6) month provisional period, the licensee is in full compliance with the regulations of this chapter, a regular license will be issued.

(3) If, at the end of the six (6) month provisional period, the licensee is not in full compliance with the regulations of this chapter and an extension is not granted, a regular license will not be issued and the licensee will be notified in writing.

(d) *Voluntary license:* A license issued to a family day home which is exempt from licensure pursuant to section 15.1-4.

(1) The voluntary license will be issued to a family day home that is in full compliance with the regulations of this chapter, except that the initial licensing inspection required in section 15.1-16(a) may be waived in the discretion of the department.

(2) The voluntary license will be issued for a period of one year initially. Upon renewal, a voluntary license will be issued for a period of two (2) years.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-10. License conditions.

Each license issued pursuant to this chapter shall set forth the conditions under which the license may operate. Said conditions shall include, but not be limited to, the name(s) of the operator(s) of the family day home, the maximum number and age range of children to be served, and the period of time for which the license is effective. Each provisional or conditional license issued pursuant to this chapter shall be accompanied by a letter from the director or the director's designee stating the reason(s) for its being provisional or conditional.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-11. Requirements for changes in operation.

(a) The licensee shall inform the department, in writing, of any of the following changes in operation no less than ten (10) days before implementation of the change(s):

(1) A change in location or name of the family day home;

(2) An extended absence of the provider from the family day home that exceeds two (2) weeks; or

(3) Renovation or alteration of the premises that substantially changes the indoor or outdoor space of the family day home.

(b) The licensee shall submit a written request to the department to modify conditions of the license to include:

(1) Change in hours of operation;

(2) Change in license capacity;

(3) Change in age range of children;

(4) Any other condition to be modified.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-12. Renewal of license.

(a) Prior to the expiration, a regular license shall be renewed every two (2) years.

(b) Licensees desiring renewal must notify the department prior to the license expiration. The facilities and records of each applicant for a renewal of a license may be inspected or examined by the department to determine whether the applicant is in compliance with this chapter, the Norfolk City Code, and the Code of Virginia.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-13. Denial of application.

(a) The department may deny an application for a new or renewed license if:

(1) The activities, services and facilities of the applicant are in violation of any provision of this chapter, the Norfolk City Code, or the Code of Virginia;

(2) An evaluation of the application reveals that the applicant misrepresented or reported false information;

(3) An evaluation of background checks indicates that any staff member or adult household member has been charged or found guilty of a barrier crime as defined in the Code of Virginia or is the subject of a founded complaint of child abuse or neglect;

(4) The applicant has a history of regulatory violations which demonstrates an inability to provide for the health, safety and welfare of children; or

(5) The department concludes that the applicant cannot provide for the health, safety and welfare of the children in care based on other pertinent information received by the department which creates reasonable doubt as to the applicant's ability to provide care to children.

(b) Upon the denial of the application for a new or renewed license under this chapter, the department shall notify the applicant that the application is denied, stating:

(1) The reason(s) for the denial;

(2) The regulatory standard(s) with which the applicant failed to comply that is the basis for the denial; and

(3) The applicant has the right to appeal the denial in accordance with the appeals process as established in section 15.1-18.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-14. Suspension of license.

(a) The department may suspend a license upon determining that:

(1) The licensee is in violation of any provision of this chapter, the Norfolk City Code, or the Code of Virginia; or

(2) The life, health, safety, or welfare of children is in imminent danger.

(b) Upon the suspension of the license, the department shall notify the licensee in writing of the suspension, stating:

(1) The effective date and period of the suspension;

(2) Reason(s) for the suspension;

(3) The regulatory violation(s) which is the basis for the suspension;

(4) That the licensee must stop providing care on the effective date of the suspension; and

(5) The licensee's right to appeal the suspension in accordance with the appeals process as established in section 15.1-18.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-15. Revocation of license.

(a) The department may revoke a license upon determining that:

(1) The licensee is in violation of any provision of this chapter, the Norfolk City Code, or the Code of Virginia;

(2) The life, health, safety, and welfare of children is in imminent danger;

(3) The licensee misrepresented or offered false information on any form or report required by the department;

(4) The terms or conditions of an intermediate sanction have been violated; or

(5) Violations required to be corrected during a suspension have not been corrected at the end of the suspension period.

(b) Upon the revocation of the license, the department shall notify the licensee in writing of the revocation, stating:

(1) The effective date and period of the revocation;

(2) Reason(s) for the revocation;

(3) The regulatory violation(s) which is the basis for the revocation;

(4) That the licensee must stop providing care on the effective date of the revocation; and

(5) The licensee's right to appeal the revocation in accordance with the appeals process as established in section 15.1-18.

(c) An applicant may reapply for a license after six (6) months from the date of revocation. (Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-16. Inspections.

(a) Family day homes will be inspected for initial licensing, renewal purposes, routine monitoring and when complaints/allegations are made against the home. It is the duty of every licensee to give the right of entrance to and inspection of the premises to representatives of the department, to keep and maintain such records as the department may prescribe, to permit inspection to these records, and to report to the department such facts as may be required.

(b) The department may conduct a follow-up inspection any time a family day home is cited for any violation.

(c) Family day home inspections will be conducted in both an announced and unannounced manner.

(d) A report of inspection findings will be provided to the family day home following the completion of any inspection.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-17. Enforcement.

(a) If an inspection or investigation reveals a violation of any provision of this chapter, the Norfolk City Code, or the Code of Virginia, the department may undertake enforcement actions.

(b) Enforcement actions may include, but are not limited to:

(1) Issuance of written inspection reports which include corrective action plans, requests to submit a corrective action plan to the department, and notices of intention to initiate enforcement through the denial, suspension, or revocation of a license;

(2) Meetings or telephone conferences between the department and the licensee to discuss corrective action plans;

(3) Intermediate sanctions such as:

(i) Reduction of capacity;

(ii) Prohibition on new admissions;

(iii) Mandated training;

(iv) Requiring the licensee to contact parents/guardians about health and safety violations;

(v) The department notifying parents/guardians that the family day home has had its license revoked or suspended and the basis for such action;

(4) Denial of application for a new or renewed license;

(5) Suspension of a license:

(i) A license may be temporarily suspended without a hearing upon written notification to the licensee by the department upon finding that the life, health, safety or welfare of a child is in imminent danger; or

(6) Revocation of a license.

(c) The enforcement action shall take into consideration:

(1) The number of children under the care of the family day home when the violation(s) occurred;

(2) Whether there was a violation of a high-risk standard, including violations constituting abuse, neglect, or exploitation of a child, background check standards, safety hazard standards, safe sleep standards, standards establishing times for reporting information to a parent/guardian or to department, and supervision standards;

(3) The seriousness of the violation, including the nature, circumstances, extent and gravity of any prohibited acts, and the hazard or potential hazard created to the life, health, safety or welfare of a child;

(4) The history of previous violations;

(5) The amount necessary to deter future violations;

(6) Efforts to correct the violation; and

(7) Any other matter that justice may require.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-18. Hearing and appeal process.

(a) A hearing shall be held when the licensee requests a hearing to contest:

(1) The denial of an application for a new or renewed license;

(2) A suspension or revocation of a license; or

(3) Any other action that adversely impacts the licensee.

(b) All hearing requests shall be submitted in writing to the director or the director's designee and shall state the name and address of the licensee and the effective date and nature of the action being appealed.

(c) The written hearing request shall be submitted to the director or the director's designee within five (5) business days of receipt of written notice of enforcement action.

(d) If the licensee has also received a denial, suspension, or revocation of a state license, or any other action that adversely impacts the licensee's state license, then the hearing and appeal process set out in this section shall be stayed until the completion of the state appeal process, and the licensee has exhausted all appeal remedies at the state level. The licensee shall notify the director or the director's designee within five (5) business days of the completion of the state appeal process whether the licensee requests to proceed with the hearing and appeal process.

(e) The director or the director's designee shall notify the appellant of the time, date, and place of the hearing within five (5) business days of receipt of the written hearing request. The director or the director's designee will meet with the appellant at a mutually agreeable time. Meeting attendees may include:

(1) Representatives of the City of Norfolk;

(2) Witnesses for both parties. Witnesses will be present only while providing testimony; or

(3) Legal counsel.

(i) If legal counsel represents the licensee, legal counsel may also represent the City of Norfolk.

(ii) If legal counsel will be in attendance, the licensee shall notify the director or the director's designee at least seven (7) business days prior to the hearing. The date of the hearing may be rescheduled based upon availability of legal counsel for the City of Norfolk or the licensee.

(f) The director or the director's designee shall render a hearing decision to the licensee within five (5) business days from the date of the hearing.

(1) The decision will uphold, amend, or overturn the adverse action.

(2) The decision of the director or the director's designee is final and subject to no further appeal.

(g) Any step in the appeal process may be waived if mutually agreed upon by the appellant and the director or the director's designee.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-19. Deferred compliance.

The owner or operators of any facility required to be licensed by this chapter, operating in the city as of the effective date of this chapter, may apply for and be granted a time period not to exceed six (6) months in order to comply with the licensing requirement prescribed hereunder which were not in effect on the date of enactment or this chapter. All other provisions of this chapter become effective upon the effective date of this chapter.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-20. Conflict of chapter.

The provisions of this chapter are meant to complement and be read in harmony with all other provisions of the Norfolk City Code. In any case where a provision of this chapter is found to be in conflict with any other provision of the Norfolk City Code existing on the effective date of this chapter, the provision which establishes the higher standard for the promotion and protection of the health and safety of the people shall prevail. It shall not be considered a conflict if the provider needs to comply with other requirements in order to obtain permits, licenses, or certificates other than a family day home license from the City of Norfolk, such as but not limited to: zoning, building permits, sign permits, certificates of occupancy, use permits, business, professional and occupational licenses, etc.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-21. Severability.

Should any clause, sentence, paragraph or part of this chapter or the application thereof to any person or circumstance be adjudged by a court of competent jurisdiction to be unconstitutional or invalid, said judgment shall not affect, impair or invalidate the remainder of the chapter or the application of such provisions to other persons or circumstances, but shall be confined in its application to the clause, sentence, paragraph or part thereof, directly involved in the controversy in which said judgment shall have been rendered, and the person or circumstance involved.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-22. Operational responsibilities.

(a) The provider shall ensure compliance with this chapter and the terms of the current license issued by the department and with relevant federal, state or local laws, and other relevant regulations.

(b) The provider shall ensure compliance with the home's policies that have been disclosed to the parents.

(c) The provider shall be of good character and reputation. Character and reputation investigation includes documentation of completion of required background checks prior to licensure, including:

(1) A satisfactory sworn statement or affirmation;

(2) A satisfactory national criminal background check; and

(3) A satisfactory central registry search.

(d) The provider shall submit documentation of satisfactory background checks for all caregivers and household members residing in the family day home, as required by section 15.1-25(a)(1) and section 15.1-25(d).

(e) The provider shall complete the initial training as required in section 15.1-26 prior to licensure and shall complete annual training thereafter. Required provider training shall include, but not be limited to, fulfilling the training requirements for caregivers as provided in section 15.1-27 and education provided by the department on child safety.

(f) The provider shall ensure that the home's activities, services, and facilities are conducive to the welfare of children in care.

(g) The provider shall be responsible for the family day home's day-to-day operation.

(h) The provider shall post, with parental approval, a current list of all children's allergies, sensitivities, and dietary restrictions.

(i) The provider shall ensure that any advertising is not misleading or deceptive as required by Code of Virginia, § 22.1-289.028.

(j) The provider shall ensure that the total number of children receiving care at any one time does not exceed the maximum licensed capacity of the family day home and is in compliance with the staff-to-child ratios as required in section 15.1-38.

(k) The provider shall establish and follow written procedures for prevention of shaken baby syndrome or abusive head trauma, includ-

ing coping with crying babies, safe sleeping practices, and sudden infant death syndrome awareness.

(l) The provider shall establish and follow a written plan for behavior management that will include how caregivers will address challenging behaviors.

(m) The provider shall establish and follow a written emergency preparedness and response plan that:

(1) Includes emergency evacuation, emergency relocation, shelter-in-place, and lockdown procedures;

(2) Addresses the most likely to occur scenarios that may require evacuation, shelter-in-place, or lockdown, including fire, severe storms, flooding, tornadoes, loss of utilities, intruders, violence on or near the premises, and facility damage; and

(3) Includes provisions for a responsible person who is eighteen (18) years of age or older and is able to arrive at the family day home within a reasonable period of time to provide emergency backup care until the children can be picked up by their parents.

(n) The provider shall establish and follow written medication procedures that shall:

(1) Include any general restrictions for the administration of medication;

(2) For nonprescription medication, be consistent with the manufacturer's instructions for age, duration and dosage;

(3) Include duration of the parent's authorization for medication, provided that it shall expire or be renewed after ten (10) work days. Long-term prescription and over-the-counter medication may be allowed with written authorization from the child's physician and parent; and

(4) Include methods to prevent the use of outdated medication.

(o) The provider shall either have liability and fire insurance of at least one hundred thousand dollars ($100,000.00) per occurrence and three hundred thousand dollars ($300,000.00) aggregate in force on the family day home operation to protect themselves and the children served or shall provide written notice to the parent if the family day home has limited or no liability insurance in force.

(1) If insured, a copy of the insurance policy shall be made available to the city manager or the city manager's designee upon request.

(2) In the event the family day home no longer has insurance coverage of at least one hundred thousand dollars ($100,000.00) per occurrence and three hundred thousand dollars ($300,000.00) aggregate, the provider shall (i) notify each parent within ten (10) business days after the effective date of the change; and (ii) obtain written acknowledgement of such notice. A copy of the acknowledgement required under this section shall be maintained on file at the family day home at all times while the child attends the family day home and for twelve (12) months after the child's last date of attendance.

(3) Failure of the provider to furnish the notice required under this section shall be subject to a penalty up to five hundred dollars ($500.00) for each such failure.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-23. Capacity.

(a) When at least one child receives care for compensation, all children, exclusive of the provider's own children and children who reside in the home, who are in the care and supervision of a provider, count in the licensed capacity.

(b) The department will establish the family day home's maximum capacity based on the following factors:

(1) The availability of space that allows each child free movement and active play indoors and outdoors; or

(2) The provider's responsibility to care for another individual who may require special attention or care, including but not limited to an elderly resident or a child with a serious physical, emotional, or behavioral condition.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-24. Records and reports.

(a) *General recordkeeping.*

(1) Each provider shall meet the following recordkeeping requirements:

(i) Records required by this regulation may be kept as hard copy or electronically and shall be maintained in the family day home and made accessible to the department's representative.

(ii) The provider shall maintain a written record of daily attendance that documents the arrival and departure of each child in care as it occurs.

(iii) Information contained in a child's record shall be privileged and confidential. The provider shall not disclose, directly or indirectly, any confidential information in a child's record to any unauthorized person without the written consent of the child's parent.

(iv) Children's records shall be made available to a child's parent upon request, unless otherwise ordered by the court.

(v) Records and reports on children, caregivers, and household members required by this chapter shall be maintained and made accessible to the department's representative for two (2) years from the date of termination of services for a child, date of separation from employment for caregivers, or date of termination of residence for a household member, unless specified otherwise.

(b) *Reports to the department.*

(1) The provider shall inform the department's representative as soon as possible but not to exceed twenty-four (24) hours of the circumstances surrounding the following incidents:

(i) Lost or missing child when local authorities have been contacted for help;

(ii) Serious injury to a child while under the family day home's supervision;

(iii) Death of a child while under the family day home's supervision; and

(iv) The suspension or termination of all child-care services for more than twenty-four (24) hours as a result of any emergency situation and any plans to resume child care.

(2) A written report shall be completed and submitted to the department within five (5) business days of the date the incident occurred.

(c) *Reports of suspected child abuse or neglect.* A caregiver shall immediately call the department (757-664-6022) or call the toll-free number of the Child Abuse and Neglect hotline (1-800-552-7096/TDD) whenever there is reason to suspect that a child has been or is being subjected to any kind of child abuse or neglect by any person.

(d) *Reports of suspected disease outbreaks.* The provider shall immediately make or cause to be made a report of an outbreak of disease as defined by the Virginia Board of Health. Such report shall be made by rapid means to the local health department (757-683-2800) or to the Commissioner of the Virginia Department of Health.

(e) *Children's records.*

(1) The provider shall maintain an up-to-date record at the family day home for each enrolled child.

(2) A child's record shall contain the following information:

(i) Child's full name, nickname (if any), sex, address, and birth date of the child;

(ii) Emergency care information including:

1. Name, home address, and telephone number of each parent who has custody;
2. Name, address, and telephone number of each custodial parent's place of employment;
3. Name and telephone number of the child's physician;
4. Name, address, and telephone number of two (2) designated people to contact in case of an emergency if the parent cannot be reached;
5. Information on allergies and intolerance to medication, or any other substances, and actions to take in an emergency situation;
6. A written care plan for each child with a diagnosed food allergy, to include instructions from a physician regarding the food to which the child is allergic and the steps to be taken in the event of a suspected or confirmed allergic reaction;
7. Names of persons other than the custodial parents who are authorized to pick up the child;
8. Appropriate legal paperwork when a custodial parent does not authorize the provider to release the child to the noncustodial parent; and
9. Chronic physical problems, pertinent development information, and any special accommodations needed;

(iii) First and last dates of attendance;

(iv) Parent's signed acknowledgment of the receipt of required written information for parents;

(v) Proof of the child's age and identity and the names and addresses of previously attended child day care and schools;

(vi) Written authorization for emergency medical care should an emergency occur and the parent cannot be located immediately unless the parent presents a written objection to provision of medical treatment on religious or other grounds;

(vii) Written authorization if a caregiver is to administer prescription or nonprescription medication to the child;

(viii) Written authorization if the child is to participate in swimming or wading activities;

(ix) Written authorization if the child is taken off the premises of the family day home;

(x) Special instructions to the provider including exception to an infant's sleeping position, recommendations for the care and activities of a child with special needs, and exception to an infant's being fed on demand;

(xi) Record of any accidents or injuries sustained by the child while at the family day home;

(xii) Documentation of the review of the child's emergency contact information;

(xiii) Immunization records for the child; and

(xiv) Results of the health examination for the child.

(f) *Caregiver records.*

(1) The provider shall maintain a record for each caregiver.

(2) Assistants' and substitute providers' records shall contain the following:

(i) Name;

(ii) Address;

(iii) Verification of age;

(iv) Job title;

(v) Date of employment or volunteering;

(vi) Name, address, and telephone number of a person to be notified in an emergency;

(vii) For assistants and substitute providers who are not the spouse, parent, sibling, or child of the provider and are hired after June 30, 2010, documentation that two (2) or more references as to character and reputation as well as competency were checked before employment. If a reference check is taken over the telephone, documentation shall include:

1. Dates of contact,
2. Names of persons contacted,
3. Firms contacted,
4. Results, and
5. Signature of person making call;

(viii) Documentation of satisfactory background checks pursuant to 8VAC20-770;

(ix) Documentation of tuberculosis screening; and

(x) Documentation of the education and training.

(3) Substitute providers' records shall also contain documentation of the time of arrivals and departures;

(4) Providers' records shall contain the following:

(i) Documentation of satisfactory background checks;

(ii) Documentation of tuberculosis screening; and

(iii) Documentation of the education and training.

(g) *Written information for parents.*

(1) The provider shall provide parents with the following written information prior to the child's first day of attendance. The provider shall obtain the parent's written acknowledgement of the receipt of the information in this section.

(i) Operating information including the hours and days of operation, holidays or other times closed, and the telephone number where a message can be left for a caregiver;

(ii) Schedule of fees and payment plans;

(iii) Check in and check out procedures;

(iv) Policies for the administration of medications;

(v) Requirement for the family day home to notify the parent when the child becomes ill and for the parent to arrange to have the child picked up as soon as possible if so requested by the family day home;

(vi) Requirement for the parent to inform the family day home within twenty-four (24) hours or the next business day after the child or any member of the immediate household has developed any reportable communicable disease, as defined by the State Board of Health, except for life-threatening diseases, which must be reported immediately;

(vii) Requirement for the child to be adequately immunized;

(viii) Requirement for paid caregivers to report suspected child abuse or neglect according to Code of the Virginia, § 63.2-1509;

(ix) Custodial parent or guardian right to be admitted to the family day home any time the child is in care as required by Code of the Virginia, § 22.1-289.054;

(x) General daily schedule that is appropriate for the age of the enrolling child;

(xi) Policies for the provision of food;

(xii) Presence of a pet or animal in the home;

(xiii) Discipline policies including acceptable and unacceptable discipline measures;

(xiv) Amount of time per week that an adult assistant or substitute provider instead of the provider is scheduled to care for the child and the name of the adult assistant or substitute provider;

(xv) Provisions of the family day home's emergency preparedness and response plan;

(xvi) Parental notifications required in section 15.1-40;

(xvii) Whether or not there is liability insurance of at least one hundred thousand dollars ($100,000.00) per occurrence and three hundred thousand dollars ($300,000.00) aggregate in force on the family day home operation as required in section 15.1-22;

(xviii) Policies for termination of care; and

(xix) Address of the website of the department, with a note that a copy of this chapter and additional information about the family day home may be obtained from the department's website.

(h) *Verification of child's age and identity.*

(1) The provider shall verify and document each child's age, identity, and previous child-care/school attendance within seven (7) business days of the child's first day of attendance at the family day home.

(i) The provider shall verify the identity and age of a child by viewing one of the following:

1. Certified birth certificate;
2. Birth registration card;
3. Notification of birth, i.e., hospital, physician, or midwife record;
4. Passport;
5. Copy of the placement agreement or other proof of the child's identity from a child placing agency;
6. Original or copy of a record or report card from a public school in Virginia;
7. Signed statement on letterhead stationery from a public-school principal or other designated official that assures the child is or was enrolled in the school; or
8. Child identification card issued by the Virginia Department of Motor Vehicles.

(ii) The provider shall document in the child's record:

1. The method of verification of the child's age and identity; and
2. The names and locations of the previous child-care programs and schools the child has attended.

(iii) The proof of identity, if reproduced or retained by the provider, shall be destroyed two (2) years after termination of services to the child. All reasonable steps to destroy such documents shall be made, such as by:

1. Shredding;
2. Erasing; or
3. Otherwise modifying the social security numbers in those records to make them unreadable or indecipherable by any means.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-25. General qualifications for caregivers and household members.

(a) *Caregiver qualifications.* Caregivers shall:

(1) Meet the requirements of a satisfactory background check, including a satisfactory sworn statement or affirmation prior to employment, a satisfactory central registry search, and a satisfactory national criminal background check prior to employment. All required background checks for caregivers must be updated every five (5) years. Caregivers shall report any new convictions or central registry findings to the department within five (5) business days of the conviction or notice of the finding.

(i) A satisfactory sworn statement or affirmation is:

1. A fully completed original that states that the individual does not have an offense; and

2. There is no other knowledge that the individual has an unsatisfactory background;

(ii) A satisfactory central registry search is one in which:

1. A copy of the child protective services check form is returned indicating that, as of the date on the reply, the individual whose name was searched is not identified in the central registry as an involved caregiver with a founded disposition of child abuse/neglect; and

2. There is no other knowledge that the individual has a founded disposition in Virginia or in any other state in which the individual has resided in the last five (5) years;

(iii) A satisfactory national criminal background check is one in which an original hard copy or internet inquiry reply from the department of state police is returned to the agency, individual or authorized agent making the request with:

1. No convictions indicated; or convictions indicated, but no barrier crimes, offenses, or other felony convictions in the last five (5) years; and

2. There is no other knowledge that the individual has an offense in Virginia or elsewhere;

(2) Be of good character and reputation;

(3) Be physically and mentally capable of carrying out assigned responsibilities;

(4) Have an understanding of the problems of childhood and sympathy for them;

(5) Be able to give the child the affection and security that the child needs. The provider's motivation in taking a child shall include a desire to contribute to the child's development and not be limited to meeting the provider's own needs;

(6) Be able to communicate in English or have ready access to translation assistance as necessary to:

(i) Carry out assigned job responsibilities, and

(ii) Communicate effectively with emergency responders;

(7) Have current certification in cardiopulmonary resuscitation (CPR) as appropriate to the age of the children in care from an organization such as the American Red Cross, American Heart Association, American Safety and Health Institute, or National Safety Council, or current first aid certification issued within the past two (2) years by a community college, a hospital, a rescue squad, or a fire department, unless a caregiver is a registered nurse or licensed practical nurse with a current license from the Board of Nursing. The training shall include an in-person competency demonstration.

(8) Have current certification in first aid from an organization such as the American Red Cross, American Heart Association, American Safety and Health Institute, or National Safety Council, unless a caregiver is a registered nurse or licensed practical nurse with a current license from the Board of Nursing; and

(9) Caregivers who drive a vehicle transporting children shall comply with the requirements of drivers in section 15.1-53(b).

(b) *Provider and substitute provider qualifications.*

(1) Providers and substitute providers shall be eighteen (18) years of age or older.

(2) Use of a substitute provider shall be limited to no more than a total of two hundred forty (240) hours per calendar year.

(3) A substitute provider shall record and sign the time of arrivals and departures on each day that the substitute provider works.

(c) *Assistant qualifications.*

(1) Assistants shall be sixteen (16) years of age or older.

(2) An assistant under the age of eighteen (18) years of age shall always work under the direct supervision of the provider or substitute provider. Direct supervision means being able to hear or see the assistant and children at all times.

(3) An assistant eighteen (18) years of age or older shall not be left alone with children in care for more than two (2) hours per day.

(4) An assistant eighteen (18) years of age or older who is left alone with children in care shall have:

(i) Current certification in cardiopulmonary resuscitation (CPR), as appropriate to the age of the children in care, from the American Red Cross, American Heart Association, American Safety and Health Institute, or National Safety Council, or current CPR certification issued within the past two (2) years by a community college, a hospital, a rescue squad, or a fire department; and

(ii) Current certification in first aid from the American Red Cross, American Heart Association, American Safety and Health Institute, or National Safety Council, or current first aid certification issued within the past three (3) years by a community college, a hospital, a rescue squad, or a fire department, unless the assistant is a registered nurse or licensed practical nurse with a current license from the Board of Nursing.

(5) An assistant eighteen (18) years of age or older who meets the requirements for a substitute provider may act as the substitute provider when the provider is absent from the home for more than two (2) hours.

(d) *Household member qualifications.*

(1) Individuals fourteen (14) years of age and older who reside in the family day home shall:

(i) Meet the requirements of a satisfactory central registry search, as defined in section 15.1-25(a)(1)(ii);

(ii) Be of good character and reputation; and

(iii) Display behavior that demonstrates emotional stability.

(2) In addition to meeting the requirements in section 15.1-25(d)(1), individuals eighteen (18) years of age and older who reside in the family day home shall also:

(i) Meet the requirements of a satisfactory sworn statement or affirmation, as defined in section 15.1-25(a)(1)(i); and

(ii) Meet the requirements of a satisfactory national criminal background check, as defined in section 15.1-25(a)(1)(iii).

(3) Household members' background checks must be conducted every five (5) years. Providers shall report any known new conviction or central registry finding of household members to the department within five (5) business days of learning of the conviction or the finding.

(4) When a minor who resides in the family day home turns eighteen (18) years of age, the provider is responsible for making sure that the eighteen (18) year old complies with all background check requirements for individuals eighteen (18) years of age and older within thirty (30) days of turning eighteen (18).

(e) *Criminal conviction and waiver.*

(1) Where the Superintendent of the Virginia Department of Education has granted a waiver to a family day home for a criminal conviction pursuant to Virginia Code, § 22.1-289.038, the department shall grant the same waiver for issuance of a voluntary license. For all other licenses, the department may grant a waiver after consideration of the factors outlined in Virginia Code, § 22.1-289.038.

(2) Any waiver granted under this section shall be available for inspection by the public. The family day home shall notify in writing every parent/guardian of the children in its care of any waiver granted for its operators, employees, or volunteers.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-26. Initial training.

(a) Providers shall complete initial training prior to licensure. In addition to the topics required in (c) below, initial training for providers shall include home inspection readiness and an overview of City Code requirements.

(b) The provider shall be responsible for training any substitute provider or assistant on the topics required below in (c) prior to the substitute provider or assistant working alone with any child and within thirty (30) days of assuming job responsibilities.

(c) The initial training for all caregivers shall include the following topics:

(1) Job responsibilities;

(2) Requirements for parental notifications listed in section 15.1-40;

(3) Standards in this chapter that relate to the substitute provider's or assistant's responsibilities;

(4) Location of emergency numbers, first aid kit, and emergency supplies;

(5) Confidential treatment of information about children in care and their families;

(6) Recognizing child abuse and neglect and the legal requirements for reporting suspected child abuse as required by Code of Virginia, § 63.2-1509;

(7) The provider's policies and procedures on the administration of medication;

(8) Emergency preparedness and response planning for emergencies resulting from a natural disaster, or a human-caused event such as violence at a family day home and the home's specific emergency preparedness plan, including emergency evacuation, relocation, and shelter-in-place procedures;

(9) Prevention and control of infectious diseases;

(10) Prevention of sudden infant death syndrome and use of safe sleep practices;

(11) Prevention of shaken baby syndrome and abusive head trauma including procedures to cope with crying babies or distraught children;

(12) Child development including physical, cognitive, social, and emotional development; behavior management; and positive guidance techniques;

(13) Prevention of and response to emergencies due to food and other allergic reactions including:

(i) Recognizing the symptoms of an allergic reaction;

(ii) Responding to allergic reactions;

(iii) Preventing exposure to the specific food and other substances to which the child is allergic; and

(iv) Preventing cross-contamination.

(14) Building and physical premises safety, including identification of and protection from hazards that can cause bodily injury such as electrical hazards, bodies of water, and vehicular traffic;

(15) Handling and storage of hazardous materials and the appropriate disposal of diapers and other items contaminated by body fluids; and

(16) Precautions in transporting children, if applicable.

(d) To document satisfactory completion of the training requirements in this section, the department will provide a certificate of completion for the provider, and the provider shall provide a certificate of completion for the assistant and the substitute provider.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-27. Caregiver training.

(a) Caregivers shall complete a minimum of eight (8) hours of training annually.

(b) Annual training shall include any topics mandated by the department and topics relevant to the caregiver's job responsibilities and the care of children, such as:

(1) Child development including physical, intellectual, social, and emotional development;

(2) Behavior management and positive guidance techniques;

(3) Health and safety in the family day home environment, including recognition, prevention and control of infectious or communicable diseases;

(4) Prevention of sudden infant death syndrome and use of safe sleep practices;

(5) Prevention of and response to emergencies due to food and other allergic reactions including:

(i) Recognizing the symptoms of an allergic reaction;

(ii) Responding to allergic reactions;

(iii) Preventing exposure to the specific food and other substances to which the child is allergic; and

(iv) Preventing cross-contamination;

(6) The home's policies and procedures on the administration of medication;

(7) Building and physical premises safety, including identification of and protection from hazards that can cause bodily injury such as electrical hazards, bodies of water, and vehicular traffic;

(8) Prevention of shaken baby syndrome and abusive head trauma including procedures to cope with crying babies or distraught children;

(9) Signs and symptoms of child abuse and neglect and requirements for mandated reporters, including but not limited to, child abuse/sexual offense certification;

(10) Emergency preparedness and response planning for emergencies resulting from a natural disaster, or a human-caused event such as violence at a family day home and the home's specific emergency preparedness plan. Training on the home's emergency preparedness plan shall be completed annually and each time the plan is updated;

(11) Handling and storage of hazardous materials and the appropriate disposal of diapers and other items contaminated by body fluids;

(12) Precautions in transporting children, if applicable;

(13) The recommended care requirements related to the care and development of children with special needs, if applicable;

(14) Art and music activities for children; and

(15) Child nutrition.

(c) CPR and first aid training may count towards the annual training hours required in subsection (a) of this section.

(d) Medication administration training.

(1) To safely perform medication administration practices listed in section 15.1-48 whenever the family day home has agreed to administer prescription medications or non-prescription medications, the administration shall be performed by a caregiver who:

(i) Has satisfactorily completed a training program for this purpose developed or approved by the Board of Nursing and taught by a registered nurse, licensed practical nurse, doctor of medicine or osteopathic medicine, or pharmacist; or

(ii) Is licensed by the Commonwealth of Virginia to administer medications.

(2) Caregivers required to have the training shall be retrained at three (3) year intervals.

(e) Documentation of education and training.

(1) The provider shall maintain written documentation of each caregiver's applicable education and programmatic experience, first aid and CPR certification, initial training, annual training, and applicable medication administration training.

(2) Written documentation of training shall include:

(i) Name of the caregiver;

(ii) Training topic;

(iii) Date and total hours of the session; and

(iv) Name of the organization that sponsored the training and the trainer.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-28. Caregiver and household member health requirements.

Caregivers and household members shall be subject to the following physical and mental health requirements:

(a) *Initial tuberculosis screening for caregivers and household members.*

(1) The provider shall obtain from each caregiver at the time of hire and each adult household member prior to coming into contact with children a current report of tuberculosis screening form published by the Virginia Department of Health or form consistent with it documenting either the absence of tuberculosis in a communicable form or no risk factors requiring a test for tuberculosis infection.

(2) The form shall have been completed within the last thirty (30) days and be signed by a physician, physicians' designee, or an official of the local health department, unless the caregiver is able to provide a copy of a form completed within the last two (2) years for previous licensed child-care employment.

(b) *Subsequent tuberculosis screening for caregivers and household members.*

(1) Each caregiver and adult household member shall submit a current report of tuberculosis screening form every two (2) years from the date of the first screening or more frequently as recommended by a physician or the local health department.

(2) Within thirty (30) days of a caregiver's or adult household member's coming into contact with a known case of infectious tuberculosis, a new report of tuberculosis screening form shall be submitted. Until a new screening form is issued that documents either the absence of tuberculosis in a communicable form or no risk fac-

tors requiring a test for tuberculosis infection, the caregiver or adult household member shall not have contact with children.

(3) A new report of tuberculosis screening form shall be submitted for any caregiver or adult household member who develops chronic respiratory symptoms of three (3) weeks duration. Until a new screening form is issued that documents either the absence of tuberculosis in a communicable form or no risk factors requiring a test for tuberculosis infection, the caregiver or adult household member shall not have contact with children.

(c) *Medical certification for caregivers and household members.*

(1) The department or the provider may require a report of examination by a licensed physician or mental health professional when there are indications that a caregiver's or household member's physical or mental health may endanger the health, safety, or well-being of children in care.

(2) A caregiver or household member who is determined by a licensed physician or mental health professional to show an indication of a physical or mental condition that may endanger the health, safety, or well-being of children in care or that would prevent the performance of duties shall be removed immediately from contact with children and food served to children until the condition is cleared as evidenced by a signed statement from the physician or mental health professional.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-29. Children's health requirements.

(a) *Immunizations for children.*

(1) Before a child may attend the family day home, the provider shall obtain documentation that the child has been immunized according to the requirements of Code of Virginia, § 32.1-46(A) and applicable State Board of Health Regulations.

(i) The provider may allow a child to attend contingent upon a conditional enrollment. Documentation related to the child's conditional enrollment shall be maintained in the child's record.

(ii) Conditional enrollment means the enrollment of a child for a period of ninety (90) days contingent upon the child having received at least one dose of each of the required vaccines and the child possessing a plan, from a physician or local health department, for completing the child's immunization requirements within the ensuing ninety (90) calendar days. If the child requires more than two (2) doses of hepatitis B vaccine, the conditional enrollment period, for hepatitis B vaccine only, shall be one hundred eighty (180) calendar days.

(iii) If a child is homeless and does not have documentation of the required immunizations, the provider may allow the child to attend during a grace period of no more than ninety (90) days to allow the parent or guardian time to obtain documentation of required immunizations. Enrollment of a homeless child without the required immunizations must be documented in the child's record.

(2) Pursuant to Code of Virginia, § 32.1-46(D), the provisions of this section shall not apply if:

(i) The parent or guardian of the child objects on the grounds that the administration of immunizing agents conflicts with his religious tenets or

practices, unless an emergency or epidemic of disease has been declared by the State Board of Health;

(ii) The parent or guardian presents a statement from a physician licensed to practice medicine in Virginia, a licensed advanced practice registered nurse, or a local health department states that the physical condition of the child is such that the administration of one or more of the required immunizing agents would be detrimental to the health of the child; or

(iii) A parent or guardian, at the parent's or guardian's sole discretion, may elect for the parent's or guardian's child not to receive the human papillomavirus vaccine.

(3) The provider shall obtain documentation of additional immunizations for a child who is not exempt from the immunization requirements according to subsection (a)(2) of this section:

(i) At least once annually for children under the age of two (2) years; and

(ii) Once between each child's fourth and sixth birthdays.

(b) *Physical examinations for children.*

(1) The provider shall obtain documentation of a physical examination by or under the direction of a physician prior to (i) a child's attendance or (ii) within thirty (30) days after the first day of attendance. If a child is homeless and does not have documentation of a physical examination, the provider may allow the child to attend during a grace period of no more than ninety (90) days to allow the parent or guardian time to obtain documentation of the required physical examination. Enrollment of a homeless child without documentation of a physical examination must be documented in the child's record.

(2) The physical examination prior to attendance shall have been conducted within:

(i) Two (2) months prior to attendance for children six (6) months of age or younger;

(ii) Three (3) months prior to attendance for children age seven (7) months through eighteen (18) months;

(iii) Six (6) months prior to attendance for children age nineteen (19) months through twenty-four (24) months;

(iv) Twelve (12) months prior to attendance for children two (2) years of age through five (5) years of age; or

(v) Twenty-four (24) months prior to attendance for children six (6) years of age and above.

(3) When a child transfers from a family day home or facility licensed by the Norfolk Department of Human Services, the Virginia Department of Education, or a licensed family day system, a family day home voluntarily registered by the Virginia Department of Education, or a family child care provider certified by a branch of the Armed Forces of the United States as described in Virginia Code, § 22.1-289.030(B)(10), a new physical examination is not required if a copy of the physical examination from the originating program is maintained in the child's record.

(4) For a school age child, a copy of the physical examination required for the child's entry into a Virginia public kindergarten or elementary school is acceptable documentation to meet the requirements of this section.

(c) *Form and content of immunization and physical examination reports.*

(1) The current form approved by the Virginia Department of Health or a physician's form shall be used to record immunizations received and the results of the required physical examination.

(2) Each report shall include the date of the physical examination and dates immunizations were received and shall be signed, electronically signed, and/or stamped by a licensed physician, the physician's designee, or an official of a local health department.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-30. Physical environment.

(a) *Home maintenance.* Areas and furnishings of the family day home, inside and outside, shall be maintained in a clean, safe, and operable condition. Unsafe conditions shall include, but not be limited to, the presence of poisonous plants; tripping hazards; unstable heavy equipment, furniture, or other items that a child could pull down on himself; splintered, cracked, or otherwise deteriorating wood; chipped or peeling paint; visible cracks, bending or warping, rusting, or breakage of any equipment; head entrapment hazards; and protruding nails, bolts, or other components that could entangle or could snag skin.

(b) *Telephones.*

(1) A telephone shall be available, operable, and accessible during the family day home's hours of operation.

(2) The provider shall ensure that parents and the department have been given the telephone number in writing.

(3) The provider shall inform the department within forty-eight (48) hours and parents within twenty-four (24) hours of a change of the telephone number.

(c) *Bathrooms.*

(1) The family day home shall have an indoor bathroom.

(2) The bathroom shall be easily accessible to children two (2) years of age and older.

(3) The bathroom shall be kept clean and contain a working toilet and sink, toilet tissue, liquid soap, and paper towels.

(d) *Water supply.*

(1) The family day home shall have indoor running water.

(2) The family day home shall comply with sections 39.1-5, 46.1-6 and 46.1-7.

(3) Family day homes that have open and obvious symptoms of water or sewage system problems shall have the problems corrected within a time frame established by the local public utility department.

(4) There shall be hot and cold water available to children and caregivers for hand washing.

(5) Hot water at taps available to children shall be maintained within a range of one hundred five (105) degrees Fahrenheit to one hundred twenty (120) degrees Fahrenheit.

(e) *Garbage.*

(1) Garbage shall be removed on a daily basis from rooms occupied by children and removed from the premises at least once weekly or more often as needed.

(2) There shall be a sufficient number of garbage and diaper containers. Diaper containers must be covered.

(3) Children shall not be allowed access to garbage storage areas.

(4) Garbage storage areas shall be free of litter, odor, and uncontained trash.

(f) *Rodents and insects.*

(1) The home shall be kept free from rodents and insect infestation.

(2) No home shall maintain any receptacle or pool, whether natural or artificial, containing water in such condition that insects breeding therein may become a menace to public health.

(g) *Heating and cooling.*

(1) The temperature in all inside areas occupied by children shall be maintained no lower than sixty-five (65) degrees Fahrenheit.

(2) Fans or other cooling systems shall be used when the temperature of inside areas occupied by children exceeds eighty (80) degrees Fahrenheit.

(3) Whenever the city manager shall determine and declare that an energy shortage exists, the minimum thermal standards set forth in this section shall be superseded by thermal standards established by the city manager. Such standards shall be consistent with the nature and extent of the energy shortage and the health and safety of the occupants. These standards shall remain in effect until the city manager shall declare the emergency is ended.

(4) Portable electric fans shall be securely mounted out of reach of children and shall be equipped with a mesh guard.

(h) *Lighting.*

(1) Rooms, halls, and stairways used by children in care shall be lighted with natural or electric lighting for the children's safety and comfort.

(2) Entrance and exit ways shall be unobstructed and be lighted with natural or electric lighting.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-31. Emergency provisions.

(a) A plan for emergency situations and for illness of staff shall be maintained and made available for city inspections.

(b) Emergency information.

(1) The emergency contact information and the parent's written authorization for emergency medical care, both as required by section 15.1-24(e), shall be made available to a physician, hospital, or emergency responders in the event of a child's illness or injury.

(2) Annually, the provider shall:

(i) Review with the parent the emergency contact information required in section 15.1-24(e) to ensure the information is correct; and

(ii) Obtain the parent's signed acknowledgement of the review.

(c) Posted telephone numbers.

(1) The following telephone numbers shall be posted in a visible area of the family day home:

(i) A 911 or local dial number for police, fire, and emergency medical responders;

(ii) The responsible person for emergency backup care as required in section 15.1-22(m)(3); and

(iii) The regional poison control center.

(d) Emergency preparedness and response plan.

(1) The family day home shall have a written emergency preparedness and response plan that:

(i) Includes emergency evacuation, emergency relocation, and shelter-in-place procedures;

(ii) Addresses the most likely to occur scenarios, including fire, severe storms, flooding, tornadoes, loss of utilities, intruders, violence on or near the premises, and facility damage; and

(iii) Includes provisions for a responsible person who is eighteen (18) years of age or older and is able to arrive at the family day home within a reasonable period of time for emergency backup care until the children can be picked up by their parents.

(2) The provider shall review the emergency plan at least annually and update the plan as needed. The provider shall document in writing each review and update to the emergency plan.

(3) The provider shall ensure that each caregiver receives training regarding the emergency evacuation, emergency reloca-

tion, shelter-in-place, and lockdown procedures prior to the caregiver working alone with any child and within thirty (30) days of assuming job responsibilities, on an annual basis, and at the time of each plan update.

(e) Evacuation, relocation, shelter-in-place, and lockdown procedures.

(1) The provider shall establish and follow evacuation, relocation, shelter-in-place, and lockdown procedures.

(2) Evacuation and relocation procedures shall include:

(i) Methods to alert caregivers and emergency responders;

(ii) Designated primary and secondary routes out of the building;

(iii) Designated assembly point away from the building;

(iv) Designated relocation site;

(v) Methods to ensure all children are evacuated from the building, and if necessary, moved to a relocation site;

(vi) Methods to account for all children at the assembly point and relocation site;

(vii) Methods to ensure essential documents, including emergency contact information, medications, and supplies are taken to the assembly point and relocation site;

(viii) Method of communication with parents and emergency responders after the evacuation;

(ix) Method of communication with parents after the relocation;

(x) Accommodations or special requirements for infants, toddlers, and children with special needs to ensure their safety during evacuation or relocation; and

(xi) Procedures to reunite children with a parent or authorized person designated by the parent to pick up the child.

(3) Shelter-in-place and lockdown procedures.

(i) Methods to alert caregivers and emergency responders;

(ii) Designated safe location within the home;

(iii) Designated primary and secondary routes to the safe location;

(iv) Methods to ensure all children are moved to the safe location;

(v) Methods to account for all children at the safe location;

(vi) Methods to ensure essential documents, including emergency contact information, and supplies are taken to the safe location;

(vii) Method of communication with parents and emergency responders; and

(viii) Accommodations or special requirements for infants, toddlers, and children with special needs to ensure their safety during shelter-in-place and lockdown; and

(ix) Procedures to reunite children with a parent or authorized person designated by the parent to pick up the child.

(f) Emergency response drills.

(1) The emergency evacuation procedures shall be practiced monthly with all caregivers and children in care during all shifts that children are in care.

(2) Shelter-in-place procedures shall be practiced a minimum of twice per year.

(3) Lockdown procedures shall be practiced at least annually.

(4) Documentation shall be maintained of emergency evacuation, shelter-in-place, and lockdown drills that includes:

(i) Identity of the person conducting the drill;

(ii) The date and time of the drill;

(iii) The method used for notification of the drill;

(iv) The number of caregivers participating;

(v) The number of children participating;

(vi) Any special conditions simulated;

(vii) The time it took to complete the drill;

(viii) Problems encountered, if any; and

(ix) For emergency evacuation drills only, weather conditions.

(5) Records of emergency evacuation, shelter-in-place, and lockdown drills shall be maintained for one year.

(g) Injury records.

(1) The provider shall record in the child's record an injury or accident sustained by a child while at the family day home that requires first aid or emergency medical or dental treatment.

(2) The information recorded shall include the following:

(i) Date and time of injury,

(ii) Name of injured child,

(iii) Type and circumstances of the injury,

(iv) Caregiver(s) present and action taken,

(v) Date and time when parents were notified,

(vi) Any future action to prevent recurrence of the injury,

(vii) Caregiver and parent signatures or two (2) caregiver signatures, and

(viii) Documentation on how the parent was notified.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-32. First aid and emergency medical supplies.

(a) The following emergency supplies shall be in the family day home, accessible to outdoor play areas, on field trips, in vehicles used for transportation and wherever children are in care:

(1) A first aid kit that contains at a minimum:

(i) Scissors;

(ii) Tweezers;

(iii) Gauze pads;

(iv) Adhesive tape;

(v) Adhesive bandages, assorted sizes;

(vi) Antiseptic cleaning solution or pads;

(vii) Digital thermometer;

(viii) Triangular bandage;

(ix) Single use gloves such as surgical or examination gloves;

(x) First aid instructional manual.

(2) An ice pack or cooling agent.

(b) The first aid kit shall be readily accessible to caregivers and inaccessible to children.

(c) A working battery-operated flashlight, a working portable battery-operated weather band radio, and extra batteries shall be kept in a designated area and be available to caregivers at all times.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-33. Safety.

(a) No equipment, materials, or furnishings shall be used if recalled or identified by the U.S. Consumer Product Safety Commission as being hazardous.

(b) Potentially poisonous substances, materials and supplies such as, but not limited to, cleaning agents, disinfectants, deodorizers, plant care chemicals, pesticides, and petroleum distillates shall be stored away from food in areas inaccessible to children.

(c) Sharp kitchen utensils and other sharp objects shall be inaccessible to children unless being used by the caregiver or with children under close supervision.

(d) When any surface has been contaminated with body fluids, it shall be cleaned and sanitized.

(e) Machinery in operation such as lawnmowers and power tools shall be inaccessible to the children in care.

(f) Hanging, suffocation and strangulation hazards.

(1) Hanging items including, but not limited to, window blind or curtain cords, appliance cords, and ropes shall be out of reach of children under five (5) years of age.

(2) Children shall be protected from materials that could be swallowed or present a choking hazard. Toys or objects less than one and one-quarter (1¼) inches in diameter and less than two (2) inches in length shall be kept out of reach of children under the age of three (3) years.

(3) Items tied across the top or corner of a crib or playpen or toys hung from the sides with strings or cords shall be removed when the child begins to push up on hands and knees or is five (5) months of age, whichever occurs first.

(4) Hood or neck drawstrings shall be removed from a child's clothing prior to a child's using climbing play equipment.

(5) Latex gloves, balloons, and empty plastic bags large enough for a child's head to fit inside shall be inaccessible to children under five (5) years of age.

(g) Fire safety and shock prevention.

(1) Small electrical appliances such as, but not limited to, curling irons, toasters, blenders, can openers, and irons, shall be unplugged unless being used by the caregiver or with children under close supervision.

(2) Child-resistant protective covers larger than one and one-quarter (1¼) inches in diameter shall be installed on all unused electrical outlets and surge protectors accessible to children under five (5) years of age.

(3) No electrical device accessible to children shall be placed so that it could be plugged into an electrical outlet while in contact with a water source, such as a sink, tub, shower area, toilet, or swimming or wading pool.

(4) Electrical cords and electrical appliances and equipment with cords that are frayed and have exposed wires shall not be used.

(5) Radiators, oil and wood burning stoves, floor furnaces, fireplaces, portable electric heaters, and similar heating devices located in areas accessible to children shall have barriers or screens and be located at least three (3) feet from combustible materials.

(6) Unvented fuel burning heaters shall not be used when children are in care. Unvented fuel burning heaters include, but are not limited to, portable oil-burning (kerosene) heaters; portable, unvented liquid or gas fueled heaters; and unvented fireplaces.

(7) All flammable and combustible materials such as, but not limited to, matches, lighters, lighter fluid, kerosene, turpentine, oil and grease products, aerosol cans, and alcohol shall be stored in an area inaccessible to children.

(8) There must be an operable smoke detector on each level of the home and a fire extinguisher in the home, as required by the Uniform Statewide Building Code and Statewide Fire Prevention Code.

(9) If there are open and obvious fire hazards, including the absence of fire extinguishers or smoke detectors as required by the Uniform Statewide Building Code and the Statewide Fire Prevention Code, the local fire prevention or building officials, or the city's fire marshal's office may be contacted by the department's representa-

tive. The provider shall comply with the requirements or recommendations made by the fire prevention or building officials to eliminate fire hazards.

(h) Firearms and ammunition.

(1) Firearms of every type and purpose shall be stored unloaded in a locked container, compartment, or cabinet, and apart from ammunition during the family day home's hours of operation.

(2) Ammunition shall be stored in a separate locked container, compartment, or cabinet during the family day home's hours of operation.

(3) If a key is used to lock the container, compartment, or cabinet, the key shall be inaccessible to children.

(i) Stairs.

(1) Children under two (2) years of age and children over two (2) years of age who are not developmentally ready to climb or descend stairs without supervision shall not have access to stairs.

(2) Accordion expansion gates and pressure mounted gates shall not be used as protective barriers at stair openings.

(3) If children have access to stairs, the stairs shall have adequate protective barriers or guardrails. Any protective barrier and guardrail shall be constructed to prevent a child from climbing over, sliding under, crawling or falling through, or becoming entrapped.

(j) Decks and porches. If children have access to decks, porches, lofts, or balconies, adequate protective barriers or guardrails shall be constructed to prevent a child from falling off, climbing over, sliding under, crawling or falling through, or becoming entrapped.

(k) Doors and windows.

(1) Doors with clear glass panels that reach within eighteen (18) inches of the floor shall be clearly marked with decorative objects such as pictures, art work, or decals at the eye level of children in care.

(2) Closet door with latches shall be such that children can open the door from inside the closet.

(3) Bathroom doors with locks shall be designed to permit opening of the locked door from the outside with a readily accessible opening device.

(4) Windows and doors used for ventilation shall be securely screened.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-34. Space, play equipment and materials.

(a) The family day home shall provide each child with space to allow free movement and active play indoors and out.

(b) Each child who is two (2) years of age and older shall have access to an individual location in which to keep clothing, toys, and belongings.

(c) Each child who is under the age of two (2) shall have an individual location in which to keep clothing, toys, and belongings that is accessible to the caregiver and parent.

(d) The family day home shall provide a sufficient quantity and variety of play materials and equipment that shall be readily accessible to children.

(e) Equipment and materials used by a child shall be appropriate to the age, size, ability, and interest of the child.

(f) Materials and equipment available shall include, but not be limited to, arts and crafts materials, texture materials, construction materials, music and sound materials, books, social living equipment, and manipulative equipment.

(g) Equipment used by children shall be assembled, maintained, and used in accordance with the manufacturer's instructions.

(h) Equipment and materials used by children shall be clean, nontoxic, and free from hazards such as lead paint, sharp edges or points, loose parts, and rust.

(i) Toys mouthed by children shall be cleaned and sanitized daily.

(j) The climbing portions of indoor slides and climbing equipment over eighteen (18) inches high shall not be over bare floor.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-35. Provider-owned outdoor play area and equipment.

(a) A non-climbable barrier at least four (4) feet high such as, but not limited to, a fence or impenetrable hedge shall surround outdoor play areas located within thirty (30) feet of hazards such as, but not limited to, street with speed limits in excess of twenty-five (25) miles per hour or with heavy traffic, light rail or railroad tracks, or a body of water.

(b) Provider-owned outdoor play equipment shall be maintained in a clean, safe, and operable condition.

(c) The highest climbing rung or platform on provider-owned outdoor climbing equipment or top of a slide shall not exceed six (6) feet for school age children and four (4) feet for preschool children.

(d) Stationary provider-owned outdoor playground equipment shall:

(1) Not be installed over concrete, asphalt, or any other hard surface;

(2) Be placed at least six (6) feet from the perimeter of other play structures or obstacles; and

(3) Be firmly anchored with ground supports that are covered with materials to protect children from injury.

(e) Outdoor play equipment shall meet the following requirements:

(1) "S" hooks shall be tightly closed;

(2) Swings shall have flexible seats of rubber, canvas, or nylon;

(3) Nonflexible-molded seats shall be used only when a caregiver stays within arm's length of any hard-molded swing in use and is positioned to see and protect other children who might walk into the path of the swing;

(4) Openings above the ground that are closed on all sides shall be smaller than three and one-half (3½) inches or larger than nine (9) inches to prevent head entrapment hazards;

(5) Ropes, loops, or any hanging apparatus that might entrap, close, or tighten upon a child shall not be used;

(6) Equipment with moving parts that might pinch or crush children's hands or fingers shall not be used unless they have guards or covers; and

(7) Equipment with platforms or ramps over thirty (30) inches high shall have been designed with guardrails or barriers to prevent falls.

(f) Provider-owned sandboxes shall be covered when not in use.

(g) Trampolines shall not be used during the hours children are in care.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-36. Health procedures.

(a) Each provider shall have a State Health Department "Communicable Disease Chart," which can be obtained online, and a State Health and Education Department flip chart "Suggestions for Temporary Care of Emergencies in Schools," which can be obtained from the department.

(b) Preventing the spread of disease.

(1) Exclusion of sick children.

(i) Unless otherwise approved by a child's health professional, a child shall be excluded from the family day home if the child has:

1. Both fever and behavior change. A fever means oral temperature over one hundred one (101) degrees Fahrenheit or armpit temperature over one hundred (100) degrees Fahrenheit;

2. Diarrhea (more watery, less formed, more frequent stools not associated with a diet

change or medication). Children in diapers who develop diarrhea shall be excluded, and children who have learned to use the toilet, but cannot make it to the toilet in time, shall also be excluded;

3. Recurrent vomiting (vomiting two (2) or more times in twenty-four (24) hours); or

4. Symptoms of a communicable disease listed in the Virginia Department of Health's current communicable disease chart, which can be obtained online.

(ii) If a child needs to be excluded according to subsection (a) of this section, the following shall apply:

1. The parents or designated emergency contact shall be contacted immediately so that arrangements can be made to remove the child from the family day home as soon as possible; and

2. The child shall remain in a quiet, designated area and the caregiver shall respond immediately to the child until the child leaves the family day home.

(c) Hand washing.

(1) Caregivers shall wash their hands with soap and warm running water:

(i) When their hands are dirty;

(ii) After toileting;

(iii) Before preparing and serving food;

(iv) Before feeding or helping children with feeding;

(v) After contact with any body fluids;

(vi) After handling or caring for animals;

(vii) After handling raw eggs or meat; and

(viii) After diapering a child or assisting a child with toileting.

(2) Caregivers shall ensure that children's hands are washed with liquid soap and warm running water:

(i) When their hands are dirty;

(ii) Before eating;

(iii) After toileting or diapering;

(iv) After handling or caring for animals; and

(v) After contact with any body fluids.

(d) Diapering and toileting.

(1) A child shall not be left unattended on a changing table during diapering.

(2) When a child's clothing or diaper becomes wet or soiled, the child shall be cleaned and changed immediately.

(3) During each diaper change or after toileting accidents, the child's genital area shall be thoroughly cleaned with a moist disposable wipe or a moist, clean individually assigned cloth, if the child is allergic to disposable wipes.

(4) The diapering surface shall be:

(i) Separate from the kitchen, food preparation areas, or surfaces used for children's activities;

(ii) Nonabsorbent and washable; and

(iii) Cleaned and sanitized after each use.

(5) Soiled disposable diapers and wipes shall be disposed of in a covered, leak-proof or plastic-lined storage system that is either foot operated or used in such a way that neither the caregiver's hand nor the soiled diaper or wipe touches the exterior surface of the storage system during disposal.

(6) When cloth diapers are used, a separate leak-proof storage system as specified in subsection (d)(5) of this section shall be used for each individual child.

(7) Children five (5) years of age and older shall be permitted privacy when toileting.

(8) Caregivers shall respond promptly to a child's request for toileting assistance.

(9) The provider shall consult with the parent before toilet training is initiated.

(10) Toilet training shall be relaxed and pressure free.

(11) There shall be a toilet chair or an adult-sized toilet with a platform or steps and adapter seat available to a child being toilet trained.

(12) Toilet chairs, when used, shall be emptied promptly, cleaned and sanitized after each use.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-37. Supervision of children.

(a) A caregiver shall be physically present on site and provide direct care and supervision of each child at all times. Direct care and supervision of each child includes:

(1) Awareness of and responsibility for each child in care, including being near enough to intervene if needed; and

(2) Monitoring of each sleeping infant in one of the following ways:

(i) By placing each infant for sleep in a location where the infant is within sight and hearing of a caregiver;

(ii) By in-person observation of each sleeping infant at least once every fifteen (15) minutes; or

(iii) By using a baby monitor.

(b) Caregivers shall actively supervise each child during outdoor play to minimize the risk of injury to a child.

(c) A caregiver may allow only school age children to play outdoors while the caregiver is indoors if the caregiver can hear the children playing outdoors.

(d) Infants shall be protected from older children.

(e) No child under five (5) years of age or who lacks the motor skills and strength to avoid accidental drowning, scalding, or falling while bathing shall be left unattended while in the bathtub.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-38. Staff-to-child ratios.

(a) Determining need for additional caregiver.

(1) The provider shall ensure that a caregiver does not exceed sixteen (16) points by using the following point system to determine if an additional caregiver is needed:

(i) Children from birth up to fifteen (15) months of age count as four (4) points each;

(ii) Children from sixteen (16) months through twenty-three (23) months of age count as three (3) points each;

(iii) Children from two (2) years through four (4) years of age shall count as one (2) points each;

(iv) Children from five (5) years of age through nine (9) years of age count as one point each; and

(v) Children who are ten (10) years of age and older shall count as zero (0) points each.

(2) A caregiver's own children and resident children under eight (8) years of age shall count in point maximums.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-39. General requirements for programs.

(a) In order to promote the child's physical, intellectual, emotional, and social well-being and growth, caregivers shall:

(1) Talk to the child;

(2) Provide needed help, comfort, and support;

(3) Respect personal privacy;

(4) Respect differences in cultural, ethnic, and family background;

(5) Encourage decision-making abilities;

(6) Promote ways of getting along;

(7) Encourage independence and self-direction; and

(8) Use consistency in applying expectations.

(b) Caregivers shall provide age-appropriate activities for children in care throughout the day that:

(1) Are based on the physical, social, emotional, and intellectual needs of the children;

(2) Reflect the diversity of enrolled children's families, culture, and ethnic backgrounds; and

(3) Enhance the total development of children.

(c) Daily age-appropriate activities shall include:

(1) Opportunities for alternating periods of indoor active and quiet play depending on the ages of the children;

(2) Opportunities for vigorous outdoor play daily, depending upon the weather, the ages, and the health of the children;

(3) Opportunities for one or more regularly scheduled rest or nap periods. Children unable to sleep shall be provided time and space for quiet play;

(4) Opportunities for children to learn about themselves, others, and the world around them;

(5) Opportunities for children to exercise initiative and develop independence in accordance with their ages; and

(6) Opportunities for structured and unstructured play time and provider-directed and child-initiated learning activities.

(d) Daily activities for infants and toddlers.

(1) Infants and toddlers shall be provided with opportunities to:

(i) Interact with caregivers and other children in the home in order to stimulate language development;

(ii) Play with a wide variety of safe, age-appropriate toys;

(iii) Receive individual attention from caregivers including, but not limited to, holding, cuddling, talking, and reading; and

(iv) Reach, grasp, pull up, creep, crawl, and walk to develop motor skills.

(2) Infants and toddlers shall spend no more than thirty (30) minutes of consecutive time during waking hours, with the exception of mealtimes, confined in a crib, play pen, high chair or other confining piece of equipment. The intervening time period between confinements shall be at least one hour.

(e) Television, computers, videos, and video games.

(1) Use of media such as, but not limited to, television, videos, video games, and computers shall be:

(i) Limited to not more than a total of two (2) hours per day; and

(ii) Limited to programs, tapes, websites, and software that are age appropriate and educational.

(2) Other activities shall be available to children during television or video viewing.

(f) Care of a child with special needs.

(1) Caregivers shall provide a child with special needs with the care and activities recommended in writing by a physician, psychologist, or other professional who has evaluated or treated the child.

(2) The written recommendation shall:

(i) Include instructions for any special treatment, diet, or restrictions in activities that are necessary for the health of the child; and

(ii) Be maintained in the child's record.

(3) The provider shall ensure the environment is appropriate for the child based on the plan of care and shall instruct other caregivers in the proper techniques of care.

(4) A caregiver shall perform only those procedures and treatments for which the caregiver has the necessary training, experience, credentials, or license to perform.

(5) Staffing shall be appropriate and adequate to meet the specific physical and developmental needs of a child with special needs in care.

(6) The provider and the parent of the child with special needs shall mutually determine a recommendation for the level of staffing necessary to care for and supervise the child based on the child's chronological and functional age and degree of disability.

(7) Within thirty (30) days of the child's enrollment, the provider shall provide the department's representative a written recommendation for the level of staffing necessary to care for and supervise the child.

(8) The department shall make the final decision regarding the level of staffing or any capacity limitations necessary to care for, supervise, and protect all children in care when a child with special needs is receiving care.

(9) The parent, provider, and department's representative shall review the staffing requirements annually.

(10) A separate area shall be provided for the purpose of privacy for diapering, dressing, and other personal care procedures for a child above age three (3) with special needs who requires assistance in these activities.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-40. Parental notification.

(a) The provider shall provide written notification to the parent within ten (10) business days after the effective date of the change where there is less liability insurance or no longer liability insurance in force on the family day home operation.

(1) The provider shall obtain the parent's written acknowledgement of the receipt of this notification; and

(2) A copy of the parent's written acknowledgement of the receipt of this notification shall be maintained in the child's record.

(b) Caregivers shall provide written or oral information daily to parents about the child's health, development, behavior, adjustment, or needs.

(c) The provider shall give parents prior notice when a substitute provider will be caring for the children.

(d) Caregivers shall notify parents when persistent behavioral problems are identified and such notification shall include any disciplinary steps taken in response.

(e) The provider shall notify the parent immediately when the child:

(1) Has a head injury or any serious injury that requires emergency medical or dental treatment;

(2) Has an adverse reaction to medication administered;

(3) Has been administered medication incorrectly;

(4) Is lost or missing; or

(5) Has died.

(f) The provider shall notify a parent the same day whenever first aid is administered to the child.

(g) When a child has been exposed to a communicable disease listed in the Virginia Department of Health's current communicable disease chart, the provider shall notify the parent within twenty-four (24) hours or the next business day of the family day home's having been informed, unless forbidden by law, except for life-threatening diseases, which must be reported to parents immediately. The provider shall consult the local health department if there is a question about the communicability of a disease.

(h) A parent shall be notified immediately of any confirmed or suspected allergic reaction and the ingestion of prohibited food even if a reaction did not occur.

(i) Parents shall be informed of any changes in the family day home's emergency preparedness and response plan.

(j) Except in emergency evacuation or relocation situations, the provider shall inform the parent and have written permission as required by section 15.1-53(a) whenever the child will be taken off the premises of the family day home, before such occasion.

(k) If an emergency evacuation or relocation is necessary, the parent shall be informed of the child's whereabouts as soon as possible.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-41. Behavioral guidance.

(a) Caregivers shall use positive methods of discipline. Discipline shall be constructive in nature and include techniques such as:

(1) Using limits that are fair, consistently applied, appropriate, and understandable for the child's level of development;

(2) Providing children with reasons for limits;

(3) Giving positively worded direction;

(4) Modeling and redirecting children to acceptable behavior;

(5) Helping children to constructively express their feelings and frustration to resolve conflict; and

(6) Arranging equipment, materials, activities, and schedules in a way that promotes desirable behavior.

(b) Caregivers shall promote the child's physical, intellectual, emotional, and social well-being and growth, and caregivers shall respect differences in cultural, ethnic and family backgrounds.

(c) When a child's behavior harms or is likely to result in harm to the child, others or property, or seriously disrupts the environment, the child may be separated briefly in order for the child to regain self-control. If a child is separated, the child must be placed in an area where he or she is in direct supervision of the provider or other caregivers.

(d) When time out is used as a discipline technique:

(1) It shall be used sparingly and shall not exceed one minute for each year of the child's age;

(2) It shall be appropriate to the child's developmental level and circumstances;

(3) It shall not be used with infants and toddlers;

(4) The child shall be in a safe, lighted, well-ventilated place, and within sight and sound of a caregiver; and

(5) The child shall not be left alone inside or outside of the home while separated from the group.

(e) Any abuse and maltreatment of a child is prohibited. The provider must prohibit any act of abuse or maltreatment by any caregiver.

(f) The following actions or threats to children are forbidden:

(1) Physical punishment, including but not limited to striking a child, roughly handling or shaking a child, biting, pinching, restricting movement through binding or tying, forcing a child to assume an uncomfortable position, or exercise as punishment;

(2) Enclosure in a small, confined space or any space in which the child cannot freely exit himself, however, this does not

apply to the use of equipment such as cribs, play yards, high chairs, and safety gates when used for their intended purpose with children preschool age or younger;

(3) Punishment by another child;

(4) Separating a child from the group in which the child is not in direct supervision of staff;

(5) Withholding or forcing of food, water, or rest;

(6) Verbal remarks that are demeaning to the child;

(7) Methods of discipline or interaction which frighten, humiliate or are demeaning to the child;

(8) Punishment for toileting accidents; and

(9) Punishment by applying unpleasant or harmful substances.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-42. Nutrition and food services.

(a) *General requirements for meals and snacks.*

(1) Meals and snacks shall be served in accordance with the times children are in care, which include:

(i) For family day homes operating less than four (4) consecutive hours at least one snack shall be served.

(ii) For family day homes operating four (4) to seven (7) consecutive hours at least one meal and one snack shall be served.

(iii) For family day homes operating seven (7) to twelve (12) consecutive hours at least one meal and two (2) snacks or two (2) meals and one snack shall be served.

(iv) For family day homes operating twelve (12) to sixteen (16) consecutive hours at least two (2) meals and two (2) snacks or three (3) meals and one snack shall be served.

(2) A family day home shall ensure that children arriving from a half-day, morning program who have not yet eaten lunch receive a lunch.

(3) Children shall be served small-sized portions.

(4) Food shall be prepared, stored, served, and transported in a clean and sanitary manner.

(5) Tables and highchair trays shall be cleaned after each use, but at least daily.

(6) Food shall be prepared, stored, served, and transported in a clean and sanitary manner.

(7) When food is prepared that a child in care is allergic to, the caregiver shall take steps to avoid cross-contamination in order to prevent an allergic reaction.

(8) Caregivers who prepare and serve food to children, or supervise meals, shall be aware of the food allergies, sensitivities, and dietary restrictions for each child.

(9) Caregivers shall not serve prohibited food to a child.

(b) *Meals and snacks provided by the family day home.* When family day homes provide meals or snacks, the following shall apply:

(1) The provider shall follow the most recent, age-appropriate nutritional requirements of a recognized authority such as the Child and Adult Care Food Program of the United States Department of Agriculture (USDA).

(2) Children shall be allowed second helpings of food listed in the child-care food program meal patterns.

(c) *Meals and snacks brought from child's home.* When food is brought from home, the following shall apply:

(1) The food container shall be clearly labeled in a way that identifies the owner;

(2) The provider shall have extra food or shall have provisions to obtain food to serve to a child so the child can have an

appropriate snack or meal if the child forgets to bring food from home or brings an inadequate meal or snack; and

(3) Unused portions of food shall be discarded by the end of the day or returned to the parent.

(d) *Prevention of choking.*

(1) To assist in preventing choking, food that is hard, round, small, thick and sticky, or smooth and slippery such as whole hot dogs sliced into rounds, nuts, seeds, raisins, uncut grapes, uncut raw carrots, peanuts, chunks of peanut butter, hard candy, and popcorn shall not be served to children under four (4) years of age, unless the food is prepared before being served in a manner that will reduce the risk of choking, i.e., hot dogs cut lengthwise, grapes cut into small pieces, and carrots cooked or cut lengthwise.

(2) Children shall be served small-sized portions to prevent choking.

(e) *Drinking water and fluids.*

(1) Water shall be available for drinking and shall be offered on a regular basis to all children in care.

(2) In environments of eighty (80) degrees Fahrenheit or above, attention shall be given to the fluid needs of children at regular intervals. Children in such environments shall be encouraged to drink fluids.

(3) Clean individual drinking cups shall be provided daily. Children shall not be allowed to share common drinking cups.

(f) *Menus.* When meals or snacks are provided by the family day home, the menu for the current one-week period shall:

(1) Be dated;

(2) Be given to parents or posted or placed in an area accessible to parents;

(3) List any substituted food; and

(4) Be kept on file one week at the family day home.

(g) *Eating utensils and dishes.*

(1) Eating utensils shall be appropriate in size for children to handle.

(2) Chipped or cracked dishes shall not be used.

(3) Eating utensils and dishes shall be properly cleaned by prerinsing, washing, and air drying, or using a dishwasher.

(4) If disposable eating utensils and dishes are used, they shall be sturdy enough to prevent spillage or other health and safety hazards.

(5) Disposable utensils and dishes shall be used once and discarded.

(h) *Food storage.*

(1) Temperatures shall be maintained at or below forty (40) degrees Fahrenheit in refrigerator compartments and at or below zero (0) degrees Fahrenheit in the freezer compartments.

(2) The provider shall have an operable thermometer available to monitor refrigerator and freezer compartment temperatures.

(3) All perishable foods and drinks used for children in care, except when being prepared and served, shall be kept in the refrigerator.

(i) *Milk.*

(1) All milk and milk products shall be pasteurized.

(2) Powdered milk shall be used only for cooking.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-43. Infant feeding.

(a) Infants shall be fed on demand unless the parent provides other written instructions.

(b) Infants who cannot hold their own bottles shall be picked up and held for bottle feeding. Bottles shall not be propped.

(c) Highchairs, infant carrier seats, or feeding tables with safety waist and crotch straps fastened according to the manufacturer's instructions shall be used for children under twelve (12) months of age who are not held while being fed.

(d) Infant formula shall be prepared according to the manufacturer's or physician's instructions.

(e) Bottles shall be refrigerated and labeled with the child's full name and the date, if more than one infant is in care.

(f) Refrigerated bottles of prepared formula and breast milk shall be discarded after forty-eight (48) hours if not used.

(g) Bottles shall not be heated in a microwave oven.

(h) To avoid burns, heated formula and baby food shall be stirred or shaken and tested for temperature before being served to children.

(i) Solid foods shall:

(1) Not be fed to infants less than four (4) months of age without parental consent, and

(2) Be fed with a spoon, with the exception of finger foods.

(j) Opened containers stored in the refrigerator shall be discarded if not consumed within twenty-four (24) hours of storage.

(k) The consistency of food provided for a child with special needs shall be appropriate to any special feeding needs of the child.

(l) Necessary and adaptive feeding equipment and feeding techniques shall be used for a child with special feeding needs.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-44. Infant and toddler equipment.

(a) Infant carrier seats, swings, strollers, feeding or activity tables, and highchairs shall be used according to the manufacturer's instructions and when occupied by a child, a safety strap shall be used and securely fastened.

(b) Infant walkers shall not be used.

(c) Play pens.

(1) A play pen, where used, shall:

(i) Have either mesh netting with mesh holes smaller than one-quarter (¼) inch or slats no more than two and three-eighths (2⅜) inches apart;

(ii) Have a firm floor with a secured, waterproof pad that is not more than one-inch thick;

(iii) Have the sides up and the fastenings secured when a child is in the play pen, except when the caregiver is giving the child immediate attention;

(iv) Be cleaned and sanitized each day of use or more often as needed;

(v) Not be occupied by more than one child;

(vi) Not be used for the designated sleeping area;

(vii) Not have torn mesh sides or vinyl-covered or fabric-covered rails, protruding rivets on the rails, or broken hinges;

(viii) Not contain any pillows or filled comforters;

(ix) Not contain large toys and other objects that can serve as a steeping stool for climbing out when a child can pull to a standing position;

(x) Not be used by children who weigh thirty (30) pounds or more; and

(xi) Not be used by children who are thirty-five (35) inches tall or taller.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-45. Cribs, cots, rest mats, and beds.

(a) A child shall be provided with an individual crib, cot, rest mat, or bed for resting or napping.

(b) Upper levels of double-deck beds shall not be used.

(c) Rest mats that are used must have at least one inch of cushioning.

(d) Rest mats shall be cleaned and sanitized on all sides at least weekly and as needed.

(e) Cribs shall be provided for children from birth through twelve (12) months of age and for children over twelve (12) months of age who are not developmentally ready to sleep on a cot, rest mat, or bed.

(f) Cribs shall not be used as a play space for infants.

(g) Occupied cribs, cots, rest mats, and beds shall be:

(1) At least three (3) feet from any heat-producing appliance; and

(2) At least twelve (12) inches from each other.

(h) Cribs shall:

(1) Meet the U.S. Consumer Product Safety Commission standards at the time they were manufactured;

(2) Not have been recalled;

(3) Have no more than six (6) centimeters or two and three-eighths (2⅜) inches of space between slats;

(4) Have mattresses that fit snugly next to the crib so that no more than two (2) fingers can be inserted between the mattress and the crib;

(5) Not have end panel cutouts of a size to cause head entrapment; and

(6) Not have mesh sides.

(i) Double-deck cribs shall not be used.

(j) Crib bumper pads shall not be used.

(k) Crib sides shall always be up and the fastenings secured when a child is in the crib, except when the caregiver is giving the child immediate attention.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-46. Linens.

(a) Cribs, cots, rest mats, and beds when being used for sleeping or napping by children other than infants shall have linens consisting of a top cover and a bottom cover or a one-piece covering that is open on three (3) edges.

(b) Cribs when being used by infants shall have a tight-fitting bottom cover.

(c) Linens shall be assigned for individual use.

(d) Linens shall be clean and washed at least weekly or when soiled.

(e) Clean linens shall be used each time a child rests on the bed of a family member.

(f) No soft bedding of any kind shall be used under or around infants including, but not limited to, pillows, quilts, comforters, sheepskins, or stuffed toys.

(g) Children under two (2) years of age shall not use pillows or filled comforters.

(h) Pillows, when used for children over two (2) years of age, shall be assigned for individual use and covered with pillowcases.

(i) Mattresses, when used, shall be covered with a waterproof material that can be cleaned and sanitized.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-47. Sleeping and resting requirements.

(a) Infants shall be placed on their backs when sleeping or napping unless otherwise ordered by a written statement signed by the child's physician.

(b) An infant, toddler, or preschool child who falls asleep in a play space other than the child's own crib, cot, mat, or bed shall be moved promptly to the child's designated sleeping space if the safety or comfort of the infant, toddler, or preschool child is in question.

(c) School age children shall be allowed to nap if needed, but not forced to do so.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-48. Medication.

(a) *Administration of medication.*

(1) Prescription and nonprescription medication shall be administered by a trained staff only in accordance with the following:

(i) The provider's written medication policies; and

(ii) Written authorization from the parent(s).

(2) The parent's written authorization for medication shall expire or be renewed after 10 working days. Exception is that long-term prescription or nonprescription drug use may be allowed with written authorization from the child's physician and parent.

(3) When an authorization for medication expires, the parent shall be notified that the medication needs to be picked up within fourteen (14) days or the parent must renew the authorization. Medications that are not picked up by the parent within fourteen (14) days shall be taken to a pharmacy for proper disposal.

(4) The family day home may administer prescription medication that would normally be administered by a parent or guardian to a child provided:

(i) The medication is administered by a caregiver who meets the requirements in section 15.1-27(d);

(ii) The caregiver administers only those drugs that were dispensed from a pharmacy and maintained in the original, labeled container; and

(iii) The caregiver administers drugs only to the child identified on the prescription label in accordance with the prescriber's instructions pertaining to dosage, frequency, and manner of administration.

(5) The family day home may administer nonprescription medication provided the medication is:

(i) Administered by a caregiver eighteen (18) years of age or older who meets the requirements in section 15.1-27(d);

(ii) Labeled with the child's name;

(iii) In the original container with the manufacturer's direction label attached; and

(iv) Given only at the dose, duration, and method of administration specified on the manufacturer's label for the age or weight of the child needing the medication; and

(v) The medication is not beyond the expiration date of the product.

(b) *Receipt of medication.*

(1) All providers that choose to administer medication shall meet the following upon receipt of medication:

(i) Medication shall be labeled with the child's first and last name, the name of the medication, the dosage amount and the time(s) to be given.

(ii) Nonprescription medication shall be in the original container with the direction label attached, and be consistent with the manufacturer's instructions.

(iii) All medications that are provided to the family day home must match the medication listed on the written authorization from the child's physician and parent.

(c) *Storage of medication.*

(1) Medications for children in care shall be stored separately from medications for household members and caregivers.

(2) Medication shall be refrigerated when needed.

(3) When medication is stored in a refrigerator used for food, the medications shall be stored together in a container or in a clearly defined area away from food.

(4) Medication, except for those prescriptions designated otherwise by written physician's order, including refrigerated medication and medication for caregivers and household members, shall be kept in a locked place using a safe locking method that prevents access by children.

(5) If a key is used for medication that is stored in a locked place, the key shall not be accessible to children.

(d) *Medication records.*

(1) The provider or caregiver shall keep a record of prescription and nonprescription medication given to children, which shall include the following:

(i) First and last name of the child to whom medication was administered;

(ii) Amount and type of medication administered to the child;

(iii) The day and time the medication was administered to the child;

(iv) First and last name of the staff member administering the medication;

(v) Any adverse reaction(s) to the medication; and

(vi) Any medication administration error(s).

(2) Parent notification of medication administration.

(i) The provider or caregiver shall inform parents in writing daily at pick-up of all medications administered that day.

(ii) The provider or caregiver shall inform parents immediately of any adverse reactions to medication administered and any medication error.

(e) The medication authorization shall be available to trained caregivers during the entire time it is effective.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-49. Topical skin products.

(a) When topical skin products such as sunscreen, diaper ointment and lotion, oral teething medicine, and insect repellant are used, the following requirements shall be met:

(1) Written parent authorization noting any known adverse reactions shall be obtained at least annually;

(2) The product shall be in the original container and, if provided by the parent, labeled with the child's name;

(3) Manufacturer's instructions for application shall be followed; and

(4) Parents shall be informed immediately of any adverse reaction.

(b) The product does not need to be kept locked, but shall be inaccessible to children.

(c) Caregivers without medication administration training may apply the product unless it is a prescription medication, in which case the storing and administration must meet prescription medication requirements of this chapter.

(d) The product shall not be used beyond the expiration date of the product.

(e) Sunscreen shall have a minimum sunburn protection factor (SPF) of 15.
(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-50. Smoking and prohibited substances.

The provider shall ensure that:

(a) No person smokes:

(1) Indoors while children are in care,

(2) In a vehicle when children are transported, or

(3) Outdoors in an area occupied by children.

(b) No caregiver is under the effects of medication that impairs functioning, alcohol, or illegal drugs.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-51. Swimming and wading activities.

(a) The level of supervision by caregivers required in section 15.1-37 and the point system as outlined in section 15.1-38 shall be maintained while the children are participating in swimming or wading activities.

(b) The provider shall annually obtain:

(1) Written permission from the parent of each child who participates in swimming or wading activities, and

(2) A written statement from the parent advising of a child's swimming skills before the child is allowed in water above the child's shoulder height.

(c) Caregivers shall have a system for accounting for all children in the water.

(d) Outdoor swimming activities shall occur only during daylight hours.

(e) When one or more children are in water that is more than two (2) feet deep in a pool, lake, or other swimming area on or off the premises of the family day home:

(1) A minimum of at least two (2) caregivers shall be present and able to supervise the children; and

(2) An individual currently certified in basic water rescue, community water safety, water safety instruction, or lifeguarding shall be on duty supervising the children participating in swimming or wading activities at all times. The certification shall be obtained from an organization such as, but not limited to, the American Red Cross, the YMCA, or the Boy Scouts.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-52. Drowning hazards.

(a) Access to the water in aboveground swimming pools shall be prevented by locking and securing the ladder in place or storing the ladder in a place inaccessible to children.

(b) A non-climbable barrier at least four (4) feet high such as, but not limited to, a fence or impenetrable hedge shall surround outdoor play areas located within thirty (30) feet of drowning hazards such as, but not limited to, inground swimming or wading pools, ponds, or fountains not enclosed by safety fences.

(c) Portable wading pools without integral filter systems shall:

(1) Be emptied after use by each group of children, rinsed, and filled with clean water, or more frequently as necessary; and

(2) When not in use during the family day home's hours of operation, be emptied, sanitized, and stored in a position to keep them clean and dry.

(d) Portable wading pools shall not be used by children who are not potty trained.

(e) Bathtubs, buckets, and other containers of liquid accessible to children shall be emptied immediately after use.

(f) Hot tubs, spas, and whirlpools shall:

(1) Not be used by children in care, and

(2) Be covered with safety covers while children are in care.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-53. Transportation and field trips.

(a) *Written permission for transportation and field trips.*

(1) General written permission shall be obtained from the parent of each child for the provider to take the child off the premises of the family day home. The general written permission shall be on a

form that lists regularly scheduled trips (e.g., library, store, playground) and the driver, if the child is to be transported.

(2) Special written permission shall be obtained from the parent of each child for the provider to take the child on special field trips (those not regularly scheduled). The special written permission shall specify destination, duration of trip, and driver, if the child is to be transported.

(3) Notwithstanding subsections (b) and (c) below, providers may use public vehicles as defined and regulated in Chapter 34.1 of the Norfolk City Code or Motor Carriers of Passengers such as Taxicabs and Transportation Network Companies as defined and regulated in Chapter 20 of the Virginia Code to transport a child if the provider:

(i) Obtains written permission from each parent to use such transportation; and

(ii) The provider ensures a caretaker travels with the child in the same vehicle.

(b) *Requirements for drivers.*

(1) Drivers must:

(i) Be eighteen (18) years of age or older;

(ii) Have a valid driver's license;

(iii) Keep on file a current driving record that discloses any moving traffic violation that occurred five (5) years prior to or during employment or assignment as a driver; and

(iv) Report any moving traffic violation within five (5) business days of the violation.

(2) The department shall inspect annually the driving record of the driver and document the date of review and any moving traffic violation.

(c) *Requirements for vehicles.* The provider shall ensure that the vehicle used for transportation:

(1) Meets the safety standards set by the Virginia Department of Motor Vehicles;

(2) Is kept in satisfactory condition to assure the safety of children;

(3) Is registered and insured according to state law;

(4) Was manufactured for the purpose of transporting people seated in an enclosed area; and

(5) Has seats that are attached to the floor.

(d) *Requirements for transportation.* The caretaker shall ensure that during transportation of children:

(1) Each child is in an individual car seat or individual and appropriate restraint in accordance with Virginia law;

(2) Each child's arms, legs, and head remain inside the vehicle;

(3) Doors are closed properly and locked unless locks were not installed by the manufacturer of the vehicle;

(4) No child is left unattended inside or outside a vehicle;

(5) Each child boards and leaves the vehicle from the curbside of the street; and

(6) The caretaker brings:

(i) The name, address, and telephone number of the family day home;

(ii) A copy of the parent's written permission to transport the child;

(iii) A copy of each child's emergency care information as required in section 15.1-24(e)(2)(ii), including the allergy care plan as required in section 15.1-24(e)(2)(ii)6.;

(iv) Emergency supplies as required in section 15.1-32(a); and

(v) A mechanism for making telephone calls to emergency responders and parents such as a cellular phone.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-54. Animals and pets.

(a) A pet or animal present at the home, indoors or outdoors, shall be in good health and show no evidence of carrying any disease.

(b) A maximum of three (3) adult dogs and three (3) adult cats shall be permitted. An adult dog or cat means any dog or cat over the age of four (4) months.

(c) Dogs or cats, where allowed, shall be vaccinated for rabies and shall be treated for fleas, ticks, or worms as needed. Dogs and cats aged four (4) months or older must be licensed.

(d) The provider shall maintain documentation of the current rabies vaccination.

(e) Caregivers shall closely supervise children when children are exposed to animals.

(f) Children shall be instructed on safe procedures to follow when in close proximity to animals, e.g., not to provoke or startle them or remove their food.

(g) Animal litter boxes, toys, food dishes, and water dishes shall be inaccessible to children.

(h) All animal excrement shall be removed promptly, disposed of properly, and, if indoors, the soiled area cleaned.

(i) Family pets shall not be allowed on any surfaces where food is prepared or served.

(j) Animals that have shown aggressive behavior shall not be kept in the home or on the grounds.

(k) Monkeys, ferrets, reptiles, psittacine birds (birds of the parrot family), or wild or dangerous animals shall not be in areas accessible to children during the hours children are in care.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-55. Nighttime care.

(a) For nighttime care during which a child sleeps more than two (2) hours, the following is required:

(1) A child shall have a rest area that meets the requirements of section 15.1-45;

(2) An infant shall have an individual crib that meets the requirements of section 15.1-45; and

(3) Linens shall be provided that meet the requirements in section 15.1-46.

(b) For children in nighttime care, quiet activities and experiences shall be available immediately before bedtime.

(c) Providers shall establish a bedtime schedule for a child in consultation with the child's parent.

(d) Separate sleeping and dressing areas shall be provided for children of the opposite sex over six (6) years of age.

(e) Each child shall have a toothbrush, and a comb or hairbrush assigned for individual use.

(f) Bath towels and washcloths, when used, shall be assigned for individual use and laundered as needed, but at least weekly.

(g) A child shall have a routine that encourages good personal hygiene practices including bathing (if needed) and teeth brushing.

(h) Caregivers shall remain awake until all children are asleep and shall sleep on the same floor level as the children in care.

(i) A baby monitor shall be used to monitor the safety of the sleeping child if the caregiver is not sleeping in the room with the child or in a room adjacent to the room where the child is sleeping.

(Ord. No. 49,907, § 1, 3-25-25)

Sec. 15.1-56. Misleading advertising.

(a) No family day home shall make, publish, disseminate, circulate, or place before the public or cause, directly or indirectly, to be made, published, disseminated, circulated or placed before the public in this Commonwealth, in a newspaper or other publication; in the form of a

book, notice, handbill, poster, blueprint, map, bill, tag, label, circular, pamphlet, or letter; or via electronic mail, website, automatic mailing list services (listservs), newsgroups, facsimile, chat rooms; or in any other way an advertisement of any sort regarding services or anything so offered to the public, which advertisement contains any promise, assertion, representation or statement of fact that is untrue, deceptive, or misleading.

(b) If the department finds a violation of this provision, the department may:

(1) Require a meeting or telephone conference between with the department and the family day home provider to discuss a corrective action plan of the misleading advertising;

(2) Suspend the license;

(3) Prohibit the issuance of a license for a period not to exceed one year;

(4) Assess a fine of fifty dollars ($50.00) for initial violation; if not corrected within fourteen (14) calendar days after receiving notice from the department of the violation, assess an additional ten dollars ($10.00) for each day the violation continues; or

(5) Pursue criminal prosecution and upon conviction, request punishment by imprisonment in jail, for a period not to exceed thirty (30) days, if (a) the failure to correct the violation does not occur within ninety (90) days of receiving notice from the department of the violation, or (b) the violation is the third or more violation of this section within a calendar year.

(Ord. No. 49,907, § 1, 3-25-25)

Chapter 15.2

RESERVED*

*__Editor's note__—Ord. No. 48,503, § 1, adopted Sept. 14, 2021, repealed Ch. 15.2, §§ 15.2-9—15.2-17, which pertained to facility and enterprise management and derived from Ord. No. 39,590, § 3, adopted May 18, 1999; Ord. No. 39,958, § 2, adopted May 16, 2000; Ord. No. 41,114, § 1, adopted July 22, 2003; Ord. No. 42,760, § 1, adopted July 24, 2007; Ord. No. 44,297, § 20(B), adopted June 28, 2011.

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Chapter 16

FINANCE GENERALLY*

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***Editor's note—**Ord. No. 48,607, § 1, adopted Dec. 14, 2021, amended Ch. 16 in its entirety to read as herein set out. Former Ch. 16, §§ 16-1—16-9.1, 16-25—16-41, 16-58—16-63, 16-82—16-100, 16-115, 16-116, 16-155—16-164, pertained to similar subject matter, and derived from Code 1958, §§ 2-7.2, 16-3, 19-1—19-4, 19-6.1—19-6.4, 19-6.6, 19-6.8—19-6.11, 19-6.13—19-6.17, 19-10—19-12, 19-14—19-16, 19-21, 19-22, 19-35—19-49, 19-51—19-53, 19-67, 19-73—19-99; Ord. No. 29,747, § 1, 11-28-78; Ord. No. 29,914, § 1, 5-8-79; Ord. No. 29,946, § 1, 5-22-79; Ord. No. 29,965, § 1, 6-12-79; Ord. No. 30,065, §§ 1, 2, 7-31-79; Ord. No. 30,769, § 1, 9-9-80; Ord. No. 31,110, § 1, 4-28-81; Ord. No. 31,113, § 1, 4-28-81; Ord. No. 31,775, § 1, 6-15-82; Ord. No. 31,841, § 1, 7-20-82; Ord. No. 31,873, § 1, 8-17-82; Ord. No. 32,298, § 2, 5-10-83; Ord. No. 32,407, § 1, 6-28-83; Ord. No. 32,726, § 1, 1-17-84; Ord. No. 32,915, § 1, 5-29-84; Ord. No. 33,095, § 2, 9-11-84; Ord. No. 33,520, § 1, 6-25-85; Ord. No. 34,782, § 1, 11-10-87; Ord. No. 35,022, § 1, 5-10-88; Ord. No. 35,023, § 1, 5-10-88; Ord. No. 35,023, § 1, 5-10-88; Ord. No. 35,904, § 1, 2-27-90; Ord. No. 36,085, § 1, 6-26-90; Ord. No. 36,459, § 1, 5-28-91; Ord. No. 36,921, §§ 1, 2, 7-14-92; Ord. No. 36,950, § 1, 7-28-92; Ord. No. 37,254, §§ 1, 2, 5-18-93; Ord. No. 39,174, § 1, 5-26-98; Ord. No. 39,181, § 1, 5-26-98; Ord. No. 39,590, § 1, 5-18-99; Ord. No. 39,656, § 1, 6-22-99; Ord. No. 39,914, § 1, 4-11-00; Ord. No. 39,956, § 1, 5-16-00; Ord. No. 40,252, § 1, 3-27-01; Ord. No. 40,253, § 1, 3-27-01; Ord. No. 40,538, § 1, 11-27-01; Ord. No. 40,539, §§ 1, 2, 11-27-01; Ord. No. 40,623, § 1, 2-26-02; Ord. No. 41,045, § 1, 5-20-03; Ord. No. 41,047, § 12, 5-20-03; Ord. No. 44,000, § 1, 10-5-10; Ord. No. 44,297, § 20(C), 6-28-11; Ord. No. 44,510, § 1, 1-10-12; Ord. No. 45,488, § 1, 3-18-14; Ord. No. 46,441, § 1, 6-14-16; Ord. No. 47,156, § 1, 2-27-18; Ord. No. 47,533, § 1, 2-26-19.

Charter reference—Finance, § 65 et seq.

Cross references—Form, signing and sealing of bonds, notes and other obligations, § 2-9; records management program established, § 2-22 et seq.; disposition of city money received by city attorney, § 2-123; cemetery service charges and prices for cemetery lots and graves, § 12-266 et seq.; fire false alarms prohibited; service fee, § 17.1-70; licenses and taxation, Ch. 24; expenditures by the planning commission, § 32-32; fees for police reports, photos, etc., § 33-43; disposition of unclaimed money in custody of department of police, § 33-71; procurement, Ch. 33.1; purchasing agent, § 33.1-21 et seq.; retirement system, Ch. 37; water service charges and rates, § 46.1-29 et seq.

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ARTICLE I. IN GENERAL

Sec. 16-1. Annual appropriation ordinance.

At least thirty (30) days before the end of the fiscal year, the council shall pass an annual appropriation ordinance, based on the budget submitted by the city manager, appropriating the funds and resources of the city, not already by law especially appropriated, to the expenses of the several departments, or to the purposes to which such revenue should be applied, first providing, invariably, for the payment of interest upon the city debt.
(Ord. No. 48,607, § 1, 12-14-21)

Charter reference—Annual appropriations, § 68.

Cross reference—Appropriation ordinances not affected by Code or ordinance adopting Code, § 1-5.

Sec. 16-2. Organizations and institutions to which city makes appropriations to furnish audit.

Before any organization or institution to which an appropriation is made by the city, by budget or otherwise, shall receive any amount appropriated thereunder, such organization or institution shall furnish to the city manager and, through the manager, to the council, a certified audit of its receipts and expenditures for the preceding year, in such detail as shall be required by the city manager.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-3. Bidding on real estate sold in suits to which city is party.

In all cases where real estate is sold by decree of court in chancery suits to which the city is a party, the city manager is hereby authorized to instruct the city real estate agent to attend such sale and bid on such real estate on behalf of the city up to such sum as the city manager may deem proper for the purpose of protecting the interest of the city in the matter.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-4. City authorized to sell U.S. savings bonds and notes.

The city manager is hereby authorized to execute, in the name of the city, the necessary application and agreement for the purpose of the city requalifying as issuing agent for the sale and issuance of United States defense savings bonds and qualifying as issuing agent for the sale and issuance of United States savings notes to its officers and employees, and the city clerk is directed to affix the city seal thereto and to attest the same.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-5. Acceptance of gifts and donations; appropriation of funds; acceptance of objects.

(a) *General authority.* The city manager is authorized to accept gifts of funds and objects on behalf of the city and any of its subdivisions. Gifts and donations of funds shall be appropriated and authorized for expenditure as required by Virginia law, including Article VII, Section 7 of the Constitution of Virginia, 1971, and §§ 15.2-2503 and 15.2-2504 of the Code of Virginia, 1950, as amended.

(b) *Gifts and donations of funds.*

(1) Gifts and donations exceeding the sum of five hundred dollars ($500.00) may be accepted by the city manager, but council must appropriate and authorize the funds for expenditure for the purpose given through the annual appropriations ordinance, either in its initial form or by amendment.

(2) Gifts and donations of five hundred dollars ($500.00) or less may be accepted by the city manager and expended for the purpose given without an ordinance.

(c) *Gifts and donations of objects.* Gifts and donations of objects may be accepted by the city manager and used for the purpose given without an ordinance, unless the object is a work of public art intended for outdoor display on city real estate or to be affixed to the exterior of a city building.
(Ord. No. 48,607, § 1, 12-14-21; Ord. No. 48,909, § 1, 9-13-22)

Sec. 16-6. Authority of city manager to settle and adjust claims for damage or loss covered by insurance.

The city manager is authorized to settle and adjust, in such manner deemed proper, any claims the city may have from time to time for property damage or loss covered by insurance in any case where such damage or loss does not exceed five hundred thousand dollars ($500,000.00) and to direct the director of finance to credit any sums so received by the city to such accounts as the city manager may deem proper.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-7. Refund of money erroneously paid to city.

The city manager is authorized to make refunds of money erroneously paid to and not due to the city. In the event the city manager makes such refunds of money paid, in whole or in part, he or she is authorized to refund such amount, or part thereof, from the fund to which such payment had been credited.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-8. Relief from erroneously docketed nuisance abatement liens.

The city manager is hereby authorized to relieve any erroneously docketed nuisance abatement lien, including liens for the demolition of unsafe structures. The granting of such relief shall be communicated forthwith to the city treasurer, who shall make an entry indicating the relief on the books of the city treasurer in accordance with the provisions of section 16-89.
(Ord. No. 48,607, § 1, 12-14-21)

Cross reference—Nuisances, Ch. 27.

Sec. 16-8.1. Waiver of nuisance abatement liens to facilitate sale of property.

The city manager is hereby authorized to waive and to remove any docketed nuisance abatement liens, including liens for the demolition of structures, in order to facilitate the sale of property. Such liens may be waived only as to a purchaser(s) who is unrelated by blood or marriage to the property owner(s) and who has no business association with the property owner(s). Such liens shall remain the personal obligation of the owner(s) of the property at the time the liens were imposed. The granting of such waiver by the city manager shall be subject to any requirements, limitations, or conditions decided by or promulgated by the city manager. The granting of such waiver shall be communicated forthwith to the city treasurer who shall make an entry indicating the waiver on the books of the city treasurer in accordance with section 16-89.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-8.2. Release of delinquent real estate tax liens to facilitate conveyance of property.

The city manager is hereby authorized to release any delinquent real estate tax liens, including penalty and interest, to facilitate conveyance of the subject property or any portion thereof. Such liens may be released only as to a purchaser(s) unrelated by blood or marriage to the property owner(s) and who has no business association with the property owner(s). Such liens may also only be released if the purchaser(s) owes no delinquent real estate taxes for any real property and where the property including land and improvements is valued at less than fifty thousand dollars ($50,000.00). Such liens shall remain the personal obligation of the owner(s) of property at the time the liens were imposed. The granting of such release by the city manager shall be subject to any additional requirements, limitations, or conditions decided by or promulgated by the city manager, not inconsistent with this section.

The granting of such release shall be communicated forthwith to the city treasurer who shall make an entry indicating the release on the books of the city treasurer.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-8.3. Authority to sell land for delinquent taxes.

In addition to the authority provided by Virginia Code § 58.1-3965(A), the city may institute proceedings to sell, in accordance with law, any real estate when any taxes on such real estate are delinquent on December 31 following the first anniversary of the date on which such taxes have become due provided proper notice is given in accordance with Virginia Code § 58.1-3965(A).
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-9. Fee for bad checks.

There is hereby imposed a fee of thirty-five dollars ($35.00) for uttering, publishing, or passing of any check or draft for payment of taxes or any other sum to the city which is subsequently returned by the drawee depository for insufficient funds or because there is no account or the account has been closed.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-9.1. Fees for payroll deductions and duplicate copies.

The city manager is authorized to charge reasonable fees, within the limits imposed by general law or special act, or regulations pursuant thereto, upon the following transactions:

(a) The processing of any payroll deduction imposed upon or agreed to by the city as employer pursuant to a court's or some other governmental entity's authority, including, but not limited to, fees for processing tax liens, Internal Revenue Service deductions by agreement, garnishments, and bankruptcies; provided, however, no fee shall be charged for processing or establishing a deduction for child support payments; and

(b) The provision by the city of second or subsequent copies of any documents previously issued by the city to an employee.

(Ord. No. 48,607, § 1, 12-14-21)

Secs. 16-10—16-24. Reserved.

ARTICLE II. DIRECTOR OF FINANCE*

Sec. 16-25. General powers and duties.

(a) The general accounts of the city shall be kept under the direct supervision of the director of finance. All accounting forms, books and blanks in use shall be approved by the director of finance and no department shall make any change in the forms, or introduce any new forms, without the approval of the director in writing.

(b) The director of finance shall be the custodian of all warrants, vouchers and other documents relating to the city's expenditures; shall keep a record or to cause another department of the city to keep a record of all franchise compensations, wharfing privileges, rents and special privileges, and to render bills therefor; and shall also keep a record or to cause another department of the city to keep a record of all contracts, leases, and agreements, copies of which shall be furnished or made available to the city clerk. The director of finance shall:

(1) Record on the general books of the city all revenues and expenses as they accrue.

(2) Keep a complete and detailed record of the city's debt.

(3) Supervise all finance activities and advise the city manager on fiscal policy.

(4) Handle debt administration and manage the investment of city funds, as provided by city code sections pertaining to investment committee.

(5) Execute such writings on behalf of the city as may be essential to the procurement and maintenance of necessary insurance and bonds for the city.

(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-25.1. Divisions and bureaus designated.

There shall be in the department of finance the following divisions and bureaus:

(a) *Reserved.*

(b) *City controller bureau.* The city controller bureau shall be charged with the recording of financial transactions on the general books of the city, the establishment and maintenance of centralized accounting records and systems, the preparation of required financial statements and reports, the payment of city obligations, and the investments of available cash balances. The city controller shall be the head of the city controller bureau, and the duties of the city controller shall be such as may be prescribed by ordinance or by the director of finance.

(c) *Reserved.*

(d) *Reserved.*

(e) *Reserved.*

(f) *Retirement bureau.* The retirement bureau shall be responsible for providing administrative and clerical services and support to the board of trustees of the

*__Charter reference—__Director of finance generally, § 65.

__Cross reference—__Bureau of license inspection under supervision and control of director of finance, § 24-1.

employees' retirement system of the city in the implementation of the city's retirement ordinance, Code section 37-1 et seq. The executive secretary of the employees' retirement system shall be the head of the retirement bureau, shall serve as secretary to the board of trustees of the employees' retirement system of the city, and shall perform such other duties as may be prescribed by the board of trustees, the director of finance, the city manager, or by ordinance.

(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-25.2. Assistant director's authority during director's absence or disability.

The assistant director of finance is hereby authorized to perform the duties of the director of finance during his or her absence or disability. The director of finance shall be responsible for the acts of the assistant director of finance while in the performance of such duties.

(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-26. Controller's authority during director's absence or disability.

The city controller is hereby authorized to perform the duties of the director of finance in the absence of both the director of finance and the assistant director of finance. The director of finance shall be responsible for the acts of the city controller while in the performance of such duties.

(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-26.1. Copies of contracts to be filed with director of finance; reservation of funds.

When a contract has been made for labor, material or supplies, one copy of such contract or of the contract notice, if no formal contract is made, shall be filed with the director of the department on account of which the same is made, and one copy with the director of finance, and the director of finance shall enter, on the books of the director of finance, a reservation of sufficient funds for the payment of the amount involved in such contract.

(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-27. Reserved.

Sec. 16-28. Vouchers for departmental expenses—Generally.

(a) It shall be the duty of the directors of the several departments of the city government to certify vouchers covering expenses incurred, and every such voucher shall be signed by the director of the department or office, to which the same is to be charged, and it shall be the duty of the director of each department or office certifying any such voucher be satisfied, before certifying and signing the same, that such voucher is made for an amount not in excess of the sum then available for the purpose named therein. In the absence or incapacity of the director of any department or office, such vouchers shall be certified by the assistant director or deputy. The director of finance shall be notified of any such approval

(b) All such vouchers shall, after being certified as aforesaid, be entered on the books of the office of the director of finance, and when the director shall be satisfied that any such voucher is made for an amount not in excess of the sum then available for the purposed named therein, the director shall approve the same.

(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-29. Same—Signature.

(a) The director of finance shall attach his or her signature to each voucher approved by him or her pursuant to section 16-28, and shall be deemed to certify thereby as follows:

(1) That the documents supporting such voucher are adequate and in due form.

(2) That all computations therein have been correctly made.

(3) That the expenditures previously charged and the amounts previously reserved against the account from which such voucher is payable, together with the

amount of the voucher so approved, do not exceed the funds available for the payment of such voucher.

(4) That the whole amount of the bill stated in such voucher is then due and payable.

(5) That such voucher is in proper form for the settlement of the bill therein referred to.

(b) In signing any voucher, the director of finance is hereby authorized to sign the same by facsimile signature in lieu of a manual signature.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-30. Warrants—Generally.

(a) Upon the receipt of any voucher certificate as required in section 16-28, the director of finance shall draw a warrant upon the city treasurer for the amount specified in such voucher, if there are funds available for its payment, and all such warrants shall be payable without reference to the council.

(b) Except in the case of warrants for payment of bonds and of interest on the funded debt of the city, no warrant shall be drawn or disbursement made, except upon a voucher certified as required in section 16-28 and approved and signed by the director of finance. Cancelled coupons for interest and the record of registered bonds kept by the director of finance shall be in lieu of vouchers for the payment of interest on the coupon bonds and registered bonds, respectively.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-31. Same—Issuance; contents; signing and countersigning; transfer.

(a) All warrants shall be issued by the director of finance and drawn on the city treasurer, and each warrant shall set forth on its face a number corresponding to the number of the voucher so paid, the date of issue, the name of the party to whom payable, the department or account to be charged therewith, and the amount thereof, and shall be signed by the director of finance and countersigned by the city treasurer. Warrants so issued shall be transferable by endorsement and shall be receivable for money due to the city.

(b) In issuing any warrant, the director of finance is hereby authorized to sign the same by facsimile signature, in lieu of a manual signature.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-32. Same—Lost warrants.

Whenever a warrant shall be lost, the party entitled thereto may apply to the director of finance for a duplicate. Stop payments shall be placed on the lost warrants and the duplicate warrants so issued shall be signed as all other city warrants for the payment of money are signed.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-33. Same—Charging off uncollectible warrants.

The city manager is hereby authorized to direct the director of finance to charge off the city's books of account, from time to time, such outstanding and delinquent warrants for collection as may be found to be uncollectible.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-34. Payrolls generally.

(a) The head of each bureau, division or office of the city government, or the authorized deputy of such bureau, division, or office, shall, at stated periods, certify and file with the director of finance payrolls showing the extent and nature of personal services rendered by the city employees named therein, the amount due to each, and the account to which the same is chargeable. The director of finance shall review such payrolls and, upon the approval of same, such payrolls shall become the basis for warrants for the aggregate of the several amounts therein designated, drawn to the director of finance for transfer and deposit to special payroll bank accounts. The amount shall be entered on the director's books and charged against the accounts indicated therein. The director of finance shall have authority to sign payroll checks and any other documentation necessary to distribute payroll to city employees.

(b) Upon certification and approval of the payrolls, the central payroll bureau is authorized to make direct deposits of payroll funds to which an individual employee is entitled to bank accounts, the director of finance, city treasurer, and other agencies designated by an individual employee, in such amounts, to such accounts, and for such purposes as are designated by an employee, subject to such reasonable limitations and regulations as may be imposed by the city manager.

(c) The director of finance is authorized to sign by facsimile signature, in lieu of a manual signature, all checks issued in disbursing city moneys authorized to be disbursed under this Code section.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-34.1. Direct deposit of wages and salaries.

(a) On and after July 1, 1990, each person hired by the city shall, as a condition of employment, designate a bank, credit union, or other institution with the capability of receiving direct deposits as the depository institution to receive such employee's pay.

(b) The city manager is authorized to establish rules and regulations governing the procedures required to participate in the direct deposit program. Any employee or officer of the city designated by the city manager to have wages or salaries directly deposited in an institution shall be bound by such rules and regulations.
(Ord. No. 48,607, § 1, 12-14-21)

Secs. 16-35, 16-36. Reserved.

Sec. 16-37. Daily report to director of revenue accruing.

Except in cases where otherwise specifically authorized by the director of finance, every person in charge of any revenue-producing department, bureau, or division of the city government shall make a daily report, to the director of finance through the city's financial system, of all revenues accruing to the city through the respective department, bureau, or division.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-38. Daily report to director of money collected.

Except in cases where otherwise specifically authorized by the director of finance, every person authorized to receive money for the city shall make a daily report to the director of finance of all money received or collected by such person.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-39. Reports in lieu of daily reports.

In cases where, in the opinion of the director of finance, it is inexpedient or impracticable to require any officer to make daily reports as provided in sections 16-37 and 16-38, the director of finance may authorize reports at such periods, not longer than one month, in lieu of daily reports, and it shall be the duty of any such officer to render regularly and promptly such reports as may be authorized.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-40. Examination of books of certain public service corporations.

It shall be the duty of the director of finance, annually, at the proper season, to examine and verify the books and accounts of any public service corporation paying licenses or taxes to the city, where such licenses or taxes are based upon the revenue or earnings of such corporation, and it shall be the duty of such corporation to furnish all proper facilities and access to such books and accounts at such time as the director of finance shall fix for such examination and verification.
(Ord. No. 48,607, § 1, 12-14-21)

Cross reference—Licenses and taxation, Ch. 24.

Sec. 16-41. Return of balance of specific appropriations for completed or abandoned projects.

Upon the completion or abandonment at any time within any fiscal year of any work, improvement, or other object for which a specific appropriation has been made from current revenue, the director of finance is hereby

authorized, upon being so directed by the city manager, to return the unencumbered balance of such appropriation to the current revenue for the current year or to the surplus account in cases where the appropriation is from current revenue for any year other than the current year.
(Ord. No. 48,607, § 1, 12-14-21)

Secs. 16-42—16-57. Reserved.

ARTICLE III. CITY AUDITOR*

Sec. 16-58. Election; term.

The city council shall appoint a city auditor, who shall be appointed for an indefinite period and serve at the will of the city council.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-59. Deputies.

There shall be one or more deputy city auditors, one of whom shall be designated by the auditor to act in the auditor's stead in the absence or disability of the auditor. The auditor shall be responsible for the acts of any deputy city auditors while in the performance of such duties.
(Ord. No. 48,607, § 1, 12-14-21; Ord. No. 48,747, § 1, 4-26-22)

Sec. 16-60. General duties of city auditor; fraud, waste, and abuse.

(a) *Generally.* The duties of the city auditor shall be such as are or shall be prescribed by the Charter or by the ordinances or resolutions of the city council. The city auditor shall perform such other duties not inconsistent with the ordinances or resolutions of the council or the Charter.

(b) *Fraud, waste, and abuse.*

(1) As used in this subsection, unless the context requires a different meaning:

Abuse. The excessive or improper use of something, or the employment of something in a manner contrary to the natural or legal rules for its use; the intentional destruction, diversion, manipulation, misapplication, maltreatment, or misuse of resources owned or operated by the city; or extravagant or excessive use so as to abuse one's position or authority.

Fraud. The intentional deception perpetrated by an individual or individuals, or an organization or organizations, either internal or external to the city, that could result in a tangible or intangible benefit to themselves, others, or the city or could cause detriment to others or the city. Fraud includes a false representation of a matter of fact, whether by words or by conduct, by false or misleading statements, or by concealment of that which should have been disclosed, which deceives and is intended to deceive.

Waste. The intentional or unintentional, thoughtless or careless expenditure, consumption, mismanagement, use, or squandering of resources owned or operated by the locality to the detriment or potential detriment of the locality. Waste also includes incurring unnecessary costs because of inefficient or ineffective practices, systems, or controls.

(2) The city auditor is hereby requested to dedicate a telephone line and a website, if cost-effective, through which employees and residents of the city may report anonymously any incidence of fraud, waste, or abuse committed by any city officer or employee, or within any city department or program. The city auditor should inform employees of the city of the hotline and website, if any, and the conditions of anonymity, through the conspicuous posting of announcements in the locality's personnel newsletters, articles in local newspapers issued daily or regularly at average intervals, hotline posters on local employee bulletin boards, periodic messages on employee payroll check stubs, or other reasonable efforts. This dedicated line shall be referred to as a "hotline".

*__Charter reference—__City auditor generally, § 66.

(3) The city auditor shall determine the authenticity of every allegation received on the hotline or website and ensure that investigation and resolution activities are undertaken in response to any such authentic allegation in the most cost-effective and confidential manner available. All investigations of such matters shall be under the control and at the direction of the city auditor; provided, however, that the city auditor shall relinquish responsibility for investigation and resolution to other investigative and law-enforcement personnel where such responsibility is prescribed by general law and where appropriate to avoid duplicating or replacing existing investigation and resolution functions.

(4) All officers and employees of the city having knowledge of, information, or reason to believe that there may be fraud, waste, and abuse to include missing money or property, misappropriation, or other similar irregularities in city affairs, shall inform the city auditor of such irregularity immediately.

(5) The city auditor shall notify the mayor, the council audit committee, and the city attorney at all times if, within his or her professional judgment, money or property is missing, or fraud or misappropriation or other similar irregularities have occurred, provided such notification will not impede or hinder any investigation then pending. Simultaneously therewith or prior thereto, the city auditor shall notify the city manager and the director of finance of the situation so steps may be taken to lessen continuing risk the city.

(6) The city auditor shall present to the council at its last meeting in July of each year, a schedule of all losses or misappropriation of money and property that have been brought to his or her attention during the past fiscal year.

(Ord. No. 48,607, § 1, 12-14-21; Ord. No. 48,747, § 1, 4-26-22)

Sec. 16-61. Duty to audit recipients of city funds.

(a) *Purpose.* The purpose of this section is to ensure that the city, through its city auditor, conducts periodic audits of non-city recipients of city funds.

(b) *Applicability.* This section applies to any person or other legal entity that is not the city of Norfolk or one of its boards, commissions, departments or other agencies subject to audit by the city auditor but that receives monies from the city pursuant to direct appropriations as part of the city's annual appropriation ordinances or amendments thereto.

(c) *Requirement.* Any person or other legal entity subject to this section shall, as a condition of receiving monies from the city, be subject to periodic audits of its finances and expenditures of such city monies by the city auditor on demand and without notice. This requirement shall apply regardless of whether identical or similar provisions appear in any appropriation ordinance or any agreement pursuant to which such monies are provided to such person or other legal entity.

(d) *Penalty.* Any person or other legal entity subject to this section that denies the city auditor the right to conduct periodic audits of its finances and expenditures of city-provided monies on demand and without notice, or causes or permits such denial, shall be guilty of a Class 3 misdemeanor and shall be deemed ineligible to receive grants or other direct appropriations of city monies for a period of five years.

(Ord. No. 48,607, § 1, 12-14-21; Ord. No. 48,747, § 1, 4-26-22)

Sec. 16-62. Reports.

The auditor shall make such reports as the council or city manager shall require and shall especially report to the council and the city manager any neglect, inefficiency or improper conduct of any officer that may be brought to his or her notice.

(Ord. No. 48,747, § 1, 4-26-22)

Secs. 16-63—16-81. Reserved.

ARTICLE IV. CITY TREASURER*

Sec. 16-82. General powers and duties.

The city treasurer shall receive, collect, and be the custodian for the city of all money due for taxes and levies, for assessments for paving and other purposes, and also for water rents, the rents on lands belonging to the city, for fees, and all other revenues or money accruing to the city; and, the treasurer may attach or distrain for the same, proceeding in the manner required by law. For the collection of assessments for paving streets, opening streets, and other purposes, the treasurer is hereby vested with all the powers which are now, or may hereafter be, vested in a sheriff or the treasurer of the state for the collection of state taxes.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-83. Deputies.

The city treasurer shall have one or more deputy city treasurers who in the absence or disability of the treasurer, shall act in his or her stead. The treasurer shall be responsible for the acts of such deputies while in the performance of such duties.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-84. Duty to keep school fund.

The city treasurer shall keep the school fund, both that apportioned by the state and that

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***Charter references—**City treasurer generally, § 74; election of treasurer, § 23.

Cross references—Bond of city treasurer, § 2-38; city treasurer and employees in treasurer's office included in retirement system, §§ 37-22, 37-23.

apportioned by the city, in separate accounts, and the money shall be disbursed only on orders from the school board of the city.
(Ord. No. 48,607, § 1, 12-14-21)
Charter reference—School board, § 109.

Sec. 16-85. Accounts; payments to be by proper warrant.

The city treasurer shall keep an accurate account of all cash receipts and disbursements, and shall not make payment of any sums, except on warrant of the director of finance or of the city auditor, when the city manager is acting as director of finance.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-86. Deduction of amounts due city before paying warrants.

Before paying any warrant, where the city treasurer shall within a reasonable time after notice, notify the central payroll bureau of any such amount due the city and it shall be the responsibility of the central payroll bureau, without further liability on the city treasurer, to see that this deduction is made.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-87. Use of facsimile signature for signing checks.

The city treasurer is hereby authorized to sign by facsimile signature, in lieu of a manual signature, all checks issued in disbursing city moneys authorized to be disbursed or paid by the council.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-88. Record of negotiable notes.

The city treasurer shall make and keep a record showing the name of the payee, the amount, and the date of execution and of maturity of all negotiable notes of the city made by authority of the council, and the treasurer shall furnish to the director of finance a copy of this record.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-89. Books for docketing certain expenses incurred by city.

The city treasurer shall keep on the books of the city treasurer the expenses incurred by the city in abating any nuisance, including the demolition of unsafe structures, removing any unwholesome or offensive matter, or cutting or removing weeds, grass or other vegetable matter from any land or premises as provided in ordinances relating thereto, and such expense shall be indexed in the name of the person owning such estate or land at the time the lien for such expense accrued.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-90. Report of default in payments due city.

The city treasurer shall report to the director of finance any default in the payment of any money due the city.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-91. Funds to be placed in city depositories.

(a) The city treasurer shall deposit all moneys received by the treasurer, belonging to the city, in such banks as the council may by ordinance designate as "city depositories."

(b) All officers and agents of the city having, in their hands, funds belonging to the city that are not required to be deposited daily with the city treasurer, shall keep the same on deposit in the banks designated by ordinance as city depositories, in the name of and to the credit of the office that such officer or agent holds, and in such manner as the director of finance may authorize.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-92. City designated depositories in banks and savings institutions.

Moneys to be paid into the city treasury shall be deposited in the banks and savings institutions designated as qualified public depositories by the state treasurer and that maintain at least one retail branch within the city. The city treasurer, in consultation with the director of

finance, may arrange for and make deposits in such amounts and for such time as in the city treasurer's judgment the condition of the city treasury permits and the Code of Virginia allows. The money deposited in a bank or savings institution in excess of the amount insured by the Federal Deposit Insurance Corporation or other federal insurance agency shall be fully collateralized by eligible collateral as defined in the Code of Virginia § 2.2-4401.

No city funds shall be deposited in any depository unless it is a "qualified public depository" as defined in the Code of Virginia section § 2.2-4401. For purposes of this article, "city funds" means public funds or moneys from any source, belonging to or for the use of the City of Norfolk, or for the use of any city department, division, officer, board, commission, institution, or other agency or authority owned or controlled by the City of Norfolk. All city funds shall be secured pursuant to the Virginia Security for Public Deposits Act (§ 2.2-4400 et seq.).
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-93. Daily deposit with and report to treasurer of money collected.

Except in cases where deposits at longer periods are specifically authorized by ordinance or the director of finance and/or the city treasurer, it shall be the duty of every person authorized to receive or collect money for account of the city to deposit such collection in full, daily, with the city treasurer, taking receipt therefor, such deposits to be made on slips bearing the certificate of the director of finance that the same are duly recorded on the city's books. At the time of making such deposit, such officer or employee shall make a report to the city treasurer of such transaction and file a copy of such report with the director of finance in form for that purpose provided.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-94. Deposits in lieu of daily deposits.

In the case of officers from whom, in the opinion of the director of finance, it is inexpedient or impracticable to require daily deposits with the city treasurer, as provided in section 16-93, the director of finance may authorize deposits to be made, in lieu of daily deposits, at such periods as he or she may determine; provided, that the interval between consecutive periods shall, in no case, be longer than one month, and it shall be the duty of any such officer to make, regularly and promptly, deposits at such periods as may be so authorized.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-95. Payment of city's portion of judges' salaries.

The director of finance is hereby authorized to issue warrants for, and the city treasurer is hereby authorized to pay to the treasurer of the state, such amount as may be required by law to provide funds for the payment of a certain portion of the salaries of the judges of the city courts and of the circuit court. Such amount shall be paid from the regular appropriation as made to the salary account in the annual appropriation.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-96. Apportionment of special assessment among several lots.

Where a special assessment is or has heretofore been made against an abutting property owner for making or improving a walkway or for the construction of a sewer, and such assessment is in an aggregate sum and embraces more than one lot of land, upon application of any person owning any one of such lots embraced in the assessment, the city treasurer is authorized to apportion the assessment between such lots and to accept the proper proportionate part thereof, with interest thereon, in full payment and satisfaction of the lien of such assessment against any such lot and to release such lot from such lien.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-97. Service of attachment, garnishment or summons on treasurer.

Any garnishment, summons, notice of lien, or attachment involving the salary or wages of any officers or employees of the city, when served upon the director of finance, shall be recognized

by the city to the same effect as if served on the mayor or a member of the council, except that any garnishment, summons, notice of lien, or attachment involving the salary of an officer or an employee who has elected to have the same deposited directly to a bank account shall be served on the payroll manager, and the director of finance shall not be liable in the event that the central payroll bureau has made a direct deposit after receiving such notice but not in sufficient time to effect the deduction. When in the judgment of the director of finance, an employee is attempting by electronic deposit or other means to evade garnishments or liens, the director of finance is authorized to direct the payroll department to remove the person from direct deposit forthwith. The city attorney is authorized to defend the director of finance in any action arising because of such failure or inability of the city or payroll manager to make the required deduction.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-98. Books and papers to be turned over to successor.

The city treasurer shall, at the expiration of his or her term of office, turn over to their successor in office at once all uncollected bills and accounts and all books and papers connected therewith, and the outgoing treasurer shall be credited with such uncollected bills and accounts and the incoming treasurer shall be charged with and shall collect the same.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-99. Destruction of paid tax tickets.

The city treasurer may cause all paid tax tickets to be destroyed at any time after five (5) years from the end of the fiscal year during which taxes represented by such tickets were paid in accordance with retention regulations pursuant to the Virginia Public Records Act.
(Ord. No. 48,607, § 1, 12-14-21)

Cross reference—Licenses and taxation, Ch. 24.

Sec. 16-100. Authorization to accept credit cards.

The city treasurer shall be authorized to accept credit cards for payment of taxes and is authorized to add a fee to such payments in order to recover the fees charged by the credit card companies.
(Ord. No. 48,607, § 1, 12-14-21)

Secs. 16-101—16-114. Reserved.

ARTICLE V. COMMISSIONER OF THE REVENUE*

Sec. 16-115. Duty in regard to books and papers of predecessor.

The commissioner shall apply for and be entitled to the official books and papers of the commissioner's predecessor. The person in possession of such materials shall deliver them upon such application. The commissioner shall inform himself or herself, by an application to the clerk of the circuit court, if any alteration shall have been made therein. Any person failing or refusing to deliver such books upon such application shall be guilty of a misdemeanor and, upon conviction thereof, shall be fined not less than twenty dollars ($20.00) for every day that he or she shall so refuse after such application.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-116. Failure in duty or false entry by commissioner.

If the commissioner of the revenue shall fail to perform any of the duties of his or her office, or shall knowingly make a false or erroneous entry on any commissioner of the revenue books, he or she shall be guilty of a misdemeanor, and, upon conviction thereof, shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for every day he or she shall so fail or for each such false or erroneous entry.
(Ord. No. 48,607, § 1, 12-14-21)

*__Charter references—__Commissioner of the revenue generally, § 75; election of commissioner of the revenue, § 23.

__Cross references—__Bond of commissioner of the revenue, § 2-38(c); duties of commissioner of the revenue relative to assessments as to personal property, § 24-5; commissioner of the revenue and employees in commissioner's office included in retirement system, §§ 37-22, 37-23.

Secs. 16-117—16-132. Reserved.

ARTICLE VI. RESERVED

Secs. 16-133—16-154. Reserved.

ARTICLE VII. BONDS AND OTHER EVIDENCE OF CITY DEBT*

DIVISION 1. GENERALLY

Sec. 16-155. Numbering; records.

Every bond or other evidence of debt issued in the name of the city shall be numbered by the city treasurer, who shall keep a record showing such number, the name of the party to whom issued and on what account, and the date of issue and the maturity thereof. He or she shall also make a detailed record in like manner of all transfers of bonds and shall furnish to the director of finance a copy of each of such records.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-156. Custody of city's unsold bonds and other securities.

(a) For the protection of the city and all parties concerned, the custody of the city's unsold bonds and other securities on hand shall be under the joint control of the city treasurer and the director of finance or such other city official as may be designated by the city council, and neither of the above officers shall have access to such bonds or securities in the absence of the other.

(b) The director of finance is hereby authorized, from time to time, to make such rules and regulations as the director of finance may deem expedient and necessary with reference to this section.
(Ord. No. 48,607, § 1, 12-14-21)

*__Charter reference—__Bond issues, § 86 et seq.

__Cross references—__Ordinances authorizing issuance of bonds or other evidence of debt not affected by Code or ordinance adopting Code, 1-5(1); form, signing and sealing of bonds, notes and other obligations, § 2-9.

Sec. 16-157. Registration of bonds—Generally.

The city treasurer shall, at the request of the bearer of any coupon bonds of the city, payable to bearer upon the presentation of such bonds and the cancellation by the treasurer of all coupons not yet matured attached to such bonds, register and enter in a suitable book to be kept by him the number and the amount of such bonds, the date of such presentment, and the name of the party in whose name such bonds shall be registered as the owner thereof. The city treasurer shall cause the bearer of such bonds to sign his name in such book, with a designation of the capacity in which he acts, whether as attorney of the owner or as owner of the bonds. The treasurer shall thereupon endorse upon the back of each of such bonds the following: "Registered on the books of the Treasurer of the City of Norfolk to _____, on the _____ day of _____ and transferable only on the said books."

The treasurer shall date and sign the same as such treasurer, or, at the option of the holder of any coupon bonds of the city, the treasurer is hereby authorized to make exchange of the coupon bonds for one or more registered bonds as may be desired; thereafter, such bonds and the interest to accrue thereupon shall be payable only to such registered holder at the office of the treasurer and shall be transferable only upon such books upon (a) the presentment of such bonds by such registered owner or his personal representative duly appointed by proper authority or by his duly constituted attorney in fact, and (b) by the endorsement upon such bonds of such transfer.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-158. Same—Cancellation of coupon bonds and coupons; reports.

(a) The city treasurer shall cancel the coupon bonds and coupons, or coupons, as the case may be, specified in section 16-157, and shall make report of each transaction to the director of finance, who shall cause the coupon bonds and coupons, so exchanged, to be destroyed, and report the same to the city council.

(b) The city treasurer shall report to the director of finance each bond registered pursuant to section 16-157, the number and amount of each such bond and the name of the person in whose name each is registered.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-159. Same—Transfer of registered bonds.

(a) Whenever any of the bonds registered pursuant to section 16-157 shall be presented for transfer to the treasurer, it shall be the duty of the city treasurer to enter, in the book mentioned in section 16-157, or in another book to be kept by him for the purpose at his office, the amounts or numbers of such bonds, the name of such registered owner, the date of the presentment for transfer, and the name of the party to whom transferred, and the city treasurer shall cause the owner, his personal representative, or his attorney in fact to sign such transfer in such book, and he shall carefully preserve and file all evidences of administration and power of attorney upon which transfers may be based. The treasurer shall thereupon endorse on such bonds the words following: "Transferred on the books of the City Treasurer of the City of Norfolk to _____" and the city treasurer shall date and sign the same as the city treasurer.

(b) Any registered owner of a bond may transfer to the bearer of the same, in the manner prescribed in subsection (a) above, when the endorsement shall be made upon the bond as follows: "Transferred upon the books of the Treasurer of the City of Norfolk to, and now payable to, the bearer," dated and signed by the treasurer, as aforesaid, and thereafter such bond shall pass, by delivery, in the same manner as though the same had never been registered, until the same shall be thereafter again registered.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-160. Same—Printed endorsements.

The endorsements mentioned in sections 16-157 and 16-159 may be printed upon the bonds with the exception of the date and the signature of the treasurer.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-161. Lost bonds or certificates of debt.

(a) When any matured bond, coupon, or certificate of debt payable by the city shall be lost by the holder thereof, upon such person's filing in the director of finance's office, or with the city treasurer, an affidavit setting forth the time, place and circumstances of the loss, the director of finance may authorize payment due against such matured bond, coupon, or certificate of debt without requiring the actual surrender of the lost instrument, in lieu of requiring the issuance of a new bond, coupon or certificate of debt, upon the condition that the owner of the lost instrument shall first execute a bond to the city, with one or more sureties, approved by the director of finance and by the city attorney, conditioned to indemnify and hold harmless the city and all persons against loss, liabilities, or claims in consequence of the authorization to effect payment against such matured bond, coupon or certificate of debt.

(b) When any bond, coupon, or certificate of debt payable by the city that has not reached maturity shall be lost by the holder thereof, upon such person's filing in the director of finance's office or with the city treasurer, an affidavit setting forth the time, place, and circumstances of the loss, the council may order the city treasurer to issue a new bond, coupon, or certificate of debt in lieu of the one lost, upon the condition that the owner shall first execute a bond to the city, with one or more sureties, approved by the director of finance and by the city attorney, conditioned to indemnify and hold harmless the city and all persons against any loss, liabilities or claims in consequence of the issue of such new bond, coupon or certificate of debt. Upon the face of any bond or certificate so issued, the treasurer shall write "Issued in lieu of lost bond (or coupon or certificate)."
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-162. Annual certification of bonded indebtedness and assessment for sinking fund for payment of bonds.

It shall be the duty of the board of sinking fund commissioners, annually but not more than

sixty (60) days before the end of the fiscal year, to certify to the council the amount of annual assessment necessary to retire or to amortize each bond issue, including renewal bonds, serial bonds excepted, and the total amount of city bonds outstanding at the date of such certification, serial bonds excepted, and the council shall, annually, at the same time an assessment is made for the payment of interest on city bonds, make an assessment for a sinking fund for the payment of such bonds, the amount of the assessment to be such as will, in accordance with the certification of the board of sinking fund commissioners, provide for the payment of each outstanding bond issue at the date of its maturity.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-163. Exchange of coupon bonds held by board of sinking fund commissioners for registered bonds.

The board of sinking fund commissioners shall, from time to time, exchange the coupon bonds of the city which it may hold belonging to the sinking fund for an equal amount of registered bonds of the city, the registered bonds to carry interest at the same rate and to mature at the same time as the coupon bends for which they were exchanged. The treasurer of the city is hereby authorized and empowered to make the exchange of such registered bonds for coupon bends on the receipt thereof.
(Ord. No. 48,607, § 1, 12-14-21)

Sec. 16-164. Payment of expenses of board of sinking fund commissioners; members of board not compensated.

Any actual expenditures which the board of sinking fund commissioners may make for stationery, legal services, or other necessary expenses, in connection with the duties of their office, may be paid by the city, but no member of such board shall receive any compensation or emolument, either as salary, commission, or otherwise, for any service rendered in the discharge of his duties as a member of the board of sinking fund commissioners unless otherwise provided by the council.
(Ord. No. 48,607, § 1, 12-14-21)

Secs. 16-165—16-175. Reserved.

DIVISION 2. RESERVED

Secs. 16-176—16-184. Reserved.

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Chapter 17

RESERVED*

*Editor's note—Section 2 of Ord. No. 36,378, adopted April 9, 1991, repealed the provisions of former Ch.17, contained in §§ 17-1, 17-2, 17-6—17-17, 17-27—17-38, 17-40—17-42, 17-44—17-50, 17-65—17-67, 17-76—17-85, 17-96.1 and 17-97.1. The repealed provisions pertained to fire prevention and protection and derived from Code 1958, §§ 2-103—2-106, 20-8—20-8.2, 20-9, 20-10, 20-12—20-19.1, 20-20, 20-21, 20-31, 31-12, 31-24, 31-63, 52-30 and the following ordinances:

Ord. No.	Date	Section	Ord. No.	Date	Section
29,610	8-29-78	1	33,566	7-16-85	3
29,924	5-15-79	1	33,592	7-30-85	1
30,841	10-21-80	1	34,611	7-14-87	1
33,095	9-11-84	2	34,981	4-12-88	1, 2
33,417	4-30-85	1	35,135	6-28-88	1
33,418	4-30-85	1	35,361	1-10-89	1

Provisions relative to fire and paramedical services are included in Ch. 17.1.

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Chapter 17.1

FIRE-RESCUE*

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§ 17.1-23. Rendering aid beyond city limits.
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***Editor's note—**Ord. No. 39,972, § 2, adopted May 23, 2000, amended and reordained Ch. 17.1 to read as herein set out. Prior to its amendment, Ch. 17.1 pertained to similar subject matter and was derived from the following ordinances:

Ord. No.	Date	Ord. No.	Date
36,378	4- 9-91	37,391	9-14-93
37,236	5-18-93	37,996	5-23-95
37,238	5-18-93	38,614	1-14-97
37,239	5-18-93	38,677	3-11-97
37,327	5-18-93	39,175	5-26-98
37,335	7-13-93	39,655	6-22-99

Charter reference—General authority of city relative to fire prevention and protection, § 2(18).

Cross references—Possession of explosives or flammable material at airport, § 4-57 et seq.; buildings and building regulations, Ch. 11.1; precautions against fire in commercial garages, § 20-6; vehicle drivers not to follow fire apparatus or drive over fire hose, §§ 25-172, 25-173; parking near scene of fire, § 25-281; calling firefighting apparatus without cause and malicious activation of fire alarm in public building, § 29-7; automatic delivery of prerecorded telephone message to public safety services, § 29-19; collection and disposal of hazardous waste, § 41-96; trailer coach skirting not to create fire hazard, § 44-43; emergency facilities in trailer coach parks, § 44-47; water service for fire protection, § 46-11; limitations on use of fire hydrants, § 46-12.

State law references—Authority of city to make regulations for purposes of guarding against danger of fire, § 15.1-15; fire protection, Code of Virginia, Title 27.

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Article III. Fire Investigation

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§ 17.1-50. Unlawful summonsing ambulance for non-life-threatening illness or injury.
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§ 17.1-60. Fee for patient care reports and duplicate bills.
§§ 17.1-61—17.1-64. Reserved.

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§ 17.1-66. Fire alarm system user registration.
§ 17.1-67. Fire alarm company operator registration.
§ 17.1-68. Duties of the fire alarm system user.
§ 17.1-69. Duties of the fire alarm company operators.
§ 17.1-70. Fire false alarms prohibited; service fee.
§ 17.1-71. Exception.

ARTICLE I DEPARTMENT OF FIRE-RESCUE*

Sec. 17.1-1. Department created.

Pursuant to the provisions of sections 2(18), 2(23) and 52 of the Charter, an administrative department of the city is hereby created, to be known as the department of fire-rescue.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Sec. 17.1-2. Department head generally.

The head of the department of fire-rescue shall be known as the chief of fire-rescue and shall be the fire chief, as defined in section 62 of the Charter. The chief of fire-rescue, hereinafter called the fire chief for the purposes of this chapter, shall be responsible for the administration of the department and shall have immediate direction and control of the fire-rescue force, including emergency medical services. In addition to policies transmitted to him by the city manager, the fire chief shall establish such other polices, directives, rules and regulations for the administration and operation of the department as he sees fit. The fire chief shall perform such other duties as may be prescribed by ordinance or by the city manager.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03; Ord. No. 48,513, § 1, 9-28-21)

Sec. 17.1-3. Division of administrative services.

There shall be in the department of fire-rescue the division of administrative services, which shall be responsible for the coordination and development of departmental budgets; the management of departmental payroll accounting and purchasing operations; the conducting of analytical studies and research projects to assess departmental operation; the assessment of current trends in fire prevention and suppression, emergency medical services, hazardous materials emergency response, and other matters relating to the activities and responsibilities of the department; the evaluation of various courses of action; the formulation of policies and procedures; the development of long rang strategies and programs for improvement of the department's responsiveness; and the monitoring of research and applications for grant funding of departmental programs. The head of the division of administrative services shall be the administrative services manager, whose duties shall be such as may be prescribed by ordinance or the fire chief.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Sec. 17.1-4. Warrant of appointment of chief and assistants.

In accordance with section 62 of the Charter, a warrant of appointment shall be issued to the fire chief and to each of his assistants. Each such warrant shall be signed by the director of public safety and shall state the date of appointment. Such warrants shall be the commissions of the fire chief and his assistants, respectively. For the purposes of this section and section 62 of the Charter, the assistants of the fire chief shall be deemed to include every subordinate chief and fire officer.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-5. Absence of fire chief.

In the absence of the fire chief, his duties shall be performed and his powers exercised by the deputy chief, and in the absence of both the fire chief and the deputy chief, such duties shall be performed and such powers exercised by an assistant chief designated by the fire chief.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-6. Powers and duties of chief in event of fire.

It shall be the duty of the fire chief, or his assistant, whenever a fire shall occur in the city, to proceed at once to the place of such fire, and to take proper measures. The fire chief shall have the sole command at fires over all other officers and over all other members of the department of fire-rescue with regard to the suppression of fire, and over all persons who may be present at fires,

*__Editor's note—__Ord. No. 41,261, § 1, adopted Dec. 2, 2003, changed the title of art. I to reflect the change of title from the department of paramedical services to the department of fire-rescue.

and shall take all proper measures for the extinguishment of fires, and for the further protection of property, preservation of order and observance of the laws of the state, ordinances of the city and regulations of the city manager respecting fires.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Sec. 17.1-7. Inspection and supervision of fire hydrants.

The fire chief shall have general supervision of all fire hydrants in the city, and he shall report in writing to the director of public utilities whenever he deems it necessary or expedient that hydrants be erected, repaired or removed.
(Ord. No. 39,972, § 2, 5-23-00)

ARTICLE II. GENERAL PROVISIONS

Sec. 17.1-8. Violations of chapter.

Unless otherwise specifically provided, any person violating any of the provisions of this chapter shall be guilty of a Class 1 misdemeanor. Each day of violation shall be deemed a separate offense.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-9. Definitions

The following terms shall have the following definitions unless provided otherwise:

Fire official shall mean the fire chief, fire marshal, or any of their designees or assistants.

Person shall mean any individual, firm, owner, sale proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporation, execution, administrator, trustee, guardian, agent, occupant, or other legal entity.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-10. Tampering or interfering with fire alarm system.

It shall be unlawful for any person in the city to tamper or in any way interfere with any station or signal box of any fire alarm telegraph system or any auxiliary appliance, or willfully to break, injure, deface or remove, or to make any connection or communication with the poles, wires, boxes or other parts or fixtures of the fire alarm system, so as to interrupt or interfere with the proper working of the same, or to mutilate or destroy any notice that may be legally posted relating to the same.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-11. Smoking in auditorium of theater or other public building.

(a) It shall be unlawful for any person to smoke a cigarette, cheroot, cigar or pipe in the auditorium of any theater or any other public building in the city, except in those places so designated in accordance with the provisions of the fire prevention code.

(b) Any person violating any provision of this section shall be guilty of a Class 4 misdemeanor.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-12. Delivery of motor fuel into tank of vehicle with motor running.

No person shall sell any gasoline or other motor fuel for delivery directly into the tank of any vehicle within the city, while the motor of such vehicle is running. A violation of this section shall constitute a Class 4 misdemeanor.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-13. Interference with departmental operations.

It shall be unlawful for any person to interfere with, attempt to interfere with, conspire to interfere with, obstruct or restrict the mobility of, or block the path of travel of any emergency vehicle of the department of fire-rescue in any way, or to interfere with, attempt to interfere, conspire to interfere with, obstruct or hamper any operation of the department of fire-rescue. It shall be unlawful for any person to in any

manner hinder or prevent any member of the department of fire-rescue from discharging his duty.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Sec. 17.1-14. Compliance with orders of fire chief or fire official.

It shall be unlawful for any person [to] willfully fail or refuse to comply with any lawful order or direction of the fire chief, fire official or his designee or to interfere with the compliance attempt of another person.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-15. Unlawful boarding or tampering with departmental emergency equipment.

No person shall, without proper authorization from the person in charge of an emergency vehicle of the department of fire-rescue, cling to, attach himself to, climb upon or into, board or swing upon any such vehicle, whether the same is in motion or at rest, or sound the siren, horn, bell or other sound-producing device thereon, or manipulate or tamper with, or attempt to manipulate or tamper with, any levers, valves, switches, starting devices, breaks, pumps, or any equipment or protective clothing on, or a part of, any such emergency vehicle.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Sec. 17.1-16. Blocking fire hydrants and departmental connections.

(a) It shall be unlawful for any person to obscure from view, damage, deface, obstruct or restrict the access to any fire hydrant or any connection used by the department of fire-rescue for the pressurization of fire-suppression systems, including fire hydrants and connections that are located on public or private streets and access lanes, or on private property.

(b) If, upon the expiration of the time provided in a notice of violation, obstructions or encroachments are not removed, the fire chief or fire official may proceed to remove the same, at the expense of the responsible party.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Sec. 17.1-17. Maintenance of fire suppression equipment.

It shall be unlawful for any person to obstruct, remove, tamper with or otherwise disturb any fire hydrant or fire appliance required to be installed or maintained under the provisions of the fire prevention code except for the purpose of extinguishing fire, training or testing purposes, recharging, or making necessary repairs, or when permitted by the fire official. Whenever a fire appliance is removed as herein permitted, it shall be replaced or reinstalled as soon as the purpose for which it was removed has been accomplished. Defective and nonapproved fire appliances or equipment shall be replaced or repaired as directed by the fire official.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-18. Sale of defective fire extinguishers.

It shall be unlawful for any person to sell, trade, loan or give away any form, type or kind of fire extinguisher which is not approved by the fire official, or which is not in proper working order, or the contents of which do not meet the requirements of the fire official. The requirements of this section shall not apply to the sale, trade or exchange of obsolete or damaged equipment for junk when said units are permanently disfigured or marked with a permanent sign identifying the unit as junk.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-19. Setting woods, etc., on fire carelessly or negligently whereby property is damaged or jeopardized.

Any person who carelessly or negligently sets or procures another to set fire to any woods, brush, leaves, grass, straw, or any other flammable substance capable of spreading fire, and who carelessly or negligently allows the fire to escape to lands not his own, whereby the property of another is damaged or jeopardized, shall be guilty of a class 1 misdemeanor, and shall be liable for the full amount of all expenses incurred in fighting the fire.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 43,181, § 1, 7-22-08)

Sec. 17.1-20. Falsification of reports or documents.

It shall be unlawful for any person to submit or cause to be submitted to the fire chief, fire mar-

shal, fire official, or designee, any false, fictitious, untrue, or misleading information or statement in any report, document, application or written material required to be submitted pursuant to any provision of this chapter.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-21. Certificate from fire marshal as to absence of hazardous materials prerequisite to demolition of building or structure.

(a) Before any person shall demolish any building or structure, the building or structure shall be inspected by the fire marshal or his designee to determine if hazardous materials as defined in the State Fire Prevention Code or in this chapter exist in the building or structure. If in the fire marshal's or designee's opinion no such hazardous materials exist in the building or structure, he shall issue a certificate of inspection. If in the fire marshal's or designee's opinion such hazardous materials do exist in the building or structure, the hazardous materials shall be removed and disposed of in accordance with local, state and federal regulations and laws prior to a certificate of inspection being issued. It shall be unlawful for any person to demolish any building or structure without first obtaining a certificate of inspection from the fire marshal or his designee.

(b) The building code official shall refuse to issue a permit for the demolition of any building or structure, unless and until the certificate required by this section is submitted to him with the application for such demolition permit.

(c) The certificate of inspection, also known as a hazardous materials certificate, shall be valid for a period of thirty (30) days from the date of inspection. If any building or structure has not been demolished by the expiration date of the certificate, then another inspection shall be conducted and another certificate shall be issued before demolition can proceed. A fee for the inspection shall be set by the city manager.

(d) Any person demolishing any building or structure shall within thirty (30) days after demolition, submit a verifiable receipt or manifest to the fire marshal or his designee showing disposal amount and location of any and all materials resulting from the demolition.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 40,322, § 1, 5-22-01)

Sec. 17.1-22. Removal of electrical wires and equipment; direct communications with electric utility companies.

The department of fire-rescue shall require the establishment of an emergency direct communications system at a designated central office of each electrical utility providing service in the city, operational twenty-four (24) hours a day, at the electrical utility's expense. Upon the occurrence of a fire or other emergency in any part of the city in which any electrical utility has wires or equipment, such utility shall forthwith, upon request, immediately send personnel to the scene of such fire or other emergency, prepared to remove such wires and/or equipment under the direction of the fire officer or incident commander in command at the scene.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Sec. 17.1-23. Rendering aid beyond city limits.

(a) In the absence of a mutual-assistance agreement, the city manager is hereby authorized, in his discretion, to require the department of fire-rescue to render aid in cases of fire or other emergencies occurring beyond the city limits, to require that the county, city or town desiring such service shall have, by proper ordinance or resolution, authorized and designated some official of such county, city or town to request such aid, and to have in full force and effect insurance sufficient to cover any loss or damage to any equipment of the city used to render such aid and any other liability incurred by the city or its agents by reason of such service, including any injury suffered or incurred by members of the department of fire-rescue while responding to such call and rendering such aid or such other arrangements as the city manager may deem appropriate.

(b) In addition to the provisions of subsection (a) above, any county, city or town requesting or receiving aid from the equipment of the city shall pay for the use of such equipment the cost as set by the city manager.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Sec. 17.1-24. Fire reports and charges therefor.

Unless otherwise prohibited by law, the department of fire-rescue is hereby authorized to furnish copies of fire reports to persons having a legitimate interest therein. The charge for copies of such fire reports shall not exceed the actual cost incurred to search for, access, duplicate, and supply the requested records. The fire chief shall distribute, without charge copies of such fire reports to officials of the city or to other governmental agencies who require the same.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03; Ord. No. 42,359, § 1, 8-15-06)

Sec. 17.1-25. Use of coin-operated, etc., devices for dispensing motor fuel prohibited.

No gasoline or other motor fuel shall be sold or dispensed at or in any public commercial garage, gasoline supply station, automobile parking station, automobile service station, aircraft fueling station or any other place of business in the city by means of any coin-operated device or other self-dispensing device.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-25.1. Calling or summoning ambulance or firefighting apparatus without just cause; maliciously activating fire alarms in public buildings; venue.

(a) Any person who without just cause therefor, calls or summons, by telephone or otherwise, any ambulance, or firefighting apparatus, or any person who maliciously activates a manual or automatic fire alarm in any building used for public assembly or for other public use, including, but not limited to, schools, theaters, stores, office buildings, shopping centers and malls, coliseums and arenas, regardless of whether the ambulance or fire apparatus responds or not, shall be deemed guilty of a Class 1 misdemeanor.

(b) A violation of this section may be prosecuted either in the jurisdiction from which the call or summons was made or in the jurisdiction where the call or summons was received.
(Ord. No. 40,165, § 1, 11-28-00)

ARTICLE III. FIRE INVESTIGATION

Sec. 17.1-26. Appointment.

Any person lawfully appointed to the position of fire investigator in accordance with the rules of the classified service, or any person designated or assigned as an assistant fire investigator by the fire marshal, is hereby deemed to have been appointed by the council to such position within the meaning of Code of Virginia §§ 27-30 and 27-36, for the purpose of exercising the powers and duties as prescribed in this article.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 43,181, § 2, 7-22-08)

Sec. 17.1-27. Oath of office.

The fire investigator and his assistants, before entering upon their duties, shall take an oath, before any officer authorized to administer oaths, to faithfully discharge the duties of such office. The certificate of the oath shall be returned to and preserved by the council.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-28. Police powers.

In addition to such other duties as may be prescribed by law, the fire investigator and those assistants appointed, assigned or designated pursuant to section 17.1-26 shall have the same police powers as a sheriff, police officer or law enforcement officer. In addition to general police powers, the investigation and prosecution of all offenses involving hazardous materials, fires, fire bombings, bombings, attempts or threats to commit such offenses, false alarms relating to such offenses, possession and manufacture of explosive

devices, substances and firebombs shall be the responsibility of the fire marshal or his designees.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 40,016, § 1, 6-27-00; Ord. No. 43,181, § 3, 7-22-08)

Sec. 17.1-29. Duty to investigate fires.

The fire investigator and his assistants shall make or cause to be made an investigation into the origin and cause of every fire occurring within the city.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-30. Summoning witnesses; taking of testimony.

(a) In making the investigation required by section 17.1-29, the fire marshal or fire investigator may issue a summons directed to the sheriff of the city commanding such officer to summon witnesses to attend before him at such time and place as he may direct. Any such officer to whom the summons is delivered shall forthwith execute it and make return thereof to the fire investigator at the time and place named therein.

(b) Witnesses on whom the summons mentioned in subsection (a) above is served may be compelled by the fire marshal or fire investigator to attend and give evidence and shall be liable in like manner as if the summons had been issued by a justice of the peace in a criminal case. They shall be sworn by the fire investigator or fire marshal before giving evidence, and their evidence shall be reduced to writing by him, or under his direction, and subscribed by them respectively.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-31. Search warrant when investigation indicates crime in connection with fire or explosion.

If, in making an investigation pursuant to this article, the fire marshal or fire investigator, or an assistant of either, shall make complaint under oath that there is good cause of suspicion or belief that the burning of or explosion on any land, building or vessel or of any object was caused by an act constituting a crime, as defined in article 1 (section 18.2-77 et seq.), chapter 5, of Title 18.2, Code of Virginia, and that he has been refused admittance to the land, building or vessel or to examine the object in or on which any fire or explosion occurred within fifteen (15) days after the extinguishment of such, any justice of the peace of the city may issue a warrant to the sheriff of the city requiring him to enter such land, building or vessel or the premises upon which the object is located, in the company of the fire marshal or fire investigator, or the designee of either, for the purposes of conducting a search for evidence showing that such fire or explosion was caused by an act defined in article 1, chapter 5, of Title 18.2 of the Code of Virginia.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-32. General powers and duties at scene of fire.

Whenever any fire occurs, it shall be the duty of the fire marshal or fire investigator or the designated representative of either to be present at the same and advise and act in concert with such officers of police as may be present, and, for preserving order at and during the existence of such fire, and for the protection of property, he shall have concurrent powers with the officers of police, and the chief or other officer in charge, but shall not exercise any authority which will conflict with the powers of any chief or other officer in command of the division of fire in the discharge of his special duties as such.
(Ord. No. 39,972, § 2, 5-23-00)

Sec. 17.1-33. Seizure and preservation of evidence.

The fire marshal or fire investigator or the designated representative of either is authorized to take and preserve any property found at the scene of a fire or explosion during his presence there, while in the act of extinguishing such, or found later, with the consent of the owner or pursuant to section 17.1-31, which property indicates the fire or explosion was intentionally caused. Any person whose property is so taken and held may petition the circuit court of the city, or the judge thereof in vacation, for return of the property, and the court may order restitution upon such conditions as are appropriate for the preservation of evidence, including the posting of bond.
(Ord. No. 39,972, § 2, 5-23-00)

Secs. 17.1-34—17.1-42. Reserved.

ARTICLE IV. FIRE PREVENTION CODE

Sec. 17.1-43. Adoption.

The Virginia Statewide Fire Prevention Code (as periodically amended) and the referenced standards contained therein, as hereinafter amended, amplified, supplemented and modified in this article, is hereby adopted as the fire prevention and life safety code for the city and will be referred to and may be cited as the "fire prevention code." A copy of the fire prevention code shall be kept on file at all times in the offices of the city clerk and the fire marshal.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 43,181, § 4, 7-22-08)

Sec. 17.1-44. Amendments and supplements.

The fire prevention code, as hereinbefore adopted, is hereby amended, supplemented, amplified and modified by the following provisions, with the intended purpose of being more restrictive or more extensive in scope than the Virginia Statewide Fire Prevention Code. The following provisions shall amplify and supplement the fire prevention code:

(1) *Violations; penalty:* It shall be unlawful and shall constitute a Class 1 misdemeanor for any person, firm, company or corporation to violate any of the provisions of the fire prevention code, including all amendments thereto, or to fail to comply therewith, or to violate or fail to comply with any order made thereunder. Each day that a violation or noncompliance continues shall constitute a separate offense. In addition to any penalties imposed for each violation, a judge hearing the case may order the person, firm, company or corporation responsible for such violation and each day's default in such correction or remediation after being so ordered shall constitute a violation of a separate offense under this chapter.

(2) *Appeals:* Any person, firm, company or corporation, after receiving a written notice of violation, shall have the right to appeal to the fire chief. The appeal must be made in writing within seven (7) calendar days of the issuance date of the written notice of violation. The chief may grant modifications to any provisions of this code, provided that the spirit and intent of the fire prevention code is observed and public health, welfare and safety are assured. Such decisions shall be recorded in department records, with a signed copy furnished to the appellant. Failure to submit an appeal in the time specified shall constitute acceptance of the fire chief's decision.

(3) *Severability:* The provisions of the fire prevention code, as adopted in this article, are hereby declared to be severable. If any part, section, provision, sentence, clause or phrase where the application thereof to any person or circumstance is for any reason adjudged to be unconstitutional or invalid, the remainder thereof shall remain in full force and effect, and its validity shall not be impaired, it being the legislative intent hereby declared that said fire prevention code, with amendments, would have been adopted, even if such unconstitutional or invalid matter had not been included or if such unconstitutional or invalid application had not been made.

(4) *Fire official:* The fire chief, fire marshal, or any other person designated by the fire chief to perform the duties of the fire marshal. When used herein the term fire official shall also mean code official.

(5) *Rules and regulations:* The fire official shall have authority as necessary in the interest of public health, safety and general welfare to adopt and promulgate rules and regulations to interpret and implement the provisions of this code to secure the intent thereof, and to designate requirements applicable because of local and climatic conditions. Such rules shall not have the effect of waiving any fire safety requirements specifically provided

for in this code or of violating accepted engineering practice involving public safety.

(6) *Deletion of construction standards:* The standards for construction specified in the National Fire Protection Life Safety Code (NFPA 101, 1994 edition) are hereby deleted from this code.

(7) *Applicability of other laws:* Nothing in this code shall be construed, interpreted or applied to abrogate, nullify or abolish any law, ordinance or code adopted by the state or the city. When any provision of this code is found to be in conflict with any zoning, safety, health or other applicable law, ordinance or code, the provision which establishes the higher standard for the promotion and protection of the safety, and welfare of the public shall prevail.

(8) *Certification of fire official:* The fire official and all assistants enforcing the fire prevention code shall be certified pursuant to section 27-34.2, Code of Virginia.

(9) *Maintenance inspections:* The fire official may inspect all buildings, structures and premises to ensure compliance with this code or other ordinances affecting fire and life safety. If the inspection involves a dwelling unit, the fire official must seek permission of the owner or an occupant before conducting an inspection. If the owner or occupant refuses to grant permission, the fire official may obtain an inspection warrant pursuant to section 27-98.2, Code of Virginia.

(10) *Fire lane parking tickets.* Traffic parking tickets may be issued by the department of fire-rescue or other persons designated by the city manager on all vehicles parked in public and private fire lanes designated by the fire marshal. The fine for parking in a designated fire lane shall be one hundred dollars ($100.00).

(11) *Hazardous material identification:* The fire marshal may require identification of any and all buildings, structures or sites which store or handle hazardous material or chemicals. Such identification shall be the marking system of the National Fire Protection Association (NFPA 704, Standard System for the Identification of the Fire Hazards of Material).

(12) *Parking:* No motor vehicles shall be parked any place closer than ten (10) feet to any door, window or other opening of any theater, hotel, hospital, school, auditorium or any other property where such parking creates or tends to create a hazard to life or property in the event of fire or other emergency.

(13) *Proper street address numbers:* It shall be a violation of this code to fail to display a proper address number as specified in City Code sections 42-202 and 42-203.

(14) *Burning of rubbish and yard waste:* The burning of rubbish, yard waste, leaves and wire insulation is prohibited, except for operations conducted under permit by the State Department of Environmental Quality (DEQ).

(15) *Interior storage:* Storage in buildings and structures shall be orderly and shall not be closer than eighteen (18) inches to any sprinkler head nor closer than twenty-four (24) inches to the lowest portion of a ceiling assembly. Interior storage shall not obstruct egress from any building or structure.

(16) *Outside storage:* The outside storage of combustible or flammable materials shall not be more than twenty (20) feet in height and shall be compact and orderly. Such storage shall be located as not to constitute a hazard and not less than fifteen (15) feet from any building or from a lot line.

(17) *Accumulation of waste:* Accumulation of waste material including but not limited to paper, wood, hay, straw, weeds, litter, pallets, tires or other combustible or flammable material shall not be dumped or allowed to remain on any premises, roof, court, vessel, yard, vacant lot, alley, parking lot, open space or any right-of-way. All weeds, grass, vines or other vegetation

which in the opinion of the fire official may endanger persons or property, shall be cut down and removed by the owner or occupant of the property. Combustible rubbish, oily rags or other waste material kept in a building or structure shall be kept in containers approved by the fire official.

(18) *Home use appliances:* All home use electrical or fuel powered appliances shall be listed by an approved testing agency. These appliances shall only be installed and used in accordance with their listing and in a manner so as not to create a hazard.

(19) *Highrise building standpipe flow test:* Standpipe systems in buildings over seventy-five (75) feet in height shall be flow tested at least every two (2) years.

(20) *Sprinkler flow test:* All sprinkler systems' inspector test connection, main drain and control valves shall be operated annually to ensure adequate pressure, adequate water flow, and the absence of obstructions.

(21) *Monthly fire pump flow test:* All fire pumps, that automatically supply water to fire suppression systems and standpipe systems, shall be operated periodically until water is discharged freely from the relief valve and at least every thirty (30) days. A record of such tests shall be kept on the premises for review by the fire inspector within thirty (30) days of such test or inspection.

(22) *Fire protection systems test results:* A copy of all test results and inspections for all required fire protection equipment shall be forwarded to the fire official for review within thirty (30) days of such test or inspection. It shall be unlawful for any person to submit any fraudulent, falsified or inaccurate test results.

(23) *Wrecking yards:* A vehicle wrecking yard, salvage yard for automobiles or parts, junkyard or waste material handling plant shall not be located so as to expose adjoining or adjacent properties to the risk of fire and shall be fenced in a manner so as to prevent both view and access by the general public during a fire operation, if a fire occurs on the premises.

(24) *Storage of explosives:* The storage of explosives and blasting agents is prohibited within the city, except for temporary storage for use in connection with approved blasting operations; provided, however, that this prohibition shall not apply to wholesale and retail stocks of small arms ammunition, explosive bolts, explosive rivets or cartridges for explosive actuated power tools in quantities involving less than five hundred (500) pounds (227 kg.) of explosive material.

(25) *Fireworks prohibited:* The manufacture of fireworks is prohibited within the jurisdiction. The possession or use of fireworks is prohibited within the city, except for fireworks approved by permit according to the rules and regulations of the fire official.

(26) *Additional fireworks:* In addition to the items defined as fireworks in other parts of this code (SFPC), the term fireworks shall include pinwheels, fountains and pharaoh serpents. The manufacture, sale, possession or use of any fireworks, without the permission of the fire official, is unlawful.

(27) *Hazardous materials or waste materials discharge, release, disposal or spill:* The unauthorized discharge, release, disposal or spill of any hazardous material as defined in the Virginia Statewide Fire Prevention Code whether it be liquid, solid or gas, shall be a violation of this code.

(28) *Hazardous material or waste materials spill notification:* Any spill, release, or discharge of any material specified in paragraph (27) of this section shall be reported to the fire official immediately. Failure to report or delay in reporting shall be a violation of this code.

(29) *Hazardous material or waste materials clean up:* Any spill, release, or discharge of any material specified in paragraph (27) of this section shall be cleaned up in a manner approved by the fire official. If the person, firm, company or corporation causing the spill or discharge can not be ascertained, then the owner of the property shall be responsible for the clean up. At the conclusion of the clean up, a written report shall be presented to the fire official specifying the type of material spilled, released, or discharged, quantity of material recovered, person, firm, corporation completing clean up and final disposal location. Noncompliance with any provisions contained herein is a violation of this code.

(30) *Fire suppression systems in certain buildings:* A fire suppression system shall be installed and maintained in full operating condition in any building fifty (50) feet or more in height. For the purposes of this section, a fire suppression system shall mean a mechanical system designed and equipped to detect a fire, activate an alarm and suppress a fire.

For purposes of this section, the height of a building shall mean the vertical distance from grade to the top of the highest roof beams of a flat roof, or the mean level of the highest gable or slope of a high roof. If the building faces on more than one street, the height shall be measured from the average of the grade at the center of each street front.

The provisions of this section shall be in addition to, and not in lieu of, other laws, ordinances, regulations and standards pertaining to the installation or maintenance of fire suppression systems.

Fire suppression systems shall be installed in accordance with the Uniform Statewide Building Code and NFPA #13 (Standard for the installation of Sprinkler Systems).

This section shall apply only to buildings for which building permits are issued on or after the date of the ordinance from which this article derives.

This section shall not apply to open parking garages which comply with the applicable provisions of Section 406 of the Virginia Uniform Statewide Building Code except that retail or office use located within said garage shall be sprinkled in accordance with applicable provisions in the Virginia Uniform Statewide Building Code.

(31) The fire official and any of his assistants shall have the right to enter upon any property from which a release of any hazardous material, hazardous waste or regulated substance has occurred or is reasonably suspected to have occurred and which has or may enter into the groundwater, surface water, air, or soils of the city, in order to investigate the extent of and cause of such release. If the fire official or any of his assistants is refused entry, he may apply for an investigation warrant pursuant to Code of Virginia, section 27-37.1.

(32) *Underground storage tanks:* All abandoned storage tanks or underground storage tanks not in use for more than ninety (90) days shall be filled or removed pursuant to the protocols established by the fire official.

(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03; Ord. No. 43,181, § 5, 7-22-08)

Sec. 17.1-45. Fire inspection and permit fees and requirements.

(a) *[Fire inspection and permit fees.]* Unless otherwise provided in this chapter, fire inspection and permit fees shall be paid and requirements met for each fire inspection and permit obtained pursuant to the fire prevention code, as amended, as set forth herein. Permits shall be valid for the time period set forth in the permit. Reinstatement of a permit after revocation or expiration of the permit shall require payment of the fee amount specified in this section.

(b) *Inspection fees and requirements.* A fee as set forth herein shall be paid for each initial inspection. For each second or subsequent inspection, a fee of fifty dollars ($50.00) shall be paid.

The fire official may waive inspection fees if he determines that the inspection will be limited in scope. Such waiver shall not apply to any other fees assessed for inspections under this code or Zoning Ordinance. For purposes of this section, "commercial unit" shall mean an establishment which is not used entirely for residential purposes.

Commercial unit 0—999 square feet	$ 50.00
Commercial unit 1000—5,000 square feet	75.00
Commercial unit 5,000—10,000 square feet	100.00
Commercial unit 10,001—20,000 square feet	125.00
Commercial unit 20,001—50,000 square feet	225.00
Commercial unit 50,001—100,000 square feet	275.00
Commercial unit 100,001—200,000 square feet	325.00
Commercial unit greater than 200,001 square feet	375.00

(c) *Fire permit fees.* A fire permit shall be obtained from the fire official and the following fees paid for the specified uses and activities:

Outdoor fireworks display per day of display	$100.00
Abandoned storage tanks and underground storage tanks not in use for more than ninety (90) days, per tank	75.00
Aviation facilities for group H or group S occupancy for aircraft servicing or repair and aircrafts fuel-servicing vehicles	75.00
Carnivals and fairs	75.00
Combustible dust-producing operations	75.00
Combustible fibers storage and handling in quantities greater than one hundred (100) cubic feet	75.00
Cutting and welding	75.00
Dry cleaning plants for dry cleaning or to change to a more hazardous cleaning solvent used in existing dry-cleaning equipment	75.00
Demolition	75.00
Explosives or explosive material manufacturing, storage, handling, sale, or use in any quantity	75.00
Fruit and crop ripening	75.00
Fumigation and thermal insecticidal fogging	75.00
Hazardous materials storage, transport, dispensing, or handling	75.00
Hazardous production materials storage	75.00
High-piled storage exceeding five hundred (500) square feet	75.00
Hot work operations for cutting, welding, brazing, soldering, grinding, thermal spaying [spraying], thawing pipe, installation of torch-applied roof systems or other similar operations	75.00
Indoor fireworks or pyrotechnic display per event	75.00
Industrial ovens	75.00
Liquid- or gas-fueled vehicles or equipment storage in building	75.00
Miscellaneous combustible storage for storage in any building or upon any premises in excess of two thousand five hundred (2,500) cubic feet gross volume of combustible empty packing cases, boxes, barrels or similar containers, rubber tires, rubber, cork or similar combustible material	75.00
Places of assembly including, but not limited to, movie theaters, theaters, restaurants, night clubs, bowling alleys, gyms, skating rinks, swimming pools, bleachers and grandstands	75.00

Repair garages and service stations for automotive, marine and fleet service stations	75.00
Spraying or dipping of flammable or combustible liquids or application of combustible powders	75.00
Temporary membrane structures or tents over two hundred (200) square feet	75.00
Tire rebuilding plants	75.00
Waste handling facilities, including wrecking yards and junk yards	75.00
Bulk storage and underground storage tanks with capacity over one hundred thousand (100,000) gallons of flammable or combustible materials, per gallon of storage capacity	0.0005

(d) It shall be unlawful to fail to pay a fire inspection fee or a fire permit fee in the time set forth for payment.

(e) The fees hereby established shall not be charged to the United States of America, the Commonwealth of Virginia and the City of Norfolk.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 44,248, § 1, 5-17-11; Ord. No. 47,229, § 18, 5-22-18, eff. 7-1-18)

Sec. 17.1-45.1. Waiver or reduction of fire permit fees.

The fire official is authorized to waive or reduce fire permit fees where he determines that review time is insubstantial or duplicative of reviews conducted by another city department or state official. Such waiver shall not apply to any other permit fees assessed for inspections under this Code or zoning ordinance.
(Ord. No. 44,248, § 2, 5-17-11)

Sec. 17.1-45.2. Refusal to issue fire permit.

If the applicant for a fire permit describes a use that does not conform to the requirements of the fire prevention code, as amended, and other pertinent laws and ordinances, the fire official shall not issue a permit, but shall return the application to the applicant with the refusal to issue such permit specified in writing.
(Ord. No. 44,248, § 3, 5-17-11)

Sec. 17.1-45.3. Inspection authorized.

Before a fire permit is issued, the fire official is authorized to inspect the receptacles, vehicles, buildings, devices, premises, storage spaces or areas to be used to determine compliance with the fire prevention code, as amended, or any operational constraints.
(Ord. No. 44,248, § 4, 5-17-11)

Sec. 17.1-45.4. Fire permit revocation.

The fire official is authorized to revoke a fire permit when it is found by inspection or otherwise that any one of the following have occurred:

(1) The permit is used for a location or establishment other than that for which it was issued.

(2) The permit is used for a condition or activity other than that listed in the permit.

(3) Conditions and limitations set forth in the permit have been violated.

(4) There have been any false statements or misrepresentations as to the material fact in the application for permit or plans submitted or a condition of the permit.

(5) The permittee failed or refused or neglected to comply with orders or notices duly served in accordance with the provisions of the fire prevention code, as amended, within the time provided therein.

(6) The permit was issued in error or in violation of an ordinance or regulation of the fire prevention code, as amended.

(7) Any illegal or unlawful acts caused, allowed or permitted to be done by the permittee or his designated manager or agent.

(8) The permit fees or the inspection fees have not been paid.

(Ord. No. 44,248, § 5, 5-17-11; Ord. No. 47,229, § 19, 5-22-18, eff. 7-1-18)

Sec. 17-45.5. Fire permit transfer.

A fire permit issued under this chapter shall not be transferable without the express written approval of the fire official and then only when the transferee shall meet all the requirements for an original permit.

(Ord. No. 44,248, § 5, 5-17-11)

Sec. 17.1-46. Fire watch.

Whenever in the opinion of the fire official it is essential for public safety in any place of public assembly or any other place where people congregate, due to the number of persons, or the nature of the performance, exhibition, display, contest or activity, the fire official may require the owner, manager, operator, occupant, agent or lessee to have on site one or more persons engaged in fire watch activities. The fire watch shall remain in place at all times and in such manner as the fire official so designates. A fire watch may also be required for any property where the required fire and life safety equipment fails to operate properly. The cost of the required fire watch shall be borne by the owner, manager, operator, occupant, agent or lessee. It shall be unlawful for any person to fail to have a fire watch as required by the fire official.

(Ord. No. 41,018, § 1, 4-8-03)

ARTICLE V. EMERGENCY MEDICAL SERVICES*

Sec. 17.1-47. Designation.

The division of emergency medical services is hereby designated as the emergency response agency for the City of Norfolk.

(Ord. No. 48,513, § 3, 9-28-21)

*__Editor's note—__Ord. No. 48,513, § 2, adopted Sept. 28, 2021, amended the title of Art. V to read as herein set out. The former Art. V was titled "Paramedical Services."

Sec. 17.1-48. Functions.

The division of emergency medical services shall be responsible for controlling and supervising the provision of non-hospital emergency and rescue services in the city to protect and promote the health, welfare and safety of the general public. Such services shall include but not be limited to rescues at accidents of any nature involving injured or ill individuals, entrapments, mass casualty and water rescues. The division shall be responsible for establishing regulations and protocols for the division and other agencies. It shall have other powers and duties as may be assigned by the council or the city manager.

(Ord. No. 48,513, § 4, 9-28-21)

Sec. 17.1-49. Charges for ambulance services.

(a) *[Payment responsibility.]* Payment of all charges for ambulance services shall be the responsibility of the individual receiving evaluation, treatment or ambulance transportation services from the department of fire-rescue.

(b) *[Definitions.]* The following definitions shall apply to ambulance charges:

(1) *Basic life support (BLS)* services shall be medical treatment or procedures provided to a patient as defined by the National EMS Education and Practice Blueprint for the EMT-Basic.

(2) *Advanced life support level 1 (ALS-1)* services shall be medical treatment or procedures provided to a patient beyond the scope of an EMT-basic as defined by the National EMS Education and Practice Blueprint.

(3) *Advanced life support level 2 (ALS-2)* services shall be defined as advanced life support (ALS) services provided to a patient including any of the following medical procedures: (a) manual defibrillation/cardio version; (b) endotracheal intubation; (c) central venous line; (d) cardiac pacing; (e) chest decompression; (f) surgical airway; or (g) intraosseous line, along with the administration of three (3) or more medications.

(4) *Specialty care transport (SCT)* services shall be defined as medical treatment or procedures provided to a critically injured or ill patient during an interhealth care facility transport. Such medical treatment or procedures shall be beyond the scope of practice for an EMT-paramedic as defined by the National EMS Education and Practice Blueprint.

(5) *Ground transport mileage (GTM)* shall be assessed in statute miles from the location of an incident scene, or center point of a fire demand zone where an incident scene or address is located, to a hospital or other facility where a patient is transported.

(c) *Charges.*

(1) The charge for nonemergency or emergency incident response and evaluation or treatment by the department of fire-rescue, with no ambulance transportation provided, shall be eighty dollars ($80.00).

(2) The charge for nonemergency incident response and ambulance transport by the department of fire-rescue, with BLS services provided to a patient, shall be one hundred ninety dollars ($190.00).

(3) The charge for emergency incident response and ambulance transport by the department of fire-rescue, with BLS services provided to a patient, shall be five hundred five dollars ($505.00).

(4) The charge for nonemergency incident response and ambulance transport by the department of fire-rescue, with ALS-1 services provided to a patient, shall be two hundred thirty dollars ($230.00).

(5) The charge for emergency incident response and ambulance transport by the department of fire-rescue, with ALS-1 services provided to a patient, shall be six hundred ten dollars ($610.00).

(6) The charge for emergency incident response and ambulance transport by the department of fire-rescue, with ALS-2 services provided to a patient, shall be eight hundred fifty dollars ($850.00).

(7) The charge for emergency incident response and ambulance transport by the department of fire-rescue, with SCT services provided to a patient, shall be six hundred twenty-five dollars ($625.00).

(8) The charge for ground transport mileage (GTM) on ambulances operated by the department of fire-rescue shall be eleven dollars ($11.00) per loaded mile which shall be charged in addition to transport charges defined by subsections (2), (3), (4), (5), (6) and (7) above.

(9) Health care facilities shall be defined as, but not limited to, hospitals, nursing homes, advanced care facilities, psychiatric facilities, outpatient care facilities, minor emergency care centers, physicians' offices or any other facility where Virginia licensed or certified health care professionals are routinely present and provide medical treatment for patients.

(10) A charge of two hundred dollars ($200.00), in addition to the ambulance transport and ground mileage charge as defined by subsections (2), (3), (4), (5), (6) and (7), above, shall be billed to an originating health care facility (health care facility defined by (9), above) requesting ambulance transport services for a patient when it is determined by the department of fire-rescue that the patient did not have a life threatening or potentially life threatening medical condition.

(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 40,314, § 1, 5-15-01; Ord. No. 41,261, § 1, 12-2-03; Ord. No. 41,839, § 7, 5-17-05; Ord. No. 45,084, § 15, 5-14-13, eff. 7-1-13; Ord. No. 47,229, § 20, 5-22-18, eff. 7-1-18)

Sec. 17.1-50. Unlawful summonsing ambulance for non-life-threatening illness or injury.

It shall be unlawful for any person to summon a department of fire-rescue ambulance for any reason other than a legitimate complaint of

illness or injury that must reasonably constitute a life-threatening or potentially life-threatening condition or other medical condition that may require immediate evaluation or treatment by emergency personnel.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03)

Secs. 17.1-51—17.1-59. Reserved.

Sec. 17.1-60. Fee for patient care reports and duplicate bills.

Unless otherwise prohibited by law, the department of fire-rescue is hereby authorized to furnish copies of patient care reports to patients. The charge for copies of such patient care reports shall not exceed the actual cost incurred to search for, access, duplicate, and supply the requested records. The fire chief shall distribute, without charge copies of such patient care reports to officials of the city or to other governmental agencies upon request.
(Ord. No. 39,972, § 2, 5-23-00; Ord. No. 41,261, § 1, 12-2-03; Ord. No. 42,360, § 1, 8-15-06)

Secs. 17.1-61—17.1-64. Reserved.

ARTICLE VI. FIRE FALSE ALARMS

Sec. 17.1-65. Definitions.

For the purpose of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Commercial unit means a unit not used entirely for residential purposes.

False alarm means any fire alarm signal communicated, directly or indirectly, to the emergency communications center which is not generated by actual or potential fire or other life or property threatening activity requiring immediate fire or rescue response. False alarms include negligently or accidentally activated signals; signals which are the result of faulty, malfunctioning or improperly installed or maintained equipment; signals which are purposely activated to summon fire or rescue personnel in nonemergency situations; and alarm signals for which the actual cause is not determined. False alarms shall not include signals activated by unusually severe weather conditions or other causes which are identified and determined by the fire chief or his designee to be beyond the control of the user.

Fire alarm system means any device or system which transmits a signal visibly, audibly, electronically, mechanically or by any combination of these methods, directly or indirectly, to the emergency communications center which indicates a fire or other threat to life or property at a premises requiring an immediate response by fire or rescue personnel to the scene.

Nonemergency situation means any set of circumstances not involving perceived, actual or potential activity that constitutes an immediate danger to life or property.

Person means any individual, firm, owner, sole proprietorship, partnership, corporation, unincorporated association, governmental body, executor, trustee administrator, guardian, agent, occupant or other legal entity.

Premises means a single occupancy apartment, home or business with an alarm system within its control or a multiple occupancy apartment, home or business with a common fire alarm system where fire alarms for the individual units are tied to a common alarm panel operated and controlled by the owner or his agent.

User means the occupant of any premises equipped with a fire alarm system or the owner of such premises if they are unoccupied or the owner of such premises for which a common fire alarm system is provided and tied to a common alarm panel operated and controlled by that owner or his agent.
(Ord. No. 47,229, § 21, 5-22-18, eff. 7-1-18)

Sec. 17.1-66. Fire alarm system user registration.

(a) Every fire alarm system user shall, within sixty (60) days of the effective date of this article, register with the city as a fire alarm system user.

(b) No person shall use a new fire alarm system without first registering such alarm system with the city.

(c) When the possession of the premises at which the fire alarm is maintained is transferred, the new user obtaining possession shall register within thirty (30) days of gaining possession.

(d) Alarm system registrations are not transferable.

(e) The user must report updated information whenever information on the alarm system registration form changes.

(f) There shall be no fee to register as a fire alarm system user.

(g) It shall be unlawful for any person to fail to register as a user.
(Ord. No. 47,229, § 21, 5-22-18, eff. 7-1-18)

Sec. 17.1-67. Fire alarm company operator registration.

(a) Every fire alarm company operator shall, within sixty (60) days of the effective date of this article, register with the city. The application for registration shall include the name of the alarm company operator, names of owners and officers, and the services offered by the alarm company operator and such other information deemed necessary by the city. It shall be the responsibility of the fire alarm company operator to notify the city in writing of any subsequent changes in the information provided on the application for registration.

(b) There shall be no fee to register as a fire alarm company operator.

(c) It shall be unlawful for any person to fail to register as a fire alarm company operator.
(Ord. No. 47,229, § 21, 5-22-18, eff. 7-1-18)

Sec. 17.1-68. Duties of the fire alarm system user.

A fire alarm system user shall:

(a) Maintain the alarm system in good working order.

(b) Provide the alarm company the registration number issued by the city.

(c) Respond and cause a representative to arrive to the alarm system's location with thirty (30) minutes when notified by the city.

(d) Not manually activate an alarm for any reason other than an occurrence of an event that the alarm system was intended to report, or for a scheduled fire drill or alarm testing. The user shall notify the city prior to conducting a fire drill or alarm testing.

(e) Obtain a new registration if there is a change in address or ownership of a premises.
(Ord. No. 47,229, § 21, 5-22-18, eff. 7-1-18)

Sec. 17.1-69. Duties of the fire alarm company operators.

Any person engaged in the fire alarm business in the city shall:

(a) Obtain and maintain the required commonwealth and city license(s).

(b) Be able to provide the name, address, and telephone number of the user or a designee, who can be called in an emergency, twenty-four (24) hours a day; and be able to respond to an alarm call, when notified, within two (2) hours.

(c) Be able to provide the most current contact information for the user.

(d) Prior to activation of the alarm system, the alarm company must provide instructions explaining the proper operation of the alarm system to the user.

(e) Provide written information of how to obtain service from the alarm company for the alarm system to the user.

(f) Provide the user registration number to the city to facilitate dispatch and/or cancellations, and communicate any available information about the alarm to the city.

(g) Communicate a cancellation to the city as soon as possible following a determination that response is unnecessary.
(Ord. No. 47,229, § 21, 5-22-18, eff. 7-1-18)

Sec. 17.1-70. Fire false alarms prohibited; service fee.

(a) It shall be unlawful for any person to send a false alarm.

(b) For a non-commercial unit, each false alarm, after three (3) false alarms in a 6-month period, originating from the same location, shall be assessed a service fee of seventy-five dollars ($75.00) per incident.

(c) For a commercial unit, each false alarm, after three (3) false alarms in a 6-month period, originating from the same location, shall be assessed a service fee of one hundred fifty dollars ($150.00) per incident.

(d) The fire chief or his designee shall bill each user responsible for the false alarm with the appropriate service fee. All such fees shall be paid within thirty (30) days of billing.

(e) The fire chief or his designee may require the user to provide a full inspection and report for each fire alarm system which experiences recurring false alarms, or such other information and testing the fire chief deems necessary.
(Ord. No. 47,229, § 21, 5-22-18, eff. 7-1-18)

Sec. 17.1-71. Exception.

This article shall not apply to any alarm system used, operated, or installed on any premises owned, leased, occupied, or under the control of the city.
(Ord. No. 47,229, § 21, 5-22-18, eff. 7-1-18)

Chapter 18

RESERVED*

*__Editor's note—__Ord. No. 40,751, § 1, adopted June 25, 2002, repealed in its entirety Ch. 18, which pertained to food and food establishments and derived from Code 1958, §§ 21-1—21-4, 21-6, 21-6.1, 21-7—21-19, 21-21—21-23, 21-25—21-27, 21-31, 21-34, 21-35, 21-37, 21-38, 21-40, 21-43, 21-44, 21-47, 21-50—21-53, and 21-73—21-78; Ord. No. 34,841, §§ 1, 3, adopted Dec. 22, 1987; Ord. No. 36,017, §§ 1—4, adopted May 22, 1990; Ord. No. 36,339, § 1, adopted Feb. 19, 1991; Ord. No. 36,417, § 1, adopted May 14, 1991; Ord. No. 37,527, § 1, adopted Feb. 22, 1994; and Ord. No. 39,281, § 1, adopted Aug. 18, 1998. Similar provisions can be found in Ch. 18.1.

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Chapter 18.1

FOOD AND FOOD ESTABLISHMENTS*

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Article IV. Bed and Breakfast Establishments and Group Homes

§ 18.1-38. Application.
§ 18.1-39. Definitions.
§ 18.1-40. Regulations.

***Charter reference—**Authority of city to inspect and regulate food, § 2(23).

Cross references—Hotels and similar establishments, Ch. 22; tax on purchase of food and beverages, § 24-252 et seq.

State law references—Food and drink generally, Code of Virginia, § 3.1-361 et seq.; authority of city to regulate sale, preparation and handling of food, § 35.1-9.

ARTICLE I. IN GENERAL

Sec. 18.1-1. Adoption of United States Food and Drug Administration/Public Health Service 2001 Model Food Code.

(a) Chapters 1 through 8, inclusive, and all appendices and annexes of the United States Food and Drug Administration/Public Health Service 2001 Model Food Code ("FDA Food Code"), as adopted and promulgated by the United States Food and Drug Administration/Public Health Service ("FDA/USPHS"), including such chapters, appendices and annexes, as may hereafter be amended from time to time, but excepting those sections of the FDA Model Food Code identified in Section 18.1-2, are hereby adopted and incorporated in their entirety into this chapter as if fully set forth herein. In the event of conflict or inconsistency between this chapter and the FDA Model Food Code, the provisions of this chapter shall control. When used in the FDA Model Food Code, the term "health authority" shall mean the director or his designee.

(b) The director is hereby authorized to prepare and promulgate regulations consistent with this chapter that are designed to carry out the purposes and provisions and to assist in the administration and enforcement of this chapter. In promulgating regulations, the director shall consider accepted standards of health, hygiene, sanitation, safety and physical plant management. Any regulations prepared by the director shall not become effective until they have been presented to and approved by city council. The director may assess fees as appropriate to cover the administrative costs for implementation of programs.

(c) A certified copy of the FDA Model Food Code shall be maintained by the director at the main administrative office of the health department and shall be available for review by members of the public.
(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-2. Modifications to FDA Food Code.

(a) The following sections of the FDA Food Code, as amended, are modified to read as follows:

(1) *Section 1-201.10(35):* "Food employee" means an individual working with unpackaged food, food equipment or utensils, food contact surfaces, or packaged foods.

(2) *Section 1-201.10(36)(b):* Add new subsections (ii), (iii), (iv) to read as follows:

(ii) An establishment that offers prepackaged foods;

(iii) A produce stand; and

(iv) A food processing plant.

(3) *Section 1-201.10(73):* "Regulatory authority" means the local, state, or federal enforcement body or authorized representative having jurisdiction over the food establishment, including the director of public health.

(4) *Section 3-201.11(B):* The subsection shall read as follows:

(B) Food prepared in a private home located within the corporate limits of the City of Norfolk shall not be used or offered for human consumption in a food establishment unless it is prepared in a kitchen that has been inspected and approved by the Virginia Department of Agriculture and Consumer Services and limited to the following foods:

(1) Popcorn, popcorn balls, cotton candy, and candies, jams and jellies not considered to be low-acid or acidified low-acid food products;

(2) Dried fruits, dry herbs, dry seasonings, dry mixtures, coated and uncoated nuts, dried pasta, dry baking mixes, roasted coffee, and dried tea;

(3) Vinegars and flavored vinegars;

(4) Cereals, trail mixes, granola, and baked goods that do not require time or temperature control after preparation;

(5) Pickles and other acidified vegetables that have an equilibrium pH value of 4.6 or lower; and

(6) Honey produced from hives owned by the owner and operator of the home kitchen.

(5) *Section 3-302.12:* Add to the end of the section the following sentence: Food containers shall be labeled in a language that is understood by the regulatory authority and by the employee.

(6) *Section 3-306.14:* Add to the end of the subsection the following subsection:

(c) There shall be no reservice of food on self-service food bars.

(7) *Section 6-501.115(B):* Add new subsection (6) to read as follows:

(6) Dogs in outdoor dining areas if:

a. The outdoor dining area is not fully enclosed with floor to ceiling walls and is not considered a part of the interior physical facility.

b. The outdoor dining area is equipped with an entrance that is separate from the main entrance to the food establishment and the separate entrance serves as the sole means of entry for patrons accompanied by dogs.

c. A sign stating that dogs are allowed in the outdoor dining area is posted at each entrance to the outdoor dining area in such a manner as to be clearly observable by the public.

d. A sign within the outdoor dining area stating the requirements as specified in subdivisions 6 e, 6 f, and 6 g of this subsection is provided in such a manner as to be clearly observable by the public.

e. Food and water provided to dogs is served using equipment that is not used for service of food to persons or is served in single-use articles.

f. Dogs are not allowed on chairs, seats, benches, or tables.

g. Dogs are kept on a leash or within a pet carrier and under the control of an adult at all times.

h. Establishment provides effective means for cleaning up dog vomitus and fecal matter.

(8) *Section 8-302.14(A):* (A) The name, birth date, Social Security number, mailing address, telephone number, and signature of the person applying for the permit and the name, mailing address and location of the food establishment.

(9) *Section 8-304.10(A):* (A) At the time the permit is first issued, the regulatory authority shall make the permit holder aware of locations where the permit holder may review this code.

(b) The following subsections of the FDA Food Code as amended are deleted:

(1) 1-201.10(36)(C).

(2) 4-301.12(C)(5), (D)(1)(2)(a), (b), (c), (d), (E).

(Ord. No. 40,751, § 2, 6-25-02; Ord. No. 44,624, § 1, 4-10-12; Ord. No. 47,210, § 1, 4-24-18; Ord. No. 47,543, § 1, 2-26-19; Ord. No. 47,828, § 1, 11-26-19)

Sec. 18.1-3. Definitions.

(a) *Generally.* The definitions set out in this section shall apply in the interpretation and enforcement of this chapter.

(b) *Director of environmental health.* The term "director of environmental health" shall mean the director of the environmental health division of the department of public health, or his designee.

(c) *Director of health services.* The term "director of health services" shall mean the director of health services provided by the department of public health, or his designee.

(d) *Director of laboratories.* The term "director of laboratories" shall mean the director of the laboratory division of the department of public health, or his designee.

(e) *Director of public health.* The term "director of public health" shall mean the director of the department of public health of the city, or his designee.

(f) *Food service employee* or *food employee.* The term "food service employee" or "food employee" shall mean any person who handles food or drink during storage, preparation or serving, or who comes in contact with any eating or cooking utensils or food service equipment, or who is employed in an area on the premises in which food or drink is stored, prepared or served.

(g) *Food service manager.* The term "food service manager" shall mean an operator or other person who has completed the requirements for, and obtained, a food service manager card issued by the director of public health or such director's authorized representatives.

(h) *Operator.* The term "operator" shall mean any person who, by contract, agreement or ownership, takes the responsibility for the operation of a food establishment.

(i) *Person.* The term "person" shall include an individual, firm, owner, sole proprietorship, partnership, partner, corporation, incorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant or other legal entity.

(j) *Risk assessment.* The term "risk assessment" shall mean an inspection of a food establishment and an evaluation thereof by the director of public health or such director's authorized representatives to determine the potential for a foodborne illness to occur as a result of food manufactured, prepared, packed, stored, sold or distributed by the food establishment; such an assessment may include an analysis on one or more occasions of food manufactured, prepared, packed, stored, sold or distributed by the food establishment.
(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-4. Violation of chapter generally.

Unless otherwise specifically provided, any person who shall violate any provision of this chapter shall be guilty of a class 1 misdemeanor. Each day of violation shall constitute a separate offense. In addition to any penalty, a judge hearing the case may order the violation corrected. Each day's default in such correction shall constitute a separate offense.
(Ord. No. 40,751, § 2, 6-25-02)

Secs. 18.1-5—18.1-9. Reserved.

ARTICLE II. FOOD ESTABLISHMENTS GENERALLY

Sec. 18.1-10. Application of chapter generally.

In addition to the places, entities and establishments regulated elsewhere in this article, the provisions of this article shall be applicable, without limitation, to food-vending machines, trucks, pushcarts and wagons for the sale or display of food products, delivery vehicles used in the delivery of meats and products of bakeries and confectioners and vehicles used in the transportation, sale or delivery of food. Nothing contained in this section shall be construed to limit in any way the application of the provisions and requirements of this chapter to boarding houses, tourist homes, food establishments and itinerant restaurants. Notwithstanding the foregoing, any home kitchen operation that remains in compliance with all of the following criteria shall be exempt from the provisions of this article:

(a) For any food listed in subsection 3-201.11(B), as amended, that is prepared in the home kitchen, the product is labeled and sold in accordance with the requirements and limitations set forth in state laws and regulations;

(b) The operation remains in substantial compliance with all applicable regulations and requirements of the Food Safety Program of the Virginia Department of Agriculture and Consumer Services; and

(c) The operation is not in violation of any state statute, regulation or local ordinance.

(Ord. No. 40,751, § 2, 6-25-02; Ord. No. 44,624, § 2, 4-10-12; Ord. No. 47,543, § 2, 2-26-19; Ord. No. 47,828, § 2, 11-26-19)

Sec. 18.1-11. Application of chapter to temporary food establishments.

A temporary food establishment shall comply with all sections of this chapter which are applicable to its operation; except, that the director of public health may modify specific requirements for physical facilities when, in his opinion, no imminent health hazard will result. The director of public health may augment the requirements of this chapter as to temporary food establishments when needed to assure the service of safe food and may prohibit the sale of certain potentially hazardous food at such establishments.

(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-12. Submission and approval of plans and specifications for construction or alteration.

Plans and specifications for the construction of new food establishments or of major alterations or additions in the construction or arrangement of the premises of any food establishment shall be submitted to the director of public health. Approval in writing of such plans and specifications must be given by either the director of public health, the director of health services or the director of environmental health.

(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-13. Approval of structural alterations or additions.

(a) Any changes, alterations or additions in the structure or arrangement of the premises of a food establishment or of the equipment therein must be approved, in writing and after a personal inspection of the premises, by the director of public health or an authorized representative thereof.

(b) The maintenance and repair of premises or equipment necessary for sanitary operation are excluded from the provision of this section.

(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-14. Operating permit—Required; application; inspection prerequisite to issuance; refusal.

(a) It shall be unlawful for any person to operate a food establishment within the city who does not possess a permit issued by the director of public health. Application for such permit shall be made in writing on a form prescribed by the director of public health, wherein the applicant shall agree to conform to the ordinances, rules and regulations governing such places and to permit such examination and inspections as may be deemed necessary by the director of public health.

(b) It shall be the duty of the director of public health, prior to the issuance of a permit required by this section, to cause an inspection to be made of the premises in which the business is to be conducted and to refuse the permit if the conditions of the premises do not conform to the requirements of this chapter. The director of public health may refuse such permit to an applicant with a past record of unsatisfactory compliance in the operation of a food establishment. If refused, the applicant will be granted a hearing before the director of public health.

(c) The commissioner of the revenue shall not issue a license under chapter 24 of this Code for the conduct of a food establishment without a certificate of the director of public health, endorsed upon the license application, to the effect that all the rules and regulations of the department of public health applicable to the conduct of food establishments have been complied with fully.

(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-15. Same—Not transferable.

The permit referred to in section 18.1-14 is not transferable to another person or from one location to another.
(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-16. Same—Suspension and revocation.

(a) If the operation of any food establishment is not conducted in conformity with the provisions of this chapter, the permit for the operation thereof may be suspended or revoked, until such food establishment is made to conform to the provisions of this chapter.

(b) The permit to operate a food establishment may be suspended only by the director of public health or his designee, after an inspection has been made by the person duly authorized to suspend the permit. Suspension of a permit is a temporary measure to meet immediate health hazards resulting from the violation of the provisions of this chapter.

(c) The permit to operate a food establishment may be revoked only by the director of public health, or in his absence, by the director of health services, after an inspection of such food establishment and consideration of the operator's record of operation by such director of public health or director of health services so revoking the same and after the operator of such food establishment has been given an opportunity to be heard by the director of public health or his designee.
(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-17. Food service card.

(a) It shall be unlawful for any person to work or be employed in any capacity in any food establishment unless such person shall have first completed the requirements for, and obtained, a food service employee or food service manager card issued by the director of public health of the city or such director's authorized representatives.

(b) It shall be unlawful for any person to employ or permit another person to remain employed in any place or establishment referred to in subsection (a), above, unless such person holds a valid food service card issued pursuant to this chapter.

(c) Food service cards required by this chapter shall be issued by the director of public health only to food service employees and food service managers who shall furnish such information and laboratory specimens and submit to such physical examination and tests as the director of public health may require and/or who have received such instructions in personal hygiene and food establishment sanitation as may be offered or required by the director of public health; provided, however, that the director of public health may, when in his judgment it seems proper, issue a temporary card to an applicant. Such temporary card shall be effective only for so many days as the director of public health shall indicate thereon in writing, not to exceed thirty (30) days.

(d) A food service card issued by another city, county or organization within Virginia shall be honored in the city until its expiration, provided that requirements to obtain such card were equal or greater than those set forth in this article. Determinations concerning such requirements shall be made by the director of public health.

(e) Such fees as the director of public health deems appropriate for each food service card shall be paid by the applicant to the health department cooperative budget to defray the necessary administrative expenses.

(f) Each food service card issued shall remain in force until date of expiration or until suspended or revoked by the director of public health for cause. Temporary food service cards, referred to in subsection (c), above, and food service cards accepted by reciprocity as set forth in subsection (d), above, may also be suspended or revoked by the director of public health for cause.

(g) A food service card issued under the provisions of this chapter shall be produced by the food service employee or food service manager for inspection upon the request of the director of public health or his designated representative.

(h) Upon the expiration of the food service card, the holder thereof may renew the same by payment of the fee prescribed by subsection (e), above, and by successfully completing such training classes and/or tests as the director of public health directs. The date, time and location of said classes or tests shall be determined by the director of public health.

(i) A food service card issued under this chapter shall not be transferred to or used by any person other than the person to whom it is issued. The food service card is the property of the employee.

(j) The director of public health shall have the authority to waive the requirements of this section for special events of a temporary nature. Such waiver shall be in writing.
(Ord. No. 40,751, § 2, 6-25-02)

Cross reference—Classification of and penalties for violations, § 1-11.

Sec. 18.1-18. Food service manager; required, exemptions.

(a) It shall be unlawful for any person to operate a food establishment unless such person currently employs a food service manager to supervise the establishment's food service employees; the operator shall post in a conspicuous place in the food establishment, in letters not less than one inch in size, the name of each food service manager currently employed.

(b) Except as specifically provided for in subsection (c), below, no food establishment owner or operator shall employ one food service manager to supervise the food service employees of two (2) or more food establishments.

(c) A food establishment owner or operator who owns or operates two (2) or more food establishments may employ one food service manager to supervise the food service employees of a maximum of two (2) of such food establishments in the discretion of the director of public health following a risk assessment of each of such food establishments.

(d) No food service manager shall undertake employment as such a manager to supervise the food service employees of more than one food establishment, except under the circumstances described in subsection (c), above.

(e) The following food establishments are exempt from the provisions of this section: (i) food establishments that exclusively serve, sell or distribute prepackaged foods which are contained in securely sealed or wrapped bottles, cans, cartons or other similar containers; (ii) temporary food establishments in the discretion of the director of public health following a risk assessment thereof; and (iii) such other food establishments designated by the director of public health in his or her discretion following a risk assessment thereof.
(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-19. Fees; risk assessments.

Such fees as the director of public health deems appropriate for each risk assessment shall be paid by the applicant to the health department cooperative budget to defray the necessary administrative expenses.
(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-20. Examination and condemnation of unwholesome or adulterated food.

(a) Samples of food, drink and other substances may be taken from any food establishment and examined by the director of public health, the director of health services, the director of environmental health or the director of laboratories, as often as may be necessary for the detection of unwholesomeness or adulteration. Any such officer may condemn and forbid the sale of, or cause to be removed or destroyed, any food or drink which he may suspect to be unwholesome or adulterated.

(b) A laboratory swab test shall be taken in accordance with standard methods, whenever deemed necessary by any officer named in subsection (a), above. The presence of bacterium coli shall be considered evidence of unwholesomeness or adulteration.
(Ord. No. 40,751, § 2, 6-25-02)

State law reference—Similar provisions, Code of Virginia, § 3.1-368.

Secs. 18.1-21—18.1-29. Reserved.

ARTICLE III. RESERVED*

Secs. 18.1-30—18.1-37. Reserved.

ARTICLE IV. BED AND BREAKFAST ESTABLISHMENTS AND GROUP HOMES

Sec. 18.1-38. Application.

This article shall apply to bed and breakfast establishments and group homes.
(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-39. Definitions.

Bed and breakfast. An operation that prepares and offers food only to guests, is owner occupied, the number of available guest bedrooms does not exceed six (6), breakfast is the only meal offered and the number of guests served does not exceed eighteen (18).

Group home. A private or public institutional housing facility that provides living quarters and meals for twelve (12) or less recipients.
(Ord. No. 40,751, § 2, 6-25-02)

Sec. 18.1-40. Regulations.

In addition to any other applicable regulations or Code provisions, the following requirements are applicable to all bed and breakfast establishments and group homes:

(1) The manual cleaning and drying of equipment and utensils shall include, as a minimum, thorough washing with adequate soap or detergent, thorough rinsing, and drying before storage or use. Drying may be by clean towels used for no other purpose.

(2) Home model dishwashers may be used in lieu of manual cleaning and drying of utensils. Home model dishwashers do not require a flow pressure device.

(3) A warewashing sink may be used for hand washing provided approved dispensers, soap, and single-use paper towels are provided.

(4) Floors, walls, and ceilings shall be in good repair and kept clean.

(5) Approved dispensers, soap and single-use paper towels shall be made available to accommodate hand washing.

(6) Live animals shall be allowed in the facility but shall not be fed using the same equipment or utensils that are used to feed humans.

(Ord. No. 40,751, § 2, 6-25-02)

*__Editor's note—__Ord. No. 45,119, § 2, adopted May 21, 2013, repealed Art. III, §§ 18.1-30—18.1-37, which pertained to mobile ice cream vendors and derived from Ord. No. 40,751, § 2, adopted June 25, 2002. The user's attention is directed to § 42-36 et seq.

Chapter 19

GAMBLING*

§ 19-1. Definitions.
§ 19-2. Illegal gambling generally.
§ 19-3. Winning by fraud.
§ 19-4. Permitting gambling to continue in one's premises.
§ 19-5. Aiding or abetting operation of illegal gambling activity.
§ 19-6. Illegal possession of gambling device.
§ 19-7. Forfeiture of money, gambling devices, etc., seized from illegal gambling enterprise.
§ 19-8. Certain acts not deemed "Consideration" in prosecution under chapter.
§ 19-9. Exceptions from chapter—Contests of speed or skill.
§ 19-10. Same—Games of chance in private residences.
§ 19-11. Same—Bingo games, raffles, etc., permitted by state law, etc.
§ 19-12. Immunity of witness testifying in prosecution under chapter; compulsory testimony.

*Cross references—Conviction for gambling violations as grounds for suspension or revocation of permit for recreation or amusement clubs, § 5-121; bingo and raffles, § 5-138 et seq.; gambling in parks, § 30-77; gambling in Town Point Park, § 30-274.

Sec. 19-1. Definitions.

(a) *Generally.* For the purposes of this chapter, certain words and phrases shall have the meanings ascribed to them by this section. The intent of this chapter is to limit gambling in Norfolk to that approved by the general assembly.

(b) *Gambling device.* A "gambling device" includes:

(1) Any device, machine, paraphernalia, equipment or other thing, including books, records and other papers, which are actually used in an illegal operation or activity.

(2) Any machine, apparatus, implement, instrument, contrivance, board or other thing, including but not limited to, those depending upon the insertion of a coin or other object for their operation, which operates, either completely automatically or with the aid of some physical act by the player or operator, so that, depending upon elements of chance, it may eject something of value or determine the prize or other thing of value to which the player is entitled; provided, that the return to the user of nothing more than additional chances or the right to use such machine is not deemed something of value within the meaning of this subparagraph; and provided further, that machines that only sell or entitle the user to items of merchandise of equivalent value that may differ from each other in composition, size, shape or color, shall not be deemed gambling devices within the meaning of this subparagraph.

When used for illegal gambling such devices are no less gambling devices if they indicate beforehand the definite result of one or more operations but not all the operations, nor are they any less gambling devices if, apart from their use or adaptability as such, they also sell or deliver something of value on a basis other than chance.

(c) *Illegal gambling.* Except as approved by the general assembly, the making, placing or receipt of any bet or wager in the city of money or other thing of value, made in exchange for a chance to win a prize, stake or other consideration or thing of value, dependent upon the result of any game, contest or other event the outcome of which is uncertain or a matter of chance, whether such game, contest or event occurs or is to occur inside or outside the limits of this city, shall constitute illegal gambling.

(d) *Operator.* The term "operator" includes any person, firm or association of persons who or which conducts, finances, manages, supervises, directs or owns all or part of an illegal gambling enterprise, activity or operation.

(Code 1958, § 31-26; Ord. No. 29,730, § 1, 11-21-78; Ord. No. 47,540, § 1, 2-26-19)

State law reference—Similar provisions, Code of Virginia, § 18.2-325.

Sec. 19-2. Illegal gambling generally.

Except as otherwise provided in this chapter, any person who illegally gambles shall be guilty of a Class 3 misdemeanor. If an association or pool of persons illegally gamble, each person therein shall be guilty of illegal gambling.

(Code 1958, § 31-26; Ord. No. 29,730, § 1, 11-21-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-326.

Sec. 19-3. Winning by fraud.

If any person, while gambling, cheats or by fraudulent means wins or acquires for himself or herself or another, money or any other valuable thing, such person shall be fined no less than five (5) nor more than ten (10) times the value of such winnings. This penalty shall be in addition to any other penalty imposed under this chapter.

State law reference—Similar provisions, Code of Virginia, § 18.2-327.

Sec. 19-4. Permitting gambling to continue in one's premises.

If the owner, lessee, tenant, occupant or other person in control of any place or conveyance knows, or reasonably should know, that it is being used for illegal gambling, and permits such gambling to continue without having noti-

fied a law enforcement officer of the presence of such illegal gambling activity, such person shall be guilty of a Class 1 misdemeanor.

Cross reference—Houses and other places kept for purposes of illegal gambling, § 29-12.

State law reference—Similar provisions, Code of Virginia, § 18.2-329.

Sec. 19-5. Aiding or abetting operation of illegal gambling activity.

Any person, other than those specified in other sections of this chapter, who knowingly aids, abets or assists in the operation of an illegal gambling activity, shall be guilty of a Class 2 misdemeanor.

State law reference—Similar provisions, Code of Virginia, § 18.2-330.

Sec. 19-6. Illegal possession of gambling device.

A person is guilty of illegal possession of a gambling device when such person manufactures, sells, transports, rents, gives away, places or possesses, or conducts or negotiates any transaction affecting or designed to affect ownership, custody or use of, any gambling device, while believing or having reason to believe that such device is to be used in the advancement of any unlawful gambling activity. Illegal possession of a gambling device shall constitute a Class 1 misdemeanor.

(Ord. No. 30,096, § 1, 8-28-79)

State law reference—Similar provisions, Code of Virginia, § 18.2-331.

Sec. 19-7. Forfeiture of money, gambling devices, etc., seized from illegal gambling enterprise.

All money, gambling devices, office equipment and other personal property used in connection with an illegal gambling enterprise or activity, and all money, stakes and things of value received or proposed to be received by a winner in any illegal gambling transaction, which are lawfully seized by any law-enforcement officer or which shall lawfully come into such officer's custody, shall be forfeited to the city by order of the court in which a conviction under this chapter is obtained. Such court shall order all money so forfeited to be paid over to the city and, by order, shall make such disposition of other property so forfeited as the court deems proper, including the award of such property to any city or state agency or charitable organization for lawful purposes; or, in case of the sale thereof, the proceeds therefrom to be paid over to the city. Such forfeiture shall not extinguish the rights of any person, without knowledge of the illegal use of such property, who is the lawful owner or who has a lien on the same which has been perfected as provided by law.

Charter reference—Forfeiture to city of property used for gambling in violation of ordinance, § 2(e).

State law reference—Similar provisions, Code of Virginia, § 18.2-336.

Sec. 19-8. Certain acts not deemed "Consideration" in prosecution under chapter.

If any prosecution under this chapter, no consideration shall be deemed to have passed or been given because of any person's attendance upon the premises of another; his execution, mailing or delivery of an entry blank; his answering of questions, verbally or in writing; his witnessing of a demonstration or other proceeding; or any one or more thereof, where no charge is made to, paid by, or any purchase required of him in connection therewith.

State law reference—Similar provisions, Code of Virginia, § 18.2-332.

Sec. 19-9. Exceptions from chapter—Contests of speed or skill.

(a) Nothing in this chapter shall be construed to prevent any contest of speed or skill between men, animals, fowl or vehicles, where participants may receive prizes or different percentages of a purse, stake or premium dependent upon whether they win or lose, or dependent upon their position or score at the end of such contest.

(b) Any participant who, for the purpose of competing for any such purse, stake or premium offered in any such contest, knowingly and fraudulently enters any contestant other than the contestant purported to be entered or know-

ingly and fraudulently enters a contestant in a class in which such contestant does not belong, shall be guilty of a Class 3 misdemeanor.

State law reference—Similar provisions, Code of Virginia, § 15.2-333.

Sec. 19-10. Same—Games of chance in private residences.

Nothing in this chapter shall be construed to make it illegal to participate in a game of chance conducted in a private residence, provided such private residence is not commonly used for such games of chance and that there is no operator, as defined in section 19-1.

(Code 1958, § 31-26; Ord. No. 29,730, § 1, 11-21-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-334.;

Sec. 19-11. Same—Bingo games, raffles, etc., permitted by state law, etc.

Nothing in this chapter shall apply to any bingo game, raffle or instant bingo, as defined in section 18.2-340.1 of the Code of Virginia conducted pursuant to and in accord with the provisions of section 18.2-335 [18.2-340.1 et seq.] of the Code of Virginia or article V of chapter 5 of this Code.

(Code 1958, § 31-29.1; Ord. No. 30,096, § 1, 8-28-79)

Sec. 19-12. Immunity of witness testifying in prosecution under chapter; compulsory testimony.

No witness, called by the city or by the court, giving evidence in any prosecution under this chapter, shall ever be prosecuted for the offense concerning which such witness testifies. Such witness shall be compelled to testify and for refusing to do so may be punished for contempt.

State law reference—Similar provisions, Code of Virginia, § 18.2-337.

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Chapter 20

GARAGES, GASOLINE SUPPLY STATIONS AND AUTOMOBILE PARKING STATIONS*

§ 20-1. Permit from council when located near hospital, church, residence, etc.—Generally.
§ 20-2. Same—Application to be transmitted to city manager for investigation and report.
§ 20-3. Same—Conditions and restrictions.
§ 20-4. Same—Transfer.
§ 20-5. Same—Limitation on new application after one application refused or withdrawn.
§ 20-6. Precautions against fire in commercial garages.
§ 20-7. Garage keeper's report to police of automobile stored for longer than forty-eight hours.

*Cross references—Use of coin-operated dispensing devices at garages, service stations and automobile parking stations, § 17-10; license tax for automobile service stations, § 24-115; license tax for garages and parking lots, § 24-118; motor vehicle code, Ch. 25; provisions of weights and measures ordinance governing gasoline, § 48-64 et seq.

Sec. 20-1. Permit from council when located near hospital, church, residence, etc.—Generally.

(a) It shall be unlawful for any person to build or erect, or cause to be built or erected, or to maintain and operate, a commercial garage, gasoline supply station, automobile parking station or automobile service station, whether the same is located in a district wherein, under the zoning ordinance* of the city, the same is permissible or not, within six hundred (600) feet of any hospital, house of public worship, school, apartment house or private residence in the city, until application shall have been made to and a permit therefor obtained from the city council. No such permit shall be granted when it is the judgement of the council that the proposed location of the establishment is such as to constitute a hazard to the public safety of the city.

(b) Establishments referred to in subsection (a) above which were in operation on April 14, 1950, shall be permitted to so operate subject to any and all conditions in any permit existing therefor.

(c) Any person violating any of the provisions of this section shall be guilty of a Class 4 misdemeanor. (Code 1958, § 22-1)

Sec. 20-2. Same—Application to be transmitted to city manager for investigation and report.

The city clerk is hereby authorized and directed to transmit directly to the city manager, for investigation and report to the council at a subsequent meeting, each application for a permit required by section 20-1, when it is filed with him, without first submitting the same to the council. (Code 1958, § 2-6)

Sec. 20-3. Same—Conditions and restrictions.

(a) Every permit granted by the council pursuant to section 20-1 shall be subject to the following conditions and restrictions:

(1) Such permit shall not be transferable without the approval of the city manager.

(2) The construction of such garage or station, the arrangement of driveways and the location, number and capacity of pumps and tanks shall be in accordance with plans and specifications therefor submitted to and approved by the city manager.

(3) Any such garage or station shall be so constructed and arranged that patrons can be served without occupying or obstructing any portion of the public streets or highways.

(4) The number and capacity of pumps and tanks shall not be increased without the approval of the city manager.

(5) Should the operation of any such garage or station be discontinued at any time, the person to whom such permit is issued shall, at his own cost and expense, restore the sidewalks on which the same abuts to the same condition that such sidewalks were in immediately prior to the erection of the garage or station.

(6) Public comfort stations, one for males and one for females, shall be provided in connection with each such garage or station.

(7) Should the construction of any such garage or station be not commenced within six (6) months, or if commenced, be not completed within ten (10) months from the date of the permit therefor; or if, after completion, the garage or station is not operated as such for a period of four (4) months; or should the right of the person holding such permit to use the property on which such garage or station is located terminate, then, in either of such events, such permit shall ipso facto become null and void and of no further force and effect.

(b) The above conditions and restrictions shall be in addition to any condition and

*Cross reference—Zoning ordinance, App. A.

restriction contained in the ordinance granting such permit.

(c) The commencement of any work in connection with the construction of such garage or station shall be deemed an assent to all the conditions and restrictions provided by this section or any other ordinance of the city relating thereto.

(d) Upon the violation of any of the conditions and restrictions relating to such garage and station, the council shall have the right, in addition to any other remedies allowed by law, to revoke such permit, without notice thereof to the permittee. (Code 1958, § 22-2)

Sec. 20-4. Same—Transfer.

The director of community improvement is authorized to transfer permits heretofore or hereafter granted for the maintenance and operation of commercial garages, gasoline supply stations, automobile parking stations or automobile service stations, provided such transfers are made under the conditions and at the locations provided in the original permits. (Code 1958, § 22-3; Ord. No. 30,315, § 1, 3-11-80)

Sec. 20-5. Same—Limitation on new application after one application refused or withdrawn.

In every case in which an application for a permit under this chapter is refused by the council or withdrawn by the applicant, no other application for a permit for the operation of a similar establishment at the same location by the same applicant will be considered by the council until twelve (12) months after the date of such refusal or withdrawal. (Code 1958, § 22-4)

Sec. 20-6. Precautions against fire in commercial garages.

(a) The owner of each commercial garage within the limits of the city shall comply with the following requirements:

(1) Every such owner shall install and keep installed a sufficient supply of metal waste cans, with self-closing tops, to take care of all waste;

(2) Every such owner shall install one fire extinguisher, bearing the stamp of the Underwriters' Laboratories, for each two thousand (2,000) square feet of floor area, or any portion thereof, in the garage;

(3) Every such owner shall keep suspended from the wall of such garage one bucket of dry sand for every one thousand (1,000) square feet of floor area in the garage;

(4) Every such owner shall keep posted a sufficient number of "No Smoking" signs to make such a sign visible from every part of the garage.

(b) Any person failing to comply with any provision of this section shall be guilty of a Class 4 misdemeanor. (Code 1958, § 22-6)

Cross reference—Fire prevention and protection, Ch. 17.

Sec. 20-7. Garage keeper's report to police of automobile stored for longer than forty-eight hours.

(a) It is hereby made the duty of every person operating a garage where automobiles are kept or stored for rent or hire to report daily to the police department, upon forms to be prescribed by the chief of police, all automobiles remaining in such garage for a longer period than forty-eight (48) hours. Such report shall show the make, style, engine number and state license plate of each such automobile, and other information relating thereto required on the form prescribed by the director of chief of police; provided, however, that one report on any automobile shall be deemed to be sufficient.

(b) Any person failing to make the report required by this section shall be guilty of a Class 4 misdemeanor. (Code 1958, § 22-7)

State law reference—Report by garage keepers of unclaimed vehicles, Code of Virginia, § 46.1-11.

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Chapter 21

HEALTH PARLORS*

Article I. In General

§ 21-1. Definitions.
§ 21-2. Regulations of director of public health to implement chapter.
§ 21-3. Violations of chapter.
§ 21-4. General maintenance requirements.
§ 21-5. Continuous-use tanks and tubs.
§ 21-6. Lighting.
§ 21-7. Ventilation.
§ 21-8. Toilet facilities.
§ 21-9. Hand-washing facilities.
§ 21-10. Disposal of sewage.
§ 21-11. Storage and disposal of refuse.
§ 21-12. Use for sleeping quarters.
§ 21-13. Separate massage rooms for each sex.
§ 21-14. Dressing rooms for patrons.
§ 21-15. Linen, towels and disposable items.
§ 21-16. Common use of brushes, combs, towels and drinking utensils.
§ 21-17. Lotions, tonics, astringents, and balms.
§ 21-18. Cleaning of apparatus, tools, and instruments.
§ 21-19. Information as to employees to be furnished director of public health.
§ 21-20. Health of employees generally.
§ 21-21. Health certificate for masseur or masseuse or massage therapist.
§ 21-22. Clothing and cleanliness of employees.
§ 21-23. Service when persons exhibit skin disorders or other conditions which may be communicable.
§ 21-24. Unlawful activities not to be permitted.
§§ 21-25—21-35. Reserved.

Article II. Operator's Permit

§ 21-36. Required.
§ 21-37. Application.
§ 21-38. Fees and regulations.
§ 21-39. Issuance; term; transfer; display.
§ 21-40. Refusal.
§ 21-41. Suspension or revocation.

***Editor's note—**Ord. No. 38,552, § 1, adopted Oct. 29, 1996, amended Ch. 21 in its entirety to read as herein set out. Prior to this amendment, Ch. 21 pertained to similar subject matter and was derived from Code 1958, §§ 7.1-1—7.1-24.

Cross references—Buildings and building regulations, Ch. 11.1; licenses and taxation, Ch. 24; massaging body of person of opposite sex, § 29-27.

ARTICLE I. IN GENERAL

Sec. 21-1. Definitions.

For the purposes of this chapter, certain words and phrases shall have the meanings ascribed to them by this section:

Director: The director of public health of the city or his duly authorized agent.

Health parlor: Any place, establishment or institution which provides one or more of the following services at such establishment or on a house call basis: physical massage of the body of another, steambath, hot box, electrical, mechanical or chemical magnetic bath, and/or stimulation exercises.

Health parlor operator: A health parlor operator is the owner, assignee, agent, contractor, employee, individual, officer of a firm, company, corporation, association, club, institution or any other person or entity operating a health parlor.

Massage therapy: The treatment of soft tissues for therapeutic purposes by the application of massage and bodywork techniques based on the manipulation, or application of pressure to the muscular structure of soft tissues of the human body.

The terms "massage therapy" and "therapeutic massage" do not include the diagnosis or treatment of illness or disease or any service or procedure for which a license to practice medicine, nursing, chiropractic therapy, physical therapy, occupational therapy, acupuncture, or podiatry is required by law.

Masseur; masseuse; massage therapist: A person who practices or administers one or more of the acts of body massage, either by hand, towel or mechanical apparatus, oil rubs, corrective gymnastics, mechanotherapy, including color therapy, dietetics, hot packs, cabinet, tub, shower, sitz bath, vapor, steam or any other special bath.

(1) Masseurs and masseuses shall provide proof of successful completion of a minimum of two hundred (200) hours of training in massage therapy from a school accredited by the Board of Education. Masseurs and masseuses possessing a valid health certificate prior to the adoption of this chapter shall be granted one year from the adoption of this chapter to comply with its training requirements.

(2) After July 1, 1997, massage therapists shall be certified by the Board of Nursing and meet all requirements for certification set by the Board of Nursing.

For the purposes of this section, the following are excluded:

(1) Personnel working in hospitals, nursing homes, medical clinics, rehabilitation centers, the offices or quarters of a licensed physician, surgeon, osteopath, chiropractor, registered nurse, licensed practical nurse or licensed registered physical therapist; or

(2) Personnel of barber shops or beauty parlors, when such massage is confined to the scalp, head, face or neck of the recipient of services; or

(3) Members of the recipients family.

(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-2. Regulations of director of public health to implement chapter.

This simplifies the code amendment process by giving the director of public health authority to make reasonable changes to the code after approval of council.

(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-3. Violations of chapter.

(a) Any person who violates any provisions of this chapter shall be guilty of a Class 2 misdemeanor.

(b) Any employee who shall accept any employment in any health parlor in order to perform the duties of a masseur, masseuse, or massage therapist in violation of this chapter shall be guilty of a Class 2 misdemeanor. Each day of employment shall constitute a separate offense and any touching of another person with the intention of performing the duties of a masseur or masseuse or

massage therapist in violation of this chapter shall constitute a separate offense as to each person touched.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-4. General maintenance requirements.

(a) The premises of all health parlors shall be maintained in a clean condition and free of litter, rubbish, refuse or any material which affords development or harborage places for rats, mosquitoes or other vermin.

(b) All walls, ceilings, floors, pools, showers, bathtubs, steam rooms, toilet rooms lavatories, sinks and all other physical facilities in a health parlor shall be in good repair and maintained in a clean condition. Wet and dry steam rooms and steam or vapor rooms shall be thoroughly cleaned each day the business is operated. Portable basins and bathtubs shall be cleaned and disinfected after each use. Nondisposable equipment shall be cleaned and disinfected after each use upon one person. No towel or linen shall be used for more than one person without being properly laundered.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-5. Continuous-use tanks and tubs.

All continuous-use tanks and tubs shall meet the requirements specified in City Code chapter 43 governing swimming pools and spas.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-6. Lighting.

A minimum of ten (10) footcandles of light, as provided by natural and artificial sources, shall be maintained in all rooms in which services of a health parlor are provided.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-7. Ventilation.

Ventilating facilities shall be maintained and operated in every health parlor, so as to adequately ventilate the parlor and keep the facility free from excessive heat, steam, condensation, vapor or odors.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-8. Toilet facilities.

(a) In health parlors, the number of toilet facilities shall be provided in accordance with the Virginia Uniform Statewide Building Code and shall be connected to an approved sewer system.

(b) The doors to all toilet rooms shall fit tightly and be self-closing. Toilet rooms shall be cleaned and maintained in good repair, provided with a minimum of ten (10) footcandles of light and mechanically vented to the outside air.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-9. Hand-washing facilities.

Adequate hand-washing facilities connected to an approved sewer system shall be provided which are conveniently located to each toilet room and areas where health parlor services are rendered. Each hand-washing facility shall have hot and cold running water, tempered by means of a mixing valve or combination faucet. Each facility shall also have a soap dispenser with soap, an approved sanitary towel dispenser with towels or hot-air dryer, and waste receptacle for disposal of trash and debris. The use of common towels is prohibited.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-10. Disposal of sewage.

All sewage and liquid waste in a health parlor shall be disposed of in a public sanitary sewage system or by another method approved by the director of public health.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-11. Storage and disposal of refuse.

All refuse in health parlors shall be stored in approved containers. At least one covered receptacle shall be provided in restrooms used by females. All refuse stored on the outside shall be suitable vermin-tight containers with lids and the refuse disposal method shall meet applicable city ordinances.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-12. Use for sleeping quarters.

No room or any part of any room of a health parlor shall be used for or connected with any

bedroom or sleeping quarters nor shall any person sleep in such health parlor, except for limited periods incidental to or directly related to a massage or bath service.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-13. Separate massage rooms for each sex.

If male and female patrons are served simultaneously in a health parlor, separate massage rooms for each sex shall be provided.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-14. Dressing rooms for patrons.

In every health parlor, patrons shall be provided with dressing areas and a locker or other suitable space to maintain separate areas for each patron's clothing. If male and female patrons are served simultaneously, each health parlor shall contain separate dressing areas for male and female patrons.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-15. Linen, towels and disposable items.

Linen used in health parlors shall be cleaned and laundered. All towels, sheets, or other covering shall be used only once for each patron and discarded for laundry or disposal immediately after use. Closed containers shall be required for the storage of wet or soiled linens. Disposable items shall be discarded after each use.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-16. Common use of brushes, combs, towels and drinking utensils.

The common use of brushes, combs, towels and drinking utensils shall be prohibited in a health parlor.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-17. Lotions, tonics, astringents, and balms.

Lotions, tonics, astringents, and balms shall be kept free of contamination. When only a portion of a preparation is to be used on a patron, it shall be removed from the container in such a way as not to contaminate the remaining portion.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-18. Cleaning of apparatus, tools, and instruments.

(a) Items utilized in providing massage services shall be thoroughly cleaned and rinsed after each use and then disinfected with a EPA-registered hospital disinfectant or EPA-registered hospital disinfectant labeled as a tuberculocidal. Strict adherence to manufacturer's directions must be followed. Fresh solution shall be prepared daily and changed more often if visibly cloudy or dirty.

(b) In the event that items or work surfaces are contaminated with blood or body fluids, the involved items and areas are to be thoroughly cleaned, rinsed, dried, and then disinfected at a minimum with an EPA-registered hospital disinfectant labeled as a tuberculocidal or classified by Centers for Disease Control as a intermediate disinfectant.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-19. Information as to employees to be furnished director of public health.

Whenever an operator or proprietor of a health parlor employs a person to work or to provide service as a masseur, masseuse, or massage therapist in such establishment, such operator or proprietor shall so inform the director of public health and furnish the director with the employee's health certificate number, name, date of birth, sex, social security number, and address.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-20. Health of employees generally.

No person who has a communicable disease shall work or be employed in any health parlor. It shall be the duty of each employee concerned to notify the manager of such establishment immediately if such conditions exist and to obtain from a physician licensed in the state a certification that the employee may safely provide service. The director of public health may require an employee

suspected of having a communicable disease to submit himself for examination by a physician licensed in the state, such examination to be at the expense of the employee.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-21. Health certificate for masseur or masseuse or massage therapist.

(a) No person shall practice as a masseur or masseuse or massage therapist at a health parlor (except those excluded [in the definitions of such terms] in section 21-1) without a health certificate issued by the director of public health. Certificates issued by the director shall be valid for one year from the day issued, unless sooner revoked or suspended.

(b) The director may suspend a certificate issued under this section, if the holder thereof is suspected to be suffering from a communicable disease or refuses a physical examination to determine whether such holder is suffering from a communicable disease.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-22. Clothing and cleanliness of employees.

All employees at a health parlor shall wear clean outer clothing and maintain a high degree of personal cleanliness while on duty. They shall wash their hands thoroughly in an approved hand-washing facility before starting service to and completing service for each patron, after using toilet facilities, and as often as may be necessary to remove soil and contamination.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-23. Service when persons exhibit skin disorders or other conditions which may be communicable.

(a) No person shall provide any of the services of a health parlor to any patron exhibiting symptoms of being infected with any fungus or other skin infections, nor shall service be performed on any patron exhibiting skin inflammation, eruptions or conditions, unless a physician licensed in the state certifies that the person may be safely served.

(b) No person shall provide any of the services of a health parlor if that person exhibits symptoms of being infected with any fungus or other skin infections, nor shall service be performed by any employee exhibiting skin inflammation, eruptions or conditions, unless a physician licensed in the state certifies that the employee is free of communicable disease and may safely provide service.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-24. Unlawful activities not to be permitted.

No operator of a health parlor shall permit therein any activity or behavior prohibited by the laws of the city or the state.
(Ord. No. 38,552, § 1, 10-29-96)

Secs. 21-25—21-35. Reserved.

ARTICLE II. OPERATOR'S PERMIT

Sec. 21-36. Required.

It shall be unlawful for any person who does not possess a valid health parlor operator's permit to operate a health parlor in the city.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-37. Application.

Application for a health parlor operator's permit shall be made in writing on a form prescribed by the director of public health, wherein the applicant shall agree to conform to the ordinances, rules and regulations governing health parlors and to permit such examinations and inspections of the facility as may be deemed necessary by the director.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-38. Fees and regulations.

The director of public health is hereby authorized to promulgate policy and procedures for issuance of a health parlor operator's permit and to charge a fee.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-39. Issuance; term; transfer; display.

A health parlor operator's permit shall be issued only to an individual and shall be valid until revoked or suspended by the director of public health. Such operator's permit is not transferable to another operator or from one establishment or location to another. Such operator's permit shall be posted in full view of the public at each health parlor location.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-40. Refusal.

The director of public health shall refuse to issue a permit under this article, if the conditions of the health parlor involved do not conform to the requirements of this chapter.
(Ord. No. 38,552, § 1, 10-29-96)

Sec. 21-41. Suspension or revocation.

A health parlor operator's permit may be suspended or revoked, for cause, by the director of public health.
(Ord. No. 38,552, § 1, 10-29-96)

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Chapter 22

HOTELS AND SIMILAR ESTABLISHMENTS*

Article I. In General

§ 22-1. Definitions.
§ 22-2. Penalties.
§ 22-3. Enforcement.
§ 22-4. Severability.
§ 22-5. Access to premises.
§ 22-6. Numbering of rooms or units.
§ 22-7. Guest register generally.
§ 22-8. False registration by guests.
§ 22-9. Notification of police on premises.
§ 22-10. Prolonged registration or occupancy of rooms by minors.
§ 22-11. Giving false information to obtain lodging.
§ 22-12. Renting or occupying room for illegal or unlawful purposes.
§ 22-13. Letting same room more than once in one night.
§ 22-14. Length of stay in hotel or motel.
§ 22-15. Receipt for payment received.
§§ 22-16—22-26. Reserved.

Article II. Permit

§ 22-27. Required.
§ 22-28. Application.
§ 22-29. Investigation.
§ 22-30. Permit issuance, expiration and renewal.
§ 22-31. Permit conditions.
§ 22-32. Transfer.
§ 22-33. Suspension and revocation of permits.
§ 22-34. Does not authorize operation of establishment not conforming to laws and ordinances.

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*__Editor's note—__Ord. No. 39,928, § 2, adopted April 25, 2000, amended and reordained Ch. 22 in its entirety to read as herein set out. Prior to its amendment, Ch. 22 pertained to similar subject matter and was derived from Code 1958, §§ 41-1—41-6, 41-8, 41-10—41-15, 41-17 and 41-18.

__Cross references—__License tax for establishments regulated by this chapter, §§ 24-81, 24-111, 24-120; rental of boats in connection with hotels and similar establishments abutting Chesapeake or Willoughby Bay, § 9-96 et seq.; buildings and building regulations, Ch. 11.1; food and food establishments, Ch. 18; tax on transients obtaining lodging, § 24-233.

__State law reference—__Hotels generally, Code of Virginia, § 35.1-1 et seq.

ARTICLE I. IN GENERAL

Sec. 22-1. Definitions.

(a) *Generally.* For the purposes of this chapter, certain words and phrases shall have the meanings set out in this section, except in cases where the context clearly indicates a different meaning.

(b) *Lodging unit* means living and sleeping quarters for a person or persons.

(c) *Minor* means an individual under eighteen (18) years of age.

(d) *Person* means any individual, firm, owner, sole proprietorship, partnership, corporation, unincorporated association governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant or other legal entity.

(e) *Hotel* and *motel* mean any building, structure or place containing ten or more lodging units wherein transient guests are lodged for compensation on a daily or weekly basis. This does not include congregate housing as that term is defined within the Zoning Ordinance, Norfolk City Code, 1979, Appendix A, section 2-3.

(f) *Rooming house* means a building or group of attached or detached buildings containing in combination three to nine rooming units for occupancy for weekly or longer periods, with or without board. This does not include congregate housing as that term is defined within the Zoning Ordinance, Norfolk City Code, 1979, Appendix A, section 2-3. Indications that a property is being operated as a rooming house include, but are not limited to, individually secured rooms by key or deadbolt, no access to other rooming units and numbers or letters on rooming unit doors.

(g) *Rooming unit* means any room or group of rooms forming a single habitable unit occupied or intended to be occupied for sleeping or living.

(h) *Transient guest* is one who stays for less than thirty (30) days at a hotel or motel.
(Ord. No. 39,928, § 2, 4-25-00; Ord. No. 41,470, § 1, 6-29-04)

Sec. 22-2. Penalties.

Any person violating any provision of this chapter, shall be guilty of a Class 1 misdemeanor. Each day a violation continues constitutes a separate offense. In addition to any penalties imposed for each violation, a judge hearing the case shall order the person responsible for the violation to correct the violation, and each day's default in such correction shall constitute a violation of and a separate offense under this chapter.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-3. Enforcement.

Any law enforcement officer, fire marshal or any of his assistants, fire inspector, or city-sworn special police officer is authorized and shall have authority to enforce all provisions of this chapter.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-4. Severability.

Severability is intended throughout and within all the provisions of this chapter. If any provision (including *inter alia* any word, phrase, sentence, paragraph, subsection or section), or the application thereof to any person or circumstance, is judicially declared to be invalid, the remaining provisions and their application shall not be affected thereby.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-5. Access to premises.

Any law enforcement officer, fire marshal or any of his assistants, fire inspector or city-sworn special police officer, shall have access at all reasonable times to all rooming houses, hotels and motels, except the private room of a guest, unless so authorized by other laws or ordinances, for the purpose of investigating any complaint or enforcing any law, ordinance or regulation.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-6. Numbering of rooms or units.

Each unit in any rooming house, hotel or motel shall be numbered in a plain, conspicuous manner. Such numbers shall be at least three (3) inches high and shall be placed at eye level and

floor level on the outside of the outer door of each lodging unit and no two (2) lodging units shall bear the same number.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-7. Guest register generally.

(a) Every person conducting or maintaining any rooming house, hotel or motel in the city shall keep a record in which the following information shall be entered legibly either in electronic, ink, or typewritten form prior to the room being furnished to the guest:

(1) The name and home address of each guest and the total number of guests;

(2) The day, month, year and time of arrival of each guest and the date of check out or departure;

(3) The room number assigned to each guest;

(4) The date each guest is scheduled to depart;

(5) The rate charged and amount collected for rental of the room assigned to each guest;

(6) The method of payment for each room;

(7) The full name and home address of the person checking in each guest; and

(8) The make, type and license number of the guest's vehicle if the vehicle will be parked on the premises.

(b) The guest register shall be kept on the premises of the rooming house, hotel or motel in the guest reception area or guest check-in area or in an office adjacent to that area. The record shall be maintained at that location for two (2) years from and after the date of the last entry in the record.

(c) The guest register required by this section shall be subject to inspection at any and all reasonable times by the persons designated in section 22-3. If inspection of the guest register is refused, the operator, manager, or person in charge, shall secure the guest register in the manner required by and in the presence of the person designated in section 22-3 to ensure that no one can tamper with the record until such time as an administrative search warrant can be obtained or denied.

(d) No person shall alter, deface, or erase any record so as to make the information recorded in it illegible or unintelligible, or hinder, obstruct, or interfere with any inspection of the record.

(e) Any record maintained in the form of a book shall be permanently bound, with each page sequentially numbered. No page shall be removed from the book. Any record maintained in the form of cards shall be on cards that are numbered sequentially and used in sequence. If the record is maintained electronically, the record shall be printable.
(Ord. No. 39,928, § 2, 4-25-00; Ord. No. 46,139, § 1, 12-8-15)

Sec. 22-8. False registration by guests.

It shall be unlawful for any person to write, or cause to be written, or knowingly permit to be written, in any book or register in any rooming house, hotel or motel in the city, any other or different name or designation than the true name of the person registered therein. A photo identification or other acceptable form of identification may be required to be produced at registration.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-9. Notification of police on premises.

Any employee of any rooming house, hotel or motel who assists, notifies, alerts, tells or by any other means gives any person or guest in a rooming house, hotel or motel property an alert that law enforcement personnel are on the premises shall be guilty of a Class 1 misdemeanor.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-10. Prolonged registration or occupancy of rooms by minors.

It shall be the duty of every person in charge of operating or owning a rooming house, hotel or motel within the city to keep a list, either in the register or separately, of the names and ages of all minors, together with the names and addresses of their parents or guardians, who shall register

or rent or occupy any room or series of rooms therein for more than seven (7) consecutive days. If such list is kept separately from the register, it shall be subject to inspection at all reasonable times pursuant to subsection 22-7(c) of this chapter.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-11. Giving false information to obtain lodging.

Any person who shall obtain lodging for any person under the age of eighteen (18) years in any rooming house, hotel or motel by giving to the proprietor, owner, manager, agent, person in charge or keeper thereof false information as to such person's age, or false information as to the relationship to such person of any alleged parent or guardian, or any person under the age of eighteen (18) years who shall obtain lodging in any such establishment by giving any such false information, shall be guilty of a Class 1 misdemeanor.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-12. Renting or occupying room for illegal or unlawful purposes.

It shall be unlawful for any person to rent or occupy any room in any rooming house, hotel or motel in this city for illegal or unlawful purposes, or for the proprietor, manager or other person in charge of any such rooming house, hotel or motel to rent, assign to or permit any person to occupy any such room, with knowledge that they intend to use it for illegal or unlawful purposes.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-13. Letting same room more than once in one night.

It shall be unlawful for any person to let any room in any rooming house, hotel or motel in the city more than once between the hours of 9:00 p.m. and 6:00 a.m. of the next day.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-14. Length of stay in hotel or motel.

(a) It shall be unlawful for any person to put up or stay at any hotel or motel for longer than thirty (30) days in a sixty-day period. It shall also be unlawful for the owner, operator, manager, or person in charge of a hotel or motel to permit or allow a person to stay at a hotel or motel in excess of thirty (30) days in a sixty-day period.

(b) Notwithstanding subsection (a), a stay in excess of thirty (30) days in a sixty-day period may occur in the following situations:

(1) Where there is a written contract or document between a hotel or motel and a business, corporation, firm, individual or governmental agency to house employees or individuals on valid work orders;

(2) Where there is a written contract between the hotel or motel and a governmental, charitable or insurance agency to house families in crisis who are receiving temporary housing assistance from said governmental, charitable or insurance agency; or

(3) Where the zoning administrator authorizes in writing, after consultation with the human services director, a stay for an additional period of up to ninety (90) days to prevent residents from becoming homeless. In the event that the department of social services is unable to identify appropriate alternative housing within ninety (90) days, this ninety-day period may be extended in writing by the zoning administrator.

(4) The written contract, document, and authorization noted above shall be kept on file and must be available for inspection.

(5) Where there is a national, state, or local state of emergency declaration, the time limit for stays is suspended for the period the emergency declaration remains in effect, or for three (3) months, whichever first occurs.

(c) Notwithstanding subsection (a), an owner or operator of a hotel or motel may allow up to two bona-fide employees to reside on premises for any hotel or motel with up to one hundred fifty (150) rooms, and may allow up to three

bona-fide employees to reside on premises for any hotel or motel over one hundred fifty (150) rooms.
(Ord. No. 41,470, § 2, 6-29-04; Ord. No. 44,400, § 1, 10-11-11; Ord. No. 47,975, § 1, 4-28-20)

Sec. 22-15. Receipt for payment received.

A receipt showing payment received shall be provided to the patron by the owner, operator, manager or other person in charge of the hotel, motel or rooming house.
(Ord. No. 41,470, § 3, 6-29-04)

Secs. 22-16—22-26. Reserved.

ARTICLE II. PERMIT

Sec. 22-27. Required.

It shall be unlawful for any person to maintain, conduct or operate any rooming house, hotel or motel in the city, unless he has a valid permit to do so issued pursuant to this chapter. The permit shall be posted in a public place in a conspicuous location for public viewing. Proof of an applicable permit shall be the burden of the permittee.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-28. Application.

Any person desiring a permit required by this chapter shall make application therefor to the city manager or his designee on a form to be prescribed by him, which application shall state the name, if any, of the rooming house, hotel or motel; the location where the same will be maintained, conducted or operated; the names and addresses of all persons interested in the ownership thereof, if privately owned; the names and addresses of all of the officers and trustees thereof, if owned by a nonincorporated association; the names and addresses of the officers thereof, if owned by a corporation; and the name and address of the person who will be in actual charge of the operation thereof. The application will also identify how many rooms are available for rent. The application shall also contain the name and address of any other rooming house, hotel or motel operated, owned or managed by the permittee even if not in the City of Norfolk. The application shall also contain any additional information the city manager or designee requires.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-29. Investigation.

Upon receipt of a complete application for a permit, the city manager or his designee shall investigate the facts stated therein and shall cause an inspection to be done of the premises by the departments of planning, neighborhood and leisure services, fire, police and health to ensure there are no outstanding violations of any applicable local, state or federal law on the property. The police department shall also provide information on calls for service and a record of arrests at the location for the year preceding the application or renewal.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-30. Permit issuance, expiration and renewal.

If the city manager or his designee determines from the investigation that the rooming house, hotel or motel will be conducted for a lawful purpose and in a lawful manner and in compliance with the permit conditions, a permit shall be granted. Otherwise, the permit shall be denied. If issued, the permit shall be valid for one year from the date of issuance. The permit may be renewed annually after an investigation and inspection as required for new permits pursuant to section 22-29. Prior to denying or refusing to renew a permit, the city manager shall first give the applicant at least five (5) days' written notice and an opportunity to be heard. Notice may be sent by mail to the applicant at the address given by him on the application for the permit, which shall constitute sufficient service thereof. The city manager or his designee shall pursue criminal charges, seek an injunction, or both, against any person or persons operating a rooming house, hotel or motel without a currently valid permit.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-31. Permit conditions.

Any permit issued pursuant to this chapter shall be subject to the following general condi-

tions, and any additional specific conditions noted by the city manager or his designee in the permit:

(a) The rooming house, motel or hotel shall be operated and maintained in conformance with all applicable federal, state and local laws and regulations, including, but not limited to, the zoning code, hotel code, building code, fire code, health code, business license code, and the criminal code.

(b) The person or persons in charge of operating or owning the rooming house, motel or hotel shall promptly notify the Norfolk Police Department of any actual or suspected criminal violations including but not limited to violations of the compulsory school attendance laws, contributing to the delinquency of a minor, trespassing, prostitution, controlled substances possession, manufacturing or distribution, and weapons violations.

(c) The city shall have the right to inspect the premises and the guest register to ensure compliance with all permit conditions.

(Ord. No. 39,928, § 2, 4-25-00; Ord. No. 46,139, § 2, 12-8-15)

Sec. 22-32. Transfer.

A permit issued under this chapter shall not be transferable without the express written approval of the city manager or his designee, and then only when the transferee shall meet all the requirements for an original permit.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-33. Suspension and revocation of permits.

The city manager or his designee may at any time, after giving at least five (5) days' written notice and an opportunity to be heard to the permittee, suspend for such length of time as he may deem proper or revoke any permit applied for or issued under this chapter for any of the following reasons:

(1) Fraud or misrepresentation by the permittee in the procurement of such permit.

(2) Any violation of any applicable local, state or federal law.

(3) Failure to comply with the general or specific terms of the permit.

(4) Any illegal or unlawful acts caused, allowed or permitted to be done by the permittee or his designated manager or operating agent.

The notice referred to above may be sent by mail to such permittee at the address given by him on the application for the permit, which shall constitute sufficient service thereof. The city manager or his designee shall pursue criminal charges, seek an injunction, or both, against any person or persons operating a rooming house, hotel or motel without a currently valid permit.
(Ord. No. 39,928, § 2, 4-25-00)

Sec. 22-34. Does not authorize operation of establishment not conforming to laws and ordinances.

No permit issued under the provisions of this chapter shall be construed as authorizing the operation of any rooming house, hotel or motel that does not conform to the laws of the state and the ordinances of the city applicable thereto.
(Ord. No. 39,928, § 2, 4-25-00)

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Chapter 23

LIBRARIES*

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*__Editor's note—__Ord. No. 48,624, § 1, adopted Jan. 11, 2022, amended Ch. 23 in its entirety to read as herein set out. Former Ch. 23, §§ 23-1—23-15, 23-24—23-30, pertained to library, and derived from Code 1958, §§ 24-1—24-8; Ord. No. 29,640, § 1, adopted Sept. 19, 1978; Ord. No. 30,817, § 1, adopted Oct. 7, 1980; Ord. No. 31,840, § 1, adopted July 20, 1982; Ord. No. 37,000, § 1, adopted Sept. 22, 1992; Ord. No. 39,788, §§ 1, 2, adopted Nov. 23, 1999; Ord. No. 43,846, § 1, adopted May 18, 2010; Ord. No. 44,695, § 9, adopted May 22, 2012; Ord. No. 47,063, § 1, adopted Nov. 21, 2017; Ord. No. 47,229, §§ 22, 23, adopted May 22, 2018.

__Charter reference—__Authority of city to organize and administer libraries, § 2(20).

__State law references—__Libraries generally, Code of Virginia, Title 42.1; local libraries, § 42.1-33 et seq.

ARTICLE I. IN GENERAL

Sec. 23-1. Creation of Norfolk Public Library and The Slover.

Pursuant to Charter sections 2(20) and 52, there are hereby created two (2) departments to serve as public libraries: the Norfolk Public Library and The Slover.
(Ord. No. 48,624, § 1, 1-11-22; Ord. No. 49,382, § 1, 10-24-23)

Sec. 23-2. Fee to borrow electronic books and other online electronic media.

The fee to borrow electronic books and other online electronic media shall be thirty-five dollars ($35.00) per year, except for registered borrowers who reside, work or are business owners in the city.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-3. Fees; suspension of borrowing privileges.

(a) A balance due of ten dollars ($10.00) or more of unpaid fees will result in the suspension of borrowing privileges until the balance is paid.

(b) The fee for a delinquent account referred to a collection agency shall be no more than ten dollars ($10.00).
(Ord. No. 48,624, § 1, 1-11-22; Ord. No. 48,758, § 1, 5-10-22)

Sec. 23-4. Failure to return book or other library property after notice so to do.

(a) It shall be unlawful for any person who has borrowed or otherwise removed any book or other library property from the library or any branch thereof to fail to return such book or other property within thirty (30) days after receiving written notice so to do from the librarian or his authorized agent; provided, however, that if such book or other property has been lost or destroyed, such person may, within thirty (30) days after being so notified, pay to the librarian or his authorized agent the value of such book or other property, the value to be determined by the library board.

(b) A violation of this section shall constitute a Class 2 misdemeanor.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-5. Injuring, defacing books and other library property.

Any person who willfully, maliciously or wantonly writes upon, injures, defaces, tears, cuts, mutilates or destroys any book or other library property belonging to or in the custody of the library, or any branch thereof, shall be guilty of a Class 1 misdemeanor.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-6. Rental periods for determining fees.

The fees for the rental of the facilities shall be determined as follows:

Full day: Over four (4) hours.

Half day: Up to four (4) hours.

Forum: After hours rental only beginning at 6:00 p.m.
(Ord. No. 48,624, § 1, 1-11-22)

ARTICLE II. NORFOLK PUBLIC LIBRARY

Sec. 23-7. Director as department head.

The head of the Norfolk Public Library shall be known as the director. The director is responsible for the overall administration of the affairs of the department. The director shall perform such other duties as may be prescribed by the city manager or by the council. The director shall be a librarian who meets the qualifications established by the State Library Board.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-8. Norfolk Public Library branches.

The Norfolk Public Library consists of the following branches:

(1) Mary D. Pretlow Anchor Branch

(2) Jordan-Newby Anchor Branch Library at Broad Creek

(3) Barron F. Black

(4) Blyden

(5) Janaf

(6) Lafayette

(7) Larchmont

(8) Little Creek

(9) Park Place

(10) Richard A. Tucker Memorial Library

(11) Van Wyck.

(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-9. Divisions designated.

There shall be in the Norfolk Public Library the following divisions:

(a) *Division of library collection and support services.* The division of library collection and support services shall be responsible for the functions supporting public library services, including collection development, book and materials acquisition, circulation, automation, electronic resources, research support, facilities and staff training.

(b) *Division of library programs.* The division of library programs shall be responsible for the delivery of programs for all ages, marketing outreach, mobile services, volunteers, interns and the federal work-study program.

(c) *Division of library business and fiscal services.* The division of library business and fiscal services shall be responsible for the administrative operation, financial management, personnel, purchasing and facility maintenance.

(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-10. Sargeant Memorial Collection.

The Sargeant Memorial Collection is housed in The Slover and is managed by the Norfolk Public Library.

(Ord. No. 48,624, § 1, 1-11-22; Ord. No. 49,382, § 1, 10-24-23)

Sec. 23-11. Authority of director to enter into rental agreements.

The director is hereby authorized to enter into rental agreements, which in the director's opinion are in the best interest of the city, with groups, individuals and firms for the rental of any of the library facilities.

(Ord. No. 48,624, § 1, 1-11-22)

ARTICLE III. THE SLOVER*

Sec. 23-12. Director as department head.

The head of The Slover shall be known as the director. The director is responsible for the overall administration of the affairs of the department. The director shall perform such other duties as may be prescribed by the city manager or by the council.

(Ord. No. 49,382, § 2, 10-24-23)

Sec. 23-13. Authority of director to enter into rental agreements.

The director is hereby authorized to enter into rental agreements with groups, individuals and firms for the rental of any of The Slover facilities which, in the director's opinion, are in the best interest of the city.

(Ord. No. 49,382, § 2, 10-24-23)

Sec. 23-14. Rental fees—The Slover Board Room.

Rental fees for The Slover Board Room are set as follows:

(a) *Non-profit, state, government, educational, and community-based groups.* The rental

*__Editor's note—__Ord. No. 49,382, § 2, adopted Oct. 24, 2023, amended Art. III in its entirety to read as herein set out. Former Art. III, §§ 23-12—23-19, pertained to Slover Library, and derived from Ord. No. 48,624, § 1, 1-11-22; Ord. No. 48,949, § 1, 10-11-22.

fee for non-profit, state, government, educational, and community-based groups shall be as follows:

(1) *Full day basic fee:* One hundred thirty-eight dollars ($138.00);

(2) *Full day special fee:* Two hundred twenty dollars ($220.00);

(3) *Half day basic fee:* Fifty-five dollars ($55.00); and

(4) *Half day special fee:* One hundred thirty-eight dollars ($138.00).

(b) *All other individuals, corporations and groups.* The rental fee for all other individuals, corporations and groups shall be as follows:

(1) *Full day basic fee:* Two hundred seventy-five dollars ($275.00);

(2) *Full day special fee:* Five hundred fifty dollars ($550.00);

(3) *Half day basic fee:* One hundred thirty-eight dollars ($138.00); and

(4) *Half day special fee:* Two hundred seventy-five dollars ($275.00).

(Ord. No. 49,382, § 2, 10-24-23)

Sec. 23-15. Rental fee—The Slover Community Engagement Room.

Rental fees for The Slover Community Engagement Room are set as follows:

(a) *Non-profit, state, government, educational, and community-based groups.* The rental fee for non-profit, state, government, educational, and community-based groups shall be as follows:

(1) *Full day basic fee:* Eight hundred eighty dollars ($880.00);

(2) *Full day special fee:* One thousand six hundred fifty dollars ($1,650.00);

(3) *Half day basic fee:* Four hundred forty dollars ($440.00); and

(4) *Half day special fee:* Eight hundred twenty-five dollars ($825.00).

(b) *All other individuals, corporations and groups.* The rental fee for all other individuals, corporations, and groups shall be as follows:

(1) *Full day basic fee:* Two thousand seven hundred fifty dollars ($2,750.00);

(2) *Full day special fee:* Three thousand three hundred dollars ($3,300.00);

(3) *Half day basic fee:* One thousand three hundred seventy-five dollars ($1,375.00);

(4) *Half day special fee:* One thousand six hundred fifty dollars ($1,650.00).

(Ord. No. 49,382, § 2, 10-24-23)

Sec. 23-16. Rental fees—The Slover Flex Room.

Rental fees for The Slover Flex Room are set as follows:

(a) *Non-profit, state, government, educational, and community-based groups.* The rental fee for non-profit, state, government, educational, and community-based groups shall be as follows:

(1) *Full day basic fee:* One hundred ten dollars ($110.00);

(2) *Full day special fee:* One hundred sixty-five dollars ($165.00);

(3) *Half day basic fee:* Eighty-eight dollars ($88.00); and

(4) *Half day special fee:* One hundred thirty-eight dollars ($138.00).

(b) *All other individuals, corporations and groups.* The rental fee for all other individuals, corporations and groups shall be as follows:

(1) *Full day basic fee:* Two hundred twenty dollars ($220.00);

(2) *Full day special fee:* Two hundred seventy-five dollars ($275.00);

(3) *Half day basic fee:* One hundred ten dollars ($110.00);

(4) *Half day special fee:* One hundred sixty-five dollars ($165.00).

(Ord. No. 49,382, § 2, 10-24-23)

Sec. 23-17. Rental fees—The Slover Landmark Room.

Rental fees for The Slover Landmark Room are set as follows:

(a) *Non-profit, state, government, educational, and community-based groups.* The rental fee for non-profit, state, government, educational, and community-based groups shall be as follows:

(1) *Full day basic fee:* One hundred thirty-eight dollars ($138.00);

(2) *Full day special fee:* Two hundred seventy-five dollars ($275.00);

(3) *Half day basic fee:* Seventy-two dollars ($72.00); and

(4) *Half day special fee:* One hundred thirty-eight dollars ($138.00).

(b) *All other individuals, corporations and groups.* The rental fee for all other individuals, corporations and groups shall be as follows:

(1) *Full day basic fee:* Two hundred seventy-five dollars ($275.00);

(2) *Full day special fee:* Five hundred fifty dollars ($550.00);

(3) *Half day basic fee:* One hundred thirty-eight dollars ($138.00); and

(4) *Half day special fee:* Two hundred seventy-five dollars ($275.00).

(Ord. No. 49,382, § 2, 10-24-23)

Sec. 23-18. Rental fees—The Slover Third Floor Business Center and Terrace.

Rental fees for The Slover Third Floor Business Center and Terrace and are set as follows:

(a) *Non-profit, state, government, educational, and community-based groups.* The rental fee for non-profit, state, government, educational, and community-based groups shall be as follows:

(1) *Full day basic fee:* One hundred thirty-eight dollars ($138.00);

(2) *Full day special fee:* Two hundred seventy-five dollars ($275.00);

(3) *Half day basic fee:* Seventy-two dollars ($72.00); and

(4) *Half day special fee:* One hundred thirty-eight dollars ($138.00).

(b) *All other individuals, corporations and groups.* The rental fee for all other individuals, corporations and groups shall be as follows:

(1) *Full day basic fee:* Two hundred seventy-five dollars ($275.00);

(2) *Full day special fee:* Five hundred fifty dollars ($550.00);

(3) *Half day basic fee:* One hundred thirty-eight dollars ($138.00); and

(4) *Half day special fee:* Two hundred seventy-five dollars ($275.00).

(Ord. No. 49,382, § 2, 10-24-23)

Sec. 23-19. Rental fees—The Slover Forum.

Rental fees for The Slover Forum are set as follows:

(a) *Non-profit, state, government, educational, and community-based groups.* The rental fee for non-profit, state, government, educational, and community-based groups shall be six hundred eighty-eight dollars ($688.00).

(b) All other individuals, corporations and groups. The rental fee for all other individuals, corporations and groups shall be one thousand one hundred dollars ($1,100.00).

(Ord. No. 49,382, § 2, 10-24-23)

Secs. 23-20—23-23. Reserved.

ARTICLE IV. LIBRARY BOARD

Sec. 23-24. Created; composition; appointment and terms of members.

There is hereby created an advisory board, pursuant to Norfolk's Charter Section 141, to be known as the public library board, which shall consist of nine (9) members, who shall be citizens of the city, shall be appointed by the council and shall reflect the rich and growing diversity of the city. The terms of such members shall be four (4) years and each member shall hold office during his/her term and until his/her successor is appointed and qualified. All vacancies shall be filled by appointment by the council for the remainder of the unexpired term.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-25. Oath of members.

Each member of the library board shall take the oath of office prescribed by the Charter for city officials. If any person appointed as such member shall, for ten (10) days after receiving notice of such appointment, fail to take such oath, he shall be considered as having declined such office, and the same shall be deemed vacant.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-26. Members not compensated.

Each member of the library board shall serve as such without compensation.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-27. Organization; officers.

The members of the library board shall, immediately after their election and qualification, meet and organize. They shall elect a chairperson, a vice-chairperson and such other officers thereof, if any, as they may deem necessary. The librarian shall be, ex officio, secretary of the library board.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-28. Quorum.

A majority of the library board shall constitute a quorum for the transaction of business.
(Ord. No. 48,624, § 1, 1-11-22)

Sec. 23-29. Powers and duties generally.

The library board shall be consulted by and shall advise the council and the city manager, generally, regarding current best practices in public library systems nationally and on major library policy decisions, including hiring and firing of the library director(s), management and utilization of library facilities, provision of essential library services and programs to city residents, and other library-related matters as appropriate. The library board shall serve as liaison between the city's communities and the council and the city manager on matters affecting the library. The library board shall promote library services and programs, provide support for library management initiatives and decisions, and advise the council and the city manager on actions to take for the library. The library board shall, not less than once annually, deliver a formal written report to the council and the city manager, which shall provide information on the utilization and performance of the library and recommendations for actions to take for the library.
(Ord. No. 48,624, § 1, 1-11-22)

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Chapter 24

LICENSES AND TAXATION*

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ARTICLE I. IN GENERAL

Sec. 24-1. Bureau of license inspection.

(a) There shall be, in the department of finance, a bureau of license inspection which, subject to the supervision and control of the director of finance, shall be in the charge of the license inspector. There shall be such number of assistant license inspectors as the council may provide. The license inspector and assistant license inspectors shall be appointed by the city manager.

(b) The duties of the license inspector and assistant license inspectors shall be as prescribed by ordinance or by order of the director of finance.

(c) It shall be the duty of the license inspector and assistant license inspectors, under the supervision of the director of finance, to ascertain all persons in the city who are required by ordinance to obtain licenses, and further to ascertain if such persons have obtained such licenses and otherwise complied with the ordinances in regard thereto.
(Code 1958, §§ 19-7—19-9)

Cross reference—Director of finance, § 16-25 et seq.

Sec. 24-2. Annual payment and furnishing of free service to city by telephone companies.

Every company now or hereafter doing a local telephone business shall pay to the city, annually, three (3) percent of its gross earnings and furnish to the city free use and service of twenty (20) telephones, unless otherwise provided for in its franchise.
(Code 1958, § 19-121)

Sec. 24-3. Tax levied on tangible personal property, machinery and tools; proration, refund.

For each and every calendar year, beginning January 1 and ending December 31 of each such year, unless otherwise changed by the council, there are hereby imposed and levied the following taxes on tangible personal property, except household goods and personal effects as classified by Code of Virginia section 58.1-3504 (including all amendments that might be made to such section), and including motor vehicles and delivery equipment, and on machinery and tools used in manufacturing, mining, processing and reprocessing, radio or television broadcasting or dairy business, within the city or having a situs within the city:

(1) On all tangible personal property of every kind and description, as classified by Code of Virginia §§ 58.1-3500, 58.1-3503, 58.1-3506, 58.1-3507 and 58.1-3521 (including all amendments that might be made to such sections), except those that are exempt from taxation and except household goods and personal effects as classified by Code of Virginia § 58.1-3504, there shall be a tax of four dollars thirty-three cents ($4.33) for every one hundred dollars ($100.00) of the assessed value thereof, provided that a single motor vehicle owned and regularly used by a disabled veteran, or the spouse of such a veteran, who meets all the requirements of Code of Virginia § 58.1-3668 shall be exempt from this tax.

On all motor vehicles and trailers which have acquired a situs in the city after January 1 of each year, for the balance of such tax year, such tax shall be prorated on a monthly basis; a period of more than one-half of a month shall be counted as a full month, and a period of less than one-half of a month shall not be counted.

When any person sells or otherwise transfers title to a motor vehicle or trailer with a situs in the city after January 1 or situs date (the day on which the property acquired situs in the city), the tax shall be relieved, prorated on a monthly basis, and the appropriate amount of tax already paid shall be refunded.

When any person, after January 1 or situs date, acquires a motor vehicle or trailer with a situs in Norfolk, the tax shall be assessed on the motor vehicle or trailer for the portion of the tax year during which the new owner owns the motor vehicle or trailer acquiring a situs after January 1.

The tax shall be due and owing within thirty (30) days after receipt of the bill.

Any person failing to pay the said tax within thirty (30) days of receipt of the bill shall incur interest and penalties as set forth in section 24-6.

Relief from taxation is hereby granted and appropriate prorated refund is authorized when a motor vehicle or trailer loses its situs within the city after January 1 or the situs date, if such tax has already been paid.

An exemption from this tax and any interest or penalties arising thereunder shall be granted for any tax year or portion thereof during which the property was legally assessed by another jurisdiction in the commonwealth, and such tax on the assessed property was paid and not refunded in whole or in part.

(2) On all machinery and tools, except idle machinery and tools as defined in this subsection and machinery, equipment, motor vehicles and delivery equipment used by farm wineries, used in manufacturing, mining, water well drilling, processing or reprocessing, radio or television broadcasting, dairy, dry cleaning or laundry business, and segregated by law for local taxation exclusively, there shall be a tax of four dollars twenty-five cents ($4.25) for every one hundred dollars ($100.00) of assessed value thereof; however, that any such motor vehicles which are registered with the department of motor vehicles shall be taxed as tangible personal property. "Idle machinery and tools" means machinery and tools that:

(i) (a) Have been discontinued in use for at least one year prior to any tax day or

(b) On or after January 1, 2007, have been specifically identified in writing by the taxpayer to the commissioner of the revenue on or before April 1 of such year, as machinery and tools that the taxpayer intends to withdraw from service not later than the next succeeding tax day and

(ii) Are not in use on the tax day and no reasonable prospect exists that such machinery and tools will be returned to use during the tax year. In valuing machinery and tools, the commissioner of the revenue shall, upon the written request of the taxpayer, consider any bona fide, independent appraisal presented by the taxpayer.

In the event that any machinery and tools taken out of use subsequent to January 1, 2007, are returned to use after having been previously classified as idle machinery and tools pursuant to clause (i)(b), the taxpayer shall identify such machinery and tools to the commissioner of the revenue in writing on or before the next return due date without extension, and such machinery and tools shall be subject to tax in the same manner as if such machinery and tools had been in use on tax day of the year in which such return to use occurs. Any interest otherwise payable pursuant to applicable law or ordinance shall apply to taxes imposed pursuant to this subsection and paid after the due date, without regard to the fault of the taxpayer or lack thereof. Notwithstanding the provisions of section 24-6, if the taxpayer has provided timely written notice of return to use in accordance with the provisions of this subsection, no penalty shall be levied with respect to any tax liability arising as a result of the return to use of machinery and tools classified as idle and actually idle prior to such return to use.

(3) On all aircraft designated in paragraphs numbered 1 and 2 of Code of Virginia 1950, sections 58.1-3503 and 58.1-3506, and designated as separate items for taxation, there shall be a tax of two

dollars and forty cents ($2.40) for every one hundred dollars ($100.00) of assessed value thereof.

(4) On all privately owned pleasure boats and watercraft used for recreational purposes only, there shall be a tax of one millionth of one cent ($0.000001) for every one hundred dollars ($100.00) of assessed value thereof. On all other boats and watercraft, there shall be a tax of one dollar fifty cents ($1.50) for every one hundred dollars ($100.00) of assessed value thereof.

(5) On all recreational vehicles designated in paragraph number 10 of subsection A, Code of Virginia [1950], section 58.1-3503, and designated as a separate item for taxation, there shall be a tax of one dollar and fifty cents ($1.50) for every one hundred dollars ($100.00) of assessed value thereof.

(Ord. No. 24,696, § 1, 12-26-68; Ord. No. 27,230, § 1, 12-18-73; Ord. No. 28,238, § 1, 11-25-75; Ord. No. 31,742, § 1, 5-25-82; Ord. No. 32,036, § 1, 11-16-82; Ord. No. 33,140, § 1, 10-16-84; Ord. No. 33,996, § 1, 5-20-86; Ord. No. 35,047, § 1, 5-24-88; Ord. No. 35,048, § 5-24-88; Ord. No. 36,027, § 1, 5-22-90; Ord. No. 36,437, § 1, 5-21-91; Ord. No. 36,848, § 1, 5-26-92; Ord. No. 37,230, § 1, 5-18-93; Ord. No. 37,651, § 1, 5-31-94; Ord. No. 37,993, § 1, 5-23-95; Ord. No. 39,180, § 1, 5-26-98; Ord. No. 39,200, § 1, 5-26-98; Ord. No. 39,592, § 1, 5-18-99; Ord. No. 39,668, § 1, 6-29-99; Ord. No. 40,711, § 1, 5-21-02; Ord. No. 40,834, § 1, 9-17-02; Ord. No. 42,092, § 1, 11-29-05; Ord. No. 42,662, § 7, 5-15-07; Ord. No. 42,677, § 1, 6-5-07; Ord. No. 43,859, § 1, 5-18-10; Ord. No. 43,861, § 2, 5-25-10; Ord. No. 47,696, § 1, 6-25-19; Ord. No. 47,999, § 16, 5-19-20, eff. 1-1-21; Ord. No. 49,807, § 1, 12-10-24)

Charter references—Duty of council to levy taxes and authority to provide that tax so levied shall continue from year to year unless otherwise changed, § 68; authority to impose taxes on calendar year basis, § 69(a).

State law reference—Taxation of tangible personal property, machinery and tools, Code of Virginia, § 58.1-3500 et seq.

Sec. 24-3.1. Decal to denote payment of personal property tax on vending machines.

(a) Upon payment of the tax levied in section 24-3 on a vending machine of any kind or description, including but not limited to a coin-operated machine or device operated on the coin-in-the-slot principle, the commissioner of the revenue shall issue to the owner of said machine a numbered decal certifying payment of said tax. A decal shall also be issued for a machine upon which no tax is assessable upon application of the owner of said machine. Said decals shall be issued on an annual basis. The owner or lessee of a machine for which a decal has been issued shall immediately cause such decal to be affixed as nearly as practicable to the coin slot on said machine.

(b) It shall be unlawful for any person to knowingly affix any decal issued under this section to a vending machine other than the one for which issued by the commissioner of the revenue.

(c) In the event any decal issued under this section shall be mutilated or lost, the person entitled thereto shall make application for and obtain a duplicate or substitute therefor upon furnishing information of such fact, by affidavit or otherwise, satisfactory to the commissioner of the revenue, and upon payment of the fee of two dollars ($2.00) for each duplicate or substitute decal.

(d) Any person who desires to change a decal issued under this section to cover another vending machine shall present to the commissioner of the revenue such decal and the receipt therefor or proof, by affidavit or otherwise satisfactory to the commissioner of the revenue, that the decal has been removed and destroyed from the machine for which it was originally issued, and shall pay a fee of two dollars ($2.00). The commissioner of the revenue shall transfer the decal to the new machine or issue a new decal therefor. In the event a tax is then assessable on such other machine, such person shall pay in addition to said fee of two dollars ($2.00) an amount equal to any difference between the tax paid and the tax required to be paid on such other machine.

(e) Any person who violates the provisions of this section or who shall give a false affidavit hereunder, shall be guilty of a misdemeanor and fined in an amount not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00).

(Ord. No. 30,029, § 1, 7-17-79)

Editor's note—Ord. No. 30,029, § 1, adopted July 17, 1979, amended Ord. No. 24,696 by adding a § 2 thereto; the editor has designated this provision as § 24-3.1.

Sec. 24-4. Filing of depreciation schedules for tangible personal property.

Every person who shall be liable for the payment of the tangible personal property tax levied by section 24-3 shall file with the commissioner of the revenue true copies of the depreciation schedules required by federal and state tax authorities which are applicable to the tangible personal property subject to this tax. Every such person shall submit true copies of the depreciation schedules which most recently have been filed with federal and state tax authorities at the time when the tangible personal property tax becomes due and payable.

(Ord. No. 23,238, § 1, 11-25-75)

Sec. 24-5. Assessments as to personal property; refusal of taxpayer to give information, etc.

(a) The commission of the revenue shall proceed, annually, on the first day of January of each calendar year, as to personal property, to make assessments of all persons and property, other than public service companies and property of public service companies, which are assessed by the state corporation commission, subject to taxation by ordinance, in the same manner and form as is required by the revenue laws of the state. He shall record such assessments upon separate rolls or books of assessment, for the city, making the necessary complete copies thereof. He shall deliver to the city treasurer a copy of the record of assessments of personal property, other than personal property of public service companies, which is assessed by the state corporation commission, on or before November 1 of each calendar year. He shall deliver to the city treasurer copies of the records of assessments of personal property of public service companies, which are assessed by the state corporation commission, within thirty (30) days after he receives the same.

(b) If the commissioner of the revenue shall fail to deliver to the city treasurer the copies of assessment rolls or books on the days mentioned in this section, he shall be subject to a fine of ten dollars ($10.00) for every day thereafter that he shall fail to complete and deliver such rolls or books to the city treasurer, as aforesaid.

(c) After the tangible personal property books have been completed for any year, the same shall be reviewed by the director of finance, and if it appears that any person liable for a tax on tangible personal property has failed to make a proper return thereof, such director shall make a report thereof to the commissioner of the revenue in order that a proper assessment may be made. If any such taxpayer, upon demand, refuses to exhibit to the commissioner of the revenue, or a duly qualified deputy, any such tangible personal property liable to assessment by the commissioner, such taxpayer shall be guilty of a class 4 misdemeanor.

(d) If any person shall give to the commissioner of the revenue a false list of persons or property subject to taxation, or refuse to give such information to the commissioner as may be necessary to enable him to make the proper assessment, such person shall be guilty of a class 4 misdemeanor.

(Code 1958, §§ 19-54, 19-71, 19-72)

State law reference—Situs for assessment of personal property subject to local taxation, Code of Virginia, § 58.1-3511.

Sec. 24-6. When taxes on personal property payable; interest and penalty on delinquencies.

(a) Except as specifically provided otherwise in section 24-3(1), city taxes on personal property shall be payable in full on or before the fifth day of June of the year in which they are assessed. In the event that personal property taxes are not paid when they become due, such unpaid taxes shall bear interest at the rate of eight (8) percent per year. Such unpaid taxes shall be deemed

delinquent on the first day following the day such taxes are due, and interest shall commence on the first day of July of the year in which such taxes are assessed. Any person who shall fail to pay to the city treasurer all city taxes on personal property due by him on or before the fifth day of June of the year in which they are assessed shall pay a penalty of ten (10) percent of the tax past due on such property or the sum of ten dollars ($10.00), whichever is the greater; provided, however, that the penalty shall in no case exceed the amount of tax due. Such penalty shall be assessed on the first day following the day such taxes are due. Any such penalty when so assessed shall become a part of the tax.

(b) No penalty for failure to pay personal property taxes shall be imposed for any assessment made later than two (2) weeks prior to the day on which the taxes are due, if such assessment is made through the fault of the office of the commissioner of the revenue, and if such assessment is paid within two (2) weeks after the notice thereof is mailed.

(c) Penalty and interest for failure to pay personal property taxes shall not be imposed if such failure was not the fault of the taxpayer. The city treasurer shall make such determinations of fault.

(Code 1958, §§ 19-102, 19-103; Ord. No. 30,791, § 1, 9-23-80; Ord. No. 30,813, § 1, 10-2-80; Ord. No. 31,183, § 1, 6-2-81; Ord. No. 31,743, § 1, 5-25-82; Ord. No. 35,364, § 1, 1-10-89; Ord. No. 47,229, § 24, 5-22-18, eff. 7-1-18)

Charter reference—When taxes on personal property payable, § 69.

State law reference—Authority of city to fix due date for taxes and impose penalty and interest on delinquencies, Code of Virginia, § 58.1-3916.

Sec. 24-6.1. When returns must be filed on personal property.

(a) Every taxpayer owning any of the tangible personal property mentioned in this chapter shall file a return thereof with the commissioner of the revenue on forms prescribed by him, and every person who leases any of such property from the owner thereof on such date, shall file a return with the commissioner of the revenue wherein such property is located giving the name and address of the owner, except any person leasing a motor vehicle which is subject to a tax imposed under Code of Virginia, § 58.1-2402(A). Such return shall be filed on or before the first day of March, each year, unless otherwise changed by the council.

(b) Any person who shall fail to file such return when due shall pay a penalty of ten (10) percent of the tax assessable on such return or ten dollars ($10.00), whichever is greater; provided, however, that the penalty shall in no case exceed the amount of the tax assessable. Such penalty shall be assessed on the day after such return is due. Any such penalty when so assessed shall become a part of the tax.

(c) Penalty for failure to file a return shall not be imposed if such failure was not the fault of the taxpayer or lessee of such personal property. The commissioner of the revenue shall make such determinations of fault.

(d) The commissioner of the revenue may grant to a taxpayer or lessee of such personal property a reasonable extension of time, not to exceed ninety (90) days, for filing returns on tangible personal property, machinery and tools and merchants' capital whenever good cause exists. The commissioner of the revenue shall keep a record of every such extension, and shall provide notice thereof to the treasurer at the time such extension is granted. If any taxpayer or lessee of such personal property who has been granted an extension of time for filing his return fails to file his return within the extended time, his case shall be treated the same as if no extension had been granted.

(e) Any person required by this section to file a return for tax purposes who willfully fails or refuses to file such return at the time required, or who makes a false statement with intent to defraud in such return (i) shall be guilty of a class 3 misdemeanor if the amount of the tax lawfully assessed in connection with the return is one thousand dollars ($1,000.00) or less, or (ii) shall be guilty of a class 1 misdemeanor if the

amount of the tax lawfully assessed in connection with the return is more than one thousand dollars ($1,000.00).
(Ord. No. 32,144, § 1, 2-8-83; Ord. No. 35,364, § 1, 1-10-89)

State law reference—Authority to fix date for filing returns, Code of Virginia, § 58.1-3916.

Sec. 24-6.2 Definitions.

Terms used in this title that have defined meanings set forth in the Personal Property Tax Relief Act, Code of Virginia § 58.1-3523, et seq., as amended, shall have the same meanings as set forth in the Personal Property Tax Relief Act.
(Ord. No. 42,244, § 1, 4-11-06)

Sec. 24-6.3. Method of computing tax relief.

(a) For tax years commencing in 2006, the city shall provide for the computation of tax relief as a specific dollar amount to be offset against the total taxes that would otherwise be due but for the Personal Property Tax Relief Act and the reporting of such specific dollar relief on the tax bill.

(b) The council shall set the rate of tax relief annually at such a level that it is anticipated fully to exhaust relief funds provided to the city by the commonwealth under the Personal Property Tax Relief Act. Any amount of relief provided by the commonwealth under the Personal Property Tax Relief Act that is not used during the city's fiscal year in which the funds are received shall be carried forward and used to increase the funds available for personal property tax relief in the city's following fiscal year.

(c) Personal property tax bills shall set forth on their face the specific dollar amount of relief credited with respect to each qualifying vehicle, together with an explanation of the general manner in which relief is allocated.
(Ord. No. 42,244, § 1, 4-11-06)

Sec. 24-6.4. Allocation of relief among taxpayers.

(a) Allocation of Personal Property Tax Relief Act funds shall be provided in accordance with the general provisions of this section, as implemented annually by the council.

(b) Personal Property Tax Relief Act funds shall be allocated in such a manner as to eliminate personal property taxation of each qualifying vehicle with an assessed value of one thousand dollars ($1,000.00) or less.

(c) Relief with respect to qualifying vehicles with assessed values of more than one thousand dollars ($1,000.00) shall be provided at a rate annually fixed by the council and applied to the first twenty thousand dollars ($20,000.00) in value of each such qualifying vehicles, that is estimated fully to use all available Personal Property Tax Relief Act funds provided by the commonwealth. The rate shall be established annually by the council.
(Ord. No. 42,244, § 1, 4-11-06)

Sec. 24-6.5. Other provisions.

(a) The city treasurer is authorized to issue a supplemental personal property tax bill, in the amount of one hundred (100) percent of tax due without regard to any former entitlement to Personal Property Tax Relief Act funds, plus applicable penalties and interest, to any taxpayer whose taxes with respect to the qualifying vehicle for tax year 2005 or any prior tax year shall remain unpaid on September 2, 2006, or such date as state funds for reimbursement of the state share of such bill have become unavailable, whichever earlier occurs.

(b) Penalty and interest with respect to bills issued pursuant to subsection (a) of this section shall be computed on the entire amount of tax owed. Interest shall be computed at the rate provided in section 24-6.
(Ord. No. 42,244, § 1, 4-11-06)

Sec. 24-7. Correcting delinquent taxes erroneously assessed.

(a) If the commissioner of the revenue or other official performing the duties imposed on commissioners of the revenue under Title 58.1 of the Code of Virginia is satisfied that she has erroneously assessed the taxpayer with any tax, she shall correct such assessment. If the assessment exceeds the proper amount, she shall exonerate the taxpayer from the payment of so much as is erroneously charged if not paid into the treasury

of the city. If the assessment has been paid, the council shall, upon the certificate of the commissioner of the revenue or the real estate assessor with consent of the city attorney that such assessment was erroneous, direct the treasurer to refund the excess to the taxpayer, with interest if authorized pursuant to section 58.1-3918 of the Code of Virginia or in the ordinance authorized by section 58.1-3916 of the Code of Virginia, or as otherwise authorized in that section; provided, however, that in cases in which the board of equalization decreases valuation, the order of the board shall entitle the taxpayer to an exoneration from so much of the assessment as exceeds the proper amount and the treasurer is authorized to issue a refund without any further action. Notwithstanding the foregoing, the city treasurer is authorized to approve and issue any refund up to ten thousand dollars ($10,000.00) as a result of an erroneous assessment.

(b) If the assessment is less than the proper amount, the commissioner of the revenue or the real estate assessor shall assess such taxpayer with the proper amount. If any assessment is erroneous because of a mere clerical error or calculation, the same may be corrected as herein provided and with or without petition from the taxpayer.

(c) A copy of any correction made under this section shall be certified by the commissioner of the revenue or the real estate assessor to the city treasurer.

(Code 1958, § 19-55; Ord. No. 35,365, § 1, 1-10-89; Ord. No. 44,513, § 1, 1-10-12; Ord. No. 48,881, § 1, 8-23-22)

Sec. 24-8. Interest on taxes assessed prior to 1981.

All city taxes assessed prior to 1981 on real estate or personal property which are still unpaid, shall continue to bear interest at the rate of six (6) percent per annum until paid.

(Code 1958, § 19-106; Ord. No. 30,791, § 1, 9-23-80; Ord. No. 30,813, § 1, 10-2-80; Ord. No. 31,183, § 1, 6-2-81)

Sec. 24-9. Publication of notice as to payment of taxes.

The city treasurer shall, at least fifteen (15) days prior to the time any city taxes on real estate or personal property are due, give public notice by advertisement in two (2) of the daily newspapers published in the city that the rolls of the commissioner of the revenue containing the list of taxes to be collected have been placed in his hands for collection, and he shall also state in such notice the provisions of the law relative to the prompt payment of taxes.

(Code 1958, § 19-104)

State law reference—Publicizing tax due dates, Code of Virginia, § 58.1-3911.

Sec. 24-10. Sales tax.

(a) There is hereby levied and imposed, in addition to all other taxes and fees of every kind now imposed, a general retail sales tax at the rate of one percent to provide revenue for the general fund of the city. The rate of tax shall be added to the rate of the retail sales tax imposed by title 58.1 of the Code of Virginia (Virginia Retail Sales and Use Tax) and such tax shall be subject to all of the provisions of said chapter, and all amendments thereof, and the rules and regulations published with respect thereto, except that the applicable brackets of prices shall be as prescribed in section, 58.1-628 of the Code of Virginia for the combined tax, and except that no discount under section 58.1-622 of the Code of Virginia shall be allowed on the tax levied by this section.

(b) It is the purpose and intent of the council in adopting this section to levy the general retail sales tax authorized to be levied by section 58.1-605 and 58.1-3716 of the Code of Virginia.

(c) The general retail sales tax imposed and levied by this section shall be administered and collected by the state tax commissioner, as provided by law.

(Ord. No. 23,513, §§ 1—3, 6-21-66)

Sec. 24-11. Use tax.

Pursuant to section 58.1-606 of the Code of Virginia (Chapter 191, Acts of Assembly, 1968), there is hereby imposed in the city a local city use tax at the rate of one percent to provide revenue for the general fund of the city. The said city use tax shall be added to the rate of the state use tax imposed by title 58.1 of the Code of

Virginia, and shall be subject to all the provisions of that chapter, and all amendments thereof, and the rules and regulations published with respect thereto. Therefore, the purpose of this section is to impose the local use tax authorized by section 58.1-606 of the Code of Virginia. (Res. of 4-9-68, § 1)

Sec. 24-12. Probate tax.

(a) There is hereby levied and imposed upon the probate of every will or grant of administration in the city a tax in the amount of thirty-three cents ($0.33) for the first one thousand dollars ($1,000.00) of valuation of said estate, plus three cents ($0.03) for every additional one hundred dollars ($100.00) of valuation, or fraction thereof.

(b) The clerk of the circuit court of the city is directed to collect said tax and regularly pay the same to the city treasurer.

(c) The tax levied and imposed hereby shall continue from year to year unless otherwise changed by the council.
(Ord. No. 29,945, §§ 1—3, 5-22-79)

Editor's note—Ord. No. 29,945, §§ 1—3, adopted May 22, 1979, nonamendatory of the Code, has been codified as § 24-12 at the editor's discretion.

State law reference—Authority for above tax, Code of Virginia, § 58.1-3805.

Sec. 24-13. Exemption of certified pollution control equipment and facilities from taxation.

(a) Certified pollution control equipment and facilities, as defined herein, are hereby declared to be a separate class of property and shall constitute a classification for local taxation separate from other such classification of real or personal property.

(b) Certified pollution control equipment and facilities, as defined herein, are hereby exempt from all local taxes, including taxes upon the sale, purchase or use thereof.

(c) As used in this section, the term "certified pollution control equipment and facilities" shall be deemed to mean any property, including real or personal property, equipment, facilities or devices, used primarily for the purpose of abating or preventing pollution of the atmosphere or waters of the commonwealth and which the state certifying authority having jurisdiction with respect to such property as certified to the department of taxation as having been constructed, reconstructed, erected or acquired in conformity with the state program or requirements for abatement or control of water or atmospheric pollution or contamination. As used in this section the term "state certifying authority" shall be deemed to mean water control board for water pollution, and state air pollution control board, for air pollution, and shall include any interstate agency authorized to act in place of a certifying authority of state.
(Ord. No. 30,213, § 1, 11-27-79)

Editor's note—Ord. No. 30,213, § 1, enacted Nov. 27, 1979, added § 19-54.2 to the 1958 Code; the editor has numbered these provisions as § 24-13 hereof.

State law reference—Authority for above exemption, Code of Virginia, § 58.1-3660.

Sec. 24-14. Administrative costs of collection; imposition of fee in certain cases.

(1) There is hereby imposed, upon each person chargeable with delinquent taxes or other delinquent charges, fees to cover the administrative costs and reasonable attorneys' or collection agency's fees actually contracted for. The attorney's or collection agency's fees shall not exceed twenty (20) percent of the taxes or other charges so collected. The administrative costs shall be in addition to all penalties and interest, and shall not exceed thirty dollars ($30.00) for taxes or other charges collected subsequent to thirty (30) or more days after notice shall have been provided each person chargeable with delinquent taxes or other delinquent charges who has not paid the same prior to that time, or upon the agent, if any, of such person resident within the city for payment of the delinquent taxes or charges, but prior to the taking of any judgment with respect to such delinquent taxes or charges, and thirty-five dollars ($35.00) for taxes or other charges collected subsequent to judgment. If the collection activity is to collect on a nuisance abatement lien, the fee for administrative costs shall be one hundred fifty dollars

($150.00) or twenty-five (25) percent of the cost, whichever is less; however, in no event shall the fee be less than twenty-five dollars ($25.00).

(2) No tax assessment or tax bill shall be deemed delinquent and subject to the collection procedures prescribed herein during the pendency of any administrative appeal under Code of

Virginia [1950], section 58.1-3980, so long as the appeal is filed within ninety (90) days of the date of the assessment, and for thirty (30) days after the date of the final determination of the appeal, provided that nothing in this paragraph shall be construed to preclude the assessment or refund, following the final determination of such appeal, of such interest as otherwise may be provided by law as to that portion of a tax bill that has remained unpaid or was overpaid during the pendency of such appeal and is determined in such appeal to be properly due and owing.

(3) The collection activity costs and fees of this section shall constitute a lien on real property of the person chargeable with delinquent taxes or delinquent costs and fees, ranking with the same priority as liens for unpaid local real estate taxes and shall be enforceable in the same manner as provided in articles 3 (section 58.1-3940 et seq.) and 4 (section 58.1-3965 et seq.) of chapter 39, title 58.1, Code of Virginia, 1950.
(Ord. No. 31,946, § 1, 9-22-82; Ord. No. 39,350, § 1, 10-20-98; Ord. No. 42,080, § 1, 11-15-05)

State law reference—Authority for above section, Code of Virginia, § 58.1-3958.

Sec. 24-15. Receipt and remittance of moneys due and accruing to the city and state; review and investigation; responsibilities of commissioner of the revenue and city treasurer.

The commissioner of the revenue is hereby authorized to receive the following moneys:

> Taxes on purchases of telephone, electricity, gas and cable television services, lodging, meals, admissions and taxes due to the city and the state for sales of alcoholic beverages and other state sales and use taxes, city golf course franchise fees and cable television franchise fees.

Following their receipt, the commissioner is hereby required to promptly remit all such moneys to the city treasurer who shall account for and pay over the same in accordance with applicable laws. In addition, the commissioner is authorized to review and investigate the financial records and make inquiry of individuals and entities remitting or failing to remit such moneys due or accruing to the city and the state.
(Ord. No. 37,371, § 1, 8-17-93)

Sec. 24-16. Recordation tax.

(a) For the calendar year beginning January 1, 1968, and ending December 31, 1968, and also for each and every calendar year thereafter beginning January 1 and ending December 31 of each such year, unless otherwise changed by the council, there is hereby imposed and levied by the City of Norfolk, pursuant to the provisions of article I of chapter 38 of title 58.1 of the Code of Virginia, 1950, a tax on the recordation in the City of Norfolk of each instrument subject to the state recordation tax imposed by said article I, except any instrument on which the state recordation tax is fifty cents ($0.50) specifically, in an amount equal to one-third of the amount of the state recordation tax collectable for the commonwealth upon the first recordation of each taxable instrument in the city; provided, however, that where a deed or other instrument conveys, covers or relates to property located in the City of Norfolk and also to property located in a county or another city, or in counties or cities, the tax hereby imposed and levied shall be computed only with respect to the property located in the City of Norfolk.

(b) The Clerk of the Circuit Court of the City of Norfolk shall collect the tax hereby imposed and levied and, on or before the tenth day of each calendar month, shall remit such tax as collected during the preceding calendar month to the Treasurer of the City of Norfolk.
(Ord. No. 40,121, § 2, 9-26-00)

Secs. 24-17—24-25. Reserved.

ARTICLE II-A. BUSINESS LICENSE TAXES AND FEES*

*__Editor's note—__Ord. No. 38,573, § 1, adopted Nov. 19, 1996, repealed provisions formerly included as Ch. 24, Art. II, which contained the city's license tax ordinance and which derived from Ord. No. 12,983, §§ 1—4, 4-A, 5—19, 19-1, 20, 20-A, 21, 21-A, 22—27, 29—30, 30-A, 30-B, 31, 32, 32½, 34, 36, 36-A, 37, 37½, 38—46, 46-A, 47—51, 52½, 53—58, 58-A,

Sec. 24-25.1. Conflicting ordinances repealed.

(a) Except as may be otherwise provided by the laws of the Commonwealth of Virginia, and notwithstanding any other current ordinances or resolutions enacted by this governing body, whether or not compiled in the Norfolk City Code, 1979, to the extent of any conflict, the following provisions shall be applicable to the levy, assessment, and collection of licenses required and taxes imposed on businesses, trades, professions and callings and upon the persons, firms and corporations engaged therein within the city.

59—63, 65, 67—72, 72-A, 73, 74, 74½ 75—78, 78½, 79, 80, 80½, 81—85, 85½, 86, 86-A, 88, 88½ 89, 90, 90½, 91—94, 94-A, 96, 97, and 100; from Code 1958, §§ 2-68, 19-56, 19-58, 19-59, 19-68, 19-69; and from the following ordinances:

Ord. No.	Sec.	Date
26,501	1	8- 8-72
27,153	1	10-16-73
27,173	2	11- 6-73
27,187	1	11-12-73
28,019	1	6-10-75
28,679	1	11-23-76
28,856	1	3-29-77
28,894	1	4-26-77
31,167	1	5-26-81
31,585	1	2-23-82
32,113	1	1- 4-83
32,584	1	10-11-83
32,630	1	11- 8-83
32,709	1	1- 3-84
32,890	1, 2	5-15-84
33,172	1	11-13-84
33,231	1	12-11-84
33,282	1	1-15-85
33,343	1	3-12-85
33,517	2	6-18-85
33,787	1	12-17-85
33,788	1, 2	12-17-85
33,820	1	12-31-85
33,857	1	1-28-86
34,506	1	5-26-87
34,252	1	12- 9-86
34,262	1	12-16-86
35,243	1	9-20-88
35,586	1	6-20-89
36,408	1	4-30-91
36,412	1	5-14-81
36,582	1	10-15-91
36,889	1	6-23-92
37,256	1	2-22-94
37,564	1	4-12-94
37,691	1	6-28-94
38,189	1	11-14-95

(b) The commissioner of the revenue may, from time to time, make such rules and regulations and interpretations as he may deem necessary in the discharge of his duties consistent with chapter 37 of title 58.1 of the Code of Virginia, 1950, and with the provisions of this article.
(Ord. No. 38,573, § 3, 11-19-96)

Sec. 24-25.2. Definitions.

For the purposes of this article, unless otherwise required by the context, [the following terms shall be defined below:]

Affiliated group:

(1) One or more chains of includable corporations connected through stock ownership with a common parent corporation which is an includable corporation if:

a. Stock possessing at least eighty (80) percent of the voting power of all classes of stock and at least eighty (80) percent of each class of the nonvoting stock of each of the includable corporations, except the common parent corporation, is owned directly by one or more of the other includable corporations; and

b. The common parent corporation directly owns stock possessing at least eighty (80) percent of the voting power of all classes of stock and at least eighty (80) percent of each class of the nonvoting stock of at least one of the other includable corporations. As used in this subdivision, the term "stock" does not include nonvoting stock which is limited and preferred

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38,251	1	1-16-96
38,255	3	1-16-96
38,372	1	5-21-96
38,189	1	11-14-95
38,251	1	1-16-96
38,255	3	1-16-96
38,372	1	5-21-96

In addition, § 2 of Ord. No. 38,573 adopted and added a new Art. II-A, which is set hereinabove.

Cross reference—License tax for persons engaged in business of selling used motor vehicles at auction, § 38.50.

State law reference—License taxes, Code of Virginia, § 58.1-3700 et seq.

as to dividends. The term "includable corporation" means any corporation within the affiliated group irrespective of the state or country of its incorporation and the term, "receipts" includes gross receipts and gross income.

(2) Two (2) or more corporations if five (5) or fewer persons who are individuals, estates or trusts own stock possessing:

a. At least eighty (80) percent of the total combined voting power of all classes of stock entitled to vote or at least eighty (80) percent of the total value of shares of all classes of the stock of each corporation; and

b. More than fifty (50) percent of the total combined voting power of all classes of stock entitled to vote or more than fifty (50) percent of the total value of shares of all classes of stock of each corporation, taking into account the stock ownership of each such person only to the extent such stock ownership is identical with respect to each such corporation.

When one or more of the includable corporations, including the common parent corporation, is a nonstock corporation, the term "stock," as used in this subdivision, shall refer to the nonstock corporation membership or membership voting rights, as is appropriate to the context.

Assessment: A determination as to the proper rate of tax, the measure to which the tax rate is applied and ultimately the amount of tax, including additional or omitted tax, that is due. An assessment shall include a written assessment made pursuant to notice by the assessing official or a self-assessment made by a taxpayer upon the filing of a return or otherwise not pursuant to notice. Assessments shall be deemed made by an assessing official when a written notice of assessment is delivered to the taxpayer by the assessing official or any employee of the assessing official or mailed to the taxpayer at his last known address. Self-assessments shall be deemed made when a return is filed, or if no return is required, when the tax is paid. A return filed or tax paid before the last day prescribed by ordinance for the filing or payment thereof shall be deemed to be filed or paid on the last day specified for the filing of a return or the payment of tax, as the case may be.

Assessor or *assessing official:* The commissioner of the revenue of this jurisdiction.

Base year: The calendar year preceding the license year, except for contractors subject to the provisions of section 58.1-3715 of the Code of Virginia, 1950.

Broker: An agent of a buyer or a seller who buys or sells stocks, bonds, commodities, or services, usually on a commission basis.

Business: A course of dealing which requires the time, attention and labor of the person so engaged for the purpose of earning a livelihood or profit. It implies a continuous and regular course of dealing, rather than an irregular or isolated transaction. A person may be engaged in more than one business. The following acts shall create a rebuttable presumption that a person is engaged in a business:

(1) Advertising or otherwise holding oneself out to the public as being engaged in a particular business; or

(2) Filing tax returns, schedules and documents that are required only of persons engaged in a trade or business.

Commodity: Staples such as wool, cotton, etc., which are traded on a commodity exchange and on which there is trading in futures.

Contractor shall have the meaning prescribed in section 58.1-3714.B of the Code of Virginia, 1950, whether such work is done or offered to be done by day labor, general contract or subcontract.

Definite place of business: An office or a location at which occurs a regular and continuous course of dealing for thirty (30) consecutive days or more. A definite place of business for a person engaged in business may include a location leased or otherwise obtained from another person on a temporary or seasonal basis and real property leased to another. A person's residence shall be deemed to be a definite place of business if there

is no definite place of business maintained elsewhere and the person is not subject to licensure as a peddler or itinerant merchant.

Dealer, for purposes of this article, shall mean any person engaged in the business of buying and selling securities for his own account, but does not include a bank, or any person insofar as he buys or sells securities for his own account, either individually or in some fiduciary capacity, but not as part of a regular business.

Those engaged in rendering financial services include, but without limitation, the following:

Buying installment receivables.

Chattel mortgage financing.

Consumer financing.

Credit card services.

Credit unions.

Factors.

Financing accounts receivable.

Industrial loan companies.

Installment financing.

Inventory financing.

Loan or mortgage brokers

Loan or mortgage companies.

Safety deposit box companies.

Security and commodity brokers and services.

Stockbroker.

Working capital financing.

Financial services: The buying, selling, handling, managing, investing, and providing of advice regarding money, credit, securities and other investments and shall include the service for compensation by a credit agency, an investment company, a broker or dealer in securities and commodities or a security or commodity exchange, unless such service is otherwise provided for in this article.

Gross receipts: The whole, entire, total receipts attributable to the licensed privilege, without deduction, except as may be limited by the provisions of chapter 37 of title 58.1 of the Code of Virginia, 1950.

License year: The calendar year for which a license is issued for the privilege of engaging in business.

Personal services: Rendering for compensation any repair, personal, business or other services not specifically classified as "financial, real estate or professional service" under this article, or rendered in any other business or occupation not specifically classified in this article unless exempted from local license tax by title 58.1 of the Code of Virginia, 1950.

Professional services: Services performed by architects, attorneys-at-law, certified public accountants, dentists, engineers, land surveyors, surgeons, veterinarians, and practitioners of the healing arts (the arts and sciences dealing with the prevention, diagnosis, treatment and cure or alleviation of human physical or mental ailments, conditions, diseases, pain or infirmities and such occupations, and no others, as the Virginia Department of Taxation may list in the BPOL guidelines promulgated pursuant to section 58.1-3701 of the Code of Virginia, 1950. The department shall identify and list each occupation or vocation in which a professed knowledge of some department of science or learning, gained by a prolonged course of specialized instruction and study is used by its practical application to the affairs of others, either advising, guiding, or teaching them, and in serving their interests or welfare in the practice of an art or science founded on it. The word "profession" implies attainments in professional knowledge as distinguished from mere skill, and the application of knowledge to uses for others rather than for personal profit.

Purchases: All goods, wares and merchandise received for sale at each definite place of business of a wholesale merchant. The term shall also include the cost of manufacture of all goods, wares and merchandise manufactured by any wholesaler or wholesale merchant and sold or offered for sale. Such merchant may elect to report the gross receipts from the sale of manu-

factured goods, wares and merchandise if it cannot determine or chooses not to disclose the cost of manufacture.

Qualifying business shall mean a business that locates for the first time in the city on or after January 1, 2016. A business shall be deemed to locate in the city upon establishing a definite place of business in Norfolk and engaging in a continuous and regular course of trade from that definite place of business. A business shall not be deemed to locate in the city for the first time based on a merger, acquisition, similar business combination, name change, or change in business form.

Real estate services: Rendering a service for compensation as lessor, buyer, seller, agent or broker and providing a real estate service, unless the service is otherwise specifically provided for in this article, and such services include, but are not limited to, the following:

Appraisers of real estate.

Escrow agents, real estate.

Fiduciaries, real estate.

Lessors of real property.

Real estate agents, brokers and managers.

Real estate selling agents.

Rental agents for real estate.

Retailer or *retail merchant:* Any person or merchant who sells goods, wares and merchandise for use or consumption by the purchaser or for any purpose other than resale by the purchaser, but does not include sales at wholesale to institutional, commercial and industrial users.

Security, for purposes of this article, shall have the same meaning as in the Securities Act (section 13.1-501 et seq.) of the Code of Virginia, 1950, or in similar laws of the United States regulating the sale of securities.

Services: Things purchased by a customer which do not have physical characteristics or which are not goods, wares, or merchandise.

Trade show: An event or convention where products and/or services are promoted to the industry and/or the public.

Wholesaler or *wholesale merchant:* Any person or merchant who sells wares and merchandise for resale by the purchaser, including sales when the goods, wares and merchandise will be incorporated into goods for sale, and also includes sales to institutional, commercial, government and industrial users which because of the quantity, price, or other terms indicate that they are consistent with sales at wholesale.
(Ord. No. 38,552, § 1, 10-29-96; Ord. No. 38,875, § 1, 8-19-97; Ord. No. 39,722, § 1, 9-14-99; Ord. No. 41,788, § 1, 4-5-05; Ord. No 43,843, § 1, 5-18-10; Ord. No. 45,955, § 18, 5-19-15, eff. 7-1-15)

Sec. 24-25.3. License requirement.

(a) Every person engaging in the city in any business, trade, profession, occupation or calling (collectively hereinafter "a business"), as defined in this article, unless otherwise exempted by law, shall apply for a license for each such business if (i) such person maintains a definite place of business in the city, (ii) such person does not maintain a definite office but does maintain an abode in the city, which abode for the purposes of this article shall be deemed a definite place of business, or (iii) there is no definite place of business but such person operates amusement machines, is engaged as a peddler or itinerant merchant, carnival or circus as specified in sections 58.1-3717, 58.1-3713 or 58.1-3728, respectively, of the Code of Virginia, 1950, or is a contractor subject to section 58.1-3715 of the Code of Virginia, or is a public service corporation subject to section 58.1-3731 of the Code of Virginia. A separate license shall be required for each definite place of business. A person engaged in two (2) or more businesses or professions carried on at the same place of business may elect to obtain an license for all such businesses and professions if all of the following criteria are satisfied:

(1) Each business or profession is licensable at the location and has satisfied any requirements imposed by state law or other provisions of the ordinances of this jurisdiction;

(2) All of the businesses or professions are subject to the same tax rate, or, if subject

to different tax rates, the licensee agrees to be taxed on all businesses and professions at the highest rate; and

(3) The taxpayer agrees to supply such information as the assessor may require concerning the nature of the several businesses and their gross receipts.

(b) Each person subject to a license tax shall apply for a license prior to beginning business if he was not in this jurisdiction on or before January 1 of the license year, or no later than March 1 of the current license year if he had been issued a license for the preceding license year. The application shall be on forms prescribed by the assessing official.

(c) The tax shall be paid with the application in the case of any license not based on gross receipts.

If, the tax is measured by the gross receipts of the business, the tax shall be paid on or before March 1.

(1) Whenever in this article it is provided that any person shall pay a license tax based on gross receipts or gross purchases, such license tax shall be based on the gross receipts or gross purchases during the base year to the extent the base year represents a full calendar year of operations of such person subject to a license tax. Whenever a person subject to a license tax based on gross receipts or gross purchases had not engaged in business for the full preceding calendar year, the tax shall be based upon an estimate of gross receipts or purchases during the current license year. For a person that during the current license year begins a business that is subject to a license tax based on gross receipts or gross purchases, the tax shall be based upon an estimate of gross receipts or gross purchases from the date business begins through December thirty-first of the current license year.

(2) Whenever a license tax is assessed on the basis of estimated gross receipts or estimated gross purchases, every underestimate thereof shall be subject to correction by the commissioner of the revenue, and it shall be her duty to assess such person with such additional license tax as may be found to be due after the close of the license year on the basis of the true amount of such gross receipts or gross purchases during the period covered by the license.

(d) The assessing official may grant an extension of time, not to exceed ninety (90) days, in which to file an application for a license, for reasonable cause. The extension shall be conditioned upon the timely payment of a reasonable estimate of the appropriate tax, subject to adjustment to the correct tax at the end of the extension together with interest from the due date until the date paid and, if the estimate submitted with the extension is found to be unreasonable under the circumstances, a penalty of ten (10) percent of the portion paid after the due date.

(e) A penalty of ten (10) percent of the tax, or ten dollars ($10.00), whichever is greater, may be imposed upon the failure to file an application or the failure to pay the tax by the appropriate due date. Only the late filing penalty shall be imposed by the assessing official if both the application and payment are late; however, both penalties may be assessed if the assessing official determines that the taxpayer has a history of noncompliance. In the case of an assessment of additional tax made by the assessing official, if the application and, if applicable, the return were made in good faith and the understatement of the tax was not due to any fraud, reckless or intentional disregard of the law by the taxpayer, there shall be no late payment penalty assessed with the additional tax. If any assessment of tax by the assessing official is not paid within thirty (30) days the collecting official may impose a ten (10) percent late payment penalty. The penalties shall not be imposed or, if imposed, shall be abated by the official who assessed them if the failure to file or pay was not the fault of the taxpayer. In order to demonstrate lack of fault, the taxpayer must show that he acted responsible and that the failure was due to events beyond his control.

"Acted responsibly" means that:

(1) The taxpayer exercised the leave of reasonable care that a prudent person would exercise under the circumstances in determining the filing obligations for the business; and

(2) The taxpayer undertook significant steps to avoid or mitigate the failure, such as requesting appropriate extensions (where applicable), attempting to prevent a foreseeable impediment, acting to remove an impediment once it occurred, and promptly rectifying a failure once the impediment was removed or the failure discovered.

"Events beyond the taxpayer's control" include, but are not limited to, the unavailability of records due to fire or other casualty; the unavoidable absence (e.g., due to death or serious illness) of the person with the sole responsibility for tax compliance; or the taxpayer's reasonable reliance in good faith upon erroneous written information from the assessing official, who was aware of the relevant facts relating to the taxpayer's business when he provided the erroneous information.

(f) Interest at six (6) percent per annum shall be charged on the late payment of the tax from the due date until the date paid without regard to fault or other reason for the late payment. Whenever an assessment of additional or omitted tax by the assessing official is found to be erroneous, all interest and penalty charged and collected on the amount of the assessment found to be erroneous shall be refunded together with interest on the refund from the date of payment or the due date, whichever is later. Interest shall be paid on the refund of any tax paid under this article from the date of payment or due date, whichever is later, whether attributable to an amended return or other reason. Interest on any refund shall be paid at the same rate charged under section 58.1-3916 [Code of Virginia, 1950].

No interest shall accrue on an adjustment of estimated tax liability to actual liability at the conclusion of the adjusted license year. No interest shall be paid on a refund or charged on a late payment, in event of such adjustment, provided the refund or the late payment is made not more than thirty (30) days from (i) the date of the payment that created the refund, or (ii) the due date of the tax, whichever is later.

(g) The commissioner of the revenue shall not issue a license for conducting any business or practicing any profession or calling in the event that:

(1) The location where the conduct of such business is prohibited by the zoning ordinance of the city;

(2) The applicant for such license has not provided permits, certifications and approvals for conducting such business as may be required by the department of public health, the circuit court and/or any other regulatory agency of the City of Norfolk or the Commonwealth of Virginia.

(h) Licenses issued under this article shall be transferable, except where otherwise provided, but in no case shall any transfer of a license be legal or valid, unless written notice of such transfer is given to the commissioner of the revenue and unless the commissioner of the revenue has approved the transfer, in writing, on the license. The notice shall state the time of the transfer, the place of the transfer and the name of the person to whom transferred. The commissioner of the revenue shall not approve such transfer, if the new location does not conform to the zoning ordinance as described in subparagraph (g)(1) above. The commissioner of the revenue shall keep a record of such transfers.

(i) Every person in charge of premises where a business, occupation, profession or other activity required to be licensed under this article is conductive or practical shall permit any member of the police department, when detailed or authorized to make such inspections, and the license inspector, to make a physical inspection of the entire premises for the purpose of ascertaining license tax liability, at any time during regular hours of the business operation.

(j) The commissioner of the revenue shall not issue or reissue a business license under this chapter to any contractor who:

(1) Has not obtained or is not maintaining workers' compensation coverage for his employees; and

(2) At the time of application for such issuance or reissuance, is required to obtain or maintain such coverage pursuant to chapter 8 (section 65.2-800 et seq.) of title 65.2 of the Code of Virginia, 1950, as amended. The commissioner of the revenue shall at the time of any application for issuance or reissuance of a business license require every contractor to provide written certification that such contractor is in compliance with the provisions of section 65.2-800 et seq., of the Code of Virginia, 1950, as amended, and will remain in compliance with such provisions at all times during the effective period of any such business license. Such signed certification shall be forwarded by the commissioner of the revenue to the Virginia Workers' Compensation Commission. Any person who knowingly presents or causes to be presented to the commissioner of the revenue a false certificate shall be guilty of a class 3 misdemeanor.

(Ord. No. 38,573, § 3, 11-19-96; Ord. No. 39,722, §§ 2, 3, 9-14-99; Ord. No. 40,032, § 1, 7-11-00)

Sec. 24-25.4. Situs of gross receipts.

(a) *General rule.* Whenever the tax imposed by this article is measured by gross receipts, the gross receipts included in the taxable measure shall be only those gross receipts attributed to the exercise of a licensable privilege at a definite place of business within this jurisdiction. In the case of activities conducted outside of a definite place of business, such as during a visit to a customer location, the gross receipts shall be attributed to the definite place of business from which such activities are initiated, directed, or controlled. The situs of gross receipts for different classifications of business shall be attributed to one or more definite places of business or offices as follows:

(1) The gross receipts of a contractor shall be attributed to the definite place of business at which his services are performed, or if his services are not performed at any definite place of business, then the definite place of business from which his services are directed or controlled, unless the contractor is subject to the provisions of section 58.1-3715, of the Code of Virginia, 1950.

(2) The gross receipts of a retailer or wholesaler shall be attributed to the definite place of business at which sales solicitation activities occur, or if sales solicitation activities do not occur at any definite place of business, then the definite place of business from which sales solicitation activities are directed or controlled; however, a wholesaler or distribution house subject to a license tax measured by purchases shall determine the situs of its purchases by the definite place of business at which or from which deliveries of the purchased goods, wares and merchandise are made to customers. Any wholesaler who is subject to license tax in two (2) or more localities and who is subject to multiple taxation because the localities use different measures, may apply to the department of taxation for a determination as to the proper measures of purchases and gross receipts subject to license tax in each locality.

(3) The gross receipts of a business renting tangible personal property shall be attributed to the definite place of business from which the tangible personal property is rented or, if the property is not rented from any definite place of business, then the definite place of business at which the rental of such property is managed.

(4) The gross receipts from the performance of services shall be attributed to the definite place of business at which the

services are performed or, if not performed at any definite place of business, then the definite place of business from which the services are directed or controlled.

(b) *Apportionment.* If the licensee has more than one definite place of business and it is impractical or impossible to determine to which definite place of business gross receipts should be attributed under the general rule (and the affected jurisdictions are unable to reach an apportionment agreement), except as to circumstances set forth in section 58.1-3709 of the Code of Virginia, 1950, the gross receipts of the business shall be apportioned between the definite places of businesses on the basis of payroll. Gross receipts shall not be apportioned to a definite place of business unless some activities under the applicable general rule occurred at, or were controlled from, such definite place of business. Gross receipts attributable to a definite place of business in another jurisdiction shall not be attributed to this jurisdiction solely because the other jurisdiction does not impose a tax on the gross receipts attributable to the definite place of business in such other jurisdiction.

(c) *Agreements.* The assessor may enter into agreements with any other political subdivision of Virginia concerning the manner in which gross receipts shall be apportioned among definite places of business. However, the sum of the gross receipts apportioned by the agreement shall not exceed the total gross receipts attributable to all of the definite places of business affected by the agreement. Upon being notified by a taxpayer that its method of attributing gross receipts is fundamentally inconsistent with the method of one or more political subdivisions in which the taxpayer is licensed to engage in business and that the difference has, or is likely to, result in taxes on more than one hundred (100) percent of its gross receipts from all locations in the affected jurisdictions, the assessor shall make a good faith effort to reach an apportionment agreement with the other political subdivisions involved.
(Ord. No. 38,573, § 3, 11-19-96)

Sec. 24-25.5. Limitations and extensions.

(a) Where, before the expiration of the time prescribed for the assessment of any license tax imposed pursuant to this article, both the assessing official and the taxpayer have consented in writing to its assessment after such time, the tax may be assessed at any time prior to the expiration of the period agreed upon. The period so agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(b) Notwithstanding section 58.1-3903 of the Code of Virginia, 1950, the assessing official shall assess the local license tax omitted because of fraud or failure to apply for a license for the current license year and the six (6) preceding years.

(c) The period for collecting any local license tax shall not expire prior to the period specified in section 58.1-3940 of the Code of Virginia, 1950, two (2) years after the date of assessment if the period for assessment has been extended pursuant to this subdivision, two (2) years after the final determination of an appeal for which collection has been stayed pursuant to the following subsections 24-25.6(b) or (d) of this article, or two (2) years after the final decision in a court application pursuant to section 58.1-3984 of the Code of Virginia, 1950, or similar law for which collection has been stayed, whichever is later.
(Ord. No. 38,573, § 3, 11-19-96)

Sec. 24-25.6. Appeals and rulings.

(a) Any person assessed with a licensing tax under this article as the result of an audit may apply to the assessing official for a correction of the assessment. The appeal must be filed within one (1) year from the later of either the last day of the tax year for which such assessment is made or the date of the appealable event, as that term is defined below. The application must be filed in good faith and sufficiently identify the taxpayer, audit period, remedy sought, each alleged error in the assessment, the grounds upon which the taxpayer relies, and any other facts relevant to the taxpayer's contention. The assessor may hold a conference with the taxpayer if requested by the taxpayer, or require submis-

sion of additional information and documents, further audit, or other evidence deemed necessary for a proper and equitable determination of the applications. The assessment shall be deemed prima facie correct. The assessor shall undertake a full review of the taxpayer's claims and issue a determination to the taxpayer setting forth its position. Every assessment pursuant to an audit shall be accompanied by a written explanation of the taxpayer's right to seek correction and the specific procedure to be followed in the city.

(b) Provided an application is made before the deadline set forth in subsection (a), above, collection activity shall be suspended until a final determination is issued by the assessor, unless the assessor determines that collection would be jeopardized by delay or that the taxpayer has not responded to a request for relevant information after a reasonable time. Interest shall accrue in accordance with the provisions of subsection 24-25.3(f) of this article, but no further penalty shall be imposed while collection action is suspended. The term "jeopardized by delay" includes a finding that the application is frivolous, or that a taxpayer desires:

(1) To depart quickly from the locality;

(2) To remove his property therefrom;

(3) To conceal himself or his property therein; or

(4) To do any other act tending to prejudice, or to render wholly or partially ineffectual, proceedings to collect the tax for the period in question

(c) Any person assessed with a license tax under this article as a result of a determination made following an application for correction under subsection (a), above, that is adverse to the position taken by that taxpayer in its application may, within ninety (90) days of the determination by the assessing official, apply to the tax commissioner for a correction of such assessment. The tax commissioner shall issue a determination to the taxpayer within ninety (90) days of receipt of the taxpayer's application, unless the taxpayer and the assessing official are notified that a longer period will be required. The application shall be treated as an application pursuant to section 58.1-1821 of the Code of Virginia, 1950, and the tax commissioner may issue an order correcting such assessment pursuant to section 58.1-1821 of the Code of Virginia, 1950, and the tax commissioner may issue an order correcting such assessment pursuant to section 58.1-1822 of the Code of Virginia, 1950. Following such an order, either the taxpayer or the assessing official may apply to the appropriate circuit court pursuant to section 58.1-3984 of the Code of Virginia, 1950. However, the burden shall be on the party making the application to show that the ruling of the tax commissioner is erroneous. Neither the tax commissioner nor the department of taxation shall be made a party to an application to correct an assessment merely because the tax commissioner has ruled on it.

(d) On receipt of a notice of intent to file an appeal to the tax commissioner under subsection (c) above, the assessing official shall further suspend collection activity until a final determination is issued by the tax commissioner, unless the assessor determines that collection would be jeopardized by delay or that the taxpayer has not responded to a request for relevant information after a reasonable time. Interest shall accrue in accordance with the provisions of subsection 24-25.3(f), but no further penalty shall be imposed while collection action is suspended. The term "jeopardized by delay" shall have the same meaning as set forth in subsection (b) above.

(e) Any taxpayer may request a written ruling regarding the application of the tax to a specific situation from the assessor. Any person requesting such a ruling must provide all the relevant facts for the situation and may present a rationale for the basis of an interpretation of the law most favorable to the taxpayer. Any misrepresentation or change in the applicable law or the factual situation as presented in the ruling request shall invalidate any such ruling issued. A written ruling may be revoked or amended prospectively if:

(1) There is a change in the law, a court decision; or

(2) The assessor notifies the taxpayer of a change in the policy or interpretation upon which the ruling was based.

However, any person who acts on a written ruling which later becomes invalid shall be deemed to have acted in good faith during the period in which such ruling was in effect.

(f) For purpose of this section, "appealable event" means an increase in the assessment of a local license tax payable by a taxpayer, the denial of a refund, or the assessment of a local license tax where none previously was assessed, arising out of the local assessing official's (i) examination of records, financial statements, books of account, or other information for the purpose of determining the correctness of an assessment; (ii) determination regarding the rate or classification applicable to the licensable business; (iii) assessment of a local license tax when no return has been filed by the taxpayer; or (iv) denial of an application for correction of erroneous assessment attendant to the filing of an amended application for license. An appealable event shall include a taxpayer's appeal of the classification applicable to a business, including whether the business properly falls within a business license subclassification established by the locality, regardless of whether the taxpayer's appeal is in conjunction with an assessment, examination, audit, or any other action taken by the locality.
(Ord. No. 38,573, § 3, 11-19-96; Ord. No. 47,908, § 1, 2-25-20)

Sec. 24-25.7. Record keeping and audits.

Every person who is assessable with a license tax shall keep sufficient records to enable the assessor to verify the correctness of the tax paid for the license years assessable and to enable the assessor to ascertain what is the correct amount of tax that was assessable for each of those years. All such records, books of accounts and other information shall be open to inspection and examination by the assessor in order to allow the assessor to establish whether a particular receipt is directly attributable to the taxable privilege exercised within this jurisdiction. The assessor shall provide the taxpayer with the option to conduct the audit in the taxpayer's local business office, if the records are maintained there. In the event the records are maintained outside this jurisdiction, copies of the appropriate books and records shall be sent to the assessor's office upon demand.
(Ord. No. 38,573, § 3, 11-19-96)

Sec. 24-25.8. Exclusions and deductions from "gross receipts."

(a) *General rule.* Gross receipts for license tax purposes shall not include any amount not derived from the exercise of the licensed privilege to engage in a business or profession in the ordinary course of business or profession.

(b) *Items excluded from gross receipts.* The following items shall be excluded from gross receipts:

(1) Amounts received and paid to the United States, the commonwealth or any county, city or town for the Virginia retail sales or use tax, or for any local sales tax or any local excise tax on cigarettes, or amounts received for any federal or state excise taxes on motor fuels.

(2) Any amount representing the liquidation of a debt or conversion of another asset to the extent that the amount is attributable to a transaction previously taxed (e.g., the factoring of accounts receivable created by sales which have been included in taxable receipts even though the creation of such debt and factoring are a regular part of its business).

(3) Any amount representing returns and allowances granted by the business to its customer.

(4) Receipts which are the proceeds of a loan transaction in which the licensee is the obligor.

(5) Receipts representing the return of principal of a loan transaction in which the licensee is the creditor, or the return of principal or basis upon the sale of a capital asset.

(6) Rebates and discounts taken or received on account of purchases by the licensee. A rebate or other incentive offered to induce the recipient to purchase certain

goods or services from a person other than the offeror, and which the recipient assigns to the licensee in consideration of the sale of goods and services shall not be considered a rebate or discount to the licensee, but shall be included in the licensee's gross receipts together with any handling or other fees related to the incentive.

(7) Withdrawals from inventory for purposes other than sale or distribution and for which no consideration is received and the occasional sale or exchange of assets other than inventory, whether or not a gain or loss is recognized for federal income tax purposes.

(8) Investment income not directly related to the privilege exercised by a licensable business not classified as rendering financial services. This exclusion shall apply to interest on bank accounts of the business, and to interest, dividends and other income derived from the investment of its own funds in securities and other types of investments unrelated to the licensed privilege. This exclusion shall not apply to interest, late fees and similar income attributable to an installment sale or other transaction that occurred in the regular course of business.

(c) *Items deducted from gross receipts or gross purchases.* The following shall be deducted from gross receipts or gross purchases that would otherwise be taxable:

(1) Any amount paid for computer hardware and software that are sold to a United States federal or state government entity provided that such property was purchased within two (2) years of the sale to said entity by the original purchaser who shall have been contractually obligated at the time of purchase to resell such property to a state or federal government entity. This deduction shall not occur until the time of resale and shall apply to only the original cost of the property and not to its resale price, and the deduction shall not apply to any of the tangible personal property which was the subject of the original resale contract if it is not resold to a state or federal government entity in accordance with the original contract obligation.

(2) Any receipts attributable to business conducted in another state or foreign country in which the taxpayer is liable for an income or other tax based upon income.

(Ord. No. 38,573, § 3, 11-19-96; Ord. No. 42,666, § 1, 5-15-07)

Sec. 24-25.9. License fee and tax.

(a) *[Exemptions.]*

(1) *Small business exemption.* In accordance with section 58.1-3706 of the Code of Virginia, 1950, businesses with taxable gross receipts, as defined in this article, which are one hundred thousand dollars ($100,000.00) or less annually shall be exempt from the license tax provisions that would otherwise apply pursuant to this section. This exemption shall not exempt any business from obtaining a license. If actual taxable gross receipts in any year exceed the one hundred thousand dollar ($100,000.00) threshold, the licensee shall report said fact to the commissioner of the revenue for adjustment. The tax shall then be computed on actual taxable gross receipts, giving credit for any license fee payment previously made. The tax shall then be promptly remitted to the commissioner.

(2) *Qualifying business with taxable gross receipts of $1,000,000.00 or less exemption.* It is the intent of this provision to encourage new small businesses to locate in the city. In accordance with section 58.1-3703 of the Code of Virginia, 1950, qualifying businesses, as defined in City Code section 24-25.2, with total taxable gross receipts from all classifications of business in the amount of one million dollars ($1,000,000.00) or less annually shall be exempt from the license tax that would otherwise be payable pursuant to this article. For qualifying businesses with total taxable gross receipts from all classifications of business exceeding one million dollars ($1,000,000.00) annually, the license tax provisions of this article shall apply. A designation as a qualifying business and any exemption pursuant to this paragraph (a)(2) shall automatically lapse at the end of the first full business license year following the license year during which a new business first locates in the city. Following such lapse, the business shall be subject to all business license requirements unless otherwise exempt pursuant to subsection (a)(1).

A business that is determined to be a qualifying business, whether or not exempt hereunder, must obtain a business license and pay the fee pursuant to paragraph (b) for each classification of business in accordance with the provisions of this section.

Any new business seeking to qualify for this exemption shall complete an application for qualification, provide documentation sufficient to establish qualification as a qualifying business, and provide reasonable projected taxable gross receipts. The application shall be in the form required by the commissioner of the revenue. The applicant shall have the burden of proving qualification for this exemption on an

annual basis. The applicant shall provide truthful information. Any determination of qualification or non-qualification shall be given in writing by the commissioner of the revenue. The appeal of a determination of non-qualification shall be in the same manner as the appeal process of any other business license tax decision.

A new business entity that (i) meets the definition of "affiliated group," as defined in Code of Virginia § 58.1-3700.1, and (ii) conducts business activities that are similar to one (1) or more of the affiliated businesses shall be deemed a change in business form as such phrase is used in the definition of qualifying business and shall not qualify as a qualifying business. However, a new business entity that meets the "affiliated group" definition but undertakes a business that conducts substantially different business activities shall not be deemed a change in business form. A new business with taxable gross receipts of one million dollars ($1,000,000.00) or less but that files consolidated financial statements with a parent or other affiliated entity with combined taxable gross receipts in excess of one million dollars ($1,000,000.00) shall not be entitled to an exemption under this section 24-25.9. A business shall not be deemed to locate in the city for the first time if there is an existing business in the city trading under the same or substantially similar business name, the businesses conduct similar business activities, and the businesses are related either by a shared ownership structure or a contractual relationship such as a franchisor/franchisee relationship. A qualifying business shall not include peddlers and itinerant merchants. A qualifying business shall not include a contractor required to obtain a business license by Code of Virginia § 58.1-3715(B).

All qualifying businesses shall file a business license return with the commissioner of the revenue reporting taxable gross receipts earned in accordance with the provisions of this section and section 24-25.3 in the previous calendar year. In the case of an underpayment by a qualifying business that estimated taxable gross receipts to be one million dollars ($1,000,000.00) or less in any year while designated as a qualifying business and whose actual taxable gross receipts earned in that year exceeded the one million dollar ($1,000,000.00) threshold, the commissioner of the revenue shall assess such qualifying business with any additional license tax found to be due. The tax shall then be computed on actual taxable gross receipts, giving credit for any license fee payment previously made. The tax shall then be promptly remitted to the commissioner. In the case of an overpayment by a qualifying business that estimated taxable gross receipts to be in excess of one million dollars ($1,000,000.00) in any year while designated as a qualifying business and whose actual taxable gross receipts earned in that year did not exceed the one million dollar ($1,000,000.00) threshold, the qualifying business shall receive a credit of the excess tax paid in the previous year.

A qualifying business shall forfeit any entitlement to the license tax exemption provided in this section 24-25.9 if (i) such business is delinquent on any local tax and fees, including, without limitation, personal property tax, real property tax, admissions tax, food and beverage tax, mixed beverage annual review with alcoholic beverage control, sales and use tax, and transient occupancy tax or (ii) such business fails to file returns for self-reported taxes at such times and in such manner as required by law. A qualifying business shall report its personal property and taxable gross receipts to the commissioner of the revenue at such times and in such manner as required by law and the failure to timely report shall result in the forfeiture of any entitlement to the license tax exemption provided by this section 24-25.9.

(b) *Annual license fee.* In accordance with section 58.1-3703 of the Code of Virginia, 1950, there shall be a fee for issuance of the annual business license for those businesses exempt from the license tax pursuant to paragraph (a) of this section. The following fee schedule shall apply to said business:

Tax Year Beginning	*Fee*
January 1, 1999 or any previous year	$60.00
January 1, 2000 or any subsequent year	$50.00

The fee is due and payable on or before March 1 of each license year or at the time a new business is opened, and is further subject to the penalty and interest provisions of section 24-25.3.

(c) *Tax rates imposed:*

(1) For contractors and persons constructing for their own accounts for sale, sixteen cents ($0.16) per one hundred dollars ($100.00) of gross receipts;

(2) For retailers, twenty cents ($0.20) per one hundred dollars ($100.00) of gross receipts;

(3) For financial, real estate and professional services, fifty-eight cents ($0.58) per one hundred dollars ($100.00) of gross receipts;

(4) For repair, personal and business services and all other businesses and occupations not specifically listed or exempted in this article or otherwise by law, thirty-six cents ($0.36) per one hundred dollars ($100.00) of gross receipts;

(5) For wholesalers, fifty dollars ($50.00) and 15/100 of one percent of purchases;

(6) For carnivals, circuses and speedways, two hundred dollars ($200.00) per day for each performance held in this jurisdiction;

(7) For itinerant merchants or nonfood peddlers, five hundred dollars ($500.00) per year;

(8) For nonlocal photographers, as defined in section 58.1-3727 of the Code of Virginia, 1950, thirty dollars ($30.00) per year;

(9) For permanent coliseums, arenas or auditoriums having a maximum capacity in excess of ten thousand (10,000) persons, open to the public, one thousand dollars ($1,000.00) per year;

(10) For savings and loan associations and state-chartered credit unions, thirty dollars ($30.00) per year;

(11) For direct sellers as defined in section 58.1-3719.1 of the Code of Virginia, 1950, with total annual sales in excess of four thousand dollars ($4,000.00), twenty cents ($0.20) per one hundred dollars ($100.00) of total annual retail sales or five cents ($0.05) per one hundred dollars ($100.00) of total annual wholesale sales, whichever is applicable;

(12) For public service corporations as defined in section 58.1-3731 of the Code of Virginia, 1950, fifty cents ($0.50) per one hundred dollars ($100.00) of gross receipts; and

(13) For any person, firm, or corporation designated as the principal or prime contractor receiving identifiable federal appropriations from research and development services as defined in section 31.205-18(a) of the Federal Acquisition Regulation in the areas of (i) computer and electronic systems, (ii) computer software, (iii) applied sciences, (iv) economic and social sciences, and (v) electronic and physical sciences shall be subject to a license tax rate of three cents ($0.03) per one hundred dollars ($100.00) of such federal funds received in payment of such contracts upon documentation provided by such person, firm or corporation to the commissioner of revenue confirming the applicability of this subsection.

(14) Event organizers of trade shows, exhibits or similar events conducted within the Norfolk SCOPE facility where show vendors are anticipated to sell goods, wares,

merchandise and services may obtain an umbrella license from the commissioner of the revenue that will satisfy the business license requirement for business transacted by all registered merchants and vendors at the event. For any other business conducted in the city by any such merchant or vendor, the appropriate license required by this chapter must be obtained. A sponsor obtaining an umbrella license shall pay a license fee of ten dollars ($10.00) per merchant or vendor; provided, however, that regardless of the number of merchants and vendors in such trade show or similar event, the cost of such license shall not be less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00). For purposes of this section, a person shall be considered a merchant or vendor at the event only if he or she (i) has registered with the event organizer, and (ii) only conducts business within the boundaries of the area in which the event is held.

Any person or organization issued an umbrella license shall comply with all other City Code reporting requirements to the commissioner of the revenue. The provisions of this subsection are applicable only to the activities of temporary or transient merchants and vendors, and shall not be applicable to other licensable activities.

(d) *Short-term rental tax.*

(1) *Classification.* In accordance with [Code of Virginia,] § 58.1-3706(c), any person engaged in the short-term rental business shall be classified in the category of retail sales for license tax rate purposes.

(2) *Levied amount.* Pursuant to Code of Virginia, § 58.1-3510.6 of the Code of Virginia, there is hereby assessed and imposed on:

(a) Every person engaged in the short-term rental business as defined in subsection (d)(4)a. a tax of one percent on the gross proceeds of such business; and

(b) Every person engaged in the short-term rental business as defined in subsection (d)(4)b. a tax of one and one-half percent on the gross proceeds of such business. Such tax shall be in addition to the tax levied pursuant to Code of Virginia, § 58.1-605.

For purposes of this section, "gross proceeds" means the total amount charged to each person for the rental of daily rental property, excluding any state and local sales tax paid pursuant to the Virginia Retail Sales and Use Tax Act.

(3) *Daily rental property defined.* For purposes of this section, "daily rental property" means all tangible personal property held for rental and owned by a person engaged in the short-term rental business, except trailers, as defined in Code of Virginia, § 46.1-1(33) and other tangible personal property required to be licensed or registered with the department of motor vehicles, department of game and inland fisheries, or the department of aviation.

(4) *Short-term rental business defined.* A person is engaged in the short-term rental business if:

a. Not less than eighty (80) percent of the gross rental receipts of such business in any year are from transactions involving rental periods of ninety-two (92) consecutive days or less, including all extensions and renewals to the same person or a person affiliated with the lessor; or

b. Not less than sixty (60) percent of the gross rental receipts of such business during the preceding year arose from transactions involving the rental of heavy equipment property for periods of two hundred seventy (270) consecutive days or less, including all extensions and renewals to the same person or a person affiliated with the lessee.

For the purposes of this subdivision, "heavy equipment property" means rental property of

an industry that is described under code 532412 or 532490 of the 2002 North American Industry Classification System as published by the United States Census Bureau, excluding office furniture, office equipment, and programmable computer equipment and peripherals as defined in Code of Virginia, § 58.1-3503A16. For purposes of determining whether a person is engaged in the short-term rental business as defined in subsection B,

(i) A person is "affiliated" with the lessee of rental property if such person is an officer, director, partner, member, shareholder, parent or subsidiary of the lessee, or if such person and the lessee have any common ownership interest in excess of five percent,

(ii) Any rental to a person affiliated with the lessee shall be treated as rental receipts but shall not qualify for purposes of the eighty (80) percent requirement of subdivision 1 of subsection B of Code of Virginia, § 58.1-3510.4 or the sixty (60) percent requirement of subdivision 2 of subsection B of Code of Virginia, § 58.1-3510.4, and

(iii) Any rental of personal property which also involves the provision of personal services for the operation of the personal property rented shall not be treated as gross receipts from rental, provided however that the delivery and installation of tangible personal property shall not mean operation for the purposes of this subdivision.

(5) *Taxation of rental property that is not daily rental property.* Except for daily rental passenger cars, rental property that is not daily rental property shall be classified for taxation pursuant to Code of Virginia, § 58.1-3510.6(e).

(6) *Collection return and remittance of tax.* Any person engaged in the short-term rental business, as defined in Code of Virginia, § 58.1-3510.4, pursuant to this section shall collect such tax from each lessee of rental property at the time of rental and shall transmit a quarterly return, not later than the fifteenth day following the end of each calendar quarter, to the commissioner of the revenue, reporting the gross rental proceeds derived and taxes collected from the short-term rental business. The short-term rental business shall pay the tax to the treasurer not later than the last day of the month following the end of the calendar quarter. Any failure to file a quarterly return required by this section or to pay short-term rental property tax when due shall be subject to the provisions of Code of Virginia § 58.1-3510.7.

(7) *Procedure upon failure to collect, report or remit taxes.* If any person whose duty it is so to do shall fail or refuse to collect the tax imposed under this article and to make, within the time provided in this article, the returns and remittances required in this article, the commissioner of [the] revenue shall proceed in such manner as he may deem best to obtain facts and information on which to base his estimate of the tax due. As soon as the commissioner of [the] revenue shall procure such facts and information as he is able to obtain upon which to base the assessment of any tax payable by any person who has failed or refused to collect such tax and to make such return and remittance he shall proceed to determine and assess against such person the tax, penalty and interest provided for by this article and shall notify such person, by registered mail, sent to his last known place of address, of the total amount of such tax, penalty and interest and the total amount thereof shall be payable within ten (10) days from the date of such notice. In the event such tax is not paid within ten (10) days from the date of the notice, the treasurer shall proceed to collect same in accordance with Code of Virginia, title 58.1, chapter 9.

(8) *Penalty and interest.*

a. When any dealer fails to make any return and pay the full amount of the tax required by this chapter, there shall be imposed, in addition to other penalties provided herein, a specific penalty to be added to the tax in the amount of six (6) percent if the failure is for not more than one month, with an additional six (6) percent for each additional month, or fraction thereof, during which the failure continues, not to exceed thirty (30) percent in the aggregate. In no case, however, shall the penalty be less than ten dollars ($10.00) and such minimum penalty shall apply whether or not any tax is due for the period for which such return was required. If such failure is due to providential or other good cause shown to the satisfaction of the commissioner of the revenue, such return with or without remittance may be accepted exclusive of penalties. In the case of a false or fraudulent return where willful intent exists to defraud the city of any tax due under this chapter, or in the case of a willful failure to file a return with the intent to defraud the city of any such tax, a specific penalty of fifty (50) percent of the amount of the proper tax shall be assessed. All penalties and interest imposed by this chapter shall be payable by the dealer and collectible by the treasurer in the same manner as if they were a part of the tax imposed.

b. It shall be prima facie evidence of intent to defraud the city of any tax due under this chapter when any dealer reports his gross sales, gross proceeds or cost price, as the case may be, at fifty (50) percent or less of the actual amount.

c. Interest at a rate determined in accordance with Code of Virginia, § 58.1-15, shall accrue on the tax until the same is paid, or until an assessment is made, pursuant to Code of Virginia, § 58.1-15, after which interest shall accrue as provided therein.

(9) *Exclusions and exemptions.* No tax shall be collected or assessed on:

a. Rentals by the commonwealth, any political subdivision of the commonwealth or the United States or

b. Any rental of durable medical equipment as defined in Code of Virginia, § 58.1-3510.7. Additionally, all exemptions applicable in Code of Virginia, title 58, chapter 6 (§ 58.1-600 et seq.) shall apply mutatis mutandis to the daily rental property tax.

(10) *Renter's certificate of registration.* A person who has not previously been engaged in the short-term rental business who applies for a certificate of registration pursuant to Code of Virginia, § 58.1-3510.5 shall be eligible for registration upon his certification that he anticipates meeting the requirements of a specific subdivision of Code of Virginia, § 58.1-3510.5, subsection B, designated by the applicant at the time of application, during the year for which registration is sought.

Every person engaging in the short-term rental business, as defined in Code of Virginia, § 58.1-3510.4, shall file annually with the commissioner of the revenue an application for a certificate of registration. The application shall be in a form prescribed by the commissioner of the revenue and shall set forth the name under which the applicant operates or intends to operate the rental business, the location of the business, the subdivision of Code of Virginia, § 58.1-3510.4B under which the business asserts that it is qualified for certification as a short-term rental business, and such other information as the commissioner may require.

Each applicant shall sign the application as owner of the rental business. If the

rental business is owned by an association, partnership, limited liability company, or corporation, the application shall be signed by a member, partner, executive officer, or other person specifically authorized by the association, partnership, limited liability company, or corporation to sign.

Upon approval of the application by the commissioner, a certificate of registration shall be issued. The certificate shall be conspicuously displayed at all times at the place of business for which it is issued.

The certificate is not assignable and shall be valid only for the person in whose name it is issued and the place of business designated.

In the event that the commissioner of the revenue makes a written determination that a rental business previously certified as short-term rental business pursuant to Code of Virginia, § 58.1-3510.5 has failed to meet either of the tests set forth in Code of Virginia, § 58.1-3510.5, subsection B of during a preceding tax year, such business shall lose its certification as a short-term rental business and shall be subject to the business personal property tax with respect to all rental property for the tax year in which such certification is lost and any subsequent tax years until such time as the rental business obtains recertification pursuant to Code of Virginia, § 58.1-3510.5. In the event that a rental business loses its certification as a short-term rental business pursuant to this subsection, such business shall not be required to refund to customers daily rental property taxes previously collected in good faith and shall not be subject to assessment for business personal property taxes with respect to rental property for tax years preceding the year in which the certification is lost unless the commissioner makes a written determination that the business obtained its certification by knowingly making materially false statements in its application, in which case the commissioner may assess the taxpayer the amount of the difference between short-term rental property taxes remitted by such business during the period in which the taxpayer wrongfully held certification and the business personal property taxes that would have been due during such period but for the certification obtained by the making of the materially false statements. Any such assessment, and any determination not to certify or to decertify a rental business as a short-term rental business as defined in this subsection, may be appealed pursuant to the procedures and requirements set forth in Code of Virginia, § 58.1-3983.1 for appeals of local business taxes, which shall apply mutatis mutandis to such assessments and certification decisions.

A rental business that has been decertified pursuant to the provisions of subsection E of Code of Virginia, § 58.1-3510.4 shall be eligible for recertification for a subsequent tax year upon a showing that it has met one of the tests provided in subsection B of Code of Virginia, § 58.1-3510.4 for at least ten (10) months of operations during the present tax year.

(11) *Criminal penalties for violation of article*. Any dealer subject to the provisions of this chapter failing or refusing to file a return herein required to be made, or failing or refusing to file a supplemental return or other data required by the commissioner of the revenue, or who makes a false or fraudulent return with intent to evade the tax hereby levied, or who makes a false or fraudulent claim for refund, or who gives or knowingly receives a false or fraudulent exemption certificate, or who violates any other provision of this chapter, punishment for which is not otherwise herein provided, shall be guilty of a class 1 misdemeanor.

(e) *Freight forwarder/shipping agent:*

(1) There is hereby established the license classification of freight forwarder/shipping agent.

(2) The tax for the classification of freight forwarder/shipping agent shall be thirty-six cents ($0.36) per one hundred dollars ($100.00) of gross receipts up to a total tax of two thousand five hundred dollars ($2,500.00) (two thousand five hundred dollars ($2,500.00) is the maximum payable under this subsection (e)(2)).

(f) *Tugboat operator:*

(1) There is hereby established the license classification of tugboat operator.

(2) The tax for the classification of tugboat operator shall be thirty-six cents ($0.36) per one hundred dollars ($100.00) of gross receipts up to a total tax of two thousand five hundred dollars ($2,500.00) (two thousand five hundred dollars ($2,500.00) is the maximum payable under this subsection (f)).

(g) *Special sales permit:*

(1) It shall be unlawful for any person to advertise, or conduct, a sale for the purpose of discontinuing a business, or to modify the word "sale" in any advertisement with the words "going out of business" or any others which tend to insinuate that the business is to be discontinued and the merchandise liquidated, unless such person obtains a permit to conduct such sale from the city.

(2) Each special sale permit shall be valid for a period of no longer than sixty (60) days, and any extension of that time shall constitute a new special sale and shall require an additional permit and inventory. A maximum of one permit beyond the initial sixty-day permit may be granted solely for the purpose of liquidating only those goods contained in the initial inventory list which remains unsold. Every application for an extension of a special sale permit pursuant to this section shall include an amended inventory of remaining special sales goods.

(3) The fee for each special sale permit shall be fifty dollars ($50.00).

(4) Each applicant for or holder of a special sale permit shall comply with the provisions of section 38-8 of this Code and the permit shall be issued subject to such provision.

(5) There shall be no abatement of the permit fee provided for in this section for any reason and the permit shall not be transferable.

(h) *Stevedore:*

(1) There is hereby established the license classification of stevedore.

(2) The tax for the classification of stevedore shall be thirty-six cents ($0.36) per one hundred dollars ($100.00) of gross receipts; provided, however, that the total tax shall not exceed two thousand five hundred dollars ($2,500.00).

(Ord. No. 38,573, § 3, 11-19-96; Ord. No. 38,754, § 1, 5-20-97; Ord. No. 38,763, § 1, 5-20-97; Ord. No. 38,892, § 1, 8-26-97; Ord. No. 38,986, § 1, 12-9-97; Ord. No. 39,177, § 1, 5-26-98; Ord. No. 39,722, § 4, 9-14-99; Ord. No. 40,317, §§ 1, 2, 5-15-01; Ord. No. 40,712, § 1, 5-21-02; Ord. No. 41,782, § 1, 3-29-05; Ord. No. 43,842, § 1, 5-18-10; Ord. No. 45,955, § 19, 5-19-15, eff. 7-1-15)

Sec. 24-25.10. Payment of business-related taxes prerequisite to issuance of business license.

The commissioner of the revenue shall not issue a business license for any business unless and until he receives a tax receipt and certificate signed by the city treasurer setting forth that all delinquent business license, personal property, real estate, food and beverages, transient occupancy, severance and admissions taxes and machinery and tools taxes assessed by the city against such business have been paid in full. The requirements of this section shall be in addition to the requirements of the existing law but shall not be applicable to any person who, under the laws of the state, was not legally assessable with a personal property tax or a machinery and tools tax.

(Ord. No. 44,381, § 1, 9-13-11; Ord. No. 47,578, § 2, 3-26-19)

Sec. 24-26. Maximum number of pawn shops authorized to be operated within the territorial limits of the city; ownership of pawnshop license not transferable.

The maximum number of pawn shops authorized to be operated within the territorial limits of the city shall be ten (10).

Any pawn shop licensed and operating as of February 21, 2006, shall continue to operate at its then-existing location; however, no new or relocated pawn shop shall be authorized to be operated unless the number of existing pawn shops operating in the city is less than the maximum prescribed number.

The ownership of any license issued for the operation of a pawn shop shall not be transferred nor transferable.
(Ord. No. 39,069, § 1, 3-3-98; Ord. No. 39,115, § 1, 4-21-98; Ord. No. 42,183, § 1(Exh. A), 2-14-06; Ord. No. 48,485, § 1, 8-24-21)

Secs. 24-27—24-157. Reserved.

ARTICLE III. VEHICLE LICENSES*

Sec. 24-158. Definitions.

Where any license fee set forth in this article is based on the weight of a vehicle, the manufacturer's shipping weight or scale weight shall be used in determining the same. As used in this article, the term "gross weight" means the aggregate weight of a vehicle or combination of a vehicle and its load.
(Ord. No. 24,123, § 1, 11-28-67; Ord. No. 26,414, § 1, 5-30-72; Ord. No. 27,486, § 1, 6-4-74; Ord. No. 31,178, § 1, 5-26-81; Ord. No. 43,858, § 2, 5-18-10)

Sec. 24-159. Required.

Any person who operates any motor vehicle or vehicle attached thereto subject to a license fee imposed by this article, who shall not have first paid for a license therefor by the fifth day of June under this article for such year, shall be deemed guilty of a class 4 misdemeanor.
(Ord. No. 24,123, § 5, 11-28-67; Ord. No. 34,430, § 1, 4-21-87; Ord. No. 37,732, § 1, 7-26-94; Ord. No. 41,762, § 1, 3-22-05; Ord. No. 43,858, § 2, 5-18-10)

Sec. 24-160. Levy and amount of license fee.

(a) For each and every calendar year, beginning January 1 and ending December 31 of each such year, unless otherwise changed by the council, every person having a place of residence in the city shall pay a license fee on every motor vehicle and every vehicle attached thereto, owned or kept and operated by such person in the city, and every person having a place of business in the city shall pay a license fee on every motor vehicle and every vehicle attached thereto operated by such person in the city, in or in conjunction with such business, and every person not having a place of residence or business within the city shall pay a license fee on every motor vehicle and every vehicle attached thereto, which he habitually operates in the city in furtherance of some business or occupation carried on within the city. Such license fees shall be in the amounts prescribed in the following subsections of this section.

(b) For each private motor vehicle, other than a motorcycle or motorbicycle, with a normal seating capacity of not more than ten (10) persons, including the driver, designed and used for the transportation of passengers, but not kept or used for rent or hire for the transportation of passengers, nor as a motor carrier operating or which should operate under a certificate or permit from the state corporation commission, the fee shall be thirty-one dollars ($31.00), for such motor vehicles weighing four thousand (4,000) pounds or less and the fee shall be thirty-six dollars ($36.00), for such motor vehicles weighing more than four thousand (4,000) pounds. For each private motor vehicle, other than a motorcycle or motorbicycle, weighing four thousand (4,000) pounds or less, with a normal seating capacity of more than ten (10) adult persons, including the driver, the fee shall be

*__Cross reference—__Motor vehicle code, Ch. 25.

thirty dollars and seventy-five cents ($30.75). For such vehicles weighing more than four thousand (4,000) pounds, the fee shall be thirty-five dollars and seventy-five cents ($35.75).

(c) For each motorcycle and motorbicycle, with or without a side car, the fee shall be twenty dollars ($20.00).

(d) For each trailer or semitrailer designed and used for the transportation of passengers, and not kept or used for rent or hire, the fee shall be forty cents ($0.40) for each one hundred (100) pounds of weight, or major fraction thereof and an additional fee of five dollars ($5.00)

(e) For each trailer or semitrailer designed and used for the transportation of passengers, and kept or used for rent or hire for the transportation of passengers, the fee shall be seventy cents ($0.70) for each one hundred (100) pounds of weight or major fraction thereof and an additional fee of five dollars ($5.00).

(f) For each bus used exclusively for transportation to and from religious education or religious institution for the purpose of divine worship, the fee shall be twenty-five dollars ($25.00) on such buses weighing four thousand (4,000) pounds or less, and thirty dollars ($30.00) for such buses weighing more than four thousand (4,000) pounds.

(g) For each motor vehicle designed and used for the transportation of passengers and kept or used for rent or hire, with a chauffeur, for the transportation of passengers, except common carriers operating or which should operate under a certificate or permit of the state corporation commission or interstate commerce commission, the fee shall be thirty dollars and seventy-five cents ($30.75), on such vehicles weighing four thousand (4,000) pounds or less, and the fee on such vehicles weighing more than four thousand (4,000) pounds shall be thirty-five dollars and seventy-five cents ($35.75). For each such vehicle kept or used for rent or hire without a chauffeur, and leased for twelve (12) months or more, the fee shall be thirty-one dollars ($31.00), on such vehicles weighing four thousand (4,000) pounds or less, and the fee shall be thirty-six dollars ($36.00), on such vehicles weighing more than four thousand (4,000) pounds. The license fee imposed by this subsection shall not be in lieu of any other tax, license, or charge now or hereafter imposed and levied by the city for engaging in the business of operating any such motor vehicle pursuant to a certificate of public convenience and necessity therefor issued pursuant to article II of chapter 34 of this Code.

(h) Except as hereinafter otherwise provided, the license fee for all motor vehicles, trailers and semitrailers not designed and used for the transportation of passengers, other than common carriers operating under the authority of the state corporation commission or the Interstate Commerce Commission, shall be determined by the gross weight of the vehicle or combination of vehicles of which it is a part, when loaded to the maximum capacity for which it is registered and licensed by the state, according to the schedule of taxes herein set forth. For each one thousand (1,000) pounds of gross weight, or major fraction thereof, for any such vehicle registered and licensed by the state, the license fee shall be the fee which is set forth in the following schedule immediately opposite the weight group into which such vehicle, or any combination of vehicles of which it is a part, falls when loaded to the maximum capacity for which it is registered and licensed by the state; provided that the license fee for trailers and semitrailers not designed and used for the transportation of passengers with a gross weight not exceeding one thousand five hundred (1,500) pounds shall be eighteen dollars ($18.00). For all such motor vehicles, trailers and semitrailers exceeding a gross weight of nineteen thousand (19,000) pounds, an additional fee of five dollars ($5.00) shall be imposed.

Gross Weight Groups (Pounds)	*Fee Per Thousand Pounds of Gross Weight*
19,000 and under	Flat—$25.00
19,001—22,000	$1.60 and an additional $5.00 Flat fee
22,001—25,000	$1.70 and an additional $5.00 Flat fee
25,001 and over	$1.80 and an additional $5.00 Flat fee
Panel and Pickups:	
4,000 or less	Flat—$31.00
4,001—7,500	Flat—$36.00
Trucks:	
7,501—19,000	Flat—$36.00

Gross Weight Groups (Pounds)	*Fee Per Thousand Pounds of Gross Weight*
19,001—22,000	$1.60 and an additional $5.00 Flat fee
22,001—25,000	$1.70 and an additional $5.00 Flat fee
25,001 and over	$1.80 and an additional $5.00 Flat fee

(i) In the case of a combination of a tractor truck and a semitrailer, each vehicle constituting a part of such combination shall be licensed as a separate vehicle, and separate vehicle license decals shall be issued therefor, but, for the purpose of determining the gross weight group into which any such vehicle falls pursuant to subsection (h), the combination of vehicles of which such vehicle constitutes a part shall be considered a unit, and the aggregate gross weight of the entire combination shall determine such gross weight group. The license fee for a semitrailer constituting a part of such combination with a gross weight up to one thousand five hundred (1,500) pounds shall be eighteen dollars ($18.00). For a semitrailer with a gross weight exceeding one thousand five hundred (1,500) pounds, the license fee shall be twenty-five dollars ($25.00). In determining the license fee to be paid for a tractor truck constituting a part of such combination, the license fee shall be assessed at the total gross weight and the fee per one thousand (1,000) pounds applicable to the gross weight of the combination, when loaded to the maximum capacity for which it is registered and licensed by the state. However, there shall be no deduction from this license fee for the license fee of the semitrailer in the combination.

(j) For each trailer used only for carrying property belonging to the owner, which trailer does not exceed two thousand (2,000) pounds and is attached to the owner's motor vehicle, the fee shall be eleven dollars and fifty cents ($11.50). For each trailer used for carrying property belonging to the owner, which trailer exceeds two thousand (2,000) pounds and is attached to the owner's motor vehicle, the fee shall be twenty-five dollars ($25.00), except that for each watercraft trailer, the fee shall be eleven dollars and fifty cents ($11.50) for all weights. For each camping trailer, the fee shall be eleven dollars and fifty cents ($11.50) for such trailer weighing two thousand (2,000) pounds or less. The fee shall be seventeen dollars and fifty cents ($17.50) for such trailer weighing over two thousand (2,000) pounds. For each travel trailer, the fee shall be seventeen dollars and fifty cents ($17.50) for such trailer weighing four thousand (4,000) pounds or less. The fee shall be twenty dollars ($20.00) for such trailer weighing over four thousand (4,000) pounds.

(k) Any motor vehicle carrier operating under a certificate from the state corporation commission or the Interstate Commerce Commission, operating over the streets of the city, shall pay a license fee for the use of the streets of the city of one-fifth of a cent per mile for each mile operated within the city by any vehicle weighing five thousand (5,000) pounds or less, two-fifths of a cent per mile for each mile so operated by any vehicle weighing more than five thousand (5,000) pounds and less than fifteen thousand (15,000) pounds, and three-fifths of a cent per mile for each mile so operated by any vehicle weighing fifteen thousand (15,000) pounds or more; provided, that in no event shall such license fee of any such motor vehicle carrier of property exceed the sum of fifty dollars ($50.00) and in no event shall such license fee of any such motor vehicle carrier of passengers exceed the sum of thirty dollars ($30.00) for each motor vehicle so operated during the year. It shall be the duty of the commissioner of the revenue to ascertain the total number of miles to be traveled in the city by each vehicle operated by such motor vehicle carrier and the weight of each such vehicle to be so operated, and to compute the license fee accordingly.

(l) Nothing in this article shall be construed as imposing a license fee on any vehicle in excess of the amount authorized to be imposed by the laws of the state.

(Ord. No. 24,123, §§ 1, 13, 11-28-67; Ord. No. 26,414, § 1, 5-30-72; Ord. No. 27,486, § 1, 6-4-74; Ord. No. 31,178, § 1, 5-26-81; Ord. No. 31,744, § 1, 5-25-82; Ord. No. 31,779, § 1, 6-22-82; Ord. No. 32,009, § 1, 10-26-82; Ord. No. 34,511, § 1, 5-26-87; Ord. No. 35,051, § 1, 5-24-88; Ord. No. 39,178, § 1, 5-26-98; Ord. No. 43,858, § 2, 5-18-10; Ord. No. 45,955, § 20, 5-19-15, eff. 7-1-15; Ord. No. 46,270, § 1, 2-23-16)

State law reference—Authority of city to impose vehicle license tax or fee, Code of Virginia, §§ 46.2-752, 46.2-755.

Sec. 24-161. Vehicles exempt from license fee.

The license fees imposed by this article shall not apply to motor vehicles and vehicles attached thereto on which the city is prohibited from imposing a license fee by the laws of the state.
(Ord. No. 24,123, § 7, 11-28-67; Ord. No. 43,858, § 2, 5-18-10)

Sec. 24-162. When license fee payable; penalty for late payment.

The license fees prescribed by this article shall be paid for each calendar year on or before the fifth day of June of such year, except as otherwise provided. If any license fee imposed by this article is not paid by June 5 of any license year, or in the case of a motor vehicle, trailer, or semitrailer purchased or acquired thereafter, within thirty (30) days of the date of purchase or acquisition of same, there shall be added to such license fee a delinquent charge of ten dollars ($10.00) to be assessed and paid along with the license fee as part thereof.
(Ord. No. 24,123, § 2, 11-28-67; Ord. No. 34,430, § 1, 4-21-87; Ord. No. 37,732, § 1, 7-26-94; Ord. No. 41,762, § 2, 3-22-05; Ord. No. 43,858, § 2, 5-18-10)

Sec. 24-163. Proration of license fee.

One-half (½) of the annual license fee required to be paid by this article shall be collected when such license is issued on or after the first day of July.
(Ord. No. 24,123, § 3, 11-28-67; Ord. No. 26,414, § 1, 5-30-72; Ord. No. 28,647, § 1, 7-5-77; Ord. No. 29,008, § 1, 10-26-77; Ord. No. 32,452, § 1, 7-19-83; Ord. No. 43,858, § 2, 5-18-10)

Sec. 24-164. Reserved.

Editor's note—Ord. No. 41,684, § 1, adopted Jan. 4, 2005, repealed § 24-164, which pertained to issuance and display of decals generally and derived from Ord. No. 24,123, § 4, adopted Nov. 28, 1967; Ord. No. 25,481, § 1, adopted May 19, 1970; Ord. No. 26,308, § 1, adopted March 7, 1972; Ord. No. 37,732, § 1, adopted July 26, 1994; Ord. No. 39,203, § 1, adopted June 2, 1998 and Ord. No. 39,731, § 1, adopted Sept. 28, 1999.

Sec. 24-164.1. Reserved.

Editor's note—Ord. No. 43,858, § 1, adopted May 15, 2010, repealed § 24-164, which pertained to display of decals by nonresidents and derived from Ord. No. 37,891, § 1, adopted Feb. 14, 1995.

Sec. 24-165. Reserved.

Editor's note—Ord. No. 41,684, § 1, adopted Jan. 4, 2005, repealed § 24-165, which pertained to issuance of decals to persons exempt from tax and derived from Ord. No. 28,647, § 2, adopted July 5, 1977; and Ord. No. 39,203, § 2, adopted June 2, 1998.

Sec. 24-166. Reserved.

Editor's note—Ord. No. 43,858, § 1, adopted May 18, 2010, repealed § 24-166, which pertained to duplicate or substitute decal when original mutilated or lost and derived from Ord. No. 24,123, § 8, adopted Nov. 28, 1967; Ord. No. 25,481, § 1, adopted May 19, 1970; Ord. No. 26,414, § 1, adopted May 30, 1972; and Ord. No. 39,203, § 3, adopted June 2, 1998.

Sec. 24-167. Reserved.

Editor's note—Ord. No. 43,858, § 1, adopted May 18, 2010, repealed § 24-167, which pertained to new decal for substitute vehicle and derived from Ord. No. 24,123, § 9, adopted Nov. 28, 1967; Ord. No. 25,481, § 1, adopted May 19, 1970; Ord. No. 26,414, § 1, adopted May 30, 1972; and Ord. No. 39,203, § 4, adopted June 2, 1998.

Sec. 24-168. Reserved.

Editor's note—Ord. No. 43,858, § 1, adopted May 18, 2010, repealed § 24-168, which pertained to false affidavits for decals under section 24-166 or 24-167 and derived from Ord. No. 24,123, § 9, adopted Nov. 28, 1967; Ord. No. 25,481, § 1, adopted May 19, 1970; Ord. No. 26,414, § 1, adopted May 30, 1972; and Ord. No. 32,771, § 1, adopted March 6, 1984.

Sec. 24-169. Reserved.

Editor's note—Ord. No. 43,858, § 1, adopted May 18, 2010, repealed § 24-169, which pertained to failure to display decal and derived from Ord. No. 26,796, § 1, adopted March 20, 1973; Ord. No. 32,771, § 1, adopted March 6, 1984; and Ord. No. 37,732, § 1, adopted July 26, 1994.

Sec. 24-170. Reserved.

Editor's note—Ord. No. 41,684, § 1, adopted Jan. 4, 2005, repealed § 24-170, which pertained to use of decals on vehicles and derived from Ord. No. 24,123, § 10, adopted Nov. 28, 1967; Ord. No. 25,481, § 1, adopted May 19, 1970; Ord. No. 32,771, § 1, adopted March 6, 1984; Ord. No. 36,009, § 1, adopted May 22, 1990; Ord. No. 37,503, § 1, adopted Jan. 25, 1994; and Ord. No. 39,203, § 5, adopted June 2, 1998.

Sec. 24-171. Reserved.

Editor's note—Ord. No. 43,858, § 1, adopted May 18, 2010, repealed § 24-171, which pertained to operation of vehicle when weight is in excess of weight on basis of which it is licensed and derived from Ord. No. 24,123, § 6, adopted Nov. 28, 1967.

Sec. 24-172. Reserved.

Editor's note—Ord. No. 41,684, § 1, adopted Jan. 4, 2005, repealed § 24-172, which pertained to payment of personal property tax prerequisite to licensing and derived from Ord. No. 22,290, § 1, adopted Nov. 26, 1963; Ord. No. 31,371, § 1, adopted Oct. 13, 1981; Ord. No. 37,070, § 1, adopted Nov. 24, 1992; and Ord. No. 37,414, § 1, adopted Oct. 12, 1993.

Sec. 24-173. Reserved.

Editor's note—Ord. No. 41,684, § 1, adopted Jan. 4, 2005, repealed § 24-173, which pertained to presumption as to operation of unlicensed vehicle and derived from Ord. No. 24,123, § 11, adopted Nov. 28, 1967; and Ord. No. 25,481, § 1, adopted May 19, 1970.

Sec. 24-174. Authorization of the city treasurer.

The city treasurer in consultation with the city manager shall enter into a formal agreement with the Commissioner of the Virginia Department of the Motor Vehicles (DMV) to withhold state license registration unless and until an applicant for such registration shall have paid all Norfolk personal property taxes and vehicle license taxes imposed upon vehicles which have been assessed or are assessable against the applicant by the city. Further, if the applicant has two (2) or more outstanding unpaid parking ticket citations of sixty (60) days or more due and owing to the city, the city treasurer or director of finance shall request DMV to withhold the state license registration, unless and until such tickets, fines, and interest are paid.

The city treasurer shall submit to DMV the documentation necessary to promptly and regularly indicate all who are delinquent in the payment of personal property taxes, vehicle license taxes and parking citations.

Pursuant to the provisions of section 46.2-752 of the Code of Virginia, 1950, as amended, the city treasurer shall add a DMV administrative stop fee of twenty-five dollars ($25.00) to any delinquent tax bill or parking citation described in this section.
(Ord. No. 41,684, § 2, 1-4-05; Ord. No. 47,039, § 1, 10-24-17)

Sec. 24-174.1. Reports required.

The city treasurer shall provide the director of finance with such data and reports as are requested regarding the collection rate for personal property taxes under the DMV STOPS program.
(Ord. No. 41,684, § 2, 1-4-05)

Secs. 24-175—24-183. Reserved.

ARTICLE IV. REAL ESTATE TAXES*

DIVISION 1. GENERALLY

Sec. 24-184. Levied; amount.

(1) For each and every fiscal year, beginning July 1 and ending June 30 of each such year, unless otherwise changed by the council, there is hereby imposed and levied the following tax on all taxable real estate, other than real estate of public service companies, which is assessed by the state corporation commission, within the city: on all lands, wharves and lots, and the improvements thereon, not exempt from taxation, there shall be a tax of one dollar twenty-three cents ($1.23) for every one hundred dollars ($100.00) of the assessed value.

(2) For each and every calendar year, beginning January 1 and ending December 31 of each such year, unless otherwise changed by the council, there is hereby imposed and levied the

*__State law reference—__Real property tax, Code of Virginia, § 58.1-3200 et seq.

following tax on all taxable real estate of public service companies, which is assessed by the state corporation commission, within the city: on all lands, wharves and lots, and the improvements thereon, not exempt from taxation, there shall be a tax of one dollar twenty-three cents ($1.23) for every one hundred dollars ($100.00) of the assessed value thereof.
(Ord. No. 24,116, § 1, 11-28-67; Ord. No. 24,928, § 1, 5-20-69; Ord. No. 25,494, § 1, 5-26-70; Ord. No. 25,985, § 1, 5-25-71; Ord. No. 29,943, § 1(1), (3), 5-22-79; Ord. No. 32,914, § 1, 5-22-84; Ord. No. 35,046, § 1, 5-24-88; Ord. No. 36,022, § 1, 5-22-90; Ord. No. 37,991, § 1, 5-23-95; Ord. No. 41,839, § 8, 5-17-05; Ord. No. 42,276, § 1, 5-16-06; Ord. No. 42,662, § 8, 5-15-07; Ord. No. 45,084, § 16, 5-14-13, eff. 7-1-13; Ord. No. 47,229, § 25, 5-22-18, eff. 7-1-18; Ord. No. 49,590, § 15, 5-14-24, eff. 7-1-24)

Charter reference—Duty of council to levy taxes and authority to provide that tax so levied shall continue from year to year unless otherwise changed by council, § 68.

Sec. 24-185. Application for exemptions by tax-exempt entities.

Every entity, except the commonwealth, any political subdivision of the commonwealth, or the United States, which owns real property exempt from taxation under section 58.1-3600 et seq. of the Code of Virginia shall file triennially an application with the city real estate assessor as a requirement for retention of the exempt status of the property. Such application shall show the ownership and usage of such property and shall be filed within the next sixty (60) days preceding the tax year for which such exemption, or the retention thereof, is sought.
(Code 1958, § 19-54.1; Ord. No. 39,160, § 1, 5-26-98)

State law reference—Authority for above section, Code of Virginia, § 58.1-3605.

Sec. 24-186. Cancellation of unpaid taxes on real estate acquired by city; relief from taxes on real estate acquired by tax-exempt body.

(a) Whenever the city has acquired or shall acquire title to any real estate and it is proper to cancel and mark off any unpaid city taxes thereon, other than as provided by sections 58.1-3360, 58.1-3360.1 and 58.1-3362 of the Code of Virginia, the city manager is authorized to direct the city treasurer to cancel and mark off the amount of such taxes which it is proper to cancel and mark off.

(b) Whenever any tax-exempt body referred to in sections 58.1-3360 to 58.1-3363, both inclusive, of the Code of Virginia, has acquired or shall acquire any real estate and it is proper, pursuant to the provisions of such sections, to relieve the former owner thereof from the payment of any city taxes thereon for any part of a year, such relief shall be granted as follows:

(1) In the event such real estate acquired is the whole of any parcel assessed for taxation as an entirety, the commissioner of the revenue shall determine the proportionate part of the taxes on such real estate for the year in which it was or shall be so acquired that should be apportioned to the portion of the year in which acquired, from and after the date upon which title thereto was or shall be vested in such tax-exempt body, and shall certify the same in writing to the city treasurer. Upon receipt of such certification, the city treasurer shall relieve such owner from the payment of such proportionate part of such taxes apportioned to the portion of the year in which such real estate was or shall be so acquired, and shall make the necessary entries on his records to show the same.

(2) In the event such real estate acquired is a part of any parcel assessed for taxation as an entirety, the city assessor shall determine the proportionate part of the assessed value of the whole for the year in which the part was or shall be so acquired that should be apportioned to the part acquired by such tax-exempt body and the part not so acquired, and shall certify the same in writing to the commissioner of the revenue. Upon receipt of such certification, the commissioner of the revenue shall apportion the taxes on such real estate for such a year in a manner that such owner shall be relieved

from the payment of taxes on the part so acquired for the portion of the year in which acquired, from and after the date upon which title thereto was or shall be vested in such tax-exempt body, and shall certify such apportionment in writing to the city treasurer. Upon receipt of such certification, the city treasurer shall relieve such owner from the payment of the proportionate part of the taxes for such year applicable to the part of real estate acquired by

such tax-exempt body, and shall make the necessary entries on his records to show the same.

(c) A copy of all authorizations and certifications to the city treasurer to cancel and mark off such taxes, or relieve such owner from the payment thereof, shall be transmitted to the director of finance. The city treasurer shall take credit for and the director of finance shall credit him with the amount of all taxes, with interest and amount of all taxes, with interest and penalties thereon, canceled, marked off or relieved pursuant to the provisions of this section.

(d) The city treasurer is authorized to receive payment of and receipt for all such taxes, with interest and penalties thereon, not so canceled, marked off or relieved; provided, however, if payment of such taxes was tendered to the city treasurer prior to this section becoming effective, as amended, the city treasurer is authorized to receive payment of such taxes so tendered plus any interest and penalties thereon which had accrued prior to such tender and receipt for the same. The city treasurer shall take credit for and the director of finance shall credit him with the amount of interest and penalties on such taxes which had accrued between the date payment of such taxes was so tendered and the date payment of such taxes is made.

(e) Any taxpayer who shall have paid his taxes and levies or any part thereof for such year shall be entitled to a refund for such portion of the taxes as he would be relieved from paying under the terms of this section. Upon the presentation and delivering by the taxpayer to the city treasurer of a valid receipt showing that payment of such taxes was made, refund shall be made by the director of finance upon a voucher prepared and approved by the city treasurer.

(f) Nothing in this section shall preclude any such owner from furnishing the city treasurer with the certificates from the clerk of the circuit court specified in sections 58.1-3360.2 and 58.1-3361, of the Code of Virginia, 1950, or from applying to the appropriate court for the apportionment of such taxes, as provided by section 58.1-3360.2 of Code of Virginia.
(Code 1958, § 19-6.12)

Sec. 24-187. Apportionment of taxes when portion of real estate becomes separately owned.

The provisions of section 58.1-3224 of the Code of Virginia, are hereby made applicable to the city, and the apportionment of city real estate taxes, when a portion of real estate becomes separately owned, shall be made as provided in such section.
(Code 1958, § 19-112)

Sec. 24-188. Annual assessment required; assessor generally.

(a) There shall be an annual assessment of real estate for local taxation in the city, to be made as provided in this article.

(b) The annual assessment of real estate shall be made by an assessor appointed by the council for such purpose, who shall give the whole of his time to the duties of his office. The assessor shall be appointed prior to the first day of December, 1950, and prior to the first day of December of every fourth year thereafter, to serve for a term of four (4) years from the first day of January next following the date of his appointment. Any vacancy in such office shall be filled for the unexpired term.

(c) The person appointed pursuant to this section shall be the permanent assessor of the city for the purpose of making annual assessments of real estate therein. He shall, before entering upon the duties of his office, take and subscribe the oath prescribed by the laws of this state for state officers, which oath shall be filed with the city clerk.

(d) The assessor shall receive such compensation and shall have such technical and clerical assistance as may, from time to time, be fixed and provided by the council.
(Code 1958, §§ 19-107—19-110, 19-118)

Charter reference—Assessment of real estate for taxation, §§ 88(a), 88(b).

State law reference—Authority for annual assessments, Code of Virginia, §§ 58.1-3250, 58.1-3253.

Sec. 24-188.1. Divisions and bureaus within assessor's office.

(a) *Generally.* There shall be in the office of the city assessor the following divisions and bureaus, the heads of which shall be nominated by the city assessor and confirmed by the council.

(b) *Division of residential and minor commercial assessment.* The division of residential and minor commercial assessment of the city assessor's office shall be charged with the annual reassessment of all residential [real estate], which shall include four (4) units or less, and minor commercial real estate; computation and posting of these land and improvement assessments; planning, assigning, and reviewing work of subordinate appraisers; overseeing the entry of new assessments into computer terminal; supervising the maintenance of appraisal files and records; meeting with taxpayers concerning real property assessments; and acting in the capacity of the city assessor in the latter's absence. A senior deputy assessor shall be the head of the division of residential and minor commercial assessment, and his/her duties shall be such as may be prescribed by the city assessor. There shall be in the division of residential and minor commercial assessment the following bureaus:

(1) *Bureau of residential assessment.* The bureau of residential assessment shall be charged with the assessment of all residential real estate, which shall include four (4) units or less, and related duties; computations for new construction, alterations and additions; assigning field work to subordinates; and the posting of assessments on work maps. A deputy assessor shall be the head of the bureau of residential assessment, and his/her duties shall be such as may be prescribed by the senior deputy assessor, who heads the division of residential and minor commercial assessment, or the city assessor.

(2) *Bureau of minor commercial assessment.* The bureau of minor commercial assessment shall be charged with the assessment of all minor commercial real estate and related duties; developing an annual sales ratio study for the entire city; assigning field work to subordinates; and the posting of assessments work maps. A deputy assessor shall be the head of the bureau of minor commercial assessment, and his/her duties shall be such as may be prescribed by the senior deputy assessor, who heads the division of residential and minor commercial assessment, or the city assessor.

(c) *Division of multiresidential and commercial assessment.* The division of multiresidential and commercial assessment of the city assessor's office shall be charged with the annual reassessment of all multiresidences (exceeding four (4) units) and major commercial real estate or income-producing properties; computation and posting of these land and improvement assessments; planning, assigning, and reviewing work of subordinate appraisers and clerical staff; supervision over the appraisal of all nontaxable real estate, and the maintenance of related records and files; supervising and conducting special field assignments; supervising annual equipment and supply inventory for the city assessor's office; developing annual operating and revenue-sharing budgets for the city assessor's office; meeting with taxpayers concerning real property assessments; and acting in the capacity of city assessor in the latter's absence. A senior deputy assessor shall be head of the division of multiresidential and commercial assessment, and his/her duties shall be such as may be prescribed by the city assessor. There shall be in the division of multiresidential and commercial assessment the following bureau:

(1) *Bureau of research and analysis.* The bureau of research and analysis shall be charged with appraising all nontaxable real estate; conducting annual equipment and supply inventory for the city assessor's office; performing special field assignments; and conducting research necessary in the assessment of multiresidential and income-producing property. A deputy assessor shall be the head of the bureau of research and analysis and his/her duties shall be such as may be prescribed by the senior deputy assessor, who heads the division of multiresidential and commercial assessment, or the city assessor.

(Ord. No. 32,357, § 1, 5-31-83)

Sec. 24-189. Time and manner of assessment generally.

The assessor shall, as soon as practicable after the beginning of each fiscal year of July first

through June thirtieth, proceed to examine all the lands and lots assessable by him, with the buildings and improvements thereon, within the city, and shall, upon examination, ascertain and assess the fair market value thereof. In assessing buildings, and the land they occupy, which may be owned exclusively by benevolent or charitable institutions or by a church or religious body, but all of which is not used exclusively for lodge purposes or meeting rooms or for church or religious or charitable purposes, the assessor shall only assess for taxation such proportionate part of the fair market value of the entire property as would be the comparatively fair market value of the part of such land and buildings not used exclusively for lodge purposes or meeting rooms or for church or religious or charitable purposes.
(Code 1958, § 19-115)

Sec. 24-190. Assessment of new buildings; abatement of levies on buildings razed, destroyed or damaged.

Notwithstanding any other provision of this article, all new buildings substantially completed and fit for use, occupancy and enjoyment shall be assessed in accordance with the provisions of section 58-811.1 of the Code of Virginia, as of the first day of each quarter year. All levies on buildings which are razed, destroyed or damaged by a fortuitous happening beyond the control of the owner shall be abated in accordance with the provisions of section 58-811.2 of the Code of Virginia, as of the first day of each quarter year. The application for abatement shall be made to the city assessor.
(Code 1958, § 19-116.1; Ord. No. 32,713, § 1, 1-10-84)

Sec. 24-191. Authority of assessor to require information as to rent received.

The assessor shall have authority to require owners of rental property or their rental agents to disclose, in writing and under oath, the amount of gross rent which they receive annually from each parcel of land or building or both. Any person who refuses to provide the information herein required and in the form required shall be guilty of a misdemeanor and shall be punished by a fine of not less than one hundred dollars ($100.00) and not more than one thousand dollars ($1,000.00). Provided, however, that one who knowingly submits false information to the assessor under oath shall be punished in accordance with such general law as may now or hereafter be applicable.
(Code 1958, § 19-115.1)

Sec. 24-192. Completion of assessments and delivery of copies to commissioner; extension of taxes generally; delivery of copy of land book to circuit court; assessor's certificate.

(a) The assessor shall complete the assessments not later than the last day of February of each fiscal year of July first through June thirtieth, except in cases of buildings and structures under construction, which shall be fixed at the fair market value of the completed portion thereof on June thirtieth of each fiscal year.

(b) Upon final completion of such assessments, the assessor shall make four (4) copies thereof in the form in which the land books are made out, which shall be delivered to the commissioner of the revenue of the city, on which such commissioner of the revenue shall extend the taxes levied thereon, and a copy of the land book containing such assessments shall be delivered to the clerk of the circuit court of the city. The assessor shall, upon the completion of each annual assessment, certify on the land book, on oath, that all real estate subject to taxation by the city has been assessed by him at the fair market value thereof and that there are no errors on the face of the land book.
(Code 1958, § 19-114)

Sec. 24-193. Tax year; basis of extension of taxes.

(a) The beginning of the tax year for the assessment of taxes on real estate, other than real estate of public service companies which is assessed by the state corporation commission, shall be July first of each fiscal year of July first through June thirtieth, and the owners of such real estate on that day shall be assessed with taxes for the year beginning on that day. Taxes for

each fiscal year on such real estate shall be extended on the basis of the last assessment made prior to such year, subject to such changes as may be lawfully made.

(b) The beginning of the tax year for the assessment of taxes on real estate of public service companies, which is assessed by the state corporation commission, shall be January first of each calendar year, and the owners of such real estate on that day shall be assessed with taxes for the year beginning that day. Taxes for each calendar year on real estate shall be extended on the basis of the last assessment made prior to such year, subject to such changes as may be lawfully made.
(Code 1958, § 19-116)

Sec. 24-194. Exemption from assessment.

Except as otherwise specifically provided, this article shall not apply to the assessment of any real estate exempt from taxation by the Constitution of Virginia or assessable under the law by the state corporation commission.
(Code 1958, § 19-117)

Sec. 24-195. Relief from assessments.

Any person aggrieved by any assessment made by the assessor appointed under this article may appeal such assessment. In order to appeal the assessment for the current tax year, such appeal shall be filed with the assessor on or before May 8 of such tax year and/or with the board of review of real estate assessments on or before the last business day in May of any year. Appeals filed subsequent to the dates set forth in this section may be heard by the assessor at any time, but not by the board of review until the following year. Any person, or the city, aggrieved by any assessment made by the assessor or by the board of review of real estate assessments may apply for relief in the manner provided by Code of Virginia § 58.1-3980 et seq.
(Code 1958, § 19-111; Ord. No. 35,365, § 1, 1-10-89; Ord. No. 43,645, § 1, 10-27-09)

Sec. 24-196. Compensation of board of review of real estate assessments.

The members of the board of review of real estate assessments shall receive such per diem compensation for the time they are actually engaged in the duties of their office as may be fixed by the council, and such per diem compensation may be limited to such number of days as, in the judgment of the council, is sufficient for the work of the board in any tax year.
(Code 1958, § 19-113)

Charter reference—Board of review of real estate assessments, § 88(a).

Sec. 24-197. Valuation of nontaxable and other real estate; reports by assessor.

In addition to the property required to be assessed by this article, the assessor shall value all nontaxable real estate in the city, and all other real estate in the city as may be required by the city manager. The assessor shall make from time to time such reports to the council and city manager as may be required of him.
(Code 1958, § 19-119)

Sec. 24-198. Duties of commissioner as to assessments; real estate maps and "linens" thereof.

The commissioner of the revenue shall perform such duties in connection with the assessment of real estate for taxation as may be prescribed by law, shall prepare the real estate maps of the city and enter thereon the owners of the respective parcels of real estate shown on such maps and, in addition thereto, shall prepare "linens" of such real estate maps and enter thereon the owners and assessments of the respective parcels of real estate shown on such "linens."
(Code 1958, § 19-120; Ord. No. 29,885, § 1, 4-10-79)

Charter reference—Duty of commissioner of revenue as to assessment of taxes, § 75.

Sec. 24-199. When taxes due and payable.

(a) City taxes on real estate, other than real estate of public service companies, which is assessed by the state corporation commission, for each fiscal year of July first through June thirtieth shall be due and payable during the year for which the same are assessed in four (4) equal installments, as follows: One-fourth thereof on September thirtieth, one-fourth thereof on Decem-

ber fifth, one-fourth thereof on March thirty-first and one-fourth thereof on June fifth of such year.

(b) City taxes on real estate of public service companies, which is assessed by the state corporation commission, for each calendar year shall be due and payable during the year for which the same are assessed in four (4) equal installments, as follows: One-fourth thereof on March thirty-first, one-fourth thereof on June fifth, one-fourth thereof on September thirtieth and one-fourth thereof on December fifth of such year.
(Code 1958, § 19-100)

State law reference—Authority to prescribe date for payment of taxes and to provide for installment payment, Code of Virginia, § 58.1-3916.

Sec. 24-200. Penalty and interest for late payment.

(a) In the event any installment of taxes on real estate is not paid on or before the time the same is due and payable, as set forth in section 24-199, there shall be added thereto a penalty of ten (10) percent of the tax past due on such real estate, or the sum of ten dollars ($10.00), whichever is the greater; provided, however, that the penalty shall in no case exceed the amount of the tax due. The penalty for failure to pay the tax shall be assessed on the day after the first installment is due. Any such penalty when so assessed shall become a part of the tax. In addition to the foregoing penalty, such unpaid installment shall bear interest at the rate of eight (8) percent per annum. Such unpaid taxes shall be deemed delinquent and interest shall commence on the first day following the day such taxes are due.

(b) Penalty and interest for failure to pay taxes on real estate shall not be imposed if such failure was not the fault of the taxpayer. The city treasurer shall make such determinations of fault. The failure to file a return or to pay a tax due to the death of taxpayer or a medically determinable physical or mental impairment on the date the return or tax is due shall be presumptive proof of lack of fault on the taxpayer's part, provided the return is filed or the taxes paid within thirty (30) days of the due date; however if there is a committee, legal guardian, or conservator or other fiduciary handling the fiduciary affairs, such return shall be filed or such taxes paid within one hundred twenty (120) days after the fiduciary qualifies or begins to act on behalf of the taxpayer. Interest on such taxes shall accrue until paid in full. Any such fiduciary shall, on behalf of the taxpayer, by the due date, file any required returns and pay any taxes, which come due after the one-hundred-twenty-day period. The treasurer shall make determinations of fault relating exclusively to failure to pay a tax, and the commissioner of the revenue shall make determinations of fault relating exclusively to failure to file a return.
(Code 1958, § 19-101; Ord. No. 30,791, § 1, 9-23-80; Ord. No. 30,813, § 1, 10-2-80; Ord. No. 31,183, § 1, 6-2-81; Ord. No. 35,364, § 1, 1-10-89; Ord. No. 40,004, § 1, 6-20-00; Ord. No. 47,229, § 26, 5-22-18, eff. 7-1-18)

State law reference—Authority for above section, Code of Virginia, § 58.1-3916.

Sec. 24-201. Duty of treasurer to collect.

The city treasurer is hereby directed to enforce the collection of unpaid city taxes on real estate, using legal proceedings therefor when necessary.
(Code 1958, § 19-50)

Charter reference—Duty of city treasurer to collect taxes, § 74.

Sec. 24-202. Place of sale of real estate for delinquent taxes.

Whenever the city treasurer is directed by the council to sell real estate for delinquent taxes pursuant to section 90 of the Charter, the place of such sale shall be at the western entrance of the Courts Building in the city.
(Code 1958, § 19-50.1)

Sec. 24-203. Tax abatement program for renovation of residential properties.

(a) Tax abatement under this section shall be permitted only on the substantial renovation of properties for residential use that are fifteen (15) years of age or more. Tax abatement under this section shall be permitted for multifamily residential properties that are forty (40) years of age or more; except that tax abatement under this section shall be permitted for properties

that are fifteen (15) years of age or more where the renovation is made to multifamily apartments to convert such properties to residential condominiums. The age of the building will be calculated from the Certificate of Occupancy or other final inspection. This program shall be in effect throughout the city. Only residential properties and multifamily residential properties being renovated and preserving fifty-one percent (51%) of the square footage of the original building being renovated will be eligible for abatement. Renovation shall include improvements expanding the qualifying properties only when vertically expanding the qualifying structure or the horizontal expansion is a fully integrated part of the structure containing the pre-existing units and are part of the overall renovation project. In order for fully integrated horizontal expansion to qualify for this abatement, the horizontal expansion, like vertical expansion, must for the width of the horizontal expansion connect to the building being renovated and share with the renovated building systems like HVAC and electrical. The real estate assessor's determination of whether horizontal expansion qualifies as fully integrated shall be final and nonappealable. For purposes of this section, "residential properties" shall mean properties of four (4) or fewer units; "multifamily residential properties" shall mean properties of five (5) or more units; and "residential condominiums" shall mean multiple-unit buildings which consist of separately owned, individual residential units with all unit owners having a right to use the common elements of the property and in which no owner shall own more than twenty (20) percent of all of the units after three (3) years from commencement of the tax abatement. The ownership percentage and time limitation shall be applied retroactively to properties previously approved and will commence as of the original date of such tax abatement.

(b) An application for inclusion within the tax abatement renovation program shall be filed with the city real estate assessor, together with the fee of fifty dollars ($50.00), on forms to be promulgated by the assessor. Except as specifically provided herein, no renovation activities shall be considered for inclusion within the program unless such application form (listing fully all work to be performed) is filed and approved by the assessor prior to the commencement of renovation work. The application for tax abatement certification shall be signed by the owner under oath. Only one application per property for inclusion in this program shall be approved in any one fourteen-year period. In order to be eligible, the renovation must be completed within three (3) years after the assessor approves the application. The work shall not be deemed completed within this time frame unless the assessor so certifies to the treasurer as contemplated under subsection (d). Extension may be granted for good cause shown, subject to approval by the city real estate assessor. The time limitation for completion of the work shall be applied retroactively to properties previously approved.

(c) In order for a residential property or property to be converted to residential condominiums to be eligible for abatement, the renovation must contribute a minimum of twenty (20) percent increase in the assessed value of the property. In order for a multifamily residential property to be eligible for abatement, the renovation must contribute a minimum of forty (40) percent increase in the assessed value of the property. This minimum increase must be determined and certified by the city real estate assessor prior to the commencement of renovation activities. The real estate assessor may utilize input of other city officers where necessary or appropriate to assist in the determination of anticipated increases in assessed value; however, the method of assessment shall be governed by generally accepted methods of appraisal assessment. Abatement shall be contingent upon approval of building exteriors by the director of planning, based upon compatibility, quality, value enhancement, bulk, massing and height. Properties located in historic districts will be reviewed for certificates of appropriateness.

(d) Upon completion of the renovation activities, and subject to the confirmation of such action as is deemed necessary by the assessor, the tax abatement eligibility and abatement amount shall be certified in writing by the assessor to the city treasurer who shall then

implement the tax abatement. The city assessor's determination shall be final and not subject to appeal. The tax abatement shall commence as of the first day of the quarter following completion of the renovation. The resulting increase in assessed value ("abatement amount") shall not be recognized for real estate tax purposes for a period of ten (10) years, beginning the first day of the quarter immediately after the renovation activities have been completed. Notwithstanding any provision to the contrary, (i) the abatement amount shall not be increased after the city assessor establishes it; accordingly, any subsequent increases in value or rates will result in increased tax payments, and (ii) in no event shall the abatement result in any decrease in the base assessed value of the property determined by the city assessor at the time of the certification of eligibility. Upon the completion of ten (10) years of exemption for the abatement amount, the abatement amount shall be decreased to the extent of twenty (20) percent in each succeeding year; whereupon after the completion of the fourteenth year, the property shall be taxed at one hundred (100) percent of its fair market value.

(e) The tax abatement established by this section runs with the land, provided, however, that the property must at all times be in full compliance with all Norfolk City Codes including, without limitation, the building code, the housing code, the zoning ordinance of the City of Norfolk, and all other rules and regulations which affect or control the occupancy, use and management of the property. Should the director of planning determine that the property has become substantially out of compliance with applicable city ordinances, the director of planning shall thereupon give notice to the owner of such certification. The owner, having received written notice of ordinance violations, shall be granted thirty (30) days in which to correct said violations or to establish, to the satisfaction of the director of planning, that the certification of violations previously received is in error. Should the director of planning be satisfied at the end of said thirty-day period that the ordinance violations have occurred and have not been corrected by the owner as required by this subsection, he shall immediately notify the real estate assessor in writing who shall immediately and finally revoke tax abatement status of the property. Such abatement revocation shall be prospective in operation only and shall be immediately communicated to the owner in writing.

(f) Nothing in this section shall give rise to any tax abatement other than the amount determined by the city assessor as provided in subsection (d) above.

(g) No application submitted under this section shall be approved if the property owner is not current in payment of all taxes and assessments due the city. If a tax abatement is approved and a property owner (including any subsequent owner) thereafter fails to remain current in the payment of all city taxes and assessments, the property shall be immediately and finally removed from the tax abatement program.

(h) For properties on which renovation activities were completed on or after September 2012, upon completion of the renovation activities, and subject to the confirmation of such action as is deemed necessary by the assessor, the assessor shall determine the initial and adjusted tax abatement amounts where (i) the initial abatement amount is equal to the increase in assessed value of the property at the time of completion of renovation activities as determined by the assessor and (ii) the adjusted tax abatement amount is equal to the projected increase in assessed value of the property at the time the property achieves stabilized occupancy as determined by the assessor (in the event that the renovation activities are completed for a qualifying property prior to the effective date of this ordinance, the adjusted tax abatement amount shall be determined by the assessor prior to the initial term).

The tax abatement eligibility and abatement amount shall be certified in writing by the assessor to the city treasurer who shall then implement the tax abatement. The city assessor's determination shall be final and not subject to appeal. The initial tax abatement established by this section shall commence as of the first day of the quarter following completion of the renovation. The resulting increase in assessed value

("initial abatement amount") shall not be recognized for real estate tax purposes for a period of two (2) years beginning the first day of the quarter immediately after the renovation activities have been completed.

The adjusted tax abatement established by this section shall commence as of the first day of the quarter two (2) years following completion of the renovation. The resulting increase in assessed value ("adjusted abatement amount") shall not be recognized for real estate tax purposes for a period of twelve (12) years for a property located in an area designated as an enterprise zone, beginning the first day of the quarter two years after the renovation activities have been completed. For all other properties on which renovation activities were completed on or after September 2012, the resulting increase in assessed value "adjusted abatement amount" shall not be recognized for real estate tax purposes for a period of eight (8) years, beginning the quarter two years after completion of the renovation activities have been completed. Upon the completion of eight (8) years of exemption for the adjusted abatement amount for a property not located in an area designated as an enterprise zone, the abatement amount shall be decreased to the extent of twenty (20) percent in each succeeding year; whereupon after the completion of the fourteenth year during which the owner has received an initial or adjusted abatement, the property shall be taxed at one hundred (100) percent of its fair market value.

Notwithstanding any provision to the contrary, (i) the initial and adjusted abatement amounts shall not be increased after the city assessor establishes them; accordingly, any subsequent increases in value or rates will result in increased tax payments, and (ii) in no event shall the initial or adjusted abatements result in any decrease in the base assessed value of the property determined by the city assessor at the time of the certification of eligibility.
(Ord. No. 39,183, § 1, 5-26-98; Ord. No. 39,354, § 1, 10-20-98; Ord. No. 40,953, § 1, 2-4-03; Ord. No. 40,996, § 1, 3-25-03; Ord. No. 41,075, § 1, 6-24-03; Ord. No. 41,093, § 1, 7-8-03; Ord. No. 42,591, § 1, 3-6-07; Ord. No. 43,010, § 1, 3-4-08; Ord. No. 43,455, § 1, 5-19-09; Ord. No. 45,118, § 1, 5-21-13; Ord. No. 45,529, § 1, 4-29-14; Ord. No. 46,545, §§ 1, 2, 8-23-16; Ord. No. 50,030, § 1, 6-24-25, eff. 9-1-24)

Sec. 24-203.1. Tax abatement program for renovation of commercial or industrial structures.

(a) Tax abatement under this section shall be permitted only on the substantial rehabilitation or renovation of properties for commercial or industrial use that are forty (40) years of age or more, or twenty (20) years of age if the property is located in an area designated as an enterprise zone by the commonwealth when at least fifty-one percent (51%) of the square footage of the original building is being preserved. This program shall be in effect throughout the city. The age of the building will be calculated from the Certificate of Occupancy or other final inspection.

(b) An application for inclusion within the tax abatement renovation program shall be filed with the city real estate assessor, together with the fee of two hundred fifty dollars ($250.00), on forms to be promulgated by the assessor. No renovation activities shall be considered for inclusion within the program unless such form (listing fully all work to be performed) is filed and approved by the assessor prior to the commencement of renovation work. The application for tax abatement certification shall be signed by the owner under oath. Only one application per commercial or industrial property for inclusion in this program shall be approved in any one fourteen-year period. In order to be eligible, the renovation must be completed within three (3) years after the city real estate assessor approves the application. The work shall not be deemed completed within this time frame unless the assessor so certifies to the treasurer as contemplated under subsection (d). Extension may be granted for good cause shown, subject to approval by the city real estate assessor. The time limitation for completion of the work shall be applied retroactively to properties previously approved.

(c) In order to be eligible for abatement, the renovation must contribute a minimum of forty (40) percent increase in the assessed value of the

property. This minimum increase must be determined and certified by the city real estate assessor prior to the commencement of renovation activities. Renovation eligible for abatement shall include expansion of the improvements only when the structure containing the expansion is vertical or the horizontal expansion is a fully integrated part of the previously existing structure and is part of the overall renovation project. In order for fully integrated horizontal expansion to qualify for this abatement, the horizontal expansion, like vertical expansion, must for the width of the horizontal expansion connect to the building being renovated and share with the renovated building systems like HVAC and electrical. The real estate assessor's determination of whether horizontal expansion qualifies as fully integrated shall be final and nonappealable. The real estate assessor may utilize input of other city officers where necessary or appropriate to assist in the determination of anticipated increases in assessed value; however, the method of assessment shall be governed by generally accepted methods of appraisal assessment. Abatement shall be contingent upon approval of building exteriors by the director of planning, based upon compatibility, quality, value enhancement, bulk, massing and height. Properties located in historic districts will be reviewed for certificates of appropriateness.

(d) For properties on which renovation activities were completed on or after September 2012, upon completion of the renovation activities, and subject to the confirmation of such action as is deemed necessary by the assessor, the assessor shall determine the initial and adjusted tax abatement amounts where (i) the initial abatement amount is equal to the increase in assessed value of the property at the time of completion of renovation activities as determined by the assessor and (ii) the adjusted tax abatement amount is equal to the projected increase in assessed value of the property at the time the property achieves stabilized occupancy as determined by the assessor (in the event that the renovation activities are completed for a qualifying property prior to the effective date of this ordinance, the adjusted tax abatement amount shall be determined by the assessor prior to the initial term).

The tax abatement eligibility and abatement amount shall be certified in writing by the assessor to the city treasurer who shall then implement the tax abatement. The city assessor's determination shall be final and not subject to appeal. The initial tax abatement established by this section shall commence as of the first day of the quarter following completion of the renovation. The resulting increase in assessed value ("initial abatement amount") shall not be recognized for real estate tax purposes for a period of two (2) years beginning the first day of the quarter immediately after the renovation activities have been completed.

The adjusted tax abatement established by this section shall commence as of the first day of the quarter two (2) years following completion of the renovation. The resulting increase in assessed value ("adjusted abatement amount") shall not be recognized for real estate tax purposes for a period of twelve (12) years for a property located in an area designated as an enterprise zone, beginning the first day of the quarter two (2) years after the renovation activities have been completed. For all other properties on which renovation activities were completed on or after September 2012, the resulting increase in assessed value "adjusted abatement amount" shall not be recognized for real estate tax purposes for a period of eight (8) years, beginning the quarter two (2) years after completion of the renovation activities have been completed. Upon the completion of eight (8) years of exemption for the adjusted abatement amount for a property not located in an area designated as an enterprise zone, the abatement amount shall be decreased to the extent of twenty (20) percent in each succeeding year; whereupon after the completion of the fourteenth year during which the owner has received an initial or adjusted abatement, the property shall be taxed at one hundred (100) percent of its fair market value.

Notwithstanding any provision to the contrary, (i) the initial and adjusted abatement amounts shall not be increased after the city assessor

establishes them; accordingly, any subsequent increases in value or rates will result in increased tax payments, and (ii) in no event shall the initial or adjusted abatements result in any decrease in the base assessed value of the property determined by the city assessor at the time of the certification of eligibility.

(e) The tax abatement established by this section is limited to the original applicant and one transferee, provided, however, that the property must at all times be in full compliance with all Norfolk City Codes including, without limitation, the Building Code, the Housing Code, the Zoning Ordinance of the City of Norfolk, and all other rules and regulations which affect or control the occupancy, use and management of the property. Should the director of planning determine that the property has become substantially out of compliance with applicable city ordinances, the director of planning shall thereupon give notice to the owner of such certification. The owner, having received written notice of ordinance violations, shall be granted thirty (30) days in which to correct said violations or to establish, to the satisfaction of the director of planning, that the certification of violations previously received is in error. Should the director of planning be satisfied at the end of said thirty-day period that the ordinance violations have occurred and have not been corrected by the owner as required by this subsection, he shall immediately notify the real estate assessor in writing who shall immediately and finally revoke tax abatement status of the property. Such abatement revocation shall be prospective in operation only and shall be immediately communicated to the owner in writing.

(f) Nothing in this section shall give rise to any tax abatement other than the amount determined by the city assessor as provided in subsection (d) above.

(g) No application submitted under this section shall be approved if the property owner is not current in payment of all taxes and assessments due the city. If a tax abatement is approved and a property owner (including any subsequent owner) thereafter fails to remain current in the payment of all city taxes and assessments, the property shall be immediately and finally removed from the tax abatement program.

(h) [Reserved.]

(Ord. No. 40,954, § 1, 2-4-03; Ord. No. 40,997, § 1, 3-25-03; Ord. No. 41,076, § 1, 6-24-03; Ord. No. 43,009, § 1, 3-4-08; Ord. No. 43,435, § 1, 5-12-09; Ord. No. 45,118, § 2, 5-21-13; Ord. No. 45,448, § 1, 2-11-14; Ord. No. 45,529, § 2, 4-29-14; Ord. No. 46,545, § 3, 8-23-16

Sec. 24-203.2. Tax abatement program for renovation of mixed-use properties.

(a) If the proposed renovation is a mixed-use of i) residential as defined in section 24-203 and of ii) commercial or industrial as defined in section 24-203.1, then the property's inclusion in a tax abatement program will be governed under either the tax abatement program in section 24-203 or the tax abatement program in section 24-203.1. The program that governs the property will be the Code section for the use that comprises at least sixty (60) percent of the proposed renovation at the time of application to the program.

(Ord. No. 50,212, § 1, 12-9-25)

DIVISION 2. EXEMPTION FROM OR DEFERRAL OF TAXES FOR ELDERLY AND DISABLED*

Sec. 24-204. General eligibility requirements for exemption or deferral.

Notwithstanding the provisions of the general real estate tax ordinance, a real estate tax exemption from or deferral of real estate tax liability is hereby provided for qualified property owners, who are not less than sixty-five (65)

*__Editor's note—__Ord. No. 41,839, § 9, adopted May 17, 2005, amended the title of Div. 2 to read as herein set out. Formerly, the division was titled "Exemption for elderly and disabled."

__State law reference—__Authority of city to adopt ordinance from which this division is derived, Code of Virginia, § 58.1-3210.

years of age or permanently and totally disabled and who are eligible according to other terms of this division.
(Ord. No. 30,612, § 1, 5-27-80; Ord. No. 41,839, § 9, 5-17-05; Ord. No. 45,007, § 1, 2-12-13)

Sec. 24-205. Definitions.

For the purpose of this division, permanently and totally disabled shall be as defined in § 58.1-3217 and determined as set forth in § 58.1-3213(D) of the Code of Virginia, 1950, as amended.

"Average residential tax" is the average residential assessment in the July 1 real estate land book of the fiscal year immediately preceding the fiscal year for which relief is sought multiplied by the applicable real estate tax rate for the fiscal year for which relief is sought.

"Nonqualified transfer" means a transfer in ownership of the real estate by gift or otherwise not for bona fide consideration, other than (i) a transfer by the qualified owner to a spouse, including without limitation a transfer creating a tenancy for life or joint lives; (ii) a transfer by the qualified owner or the qualified owner and his spouse to a revocable inter vivos trust over which the qualified owner, or the qualified owner and his spouse, hold the power of revocation; or (iii) a transfer to an irrevocable trust under which a qualified owner alone or in conjunction with his spouse possesses a life estate or an estate for joint lives, or enjoys a continuing right of use or support.

"Qualified owner" means the owner of the real property who qualifies for a tax deferral by county, city, or town ordinance.

"Real estate tax relief amount" is the annual amount established by city council budgeted for the purpose of providing real estate tax deferrals under section 24-209.1 of the Norfolk City Code, after providing the real estate tax exemptions for disabled veterans pursuant to Code of Virginia § 58.1-3219.5 and the amount of exemptions and deferrals provided under section 24-209 of the Norfolk City Code.
(Ord. No. 30,612, § 7, 5-27-80; Ord. No. 45,007, § 2, 2-12-13; Ord. No. 45,563, § 15, 5-20-14, eff. 7-1-14; Ord. No. 47,236, § 1, 5-22-18, eff. 7-1-18; Ord. No. 49,220, § 16, 6-13-23, eff. 7-1-23)

Sec. 24-206. Administration.

Exemptions and deferrals under this division shall be administered by the city manager or his/her authorized designee, herein referred to as the "administrator," according to the general provisions contained in this division. The administrator is hereby authorized and empowered to prescribe, adopt and enforce rules and regulations, including the requirement of answers under oath, as may be reasonably necessary to determine qualifications for exemption or deferral. The administrator may require the production of certified tax returns, appraisal reports, and other certifications to establish income, financial worth or disability.

In any fiscal year, the total amount of deferrals provided under this division shall not exceed the real estate tax relief amount as defined in section 24-205 of the Norfolk City Code.

In any fiscal year in which the real estate tax relief amount is not sufficient to afford the total amount of all allowable deferrals qualified for under section 24-209.1 of the Norfolk City Code, the amount of deferral provided to each person qualifying shall be computed as a fraction of that allowable under the provisions of this division. The numerator of the fraction shall be the real estate tax relief amount and the denominator of the fraction shall be the total amount of all allowable deferrals qualified for under the provisions of section 24-209.1 of the Norfolk City Code.
(Ord. No. 30,612, § 2, 5-27-80; Ord. No. 41,839, § 9, 5-17-05; Ord. No. 45,007, § 3, 2-12-13; Ord. No. 45,563, § 16, 5-20-14, eff. 7-1-14)

Sec. 24-207. Conditions for grant of exemption or deferral.

(1) The title to the property for which exemption or deferral is claimed is held, or partially held, on June 30 immediately preceding the taxable year by the person or persons claiming exemption or deferral.

(2) The head of the household occupying the dwelling and owning title or partial title thereto, is sixty-five (65) years or older or permanently and totally disabled on June 30 of the year immediately preceding the taxable year. Such dwelling must be occupied as the sole dwelling of the person or persons claiming exemption.

(3) The gross combined income of the owner during the year immediately preceding the taxable year shall be determined by the administrator to be an amount not to exceed the limits established by section 24-209 and 24-209.1 of the Norfolk City Code. Gross combined income shall include all income from all sources of the owner and of the owner's relatives living in the dwelling for which exemption or deferral is claimed, provided that the first ten thousand dollars ($10,000.00) of income of each relative, who is not the spouse of an owner, shall not be included in such total or up to ten thousand dollars

($10,000.00) of income for an owner who is permanently disabled. "Owner" as used herein shall also be construed as "owners."

(4) The net combined financial worth of the owner as of June 30 of the year immediately preceding the taxable year shall be determined by the administrator to be an amount not to exceed three hundred fifty thousand dollars ($350,000.00). Net combined financial worth shall include the value of all assets, including equitable interests of the owner and of the owner's spouse, excluding the fair market value of the dwelling and the land, not exceeding one acre, upon which it is situated and for which exemption or deferral is claimed.

(Ord. No. 30,612, § 3, 5-27-80; Ord. No. 32,473, § 1, 7-26-83; Ord. No. 32,941, § 1, 6-12-84; Ord. No. 35,061, § 1, 5-24-88; Ord. No. 36,020, § 1, 5-22-90; Ord. No. 40,802, § 1, 8-20-02; Ord. No. 41,839, § 9, 5-17-05; Ord. No. 42,281, § 1, 5-16-06; Ord. No. 42,661, § 1, 5-15-07; Ord. No. 43,090, § 1, 5-22-08; Ord. No. 43,482, § 1, 6-16-09; Ord. No. 45,007, § 4, 2-12-13)

Sec. 24-208. Annual affidavit required.

Annually, not prior to the first day of February nor later than the first day of June of the taxable year, the person or persons claiming an exemption or deferral must file a real estate tax relief application and affidavit with the administrator. Such application and affidavit shall set forth, in a manner prescribed by the administrator, the location, assessed value of the property and the names of the related persons occupying the dwelling for which exemption or deferral is claimed, their gross combined income, and their net financial worth.

The administrator is authorized to accept filing of applications and affidavits submitted by participants in the program in the previous tax year after the first day of June of the tax year for which exemption or deferral is sought due to demonstrated hardship.

(Ord. No. 30,612, § 4, 5-27-80; Ord. No. 41,839, § 9, 5-17-05; Ord. No. 42,281, § 2, 5-16-06; Ord. No. 44,169, § 1, 3-8-11; Ord. No. 45,007, § 5, 2-12-13; Ord. No. 45,563, § 17, 5-20-14, eff. 7-1-14)

Sec. 24-209. Schedule of exemption.

Where the person or persons claiming exemption conforms to the standards and does not exceed the limitations contained in this division, the tax exemption shall be as shown on the following schedule, except that the amount of tax exempted shall not exceed the average residential tax amount:

Combined Income	*% of Tax Exempted*
0—28,611.00	100%

Any or all remaining real estate tax in excess of the amount entitled to exemption may be deferred.

(Ord. No. 30,612, § 5, 5-27-80; Ord. No. 32,473, § 1, 7-26-83; Ord. No. 35,061, § 1, 5-24-88; Ord. No. 36,020, § 2, 5-22-90; Ord. No. 40,802, § 2, 8-20-02; Ord. No. 41,839, § 9, 5-17-05; Ord. No. 42,281, § 3, 5-16-06; Ord. No. 42,661, § 3, 5-15-07; Ord. No. 43,090, § 2, 5-22-08; Ord. No. 45,007, § 6, 2-12-13; Ord. No. 45,563, § 18, 5-20-14, eff. 7-1-14)

Sec. 24-209.1. Schedule of deferral.

Where the person or persons claiming deferral conforms to the standards and does not exceed the limitations contained in this division, the tax deferral shall be as shown on the following schedule, except that the amount of tax deferred shall not exceed the average residential tax multiplied by the qualifying percentage of deferral and, in accordance with section 24-206 above, shall be reduced, subject to the real estate tax relief amount:

Combined Income	*% of Tax Deferred*
28,611.01—36,958.00	80%
36,958.01—45,306.00	60%
45,306.01—53,653.00	40%
53,653.01—67,000.00	20%

(Ord. No. 41,839, § 10, 5-17-05; Ord. No. 42,281, § 4, 5-16-06; Ord. No. 45,007, § 7, 2-12-13)

Sec. 24-209.2. Deferral; taxes to be a lien on the property.

In the event of a deferral of real estate taxes, the accumulated amount of taxes deferred shall be paid without penalty or interest to the city by

the vendor, transferor, executor, or administrator: (i) upon the sale of the real estate; (ii) upon a nonqualified transfer of the real estate; or (iii) from the estate of the decedent within one year after the death of the last qualified owner thereof. Such deferred real estate taxes shall be paid without penalty, except that the city may collect interest of eight percent (8%) per year on any amount so deferred, and such taxes and interest, if applicable, shall constitute a lien upon the real estate as if it had been assessed without regard to the deferral permitted by this section. Any such lien shall, to the extent that it exceeds in the aggregate ten percent (10%) of the price for which such real estate may be sold, be inferior to all other liens of record.
(Ord. No. 45,007, § 8, 2-12-13; Ord. No. 45,563, § 19, 5-20-14, eff. 7-1-14; Ord. No. 47,236, § 2, 5-22-18, eff. 7-1-18)

Sec. 24-210. Changes in income, net worth, etc.

Changes in respect to income, financial worth, ownership of property or other factors occurring during the taxable year for which the affidavit mentioned in section 24-208 above is filed and having the effect of exceeding or violating the limitations and/or conditions provided in this section [division] shall nullify any relief of real estate tax liability for the then current taxable year and the taxable year immediately following.
(Ord. No. 30,612, § 6, 5-27-80)

Sec. 24-211. Penalty for false statements.

Any person or persons who shall falsely claim an exemption or deferral or shall falsely give information on which an exemption or deferral is based shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not exceeding one thousand dollars ($1,000.00) or confinement in jail not exceeding twelve (12) months, or both such fine and imprisonment.
(Ord. No. 30,612, § 8, 5-27-80; Ord. No. 41,839, § 9, 5-17-05)

DIVISION 2.2. EXEMPTION FOR SURVIVING SPOUSES OF CERTAIN PERSONS KILLED IN THE LINE OF DUTY*

Sec. 24-211.1. Definitions.

As used in this section, "covered person" means any person set forth in the definition of "deceased person" in the Line of Duty Act, §§ 9.1-400 et seq. of the 1950 Code of Virginia, as amended (the "Act"), whose beneficiary, as defined in Virginia Code § 9.1-400, is entitled to receive benefits under Virginia Code § 9.1-402, as determined by the Commonwealth of Virginia's Comptroller prior to July 1, 2017, or as determined by the Virginia Retirement System on and after July 1, 2017.
(Ord. No. 49,066, § 1, 1-24-23)

Sec. 24-211.2. Requirements and administration.

(a) Upon application, total or partial exemption from real estate taxation shall be granted for residential real estate, consisting of a single-family dwelling unit, accessory structures, and no more than three (3) acres of land owned by and occupied as the principal place of residence of a surviving spouse of any covered person, provided that each of the following criteria are met:

(1) The surviving spouse holds title or partial title to the real property at the time the application is made;

(2) The surviving spouse occupies the real property as his or her principal place of residence; and

(3) The surviving spouse does not remarry.

(b) If the assessed value of the dwelling in the most recently ended tax year, exclusive of the value of the land on which it is situated, is not in excess of the average assessed value for such year of a dwelling situated on property zoned for

*__Editor's note—__Prior to reenactment by Ord. No. 49,066, § 1, adopted Jan. 24, 2023, Ord. No. 42,280, § 1, adopted May 16, 2006, added provisions designated as Div. 2.2, §§ 24-211.1—24-211.7. Said ordinance included a sunset provision set to expire June 30, 2007. At the direction of the city, the division, which pertained to general deferral of a portion of real estate tax increases, has been repealed.

single-family residential use, a total exemption from real estate taxation shall be granted for the dwelling.

(c) If the assessed value of the dwelling in the most recently ended tax year, exclusive of the value of the land on which it is situated, is in excess of the average assessed value for such year of a dwelling situated on property zoned for single-family residential use, then only that portion of the assessed value shall be subject to real property taxation, and the portion of the assessed value that is not in excess of the average assessed value shall be exempt from real property taxes;

(d) The first three (3) acres of land of any property on which a dwelling that is totally or partially exempt from real estate taxation pursuant to this section is situated shall be exempt from real estate taxation.

(e) For tax years beginning on or after January 1, 2017, a real property improvement other than a dwelling, including the land on which such improvement is situated, made to such three (3) acres shall also be exempt from taxation so long as the principal use of the improvement is:

(1) To house or cover motor vehicles or household goods and personal effects, and

(2) For other than a business purpose.

(f) For purposes of the exemption provided above, real property of any surviving spouse of a covered person includes any single- family home, condominium, townhome, manufactured home, whether or not the wheels and other equipment previously used for mobility have been removed, or other type of dwelling unit designed for occupancy by a single family, whether or not the land on which the single-family home, condominium, townhome, manufactured home, or other type of dwelling is located is owned by someone other than the surviving spouse, that is (i) held by a surviving spouse of a tenant for life, (ii) held in a revocable inter vivos trust over which the surviving spouse holds the power of revocation, or (iii) held in an irrevocable trust under which the surviving spouse possesses a life estate or enjoys a continuing right of use or support. The term does not include any interest held under a leasehold or term of years. If the land on which the single-family home, condominium, townhome, manufactured home, or other type of dwelling is located is not owned by the surviving spouse, then the land is not exempt.

(g) For purposes of the exemption provided above, in the event that a surviving spouse is entitled to an exemption by virtue of holding the real property in any of the three ways set forth in subsection (f) by which one or more persons have an ownership interest in the real property that permits them to occupy the property, then the tax exemption for the property that otherwise would have been provided shall be prorated by multiplying the amount of the exemption by a fraction that has "1" as a numerator and has as a denominator the total number of all people having an ownership interest that permits them to occupy the property.

(h) For purposes of the exemption provided above, in the event that the principal residence is jointly owned by two (2) or more individuals, including the surviving spouse, and no person is entitled to the exemption under this section by virtue of holding the property in any of the three (3) ways set forth in subsection (f), then the exemption shall be prorated by multiplying the amount of the exemption by a fraction that has as a numerator the percentage of ownership interest in the dwelling held by the surviving spouse, and as a denominator, one hundred (100) percent.

(i) The city manager or his designee is authorized and empowered to prescribe, adopt and enforce rules and regulations, including the requirement of answers under oath, as may be reasonably necessary to determine qualifications for exemption. The city manager may require the production of such documentation as may be required as necessary to establish eligibility for an exemption under this section.

(j) Filing of application. A surviving spouse claiming the exemption under this section shall file a real estate tax exemption application containing the following:

(1) An affidavit or notarized written statement:

a. Setting forth the surviving spouse's name;

b. Indicating any other joint owners of the real property;

c. Certifying that the real property is occupied as the surviving spouse's principal place of residence;

d. Certifying the surviving spouse has not remarried; and

e. Including evidence of the determination of the Commonwealth of Virginia's Comptroller or the Virginia Retirement System pursuant to section 24-211.1 above.

(2) The surviving spouse shall also provide documentation that he or she is the surviving spouse of a covered person and of the date that the covered person died.

(3) The surviving spouse shall be required to refile the information required by this section only if the surviving spouse's principal place of residence changes.

(k) Changes in material factors. The surviving spouse of a covered person shall have an affirmative duty to notify the administrator of any remarriage, any change in ownership, or any change in his or her principal place of residency.

(l) Operation of exemption. If the covered person's death occurred on or prior to January 1, 2017, and the surviving spouse has a principal residence on January 1, 2017, eligible for the exemption under this section, then the exemption for the surviving spouse shall begin on January 1, 2017. If the covered person's death occurs after January 1, 2017, and the surviving spouse has a principal residence eligible for the exemption under this section on the date that such covered person dies, then the exemption for the surviving spouse shall begin on the date that such covered person dies. If the surviving spouse acquires the property after January 1, 2017, then the exemption shall begin on the date of acquisition. The city shall not be liable for any interest on any refund due to the surviving spouse for taxes paid prior to the surviving spouse's filing of the affidavit or notarized written statement required by paragraph (j) hereof.

(m) Absence from residence. The fact that surviving spouses who are otherwise qualified for tax exemption pursuant to this article are residing in hospitals, nursing homes, convalescent homes, or other facilities for physical or mental care for extended periods of time shall not be construed to mean that the real estate for which tax exemption is sought does not continue to be the sole dwelling of such persons during such extended periods of other residence, so long as such real estate is not used by or leased to others for consideration.

(n) Penalty for false claims. Any person falsely claiming an exemption shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not exceeding two thousand five hundred dollars ($2,500.00) or confinement in jail not exceeding twelve (12) months or both.

(o) The exemption is for tax years beginning on or after January 1, 2017, and shall be applied retroactively to that date.
(Ord. No. 49,066, § 1, 1-24-23)

Secs. 24-211.3—24-211.7. Reserved.

DIVISION 3. DOWNTOWN SERVICE DISTRICT

Sec. 24-212. Downtown Service District created and area defined.

Pursuant to chapter 24, section 15.2-2400 et seq., of the Code of Virginia, 1979, as amended, the Downtown Service District is hereby created and the area of the Downtown Service District is defined to consist of the real estate described as follows:

An irregular-shaped parcel, situate, lying, and being in the downtown section of Norfolk, Virginia, said parcel being bounded on the north by Virginia Beach Boulevard, on the

east by St. Paul's Boulevard, on the south and west by the waters of the Elizabeth River, and on the west by Boush Street and Duke Street, said parcel being further described as follows: Beginning at the intersection of the western line of Boush Street and the southern line of Brooke Avenue; thence, westwardly along southern line to a point on the western line of Duke Street; thence, northwardly along said western line of Duke Street to the northern line of Virginia Beach Boulevard; thence, northeastwardly on said northern line of Virginia Beach Boulevard to the intersection with the eastern line of Boush Street; thence, eastwardly along the northern line of Virginia Beach Boulevard to the eastern line of Monticello Avenue; thence, southwardly along said eastern line of Monticello Avenue to the eastern line of St. Paul's Boulevard; thence, southwardly along said eastern line of St. Paul's Boulevard to the northern line of Waterside Drive; thence, eastwardly along said northern line of Waterside Drive to the western side of Berkley Bridge; thence, southwardly along the Berkley Bridge to the waters of the Elizabeth River; thence, westwardly and northwardly along said waters of the Elizabeth River to the northern line of Nauticus, said line also being the southern line of Nauticus; thence, eastwardly along said northern line of Nauticus to the western line of Boush Street; thence, northwardly along said western line of Boush Street to the point of beginning.

(Ord. No. 39,454, § 1, 2-9-99; Ord. No. 47,621, § 1, 5-14-19, eff. 7-1-19; Ord. No. 50,383, § 1, 6-9-26, eff. 7-1-26)

Sec. 24-212.1. Facilities and services within the Downtown Service District.

The facilities and services within the Downtown Service District shall be additional, more complete and more timely governmental facilities and services including, but not limited to, economic, marketing and business recruitment, development and retention; promotional activities; security; cleaning and beautification; visitor informational services and other facilities, events and activities as set forth in section 15.2-2403 of the Code of Virginia, 1979, as amended, to enhance the public use and enjoyment of and the public safety, convenience and well-being within the Downtown Service District.

(Ord. No. 39,454, § 1, 2-9-99)

Sec. 24-212.2. Plan for providing facilities and services within the Downtown Service District.

The plan for providing facilities and services within the Downtown Service District is for the city to enter into an agreement with a nonprofit corporation which shall be responsible for providing the specific facilities and services in the service district with appropriated funds subject to direction, management and oversight by the city as set forth in the agreement as appropriate to the use of the funds for providing facilities and services for the Downtown Service District.

(Ord. No. 39,454, § 1, 2-9-99; Ord. No. 43,430, § 1, 5-5-09)

Sec. 24-212.3. Benefits of the Downtown Service District.

The benefits expected from the provisions of facilities and services within the Downtown Service District include, but are not limited to, the promotion of the downtown area as a regional consumer destination, the attraction, retention and promotion of downtown commercial and retail businesses, the development of the waterfront areas, the improvement of security for downtown visitors and employees, the enhancement of cleanliness and beautification and the increase of business profits and property values through the provision of additional facilities and services in the service district to benefit all the uses permitted by zoning in the Downtown Service District including but not limited to residential, commercial and industrial properties.

(Ord. No. 39,454, § 1, 2-9-99; Ord. No. 43,909, § 1, 6-22-10)

Sec. 24-212.4. Additional tax imposed for specified periods.

To provide for the additional facilities and services in the Downtown Service District, there is hereby imposed and levied an additional tax

on taxable real property and improvements subject to local taxation located in the Downtown Service District as defined in section 24-212, which tax is in addition to all other taxes and fees imposed by law and which is imposed and levied as follows:

For the period from July 1, 2026 through June 30, 2036, an additional tax at an annual rate of sixteen cents ($0.16) for every one hundred dollars ($100.00) of assessed value on taxable real property and improvements in the service district.

Valuation and assessment of real property, timing with respect to valuation, assessment and payment, penalties and interest on delinquencies, abatement in the event a building is razed, destroyed or damaged or in the case of natural disaster, assessment of new construction, and all other procedures for and details of the assessment, administration, and collection of the tax imposed by this section shall be the same as provided for real estate taxes generally. Costs of collection, accounting for, and administering the tax shall be a charge against revenues from the tax. Taxes collected pursuant to this section shall be segregated and expended only for the purposes of the Downtown Service District.
(Ord. No. 39,454, § 1, 2-9-99; Ord. No. 40,982, § 1, 3-18-03; Ord. No. 43,430, § 2, 5-5-09; Ord. No. 45,556, § 1, 5-20-14, eff. 7-1-14; Ord. No. 47,621, § 2, 5-14-19, eff. 7-1-19; Ord. No. 50,383, § 2, 6-9-26, eff. 7-1-26)

DIVISION 4. EXEMPTION FOR CHARITABLE NONPROFIT ORGANIZATIONS

Sec. 24-212.5. General eligibility requirements.

(a) The real and personal property of an organization designated within this division and used by such organization exclusively for a religious, charitable, patriotic, historical, benevolent, cultural or public park and playground purpose as set forth in article X, section 6(a)(6) of the Constitution of Virginia, the particular purpose for which such organization is classified being specifically set forth within each section, shall be exempt from taxation so long as the council deems such organization is operated not for profit and the property so exempt is used in accordance with the purpose for which the organization is classified. Such exemption may be revoked by the Council whenever it deems it appropriate.

(b) Before granting exemption, the city council shall consider the following:

(1) Whether the organization is exempt from taxation pursuant to § 501(c) of the Internal Revenue Code of 1954;

(2) Whether a current annual alcoholic beverage license for serving alcoholic beverages has been issued by the Virginia Alcoholic Beverage Control Board to such organization, for use on such property;

(3) Whether any director, officer, or employee of the organization is paid compensation in excess of a reasonable allowance for salaries, or other compensation for personal services which such director, officer, or employee actually renders;

(4) Whether any part of the net earnings of such organization inures to the benefit of any individual, and whether any significant portion of the service provided by such organization is generated by funds received from donations, contributions, or local, state or federal grants. As used in this subsection, donations shall include the providing of personal services or the contribution of in-kind or other material services;

(5) Whether the organization provides services for the common good of the public;

(6) Whether a substantial part of the activities of the organization involves carrying on propaganda, or otherwise attempting to influence legislation and whether the organization participates in, or intervenes in, any political campaign on behalf of any candidate for public office;

(7) The revenue impact to the locality and its taxpayers of exempting the property; and

(8) Any other criteria, facts and circumstances deemed pertinent to the adoption of such ordinance.

(c) Individually designated properties and owners are as follows:

(1) 100 public housing units owned by Norfolk One, L.P. located at 2500 E. Princess Anne Road, Norfolk, Virginia, 23504 and located on the below described property ("public housing unit" as used in this division means the manner of housing traditionally supplied by the Norfolk Redevelopment and Housing Authority where the rent is based upon the tenant's income and the tenant is subsidized).

All that certain piece or parcel of land situate, lying and being in the City of Norfolk, Virginia, and being further described as follows:

Beginning at a point in the northern right-of-way line of Princess Anne Road being the intersection of the return radius of the eastern right-of-way line of Standard Street and said Princess Anne Road; thence from said point of beginning and running along a curve to the right having the following curve data: radius = 10.00 feet, delta angle = 99 degrees 37`00", arc length = 17.39 and chord length = 15.28 feet to a point in the eastern right-of-way line of Standard Street; thence running along said right-of-way line N 01 degrees 58`00" E 268.89 feet to a pin in concrete; thence N 03 degrees 22`12" W 55.05 feet to a pin in concrete; thence N 02 degrees 16`00" E 19.36 feet to a point; thence leaving said Standard Street right-of-way line turning and running along the lines between Parcel A and Parcel B on the plat hereinafter described N 82 degrees 21`00" E 428.69 feet to a point; thence turning and running S 07 degrees 39`00" E 350.75 feet to a point in the northern right-of-way line of Princess Anne Road; thence turning and running along said right-of-way line S 82 degrees 21`00" W 471.19 feet to the point of beginning. The above-described parcel contains 159,210 square feet or 3.6550 acres, more or less. Said property being more particularly described as Parcel A on that certain plat entitled, "Subdivision of Marshall Manor, Norfolk Virginia" dated August 9, 2001, made by Horton & Dodd, P.C., recorded in the Clerk's Office of the Circuit Court of the City of Norfolk, Virginia in Map Book 54 at page 25.

It being the same property conveyed to Norfolk One, L.P. by deed from The Norfolk Redevelopment and Housing Authority dated November 9, 2001, and recorded in the Clerk's Office aforesaid on November 14, 2001, as Instrument Number 010029325.

(2) Fifty-six (56) public housing units owned by TCB Marshall Manor Limited Partnership located on the below described property.

Parcels B-2, B-3, B-5 and B-6 as shown on the subdivision plat entitled "Broad Creek Phase IIA-1, BEING A SUBDIVISION OF PARCEL B, SUBDIVISION OF MARSHALL MANOR (M.B. 54 P. 25-26)", prepared by Hayden Frye and Associates, Inc., Land Surveyors and recorded in the Clerk's Office on October 9, 2003 in Map Book 55 at pages 110-112.

(3) 29 public housing units owned by TCB Bowling Green Limited Partnership located on the below described property.

Parcels D-3 and D-4 as shown on the subdivision plat entitled "Broad Creek Phase IIA-2, Subdivision of Block D, Subdivision of Bowling Park M.B. 15 P. 92, and a portion of Hampton Ave. Lots 7 thru 14 and 25 thru 35 Blk 4, a portion of Woodland Ave., South 55' of lot 8, lots 9 thru 19 and part of lots 28 thru 39, block 2, Subdivision of A.S. Martin's property on Broad Creek, M.B. 3, P. 85", prepared by Hayden Frye and Associates, Inc., Land Surveyors and recorded in the Clerk's Office on October 9, 2003 in Map Book 55, at pages 113-114.

(4) Forty-six (46) public housing units owned by TCB Marshall Manor III Limited Partnership located on the below described property.

Parcel 3A-1, Parcel 3A-3 and Parcel 3A-5 of Broad Creek Phase IIIA-1 being a

subdivision of Parcel B, subdivision of Marshall Manor and Block D, subdivision of Bowling Park; and Parcel B-1 of Broad Creek Phase 2A being a subdivision of Parcel B, subdivision of Marshall Manor and Block D, subdivision of Bowling Park.

(5) Thirty-five (35) public housing units owned by TCB Bowling Green III Limited Partnership located on the below described property.

Parcel 3B-2 of Broad Creek Phase IIIA-2, being a subdivision of Parcel D-1 Broad Creek Phase IIA-2 and a portion of Bowling Park—Block C and Hollister Avenue.

(6) Thirty-eight (38) public housing units owned by TCB Marshall Manor IV Limited Partnership located as shown on the Marshall Manor Preliminary Plat C-1 prepared by Vanasse Hangen Brustlin, Inc. dated March 2, 2004.

(7) Fifty (50) public housing replacement units owned by TCB Bowling Green IV Limited Partnership as shown on those two certain Bowling Green Preliminary Plats C-2 and C-3 prepared by Vanasse Hangen Brustlin, Inc. dated March 2, 2004.

(Ord. No. 41,496, § 1, 7-20-04)

ARTICLE V. TAX ON PURCHASE OF UTILITY SERVICES

Sec. 24-213. Definitions.

(a) *Generally.* Certain words and phrases, when used in this article, shall have, for the purposes of this article, the meanings ascribed to them by this section, except where the context clearly indicates a different meaning.

(b) *Reserved.*

(c) *Purchaser.* The word "purchaser" shall include every person who purchases a utility service.

(d) *Seller.* The word "seller" shall include every person, whether a public service corporation or the City of Norfolk or not, who sells or furnishes a utility service.

(e) *Utility service.* The phrase "utility service" shall include all forms of telephone service (except long distance service) and shall also include water service, and cable television service, and satellite master antenna television system service furnished in the corporate limits of the city. This definition does not include any service which would be taxed under section 24-327 and article XIII of this [chapter] Code.

(f) *Wholesale.* The word "wholesale" shall include the selling of goods in gross to retail dealers, and not by the small quantity or parcel to consumers thereof.

(g) *Manufacturer.* The word "manufacturer" shall include every purchaser of utility services who engages in the manufacture or assembly of durable, finished equipment, including motor vehicles, marine vessels (building, repairing and/or altering of ships), and electronic devices, and is classified as such by the commissioner of the revenue.

(Ord. No. 25,986, § 1, 5-25-71; Ord. No. 32,710, § 1, 1-3-84; Ord. No. 36,026, § 1, 5-22-90; Ord. No. 38,027, § 1, 6-27-95; Ord. No. 38,370, § 1, 5-21-96; Ord. No. 39,009, § 1, 12-30-97; Ord. No. 40,127, § 1, 10-10-00)

Sec. 24-214. Levied; amount; exclusions.

(a) For each and every fiscal year beginning July first and ending June thirtieth of each such year, unless otherwise changed by the council, there is hereby imposed and levied by the city upon each and every purchase of a utility service a tax in accordance with the following schedule:

(1) Water:

a. Residential, five-eighths-inch meter only, twenty-five (25) percent of the first twenty-two dollars and fifty cents ($22.50).

b. Commercial, all meters other than five-eighths-inch, twenty-five (25) percent of the first seventy-five dol-

lars ($75.00) and fifteen (15) percent of all over seventy-five dollars ($75.00).

c. All of the above are exclusive of service charges made by the city.

(2) Telephone service, twenty-five (25) percent of total.

(3) Cable television service, seven (7) percent of the total bill, but excluding any charge made for a remote control tuning device.

(4) Satellite master antenna television system service, seven (7) percent of the total bill.

a. The tax shall be imposed and levied upon the amount charged (exclusive of any federal tax) by the seller against the purchaser with respect to each utility service, which tax, in every case, shall be added to and collected by the seller from the purchaser and shall be paid by the purchaser unto the seller for the use of the city at the time that the purchase price or such charge shall become due and payable in accordance with bills rendered.

(Ord. No. 25,986, §§ 2, 11, 5-25-71; Ord. No. 29,944, § 1, 5-22-79; Ord. No. 32,710, § 2, 1-3-84; Ord. No. 38,027, § 2, 6-27-95; Ord. No. 38,370, § 1, 5-21-96; Ord. No. 39,009, § 2, 12-30-97; Ord. No. 39,194, § 1, 5-26-98; Ord. No. 39,449, § 1, 1-26-99; Ord. No. 40,127, § 2, 10-10-00)

Charter reference—Authority of city to levy and collect utility tax, § 2(b).

Sec. 24-215. Reserved.

Editor's note—Section 2 of Ord. No. 38,370, adopted May 21, 1996, repealed § 24-215, which pertained to the applicability of the tax levied by this article to telephone service and which derived from Ord. No. 25,986, § 6, adopted May 25, 1971.

Sec. 24-215.1. Emergency 911 tax.

(a) There is hereby levied a tax of thirty-five dollars forty cents ($35.40) per year, payable at a rate of two dollars ninety-five cents ($2.95) per month, and imposed on each consumer for each telephone line serving such consumer, excluding federal, state, and local government agencies, of telephone service or services provided by any corporation providing telephone services in the city. The tax shall be payable each month and added to the monthly statements tendered for telephone service in an amount equal to two dollars ninety-five cents ($2.95) per line serving each such customer of telephone service or services and shall be paid to the company tendering the statement; the telephone company shall make remittance of the taxes collected by virtue of enactment of this section simultaneously with the remittance of the utility tax collected by such telephone company.

(b) Any such tax imposed by this section shall be utilized solely for the initial capital installation and recurring maintenance repair and system upgrade costs, and salaries or portion of salaries of dispatchers or call-takers which are directly attributable to the E-911 program.

(Ord. No. 34,508, § 1, 5-26-87; Ord. No. 37,231, §§ 1, 2, 5-18-93; Ord. No. 37,626, § 1, 5-24-94; Ord. No. 38,755, § 1, 5-20-97; Ord. No. 40,710, § 1, 5-21-02; Ord. No. 41,047, § 8, 5-20-03; Ord. No. 41,408, § 8, 5-18-04)

Editor's note—The tax imposed by § 24-215.1 applies to service rendered subsequent to July 1, 1987.

Sec. 24-216. Exemptions.

(a) The United States of America, the State of Virginia, and the boards, commissions and authorities thereof, are hereby exempt from the payment of the tax imposed and levied by this article with respect to the purchase of utility services used by such governmental agencies.

(b) The tax imposed and levied by this article shall not apply to the purchase of bottled water.

(Ord. No. 25,986, §§ 5, 7, 5-25-71)

Sec. 24-217. Computation.

In all cases where the seller collects the price for utility services periodically, the tax imposed and levied by this article may be computed on the aggregate amount of purchases during such period, provided that the amount of the tax to be collected shall be the nearest whole cent to the amount computed.

(Ord. No. 25,986, § 8, 5-15-71)

Sec. 24-218. Payment by purchaser.

The tax imposed and levied by this article shall be paid by the purchaser unto the seller, for the use of the city, at the time that the purchase price or charge for the utility service shall become due and payable.
(Ord. No. 25,986, § 2, 5-25-71)

Sec. 24-219. Duty of seller to collect, report and remit.

It shall be the duty of every seller, in acting as the tax collection medium or agency for the city, to collect from the purchaser, for the use of the city, the tax imposed and levied by this article at the time of collecting the purchase price charged for the utility service. The taxes collected during each calendar month shall be reported and remitted by each seller to the commissioner of the revenue on or before the twenty-seventh day of the second following calendar month thereafter. The required report shall be in such form as may be prescribed by the commissioner of the revenue and shall be promptly turned over by him to the city treasurer.
(Ord. No. 25,986, § 3, 5-25-71)

Sec. 24-220. Seller's records.

Each and every seller shall keep complete records showing all purchases of utility service in the city, which records shall show the price charged against each purchaser with respect to each purchase, the date thereof, the date of payment thereof, and the amount of tax imposed under this article. Such records shall be kept open for inspection by the duly authorized agents of the city at reasonable times, and the duly authorized agents of the city shall have the right, power and authority to make such transcripts thereof during such times as they may desire.
(Ord. No. 25,986, § 4, 5-25-71)

Sec. 24-221. Powers and duties of treasurer.

The city treasurer shall be charged with the power and the duty of collecting the tax imposed and levied by this article and shall cause the same to be paid into the general treasury of the city.
(Ord. No. 25,986, § 10, 5-25-71)

Sec. 24-222. Violations of article by seller.

Any seller violating any of the provisions of this article, and any officer, agent or employee of any seller violating any of such provisions, shall be guilty of a Class 3 misdemeanor. Each failure, refusal, neglect or violation and each day's continuance thereof shall constitute a separate offense. Conviction for such offense shall not relieve any such person from the payment, collection and remittance of such tax as provided in this article.
(Ord. No. 25,986, § 9, 5-25-71)

Sec. 24-223. Penalty and interest for late remittance.

If any person shall fail or refuse to remit to the city treasurer the tax required by this article on or before the due date, there shall be imposed, in addition to other penalties provided herein, a specific penalty to be added to the tax in the amount of ten (10) percent. In addition, interest at the rate of ten (10) percent per annum shall be computed and collected upon the taxes and penalty from the date such taxes were due and payable.
(Ord. No. 41,848, § 1, 5-24-05)

Secs. 24-224—24-232. Reserved.

ARTICLE VI. TAX ON TRANSIENTS OBTAINING LODGING*

Sec. 24-233. Definitions.

(a) *Generally.* Certain words and phrases, when used in this article shall, for the purpose of this article, have the following meanings ascribed to them by this section, except where the context clearly indicates a different meaning.

*__Cross reference—__Hotels and similar establishments, Ch. 22.

(b) *Accommodations fee.* The term "accommodations fee" means the room charge less the discount room charge, if any, provided that the accommodations fee shall not be less than zero dollars ($0.00)

(c) *Discount room charge.* The term "discount room charge" means the full amount charged by a hotel to the lodging intermediary, or an affiliate thereof, for furnishing the lodging.

(d) *Hotel.* The word "hotel" means any public or private hotel, inn, hostelry, tourist home or house, motel, rooming house or other place in which a lodging is offered. A place that meets the definition of a "short-term rental unit" shall not be considered a "hotel".

(e) *Lodging.* The word "lodging" means any space or room provided to any transient for occupancy in exchange for compensation.

(f) *Lodging intermediary.* The term "lodging intermediary" means any person who facilitates the sale of a lodging and charges a fee or fees to the customer, any portion of which is retained as compensation for facilitating the sale. Any person who actually furnishes to the transient the lodging that is sold shall not be considered a "lodging intermediary."

(g) *Short-term rental unit.* The term "short-term rental unit" means any dwelling unit constructed for use as a residential house or apartment in which a lodging is offered for fewer than thirty (30) consecutive days, without regard to whether such use is lawful.

(h) *Room charge.* The word "room charge" means the total amount charged to a customer for the use of a lodging, excluding taxes, regardless of whether any or all of the amount is described as an accommodations fee, facilitation charge, cleaning charge, management fee, or any other name.

(i) *Transient.* The word "transient" means any person who, for a period of not more than ninety (90) consecutive days, either at his own expense or at the expense of another, obtains occupancy at a lodging in any hotel or short-term rental unit.

(Ord. No. 25,497, § 2, 5-26-70; Ord. No. 47,578, § 1, 3-26-19; Ord. No. 48,924, § 1, 9-13-22, eff. 10-1-22)

Sec. 24-234. Levied; amount.

There is hereby levied and imposed, in addition to all other taxes and fees of every kind now imposed by law, on each transient obtaining lodging at any hotel or any short-term rental unit in the city, jointly and severally, a tax equivalent to eight (8) percent of the room charge plus a flat tax of three dollars ($3.00) per night of lodging for each bedroom. This levy shall be in addition to the tax equivalent to one (1) percent of the room charge that is imposed under Virginia Code § 58.1-1743.

(Ord. No. 25,497, § 1, 5-26-70; Ord. No. 35,050, § 1, 5-24-88; Ord. No. 35,530, § 1, 5-23-89; Ord. No. 36,023, § 1, 5-22-90; Ord. No. 37,452, § 1, 11-9-93; Ord. No. 38,608, § 1, 12-17-96; Ord. No. 40,708, § 1, 5-21-02; Ord. No. 42,137, § 1, 1-10-06; Ord. No. 44,247, § 1, 5-17-11; Ord. No. 47,229, § 27, 5-22-18, eff. 7-1-18; Ord. No. 47,578, § 1, 3-26-19; Ord. No. 48,924, § 1, 9-13-22, eff. 10-1-22; Ord. No. 50,139, § 1, 10-7-25, eff. 1-1-26)

Sec. 24-235. Collection.

Every person receiving any payment, including any partial payment, for the use of a lodging by a transient upon whom such tax is levied under this article shall collect the amount of such tax so imposed from the person paying for such lodging at the time such payment for such lodging is made. The taxes collected shall include both those taxes provided in this article as well as those levied by Virginia Code § 58.1-1743. Taxes required to be collected under this section shall be deemed to be held in trust by the person required to collect such taxes until the same shall have been remitted to the city treasurer.

(Ord. No. 25,497, § 3, 5-26-70; Ord. No. 48,924, § 1, 9-13-22, eff. 10-1-22)

Sec. 24-236. Report and remittance generally.

The person collecting any tax as provided in this article and as provided by Virginia Code § 58.1-1743 shall report, as required by the commissioner of the revenue, and remit such taxes monthly as follows:

(a) When the person collecting the tax is not a lodging intermediary, the person shall make out a report, upon such forms setting forth such information as the commissioner of the revenue may prescribe and require, showing the amount of room charges collected, the number of nights stayed, and the tax required to be collected and shall sign and deliver such report and the tax to the city treasurer.

(b) When the person collecting the tax is a lodging intermediary, the person shall make out a report showing, for each sale of a lodging facilitated by the lodging intermediary, the property address, room charge related to such sale, and the number of nights stayed and shall deliver the report and the tax to the city treasurer.

(Ord. No. 25,497, § 4, 5-26-70; Ord. No. 48,924, § 1, 9-13-22, eff. 10-1-22)

Sec. 24-237. Collector's records.

It shall be the duty of every person liable for the collection and payment to the city of any tax imposed by this article to keep and to preserve, for a period of two (2) years, such suitable records as may be necessary to determine the amount of such tax as he may have been responsible for collecting and paying to the city. The commissioner of the revenue may inspect such records at all reasonable times.

(Ord. No. 25,497, § 8, 5-26-70)

Sec. 24-238. Duty of collector upon going out of business or disposing of business.

Whenever any person required to collect and pay the city a tax pursuant to provisions of this article shall cease to operate, go out of business or otherwise dispose of his business, any tax then payable to the city shall become immediately

due and payable and such person shall immediately make a report and pay the tax due to the city treasurer.
(Ord. No. 25,497, § 7, 5-26-70)

Sec. 24-239. Penalty and interest for late remittance.

If any person shall fail or refuse to remit to the city treasurer the tax required to be collected and paid under this article, within the time and in the amount as provided for in this article, there shall be added to such tax by the city treasurer a penalty in the amount of ten (10) percent thereof and interest thereon at the rate of ten (10) percent per annum, which shall be computed upon the tax and penalty from the date such taxes were due and payable.
(Ord. No. 25,497, § 5, 5-26-70; Ord. No. 40,940, § 1, 1-28-03)

Sec. 24-240. Procedure upon failure to collect, report, etc.

If any person shall fail or refuse to collect the tax imposed under this article and to make, within the time, provided in this article, the reports and remittances required, the commissioner of the revenue shall proceed in such manner as he may deem best to obtain facts and information on which to base the tax due. As soon as the commissioner of the revenue shall secure such facts and information as he is able to obtain upon which to base the assessment of any tax due and payable by any person who has failed or refused to collect such tax, and to make such report and remittance, he shall proceed to determine and assess against such person such tax and penalty and interest as in this article provided for, and shall notify such person by registered mail, sent to his last place of known address, of the amount of such tax and interest and penalty, and the total amount thereof shall be payable within ten (10) days of such notice.
(Ord. No. 25,497, § 6, 5-26-70)

Sec. 24-241. Violations of article.

Any person who shall violate any of the provisions of this article shall be guilty of a Class 2 misdemeanor.
(Ord. No. 25,497, § 9, 5-26-70)

Secs. 24-242—24-251. Reserved.

ARTICLE VII. TAX ON PURCHASE OF FOOD AND BEVERAGES*

Sec. 24-252. Definitions.

(a) *Generally.* The following words and phrases, when used in this article, shall have, for the purposes of this article, the following meanings except where the context clearly indicates a different meaning.

(b) *Cater.* The furnishing of food, beverages, or both on the premises of another for compensation.

(c) *Food.* All food, beverages or both, including alcoholic beverages, purchased in or from a food establishment, whether prepared in such food establishment or not, and whether consumed on the premises or not, and without regard to the manner, time or place of service.

(d) *Food establishment.* Any place in or from which food or food products are prepared, packaged, sold or distributed in the city, including, but not limited to, any restaurant, dining room, grill, coffee shop, cafeteria, cafe, snack bar, lunch counter, convenience store, movie theater, delicatessen, confectionery, bakery, eating house, eatery, drugstore, ice cream/yogurt shop, lunch wagon or truck, pushcart or other mobile facility from which food is sold, public or private club, resort, bar, lounge, or other similar establishment, public or private, and shall include private property outside of and contiguous to a building or structure operated as a food establishment at which food or food products are sold for immediate consumption.

***Editor's note—**Ord. No. 39,127, § 1, adopted April 28, 1998, amended Art. VII of Ch. 24 to read as herein set out. Prior to this amendment, Art. VII pertained to city's tax on the purchase of meals and was derived from the following ordinances:

Ord. No.	Date	Ord. No.	Date
25,987	5-25-71	35,191	7-26-88
31,176	5-26-81	36,024	5-22-90
31,521	1- 5-82	36,438	5-21-91
31,539	1-19-82	37,453	11- 9-93

(e) *Meal.* Meal shall mean any prepared food or drink offered or held out for sale by a food establishment for the purpose of being consumed by any person to satisfy the appetite and is ready for immediate consumption. All such food and beverage, unless otherwise specifically exempted or excluded herein shall be included, whether intended to be consumed on the seller's premises or elsewhere, whether designated as breakfast, lunch, snack, dinner, supper or by some other name, and without regard to the manner, time or place of service.

(f) *Purchaser.* Any person who purchases food and/or beverages.

(g) *Seller.* Any person, including the city, who sells food and/or beverages.

(h) *Person.* The word "person" shall include any individual, corporation, partnership, association, company, business, trust, joint venture or other legal entity.
(Ord. No. 39,127, § 1, 4-28-98; Ord. No. 40,011, § 1, 6-20-00)

Sec. 24-253. Levied; amount.

There is hereby imposed and levied by the city, on each person a tax at the rate of six and five-tenths (6.5) percent on the amount paid for meals purchased from any food establishment, whether prepared in such food establishment or not, and whether consumed on the premises or not and in accordance with the following brackets of charges and schedule of taxes applicable thereto:

Brackets of Charges	*Schedule of Taxes*
$0.01—$0.07	$0.00
0.38—0.38	0.02
0.39—0.53	0.03
0.54—0.69	0.04
0.70—0.84	0.05
0.85—0.99	0.06
1.00—1.15	0.07
1.16—1.30	0.08
1.31—1.46	0.09
1.47—1.61	0.10
1.62—1.76	0.11
1.77—1.92	0.12
1.93—2.07	0.13
2.08—2.22	0.14
2.23—2.38	0.15
2.39—2.53	0.16
2.54—2.69	0.17
2.70—2.84	0.18
2.85—2.99	0.19
3.00—3.15	0.20
3.16—3.30	0.21
3.31—3.46	0.22
3.47—3.61	0.23
3.62—3.76	0.24
3.77—3.92	0.25

On charges over three dollars and eighty-four cents ($3.84) the tax shall be a sum equal to six and five-tenths (6.5) percent of the charge.
(Ord. No. 39,127, § 1, 4-28-98; Ord. No. 40,011, § 2, 6-20-00; Ord. No. 40,709, § 1, 5-21-02; Ord. No. 40,848, § 1, 9-24-02)

Sec. 24-254. Collection of tax by seller.

Every person receiving any payment for food with respect to which a tax is levied hereunder shall collect and remit the amount of the tax imposed by this article from the person on whom the same is levied or from the person paying for such food at the time payment for such food is made; provided, however, no blind person operating a vending stand or other business enterprise under the jurisdiction of the Department for the Visually Handicapped and located on property acquired and used by the United States for any military or naval purpose shall be required to collect or remit such taxes.

Taxes so collected during each calendar month shall be reported and remitted by each seller to the commissioner of the revenue on or before the twentieth day of the following calendar month; provided, however, that the commissioner may require remittances on a more frequent basis if she finds that the food establishment operator has demonstrated a consistent pattern of late payments. Any such finding by the commissioner shall be expressed in a formal, written certification, a copy of which shall be delivered to the food establishment. The taxes collected by a

seller shall be deemed to be held in trust by such seller until they have been remitted to the commissioner of the revenue. The required report shall be in such form as may be prescribed by the commissioner of the revenue. All remittances received hereunder by the commissioner of the revenue shall be promptly turned over by her to the city treasurer.
(Ord. No. 39,127, § 1, 4-28-98; Ord. No. 40,011, § 3, 6-20-00)

Sec. 24-255. Exemptions; limits on application.

(a) The tax imposed under this article shall not be levied on the following items when served exclusively for off-premises consumption:

(1) Factory-prepackaged donuts, crackers, nabs, chips, cookies, candy, gum, nuts and items of essentially the same nature.

(2) Food sold in bulk. For the purposes of this provision, a "bulk sale" shall mean the sale of any item that would exceed the normal, customary and usual portion sold for on-premises consumption (e.g., a whole cake, a gallon of ice cream); a bulk sale shall not include any food or beverage that is catered or delivered or prepared for carry out by a food establishment for off-premises consumption.

(3) Alcoholic and nonalcoholic beverages sold in factory sealed containers.

(4) Any food or food product purchased with food coupons issued by the United States Department of Agriculture under the Food Stamp Program or drafts issued through the Virginia Special Supplemental Food Program for Women, Infants, and Children.

(5) Any food or food product purchased for home consumption as defined in the federal Food Stamp Act of 1977, 7 U.S.C. § 2012, as amended except hot food or hot food products ready for immediate consumption. For the purposes of administering the tax levied hereunder, the following items whether or not purchased for immediate consumption are excluded from the said definition of food in the federal Food Stamp Act: sandwiches, salad bar items sold from a salad bar, prepackaged single-serving salads consisting primarily of an assortment of vegetables, and nonfactory sealed beverages. This subsection shall not affect provisions set forth in subparagraphs (c)(3), (4) and (5) hereinbelow.

(b) A grocery store, supermarket or convenience store shall not be subject to the tax except for any portion or section therein designated as a delicatessen or designated for the sale of prepared food and beverages.

(c) The tax imposed under this article shall not be levied on the following purchases of food and beverages:

(1) Food and beverages furnished by food establishments to employees as part of their compensation when no charge is made to the employee.

(2) Food and beverages sold by day care centers, public or private elementary or secondary schools or food sold by any college or university to its students or employees.

(3) Food and beverages for use or consumption by and which is paid for directly by the commonwealth, any political subdivision of the Commonwealth or the United States of America.

(4) Food and beverages furnished by a hospital, medical clinic, convalescent home, nursing home, home for the aged, infirm or handicapped, battered women, narcotic addicts or alcoholics, or other extended care facility to patients or residents thereof.

(5) Food and beverages furnished by a public or private nonprofit charitable organization or establishment or a private establishment that contracts with the appropriate agency of the commonwealth to offer meals at concession prices to the elderly, infirm, handicapped or needy persons in their homes or at central locations.

(6) Food and beverages sold on an occasional basis, not exceeding three (3) times per calendar year, by a nonprofit educational, charitable or benevolent organization, church, or religious body as a fund-raising activity, the gross proceeds of which are to be used by such organization exclusively for nonprofit educational, charitable, benevolent or religious purposes.

(7) Food and beverages sold through vending machines.

(Ord. No. 39,127, § 1, 4-28-98; Ord. No. 40,011, § 4, 6-20-00)

Sec. 24-256. Gratuities and service charges.

(a) Any portion of the amount paid by the purchaser as a discretionary gratuity that is added to the price of a meal is not subject to the tax imposed by this article.

(b) Any portion of the amount paid by the purchaser as a mandatory gratuity or service charge is not subject to the tax imposed by this article, but only to the extent that such mandatory gratuity or service charge does not exceed twenty (20) percent of the price of the meal.

(Ord. No. 39,127, § 1, 4-28-98; Ord. No. 42,741, § 1, 7-10-07)

Sec. 24-257. Preservation of records.

It shall be the duty of every person required by this article to pay to the city the taxes imposed by this article to keep and to preserve for a period of five (5) years records showing all purchases taxable under this article, the amount charged the purchaser for each such purchase, the date thereof, the taxes collected thereon and the amount of tax required to be collected by this article. The commissioner of the revenue or her duly authorized agents shall have the power to examine such records at reasonable times and without unreasonable interference with the business of such person, for the purpose of administering and enforcing the provisions of this article, and to make transcripts of all or any parts thereof.

(Ord. No. 39,127, § 1, 4-28-98)

Sec. 24-258. Requirement for new food establishment businesses; authority of the commissioner.

(a) The commissioner will require all new food establishment businesses to provide the commissioner a detailed, itemized list of the business tangible personal property of the food establishment, to include leased business tangible personal property.

(b) The commissioner of the revenue is authorized to develop, implement, and utilize such forms, regulations, and procedures as may be useful and expedient in implementing this section.

(Ord. No. 39,127, § 1, 4-28-98; Ord. No. 40,947, § 1, 2-4-03; Ord. No. 47,947, § 1, 3-24-20; Ord. No. 50,211, § 1, 12-9-25)

Sec. 24-259. Duty of seller upon going out of business or disposing of business.

Whenever any person required to collect and remit the tax imposed and levied by this article shall go out of business, dispose of his business or otherwise cease to operate, all of such taxes collected shall thereupon be reported and remitted to the commissioner of the revenue.

(Ord. No. 39,127, § 1, 4-28-98)

Sec. 24-260. Penalty and interest for late remittance.

If any person shall fail or refuse to remit the taxes collected, at the time and in the manner required by this article, there shall be imposed, in addition to other penalties provided herein, a specific penalty to be added to the tax in the amount of ten (10) percent. In addition, interest at the rate of ten (10) percent per annum shall be computed and collected upon the taxes and penalty from the date such taxes were due and payable.

(Ord. No. 39,127, § 1, 4-28-98)

Sec. 24-261. Procedure upon failure to collect, report, etc.

If any person shall fail or refuse to collect the tax imposed and levied by this article or fail or

refuse to make, within the time and manner provided in this article, the report and remittance required, the commissioner of the revenue shall proceed in such manner as he may deem best to obtain facts and information on which to base the tax due. As soon as the commissioner procures pursuant to this section such facts and information, he shall proceed to determine and assess against such person such tax and penalty and interest as are provided for in this article and shall notify such person by registered mail, sent to his last known address, of the amount of such tax, penalty and interest, and the total amount thereof shall be payable within ten (10) days from the date of such notice.
(Ord. No. 39,127, § 1, 4-28-98)

Sec. 24-262. Powers and duties of treasurer.

The city treasurer shall have the power to collect and the duty of collecting the taxes imposed and levied by this article and shall cause the same to be paid into the general treasury of the city.
(Ord. No. 39,127, § 1, 4-28-98)

Sec. 24-263. Penalty for violation of article.

(a) Any person willfully failing or refusing to file a return as required under this article shall, upon conviction thereof, be guilty of a Class 1 misdemeanor, except that any person failing to file such a return shall be guilty of a Class 3 misdemeanor if the amount of the tax lawfully assessed in connection with the return is one thousand dollars ($1,000.00) or less. Any person violating or failing to comply with any other provision of this article shall be guilty of a Class 1 misdemeanor.

(b) Any corporate or partnership officer, as defined in section 58.1-3906 of the Code of Virginia, 1950, as amended, or any other person required to collect, account for, or pay over the food and beverage tax imposed under this article, who willfully fails to collect or truthfully account for or pay over such tax, or who willfully evades or attempts to evade such tax or payment thereof, shall, in addition to any other penalties imposed by law, be guilty of a Class 1 misdemeanor.

(c) Any corporate or partnership officer, as defined in section 58.1-3906 of the Code of Virginia, 1950, as amended, or any other person required to collect, account for, or pay over the food and beverage tax imposed under this article, who willfully fails to collect or truthfully account for or pay over such tax, or who willfully evades or attempts to evade such tax or payment thereof, shall, in addition to any other penalties imposed by law, be liable for a penalty of the amount of the tax evaded or not paid, collected, or accounted for and paid over, to be assessed and collected in the same manner as such taxes are assessed and collected.

(d) Each violation of or failure to comply with this article shall constitute a separate offense. Conviction of any such violation shall not relieve any person from the payment, collection or remittance of the tax as provided in this article.
(Ord. No. 39,127, § 1, 4-28-98)

Secs. 24-264—24-270. Reserved.

ARTICLE VIII. BANK FRANCHISE TAX*

Sec. 24-271. Definitions.

(a) *Generally.* For the purposes of this article, the following words shall have the meanings ascribed to them by this section:

(b) *Bank* shall be defined as in section 58.11201 of the Code of Virginia.

(c) *Net capital* shall mean a bank's net capital computed pursuant to section 58.1-1205 of the Code of Virginia.
(Ord. No. 30,584, § 2, 4-29-80)

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*__Editor's note—__Ord. No. 30,584, § 5, enacted April 29, 1980, repealed an ordinance enacted Nov. 29, 1946, which set out a tax on bank stock. The editor has construed the repeal as applicable to the bank stock tax which had been codified as Art. VIII, §§ 24-271—24.277, as deriving from Ord. No. 24,121, §§ 1—4, enacted Nov. 28, 1967, and Ord. No. 29,729, §§ 1—4, adopted Nov. 21, 1978.

In lieu of the repealed material, the editor has codified §§ 1—4 of Ord. No. 30,584 as a new Art. VIII, §§ 24-271—24-274.

Sec. 24-272. Tax imposed.

(a) Pursuant to the provisions of title 58.1 of the Code of Virginia, there is hereby levied and imposed for the calendar year beginning January 1, 1980, and ending December 31, 1980, and for each and every calendar year thereafter, unless otherwise changed by the council, upon each bank located within the city a tax on net capital equaling eighty (80) percent of the state rate of the franchise tax set forth in section 58.1-1204 of the Code of Virginia.

(b) There is also levied and imposed in the same manner and at the same rate a tax on capital of any bank located within the boundaries of the city which is not the principal office, but is a branch extension or affiliation of the principal office, the tax upon such branch shall be apportioned as provided by section 58.1-1211 of the Code of Virginia.
(Ord. No. 30,584, § 1, 4-29-80)

Sec. 24-273. When tax return must be filed; when tax due.

(a) On or after the first day of January of each year, but not later than March first of any such year, all banks whose principal offices are located within the city shall prepare and file with the commissioner of the revenue a return as provided by section 58.1-1207 of the Code of Virginia in duplicate which shall set forth the tax on net capital computed pursuant to title 58.1 of the Code of Virginia. The commissioner of the revenue shall certify a copy of such filing of the bank's return and schedules and shall forthwith transmit such certified copy to the state department of taxation.

(b) In the event that the principal office of a bank is located outside the city and such bank has branch offices located within this city, in addition to the filing requirements set forth above, any bank conducting such branch business shall file with the commissioner of the revenue a copy of the real estate deduction schedule, apportionment and other items which are required by sections 58.1-1207, 58.1-1211 and 58.1-1212 of the Code of Virginia.

(c) Each bank, on or before the first day of June of each year, shall pay into the treasurer's office of the city all taxes imposed pursuant to this article.
(Ord. No. 30,584, § 3, 4-29-80)

Sec. 24-274. Violation of article.

Any bank which shall fail or neglect to comply with any provision of this article shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), which fine shall be recovered upon motion, after five (5)

days' notice in the circuit court of the city. The motion shall be in the name of the city and shall be presented by the city attorney.
(Ord. No. 30,584, § 4, 4-29-80)

Secs. 24-275—24-287. Reserved.

ARTICLE IX. ADMISSIONS TAX*

Sec. 24-288. Definitions.

For the purposes of this article, certain words and terms shall have the meanings ascribed to them by this section:

Admission charge shall mean the total amount paid in order to obtain admission to any place of amusement or entertainment, including but not limited to amounts paid (i) for season tickets or subscriptions, (ii) to participate in any sporting event, (iii) for any cover charge, (iii) for the use of seats or tables, (iv) or as a compulsory donation.

Whether an amount paid satisfies this definition shall not depend on the label or name given to the payment. The following portions of the total amount paid that consists of any of the following shall be excluded from this definition:

(1) Any federal tax paid; and

(2) Any service fee or surcharge added to the price of admission for the purpose of handling ticketing, defraying transactional costs, or promoting convenience, limited to a maximum of twenty (20) percent of the total amount paid.

Person shall include any individual, corporation, partnership, association, cooperative, limited liability company, trust, joint venture, or any other legal or commercial entity and any successor, representative, agent, agency, or instrumentality thereof.

Place of amusement or *entertainment* shall mean any place in the city wherein or whereat any of the following are located, conducted, performed, exhibited and operated: any amusement, entertainment, performance, exhibition, or production, including but not limited to any circus, carnival, cinema, fair, Ferris wheel, roller coaster, merry-go-round, dance, lecture, talk, conference, literary reading, play, opera, concert, theatrical performance, sporting event, and participation in any sporting event.

Sporting event shall mean an athletic activity engaged in by one or more persons including but not limited to baseball (including a batting cage), basketball, football, soccer, running, race (including an automobile or bicycle race), wrestling, boxing, bowling, golf (including miniature golf and a driving range), swimming (including diving), shooting (including a firing range), billiards, and racket sports.

Ticketing intermediary means any person who facilitates the sale of an admission charge, any portion of which is retained as compensation for facilitating the sale. Any person who actually provides admission to the place of amusement or entertainment for which the admission charge was paid shall not be considered a "ticketing intermediary."
(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Sec. 24-289. Levied; amount.

(a) There is hereby imposed and levied a tax on the admission charge at any place of amusement or entertainment, which tax shall be ten (10) percent of the admission charge, rounded to the nearest cent.

(b) The tax levied hereby is levied on the face value of the admission charge or, where no admission charge is required for admittance:

(1) The price posted to attend the event, or

*__Editor's note—__Ord. No. 49,809, § 1, adopted Dec. 10, 2024, effective Jan. 1, 2025, amended Art. IX in its entirety to read as herein set out. Former IX, §§ 24-288—24-297, pertained to similar subject matter, and derived from Ord. No. 27,313, §§ 1—10, 12, 13, adopted Feb. 12, 1974; Ord. No. 36,025, § 1, adopted May 22, 1990; Ord. No. 36,341, § 1, adopted Feb. 19, 1991; Ord. No. 37,454, §§ 1, 2, adopted Nov. 9, 1993; Ord. No. 37,490, § 1, adopted Dec. 21, 1993; Ord. No. 37,632, § 1, adopted May 24, 1994; Ord. No. 39,176, §§ 1, 2, adopted May 26, 1998; Ord. No. 39,441, § 1, adopted Jan. 26, 1999; Ord. No. 40,939, § 1, adopted Jan. 28, 2003; Ord. No. 49,131, § 1, adopted March 28, 2023.

Cross references—Amusements, Ch. 5; civic facilities, Ch. 13; municipal auditorium, § 30-176 et seq.

State law reference—Admission taxes, Code of Virginia, § 58.1-3817.

(2) The value of whatever is bartered or exchanged as compensation paid other than in cash, if such non-cash compensation is taxable as gross income to the person providing the admission or right to participate, according to the applicable federal income tax regulations.

(c) The tax imposed by this article shall be levied on admission charges for events which occur within the city, irrespective of the location at which the admission charge may be incurred, contracted for, or paid.

(d) The levy set forth in this section shall not apply to any of the following:

(1) Any admission charge for attendance at an event funded by an elementary school, middle school, high school, or any student organization at any such school, regardless of whether the school is either public or private.

(2) Any admission charge to obtain membership to a health club, country club, athletic facility, league for sporting events, or college sorority/fraternity chapter or lodge that requires a membership prior to allowing access.

(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Charter reference—Authority of city to levy and collect admission tax, § 2(a).

Sec. 24-290. Collection generally.

Every person receiving any admission charge at any place of amusement or entertainment on which a tax is levied under this article, including any partial payment, shall collect the amount of such tax so imposed from the person paying the admission charge at the time the charge is paid. The taxes required to be collected hereunder shall be deemed to be held in trust by the person required to collect the same until remitted as provided in this article.

(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Sec. 24-291. Report and remittance of collections—Generally.

The person collecting any admission tax shall, on or before the twentieth day of each month, remit an admissions tax report to the commissioner of the revenue and shall remit the tax to the city treasurer, or his authorized designee, in accordance with the following:

(a) When the person collecting the tax is not a ticketing intermediary, the person shall make out a report, upon such forms setting forth such information as the commissioner of the revenue may prescribe and require, showing the amount of admission charges collected, the prices charged for the admissions charges collected, all service charges, all convenience fees, and all other fees or surcharges included in the admission charges, as well as the tax collected during the previous month in order to comply with this article.

(b) When the person collecting the tax is a ticketing intermediary, the person shall make out a report showing the amount of admission charges collected, the prices charged for the admissions charges collected, all service charges, all convenience fees, all other fees or surcharges included in the admission charges, the name and date of occurrence of each event for which taxes were collected, and the location where the event occurred, as well as the tax collected during the previous month in order to comply with this article.

(c) Whenever the admissions charge is documented on a paper or electronic ticket, the amount of the charge required to be paid in order to gain admittance and the amount of the admission tax shall be stated thereon.

(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Sec. 24-292. Report and remittance upon going out of business.

Whenever any person required to collect and pay to the city a tax under this article shall quit or otherwise dispose of his business, the tax payable under this article to the city shall become

immediately due and payable and such person shall immediately make a report and pay the tax due.
(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Sec. 24-293. Report and remittance by temporary places of amusement or entertainment.

Whenever any place of amusement or entertainment as which an admission charge which is subject to the tax levied by this article is of a temporary or transitory nature, the commissioner of the revenue may require the report and remittance of the admission tax to be made on the day following the last day of its collection or at such other reasonable time, and any failure to comply with any such reporting or remittance requirement shall be a violation of this article.
(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Sec. 24-294. Interest and penalty on delinquencies; penalties for violations of article.

(a) If any person shall fail or refuse to remit taxes collected at the time and in the manner required by this article, there shall be imposed, in addition to other penalties provided herein, a specific penalty to be added to the tax in the amount of ten (10) percent. In addition, interest at the rate of ten (10) percent per annum shall be computed and collected upon the taxes and penalty from the date such taxes were due and payable.

(b) Any person violating or failing to comply with any provision of this article shall be guilty of a Class 1 misdemeanor.

(c) Notwithstanding the penalty provided for in subsection (b) above, any person failing to file a report as required under this article shall be guilty of a Class 3 misdemeanor if the amount of the tax lawfully assessed in connection with the return does not exceed one thousand dollars ($1,000.00).

(c) Any corporate or partnership officer, as defined in section 58.1-3906 of the Code of Virginia, 1950, as amended, or any other person required to collect, account for, or pay over the admissions tax imposed under this article, who willfully fails to collect or truthfully account for or pay over such tax or who willfully evades or attempts to evade such tax or payment thereof, shall, in addition to any other penalties imposed by law, be:

(1) Guilty of a Class 1 misdemeanor; and

(2) Liable for a penalty of the amount of the tax evaded or not paid, collected, or accounted for and paid over, to be assessed and collected in the same manner as such taxes are assessed and collected.

(d) Each violation of or failure to comply with this article shall constitute a separate offense. Conviction of any such violation shall not relieve any person from the payment, collection or remittance of the tax as provided in this article.
(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Sec. 24-295. Procedure in case of failure to collect, report and remit.

If any person shall fail or refuse to collect the tax imposed by this article and to make, within the time provided in this article, any report and remittance required by this article, the commissioner of the revenue shall proceed in such manner deemed best to obtain facts and information on which to base his estimate of the tax due.

As soon as the commissioner of the revenue shall procure all such facts and information available, upon which to base the assessment of any tax payable by any person who has failed or refused to collect the same and to make such report and remittance, the commissioner shall proceed to determine and assess against such person the tax and penalties provided for by this article, and shall notify such person, by mail, of the total amount of such tax and interest and penalties, and the total amount thereof shall be payable within ten (10) days from the date of such notice.
(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Sec. 24-296. Records to be kept by persons liable for collection.

It shall be the duty of every person liable for the collection and payment of any tax imposed by

this article to keep and preserve, for a period of five (5) years, such suitable records as may be necessary to determine the amount of such tax, which records the commissioner of the revenue shall have the right to inspect at all reasonable times.
(Ord. No. 49,809, § 1, 12-10-24, eff. 1-1-25)

Secs. 24-297—24-307. Reserved.

ARTICLE X. CIGARETTE TAX*

Sec. 24-308. Definitions.

(a) *Generally.* Certain words and phrases, when used in this article, shall, for the purposes of this article, have the meanings ascribed to them by this section, except where the context clearly indicates a different meaning.

(b) *Dealer* means every manufacturer, jobber, wholesale dealer or other person who supplies a seller with cigarettes.

(c) *Package* means every package, box, can or other container of any cigarettes, irrespective of the material from which such container is made, to which the internal revenue stamp of the United States government is required or was formerly required to be affixed and in which retail sales of such cigarettes are normally made or intended to be made.

(d) *Purchaser* means every person to whom title to any cigarettes is transferred by a seller within the corporate limits of the city.

(e) *Sale* means every act or transaction, irrespective of the method or means employed, including the use of vending machines and other mechanical devices, whereby title to any cigarettes shall be transferred from the seller to any other person within the corporate limits of the city.

(f) *Seller* means every person who transfers title to any cigarettes, or in whose place of business title to any cigarettes is transferred, within the corporate limits of the city, for any purpose other than resale.

(g) *Stamp* means a small gummed piece of paper or decalcomania to be sold by the city treasurer and to be affixed to every package of cigarettes sold to retail in the city and also any insignia or symbols printed by a meter machine upon any such package under the authorization of the commissioner of the revenue.
(Ord. No. 25,496, § 1, 5-26-70)

Sec. 24-309. Levied; amount.

There is hereby levied and imposed by the city, upon each and every sale of cigarettes, a tax equivalent to forty-seven and five-tenths (47.5) mils per cigarette sold within the city, the amount of such tax to be paid by the seller, if not previously paid, in the manner and at the time provided for in this article. There shall be a penalty for late payment of the tax imposed herein in the amount of ten (10) percent per month, and interest in the amount of three-quarters of one (0.75) percent per month, upon any tax found to be overdue and unpaid.
(Ord. No. 25,496, § 2, 5-26-70; Ord. No. 29,854, § 1, 3-13-79; Ord. No. 32,902, § 1, 5-22-84; Ord. No. 34,507, § 1, 5-26-87; Ord. No. 35,049, § 1, 5-24-88; Ord. No. 37,451, § 1, 11-9-93; Ord. No. 38,918, § 1, 9-30-97; Ord. No. 41,047, § 9, 5-20-03; Ord. No. 42,671, § 1, 5-22-07; Ord. No. 44,246, § 1, 5-17-11; Ord. No. 45,563, § 20, 5-20-14, eff. 7-1-14; Ord. No. 46,385, § 16, 5-17-16, eff. 7-1-16; Ord. No. 47,229, § 28, 5-22-18, eff. 7-1-18)

Sec. 24-310. Tax is in addition to other taxes.

The tax levied and imposed by this article shall be in addition to all other taxes of every kind levied and imposed by any other ordinance or law.
(Ord. No. 25,496, § 15, 5-26-70)

*__State law reference—__Authority of city to levy cigarette tax and permitted provision of ordinance providing for administration and enforcement of such tax, Code of Virginia, 58.1-3830—58.1-3832.

Sec. 24-311. Method of payment.

(a) The tax imposed by this article shall be paid by affixing or causing to be affixed a stamp or stamps, of the proper denominational or face value, to each and every package of cigarettes sold within the city, in the manner and at the time or times provided for in this article. Every dealer and every seller in the city shall have the right to buy such stamps from the city treasurer and to affix the same to packages of cigarettes as provided in this article.

(b) The commissioner of the revenue is authorized to permit the payment in advance of the tax levied and imposed by this article by the method of placing imprints of the stamps upon original packages by the use of meter machines, in lieu of the method of paying such tax by the purchase and affixing of gummed stamps, and to prescribe and enforce the necessary regulations setting forth the method to be employed and the conditions to be observed in the use of such meter machines.

(Ord. No. 25,496, §§ 3, 8, 5-26-70)

Sec. 24-312. Preparation and sale of stamps generally.

For the purpose of making stamps available for use, the commissioner of the revenue shall prescribe, prepare and furnish to the city treasurer, and the city treasurer shall sell, stamps of such denominations and in such quantities as may be necessary for the payment of the tax imposed by this article. In the sale of such stamps, the city treasurer shall allow a discount of six (6) percent of the denominational or face value thereof to cover the costs which will be incurred in affixing the stamps to packages of cigarettes. In the event the printing by an authorized meter machine is used in lieu of gummed stamps, there shall be allowed a discount of six (6) percent of the denominational or face value of the imprints of such stamps so printed by the meter machine to cover the costs incurred in printing such imprints.

(Ord. No. 25,496, § 6, 5-26-70)

Sec. 24-313. Duties of dealers and sellers with respect to stamps.

(a) Every local dealer in cigarettes is hereby required, and it shall be his duty, to purchase such stamps at the office of the city treasurer as shall be necessary to pay the tax levied and imposed by this article, and to affix or cause to be affixed a stamp or stamps of the monetary value prescribed by this article to each package of cigarettes prior to delivery or furnishing of such cigarettes to any seller. Nothing herein contained shall preclude any dealer from using a stamp meter machine in lieu of gummed stamps to effectuate the provisions of this article.

(b) Every seller is hereby required to examine each package of cigarettes prior to exposing the same for sale, for the purpose of ascertaining whether such package has the proper stamps affixed thereto or imprinted thereon, as provided by this article. If upon such examination unstamped or improperly stamped packages of cigarettes are discovered, the seller, where such cigarettes were obtained from a local dealer, shall immediately notify such dealer, and upon such notification, such dealer shall forthwith affix to or imprint upon such unstamped or improperly stamped packages the proper amount of stamps, or shall replace such packages with others to which stamps have been properly fixed or imprinted thereon.

(c) Should a seller obtain or acquire possession of, from any person other than a local dealer, any unstamped or improperly stamped cigarettes, such seller shall, forthwith, before selling or offering or exposing such cigarettes for sale in the city, purchase and affix or cause to be affixed to such packages of cigarettes the proper stamps or the markings of a meter machine covering the tax imposed by this article.

(d) In the event any seller shall elect to purchase and affix such stamps or imprints of a meter machine before offering such cigarettes for sale, any local dealer delivering and furnishing cigarettes to any such seller shall not be required to purchase and affix such stamps or imprints to such cigarettes so sold or furnished; provided, that any such local dealer shall, on the day following the day of such delivery and furnishing, file with the commissioner of the revenue a copy of the delivery memorandum showing the name and address of such seller and the quantity and type of cigarettes so delivered and furnished.

(Ord. No. 25,496, §§ 4, 5, 5-26-70)

Sec. 24-314. Visibility of stamps or meter markings.

Stamps or the printed markings of a meter machine shall be placed upon each package of cigarettes in such manner as to be readily visible to the purchaser.
(Ord. No. 25,496, § 4, 5-26-70)

Sec. 24-315. New design of stamps.

The commissioner of the revenue may, from time to time, and as often as he may deem advisable, provide for the issuance and exclusive use of stamps of a new design, and forbid the use of stamps of any other design.
(Ord. No. 25,496, § 7, 5-26-70)

Sec. 24-316. Refund for unused stamps, meter and imprints.

(a) Should any person, after acquiring from the city treasurer any stamps provided for in this article cease to be engaged in a business necessitating the use thereof, or should any such stamps become mutilated and unfit for use, other than by cancellation, such person shall be entitled to a refund of the denominational or face amount of any such stamps so acquired and not used by him, less six (6) percent of the denominational or face amount thereof, upon presenting such stamps to the commissioner of the revenue and furnishing the commissioner of the revenue with an affidavit showing to his satisfaction that such stamps were acquired by such person and have not in any manner been used, and the reason for requesting the refund. In the case of any authorized meter machine, should any imprints of such machine theretofore paid for not be used, such person shall, upon furnishing the commissioner of the revenue with a similar affidavit, be entitled to a refund of the denominational or face amount thereof, less six (6) percent of the denominational or face amount of imprints of the machine not so used.

(b) Any and all refunds for unused and mutilated stamps and for nonuse of imprints of such stamps by meter machines provided for under this section are hereby authorized to be made on vouchers approved by the commissioner of the revenue and, when made, the same shall be charged against the sums collected for the sale of the stamps and for the use of such imprints.
(Ord. No. 25,496, § 9, 5-26-70)

Sec. 24-317. Seizure and sale of untaxed cigarettes—Generally.

Whenever the commissioner of the revenue or [his/]her designee shall discover any cigarettes which are subject to the tax imposed by this article and upon which the tax has not been paid or upon which stamps have not been affixed or evidence of such tax payment is not shown thereon by the printed markings of an authorized meter machine, as in this article required, the commissioner of the revenue is hereby authorized and empowered to forthwith seize and take possession of such cigarettes, which shall thereupon be deemed to be forfeited to the city, and [he/]she may, after providing notice of such seizure to the known holders of property interests in such property, sell such forfeited cigarettes. No credit from such sale shall be allowed toward any tax or penalties and interest owed, nor shall such seizure and sale be deemed to relieve any person from any fine or other penalty provided for the violation of the provisions of this article. All monies collected under the provisions of this section shall be paid to the city treasurer.
(Ord. No. 25,496, § 10, 5-26-70; Ord. No. 29,854, § 1, 3-13-79; Ord. No. 39,410, § 1, 12-15-98)

Sec. 24-318. Same—Cigarettes in transit, etc.

(a) Cigarettes found in quantities of more than six (6) cartons within the city shall be conclusively presumed for sale or use within the city and may be seized and confiscated by the commissioner of the revenue if:

(1) Such cigarettes are in transit, and are not accompanied by a bill of lading or other document indicating the true name and address of the consignor or seller and of the consignee or purchaser, and the brands and quantity of cigarettes so transported, or are in transit and accompanied by a bill of lading or other document which is false or fraudulent, in whole or in part; or

(2) Such cigarettes are in transit and are accompanied by a bill of lading or other document indicating:

a. A consignee or purchaser in another state or the District of Columbia who is not authorized by the law of such other jurisdiction to receive or possess such cigarettes on which the taxes imposed by such other jurisdiction have not been paid, unless the tax of the state or district of destination has been paid and the said cigarettes bear the tax stamps of that state or District; or

b. A consignee or purchaser in the Commonwealth of Virginia, but outside the city, who does not possess a Virginia sales and use tax certificate, a Virginia retail tobacco license and, where applicable, both a business license and retail tobacco license issued by the local jurisdiction of destination; or

(3) Such cigarettes are not in transit and the tax imposed by this article has not been paid, nor have approved arrangements for payment been made, provided that this subparagraph shall not apply to cigarettes in the possession of distributors or public warehouses which have filed notice and appropriate proof with the commissioner of the revenue that those cigarettes are temporarily within the city and will be sent to consignees or purchasers outside the city in the normal course of business.

(b) Cigarettes seized and confiscated under this section shall be deemed to be forfeited to the city as contraband property, and the commissioner of the revenue may thereafter sell such forfeited cigarettes in the same manner as provided for the sale of cigarettes as set forth in section 24-317 of this article.

(Ord. No. 29,854, § 2, 3-13-79)

Sec. 24-319. Seizure, sealing and sale of certain cigarette vending machines.

(a) Whenever the commissioner of the revenue shall discover any coin-operated vending machine in which cigarettes are found, stored or possessed bearing a counterfeit or bogus stamp or impression or any unstamped cigarettes, or any cigarettes upon which the tax imposed by this article has not been paid, the commissioner of the revenue is hereby authorized and empowered to forthwith seize and take possession of such vending machine as contraband property, which shall thereupon be deemed to be forfeited to the city. When any such vending machine is found containing such cigarettes, it shall be presumed that such cigarettes were intended for distribution, sale or use therefrom. In lieu of immediate seizure and

confiscation, the commissioner of the revenue may cause such vending machine to be sealed in order to prevent continued illegal sale or removal of any cigarettes. It shall be unlawful for any person to move or operate a vending machine so sealed by the commissioner of the revenue, or to remove the seal therefrom. Such seal may be removed and the vending machine declared eligible for operation only by the commissioner of the revenue, who may allow such vending machine to remain sealed until other civil and criminal penalties are imposed or waived. Nothing herein shall prevent the commissioner of the revenue from seizing and confiscating a vending machine at any time after it is sealed.

(b) Within a reasonable time after the seizure and confiscation, or sealing, of a vending machine as provided in this section, the commissioner of the revenue shall send notice thereof to any known holder of a property interest in such vending machine. Such notice shall be sent by registered mail to the last known address of such holder, and shall advise such holder of his right to submit to the commissioner of the revenue, at any time prior to a date specified in such notice, which shall not be less than ten (10) days from the date of mailing of the notice, evidence establishing that the cigarettes contained in such vending machine were not intended for distribution, sale or use, or that such holder was unaware that such cigarettes were contained in such vending machine. If such evidence is established to the satisfaction of the commissioner of the revenue, then the vending machine shall be relieved from forfeiture and restored to such holder, or the seal shall be removed and the vending machine declared eligible for operation. If such evidence is not established, or if no evidence is submitted prior to the date specified in such notice, the commissioner of the revenue may, at any time thereafter, sell such forfeited vending machine in the same manner as provided for the sale of cigarettes, as set forth in section 24-317.
(Ord. No. 29,854, § 2, 3-13-79)

Sec. 24-320. Seizure and disposition of counterfeit stamps or impression devices.

The commissioner of the revenue is hereby authorized and empowered to seize and confiscate any counterfeit stamps or counterfeit impression devices which he shall discover, and to dispose of such stamps or devices in such manner as he may deem to be proper.
(Ord. No. 29,854, § 1, 3-13-79)

Sec. 24-321. Dealers' and sellers' records generally.

It shall be the duty of every local dealer and seller, and he is hereby so required, to maintain and keep, for a period of two (2) years, such record of cigarettes sold and delivered by him as may be required by the commissioner of the revenue, and to make all such records available for examination by the commissioner of the revenue, upon demand, at any and all reasonable times.
(Ord. No. 25,496, § 13, 5-26-70)

Sec. 24-322. Rules and regulations for enforcement and administration of article; examination of books, records, etc.

The commissioner of the revenue is hereby authorized and empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to the method and means to be used in the cancellation of the stamps provided for in this article, and to any and all other matters pertaining to the administration and enforcement of the provisions of this article. He is hereby further authorized and empowered to examine books, records, invoices, papers and any and all cigarettes in and upon any premises where the same are placed, stored, sold, offered for sale or displayed for sale by a seller.
(Ord. No. 25,496, § 14, 5-26-70)

Sec. 24-323. Violations of article—Generally.

(a) Any person violating any of the provisions of this article shall be guilty of a Class 1 misdemeanor. Conviction and punishment for such violation shall not relieve any person from the payment of any tax imposed by this article. In addition, any person who shall perform any fraudulent act or fail to perform any act for the purpose of evading the payment of any tax imposed by this article shall be required to pay a penalty in the amount of fifty (50) percent, and interest not to

exceed three quarters (.75) of one percent per month, upon any tax found to be overdue and unpaid.

(b) Each violation of, or noncompliance with, any of the provisions of this article shall be and constitute a separate offense.
(Ord. No. 25,496, §§ 16, 17, 5-26-70; Ord. No. 29,854, § 1, 3-13-79)

Sec. 24-324. Same—Prohibited acts enumerated.

It shall be unlawful and a violation of this article for any person:

(1) To perform any act or fail to perform any act for the purpose of evading the payment of any tax imposed by this article or of any part thereof; or for any dealer or seller, with intent to violate any provision of this article, to fail or refuse to perform any of the duties imposed upon him under the provisions of this article or to fail or refuse to obey any lawful order which the commissioner of the revenue may issue under this article.

(2) To falsely or fraudulently make, forge, alter or counterfeit any stamp or the printed markings of any meter machine, to procure or cause to be made, forged, altered or counterfeited any such stamp or printed markings of a meter machine, or knowingly and wilfully to alter, publish, pass or tender as true any false, altered, forged or counterfeited stamp or stamps or printed markings of a meter machine.

(3) To sell any cigarettes upon which the tax imposed by this article has not been paid and upon which evidence of payment thereof is not shown on each package of cigarettes.

(4) To reuse or refill with cigarettes any package from which cigarettes, for which the tax imposed has been theretofore paid, have been removed.

(5) To remove from any package any stamp or the printed markings of a meter machine with intent to use or cause the same to be used after the same have already been used, or to buy, sell, or offer for sale or give away, any used, removed, altered or restored stamps or printed markings of a meter machine, to any person, or to reuse any stamp or printed markings of a meter machine which has theretofore been used for evidence of the payment of any tax prescribed by this article, or, except as to the city treasurer, to sell or offer to sell any stamp or printed markings of a meter machine provided for herein.

(Ord. No. 25,496, § 11, 5-26-70)

Sec. 24-325. Same—Possession, by seller, of unstamped cigarettes deemed evidence of violation.

In the event any package of cigarettes is found in the possession of a seller without the proper stamps being affixed thereto or without authorized printed markings of a meter machine thereon, and the seller shall be unable to submit evidence establishing that he received such package within the immediately preceding forty-eight (48) hours and that he has not offered the same for sale, the presumption shall be that such package is being kept by such seller in violation of the provisions of this article, and shall subject him to the penalties provided therefor.
(Ord. No. 25,496, § 12, 5-26-70)

ARTICLE XI. LOCAL MOBILE TELECOMMUNICATIONS TAX

Sec. 24-326. Definitions.

Terms used in this article shall have the meanings ascribed to them by Section 58.1-3812 of the Code of Virginia, 1950, as amended at the 1994 Session of the General Assembly and subsequent sessions of that body. Said definitions shall be applicable unless the context of this ordinance clearly indicates to the contrary.
(Ord. No. 37,625, § 1, 5-24-94)

Sec. 24-327. Levy.

There is hereby levied and imposed on all taxable purchases by a consumer of mobile local telecommunication service a tax equal to ten (10) per-

cent of the monthly gross charge made to the consumer of mobile local telecommunication service; provided however that this tax shall not be applicable to any amount charged to said consumer in excess of thirty dollars ($30.00) per month. This tax shall be applicable to all persons, corporations and other entities whose service address is in the City of Norfolk.
(Ord. No. 37,625, § 1, 5-24-94)

Sec. 24-328. Collection of tax.

(a) A service provider of local telecommunication services shall collect the tax from the consumer by adding the tax to the monthly gross charge for such services. The tax shall, when collected, be stated as a distinct item separate and apart from the monthly gross charge. Until the consumer pays the tax to the service provider, the tax shall constitute a debt of the consumer to the City of Norfolk. If any consumer refuses to pay the tax, the service provider shall notify the commissioner of the revenue. After the consumer pays the tax to the service provider, the taxes collected shall be deemed to be held in trust by the service provider until remitted to the commissioner of the revenue.

(b) The commissioner of the revenue shall be responsible for collecting the tax imposed in section 24-327. The commissioner shall have the authority to adopt appropriate regulations and procedures to facilitate and expedite the collection of said taxes. All such regulations and procedures shall be consistent with State law and other provisions of this Code.
(Ord. No. 37,625, § 1, 5-24-94)

Sec. 24-329. Remittance of tax collections.

Each service provider shall remit monthly to the commissioner of the revenue the amount of tax billed during the preceding month to consumers with a service address in the City of Norfolk. All such remittances shall be paid over to the commissioner of the revenue not later than the twenty-seventh day of the month following the month in which they are collected or the first business day thereafter.
(Ord. No. 37,625, § 1, 5-24-94)

Sec. 24-330. Refunds.

Any consumer is entitled to a refund from the city equal to the amount of the tax the consumer paid to a jurisdiction outside of the Commonwealth if such tax was legally imposed in such other jurisdiction. The amount of any such credit or refund shall not exceed the tax paid to the City of Norfolk.
(Ord. No. 37,625, § 1, 5-24-94)

Sec. 24-331. Interest and penalties.

Any consumer who fails to pay the tax imposed in this article when due to the service provider and any service provider who fails to remit said taxes to the commissioner of the revenue in accordance with section 24-329, shall be liable for interest and penalties. The interest and penalties for a consumer or service provider shall be computed in the same manner as interest and penalties are computed for failure to pay or remit the city's utility tax.
(Ord. No. 37,625, § 1, 5-24-94)

ARTICLE XII. LICENSE TAX ON CERTAIN BOATS*

Sec. 24-332. Definitions.

For the purposes of this article, certain words and phrases shall have meanings ascribed to them by the following subsections of this section.

(1) *City waters:* Waters within the territorial limits of the City of Norfolk as referred to in section 29.1-744 of the Code of Virginia, 1950, as amended.

(2) *Boat:* Privately owned pleasure boats and watercraft used for recreational purposes only.

(3) *Operate:* To captain, man, or be a passenger aboard a boat, or to tow by motor vehicle a boat to or from a pier, dock, landing, or wharf.

(Ord. No. 39,669, § 1, 6-29-99)

*__Editor's note—__Ord. No. 43,722, § 2, adopted Jan. 26, 2010, amended the title of art. XII to read as herein set out. The former title read "Excise Tax on Certain Boats."

Ord. No. 39,669, adopted June 22, 1999, amended the Code by adding the provisions set out above. These provisions became effective Jan. 1, 2000.

Sec. 24-333. Purpose.

This tax will generate revenue to defray the costs of proper local government management of the waterways, and is a tax on the privilege of operating or owning a boat for recreational purposes in the city. The burden from the operation and storage of pleasure watercraft in and on these ways is a regular and recurring expense of the city.
(Ord. No. 39,669, § 1, 6-29-99)

Sec. 24-334. Required.

Any person who operates, docks, or stores any boat within the city or on city waters after the fifth day of June of any year, which boat is subject to the license tax imposed by this article, who shall not have properly paid such license tax as provided in this article, shall be deemed guilty of a misdemeanor punishable by a fine of not more than two hundred fifty dollars ($250.00).
(Ord. No. 39,669, § 1, 6-29-99; Ord. No. 39,820, § 1, 12-14-99; Ord. No. 43,425, § 1, 4-28-09; Ord. No. 43,722, § 2, 1-26-10)

Sec. 24-335. Levy and amount of tax.

(a) For each and every calendar year, beginning January 1 and ending December 31 of each such year, unless otherwise changed by the council, every person owning a boat normally docked, stored, or kept in the city or on city waters shall pay a license tax on such boat. If the location where the boat is normally docked, stored, or kept cannot be determined, the situs for taxation shall be the domicile of the owner.

(b) Such license tax shall be levied in the following amounts:

(1) For boats under sixteen (16) feet, fifteen dollars ($15.00);

(2) For boats sixteen (16) feet and greater, forty dollars ($40.00).

(Ord. No. 39,669, § 1, 6-29-99; Ord. No. 39,951, § 1, 5-16-00; Ord. No. 43,722, § 2, 1-26-10; Ord. No. 47,696, § 1, 6-25-19)

Editor's note—Ord. No. 47,696, § 2, adopted June 25, 2019, states: That this ordinance shall be in effect from and after July 1, 2019, for initial use in the tax year beginning January 1, 2020.

Sec. 24-336. Boats exempt from tax.

The taxes imposed by this article shall not apply to boats on which the city is prohibited from imposing a tax by federal law or the laws of the commonwealth.
(Ord. No. 39,669, § 1, 6-29-99)

Sec. 24-337. When tax payable.

The taxes prescribed by this article shall be paid for each calendar year on or before the fifth day of June of each such year, except as otherwise provided.
(Ord. No. 39,669, § 1, 6-29-99; Ord. No. 39,820, § 2, 12-14-99; Ord. No. 43,425, § 1, 4-28-09)

Sec. 24-338. Authorization of the city treasurer.

The city treasurer in consultation with the city manager shall enter into a formal agreement with the Commissioner of the Virginia Department of the Motor Vehicles (DMV) to withhold state license registration unless and until an applicant for such registration shall have paid all Norfolk personal property taxes and license taxes imposed upon boats which have been assessed or are assessable against the applicant by the city. The city treasurer shall submit to DMV the documentation necessary to promptly and regularly indicate all who are delinquent in the payment of personal property taxes and boat license taxes.
(Ord. No. 39,669, § 1, 6-29-99; Ord. No. 39,820, § 3, 12-14-99; Ord. No. 40,033, § 1, 7-11-00; Ord. No. 43,722, § 2, 1-26-10)

Sec. 24-339. Reports required.

The city treasurer shall provide the director of finance with such data and reports as are requested regarding the collection rate for personal property taxes under the DMV STOPS program.
(Ord. No. 39,669, § 1, 6-29-99; Ord. No. 43,722, § 2, 1-26-10)

Sec. 24-340. Required.

The owner or operator of any boat subject to a license tax imposed by this article, who shall not have first paid the license tax by the fifth day of June under this article for such year, shall be deemed guilty of a class 4 misdemeanor.
(Ord. No. 39,669, § 1, 6-29-99; Ord. No. 43,722, § 2, 1-26-10)

Sec. 24-341. Severability.

Should any portion of this article be found unlawful, that portion shall be stricken and the remainder of the article shall remain in full force and effect.
(Ord. No. 39,669, § 1, 6-29-99)

ARTICLE XIII. TAX ON PURCHASERS OF ELECTRIC AND GAS SERVICES

Sec. 24-342. Definitions.

(a) *Generally.* Certain words and phrases, when used in this article, shall have, for the purposes of this article, the meanings ascribed to them by this section, except where the context clearly indicates a different meaning.

(b) *CCF.* The term "CCF" shall mean the volume of gas at standard pressure and temperature in units of one hundred (100) cubic feet.

(c) *Consumer.* The word "consumer" shall include every person who, individually or through agents, employees, officers, representatives or permittees, makes a taxable purchase of electricity or natural gas services in the city.

(d) *Commercial consumer.* The phrase "commercial consumer" shall mean a consumer of electricity or gas service provided to property used primarily for commercial purposes as classified by the electric or gas utility service provider.

(e) *Gas utility.* The phrase "gas utility" shall mean a public utility authorized to furnish natural gas service in Virginia.

(f) *Industrial consumer.* The phrase "industrial consumer" shall mean a consumer of electric utility service provided to property used primarily for industrial purposes as classified by the electric utility service provider.

(g) *Kilowatt hours (kWh) delivered.* The phrase "kilowatt hours (kWh) delivered" shall mean one thousand (1,000) watts of electricity delivered in a one-hour period by an electric provider to an actual consumer, except that in the case of eligible customer-generators (sometimes called cogenerators) as defined in section 56-594 of the state code, it means kWh supplied from the electric grid to such customer-generators, minus the kWh generated and fed back to the electric grid by such customer-generators.

(h) *Manufacturing consumer.* The phrase "manufacturing consumer" shall mean a consumer of electric utility service which engages in the manufacture or assembly of durable, finished equipment, including motor vehicles, marine vessels (building, repairing and/or altering of ships), and electronic devices, and is classified as such by the commissioner of the revenue.

(i) *Nonresidential consumer.* The phrase "nonresidential consumer" shall mean a consumer of gas utility service that is not a residential consumer as classified by the gas utility provider.

(j) *Person.* The word "person" shall include any individual, corporation, company or other entity.

(k) *Pipeline distribution company.* The phrase "pipeline distribution company" shall mean a person, other than a pipeline transmission company which transmits, by means of a pipeline, natural gas, manufactured gas or crude petroleum and the products or byproducts thereof to a purchaser for purposes of furnishing heat or light.

(l) *Residential consumer*. The phrase "residential consumer" shall mean the owner or tenant of property used primarily for residential purposes, including but not limited to separately metered apartment houses and other multiple-family dwellings.

(m) *Service provider*. The phrase "service provider" shall mean a person who delivers electricity to a consumer or a gas utility or pipeline distribution company which delivers natural gas to a consumer.

(n) *Used primarily*. The phrase "used primarily" shall relate to the larger portion of the use for which electric or natural gas utility service is furnished.
(Ord. No. 40,128 § 1, 10-10-00)

Sec. 24-343. Electric consumer utility tax levied; amount.

(a) In accordance with section 58.1-3814 of the state code, effective January 1, 2001, there is hereby imposed and levied a monthly tax on each purchase of electricity delivered to consumers by a service provider, classified as determined by such provider, as follows:

(1) *Residential consumers*—Such tax shall be one dollar and seventy-five cents ($1.75), plus the rate of $0.018891 on each kWh delivered monthly to residential consumers by a service provider not to exceed three dollars and seventy-five cents ($3.75) per month.

(2) *Commercial and industrial consumers*—Such tax shall be two dollars and eighty-seven cents ($2.87), plus the rate of $0.017933 on the first five hundred thirty-seven (537) kWhs delivered monthly and $0.006330 on all remaining kWhs.

(3) *Manufacturing consumers*—Such tax shall be one dollar and thirty-eight cents ($1.38), plus the rate of $0.004965 on the first 3,625,100 kWhs delivered monthly and $0.004014 on all remaining kWhs, not to exceed fifty-three thousand dollars ($53,000.00) per month.

(4) *Manufacturing consumers in enterprise zones*—Such tax shall be one dollar and thirty-eight cents ($1.38), plus the rate of $0.006192 on the kWhs delivered monthly, not to exceed ten thousand four hundred forty dollars ($10,440.00) per month.
(Ord. No. 40,128 § 1, 10-10-00)

Sec. 24-344. Natural gas consumer utility tax levied; amount.

(a) In accordance with section 58.1-3814 of the state code, there is hereby imposed and levied a monthly tax on each purchase of natural gas delivered to consumers by pipeline distribution companies and gas utilities classified by "class of consumers" as such term is defined in section 58.1-3814(J) of the state code, as follows:

(1) *Residential consumers:* Such tax on residential consumers of natural gas shall be one dollar and fifty cents ($1.50) per month, which shall be prorated by the number of days billed if the bill is for less than twenty-six (26) days.

(2) *Non-residential consumers:* Such tax on non-residential consumers shall be $3.225, plus the rate of $0.167821 on the first seventy (70) CCF, plus the rate of $0.161552 on CCF in excess of seventy (70) CCF and up to four hundred thirty (430) CCF, plus the rate of $0.15363 on all remaining CCF delivered monthly to non-residential consumers, not to exceed five hundred dollars ($500.00) per month.
(Ord. No. 40,128 § 1, 10-10-00)

Sec. 24-345. Exemptions.

(a) The United States of America, the Commonwealth of Virginia and the political subdivisions, boards, commissions and regional authorities thereof are hereby exempt from the payment of the tax imposed and levied by this article with respect to the purchase of utility services used by such governmental agencies, except that this section shall not apply to local authorities which shall be subject to the tax imposed by this article for utility service to occupants and lessees of premises owned or managed by the authorities.
(Ord. No. 40,128 § 1, 10-10-00)

Sec. 24-346. Duty of service provider to bill, collect and remit tax.

(a) The service provider shall (i) bill the consumer utility tax to all consumers who are subject to the tax and to whom it delivers utility services, and (ii) report and remit the same to the city treasurer on or before the last day of the calendar month after collection. Until the consumer pays the tax to such service provider, the tax shall constitute a debt of the consumer to the city. Upon payment by the consumer to the service provider, the tax shall constitute a debt of the service provider to the locality, and the service provider shall hold such receipts in trust as a fiduciary for and on behalf of the city.

(b) If any consumer receives and pays for utility services but refuses to pay the consumer utility tax stated on the bill, the service provider shall notify the commissioner of the revenue in writing of the name and address of each such consumer and the amount of delinquent taxes owed by that consumer within forty-five (45) days after the failure of the consumer to pay the tax. It shall be the duty of the commissioner of the revenue to assess taxes reported by the service provider as unpaid under this article against the consumer, together with a penalty of ten (10) percent of the delinquent tax owed but not less than one dollar ($1.00). These assessments shall be turned over to the city treasurer, who shall collect the taxes and penalties in the same manner as other delinquent taxes are collected.

(c) If any consumer fails to pay the entire bill issued by a service provider, including the consumer utility tax, the service provider shall follow its normal collection procedures with respect to the charge for utility service and the tax, and upon collection of the bill or any part thereof shall (i) apportion the net amount collected between the charge for the utility service and the tax and (ii) remit the tax portion to the city treasurer. After the consumer pays the tax to the service provider, the taxes shall be deemed to be held in trust by such service provider until remitted to the city treasurer. Delinquent taxes determined uncollectible by the service provider shall be reported, assessed and collection attempted as provided in subsection (b) of this section.
(Ord. No. 40,128 § 1, 10-10-00)

Sec. 24-347. Service provider records.

Each and every service provider shall keep complete and accurate service and accounting records using generally accepted accounting practices, which establish all provisions of utility service in the City, the consumption utilized by each consumer, that dates of such consumption, the date of billing and payment for utility services provided, and the amount of all billings and payments of the consumer utility taxes imposed pursuant to this article. Such records shall be kept open for inspection by and access provided to duly authorized agents of the city during the city's normal business hours, and such agents shall have the right, power and authority to make such transcripts thereof during such times as the records are inspected.
(Ord. No. 40,128 § 1, 10-10-00)

Sec. 24-348. Penalties.

(a) Any person who willfully fails to bill, collect, remit or truthfully account for and pay over the city treasurer the consumer utility tax as provided in this article, or who willfully attempts in any manner to evade or defeat any such tax, or the billing, collection or remittance thereof, shall, in addition to any other penalty provided by law, be guilty of a class 1 misdemeanor.

(b) Any person who willfully fails to bill, collect, remit, truthfully account for and pay over to the city treasurer the consumer utility tax as provided in this article, or who willfully attempts in any manner to evade or defeat any such tax, or the billing, collection or remittance thereof, shall, in addition to all other penalties provided by law, be liable to the city for a penalty in an amount equal to such tax.

(c) The term "person" as used in this section specifically includes any officer, agent and employee of any person as defined in this article who is under a duty to perform on behalf of that person the act in respect of which the violation occurs and who (i) had actual knowledge of the failure or attempt as set forth herein and (ii) had authority to prevent such failure or attempt.

(d) A criminal conviction pursuant to this section shall not relieve any such person from the payment, collection and remittance of the tax as otherwise provided in this article.
(Ord. No. 40,128 § 1, 10-10-00)

Chapter 24.1

MARINAS, WHARVES AND PIERS

§ 24.1-1. Violations of chapter generally.
§ 24.1-2. Dockmaster generally.
§ 24.1-3. Rules and regulations of dockmaster relative to operation of municipal yacht harbor.
§ 24.1-4. Public wharves designated.
§ 24.1-5. Authority of the dockmaster to assign spaces and to designate passenger pickup and discharge areas for commercial tour boats in the municipal yacht harbor.
§ 24.1-6. Use of city-owned waterfront facilities by commercial vessels.
§ 24.1-7. Establishment of fees for the use of city-owned waterfront facilities by vessels.
§ 24.1-8. Mooring to pier supporting sewer or water pipe or to city-owned bulkhead, seawall, etc.

Sec. 24.1-1. Violations of chapter generally.

Unless otherwise specifically provided, a violation of any provision of this chapter shall constitute a class 1 misdemeanor.
(Ord. No. 42,760, § 2, 7-24-07)

Sec. 24.1-2. Dockmaster generally.

The city manager, or such deputy city manager as may be designated by the city manager, shall be the dockmaster. The duties of the dockmaster shall include the following:

(1) To act as custodian and superintendent of all waterfront property owned or controlled by the city and to inspect and report on the physical condition of all waterfront property, whether municipally owned or otherwise.

(2) To cooperate with the department of police in the enforcement of ordinances and rules applicable to all waterfront property.

(3) To cooperate with the port captain and United States District Engineer in the enforcement of port regulations and rules.

(Ord. No. 42,760, § 2, 7-24-07; Ord. No. 47,279, § 3, 6-26-18)

Sec. 24.1-3. Rules and regulations of dockmaster relative to operation of municipal yacht harbor.

The dockmaster is hereby authorized to establish such rules and regulations for the operation of city-owned or city-operated piers, wharves and docks collectively designated the municipal yacht harbor, as he may deem necessary therefor.
(Ord. No. 42,760, § 2, 7-24-07)

Sec. 24.1-4. Public wharves designated.

All wharves, docks, landings or similar structures built or constructed out into the waters within or adjoining the city, and which are constructed from any street, or part of any street, heretofore laid out in the plan of the city as extending to the water, shall be public wharves and subject to regulation by the council.
(Ord. No. 42,760, § 2, 7-24-07)

Sec. 24.1-5. Authority of the dockmaster to assign spaces and to designate passenger pickup and discharge areas for commercial tour boats in the municipal yacht harbor.

In order to provide for the orderly management of the municipal yacht harbor, the dockmaster is hereby authorized to assign spaces therein for use by pleasure vessels and commercial vessels. The dockmaster is also authorized to designate passenger pickup and discharge areas for commercial tour boats.
(Ord. No. 42,760, § 2, 7-24-07)

Sec. 24.1-6. Use of city-owned waterfront facilities by commercial vessels.

Except as otherwise set forth in section 24.1-7(a):

(a) No commercial vessel shall be moored or tied to any portion of the municipal yacht harbor, or to any other property belonging to the city, or to another boat so moored or tied, for more than five (5) days, except pursuant to written agreement duly authorized and approved by the council of the city.

(b) The dockmaster may charge commercial vessels two dollars ($2.00) per boat foot per day for temporary dockage not to exceed five (5) days.

(Ord. No. 42,760, § 2, 7-24-07; Ord. No. 47,541, § 1, 2-26-19)

Sec. 24.1-7. Establishment of fees for the use of city-owned waterfront facilities by vessels.

(a) Any person who moors or ties a vessel to any portion of the municipal yacht harbor known generally as Waterside Marina, or to another boat so moored or tied, shall first obtain the permission of the dockmaster or his agent or the permission of the operator of the Waterside Marina for such docking privileges and shall pay the fees set forth below. For purposes of this section 24.1-7(a), the operator of the Waterside Marina shall be an operator who operates the Waterside Marina pursuant to a written agree-

ment with the city and Waterside Marina shall include any other portions of the downtown Norfolk municipal harbor expressly identified in any such written agreement as being subject to the agreement.

(1) Pleasure vessels; short-term daily rate (less than six (6) hours):

a. For vessels up to fifty (50) feet in length, the temporary dockage fee shall be nine dollars ($9.00) for up to three (3) hours and nineteen dollars ($19.00) for three (3) to six (6) hours, except on holidays and special events.

b. For vessels greater than fifty (50) feet in length, the temporary dockage fee shall be nineteen dollars ($19.00) for up to three (3) hours and thirty-eight dollars ($38.00) for three (3) to six (6) hours, except on holidays or special events.

c. In both (1)a and (1)b of this subsection (a), the dockage fees shall be inclusive of all taxes.

d. The operator of the Waterside Marina shall be authorized to establish other short-term daily rates for special events and holidays.

e. All vessels staying six (6) or more hours will be subject to the applicable daily (twenty-four-hour) fee.

(2) Pleasure vessels; daily rate (over six (6) hours):

a. A maximum fee of one dollar and seventy-five cents ($1.75) per boat foot, except on holidays and special events, for pleasure vessels moored or tied at the Waterside Marina.

b. A maximum fee of two dollars and fifty cents ($2.50) per boat foot, except on holidays and special events, for pleasure vessels moored or tied at the Otter Berth.

c. The operator of the Waterside Marina shall be authorized to establish daily rates for special events and holidays.

(3) Commercial vessels; daily rate (over six (6) hours):

a. A maximum fee of three dollars ($3.00) per boat foot, except on holidays and special events, for commercial vessels moored or tied at the Waterside Marina.

b. A maximum fee of three dollars and seventy-five cents ($3.75) per boat foot, except on holidays and special events, for commercial vessels moored or tied at the Otter Berth.

c. The dockmaster shall be authorized to establish daily rates for special events and holidays.

d. The dockmaster or his agent may waive any or all of the fees.

(4) Pleasure vessels; monthly lease:

a. Twelve dollars and fifty cents ($12.50) per boat foot per month, plus actual power and water usage as determined by the dockmaster.

b. During the months of December through March the monthly lease fee shall be eight dollars ($8.00) per foot plus actual power and water usage as determined by the dockmaster.

(5) No vessel fitted for use as a dwelling or residence and occupied as such will be permitted docking privileges for more than thirty (30) days in any calendar year without permission of the dockmaster.

(6) The operator of the Waterside Marina shall be entitled to increase the rates set forth in this subsection (a) but in no event shall such increase be greater than twenty percent (20%) per year.

(7) Exceptions to the foregoing rates may be granted by the city manager, by lease or

otherwise, for charter vessels which do not coincide with any category enumerated herein.

(8) In determining boat length for calculation of fees under this subsection (a), bow sprits and boomkins are to be included in the vessel's overall length.

(b) Any person who moors or ties a pleasure vessel to any other property belonging to the city, or to another boat so moored or tied, shall first obtain the permission of the dockmaster or his agent for such docking privileges and shall pay the following fees:

(1) Pleasure vessels; short-term daily rate (less than six (6) hours):

a. For vessels up to fifty (50) feet in length, the temporary dockage fee shall be five dollars ($5.00) for up to three (3) hours and ten dollars ($10.00) for three (3) to six (6) hours.

b. For vessels greater than fifty (50) feet in length, the temporary dockage fee shall be ten dollars ($10.00) for up to three (3) hours and twenty dollars ($20.00) for three (3) to six (6) hours.

c. All vessels staying six (6) or more hours will be subject to the daily (twenty-four-hour) fee.

(2) Pleasure vessels; daily rate (over six (6) hours):

a. A maximum fee of one dollar fifty cents ($1.50) per boat foot, except on holidays and special events.

b. The dockmaster shall be authorized to establish daily rates for special events and holidays not to exceed four dollars ($4.00) per boat foot.

c. The dockmaster or his agent may waive any or all of the fee.

(3) Pleasure vessels; monthly lease:

a. Twelve dollars fifty cents ($12.50) per boat foot per month, plus actual power and water usage as determined by the dockmaster.

b. During the months of November through April the monthly lease fee shall be six dollars ($6.00) per foot plus actual power and water usage as determined by the dock master.

c. No vessel fitted for use as a dwelling or residence and occupied as such will be permitted docking privileges for more than thirty (30) days in any calendar year without permission of the dockmaster.

d. Exceptions to the foregoing rates may be granted by the city manager, by lease or otherwise, for charter vessels which do not coincide with any category enumerated herein.

e. In determining boat length for calculation of fees under this section, bow sprits and boomkins are to be excluded from the vessel's overall length.

(Ord. No. 42,760, § 2, 7-24-07; Ord. No. 47,541, § 2, 2-26-19)

Sec. 24.1-8. Mooring to pier supporting sewer or water pipe or to city-owned bulkhead, seawall, etc.

It shall be unlawful for any boat, barge or vessel to be tied or moored to any pier supporting a sewer or water pipe or to any city-owned bulkhead, seawall or jetty, except as may be authorized by rules and regulations of the dockmaster.

(Ord. No. 42,760, § 2, 7-24-07)

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Chapter 25

MOTOR VEHICLE CODE*

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ARTICLE I. IN GENERAL

Sec. 25-1. Title and territorial application.

This chapter shall be designated and may be cited as the Motor Vehicle Code of the City of Norfolk, and its provisions shall be applicable within the corporate limits of the city.
(Code 1958, § 29-1)

Sec. 25-1.5. Private roads designated as highways.

Pursuant to Code of Virginia § 46.2-1307 and an agreement with the private entity controlling the areas, the private roads in the areas described in this section are designated as highways for law enforcement by the police department:

All that certain lot, piece or parcel of land situate, lying and being in the City of Norfolk, Virginia, said parcel being further described as follows: BEGINNING at the intersection of the northern line of Terminal Boulevard and the eastern line of Hampton Boulevard; thence, northwestwardly along said eastern line of Hampton Boulevard to its intersection with the southern line of the subdivision of Glenwood Park; thence, eastwardly along said southern line of Glenwood Park subdivision and the southern line of the Terminal Heights subdivision to Boush Creek; thence, northwardly along Boush Creek to the southern line of Norfolk & Portsmouth Belt Line Railroad; thence, eastwardly along said southern line of Norfolk & Portsmouth Belt Line Railroad to the western line of Interstate 564; thence, southeastwardly along said western line of Interstate 564 to its intersection with the northern line of Terminal Boulevard; thence westwardly along said northern line of Terminal Boulevard to the point of beginning.

All that certain lot, piece or parcel of land situate, lying and being in the City of Norfolk, Virginia, said parcel being further described as follows: BEGINNING at a point that is the intersection of the western line of Interstate 64 and the northern line of Orange Avenue; thence, from the point of beginning thus described, northwestwardly along the northern line of Orange Avenue to its intersection with the western line of Rippard Avenue; thence, southwestwardly along the western line of Rippard Avenue to its intersection with the southern line of Willoughby Bay Navy Housing; thence, northwestwardly, southwestwardly, north-wardly and westwardly along said southern line of Willoughby Bay Navy Housing to its intersection with the mean low water at the eastern shoreline of Willoughby Bay; thence, northwardly along said shoreline to its intersection with the southern line of Interstate 64; thence, eastwardly, southeastwardly and southwardly along said Interstate 64 to the point of beginning.

All that certain lot, piece or parcel of land situate, lying and being in the City of Norfolk, Virginia, said parcel being further described as follows: BEGINNING on the southern line of Tarrallton Drive at its intersection with the west line of Parcel A as shown on that certain plat entitled, "Section Three, Wedgewood," recorded in the Clerk's Office of the Circuit Court of the City of Virginia Beach, Virginia, in Map Book 42, at Page 8; thence southerly along the western line of said, "Section Three, Wedgewood," to the northern line of that certain plat entitled, "Subdivision of Wedgewood," recorded in the Clerk's Office of the Circuit Court of the City of Virginia Beach, Virginia in Map Book 38, at Page 32; thence westerly along the northern line of said "Subdivision of Wedgewood," to the east line of Meadow Creek Road; thence southerly along said east line 294.5'; thence westerly across Meadow Creek Road to the intersection of the north line of Sheppard Avenue and the east line of Meadow Creek Road; thence northerly and westerly along the northern line of Bel-Aire, Section 4, as shown on that certain plat entitled, "Corrected Boundary Line Between Bel-Aire, Section 4, and Hewitt Farm," recorded in the Clerk's Office of the Circuit Court of the City of Virginia Beach, Virginia in Deed Book 504, at Page 52, to the northeast corner of Lot 8 as shown on that certain plat entitled, "Section 4, Bel-Aire," recorded in the Clerk's Office of the Circuit Court of the City of Virginia Beach, Virginia in Map Book 36, at Page 37; thence northwesterly along the northern line of the aforesaid plat entitled, "Section 4, Bel-Aire," to

the northeast corner of a 30' drainage easement as shown on that certain plat entitled, "Section 3, Forest Park," recorded in the Clerk's Office of the Circuit Court of the City of Chesapeake, Virginia in Map Book 36, at Page 64; thence northwesterly and northeasterly along the 30' and 50' drainage easements as shown on the aforesaid plat to a branch of Little Creek; thence easterly along said branch of Little Creek to another branch of Little Creek; thence southerly along the aforesaid branch of Little Creek to property of the City of Norfolk; thence southerly along the west property line of the City of Norfolk to the southern line of Tarrallton Drive, the point of beginning.

(Ord. No. 42,923, § 1, 12-4-07; Ord. No. 43,312, § 1, 12-9-08)

Sec. 25-2. Definitions.

(1) *All-terrain vehicle*. A three-wheeled or four-wheeled motor vehicle powered by a gasoline or diesel engine and generally characterized by large, low-pressure tires, a seat designed to be straddled by the operator, and handlebars for steering that is intended for off-road use by an individual rider on various types of unpaved terrain. The term does not include four-wheeled vehicles, commonly known as "go-carts," that have low centers of gravity and are typically used in racing on relatively level surfaces, nor does the term include any "utility vehicle" as defined in this section or any "farm vehicle" as defined in this section.

(2) *Antique motor vehicle*. Every motor vehicle which was actually manufactured or designated by the manufacturer as a model manufactured in a calendar year not less than twenty-five (25) years prior to January 1 of each calendar year and is owned solely as a collector's item.

(3) *Antique trailer*. Every trailer or semi-trailer, as defined in this section, which was actually manufactured or designated by the manufacturer as a model manufactured in a calendar year not less than twenty-five (25) years prior to January 1 of each calendar year and is owned solely as a collector's item.

(4) *Automobile or watercraft transporters*. Any tractor truck, lowboy, vehicle or combination, including vehicles or combinations that transport motor vehicles or watercraft in their power unit, designed and used exclusively for the transportation of motor vehicles or watercraft.

(5) *Bicycle*. A device propelled solely by human power, upon which a person may ride either on or astride a regular seat attached thereto, having two or more wheels in tandem, including children's bicycles, except a toy vehicle intended for use by young children. For purposes of this chapter 25, a bicycle shall be a vehicle while operated on the highway.

(6) *Bicycle lane*. That portion of a roadway designated by signs and/or pavement markings for the preferential use of bicycles, electric power-assisted bicycles, and mopeds.

(7) *Business district*. The territory contiguous to a highway where seventy-five (75) percent or more of the property contiguous to a highway, on either side of the highway, for a distance of three hundred (300) feet or more along the highway, is occupied by land and buildings actually in use and operation for business purposes.

(8) *Camping trailer*. Every vehicle that has collapsible sides and contains sleeping quarters but may or may not contain bathing and cooking facilities and is designed to be drawn by a motor vehicle.

(9) *Cancel* or *cancellation*. The document or privilege cancelled has been annulled or terminated because of some error, defect, or ineligibility, but the cancellation is without prejudice and reapplication may be made at any time after cancellation.

(10) *Chauffeur*. Every person employed for the principal purpose of driving a motor vehicle and every person who drives a motor vehicle while it is in use as a public or common carrier of persons or property.

(11) *Commission*. The state corporation commission.

(12) *Commissioner*. The commissioner of the department of motor vehicles of the commonwealth.

(13) *Crosswalk*. The part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs or, in the absence of curbs, from the edges of the traversable roadway; or any portion of a roadway at an intersection or elsewhere distinctly indicated for the pedestrian crossing by lines or other markings on the surface.

(14) *Decal*. A device to be attached to a license plate that validates the license plate for a predetermined registration period.

(15) *Department*. The department of motor vehicles of the commonwealth.

(16) *Disabled parking license plate*. A license plate that displays the international symbol of access in the same size as the numbers and letters on the plate and in a color that contrasts with the background.

(17) *Disabled veteran*. A veteran who (i) either lost, or lost the use of, a leg, arm, or hand; (ii) is blind; or (iii) is permanently and totally disabled as certified by the U.S. Veterans Administration. A veteran shall be considered blind if he has a permanent impairment of both eyes to the following extent: (i) central visual acuity of 20/200 or less in the better eye, with corrective lenses, or central visual acuity of more than 20/200, if there is a field defect in which the peripheral field has contracted to such an extent that the widest diameter of visual field subtends an angular distance no greater than twenty (20) degrees in the better eye.

(18) *Driver's license*. Any license, including a commercial driver's license as defined in the Virginia Commercial Driver's License Act ([Code of Virginia,] § 46.2-341.1 et seq.), issued under the laws of the commonwealth authorizing the operation of a motor vehicle.

(19) *Electric personal assistive mobility device*. A self-balancing two-nontandem-wheeled device that is designed to transport only one person and powered by an electric propulsion system that limits the device's maximum speed to fifteen (15) miles per hour or less. For purposes of this

chapter, an electric personal assistive mobility device shall be a vehicle when operated on a highway.

(20) *Electric power-assisted bicycle*. A vehicle that travels on not more than three (3) vehicles [wheels] in contact with the ground and is equipped with (i) pedals that allow propulsion by human power and (ii) an electric motor with an input of no more than one thousand (1,000) watts that reduces the pedal effort required of the rider. For the purposes of this chapter, an electric power-assisted bicycle shall be a vehicle when operated on a highway.

(21) *Essential parts*. All integral parts and body parts, the removal, alteration or substitution of which will tend to conceal the identity of a vehicle.

(22) *Farm tractor*. Every motor vehicle designed and used as a farm, agricultural or horticultural implement for drawing plows, mowing machines and other farm, agricultural or horticultural machinery and implements, including self-propelled mowers designed and used for mowing lawns.

(23) *Farm utility vehicle*. A vehicle that is designed for off-road use and is used as a farm, agricultural, or horticultural service vehicle, generally having a gasoline or diesel engine, four (4) or more wheels, bench seating for the operator and a passenger, a steering wheel for control, and a cargo bed. Farm utility vehicle does not include pickup or panel trucks, golf carts, low-speed vehicles, riding lawn mowers, or all-terrain vehicles.

(24) *Federal safety requirements*. Applicable provisions of 49 U.S.C. § 30101 et seq. and all administrative regulations and policies adopted pursuant thereto.

(25) *Financial responsibility*. The ability to respond in damages for liability thereafter incurred arising out of the ownership, maintenance, use, or operation of a motor vehicle, in the amounts provided for in [Code of Virginia,] § 46.2-472.

(26) *Foreign market vehicle*. Any motor vehicle originally manufactured outside the United States, which was not manufactured in accordance with 49 U.S.C. § 30101 et seq. and the policies and regulations adopted pursuant to that Act, and for which a Virginia title or registration is sought.

(27) *Foreign vehicle*. Every motor vehicle, trailer, or semitrailer that is brought into the commonwealth otherwise than in the ordinary course of business by or through a manufacturer or dealer and that has not been registered in the commonwealth.

(28) *Golf cart*. A self-propelled vehicle that is designed to transport persons playing golf and their equipment on a golf course.

(29) *Governing body*. The board of supervisors of a county, council of a city, or council of a town, as context may require.

(30) *Gross weight*. The aggregate weight of a vehicle or combination of vehicles and the load thereon.

(31) *Highway*. The entire width between the boundary lines of every way or place open to the use of the public for purposes of vehicular travel in the commonwealth, including the streets and alleys, and, for law-enforcement purposes, (i) the entire width between the boundary lines for all private roads or private streets that have been specifically designated "highways" by an ordinance adopted by the governing body of the county, city, or town in which such private roads or streets are located and (ii) the entire width between the boundary lines of every way or place used for purposes of vehicular travel on any property owned, leased, or controlled by the United States government and located in the commonwealth.

(32) *Intersection*.

(i) The area embraced within the prolongation or connection of the lateral curb lines, or if none, then the lateral boundary lines of the roadways of two (2) highways that join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict;

(ii) Where a highway includes two (2) roadways thirty (30) feet or more apart, then

every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection, in the event such intersecting highway also includes two (2) roadways thirty (30) feet or more apart, then every crossing of two (2) roadways of such highway shall be regarded as a separate intersection; or

(iii) For purposes only of authorizing installation of traffic-control devices, every crossing of a highway or street at grade by a pedestrian crosswalk.

(33) *Law-enforcement officer*. Any officer authorized to direct or regulate traffic or to make arrests for violations of this title or local ordinances authorized by law. For the purposes of access to law-enforcement databases regarding motor vehicle registration and ownership only, this term shall also include city and county commissioners of the revenue and treasurers, together with their duly designated deputies and employees, when such officials are actually engaged in the enforcement of [Code of Virginia,] §§ 46.2-752, 46.2-753 and 46.2-754 and local ordinances enacted thereunder.

(34) *License plate*. A device containing letters, numerals, or a combination of both, attached to a motor vehicle, trailer, or semitrailer to indicate that the vehicle is properly registered with the Department.

(35) *Light*. A device for producing illumination or the illumination produced by the device.

(36) *Low-speed vehicle*. Any four-wheeled electrically-powered vehicle, except a motor vehicle or low-speed vehicle that is used exclusively for agricultural or horticultural purposes or a golf cart, whose maximum speed is greater than twenty (20) miles per hour but not greater than twenty-five (25) miles per hour and is manufactured to comply with safety standards contained in title 49 of the Code of Federal Regulations, § 571.500.

(37) *Manufactured home*. A structure subject to federal regulation, transportable in one or more sections, which in the traveling mode is eight (8) body feet or more in width or forty (40) body feet or more in length, or, when erected on site, is three hundred twenty (320) or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air conditioning, and electrical systems contained therein.

(38) *Moped*. Every vehicle that travels on not more than three (3) wheels in contact with the ground that has (i) a seat that is no less than twenty-four (24) inches in height, measured from the middle of the seat of the seat perpendicular to the ground and (ii) a gasoline, electric, or hybrid motor that displaces less than fifty (50) cubic centimeters. For purposes of chapter 25 ([Code of Virginia,] § 46.2-800 et seq.) of this title, a moped shall be a vehicle while operated on a highway.

(39) *Motor-driven cycle*. Every motorcycle that has a gasoline engine that (i) displaces less than one hundred fifty (150) cubic centimeters; (ii) has a seat less than twenty-four (24) inches in height, measured from the middle of the seat perpendicular to the ground; and (iii) has no manufacturer-issued vehicle identification number.

(40) *Motor home*. Every private motor vehicle with a normal seating capacity of not more than ten (10) persons, including the driver, designed primarily for use as living quarters for human beings.

(41) *Motor vehicle*. Every vehicle as defined in this section that is self-propelled or designed for self-propulsion except as otherwise provided in this title. Any structure designed, used, or maintained primarily to be loaded on or affixed to a motor vehicle to provide a mobile dwelling, sleeping place, office, or commercial space shall be considered a part of a motor vehicle. For the purposes of this title, any device herein defined as a bicycle, electric personal assistive mobility device, electric power-assisted bicycle, or moped shall be deemed not to be a motor vehicle.

(42) *Motorcycle*. Every motor vehicle designed to travel with not more than three (3) wheels in contact with the ground and is capable of traveling at speeds in excess of thirty-five (35) miles per hour. The term "motorcycle" does not include any "electric personal assistive mobility device," "elec-

tric power-assisted bicycle," "farm tractor," "golf cart," "moped," "motorized skateboard or scooter," "utility vehicle" or "wheelchair or wheelchair conveyance" as defined in this section.

(43) *Motorized skateboard or scooter*. Every vehicle, regardless of the number of its wheels in contact with the ground, that (i) has no seat, but is designed to be stood upon by the operator, (ii) has no manufacturer-issued vehicle identification number, and (iii) is powered by an electric motor having an input of no more than one thousand (1,000) watts or a gasoline engine that displaces less than thirty-six (36) cubic centimeters. The term "motorized skateboard or scooter" includes vehicles with or without handlebars, but does not include "electric personal assistive mobility devices.

(44) *Nonresident*. Every person who is not domiciled in this state; except:

(i) Any foreign corporation which is authorized to do business in the commonwealth by the state corporation commission shall be a resident of the commonwealth for the purpose of this title; in the case of corporations incorporated in the commonwealth but doing business outside the commonwealth, only such principal place of business or branches located within the commonwealth shall be dealt with as residents of the commonwealth;

(ii) A person who becomes engaged in a gainful occupation in the commonwealth for a period exceeding sixty (60) days shall be deemed a resident for the purposes of this title except for the purposes of chapter 3 ([Code of Virginia,] 46.2-300 et seq.) of this title;

(iii) A person, other than a nonresident student, as defined in this section, who has actually resided in the commonwealth for a period of six (6) months, whether employed or not, or who has registered a motor vehicle listing an address in the commonwealth in the application for registration, shall be deemed a resident for the purposes of this title, except for the purposes of the Virginia Commercial Driver's License Act (§ 46.2-341.1 et seq.).

(45) *Nonresident student*. Every nonresident person who is enrolled as a full-time student in an accredited institution of learning in the commonwealth and who is not gainfully employed.

(46) *Off-road motorcycle*. Every motorcycle designed exclusively for off-road use by an individual rider with not more than two wheels in contact with the ground. Except as otherwise provided in this chapter, for the purposes of this chapter off-road motorcycles shall be deemed to be "motorcycles".

(47) *Operation or use for rent or for hire, for the transportation of passengers, or as a property carrier for compensation* and *business of transporting persons or property.* Any owner or operator of any motor vehicle, trailer, or semitrailer operating over the highways in the commonwealth who accepts or receives compensation for the service, directly or indirectly; but these terms do not mean a "truck lessor" as defined in this section and do not include persons or businesses that receive compensation for delivering a product that they themselves sell or produce, where a separate charge is made for delivery of the product or the cost of delivery is included in the sale price of the product, but where the person or business does not derive all or a substantial portion of its income from the transportation of persons or property except as part of a sales transaction.

(48) *Operator or driver*. Every person who either (i) drives or is in actual physical control of a motor vehicle on a highway, or (ii) is exercising control over or steering a vehicle being towed by a motor vehicle.

(49) *Owner*. A person who holds the legal title of a vehicle; however if a vehicle is the subject of an agreement for its conditional sale or lease with the right of purchase on performance of the conditions stated in the agreement and with an immediate right of possession vested in the conditional vendee or lessee or if a mortgagor of a vehicle is entitled to possession, then the conditional vendee or lessee or mortgagor shall be the owner for the purpose of this title. All such instances when the rent paid by the lessee includes charges for services of any nature or when the lease does not provide that title shall pass to

the lessee upon payment of the rent stipulated, the lessor shall be regarded as the owner of such vehicle and the vehicle shall be subject to such requirements of this title as are applicable to vehicles operated for compensation. A "truck lessor" as defined in Code of Virginia, § 46.1-1, shall be regarded as the owner, and his vehicles shall be subject to such requirements of this title as are applicable to vehicles of private carriers.

(50) *Passenger car*. Every motor vehicle other than a motorcycle designed and used primarily for the transportation of no more than ten (10) persons including the driver.

(51) *Payment device*. Any credit card as defined in 15 U.S.C. § 1602(k) or any "accepted card or other means of access" set forth in 15 U.S.C. § 1693a(1). For the purposes of this title, this definition shall also include a card that enables a person to pay for transactions through the use of value stored on the card itself.

(52) *Peace or police officer*. Every officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

(53) *Pickup or panel truck*. Every motor vehicle designed for the transportation of property and having a registered gross weight of 7,500 pounds or less.

(54) *Private road* or *driveway.* Every way in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

(55) *Reconstructed vehicle.* Every vehicle of a type required to be registered under this title materially altered from its original construction by the removal, addition or substitution of new or used essential parts.

(56) *Rescue vehicle.* Any vehicle designed or utilized for the principal purposes of supplying resuscitation or other emergency relief where human life is endangered.

(57) *Residence district.* The territory contiguous to a highway not comprising a business district, where seventy-five (75) percent or more of the property abutting such highway, on either side of the highway, for a distance of three hundred (300) feet or more along the highway consists of land improved for dwelling purposes, or is occupied by dwellings, or consists of land and buildings in use for business purposes, or consists of territory zoned residential or territory in residential subdivisions created under Code of Virginia title 15.2, chapter 22 (§ 15.2-2200 et seq.).

(58) *Revoke* or *revocation.* That the document or privilege revoked is not subject to renewal or restoration except through reapplication after the expiration of the period of revocation.

(59) *Roadway.* That portion of a highway improved, designed or ordinarily used for vehicular travel, exclusive of the shoulder. A highway may include two (2) or more roadways, if divided by a physical barrier or barriers or unpaved area.

(60) *Safety zone.* The area or space officially set apart within a roadway for the exclusive use of pedestrians and that is protected or is so marked or indicated by plainly visible signs.

(61) *School bus.* Any motor vehicle, other than a station wagon, automobile truck, or commercial bus, which is: (i) designed and used primarily for the transportation of pupils to and from public, private or religious schools, or used for the transportation of the mentally or physically handicapped to and from a sheltered workshop; (ii) painted yellow and bears the words "School Bus" in black letters of a specified size on front and rear; and (iii) is equipped with warning devices prescribed in [Code of Virginia,] § 46.2-1090. A yellow bus may have a white roof provided such vehicle is painted in accordance with regulations promulgated by the department of education.

(62) *Semitrailer.* Every vehicle of the trailer type so designed and used in conjunction with a motor vehicle that some part of its own weight and that of its own load rests on or is carried by another vehicle.

(63) *Shared-use path.* A bikeway that is physically separated from motorized vehicular traffic by an open space or barrier and is located either within the highway right-of-way or within a separate right-of-way. Shared-use paths may also be used by pedestrians, skaters, users of wheel chairs or wheel chair conveyances, joggers and other nonmotorized users.

(64) *Shoulder.* That part of a highway between the portion regularly traveled by vehicular traffic and the lateral curbline or ditch.

(65) *Sidewalk.* The portion of a street between the curb lines, or the lateral lines of a roadway, and the adjacent property lines, intended for use by pedestrians.

(66) *Snowmobile.* A self-propelled vehicle designed to travel on snow or ice, steered by skis or runners, and supported in whole or in part by one or more skis, belts, or cleats.

(67) *Specially constructed vehicle.* Any vehicle that was not originally constructed under a distinctive name, make, model or type by a generally recognized manufacturer of vehicles and not a reconstructed vehicle as herein defined.

(68) *Stinger-steered automobile or watercraft transporter.* An automobile or watercraft transporter configured as a semitrailer combination wherein the fifth wheel is located on a drop frame behind and below the rearmost axle of the power unit.

(69) *Superintendent.* The superintendent of the department of state police of the commonwealth.

(70) *Suspend* or *suspension.* That the document or privilege suspended has been temporarily withdrawn, but may be reinstated following the period of suspension unless it has expired prior to the end of the period of suspension.

(71) *Tow truck.* A motor vehicle for hire (i) designed to lift, pull, or carry another vehicle by means of a hoist or other mechanical apparatus and (ii) having a manufacturer's gross vehicle weight rating of at least ten thousand (10,000) pounds. Tow truck also includes vehicles designed with a ramp on wheels and a hydraulic lift with a capacity to haul or tow another vehicle, commonly referred to as "rollbacks." Tow truck does not include any "automobile or watercraft transporter." "stinger-steered automobile or watercraft transporter," or "tractor truck" as those terms are defined in this section.

(72) *Towing and recovery operator.* A person engaged in the business of:

(i) Removing disabled vehicles, parts of vehicles, their cargoes, and other objects to facilities for repair or safekeeping; and

(ii) Restoring to the highway or other location where they enter can be operated or removed to other locations for repair or safekeeping vehicles that have come to rest in places where they cannot be operated.

(73) *Toy vehicle.* Any motorized or propellant-driven device that has no manufacturer-issued vehicle identification number, that is designed or used to carry any person or persons, on any number of wheels, bearings, glides, blades, runners or a cushion of air. The term does not include electric personal assistive mobility devices, electric power-assisted bicycles, mopeds, or motorcycles, nor does it include any nonmotorized or nonpropellant-driven devices such as bicycles, roller skates, or skateboards.

(74) *Tractor truck.* Every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the load and weight of the vehicle attached thereto.

(75) *Traffic infraction.* A violation of law punishable as provided in [Code of Virginia,] § 46.2-113, which is neither a felony nor a misdemeanor.

(76) *Traffic lane or lane.* That portion of a roadway designed or designated to accommodate the forward movement of a single line of vehicles.

(77) *Trailer.* Every vehicle, without motive power designed for carrying property or passengers wholly on its own structure and for being drawn by a motor vehicle, including manufactured homes.

(78) *Travel trailer.* Every vehicle designed to provide temporary living quarters of such size and weight as not to require special highway movement permits when towed by a motor vehicle and having a gross trailer area less than three hundred twenty (320) square feet.

(79) *Truck.* Every motor vehicle designed to transport property on its own structure independent of any other vehicle and having a registered gross weight in excess of seven thousand five hundred (7,500) pounds.

(80) *Truck lessor.* A person who holds the legal title to any motor vehicle, trailer, or semitrailer that is the subject of a bona fide written lease for a term of one year or more to another person, provided that:

(i) Neither the lessor nor the lessee is a common carrier by motor vehicle or restricted common carrier by motor vehicle or contract carrier by motor vehicle as defined in [Code of Virginia,] § 46.2-2000;

(ii) The leased motor vehicle, trailer, or semitrailer is used exclusively for the transportation of property of the lessee;

(iii) The lessor is not employed in any capacity by the lessee;

(iv) The operator of the leased motor vehicle is a bona fide employee of the lessee and is not employed in any capacity by the lessor; and

(v) A true copy of the lease, verified by affidavit of the lessor, is filed with the commissioner.

(81) *Utility vehicle.* A motor vehicle that is (i) designed for off-road use, (ii) powered by an engine of no more than twenty-five (25) horsepower, and (iii) used for general maintenance, security, agricultural, or horticultural purposes. "Utility vehicle" does not include all-terrain vehicles as defined in this section, riding lawn mowers, or any other vehicle whose definition is included in this section.

(82) *Vehicle.* Every device in, upon or by which any person or property is or may be transported or drawn on a highway, except devices moved by human power or used exclusively upon stationary rails or tracks. For the purposes of Chapter 8 (Code of Virginia, § 46.2-800 et seq.) of this title, bicycles, electric personal assistive mobility devices, electric power-assisted bicycles, and mopeds shall be vehicles while operated on a highway.

(83) *Watercraft trailer.* Every trailer specifically designed to carry a watercraft or a motor boat and purchased, sold or offered by sale by a watercraft dealer licensed under Chapter 8 (§29.1-800 et seq.) of Virginia Code Title 29.1.

(84) *Wheel chair* or *wheel chair conveyance.* A chair or seat equipped with wheels, typically used to provide mobility for persons who, by reason of physical disability, or otherwise unable to move about as pedestrians. The term includes both three-wheeled and four-wheeled devices. So long as it is operated only as provided in Code of Virginia, § 46.2-677, a self-propelled wheel chair or self-propelled wheel chair conveyance shall not be considered a motor vehicle.

(Code 1958, §§ 29-2, 29-71; Ord. No. 42,900, § 2, 11-6-07; Ord. No. 45,955, § 21, 5-19-15, eff. 7-1-15)

State law reference—Similar provisions, Code of Virginia, § 46.2-800.

Sec. 25-3. Application of chapter to persons riding or driving animals.

Every person riding or driving an animal upon a roadway shall be subject to the provisions of this chapter applicable to the driver of a vehicle, unless the context of the provision clearly indicates otherwise.

(Code 1958, § 29-3)

Cross reference—Animals, Ch. 6.

State law reference—Similar provisions, Code of Virginia, § 46.2-800.

Sec. 25-4. Compliance with chapter; general penalty for violations.

It shall be unlawful for any person to refuse, fail or neglect to comply with any provision of this chapter. Unless otherwise specifically provided, a violation of this chapter shall constitute a traffic infraction punishable by a fine of not more than two hundred fifty dollars ($250.00).
(Code 1958, § 29-19; Ord. No. 36,958, § 1, 8-18-92; Ord. No. 39,511, § 1, 3-9-99)

Sec. 25-5. Additional penalties for certain repeated violations.

If any person, having been convicted three (3) times of any offense or offenses set forth below, within a period of ten (10) years, be again convicted of any one of such offenses within such ten-year period, he shall, in addition to the penalty otherwise prescribed by law for such offense, be fined not less than one hundred dollars ($100.00) nor more than one thousand dollars ($1,000.00) and confined in jail not less than three (3) months nor more than twelve (12) months. The offenses for a fourth conviction of which such penalties may be imposed are the following: Violations of sections 25-152, 25-219 or 25-251 of this chapter or of any similar laws of the state or of similar ordinances of any county, city or town in the state, or violations of section 46.2-894 of the Code of Virginia, and manslaughter, voluntary or involuntary, involving the operation of a motor vehicle; provided, however, that for the purposes of this section, where more than one manslaughter conviction results from a single act or omission, then only the first such conviction shall constitute an offense. In addition, the court shall revoke the operator's or chauffeur's license of such person for a period of five (5) years.
(Code 1958, § 29-19.1)

State law reference—Similar provisions, Code of Virginia, § 46.2-394.

Sec. 25-6. Additional penalty for certain violations while transporting explosives.

When the driver of any motor vehicle is convicted of any of the provisions of section 25-165, 25-166, 25-167, 25-171, 25-217, 25-218, 25-224 or 25-226, and such violation was committed while operating a motor vehicle, tractor truck, trailer or semitrailer transporting explosives or any inflammable gas or liquid, in addition to any other penalty imposed, the court may suspend the operator's or chauffeur's license of such person so convicted for a period of ninety (90) days from the date of conviction. This penalty shall be in addition to any other penalties for such violation.
(Code 1958, § 29-16)

State law reference—Similar provisions, Code of Virginia, § 46.2-397.

Sec. 25-7. Arrest procedure for violations—Generally.

(1) Whenever any person is arrested, including an arrest on a warrant, for a violation of any provision of this chapter, except section 25-251, the arresting officer shall, except as otherwise provided in section 25-10.3, take the name and address of such person and the license number of his motor vehicle and issue a summons or otherwise notify such person, in writing, to appear at a time and place to be specified in such summons or notice, such time to be a regular session of the general district court, at least five (5) days after such arrest, unless the person arrested shall demand an earlier hearing, and such person shall, if he so desires, have a right to an immediate hearing in the general district court, if then in session, and, if not then in session, before the next regular session thereof within twenty-four (24) hours. Such officer shall thereupon, and upon the giving by such person of his written promise to appear at such time and place, forthwith release him from custody.

(2) Any person refusing to give such written promise to appear shall be taken immediately by the arresting or other police officer before the nearest or most accessible judicial officer or other person qualified to admit to bail, having jurisdiction under title 46.2 of the Code of Virginia.

(3) Any person who willfully violates his written promise to appear, given in accordance with this section, shall be guilty of a misdemeanor, regardless of the disposition of, and in addition to, the charge upon which he was originally arrested.

(4) Any officer violating any of the provisions of this section shall be guilty of misconduct in office and subject to removal therefrom upon complaint filed by any person in a court of competent jurisdiction. This subsection shall not be construed to limit the removal of a police officer for other misconduct in office.

(Code 1958, § 29-17.1)

Cross reference—Use of above section in making arrests for littering from motor vehicle, § 41-16.

State law reference—Similar provisions, Code of Virginia, § 46.2-936.

Sec. 25-8. Same—Issuance of warrant prior to return date of summons or notice.

Notwithstanding the provisions of section 25-7, if prior general approval has been granted for the use of this subsection by a judge of the general district court, the arresting officer may appear before a magistrate of this city and make an oath as to the offense and request the issuance of a warrant at any time prior to the return date of the summons or notice issued under section 25-7. A warrant for the violation shall then be issued by the magistrate and forwarded forthwith to the general district court.

(Code 1958, § 29-17.1)

State law reference—Similar provisions, Code of Virginia, § 46.1-178(a1).

Sec. 25-9. Same—Issuance of warrant upon failure to comply with summons.

(1) Upon the failure of any person to comply with the terms of a summons or notice issued under section 25-7, the court may direct the arresting officer or the clerk of the court to obtain a warrant for that person's arrest or for the violation of his written promise to appear given in accordance with section 25-7 and serve or cause to be served, or attempt or cause to be attempted to serve, such warrant on the person. The warrant shall be returnable to the general district court and shall be accompanied by a report by the arresting officer which shall clearly identify the person arrested, specifying the section of this Code violated, the location of the offense, a description of the motor vehicle and its registration or license number.

(2) If the warrant issued under this section is returned to the court with the notation "not found" or the person named in the warrant does not appear on the return date thereof, the court shall forward a certificate of the fact of nonservice or nonappearance, with a copy of the report specified in subsection (1) above, to the commissioner of the division of motor vehicles.

(Code 1958, § 29-17.2)

State law reference—Similar provisions, Code of Virginia, § 46.2-938.

Sec. 25-10. Same—When arrested person to be taken before judicial officer.

If any person arrested for a violation of this chapter is believed by the arresting officer to be likely to disregard a summons issued under section 25-7, the arresting officer shall take such person forthwith before the nearest or most accessible judicial officer or other person qualified to admit to bail, in lieu of issuing the summons required by section 25-7, and such judicial officer or other person shall determine whether or not probable cause exists that such person is likely to disregard a summons, and may issue either a summons or warrant, as he shall determine proper.

(Code 1958, § 29-17.3)

State law reference—Similar provisions, Code of Virginia, § 46.2-940.

Sec. 25-11. Same—Traffic infractions treated as misdemeanors for arrest purposes.

For purposes of arrest, traffic infractions shall be treated as misdemeanors. Except as otherwise provided by this chapter or state law, the authority and duties of arresting officers shall be the same for traffic infractions as for misdemeanors.

State law reference—Similar provisions, Code of Virginia, § 46.2-937.

Sec. 25-12. Posting of police officers for regulation of traffic.

The chief of police is authorized, from time to time, to post officers for the regulation of traffic at such places in the streets as conditions may render necessary.

The chief of police may deputize operations officers for the limited purpose of directing traffic

in accordance with section 46.2-1309 of the Code of Virginia, 1950, as amended, during periods of heavy traffic or congestion; provided that such persons are over the age of eighteen (18) years and without the power of arrest and that such persons first receive training as the chief of police determines necessary to fully acquaint such persons with the techniques of traffic control.

Any operations officer who is deputized shall, at all times while engaged in traffic control, wear a distinctive police uniform, including a safety vest.
(Code 1958, § 29-4; Ord. No. 34,209, § 1, 11-10-86; Ord. No. 39,506, § 1, 3-9-99)

Sec. 25-13. Direction of traffic by police officers, uniformed school crossing guards and operations officers.

Police officers, uniformed school crossing guards and operations officers may direct traffic by signals. Such signals, other than by voice, shall be as follows:

(1) *To stop traffic by hand.* Stand with shoulders parallel to moving traffic. Raise arms forty-five (45) degrees above shoulder with hand extended, palm towards moving traffic to be stopped.

(2) *To move traffic by hand.* Stand with shoulders parallel to traffic to be moved. Extend right arm and hand full length at height of shoulders towards such traffic, fingers extended and joined, palm down. Bring hand sharply in direction traffic is to move. Repeat movement with left arm and hand to start traffic from opposite direction.

(3) *To stop and start traffic by whistle.* One blast, moving traffic to stop; two (2) blasts, traffic in opposite direction to move.

(4) *Emergency stop of traffic by whistle.* Three (3) or more short blasts, all traffic shall immediately clear the intersection and stop.

Such law enforcement officers, uniformed school crossing guards and operations officers may also use motions comparable to the above and supplemental traffic direction devices, including but not limited to hand-held stop or go signs, in directing traffic as provided in this section.
(Code 1958, § 29-23; Ord. No. 34,209, § 1, 11-10-86; Ord. No. 39,507, § 1, 3-9-99; Ord. No. 41,357, § 1, 4-6-04)

State law reference—Similar provisions, Code of Virginia, § 46.2-1309.

Sec. 25-14. Obedience to orders or directions of police officer, uniformed school crossing guard and operations officer.

(a) It shall be the duty of the driver of any vehicle except drivers of vehicles connected with the department of police and the department of fire-rescue, at any street intersection or other place where a police officer, uniformed school crossing guard, or operations officer is stationed in control of traffic, to immediately obey all orders of such police officer, uniform school crossing guard, or operations officer given for the purpose of regulating traffic at such point. It shall be the duty of the driver of any vehicle to obey the directions of any police officer, uniformed school crossing guard or operations officer given pursuant to section 25-13.

(b) Any person who, having received a visible or audible signal from any police officer, uniformed school crossing guard, or operations officer to bring his motor vehicle to a stop, shall operate such motor vehicle in a willful or wanton disregard of such signal so as to interfere with the officer, uniformed school crossing guard or operations officer, or endanger the operation of the city vehicle or endanger other property or person, or who shall increase his speed and attempt to escape or elude such police officer, uniformed school crossing guard, or operations officer, shall be guilty of a class 1 misdemeanor. When any person is convicted under this section, then, in addition to the penalties provided herein, the driver's license of such person may be suspended by the court or judge for a period not to exceed one year. However, in any case where the speed of the accused is determined to have exceeded the maximum allowed by fifteen (15) miles per hour where the maximum speed is fifty-five (55) miles per hour or greater, the driver's license shall be

suspended by the court or judge trying the case for a period of not less than ninety (90) days. In case of conviction or suspension, the court or judge shall order the surrender of the license to the court where it shall be disposed of in accordance with the provisions of section 46.2-398 of the Code of Virginia, 1950, as amended.

(c) In the prosecution of an offense established under this section, evidence that the defendant was at the time of such violation the owner, lessee, or renter of the vehicle, shall constitute in evidence a rebuttable presumption that such owner, lessee, or renter of the vehicle was the person who was driving during the alleged violation

(d) For infractions other than described in subsection (b) above, if the driver of any vehicle fails to obey the orders or directions of a uniformed school crossing guard, or operations officer, the driver shall be convicted of a traffic infraction and be liable for a monetary penalty of not more than two hundred dollars ($200.00) for each offense, imposed pursuant to this section if such vehicle is found, as evidenced by information obtained from a report provided by the uniformed school crossing guard, that the driver failed to comply with orders or directions of such uniformed school crossing guard.

(e) Proof of a violation of subsection (d) shall be evidenced by information obtained from a sworn statement of the uniformed school crossing guard or operations officer, or a facsimile thereof, based upon observations of the uniformed school crossing guard, and shall be prima facie evidence of the facts contained therein. Any other documents evidencing such a violation shall be available for inspection in any proceeding to adjudicate the liability for such violation.

(f) Upon issuance of a traffic summons the chief of police, or his designee, shall notify the accused driver by mail and direct the accused driver to appear at the time and place identified in the notice for the purpose of execution of the summons. If the accused driver fails to appear as directed, then the summons shall be executed and returned as provided by section 19.2-76, of the Code of Virginia.

(g) The authority of uniformed school crossing guards, or operations officer when fulfilling the duties of a crossing guard, is limited to traffic control at any marked school crossing, whether such crossing is at an intersection or another location, when they are directing the crossing of children.
(Code 1958, § 29-5; Ord. No. 34,209, § 1, 11-10-86; Ord. No. 35,137, § 1, 6-28-88; Ord. No. 39,508, § 1, 3-9-99; Ord. No. 41,357, § 2, 4-6-04)

Sec. 25-15. Duty to leave scene of traffic accident when directed so to do by police officer.

A person shall leave the scene of a traffic accident, when directed to do so by a police officer.
(Code 1958, § 29-596)

State law reference—Similar provisions, Code of Virginia, § 46.2-902.

Sec. 25-16. Removal of vehicles involved in accidents when blocking traffic.

Whenever a motor vehicle, trailer or semitrailer has been involved in an accident and is found upon the highways or the streets of the city and is so located as to impede the ordinary flow of traffic, the police of the city are hereby authorized, at no expense to the owner or operator thereof, to remove such motor vehicle, trailer or semitrailer from the highways or the streets of the city to some point in the vicinity where such motor vehicle, trailer or semitrailer will not impede the flow of traffic.
(Code 1958, § 29-744.2)

State law reference—Authority for above section, Code of Virginia, § 46.2-1214.

Sec. 25-17. Streets are two-way unless otherwise designated.

All streets within the city shall be two-way streets, except such streets and portions of streets as are expressly designated as one-way streets.
(Code 1958, § 29-9)

Cross reference—One-way streets designated, § 25-652.

Sec. 25-18. Closing streets adjoining public schools to traffic.

For the protection of the pupils of the public schools of the city, the chief of police, on the

request of the city school board, is hereby authorized to block off to vehicular traffic any street, not to exceed one block thereof, adjoining any public school of the city during the hours from 8:30 a.m. to 5:00 p.m. of each school day; provided such block is not a part of a regular bus route; and, provided, further, that any resident on such block shall at all times have the right of ingress and egress to and from his residence.
(Code 1958, § 29-7)

Sec. 25-19. State registration and licensing of vehicles.

No person shall operate or permit a motor vehicle, trailer or semitrailer controlled by him to be operated upon any street or highway within the city which is not properly registered with the state division of motor vehicles, or for which a certificate of title has not been issued by such division, or which does not have attached thereto and displayed thereon the license plate or plates and decal or decals assigned thereto by the division. All requirements of this section shall be subject to the limitations and conditions set forth in sections 46.2-601, 46.2-626, 46.2-655 et seq., and 46.2-663 et seq. of the Code of Virginia.
(Code 1958, § 29-38.1)

Cross reference—Local vehicle license, § 24-158 et seq.

State law reference—Registration and licensing of motor vehicles, Code of Virginia, § 46.2-600 et seq.

Sec. 25-20. License plates to be kept clean.

It shall be the duty of the owners of all motor vehicles operated upon the public streets of the city to keep the license plates on such vehicles at all times sufficiently clean and free from dirt and grease so that the letters and numbers on such license plates may be at all times easily discernible.
(Code 1958, § 29-12)

State law reference—License plates to be in such condition as to be clearly legible, Code of Virginia, § 46.2-716.

Sec. 25-21. Identification of tow vehicles.

(1) It shall be unlawful for any person to tow, haul or otherwise remove a motor vehicle in the city for any purpose whatsoever by use of a tow vehicle, unless there is painted on each side of the tow vehicle, in letters not less than three (3) inches

in height, and in a contrasting color from the background of the tow vehicle, the name, business street address and business telephone number of the owner of such tow truck.

(2) For the purposes of this section, a tow vehicle shall include any motor vehicle designated or adapted to tow, haul or otherwise remove another motor vehicle. (Code 1958, § 29-744.3; Ord. No. 34,901, § 1, 2-9-88)

Sec. 25-22. Duty of drivers involved in accident to remove broken glass from street.

Whenever, as a result of an accident or collision between vehicles of any kind, broken glass shall fall or be deposited upon any public street, lane or alley of the city, it shall be the duty of the drivers of such vehicles to immediately remove such glass from the street, lane or alley. (Code 1958, § 29-10)

State law reference—Duty of persons removing wrecked or damaged vehicle from street to also remove glass or other injurious substance, Code of Virginia, § 18.2-324.

Sec. 25-23. Reward for information leading to conviction for wrongfully removing fuel from vehicle.

A reward of one hundred dollars ($100.00) is hereby offered for information leading to the apprehension and conviction of any person who wrongfully siphons or drains or otherwise removes gasoline or any other fuel from any motor vehicle. (Code 1958, § 20-29.1)

Sec. 25-24. Walls, fences, hedges, etc., constituting traffic hazard at intersections.

(1) Notwithstanding the provisions of any other section of this Code or any ordinance of the city, it shall be unlawful for any person to maintain or cause, permit or allow to be maintained, any wall, fence, hedge, tree, shrub or other growth on any premises situated at the intersection of two (2) or more streets in the city, of such size or at such location as to constitute a traffic hazard by obstructing the view of any operator of any motor vehicle approaching such intersection to the extent that such operator is unable, by reason thereof, to observe other vehicles approaching such intersection.

(2) When, in the opinion of the director of public works, any wall, fence, hedge, tree, shrub or other growth is maintained on any premises at any intersection contrary to the provisions of subsection (1) of this section, so constituting a traffic hazard, the director of public works shall order or direct the person maintaining such hazard to remove, cut or alter the same to such height, size or location as to no longer constitute a traffic hazard.

(3) It shall be the duty of any person receiving such order or direction from the director of public works to comply with the same within such time as may be stated in such order or direction. If any person whose duty it is to comply with such order or direction shall fail or refuse so to do, such person shall be guilty of a Class 3 misdemeanor. Each day's failure to comply with such order or direction shall constitute a separate offense. (Code 1958, § 29-11)

Sec. 25-25. Traffic schools.

There is hereby established a traffic school within the city, which will be under the supervision and control of the Norfolk General District Court/Traffic Division, at which there will be given instruction concerning laws and ordinances for the regulation of vehicular traffic, safe operations of vehicles and other related subjects, pursuant to section 46.1-16.1, Code of Virginia, 1950, as amended. The traffic school will be in session at such times and dates as designated by the chief judge of the Norfolk General District Court. Instructors shall include the Division of Motor Vehicles, the State Police, the Tidewater Motorcycle Safety Association, Inc., and other groups or individuals as may be selected by the Norfolk General District Court/Traffic Division.

The direction and control of such school is vested in the Norfolk General District Court/Traffic Division. The council consents to the Norfolk Gen-

eral District Court/Traffic Division requiring any person found guilty of a statute or ordinance covered by articles I through VI of chapter 4 of title 46.1 of the Code of Virginia, 1950, as amended, to attend said traffic school in accordance with the provisions of section 46.1-16.1(b), Code of Virginia, 1950, as amended, in lieu of or in addition to the penalties prescribed by section 46.1-16.01, Code of Virginia, 1950, as amended. (Ord. No. 31,652, § 1, 4-13-82; Ord. No. 35,710, § 1, 8-29-89)

Secs. 25-26—25-40. Reserved.

ARTICLE II. VEHICLE EQUIPMENT*

DIVISION 1. GENERALLY

Sec. 25-41. Brakes generally.

Every motor vehicle, when operated upon a highway, shall be equipped with brakes adequate to control the movements of and to stop and hold such vehicle, and such brakes shall be maintained in good working order and shall conform to regulations provided in this article. (Code 1958, § 29-760)

State law reference—Similar provisions, Code of Virginia, § 46.1-277.

Sec. 25-42. Efficiency of service braking system.

On a dry, hard, approximately level stretch of highway, free from loose material, the service braking system shall be capable of stopping a motor vehicle or combination of vehicles at all times and under all conditions of loading, at a speed of twenty (20) miles per hour, within the following distances:

(1) Passenger motor vehicles, except buses and antique vehicles, twenty-five (25) feet.

(2) Buses, trucks and tractor trucks, forty (40) feet.

(3) Motor vehicles registered or qualified to be registered as antique vehicles, when equipped with two-wheel brakes, forty-five (45) feet, and with four-wheel brakes, twenty-five (25) feet.

(4) All combinations of vehicles, fifty (50) feet.

(5) Motorcycles, thirty (30) feet. (Code 1958, §§ 29-761, 29-762)

State law reference—Similar provisions, Code of Virginia, § 46.1-278.

Sec. 25-43. Holding devices.

Every motor vehicle and combination of vehicles, except motorcycles, shall be equipped with holding devices adequate to hold the vehicle or vehicles on any grade on which it is operated, under all conditions of loading on a surface free from snow, ice or loose material.

State law reference—Similar provisions, Code of Virginia, § 46.1-278.1.

Sec. 25-44. Brakes on motorcycles.

(1) Every motorcycle manufactured after July 1, 1974, and operated upon a highway in this city shall be equipped with either a split-service brake system or two (2) independently actuated service brake systems which shall act on the front as well as the rear wheel or wheels.

(2) It shall be unlawful for any person to operate a motorcycle on a highway in this city which was originally equipped with a service brake system on both the front or rear wheel or wheels if the service brake system has been altered by removing or disconnecting any of the brake-system components from any of the wheels.

State law reference—Similar provisions, Code of Virginia, § 46.1-279.1.

Sec. 25-45. Brakes on trailers and other towed vehicles.

(1) Every semitrailer or trailer or separate vehicle attached by a drawbar, chain or coupling to a towing vehicle, other than a farm tractor or a vehicle not required to obtain an annual registration certificate for license plates under section 46.1-45 of the Code of Virginia, and having an actual gross

*Cross reference—Required bicycle equipment, § 8-47 et seq.

weight of three thousand (3,000) pounds or more, shall be equipped with brakes controlled or operated by the driver of the towing vehicle which shall conform to the specifications set forth in section 25-42 and shall be of a type approved by the superintendent. Farm trailers used exclusively for hauling raw agricultural produce from farm to farm or farm to packing shed or processing plant, within the normal growing area of such packing shed or processing plant, and trailers or semitrailers drawn by a properly licensed motor vehicle which are exempt under the provisions of section 46.2-663 et seq. of the Code of Virginia, shall be exempt from the requirements of this section.

(2) "Gross weight," for the purpose of this section, includes the load upon such semitrailer, trailer or separate vehicle.

(3) This section shall not apply to any vehicle being towed for repairs or repossession, or in a bona fide emergency, or being moved by a wrecker when two (2) wheels of the towed vehicle are off the ground.

(Code 1958, § 29-763)

State law reference—Similar provisions, Code of Virginia, § 46.2-1065.

Sec. 25-46. Steering gear.

Every motor vehicle being operated upon a highway shall be equipped with steering gear adequate to ensure the safe control of the vehicle, which gear shall not show signs of weakness or breaking under ordinary conditions. Such steering gear shall conform to the standards adopted by the superintendent pursuant to section 16.1 of the Code of Virginia.

(Code 1958, § 29-675)

State law reference—Similar provisions, Code of Virginia, § 46.2-1065.

Sec. 25-47. Horns, whistles and other warning devices generally.

(1) Every motor vehicle operated upon a highway shall be equipped with a horn in good working order, capable of emitting sound audible under normal conditions over a distance of not less than two hundred (200) feet.

(2) It shall be unlawful for any vehicle to be equipped with or for any person to use upon any vehicle any siren or exhaust, compression or spark plug whistle or horn except as may be authorized in this article. It shall be unlawful for any vehicle to be equipped with or for any person to use any horn or warning device while upon a highway or any way open to public travel that is not of a type that has been approved by the superintendent or for any person at any time to use a horn otherwise than as a reasonable warning, or to make any unnecessary or unreasonably loud or harsh sound by means of a horn or other warning device, except that the vehicles of common carriers or extraordinarily large and heavy vehicles may be equipped with such type of warning device as the superintendent may require or permit.

(3) Notwithstanding the provisions of this section, a siren, bell or supplemental horn may be used on a vehicle as a noise-maker for an alarm system, provided the device is installed so as to prohibit actuation of the system by the driver while the vehicle is in motion.

(Code 1958, §§ 29-766, 29-767)

Cross reference—Provisions of anti-noise ordinance relative to sounding of vehicle signaling devices, § 26-10.

State law reference—Similar provisions, Code of Virginia§§ 46.2-1059, 46.2-1060.

Sec. 25-48. Sirens, exhaust whistles or air horns on emergency vehicles.

Every police vehicle and vehicle used for the purpose of fighting fire and every ambulance or rescue vehicle used for emergency calls shall be equipped with a siren, exhaust whistle or air horn designed to give automatically intermittent signals of a type not prohibited by the superintendent. Publicly owned vehicles used by a state forest warden may also be so equipped.

(Code 1958, § 29-768)

State law reference—Similar provisions, Code of Virginia, § 46.2-1061.

Sec. 25-49. Mirrors.

(1) No person shall operate a motor vehicle upon a highway of this city, which vehicle is not equipped with a mirror so located as to reflect to

the operator a view of the highway for a distance of not less than two hundred (200) feet to the rear of such vehicle.

(2) No motor vehicle registered in this state designed and licensed primarily for passenger vehicular transportation on the public highways, and manufactured for the year 1969 or for subsequent years, shall be operated on the highways of this city, unless equipped with at least one outside and at least one inside rear view mirror meeting the requirements of subsection (1) hereof.
(Code 1958, § 29-769)

State law reference—Similar provisions, Code of Virginia, § 46.2-1082.

Sec. 25-50. Windshield required.

It shall be unlawful for any person to operate upon a street in this city any motor vehicle or reconstructed motor vehicle, other than a motorcycle, registered in this state, which was manufactured, assert bled or reconstructed after July 1, 1970, unless such motor vehicle is equipped with a windshield.

State law reference—Similar provisions, Code of Virginia, § 46.2-1057.

Sec. 25-51. Windshield wipers.

Every permanent windshield on a motor vehicle shall be equipped with a device for cleaning snow, rain, moisture or other matter from the windshield directly in front of the operator. The device shall be so constructed as to be controlled by the operator of the vehicle; provided, that every such device on a vehicle designed or used to carry passengers for compensation or hire or as a public conveyance to transport school children or others shall be of a mechanically or electrically operated type. The device or devices on any motor vehicle manufactured or assembled after January 1, 1943, shall clean both the right and left sides of the windshield and shall be of a mechanically or electrically operated type.
(Code 1958, § 29-771)

State law reference—Similar provisions, Code of Virginia, § 46.2-1055.

Sec. 25-52. Tinting films, signs, decals, and stickers on windshields, etc.; penalties.

(1) Except as otherwise provided in this article or permitted by federal law, it shall be unlawful for any person to operate any motor vehicle on a highway with any sign, poster, colored or tinted film, sun-shading material, or other colored material on the windshield, front or rear side windows, or rear windows of such motor vehicle. This provision, however, shall not apply to any certificate or other paper required by law or permitted by the superintendent of state police to be placed on a motor vehicle's windshield or window.

The size of stickers or decals used by the city in lieu of license plates shall be in compliance with regulations promulgated by the superintendent. Such stickers shall be affixed on the windshield at a location designated by the superintendent of state police.

(2) Notwithstanding the foregoing provisions of this section, whenever a motor vehicle is equipped with a mirror on each side of such vehicle, so located as to reflect to the driver of such vehicle a view of the highway for at least two hundred (200) feet to the rear of such vehicle, any or all of the following shall be lawful:

(a) To drive a motor vehicle equipped with one optically grooved clear plastic right-angle rear view lens attached to one rear window of such motor vehicle, not exceeding eighteen (18) inches in diameter in the case of a circular lens or not exceeding eleven inches by fourteen inches (11″ × 14″) in the case of a rectangular lens, which enables the driver of the motor vehicle to view below the line of sight as viewed through the rear window;

(b) To have affixed to the rear side windows, rear window or windows of a motor vehicle any sticker or stickers, regardless of size; or

(c) To drive a motor vehicle when the driver's clear view of the highway through the rear window or windows is otherwise obstructed.

(3) Except as provided in the Code of Virginia, 1950, as amended, but notwithstanding the foregoing provisions of this section, no sun-shading or tinting film may be applied or affixed to any window of a motor vehicle unless such motor vehicle is equipped with a mirror on each side of such motor vehicle, so located as to reflect to the

driver of the vehicle a view of the highway for at least two hundred (200) feet to the rear of such vehicle, and the sun-shading or tinting film is applied or affixed in accordance with the following:

(a) No sun-shading or tinting films may be applied or affixed to the rear side windows or rear window or windows of any motor vehicle operated on the highways of this city that reduce the total light transmittance of such window to less than thirty-five (35) percent;

(b) No sun-shading or tinting films may be applied or affixed to the front side windows of any motor vehicle operated on the highways of this city that reduce total light transmittance of such window to less than fifty (50) percent;

(c) No sun-shading or tinting films shall be applied or affixed to any window of a motor vehicle that (i) have a reflectance of light exceeding twenty (20) percent or (ii) produce a holographic or prism effect.

Any person who operates a motor vehicle on the highways of this city with sun-shading or tinting films that (i) have a total light transmittance less than that required by subdivisions (a) and (b) of this subsection, (ii) have a reflectance of light exceeding twenty (20) percent, or (iii) produce holographic or prism effects shall be guilty of a traffic infraction but shall not be awarded any demerit points for the violation.

Any person or firm who applies or affixes to the windows of any motor vehicle in the city sun-shading or tinting films that (i) reduce the light transmittance to levels less than that allowed in subdivisions (a) and (b) of this subsection, (ii) have a reflectance of light exceeding twenty (20) percent, or (iii) produce holographic or prism effects shall be guilty of a Class 3 misdemeanor for the first offense and of a Class 2 misdemeanor for any subsequent offense.

(4) The Commonwealth of Virginia, Division of Purchases and Supply, pursuant to the Code of Virginia, 1950, as amended, shall determine the proper standards for equipment or devices used to measure light transmittance through windows of motor vehicles. Law-enforcement officers shall use only such equipment or devices to measure light transmittance through windows that meet the standards established by the division. Such measurements made by law-enforcement officers shall be given a tolerance of minus seven (7) percentage points.

(5) No film or darkening material may be applied on the windshield except to replace the sunshield in the uppermost area as installed by the manufacturer of the vehicle.

(6) Nothing in this section shall prohibit the affixing to the rear window of a motor vehicle of a single sticker no larger than twenty (20) square inches if such sticker is totally contained within the lower five (5) inches of the glass of the rear window, nor shall subsection (2) of this section apply to a motor vehicle to which but one such sticker is so affixed.

(7) Nothing in this section shall prohibit applying to the rear side windows or rear window of any multi-purpose passenger vehicle or pickup truck sun-shading or tinting films that reduce the total light transmittance of such window or windows below thirty-five (35) percent.

(8) As used in this article:

"*Front side windows*" means those windows located adjacent to and forward of the driver's seat.

"*Rear side windows*" means those windows located to the rear of the driver's seat.

"*Rear window*" or "rear windows" means those windows which are located to the rear of the passenger compartment of a motor vehicle and which are approximately parallel to the windshield.

"*Multipurpose passenger vehicle*" means any motor vehicle that is (i) designed to carry no more than ten persons and (ii) constructed either on a truck chassis or with special features for occasional off-road use.

"*Holographic effect*" means a picture or image that may remain constant or change as the viewing angle is changed.

"*Prism effect*" means a visual, iridescent, or rainbow-like effect that separates light into various colored components that may change depending on viewing angle.

(9) Notwithstanding the foregoing provisions of this section, sun-shading material which was applied or installed prior to July 1, 1987, in a manner and on which windows not then in violation of Virginia law, shall continue to be lawful, provided that it can be shown by appropriate receipts that such material was installed prior to July 1, 1987.

(10) Where a person is convicted within one year of a second or subsequent violation of this section involving the operation of the same vehicle having a tinted or smoked windshield, the court, in addition to any other penalty, may order the person so convicted to remove such tinted or smoked windshield from the vehicle.

(11) The provisions of this section shall not apply to law-enforcement vehicles.

(12) The provisions of subdivision (3)(a) of this section shall not apply to sight-seeing carriers as defined in the Code of Virginia, 1950, as amended, and limousine and executive sedan carriers as defined in the Code of Virginia, 1950, as amended.
(Code 1958, § 29-770; Ord. No. 34,600, § 1, 7-14-87; Ord. No. 35,133, § 1, 6-28-88; Ord. No. 40,023, § 1, 6-27-00)

State law reference—Similar provisions, Code of Virginia, § 46.1-291.

Sec. 25-53. Signal devices.

(1) Any motor vehicle, trailer or semitrailer which is so constructed or carries a load in such a manner as to prevent a hand and arm signal required by section 25-164 from being visible both to the front and rear of such motor vehicle, trailer or semitrailer, or any vehicle the driver of which is incapable of giving the required hand and arm signals, shall be equipped with a mechanical or electrical signal device which meets the requirements of this section and is of a type that has been approved by the superintendent; provided, that a tractor truck need not be equipped with mechanical or electrical signal devices on the rear, if it is equipped with double-faced signal lamps mounted on the front fenders or on the sides near the front of the vehicle clearly visible to the rear.

(2) lt shall be unlawful for any person to operate on any highway in the city a motor vehicle registered in this state and manufactured or assembled after January 1, 1955, unless such vehicle is equipped with such a mechanical or electrical signal device on both front and rear.

(3) Subsections (a) and (b) of this section shall not apply to any motorcycle or to motor vehicles, trailers or semitrailers used for agricultural or horticultural purposes which are exempted from annual registration under section 46.1-45 of the Code of Virginia.

(4) Every device intended and used to give a signal of intention to turn a vehicle shall be so constructed and so installed as to give a signal plainly visible, in clear weather and under normal traffic conditions, from a distance of at least one hundred (100) feet to the rear and one hundred (100) feet to the front of the vehicle; provided, that no front signal shall be required on vehicles manufactured or assembled before January 1, 1943. Every such device shall conform to the rules and regulations adopted by the superintendent pursuant to section 46.1-299 of the Code of Virginia.
(Code 1958, §§ 29-774, 29-775)

State law reference—Similar provisions, Code of Virginia, § 46.1-298, 46.1-299.

Sec. 25-54. Exhaust system generally.

(1) No person shall drive and no owner of a motor vehicle shall permit or allow the operation of any vehicle owned by him upon a highway in the city, unless such motor vehicle is equipped with an exhaust system of a type installed as standard factory equipment, or comparable to that designed for use upon the particular vehicle as standard factory equipment, in good working order and in constant operation to prevent excessive or unusual noise, annoying smoke and escape of excessive gas, steam or oil. An exhaust system shall not be deemed to prevent excessive or unusual noise if it permits or allows the escape of

noise in excess of that permitted by the standard factory equipment exhaust system of private passenger motor vehicles or trucks of standard make.

(2) The term "exhaust system," as used in this section, means all the parts of a motor vehicle through which the exhaust passes after leaving the engine block.

(3) Chambered pipes shall not be deemed to be an effective muffling device to prevent excessive or unusual noise as required in subsection (a) of this section.

(Code 1958, § 29-777)

Cross reference—Provisions of anti-noise ordinance relative to exhaust discharges, § 26-11.

State law reference—Similar provisions, Code of Virginia, § 46.1-301.

Sec. 25-55. Certain mufflers and straight exhausts prohibited.

It shall be unlawful for any person to sell or offer for sale a muffler without interior baffle plates or other effective muffling device, or any "gutted muffler," "muffler cutout" or "straight exhaust." It shall be unlawful for any person to operate on the highways of this city a motor vehicle equipped with a "gutted muffler," "muffler cutout" or "straight exhaust."

(Code 1958, § 29-778)

State law reference—Similar provisions, Code of Virginia, § 46.1-302.

Sec. 25-56. Protuberances from tires.

No tire on a vehicle moved on a highway shall have on its periphery any block, stud, flange, cleat or spike or any other protuberance of any material other than rubber which projects beyond the tread of the traction surface of the tire, except that it shall be permissible to use farm machinery having protuberances which will not injure the highway and to use tire chains of reasonable proportions when required for safety because of snow, ice or other conditions tending to cause a vehicle to slide or skid. It shall also be permissible to use upon any vehicle, whose gross weight does not exceed ten thousand (10,000) pounds, tires with studs which project not more than one-sixteenth of an inch beyond the tread of the traction surface of the tire when compressed and which cover not more than three (3) percent of the traction surface of the tire. The use of such studded tires shall be permissible only from October fifteen to April fifteen.

(Code 1958, § 29-772)

State law reference—Similar provisions, Code of Virginia, § 46.1-296.

Sec. 25-57. Special permit for operation of traction engines or tractors with movable tracks.

The director of public works may, in his discretion, issue special permits authorizing the operation upon a highway of traction engines or tractors having movable tracks with transverse corrugations upon the periphery of such movable tracks.

(Code 1958, § 29-773)

State law reference—Authority for above section, Code of Virginia, § 46.1-297.

Sec. 25-58. Truck wheels likely to cause injury to pavement.

It shall be unlawful for any person to operate, or cause or suffer to be operated, upon any public road or street of the city, any motor truck having a wheel so broken or in such a state of disrepair as to cause injury to the pavement of such road or street.

(Code 1958, § 29-781)

Sec. 25-59. Operability of speedometers.

It shall be unlawful for any person to use or have as equipment upon a motor vehicle operated on a highway any speedometer which is not in good working order.

Any person violating this section shall be punished by a fine of not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00) for the first offense and not less than one hundred dollars ($100.00) nor more than one thousand dollars ($1,000.00) for each subsequent offense.

(Ord. No. 34,180, § 1, 10-14-86)

Sec. 25-60. Tire tread depth.

(a) No person shall operate a motor vehicle, trailer, or semi-trailer on any highway in the city if it is equipped with one or more tires which:

(1) When measured in any two (2) adjacent major tread grooves where the tread is thinnest, at three (3) equally spaced intervals around the circumference of the tire and exclusive of "tiebars" by a tread depth gauge calibrated in thirty-seconds-of-an-inch, are

found to have tread depth of less than two (2) thirty-seconds of an inch at such locations; or

(2) When equipped with tread wear indicators, are found to have such indicators in contact with pavement at any two (2) adjacent grooves at three (3) equally-spaced intervals around the circumference of the tire.

(b) No motor vehicle, trailer, or semitrailer shall be issued a safety inspection approval sticker if equipped with any tire whose use is prohibited under the provisions of this section.

(c) This section shall not apply to tires mounted on dual wheels installed on motor vehicles which have seats for more than seven (7) passengers and are (i) operated wholly within a municipality, or (ii) operated by urban and suburban bus lines. For purposes of this section, "urban and suburban bus lines" are defined as bus lines operating over regularly scheduled routes the majority of whose passengers use the buses for traveling one-way distances not exceeding forty (40) miles on the same day between their residence and their place of work, shopping areas, or schools.

(d) The foregoing exemptions shall not apply to buses owned or operated by any public school district, private school, or contract operator of school buses.

(e) The provisions of this section shall not apply to any vehicle not required to be registered or licensed.
(Ord. No. 37,756, § 1, 9-13-94)

Secs. 25-61—25-70. Reserved.

DIVISION 2. LIGHTING EQUIPMENT*

Sec. 25-71. General requirements.

(1) Every vehicle operated or moved upon a highway shall at all times be equipped with such lamps as are in this division required for different classes of vehicles, which lamps shall at all times be capable of being lighted, except as herein otherwise provided. This subsection shall not apply to any vehicle for transporting well-drilling machinery licensed under section 46.1-156 of the Code of Virginia, when operated only between the hours of sunrise and sunset.

(2) No motor vehicle shall be operated upon a highway in the city which is equipped with any lighting device other than those lamps required or permitted in this division or by state law, or required or approved by the superintendent, or required by the federal department of transportation.
(*Code 1958, §§ 29-745, 29-753*)

State law reference—Similar provisions, Code of Virginia, §§ 46.1-259, 46.1-267.

Sec. 25-72. Lamps for vehicles not specifically covered in divisions.

All vehicles or other mobile equipment not required by this division to be equipped with specified lamps shall carry one or more lamps or lanterns capable of projecting a white light to the front and red to the rear, visible in clear weather from a distance of not less than five hundred (500) feet to the front and rear of such vehicles. In lieu of or in addition to such lamps or lanterns, a reflex reflector of a type, size and color approved by the superintendent may be permanently affixed to the rear and front of such vehicle.
(Code 1958, § 29-750)

State law reference—Similar provisions, Code of Virginia, § 46.1-264.

Sec. 25-73. Head lamps generally.

Every motor vehicle other than a motorcycle, road roller, road machinery or tractor used on a highway shall be equipped with at least two (2) head lamps, as approved by the superintendent, at the front of and on opposite sides of the motor vehicle.
(Code 1958, § 29-746)

State law reference—Similar provisions, Code of Virginia, § 46.1-260.

Sec. 25-74. Head lamps on motorcycles.

Every motorcycle shall be equipped with at least one and not more than two (2) head lamps which shall be of a type that has been approved by the superintendent and shall be capable of projecting sufficient light to the front of such motorcycle to

*Cross reference—Lights on vehicles used for sale of ice cream, § 18-165.

render discernible a person or object at a distance of two hundred (200) feet, but shall not project a glaring or dazzling light to persons approaching such motorcycle.
(Code 1958, § 29-747)

State law reference—Similar provisions, Code of Virginia, § 46.1-261.

Sec. 25-75. Rear lamps.

(1) Every motor vehicle, trailer or semitrailer which is being drawn at the end of one or more other vehicles, and every motorcycle shall carry at the rear a lamp capable of exhibiting a red light plainly visible in clear weather from a distance of five hundred (500) feet to the rear of such vehicle. Such rear lamp shall be so constructed and so mounted in its relation to the rear license plate as to illuminate, by a white light, such license plate so that the same may be read from a distance of fifty (50) feet to the rear of such vehicle, or a separate white light shall be so mounted as to illuminate and make visible such rear license plate from a distance of fifty (50) feet to the rear of such vehicle. Such rear light or special white light shall be of a type that has been approved by the superintendent.

(2) In any instance where the rear lamp is to be installed on a boat trailer and the boat extends beyond the end of the trailer or to the end of the trailer, an approved portable light assembly or assemblies may be attached to the exposed rear of the boat, provided such installation complies with the visibility requirements of this section.
(Code 1958, § 29-748)

State law reference—Similar provisions, Code of Virginia, § 46.1-262.

Sec. 25-76. Stop lamps.

Every motor vehicle, trailer or semitrailer, except an antique vehicle not originally equipped with a stop lamp, shall be equipped with at least one stop lamp, of a type approved by the superintendent, which automatically exhibits a red or amber light plainly visible in clear weather from a distance of five hundred (500) feet to the rear

of such vehicle when the foot brake pedal is actuated.

State law reference—Similar provisions, Code of Virginia, § 46.1-262.1.

Sec. 25-77. Dimension or marker lights—Generally.

(1) All motor vehicles, trailers or semi-trailers exceeding seven (7) feet in height or in width or the widest portion of which extends four (4) inches beyond the front fender extremes shall be equipped with lamps mounted at the extreme right and left-hand front top corners of such vehicle, each of which lamps shall be capable of projecting an amber light visible in clear weather for a distance of at least five hundred (500) feet to the front of such vehicle, and shall be equipped with lamps mounted at the extreme right and left-hand rear top corners of such vehicle, each of which lights shall be capable of projecting a red light visible in clear weather for a distance of at least five hundred (500) feet to the rear of such vehicle; provided, however, that any tractor truck need not be equipped with rear red dimension or marker lamps. If the front or rear of such vehicle shall not be the widest portion of such vehicle, the dimension or marker lights required in this section shall be mounted on the widest portions of the vehicle with the amber lights herein required visible from the front as herein required. The lamps herein required shall be of a type that has been approved by the superintendent.

(2) In addition to the lamps required herein, each such vehicle shall be equipped with amber reflectors located on the side thereof, at or near the front. Red reflectors shall be used on the rear of each such vehicle. Such reflectors shall be securely fastened to the vehicle not less than twenty-four (24) inches and not more than sixty (60) inches from the ground, provided that, in the case of a vehicle which is less than twenty-four (24) inches in height, such reflectors shall be securely fastened thereto at the highest point the structure of the vehicle will permit. The reflectors required herein shall be of a type that have been approved by the superintendent.

(3) If any vehicle is so constructed as to make compliance with the requirements of this section impractical, the lamps and reflectors required herein shall be placed on the vehicle in accordance with the superintendent's regulations; provided, however, the requirement of reflectors shall not apply to school buses unless used during the time that lights are required under section 25-85.

(4) If any vehicle required by this section to be equipped with dimension or marker lights has installed on its rear, as close as practicable to the top of the vehicle and as close as practicable to the vertical centerline of the vehicle, three (3) red identification lamps of a type approved by the superintendent, with the lamp centers spaced not less than six (6) inches or more than twelve (12) inches apart, the rear dimension or marker lamps may be mounted at any height, but must indicate as nearly as practicable the extreme width of the vehicle. (Code 1958, § 29-751)

State law reference—Similar provisions, Code of Virginia, § 46.1-265.

Sec. 25-78. Same—Vehicles or loads exceeding thirty-five feet in length.

Whenever any motor vehicle or combination of vehicles whose actual length, including the load thereon, shall exceed thirty-five (35) feet is not subject to the provisions of section 25-77, such vehicle shall, when operated during the hours of darkness, be equipped with reflectors of a type approved by the superintendent. Such reflectors shall be mounted on the widest part of the towed vehicle or the load thereon, so as to be visible from the front and sides of the vehicle.

State law reference—Similar provisions, Code of Virginia, § 46.1-265.1.

Sec. 25-79. Spotlights and ditch lights.

Any motor vehicle or motorcycle may be equipped with not to exceed two (2) spotlights

or two (2) ditch lights which, when lighted, shall be aimed and used so that no portion of the beam will be directed to the left of the center of the highway at any time or more than one hundred (100) feet ahead of the vehicle, and shall be of a type that has been approved by the superintendent. No such spotlights shall be used in conjunction with or as a substitute for required headlights, except in case of emergency. (Code 1958, § 29-752)

State law reference—Similar provisions, Code of Virginia, § 46.1-266.

Sec. 25-80. Flashing, blinking or alternating colored lights.

(1) Only fire apparatus, forest warden vehicles, ambulances, rescue and life saving vehicles and school buses may be equipped with flashing, blinking or alternating red or red and white emergency lights of a type approved by the superintendent. Only law enforcement vehicles may be equipped with flashing, blinking or alternating blue or blue and red combination emergency lights of types approved by the superintendent. Vehicles permitted by this section to be equipped with flashing, blinking or alternating red, red and white, blue, or blue and red emergency lights may be equipped with the means to flash their headlamps when their emergency lights are activated if (i) the headlamps are wired to allow either the upper beam or lower beam to flash, but not both, and (ii) the headlamp system includes a sensor which prevents flashing of headlamps when headlamps are required to be lighted under section 46.1-268 of the Code of Virginia. Provided, however, that a member of any fire department, volunteer fire company or volunteer rescue squad may equip one vehicle owned by the member with no more than two (2) flashing or steady burning red or red and white lights of a type approved by the superintendent, for use by members only in answering emergency calls. Provided further, however, that dealers or businesses engaged in the sale of fire, rescue or police vehicles or ambulances may, for demonstration purposes, equip such vehicles with colored warning lights.

(2) Vehicles used for the principal purpose of towing or servicing disabled vehicles or in constructing, maintaining and repairing highways or utilities on or along public highways, vehicles used for the principal purpose of removing hazardous or polluting substances from state waters and drainage areas on or along public highways, for use only when performing such duties, and hi-rail vehicles may be equipped with flashing, blinking or alternating amber warning lights of a type approved by the superintendent, but such lights on hi-rail vehicles shall be activated only when such vehicles are operated on railroad rails. Vehicles used by individuals for emergency snow removal purposes may also use such amber warning lights during such snow removal operation.

(3) Any person violating any of the provisions of this section shall be guilty of a Class 1 misdemeanor. (Code 1958, § 29-753; Ord. No. 34,118, § 1, 8-19-86)

State law reference—Similar provisions, Code of Virginia, § 46.1-267.

Sec. 25-81. High intensity amber lights required on certain vehicles.

High intensity amber flashing lights, visible for at least five hundred (500) feet, as prescribed by the superintendent, shall be required for use on any vehicle which is engaged in either escorting or towing overdimensional materials, equipment, boats or manufactured housing units by authority of a highway hauling permit issued pursuant to section 46.1-343 of the Code of Virginia. Such lights shall be mounted on the top of the escort and tow vehicles and on the upper rear end of the overdimensional vehicle or load for maximum visibility, front and rear. However, a vehicle operating by authority of a permit issued pursuant to section 46.1-343 of the Code of Virginia shall be deemed to be in compliance with the requirements of this section if it is accompanied by escort vehicles. The provisions of this paragraph shall apply to vehicles or loads which are either more than twelve (12) feet wide or more than seventy-five (75) feet long.

Any person violating the provisions of this section shall be guilty of a Class 1 misdemeanor. (Ord. No. 34,118, § 1, 8-19-86)

Sec. 25-82. Auxiliary lamps on fire-fighting and other emergency vehicles.

Any fire vehicle used exclusively for fire fighting, any ambulance or rescue or life-saving vehicle used for the principal purpose of emergency relief or any wrecker used for the principal purpose of towing disabled vehicles may be equipped with clear auxiliary lamps which shall be used exclusively for lighting emergency scenes. Such lamps shall be of a type permitted by the superintendent and shall not be used in a manner which will tend to blind or interfere with the vision of the operators of approaching vehicles. In no event shall such lamps be lighted while the vehicle is in motion.

State law reference—Similar provisions, Code of Virginia, § 46.1-267.1.

Sec. 25-83. Auxiliary lamps on police vehicles.

(1) Notwithstanding any other provision of this division, any government-owned police vehicle may be equipped on each side with one clear auxiliary lamp of a type approved by the superintendent. Such lamps may be used to light emergency scenes and other areas for the purpose of detecting offenders, making apprehensions of violators of law and in performing such other functions of police duty as are reasonably necessary. Such lamps may be used when the vehicle on which they are mounted is standing or proceeding at a speed not to exceed fifteen (15) miles per hour. Such lamps shall not be used in a manner which will tend to blind or interfere with the vision of the operators of approaching vehicles.

(2) Any police officer may also use spotlights, as authorized in section 25-79, for the purpose and in the manner described herein.

State law reference—Similar provisions, Code of Virginia, § 46.1-267.2.

Sec. 25-84. Miscellaneous permissible lights.

Any motor vehicle may be equipped with no more than two (2) fog lamps, one passing lamp, one driving lamp, two (2) side lamps of not more than six (6) candlepower; interior light of not more than fifteen (15) candlepower; vacant or destination signs and one steady burning, white lamp for the nighttime illumination of exterior advertising, emitting a diffused light of such an intensity as not to project a glaring or dazzling light on vehicles operated as public carriers; and signal lamps. The provision of this section limiting interior lights to no more than fifteen (15) candlepower shall not apply to alternating, blinking, or flashing colored emergency lights mounted inside law enforcement motor vehicles which may otherwise legally be equipped with such colored emergency lights.

Any person violating the provisions of this section shall be guilty of a Class 1 misdemeanor. (Code 1958, § 29-753; Ord. No. 34,118, § 1, 8-19-86)

State law reference—Similar provisions, Code of Virginia, § 46.1-267.

Sec. 25-85. When lights to be lighted; number of lights to be lighted at any time; use of warning lights.

(1) Every vehicle upon a highway within the city shall display lighted headlamps and illuminating devices as required by this section from sunset to sunrise and at any other time when, due to insufficient light or unfavorable atmosphereic conditions, persons or vehicles on the highway are not clearly discernible at a distance of five hundred (500) feet.

(2) Not more than four (4) lamps used to provide general illumination ahead of the vehicle, including at least two (2) headlamps and any other combination of fog lamps, passing lamp, driving lamp or other auxiliary lamp approved by the superintendent of state police shall be lighted at any time. However, this limitation shall not preclude the display of such warning lights as may be authorized in section 46.1-267 of the Code of Virginia, 1950, as amended, nor such lights as may be authorized by the superintendent for purposes of identification, other than warning lights.

(3) Vehicles equipped with warning lights authorized in section 25-80 shall display such lights at all times when engaged in emergen-

cy calls, and if engaged in towing disabled vehicles or in constructing, repairing and maintaining public highways or utilities on or along public highways, such lights shall be displayed during the periods prescribed in subsection (1) of this section. (Code 1958, § 29-754; Ord. No. 34,599, § 1, 7-14-87)

State law reference—Similar provisions, Code of Virginia, § 46.1-268.

Sec. 25-86. Requirements as to single-beam head lamps.

Approved single-beam head lamps shall be aimed in accordance with requirements adopted by the superintendent, so as not to project a glaring or dazzling light to persons approaching such head lamps, and shall be of sufficient intensity to reveal persons and objects at a distance of at least two hundred (200) feet. (Code 1958, § 29-755)

State law reference—Similar provisions, Code of Virginia, § 46.1-269.

Sec. 25-87. Requirements as to multiple-beam head lamps.

Approved multiple-beam head lamps shall be aimed in accordance with requirements adopted by the superintendent, based on recommendations of the Society of Automotive Engineers. An uppermost distribution of light shall be provided of sufficient intensity to reveal persons and objects at least three hundred fifty (350) feet ahead and at least one lower, nonglaring distribution of light shall be provided. All road lighting beams shall be of such intensity as to reveal persons and objects at least one hundred (100) feet ahead. Every new motor vehicle hereafter sold, when operated on a street or highway, shall be equipped with an indicator lamp in good condition which shall indicate to the operator when the uppermost distribution of light is being used. (Code 1958, § 29-756)

State law reference—Similar provisions, Code of Virginia, §§ 46.1-270, 46.1-271.

Sec. 25-88. When dimming headlights required.

(1) Whenever a vehicle is being operated upon a street or highway or a portion thereof which is sufficiently lighted to reveal any person or object upon such way at a distance of three hundred fifty (350) feet ahead, the operator of such vehicle shall use one of the lowermost distributions of light or shall dim the head lamps, if the vehicle has single-beam lamps. Whenever a vehicle approaches an oncoming vehicle within five hundred (500) feet, it shall be the duty of the operator of such vehicle to use one of the lowermost distributions of light so aimed that glaring rays are not projected into the eyes of the oncoming driver or to dim the headlights, if the vehicle has single-beam lamps. Whenever the operator of any motor vehicle approaches from the rear or follows within two hundred (200) feet of another vehicle proceeding in the same direction, such operator shall use the lowermost distributions of light or shall dim the head lamps, if the vehicle has single-beam lamps.

(2) Whenever a vehicle is parked so that the beam from the headlights of such parked vehicle will glare into the eyes of the driver of a vehicle approaching upon a highway, it shall be the duty of the operator of the parked vehicle to dim or low beam such lights so that glaring rays are not projected into the eyes of such approaching driver. (Code 1958, § 29-757)

State law reference—Similar provisions, Code of Virginia, §§ 46.1-272, 46.1-273.

Sec. 25-89. Acetylene lamps on antique motor vehicles.

(1) Antique motor vehicles may be equipped with two (2) acetylene head lamps of approximately equal candlepower when equipped with clear plain glass fronts, bright, six-inch spherical mirrors and standard acetylene five-eighths foot burners, not more and not

less, which project a driving light sufficient to render clearly discernible a person upon the roadway within a distance of two hundred (200) feet, but must not project a glaring or dazzling light into the eyes of approaching drivers.

(2) Vehicles equipped with acetylene lights as hereinbefore provided shall also be equipped with a rear lamp of acetylene type, which when lighted, shall project a red light visible for a distance of three hundred (300) feet to the rear of the vehicle and shall be so constructed as to illuminate, by a white light, the rear license plate of such vehicle so that such plate can be read for a distance of fifty (50) feet from the rear of such vehicle.
(Code 1958, § 29-758)

State law reference— Similar provisions, Code of Virginia, § 46.1-274.

Sec. 25-90. Lights on parked vehicles.

No lights need be displayed upon any vehicle when parked in accordance with the provisions of this chapter.
(Code 1958, § 29-759)

State law reference—Authority for above section, Code of Virginia, § 46.1-276.

Sec. 25-91. Device to cause brake lights to flash in emergencies.

Motor vehicles may be equipped with a braking warning system or device which will cause the vehicle's brake lights to flash when the vehicle is in motion but committed to an emergency or panic stop.

State law reference—Similar provisions, Code of Virginia, § 46.1-299.

Secs. 25-92—25-120. Reserved.

ARTICLE III. VEHICLE SIZE, WEIGHT AND LOAD; COMBINATIONS OF VEHICLES*

Sec. 25-121. Farm machinery and firefighting equipment exempt from certain size limitations.

The limitations upon size of vehicles prescribed in sections 25-122, 25-123, 25-124, 25-126 and 25-127 shall not apply to farm machinery when such farm machinery is temporarily propelled, hauled, transported or moved upon the street by a farm machinery distributor or dealer or fertilizer distributor or by a farmer in the ordinary course of business, nor to fire-fighting equipment of any county, city, town or fire-fighting company or association; provided that any farm tractor in excess of one hundred eight (108) inches in width which is so propelled, hauled, transported or moved upon the street shall be equipped with a safety light of a type approved by the superintendent of state police, which light shall be plainly visible from the rear of such tractor.
(Ord. No. 30,729, § 1, 7-29-80)

State law reference—Similar provisions, Code of Virginia, § 46.1-332.

Sec. 25-122. Maximum width.

No vehicle, including any load thereon, but excluding the mirror required by section 25-49, and any warning device installed on a school bus pursuant to Section 46.2-1090 of the Code of Virginia, 1950, as amended, shall exceed a total outside width as follows:

(1) Passenger bus operated in the City of Norfolk when authorized under Section 46.2-1300 of the Code of Virginia, 1950, as amended—102 inches;

(2) School buses: One hundred (100) inches;

*Editor's note—Section 2 of Ord. No. 30,729, adopted July 29, 1980, repealed §§ 29-782—29-793 of the 1958 Code; said sections had been codified as §§ 25-121—25-123, 25-125—25-132, 25-134 of this volume. The editor has also deleted former § 25-124, which bore no history note, as being superseded by the provisions enacted by § 1 of Ord. No. 30,729, which the editor has codified as new §§ 25-121—25-132.1, 25-134, 25-134.1, 25-138—25-140. Said sections were originally numbered as 29-781.1—29-781.19 of the 1958 Code.

(3) Other vehicles: Ninety-six (96) inches with safety devices not to exceed three (3) inches on each side of the vehicle, excluding rear view mirrors.

(4) Recreational vehicles: One hundred and two (102) inches with safety devices not to exceed three (3) inches on each side of the vehicle, excluding rear view mirrors. For purposes of this section, recreational vehicle means every vehicular-type unit primarily designed as temporary living quarters for recreational, camping, travel or seasonal use, that either has its own motive power or is mounted on, or is towed by another vehicle. The basic entities are: travel trailer, fifth wheel trailer, camping trailer, and motor home.

(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 35,791, § 1, 11-14-89; Ord. No. 37,757, § 1, 9-13-94)

State law reference—Similar provisions, Code of Virginia, § 46.2-1105.

Sec. 25-123. Maximum height; damage to overhead obstructions.

(a) No vehicle unladen or with load shall exceed a height of thirteen (13) feet, six (6) inches.

(b) Nothing contained in this section shall be construed to require either the city, public authorities or railroad companies to provide vertical clearances of overhead bridges or structures in excess of twelve (12) feet six (6) inches, or to make any changes in the vertical clearance of existing overhead bridges or structures crossing streets. The operator or owner of vehicles operating on streets shall be held financially responsible for any damage to overhead bridges or structures that results from collisions therewith.

(c) The operator or owner of any vehicle colliding with an overhead bridge or structure shall notify immediately, either in person or by telephone, the city, the public authority or railroad company owning or maintaining such overhead bridge or structure, or a police officer, of the fact of such collision, and his name, address, operator's or chauffeur's license number, and the registration number of his vehicle. Failure to give such notice immediately, either in person or by telephone, shall constitute a misdemeanor.

(Ord. No. 30,729, § 1, 7-29-80)

State law reference—Similar provisions, Code of Virginia, § 46.1-329.

Sec. 25-124. Maximum length of vehicles—Generally.

(a) No motor vehicle longer than forty (40) feet shall be operated on any street in the City of Norfolk. The actual length of any combination of vehicles coupled together including any load thereon shall not exceed a total of sixty (60) feet. No tolerance shall be allowed that exceeds twelve (12) inches.

The director of public works, however, when good cause is shown, may issue a special permit for combinations either in excess of sixty (60) feet, including any load thereon, or where the object or objects to be carried cannot be moved otherwise. Such permits may also be issued by the director when the total number of otherwise overdimensional loads of modular housing of no more than two (2) units may be reduced by permitting the use of an overlength trailer not exceeding fifty-four (54) feet.

No overall length restrictions, however, shall be imposed on any tractor truck semitrailer combinations drawing one trailer or any tractor truck semitrailer combinations when operated on any interstate or on any federal-aid primary highway as designated by the Commonwealth Transportation Board. No individual semitrailer or trailer being drawn in a tractor truck semitrailer or trailer combination, however, shall exceed twenty-eight and one-half (28.5) feet in length, and no semitrailer being operated in a tractor truck semitrailer combination shall exceed forty-eight (48) feet in length, except when semitrailers have an axle spacing of not more than thirty-seven (37) feet between the rear axle of the tractor truck and the front axle of the semitrailer, such semitrailer shall be allowed not more than fifty-three (53) feet in length.

The length limitations on semitrailers and trailers in the foregoing provisions of this section shall be exclusive of safety and energy conservation de-

vices, steps and handholds for entry and egress, rubber dock guards, flexible fender extensions, mud flaps, refrigeration units and air compressors. Such combinations shall not be denied reasonable access to terminals, facilities for food, fuel, repairs and rest, except as designated, based on safety considerations, by the director of public works. Household goods carriers and any tractor truck semitrailer combination in which the semitrailer has a length of no more than twenty-eight and one-half (28.5) feet which operates generally as part of a tractor truck semitrailer combination shall not be denied reasonable access to points of loading and unloading, except as designated, based on safety considerations, by the director of public works.

(b) Passenger buses longer than thirty-five (35) feet, but not longer than forty (40) feet, may be operated on the streets of the City of Norfolk when authorized pursuant to Section 46.2-1300 of the Code of Virginia, 1950, as amended. Passenger buses may exceed the forty (40) feet limitation when such excess length is caused by the projection of a front or rear safety bumper or both. Such safety bumper shall not cause the length of the bus to exceed the maximum legal limit by more than one foot in the front and one foot in the rear. "Safety bumper" means any device which may be fitted on an existing bumper or which replaces the bumper and is so constructed, treated, or manufactured to absorb energy upon impact.

(c) In an emergency as provided in Section 46.21149 of the Code of Virginia, 1950, as amended, the towing of disabled vehicles which cannot be separated for safety, physical, or mechanical reasons and which exceed length limitations established in Article 16 (Section 46.2-1112 et seq.) of Chapter 46 of the Code of Virginia, 1950, as amended, shall be permissible for the purpose of towing any such vehicle to the nearest facility which can make the necessary repairs but not more than fifty (50) miles from the point such vehicle was disabled.
(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 35,792, § 1, 11-14-89)

State law reference—Similar provisions, Code of Virginia, §§ 46.2.1112, 46.2.1113, 46.2.1153.

Sec. 25-125. Same—Mobile homes or house trailers.

The actual length of any combination of a towing vehicle and any mobile home or house trailer, coupled together, shall not exceed a total length of sixty (60) feet, including coupling.
(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 35,793, § 1, 11-14-89)

State law reference—Similar provisions, Code of Virginia, § 46.2-1115.

Sec. 25-126. Extension of loads beyond front of vehicles.

No vehicle shall carry any load extending more than three (3) feet beyond the front thereof in the City of Norfolk.
(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 35,794, § 1, 11-14-89)

State law reference—Similar provisions, Code of Virginia, § 46.2-1120.

Sec. 25-127. Extension of loads beyond line of fender or body.

(a) No vehicle shall carry any load extending more than six (6) inches beyond the line of the fender or body, provided such load shall not exceed a total outside width as prescribed by section 25-122.

(b) Notwithstanding the provisions of paragraph (a) of this section, it shall be lawful for watercraft carried on vehicles to extend more than six (6) inches beyond the line of the fender or body of such vehicle provided the total width of watercraft and the carrier upon which the same is so carried does not exceed seventy-six (76) inches.
(Ord. No. 30,729, § 1, 7-29-80)

State law reference—Similar provisions, Code of Virginia, § 46.1-334.

Sec. 25-128. Vehicles having more than one trailer, etc., attached thereto.

No motor vehicle shall be driven on any street or roadway while drawing or having attached thereto more than one motor vehicle, trailer, or semitrailer unless such vehicle is being operated under a special permit from the director of public works. This limitation, however, shall not apply between sunrise and sunset to farm trailers or

semitrailers being moved from one farm to another farm owned or operated by the same person within a radius of ten (10) miles. This limitation also shall not apply to a combination of vehicles coupled together by a saddle mount device used to transport motor vehicles in a drive-away service when not more than two (2) saddle mounts are used. Vehicles coupled together by not more than three (3) saddle mounts shall not exceed sixty-five (65) feet when operated on any interstate highway or any federal-aid primary highway as designated by the Commonwealth Transportation Board.

Such combinations shall have reasonable access to terminals and facilities for food, fuel, repairs, and rest as designed by the Commonwealth Transportation Board. Such use shall be in conformity with safety regulations adopted by the Superintendent of State Police.

In an emergency as provided in Section 46.21149 of the Code of Virginia, 1950, as amended, the towing of disabled vehicles which cannot be separated for safety, physical, or mechanical reasons and which exceed length limits established in Article 16 (Section 46.2-1112 et seq.) of Chapter 46 of the Code of Virginia, 1950, as amended, shall be permissible for the purpose of towing any such vehicle to the nearest facility which can make the necessary repairs but not more than fifty (50) miles from the point such vehicle was disabled.
(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 35,795, § 1, 11-14-89)

State law reference—Authority for above section, Code of Virginia, §§ 46.2-1116, 46.2-1153.

Sec. 25-129. Maximum weight of vehicles generally.

(a) For the purposes of this section, the following terms shall have the following meanings, unless the context clearly indicates otherwise:

(1) "Single axle" means an assembly of two (2) or more wheels whose centers are in one transverse vertical plane or may be included between two (2) parallel transverse vertical planes forty (40) inches apart, extending across the full width of the vehicle.

(2) "Tandem axle" means any two (2) or more consecutive axles whose centers are more than forty (40) inches but not more than ninety-six (96) inches apart, and are individually attached to and/or articulated from a common attachment to the vehicle including a connecting mechanism designated to equalize the load between axles.

(3) "Single axle weight" means the total weight transmitted to the street by all wheels whose centers may be included between two (2) parallel transverse vertical planes forty (40) inches apart, extending across the full width of the vehicle.

(4) "Tandem axle weight" means the total weight transmitted to the street or roadway by two (2) or more consecutive axles whose centers may be included between parallel transverse vertical planes spaced more than forty (40) inches and not more than ninety-six (96) inches apart, extending across the full width of the vehicle.

(5) "Group of axles" means any two (2) or more consecutive axles located under a vehicle or combination.

(b) The maximum gross weight and axle weight to be permitted on the streets of the City of Norfolk shall be in accordance with the provisions of this section.

(c) The single axle weight of any vehicle or combination shall not exceed twenty thousand (20,000) pounds, nor shall it exceed six hundred fifty (650) pounds per inch, width of tire, measured in contact with the surface of the street or roadway.

(d) The tandem axle weight of any vehicle or combination shall not exceed thirty-four thousand (34,000) pounds, and no one axle of such tandem unit shall exceed the weight permitted for a single axle. Furthermore, the weight imposed on the street or roadway by two (2) or more consecutive axles, individually attached to the vehicle and spaced not less than forty (40) inches nor more than ninety-six (96) inches apart, shall not exceed thirty-four thousand (34,000) pounds and no one axle of such unit shall exceed the weight permitted for a single axle.

(e) Except as provided in Section 46.2-1128 of the Code of Virginia, 1950, as amended, the gross weight imposed on the street or roadway by a ve-

hicle or combination shall not exceed the maximum weight given for the respective distance between the first and last axle of the vehicle or combination, nor shall any two (2) or more consecutive axles exceed the maximum weight given, when measured longitudinally to the next highest foot as set forth in the following table:

Distance in feet between the extremes of any group of two or more consecutive	*Maximum weight in pounds on any group of axles*				
	2 axles	3 axles	4 axles	5 axles	6 axles
4	34,000				
5	34,000				
6	34,000				
7	34,000				
8	34,000	34,000			
9	39,000	42,500			
10	40,000	43,500			
11		44,000			
12		45,000	50,000		
13		45,000	50,500		
14		46,500	51,500		
15		47,000	52,000		
16		48,000	52,500	58,000	
17		48,500	53,500	58,500	
18		49,500	54,000	59,000	
19		50,000	54,500	60,000	
20		51,000	55,500	60,500	66,000
21		51,500	56,000	61,000	66,500
22		52,500	56,500	61,500	67,000
23		53,000	57,500	62,500	68,000
24		54,000	58,000	63,000	68,500
25		54,500	58,500	63,500	69,000
26		*55,500*	*59,500*	*64,000*	*69,500*
27		56,000	60,000	65,000	70,000
28		57,000	60,500	65,500	71,000
29		57,500	61,500	66,000	71,500
30		58,500	62,000	66,500	71,000
31		59,000	62,500	67,500	72,500
32		60,000	63,500	68,000	73,000
33			64,000	68,500	74,000
34			64,500	69,000	74,500
35			65,500	70,000	75,000
36			66,000	70,500	75,500
37			66,500	71,000	76,000
38			67,500	72,000	77,000
39			68,000	72,500	77,500
40			68,500	71,000	78,000

Distance in feet between the extremes of any group of two or more consecutive	*Maximum weight in pounds on any group of axles*				
	2 axles	3 axles	4 axles	5 axles	6 axles
41			69,500	73,000	78,500
42			70,000	74,000	79,000
43			70,500	75,000	80,000
44			71,500	75,500	
45			72,000	76,000	
46			72,500	76,500	
47			73,500	77,500	
48			74,000	78,000	
49			74,500	78,500	
50			75,500	79,000	
51			76,000	80,000	

(f) No motor vehicle or combination of vehicles shall travel on an Interstate Highway in the Commonwealth of Virginia with (i) a single axle weight in excess of twenty thousand (20,000) pounds, or (ii) a tandem axle weight in excess of thirty-four thousand (34,000) pounds, or (iii) a gross weight, based on axle spacing, greater than that permitted in Section 46.2-1126 of the Code of Virginia, 1950, as amended, or (iv) a gross weight, regardless of axle spacing, in excess of eighty (80,000) pounds, unless otherwise permitted by the proper authority.

(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 35,796, § 1, 11-14-89; Ord. No. 37,758, § 1, 9-13-94)

Cross reference—Vehicles exceeding certain weight prohibited on specific streets, §§ 25-656—25-658.

State law reference—Similar provisions, Code of Virginia, §§ 46.1-1122, 46.1-1127.

Sec. 25-130. Exceptions to section 25-129.

The provisions of section 25-129 shall not apply to a vehicle designed for towing disabled vehicles, when towing such vehicle in an emergency in such manner that a part of the combined weight of the two (2) vehicles rests upon an axle or axles of the towing vehicle, provided the towed and towing vehicles each are within the weight limits prescribed in section 25-129. The provisions of this section shall not be construed to permit the violation of any lawfully established load limit on any bridge. For the purpose of this section, "emergency" shall include towing disabled inoperative vehicles to places designated by owners.

(Ord. No. 30,729, § 1, 7-29-80)

State law reference—Similar provisions, Code of Virginia, § 46.1-339.1.

Sec. 25-131. Weight limits on bridges and culverts.

(a) In order to protect the public safety, the city manager is hereby authorized to establish gross weight limits for bridges and culverts within the City of Norfolk and is hereby authorized to erect signs setting forth such weight limits. Such weight limits shall be established based upon an engineering and traffic study made by the department of public works.

(b) No vehicle shall cross any bridge or culvert within the city if the gross weight of such vehicle is greater than the amount posted for the bridge or culvert as its carrying capacity.

(c) Signs stating the carrying capacity shall be erected and maintained near each end of the bridge or culvert on the approaches to such bridge or culvert. Whenever the weight capacity of any structure on the street is reduced below the weight limit permitted on the street of which it is a part, a sign indicating that there is a restricted struc-

ture must be placed in advance of the last alternate route on the street upon which there is a restricted structure.
(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 35,797, § 1, 11-14-89)

State law reference—Provisions similar to subsections (b) and (c), Code of Virginia, § 46.2-1130.

Sec. 25-131.1. Penalty for violation of sections 25-129 and 25-131; record of conviction, etc., forwarded to department.

Any person violating the provisions of sections 25-129 and 25-131 shall be subject to a civil penalty of twenty-five dollars ($25.00) and a processing fee of twenty dollars ($20.00) in addition to any liquidated damages and weighing fees imposed by Chapter 46.2 of the Code of Virginia, 1950, as amended. Upon collection by the City of Norfolk, civil penalties, processing fees, liquidated damages and weighing fees shall be paid into the treasury of the City of Norfolk and allocated to the funds appropriated by the City of Norfolk for the construction and maintenance of roads under its jurisdiction.

The penalties, damages and fees hereinabove specified shall be in addition to any other liability which may be legally fixed against the owner, operator or other person charged with the weight violation for damage to a highway or bridge attributable to such weight violation.
(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 34,109, § 1, 7-29-86; Ord. No. 35,798, § 1, 11-14-89; Ord. No. 40,837, § 1, 9-24-02)

State law reference—Similar provisions, Code of Virginia, § 46.2-1131.

Sec. 25-132. Special permits for oversize and overweight vehicles—Generally.

(a) The director of public works of the city may, in his discretion, upon application in writing and good cause being shown therefor, issue a special permit in writing authorizing the applicant to operate or move a vehicle, a mobile home, a utility building or mobile crane upon the highways and streets of the city of a size or weight exceeding the maximum specified in this article. The director may, in his discretion, issue an annual permit for oversized and overweight three (3) or more axle vehicles, mobile homes, utility buildings and mobile cranes. Every such permit may designate the route to be traversed and contain any other restrictions or conditions deemed necessary by the director of public works. Upon the issuance of such a permit, the city shall charge and the applicant shall pay to the city a fee as follows:

(1) A single-trip permit fee per vehicle, mobile home, utility building or mobile crane of ninety dollars ($90.00).

(2) An annual permit fee (unlimited trips per vehicle, mobile home or utility building) for oversized and overweight three (3) or more axle vehicles, mobile homes or utility buildings shall be three hundred fifteen dollars ($315.00) per vehicle, mobile home or utility building. The annual permit fee for mobile cranes shall be as follows: the fee shall be three hundred fifteen dollars ($315.00) per crane; provided, however, that such fees shall not be applicable to the city, state, United States of America, or any department, division bureau or agency thereof.

(b) Special permits to operate or move a vehicle upon the streets of the city of a weight exceeding the maximum specified in this article shall be granted without costs where the vehicle is hauling or carrying containerized cargo in a sealed, seagoing container bound to or from a state seaport and has been or will be transported by marine shipment provided the single axle weight does not exceed twenty thousand (20,000) pounds, the tandem axle weight does not exceed thirty-four thousand (34,000) pounds and the gross weight does not exceed seventy-eight thousand (78,000) pounds; and provided the contents of such seagoing container are not changed from the time it is loaded by the consignor or his agents to the time it is delivered to the consignee or his agents. It is further determined and declared that cargo moving in vehicles conforming to specifications shown in this subsection but exceeding axle and gross weight limitations shown in this subsection shall be considered irreducible and eligible for permits under regulations of the state highway and transportation commission.

(c) However, the director of public works, upon application in writing made by the owner or operator of three-axle trucks hauling road construction materials and having a gross weight not exceeding forty-three thousand nine hundred (43,900) pounds, a single axle weight not exceeding twenty thousand (20,000) pounds, and a tandem axle weight not exceeding thirty-four thousand (34,000) pounds, shall issue to such owner or operator, without cost, a permit in writing authorizing the operation of such vehicles upon the streets of the city. No such permit shall designate the route to be traversed nor contain restrictions or conditions not applicable to other vehicles in their general use of the streets.

(d) Further, the director of public works, upon application in writing made by the owner or operator of three-axle vehicles used exclusively for the mixing of concrete in transit or at a project site or for transporting necessary components to produce concrete immediately upon arrival at the project site, and having a gross weight not exceeding sixty thousand (60,000) pounds, a single axle weight not exceeding twenty thousand (20,000) pounds, and a tandem axle weight not exceeding forty thousand (40,000) pounds, shall issue to such owner or operator, without cost, a permit in writing authorizing the operation of such vehicles upon the streets of the city. No such permit shall be issued authorizing the operation of the vehicles enumerated in this subsection for a distance of more than twenty-five (25) miles from a batching plant; however, the said permit shall not designate the route to be traversed nor contain restrictions or conditions not applicable to other vehicles in their general use of the highways. Each vehicle, when loaded according to the provisions of a permit issued under this section, shall be operated at a reduced speed. The reduced speed limit is to be ten (10) miles per hour slower than the legal speed limit in fifty-five (55), forty-five (45) and thirty-five (35) miles per hour speed limit zones.

(e) However, the director of public works, upon application in writing made by the owners or operators of motor vehicles not exceeding the axle and gross weight limitations as set forth in section 25-129 shall issue, without cost, a permit authorizing the operation of such motor vehicles on the streets of the city, to transport items arriving at a state port by ship from overseas points of origin and consigned to an assembly plant in this state, on motor vehicles that do not exceed the height limitation set forth in section 25-123 by more than one and one-half (1½) feet and not exceeding the length limitation as set forth in section 25-124 by more than three (3) feet. The director of public works may designate the routes such permittees must use from the port to the assembly plant.

(f) Every such permit shall be carried in the vehicle to which it refers and shall be open to inspection by any officers.

(g) Vehicles possessing a valid Virginia Department of Transportation Oversize Load Hauling Permit which are traveling north or south on Northampton Boulevard (Va. State Rt. 13) between I-64 and City of Norfolk/Virginia Beach City boundary line shall not be required to obtain a City of Norfolk overweight permit pursuant to Section 25-132 provided that the height of the vehicle is no greater than fourteen (14) feet three (3) inches and that the vehicle travel route is limited to on and off movements from I-64 via Northampton Boulevard to the Norfolk/Virginia Beach City boundary line. City of Norfolk permits shall be required when vehicles exceed the above conditions.

(h) *The City of Norfolk Moving and Hauling Permit Manual,* dated July 1, 1998, or as thereafter amended, is hereby incorporated by reference.

(i) It shall be unlawful for any person to violate any provisions of this section, the terms and conditions of any special permit issued hereunder, or any terms and conditions of *The City of Norfolk Moving and Hauling Permit Manual.* "Person" is defined as any individual, employee, operator, firm, owner, sole proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, or other legal entity. A violation of this section shall constitute a Class 1 misdemeanor.

(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 32,148, § 1, 2-8-83; Ord. No. 33,103, § 1, 9-18-84; Ord.

No. 37,279, § 1, 6-8-93; Ord. No. 38,477, § 1, 7-30-96; Ord. No. 39,189, § 1, 5-26-98; Ord. No. 39,398, § 1, 12-8-98; Ord. No. 39,505, §§ 1, 2, 3-9-99; Ord. No. 43,852, § 1, 5-18-10; Ord. No. 47,229, § 29, 5-22-18, eff. 7-1-18)

State law reference—Similar provisions, Code of Virginia, § 46.1-343.

Sec. 25-132.1. Same—For vehicle hauling Virginia-grown farm produce.

(a) In addition to the permits provided for in section 25-132, the director of public works, upon application in writing made by the owner or operator of a three-axle vehicle used for hauling farm produce grown in this state and having a gross weight not exceeding fifty thousand (50,000) pounds, a single axle weight not exceeding twenty thousand (20,000) pounds, and a tandem axle weight not exceeding thirty-six thousand (36,000) pounds, or any four-axle combination hauling state-grown produce, a tandem axle weight of thirty-six thousand (36,000) pounds and otherwise in conformity with the provisions of section 25-129, shall issue to such owner or operator, without cost, a permit in writing authorizing the operation of such vehicle upon the streets. No such permit shall designate the route to be traversed nor contain restrictions or conditions not applicable to other vehicles in their general use of the streets.

(b) Every such permit shall be carried in the vehicle to which it refers and shall be open to inspection by any officer and it shall be a misdemeanor for any person to violate any of the terms or conditions of such special permit.

(Ord. No. 30,729, § 1, 7-29-80)

State law reference—Similar provisions, Code of Virginia, § 46.1-343.1.

Sec. 25-133. Same—Restrictions as to travel on federal-aid highway.

Notwithstanding the provisions of section 25-132, any permit heretofore or hereafter issued by the director of public works pursuant to such section may be restricted so as to prevent travel on any federal-aid highway, if the continuation of travel on such highway would result in a loss of federal-aid funds. Before any such permit is so restricted, notice in writing must be given to the permittee.

State law reference—Similar provisions, Code of Virginia, § 46.1-343.2.

Sec. 25-134. Weighing vehicles; unloading excess load.

(a) Any officer authorized to enforce the law under this article, having reason to believe that the weight of a vehicle and load is unlawful, is authorized to weigh the same. If the place where the vehicle is stopped is ten (10) miles or less from a permanent weighing station, the officer may, and upon demand of the driver shall, require the vehicle to proceed to such station; if the distance to the nearest permanent weighing station is more than ten (10) miles, such vehicle may be weighed by loadometers. Any operator who fails or refuses to drive his vehicle to such permanent weighing station or upon such scales or loadometers upon the request and direction of the officer so to do shall be guilty of a misdemeanor and upon conviction thereof shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00), which penalty shall be in addition to any other penalties prescribed for exceeding the maximum weight permitted or for any other violation. Should the officer find that the weight of any vehicle and its load is greater than that permitted by this article or that the weight of the load carried in or on such vehicle is greater than that which the vehicle is licensed to carry under the provisions of this article, he may require the driver to unload, at the nearest place where the property unloaded may be stored or transferred to another vehicle, such portion of the load as may be necessary to decrease the gross weight of the vehicle to the maximum therefor permitted by this article. Any property so unloaded shall be stored or cared for by the owner or operator of the overweight vehicle at the risk of such owner or operator. If the driver of an overloaded vehicle is convicted, forfeits bail or purchases an increased license as a result of such weighing, the court in addition to all other penalties shall assess and collect a weighing fee of two dollars ($2.00) from the owner or operator of the vehicle and shall forward such fee to the city treasurer.

(b) In any court or legal proceedings in which any question arises as to the calibration or accuracy of any such scales at permanent weighing stations or loadometers, a certificate, executed and signed under oath by the inspector calibrating or testing such device as to its accuracy as well as to the accuracy of the test weights used in such test, and stating the time of such test, type of test and results of testing, shall be admissible when attested by one such inspector who executed and signed it as evidence of the facts therein stated and the results of such testing.
(Ord. No. 30,729, § 1, 7-29-80)

State law reference—Similar provisions, Code of Virginia, § 46.1-347.

Sec. 25-134.1. Liquidated damages for violation of weight limits; forfeiture of vehicle and cargo.

(a) Upon conviction of any person for violation of any weight limit as provided in this article, the court shall assess liquidated damages. The amount of those damages for each pound of excess weight over the prescribed axle weight limits shall be one cent ($0.01) per pound for an excess weight which does not exceed four thousand (4,000) pounds, ten cents ($0.10) per pound for an excess between four thousand one (4,001) pounds and eight thousand (8,000) pounds, twenty cents ($0.20) per pound for an excess between eight thousand one (8,001) pounds and twelve thousand (12,000) pounds, thirty cents ($0.30) per pound for an excess more than twelve thousand one (12,001) pounds. For each pound of excess weight over the prescribed gross weight limit provided in section 25-129, the amount of those damages shall be one cent ($0.01) per pound for an excess which does not exceed four thousand (4,000) pounds, five cents ($0.05) per pound for an excess between four thousand one (4,001) and eight thousand (8,000) pounds, ten cents ($0.10) per pound for an excess between eight thousand one (8,001) and twelve thousand (12,000) pounds, fifteen cents ($0.15) per pound for an excess more than twelve thousand one (12,001) pounds.

If a person has no prior violation under the motor vehicle weight laws, and the excess weight does not exceed two thousand five hundred (2,500) pounds, the general district court may waive the liquidated damages against such person. Such assessment shall be entered by the court as a judgment for the city, the entry of which shall constitute a lien upon the overweight vehicle. Such sums shall be paid to the city treasurer or collected by the city attorney and forwarded to the city treasurer and allocated to the fund appropriated for the construction and maintenance of city streets.

If the gross weight of the vehicle exceeds lawful limits by at least twenty-five (25) percent but no more than fifty (50) percent, the amount of the liquidated damages shall be two (2) times the amount provided for in the foregoing provisions of this section; if the gross weight of the vehicle exceeds lawful limits by more than fifty (50) percent, the amount of the liquidated damages shall be three (3) times the amount provided for in the foregoing provisions of this section. The provisions of this subsection shall not apply to pickup or panel trucks.

(b) Any officer authorized to make arrests and weigh vehicles under the provisions of this article may for a period of twenty-four (24) hours without a court order and thereafter upon a written order of the court either before or after conviction hold the vehicle involved in the overweight violation, provided the same is not registered with the division of motor vehicles, until the amount assessed, if after conviction or subject to be assessed, if before conviction, together with the cost of holding or storing of the vehicle, be paid, or until a bond by or on behalf of the offending person is given for payment as the court may direct of the amount assessed or to be assessed with surety approved by the court or its clerk.

(c) In the event the amount so assessed is not paid or no bond is given as provided hereinabove, the vehicle in the overweight violation shall be stored in a place of security, as may be designated by the owner or operator of the vehicle. If no place is designated, the officer making the arrest shall designate the place of storage. The owner or operator shall be afforded the right of unload-

ing and removing the cargo from such vehicle. The risk and cost of such storage shall be borne by the owner or operator of such vehicle.

(d) If within sixty (60) days from the time of the conviction for the overweight violation, the offending party does not pay the assessment imposed by this section, together with the cost of storing such vehicle and cargo, if the cargo is not

removed as herein provided, the vehicle and cargo shall be forfeited to the city and sold to satisfy the assessment and cost of storage.

(e) Upon receipt of a copy of the judgment entered for such assessment and notification of the failure of such person to pay the amount assessed, together with the payment of cost of holding such vehicle under this section, the police department of the city may thereafter deny the offending person the right to operate a motor vehicle or vehicles upon the streets of the city until such assessment has been paid.

(f) The charges hereinabove specified shall be in addition to any other liability which may be legally fixed against such owner or operator for damage to a highway or bridge attributable to such weight violation.

(Ord. No. 30,729, § 1, 7-29-80; Ord. No. 37,759, § 1, 9-13-94; Ord. No. 40,843, § 1, 9-24-02)

State law reference—Similar provisions, Code of Virginia, § 46.1-342.

Sec. 25-135. Securing loads generally.

No vehicle shall be operated or moved on any street, highway or other public thoroughfare unless such vehicle is so constructed, covered or secured to prevent any of its contents from dropping, sifting, leaking or otherwise escaping therefrom; provided, however, that sand or any substance for increasing traction during times of snow and ice may be dropped for the purpose of securing traction, or water or other substance may be applied to any street, highway or other public thoroughfare in the cleaning or maintaining of the same by the city.

(Code 1958, § 29-779; Ord. No. 32,468, § 1, 7-26-83)

State law reference—Similar provisions, Code of Virginia, § 46.1-303.

Sec. 25-136. Securing loads which are susceptible to shifting or rolling.

(1) No vehicle which is designed or used for the purpose of hauling logs, poles or lumber, barrels, hogsheads or other materials or containers which, by their very nature, may shift or roll, shall be operated or moved over any highway unless its load is securely fastened by adequate log chains, metal cables, nylon webbing, steel straps or other restraining devices, so as to prevent the shifting or falling of such load from the vehicle; provided, however, that tobacco hogsheads may, in lieu of chains or metal cables, be secured by manila or hemp rope of such strength as to fasten securely the hogshead against shifting, falling or rolling, and in any case of not less than five-eighths inch in diameter.

(2) Nothing in this section shall be construed to release the owner or operator from liability for failure to use reasonable care in securing or fastening such load from shifting or falling.

(Code 1958, § 29-780)

State law reference—Similar provisions, Code of Virginia, § 46.1-304.

Sec. 25-137. Flag or light at end of projecting load.

Whenever the load on any vehicle shall extend more than four (4) feet beyond the rear of the bed or body thereof, there shall be displayed, at the end of such load in such position as to be clearly visible at all times from the rear of such load, a red flag not less than twelve (12) inches, both in length and width, except that, between one-half hour after sunset and one-half hour before sunrise, there shall be displayed, at the end of such load, a red light plainly visible in clear weather at least five hundred (500) feet to the sides and the rear of such vehicle.

(Code 1958, § 29-776)

State law reference—Similar provisions, Code of Virginia, § 46.1-300.

Sec. 25-138. Connection between vehicles—Generally.

The connection between any two (2) vehicles one of which is towing or drawing the other on a street shall consist of a fifth wheel, drawbar or other similar device not to exceed ten (10) feet in length from one vehicle to the other and such two (2) vehicles shall in addition to such drawbar or other similar device be equipped at all times when so operated on the street with an emergency chain.

(Ord. No. 30,729, § 1, 7-29-80)

State law reference—Similar provisions, Code of Virginia, § 46.1-336.

Sec. 25-139. Same—In case of breakdown.

The provisions of section 25-138 shall not apply in case of a bona fide emergency resulting from a mechanical breakdown or an accident when such vehicle is being towed from the scene of the breakdown or accident to the nearest garage or repair shop which can furnish the required service. In any such case such connection may consist solely of a chain rope or cable of not over fifteen (15) feet in length between vehicles; provided that a licensed operator shall be at the controls of the towed vehicle to brake, steer and control the lights thereof.
(Ord. No. 30,729, § 1, 7-29-80)

Sec. 25-140. Towing unlicensed or uninspected motor vehicle.

Nothing in this article shall be construed to prohibit towing an unlicensed motor vehicle or motor vehicle which has not been inspected.
(Ord. No. 30,729, § 1, 7-29-80)

Secs. 25-141—25-150. Reserved.

ARTICLE IV. OPERATION OF VEHICLES GENERALLY*

Sec. 25-151. Age of operator.

No person under the age of sixteen (16) years shall operate any motor vehicle on the streets and alleys of the city; provided, however, that the provisions of this section shall not apply to any person under the age of sixteen (16) years driving upon the streets and alleys of the city with a temporary instruction permit in his immediate possession issued by the commissioner and while he complies with the terms and conditions thereof.
(Code 1958, § 29-13)

State law reference—Age requirements for driver's license, Code of Virginia, §§ 46.2-334, 46.2-335.

Sec. 25-152. Driving while license or privilege to drive suspended or revoked.

(a) Except as provided in Code of Virginia, §§ 46.2-304 and 46.2-357, no resident or nonresident (i) whose driver's license, learner's permit, or privilege to drive a motor vehicle has been suspended or revoked or (ii) who has been directed not to drive by any court or by the commissioner, or (iii) who has been forbidden, as prescribed by operation of any statute of the commonwealth or a substantially similar ordinance of any county, city or town, to operate a motor vehicle in the commonwealth shall thereafter drive any motor vehicle or any self-propelled machinery or equipment on any highway in this city until the period of such suspension or revocation has terminated or the privilege has been reinstated or a restricted license is issued pursuant to subsection (e). A clerk's notice of suspension of license for failure to pay fines and costs given in accordance with Code of Virginia, § 46.2-395 shall be sufficient notice for the purpose of maintaining a conviction under this section. For the purposes of this section, the phrase "motor vehicle or any self-propelled machinery or equipment" shall not include mopeds.

(b) A violation of subsection (a) is a class 1 misdemeanor. A third or subsequent offense occurring within a ten-year period shall include a mandatory minimum term of confinement in jail of ten (10) days. However, the court shall not be required to impose a minimum, mandatory term of confinement in any case where a motor vehicle is operated in violation of this section in a situation of apparent extreme emergency which requires such operation to save life or limb.

(c) Upon a violation of subsection (a), the court shall suspend the person's license, permit, or privilege to drive for the same period for which it had been previously suspended or revoked when the person violated this section. In the event the person has violated subsection (a) by driving during a period of suspension or revocation which was not for a definite period of time, the court shall suspend the person's license, permit or privilege to drive for an additional period not to exceed ninety (90) days, to commence upon the expiration of the previous suspension or revocation or to commence immediately if the previous suspension or revocation has expired.

(d) In addition to any other penalty provided by this section, any motor vehicle administratively impounded or immobilized under the provisions of Code of Virginia, § 46.2-301.1, may, in

*__Cross references—__Operation of vehicles for advertising purposes prohibited on certain streets, § 3-9; operation of vehicles on pedestrian malls, § 31-8 et seq.; local license for drivers of public vehicles, § 34-72 et seq.

the discretion of the court, be impounded or immobilized for an additional period of up to ninety (90) days upon conviction of an offender for driving while his driver's license, learner's permit or privilege to drive a motor vehicle has been suspended or revoked for (i) a violation of sections 25-251, 25-258, or Code of Virginia, §§ 18.2-266, 18.2-272 or 46.2-341.24, or a substantially similar ordinance or law in any other jurisdiction or (ii) driving after adjudication as an habitual offender, where such adjudication was based in whole or in part on an alcohol-related offense, or where such person's license has been administratively suspended under the provisions of Code of Virginia, § 46.2-391.2. However, if, at the time of the violation, the offender was driving a motor vehicle owned by another person, the court shall have no jurisdiction over such motor vehicle but may order the impoundment or immobilization of a motor vehicle owned solely by the offender at the time of arrest. All costs of impoundment or immobilization, including removal or storage expenses, shall be paid by the offender prior to the release of his motor vehicle.

(e) Any person who is otherwise eligible for a restricted license may petition each court that suspended his license pursuant to subsection (c) for authorization for a restricted license, provided that the period of time for which the license was suspended by the court pursuant to subsection (c), if measured from the date of conviction, has expired, even though the suspension itself has not expired. A court may, for good cause shown, authorize the department of motor vehicles to issue a restricted license for any of the purposes set forth in subsection (e) of section 25-257.1 or subsection E of Code of Virginia, § 18.2-271.1. No restricted license shall be issued unless each court that issued a suspension of the person's license pursuant to subsection (c) authorizes the department to issue a restricted license. Any restricted license issued pursuant to this subsection shall be in effect until the expiration of any and all suspensions issued pursuant to subsection (c), except that it shall automatically terminate upon the expiration, cancellation, suspension, or revocation of the person's license or privilege to drive for any other cause. No restricted license issued pursuant to this subsection shall permit a person to operate a commercial motor vehicle as defined in the Commercial Driver's License Act (Code of Virginia, § 46.2-341.1 et seq.). The court shall forward to the commissioner a copy of its authorization entered pursuant to this subsection, which shall specifically enumerate the restrictions imposed and contain such information regarding the person to whom such a license is issued as is reasonably necessary to identify the person. The court shall also provide a copy of its authorization to the person, who may not operate a motor vehicle until receipt from the commissioner of a restricted license. A copy of the restricted license issued by the commissioner shall be carried at all times while operating a motor vehicle.

(f) Any person who operates a motor vehicle or any self-propelled machinery or equipment in violation of the terms of a restricted license issued pursuant to subsection (e) or subsection E of Code of Virginia, § 18.2-271.1, is not guilty of a violation of this section but is guilty of a violation of section 25-258 or Code of Virginia, § 18.2-272.

(Code 1958, § 29-38; Ord. No. 36,508, § 1, 7-16-91; Ord. No. 37,686, § 1, 6-28-94; Ord. No. 40,331, § 1, 5-22-01; Ord. No. 44,133, § 1, 2-8-11)

State law reference—Similar provisions, Code of Virginia, § 46.2.301.

Sec. 25-153. General duty to drive on right side of highways.

Except as otherwise provided by law, upon all highways of sufficient width, the driver of a vehicle shall drive the same upon the right half of the highway, unless it is impracticable to travel on such side of the highway and except when overtaking and passing another vehicle, subject to the limitations applicable to overtaking and passing set forth in this article.

(Code 1958, § 29-51)

State law reference—Similar provisions, Code of Virginia, § 46.2-802.

Sec. 25-154. Duty to keep to right in crossing intersections or railroads.

Except as otherwise provided by law, in crossing an intersection of highways or the intersection of a highway by a railroad right-of-way, the driver of a vehicle shall at all times cause such

vehicle to travel on the right half of the highway, unless such right side is obstructed or impassable; provided, however, that in crossing an intersection of highways, the driver of a vehicle may overtake and pass another vehicle in the intersection, if the intersection is designated and marked as a passing zone by the proper authorities.
(Code 1958, § 29-52)

Cross reference—Railroads, Ch. 35.

State law reference—Similar provisions, Code of Virginia, § 46.2-803.

Sec. 25-155. Driving on highways laned for traffic.

(1) Whenever any highway has been divided into clearly marked lanes for traffic, drivers of vehicles shall obey the regulations set out in this section.

(2) Any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions existing shall be driven in the lane nearest the right-hand edge or curb of the highway, when such lane is available for travel, except when overtaking and passing another vehicle or in preparation for a left turn or as permitted in subsection (5) of this section.

(3) A vehicle shall be driven as nearly as is practicable entirely within a single lane and shall not be moved from such lane until the driver has ascertained that such movement can be made with safety.

(4) Upon a highway which is divided into three (3) lanes, a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle or in preparation for a left turn, or unless such center lane is, at the time, allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted or marked to give notice of such allocation; provided that, official traffic-control devices may be erected directing specified traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction, regardless of the center of the roadway, and drivers of vehicles shall obey the directions of every such device.

(5) Whenever the city has designated right-hand lanes for slow-moving traffic and when such lanes are signposted or marked to give notice of such designation, a vehicle may be driven in any lane allocated to traffic moving in the direction such vehicle is proceeding, but when traveling within such inside lanes, vehicles shall be driven at approximately the speed authorized in such lanes and speed shall not unnecessarily be decreased so as to block, hinder or retard traffic.

(6) Wherever a highway is marked with double traffic lanes consisting of a solid line immediately adjacent to a broken line, no vehicle shall be driven to the left of such line if the solid line is on the right of the broken line, except that it shall be lawful to make a left turn for the purpose of entering or leaving a public, private or commercial road or entrance.

(7) Wherever a highway is marked with double traffic lines consisting of two (2) immediately adjacent solid lines, no vehicle shall be driven to the left of such lines, except that it shall be lawful to make a left turn for the purpose of entering or leaving a public, private or commercial road or entrance.
(Code 1958, § 29-53)

State law reference—Similar provisions, Code of Virginia, § 46.2-804.

Sec. 25-156. Passing parkways or other divisions in center of street.

On all streets divided by parkways, unpaved streetcar rights-of-way or any other division forming the center of the street so divided, vehicles shall pass all such divisions on the right of such divisions, with the division always on the left of the operator of such vehicle. It shall be unlawful for any person to drive a vehicle upon any street so divided with such division upon the right of operator of the vehicle. Two-way traffic on either side of such streets shall not be permitted.
(Code 1958, § 29-393)

Sec. 25-157. Passing vehicles proceeding in opposite directions.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right, each giving to the other, as nearly as possible, one-half of the main-traveled portion of the roadway.
(Code 1958, § 29-54)

State law reference—Similar provisions, Code of Virginia, § 46.2-837.

Sec. 25-158. Passing vehicle proceeding in same direction.

(1) The driver of any vehicle overtaking another vehicle proceeding in the same direction shall pass at least two (2) feet to the left thereof and shall not again drive to the right side of the highway until safely clear of such overtaken vehicle, except as otherwise provided in this article.

(2) The driver of a vehicle shall not drive to the left side of the center line of a highway in overtaking and passing another vehicle proceeding in the same direction, unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be made in safety.

(3) No person operating a truck or tractor and trailer shall pass or attempt to pass any truck or tractor and trailer going in the same direction on an upgrade hill, if such passing will impede the passage of following traffic.

(Code 1958, §§ 29-55, 29-59)

State law reference—Similar provisions, Code of Virginia, §§ 46.2-838, 46.2-843.

Sec. 25-158.5. Passing stopped school buses; penalty.

(1) The driver of a motor vehicle approaching from any direction a clearly marked school bus which is stopped on any highway or school driveway for the purpose of taking on or discharging children, the elderly, or mentally or physically handicapped persons, who, in violation of section 46.2-859 of the Code of Virginia, 1950, as amended, fails to stop and remain stopped until all such persons are clear of the highway or school driveway, shall be subject to a civil penalty of two hundred fifty dollars ($250.00) and any such prosecution shall be instituted and conducted in the same manner as prosecutions for traffic infractions.

(2) A prosecution or proceeding under section 46.2-859 of the Code of Virginia, 1950, as amended, shall be a bar to a prosecution or proceeding under this section for the same act, and a prosecution or proceeding under this section shall be a bar to a prosecution or proceeding under section 46.2-859 of the Code of Virginia, 1950, as amended, for the same act.

(3) In any prosecution for which a summons charging a violation of this section was issued within ten (10) days of the alleged violation, proof that the motor vehicle described in the summons was operated in violation of this section, together with proof that the defendant was at the time of such violation the registered owner of the vehicle, as required by chapter 6 of title 46.2 of the Code of Virginia, 1950, as amended, shall give rise to a rebuttable presumption that such registered owner of the vehicle was the person who operated the vehicle at the place where, and for the time during which, such violation occurred.

(Ord. No. 34,596, § 1, 7-14-87; Ord. No. 38,839, § 1, 7-15-97)

Sec. 25-159. Duties when overtaking vehicle—Warning signal.

The driver of an overtaking motor vehicle, when traveling outside of a business or residence district, shall, when necessary to insure safe passage, give audible warning with his horn or other device before passing or attempting to pass a vehicle proceeding in the same direction.

(Code 1958, § 29-56)

State law reference—Similar provisions, Code of Virginia, § 46.2-840.

Sec. 25-160. Same—On right side.

(1) The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(a) When the vehicle overtaken is making or about to make a left turn, and the driver of such vehicle has given a signal as required;

(b) Upon a street or highway with unobstructed pavement not occupied by parked vehicles of sufficient width for two (2) or more lines of moving vehicles in each direction;

(c) Upon a one-way street, or upon any roadway on which traffic is restricted to one direction of movement, where the roadway is free from obstructions and of sufficient width for two (2) or more lines of moving vehicles.

(2) The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. In no event shall such movement be made by driving off the pavement or main-travelled portion of the roadway.

(Code 1958, § 29-57)

State law reference—Similar provisions, Code of Virginia, § 46.2-841.

Sec. 25-161. Same—Duty of driver of overtaken vehicle.

Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle, on audible signal, and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

(Code 1958, § 29-58)

State law reference—Similar provisions, Code of Virginia, § 46.2-842.

Sec. 25-162. Turning movements generally.

The driver of a vehicle intending to turn at an intersection or other location on any highway, except where such turn is prohibited by any provision of this chapter, shall do so as follows:

(1) *Right turn:* Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

(2) *Left turns on two-way roadways:* At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the center line thereof and by passing to the right of such center line where it enters the intersection and, after entering the intersection, the left turn shall be made so as to leave the intersection to the right of the center line of the roadway being entered. Wherever practicable, the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

(3) *Left turns on other than two-way roadways:* At any intersection where traffic is restricted to one direction on one or more of the roadways, and at any crossover from one roadway of a

divided highway to another roadway thereof on which traffic moves in the opposite direction, the driver of a vehicle intending to turn left at any such intersection or crossover shall approach the intersection or crossover in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle and, after entering the intersection or crossover, the left turn shall be made so as to leave the intersection or crossover, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

(Code 1958, § 29-62)

Cross reference—Turning regulations for specific intersections, §§ 25-647—25-651.

State law reference—Similar provisions, Code of Virginia, § 46.1-215.

Sec. 25-163. U turns.

(1) The driver of a vehicle shall not turn such vehicle so as to proceed in the opposite direction, except at an intersection of highways; provided, however, that no driver shall cause any vehicle to make a turn to proceed in the opposite direction at any intersection where there is a sign or other marking prohibiting such action.

(2) No vehicle shall be turned so as to proceed in the opposite direction upon any curve, or upon the approach to or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from any direction within five hundred (500) feet.

(Code 1958, § 29-61)

Cross reference—U turns prohibited at certain intersections, § 25-651.

State law reference—Similar provisions, Code of Virginia, § 46.1-214.

Sec. 25-164. Signals for starting, stopping or turning.

(1) Every driver who intends to start, stop, turn or partly turn from a direct line shall first see that such movement can be made in safety and, whenever the operation of any other vehicle may be affected by such movement, shall give a signal, plainly visible to the driver of such other vehicle, of his intention to make such movement.

(2) The signal required by this section shall be given by means of the hand and arm or by some mechanical or electrical device approved by the superintendent, in the manner herein specified. Whenever the signal is given by means of the hand and arm, the driver shall indicate his intention to start, stop, turn or partly turn by extending the hand and arm from and beyond the left side of the vehicle, in the manner following:

(a) For a left turn or to pull to the left, the arm shall be extended in a horizontal position straight from and level with the shoulder.

(b) For a right turn or to pull to the right, the arm shall be extended upward.

(c) For slowing down or to stop, the arm shall be extended downward.

Wherever the lawful speed is more than thirty-five (35) miles per hour, such signals shall be given continuously for a distance of at least one hundred (100) feet, and in all other cases at least fifty (50) feet, before slowing down, stopping, turning, partly turning or materially altering the course of the vehicle.

(3) Drivers of vehicles standing or stopped at the curb or edge, before moving such vehicles, shall give signals of their intention to move into traffic, as hereinbefore provided, before turning in the direction in which the vehicle will proceed from the curb.

(4) Drivers having once given a hand, electrical or mechanical device signal must continue the course thus indicated, unless they alter the original signal and take care that drivers of vehicles and pedestrians have seen and are aware of the change.

(5) Drivers receiving a signal from another driver shall keep their vehicles under complete control and shall be able to avoid an accident resulting from a misunderstanding of such signal.

(Code 1958, §§ 29-63—29-67)

State law reference—Similar provisions, Code of Virginia, §§ 46.1-216—46.1-220.

Sec. 25-165. Right-of-way at intersections generally and at traffic circles.

Except as otherwise specifically provided, when two (2) vehicles approach or enter an intersection

at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right. At traffic circles, vehicles already in the circle shall have the right-of-way over vehicles approaching and entering the circle. The driver of any vehicle traveling at an unlawful speed shall forfeit any right-of-way which he might otherwise have under this section.

(Code 1958, § 29-68)

Cross reference—Right-of-way at specific intersections, §§ 25-653—25-655.

State law reference—Similar provisions, Code of Virginia, § 46.1-221.

Sec. 25-166. Right-of-way when turning left.

The driver of a vehicle intending to turn to the left within an intersection or into an alley, private road or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction which is so close as to constitute a hazard; provided, however, that where there is an automatic signal device governing the flow of traffic at any intersection and allowing turns to the left while all other vehicular traffic is required to stop, any vehicle making such turn shall have the right-of-way over all other vehicles approaching the intersection.

(Code 1958, § 29-69)

State law reference—Similar provisions, Code of Virginia, § 46.1-222.

Sec. 25-167. Emerging from private road, driveway, alley or building.

The driver of a vehicle entering a public highway or sidewalk from a private road, driveway, alley or building shall stop immediately before entering such highway or sidewalk and, upon entering such highway or sidewalk, shall yield the right-of-way to all vehicles approaching on such public highway or to all pedestrians or vehicles approaching on such public sidewalk.

(Code 1958, § 29-70)

State law reference—Similar provisions, Code of Virginia, § 46.1-223.

Sec. 25-168. Joining, passing through or interfering with funeral processions.

It shall be unlawful for the driver of any vehicle that is not properly part of a funeral procession to join, pass through or interfere with the passage of any funeral procession under police or sheriff's escort.

(Code 1958, § 29-39; Ord. No. 37,866, § 1, 1-17-85)

State law reference—Right-of-way for funeral processions under police escort, Code of Virginia, § 46.1-224.1.

Sec. 25-169. Duty of drivers upon approach of emergency vehicle.

(1) Upon the approach of any police vehicle, fire department vehicle, rescue vehicle or ambulance, giving audible signal by siren, exhaust whistle or air horn designed to give automatically intermittent signals, and displaying a flashing, blinking or alternating red or blue light, the driver of every other vehicle shall immediately drive the same to a position as near as possible and parallel to the right-hand edge or curb, clear of any intersection of highways, and shall stop and remain in such position, unless otherwise directed by a police or traffic officer, until the police vehicle, fire department vehicle, rescue vehicle or ambulance shall have passed. This provision shall not operate to relieve the driver of a police vehicle, fire department vehicle, rescue vehicle or ambulance from the duty to drive with due regard for the safety of all persons using the highway, nor shall it protect the driver of any such vehicle from the consequences of an arbitrary exercise of such right-of-way.

(2) A violation of this section shall constitute the failure to yield the right-of-way.

(Code 1958, § 29-71; Ord. No. 33,911, § 1, 3-18-86)

State law reference—Similar provisions, Code of Virginia, § 46.1-225.

Sec. 25-170. Driving through safety zone.

The driver of a vehicle shall not, at any time, drive through or over a safety zone.

(Code 1958, § 29-593)

State law reference—Similar provisions, Code of Virginia, § 46.1-242.

Sec. 25-171. Following too closely.

The driver of a motor vehicle shall not follow another motor vehicle, trailer or semitrailer more closely than is reasonable and prudent, having

due regard to the speed of both vehicles and the traffic upon, and conditions of, the highway at the time.
(Code 1958, § 29-60)

State law reference—Similar provisions, Code of Virginia, § 46.1-213.

Sec. 25-172. Following fire apparatus.

It shall be unlawful for the driver of any vehicle, other than one on official business, to follow any fire apparatus traveling in response to a fire alarm at any distance closer than five hundred (500) feet to such apparatus.
(Code 1958, § 28-72)

State law reference—Similar provisions, Code of Virginia, § 46.1-227.

Sec. 25-173. Driving over fire hose.

It shall be unlawful, without the consent of the fire department official in command, for the driver of any vehicle to drive over any unprotected hose of a fire department when laid down for use at any fire or alarm of fire.
(Code 1958, § 29-73)

State law reference—Similar provisions, Code of Virginia, § 46.1-228.

Sec. 25-174. Riding or driving on sidewalks generally.

Except as provided in section 25-175, if any person rides or drives any vehicle, including a motorcycle, on the sidewalks of the city, he shall be guilty of a traffic infraction and, upon conviction, shall be fined not less than five dollars ($5.00) nor more than twenty-five dollars.
(Code 1958, § 29-41)

State law reference—Similar provisions, Code of Virginia, § 46.1-229.

Sec. 25-175. Crossing sidewalks and gutters at permanent driveways; permits for temporary crossings.

Except as otherwise specifically provided, no person shall drive or back any horse, cart, carriage, automobile or other vehicle on the footpath or sidewalk of any street, paved or unimproved, nor across any gutter, except where permanent driveways have been constructed for this purpose, and except when permits have been issued by the director of public works for temporary use of the sidewalk for such purpose, under such conditions and regulations as he may prescribe. No such permit shall be issued for a period of more than sixty (60) days.
(Code 1958, § 29-42)

Sec. 25-176. Duty of drivers to obey railroad warning signals.

It shall be unlawful for any person driving a vehicle to fail to obey a clearly visible or audible crossing signal at a highway and railway grade crossing, which signal gives warning of the immediate approach of a railway train.
(Code 1958, § 29-594)

Cross reference—Railroads, Ch. 35.

State law reference—Similar provisions, Code of Virginia, § 46.1-243.

Sec. 25-177. Operating and riding motorcycles; sale and operation of mopeds; penalty.

(a) A person operating a motorcycle shall ride only upon the permanent and regular seat attached to the motorcycle, and such operator shall not carry any other person, and no other person shall ride, on a motorcycle unless such motorcycle is designed to carry more than one person, in which event a passenger may ride upon the permanent and regular seat, if designed for two (2) persons, or upon another seat firmly attached to the rear or side of the seat for the operator.

(b) Any dealer who sells at retail any moped shall affix to any such moped, or verify that there is affixed, a permanent decal or sticker which states, (i) that the operation of mopeds on the highways and public vehicular areas by persons under the age of sixteen (16) is prohibited by Virginia law; (ii) the maximum horsepower of the moped: and (iii) the maximum speed at which the moped may be ridden.

(c) Any dealer who sells any such moped which does not have affixed thereto such a permanent decal or sticker or who sells a motorcycle with such a sticker or decal attached thereto indicating that its motor is rated at no

more than two (2) brake horsepower, producing only ordinary speeds up to a maximum of thirty (30) miles per hour, shall be guilty of a Class 1 misdemeanor.

(Code 1958, § 29-40; Ord. No. 34,594, § 1, 7-14-87; Ord. No. 37,867, § 1, 1-17-95)

State law reference—Similar provisions, Code of Virginia, § 46.1-172.

Sec. 25-178. Occupants of front seat of motor vehicles required to use safety lap belts and shoulder harnesses; penalty.

(a) Each person at least sixteen (16) years of age and occupying the front seat of a motor vehicle equipped or required by the provisions of this section to be equipped with a safety belt system, consisting of lap belts, shoulder harnesses, combinations thereof or similar devices, shall wear the appropriate safety belt system at all times while such motor vehicle is in motion on any public highway, except that a child under the age of four.(4) years shall be protected as required by the provisions of article 9.1 (section 46.1-314.2 et seq.) of chapter 4 of title 46.1 of the Code of Virginia, 1950, as amended.

(b) Each driver of a motor vehicle equipped or required by the provisions of this section to be equipped with a safety belt system who is transporting a child at least four (4) years of age, but less than sixteen (16) years of age, in the front seat of such motor vehicle shall cause such child to wear the appropriate safety belt system.

(c) This section shall not apply to:

(1) Any person for whom a licensed physician determines that the use of such safety belt system would be impractical by reason of such person's physical condition or other medical reason, provided the person so exempted carries on this person or in the vehicle a signed written statement of the physician identifying the exempted person and stating the grounds for the exemption; or

(2) Any law enforcement officer transporting persons in custody or traveling in circumstances which render the wearing of such safety belt system impractical; or

(3) Any person while operating a motor vehicle and performing the duties of a rural mail carrier for the United States Postal Service; or

(4) Any person operating a motor vehicle and performing the duties of a rural newspaper route carrier, newspaper bundle hauler or newspaper rack carrier, or drivers of taxicabs; or

(5) Personnel of commercial or municipal vehicles while actually engaged in the collection or delivery of goods or services, including but not limited to solid waste, where such collection or delivery requires the personnel to exit and enter the cab of the vehicle with such frequency and regularity as to render the use of safety belt systems impractical and the safety benefits derived therefrom insignificant. Such personnel shall resume the use of safety belt systems when actual collection or delivery has ceased or when the vehicle is in transit to or from a point of final disposition or disposal, including but not limited to solid waste facilities, terminals, or other locations where the vehicle may be principally garaged; or

(6) Any person operating a motor vehicle and performing the duties of a utility meter reader; or

(7) Police or sheriff department personnel operating motor vehicles to enforce laws governing motor vehicle parking.

(d) Any person who violates this section shall be subject to a civil penalty of twenty-five dollars ($25.00), to be paid into the state treasury and credited to the Literary Fund. No assignment of points shall be made under the Virginia Driver Improvement Act (Code of Virginia, § 46.2-489 et seq., as amended) and no court costs shall be assessed for violations of this section.

(e) A violation of this section shall not constitute negligence, be considered in mitigation of damages of whatever nature, be admissible in evidence or be the subject of comment by counsel in any action for the recovery of damages arising out of the operation, ownership or

maintenance of a motor vehicle, nor shall anything in this section change any existing law, rule or procedure pertaining to any such civil action.

(f) A violation of this section may be charged on the uniform traffic summons form.

(g) No citation for a violation of this section shall be issued unless the officer issuing such citation has cause to stop or arrest the driver of such motor vehicle for the violation of some other provision of this Code relating to the operation, ownership or maintenance of a motor vehicle or any criminal statute.
(Ord. No. 34,595, § 1, 7-14-87; Ord. No. 35,132, § 1, 6-28-88)

Sec. 25-179. Blocking intersections and pedestrian crosswalks.

No operator of a vehicle shall enter into an intersection or a marked crosswalk unless there is sufficient space beyond such intersection or crosswalk in the direction in which such vehicle is proceeding to accommodate the vehicle without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal or device indication to proceed. A violation of this section shall constitute a traffic infraction subject to a fine of two hundred fifty dollars ($250.00).
(Ord. No. 49,748, § 1, 9-24-24)

Sec. 25-180. Seizure and disposition of all-terrain vehicles and off-road motorcycles.

(a) Any unlawfully operated all-terrain vehicle or off-road motorcycle operated on a highway or sidewalk within the City of Norfolk may be seized and impounded under the direction of a police officer or other person authorized to enforce the provisions of this article (a person other than a police officer means one authorized under the law). The person seizing the all-terrain vehicle or off-road motorcycle pursuant to this section shall immediately make a written report thereof to the police department and to the person in charge of the impound location setting forth the date, time, and place of, and the reason for, such seizure, and a description of the vehicle including the serial or vehicle identification number if one exists.

(b) Notwithstanding any provision to the contrary, upon final adjudication finding the unlawful operation of the motor vehicle on a highway or sidewalk within the City of Norfolk, an all-terrain vehicle or off-road motorcycle seized under the authority granted by this section may be disposed of by the city through lawful means including destruction or sale at public auction.

(c) Prior to disposal of the vehicle, the city shall make a reasonable effort to determine if the vehicle was reported as stolen at the time of seizure. Such efforts may include checking (i) the police department's own records, and (ii) the records of a nationally recognized crime database. If the city determines that the vehicle had been reported as stolen at the time of seizure, a notice of seizure will be sent to the identified owner provided the owner was not also the driver of the vehicle at the time of seizure. The notice of seizure shall be sent by registered or certified mail, return receipt requested. The notice shall describe the vehicle, including if available the year, make, model, and serial or vehicle identification number, and set forth the location where the vehicle is being held. The notice shall inform the owner of their right to redeem the vehicle subject to proof of ownership and payment of costs of towing and impoundment, and notify the owner that unredeemed vehicles may be disposed of by the city within a time certain identified in the notice of seizure.

(d) For the purposes of this section, the following definitions apply. The terms *"all-terrain vehicle"* and *"off-road motorcycle"* shall have the meaning set forth within Virginia Code § 46.2-100. The terms *"motor vehicle"* or *"vehicle"* shall mean all-terrain vehicles and off-road motorcycles.
(Ord. No. 49,843, § 1, 1-28-25)

Secs. 25-181—25-190. Reserved.

ARTICLE V. SIGNS, SIGNALS AND MARKINGS GENERALLY*

Sec. 25-191. Required obedience.

The driver of a motor vehicle, trailer or semitrailer shall obey and comply with the requirements of road signs, signals, markings or lights erected upon the authority of the state highway commission or the city authorities, and the failure of such driver to so comply shall constitute a traffic infraction.

(Code 1958, § 29-25; Ord. No. 31,771, § 1, 6-15-82; Ord. No. 42,720, § 1, 6-26-07)

State law reference—Similar provisions, Code of Virginia, § 46.2.830.

Sec. 25-192. Signals by lights or semaphores—Legend.

Signals by lights or semaphores shall be as follows:

(1) Red indicates that traffic then moving shall stop and remain stopped as long as the red signal is shown, except in the direction indicated by a lighted green arrow; provided, however, that, except where a sign is placed prohibiting turns on red, vehicular traffic facing a steady red signal may, after coming to a full stop, cautiously enter the intersection to make a right turn, or to make a left turn, if such left turn is made from a highway which allows for traffic in but one direction into another highway which allows for traffic in but one direction and after making such left turn the turning traffic will be going in that direction. Such turning traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic using the intersection.

(2) Green indicates the traffic shall then move in the direction of the signal and remain in motion as long as the green signal is given, except that such traffic shall yield to other vehicles and pedestrians lawfully within the intersection.

(3) Amber indicates that a change is about to be made in the direction of the moving traffic. When the amber signal is shown, traffic which has not already entered the intersection, including the crosswalks, shall stop, if it is not reasonably safe to continue, but that traffic which has already entered the intersection shall continue to move until the intersection has been entirely cleared. The amber signal is a warning that the red signal is imminent.

(4) The use of a flashing red light indicates that traffic shall stop before entering an intersection, and the use of a flashing amber light indicates that traffic may proceed through the intersection or past such signal with reasonable care under the circumstances.

(Code 1958, § 29-24)

Cross reference—Right turn on red signal prohibited at certain intersections, § 25-649.

State law reference—Similar provisions, Code of Virginia, §§ 46.2-833—46.2-836.

Sec. 25-193. Same—Precedence of signals given by police officers or school crossing guards.

Officers of the law and uniformed school crossing guards may assume control of traffic otherwise controlled by lights or semaphores and, in such event, signals by such officers and uniformed crossing guards shall take precedence over such lights or semaphores.

(Code 1958, § 29-24)

State law reference—Similar provisions, Code of Virginia, §§ 46.2-833—46.2-836.

Sec. 25-194. Same—Activation by members of fire department or rescue squad.

Members of any fire department or any rescue squad, when on duty, may activate electric traffic-control signal, when such control signals are

*__State law reference—__Authority of city to erect appropriate traffic signs and markers and necessity therefor, Code of Virginia, § 46.2-1300.

specifically authorized by the state highway and transportation commissioner or the city council.
(Code 1958, § 29-24)

State law reference—Similar provisions, Code of Virginia, §§ 46.2-833—46.2-836.

Sec. 25-195. Unauthorized signs, signals, etc.

(1) No unauthorized person shall erect or maintain upon any street or highway any warning or direction sign, marker, signal or light in imitation of any official sign, marker, signal or light erected under the provisions of this chapter, and no person shall erect or maintain upon any street or highway any traffic or highway sign or signal bearing thereon any commercial advertising. Nothing in this section shall be construed to prohibit the erection or maintenance of signs, markers or signals bearing thereon the name of an organization authorized to erect the same by the state highway commission or the city council.

(2) This section shall not be construed to prohibit the erection, by contractors or public utility companies, of temporary signs approved by the state highway department warning motorists that work is in progress upon the street or highway or adjacent thereto.
(Code 1958, § 29-26)

State law reference—Similar provisions, Code of Virginia, § 46.2-831.

Sec. 25-196. Traffic light signal photo-monitoring systems.

(a) The city manager is hereby authorized to establish a traffic signal enforcement program and to impose monetary liability on the operator of a motor vehicle for failure to comply with traffic light signals in accordance with the provisions of Code of Virginia, § 15.2-968.1. The city manager shall cause the installation and operation of traffic light signal photo-monitoring systems at no more than one intersection for every ten thousand (10,000) residents within the city at any one time.

(b) The operator of a vehicle shall be liable for a monetary penalty imposed pursuant to this section if such vehicle is found, as evidenced by information obtained from a traffic light signal violation monitoring system, to have failed to comply with a traffic light signal within the city.

(c) Proof of a violation of this section shall be evidenced by information obtained from a traffic light signal violation monitoring system authorized pursuant to this section. A certificate, sworn to or affirmed by a law-enforcement officer employed by the city authorized to impose penalties pursuant to this section, or a facsimile thereof, based upon inspection of photographs, microphotographs, videotape, or other recorded images produced by a traffic light signal violation monitoring system, shall be prima facie evidence of the facts contained therein. Any photographs, microphotographs, videotape, or other recorded images evidencing such a violation shall be available for inspection in any proceeding to adjudicate the

liability for such violation pursuant to this section adopted pursuant to Code of Virginia § 15.2-968.1.

(d) In the prosecution for a violation of this section as provided in this section, prima facie evidence that the vehicle described in the summons issued pursuant to this section was operated in violation of this section, together with proof that the defendant was at the time of such violation the owner, lessee, or renter of the vehicle, shall constitute in evidence a rebuttable presumption that such owner, lessee, or renter of the vehicle was the person who committed the violation. Such presumption shall be rebutted if the owner, lessee, or renter of the vehicle:

(1) Files an affidavit by regular mail with the clerk of the Norfolk General District Court that he was not the operator of the vehicle at the time of the alleged violation; or

(2) Testifies in open court under oath that he was not the operator of the vehicle at the time of the alleged violation.

Such presumption shall also be rebutted if a certified copy of a police report, showing that the vehicle had been reported to the police as stolen prior to the time of the alleged violation of this section, is presented, prior to the return date established on the summons issued pursuant to this section, to the court adjudicating the alleged violation.

(e) For purposes of this section, "owner" means the registered owner of such vehicle on record with the Department of Motor Vehicles. For purposes of this section, "traffic light signal violation monitoring system" means a vehicle sensor installed to work in conjunction with a traffic light that automatically produces two (2) or more photographs, two (2) or more microphotographs, video, or other recorded images of each vehicle at the time it is used or operated in violation of Code of Virginia, §§ 46.2-833, 46.2-835 and 46.2-836, or a substantially similar ordinance or law in any other jurisdiction. For each such vehicle, at least one recorded image shall be of the vehicle before it has illegally entered the intersection, and at least one recorded image shall be of the same vehicle after it has illegally entered that intersection.

(f) Imposition of a penalty pursuant to this section shall not be deemed a conviction as an operator and shall not be made part of the operating record of the person upon whom such liability is imposed, nor shall it be used for insurance purposes in the provision of motor vehicle insurance coverage. No monetary penalty imposed under this section shall exceed the maximum permitted by Code of Virginia § 15.2-968.1 at the time of conviction hereunder, nor shall it include court costs.

(g) A summons for a violation of this section may be executed pursuant to the provisions of Code of Virginia, § 19.2-76.2. Notwithstanding the provisions of Code of Virginia, § 19.2-76, a summons for a violation of this section may be executed by mailing by first class mail a copy thereof to the owner, lessee, or renter of the vehicle. In the case of a vehicle owner, the copy shall be mailed to the address contained in the records of the Department of Motor Vehicles; in the case of a vehicle lessee or renter, the copy shall be mailed to the address contained in the records of the lessor or renter. In addition to the summons, every such mailing shall include a notice of the following:

(1) The summoned person's ability to rebut the presumption that he was the operator of the vehicle at the time of the alleged violation through the filing of an affidavit as provided in subsection (d);

(2) Instructions for filing such affidavit, including the address to which the affidavit is to be sent.

If the summoned person fails to appear on the date of return set out in the summons mailed pursuant to this section, the summons shall be executed pursuant to the provisions of Code of Virginia, § 19.2-76.3. No proceedings for contempt or arrest of a person summoned by mailing shall be instituted for failure to appear on the return date of the summons. Any summons executed for a violation of this section shall provide to the person summoned at least thirty (30) business days from the mailing of the summons to inspect information collected by a traffic light signal violation monitoring system in connection with the violation.

(h) Information collected by a traffic light signal violation monitoring system installed and operated pursuant to subsection (a) shall be limited exclusively to that information that is necessary for the enforcement of traffic light violations. On behalf of the city, a private entity that operates a traffic light signal violation monitoring system may enter into an agreement with the Department of Motor Vehicles, in accordance with the provisions of Code of Virginia, § 46.2-208(B)(21), to obtain vehicle owner information regarding the registered owners of vehicles that fail to comply with a traffic light signal. Information provided to the operator of a traffic light signal violation monitoring system shall be protected in a database with security comparable to that of the Department of Motor Vehicles' system, and used only for enforcement against individuals who violate the provisions of this section. Notwithstanding any other provision of law, all photographs, microphotographs, electronic images, or other personal information collected by a traffic light signal violation monitoring system shall be used exclusively for enforcing traffic light violations and shall not:

(1) Be open to the public;

(2) Be sold or used for sales, solicitation or marketing purposes;

(3) Be disclosed to any other entity except as may be necessary for the enforcement of a traffic light violation or to a vehicle owner or operator as part of a challenge to the violation; or

(4) Be used in a court in a pending action or proceeding unless the action or proceeding relates to a violation of Code of Virginia, §§ 46.2-833, 46.2-835, 46.2-836, or a substantially similar ordinance or law in any other jurisdiction, or requested upon order from a court of competent jurisdiction.

Information collected under this section pertaining to a specific violation shall be purged and not retained later than sixty (60) days after the collection of any civil penalties. If a locality does not execute a summons for a violation of this section within ten (10) business days, all information collected pertaining to that suspected violation shall be purged within two (2) business days. Any locality operating a traffic light signal violation monitoring system shall annually certify compliance with this section and make all records pertaining to such system available for inspection and audit by the Commissioner of Highways or the Commissioner of the Department of Motor Vehicles or his designee. Any person who discloses personal information in violation of the provisions of this subsection shall be subject to a civil penalty of one thousand dollars ($1,000.00) per disclosure. Any unauthorized use or disclosure of such personal information shall be grounds for termination of the agreement between the Department of Motor Vehicles and the private entity.

(i) A private entity may enter into an agreement with the city to be compensated for providing the traffic light signal violation monitoring system or equipment, and all related support services, to include consulting, operations and administration. However, only a law-enforcement officer employed by the city may swear to or affirm the certificate required by subsection (c). The city shall not enter into an agreement for compensation based on the number of violations or monetary penalties imposed.

(j) When selecting potential intersections for the traffic light signal violation monitoring system, the city manager shall consider factors such as:

(1) The accident rate for the intersection;

(2) The rate of red light violations occurring at the intersection (number of violations per number of vehicles);

(3) The difficulty experienced by law-enforcement officers in patrol cars or on foot in apprehending violators; and

(4) The ability of law-enforcement officers to apprehend violators safely within a reasonable distance from the violation.

The city manager may consider the risk to pedestrians as a factor as well. The city manager shall submit a list of intersections to the Virginia Department of Transportation for final approval.

(k) Before the implementation of a traffic light signal violation monitoring system at an intersection, the city manager shall complete an engineering safety analysis that addresses signal timing and other location-specific safety features. The length of the yellow phase shall be established based on the recommended methodology of the Institute of Transportation Engineers. All traffic light signal violation monitoring systems shall provide a minimum 0.5-second grace period between the time the signal turns red and the time the first violation is recorded. If recommended by the engineering safety analysis, the city shall make reasonable location-specific safety improvements, including signs and pavement markings.

(l) The city manager shall cause the evaluation of the traffic light signal violation monitoring system on a monthly basis to ensure all cameras and traffic signals are functioning properly. Evaluation results shall be made available to the public.

(m) The city manager shall cause the placement of conspicuous signs within five hundred (500) feet of the intersection approach at which a traffic light signal violation monitoring system is used to enforce traffic light signals. There shall be a rebuttable presumption that such signs were in place at the time of the commission of the traffic light signal violation.

(n) Prior to or coincident with the implementation or expansion of a traffic light signal violation monitoring system, the city manager shall cause the implementation of a public awareness program, advising the public that the city is implementing or expanding a traffic light signal violation monitoring system.

(o) Notwithstanding any other provision of this section, if a vehicle depicted in images recorded by a traffic light signal photo-monitoring system is owned, leased, or rented by a county, city, or town, then the city may access and use the recorded images and associated information for employee disciplinary purposes.
(Ord. No. 4,423, § 1, 10-25-11)

Secs. 25-197—25-216. Reserved.

ARTICLE VI. RECKLESS DRIVING; SPEED

Sec. 25-217. General rule as to reckless driving.

Irrespective of the maximum speeds provided in this article, any person who drives a vehicle on any street or highway recklessly or at a speed or in a manner so as to endanger the life, limb, or property of any person shall be guilty of reckless driving; provided, that the driving of a motor vehicle at a speed twenty (20) or more miles per hour in excess of any speed limit provision of this article may constitute grounds for prosecution of reckless driving under this section.
(Code 1958, § 29-28; Ord. No. 35,863, § 1, 1-16-90)

State law reference—Similar provisions, Code of Virginia, § 46.2-852.

Sec. 25-218. Specific instances of reckless driving—Generally.

A person shall be guilty of reckless driving who shall:

(1) Drive a vehicle when not under proper control or which has inadequate or improperly adjusted brakes upon any street or highway of this city;

(2) While driving a vehicle, overtake and pass another vehicle proceeding in the same direction, upon or approaching the crest of a grade or upon or approaching a curve in the street or highway, where the driver's view along the street or highway is obstructed, except where the overtaking vehicle is being operated on a street or highway having two (2) or more designated lanes of roadway for each direction of travel or on a designated one-way street or highway;

(3) Drive a vehicle when it is so loaded, or when there are in the front seat such number of persons, as to obstruct the view of the driver to the front or sides of the vehicle or to interfere with the driver's control over the driving mechanism of the vehicle;

(4) Pass or attempt to pass two (2) other vehicles abreast, moving in the same direction, except on streets or highways having separate roadways of three (3) or more lanes for each direction of travel, or on designated one-way streets or highways;

(5) Drive any motor vehicle, including any motorcycle, so as to be in and parallel to another vehicle in a lane designed for one vehicle, or drive any motor vehicle, including any motorcycle, so as to travel parallel to any other vehicle traveling in a lane designed for one vehicle; provided, however, this subsection shall not apply to any validly authorized parade, motorcade or motorcycle escort;

(6) Overtake or pass any other vehicle proceeding in the same direction at any steam, diesel or electric railway grade crossing or at any intersection of streets or highways, unless such vehicles are being operated on a street or highway having two (2) or more designated lanes of roadway for each direction of travel or on a designated one-way street or highway, or while pedestrians are passing or about to pass in front of either of such vehicles, unless permitted so to do by a traffic light or police officer;

(7) Reserved;

(8) Fail to give adequate and timely signals of intention to turn, partly turn, slow down or stop, as required by section 25-164;

(9) Exceed a reasonable speed under the circumstances and traffic conditions existing at the time, regardless of any posted speed limit;

(10) Drive a motor vehicle upon the highways of this city (i) at a speed of twenty (20) miles per hour or more in excess of the applicable maximum speed limit where the applicable speed limit is thirty (30) miles per hour or less, (ii) at a speed of sixty (60) miles per hour or more where the applicable maximum speed limit is thirty-five (35) miles per hour, (iii) at a speed of twenty (20) miles per hour or more in excess of the applicable maximum speed limits where the applicable maximum speed limit is forty (40) miles per hour or more, or (iv) in excess of eighty (80) miles per hour regardless of the applicable maximum speed limit.

(11) Fail to bring his vehicle to a stop immediately before entering a street or highway from a side road when there is traffic approaching upon such street or highway within five hundred (500) feet of such point of entrance, unless a "Yield Right-of-Way" sign is posted; or where such sign is posted, fail, upon entering such street or highway, to yield the right-of-way to the driver of a vehicle approaching on such street or highway from either direction; or

(12) Drive or operate any automobile or other motor vehicle upon any driveway or premises of a church or school, or of any recreational facilities or of any business property open to the public, or on the premises of any industrial establishment providing parking space for customers, patrons or employees, or upon any street or highway under construction or not yet open to the public, recklessly or at a speed or in a manner so as to endanger the life, limb or property of any person.

(Code 1958, § 29-29; Ord. No. 34,596, § 1, 7-14-87; Ord. No. 36,507, § 1, 7-16-91; Ord. No. 36,959, § 1, 8-18-92)

State law reference—Similar provisions, Code of Virginia, §§ 46.2-853—46.2-864.

Sec. 25-219. Same—Racing.

Any person who shall engage in a race between two (2) or more motor vehicles on the streets of the city, or upon any driveway or premises of a religious institution, school, recreational facility or business property open to the public within the city, shall be guilty of reckless driving, unless authorized by the owner of the property or his agent. When any person shall be convicted of reckless driving under this section, then in addition to any other penalties provided by law, the

operator's or chauffeur's license of such person shall be suspended by the court or judge for a period of not less than six (6) months nor more than two (2) years. In case of conviction, the court or judge shall order the surrender of the license to the court where it shall be disposed of in accordance with the provisions of section 46.2-398 of the Code of Virginia.
(Code 1958, § 29-30; Ord. No. 46,270, § 2, 2-23-16)

State law reference—Similar provisions, Code of Virginia, § 46.2-865.

Sec. 25-220. Same—Aiding or abetting.

Any person, although not engaged in a race, as defined in section 25-219, who aids or abets in any such race, shall be guilty of a misdemeanor.

State law reference—Similar provisions, Code of Virginia, § 46.2-866.

Sec. 25-221. Same—Penalty for reckless driving under sections 25-217, 25-218 or 25-219.

(1) Every person convicted of reckless driving under sections 25-217, 25-218 or 25-219 shall, for the first violation, be punished as for a Class 1 misdemeanor. For each second or subsequent conviction for the offense of reckless driving under any of such sections, committed within twelve (12) months before or after the date of another act of reckless driving for which he has been convicted, such person shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than one thousand dollars ($1,000.00), or by imprisonment in jail for not less than ten (10) days nor more than twelve (12) months, or by both fine and imprisonment.

(2) In addition to the penalties prescribed in subsection (1), if any person is convicted of reckless driving under the sections referred to therein, the court may suspend any license issued to such convicted person under chapter 5 of title 46.2 of the Code of Virginia, for a period of not less than ten (10) days nor more than six (6) months and the court shall require such convicted person to surrender his license so suspended. If such person so convicted has not obtained the license required by such chapter, the court may direct, in the judgment of conviction, that such person shall not, for a period of not less than ten (10) days nor more than six (6) months as may be prescribed in the judgment, drive or operate any motor vehicle in this state.

(3) When any person shall be convicted of reckless driving, as provided for in paragraph (10) of section 25-218, in addition to any other penalties provided by law, except in those cases for which revocation of license is provided in Code of Virginia, section 46.2-389, the operator's or chauffeur's license of such person may be suspended by the court or judge for a period of not less than sixty (60) days nor more than six (6) months. When the conviction is a second conviction which would require revocation under the provisions of Code of Virginia, section 46.2-389, the court shall suspend the operator's or chauffeur's license of such person and thereupon transmit the same to the state division of motor vehicles as provided by law. If such person so convicted has not obtained a license required by Code of Virginia, chapter 5 of title 46.2 or is a nonresident, the court shall direct, in the judgment of conviction, that such person shall not drive or operate any motor vehicle in this state for a period of not less than sixty (60) days nor more than six (6) months.
(Code 1958, §§ 29-14, 29-15, 29-31)

State law reference—Similar provisions, Code of Virginia, §§ 46.2-392, 46.2-393, 46.2-868.

Sec. 25-222. Disregarding signal by law enforcement officer to stop; eluding police; penalties.

(a) Any person who, having received a visible or audible signal from any law enforcement officer to bring his motor vehicle to a stop, drives such motor vehicle in a willful and wanton disregard of such signal shall be guilty of a Class 4 misdemeanor.

(b) Any person who, having received a visible or audible signal from any law enforcement officer to bring his motor vehicle to a stop, drives such motor vehicle in a willful or wanton disregard of such signal so as to interfere with or endanger the operation of the law enforcement vehicle or endanger other property or a person or who

increases his speed and attempts to escape or elude such law enforcement officer shall be guilty of a Class 4 misdemeanor.

(c) When any person is convicted under this section, in addition to the other penalties provided in this section, the driver's license of such person may be suspended by the court or judge for a period not to exceed one year. However, in any case where the speed of the accused is determined to have exceeded the maximum allowed by fifteen (15) miles per hour where the maximum speed is fifty-five (55) miles per hour or greater, his driver's license shall be suspended by the court trying the case for a period of not less than ninety (90) days. In case of conviction and suspension, the court or judge shall order the surrender of the license to the court, which shall dispose of it in accordance with the provisions of section 46.2-398 of the Code of Virginia.
(Code 1958, § 29-30.1; Ord. No. 38,972, § 1, 11-25-97)

State law reference—Similar provisions, Code of Virginia, § 46.2-817.

Sec. 25-223. Finding accused guilty of improper driving rather than reckless driving.

Notwithstanding the foregoing provisions of this article, upon the trial of any person charged with reckless driving, where the degree of culpability is slight, the court, in its discretion, may find the accused not guilty of reckless driving but guilty of improper driving. Improper driving shall be punishable as a traffic infraction punishable by a fine of not more than five hundred dollars ($500.00).
(Code 1958, § 29-30.2; Ord. No. 37,713, § 1, 7-12-94)

State law reference—Similar provisions, Code of Virginia, § 46.2-869.

Sec. 25-224. Maximum speed limits—Generally.

Except as otherwise provided in this chapter, it shall be unlawful for any person to drive any vehicle upon any street or highway within a business or residence district of the city at a speed in excess of twenty-five miles per hour, or at a speed in excess of thirty-five (35) miles per hour on any street or highway outside of a business or residence district.
(Code 1958, § 29-32)

Cross references—Speed limits on specific streets, § 25-646; speed limits at airport, § 4-32; speed limit for vehicles in cemeteries, § 12-28; speed limit for vehicles on pedestrian malls, § 31-13.

State law reference—Similar provisions, Code of Virginia, § 46.2-870 et seq.

Sec. 25-225. Same—For school buses.

(1) It shall be unlawful for any person to drive a vehicle which is being used as a school bus carrying children at a speed greater than thirty-five (35) miles per hour on any street or highway, other than an interstate highway, or forty-five (45) miles per hour on an interstate highway; provided, however, that for any such vehicle, which neither takes on nor discharges children between its point of origin and point of destination, the speed limit shall be forty-five (45) miles per hour.

(2) Nothing in this section shall be construed as authorizing any person to drive a school bus at a speed greater than that established by any other section of this chapter.
(Code 1958, § 29-32)

State law reference—Similar provisions, Code of Virginia, § 46.1-193(1)(d).

Sec. 25-226. Same—In school zones.

(1) On streets with speed limits of twenty-five (25) miles per hour the speed limit in school zones or school crossing zones shall be fifteen (15) miles per hour, and on streets with speed limits of thirty (30) miles per hour or over, the speed limit in school zones or school crossing zones shall be twenty-five (25) miles per hour, and it shall be unlawful for any person to drive a vehicle at a speed greater than such limit. The zone shall extend between portable signs, tilt-over signs or fixed blinking signs placed in and along the street bearing the words "school" or "school crossing." Such words shall indicate that school children are present in the vicinity.

(2) Any signs erected under this section shall be placed not more than six hundred (600) feet from the limits of the school property or crossing

in the vicinity of the school, which is used by children going to and from school; provided, that "school crossing" signs may be placed in any location where an engineering and traffic investigation establishes a need therefor and the state department highways and transportation or the city council has approved the crossing for such signs.

(3) Portable signs provided for in this section shall be furnished by the city. It shall be the duty of the principal or chief administrative officer of each school or some responsible person designated by the school board, preferably not a classroom teacher, to place such portable signs in the street or highway at a point not more than six hundred (600) feet from the limits of the school property and remove such signs when their presence is no longer required by this subsection.

(4) Portable, tilt-over or fixed blinking signs provided for in this section shall be placed in a position plainly visible to vehicular traffic approaching from either direction, but shall not be placed so as to obstruct the roadway. Such signs or signals shall be in position, or be turned on, for thirty (30) minutes preceding regular school hours and for thirty (30) minutes thereafter and during such other times as the presence of children on such school property or going to and from school reasonably required a special warning to motorists.
(Code 1958, § 29-32)

State law reference—Similar provisions and authority for above section, Code of Virginia, § 46.1-193(1)(f).

Sec. 25-227. Same—On bridges.

(1) Except as otherwise provided, it shall be unlawful for any person to drive any vehicle upon any bridge open to the use of the public for purposes of vehicular travel in the city at a speed which is greater than that which can be maintained thereon with safety to such structure, which maximum speed for each such bridge shall be determined by the director of public works, and shall be displayed on suitable signs at the ends of each such bridge.

(2) It shall be unlawful for any person to drive any vehicle which, together with the load thereon, shall be in excess of seven (7) tons over any bridge with wooden decking in the city at a speed greater than ten (10) miles per hour.
(Code 1958, §§ 29-34, 29-35)

Sec. 25-228. Reduction of speed limit on streets under repair or where men working.

(1) The director of public works is hereby authorized to reduce, for a temporary period not to exceed sixty (60) days, the speed limit on any portion of any street or highway in the city on which men are working or where the street or highway is under construction or repair. The speed limit shall not be reduced to less than fifteen (15) miles per hour.

(2) Signs shall be posted at the termini of any such area clearly indicating the speed limit within such area. After the posting of such signs, it shall be unlawful for any person to drive any vehicle within such area in excess of the posted speed limit.
(Code 1958, § 29-35.1)

Sec. 25-229. Minimum speed limits.

(1) It shall be unlawful for any person to drive a motor vehicle at such slow speed as to impede the normal movement of traffic, except when reduced speed is necessary in safe operation or in compliance with the law.

(2) Whenever the city council determines on the basis of an engineering and traffic investigation that slow speed on a part of any street or highway consistently impedes the normal and reasonable movement of traffic, the city council may determine and declare a minimum speed limit, to be set forth on signs posted on such street or highway, below which no person shall drive a vehicle, except when necessary for safe operation or in compliance with the law; provided, that such minimum speed limit shall not apply to a school bus carrying children.
(Code 1958, § 29-32)

State law reference—Similar provisions, Code of Virginia, § 46.1-193(2).

Sec. 25-230. Necessity for speed limit signs.

No person shall be convicted of a violation of an ordinance enacted by the city council pursuant to the provisions of Code of Virginia, § 46.1-180, decreasing the speed limit established in section 25-224, when such person has exceeded the speed limit in an area where the speed limit has been decreased, unless such area is clearly indicated by a conspicuous marker at the termini of such area.
(Code 1958, § 29-33)

State law reference—Similar provisions, Code of Virginia, § 46.1-194. See also, § 46.1-180.

Sec. 25-231. Exemptions from speed limits.

(1) The speed limitations set forth in this chapter shall not apply to vehicles when operated with due regard for safety under the direction of the police in the chase or apprehension of violators of the law, or of persons charged with or suspected of any such violations, or in response to emergency calls, or in testing the accuracy of speedometers on police vehicles, or in testing the accuracy of the radio microwaves or other electrical devices specified in section 25-232, nor to fire department vehicles when traveling in response to a fire alarm or pulmotor call, nor to municipal ambulances when traveling in emergencies.

(2) The exemptions granted by this section to a moving vehicle shall apply only when the operator of such vehicle displays a flashing, linking or alternating red light and sounds a siren, bell, exhaust whistle or air horn designed to give automatically intermittent signals, as may be reasonably necessary, and only when there is in force and effect for such vehicle standard automobile liability insurance covering injury or death to any one person in the sum of at least one hundred thousand dollars ($100,000.00) in any one accident and, subject to the limit for one person, to a limit of three hundred thousand dollars ($300,000.00) because of bodily injury to or death of two (2) or more persons in any one accident, and to a limit of ten thousand dollars ($10,000.00) because of injury to or destruction of property of others in any one accident.

(3) The exemptions granted by this section shall not protect the operator of any such vehicle from criminal prosecution for conduct constituting reckless disregard of the safety of persons and property. Nothing in this section shall be construed to release the operator of any such vehicle from civil liability for failure to use reasonable care in such operation.
(Code 1958, § 29-37)

State law reference—Similar provisions, Code of Virginia, § 46.1-199.

Sec. 25-232. Checking on speed with various devices; certificate as to accuracy of device; arrest without warrant.

(a) The speed of any motor vehicle may be checked by the use of radio microwaves or other electrical devices. The results of such checks shall be accepted as prima facie evidence of the speed of such motor vehicle in any court or legal proceeding where the speed of the motor vehicle is at issue.

(b) In any court or legal proceeding in which any question arises about the calibration or accuracy of any radio microwave or other electrical device used to check the speed of any motor vehicle, a certificate, executed and signed by the officer or officers calibrating or testing such device for its accuracy, and stating the time of such test, type of test and results of testing, when such certificate is accompanied by a certificate, or true copy thereof, showing the calibration or accuracy of the speedometer of any vehicle employed in calibrating or testing such device, and when and by whom such speedometer calibration was made, shall be admissible when attested by one such officer who executed and signed it as evidence of the facts therein stated and results of such testing. No calibration or testing of such device shall be valid for longer than six (6) months.

(c) The driver of any such motor vehicle may be arrested without a warrant under this section, provided the arresting officer is in uniform or displays his badge of authority; provided that such officer has observed the registration of the speed of such motor vehicle by the radio microwaves or other electrical device, or has

received a radio message from the officer who observed the speed of the motor vehicle registered by the radio microwaves or other electrical device; provided, in case of an arrest based on such a message, that such radio message has been dispatched immediately after the speed of the motor vehicle was registered and has furnished the license number or other positive identification of the vehicle and the registered speed to the arresting officer.

(d) The division of purchases and supply, pursuant to section 2.1-446 of the Code of Virginia, 1950, as amended, shall determine the proper equipment or electrical devices and training necessary in the operation of such equipment and devices used to measure the speed of motor vehicles and shall advise the City of Norfolk law enforcement officials of the same. The chief of police shall ensure that all such equipment, devices, and training necessary in the use of such equipment and devices meet or exceeds the standards established by the division. This provision shall apply only to equipment and devices purchased on or after July 1, 1986.

(Code 1958, § 29-36; Ord. No. 33,346, § 1, 3-12-85; Ord. No. 34,108, § 1, 7-29-86; Ord. No. 36,112, § 1, 7-19-90)

State law reference—Similar provisions and authority of city to use electrical devices to measure speed, Code of Virginia, § 46.2-882.

Sec. 25-233. Photo speed monitoring devices in highway work zones and school crossing zones.

(a) For the purposes of this section:

"Highway work zone" has the same meaning ascribed to it in Code of Virginia § 46.2-878.1.

"Photo speed monitoring device" means equipment that uses radar or LIDAR-based speed detection and produces one or more photographs, microphotographs, videotapes, or other recorded images of vehicles.

"School crossing zone" has the same meaning ascribed to it in Code of Virginia § 46.2-873.

(b) As authorized by the city manager, the Norfolk Police Department may place and operate photo speed monitoring devices within the boundaries of the city in school crossing zones for the purposes of recording violations of Code of Virginia § 46.2-873 and in highway work zones for the purposes of recording violations of Code of Virginia § 46.2-878.1.

(1) The operator of a vehicle shall be liable for a monetary civil penalty imposed pursuant to this section if such vehicle is found, as evidenced by information obtained from a photo speed monitoring device, to be traveling at speeds of at least ten (10) miles per hour above the posted school crossing zone or highway work zone speed limit within such school crossing zone or highway work zone. Such civil penalty shall be one hundred dollars ($100.00), and any prosecution shall be instituted and conducted in the same manner as prosecution for traffic infractions. Civil penalties collected under this section resulting from a summons issued by a local law-enforcement officer shall be paid to the locality in which such violation occurred. Civil penalties collected under this section resulting from a summons issued by a law-enforcement officer employed by the department of state police shall be paid into the literary fund.

(2) If a photo speed monitoring device is used, proof of a violation of Code of Virginia § 46.2-873 or 46.2-878.1 shall be evidenced by information obtained from such device. A certificate, or a facsimile thereof, sworn to or affirmed by a law-enforcement officer, based upon inspection of photographs, microphotographs, videotapes, or other recorded images produced by a photo speed monitoring device, shall be prima facie evidence of the facts contained therein. Any photographs, microphotographs, videotapes, or other recorded images evidencing such a violation shall be available for inspection in any proceeding to

adjudicate the liability for such violation of Code of Virginia § 46.2-873 or 46.2-878.1.

(3) In the prosecution for a violation of Code of Virginia § 46.2-873 or 46.2-878.1 in which a summons was issued by mail, prima facie evidence that the vehicle described in the summons issued pursuant to this section was operated in violation of Code of Virginia § 46.2-873 or 46.2-878.1, together with proof that the defendant was at the time of such violation the owner, lessee, or renter of the vehicle, shall constitute in evidence a rebuttable presumption that such owner, lessee, or renter of the vehicle was the person who committed the violation. Such presumption shall be rebutted if the owner, lessee, or renter of the vehicle:

i. Files an affidavit by regular mail with the Clerk of the Norfolk General District Court that he was not the operator of the vehicle at the time of the alleged violation and provides the name and address of the person who was operating the vehicle at the time of the alleged violation; or

ii. Testifies in open court under oath that he was not the operator of the vehicle at the time of the alleged violation and provides the name and address of the person who was operating the vehicle at the time of the alleged violation.

Such presumption shall also be rebutted if a certified copy of a police report, showing that the vehicle had been reported to the police as stolen prior to the time of the alleged violation of Code of Virginia § 46.2-873 or 46.2-878.1, is presented, prior to the return date established on the summons issued pursuant to this section, to the court adjudicating the alleged violation.

(4) Imposition of a penalty pursuant to this section by mailing a summons shall not be deemed a conviction as an operator and shall not be made part of the operating record of the person upon whom such liability is imposed, nor shall it be used for insurance purposes in the provision of motor vehicle insurance coverage. However, if a law-enforcement officer uses a photo speed monitoring device to record a violation of Code of Virginia § 46.2-873 or 46.2-878.1 and personally issues a summons at the time of the violation, the conviction that results shall be made a part of such driver's driving record and used for insurance purposes in the provision of motor vehicle insurance coverage.

(5) A summons for a violation of Code of Virginia § 46.2-873 or 46.2-878.1 issued by mail pursuant to this section may be executed pursuant to Code of Virginia § 19.2-76.2. Notwithstanding the provisions of Code of Virginia § 19.2-76, a summons issued by mail pursuant to this section may be executed by mailing by first-class mail a copy thereof to the owner, lessee, or renter of the vehicle. In the case of a vehicle owner, the copy shall be mailed to the address contained in the records of or accessible to the department of motor vehicles. In the case of a vehicle lessee or renter, the copy shall be mailed to the address contained in the records of the lessor or renter. Every such mailing shall include, in addition to the summons, a notice of:

i. The summoned person's ability to rebut the presumption that he was the operator of the vehicle at the time of the alleged violation through the filing of an affidavit as provided in subdivision (3) above, and

ii. Instructions for filing such affidavit, including the address to which the affidavit is to be sent.

If the summoned person fails to appear on the date of return set out in the summons mailed pursuant to this section, the summons shall be executed in the manner set out in Code of Virginia § 19.2-76.3. No proceedings for contempt or arrest of a person summoned by mail-

ing shall be instituted for failure to appear on the return date of the summons. If the summons is issued to an owner, lessee, or renter of a vehicle with a registration outside the commonwealth and such person fails to appear on the date of return set out in the summons mailed pursuant to this section, the summons will be eligible for all legal collections activities. Any summons executed for a violation of Code of Virginia § 46.2-873 or 46.2-878.1 issued pursuant to this section shall provide to the person summoned at least thirty (30) days from the mailing of the summons to inspect information collected by a photo speed monitoring device in connection with the violation. If the law-enforcement agency that was operating the photo speed monitoring device does not execute a summons for a violation of Code of Virginia § 46.2-873 or 46.2-878.1 issued pursuant to this section within thirty (30) days from the date of the violation, all information collected pertaining to that suspected violation shall be purged within sixty (60) days from the date of the violation.

(6) A private vendor may enter into an agreement with the Norfolk Police Department through the City of Norfolk to be compensated for providing a photo speed monitoring device and all related support services, including consulting, operations, and administration. However, only a law-enforcement officer may swear to or affirm the certificate required by this subsection. Any such agreement for compensation shall be based on the value of the goods and services provided, not on the number of violations paid or monetary penalties imposed. Any private vendor contracting with the City of Norfolk pursuant to this section may enter into an agreement with the department of motor vehicles, in accordance with the provisions of subdivision B 31 of Code of Virginia § 46.2-208, to obtain vehicle owner information regarding the registered owners of vehicles that committed a violation of Code of Virginia § 46.2-873 or 46.2-878.1. Any such information provided to such private vendor shall be protected in a database.

(7) Information collected by a photo speed monitoring device operated pursuant to this section shall be limited exclusively to that information that is necessary for the enforcement of school crossing zone and highway work zone speeding violations. Information provided to the operator of a photo speed monitoring device shall be protected in a database and used only for enforcement against individuals who violate the provisions of this section or Code of Virginia § 46.2-873 or 46.2-878.1. Notwithstanding any other provision of law, all photographs, microphotographs, videotapes, or other recorded images collected by a photo speed monitoring device shall be used exclusively for enforcing school crossing zone and highway work zone speed limits and shall not be:

i. Open to the public;

ii. Sold or used for sales, solicitation, or marketing purposes;

iii. Disclosed to any other entity except as may be necessary for the enforcement of school crossing zone and highway work zone speed limits or to a vehicle owner or operator as part of a challenge to the violation; or

iv. Used in a court in a pending action or proceeding unless the action or proceeding relates to a violation of this section or Code of Virginia § 46.2-873 or 46.2-878.1, or such information is requested upon order from a court of competent jurisdiction.

Information collected under this section pertaining to a specific violation shall be purged and not retained later than sixty (60) days after the collection of any civil penalties. While using photo speed monitoring devices, the Norfolk Police Department shall annually certify compli-

ance with this section and Code of Virginia § 46.2-882.1 and make all records pertaining to such system available for inspection and audit by the commissioner of highways or the commissioner of the department of motor vehicles or his designee. Any person who discloses personal information in violation of the provisions of this subdivision shall be subject to a civil penalty of one thousand dollars ($1,000.00) per disclosure.

(8) A conspicuous sign shall be placed within one thousand (1,000) feet of any school crossing zone or highway work zone at which a photo speed monitoring device is used, indicating the use of the device. There shall be a rebuttable presumption that such sign was in place at the time of the commission of the speed limit violation.

(9) While the Norfolk Police Department places and operates a photo speed monitoring device pursuant to the provisions of this section shall report to the department of state police, in a format to be determined by the department of state police, by January 15 of each year on the number of traffic violations prosecuted, the number of successful prosecutions, and the total amount of monetary civil penalties collected.

(Ord. No. 48,586, § 1, 12-7-21; Ord. No. 49,602, § 1, 5-14-24)

Secs. 25-234—25-250. Reserved.

ARTICLE VII. DRIVING MOTOR VEHICLE, ETC., WHILE INTOXICATED*

Sec. 25-251. Prohibited.

It shall be unlawful for any person to drive or operate any motor vehicle, engine or train in the city:

(i) While such person has a blood alcohol concentration of 0.08 percent or more by weight by volume or 0.08 grams or more per two hundred ten (210) liters of breath as indicated by a chemical test administered as provided in this article;

(ii) While such person is under the influence of alcohol;

(iii) While such person is under the influence of any narcotic drug or any other self-

*__Editor's note—__Ord. No. 44,066, § 1, adopted Dec. 7, 2010, amended art. VII in its entirety and enacted the provisions set out herein. The former art. VII, titled Driving while Under Influence of Alcohol or Drug derived from Code 1958, §§ 29-43, 29-44, 29-46—29-50; Ord. No. 31,808, § 1, adopted June 29, 1982; Ord. No. 32,994, §§ 1, 2, adopted July 10, 1984; Ord. No. 33,032, § 1, adopted July 24, 1984; Ord. No. 33,033, § 2, adopted July 24, 1984; Ord. No. 33,664, §§ 1, 2, adopted Sept. 17, 1985; Ord. No. 34,106, § 1, adopted July 29, 1986; Ord. No. 34,109, § 1, adopted July 29, 1986; Ord. No. 34,597, § 1, adopted July 14, 1987; Ord. No. 34,598, § 1, adopted July 14, 1987; Ord. No. 35,141, § 1, adopted June 28, 1988; Ord. No. 36,113, § 1, adopted July 17, 1990; Ord. No. 36,120, § 1, adopted July 17, 1990; Ord. No. 36,460, § 1, adopted June 11, 1991; Ord. No. 36,510, § 1, adopted July 16, 1991; Ord. No. 36,515, §§ 1, 2, adopted July 23, 1991; Ord. No. 36,928, § 1, adopted July 21, 1992; Ord. No. 36,929, § 1, adopted July 21, 1992; Ord. No. 36,930, § 1, adopted July 21, 1992; Ord. No. 36,943, § 1, adopted July 28, 1992; Ord. No. 36,944, § 1, adopted July 28, 1992; Ord. No. 36,945, § 1, adopted July 28, 1992; Ord. No. 36,946, § 1, adopted July 28, 1992; Ord. No. 37,417, § 1, adopted Oct. 12, 1993; Ord. No. 37,418, § 1, adopted Oct. 12, 1993; Ord. No. 37,419, § 1, adopted Oct. 12, 1993; Ord. No. 37,685, §§ 1—5, adopted June 28, 1994; Ord. No. 37,838, §§ 1—4, adopted Dec. 20, 1994; Ord. No. 39,187, § 1, adopted May 26, 1998; Ord. No. 39,706, § 1, adopted Aug. 24, 1999; Ord. No. 40,278, § 1, adopted April 24, 2001; Ord. No. 40,279, § 1, adopted April 24, 2001; Ord. No. 40,478, § 1, adopted Oct. 2, 1001; Ord. No. 41,667, §§ 1—10, adopted Dec. 14, 2004; Ord. No. 42,199, § 1, adopted March 7, 2006; and Ord. No. 43,699, § 1, adopted Dec. 15, 2009.

__State law reference—__Authority of city to adopt ordinance on the subject matter of this article, Code of Virginia, § 15.1-132. See also, § 46.2-1313.

administered intoxicant or drug of whatsoever nature, or any combination of such

drugs, to a degree which impairs his ability to drive or operate any motor vehicle, engine or train safely;

(iv) While such person is under the combined influence of alcohol and any drug or drugs to a degree which impairs his ability to drive or operate any motor vehicle, engine or train safely, or

(v) While such person has a blood concentration of any of the following substances at a level that is equal to or greater than:

(a) 0.02 milligrams of cocaine per liter of blood,

(b) 0.1 milligrams of methamphetamine per liter of blood,

(c) 0.01 milligrams of phencyclidine per liter of blood, or

(d) 0.1 milligrams of 3,4-methylenedioxymethamphetamine per liter of blood.

A charge alleging a violation of this section shall support a conviction under clauses (i), (ii), (iii), (iv), or (v).

For the purposes of this article, the term "motor vehicle" shall include mopeds, while operated on the public highways of this city.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-251.1. Persons under age twenty-one driving after illegally consuming alcohol; penalty.

(a) It shall be unlawful for any person under the age of twenty-one (21) to operate any motor vehicle after illegally consuming alcohol. Any such person with a blood-alcohol concentration of 0.02 percent or more by weight by volume or 0.02 grams or more per two hundred ten (210) liters of breath but less than 0.08 by weight by volume or less than 0.08 grams per two hundred ten (210) liters of breath as indicated by a chemical test administered as provided in this article shall be in violation of this section.

(b) A violation of this section shall be punishable by forfeiture of such person's license to operate a motor vehicle for a period of six (6) months from the date of conviction and by a fine of not more than five hundred dollars ($500.00). The penalties and license forfeiture provisions set forth in Code of Virginia, § 16.1-278.9, and sections 25-255 and 25-257 shall not apply to a violation of this section. Any person convicted of a violation of this section shall be eligible to attend an alcohol safety action program under the provisions of section 25-257.1 and shall be eligible for a restricted license during the term of license suspension.

(c) Notwithstanding Code of Virginia, §§ 16.1-278.8 and 16.1-278.9, upon adjudicating a juvenile delinquent based upon a violation of this section, the juvenile and domestic relations district court shall order disposition as provided in subsection (b).
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-252. Preliminary analysis of breath to determine alcoholic content of blood.

(a) Any person who is suspected of a violation of section 25-251, 25-251.1 or 25-258 shall be entitled, if such equipment is available, to have his breath analyzed to determine the probable alcoholic content of his blood. The person shall also be entitled, upon request, to observe the process of analysis and to see the blood-alcohol reading on the equipment used to perform the breath test. His breath may be analyzed by any police officer of the commonwealth, or of any county, city or town, or by any member of a sheriff's department in the normal discharge of his duties.

(b) The department of forensic science shall determine the proper method and equipment to be used in analyzing breath samples taken pursuant to this section and shall advise the respective police and sheriff's departments of the same.

(c) Any person who has been stopped by a police officer of the commonwealth, or of any county, city or town, or by any member of a sheriff's department and is suspected by such officer to be guilty of an offense listed in subsection (a), shall have the right to refuse to permit his breath to be so analyzed, and his failure to permit such analysis shall not be evidence in any prosecution for an offense listed in subsection (a).

(d) Whenever the breath sample analysis indicates that alcohol is present in the person's blood, the officer may charge the person with a violation of an offense listed in subsection (a). The person so charged shall then be subject to the provisions of sections 25-253 through 25-253.10.

(e) The results of the breath analysis shall not be admitted into evidence in any prosecution for an offense listed in subsection (a), the purpose of this section being to permit a preliminary analysis of the alcoholic content of the blood of a person suspected of having committed an offense listed in subsection (a).

(f) Police officers or members of any sheriff's department shall, upon stopping any person suspected of having committed an offense listed in subsection (a), advise the person of his rights under the provisions of this section.

(g) Nothing in this section shall be construed as limiting the provisions of sections 25-253 through 25-253.10.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253. Chemical testing to determine alcohol or drug content of blood; definitions.

As used in sections 25-253.1 through 25-253.10, unless the context clearly indicates otherwise:

The phrase *alcohol or drug* means alcohol, a drug or drugs, or any combination of alcohol and a drug or drugs.

The phrase *blood or breath* means either or both.

Chief police officer means the chief of police of the city, or his authorized representative.

Department means the department of forensic science.

Director means the director of the department of forensic science.

License means any driver's license, temporary driver's license, or instruction permit authorizing the operation of a motor vehicle upon the highways.

Ordinance means a city ordinance.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.1. Implied consent to postarrest testing to determine drug or alcohol content of blood.

(a) Any person, whether licensed by Virginia or not, who operates a motor vehicle upon a highway, as defined in Code of Virginia, § 46.2-100, in this commonwealth, shall be deemed thereby, as a condition of such operation, to have consented to have samples of his blood, breath, or both blood and breath taken for a chemical test to determine the alcohol, drug, or both alcohol and drug content of his blood, if he is arrested for violation of section 25-251, 25-251.1 or 25-258 within three (3) hours of the alleged offense.

(b) Any person so arrested for a violation of clause (i) or (ii) of section 25-251 or both, section 25-251.1 or 25-258 of this article shall submit to a breath test. If the breath test is unavailable or the person is physically unable to submit to the breath test, a blood test shall be given. The accused shall, prior to administration of the test, be advised by the person administering the test that he has the right to observe the process of analysis and to see the blood-alcohol reading on the equipment used to perform the breath test. If the equipment automatically produces a written printout of the breath test result, the printout, or a copy, shall be given to the accused.

(c) A person, after having been arrested for a violation of clause (iii), (iv), or (v) of section 25-251, 25-251.1 or 25-258, may be required to submit to a blood test to determine the drug or both drug and alcohol content of his blood. When a person, after having been arrested for a violation of subsection 25-251(i) or (ii) or both, submits to a breath test in accordance with subsection (b) or refuses to take or is incapable of taking such a breath test, he may be required to submit to tests to determine the drug or both drug and alcohol content of his blood if the law enforcement officer has reasonable cause to believe the person was driving under the influence of any drug or combination of drugs, or the combined influence of alcohol and drugs.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.2. Refusal of tests; penalties; procedures.

(a) It shall be unlawful for a person who is arrested for a violation of section 25-251, 25-251.1 or 25-258 to unreasonably refuse to have samples of his blood or breath or both blood and breath taken for chemical tests to determine the alcohol or drug content of his blood as required by section 25-253.1 and any person who so unreasonably refuses is guilty of a violation of this section.

(b) When a person is arrested for a violation of section 25-251, 25-251.1 or 25-258 and such person refuses to permit blood or breath or both blood and breath samples to be taken for testing as required by section 25-253.1, the arresting officer shall advise the person, from a form provided by the Office of the Executive Secretary of the Supreme Court, that

(i) A person who operates a motor vehicle upon a highway in the commonwealth is deemed thereby, as a condition of such operation, to have consented to have samples of his blood and breath taken for chemical tests to determine the alcohol or drug content of his blood,

(ii) A finding of unreasonable refusal to consent may be admitted as evidence at a criminal trial,

(iii) The unreasonable refusal to do so constitutes grounds for the revocation of the privilege of operating a motor vehicle upon the highways of the commonwealth,

(iv) The criminal penalty for unreasonable refusal within ten (10) years of a prior conviction for driving while intoxicated or unreasonable refusal is a class 2 misdemeanor, and

(v) The criminal penalty for unreasonable refusal within ten (10) years of any two (2) prior convictions for driving while intoxicated or unreasonable refusal is a class 1 misdemeanor.

The form from which the arresting officer shall advise the person arrested shall contain a brief statement of the law requiring the taking of blood or breath samples, a statement that a finding of unreasonable refusal to consent may be admitted as evidence at a criminal trial, and the penalties for refusal. The Office of the Executive Secretary of the Supreme Court shall make the form available on the internet and the form shall be considered an official publication of the commonwealth for the purposes of Code of Virginia, § 8.01-388.

(c) The arresting officer shall, under oath before the magistrate, execute the form and certify:

(i) That the defendant has refused to permit blood or breath or both blood and breath samples to be taken for testing;

(ii) That the officer has read the portion of the form described in subsection (b) to the arrested person;

(iii) That the arrested person, after having had the portion of the form described in subsection (b) read to him, has refused to permit such sample or samples to be taken; and

(iv) How many, if any, violations of this section, section 25-251, or any offense described in subsection 25-255(d), the arrested person has been convicted of within the last ten (10) years.

Such sworn certification shall constitute probable cause for the magistrate to issue a warrant or summons charging the person with unreasonable refusal. The magistrate shall attach the executed and sworn advisement form to the warrant or summons. The warrant or summons for a first offense under this section shall be executed in the same manner as a criminal warrant or summons. If the person arrested has been taken to a medical facility for treatment or evaluation of his medical condition, the arresting officer may read the advisement form to the person at the medical facility, and issue, on the premises of the medical facility, a summons for a violation of this section in lieu of securing a warrant or summons from the magistrate. The magistrate or arresting officer, as the case may be, shall forward the executed advisement form and warrant or summons to the appropriate court.

(d) A first violation of this section is a civil offense and subsequent violations are criminal offenses. For a first offense the court shall sus-

pend the defendant's privilege to drive for a period of one year. This suspension period is in addition to the suspension period provided under Code of Virginia, § 46.2-391.2.

If a person is found to have violated this section and within ten (10) years prior to the date of the refusal he was found guilty of any of the following: a violation of this section, or a violation of section 25-251, or a violation of any offense listed in subsection 25-255(d), arising out of separate occurrences or incidents, he is guilty of a class 2 misdemeanor and the court shall suspend the defendant's privilege to drive for a period of three (3) years. This suspension period is in addition to the suspension period provided under Code of Virginia, § 46.2-391.2.

If a person is found guilty of a violation of this section and within ten (10) years prior to the date of the refusal he was found guilty of any two (2) of the following: a violation of this section, or section 25-251, or a violation of any offense listed in subsection 25-255(d), he is guilty of a class 1 misdemeanor and the court shall suspend the defendant's privilege to drive for a period of three (3) years. This suspension period is in addition to the suspension period provided under Code of Virginia, § 46.2-391.2.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.3. Trial and appeal for refusal.

(a) Venue for the trial of the warrant or summons shall lie in the court of the county or city in which the offense of driving under the influence of intoxicants or other offense listed in subsection 25-253.2(a) is to be tried.

(b) The procedure for appeal and trial of a first offense of section 25-253.2 shall be the same as provided by law for misdemeanors; if requested by either party on appeal to the circuit court, trial by jury shall be as provided in Code of Virginia, title 19.2, chapter 15, article 4, (§ 19.2-260 et seq.), and the city shall be required to prove its case beyond a reasonable doubt.

(c) If the defendant pleads guilty to a violation of section 25-251, 25-251.1 or 25-258, the court may dismiss the warrant or summons.

The court shall dispose of the defendant's license in accordance with the provisions of Code of Virginia, § 46.2-398; however, the defendant's license shall not be returned during any period of suspension imposed under Code of Virginia, § 46.2-391.2.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.4. Qualifications and liability of persons authorized to take blood sample; procedure for taking samples.

For purposes of this article, only a physician, registered nurse, licensed practical nurse, phlebotomist, graduate laboratory technician or a technician or nurse designated by order of a circuit court acting upon the recommendation of a licensed physician, using soap and water, polyvinylpyrrolidone iodine, pvp iodine, povidone iodine or benzalkonium chloride to cleanse the part of the body from which the blood is taken and using instruments sterilized by the accepted steam sterilizer or some other sterilizer which will not affect the accuracy of the test, or using chemically clean sterile disposable syringes, shall withdraw blood for the purpose of determining its alcohol or drug or both alcohol and drug content. It is a class 3 misdemeanor to reuse single-use-only needles or syringes. No civil liability shall attach to any person authorized to withdraw blood as a result of the act of withdrawing blood as provided in this section from any person submitting thereto, provided the blood was withdrawn according to recognized medical procedures. However, the person shall not be relieved from liability for negligence in the withdrawing of any blood sample.

No person arrested for a violation of section 25-251, 25-251.1 or 25-258 shall be required to execute in favor of any person or corporation a waiver or release of liability in connection with the withdrawal of blood and as a condition precedent to the withdrawal of blood as provided for in this section.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.5. Transmission of blood samples.

The blood sample withdrawn pursuant to section 25-253.4 shall be placed in vials provided or

approved by the department of forensic science. The vials shall be sealed by the person taking the sample or at his direction. The person who seals the vials shall complete the prenumbered certificate of blood withdrawal forms and attach one form to each vial. The completed withdrawal certificate for each vial shall show the name of the accused, the name of the person taking the blood sample, the date and time the blood sample was taken and information identifying the arresting or accompanying officer. The vials shall be placed in a container provided by the department, and the container shall be sealed to prevent tampering with the vials. The arresting or accompanying officer shall take possession of the container as soon as the vials are placed in the container and sealed, and shall promptly transport or mail the container to the department.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.6. Transmission of blood test samples; use as evidence.

(a) Upon receipt of a blood sample forwarded to the department for analysis pursuant to section 25-253.5, the department shall have it examined for its alcohol or drug or both alcohol and drug content and the director shall execute a certificate of analysis indicating the name of the accused; the date, time and by whom the blood sample was received and examined; a statement that the seal on the vial had not been broken or otherwise tampered with; a statement that the container and vial were provided or approved by the department and that the vial was one to which the completed withdrawal certificate was attached; and a statement of the sample's alcohol or drug or both alcohol and drug content. The director shall remove the withdrawal certificate from the vial, attach it to the certificate of analysis and state in the certificate of analysis that it was so removed and attached. The certificate of analysis with the withdrawal certificate shall be returned to the clerk of the court in which the charge will be heard.

(b) After completion of the analysis, the department shall preserve the remainder of the blood until ninety (90) days have lapsed from the date the blood was drawn. During this ninety-day period, the accused may, by motion filed before the court in which the charge will be heard, with notice to the department, request an order directing the department to transmit the remainder of the blood sample to an independent laboratory retained by the accused for analysis. The department shall destroy the remainder of the blood sample if no notice of a motion to transmit the remaining blood sample is received during the ninety-day period.

(c) When a blood sample taken in accordance with the provisions of sections 25-253.1 through 25.253.5 is forwarded for analysis to the department, a report of the test results shall be filed in that office. Upon proper identification of the certificate of withdrawal, the certificate of analysis, with the withdrawal certificate attached, shall, when attested by the director, be admissible in any court as evidence of the facts therein stated and of the results of such analysis:

(i) In any criminal proceeding, provided the requirements of Code of Virginia, § 19.2-187.1A, have been satisfied and the accused has not objected to the admission of the certificate pursuant to Code of Virginia, § 19.2-187.1B, or

(ii) In any civil proceeding.

On motion of the accused, the report of analysis prepared for the remaining blood sample shall be admissible in evidence provided the report is duly attested by a person performing such analysis and the independent laboratory that performed the analysis is accredited or certified to conduct forensic blood alcohol/drug testing by one or more of the following bodies: American Society of Crime Laboratory Directors/Laboratory Accreditation Board (ASCLD/LAB); College of American Pathologists (CAP); United States Department of Health and Human Services Substance Abuse and Mental Health Services Administration (SAMHSA); or American Board of Forensic Toxicology (ABFT).

Upon request of the person whose blood was analyzed, the test results shall be made available to him.

The director may delegate or assign these duties to an employee of the department.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.7. Fees.

Payment for withdrawing blood shall not exceed twenty-five dollars ($25.00), which shall be paid out of the appropriation for criminal charges. If the person whose blood sample was withdrawn is subsequently convicted for a violation of section 25-251, 25-251.2 or 25-258, or is placed under the purview of a probational, educational, or rehabilitational program as set forth in section 25-257.1, the amount charged by the person withdrawing the sample shall be taxed as part of the costs of the criminal case and shall be paid into the general fund of the state treasury.

If the person whose blood sample was withdrawn is subsequently convicted for violation of section 25-251, 25-251.1 or 25-258, a fee of twenty-five dollars ($25.00) for testing the first blood sample by the department shall be taxed as part of the costs of the criminal case and shall be paid into the general fund of the state treasury.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.8. Assurance of breath test validity; use of breath test results as evidence.

(a) To be capable of being considered valid as evidence in a prosecution under section 25-251, 25-251.1, or 25-258, chemical analysis of a person's breath shall be performed by an individual possessing a valid license to conduct such tests, with a type of equipment and in accordance with methods approved by the department.

(b) The department shall establish a training program for all individuals who are to administer the breath tests. Upon a person's successful completion of the training program, the department may license him to conduct breath test analyses. Such license shall identify the specific types of breath test equipment upon which the individual has successfully completed training. Any individual conducting a breath test under the provisions of section 25-253.1 shall issue a certificate which will indicate that the test was conducted in accordance with the department's specifications, the name of the accused, that prior to administration of the test the accused was advised of his right to observe the process and see the blood alcohol reading on the equipment used to perform the breath test, the date and time the sample was taken from the accused, the sample's alcohol content, and the name of the person who examined the sample. This certificate, when attested by the individual conducting the breath test on equipment maintained by the department, shall be admissible in any court as evidence of the facts therein stated and of the results of such analysis:

(i) In any criminal proceeding, provided that the requirements of Code of Virginia, § 19.2-187.1A, have been satisfied and the accused has not objected to the admission of the certificate pursuant to Code of Virginia, § 19.2-187.1B, or

(ii) In any civil proceeding.

Any such certificate of analysis purporting to be signed by a person authorized by the department shall be admissible in evidence without proof of seal or signature of the person whose name is signed to it. A copy of the certificate shall be promptly delivered to the accused. Copies of department records relating to any breath test conducted pursuant to this section shall be admissible provided such copies are authenticated as true copies either by the custodian thereof or by the person to whom the custodian reports.

The officer making the arrest, or anyone with him at the time of the arrest, or anyone participating in the arrest of the accused, if otherwise qualified to conduct such test as provided by this section, may administer the breath test and analyze the results.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.9. Evidence of violation of driving under the influence offenses.

(a) In any trial for a violation of section 25-251, 25-251.1, or 25-258, the admission of the blood or breath test results shall not limit the introduction of any other relevant evidence bearing upon any question at issue before the court, and the court shall, regardless of the result of any blood or breath tests, consider other relevant admissible evidence of the condition of the accused. If the test results indicate the presence of any drug other than alcohol, the test results shall be admissible, except in a prosecution under clause (v) of section

25-251, only if other competent evidence has been presented to relate the presence of the drug or drugs to the impairment of the accused's ability to drive or operate any motor vehicle, engine or train safely.

(b) The failure of an accused to permit a blood or breath sample to be taken to determine the alcohol or drug content of his blood is not evidence and shall not be subject to comment by the city at the trial of the case, except in rebuttal or pursuant to subsection (c); nor shall the fact that a blood or breath test had been offered the accused be evidence or the subject of comment by the city, except in rebuttal or pursuant to subsection (c).

(c) Evidence of a finding against the defendant under section 25-253.2 for his unreasonable refusal to permit a blood or breath sample to be taken to determine the alcohol or drug content of his blood shall be admissible into evidence, upon the motion of the city or the defendant, for the sole purpose of explaining the absence at trial of a chemical test of such sample. When admitted pursuant to this subsection such evidence shall not be considered evidence of the accused's guilt.

(d) The court or jury trying the case involving a violation of clause (ii), (iii) or (iv) of section 25-251 or 25-251.1 shall determine the innocence or guilt of the defendant from all the evidence concerning his condition at the time of the alleged offense.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-253.10. Substantial compliance.

The steps set forth in sections 25-253 through 25-253.8 relating to taking, handling, identifying, and disposing of blood or breath samples are procedural and not substantive. Substantial compliance shall be sufficient. Failure to comply with any steps or portions thereof shall not of itself be grounds for finding the defendant not guilty, but shall go to the weight of the evidence and shall be considered with all the evidence in the case; however, the defendant shall have the right to introduce evidence on his own behalf to show noncompliance with the aforesaid procedures or any part thereof, and that as a result his rights were prejudiced.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-254. Presumptions from alcohol or drug content of blood.

(a) In any prosecution for a violation of section 25-251, the amount of alcohol or drugs in the blood of the accused at the time of the alleged offense as indicated by a chemical analysis of a sample of the accused's blood or breath to determine the alcohol or drug content of his blood in accordance with the provisions of sections 25-253 through 25-253.10 shall give rise to the following rebuttable presumptions:

(1) If there was at that time 0.05 percent or less by weight by volume of alcohol in the accused's blood or 0.05 grams or less per two hundred ten (210) liters of the accused's breath, it shall be presumed that the accused was not under the influence of alcohol intoxicants at the time of the alleged offense;

(2) If there was at that time in excess of 0.05 percent but less than 0.08 percent by weight by volume of alcohol in the accused's blood or 0.05 grams but less than 0.08 grams per two hundred ten (210) liters of the accused's breath, such facts shall not give rise to any presumption that the accused was or was not under the influence of alcohol intoxicants at the time of the alleged offense, but such facts may be considered with other competent evidence in determining the guilt or innocence of the accused;

(3) If there was at that time 0.08 percent or more by weight by volume of alcohol in the accused's blood or 0.08 grams or more per two hundred ten (210) liters of the accused's breath, it shall be presumed that the accused was under the influence of alcohol intoxicants at the time of the alleged offense; or

(4) If there was at that time an amount of the following substances at a level that is equal to or greater than: (a) 0.02 milligrams of cocaine per liter of blood, (b) 0.1 milligrams of methamphetamine per liter of blood, (c) 0.01 milligrams of phencyclidine per liter of blood, or (d) 0.1 milligrams of 3,4-methylenedioxymethamphet-

amine per liter of blood, it shall be presumed that the accused was under the influence of drugs at the time of the alleged offense to a degree which impairs his ability to drive or operate any motor vehicle, engine or train safely.

(b) The provisions of this section shall not apply to and shall not affect any prosecution for a violation of Code of Virginia, § 46.2-341.24.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-255. Penalty for driving while intoxicated; subsequent offense; prior conviction.

(a) Except as otherwise provided herein, any person violating any provision of section 25-251 shall be guilty of a class 1 misdemeanor with a mandatory minimum fine of two hundred fifty dollars ($250.00). If the person's blood alcohol level as indicated by the chemical test administered as provided in this article or by any other scientifically reliable chemical test performed on whole blood under circumstances reliably establishing the identity of the person who is the source of the blood and the accuracy of the results (i) was at least 0.15, but not more than 0.20, he shall be confined in jail for an additional mandatory minimum period of five (5) days or, (ii) if the level was more than 0.20, for an additional mandatory minimum period of ten (10) days.

(b) (1) Any person convicted of a second offense committed within less than five (5) years after a prior offense under section 25-251 shall upon conviction of the second offense be punished by a mandatory minimum fine of five hundred dollars ($500.00) and by confinement in jail for not less than one month nor more than one year. Twenty (20) days of such confinement shall be a mandatory minimum sentence.

(2) Any person convicted of a second offense committed within a period of five (5) to ten (10) years of a prior offense under section 25-251 shall upon conviction of the second offense be punished by a mandatory minimum fine of five hundred dollars ($500.00) and by confinement in jail for not less than one month. Ten (10) days of such confinement shall be a mandatory minimum sentence.

(3) Upon conviction of a second offense within ten (10) years of a prior offense, if the person's blood alcohol level as indicated by the chemical test administered as provided in this article or by any other scientifically reliable chemical test performed on whole blood under circumstances reliably establishing the identity of the person who is the source of the blood and the accuracy of the results (i) was at least 0.15, but not more than 0.20, he shall be confined in jail for an additional mandatory minimum period of ten (10) days or, (ii) if the level was more than 0.20, for an additional mandatory minimum period of twenty (20) days. In addition, such person shall be fined a mandatory minimum fine of five hundred dollars ($500.00).

(c) In addition to the penalty otherwise authorized by this section or Code of Virginia, § 16.1-278.9, any person convicted of a violation of section 25-251 committed while transporting a person seventeen (17) years of age or younger shall be:

(i) Fined an additional minimum of five hundred dollars ($500.00) and not more than one thousand dollars ($1,000.00); and

(ii) Sentenced to a mandatory minimum period of confinement of five (5) days.

(d) For the purpose of determining the number of offenses committed by, and the punishment appropriate for, a person under this section, an adult conviction of any person, or finding of guilty in the case of a juvenile, under the following shall be considered a conviction of section 25-251:

(i) The provisions of Code of Virginia, § 18.2-36.1, or the substantially similar laws of any other state or of the United States,

(ii) The provisions of Code of Virginia, §§ sections 18.2-51.4, 18.2-266; Code of Virginia, former § 18.1-54 (formerly § 18-75); the ordinance of any county, city or town in this commonwealth or the laws of any

other state or of the United States substantially similar to the provisions of Code of Virginia, § 18.2-51.4 or 18.2-266, or

(iii) The provisions of Code of Virginia, § 46.2-341.24A, or the substantially similar laws of any other state or of the United States.

(e) Mandatory minimum punishments imposed pursuant to this section shall be cumulative, and mandatory minimum terms of confinement shall be served consecutively. However, in no case shall punishment imposed hereunder exceed the applicable statutory maximum class 1 misdemeanor term of confinement or fine upon conviction of a first or second offense.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-255.1. Reimbursement of expenses incurred in responding to DUI incidents.

(a) A person convicted of any of the following provisions shall, at the time of sentencing or in a separate civil action, be liable to the city for restitution of reasonable expenses incurred by the city for responding law enforcement, firefighting, rescue and emergency services, including those incurred by the sheriff's office of the city, when providing an appropriate emergency response to any accident or incident related to such violation. Further, a person convicted of violating any of the following provisions shall, at the time of sentencing or in a separate civil action, be liable to the city for restitution of reasonable expenses incurred by the city when issuing any related arrest warrant or summons, including expenses incurred by the sheriff's office of the city:

(1) The provisions of Code of Virginia §§ 18.2-36.1, 18.2-51.4, 18.2-266, 18.2-266.1, 29.1-738, 29.1-738.02 or 46.2-341.24 or a similar city ordinance, when such operation of a motor vehicle, engine, train or watercraft while so impaired is the proximate cause of the accident or incident;

(2) The provisions of Code of Virginia, title 46.2, chapter 8, article 7, (§ 46.2-852 et seq.), relating to reckless driving, or a similar city ordinance, when such reckless driving is the proximate cause of the accident or incident;

(3) The provisions of Code of Virginia, title 46.2, chapter 3, article 1 (§ 46.2-300 et seq.), as amended, relating to driving without a license or driving with a suspended or revoked license, or a similar city ordinance; and

(4) The provisions of Code of Virginia § 46.2-894, as amended, relating to improperly leaving the scene of an accident, or a similar city ordinance.

(b) Personal liability under this section for reasonable expenses of an appropriate emergency response pursuant to subsection (a) shall not exceed one thousand dollars ($1,000.00) in the aggregate for a particular accident, arrest or incident occurring in such city. In determining "reasonable expenses", the city may bill a flat fee of two hundred fifty dollars ($250.00) or a minute-by-minute accounting of the actual costs incurred. As used in this section "appropriate emergency responses" includes all costs of providing law enforcement, firefighting, rescue, and emergency medical services. The court may order as restitution the reasonable expenses incurred by the locality for responding law enforcement, firefighting, rescue and emergency medical services. The provisions of this section shall not preempt or limit any remedy available to the city to recover the reasonable expenses to an emergency response to an accident or incident not involving impaired driving, operation of a vehicle or other conduct as set forth herein.

(c) The fire and police departments shall compile a report of the reasonable expenses of the appropriate emergency response for each accident or incident and forward that information to the city attorney's office.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-256. Ignition interlock systems; penalty.

(a) For purposes of this section, and Code of Virginia, § 18.2-270.2:

Commission means the Commission on VASAP.

Department means the department of motor vehicles.

Ignition interlock system means a device that:

(i) Connects a motor vehicle ignition system to an analyzer that measures a driver's blood alcohol content;

(ii) Prevents a motor vehicle ignition from starting if a driver's blood alcohol content exceeds 0.02 percent; and

(iii) Is equipped with the ability to perform a rolling retest and to electronically log the blood alcohol content during ignition, attempted ignition and rolling retest.

Rolling retest means a test of the vehicle operator's blood alcohol content required at random intervals during operation of the vehicle, which triggers the sounding of the horn and flashing of lights if:

(i) The test indicates that the operator has a blood alcohol content which exceeds 0.02 percent; or

(ii) The operator fails to take the test.

(b) In addition to any penalty provided by law for a conviction under section 25-251; Code of Virginia, § 18.2-51.4 or § 18.2-266; or a substantially similar ordinance of any county, city or town, any court of proper jurisdiction:

(i) May, for a first offense;

(ii) Shall, for a second or subsequent offense; and

(iii) Shall, for an offense where an offender's blood alcohol content equals or exceeds 0.15 percent, as a condition of a restricted license or as a condition of license restoration under subsection 25-257.1(c), Code of Virginia, § 18.2-271.1C; or Code of Virginia, § 46.2-391; prohibit an offender from operating a motor vehicle that is not equipped with a functioning, certified ignition interlock system for any period of time not to exceed the period of license suspension and restriction, not less than six (6) consecutive months without alcohol-related violations of the interlock requirements, and shall require that such a system be installed on each motor vehicle, as defined in Code of Virginia § 46.2-100 owned by or registered to the offender, in whole or in part, for such period of time.

Such condition shall be in addition to any purposes for which a restricted license may be issued pursuant to Code of Virginia, § 18.2-271.1. The court may order the installation of an ignition interlock system to commence immediately upon conviction. A fee of twenty dollars ($20.00) to cover court and administrative costs related to the ignition interlock system shall be paid by any such offender to the clerk of the court. The court shall require the offender to install an electronic log device with the ignition interlock system on a vehicle designated by the court to measure the blood alcohol content at each attempted ignition and random rolling retest during operation of the vehicle. The offender shall be enrolled in and supervised by an alcohol safety action program pursuant to section 25-257.1 or Code of Virginia § 18.2-271.1, and to conditions established by regulation under Code of Virginia, § 18.2-270.2 by the commission during the period for which the court has ordered installation of the ignition interlock system. The offender shall be further required to provide to such program, at least quarterly during the period of court ordered ignition interlock installation, a printout from such electronic log indicating the offender's blood alcohol content during such ignitions, attempted ignitions, and rolling retests, and showing attempts to circumvent or tamper with the equipment.

(c) In any case in which the court requires the installation of an ignition interlock system, the court shall direct the offender not to operate any motor vehicle which is not equipped with such a system for the period of time that installation is ordered. The clerk of the court shall file with the department of motor vehicles a copy of the order, which shall become a part of the offender's operator's license record maintained by the department. The department shall issue to the offender for the installation period required by the court, a restricted license which shall appropriately set forth the restrictions required by the court under this subsection and any other restrictions imposed upon the offender's driving privilege, and shall also set forth any exception granted by the court under subsection (f).

(d) The offender shall be ordered to provide the appropriate ASAP program, within thirty (30) days of the effective date of the order of court, proof of the installation of the ignition interlock system. The program shall require the offender to have the system monitored and calibrated for proper operation at least every thirty (30) days by an entity approved by the commission under the provisions of Code of Virginia, § 18.2-270.2, and to demonstrate proof thereof. The offender shall pay the cost of leasing or buying and monitoring and maintaining the ignition interlock system. Absent good cause shown, the court may revoke the offender's driving privilege for failing to:

(i) Timely install such system; or

(ii) Have the system properly monitored and calibrated.

(e) No person shall start or attempt to start a motor vehicle equipped with an ignition interlock system for the purpose of providing an operable motor vehicle to a person who is prohibited under this section from operating a motor vehicle that is not equipped with an ignition interlock system. No person shall tamper with, or in any way attempt to circumvent the operation of, an ignition interlock system that has been installed in the motor vehicle of a person under this section. Except as authorized in subsection (g), no person shall knowingly furnish a motor vehicle not equipped with a functioning ignition interlock system to any person prohibited under subsection (b) from operating any motor vehicle which is not equipped with such system. A violation of this subsection shall be punishable as a class 1 misdemeanor.

(f) Any person prohibited from operating a motor vehicle under subsection (b) may, solely in the course of his employment, operate a motor vehicle which is owned or provided by his employer without installation of an ignition interlock system, if the court expressly permits such operation as a condition of a restricted license at the request of the employer, but such person may not operate a school bus, school vehicle, or a commercial motor vehicle as defined in Code of Virginia, § 46.2-341.1. This subsection shall not apply if such employer is an entity wholly or partially owned or controlled by the person otherwise prohibited from operating a vehicle without an ignition interlock system.

(g) The commission shall promulgate such regulations and forms as are necessary to implement the procedures outlined in this section.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-257. Forfeiture of driver's license for driving while intoxicated.

(a) Except as provided in section 25-257.1 or Code of Virginia, § 18.2-271.1, the judgment of conviction if for a first offense under Code of Virginia, § 18.2-266, or for a similar offense under any county, city, or town ordinance, or for a first offense under Code of Virginia, § 46.2-341.24A, shall of itself operate to deprive the person so convicted of the privilege to drive or operate any motor vehicle, engine or train in the commonwealth for a period of one year from the date of such judgment. This suspension period shall be in addition to the suspension period provided under Code of Virginia, § 46.2-391.2.

(b) If a person:

(i) Is tried on a process alleging a second offense of violating section 25-251, Code of Virginia, § 18.2-266; or Code of Virginia § 46.2-341.24A; or any substantially similar local ordinance, or law of any other jurisdiction, within ten (10) years of a first offense for which the person was convicted, or found guilty in the case of a juvenile, under section 25-251, Code of Virginia, § 18.2-266; or Code of Virginia, or § 46.2-341.24A; or any valid local ordinance or any law of any other jurisdiction substantially similar to Code of Virginia, § 18.2-266; or Code of Virginia § 46.2-341.24A; and

(ii) Is convicted thereof,

such conviction shall of itself operate to deprive the person so convicted of the privilege to drive or operate any motor vehicle, engine or train in the commonwealth for a period of three (3) years from the date of the judgment of conviction and such person shall have his license revoked as provided in Code of Virginia, § 46.2-391A. The court trying

such case shall order the surrender of the person's driver's license, to be disposed of in accordance with Code of Virginia, § 46.2-398, and shall notify such person that his license has been revoked for a period of three (3) years and that the penalty for violating that revocation is as set out in Code of Virginia, § 46.2-391. This suspension period shall be in addition to the suspension period provided under Code of Virginia, § 46.2-391.2. Any period of license suspension or revocation imposed pursuant to this section, in any case, shall run consecutively with any period of suspension for failure to permit a blood or breath sample to be taken as required by sections 25-253 through 25-253.10, or Code of Virginia, §§ 18.2-268.1 through 18.2-268.12; or Code of Virginia, §§ 46.2-341.26:1 through 46.2-341.26:11.

(c) If a person:

(i) Is tried on a process alleging a third or subsequent offense of violating section 25-251; Code of Virginia, § 18.2-266; or Code of Virginia, § 46.2-341.24A; or any substantially similar local ordinance, or law of any other jurisdiction, within ten (10) years of two (2) other offenses for which the person was convicted, or found not innocent in the case of a juvenile, under Code of Virginia, § 18.2-266; or Code of Virginia, § 46.2-341.24A; or any valid local ordinance or any law of any other jurisdiction substantially similar to Code of Virginia, § 18.2-266; or Code of Virginia, § 46.2-341.24A; and

(ii) Is convicted thereof,

such conviction shall of itself operate to deprive the person so convicted of the privilege to drive or operate any motor vehicle, engine or train in the commonwealth and such person shall not be eligible for participation in a program pursuant to Code of Virginia, § 18.2-271.1; or a similar ordinance, and shall, upon such conviction, have his license revoked as provided in Code of Virginia, § 46.2-391B. The court trying such case shall order the surrender of the person's driver's license, to be disposed of in accordance with Code of Virginia, § 46.2-398, and shall notify such person that his license has been revoked indefinitely and that the penalty for violating that revocation is as set out in Code of Virginia, § 46.2-391.

(d) Notwithstanding any other provision of this section, the period of license revocation or suspension shall not begin to expire until the person convicted has surrendered his license to the court or to the department of motor vehicles.

(e) The provisions of this section shall not apply to, and shall have no effect upon, any disqualification from operating a commercial motor vehicle imposed under the provisions of the Commercial Driver's License Act (Code of Virginia, § 46.2-341.1 et seq.).
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-257.1. Probation, education and rehabilitation of person charged or convicted; person convicted under law of another state.

(a) Any person convicted of a first or second offense of section 25-251(i), (ii), (iii) or (iv); or provisions of Code of Virginia, § 46.2-341.24A; shall be required by court order, as a condition of probation or otherwise, to enter into and successfully complete an alcohol safety action program in the judicial district in which such charge is brought or in any other judicial district upon such terms and conditions as the court may set forth. However, upon motion of a person convicted of any such offense following an assessment of the person conducted by an alcohol safety action program, the court, for good cause, may decline to order participation in such a program if the assessment by the alcohol safety action program indicates that intervention is not appropriate for such person. In no event shall such persons be permitted to enter any such program which is not certified as meeting minimum standards and criteria established by the Commission on the Virginia Alcohol Safety Action Program (VASAP) pursuant to subsection (h) and to Code of Virginia, § 18.2-271.2. However, any person charged with a violation of a first or second offense of section 25-251(i), (ii), (iii) or (iv), or provisions of Code of Virginia, § 46.2-351.24A; may, at any time prior to trial, enter into an alcohol safety action

program in the judicial district in which such charge is brought or in any other judicial district.

(b) The court shall require the person entering such program under the provisions of this section to pay a fee of no less than two hundred fifty dollars ($250.00) but no more than three hundred dollars ($300.00). A reasonable portion of such fee, as may be determined by the Commission on VASAP, but not to exceed ten (10) percent, shall be forwarded monthly to be deposited with the state treasurer for expenditure by the Commission on VASAP, and the balance shall be held in a separate fund for local administration of driver alcohol rehabilitation programs. Upon a positive finding that the defendant is indigent, the court may reduce or waive the fee. In addition to the costs of the proceeding, fees as may reasonably be required of defendants referred for intervention under any such program may be charged.

(c) Upon conviction of a violation of section 25-251, Code of Virginia, § 18.2-266, or any ordinance of a county, city or town similar to the provisions thereof, or Code of Virginia, § 46.2-341.24A; the court shall impose the sentence authorized by section 25-255, Code of Virginia, § 18.2-270; or Code of Virginia, § 46.2-341.28; and the license revocation as authorized by section 25-257 and Code of Virginia, § 18.2-271. In addition, if the conviction was for a second offense committed within less than ten (10) years after a first such offense, the court shall order that restoration of the person's license to drive be conditioned upon the installation of an ignition interlock system on each motor vehicle, as defined in Code of Virginia, § 46.2-100, owned by or registered to the person, in whole or in part, for a period of six (6) months beginning at the end of the three-year license revocation, unless such a system has already been installed for six (6) months prior to that time pursuant to a restricted license order under subsection (e). Upon a finding that a person so convicted is required to participate in the program described herein, the court shall enter the conviction on the warrant, and shall note that the person so convicted has been referred to such program. The court may then proceed to issue an order in accordance with subsection (e), if the court finds that the person so convicted is eligible for a restricted license. If the court finds good cause for a person not to participate in such program or subsequently that such person has violated, without good cause, any of the conditions set forth by the court in entering the program, the court shall dispose of the case as if no program had been entered, in which event the revocation provisions of Code of Virginia, §§ 46.2-389, and 46.2-391, subsection A, shall be applicable to the conviction. The court shall, upon final disposition of the case, send a copy of its order to the Commissioner of the Department of Motor Vehicles. If such order provides for the issuance of a restricted license, the Commissioner of the Department of Motor Vehicles, upon receipt thereof, shall issue a restricted license. Appeals from any such disposition shall be allowed as provided by law. The time within which an appeal may be taken shall be calculated from the date of the final disposition of the case or any motion for rehearing, whichever is later.

(d) Any person who has been convicted in another state of the violation of a law of such state substantially similar to the provisions of Code of Virginia, § 18.2-266; or Code of Virginia, § 46.2-341.24A; and whose privilege to operate a motor vehicle in this commonwealth is subject to revocation under the provisions of Code of Virginia, §§ 46.2-389 and 46.2-391A, may petition the general district court of the county or city in which he resides that he be given probation and assigned to a program as provided in subsection (a) and that, upon entry into such program, he be issued an order in accordance with subsection (e). If the court finds that such person would have qualified therefor if he had been convicted in this commonwealth of a violation of Code of Virginia, §§ 18.2-266 or 46.2-341.24A, the court may grant the petition and may issue an order in accordance with subsection (e) as to the period of license suspension or revocation imposed pursuant to Code of Virginia, §§ 46.2-389 or 46.2-391A. Such order shall be conditioned upon the successful completion of a program by the petitioner. If the court subsequently finds that such person has violated any of the conditions set forth by the court, the court shall dispose of the case as if no program had been entered and shall notify the commissioner, who shall revoke the person's license in accordance with the provisions of Code of

Virginia, §§ 46.2-389 or 46.2-391A. A copy of the order granting the petition or subsequently revoking or suspending such person's license to operate a motor vehicle shall be forthwith sent to the Commissioner of the Department of Motor Vehicles.

No period of license suspension or revocation shall be imposed pursuant to this subsection which, when considered together with any period of license suspension or revocation previously imposed for the same offense in any state, results in such person's license being suspended for a period in excess of the maximum periods specified in this subsection.

(e) Except as otherwise provided herein, whenever a person enters a certified program pursuant to this section, and such person's license to operate a motor vehicle, engine or train in the commonwealth has been suspended or revoked, the court may, in its discretion and for good cause shown, provide that such person be issued a restricted permit to operate a motor vehicle for any of the following purposes:

(i) Travel to and from his place of employment;

(ii) Travel to and from an alcohol rehabilitation or safety action program;

(iii) Travel during the hours of such person's employment if the operation of a motor vehicle is a necessary incident of such employment;

(iv) Travel to and from school if such person is a student, upon proper written verification to the court that such person is enrolled in a continuing program of education;

(v) Travel for health care services, including medically necessary transportation of an elderly parent or, as designated by the court, any person residing in the person's household with a serious medical problem upon written verification of need by a licensed health professional;

(vi) Travel necessary to transport a minor child under the care of such person to and from school, day care, and facilities housing medical service providers;

(vii) Travel to and from court-ordered visitation with a child of such person;

(viii) Travel to a screening, evaluation and education program entered pursuant to Code of Virginia, § section 18.2-251 or § 18.2-258.1H; or

(ix) Travel to and from court appearances in which he is a subpoenaed witness or a party and appointments with his probation officer and to and from any programs required by the court or as a condition of probation;

(x) Travel to and from a place of religious worship one day per week at a specified time and place; or

(xi) Travel to and from appointments approved by the division of child support enforcement of the department of social services as a requirement of participation in a court-ordered intensive case monitoring program for child support for which the participant maintains written proof of the appointment, including written proof of the date and time of the appointment, on his person.

No restricted license issued pursuant to this subsection shall permit any person to operate a commercial motor vehicle as defined in the Virginia Commercial Driver's License Act (Code of Virginia, § 46.2-341.1, et seq.). The court shall order the surrender of such person's license to operate a motor vehicle to be disposed of in accordance with the provisions of Code of Virginia, § 46.2-398, and shall forward to the Commissioner of the Department of Motor Vehicles a copy of its order entered pursuant to this subsection, which shall specifically enumerate the restrictions imposed and contain such information regarding the person to whom such a permit is issued as is reasonably necessary to identify such person. The court shall also provide a copy of its order to the person so convicted who may operate a motor vehicle on the order until receipt from the

Commissioner of the Department of Motor Vehicles of a restricted license, if the order provides for a restricted license for that time period. A copy of such order and, after receipt thereof, the restricted license shall be carried at all times while operating a motor vehicle. Any person who operates a motor vehicle in violation of any restrictions imposed pursuant to this section shall be guilty of a violation of section 25-258 or Code of Virginia, § 18.2-272. Such restricted license shall be conditioned upon enrollment within fifteen (15) days in, and successful completion of, a program as described in subsection (a). No restricted license shall be issued during the first four (4) months of a revocation imposed pursuant to section 25-257; Code of Virginia, § 18.2-271B; or Code of Virginia, § 46.2-391; for a second offense of the type described therein committed within ten (10) years of a first such offense. No restricted license shall be issued during the first year of a revocation imposed pursuant to section 25-257, Code of Virginia, § 18.2-271B; or Code of Virginia, § 46.2-391A; for a second offense of the type described therein committed within five (5) years of a first such offense. No restricted license shall be issued during any revocation period imposed pursuant to section 25-257; Code of Virginia, § 18.2-271C; or Code of Virginia, § 46.2-391B; or subsection (c). Notwithstanding the provisions of Code of Virginia, § 46.2-411, the fee charged pursuant to Code of Virginia, § 46.2-411, for reinstatement of the driver's license of any person whose privilege or license has been suspended or revoked as a result of a violation of Code of Virginia, § 18.2-266 or § 46.2-341.24A; or of any ordinance of a county, city or town, or of any federal law or the laws of any other state similar to the provisions of Code of Virginia, § 18.2-266; or Code of Virginia, § 46.2-341.24A; shall be one hundred five dollars ($105.00). Forty dollars ($40.00) of such reinstatement fee shall be retained by the Department of Motor Vehicles as provided in Code of Virginia, § 46.2-411; forty dollars ($40.00) shall be transferred to the Commission on VASAP, and twenty-five dollars ($25.00) shall be transferred to the Commonwealth Neurotrauma Initiative Trust Fund.

(f) The court shall have jurisdiction over any person entering such program under any provision of this section until such time as the case has been disposed of by either successful completion of the program, or revocation due to ineligibility or violation of a condition or conditions imposed by the court, whichever shall first occur. Revocation proceedings shall be commenced by notice to show cause why the court should not revoke the privilege afforded by this section. Such notice shall be made by first class mail to the last known address of such person, and shall direct such person to appear before the court in response thereto on a date contained in such notice, which shall not be less than ten (10) days from the date of mailing of the notice. Failure to appear in response to such notice shall of itself be grounds for revocation of such privilege. Notice of revocation under this subsection shall be sent forthwith to the Commissioner of the Department of Motor Vehicles.

(g) For the purposes of this section, any court which has convicted a person of a violation of section 25-251; Code of Virginia, § 18.2-266 or § 46.2-341.24A; or any ordinance of a county, city or town similar to the provisions of Code of Virginia, § 18.2-266, shall have continuing jurisdiction over such person during any period of license revocation related to that conviction, for the limited purposes of:

(i) Referring such person to a certified alcohol safety action program,

(ii) Providing for a restricted permit for such person in accordance with the provisions of subsection (e), and

(iii) Imposing terms, conditions and limitations for actions taken pursuant to clauses (i) and (ii), whether or not it took either such action at the time of the conviction.

This continuing jurisdiction is subject to the limitations of subsection (e) that provide that no restricted license shall be issued during a revocation imposed pursuant to Code of Virginia, § 18.2-271C; or Code of Virginia, § 46.2-391B; or during the first four (4) months or first year, whichever is applicable, of the revocation imposed pursuant to Code of Virginia, § 18.2-271B; or Code of Virginia, § 46.2-391A. The provisions of this subsection shall apply to a person convicted of a violation of Code of Virginia, § 18.2-266A; of Code of Virginia, § 46.2-341.24; or any ordinance of a county, city or

town similar to the provisions of Code of Virginia, § 18.2-266, on, after and at any time prior to July 1, 2003.

(h) The state treasurer, the Commission on VASAP or the city is authorized to accept any gifts or bequests of money or property, and any grant, loan, service, payment or property from any source, including the federal government, for the purpose of driver alcohol education. Any such gifts, bequests, grants, loans or payments shall be deposited in the separate fund provided in subsection (b).

(i) The Commission on VASAP, or any county, city, town, or any combination thereof may establish and, if established, shall operate, in accordance with the standards and criteria required by this subsection, alcohol safety action programs in connection with highway safety. Each such program shall operate under the direction of a local independent policy board chosen in accordance with procedures approved and promulgated by the Commission on VASAP. Local sitting or retired district court judges who regularly hear or heard cases involving driving under the influence and are familiar with their local alcohol safety action programs may serve on such boards. The Commission on VASAP shall establish minimum standards and criteria for the implementation and operation of such programs and shall establish procedures to certify all such programs to ensure that they meet the minimum standards and criteria stipulated by the commission. The commission shall also establish criteria for the administration of such programs for public information activities, for accounting procedures, for the auditing requirements of such programs and for the allocation of funds. Funds paid to the commonwealth hereunder shall be utilized in the discretion of the Commission on VASAP to offset the costs of state programs and local programs run in conjunction with any county, city or town and costs incurred by the commission. The commission shall submit an annual report as to actions taken at the close of each calendar year to the governor and the general assembly.

(j) Notwithstanding any other provisions of this section or of Code of Virginia, § 18.2-271, as amended, nothing in this section shall permit the court to suspend, reduce, limit, or otherwise modify any disqualification from operating a commercial motor vehicle imposed under the provisions of the Virginia Commercial Driver's License Act (Code of Virginia, § 46.2-341.1 et seq., as amended). (Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-258. Driving after forfeiture of license.

(a) Any person who drives or operates any motor vehicle, engine or train in the commonwealth during the time for which he was deprived of the right to do so:

(i) Upon conviction of a violation of section 25-253.2, subsection 25-255(e), or Code of Virginia, §§ 18.2-268.3 or 18.2-270E,

(ii) By section 25-257, Code of Virginia, § 18.2-271 or 46.2-391.2,

(iii) After his license has been revoked pursuant to Code of Virginia § 46.2-389 or 46.2-391, or

(iv) In violation of the terms of a restricted license issued pursuant to subsection 25-257.1(e), or Code of Virginia, § 18.2-271.1E,

is guilty of a class 1 misdemeanor except as otherwise provided in Code of Virginia, § 46.2-391, and is subject to administrative revocation of his driver's license pursuant to Code of Virginia, §§ 46.2-389 and 46.2-391.

Nothing in this section or sections 25-251, 25-255, 25-257, or Code of Virginia, § 18.2-266, 18.2-270 or 18.2-271, shall be construed as conflicting with or repealing any ordinance or resolution of any city, town or county which restricts still further the right of such persons to drive or operate any such vehicle or conveyance.

(b) Regardless of compliance with any other restrictions on his privilege to drive or operate a motor vehicle, it shall be a violation of this section for any person whose privilege to drive or operate a motor vehicle has been restricted, suspended or revoked because of a violation of Code of Virginia, § 18.2-36.1, 18.2-51.4, 18.2-266, 18.2-268.3, 46.2-341.24, or a similar ordinance or law of another

state or the United States to drive or operate a motor vehicle while he has a blood alcohol content of 0.02 percent or more.

Any person suspected of a violation of this subsection shall be entitled to a preliminary breath test in accordance with the provisions of section 25-252, or Code of Virginia, § 18.2-267, shall be deemed to have given his implied consent to have samples of his blood, breath or both taken for analysis pursuant to the provisions of section 25-253.1 or Code of Virginia, § section 18.2-268.2, and, when charged with a violation of this subsection, shall be subject to the provisions of sections 25-253 through 25-253.10, or Code of Virginia, §§ 18.2-268.1 through 18.2-268.12.

(c) Any person who drives or operates a motor vehicle without a certified ignition interlock system as required by Code of Virginia, § 46.2-391.01, is guilty of a Class 1 misdemeanor and is subject to administrative revocation of his driver's license pursuant to Code of Virginia, §§ 46.2-389 and 46.2-391.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-259. Report of conviction to Department of Motor Vehicles.

The clerk of every court of record and the judge of every court not of record shall, within thirty (30) days after final conviction of any person in his court under the provisions of this article, report the fact thereof and the name, post office address and street address of such person, together with the license plate number on the vehicle operated by such person to the Commissioner of the Department of Motor Vehicles who shall preserve a record thereof in his office.
(Ord. No. 44,066, § 1, 12-7-10)

Sec. 25-260. Driving commercial motor vehicle with any alcohol in blood.

No person shall drive a commercial motor vehicle while having any amount of alcohol in his blood, as measured by a test administered pursuant to the provisions of Code of Virginia, §§ 46.2-341.25:1 through 46.2-341.26:11. Any person found to have so driven a commercial motor vehicle shall be guilty of a traffic infraction.
(Ord. No. 44,066, § 1, 12-7-10)

Secs. 25-261—25-275. Reserved.

ARTICLE VIII. STOPPING, STANDING AND PARKING GENERALLY*

Sec. 25-276. Definitions.

(1) *Generally.* For the purposes of this article, certain words and terms used herein shall have the meanings ascribed to them by this section, unless clearly indicated to the contrary.

(2) *Block.* The word "block," as used in this article or on any street or parking sign shall include the roadway of any street, lane or alley, between the curb and the center line of the street, extending between two (2) lateral streets.

(3) *Parking.* The term "parking" means the standing of any vehicle on the streets, lanes or alleys of the city, attended or unattended, for a period of time greater than is necessary for the taking on or discharging of passengers or merchandise.

(4) *Zone.* The word "zone" shall include the space in the roadway of any street, lane or alley designated for the purpose indicated by this article.
(Code 1958, § 29-600)

Sec. 25-277. Stopping or parking on highways generally.

(1) No vehicle shall be stopped in such a manner as to impede or render dangerous the use of the highways by others; except in the case of an emergency as the result of an accident or

*__Cross references—__Parking of vehicles for advertising purposes prohibited on certain streets, § 3-9; zones for regulating parking and stopping at airport, §§ 4-38, 4-39; parking of vehicles used for sale of ice cream, § 18-170; open storage of inoperable vehicles, § 29-58; parking of vehicles in parks, § 30-54; parking of vehicles on pedestrian malls, § 31-8 et seq.; standing vehicle on railroad tracks, § 35-7; trailer coaches not to be parked on street or other public place, § 44-3.

mechanical breakdown, in which case, the emergency flashing lights of such vehicle shall be turned on, if the vehicle is equipped with such lights and such lights are operating, and a report shall be made to the nearest police officer as soon as practicable and the vehicle shall be removed from the roadway to the shoulder as soon as possible and removed from the shoulder without unnecessary delay. If such vehicle is not promptly removed, such removal may be ordered by a police officer, at the expense of the owner, if the disabled vehicle creates a traffic hazard.

(2) No vehicle shall be stopped except close to and parallel to the right-hand edge of the curb or roadway, except that a vehicle may be stopped close to and parallel to the left-hand curb or edge of the roadway on one-way streets, or it may be parked at an angle where permitted by the city manager with respect to streets under the jurisdiction of the city.

(3) No vehicle shall be stopped at or in the vicinity of a fire, vehicle or airplane accident or other area of emergency, in such a manner as to create a traffic hazard or interfere with the necessary procedures of police, firefighters, rescue workers or others whose duty it is to deal with such emergencies. Any vehicle found unlawfully parked in the vicinity of such fire, accident or area of emergency may be removed by order of a police officer at the risk and expense, not to exceed twenty-five dollars ($25.00), of the owner, if such vehicle creates a traffic hazard or interferes with the necessary procedures of police, firefighters, rescue workers or others whose assigned duty it is to deal with such emergencies. Vehicles being used by accredited information services, such as press, radio and television, when being used for the gathering of news, shall be exempt from the provisions of this subsection, except when actually obstructing the police, firefighters and rescue workers dealing with such emergencies.

(4) The provisions of this section shall not apply to any vehicle owned or controlled by the state department of highways and transportation or the city while actually engaged in the construction, reconstruction or maintenance of highways.

(Code 1958, § 29-595)

State law reference—Similar provisions, Code of Virginia, § 46.2-888—46.2-891.

Sec. 25-277.1. Display a current, valid state license and a current state inspection for parking in public place.

It shall be unlawful for any motor vehicle, trailer or semitrailer to be parked on any of the streets, alleys, lanes or public places of the city without a current, valid state license and current state inspection displayed.

(Ord. No. 30,756, § 2, 8-26-80; Ord. No. 47,919, § 1, 2-25-20)

Editor's note—Ord. No. 30,756, § 2, adopted Aug. 26, 1980, added § 29-608.3 to the 1958 Code; the editor has included these provisions as § 25-277.1.

Sec. 25-278. Brake to be set, motor stopped and wheels turned to curb when leaving vehicle unattended.

No person having control or charge of a motor vehicle shall allow such vehicle to stand on any highway unattended, without first effectively setting the hand brake thereon, stopping the motor and turning the front wheels into the curb or side of the highway.

(Code 1958, § 29-764)

State law reference—Similar provisions, Code of Virginia, § 46.2-1071.

Sec. 25-279. Manner of parking.

Unless otherwise directed upon the sign indicating the zone to be established, all vehicles shall be parked parallel with the curb and not more than six (6) inches therefrom and in conformity with the general direction of traffic.

(Code 1958, § 29-609)

Sec. 25-280. General parking prohibitions.

No person shall park a vehicle or permit it to stand, whether attended or unattended, in the following areas:

(a) In front of a public or private driveway on a street or alley, or within three (3) feet of the edge of the driveway entrance, unless otherwise indicated;

(b) On any improved or unimproved area between the paved vehicular portion of any public right-of-way and the private property line; provided however that this subsection shall not apply to the parking of a vehicle on the unimproved portion of the public right-of-way where there is no curb and gutter and there is no sign prohibiting such parking;

(c) Within fifteen (15) feet in either direction of a fire hydrant or the entrance to a fire station;

(d) Within twenty (20) feet from the intersection of curb lines, or, if none, then within fifteen (15) feet of the intersection of property lines at an intersection of highways;

(e) Between a safety zone and the adjacent curb or within twenty (20) feet of a point on a curb immediately opposite the end of a safety zone;

(f) Within the limits of any pedestrian crosswalk, or so as to prevent the use of a curb ramp located on public property or on private property which is open to the public; or

(g) Within the space opposite that portion of any street or roadway occupied by building or other materials or within twenty (20) feet of a point opposite the same.

(Code 1958, § 29-605; Ord. No. 34,175, § 1, 10-14-86; Ord. No. 39,123, § 1, 4-28-98; Ord. No. 40,096, § 1, 8-29-00; Ord. No. 40,986, § 1, 3-18-03; Ord. No. 42,393, § 1, 9-12-06; Ord. No. 42,795, § 1, 8-21-07)

State law reference—Parking in front of driveways, near fire hydrants, etc., Code of Virginia, § 46.1-255.

Sec. 25-281. Parking near scene of fire.

It shall be unlawful for the driver of any vehicle, other than one on official business, to park such vehicle within five hundred (500) feet of where fire apparatus has stopped in answer to a fire alarm.

(Code 1958, § 29-72)

State law reference—Similar provisions, Code of Virginia, § 46.1-227.

Sec. 25-282. Regulatory zones authorized and adopted.

(1) *Generally.* For the purpose of regulating the stopping and parking of vehicles on the streets of the city, the classes of zones referred to in the following subsections of this section are hereby authorized and adopted.

(2) *Nonstop zone.* A nonstop zone is a zone in which it shall be unlawful for the operator of any vehicle to stop such vehicle except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or traffic sign or signal. Such space may be designated by a painted curb or by a sign reading "Stopping Prohibited," or other words clearly so indicating, or by both such painting and signs.

(3) *Curb loading zone.* A curb loading zone is a zone exclusively set apart for the loading and unloading of passengers, the handicapped, or merchandise and materials. It may be designated as a passenger loading zone, handicapped loading zone or a merchandise loading zone in which event it shall be for the exclusive use indicated. It may be designated by the painting of the curb and/or by the erecting of a sign so indicating the time limit of such parking and the hours of the day in which such time limit is applicable. No person shall stop, stand or park a vehicle for any purpose other than for the expeditious unloading and delivery or pickup and loading of passengers, the handicapped, or merchandise and materials in any place marked as a curb loading zone or for a length of time greater than the time limit indicated on such signs during hours when the provisions applicable to such zones are in effect; provided, however, that all delivery vehicles, other than regular delivery trucks, using such loading zones shall be identified by the owner's or company's name in letters three (3) inches high on both sides of the vehicle. The driver of a vehicle may stop temporarily in a space marked as a curb loading zone for the purpose of and while actually engaged in loading or unloading of passengers, the handicapped, or merchandise and materials.

(4) *Public car zone.* A public car zone is a zone set apart for the exclusive use of taxicabs, for-hire cars, buses or other public conveyances, and may, by a sign so indicating, be designated for the exclusive use of any kind of said vehicles.*

(5) *No parking zone.* A no parking zone is a zone in which parking of all vehicles shall be prohibited. It may be designated by painting on the roadway or by the erection of a sign so indicating, or both.

(6) *Limited parking zone.* A limited parking zone is a zone in which the parking of all vehicles shall be for a limited time. It may be designated by painting on the roadway or by the erection of a sign indicating the time limit of such parking and the hours of the day in which such limit is applicable.

(7) Reserved.

(8) *Bus stop zone.* A bus stop zone is a zone designated for the loading and unloading of passengers to and from buses. It may be designated by markings on the streets and/or by the erecting of a sign. No person shall stop, stand or park a vehicle other than a bus in such bus stop, when such stop has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in the expeditious loading or unloading of passengers when such stopping does not interfere with any bus waiting to enter or about to enter such zone.

(9) *No bus parking zone.* A no bus parking zone is a zone in which the parking of buses shall be prohibited. It may be designated by painting on the roadway or by the erection of a sign so indicating, or both.

(10) *Valet parking zones.* A valet parking zone is a zone exclusively set apart for the parking of vehicles by any valet person, association, firm, company or corporation as duly authorized by the city manager. It may be designated by the painting of the curb and/or by the erecting of a sign so indicating such parking. No person shall stop, stand or park a vehicle when such parking has been officially designated and appropriately signed.

(11) *Courier parking zones.* A courier parking zone is a zone exclusively set apart for the parking of vehicles by any courier as duly authorized by the city manager. It may be designated by the painting of the curb and/or by the erecting of a sign so indicating such parking. No person shall stop, stand or park a vehicle when such parking has been officially designated and appropriately signed.

(Code 1958, § 29-601; Ord. No. 31,284, § 1, 7-28-81; Ord. No. 33,941, § 1, 4-8-86; Ord. No. 37,278, § 1, 6-8-93; Ord. No. 37,868, § 1, 1-17-95; Ord. No. 39,014, § 1, 1-13-98; Ord. No. 39,860, § 1, 2-1-00; Ord. No. 40,096, § § 1, 8-29-00)

Sec. 25-283. Designation of zones; obedience to signs or markers.

(1) Subject to the limitations contained in this chapter, the city manager is hereby authorized to designate such portions of the streets, lanes or alleys of the city as in his judgment may be most compatible with the public interest, for the creating of the zones set forth in section 25-282, to regulate the stopping and parking of vehicles and to put the regulations herein provided for into effect. Whenever any such zone is established, it shall be appropriately designated and marked by painting or signs, or both, and when so designated and marked, it shall be unlawful for any person to stop or park or cause or permit to be stopped or parked any vehicle contrary to such sign or designation, or in excess of the time indicated thereby.

(2) The chief of police is hereby authorized, with the approval of the city manager, from time to time, to establish safety zones in the streets of the city at such points as conditions may warrant or render necessary. Whenever a safety zone is established pursuant to this subsection, it shall be designated as provided in section 25-282. It shall be unlawful for any person to fail, neglect or refuse to comply with such designation.

(Code 1958, §§ 29-602, 29-604)

Sec. 25-284. Fee for designating and marking loading zones.

Upon the establishment of a loading zone at the request of any person, association, firm, com-

*__Cross reference—__Designation and assignment of public vehicle stands by chief of police, § 34-30.

__Cross reference—__Zones for regulating parking and stopping at airport, §§ 4-38, 4-39.

pany or corporation, other than the city, State of Virginia, United States of America, or any department, division, bureau or agency thereof, and the designation and marking of such loading zone, the city shall charge and such person, association, firm, company or corporation shall pay to the city a fee of fifty dollars ($50.00).
(Code 1958, § 29-602.2; Ord. No. 33,340, § 1, 3-12-85)

Sec. 25-285. Temporary parking regulations of chief of police or director of public works.

(1) Anything to the contrary in this Code notwithstanding, the chief of police or the director of public works may, from time to time, with the approval of the city manager, temporarily prohibit parking on any street whereon parking is permitted by ordinance or temporarily permit parking on any street whereon parking is prohibited by ordinance.

(2) Whenever a permit is issued by the chief of police or the director of public works temporarily permitting parking on a street whereon parking is normally prohibited or temporarily prohibiting parking on a street whereon parking is normally permitted, a fee of forty dollars ($40.00) shall be charged for each such permit.

(3) Whenever any such temporary regulation is established and the street or portion of street affected is appropriately designated by signs, it shall be unlawful for any person to fail, neglect or refuse to comply with the direction thereof.

(4) This section shall not apply to metered parking spaces.
(Code 1958, § 29-603; Ord. No. 39,188, § 1, 5-26-98; Ord. No. 40,076, § 1, 8-15-00; Ord. No. 47,229, § 30, 5-22-18, eff. 7-1-18)

Sec. 25-285.1. Temporary metered parking regulations of the chief of police or director of facility and enterprise management.

Anything to this Code to the contrary notwithstanding, the chief of police or the director of facility and enterprise management may, from time to time, with the approval of the city manager, temporarily prohibit parking at any on-street metered parking space, whereon parking is permitted by ordinance.

Permits issued pursuant to such prohibition will be issued by the department of facilities and enterprise management's division of parking for a fee the equivalent of fifty (50) percent of the daily on-street meter rate, and with a maximum daily fee of six dollars and thirty cents ($6.30) for Tier One meters; a maximum daily fee of four dollars and fifty cents ($4.50) for Tier Two meters; and a maximum daily fee of two dollars and seventy cents ($2.70) for Tier Three meters.
(Ord. No. 40,076, § 2, 8-15-00; Ord. No. 40,312, § 3, 5-15-01); Ord. No. 40,626, § 3, 2-26-02

Sec. 25-286. Permits for parking in order to perform emergency work.

(1) The city manager is authorized to issue, in such form as he may prescribe, permits to persons engaged in plumbing, heating, electrical and other similar work, to park vehicles in limited parking zones in excess of the time allowed for parking therein, or in no parking zones, in cases where such persons are required to do emergency work and suitable parking space is not available elsewhere for such purpose. Such permits may be issued for a period of ninety (90) days, and successive permits may be issued for like periods.

(2) A separate permit shall be required for each vehicle, and a fee in the amount of fifty dollars ($50.00) shall be charged for each such permit.

(3) Permits issued under this section shall be limited to parking for four (4) hours, shall state the name of the person to whom issued and, in order for the same to be effective, shall be displayed in the vehicle so parked or be in possession of the operator of such vehicle at the time of such parking. Such permits may be revoked by the city manager or successive permits may be refused, when it appears that the same are used in other than emergency cases where parking space is not available for such purpose.

(4) Permits issued under this section shall not authorize the parking of any vehicle in any nonstop zone, public vehicle zone, parking meter zone or in any place where parking is prohibited by section 25-280.
(Code 1958, § 29-611; Ord. No. 39,190, § 1, 5-26-98)

Sec. 25-286.1. Designation of parking permit areas.

(a) *Establishment.* The city manager is hereby authorized to designate, by written order or regulation, roads, streets and other areas within the city in which the parking of vehicles may be restricted, in whole or in part, during certain specified times, to holders of valid parking permits issued pursuant to this section. The city manager shall consider the institution of a parking permit system upon petition by the residents of a given area as provided herein. The authority granted herein shall be in addition to, and may be exercised in conjunction with, any other authority the city manager may have to regulate the times and conditions of motor vehicle parking.

(b) *Standards.* The designation of a parking permit area shall take into account, among other things:

(1) The effect on the safety of residents of the area under consideration from intensive use by nonresidents for parking of vehicles.

(2) The need of the residents of the area to obtain adequate on-street parking adjacent to or close by their places of residence.

(3) The difficulty or inability of residents of the area to secure adequate on-street parking adjacent to or close by their places of residence because of widespread use of available parking spaces in that area by nonresident transient motorists.

(4) The impact of major public facilities and programs on the health, safety and welfare of the residents of the area and any unreasonable burdens placed on those residents in securing adequate on-street parking and gaining access to their places of residence by virtue of such facilities and programs.

(5) The likelihood of alleviating, by use of a parking permit system, any problem of nonavailability of residential parking spaces.

(6) The desire of the residents in the area for the institution of a parking permit system and the willingness of those residents to bear the administrative costs incidental to the issuance of permits authorized by this section.

(7) The fact that the residents of a contemplated parking permit area have contributed to the cost of construction and/or improvement of streets and roads in such area either by the direct assessment of costs or indirectly to the extent such costs are reflected in purchase or rental prices paid by those residents.

(8) The need for some parking spaces to be available in the area under consideration for use by visitors and the general public.

(9) Such other factors as the city manager shall deem relevant.

(c) *Initiation of petition:*

(1) Residents within a particular district or a distinct portion of a district in which residential uses are permitted may petition the city manager for the establishment of an on-street permit parking district. Such petitions shall be on forms prepared and promulgated by the director of the department of public works. Petitions shall be submitted to the director of public works who shall determine their sufficiency. Any insufficient petition shall be remanded to the individual submitting it, with instructions for correction of deficiencies. A petition found sufficient shall be forwarded to the city manager for further action as set forth in paragraphs (d) through (f).

(2) No petition shall be deemed sufficient unless the same be signed by representa-

tives of seventy-five (75) percent of the households within the proposed parking district.

(d) *Action on petition.* When a petition has been found to be sufficient by the director of public works, it shall be referred to the city manager for authorization of necessary traffic engineering studies.

(e) *Public hearing:*

(1) Following the completion of such studies and in order to determine whether a particular area or location should be designated as a parking permit area, the city manager or his designee shall conduct, prior to the designation of parking permit area, or prior to the withdrawal of such designation once it is established, a public hearing at which time any interested person shall be entitled to appear and be heard. Such hearing shall be held only after due notice has been published in a newspaper of general circulation throughout the city. The notice shall clearly state the purpose of the hearing, and the exact location and boundaries of the parking permit area under consideration.

(2) Within forty-five (45) days following the close of the public hearing, the city manager shall decide, based on the record of that hearing and the studies authorized by him, whether or not to designate the area under consideration as a parking permit area or to remove the designation in the case of an established parking permit area. The time for decision by the city manager may be extended for an additional period of thirty (30) days.

(f) *Designation of parking permit area:*

(1) Following the designation of a parking permit area by the city manager, he shall cause to be posted parking signs in the area, indicating the times, locations and conditions under which parking shall be by permit only.

(2) The issuance of parking decals shall be by the division of parking facilities as provided in paragraph (g).

(g) *Issuance of decals; proration:*

(1) A fee of ten dollars ($10.00) per annum shall be charged for the issuance of each parking decal for use on vehicles registered to bona fide residents of the district in a restricted parking district of the city. The fees collected will be used by the city to defray the cost of enforcement of this section and rules, regulations, and orders promulgated by the city manager. Parking decals shall be issued on an annual basis by the division of parking facilities for the period commencing at 12:01 a.m., June 1 and expiring at midnight May 31 of the following year.

(2) The issuance of parking permits shall be by the division of parking facilities as provided in paragraph (h).

(3) Each household qualified pursuant to this section to purchase an annual parking decal shall be issued one complimentary visitor's pass for the use of visitors of such purchaser while residing or visiting on a temporary basis in the home or dwelling place of such purchaser. Such passes shall be subject to any rules and regulations established covering their use.

(4) Additional temporary parking passes shall be issued to be valid for a period not exceeding one calendar month to accommodate unusual visiting requirements for a fee of two dollars ($2.00) each to holders of annual passes.

(5) Decals, temporary and visitors passes are not transferable. If a resident trades a vehicle, he shall carefully scrape the decal from the bumper and return it with his permit form to the division of parking facilities for issuance of a new sticker at no cost. Abuse of these regulations may be grounds for revocation of parking pass privileges by the city.

(6) The annual decal shall be displayed on the left rear bumper of the vehicle. Visitor and temporary parking passes shall be displayed from the rear view mirror of the

vehicle and shall be prominently displayed to be visible from the front of the vehicle.

(7) Decals that have been lost, stolen or destroyed may be reissued for a charge of one dollar ($1.00).

(h) *Enforcement:*

(1) Enforcement of parking regulations shall not be effective until thirty (30) days after signs delineating the parking restrictions have been posted. Emergency and service vehicles when on a call or delivery shall be exempt. Purchase of a parking decal or display of one will not guarantee the holder of a parking place nor exempt a vehicle operator from any City Code regulation governing parking on city streets.

(2) Construction and utility vehicles performing work on streets in the district as well as boat, house and utility trailers shall be exempt from these regulations.

(i) *Violations and penalties.* It shall be unlawful to park any vehicle or use any parking permit in a manner contrary to the provisions established by the city manager pursuant to this section and any person parked in violation of any regulation or sign in any district shall be punished as provided in section 25-295, and any motor vehicle so parked may be towed by or at the direction of the department of police.

(j) *Amendments.* The city manager is hereby authorized to amend district parking regulations from time to time.

(Ord. No. 31,034, § 1, 3-10-81; Ord. No. 38,549, § 1, 10-29-96; Ord. No. 41,980, §§ 1, 2, 8-23-05; Ord. No. 45,955, § 22, 5-19-15, eff. 7-1-15)

Editor's note—Ord. No. 31,034, § 1, adopted March 10, 1981, added § 29-602.01 to the 1958 Code; the editor has included these provisions as § 25-286.1 hereof. Paragraph (k), severability, has been omitted to preserve Code format.

Sec. 25-286.2. Designation of residential and commercial business parking-permit areas.

(a) *Establishment.* The city manager is hereby authorized to designate, by written order or regulation, roads, streets and other areas within the city in which the parking of vehicles may be restricted, in whole or in part, during certain specified times, to holders of valid parking permits issued pursuant to this section. The city manager shall consider the institution of a parking permit system upon petition by the residents and businesses as provided herein or upon identification by the city manager of a public health, safety and welfare issue. The authority granted herein shall be in addition to, and may be exercised in conjunction with, any other authority the city manager may have to regulate the times and conditions of motor vehicle parking.

(b) *Standards.* The designation of a parking-permit area shall take into account, among other things:

(1) The effect on the safety of residents of the area under consideration from intensive use by nonresidents for parking of vehicles.

(2) The need of the residents and owners of businesses of the area to obtain adequate on-street parking adjacent to or close by their places of residence or business.

(3) The difficulty or inability of residents and owners of businesses of the area to secure adequate on-street parking adjacent to or close by their places of residence or business because of widespread use of available parking spaces in that area by transient motorists.

(4) The impact of major public facilities and programs on the health, safety and welfare of the residents and businesses of the area and any unreasonable burdens placed on those residents and businesses in securing adequate on-street parking and gaining access to their places of residence or business by virtue of such facilities and programs.

(5) The likelihood of improving, by use of a parking permit system, any problem of nonavailability of residential and business parking spaces.

(6) The desire of the residents and owners of businesses in the area for the institution of a parking-permit system and the will-

ingness of those residents and businesses to bear the administrative costs incidental to the issuance of permits authorized by this section.

(7) The fact that the residents and owners of businesses have contributed to the cost of construction and/or improvement of streets and roads in such area either by the direct assessment of costs or indirectly to the extent such costs are reflected in purchase or rental prices paid by those residents.

(8) The need for some parking spaces to be available in the area under consideration for use by visitors and the general public.

(9) Such other factors as the city manager may deem relevant.

(c) *Initiation of petition.*

(1) Residents and owners of businesses within the district may petition the city manager for the establishment of an on-street permit parking district. Such petitions shall be on forms prepared and promulgated by the director of the department of public works. Petitions shall be submitted to the director of public works who shall determine their sufficiency. Any insufficient petition shall be remanded to the individual submitting it, with instructions for correction of deficiencies. A petition found sufficient shall be forwarded to the city manager for further action.

(2) No petition shall be deemed sufficient unless the same be signed by representatives of seventy-five (75) percent of the total number of the residents and businesses in the area.

(d) *Action on petition.* When a petition has been found to be sufficient by the director of public works, it shall be referred to the city manager for authorization of necessary traffic engineering studies.

(e) *Public hearing.*

(1) Following the completion of such studies and in order to determine whether said district or a part thereof should be designated as a parking-permit area, the city manager or his designee may conduct, prior to the designation of said district as a parking-permit area, or prior to the withdrawal of such designation once it is established, a public hearing if any interested persons have not otherwise had an opportunity to appear and be heard. Such hearing shall be held after due notice has been published in a newspaper of general circulation throughout the city. The notice clearly state the purpose of the hearing, and the exact location and boundaries of the parking-permit area under construction.

(2) Within forty-five (45) days following the close of the public hearing, the city manager shall decide, based on the record of that hearing and the studies authorized by him, whether or not to designate the area under consideration as a parking-permit area or to remove the designation in the case of an established parking-permit area. The time for decision by the city manager may be extended for an additional period of thirty (30) days.

(f) *[Public health, safety and welfare.]* Notwithstanding paragraphs (c) through (e) above, the city manager in his discretion may designate a parking-permit area when it is necessary to protect public health, safety and welfare.

(g) *Designation of parking-permit area.*

(1) Following the designation of a parking-permit area by the city manager, he shall cause to be posted parking signs in the area, indicating the times, locations and conditions under which parking shall be by permit only.

(2) The issuance of parking decals shall be by the division of parking facilities as provided in paragraph (h).

(h) *Issuance of decals; proration.*

(1) A fee of ten dollars ($10.00) per annum shall be charged for the issuance of all decals. Bona fide residents shall be entitled to one decal per vehicle registered in their name to that address. All other

decals shall be allocated as provided herein. The fees collected will be used by the city to defray the cost of enforcement of this section and rules, regulations, and orders promulgated by the city manager. Parking decals shall be issued on an annual basis by the division of parking facilities for the period commencing at 12:01 a.m., June 1 and expiring at midnight May 31 of the following year.

(2) The maximum number of decals for eligible businesses shall be issued to owners of businesses as follows: one decal per three hundred fifty (350) square feet of office or shop floor space minus the number of off-street parking spaces used by the business for employee parking at the location within the district. For example, if a business were three thousand five hundred (3,500) square feet and had five (5) off-street spaces, the business would be eligible for five (5) decals. Notwithstanding, in no event shall the decals issued to a business exceed the number of personnel working at a particular location.

(3) For a parking decal issued pursuant to this section and purchased after November 30 and prior to March 1, which decal shall expire at midnight on May 31 of the following year, the fee shall be five dollars ($5.00); for a parking decal purchased during the period commencing March 1, which parking decal shall expire at midnight May 31, the fee shall be three dollars ($3.00).

(4) Each household qualified pursuant to this section to purchase an annual parking decal shall be issued one complimentary visitor's pass for the use of visitors of such purchaser while residing or visiting on a temporary basis in the home or dwelling place of such purchaser. Such passes shall be subject to any rules and regulations established covering their use.

(5) Additional temporary parking passes shall be issued to each household to be valid for a period not exceeding one calendar month to accommodate unusual visiting requirements for a fee of two dollars ($2.00) each to holders of annual passes.

(6) Decals, temporary passes and visitor's passes are not transferable. If a resident or other person entitled to a decal trades a vehicle, he shall carefully scrape the decal from the bumper and return it with his permit form to the division of parking facilities for issuance of a new sticker at no cost. Abuse of these regulations may be grounds for revocation of parking pass privileges by the city.

(7) The annual decal shall be displayed on the left rear bumper of the vehicle. Visitor and temporary parking passes shall be displayed in the left rear window of the vehicle. In the absence of a window, it shall be prominently displayed to be visible to a vehicle approaching from the rear.

(8) Decals that have been lost, stolen or destroyed may be reissued for a charge of one dollar ($1.00).

(i) *Enforcement.*

(1) Enforcement of parking regulations shall not be effective until thirty (30) days after signs delineating the parking restrictions have been posted. Emergency and service vehicles when on a call or delivery shall be exempt. Purchase of a parking decal or display of one will not guarantee the holder of a parking place nor exempt a vehicle operator from any City Code regulation governing parking on city streets.

(2) Construction and utility vehicles performing work on streets in the district as well as boat, house and utility trailers shall be exempt from these regulations.

(j) *Violations and penalties.* It shall be unlawful to park any vehicle or use any parking permit in a manner contrary to the provisions established by the city manager pursuant to this section and any person parked in violation of any regulation or sign in any district shall be punished as provided in chapter 25.1 of the City Code, and any motor vehicle so parked may be towed by or at the direction of the department of police.

(k) *Amendments.* The city manager is hereby authorized to amend district parking regulations from time to time.
(Ord. No. 41,900, § 1, 6-21-05; Ord. No. 45,955, § 23, 5-19-15, eff. 7-1-15)

Sec. 25-286.2.1. West Freemason Historical and Cultural Conservation District Parking Permit District—Zone 1.

(a) *Establishment.* The West Freemason Historical and Cultural Conservation District is hereby designated as a parking-permit area known as the West Freemason Historical and Cultural Conservation District Parking Permit District, Zone 1.

(b) *Application of provisions of section 25-286.2.* The provisions of section 25-286.2 relating to the designation of parking-permit areas by the city manager, the issuance of decals, enforcement of parking regulations, and penalties in connection with parking-permit areas shall apply to the West Freemason Historical Parking Permit District, Zone 1.
(Ord. No. 32,654, § 1, 11-29-83; Ord. No. 33,524, § 1, 6-25-85; Ord. No. 38,549, § 2, 10-29-96; Ord. No. 41,900, § 2, 6-21-05; Ord. No. 41,980, §§ 3, 4, 8-23-05)

Editor's note—Ord. No. 41,900, § 2, adopted June 21, 2005, renumbered § 25-286.2 as 25-286.2.1 and further amended it to read as herein set out.

Sec. 25-286.3. Hague Area Residential Parking Permit District—Zone 2.

(a) Establishment. That Yarmouth Street, from Brambleton Avenue northwardly to Grace Street; Grace Street, from Yarmouth Street eastwardly to Duke Street; South Mowbray Arch, from Yarmouth Street westwardly to its western terminus; Memorial Place, from Grace Street to Mowbray Arch; Mowbray Arch, from Memorial Place northwardly to Olney Road and Fairfax Avenue, from Botetourt Street eastwardly to Mowbray Arch is hereby designated as a parking permit area known as the Hague Area Residential Parking Permit District—Zone 2.

(b) That the provisions of section 25-286.1 relating to designation of parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and violations and penalties in connection with parking permit areas shall apply to the Hague Area Residential Parking Permit District—Zone 2.
(Ord. No. 35,309, § 1, 11-22-88)

Sec. 25-286.4. Talbot Park Residential Parking Permit District—Zone 3.

(a) Establishment. That Whiting Street, from Granby Street to Colonial Avenue and Colonial Avenue from Whiting Street to Talbot Hall Road is hereby designated as a parking permit area known as the Talbot Park Residential Parking Permit District—Zone 3.

(b) That the provisions of section 25-286.1 relating to designation of parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and violations and penalties in connection with parking permit areas shall apply to the Talbot Park Residential Parking Permit District—Zone 3.
(Ord. No. 35,739, § 1, 9-19-89)

Sec. 25-286.5. Edgewater Residential Parking Permit District—Zone 4.

(a) Establishment. That the 1600 and 1700 blocks of 49th Street, the 1600 block of Melrose Parkway, the south side of the 1600 and 1700 blocks on Longwood Drive, Woodbury Avenue, and the north side of the 1600 and 1700 blocks of 48th Street are hereby designated as a parking permit area known as the Edgewater Residential Parking Permit District—Zone 4.

(b) That the provisions of section 25-286.1 relating to designation of parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and violations and penalties in connection with parking permit areas shall apply to the Edgewater Residential Parking Permit District—Zone 4.
(Ord. No. 35,857, § 1, 1-9-90; Ord. No. 36,134, § 1, 7-24-90)

Editor's note—Ord. No. 35,857, § 1, adopted Jan. 9, 1990, amended the Code by adding provisions designated as § 25-286.6. Said provisions have been redesignated as § 25-286.5 at the discretion of the editor.

Sec. 25-286.6. Edgemere Residential Parking Permit District—Zone 5.

(a) Establishment. That the 1300, 1400 and 1500 blocks of Melrose Parkway, Longwood Drive, and Cedar Lane, the 5200 blocks of Carillo Avenue, and the 1300 and 1400 blocks of Monterey

Avenue are hereby designated as a parking permit area known as the Edgemere Residential Parking Permit District—Zone 5.

(b) That the provisions of section 25-286.1 relating to designation of parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and violations and penalties in connection with parking permit areas shall apply to the Edgemere Residential Parking Permit District—Zone 5.
(Ord. No. 36,133, § 1, 7-24-90)

Sec. 25-286.7. Reserved.

Sec. 25-286.8. Spartan Village Residential Parking Permit District—Zone 7.

(a) Establishment. That the 1600 block of Corprew Avenue and the 900 and 1600 blocks of Madison Avenue are hereby designated as a parking permit area known as the Spartan Village Residential Parking Permit District—Zone 7.

(b) That the provisions of section 25-286.1 relating to designation of parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with parking permit areas shall apply to the Spartan Village Residential Parking Permit District—Zone 7.
(Ord. No. 36,999, § 1, 9-22-92)

Sec. 25-286.9. Liberty Park Section One—Zone 8.

(a) *Establishment.* That area of the City platted and recorded as Liberty Park Section One in Map Book 44, Pages 73A and 73B, in the Circuit Court of the City of Norfolk, is hereby designated as parking permit area known as the Liberty Park Section One Residential Parking Permit Program—Zone 8.

(b) *Application of provisions of section 25-286.1.* The provisions of Section 25-286.1, relating to the designation of residential parking permit areas by the city manager, the issuance of decals, and enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Liberty Park Section One Residential Parking Permit District—Zone 8.
(Ord. No. 38,930, § 1, 10-14-97; Ord. No. 47,336, § 1, 8-28-18)

Sec. 25-286.10. Park Place Residential Parking District—Zone 9.

(a) *Establishment.* The 500-600 blocks of West 29th Street are hereby designated as a parking permit area known as the Park Place Residential Parking Permit District—Zone 9.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1 relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with parking permit areas shall apply to the Park Place Residential Parking Permit District—Zone 9.
(Ord. No. 39,460, § 1, 2-9-99)

Sec. 25-286.11. Restricted Parking Permit District—Waterside Area.

(a) *Establishment.* Atlantic Street south of Waterside Drive is hereby designated as a parking permit area known as the Restricted Parking Permit District—Waterside Area.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1 relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with parking permit areas shall apply to the Restricted Parking Permit District—Waterside Area, Zone 11.
(Ord. No. 39,418, § 1, 1-12-99)

Sec. 25-286.12. Lamberts Point Residential Parking District—Zone 10.

(a) *Establishment.* The 1300 block of West 41st Street is hereby designated as a parking permit area known as the Lamberts Point Residential District—Zone 10.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1 relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with parking permit area shall apply to the Lamberts Point Residential Parking Permit District—Zone 10.
(Ord. No. 39,927, § 1, 4-25-00)

Sec. 25-286.13. East Freemason Street Residential Parking District—Zone 12.

(a) *Establishment.* That portion of Freemason Street situated between Bank Street and St. Paul's Boulevard is hereby designated as a parking permit area known as the East Freemason Street Residential Parking District—Zone 12.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the East Freemason Street Residential Parking Permit District—Zone 12.
(Ord. No. 41,308, § 1, 2-10-04)

Sec. 25-286.14. Old Dominion University Village Residential Parking District—Zone 13.

(a) *Establishment.* That the area from 41st Street to 46th Street between Monarch Way and Killam Avenue is hereby designated as a parking-permit area known as the Old Dominion University Village Residential Parking District—Zone 13.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Old Dominion University Village Residential Parking Permit District—Zone 13.
(Ord. No. 41,709, § 1, 2-1-05)

Sec. 25-286.15. Willoughby Residential Parking District—Zone 14.

(a) *Establishment.* That portion of 1500 block of Lea View Avenue and the 9700 block of 15th View Street is hereby designated as a parking permit area known as the Willoughby Residential Parking District—Zone 14.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Willoughby Residential Parking Permit District—Zone 14.
(Ord. No. 41,775, § 1, 3-29-05)

Editor's note—Ord. No. 41,775, § 1, adopted March 29, 2005, added § 25-286.14 to the Code. Inasmuch as said section already existed, those provisions have been included as § 25-286.15 at the editor's suggestion and with the approval of the city.

Sec. 25-286.16. Central Brambleton Residential Parking District—Zone 15.

(a) *Establishment.* That portion of 800 block of Marshall Avenue is hereby designated as a parking permit area known as the Central Brambleton Residential Parking District—Zone 15.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Central Brambleton Residential Parking Permit District—Zone 15.
(Ord. No. 41,834, § 1, 5-17-05)

Sec. 25-286.17. Collin Terrace Residential Parking District—Zone 16.

(a) *Establishment.* That portion of 200 block of Burgoyne Avenue is hereby designated as a parking permit area known as the Collin Terrace Residential Parking District—Zone 16.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Collin Terrace Residential Parking Permit District—Zone 16.
(Ord. No. 41,849, § 1, 5-24-05)

Sec. 25-286.18. Chelsea Parking Permit District—Zone 17.

(a) *Establishment.* The 1200 and 1300 blocks of Raleigh Avenue, 1100 through 1300 blocks of Boissevain Avenue, 1100 through 1300 blocks of West Olney Road, 1100 and 1200 blocks of Warrington Avenue (excluding parcel "free trade zone" also known as 1215 Warrington Avenue and property known as Lambert's Point Docks, Inc.), 500 through 800 blocks of Orapax Street and 500 through 800 blocks of Claremont Avenue, are hereby designated as a parking-permit area known as the Chelsea Parking Permit Program [District]—Zone 17.

(b) *Application of provisions of section 25-286.2.* The provisions of section 25-286.2 relating to the designation of parking-permit areas by the city manager, the issuance of decals, enforcement of parking regulations, and penalties in connection with parking-permit areas shall apply to the Chelsea Parking Permit District—Zone 17.
(Ord. No. 41,900, § 3, 6-21-05)

Sec. 25-286.19. Highland Park Residential Parking District—Zone 18.

(a) *Establishment.* That portion of the 4200 block of Killam Avenue is hereby designated as a parking permit area known as the Highland Park Residential Parking Permit District—Zone 18.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Highland Park Residential Parking Permit District—Zone 18.
(Ord. No. 42,162, § 1, 1-31-06)

Sec. 25-286.20. West Ghent Residential Parking District—Zone 19.

(a) *Establishment.* That the portion of the 900 block of Redgate Avenue is hereby designated as a parking permit area known as the West Ghent Residential Parking Permit Program—Zone 19.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the West Ghent Residential Parking Permit District—Zone 19.
(Ord. No. 42,384, § 1, 8-29-06; Ord. No. 42,853, § 1, 10-2-07)

Sec. 25-286.21. Broad Creek (HOPE VI) Residential Parking District—Zone 20.

(a) *Establishment.* That the area is formed by two segments south and north of Princess Anne Road.

(1) The area south of Princess Anne Road is bounded by Virginia Beach Boulevard to the south, Ballentine Boulevard to the east, Dogan Avenue to the north; Godfrey Avenue, Godfrey from the corner of Dogan Avenue to Bayne Avenue, Bayne Avenue from Godfrey to Merrimac Avenue, Hollister Avenue from Parish Avenue to Virginia Beach Boulevard.

(2) The north side of Broad Creek is bounded by and includes Godfrey Avenue to the east, Cary Avenue to the north, Herbert Collins Way to the west, Joe Austin Drive to the south up to Majestic Avenue, Majestic Avenue from Joe Austin Drive to Hollister Avenue, and Princess Anne Road from Majestic Avenue to Godfrey Avenue.

The above-described area is hereby designated as a parking permit area known as the Broad Creek (HOPE VI) Residential Parking Permit District—Zone 20.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Broad Creek (HOPE VI) Residential Parking Permit District—Zone 20.
(Ord. No. 42,814, § 1, 8-28-07)

Sec. 25-286.22. Tidewater Gardens Residential Parking District—Zone 21.

(a) *Establishment.* Portions of the 400 block of Fenchurch Street, 500 block of Fenchurch Street, 800 block of Charlotte Street, and 800 block of Mariner Street are hereby designated as a parking permit area known as the Tidewater Gardens Residential Parking Permit Program—Zone 21.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Tidewater Gardens Residential Parking Permit District—Zone 21.
(Ord. No. 43,841, § 1, 5-18-10)

Sec. 25-286.23 Ingleside Residential Parking District—Zone 22.

(a) *Establishment.* That portions of the 3500 and 3600 block of Kentucky Avenue, and 3500 block of Mississippi Avenue are hereby designated as a parking permit area known as the Ingleside Residential Parking Permit Program—Zone 22.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Ingleside Residential Parking Permit District—Zone 22.
(Ord. No. 44,504, § 1, 1-10-12)

Sec. 25-286.24. Hardy Field/Berkley Residential Parking District—Zone 23.

(a) *Establishment.* That portion of the 100 block and 200 block of Patrick Street are hereby designated as parking permit areas known as the Hardy Field/Berkley Residential Parking Permit Program—Zone 23.

(b) *Application of provisions of section 25-286.1.* The provisions of section 25-286.1, relating to designation of residential parking permit areas by the city manager, the issuance of decals, and enforcement of parking regulations and penalties in connection with the parking permit area shall apply to the Hardy Field/Berkley Residential Parking Permit District—Zone 23.
(Ord. No. 45,781, § 1, 11-25-14)

Secs. 25-287, 25-288. Reserved.

Editor's note—Ord. No. 39,014, § 1, adopted Jan. 13, 1999, repealed §§ 25-287 and 25-288, which pertained to unauthorized use of parking spaces reserved for persons with disabilities and the impoundment of vehicles so found and derived from Code 1958, § 29-608.1 and from the following ordinances:

Ord. No.	Date	Ord. No.	Date
29,753	12-12-78	37,740	8-16-94
29,753	12-12-78	37,677	6-21-94
30,756	8-26-80	37,869	1-17-95
33,663	9-17-85		

Ord. No.	Date	Ord. No.	Date
33,663	9-17-85		

Sec. 25-289. Parking on bridges, viaducts or causeways.

No person shall park a vehicle or permit it to stand, whether attended or unattended, upon a public bridge, viaduct or causeway in the city.
(Code 1958, § 29-607)

Sec. 25-290. City-owned and operated parking facilities.

It shall be unlawful for any person to park or cause to be parked in a parking facility owned or operated by the city any vehicle unless authorized or permitted to do so. Where parking is permitted pursuant to the issuance of decals, the issued decal shall be displayed clearly and visibly at all times when the appropriate parking facility is being used. Each decal shall have the appropriate certification for the period in use. Annual decals must be affixed by the first of January of each calendar year. Failure to display the appropriate certification or decal shall constitute a violation of this section.
(Ord. No. 37,885, § 1, 2-14-95)

Sec. 25-291. Parking prohibited in certain areas west of 99th Street and adjacent to property of United States government.

(1) The following described area in the city is hereby set apart as a "no parking zone," in which the parking of all vehicles is hereby prohibited: That certain paved roadway leading from Gate No. 1, as presently established, of the Norfolk Naval Base to the main roadway connecting the end of 99th Street with the Chesapeake Ferry Landing, and being more particularly described as that certain area in the city bounded on the east by a portion of the western end of 99th Street, on the north by property of the United States Government, on the south by a line which is an extension westwardly of the northern curb line of 99th Street, as now established, and on the west by a line parallel to the boundary first above mentioned and three hundred seventy-five (375) feet west therefrom.

(2) The city manager is hereby authorized to so designate and mark the area described in subsection (1) above by painting or signs, or both, and when such area is so designated and marked, it shall be unlawful for any person to park or cause or permit to be parked any vehicle contrary to such markings or signs.
(Code 1958, § 29-606)

Sec. 25-292. Reserved.

Editor's note—Ord. No. 43,156, § 1, adopted July 1, 2008, repealed § 25-292, which pertained to parking prohibited between 2:00 a.m. and 5:00 a.m. on certain streets and derived from Code 1958, §§ 29-612, 29-613, and 29-615—29-621.47.

Sec. 25-293. Parking of buses, trucks, trailers, etc. in residence district or on city streets and public places.

(a) It shall be unlawful for any person to park or store, or cause or permit to be parked or stored, at anytime and in any place in an area zoned as a residence district under the zoning ordinance of the City of Norfolk, or on any of the streets, alleys or other public places of the city outside a residence district between the hours of 10:00 p.m. and 6:00 a.m. of any day, any of the following vehicles:

(1) Truck.

(2) Tractor cab.

(3) Motor passenger bus.

(4) Trailer.

(5) Semi-trailer.

(6) Taxi.

(7) Limousine.

(8) Tow truck.

(9) Dump truck.

(10) Stake body truck.

(11) Step van.

(12) Roll back tow truck.

(13) Flat bed truck.

(14) A van, pickup truck, or panel truck used primarily for business or commercial use.

(b) This section shall not apply to any vehicle which is:

(1) Actively engaged in loading or unloading;

(2) Performing an actual service call;

(3) A school bus parked during school hours in a residence district between school bus runs;

(4) A school bus less than twenty thousand (20,000) pounds gross vehicle weight rating (gvwr) (less than thirty (30) passenger capacity) parked in a driveway in a residence district; or

(5) One van, pickup truck or panel truck less than seventy-five hundred (7,500) pounds gross vehicle weight rating (gvwr) per lot parked in a driveway in a residence district.

(6) One taxi per lot parked behind the front plane of the residence building in a residence district.

(7) A taxi parked for one hour or less on a public street in a residence district.

(c) Notwithstanding the provisions of section (a), it shall be unlawful to park or store, or cause or permit to be parked or stored, any semi-trailer or trailer on any of the streets, alleys or other public places of the city when such semi-trailer or trailer is not attached to a licensed and registered power unit for propulsion.

(d) For purposes of this section, the definition of truck, trailer, semi-trailer and school bus shall be as provided in Virginia Code section 46.2-100.

COMMERCIAL VEHICLE CHART

Vehicle Type	*Location: Anywhere in Residential Area*	*Location: Public Street in Commercial Area*	*Location: Private Property in Commercial Area*
• Truck • Tractor-trailer cab • Motor passenger bus • Trailer • Semi-trailer • Taxi • Limousine • Tow truck • Dump truck • Stake body truck • Step van • Roll back tow truck • Flat bed truck • Pickup truck, van or panel truck used for business	Prohibited. Exceptions: • Actual service call • Loading or unloading • School bus may be parked during day between runs • School bus less than 30 seats may be parked in driveway • Van or pickup less than 7,500 GVWR may be parked in garage, behind front plane of house, or in driveway as long as no equipment visible on exterior	Prohibited during the hours 10:00 p.m.—6:00 a.m.	Permitted.

(e) Any designated special police officer, fire marshal or any of his assistants, or law enforcement officer may enforce the provisions of this section.

(Code 1958, § 29-608; Ord. No. 39,652, § 1, 6-22-99; Ord. No. 40,339, § 1, 6-5-01; Ord. No. 40,435, §§ 1—3, 7-31-01; Ord. No. 40,640, § 1, 3-19-02)

Sec. 25-293.1. Parking of motor vehicles on the unimproved surface of the front yard, corner side yard or buffer yard of a lot in a residence district.

(a) It shall be unlawful to park or store, or cause or allow to be parked or stored, any motor vehicle on an unimproved surface, including, but not limited to dirt or grass, or in an area not approved by the director of public works, in the front yard, corner side yard or buffer yard of a lot in a residence district.

(b) For purposes of this section the term "motor vehicle" shall be defined as set forth in Code of Virginia § 46.2-100; and the terms "front yard", "buffer yard", "corner side yard", "residence

district", and "lot" shall be as determined, defined, and set forth in the city's zoning ordinance.

(c) Any designated special police officer, fire marshal or any of his assistances, or law enforcement officer may enforce the provisions of this section.
(Ord. No. 40,336, § 1, 6-5-01)

Sec. 25-293.2. Parking of recreational vehicles, boats, personal watercraft, and trailers for said items, in a residence district.

(a) No recreational vehicle, boat, personal watercraft, or trailer for said item, shall be parked or stored in the front yard of a lot or on a public street or right-of-way, in a residence district, unless it is parked or stored in a garage, carport, or accessory building.

(b) No recreational vehicle, boat, personal watercraft, or trailer for said item, shall be parked or stored in the side yard of a lot in a residence district if it exceeds six (6) feet in height above the ground; provided however, that masts, antennas, vent stacks and windshields may exceed this height limitation.

(c) No recreational vehicle, boat, personal watercraft, or trailer for said item, shall be parked or stored in the rear yard of a residence district unless it is located at least five (5) feet from the rear or side lot line.

(d) The provisions of subsections (a) and (b) of this section shall not apply to a recreational vehicle, boat, personal watercraft or trailer for said item, engaged in actual loading or unloading activity.

(e) The terms "rear yard", "side yard", "front yard", "residence district", and "lot" shall be as determined, defined and set out in the city's zoning ordinance.

(f) Any designated special police officer, fire marshal, or any of his assistants, or law enforcement officer may enforce the provisions of this section.

(g) For purposes of this section, recreational vehicle means every vehicular-type unit designed or used as temporary living or sleeping quarters for recreational, camping, travel or seasonal use, that either has its own motive power or is mounted on, or is towed by, another vehicle. This includes but is not limited to a travel trailer, fifth-wheel trailer, camping trailer, and motor home.
(Ord. No. 40,340, § 1, 6-5-01; Ord. No. 40,938, § 1, 1-28-03)

Sec. 25-294. Marking of tires on parked vehicles.

For the purpose of ascertaining the length of time any vehicle remains parked, any police officer or such other employee designated by the city manager may place a mark, with chalk or some other substance which will cause no damage thereto, on one or more of the tires of such vehicle. It shall be unlawful and a class 4 misdemeanor for any person, with intent to defeat the purpose of such a mark, to remove or alter any mark so made or to move any vehicle whose tire or tires have been so marked.
(Code 1958, § 29-597; Ord. No. 33,284, § 1, 1-22-85)

Sec. 25-295. Reserved.

Editor's note—Ord. No. 38,366, § 2, adopted May 21, 1996, repealed § 25-295, which pertained to report and notice of and general penalty for violations of Ch. 25, and which derived from Code 1958, § 29-610 and from the following ordinances:

Ord. No.	Sec.	Date	Ord. No.	Sec.	Date
30,756	3	8-26-80	36,344	1	2- 2-91
31,654	1	4-13-82	36,372	1	3-26-91
32,459	1	7-19-83	37,228	1	5-18-93
32,557	1	9-27-83	37,995	2	5-23-95
33,337	1	3-12-85	38,218	1	12- 5-95
35,185	1	7-26-88			

Sec. 25-296. Evidentiary value of painting or sign indicating parking regulations.

Wherever there is any painting or sign indicating the zones provided for in this article or the time, place and manner of parking, such painting or sign shall be prima facie evidence that the same has been designated by the city manager pursuant to the authority granted him by this article.
(Code 1958, § 29-598)

Sec. 25-297. Presumption that registered owner unlawfully parked vehicle.

In any prosecution charging a violation of any provision of this chapter or other ordinance of the city, or any authorized regulation or rule, relative to parking, proof that the vehicle described in the complaint, summons or warrant was parked in violation of such provision of this chapter or other ordinance or regulation or rule, together with proof that the defendant was, at the time of such parking, the registered owner of the vehicle, as required by section 46.2-600 et seq. Code of Virginia, shall constitute in evidence a prima facie presumption that such registered owner of the vehicle was the person who parked the vehicle at the place where, and for the time during which such violation occurred.

(Code 1958, § 29-599)

State law reference—Similar provisions, Code of Virginia, § 46.2-1220.

Sec. 25-298. Reserved.

Editor's note—Section 2 of Ord. No. 38,366, adopted May 21, 1996, repealed § 25-298, pertaining to removal or immobilization of motor vehicles against which there are outstanding parking violations, and derived from Code 1958, § 29-649; Ord. No. 35,131, § 1, adopted June 28, 1988; and Ord. No. 36,786, § 1, adopted April 14, 1992.

Sec. 25-299. Tow truck service operations—Definitions.

Unless a different meaning is required by the context, the following terms as used in sections 25-300 through 25-601 shall have the meaning hereinafter respectively ascribed to them:

(a) *Person* is a natural person, firm, partnership, association or corporation and their legal successors.

(b) *Towing firm* means any person in the business of towing vehicles.

(c) *Towing and recovery operator* means a person engaged in the business of (i) removing disabled vehicles, parts of vehicles, their cargoes and other objects to facilities for repair or safekeeping, and (ii) restoring to the highway or other location where they either can be operated or removed to other locations for repair or safekeeping vehicles which have come to rest in places where they cannot be operated.

(d) *Tow* means the actual hooking up and attachment of the vehicle to be towed, moving the vehicle from the original point of tow to the tow company's impound lot, and the time period the vehicle remains on the tow lot.

(e) *Authorizing a tow* means to authorize or the approval of a tow by an owner of the vehicle or owner or lessee of the private property.

(f) *Owner* means an owner or lessee or agent thereof of private property conducting a business thereon and offering parking to patrons and who intends to enforce parking restrictions by the use of a towing firm.

(Ord. No. 32,103, § 1, 12-28-82; Ord. No. 36,114, § 1, 7-17-90; Ord. No. 37,572, § 1, 4-12-94; Ord. No. 40,959, § 1, 2-11-03)

Sec. 25-300. Same—Enforcement of private parking by towing.

(a) It shall be unlawful for any person to leave any motor vehicle, trailer, semitrailer, or part thereof on the private property of any other person without his consent. Upon complaint of the owner of the property on which such motor vehicle, trailer, semitrailer or part thereof has been abandoned for more than seventy-two (72) hours, such motor vehicle, trailer, semitrailer or part thereof may be removed by or under the direction of a police officer to a storage garage or area. The person at whose request such motor vehicle, trailer, semitrailer or part thereof is so removed shall indemnify the city against any loss or expense incurred by reason of removal, storage or sale thereof.

(b) Each owner or community association shall post at each point of ingress and egress to the authorized parking area or community entry points clearly legible signs containing the following wording:

PRIVATE PARKING
[OR NO PARKING PERMITTED
IN ALLEYWAYS]
(NAME OF OWNER, LESSEE OR AGENT
OF THE PRIVATE PROPERTY)
AUTHORIZED PARKING ONLY
TOWING ENFORCED BY
(Name of Towing Firm)
CALL (Towing Firm Number) FOR
LOCATION AND INFORMATION
CONCERNING RETURN OF VEHICLE.

The signs shall also be at least thirty-six (36) inches in width and thirty (30) inches in height. Lettering for the top four (4) lines shall be at least three (3) inches in height and, for all other lines, at least one to one and one-half (1½) inches in height. The face of the sign shall be composed of high-intensity, reflectorizing sheeting or like material. All signs shall comply with the zoning ordinance.

(Ord. No. 32,103, § 1, 12-28-82; Ord. No. 34,673, § 1, 8-25-87; Ord. No. 42,287, § 1, 5-23-06)

Cross reference—Zoning ordinance, App. A.

Sec. 25-301. Same—Consent and signs.

(a) No motor vehicle, trailer, semitrailer or part thereof shall be removed from private property by a towing firm unless said firm has obtained written consent from the owner, lessee or agent of the private property. This section shall not apply to those towing firms who have entered into contractual agreements to remove all unauthorized vehicles from said property.

(b) Where an agreement has been entered into by a towing firm to remove unauthorized vehicles from private property, the towing firm and private property owner shall post a notice of this arrangement which shall conform to the requirements of section 25-300.

(c) Any person(s) violating the provisions of this section shall be guilty of a Class 2 misdemeanor.

(Ord. No. 32,103, § 1, 12-28-82; Ord. No. 34,673, § 1, 8-25-87; Ord. No. 37,572, § 2, 4-12-94)

Sec. 25-302. Same—Removal and storage of towed vehicles.

(a) Vehicles removed, towed, or both from posted private property without the prior consent and agreement of the owner or custodian of the vehicle are subject to the following towing fees: two hundred dollars ($200.00) for a light tow (a vehicle having a weight of up to eight thousand eight hundred (8,800) pounds), three hundred fifty dollars ($350.00) for a medium tow (a vehicle having a weight between eight thousand eight hundred one (8,801) pounds and seventeen thousand nine hundred ninety-nine (17,999) pounds) and five hundred seventy-five dollars ($575.00) for the towing of any vehicle having a weight of eighteen thousand (18,000) pounds and over. Those vehicles not claimed within seventy-two (72) hours of the tow are also subject to an administrative fee not to exceed one hundred dollars ($100.00). The total charge to the owner or custodian of any vehicle towed, removed, or both from posted private property without the prior consent and agreement of said owner or custodian will not exceed rates established by this subsection. Any person(s) and tow firm owner(s) violating the provisions of this section is guilty of a Class 1 misdemeanor.

(b) No tow truck service or operator may charge more than fifty dollars ($50.00) for vehicles seventeen thousand nine hundred ninety-nine (17,999) pounds or less or no more than seventy dollars ($70.00) for vehicles eighteen thousand (18,000) pounds or more per twenty-four-hour period for storage charges, not including an initial period of twenty-four (24) hours, for a vehicle removed from private property without the consent of the owner or custodian of the vehicle. Any person or tow firm owner(s) violating the provisions of this section is guilty of a Class 1 misdemeanor.

(c) No tow truck service or operator may charge any fee for mileage, in addition to the basic towing fee set forth in subsection (a) above, when the vehicle is being taken without the consent of the owner or custodian of the vehicle.

(d) A monetary receipt for each and every tow must be given to those persons whose vehicles have been towed by the towing service upon release of the vehicle. The information on the receipt must be clearly legible and include the time, date and place of the tow, the name of the tow truck operator who made the tow and the name of the towing service said operator works

for. The receipt must also list the amount of money paid for the release of the vehicle, any additional charges incurred in the tow and the reason for said additional charges. A copy of the receipt must be retained by the towing service for not less than twelve (12) months.

(e) No towed vehicle may be removed from the Norfolk city limits within the first seventy-two (72) hours of the tow.

(f) The towing storage lot must be manned with an employee on the premises from 9:00 a.m. to 5:00 p.m. daily.

Each and every towing firm that tows motor vehicles from private property at a time other than the normal operating hours of the towing firm:

(1) Must, in addition to the towing firm's number required by section 25-300(b), post the towing firm's number for the storage lot where the vehicle towed at a time other than the normal operating hours of the towing firm may be reclaimed; and

(2) Must man the number posted and/or the storage facility so as to facilitate the return of said motor vehicle to the owner within two (2) hours of notification.

(h) Where the owner of a towed motor vehicle, trailer or semitrailer fails to reclaim said vehicle at the expiration of thirty-one (31) days, said vehicle may be sold pursuant to the provisions of sections Code of Virginia §§ 46.2-1213 and 46.21217, 1950, as amended.

The department of motor vehicles must be notified of the disposition of any motor vehicle, trailer or semitrailer under Code of Virginia § 46.1-3, as amended.

(i) If the owner or custodian of any vehicle not authorized to be parked on private property returns after a tow truck service has arrived and is engaged in hooking up or attaching the subject vehicle to the tow vehicle, or is attached to the subject vehicle, he may reclaim the vehicle upon payment of a service fee not to exceed fifty dollars ($50.00). No fee in excess of fifty dollars ($50.00) may be charged where the vehicle has not been removed from the lot or private property upon which it was unlawfully parked.

If the owner or custodian of any vehicle not authorized to be parked on private property returns after a tow truck service has arrived but before the vehicle has been attached, hooked up or towed, he may reclaim the vehicle without payment of a service fee.

(j) Any person violating the provisions of these sections and subsections is guilty of a Class 1 misdemeanor.

(Ord. No. 32,103, § 1, 12-28-82; Ord. No. 34,673, § 1, 8-25-87; Ord. No. 34,687, § 1, 9-8-87; Ord. No. 35,994, § 1, 5-15-90; Ord. No. 35,995, § 1, 5-15-90; Ord. No. 36,127, § 1, 7-24-90; Ord. No. 37,356, § 1, 7-27-93; Ord. No. 37,572, §§ 3, 4, 4-12-94; Ord. No. 38,632, § 1, 1-28-97; Ord. No. 40,313, 1, 5-15-01; Ord. No. 42,005, § 1, 8-30-05; Ord. No. 43,186, § 1, 8-19-08; Ord. No. 46,881, § 1, 6-27-17; Ord. No. 49,820, § 1, 12-10-24)

Sec. 25-303. Same—Police to be notified.

Within thirty (30) minutes of the tow, it shall be the duty of any towing firm removing any vehicle to report to the police department, either by telephone call or by facsimile transmission to the word processing center, the following information:

(a) The name, address and telephone number of the towing firm and the name or identification number of the person or persons making the tow;

(b) The state license plate number of the vehicle towed and vehicle identification number of the vehicle towed;

(c) The color, make and model of the towed vehicle;

(d) The date and time of towing;

(e) The address of place from which the vehicle was towed;

(f) The names and addresses of any witnesses to the towing; and

(g) The address of place where the vehicle is stored.

(h) Any person(s) and tow firm owner(s) violating the provisions of this section and subsections shall be guilty of a Class 1 misdemeanor.

(Ord. No. 32,103, § 1, 12-28-82; Ord. No. 36,128, § 1, 7-24-90; Ord. No. 37,572, § 5, 4-12-94)

Sec. 25-304. Same—Tow truck service operator's log.

(a) Towing firm operators and owner(s) shall keep a log of all vehicles towed including the make, model and year, if known, of the car, its license number and state of issuance, its vehicle identification number, time and date of tow, and money received for tow. This tow log record shall be maintained for not less than one year.

(b) Such log shall be available for inspection by the city police department and any owner or custodian of a vehicle towed by a towing firm during normal business hours of the tow truck operator/owner.

(c) Any person and tow firm owner violating this section and subsections shall be guilty of a Class 2 misdemeanor.

(Ord. No. 32,103, § 1, 12-28-82; Ord. No. 37,572, § 6, 4-12-94)

Sec. 25-305. Same—Illegal towing.

Except when a towing firm is acting as an agent in the lawful and legal repossession of a vehicle as prescribed by law, and not acting feloniously, it shall be unlawful for any person to make or authorize a tow of vehicle from any privately-owned property as specified in section 25-300 unless such property is properly signed in accordance with the requirements thereof. Any person(s) violating this section shall be guilty of a Class 2 misdemeanor for the first offense, and a Class 1 misdemeanor for any subsequent offense.

(Ord. No. 32,103, § 1, 12-28-82; Ord. No. 37,572, § 7, 4-12-94)

Sec. 25-306. Same—Violations in general.

Any person violating any provision of sections 25-300 through 25-305 shall be guilty of a Class 3 misdemeanor.

(Ord. No. 32,103, § 1, 12-28-82)

Sec. 25-307. Same—Destruction of signs.

It shall be unlawful for any person to unlawfully but not feloniously take and carry away, or destroy, deface, or injure any property or injure any sign as required by section 25-300. A violation of this section shall constitute a violation of section 29-36 of this Code.

(Ord. No. 32,103, § 1, 12-28-82)

Sec. 25-308. Same—Prompt recovery of vehicle by owner.

(1) Each and every towing firm that tows motor vehicles from private property at the request of the owner, as described in sections 25-300 through 25-305, shall provide for the prompt return of all towed vehicles to their lawful owners who are prepared to make payment of all reasonable costs.

(a) When vehicles are towed between 8:00 a.m. and 6:00 p.m., all charges shall be computed and the vehicles shall be accessible for delivery to the owner/custodian within one (1) hour after towing.

(b) When vehicles are towed between 6:01 p.m. and 7:59 a.m., all charges shall be computed and the vehicles shall be accessible for delivery to the owner/custodian within two (2) hours after towing.

(2) Each and every towing firm shall provide to the owner, after payment of all reasonable costs, a monetary receipt. The information on the receipt shall be clearly legible and shall include the following:

(a) Time, date and place of tow.

(b) The name of the towing firm performing the tow.

(c) The amount of money paid for the release of the vehicle.

(d) Any additional charges incurred in the tow and the reasons for the additional charges.

(3) A copy of each receipt issued shall be retained by the towing service for not less than ninety (90) days.

(4) *Reserved.*

(5) Any person(s) and tow firm owner(s) violating the provisions of this section shall be guilty of a Class 2 misdemeanor, and a Class 1 misdemeanor for any subsequent offenses.
(Ord. No. 35,282, § 1, 10-25-88; Ord. No. 36,386, § 1, 4-9-91; Ord. No. 37,572, § 8, 4-12-94)

Sec. 25-309. Same—Disposition of towed vehicles determined to be stolen.

All towed vehicles determined to be stolen property shall be released to the appropriate law enforcement authorities. No fee shall be charged for the release of such stolen property. Any person violating this section shall be guilty of a Class 1 misdemeanor.
(Ord. No. 36,128, § 2, 7-24-90; Ord. No. 37,572, § 9, 4-12-94)

Editor's note—At the discretion of the editor, § 2 of Ord. No. 36,128, adopted July 24, 1990, has been codified as § 25-309 herein.

Sec. 25-310. Identification of tow vehicles.

(1) It shall be unlawful for any person(s) or tow firm owner(s) to tow, haul or otherwise remove a motor vehicle in the city for any purpose whatsoever by use of a tow vehicle, unless there is painted on each side of the tow vehicle, in letters not less than three (3) inches in height, and in contrasting color from the background of the tow vehicle, the name, business street address and business telephone number of the owner of such tow truck.

(2) For the purpose of this section, a tow vehicle shall include any motor vehicle designated or adapted to tow, haul or otherwise remove another motor vehicle. Any person(s) or tow firm owner(s) in violation of this section shall be guilty of a Class 1 misdemeanor.
(Ord. No. 37,572, § 10, 4-12-94)

Sec. 25-311. Financial responsibility; on-hook insurance required.

Any tow firm towing vehicles in the City of Norfolk under sections 25-299 through 25-310 shall possess on-hook tow insurance, motor vehicles used for tow must have seven hundred fifty thousand dollars ($750,000.00) commercial liability insurance, and provide proof of said insurance to the city's commissioner of revenue's office when obtaining a city license to tow vehicles in the City of Norfolk under these sections. Any person(s) or tow firm owner(s) in violation of this section shall be guilty of a Class 1 misdemeanor. Proof of insurance shall be provided to the commissioner of the revenue's office no later than ninety (90) days after the passage of this section for existing licensees.
(Ord. No. 37,572, § 11, 4-12-94)

Secs. 25-312—25-320. Reserved.

ARTICLE IX. GOLF CARTS

Sec. 25-321. Designation of public highways for golf cart operation.

The operation of golf carts is hereby authorized on city streets and highways in the areas described as follows:

(a) In the planned unit development district of the city designated as East Beach and in Bay Breeze and Bay Point, more fully described as follows: East Beach Planned Unit Development and Bay Point, bound to the North by the Chesapeake Bay, to the East by the Norfolk/Virginia Beach boundary line, to the South by Little Creek (also known as Pretty Lake), and to the West by the eastern right-of-way line of Shore Drive and the eastern right-of-way line of 21st Bay Street.

(b) Beginning at Hampton Boulevard and the Northeast corner of 38th Street easterly to the Northeast corner of Killam Avenue and 38th Street, then northerly to the Northeast corner of 49th Street and Killam Avenue, then westerly to the Northeast corner of Hampton Boulevard and 49th Street, then northerly to the Southeast corner of Bolling Avenue and Hampton Boulevard, then westerly to the Southwest corner of Bolling Avenue and Bluestone Avenue, then southerly to the Northwest corner of Bluestone Avenue and 49th Street, then westerly to the Northwest corner of 49th Street and

Powhatan Avenue, then southerly to 48th Street, then westerly to the Elizabeth River, then southerly to 43rd Street extended, then easterly to the Southwest corner of Hampton Boulevard and 43rd Street, then southerly to the Northwest corner of 38th Street, then easterly to the Northwest corner of Hampton Boulevard and 38th Street.

(c) Beginning at Virginia Beach Boulevard and the northwest corner of Ballentine Boulevard westerly to the northwest corner of Godfrey Avenue and Virginia Beach Boulevard, then northerly to the southwest corner of Godfrey Avenue and Woodland Avenue, then westerly to the southwest corner of Woodland Avenue and Parish Road, then northerly to the north side of Hollister Avenue, then westerly to the property line between 2922 and 2926 Hollister Avenue, then northerly along the aforesaid property line to the northern terminus of the property line, then westerly along the rear property line of 2903, 2909, 2915, 2921, 2927, 2933 and 2939 Bayne Avenue to the east side of Merrimac Avenue, then northerly to the northeast corner of Merrimac Avenue and Bayne Avenue, then easterly to the northwest corner of Bayne Avenue and Godfrey Avenue, then northerly to the southwest corner of Godfrey Avenue and Princess Anne Road, then easterly to the southwest corner of Princess Anne Road and Ballentine Boulevard, then southerly to the northwest corner of Ballentine Boulevard and Virginia Beach Boulevard.

(d) Beginning at the intersection of the western line of Hampton Boulevard and the southern line of Parcel "A," said Parcel "A" being shown on a plat entitled, "Resubdivision of Plat of Part of Property of Norfolk Yacht & Country Club for Mrs. J. P. Field," said plat being duly recorded in the Clerk's Office of the Circuit Court of the City of Norfolk, Virginia, in Map Book 17 at Page 18; thence, northwardly and northwestwardly along said western line of Hampton Boulevard to its intersection with the northwestern line of Cloncurry Road; thence, southwestwardly along said northwestern line of Cloncurry Road to its intersection with the northeastern line of North Shore Road; thence, northwestwardly along said northeastern line of North Shore Road to its intersection with the northwestern line of Blanford Circle; thence, southwestwardly along said northwestern line of Blanford Circle extended to the mean-low water line of the Lafayette River; thence, meandering eastwardly along said mean-low water line of the Lafayette River to the western line of property of the Norfolk Yacht & Country Club; thence, northeastwardly along the dividing line between said western line of Norfolk Yacht & Country Club and Parcel "B" as shown on the aforementioned plat to a point on the said southern line of Parcel "A;" thence, eastwardly along said southern line of Parcel "A" to the point of beginning.

(e) Beginning at Pickett Road and the southwest corner of the unnamed alley that runs parallel with Wyngate Drive, then northerly to the northwest corner of Pickett Road and Greenplain Road, then westerly to the northeast corner of Greenplain Road and unnamed alley that runs parallel with Greenplain Road, then westerly to Broad Creek, then easterly bounded by the south side of Broad Creek to the western right-of-way line of Eastover Circle, then southerly to the southwest corner of the unnamed alley that runs parallel with Wyngate Drive, then easterly to the southwest corner of the unnamed alley that runs parallel with Wyngate Drive.

(f) Beginning at the west side I-464 Limited Access Right-of-Way Line at the I-464 northbound on ramp and the southwest corner of Berkley Avenue, then westerly to Southern Branch Elizabeth River, then northerly bounded by the east side of the Southern Branch Elizabeth River to the

Eastern Branch Elizabeth River, then easterly bounded by the south side of the Eastern Branch Elizabeth River to the west side I-464 Limited Access Right-of-Way Line, then southerly to the southwest corner of Berkley Avenue.

(g) Beginning at Battersea Road and the southeast corner of Granby Street, then northerly along the east side right-of-way line of Granby Street to the southeast corner of East Ocean View Avenue and Granby Street, then easterly along the south side right-of-way line of East Ocean View Avenue to the southeast corner of East Ocean View Avenue and Norfolk Avenue, then southerly to the southeast corner of Norfolk Avenue and Battersea Road, then westerly to the southeast corner of Battersea Road and Granby Street.

(h) Beginning at the western line of Halprin Drive and the northern line of Little Creek Road; thence, northwardly along said western line of Halprin Drive to the southwest corner of Elaine Court; thence, westwardly, northwardly and eastwardly in a clockwise direction around the arc of the cul-de-sac of Elaine Court to the northwest corner of Elaine Court and Halprin Drive; thence, northwardly along the western line of Halprin Drive to the southwest corner of Calvin Court; thence, westwardly, northwardly and eastwardly in a clockwise direction around the arc of the cul-de-sac of Calvin Court to the northwest corner of Calvin Court and Halprin Drive; thence, northwardly along the western line of Halprin Drive to the southern line of Tarrallton, Section 1, south of Jeffrey Drive; thence, westwardly and northwestwardly along the southern line of Tarrallton, Section 1, to the southern line of Tarrallton Drive; thence, northwardly across Tarrallton Drive to the east side of a tributary of Little Creek; thence, northwardly along the said east side of a tributary of Little Creek to the southern side of Little Creek; thence, eastwardly along said southern side of Little Creek, being the northern line of Roosevelt Shores, Larrymore Acres-Section 3, across a tributary of Little Creek to the northern line of Roosevelt Gardens, Section 2; thence, eastwardly along the northern line of Roosevelt Gardens, Section 2, to the eastern line of Roosevelt Gardens, Section 2; thence, southwardly along the eastern line of Roosevelt Gardens, Section 2 and Section 1, to the eastern line of Mona Drive; thence, southwardly along the eastern line of Mona Drive to the northern line of Little Creek Road; thence, westwardly along said northern line of Little Creek Road to the intersection of the western line of Halprin Drive and the northern line of Little Creek Road.

(i) Beginning at the intersection of the western line of Granby Street and the northern line of Ridgeley Road; thence, westerly along said northern line of Ridgeley Road to the western line of Newport Avenue; thence, northerly along said line of Newport Avenue to the northern line of Kingsley Lane; thence, easterly along said northern line of Kingsley Lane to the western line of Newport Avenue; thence, northerly along said line of Newport Avenue to its intersection with the southern line of Whiting Street extended; thence, easterly along said southern line of Whiting Street extended and the said southern line of Whiting Street to the western line of Granby Street; thence, southerly along said western line of Granby Street to the said northern line of Ridgeley Road, being the point of beginning.

(j) Beginning at the intersection of the western line of 1st Bay Street and the southern line of East Ocean View Avenue; thence, eastwardly along said southern line of East Ocean View Avenue to its intersection with the southern line of Shore Drive; thence, southeastwardly and southerly along the southern line and western line of Shore Drive to the mean high water of the Western Branch of

Little Creek (Pretty Lake) to the southerly extension of the western line of 1st Bay Street; thence, northerly along said western line of 1st Bay Street to the point of beginning.

(Ord. No. 41,716, § 1, 2-8-05; Ord. No. 42,341, § 1, 7-11-06; Ord. No. 43,592, § 1, 9-15-09; Ord. No. 44,035, § 1, 11-2-10; Ord. No. 44,084, § 1, 12-21-10; Ord. No. 44, 804, § 1, 8-28-12; Ord. No. 45,221, § 1, 8-27-13; Ord. No. 46,185, § 1, 12-15-15; Ord. No. 47,337, § 1, 8-28-18)

Sec. 25-322. Limitations on golf cart operations on designated highways.

(a) A golf cart may be operated only on designated public highways, posted with the required sign, where the posted speed limit is twenty-five (25) miles per hour or less. No golf cart shall cross any highway at an intersection where the highway being crossed has a posted speed limit of more than twenty-five (25) miles per hour. However, a golf cart may cross a highway at an intersection controlled by a traffic light if the highway has a posted speed limit of no more than thirty-five (35) miles per hour.

(b) No person shall operate any golf cart on any public highway unless he has in his possession a valid driver's license.

(c) Every golf cart whenever operated on a public highway, shall display a slow-moving vehicle emblem in conformity with section 46.2-1081 of the Virginia State Code, 1950, as amended.

(d) Golf carts shall be operated on the extreme right of the highway and must yield to all vehicular, bicycle and pedestrian traffic.

(e) Golf carts shall be operated upon the public highways only between sunrise and sunset, unless equipped with such lights as are required in sections 46.2-1010 et seq. of the Virginia State Code, 1950, as amended, for different classes of vehicles.

(f) No one shall ride standing in a golf cart. The number of riders shall be limited to the number of seated passengers the golf cart is designed to accommodate.

(g) The limitations of subsection (a) shall not apply to golf carts being operated by employees of Old Dominion University within the limits set in subsection (b) of section 25-321.

(Ord. No. 41,716, § 1, 2-8-05; Ord. No. 42,341, § 2, 7-11-06; Ord. No. 45,221, § 2, 8-27-13; Ord. No. 48,270, § 2, 1-12-21)

Sec. 25-323. When limitations not applicable.

The limitations of section 25-322 shall not apply to golf carts being operated as follows:

(a) To cross a highway from one portion of a golf course to another portion thereof or to another adjacent golf course; or to travel between a person's home and golf course if (i) the trip would not be longer than one-half (½) mile in either direction, and (ii) the speed limit on the road is no more than thirty-five (35) miles per hour;

(b) To the extent necessary for municipal government employees, to fulfill a governmental purpose, provided the golf cart is being operated on highways with speed limits of thirty-five (35) miles per hour or less.

(Ord. No. 41,716, § 1, 2-8-05)

Sec. 25-324. Insurance requirement.

The owner of a golf cart operated on designated streets and highways shall maintain a liability insurance policy covering such operation with coverage limits of at least one hundred thousand dollars ($100,000.00) for personal injury or death of any one person resulting from any one accident, three hundred thousand dollars ($300,000.00) for personal injury or death of two (2) or more persons resulting from any one accident, and twenty thousand dollars ($20,000.00) for property damage.

(Ord. No. 45,221, § 3, 8-27-13)

Sec. 25-325. Penalties.

A civil penalty in the amount of one hundred dollars ($100.00) shall be imposed for any viola-

tion of this article. The civil penalty shall be increase to two hundred fifty dollars ($250.00) for a repeat violation of this article.
(Ord. No. 45,221, § 4, 8-27-13)

Secs. 25-326—25-375. Reserved.

ARTICLE X. BICYCLES, TOY VEHICLES AND MOTORIZED SKATEBOARD OR SCOOTER*

Sec. 25-376. Violations of chapter.

Unless otherwise specifically provided, a violation of any provision of this article shall constitute a Class 4 misdemeanor.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-377. Reserved.

Editor's note—Ord. No. 44,811, § 1, adopted August 28, 2012, repealed § 25-377, which pertained to removing, altering etc., frame number; frame number placed by chief of police or his designee or by bicycle dealer and derived from Ord. No. 42,900, § 3, adopted Nov. 6, 2007.

Sec. 25-378. Impoundment and sale of abandoned bicycles.

(a) Any bicycle found unattended shall be deemed abandoned, if a reasonable attempt to locate the owner or user in the immediate vicinity of the bicycle fails to produce such owner or user. Any bicycle so abandoned shall be taken into custody and impounded by the chief of police or any officer of the department of police.

(b) No abandoned bicycle shall be released or removed from impoundment except upon a satisfactory showing of ownership.

(c) If an abandoned bicycle is not reclaimed, as provided in subsection (b) above within thirty (30) days from the date of impounding, the chief of police or his agent shall cause the bicycle to be sold at public auction or donated to a charitable organization. All funds realized from an auction, minus expenses of the auction, shall be paid to the treasurer of the city. A charitable organization means any charitable institution or association located within the city limits as approved by the director of public safety or designee. A charitable organization receiving donated bicycles shall certify, in writing, that the bicycles will be donated by the organization to needy individuals.

(d) Any bicycle found and delivered to the police department by a private person which thereafter remains unclaimed for thirty (30) days after the final date of publication as required herein may be given to the finder; however, the location and description of the bicycle shall be published at least once a week for two (2) successive weeks in a newspaper of general circulation in the city.
(Ord. No. 42,900, § 3, 11-6-07; Ord. No. 43,155, § 1, 7-1-08; Ord. No. 44,811, § 2, 8-28-12; Ord. No. 47,085, § 1, 12-12-17)

Sec. 25-379. Definitions.

As used in this article, unless stated otherwise, each of the following terms shall have the meaning given it below:

(a) *Dockless mobility device system operator* or *"operator":* A private entity that operates a shareable dockless mobility device system.

(b) *Shareable dockless mobility device:* A bicycle, a motorized skateboard, a motorized scooter or any other human-powered device which does not require a driver's license, is designed to allow an operator to sit or stand, has no manufacturer-issued vehicle identification number and permits an individual to move or be moved freely.

(c) *Fleet:* Total number of dockless mobility devices.

(d) *Shareable dockless mobility device permit* or *"permit":* A permit required to operate a shareable mobility device system in the city.

(e) *Shareable dockless mobility device system:* A system operated by private entities

*__Editor's note—__**Ord. No. 42,900, § 3, adopted Nov. 6, 2007, added Art. X, consisting of §§ 25-324—25-350. At the editor's discretion and with the consent of the city, said provisions have been renumbered to read as herein set out to utilize section numbers previously assigned to Art. X and to allow for growth in Arts. IX and X.

which provides the general public with motorized skateboards or motorized scooters, as defined in section 46.2-100 of the Code of Virginia, and which can be rented on a short-term basis with no docking station.

(Ord. No. 47,681, § 1, 6-11-19)

Sec. 25-380. Operator's obligations.

(a) Operator shall have received approval of the city, by permit, to deploy its fleet of shareable dockless mobility devices in the city. Only one franchise/permit shall be in effect at any one time. Unless extended, the authority granted through a franchise or permit shall expire one year from the date of the issuance of the permit.

(b) Operator shall maintain liability insurance with the City of Norfolk as additional insured with a minimum of four million dollars ($4,000,000.00) in aggregate general liability.

(c) Operator shall have a staffed operation office in the city.

(d) Operator shall have a twenty-four-hour customer service phone number for the report of safety concerns or complaints.

(e) An operator identifier shall be permanently affixed to each device in a visible location.

(f) Contact information for requests for device relocation must be permanently affixed to each device.

(g) All devices shall be immediately removed and stored by operator upon an order of evacuation or the declaration of a state of emergency.

(Ord. No. 47,681, § 1, 6-11-19)

Sec. 25-381. Safety of shareable dockless mobility devices.

All shareable dockless mobility devices must have the following minimum safety standards:

(a) On board GPS.

(b) Breaking system.

(c) Light system: A front white light and a rear red reflector.

(d) Visible language to notify the user that user must yield to pedestrians at all time; that user shall not ride while under the influence of alcohol or drugs; that wearing a helmet is encouraged; that no one under the age of eighteen (18) is allowed to use the device.

(e) Operator must provide users with a method to notify the operator of any safety or maintenance issue encountered while using the device.

(f) Operator must educate users about the applicable state and city laws for riding and using the devices.

(Ord. No. 47,681, § 1, 6-11-19)

Sec. 25-382. Operating shareable dockless mobility devices.

(a) The speed limit for all shareable dockless mobility devices is no more than twenty miles per hour (20 mph).

(b) Shareable dockless mobility devices shall be operated in compliance with the laws of the Commonwealth of Virginia pertaining to motorized skateboards and motorized scooters.

(c) The operation of shareable dockless mobility devices will be restricted to the areas in the city where bicycles and skateboards are allowed, unless otherwise statutorily restricted in the Code of Virginia.

(Ord. No. 47,681, § 1, 6-11-19)

Sec. 25-383. Parking of shareable dockless mobility devices.

(a) Shareable dockless mobility devices shall be parked upright at all times.

(b) Shareable dockless mobility devices must be parked in such a manner as to not impede the right-of-way or obstruct an ADA ramp or a sidewalk.

(c) Any shareable dockless mobility device found to be in violation of this section is subject to removal by the city and operator shall pay thirty-five dollars ($35.00) for each scooter removed and five dollars ($5.00) per day of storage, including the day of removal and the

day of release from storage. The city shall provide notice of removal within forty-eight (48) hours of removal.

(d) No more than ten (10) shareable dockless mobility devices may be parked per block.

(e) If the city creates parking areas for the devices, operator shall comply with the parking restrictions within five (5) days of written notification by the city.
(Ord. No. 47,681, § 1, 6-11-19)

Sec. 25-384. Revocation.

Any franchise/permit granted shall be subject to these regulations and any future amendments and may be revoked for failure to comply with this ordinance.
(Ord. No. 47,681, § 1, 6-11-19)

Sec. 25-385. Reserved.

Editor's note—Ord. No. 44,811, § 1, adopted August 28, 2012, repealed § 25-385, which pertained to impounding unregistered bicycle and derived from Ord. No. 42,900, § 3, adopted Nov. 6, 2007.

Sec. 25-386. Applicability of traffic regulations to riders.

Every person riding a bicycle or motorized skateboard or scooter upon a street or roadway within the corporate limits of the city shall be granted all the rights and shall be subject to all the duties and responsibilities applicable to the driver of a motor vehicle under the laws of the state and the traffic ordinances of the city, except as to those provisions which, by their very nature, can have no application.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-387. Lights and reflectors.

Every bicycle when in use between sunset and sunrise shall be equipped with a white light on the front emitting a white light which shall be visible in clear weather from a distance of at least five hundred (500) feet to the front and with a red reflector visible from a distance of at least six hundred (600) feet to the rear when directly in front of lawful lower beams of headlights on a motor vehicle. Such lights and reflector shall be of types approved by the superintendent.

In addition to the foregoing provisions of this section, a bicycle or its rider may be equipped with lights or reflectors. These lights may be steady burning or blinking. Every bicycle, or its rider, shall be equipped with a taillight on the rear emitting a red light plainly visible in clear weather from a distance of at least five hundred (500) feet to the rear when in use between sunset and sunrise and operating on any highway with a speed limit of thirty-five (35) mph or greater. Any such taillight shall be of a type approved by the superintendent.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-388. Helmet required for bicycle and toy vehicle riders fourteen years of age or younger.

(a) Every person fourteen (14) years of age or younger shall be required to wear a protective helmet which meets the standards promulgated by the Consumer Product Safety Commission whenever riding or being carried on a bicycle on any highway, street, sidewalk or bicycle path.

(b) The parents or guardians of any person who violates this section shall be jointly and severally liable. Violation of this section is punishable by a fine of twenty-five dollars ($25.00), provided that such fine shall be suspended for any person's first violation, if the person provides proof of ownership of, or having acquired, subsequent to the violation but prior to the deadline for payment of the civil penalty, a helmet of the type required by this section.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-389. Toy vehicles to be operated during daylight.

Toy vehicles shall not be operated on any highways or city streets or property between sunset and sunrise.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-390. Brake.

Every bicycle, toy vehicle or motorized skateboard or scooter, when operated on any street, shall be equipped with a brake which will enable the operator to make the braked wheels skid on dry, level, clean pavement.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-391. Muffler required for motorized skateboard or scooters.

No motorized skateboard or scooter or toy vehicle shall be operated in the city unless such vehicle is equipped with a two-stage muffler in good working order and in constant operation, effective to prevent excessive or unusual noise.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-392. Bell or other signal device.

Every bicycle operated on the streets shall be equipped with a bicycle bell or other signal device capable of giving a signal audible for a distance of at least one hundred (100) feet; provided, however, that no person shall use upon a bicycle any siren or exhaust whistle.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-393. Carrying other persons.

No person riding a one-seated bicycle, toy vehicle or a motorized skateboard or scooter shall carry any additional person on the same.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-394. Hand on handlebars; carrying packages.

(a) No person shall ride a bicycle, toy vehicle or a motorized skateboard or scooter on any street without having at least one of his hands upon the handlebars.

(b) No person operating a bicycle, toy vehicle or motorized skateboard or scooter upon a street shall carry any package, bundle or article which prevents him from keeping at least one hand upon the handlebars.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-395. How turn signals given.

(a) Signals shall be given by means of the hand and arm or by some mechanical or electrical device approved by the superintendent, in the manner specified in this section. Whenever the signal is given by means of the hand and arm, the driver shall indicate his intention to start, stop, turn, or partly turn by extending the hand and arm beyond the left side of the vehicle in the manner following:

(1) For left turn or to pull to the left, the arm shall be extended in a horizontal position straight from and level with the shoulder;

(2) For right turn or to pull to the right, the arm shall be extended upward;

(3) For slowing down or stopping, the arm shall be extended downward.

(b) Wherever the lawful speed is more than thirty-five (35) miles per hour, such signals shall be given for a distance of at least one hundred (100) feet, and in all other cases at least fifty (50) feet, before slowing down, stopping, turning, or partly turning. Such signals, however, need not be given continuously if both hands are needed in the control or operation of the bicycle.

(c) Notwithstanding the foregoing provisions of this section, a person operating a bicycle may signal a right turn or pull to the right by extending the right hand and arm in a horizontal position straight from and level with the shoulder beyond the right side of the bicycle and may signal slowing down or stopping by extending the right arm downward.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-396. Riding on roadways.

Every person operating a bicycle, toy vehicle or motorized skateboard or scooter upon a roadway at less than the normal speed of traffic at the time and place under conditions then existing shall ride as near to the right side of the street as safely practicable, except under any of the following circumstances:

(1) When overtaking and passing another vehicle proceeding in the same direction;

(2) When preparing for a left turn at an intersection or into a private road or driveway;

(3) When reasonably necessary to avoid conditions including, but not limited to, fixed or moving objects, parked or moving vehicles, pedestrians, animals, surface hazards, or substandard width lanes that make it unsafe to continue along the right curb or edge; a "substandard width lane" is a lane too narrow for a bicycle or motorized skateboard or scooter to pass safely side by side within the lane;

(4) When avoiding riding in a lane that must turn or diverge to the right; and

(5) When riding upon a one-way road or highway, a person may also ride as near the left-hand curb or edge of such roadway as safely practicable.

(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-397. Riding two abreast.

Persons riding bicycles, toy vehicles or motorized skateboards or scooters upon a street or roadway shall not ride more than two (2) abreast. Persons riding two (2) abreast shall not impede the normal and reasonable movement of traffic, shall move into a single-file formation as quickly as is practicable when being overtaken from the rear by a faster moving vehicle, and, on a laned roadway, shall ride in a single lane.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-398. Riding on sidewalks.

(a) No person shall ride a bicycle upon any sidewalk, whether paved or unpaved, in the Downtown Service District as described in section 24-212, or in any pedestrian/commercial overlay district, except in the areas designated as The Elizabeth River Trail.

(b) No person shall ride a toy vehicle or motorized skateboard or scooter upon any sidewalk, with the exception of a motorized scooter required for mobility assistance.

(c) Whenever any person shall ride a bicycle or a motorized scooter on the sidewalk, whether paved or unpaved, such person shall yield the right-of-way to any pedestrian and shall give an audible signal before overtaking and passing any pedestrian. Persons riding bicycles or motorized scooters on sidewalks shall ride in single file.

(d) No person fifteen (15) years old or older shall ride a bicycle on the sidewalk if a bicycle lane or multi-use path is available, with the exception of an adult riding a bicycle along with a child fourteen (14) years old or younger.

(e) This prohibition shall not apply to public safety officers, city employees or their representatives operating bicycles while engaged in their official assigned duties.

(f) A violation of this section shall be punishable by a civil penalty of not more than fifty dollars ($50.00).
(Ord. No. 42,900, § 3, 11-6-07; Ord. No. 44,811, § 3, 8-28-12)

Sec. 25-399. Riding out of lanes, alleys and driveways.

Every person riding a bicycle, toy vehicle or motorized skateboard or scooter out of a lane, alley or private driveway across a sidewalk or sidewalk area shall first bring such bicycle, toy vehicle or motorized skateboard or scooter to a stop before crossing the sidewalk or sidewalk area.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-400. Reckless riding.

No person shall ride a bicycle, toy vehicle or motorized skateboard or scooter recklessly or at a speed or in a manner so as to endanger the life, limb or property of the rider or of any other person.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-401. Clinging to moving vehicle.

No person riding a bicycle, toy vehicle or motorized skateboard or scooter shall take or catch hold of any moving automobile, bus or other vehicle of any kind upon any street, for the purpose of being drawn or propelled by the same.
(Ord. No. 42,900, § 3, 11-6-07)

Sec. 25-402. Restrictions on operating push motor scooters on streets and highways.

Motorized skateboard or scooters and toy vehicles shall not be operated on any street or highway with a speed limit in excess of twenty-five (25) miles per hour; however, the operator may cross a street or highway with a speed limit in excess of twenty-five (25) miles per hour if the crossing begins and ends on a street with a speed limit of twenty-five (25) miles per hour.
(Ord. No. 42,900, § 3, 11-6-07)

Secs. 25-403—25-590.46. Reserved.

ARTICLE XI. ABANDONED VEHICLES*

Sec. 25-591. Definitions.

(1) *Generally:* As used in this article, certain words and phrases shall have the meanings ascribed to them by this section.

(2) *Abandoned motor vehicle:* A motor vehicle, trailer or semitrailer or part thereof that:

(a) Is inoperable and is left unattended on public property for more than forty-eight (48) hours, or

(b) Has remained illegally on public property for a period of more than forty-eight (48) hours, or

(c) Has remained, without consent, on private property, including, but not limited to, any commercial parking place, motor-vehicle storage facility or establishment for the service, repair, maintenance or sale of motor vehicles, whether or not such vehicle was brought into or left at such property with or without the consent of the owner or person in control of the property, for the more than forty-eight (48) hours.

In addition, it shall be presumed that motor vehicle, trailer or semitrailer or part thereof is abandoned if it lacks a current license plate, a current county, city or town plate or sticker or a valid state inspection certificate or sticker and it has been in a specific location for four (4) days without being moved. Any designated special police officer, fire marshal, or any of his assistants, or any law enforcement officer may enforce the provisions of this article.

(3) *Demolisher:* Any person whose business is to convert a motor vehicle, trailer or semitrailer into processed scrap or scrap metal or otherwise to wreck or dismantle such vehicles.

(4) *Motor vehicle:* A motor vehicle, trailer or semitrailer.

***State law reference—**Authority of city to adopt ordinance similar to this article, Code of Virginia, § 46.1-555.2. See also, § 46.1-3.

(5) *Street:* Any public street, including the walk area, whether paved or unimproved, the area lying between the sidewalk area and the roadway and the area lying between a divided roadway of any street, or any alley, lane, viaduct, bridge, or underpass in the city.

(6) *Traffic hazard:* Any motor vehicle found on the streets or grounds of the city, unattended by the owner or operator, which constitutes a hazard to traffic or which is parked so as to be in violation of law.

(Code 1958, §§ 29-736, 29-738, 29-742.1; Ord. No. 34,028, § 1, 6-10-86; Ord. No. 42,068, § 1, 10-25-05)

Sec. 25-592. Vehicle compounds for towed vehicles.

The city shall designate various city property locations as vehicle compounds for the storage of vehicles towed and/or removed.

(Ord. No. 39,932, § 1, 4-25-00)

Sec. 25-593. Removal and disposition of unattended, or immobile vehicles.

(1) The Norfolk Police Department may remove for safekeeping motor vehicles, trailers, semitrailers, or parts thereof to a storage area if:

(a) They are left unattended on a public highway or other public property and constitutes a traffic hazard;

(b) They are illegally parked;

(c) They are left unattended for more than ten (10) days either on public property or on private property without the permission of the property owner, lessee, or occupant;

(d) They are immobilized on a public roadway by weather conditions or other emergency situation.

(2) Removal shall be carried out by or under the direction of a police officer. Removal of motor vehicles, trailers, semitrailers, and parts thereof from private property is not authorized without the written request of the owner, lessee, or occupant of the premises and that said vehicle has remained upon the property for a period of seventy-two (72) hours without the consent of the owner, lessee or occupant of the premises. The person at whose request the motor vehicle, trailer, semitrailer, or part of a motor vehicle, trailer, or semitrailer is removed from private property shall indemnify the city against any loss or expense incurred by reason of removal, storage, or sale thereof. It shall be presumed that such motor vehicle, trailer, semitrailer, or part thereof is abandoned if it (i) lacks either a current license plate; or a current county, city or town license plate or sticker; or a valid state safety inspection certificate or sticker; and (ii) it has been in a specific location for four (4) days without being moved. Before obtaining possession of the motor vehicle, trailer, semitrailer, or part thereof, the owner shall pay to the parties entitled thereto all costs incidental to its removal and storage and locating the owner. If the owner fails or refuses to pay the cost or if his identity or whereabouts is unknown and unascertainable after a diligent search has been made, and after notice to him at his last known address and to the holder of any lien of record with the Office of the Department of Motor Vehicles against the motor vehicle, trailer, semitrailer, or part of a motor vehicle, trailer, or semitrailer, the vehicle shall be treated as an abandoned vehicle under the provisions of article XI of this chapter.

(3) In removing a vehicle under this section, the city may employ its own personnel and equipment or hire persons and equipment for the purpose of removing such vehicle.

(Code 1958, §§ 29-738, 29-743.1; Ord. No. 34,028, § 2, 6-10-86; Ord. No. 34,601, § 1, 7-14-87; Ord. No. 40,024, § 1, 6-27-00)

State law reference—Similar provisions, Code of Virginia, §§ 46.1-3, 46.1-555.3.

Sec. 25-594. Officer's report of removal.

The officer removing or causing the removal of any motor vehicle under this article shall immediately make a written report thereof to the person in charge of the vehicle compound, setting forth the date, time and place of and the reason for such removal and the license number of the motor vehicle removed.

(Code 1958, § 29-739)

State law reference—Report required, Code of Virginia, § 46.1-3.

Sec. 25-595. Notice of removal.

(1) Within fifteen (15) days after a motor vehicle is removed under this article, the person in charge of the vehicle compound shall notify, by registered or certified mail, return receipt requested, the owner of record of the motor vehicle and all persons having security interests therein of record that the vehicle has been taken into custody. The notice shall describe the year, make, model and the serial number of the motor vehicle, set forth the location of the facility where the motor vehicle is being held, inform the owner and any persons having security interests of their right to reclaim the motor vehicle within fifteen (15) days after the date of notice, upon payment of all towing, preservation and storage charges resulting from placing the vehicle in custody, and state that the failure of the owner or person having a security interest to exercise his right to reclaim the vehicle within the time provided shall be deemed a waiver by the owner and all persons having any security interests of all right, title and interest in the vehicle and consent to the sale of the abandoned motor vehicle at a public auction. Notwithstanding the above, those motor vehicles, trailers or semitrailers which have been towed pursuant to this article shall be held at least twenty (20) days prior to sale where the towing was from private property.

(2) If records of the state division of motor vehicles contain no address for the owner or no address of any person shown by such records to have a security interest, or if the identity and addresses of the owner and all persons having security interests cannot be determined with reasonable certainty, notice by publication once in a newspaper of general circulation in the area from which the motor vehicle was removed shall be sufficient to meet all requirements of notice pursuant to this section as to any person who cannot be notified pursuant to the provisions of subsection (1) of this section. Such notice by publication may contain multiple listings of motor vehicles. Any such notice shall be within the time requirements prescribed for notice by mail and shall have the same contents required for a notice by mail.

(3) The consequences and the fact of failure to reclaim a motor vehicle shall be as set forth in a notice given in accordance with and pursuant to this section.

(Code 1958, §§ 29-739, 29-743.2; Ord. No. 34,601, § 1, 7-14-87; Ord. No. 42,068, § 2, 10-25-05)

State law reference—Similar provisions, Code of Virginia, § 46.1-555.4.

Sec. 25-596. Sale.

(1) If any motor vehicle removed under this article has not been reclaimed, as provided for in and the notice given pursuant to section 25-595, the city or its authorized agent shall, notwithstanding the provisions of section 46.1-88 of the Code of Virginia, sell the motor vehicle at public auction; provided, however, that if the value of any such motor vehicle is determined, by three (3) disinterested dealers or garagemen, to be less than fifty dollars ($50.00), which would be incurred by such advertising and public sale or junked. The purchaser of the motor vehicle shall take the title thereto free and clear of all liens and claims of ownership of others, shall receive a sales receipt at the auction and shall be entitled, upon application therefor pursuant to section 46.1-68 of the Code of Virginia, to a certificate of title and registration card therefor. The sales receipt at such a sale shall be sufficient title only for purposes of transferring the vehicle to a demolisher for demolition, wrecking or dismantling, and, in such case, no further titling of the vehicle shall be necessary.

(2) From the proceeds of the sale of a motor vehicle under this section, the city or its authorized agent shall reimburse itself for the expenses of the auction, the cost of towing, preserving and storing the vehicle which resulted from placing the vehicle in custody, and all notice and publication costs incurred pursuant to this article. Any remainder from the proceeds of such sale shall be held for the owner of the motor vehicle or any persons having security interests therein, as their interests may appear, for ninety (90) days, and then shall be deposited into the treasury of the city. Any such owner may apply to the city within three (3) years from the date o such sale, and if timely application is made therefor, the city shall pay the same to the owner without interest or

other charges. No claim shall be made nor shall any suit, action or proceeding be instituted for the recovery of such funds after three (3) years from the date of such sale.
(Code 1958, § 29-743.3; Ord. No. 38,644, § 1, 2-11-97; Ord. No. 40,160, § 1, 11-21-00)

Cross reference—General provisions relative to disposal of unclaimed property in custody of department of police, § 33-61 et seq.

State law reference—Similar provisions, Code of Virginia, §§ 46.1-3, 46.1-555.5.

Sec. 25-597. Vehicles abandoned in garages.

(1) Any motor vehicle or part thereof left for more than ten (10) days in a garage operated for commercial purposes, after notice by registered or certified mail, return receipt requested, to the owner to pick up the vehicle, or for more than ten (10) days after the period when, pursuant to contract, the vehicle was to remain on the premises, shall be deemed an abandoned motor vehicle, and may be reported by the garage keeper to the city. All abandoned motor vehicles left in garages may be taken into custody by the city in accordance with section 25-593 and shall be subject to the notice and sale provisions contained in sections 25-595 and 25-596; provided that, if such vehicle is reclaimed in accordance with section 25-595, the person reclaiming such vehicle shall, in addition to the other charges required to be paid, pay the charges of the garage keeper, if any; and provided further, that if such vehicle is sold pursuant to section 25-596, the garage keeper's charges, if any, shall be paid from, and to the extent of, the excess of the proceeds of sale, after paying the expenses of the auction, the costs of towing, preserving and storing such vehicle which resulted from placing such vehicle in custody, and all notice and publication costs incurred pursuant to section 25-595.

(2) Except as otherwise provided in this article, nothing herein shall be construed to limit or restrict any rights conferred upon any person under sections 43-32 through 43-36 of the Code of Virginia.

(3) For the purposes of this section, "garage keeper" means any operator of a parking place, motor vehicle storage facility or establishment for the servicing, repair or maintenance of motor vehicles.
(Code 1958, § 29-743.4)

State law reference—Similar provisions, Code of Virginia, § 46.1-555.7.

Sec. 25-598. Sale of personal property found in vehicle.

Any personal property found in any unattended or abandoned motor vehicle may be sold as an incident to the sale of such vehicle pursuant to this article.
(Code 1958, § 29-743.4-I)

State law reference—Similar provisions, Code of Virginia, § 46.1-3.01.

Sec. 25-599. Demolition of inoperable vehicles—Generally.

(1) Notwithstanding any other provisions of this article or the provisions of section 46.1-88 of the Code of Virginia, when in the opinion of the chief of police, or his designated representative, any motor vehicle removed under this article is inoperable and, by virtue of its condition, cannot be feasibly restored to operable condition, may be disposed of to a demolisher, without the title and without the notification procedures required by this article. The demolisher, upon taking custody of such motor vehicle, shall notify the state division of motor vehicles, on forms and in the manner prescribed by the commissioner and, notwithstanding any other provision of law, no other report or notice shall be required in such an instance.

(2) Whenever a motor vehicle or major portion thereof has been disposed of to a demolisher pursuant to the provisions of this section, at the expense of the city, the city shall certify such fact to the commissioner of the state division of motor vehicles on forms provided by him. Before such certification is made, the motor vehicle, which is the subject of such certification, shall be examined by an investigator from the city vehicle compound. Such investigator shall determine whether or not such vehicle is inoperable and whether it can feasibly be restored to an operable

condition. The reasons for his determination shall be put in writing and be retained in the records of the vehicle compound.
(Code 1958, §§ 29-743.5, 29-743.7, 29-743.8)

State law reference—Similar provisions, Code of Virginia, §§ 46.1-555.7, 46.1-555.9.

Sec. 25-600. Same—Demolisher's title and records.

(1) Any demolisher who purchases or otherwise acquires a motor vehicle for the purposes of wrecking, dismantling or demolition shall not be required to obtain a certificate of title for such motor vehicle in his own name. After the motor vehicle has been demolished, processed or changed so that it physically is no longer a motor vehicle, the demolisher shall surrender to the state division of motor vehicles, for cancellation, the certificate of title or sales receipt therefor. The division of motor vehicles shall issue such forms, rules and regulations governing the surrender of sales receipts and certificates of title as are appropriate.

(2) A demolisher shall keep accurate and complete record of all motor vehicles purchased or received by him in the course of his business. These records shall contain the name and address of the person from whom each such motor vehicle was purchased or received and the date when such purchase or receipt occurred. Such records shall be open for inspection by the division of motor vehicles at any time during normal business hours.

State law reference—Similar provisions, Code of Virginia, § 46.1-555.8.

Sec. 25-601. Towing, storage and administrative fees for vehicles towed and/or removed.

(a) Except as provided in section 25-302, all vehicles removed, towed, or both from private or public property pursuant to this chapter and section 29-58, without the prior consent and agreement of the owner or custodian of the vehicle, are subject to a towing fee of two hundred dollars ($200.00) for a light tow (a vehicle having a weight of up to eight thousand eight hundred (8,800) pounds); three hundred fifty dollars ($350.00) for a medium tow (a vehicle having a weight between eight thousand eight hundred one (8,801) pounds and seventeen thousand nine hundred ninety-nine (17,999) pounds); and five hundred seventy-five dollars ($575.00) for the towing of any vehicle having a weight of eighteen thousand (18,000) pounds or more, and storage fees of fifty dollars ($50.00) for vehicles seventeen thousand nine hundred ninety-nine (17,999) pounds or less or no more than seventy dollars ($70.00) for vehicles eighteen thousand (18,000) pounds or more per twenty-four-hour period (not included in the initial twenty-four (24) hours), which fees must be paid by the owner or custodian upon retrieval of the vehicle, prior to release of the vehicle to such owner or custodian. Vehicles not claimed within seventy-two (72) hours of the tow/removal may also be subject to an administrative fee not to exceed one hundred dollars ($100.00), which fee must be paid by the owner or custodian of the vehicle, prior to release of the vehicle to such owner or custodian. Any motor vehicle coming to rest off four (4) wheels, in a ditch, in a body of water, wedged underneath another motor vehicle, or embedded into a structure, as a result of an accident or incident, may be charged an additional fee not to exceed one hundred dollars ($100.00). An accident-site cleanup fee not to exceed seventy dollars ($70.00) is permitted to be charged. No vehicle access fees or viewing fees are permitted to be charged. The towing storage lot must be manned by an employee on the premises from 9:00 a.m. to 5:00 p.m. daily. After this time, the towing firm must man the number posted to facilitate return of vehicle within two (2) hours.

(b) The city manager and or his appointed representative is hereby authorized to waive or make fee adjustments for towing/storage, administrative fees, or both for vehicles towed, removed or both if such adjustments are deemed appropriate.
(Ord. No. 39,932, § 2, 4-25-00; Ord. No. 40,958, § 1, 2-11-03; Ord. No. 41,359, § 1, 4-6-04; Ord. No. 42,005, § 2, 8-30-05; Ord. No. 43,186, § 2, 8-19-08; Ord. No. 46,881, § 2, 6-27-17; Ord. No. 49,820, § 2, 12-10-24)

Secs. 25-602—25-625. Reserved.

ARTICLE XII. PEDESTRIANS*

Sec. 25-626. Crossing streets generally.

(1) When crossing highways or streets, pedestrians shall not carelessly or maliciously interfere with the orderly passage of vehicles. They shall cross, wherever possible, only at intersections or marked crosswalks. Where intersections of streets contain no marked crosswalks, pedestrians shall not be guilty of negligence as a matter of law for crossing at any such intersection or between intersections, when crossing by the most direct route.

(2) Pedestrians may cross an intersection diagonally when all traffic entering the intersection has been halted by lights or semaphores or signals by a peace or police officer.
(Code 1958, § 29-584)

State law reference—Provisions similar to subsection (1) and authority for subsection (2), Code of Virginia, § 46.1-230.

Sec. 25-627. Right-of-way.

(1) The driver of any vehicle upon a street or highway shall yield the right-of-way to a pedestrian crossing such street or highway within any clearly marked crosswalk, whether at mid-block or at the end of a block, or any regular pedestrian crossing included in the prolongation of the lateral boundary lines of the adjacent sidewalk at the end of a block, or at any intersection when the driver is approaching on a street or highway where the legal maximum speed does not exceed thirty-five (5) miles per hour, except at intersections or crosswalks where the movement of traffic is being regulated by traffic officers or traffic direction devices where the driver shall yield according to the direction of such officers or devices.

(2) No pedestrian shall enter or cross an intersection in disregard of approaching traffic.

(3) The drivers of vehicles entering, crossing or turning at intersections shall change their course, slow down or come to a complete stop, if necessary to permit pedestrians to safely and expeditiously cross such intersections.

(4) Pedestrians crossing highways or streets at intersections shall at all times have the right-of-way over vehicles making turns into the highways or streets being crossed by the pedestrians.
(Code 1958, § 29-585)

State law reference—Similar provisions, Code of Virginia, § 46.1-231.

Sec. 25-628. Stepping into street where approaching driver's vision obscured.

Pedestrians shall not step into that portion of a highway or street open to moving vehicular traffic at any point between intersections where their presence would be obscured from the vision of drivers of approaching vehicles by a vehicle or other obstruction at the curb or side, except to board a passenger bus or to enter a safety zone, in which event they shall cross the highway or street only at right angles.
(Code -1958, § 29-586)

State law reference—Similar provisions, Code of Virginia, § 46.1-232.

Sec. 25-629. Boarding or alighting from buses.

When actually boarding or alighting from passenger buses, pedestrians shall have the right-of-way over vehicles, but shall not, in order to board or alight from passenger buses, step into the highway or street sooner nor remain there longer than is absolutely necessary.
(Code 1958, § 29-587)

State law reference—Similar provisions, Code of Virginia, § 46.1-233.

Sec. 25-630. Walking on roadways.

Pedestrians shall not use the highways or streets, other than the sidewalks thereof, for travel, except when necessary to do so because of the absence of sidewalks, reasonably suitable and passable for their use, in which case, if they walk upon the hard surface or the main-traveled portion of the roadway, they shall keep to the extreme left side or edge thereof, or where the

*__Cross references—__Handling advertising material to pedestrians, § 3-6; pedestrian malls, Ch. 31.

shoulders of the highway are of sufficient width to permit, they may walk on either shoulder thereof.
(Code 1958, § 29-588)

State law reference—Similar provisions, Code of Virginia, § 46.1-234.

Sec. 25-630.1. Interfering with vehicular traffic.

A pedestrian may not stand upon the edge of a roadway and behave in a manner so as to cause a reasonable man to believe the pedestrian is about to jump into the roadway in front of his vehicle.
(Ord. No. 46,383, § 1, 5-10-16)

Sec. 25-631. Hitchhiking.

No pedestrian shall stand or stop in any roadway for the purpose of soliciting rides.
(Code 1958, § 29-591.1)

State law reference—Similar provisions, Code of Virginia, § 46.1-234.

Sec. 25-632. Playing on streets and sidewalks; use of roller skates, roller blades, skateboards, toys or other devices on wheels or runners.

(1) No person shall play on any street or highway, other than upon the sidewalk thereof if not otherwise prohibited. Except in such areas as may be specifically designated for that purpose by the city manager, no person shall use on a street or highway where play is prohibited roller skates, roller blades, skateboards, or toys or other devices on wheels or runners, except for bicycles, mopeds and motorcycles.

(2) No person using roller skates, roller blades, a skateboard or toy or other device on wheels or runners shall attach the same or himself to any vehicle upon any roadway.

(3) No person shall use roller skates, roller blades, or a skateboard on any sidewalk in the city if the general area of the sidewalk is conspicuously posted with signs indicating that their use is prohibited on that particular sidewalk. Any person using roller skates, roller blades, or a skateboard on a sidewalk shall yield the right-of-way to any pedestrian using that sidewalk.
(Code 1958, §§ 29-590, 29-591; Ord. No. 34,423, § 1, 4-21-87; Ord. No. 38,937, § 1, 10-14-97; Ord. No. 38,998, § 1, 12-9-97)

State law reference—Similar provisions, Code of Virginia, § 46.1-235.

Sec. 25-633. Penalty for violation of sections 25-626—25-632.

Any person convicted of violating any of the provisions of sections 25-626 through 25-632 shall be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) for each offense.
(Code 1958, § 29-592; Ord. No. 35,389, § 1, 2-14-89)

Sec. 25-634. Pedestrian-control signal legend.

Whenever special pedestrian control signals exhibiting the words "Walk" or "Don't Walk" are in place, such signals shall indicate as follows:

(1) *Walk:* Pedestrians facing such signal may proceed across the street or highway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

(2) *Don't Walk:* No pedestrian shall start to cross the street or highway in the direction of such signal, but any pedestrian who has partially completed his crossing on the "Walk" signal shall proceed to a sidewalk or safety island while the "Don't Walk" signal is showing.

Any pedestrian violating the provisions of this section shall be punished as provided in section 25-635.
(Code 1958, § 29-589.1)

State law reference—Similar provisions, Code of Virginia, § 46.1-231.1.

Sec. 25-635. Obedience to traffic-control devices, police officers, uniformed school crossing guards and operations officers.

Pedestrians shall obey all signs, signals and lights erected and placed on any of the streets,

avenues, lanes and alleys in the city for the direction and control of travel and traffic, and shall also obey all orders, directions and instructions of any police officers and operations officers engaged in directing travel and traffic on such streets, avenues, lanes and alleys, and uniformed school crossing guards while engaged in traffic control and directing the crossing of children at any marked school crossing, whether such crossing is at any marked school crossing, at an intersection or another location. Any person violating any of the provisions of this section shall, upon conviction thereof, be fined not more than two hundred dollars ($200.00) for each offense. Any person given a written summons or notice for a violation of this section may, within twenty-four (24) hours of the time when such summons or notice was received, pay to the clerk of the general district court, traffic division, as a penalty for and in full satisfaction of such violation, the sum of fifty dollars ($50.00) for each offense. The failure of such person to make such payment within twenty-four (24) hours shall render such person subject to the penalty above provided for in this section.
(Code 1958, § 29-589; Ord. No. 35,390, § 1, 2-14-89; Ord. No. 41,357, § 3, 4-6-04)

State law reference—Authority for above section, Code of Virginia, § 46.1-241.

Sec. 25-636. Botetourt Street Bridge designated as pedestrian way; vehicles prohibited.

Botetourt Street Bridge, generally known as the Ghent Bridge, is hereby closed and discontinued as a public thoroughfare for vehicular traffic, and such bridge is hereby established as a pedestrian way. It shall be unlawful for any person to ride or drive any vehicle, including motorcycles on such bridge.
(Code 1958, § 29-40.1)

Sec. 25-637. Rights and duties of persons operating wheelchairs.

Except as otherwise provided by law, a person operating a wheelchair who, by reason of physical disability, is otherwise unable to move about as a pedestrian shall have the same rights and duties as a pedestrian as provided in this article.
(Ord. No. 45,296, § 1, 10-22-13)

Secs. 25-638—25-645. Reserved.

ARTICLE XIII. TRAFFIC REGULATIONS ON SPECIFIC STREETS*

Sec. 25-646. Speed limits.

Generally. Maximum speed limits on the streets or portions of streets set out in the following subsections of this section are hereby established as prescribed in such subsections. The city manager shall erect and maintain on such streets appropriate signs or markers indicating clearly the speed limit set forth for the particular streets. When such signs or markers are in place, it shall be unlawful for any person to drive any vehicle on any of the streets designated in the following subsections, between the designated points, at a speed exceeding that set forth for the particular streets, such speed limits having been established pursuant to an engineering and traffic survey. On any highway that is located in a business district or residence district, the speed limited may be reduced to less than twenty-five (25) miles per hour, but not less than fifteen (15) miles per hour provided that such reduced speed limit is indicated by lawfully placed signs. Nothing in this section shall be construed as authorizing the operation of a vehicle at a rate of speed in excess of that prescribed in section 25-646 in any school zone or school crossing zone.

Local Streets. In business districts and residential districts, the statutory speed limit on local streets is twenty (20) miles per hour unless posted otherwise. Non-Local Streets are designated in the latest Virginia Department of Transportation Approved Functional Classification Web Map.

21st Street, twenty (20) miles per hour between Granby Street and Hampton Boulevard.

*__Cross reference—__Operation or parking of vehicles for advertising purposes prohibited on certain streets, § 3-9.

26th Street, twenty-five (25) miles per hour between Hampton Boulevard and Lafayette Boulevard.

27th Street, twenty-five (25) miles per hour from its intersection with 26th Street at Ruffin Way to Hampton Boulevard.

30th Bay Street, fifteen (15) miles per hour between Pleasant Avenue and Pretty Lake Avenue.

Admiral Taussig Boulevard, thirty-five (35) miles per hour from its western terminus to Gate 3 of the Naval Base and forty (40) miles per hour from Gate 3 of the Naval Base to Granby Street.

Azalea Garden Road, thirty (30) miles per hour between Military Highway and Little Creek Road.

Azalea Garden Road, thirty-five (35) miles per hour between Virginia Beach Boulevard and Princess Anne Road.

Bainbridge Boulevard, thirty (30) miles per hour between South Main Street and the Chesapeake City line.

Ballentine Boulevard, thirty (30) miles per hour between Virginia Beach Boulevard and Lafayette Boulevard.

Bay Avenue, thirty (30) miles per hour, between the eastern line of Interstate Route 64 and Gate 4 of the Naval Air Station.

Bayview Boulevard, thirty (30) miles per hour between Granby Street and Capeview Avenue.

Brambleton Avenue, thirty-five (35) miles per hour between Riverview Avenue and the western line of Duke Street and thirty (30) miles per hour from the western line of Duke Street to the northern end of the Campostella Bridge.

Brooke Avenue, fifteen (15) miles per hour between Granby Street and Boush Street.

Campostella Road, thirty (30) miles per hour from the northern end of the Campostella Bridge to the city limits.

Campostella Road, fifteen (15) miles per hour in the Campostella Elementary School Zone.

Cape View Avenue, thirty (30) miles per hour between Bayview Boulevard and East Ocean View Avenue.

Charlotte Street, fifteen (15) miles per hour between Monticello Avenue and Bute Street.

Chesapeake Boulevard, twenty-five (25) miles per hour from Lafayette Boulevard and Norview Avenue for trucks of five (5) tons and over.

Chesapeake Boulevard, thirty (30) miles per hour between the Norfolk and Western Railway tracks (formerly Virginian Railway) and Norview Avenue; forty (40) miles per hour between Norview Avenue and Little Creek Road; and thirty-five (35) miles per hour between Little Creek Road and East Ocean View Avenue.

Church Street, thirty (30) miles per hour between Goff Street and Monticello Avenue.

Church Street, thirty (30) miles per hour between Monticello Avenue and Granby Street.

College Place, fifteen (15) miles per hour between Granby Street and Boush Street.

Colley Avenue, twenty (20) miles per hour between Redgate Avenue and 21st Street.

Colonial Avenue, twenty (20) miles per hour between Olney Road and W. 23rd Street.

Corporate Boulevard, thirty (30) miles per hour between South Military Highway and Curfew Drive.

Cromwell Road, thirty-five (35) miles per hour between Tait Terrace and Chesapeake Boulevard and thirty (30) miles per hour between Tait Terrace and Tidewater Drive.

Curlew Drive, thirty (30) miles per hour between Huntsman Road and Newtown Road.

Fairfax Avenue, fifteen (15) miles per hour between Olney Road and Wagner Road.

First View Street, thirty (30) miles per hour between Bay Avenue and Maple Avenue.

Fourth View Street, thirty-five (35) miles per hour between the southern line of former Lark Street and the southern line of West Ocean View Avenue.

Freemason Mews, ten (10) miles per hour between Dunmore Street and Yarmouth Street.

Freemason Street, fifteen (15) miles per hour between Boush Street and Monticello Avenue.

Glenrock Road, thirty-five (35) miles per hour between Military Highway and Poplar Hall Drive.

Granby Street, fifteen (15) miles per hour between Bute Street and City Hall Avenue.

Granby Street, thirty (30) miles per hour between Church Street and Willow Wood Drive and thirty-five (35) miles per hour between Willow Wood Drive and West Ocean View Avenue.

Gresham Drive, fifteen (15) miles per hour between Brambleton Avenue and Hampton Boulevard.

Hampton Boulevard, thirty-five (35) miles per hour from Admiral Taussig Boulevard to Little Creek Road; thirty (30) miles per hour from Little Creek Road to Redgate Avenue; and thirty-five (35) miles per hour from Redgate Avenue to Riverview Avenue.

Hampton Boulevard, fifteen (15) miles per hour in the Larchmont Elementary School Zone.

Indian River Road, thirty (30) miles per hour between the eastern line of Pescara Creek and the city limits.

Ingleside Road, thirty-five (35) miles per hour between Virginia Beach Boulevard and Tait Terrace.

International Terminal Boulevard, forty-five (45) miles per hour between Hampton Boulevard and Interstate Route 564.

Kempsville Road, thirty-five (35) miles per hour between Virginia Beach Boulevard and Newtown Road.

Lafayette Boulevard, thirty (30) miles per hour between the western line of the 26th Street Bridge and Lyons Avenue.

Lafayette Residence Park, ten (10) miles per hour on:

(a) The three (3) public alley streets connecting Saint Denis Avenue and Bellevue Avenue.

(b) The public alley street connecting Bellevue Avenue and Lorraine Avenue.

(c) The public alley street connecting Lorraine Avenue and Racine Avenue.

(d) The public alley street connecting the Lorraine-Racine public alley street (subsection (c)) and Bellevue Avenue.

(e) The public alley street connecting Racine Avenue and Tidewater Drive.

(f) The public alley street connecting Degrasse Avenue and Versailles Avenue.

(g) The public alley street connecting Degrasse Avenue and Orleans Circle.

(h) The public alley street connecting Degrasse Avenue and the Degrasse-Orleans public alley street (subsection (g)).

(i) The public alley street connecting Orleans Circle on the northwest side of Royale Park.

(j) The public alley street connecting Orleans Circle on the southeast side of Royale Park.

Little Creek Road, thirty-five (35) miles per hour between Hampton Boulevard and Halprin Drive and forty (40) miles per hour between Halprin Drive and Shore Drive.

Llewellyn Avenue, thirty (30) miles per hour between Virginia Beach Boulevard and 21st Street and between 38th Street and Granby Street.

Market Street, fifteen (15) miles per hour between Monticello Avenue and Granby Street.

Merrimack Park, fifteen (15) miles per hour on:

(a) Congress Road.

(b) Alabama Road.

(c) Albemarle Drive.

(d) Atlanta Lane.

(e) Nansemond Arch.

(f) Monitor Bay.

(g) Potomac Place.

(h) Kearsage Place.

(i) Missouri Place.

(j) Nipsic Lane.

Middle Towne Arch, fifteen (15) miles per hour on:

(a) Colchester Mews;

(b) Corprew Lane;

(c) Corprew Mews;

(d) Downham Way;

(e) East Norchester Mews;

(f) Gate House Mews;

(g) Middle Towne Mews;

(h) West Norchester Mews;

(i) Wolferton Lane.

Military Highway, forty-five (45) miles per hour between Little Creek Road and the Norfolk city limits at the eastern branch of the Elizabeth River, except between the north side of I-264 and Robin Hood Road, forty (40) miles per hour, and twenty-five (25) miles per hour on frontage roads between Hoggard Road and the Norfolk city limits at the eastern branch of the Elizabeth River.

Miller Store Road, thirty-five (35) miles per hour between the southern line of Robin Hood Road and the city limits.

Monticello Avenue, thirty (30) miles per hour between Brambleton Avenue and Church Street.

Mowbray Arch, fifteen (15) miles per hour between Olney Road and western terminal of Mowbray Arch.

Naval Base Road, thirty (30) miles per hour between Tidewater Drive and Waco Street.

Newtown Road, thirty-five (35) miles per hour between Curlew Drive and the Norfolk/Virginia Beach city limit.

North Shore Road, twenty (20) miles per hour between Hampton Boulevard and the eastern terminus.

Northampton Boulevard, forty (40) miles per hour.

Norview Avenue, thirty-five (35) miles per hour between Chesapeake Boulevard and Military Highway and thirty (30) miles per hour between Military Highway and the Norfolk Regional Airport.

Ocean View Avenue, thirty (30) miles per hour from the western terminus of Ocean View Avenue to 4th View Street; and, thirty-five (35) miles per hour between 4th View Street and Shore Drive.

Ocean View Avenue, thirty (30) miles per hour between the western terminus of Ocean View Avenue and 4th View Street.

Olney Road, fifteen (15) miles per hour, between Wagner Road and Fairfax Avenue.

Olney Road, twenty (20) miles per hour between Duke Street and Colley Avenue.

Poplar Hall Drive, thirty-five (35) miles per hour between Military Highway and Virginia Beach Boulevard.

Powhatan Avenue, thirty (30) miles per hour between 43rd Street and 38th Street.

Princess Anne Road, twenty (20) miles per hour between Granby Street and Hampton Boulevard.

Princess Anne Road, thirty (30) miles per hour from Park Avenue eastwardly to the Norfolk and Western Railway right-of-way and forty (40) miles per hour from the Norfolk and Western Railway right-of-way to Northampton Boulevard.

Robin Hood Road, thirty (30) miles per hour between Chesapeake Boulevard and Birch Street; twenty-five (25) miles per hour between Birch Street and Azalea Garden Road; thirty (30) miles per hour between Azalea Garden Road and Military Highway; and, thirty-five (35) miles per hour between Military Highway and Norfolk International Airport.

St. Paul's Boulevard, thirty (30) miles per hour between Water Street and Virginia Beach Boulevard.

Sewell's Point Road, thirty (30) miles per hour between Little Creek Road and Widgeon Road; thirty-five (35) miles per hour between Norview Avenue and Azalea Garden Road.

Shore Drive, thirty-five (35) miles per hour between East Ocean View Avenue and East Little Creek Road and forty-five (45) miles per hour between East Little Creek Road and the Virginia Beach City line.

State Street, thirty (30) miles per hour between Liberty Street and the Berkley Bridge.

Tazewell Street, fifteen (15) miles per hour between Boush Street and Monticello Avenue.

Thole Street, twenty-five (25) mile per hour between Granby Street and Tidewater Drive.

Tidewater Drive, thirty-five (35) miles per hour between City Hall Avenue and Little Creek Road and forty (40) miles per hour between Little Creek Road and Ocean View Avenue.

Village Avenue, thirty-five (35) miles per hour between Princess Anne Road and Ingleside Road.

Virginia Beach Boulevard, thirty (30) miles per hour between Monticello Avenue and Ballentine Boulevard; thirty-five (35) miles per hour between Ballentine Boulevard and Ingleside Road; forty-five (45) miles per hour between Ingleside Road and Newtown Road, except on the frontage roads; and twenty-five (25) miles per hour on the frontage roads between Ballentine Boulevard and Newtown Road.

Wagner Road, fifteen (15) miles per hour, between Fairfax Avenue and Olney Road.

Waterside Drive, thirty-five (35) miles per hour between Saint Paul's Boulevard and Interstate Route 264 (I-264).

Waterside Drive, thirty-five (35) miles per hour between St. Paul's Boulevard and Interstate Route 264 (I-264).

Wilson Road, twenty-five (25) miles per hour between Berkley Avenue Extended and Indian River Road.

Wilson Road, thirty (30) miles per hour between Indian River Road and the city limits.

(Code 1958, §§ 29-492—29-512.3, 29-514.1; Ord. No. 30,652, § 1, 6-17-80; Ord. No. 30,747, § 1, 8-19-80; Ord. No. 31,829, § 1, 7-13-82; Ord. No. 32,024, § 1, 11-9-82; Ord. No. 32,475, § 1, 7-26-83; Ord. No. 33,087, § 1, 9-11-84; Ord. No. 33,299, § 1, 2-12-85; Ord. No. 34,233, § 1, 11-25-86; Ord. No. 34,432, § 1, 4-21-87; Ord. No. 34,908, § 1, 2-16-88; Ord. No. 35,563, § 1, 6-13-89; Ord. No. 35,786, § 1, 11-14-89; Ord. No. 35,825, § 1, 12-12-89; Ord. No. 35,838, § 1, 12-19-89; Ord. No. 35,911, § 1, 3-13-90; Ord. No. 36,019, § 1, 5-22-90; Ord. No. 36,316, § 1, 1-15-91; Ord. No. 36,323, § 1, 2-5-91; Ord. No. 36,324, § 1, 2-5-91; Ord. No. 36,512, §§ 1, 2, 7-16-91; Ord. No. 36,605, § 1, 10-22-91; Ord. No. 36,844, § 1, 5-26-92; Ord. No. 37,266, § 1, 5-25-93; Ord. No. 37,341, § 1, 5-25-93; Ord. No. 37,855, § 1, 1-10-95; Ord. No. 38,684, § 1, 3-25-97; Ord. No. 39,079, § 2, 3-10-98; Ord. No. 39,663, § 1, 6-22-99; Ord. No. 40,150, § 1, 11-7-00; Ord. No. 40,200, § 1, 1-9-01; Ord. No. 40,633, § 6, 3-19-02; Ord. No. 40,646, § 4, 3-26-02; Ord. No. 40,925, § 2, 1-14-03; Ord. No. 41,377, § 2, 4-20-04; Ord. No. 41,450, § 1, 6-22-04; Ord. No. 44,316, § 3, 7-12-11; Ord. No. 44,487, § 1, 12-13-11; Ord. No. 46,113, § 1, 10-27-15; Ord. No. 46,271, § 1, 2-23-16; Ord. No. 46,349, §§ 1, 4, 4-26-16; Ord. No. 46,675, § 2, 12-13-16; Ord. No. 46,790, § 1, 3-28-17; Ord. No. 47,478, § 1, 12-11-18; Ord. No. 48,079, § 1, 7-14-20; Ord. No. 48,131, § 1, 9-1-20; Ord. No. 48,270, §§ 1, 3, 1-12-21; Ord. No. 48,352, § 1, 4-13-21; Ord. No. 48,477, § 1, 8-24-21; Ord. No. 48,547, § 1, 10-26-21, eff. 12-11-21; Ord. No. 48,634, § 1, 1-25-22; Ord. No. 49,007, § 2, 11-29-22; Ord. No. 49,170, § 2, 5-9-23)

Cross references—Speed limits at airport, § 4-32; speed limits in cemeteries, § 12-28.

State law reference—Authority of city to alter speed limits established by state law, Code of Virginia, § 46.2-1300.

Sec. 25-647. Right turns required at certain intersections.

The city manager is hereby authorized and directed to cause to be erected and maintained, at the intersections designated in the following subsections of this section, appropriate markers or signs indicating the right turns required by such subsections. It shall be unlawful for the driver of any vehicle entering any of the streets set out in the following subsections of this section at the designated points to fail to make a right turn into such streets, when such signs or markers are in place.

45th Street: Eastbound traffic on 45th Street at its intersection with Hampton Boulevard.
(Ord. No. 31,830, § 1, 7-13-82)

Balview Avenue: Westbound traffic on Balview Avenue at its intersection with Mason Creek Road.

Baylor Place: Traffic on Baylor Place at its intersection with Hampton Boulevard.
(Code 1958, § 29-100.2)

Botetourt Street: Northbound traffic on Botetourt Street at its intersection with Brambleton Avenue, between 3:00 p.m. and 6:00 p.m., Mondays through Fridays, both days inclusive.
(Code 1958, § 29-100.3)

Brooke Avenue: Traffic on Brooke Avenue at its intersection with Boush Street.
(Ord. No. 34,234, § 1, 11-25-86)

Claremont Avenue: Northbound traffic on Claremont at its intersection with Raleigh Avenue, between the hours of 2:30 p.m. and 6:00 p.m., Monday through Friday, both days inclusive.
(Ord. No. 43,691, § 1, 12-8-09)

Colonial Avenue, at its intersection with Little Creek Road.
(Ord. No. 41,828, § 2, 5-10-05)

E 25th Street, at its intersection with Monticello Avenue, from 8:00 a.m. to 7:00 p.m., Monday through Friday.
(Ord. No. 47,902, § 2, 2-25-20)

East Street: Traffic on East Street at its intersection with City Hall Avenue.
(Code 1958, § 29-100)

Gresham Drive: South bound traffic on Gresham Drive at its intersection with W Brambleton Avenue.
(Ord. No. 48,546, § 1, 10-26-21)

Military Highway: North bound traffic into Military Highway from driveway of 1170 Military Highway, located approximately two hundred twenty (220) feet south of Military Highway's intersection with Lowery Road.
(Ord. No. 37,957, § 1, 4-25-95)

Monticello Avenue, west service or frontage roads, at 21st Street.
(Ord. No. 41,113, § 2, 7-22-03)

Orapax Street: Northbound traffic on Orapax at its intersection with Raleigh Avenue, between the hours of 2:30 p.m. and 6:00 p.m., Monday through Friday, both days inclusive.
(Ord. No. 43,691, § 1, 12-8-09)

Orchid Avenue: Southbound traffic on Orchid Avenue at its intersection with E. Little Creek Road.
(Ord. No. 47,796, § 3, 10-22-19)

Tidewater Drive: Traffic on Tidewater Drive frontage streets or roads at their intersection with Little Creek Road.
(Code 1958, § 29-100.1)

Virginia Beach Boulevard: Traffic entering Virginia Beach Boulevard from the south side service road at the entrance located five hundred (500) feet east of Jett Street.

Virginia Beach Boulevard: Westbound traffic on the north service or frontage road at its intersection with Newtown Road.
(Ord. No. 31,091, § 1, 4-14-81; Ord. No. 34,342, § 2, 2-17-87)

Sec. 25-648. Right turns prohibited at certain intersections.

Generally. The city manager is hereby authorized and directed to cause to be erected and maintained, at the intersections designated in the following subsections of this section, appropriate markers or signs indicating that a right turn is prohibited. It shall be unlawful for any person driving any vehicle on the street first designated in the following subsections of this section to make or attempt to make a right turn into the second street designated in such subsections, when a sign or marker indicating that a right turn is prohibited is in place at the intersection.
(Code 1958, §§ 29-91—29-93)

Baldwin Avenue, no right turn for eastbound traffic into Hampton Boulevard between 3:00 p.m. and 6:00 p.m.
(Ord. No. 44,278, § 1, 6-14-11)

Clifton Street: No right turns as to westbound traffic into State Street between 3:00 p.m. and 6:00 p.m., Monday through Friday, both days inclusive.
(Ord. No. 45,049, § 2, 3-26-13)

Georgia Avenue: No right turn into 38th Street.
(Ord. No. 37,853, § 1, 1-10-95)

Gresham Drive: No right turns Monday through Friday between 2:30 p.m. and 6:00 p.m. for eastbound traffic on Gresham Drive into ramp for Brambleton Avenue/Midtown Tunnel, except trucks one and one-half tons and over.
(Ord. No. 43,540, § 1, 8-18-09; Ord. No. 43,692, § 1, 12-8-09)

Graydon Avenue: No right turn for eastbound traffic into Hampton Boulevard between 3:00 p.m. and 6:00 p.m. Mondays through Fridays, both days inclusive.
(Ord. No. 35,650, § 3, 7-18-89)

Hampton Boulevard: No right turns for southbound traffic on Hampton Boulevard into Daniel Avenue, truck traffic only.
(Ord. No. 44,420, § 2, 10-25-11)

Hampton Boulevard: No right turns for southbound traffic on Hampton Boulevard into Gleneagles Road, truck traffic only.
(Ord. No. 44,420, § 2, 10-25-11)

Llewellyn Avenue: No right turn, as to southbound traffic, into Delaware Avenue.
(Code 1958, § 29-96.1)

Monticello Avenue: No right turns for southbound traffic on Monticello Avenue into Freemason Street, truck traffic only.
(Ord. No. 43,293, § 3, 11-25-08)

Princess Anne Road: No right turn, as to southbound traffic onto Hampton Boulevard between 3:00 p.m. and 6:00 p.m., Mondays through Fridays, both days included.
(Ord. No. 37,584, § 1, 4-19-94)

Quill Road: No right turn as to southbound traffic on Quill Road, into Typo Avenue.
(Ord. No. 30,323, § 3-11-80)

Raleigh Avenue: No right turn for eastbound traffic on Raleigh Avenue into the Midtown Tunnel entrance, located approximately one hundred (100) feet east of Claremont Avenue, between the hours of 2:30 p.m. and 6:00 p.m., Monday through Friday.
(Ord. No. 32,112, § 1, 1-4-83; Ord. No. 43,358, § 3, 2-3-09)

Redgate Avenue: No right turn, as to southbound traffic onto Hampton Boulevard between 3:00 p.m. and 6:00 p.m., Mondays through Fridays, both days included.
(Ord. No. 37,584, § 1, 4-19-94)

Saint Paul's Boulevard: No right turn for northbound traffic on Saint Paul's Boulevard into City Hall Avenue.
(Ord. No. 36,101, § 1, 7-10-90)

Shore Drive: No right turn for northbound traffic on Shore Drive into Little Creek Road, between the hours of 6:00 a.m. and 9:00 a.m., Monday through Friday, except buses.
(Ord. No. 43,434, § 2, 5-12-09)

West Ocean View Avenue: [No right turn,] eastbound, at 4th View Street.
(Ord. No. 42,355, § 2, 8-15-06)

Westover Avenue: No right turn for eastbound traffic into Hampton Boulevard between 3:00 p.m. and 6:00 p.m. Mondays through Fridays, both days inclusive.
(Ord. No. 35,650, § 3, 7-18-89)

Cross reference—Intersections at airport where right turns prohibited, § 4-36.

Sec. 25-649. Intersections at which right turn on red prohibited.

Generally: The city manager is hereby authorized and directed to erect and maintain, at the intersections designated in the following subsections of this section, appropriate signs or markers indicating that a right turn on a red signal is prohibited. It shall be unlawful for the driver of any vehicle proceeding on the street first designated in the following subsections of this section to make a right turn on a red signal into the second street designated in such subsections, a sign or marker indicating that such right turn is prohibited is placed at the intersection.
(Code 1958, 29-27.39, 29-27.40)

2nd Street: Northbound traffic is prohibited from making right turns into Brambleton Avenue.
(Ord. No. 44,584, § 2, 2-28-12)

20th Street: Westbound traffic is prohibited from making right turns into Monticello Avenue.
(Code 1958 § 29-27.190)

21st Street: Eastbound traffic and westbound traffic are prohibited from making right turns into Colley Avenue.
(Code 1958, § 29-27.192)

21st Street: Eastbound traffic is prohibited from making right turns into Llewellyn Avenue.
(Code 1958, § 29-27.194)

21st Street: Eastbound traffic and westbound traffic are prohibited from making right turns into Monticello Avenue.
(Ord. No. 34,652, § 1, 7-28-87)

25th Street: Eastbound traffic is prohibited from making a right turn into Colley Avenue.
(Code 1958, § 29-27.190-1)

26th Street: Eastbound traffic is prohibited from making right turns into Church Street.
(Code 1958, § 29-27.201)

26th Street: East bound traffic is prohibited from making right turns into Colley Avenue.
(Code 1958, § 29-27.202)

E 26th Street: Eastbound traffic is prohibited from making right turns into Church Street.
(Ord. No. 48,352, § 2, 4-13-21)

E 26th Street: Eastbound traffic is prohibited from making right turns into Monticello Avenue.
(Ord. No. 48,352, § 2, 4-13-21)

W 26th Street: Eastbound traffic is prohibited from making right turns into Colley Avenue.
(Ord. No. 48,352, § 2, 4-13-21)

W 26th Street: Eastbound traffic is prohibited from making right turns into Colonial Avenue.
(Ord. No. 48,352, § 2, 4-13-21)

W 26th Street: Eastbound traffic is prohibited from making right turns into Granby Street.
(Ord. No. 48,352, § 2, 4-13-21)

W 26th Street: Eastbound traffic is prohibited from making right turns into Llewellyn Avenue.
(Ord. No. 48,352, § 2, 4-13-21)

E 27th Street: Westbound traffic is prohibited from making right turns into Granby Street.
(Ord. No. 48,352, § 2, 4-13-21)

E 27th Street: Westbound traffic is prohibited from making right turns into Monticello Avenue.
(Ord. No. 48,352, § 2, 4-13-21)

W 27th Street: Westbound traffic is prohibited from making right turns into Colley Avenue.
(Ord. No. 48,352, § 2, 4-13-21)

W 27th Street: Westbound traffic is prohibited from making right turns into Colonial Avenue.
(Ord. No. 48,352, § 2, 4-13-21)

W 27th Street: Westbound traffic is prohibited from making right turns into Llewellyn Avenue.
(Ord. No. 48,352, § 2, 4-13-21)

35th Street: Westbound traffic is prohibited from making right turns into Colonial Avenue.
(Code 1958, § 29-27.179)

38th Street at Colley Avenue: Westbound traffic is prohibited from making right turns onto Colley Avenue.
(Ord. No. 44,975, § 2, 1-8-13)

42nd Street: Eastbound traffic is prohibited from making right turns into Colley Avenue.
(Code 1958, § 29-27.104)

Azalea Court: Eastbound traffic is prohibited from making right turns into Hampton Boulevard.
(Ord. No. 34,652, § 1, 7-28-87)

Ballentine Boulevard: Northbound traffic is prohibited from making right turn into Westminster Avenue.
(Ord. No. 46,804, § 2, 4-11-17)

Ballentine Boulevard: Southbound traffic prohibited from making right turn into I-264 west on ramp.
(Code 1958, § 29-27.44-1; Ord. No. 41,377, § 1, 4-20-04; Ord. No. 43,293, § 5, 11-25-08)

Bank Street: Northbound traffic and southbound traffic are prohibited from making right turns into Plume Street.
(Code 1958, § 29-27.44-4; Ord. No. 43,156, § 2, 7-1-08; Ord. No. 43,293, § 4, 11-25-08)

Berkley Avenue: Eastbound traffic is prohibited from making right turns onto Marsh Street.
(Ord. No. 36,318, § 1, 1-22-91)

Berkley Avenue: Westbound traffic is prohibited from making right turns into State Street between the hours of 3:00 p.m. and 6:00 p.m., Monday through Friday.
(Ord. No. 44,584, § 2, 2-28-12)

Boush Street: Southbound traffic is prohibited from making a right turn into Bute Street.
(Ord. 43,293, § 5, 11-25-08)

Brambleton Avenue: Eastbound traffic is prohibited from making a right turn into Colley Avenue.
(Ord. No. 43,293, § 5, 11-25-08)

Brambleton Avenue: Eastbound traffic is prohibited from making a right turn into Duke Street.
(Code 1958, § 29-27.44-5; Ord. No. 34,652, § 2, 7-28-87; Ord. No. 40,363, § 1, 6-12-01)

Bute Street: Eastbound is prohibited from making a right turn into Boush Street.
(Code 1958, § 29-27.62; Ord. No. 31,533, § 2, 1-12-82; Ord. No. 40,363, § 1, 6-12-01)

Reserved.
(Code 1958, § 29-27.69; Ord. No. 34,652, § 2, 7-28-87; Ord. No. 42,890, § 2, 10-30-07; Ord. No. 44,420, § 1, 10-25-11)

Campostella Road: Northbound traffic is prohibited from making right turn into Indian River Road, Monday—Friday between the hours of 7:30 a.m. and 3:30 p.m.
(Ord. No. 49,657, § 2, 7-9-24)

Colley Avenue: Northbound traffic is prohibited from making a right turn into Brambleton Avenue.
(Code 1958, § 29-27.71-1; Ord. No. 34,652, § 2, 7-28-87; Ord. No. 43,293, § 5, 11-25-08)

Colonial Avenue: Southbound traffic is prohibited from making right turns into Princess Anne Road.
(Ord. No. 31,535, § 1, 1-12-82)

Connecticut Avenue: Eastbound traffic is prohibited from making right turns onto Granby Street.
(Ord. No. 43,753, § 1, 3-2-10)

Corprew Avenue: Eastbound traffic is prohibited from making right turn into Ballentine Boulevard.
(Ord. No. 42,589, § 2, 3-6-07)

Court Street: Northbound traffic is prohibited from making right turns into City Hall Avenue.
(Ord. No. 44,037, § 3, 11-9-10)

Duke Street: Southbound traffic is prohibited from making a right turn into Bute Street.
(Code 1958, § 29-27.97; Ord. No. 34,652, § 2, 7-28-87; Ord. No. 43,293, § 5, 11-25-08)

Fauquier Street: Southbound traffic is prohibited from making right turns into Berkley Avenue.
(Ord. No. 38,979, § 5, 11-25-97)

Granby Street: Northbound traffic is prohibited from making a right turn into Charlotte Street.
(Code 1958, § 29-27.111; Ord. No. 34,652, § 2, 7-28-87; Ord. No. 43,293, § 5, 11-25-08)

Granby Street: Northbound traffic is prohibited from making right turns into Louisiana Drive.
(Ord. No. 46,968, § 4, 9-12-17)

Granby Street: Northbound traffic and southbound traffic are prohibited from making right turns into Little Creek Road between the hours of 9:00 a.m. and 9:00 p.m. Monday through Saturday.
(Code 1958, § 29-27.111-1)

Granby Street: No right turn onto East Ocean View Avenue.
(Ord. No. 42,426, § 2, 10-3-06)

Hampton Boulevard: At its intersection with W. 43rd Street.
(Ord. No. 49,170, § 3, 5-9-23)

Hampton Boulevard: Northbound and southbound traffic are prohibited from making a right turn on red into Terminal Boulevard.
(Ord. No. 45,863, § 3, 2-10-15)

Harbor Park Main Entrance Lot A and B: Northbound traffic is prohibited from making a right turn into Park Avenue.
(Ord. No. 43,293, § 5, 11-25-08)

Harbor Park West Entrance Lot D: Northbound traffic is prohibited from making a right turn into Park Avenue.
(Ord. No. 43,293, § 5, 11-25-08)

Indian River Road: Eastbound traffic is prohibited from making right turns onto Berkley Avenue.
(Ord. No. 36,318, § 1, 1-22-91)

Indian River Road: Westbound traffic is prohibited from making right turn into Campostella Road, Monday—Friday between the hours of 7:30 a.m. and 3:30 p.m.
(Ord. No. 49,657, § 2, 7-9-24)

Interstate 64: Northbound off-ramp traffic is prohibited from making right turns into Little Creek Road.
(Code 1958, § 29-27.118)

I-264 off ramp: Eastbound traffic is prohibited from making right turns into Ballentine Boulevard.
(Ord. No. 46,804, § 2, 4-11-17)

Interstate 464: Southbound off-ramp traffic prohibited from making right turn from the center lane into Berkley Avenue.
(Ord. No. 44,707, § 2, 6-12-12)

Lindenwood Avenue: Eastbound traffic and westbound traffic are prohibited from making right turns into Tidewater Drive.
(Code 1958, § 29-27.122)

Little Creek Road: Eastbound traffic and westbound traffic are prohibited from making right turns into Granby Street between the hours of 9:00 a.m. and 9:00 p.m., Monday through Saturday.
(Code 1958, § 29-27.122-1)

Llewellyn Avenue: Northbound traffic and southbound traffic are prohibited from making right turns into 21st Street.
(Ord. No. 34,652, § 1, 7-28-87)

Magnolia Avenue: Westbound traffic is prohibited from making right turns into Hampton Boulevard.
(Ord. No. 34,652, § 1, 7-28-87)

Main Street: Eastbound traffic and westbound traffic are prohibited from making right turns into Boush Street.
(Ord. No. 34,652, § 1, 7-28-87)

Majestic Avenue: Northbound traffic is prohibited from making a right turn into Princess Anne Road.
(Ord. No. 47,549, § 1, 3-5-19)

Maple Avenue: Eastbound traffic is prohibited from making right turns into First View Street.
(Code 1958, § 29-27.134)

Maple Avenue: Eastbound traffic is prohibited from making right turns into Granby Street.
(Ord. No. 36,109, § 1, 7-17-90)

Marine Hydraulics Entrance: Southbound traffic is prohibited from making right turns into Berkley Avenue.
(Ord. No. 36,109, § 1, 7-17-90)

Market Street: Westbound traffic is prohibited from making right turns into Saint Paul's Boulevard between the hours of 7:30 a.m. to 8:30 a.m. and 3:30 p.m. to 6:00 p.m., Monday through Friday.
(Ord. No. 44,278, § 2, 6-14-11)

Marsh Street: Northbound traffic is prohibited from making right turns onto Indian River Road.
(Ord. No. 36,318, § 1, 1-22-91)

Merrimac Avenue: Southbound traffic is prohibited from making a right turn into Virginia Beach Boulevard.
(Code 1958, § 29-27.135.2)

Reserved.
(Code 1958, § 29-27.135-1; Ord. No. 34,342, § 4, 2-17-87; Ord. No. 42,890, § 2, 10-30-07; Ord. No. 44,420, § 1, 10-25-11)

Military Highway: South bound traffic is prohibited from making right turns into Lowery Road.
(Ord. No. 48,352, § 2, 4-13-21)

Military Highway Service Road: Northbound traffic is prohibited from making a right turn into Curlew Drive.
(Ord. No. 47,478, § 2, 12-11-18)

N Military Highway: Southbound traffic is prohibited from making right turns into Lowery Road.
(Ord. No. 47,902, § 3, 2-25-20)

North Hampton Boulevard: Eastbound traffic is prohibited from making right turns into Wesleyan Drive between the hours 3:00 p.m. and 3:45 p.m. Monday through Friday.
(Code 1958, § 29-27.145; Ord. No. 31,533, § 1, 1-12-82)

Park Avenue: Eastbound traffic is prohibited from making a right turn into Harbor Park main entrance lot A and B.
(Code 1958, § 29-27.149; Ord. No. 41,377, § 1, 4-20-04; Ord. No. 43,293, § 5, 11-25-08)

Park Avenue: Eastbound traffic is prohibited from making a right turn into Harbor Park West Entrance Lot D.
(Ord. No. 43,293, § 5, 11-25-08)

Pleasant Avenue: Eastbound traffic is prohibited from making a right turn into Shore Drive.
(Ord. No. 42,308, § 1, 6-13-06)

Pretty Lake Avenue: Eastbound at its intersection with Shore Drive.
(Code 1958, § 29-27.151; Ord. No. 34,652, § 2, 7:28-87; Ord. No. 40,791, § 2, 7-30-02)

Princess Anne Road: Westbound traffic is prohibited from making a right turn into Hampton Boulevard.
(Code 1958, § 29-27.151-2)

Princess Anne Road: Westbound traffic is prohibited from making right turns into Colonial Avenue.
(Ord. No. 31,535, § 1, 1-12-82)

Redgate Avenue: Eastbound traffic is prohibited from making right turns into Colley Avenue.
(Ord. No. 34,652, § 1, 7-28-87)

Redgate Avenue: Eastbound traffic is prohibited from making right turns into Hampton Boulevard between the hours of 3:00 p.m. and 6:00 p.m. Monday through Friday.
(Ord. No. 34,652, § 1, 7-28-87; Ord. No. 37,341, § 1, 7-20-93)

Saint Paul's Boulevard, northbound, at its intersection with City Hall Avenue, between 3:00 p.m. and 6:00 p.m., Monday through Friday.
(Code 1958, § 29-27.160-3; Ord. No. 34,652, § 2, 7-28-87; Ord. No. 41,310, § 1, 2-10-04)

Saint Paul's Boulevard, northbound, at its intersection with Market Street, between 3:00 p.m. and 6:00 p.m., Monday through Friday.
(Ord. No. 41,310, § 1, 2-10-04)

Sewells Point Road: Southbound traffic is prohibited from making a right turn into Azalea Garden Road.
(Code 1958, § 29-27.160-6)

Sewells Point Road: Northbound traffic is prohibited from making right turns into Norview Avenue.
(Code 1958, § 29-27.165)

St. Pauls Boulevard: All approaches prohibited from making right turns into Main Street.
(Ord. No. 47,939, § 2, 3-24-20)

Terminal Boulevard: Westbound traffic is prohibited from making a right turn on red into Hampton Boulevard.
(Ord. No. 45,863, § 3, 2-10-15)

Tidewater Drive: Northbound traffic is prohibited from making a right turn into Little Creek Road.
(Code 1958, § 29-27.186-1)

Tidewater Drive: Northbound traffic and southbound traffic are prohibited from making a right turn into Little Creek Road.
(Ord. No. 29,596, § 1, 8-22-78; Ord. No. 32,581, § 1, 10-11-87; Ord. No. 41,358, § 5, 4-6-04)

Tidewater Drive: Northbound traffic and southbound traffic are prohibited from making right turns into Virginia Beach Boulevard.
(Code 1958, § 29-27.188)

Waterside Drive: Westbound traffic is prohibited from making right turns into Saint Paul's Boulevard.
(Code 1958, § 29-27.207; Ord. No. 34,652, § 2, 7-28-87; Ord. No. 41,310, § 1, 2-10-04; Ord. No. 46,968, §§ 1, 4, 9-12-17)

Westminster Avenue: Westbound traffic is prohibited from making right turns into Ballentine Boulevard.
(Ord. No. 46,804, § 2, 4-11-17)

Widgeon Road: Westbound traffic is prohibited from making right turns into Tidewater Drive.
(Ord. No. 45,415, § 4, 1-14-14)

Willow Wood Drive: Westbound traffic is prohibited from making right turns into Granby Street.
(Ord. No. 48,270, § 4, 1-12-21)

Wilson Road: Northbound traffic is prohibited from making a right turn into E Indian River Road.
(Ord. No. 47,241, § 2, 5-22-18)

York Street: Westbound traffic is prohibited from making right turns into Boush Street.
(Code 1958, § 29-27.214)

Sec. 25-649.5. Left turns required at certain intersections.

Generally. The city manager is hereby authorized and directed to cause to be erected and maintained at the intersections designated in the following subsections of this section, appropriate markers and signs indicating that a left turn is required. It shall be unlawful for any person driving any vehicle on the street first designated in the following subsections of this section to fail to make a left turn into the second street designated in such subsection when a sign or marker indicating that a left turn is required is placed at the intersection.

Virginia Beach Boulevard: Westbound traffic on the south service or frontage road of Virginia Beach Boulevard at its intersection with Newtown Road.
(Ord. No. 34,342, § 3, 2-17-87)

Sec. 25-650. Left turns prohibited at certain intersections.

Generally. The city manager is hereby authorized and directed to cause to be erected and maintained, at the intersections designated in the following subsections of this section, appropriate markers or signs indicating that a left turn is prohibited. It shall be unlawful for any person driving any vehicle on the street first designated in the following subsections of this section to make or attempt to make a left turn into the second street designated in such subsections, when a sign or marker indicating that a left turn is prohibited is placed at the intersection.
(Code 1958, §§ 29-74—29-76)

21st Street: No left turn, as to eastbound traffic, into Monticello Avenue between 4:00 p.m. and 6:00 p.m.
(Code 1958, § 29-90)

40th Street: No left turn, as to westbound traffic, into Granby Street.
(Code 1958, § 29-80.1)

43rd Street, as to westbound traffic, at its intersection with Bowdens Ferry Road.
(Code 1958, § 29-80.2; Ord. No. 31,830, § 2, 7-13-82; Ord. No. 41,113, § 3, 7-22-03)

Admiral Taussig Boulevard: No left turn, as to westbound traffic, into Camp Allen between 3:30 p.m. and 5:30 p.m., Mondays through Fridays, both days inclusive.
(Code 1958, § 29-77)

Admiral Taussig Boulevard: No left turn, as to westbound traffic, into Granby Street between 3:30 p.m. and 5:30 p.m., Mondays through Fridays, both days inclusive.
(Code 1958, § 29-77.1)

Bangor Avenue: No left turn, as to southbound traffic, into Newtown Road.
(Ord. No. 36,304, § 1, 1-8-91)

Boush Street: No left turn, as to northbound traffic, into Brooke Avenue.
(Ord. No. 32,940, § 1, 6-12-84)

Bowdens Ferry Road, as to northbound traffic, at its intersection with 43rd Street.
(Ord. No. 41,113, § 3, 7-22-03)

Brambleton Avenue: No left turn, as to eastbound traffic into Granby Street between 7:00 a.m. and 9:00 a.m. and between 3:30 p.m. and 6:00 p.m., Mondays through Fridays, both days inclusive.
(Ord. No. 31,969, § 2, 9-28-82; Ord. No. 34,206, § 1, 11-10-86)

Campostella Road: No left turn, as to northbound traffic at Canton Avenue.
(Ord. No. 40,633, § 7, 3-19-02)

Campostella Road, no left turn, as to northbound traffic, into Wilson Road.
(Ord. No. 44,278, § 3, 6-14-11)

Chesapeake Boulevard: No left turn, as to southbound traffic, into Picadilly Street.
(Code 1958, § 29-77.4)

Church Street, as to northbound traffic, at intersection with Lexington Street.
(Ord. No. 41,310, § 2, 2-10-04)

Colley Avenue: No left turn, as to southbound traffic, into 42nd Street, between 4:00 p.m. and 6:00 p.m., Mondays through Friday, both days inclusive.
(Code 1958, § 29-80.01; Ord. No. 47,939, §§ 1, 3, 3-24-20)

Colley Avenue: No left turn, as to southbound traffic into Raleigh Avenue.
(Ord. No. 36,336, § 1, 2-12-91)

Edward Street: No left turn as to southbound traffic at Norview Avenue 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 7:00 p.m.
(Ord. No. 40,092, § 4, 8-22-00)

Elizabeth Avenue: No left turn, as to eastbound traffic into Military Highway.
(Ord. No. 37,119, § 1, 1-12-93)

Godfrey Avenue: No left turn as to northbound traffic into Princess Anne Road between 3:00 p.m. and 6:00 p.m., Monday through Fridays, both days inclusive.
(Ord. No. 35,741, § 1, 9-26-89)

Gresham Drive: Eastbound traffic is prohibited from making left turns into Hampton Boulevard.
(Ord. No. 47,177, § 2, 3-27-18)

Hampton Boulevard: No left turn, as to northbound traffic, into 14th Street/Staff College.
(Ord. No. 48,476, § 1, 8-24-21)

Hampton Boulevard: No left turn into 24th Street.
(Code 1958, § 29-82.1)

Hampton Boulevard: No left turn, as to northbound traffic, into 27th Street.
(Code 1958, § 29-82.02)

Hampton Boulevard: No left turn, as to northbound traffic, into Gleneagles Road between 6:00 a.m. and 8:00 a.m., Mondays through Fridays, both days inclusive.
(Ord. No. 35,274, § 1, 10-18-88)

Hampton Boulevard: No left turn, as to northbound traffic, into North Shore Road between 6:00 a.m. and 8:00 a.m., Mondays through Fridays, both days inclusive.
(Ord. No. 35,274, § 1, 10-18-88)

Hampton Boulevard: No left turn, as to southbound traffic, into Princess Anne Road between 3:30 p.m. and 6:00 p.m., Mondays through Fridays, both days inclusive.
(Ord. No. 33,559, § 1, 7-16-85)

Hampton Boulevard: No left turn, as to southbound traffic, into Trouville Avenue, Monday through Friday, between 3:30 p.m. and 5:30 p.m.
(Code 1958, § 29-84)

Hampton Boulevard: No left turn, as to southbound traffic, into Woodrow Avenue.
(Code 1958, § 29-84.01)

Heutte Drive: No left turn as to eastbound traffic at Shore Drive 6:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.
(Ord. No. 40,092, § 4, 8-22-00)

Llewellyn Avenue: No left turn, as to southbound traffic, into 38th Street between 7:00 a.m. and 9:00 p.m.
(Ord. No. 29,592, § 1, 8-22-78)

Llewellyn Avenue: No left turn, as to southbound traffic, into 35th Street between 7:00 a.m. and 9:00 p.m.
(Ord. No. 29,952, § 1, 8-22-78)

Merrimac Avenue: No left turn, as to northbound traffic, into Princess Anne Road between 3:00 p.m. and 6:00 p.m., Mondays through Fridays, inclusive.
(Ord. No. 35,413, § 1, 3-7-89)

Military Highway: No left turn as to northbound traffic into Elizabeth Avenue.
(Ord. No. 35,702, § 1, 8-22-89)

Military Highway: No left turn, as to southbound traffic into private drive two hundred fifty (250) feet south of Northampton Boulevard.
(Ord. No. 37,120, § 1, 1-12-93)

Monticello Avenue: No left turn, as to southbound traffic, into 20th Street between 7:00 a.m. and 9:00 a.m. and 4:00 p.m. and 6:00 p.m., Mondays through Fridays, both days inclusive.
(Code 1958, § 29-86; Ord. No. 33,323, § 1, 2-26-85)

Monticello Avenue: No left turn, as to southbound traffic, into 21st Street between 7:00 a.m. and 9:00 a.m. and 4:00 p.m. and 6:00 p.m., Mondays through Fridays, both days inclusive.
(Code 1958, § 29-88; Ord. No. 33,323, § 1, 2-26-85)

Newton Road: No left turn, as to southbound traffic, into the driveway entrance to Newtown Square, which driveway entrance is located approximately one thousand five hundred fifty (1,550) feet south of the intersection of Newtown Road and Center Drive.
(Ord. No. 29,723, § 1, 11.21-78)

Newtown Road: No left turn, as to northbound traffic, into Bangor Avenue.
(Ord. No. 36,304, § 1, 1-8-91)

Norview Avenue: No left turn, as to eastbound traffic, into the entrance ramp for Interstate 64 at Johns Street.
(Ord. No. 34,703, § 1, 9-15-87)

O'Connor Crescent: No left turn, as to southbound traffic into Orange Avenue between 5:00 a.m. and 8:00 a.m., Mondays through Fridays, both days inclusive.
(Ord. No. 38,364, § 1, 5-21-96)

Orapax Street: No left turn, as to southbound traffic into Redgate Avenue between 3:00 p.m. and 6:00 p.m. Mondays through Fridays, both days inclusive.
(Ord. No. 35,650, § 1, 7-18-89)

Princess Anne Road, as to westbound traffic at Cowand Avenue.
(Ord. No. 39,859, § 2, 2-1-00)

Princess Anne Road: No left turn, as to westbound traffic, into the driveway entrance to Booker T. Washington High School, which driveway entrance is located approximately two hundred (200) feet west of the intersection of Park Avenue with Princess Anne Road.
(Code 1958, § 29-88.01)

Princess Anne Road: No left turn, as to southbound traffic onto Hampton Boulevard between 3:00 p.m. and 6:00 p.m., Mondays through Fridays, both days included.
(Ord. No. 37,584, § 1, 4-19-94)

Raleigh Avenue: No left turn, as to eastbound traffic, onto Claremont Avenue, between the hours of 2:30 p.m. and 6:00 p.m., Monday through Friday, both days inclusive.
(Ord. No. 43,691, § 2, 12-8-09)

Reserved.
(Ord. No. 37,584, § 1, 4-19-94; Ord. No. 45,415, § 1, 1-14-14)

Redgate Avenue: No left turn, as to westbound traffic, onto Hampton Boulevard between 3:00 p.m. and 6:00 p.m., Mondays through Fridays, both days included.
(Ord. No. 45,415, § 5, 1-14-14)

Rippard Avenue: No left turn, as to southbound traffic into DuVal Street between 5:00 a.m. and 8:00 a.m., Mondays through Fridays, both days inclusive.
(Ord. No. 38,364, § 1, 5-21-96)

Tidewater Drive, at its intersection with Charlotte Street (northbound only).
(Ord. No. 39,964, § 2, 5-23-00)

Tidewater Drive: No left turn, as to southbound traffic, into Lindenwood Avenue.
(Ord. No. 29,894, § 1, 4-17-79)

Tidewater Drive on I-64 off ramp of the Tidewater Drive north exit. No left turn as to westbound traffic into Tidewater Drive.
(Ord. No. 39,705, § 3, 8-24-99)

Tidewater Drive: No left turn, as to northbound traffic, into Willow Wood Drive.
(Ord. No. 43,905, § 2, 6-22-10)

Union Street: No left turn for westbound traffic into St. Paul's Boulevard.
(Ord. No. 36,998, § 1, 9-22-92)

Unnamed roadway: No left turn, as to northbound traffic, into Willowwood Drive at the entrance to Lakewood Park.
(Code 1958, § 29-90.2)

Virginia Beach Boulevard: No left turn, as to eastbound traffic, into Fire Station #10 located approximately eighty (80) feet east of Azalea Garden Road.
(Ord. No. 4,081, § 2, 12-21-10)

Virginian Drive: [No left turn] as to northbound traffic into Little Creek Road.
(Ord. No. 42,589, § 3, 3-6-07)

Reserved.
(Ord. No. 45,049, § 3, 3-26-13; Ord. No. 45,415, § 1, 1-14-14)

Waterside Drive: No left turn, as to eastbound traffic, into Atlantic Street, except between 7:00 p.m. and 3:00 a.m.
(Ord. No. 39,859, § 3, 2-1-00)

West Ocean View Avenue: No left turn as to eastbound traffic, into 4th View Street.
(Ord. No. 34,644, § 1, 8-18-87)

West Ocean View Avenue: No left turn, as to southbound traffic into West Ocean View Avenue from driveway of 394 West Ocean View Avenue, located approximately one hundred fifty (150) feet east of West Ocean View Avenue's intersection with Fourth View Street.
(Ord. No. 36,813, § 1, 5-12-92)

West Ocean View Avenue, as to westbound traffic, into the driveway entrance to 415 West Ocean View Avenue which entrance is located approximately one hundred seventy (170) feet of the intersection of West Ocean View Avenue and 4th View Street.
(Ord. No. 43,624, § 2, 10-13-09)

Woodrow Avenue: No left turn, as to westbound traffic, into Hampton Boulevard.
(Ord. No. 35,650, § 1, 7-18-89; Ord. No. 37,886, § 1, 2-14-95; Ord. No. 38,870, § 1, 8-19-97)

Cross reference—Intersections at airport where left turns prohibited, § 4-37.

Sec. 25-651. U-turns prohibited at certain intersections.

Generally. Notwithstanding the provisions of section 25-163, the operator of a vehicle shall not turn such vehicle so as to proceed in the opposite direction at the street intersections listed in the following subsections of this section.

Admiral Taussig Boulevard, at the end of the median located approximately three hundred and fifty (350) feet east of Grandy Street, applying only to eastbound traffic.
(Ord. No. 32,008, § 1, 10-26-82)

Ballentine Boulevard and Westminster Avenue, applying only to southbound traffic.
(Ord. No. 41,358, § 7, 4-6-04)

Boush Street, northbound, at its intersection with Main Street.
(Ord. No. 41,965, § 2, 8-16-05)

Boush Street, northbound, at its intersection with Plume Street.
(Ord. No. 41,965, § 2, 8-16-05)

Brambleton Avenue and Botetourt Street.

Brambleton Avenue and Boush Street.

Brambleton Avenue and Duke Street.

Brambleton Avenue and Monticello Avenue.

Campostella Road and Springfield Avenue.
(Ord. No. 44,278, § 4, 6-14-11)

Campostella Road and Wilson Road.
(Ord. No. 44,278, § 4, 6-14-11)

Chesapeake Boulevard and Bunsen Court, between the hours of 7:00 a.m. and 9:00 a.m.; and 2:00 p.m. and 3:30 p.m. on Monday through Friday, applying only to southbound traffic.
(Ord. No. 42,589, § 4, 3-6-07)

Chesapeake Boulevard and Dundale Avenue, between the hours of 7:00 a.m. and 9:00 a.m.; and 2:00 p.m. and 3:30 p.m. on Monday through Friday, applying only to southbound traffic.
(Ord. No. 42,200, § 1, 3-7-06; Ord. No. 42,589, § 4, 3-6-07)

Chesapeake Boulevard, at the median opening at Norview Avenue which median opening is located approximately two hundred (200) feet southwest of the intersection of Sewells Point Road with Chesapeake Boulevard, applying to northbound and southbound traffic.
(Ord. No. 32,023, § 1, 11-9-82)

Chesapeake Boulevard and Underwood Avenue, between the hours of 7:00 a.m. and 9:00 a.m.; and 2:00 p.m. and 3:30 p.m. on Monday through Friday, applying only to southbound traffic.
(Ord. No. 42,589, § 4, 3-6-07)

Chesapeake Boulevard, northbound, at its intersection with Little Creek Road.
(Ord. No. 45,863, § 4, 2-10-15)

Church Street, at the median opening located approximately two hundred (200) feet south of Goff Street, applying to northbound and southbound traffic.
(Ord. No. 36,398, § 1, 4-16-91)

City Hall Avenue at its intersection Court Street, applying only to westbound traffic.
(Ord. No. 42,890, § 3, 10-30-07)

City Hall Avenue at its intersection with Granby Street, applying only to westbound traffic.
(Ord. No. 42,765, § 3, 7-24-07)

City Hall Avenue at its intersection with Monticello Avenue, applying only to eastbound traffic.
(Ord. No. 42,765, § 3, 7-24-07)

City Hall Avenue and St. Paul's Boulevard, between the hours of 3:00 p.m. and 6:00 p.m. on Mondays through Fridays, both days inclusive, applying only to westbound traffic.
(Ord. No. 34,413, § 1, 4-14-87)

City Hall Avenue and St. Paul's Boulevard, applying to the westbound traffic only.
(Ord. No. 39,502, § 1, 3-9-99)

E. Virginia Beach Boulevard and Jett Street, applying only to westbound tractor trailer traffic.
(Ord. No. 44,884, § 2, 10-23-12)

E. Virginia Beach Boulevard, at the traffic signal and opening in the 5300 block of E. Virginia Beach Boulevard, applying only to westbound tractor trailer traffic.
(Ord. No. 44,884, § 2, 10-23-12)

East Main Street at its intersection with East Street, applying only to westbound traffic.
(Ord. No. 44,584, § 3, 2-28-12)

Fourth View Street and O'Connor Crescent, between the hours of 3:00 p.m. and 6:00 p.m. on Mondays through Fridays, both days inclusive, applying only to southbound traffic.
(Ord. No. 35,337, § 1, 12-13-88)

Granby Street, at the median opening located approximately one hundred thirty (130) feet south of Admiral Taussig Boulevard.
(Ord. No. 39,079, § 3, 3-10-98)

Granby Street and Elvin Road, between the hours of 7:00 a.m. and 4:00 p.m. on Mondays through Fridays, both days inclusive, applying only to southbound traffic.

Granby Street at the median opening to the I-64 westbound on-ramp applying only to northbound traffic.
(Ord. No. 34,607, § 1, 7-14-87)

Granby Street and Ridgeley Road, applying only to southbound traffic.

Granby Street and the southern entrance to Forest Lawn Cemetery, applying only to northbound traffic.

Granby Street, northbound five hundred sixty (560) feet south of E. Bayview Boulevard between the hours of 5:00 a.m. and 8:00 a.m. on Mondays through Fridays.
(Ord. No. 41,231, § 1, 11-18-03; Ord. No. 41,358, § 6, 4-6-04)

Hampton Boulevard, northbound, at its intersection with 14th Street.
(Ord. No. 48,476, § 2, 8-24-21)

Hampton Boulevard at its intersection with 90th Street between the hours of 5 a.m. and 9 a.m. Monday—Friday; applying only to northbound traffic.
(Ord. No. 43,019, § 1, 3-18-08)

Hampton Boulevard at the entrance to the Armed Forces Staff College applying only to northbound traffic.
(Ord. No. 33,874, § 1, 2-11-86)

Hampton Boulevard and Daniel Avenue, between the hours of 6:00 a.m. and 9:00 a.m. and between the hours of 3:00 p.m. and 6:00 p.m., applying only to southbound Hampton Boulevard traffic.

Hampton Boulevard at the median opening located approximately three hundred eighty (380) feet north of 49th Street, applying to northbound traffic.
(Ord. No. 40,247, § 3, 3-20-01)

Hampton Boulevard at the median opening located one hundred twenty-five (125) feet south of Gleneagles Road, between the hours of 6:00 a.m. and 8:00 a.m. on Mondays through Fridays, both days inclusive, applying only to northbound traffic.
(Ord. No. 35,274, § 2, 10-18-88)

Hampton Boulevard and Redgate Avenue, applying to northbound traffic only.
(Ord. No. 34,663, § 1, 8-18-87)

Hampton Boulevard east side service road and Redgate Avenue, applying to northbound traffic only.
(Ord. No. 34,663, § 1, 8-18-87)

Hampton Boulevard, southbound, at its intersection with Terminal Boulevard.
(Ord. No. 45,863, § 4, 2-10-15)

International Terminal Boulevard as to westbound traffic at Ruthven Road.
(Ord. No. 40,247, § 3, 3-20-01)

Kempsville Road, at its intersection with Virginia Beach Boulevard (northbound only).
(Ord. No. 39,911, § 3, 4-11-00)

Little Creek Road and Meadow Creek Road, applying only to westbound traffic.

Little Creek Road and Interstate Route 64, Ramp B-5, applying only to eastbound traffic. Interstate Route 64. Ramp B-5 is located approximately four hundred (400) feet west of the northwest corner of West Glen Road and Little Creek Road.

Little Creek Road, westbound, at its intersection with Chesapeake Boulevard.
(Ord. No. 45,863, § 4, 2-10-15)

Market Street as to westbound traffic at Cumberland Street.
(Ord. No. 40,247, § 3, 3-20-01)

Market Street at its intersection with St. Pauls Boulevard, applying only to westbound traffic.
(Ord. No. 37,768, § 1, 9-27-94; Ord. No. 41,358, § 1, 4-6-04; Ord. No. 43,285, § 3, 11-18-08)

Reserved.
(Ord. No. 45,863, § 1, 2-10-15)

N Newtown Road at its intersection with Virginia Beach Boulevard, applying to northbound traffic.
(Ord. No. 47,177, § 3, 3-27-18)

Newtown Road and Curlew Drive, applying only to southbound traffic.
(Ord. No. 36,305, § 1, 1-8-91)

Newtown Road, at the median cut approximately five hundred (500) feet north of Kempsville Road, applying only to southbound traffic.
(Ord. No. 44,081, § 3, 12-21-10)

Northampton Boulevard and westbound Interstate Route 64 exit applying only to eastbound traffic.
(Ord. No. 41,589, § 2, 9-28-04)

Norview Avenue at Edward Street, applying to westbound traffic.
(Ord. No. 34,703, § 2, 9-15-87; Ord. No. 40,092, § 5, 8-22-00)

Norview Avenue and Military Highway, applying to westbound traffic only.
(Ord. No. 34,678, § 1, 8-25-87)

Ocean View Avenue at its intersection with Granby Street, applying only to westbound traffic.
(Ord. No. 43,156, § 4, 7-1-08)

Raleigh Avenue at its intersection with Claremont Avenue, applying only to westbound traffic.
(Ord. No. 35,650, § 2, 7-18-89; Ord. No. 37,886, § 1, 2-14-95; Ord. No. 43,285, § 3, 11-18-08)

Shore Drive at Heutte Drive, applying to northbound traffic.
(Ord. No. 40,092, § 5, 8-22-00)

Shore Drive and Heutte Drive, applying to southbound traffic.
(Ord. No. 37,583, § 3, 4-19-94)

Shore Drive and Little Creek Road, applying to northbound traffic.
(Ord. No. 45,049, § 4, 3-26-13)

Saint Paul's Boulevard and Main Street, applying only to southbound traffic.
(Ord. No. 36,104, § 1, 7-10-90)

St. Paul's Boulevard and Market Street, applying to the southbound traffic only.
(Ord. No. 39,502, § 1, 3-9-99)

St. Paul's Boulevard and Monticello Avenue, applying only to northbound traffic.

St. Paul's Boulevard and Plume Street.

St. Paul's Boulevard and the northern entrance to the Downtown Plaza Shopping Center, applying only to northbound traffic.

St. Paul's Boulevard at Union Street, applying only to southbound traffic.
(Ord. No. 36,354, § 1, 3-12-91)

Terminal Boulevard, at its intersection with Meredith Street, applying only to westbound traffic.
(Ord. No. 45,863, § 4, 2-10-15)

Tidewater Drive, at the end of the median located at the 6300 block, applying to southbound traffic.
(Ord. No. 46,968, § 5, 9-12-17)

Tidewater Drive at its intersection with Biltmore Road, applying to northbound traffic.
(Ord. No. 47,062, § 2, 11-21-17)

Tidewater Drive and Thole Street, applying only to northbound traffic.
(Ord. No. 40,363, § 2, 6-12-01)

Tidewater Drive and Widgeon Road, applying only to southbound traffic.
(Ord. No. 40,363, § 2, 6-12-01)

USAA Drive, at the median opening located approximately five hundred sixty-four (564) feet north of Northampton Boulevard, between the hours of 4:00 p.m. and 6:00 p.m. on Mondays through Fridays.
(Ord. No. 41,589, § 2, 9-28-04)

USAA Drive, at the median opening located approximately seven hundred twenty-three (723) feet north of Northampton Boulevard, between the hours of 4:00 p.m. and 6:00 p.m. on Mondays through Fridays, applying only to northbound traffic.
(Ord. No. 41,589, § 2, 9-28-04)

Virginia Beach Boulevard, at the median cut into Fire Station #10 approximately eighty (80) feet east of Azalea Garden Road, applying only to eastbound traffic.
(Ord. No. 44,081, § 3, 12-21-10)

Virginia Beach Boulevard at the median opening located three hundred twenty-five (325) feet west of Scott Street, applying only to westbound traffic.
(Code 1958, § 29-61.1; Ord. No. 29,647, § 1, 9-26-78; Ord. No. 29,836, § 1, 2-27-79; Ord. No. 31,116, § 1, 4-28-81)

West Ocean View Avenue, westbound, at 5th View Street, 3:30 p.m. to 6:30 p.m.
(Ord. No. 42,355, § 3, 8-15-06)

1st View and West Ocean View Avenue, applying only to westbound traffic.
(Ord. No. 43,445, § 1, 5-19-09)

West Ocean View Avenue, westbound, at 6th View Street, 3:30 p.m. to 6:30 p.m.
(Ord. No. 42,355, § 3, 8-15-06)

Sec. 25-652. One-way streets.

Generally. It shall be unlawful for any person to drive any vehicle upon any street designated in the following subsections of this section, between the designated points, in a direction other than that indicated for the particular street. It shall be the duty of the city transportation engineer to warn the public against violations of this section by appropriate signs placed at the intersections of all streets designated in this section as one-way streets.
(Code 1958, §§ 29-391, 29-392; Ord. No. 40,378, § 3, 6-19-01)

4th Bay Street shall be a one-way street, for southbound traffic only, from East Ocean View Avenue to Pretty Lake Avenue.
(Ord. No. 36,887, § 1, 6-23-92)

9th Bay Street shall be a one-way street, for northbound traffic only, from Pretty Lake Avenue to Pleasant Avenue.
(Ord. No. 43,659, § 3, 11-17-09)

10th Street shall be a one-way street, for eastbound traffic only, from Llewellyn Avenue to Granby Street.
(Code 1958, § 29-473)

13th Street shall be a one-way street, for westbound traffic only, from Omohundro Avenue to Colonial Avenue.
(Code 1958, § 29-474)

14th Street shall be a one-way street, for eastbound traffic only, from Colonial Avenue to Omohundro Avenue.
(Code 1958, § 29-423)

16½ Street shall be a one-way street, for westbound traffic only, from Omohundro Avenue to Llewellyn Avenue.
(Code 1958, § 29-465)

18th Street shall be a one-way street, for westbound traffic only, from Omohundro Avenue to Llewellyn Avenue.
(Code 1958, § 29-421)

23rd Street shall be one-way street, for westbound traffic only, from Granby Street to Gosnold Avenue.
(Ord. No. 48,270, § 5, 1-12-21)

26th Street shall be a one-way street, for eastbound traffic only, from Hampton Boulevard to its intersection with 27th Street at Ruffin Way.
(Code 1958, § 29-479.2)

27th Street shall be a one-way street, for westbound traffic only, from its intersection with 26th Street at Ruffin Way to Hampton Boulevard.
(Code 1958, § 29-482)

28th Street shall be a one-way street, for eastbound traffic only, from Colley Avenue to Monticello Avenue.
(Code 1958, § 29-480)

29th Street shall be a one-way street, for westbound traffic only, from Monticello Avenue to its intersection with 31st Street.
(Code 1958, § 29-481)

30th Street shall be a one-way street, for eastbound traffic only, from Newport Avenue to Monticello Avenue.
(Code 1958, § 29-475)

30th Street shall be a one-way street, for eastbound traffic only, from Colonial Avenue to Granby Street.
(Code 1958, § 29-476; Ord. No. 30-156, § 1, 10-16-79; Ord. No. 40,460, § 4, 9-11-01)

30th Bay Street shall be a one-way street, for southbound traffic only from Pleasant Avenue to Pretty Lake Avenue.
(Ord. No. 44,316, § 4, 7-12-11)

31st Street shall be a one-way street, for westbound traffic only, from Church Street to Colonial Avenue.
(Ord. No. 30,157, § 1, 10-16-79)

31st Street shall be a one-way street, for westbound traffic only, from Gosnold Avenue to Colley Avenue.
(Ord. No. 30,157, § 1, 10-16-79)

32nd Street shall be a one-way street, for westbound traffic only, from its intersection with 33rd Street to Church Street.
(Code 1958, § 29-478)

33rd Street shall be a one-way street, for westbound traffic only, from Granby Street to its intersection with 32nd Street.
(Code 1958, § 29-479)

34th Street shall be a one-way street, for eastbound traffic only, between Colley Avenue and Gosnold Avenue.
(Code 1958, § 29-477; Ord. No. 40,363, § 3, 6-12-01)

34th Street shall be a one-way street for eastbound traffic only, beginning one hundred forty (140) feet east of Colley Avenue to Granby Street.
(Ord. No. 39,390, § 2, 11-24-98)

36th Street shall be a one-way street, for eastbound traffic only, from Colley Avenue to Colonial Avenue.
(Code 1958, § 29-478.2)

37th Street shall be a one-way street, for westbound traffic only, from Colonial Avenue to Colley Avenue.
(Code 1958, § 29-478.1)

A View Avenue shall be a one-way street, for eastbound traffic only, from Mason Creek Road to First View Street.
(Ord. No. 38,928, § 1, 10-14-97)

Admiral Taussig Boulevard, the southern fork (formerly known as a part of Kersloe Road), extending westwardly from the western line of Granby Street for approximately four hundred fifty (450) feet, shall be a one-way street for eastbound traffic only.
(Code 1958, § 29-395)

Albemarle Drive shall be a one-way street, for southbound traffic only, from Ocean Avenue to Monitor Way.
(Code 1958, § 29-396)

Alfred Lane shall be a one-way street, for eastbound traffic only, from Sturgis Street to Willow Terrace.
(Ord. No. 33,403, § 1, 4-16-85)

Armstrong Street shall be a one-way street, for eastbound traffic only, from Reservoir Avenue to Marshall Avenue.
(Code 1958, § 29-396.1)

Auburn Avenue, southbound, between Johnstons Road and Tanners Creek Road.
(Ord. No. 41,113, § 4, 7-22-03)

Avenue "A" shall be a one-way street, for westbound traffic only, from Sutton Street, formerly South Street, to Church Street.
(Code 1958, § 29-398)

Avenue "B" shall be a one-way street, for eastbound traffic only, from Sutton Street, formerly South Street, to Church Street.
(Code 1958, § 29-399)

Avenue "C" shall be a one-way street, for westbound traffic only, from Sutton Street, formerly South Street, to Church Street.
(Code 1958, § 29-400)

Baldwin Avenue shall be a one-way street, for eastbound traffic only, from Hampton Boulevard to Colley Avenue and from Manteo Street to Stockley Gardens.
(Ord. No. 39,758, § 3, 11-9-99)

Bay Avenue shall be a one-way street, for eastbound traffic only, from its intersection with Ocean Avenue to Tidewater Drive.
(Code 1958, § 29-403)

Bolton Street shall be a one-way street for northbound traffic only, from Goff Street to St. Julian Avenue.
(Ord. No. 38,220, § 1, 12-12-95; Ord. No. 38,566, § 1, 11-12-96; Ord. No. 43,434, § 3, 5-12-09)

Boissevain Avenue shall be a one-way street, for westbound traffic only, from Moran Avenue to Colonial Avenue.
(Code 1958, § 29-405)

Boush Street shall be a one-way street for northbound traffic only, from York Street to Virginia Beach Boulevard.
(Ord. No. 39,345, § 2, 10-20-98)

Brambleton Avenue (North Service Road) shall be a one-way street for westbound traffic only, from a point approximately one hundred twenty (120) feet west of Marshall Avenue to Maltby Avenue and from May Avenue to a point approximately one hundred fifty (150) feet west.
(Ord. No. 34,537, § 1, 6-16-87)

Brambleton Avenue (South Service Road) shall be a one-way street for eastbound traffic only from Tidewater Drive to May Avenue and from Maltby Avenue to Reservoir Avenue.
(Ord. No. 34,537, § 1, 6-16-87)

Brandon Avenue shall be a one-way street, for westbound traffic only, from Hampton Boulevard to Colley Avenue.
(Code 1958, § 29-406)

Broadway Street shall be a one-way street, for westbound traffic only, from Granby Street to Omohundro Avenue.
(Ord. No. 37,817, § 1, 11-22-94)

Brooke Avenue shall be a one-way street, for westbound traffic only, from Granby Street to a point approximately one hundred fifty (150) feet west of Boush Street.
(Ord. No. 32,940, § 2, 6-12-84; Ord. No. 34,235, § 1, 11-25-86)

Buck Road shall be a one-way street for northbound traffic only, from Cary Avenue to Jamaica Avenue.
(Ord. No. 35,201, § 1, 8-16-88)

Bute Street shall be a one-way street for westbound traffic only, from Granby Street to the northern line of Charlotte Street.
(Ord. No. 30,867, § 1, 11-12-80; Ord. No. 34,552, § 1, 6-23-87)

Chapel Street shall be a one-way street, for northbound traffic only, from Virgin Street to a point approximately two hundred (200) feet north of Virgin Street and from Mariner Street to Charlotte Street.
(Code 1958, § 29-408; Ord. No. 32,474, § 1, 7-26-83)

Charlotte Street shall be a one-way street, for eastbound traffic only, from Bute Street to Monticello Avenue.
(Ord. No. 34,552, § 1, 6-23-87)

Cherry Street shall be a one-way street, for westbound traffic only, between Lafayette Avenue and First View Street.
(Code 1958, § 29-409.1)

Chesapeake Lane shall be a one-way street, for southbound traffic only, from City Hall Avenue to Plume Street.
(Code 1958, § 29-410)

Chesterfield Boulevard shall be a one-way street, for westbound traffic only, from Norchester Street to Majestic Avenue.
(Code 1958, § 29-410.2)

Claremont Avenue shall be a one-way street, for northbound traffic only, from Redgate Avenue to Hampton Boulevard.
(Ord. No. 30,246, § 1, 12-26-79)

Claud Lane shall be a one-way street, for westbound traffic only, from Shirland Avenue to Hampton Boulevard.
(Code 1958, § 29-411)

College Place shall be a one-way street, for westbound traffic only, from Granby Street to Boush Street.
(Ord. No. 34,235, § 1, 11-25-86)

Colley Avenue frontage road shall be a one-way street, for southbound traffic only, from W. 25th Street to W. 24th Street.
(Ord. No. 45,557, § 3, 5-20-14)

Colonial Avenue, northbound, between Burleigh Avenue and Little Creek Road.
(Code 1958, § 29-412; Ord. No. 30,867, § 2, 11-12-80; Ord. No. 41,734, § 2, 3-1-05)

Concord Lane shall be a one-way street for southbound traffic only from Plume Street to Main Street.
(Ord. No. 39,520, § 2, 3-23-99)

Cornick Road shall be a one-way street, for westbound traffic only, from Dure Road to Military Highway.
(Code 1958, § 29-414.1)

Court Street shall be a one-way street, for northbound traffic only, from Plume Street to City Hall Avenue.
(Ord. No. 44,037, § 4, 11-9-10)

"D" View Avenue shall be a one-way street, for eastbound traffic only, between First View Street and Granby Street.
(Code 1958, § 29-415.1)

Delaware Avenue, from Colonial Avenue to Granby Street, shall be a one-way street, for eastbound traffic only, between the hours of 4:30 p.m. and 6:00 p.m. on Monday through Friday, both days inclusive. Delaware Avenue, from Colonial Avenue to Granby Street, shall at all other times be open to two-way traffic.
(Code 1958, § 29-417)

Delaware Avenue shall be a one-way street, for eastbound traffic only, from Newport Avenue to Colonial Avenue.
(Code 1958, § 29-417.1)

Denby Lane shall be a one-way street, for westbound traffic only, from Smith Street to Roscoe Lane.
(Ord. No. 45,863, § 5, 2-10-15)

Drummond Place shall be a one-way street, for southbound traffic only, from Warren Crescent to Mowbray Arch.
(Code 1958, § 29-418)

Duke Street shall be a one-way street for southbound traffic only, between the southern line of Brambleton Avenue and the eastern line of York Street.
(Ord. No. 39,345, § 2, 10-20-98)

Duncan Avenue shall be a one-way street, for westbound traffic only, from Llewellyn Avenue to Moran Avenue.
(Code 1958, § 29-420)

Dunmore Street shall be a one-way street, for southbound traffic only, from York Street to College Place.
(Ord. No. 32,655, § 1, 11-29-83)

E. Olney Road shall be a one-way street, for eastbound traffic only, from St. Paul's Boulevard to Whitaker Lane.
(Ord. No. 49,007, § 3, 11-29-22)

East Kenmore Drive shall be a one-way street, for northbound traffic only, from West Kenmore Drive to Virginian Drive.
(Code 1958, § 29-420.01)

East Street, from Tidewater Drive to a point approximately five hundred (500) feet southwardly, shall be a one-way street, for northbound traffic only, between the hours of 4:45 p.m. and 5:15 p.m. on Monday through Friday, both days inclusive.
(Code 1958, § 29-420.1)

Elk Avenue shall be a one-way street, for eastbound traffic only, from Bi-County Road to Buffalo Avenue.
(Code 1958, § 29-421.1)

Farrell Street shall be a one-way street for westbound traffic only, from Chesapeake Boulevard to Old Ocean View Road.
(Ord. No. 34,691, § 1, 9-8-87)

Fawn Street shall be a one-way street for southbound traffic only, from 23rd Street and 26th Street.
(Ord. No. 36,706, § 1, 12-31-91)

Fawn Street shall be a one-way street, for southbound traffic only, from 23rd Street to 27th Street.
(Ord. No. 40,460, § 4, 9-11-01)

Forbes Street shall be a one-way street, for northbound traffic only, from Kimbal Terrace to Westminister Avenue.
(Code 1958, § 29-422.1)

Fort Street shall be a one-way street, for southbound traffic only, from Brambleton Avenue service or frontage road to Southampton Avenue.
(Code 1958, § 29-422.2)

Franklin Avenue shall be a one-way street, for eastbound traffic only, from Moran Avenue to Llewellyn Avenue.
(Code 1958, § 29-424)

Fremont Street shall be a one-way street, for eastbound traffic only, from Sutton Street, formerly South Street, to Church Street.
(Code 1958, § 29-426)

Gates Avenue shall be a one-way street, for eastbound traffic only, from Hampton Boulevard to Colley Avenue.
(Code 1958, § 29-427)

Gazel Street shall be a one-way street for northbound traffic only from 23rd Street to 26th Street.
(Ord. No. 40,460, § 4, 9-11-01)

Gazel Street shall be a one-way street, for southbound traffic only, from 26th Street to 27th Street.
(Ord. No. 40,460, § 4, 9-11-01)

Georgia Avenue shall be a one-way street, for eastbound traffic only, from Newport Avenue to 38th Street.
(Ord. No. 37,853, § 1, 1-10-95)

Goodman Street shall be a one-way street for westbound traffic only, from Vernon Drive to Melon Street.
(Ord. No. 38,229, § 1, 12-12-95)

Gornto Avenue, westbound, between Chesapeake Boulevard and Tait Terrace.
(Ord. No. 41,965, § 3, 8-16-05)

Government Avenue shall be a one-way street, for westbound traffic only, from Granby Street to First View Street.
(Code 1958, § 29-427.02)

Grantham Road, westbound between Ruthven Road and Nesbitt Drive.
(Ord. No. 39,481, § 2, 2-23-99)

Grantham Road, westbound, between Sheryl Drive and Restmere Road.
(Ord. No. 42,467, § 2, 11-28-06)

Granville Avenue shall be a one-way street, for northbound traffic only, between Brambleton Avenue and Olney Road.
(Code 1958, § 29-428)

Graydon Avenue shall be a one-way street, for eastbound traffic only, from Moran Avenue to Llewellyn Avenue.
(Code 1958, § 29-429)

Green Street eastbound, between Hyde Circle and Sewells Point Road.
(Ord. No. 39,964, § 3, 5-23-00)

Greenleaf Drive shall be a one-way street, for eastbound traffic only, from Vine Street to Cypress Street.
(Ord. No. 38,229, § 1, 12-12-95)

Grisby Place shall be a one-way street, for eastbound traffic only, between Bank Street and Cumberland Street.
(Code 1958, § 29-430)

Hamilton Avenue shall be a one-way street, for westbound traffic only, from Duke Street to Moran Avenue.
(Code 1958, § 29-431)

Hammet Avenue shall be a one-way street, for southbound traffic only, from Ocean Avenue to Bay Avenue.
(Ord. 37,817, § 1, 11-22-94)

Hammock Lane shall be a one-way street for westbound traffic only, from 28th Street to 25th Street.
(Ord. No. 42,890, § 4, 10-30-07)

Hampton Boulevard (East Service Road) shall be a one-way street for southbound traffic only from the south line of Redgate Avenue for a distance of approximately sixty-three (63) feet southwardly therefrom.
(Ord. No. 35,075, § 1, 5-31-88)

Hansford Place shall be a one-way street, for northbound traffic only, from Little Bay Avenue to West Ocean View Avenue.
(Code 1958, § 29-431.1)

Harrington Avenue shall be a one-way street, for westbound traffic only, from Colley Avenue to Hampton Boulevard.
(Code 1958, § 29-433)

Helena Avenue shall be a one-way street, for westbound traffic only, from Hampton Boulevard to Shirland Avenue.
(Code 1958, § 29-432)

Hill Street shall be a one-way street, for westbound traffic only, from Talbot Street to Bank Street.
(Code 1958, § 29-434)

Holt's Lane shall be a one-way street, for northbound traffic only, between Main Street and Water Street.
(Code 1958, § 29-435)

Hugo Street shall be a one-way street, for eastbound traffic only, between Sewell's Point Road and Chesapeake Boulevard.
(Code 1958, § 29-435.1)

Hyde Circle shall be a one-way street, for southbound traffic only, from Norview Avenue to Chesapeake Boulevard.
(Ord. No. 34,900, § 1, 2-9-88)

Reserved.
(Code 1958, § 29-435.2; Ord. No. 45,180, § 1, 7-9-13)

Jamaica Avenue shall be a one-way street for westbound traffic only, from Buck Road to Shanks Street.
(Ord. No. 35,201, § 1, 8-16-88)

John Foster Lane shall be a one-way street, for the westbound traffic only, from Kenton Avenue to Herbert Collins Avenue.
(Ord. No. 42,890, § 4, 10-30-07)

Johnson Avenue shall be a one-way street, for westbound traffic only, from Proescher Street to Church Street.
(Code 1958, § 29-436)

Joseph Green Lane shall be a one-way street, for the eastbound traffic only, from Herbert Collins Way to Kenton Avenue.
(Ord. No. 42,890, § 4, 10-30-07)

Jubilee Street shall be a one-way street, for northbound traffic only, from Berkley Avenue to Vine Street.
(Ord. No. 38,229, § 1, 12-12-95)

Kempsville Road shall be a one-way street, for eastbound traffic only, from Northampton Boulevard to Dure Road.
(Code 1958, § 29-436.1)

Lafayette Boulevard, north roadway, shall be a one-way street, for westbound traffic only, from Lyons Avenue to the city limits.
(Code 1958, § 29-437)

Lake Terrace Circle in the southbound direction.
(Ord. No. 41,589, § 3, 9-28-04)

Leo Street, northbound, between 26th Street and 27th Street.
(Ord. No. 41,113, § 4, 7-22-03)

Lexington Street shall be a one-way street, for westbound traffic only, from Lungee Street to Church Street.
(Code 1958, § 29-438)

Little Creek Road shall be a one-way street, for eastbound traffic only, from Shore Drive to Turner Road.
(Ord. No. 37,913, § 1, 3-14-95)

Llewellyn Avenue shall be a one-way street, for southbound traffic only, from Granby Street to Delaware Avenue.
(Code 1958, § 29-440.1)

Lorengo Avenue shall be a one-way street, for westbound traffic only, from Hume Street to Granby Street.
(Code 1958, § 29-441)

Madison Avenue shall be a one-way street for eastbound, northbound, westbound, and southbound traffic from the westerly line of 1622 Madison Avenue to the most southerly line of 915 Madison Avenue.
(Ord. No. 33,792, § 1, 12-17-85)

Madison Mews shall be a one way street for eastbound traffic only, from Boush Street to E. Freemason Street.
(Ord. No. 43,445, § 2, 5-19-09)

Magazine Lane, southbound traffic only, between a line which is parallel with fifty-five (55) feet south of Olney Road and Brambleton Avenue.
(Ord. No. 35,564, § 2, 6-13-89; Ord. No. 42,095, § 3, 11-29-05)

Magazine Lane shall be a one-way street, for southbound traffic only, from W Wilson Road to W Olney Road.
(Ord. No. 46,349, § 5, 4-26-16)

Maltby Avenue shall be a one-way street on the north side, for westbound traffic only, and a one-way street on the south side, for eastbound traffic only, from Lafayette Boulevard to the city limits.
(Code 1958, § 29-444)

Mapole Avenue shall be a one-way street, for northbound traffic only, between Corprew Avenue and Virginia Beach Boulevard.
(Code 1958, § 29-444.1)

Mapole Avenue shall be a one-way street, for southbound traffic only, from Princess Anne Road to DuBose Drive.
(Ord. No. 34,794, § 1, 11-17-87)

Mariner Street shall be a one-way street, for eastbound traffic only, from Chapel Street to Reilly Street.
(Code 1958, § 29-444.1-1)

Mariner Street shall be a one-way street, for northbound and westbound traffic only, from Holt Street to Walke Street.
(Code 1958, § 29-444.2)

Market Street shall be a one-way street, for westbound traffic only, from Monticello Avenue to Granby Street.
(Ord. No. 34,235, § 1, 11-25-86)

Market Street shall be a one-way street, for eastbound traffic only, from Bank Street to Saint Paul's Boulevard.
(Ord. No. 36,105, § 1, 7-10-90)

Reserved.
(Code 1958, § 29-446; Ord. No. 45,180, § 1, 7-9-13)

Martin's Lane shall be a one-way street, for southbound traffic only, between Plume Street and Main Street and a one-way street, for northbound traffic only, between Plume Street and City Hall Avenue.
(Code 1958, § 29-447)

Maury Avenue shall be a one-way street, for westbound traffic only, from Stockley Gardens to Hampton Boulevard.
(Code 1958, § 29-448)

Michigan Avenue shall be a one-way street for westbound traffic only, from Gosnold Avenue to Colley Avenue, and one-way street for eastbound traffic only from Gosnold Avenue to 38th Street.
(Ord. No. 38,480, § 1, 7-30-96)

Middleton Place shall be a one-way street, for eastbound traffic only, from Sewells Point Road to Chesapeake Boulevard.
(Code 1958, § 29-448.1)

Military Highway service road shall be a one-way street, for northbound traffic only, from Military Highway to Virginia Beach Boulevard south service road.
(Code 1958, § 29-448.2)

Monroe Place between Jamestown Crescent and Magnolia Avenue for southbound traffic between 8:00 a.m. and 1:00 p.m. Sunday only.
(Ord. No. 39,705, § 4, 8-24-99)

Monticello Avenue east frontage or service road shall be a one-way street, for northbound traffic only, from 21st Street to 22nd Street.
(Code 1958, § 29-449.1)

Monticello Avenue, east frontage or service roads, northbound, between 24th Street and 25th Street.
(Ord. No. 41,113, § 4, 7-22-03)

Monticello Avenue, west frontage or service roads, southbound, between 22nd Street and 21st Street.
(Ord. No. 41,113, § 4, 7-22-03)

Monticello Avenue west frontage or service road shall be a one-way street, for southbound traffic only, from 25th Street to 24th Street.
(Code 1958, § 29-449.2)

Nicholson Street shall be a one-way street for westbound traffic only, from Smith Street to Cumberland Street.
(Ord. No. 33,219, § 1, 12-11-84)

Nicholson Street shall be a one-way street, for westbound traffic only, from Smith Street to Salter Street.
(Ord. No. 49,007, § 3, 11-29-22)

Nineteenth Street shall be a one-way street, for westbound traffic only, from Omohundro Avenue to Llewellyn Avenue.
(Code 1958, § 29-452)

North Mowbray Arch shall be a one-way street, for northbound traffic only, from Llewellyn Avenue to 9th Street.
(Code 1958, § 29-453)

Reserved.
(Ord. No. 37,343, § 1, 7-20-93; Ord. No. 48,524, § 1, 10-12-21)

Oakwood Street shall be one street only, for southbound traffic only, from Indian River Road to Canton Avenue, 6:00—9:00 a.m. and 3:00—6:00 p.m., Monday—Friday.
(Ord. No. 49,657, § 3, 7-9-24)

Obendorfer Road shall be a one-way street for northbound traffic only, from Berkley Avenue Ex to Barton Street.
(Ord. No. 44,584, § 4, 2-28-12)

Ocean Avenue shall be a one-way street, for westbound traffic only, from Tidewater Drive to its intersection with Bay Avenue.
(Code 1958, § 29-454)

Orapax Street shall be a one-way street, for southbound traffic only, from Westover Avenue to sixty (60) feet north of Redgate Avenue.
(Ord. No. 47,902, § 4, 2-25-20)

Park Avenue service or frontage road shall be a one-way street, for northbound traffic only, from Virginia Beach Boulevard to Princess Anne Road.
(Ord. No. 31,489, § 1, 12-22-81)

Pasadena Court shall be a one-way street, for eastbound traffic only, from Hampton Boulevard to Shirland Avenue.
(Code 1958, § 29-456)

Reserved.
(Ord. No. 45,049, § 5, 3-26-13; Ord. No. 45,415, § 2, 1-14-14)

Patrick Street shall be a one-way street, for eastbound traffic only, from State Street to Cross Street.
(Ord. No. 45,415, § 6, 1-14-14)

Peake Road shall be a one-way street, for westbound traffic only, from Etheridge Avenue to Ingleside Road.
(Ord. No. 30,596, § 1, 5-13-80)

Picadilly Street Extended shall be a one-way street, for westbound traffic only, from Sewells Point Road to Chesapeake Boulevard.
(Code 1958, § 29-456.1)

Piney Branch Circle shall be a one-way street, for southbound, northbound and westbound traffic, from the intersection of the southern arm of Piney Branch Circle and Piney Branch Road to the intersection of the northern arm of Piney Branch Circle and Piney Branch Road.
(Code 1958, § 29-456.2)

Preston Street shall be a one-way street, for westbound traffic only, between Chapel Street and Chicazola Street.
(Code 1958, § 29-457)

Princess Anne Road service or frontage road shall be a one-way street, for eastbound traffic only, from Park Avenue to the eastern terminus of such service road.
(Ord. No. 31,489, § 1, 12-22-81)

Pulaski Street shall be a one-way street, for northbound traffic only, from Brambleton Avenue to Olney Road.
(Code 1958, § 29-458)

Raleigh Avenue shall be a one-way street, for eastbound traffic only, from Colonial Avenue to Moran Avenue.
(Code 1958, § 29-459)

Randall Avenue shall be a one-way street, for eastbound traffic only, from Granby Street to Hume Street.
(Code 1958, § 29-460)

Randolph Street shall be a one-way street, for southbound traffic only, between City Hall Avenue and Main Street.
(Code 1958, § 29-461)

Redgate Avenue shall be a one-way street, for westbound traffic only, from Moran Avenue to Colonial Avenue.
(Code 1958, § 29-462)

Reilly Street shall be a one-way street, for southbound traffic only, from Mariner Street to Virgin Street.
(Code 1958, § 29-462.01)

Reservoir Avenue shall be a one-way street, for northbound traffic only, from Virginia Beach Boulevard to Armstrong Street.
(Code 1958, § 29-462.1)

Roscoe Lane shall be a one-way street, for northbound traffic only, from Henry Street to Denby Lane.
(Ord. No. 45,863, § 5, 2-10-15)

Ruffner Street shall be a one-way street, for northbound traffic only, from Charlotte Street to Tidewater Drive.
(Ord. No. 43,659, § 3, 11-18-09)

Seaview Avenue shall be a one-way street, for westbound traffic only, between a line which is parallel with and one hundred fifty (150) feet west of Granby Street and First View Street.
(Code 1958, § 29-462.2; Ord. No. 32,396, § 1, 6-21-83)

Seventeenth Street shall be a one-way street, for eastbound traffic only, from Colonial Avenue to Omohundro Avenue.
(Code 1958, § 29-463)

Sewells Point Road Service Road shall be a one-way street, for southbound traffic only, from Little John Drive to Robin Hood Road.
(Ord. No. 39,265, § 1, 8-18-98)

Shanks Street shall be a one-way street for southbound traffic only, from Jamaica Avenue to Cary Avenue.
(Ord. No. 35,201, § 1, 8-16-88)

Sherwood Place shall be a one-way street, for northbound traffic only, from E Seaview Avenue to E Ocean View Avenue, between the hours of 8:00 a.m. and 1:00 p.m. on Sundays only.
(Ord. No. 47,241, § 3, 5-22-18)

Shirley Avenue shall be a one-way street, for westbound traffic only, from Debree Avenue to Hampton Boulevard.
(Ord. No. 31,417, § 1, 11-10-81)

Sloane Street shall be a one-way street for southbound traffic only, from Granby Street to Orange Avenue.
(Ord. No. 36,040, § 1, 5-29-90)

Smith Street shall be a one-way street, for northbound traffic only, from Miscellaneous Street to Nicholson Street.
(Ord. No. 49,007, § 3, 11-29-22)

Smith Street shall be a one-way street, for northbound traffic only, from the northern line of the unnamed lane located north of the Young Park Elementary School to Nicholson Street.
(Ord. No. 33,219, § 1, 12-11-84)

Spotswood Avenue shall be a one-way street for, eastbound traffic only, from Hampton Boulevard to Colley Avenue and from a point beginning 150 feet east of Colley Avenue to Debree Avenue.
(Code 1958, § 29-467.1; Ord. No. 38,522, § 1, 9-10-96)

Sussex Place shall be a one-way street for eastbound traffic only, between Hampton Boulevard and Jamestown Crescent.
(Code 1958, § 29-468)

Talbot Street shall be a one-way street, for southbound traffic only, from Plume Street to Main Street.
(Code 1958, § 29-469)

Taussig Boulevard between Granby Street and Hampton Boulevard, permitting all westbound vehicles to use the center lane of Taussig Boulevard from 6:00 a.m. to 8:30 a.m., and all eastbound vehicles to use the center lane of Taussig Boulevard from 3:00 p.m. to 5:30 p.m., Mondays through Fridays. No vehicle shall use the center lane of Taussig Boulevard, between Granby Street and Hampton Boulevard, at any other times.
(Code 1958, § 29-469.1)

Tazewell Street shall be a one-way street, for eastbound traffic only, from the eastern line of the realigned Duke Street to Monticello Avenue.
(Ord. No. 34,235, § 1, 11-25-86)

Thayor Street shall be a one-way street, for southbound traffic only, from Westminster Avenue to Kimball Terrace.
(Code 1958, § 29-473.1)

Thurgood Street shall be a one-way street, for eastbound traffic only, from Melon Street to Vernon Drive.
(Ord. No. 38,229, § 1, 12-12-95)

Tidewater Drive Service Road at south side of Granby Street underpass shall be a one-way street, for southeast bound traffic only, from Granby Street to Gilpin Avenue.
(Code 1958, § 29-479.1)

Trouville Avenue shall be a one-way street between the driveway of 7510 Hampton Boulevard and Hampton Boulevard.
(Code 1958, § 29-479.1-1; Ord. No. 40,633, § 8, 3-19-02)

Twenty-third Bay Street shall be a one-way street, for northbound traffic only, from Shore Drive to Pleasant Avenue.
(Ord. No. 31,165, § 1, 5-26-81)

Unnamed fourteen-foot lane, located at the rear of Maury High School, between 1608 DeBree Avenue and Maury High School, and extending from Moran Avenue to DeBree Avenue, shall be a one-way street, for eastbound traffic only, from Moran Avenue to DeBree Avenue.
(Code 1958, § 29-483)

Unnamed service road on the western side of the 3500 block of Tidewater Drive, extending from Alsace Avenue to Tidewater Drive, shall be a one-way street, for northbound traffic only.
(Code 1958, § 29-484)

Unnamed service road on the southern side of Virginia Beach Boulevard, extending from Ingleside Road to Azalea Garden Road, shall be a one-way street, for eastbound traffic only.
(Ord. No. 36,061, § 1, 6-12-90)

Unnamed twenty-foot-wide lane, located to the south of Young Park Elementary School and extending from the 300 block of East Olney Road south, east and north to the 500 block of East Olney Road, shall be a one-way street for eastbound traffic only.
(Ord. No. 33,219, § 1, 12-11-84)

Virgin Street shall be a one-way street, for westbound traffic only, from Reilly Street to Chapel Street.
(Code 1958, § 29-484.1)

Virginia Beach Boulevard service or frontage road shall be a one-way street, for westbound traffic only, from the eastern terminus of such service road to Park Avenue.
(Ord. No. 31,489, § 1, 12-22-81)

Virginia Beach Boulevard service or frontage road shall be a one-way street for westbound traffic only, from Park Avenue to Hanson Avenue.
(Ord. No. 44,584, § 4, 2-28-12)

Voss Street shall be a one-way street, for southbound traffic only, from Olney Road to Brambleton Avenue.
(Ord. No. 32,920, § 1, 5-29-84)

W 39th Street shall be a one-way street, for westbound traffic only, from Bowdens Ferry Road to Powhatan Avenue.
(Ord. No. 47,902, § 4, 2-25-20)

W 40th Street shall be a one-way street, for eastbound traffic only, from Powhatan Avenue to Bowdens Ferry Road.
(Ord. No. 47,902, § 4, 2-25-20)

W 41st Street shall be a one-way street, for westbound traffic only, from Bluestone Avenue to Powhatan Avenue.
(Ord. No. 47,902, § 4, 2-25-20)

W 42nd Street shall be a one-way street, for eastbound traffic only, from Powhatan Avenue to Bowdens Ferry Road.
(Ord. No. 47,902, § 4, 2-25-20)

W. Wilson Avenue shall be a one-way street, for westbound traffic only, from Granby Street to W. Olney Road.
(Ord. No. 46,272, § 1, 2-23-16)

Reserved.
(Ord. No. 37,343, § 1, 7-20-93; Ord. No. 48,524, § 1, 10-12-21)

Waltham Street shall be one way street, for southbound traffic only, from Indian River Road to Canton Avenue, 6:00—9:00 a.m. and 3:00—6:00 p.m., Monday—Friday.
(Ord. No. 49,657, § 3, 7-9-24)

Ward Avenue shall be a one-way street, for eastbound traffic only, from Moran Avenue to Duke Street.
(Code 1958, § 29-485)

Washington Avenue shall be a one-way street, for eastbound traffic only, from Church Street to Tidewater Drive.
(Ord. No. 31,415, § 1, 11-10-81; Ord. No. 33,678, § 1, 9-25-85)

West Kenmore Drive shall be a one-way street, for southbound traffic only, from Virginian Drive to East Kenmore Drive.
(Code 1958, § 29-485.1)

Westmoreland Avenue for northbound traffic only, from Bolling Avenue to Monroe Place.
(Ord. No. 47,277, § 1, 6-26-18)

Westover Avenue shall be a one-way street, for westbound traffic only, from Llewellyn Avenue to Moran Avenue.
(Code 1958, § 29-487)

Whitaker Lane shall be a one-way street, for northbound traffic only, from E. Onley Road to Nicholson Street.
(Ord. No. 49,007, § 3, 11-29-22)

Wide Street shall be a one-way street, for southbound traffic only, from Olney Road to Brambleton Avenue.
(Code 1958, § 29-488)

Wilby Street shall be a one-way street, for northbound traffic only, from Warren Street to Marcy Street.
(Code 1958, § 29-489)

Williams Street shall be a one-way street, for westbound traffic only, throughout its entire length.
(Code 1958, § 29-490)

Windsor Avenue shall be a one-way street, for northbound traffic only, between Brambleton Avenue and Olney Road.
(Code 1958, § 29-490.1)

Yarmouth Street, northbound, between Brambleton Avenue and Grace Street.
(Ord. No. 38,220, § 1, 12-12-95; Ord. No. 38,566, § 1, 11-12-96; Ord. No. 41,310, § 3, 2-10-04)

Yarmouth Street shall be a one-way street, for northbound traffic only, from York Street to Brambleton Avenue.
(Ord. No. 43,293, § 6, 11-25-08)

Yaxley's Lane shall be a one-way street, for southbound traffic only, between Main Street and Union Street.
(Code 1958, § 29-491)

Cross reference—One-way streets at airport, § 4-33.

York Street shall be a one-way street, for eastbound traffic only, from Botetourt Street to Dunmore Street.
(Ord. No. 43,293, § 6, 11-25-08)

York Street shall be a one-way street for eastbound traffic only from the eastern line of Duke Street to the western line of Boush Street.
(Ord. No. 39,345, § 2, 10-20-98)

York Street shall be a one-way street, for westbound traffic only, from Duke Street to Yarmouth Street.
(Ord. No. 43,293, § 6, 11-25-08)

Sec. 25-653. Yield intersections.

Generally. The city manager is hereby authorized and directed to erect and maintain, at the intersections designated in the following subsections of this section, appropriate yield right-of-way signs or markers. When such signs or markers are in place, the driver of every vehicle proceeding on the street first designated in the following subsections shall, upon crossing or entering the second street designated in such subsections, yield the right-of-way to vehicles approaching on the second street so designated.
(Code 1958, §§ 29-287—29-289)

Reserved.
(Code 1958, § 29-351.50-1; Ord. No. 45,049, § 1, 3-26-13)

Reserved.
(Ord. No. 36,234, § 1, 10-30-90; Ord. No. 45,049, § 1, 3-26-13)

Reserved.
(Ord. No. 36,548, § 1, 8-27-91; Ord. No. 45,863, § 2, 2-10-15)

33rd Street, at its intersection with Omohundro Avenue.
(Code 1958, § 29-351.46)

34th Street, at its intersection with Gosnold Avenue.
(Ord. No. 36,234, § 1, 10-30-90)

38th Street, at its intersection with Powhatan Avenue.
(Code 1958, § 29-351.47; Ord. No. 34,302, § 1, 1-13-87; Ord. No. 41,639, § 2, 11-16-04)

4th Bay Street, at its intersection with Pretty Lake Avenue.
(Code 1958, § 29-329)

25th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-351.51)

26th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-351.51-2)

28th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-351.50-2)

29th Bay Street, as to northbound traffic, at its intersection with Pleasant Avenue.
(Code 1958, § 29-351.51-1)

West 36th Street, at its intersection with Debree Street.
(Ord. No. 36,956, § 1, 8-18-92)

Abbey Road, at its intersection with Brest Avenue.
(Ord. No. 40,633, § 9, 3-19-02)

Adele Drive, at its intersection with Red Brook Road.
(Code 1958, § 29-291)

Algonquin Road, at its intersection with North Shore Road.
(Ord. No. 46,558, § 1, 9-13-16)

Alma Drive, at its intersection with Becket Street.
(Ord. No. 47,332, § 1, 8-28-18)

Almeda Avenue, as to southbound traffic, at its intersection with Henneman Drive.
(Ord. No. 38,979, § 3, 11-25-97)

Andrea Drive, at its intersection with Kevin Drive.
(Ord. No. 37,913, § 2, 3-14-95)

Andrea Drive, at its intersection with Terry Drive.
(Ord. No. 37,913, § 2, 3-14-95)

Andrew Lane, at its intersection with Gygax Road.
(Ord. No. 39,635, § 2, 6-22-99)

Appomattox Street, at its intersection with Whitehead Street.
(Ord. No. 40,515, § 1, 11-13-01)

Reserved.
(Ord. No. 37,583, § 2, 4-19-94; Ord. No. 45,557, § 1, 5-20-14)

Argall Avenue, at its intersection with Longwood Drive.
(Ord. No. 46,071, § 1, 9-15-15)

Argall Crescent, at its intersection with Magnolia Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Argyle Avenue, at its intersection with North Shore Road.
(Ord. No. 46,968, § 7, 9-12-17)

Arizona Avenue, at its intersection with Hanbury Street.
(Ord. No. 47,062, § 3, 11-21-17)

Armfield Avenue, as to southbound traffic, at its intersection with Armfield Circle.
(Code 1958, § 29-293)

Ashlawn Drive, at its intersection with Keene Road.
(Ord. No. 43,018, § 3, 3-18-08)

Atlans Street, at its intersection with Balview Avenue.
(Code 1958, § 29-293.1)

Atwood Avenue, at its intersection with Duvall Street.
(Ord. No. 37,424, § 1, 10-12-93)

Ballentine Boulevard, at its intersection with Kimball Terrace.
(Code 1958, § 29-294; Ord. No. 39,911, § 1, 4-11-00; Ord. No. 40,883, § 2, 11-12-02)

Reserved.
(Ord. No. 36,197, § 1, 9-18-90; Ord. No. 47,796, § 1, 10-22-19)

Bartin Street, at its intersection with Walmer Avenue.
(Code 1958, § 29-294.1)

Beck Street, at its intersection with Hammett Avenue.
(Ord. No. 40,515, § 1, 11-13-01)

Reserved.
(Code 1958, § 29-296; Ord. No. 44,707, § 1, 6-12-12)

Bertha Street, at its intersection with Norvella Avenue.
(Code 1958, § 29-298)

Bertha Street, at its intersection with Texas Avenue.
(Code 1958, § 29-299)

Bessie Street, at its intersection with Texas Avenue.
(Code 1958, § 29-300)

Bill Street, at its intersection with Quincy Street.
(Code 1958, § 29-302)

Birch Street, at its intersection with Larkin Street.
(Code 1958, § 29-303)

Birmingham Avenue, at its intersection with Gloucester Avenue.

Blades Street, at its intersection with Executive Drive.
(Code 1958, § 29-304; Ord. No. 40,363, § 4, 6-12-01)

Bluestone Avenue, at its intersection with 27th Street.
(Ord. No. 34,368, § 1, 3-10-87)

Briar Hill Road, at its intersection with Poplar Hall Drive.
(Ord. No. 34,465, § 1, 5-12-87)

Reserved.
(Code 1958, § 29-306; Ord. No. 45,557, § 1, 5-20-14)

Broadfield Road, at its intersection with Portal Road.
(Ord. No. 44,975, § 3, 1-8-13)

Brookneal Court, at its intersection with Beamon Road.
(Ord. No. 47,062, § 3, 11-21-17)

Brunswick Avenue, at its intersection with Argall Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Buchanan Street, at its intersection with Alleghany Street.
(Code 1958, § 29-307)

Cabot Avenue, at its intersection with George Street.
(Code 1958, § 29-309)

Cambridge Crescent, at its intersection with Hanover Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Caribou Avenue, at its intersection with Hilton Street.
(Ord. No. 47,062, § 3, 11-21-17)

Carillo Avenue, at its intersection with Cornwall Place.
(Ord. No. 46,071, § 1, 9-15-15)

Carillo Avenue, at its intersection with Magnolia Avenue.
(Code 1958, § 29-311)

Carlton Street, at its intersection with Jennifer Street.
(Ord. No. 37,913, § 2, 3-14-95)

Carlton Street, at its intersection with Sunset Drive.
(Ord. No. 36,259, § 1, 11-20-90)

Carolina Avenue, at its intersection with Newport Avenue.
(Ord. No. 40,791, § 3, 7-30-02)

Carroll Place, at its intersection with Magnolia Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Carswell Street, at its intersection with Galt Street.
(Ord. No. 47,062, § 3, 11-21-17)

Catalpa Street, at its intersection with Powhatan Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Cedar Lane, at its intersection with Studeley Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Cedar Level Avenue, at its intersection with Maycox Avenue.
(Ord. No. 40,515, § 1, 11-13-01)

Chambers Street, at its intersection with Glenrock Road.
(Code 1958, § 29-312)

Chapel Street, at its intersection with St. Julian Avenue.
(Ord. No. 33,420, § 1, 4-30-85; Ord. No. 39,911, § 1, 4-11-00; Ord. No. 41,965, § 4, 8-16-05)

Reserved.
(Code 1958, § 29-313; Ord. No. 48,078, § 1, 7-14-20)

Cherry Street, at its intersection with Hickory Street.
(Code 1958, § 29-314.1)

Claremont Avenue, at its intersection with Warrington Avenue.
(Ord. No. 40,791, § 3, 7-30-02)

Coleman Avenue, at its intersection with Duvall Street.
(Ord. No. 37,424, § 1, 10-12-93)

Reserved.
(Ord. No. 42,200, § 2, 3-7-06; Ord. No. 44,707, § 1, 6-12-12)

Commodore Drive, at its intersection with Bay View Boulevard.
(Ord. No. 41,639, § 2, 11-16-04)

Commodore Drive, northbound at its intersection with Burrage Road.
(Ord. No. 41,639, § 2, 11-16-04)

Console Avenue, at its intersection with Tarpon Place.
(Code 1958, § 29-315)

Cornwall Place, at its intersection with Upper Brandon Place.
(Ord. No. 46,071, § 1, 9-15-15)

Corprew Avenue, at its intersection with Marshall Avenue.
(Code 1958, § 29-316)

Corprew Avenue, at its intersection with Reservoir Avenue.
(Code 1958, § 29-317)

Cortlandt Place, at its intersection with Runnymeade Road.
(Code 1958, § 29-318)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Reserved.
(Code 1958, § 29-319; Ord. No. 45,557, § 1, 5-20-14)

Curlew Drive, at its intersection with Huntsman Road.
(Code 1958, § 29-320)

Cypress Street, at its intersection with Melon Street.
(Ord. No. 38,229, § 2, 12-12-95)

Cypress Street, at its intersection with Vernon Drive.
(Ord. No. 38,229, § 2, 12-12-95)

Reserved.
(Ord. No. 43,434, § 4, 5-12-09; Ord. No. 49,007, § 1, 11-29-22)

Darden Street, at its intersection with Ashby Street.
(Ord. No. 40,633, § 9, 3-19-02)

Dayton Court at its intersection with Beamon Road.
(Ord. No. 47,177, § 4, 3-27-18)

Delaware Avenue, at its intersection with Gosnold Avenue.
(Code 1958, § 29-320.1; Ord. No. 34,167, § 2, 10-14-86; Ord. No. 40,460, § 5, 9-11-01)

Reserved.
(Code 1958, § 29-321; Ord. No. 44,707, § 1, 6-12-12)

Dogan Street, at its intersection with Godfrey Avenue.
(Ord. No. 38,936, § 1, 11-14-97)

Reserved.
(Code 1958, § 29-322; Ord. No. 46,349, § 2, 4-26-16)

Duke Street, as to northbound traffic, at its intersection with Tazewell Street.
(Ord. No. 32,940, § 3, 6-12-84)

Reserved.
(Code 1958, § 29-323; Ord. No. 47,177, § 1, 3-27-18)

Reserved.
(Code 1958, § 29-324; Ord. No. 45,415, § 3, 1-14-14)

Dune Street, at its intersection with Hammett Avenue.
(Ord. No. 32,378, § 1, 6-14-83)

Eastwood Terrace, at its intersection with Cornwall Place.
(Ord. No. 46,071, § 1, 9-15-15)

Elizabeth Avenue, at its intersection with Cowand Avenue.
(Code 1958, § 29-326)

Reserved.
(Code 1958, § 29-327; Ord. No. 48,078, § 1, 7-14-20)

Elm Street, at its intersection with Avenue F.
(Ord. No. 37,188, § 1, 4-13-93)

Elm Street, at its intersection with Avenue G.
(Code 1958, § 29-327.1)

Reserved.
(Ord. No. 38,721, § 1, 4-22-97; Ord. No. 48,905, § 1, 9-13-22)

Febian Avenue, at its intersection with Norchester Street.
(Code 1958, § 29-328.3)

Galveston Boulevard, at its intersection with Virginian Drive.
(Code 1958, § 29-331)

Gamage Drive, at its intersection with Leslie Avenue.
(Code 1958, § 29-332)

Gazel [Gazell] Street, at its intersection with 29th Street.
(Code 1958, § 29-333; Ord. No. 38,301, § 1, 3-12-96; Ord. No. 40,247, § 4, 3-20-01)

Glenhaven Crescent, at its intersection with Magnolia Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Gornto Avenue, at its intersection with Tait Terrace.
(Ord. No. 37,583, § 2, 4-19-94)

Gosnold Avenue, at its intersection with Delaware Avenue.
(Ord. No. 40,460, § 5, 9-11-01)

Grand Bassa Drive, at its intersection with Monrovia Drive.
(Ord. No. 38,582, § 1, 11-26-96)

Granville Avenue, at its intersection with Olney Road.
(Code 1958, § 29-335)

Greenleaf Drive, at its intersection with Vernon Drive.
(Ord. No. 38,229, § 2, 12-12-95)

Reserved.
(Code 1958, § 29-338.1; Ord. No. 44,316, § 1, 7-12-11)

Gygax Road, at its intersection with Simons Drive.
(Ord. No. 48,270, § 6, 1-12-21)

Hanyen Drive, at its intersection with Gabriel Drive.
(Code 1958, § 29-339)

Reserved.
(Ord. No. 38,583, § 2, 11-26-96; Ord. No. 48,524, § 2, 10-12-21)

Reserved.
(Ord. No. 36,559, § 1, 9-10-91; Ord. No. 48,524, § 2, 10-12-21)

Harmott Avenue, at its intersection with Lakewood Drive.
(Code 1958, § 29-340)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Henry Street, at its intersection with Wide Street.
(Ord. No. 36,961, § 1, 8-18-92)

Hudson Avenue, at its intersection with George Street.
(Code 1958, § 29-345)

Hyde Circle, at its intersection with Hampshire Avenue.
(Ord. No. 37,377, § 1, 8-24-93)

Irwin Avenue, at its intersection with Merle Avenue.
(Ord. No. 34,494, § 1, 5-26-87)

Jarrett Road, at its intersection with Prince Avenue.
(Ord. No. 37,957, § 3, 4-25-95)

Johns Street, at its intersection with Norvella Avenue.
(Code 1958, § 29-350)

Kennedy Street, at its intersection with Gregory Drive.
(Ord. No. 47,062, § 3, 11-21-17)

Kenova Street, at its intersection with 48th Street.
(Ord. No. 46,071, § 1, 9-15-15)

Kenova Street, at its intersection with 49th Street.
(Ord. No. 46,071, § 1, 9-15-15)

Kingston Avenue, at its intersection with Beaumont Street.
(Code 1958, § 29-351.3)

Reserved.
(Ord. No. 37,429, § 1, 10-12-93; Ord. No. 48,524, § 2, 10-12-21)

Larchmont Crescent, at its intersection with Magnolia Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Larkin Street, at its intersection with Overper Street.
(Code 1958, § 29-351.5)

Lasser Drive, at its intersection with Tifton Street.
(Ord. No. 47,062, § 3, 11-21-17)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Lens Avenue, at its intersection with Columbia Avenue.
(Ord. No. 37,583, § 2, 4-19-94)

Leo Street, at its intersection with 29th Street.
(Code 1958, § 29-351.7)

Leo Street, at its intersection with Waverly Way.
(Code 1958, § 29-351.8)

Levine Court, at its intersection with Shorewood Drive.
(Code 1958, § 29-351.9; Ord. No. 33,328, § 2, 2-26-85; Ord. No. 40,363, § 4, 6-12-01)

Liberia Drive, at its intersection with Monrovia Drive.
(Ord. No. 38,582, § 1, 11-26-96)

Reserved.
(Code 1958, § 29-351.10; Ord. No. 45,415, § 3, 1-14-14)

Reserved.
(Code 1958, § 29-351.11; Ord. No. 45,415, § 3, 1-14-14)

Logan Street, at its intersection with Dakota Avenue.
(Ord. No. 48,078, § 2, 7-14-20)

Reserved.
(Code 1958, § 29-351.12; Ord. No. 48,078, § 1, 7-14-20)

Reserved.
(Ord. No. 36,916, § 1, 7-14-92; Ord. No. 48,524, § 2, 10-12-21)

Louisiana Drive, at its intersection with Virginian Drive.
(Code 1958, § 29-351.13)

Reserved.
(Code 1958, § 29-351.14; Ord. No. 44,316, § 1, 7-12-11)

Reserved.
(Ord. No. 38,485, § 1, 7-30-96; Ord. No. 44,316, § 1, 7-12-11)

Mamie Boulevard, at its intersection with Tifton Street.
(Ord. No. 42,426, § 3, 10-3-06)

Manchester Avenue, at its intersection with Monroe Place.
(Code 1958, § 29-351.15)

Maple Avenue, at its intersection with Dubose Drive.
(Ord. No. 47,939, § 4, 3-24-20)

Mapleton Avenue, at its intersection with Godfrey Avenue.
(Ord. No. 38,936, § 1, 11-14-97)

Reserved.
(Ord. 37,813, § 1, 11-15-94; Ord. No. 44,316, § 1, 7-12-11)

Maury Avenue, at its intersection with Manteo Street.
(Code 1958, § 29-351.17)

McGee Avenue, at its intersection with Linwood Avenue.
(Ord. No. 34,494, § 1, 5-26-87)

Reserved.

(Ord. No. 38,721, § 2, 4-22-97; Ord. No. 46,675, § 1, 12-13-16)

Meads Road, at its intersection with Mt. Pleasant Avenue.
(Ord. No. 36,197, § 1, 9-18-90)

Melrose Parkway, at its intersection with Woodbury Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Reserved.
(Ord. No. 36,559, § 1, 9-10-91; Ord. No. 48,524, § 2, 10-12-21)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Military Highway, exit road, located at Pebble Lane, at its intersection with the Military Highway service road located parallel to and west of the Military Highway, where southbound vehicles on the Military Highway exit road located at Pebble Lane shall, upon crossing or entering the Military Highway service road located parallel to and west of the Military Highway, yield the right-of-way to vehicles approaching on the Military Highway service road located parallel to and west of the Military Highway.
(Code 1958, § 29-351.19)

Military Highway service road, as to southbound right turn lane traffic, at its intersection with Corporate Boulevard.
(Ord. No. 40,883, § 2, 11-12-02)

Military Highway, service or frontage roads, at their intersection with Norview Avenue.
(Code 1958, § 29-351.20)

Monsterrado Place, at its intersection with Liberia Drive.
(Ord. No. 38,582, § 1, 11-26-96)

Montclair Avenue, at its intersection with Waltham Street.
(Code 1958, § 29-351.24)

Monterey Avenue, at its intersection with Argall Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Monticello Avenue, east service or frontage roads, approximately one hundred (100) feet south of its intersection with 25th Street.
(Ord. No. 41,113, § 5, 7-22-03)

Monticello Avenue, as to southbound traffic, entering onto westbound Virginia Beach Boulevard.
(Ord. No. 41,828, § 3, 5-10-05)

Moose Avenue, at its intersection with Elk Avenue.
(Code 1958, § 29-351.25)

Reserved.
(Code 1958, § 29-351.25-1; Ord. No. 44,584, § 1, 2-28-12)

Reserved.
(Code 1958, § 29-351.26; Ord. No. 47,796, § 1, 10-22-19)

Reserved.
(Code 1958, § 29-351.28; Ord. No. 42,095, § 1 11-29-05; Ord. No. 43,358, § 5, 2-3-09; Ord. No. 47,796, § 1, 10-22-19)

Reserved.
(Code 1958, § 29-351.28-1; Ord. No. 47,796, § 1, 10-22-19)

Newport Avenue, at its intersection with Kennon Avenue.
(Ord. No. 40,791, § 3, 7-30-02)

Newport Avenue, at its intersection with Rhode Island Avenue.
(Ord. No. 37,042, § 1, 10-27-92; Ord. No. 38,390, § 1, 5-28-96; Ord. No. 40,460, § 5, 9-11-01)

Reserved.
(Code 1958, § 29-351.29; Ord. No. 39,321, § 1, 9-22-98; Ord. No. 42,200, § 2, 3-7-06; Ord. No. 49,657, § 1, 7-9-24)

Norvella Court, at its intersection with Norvella Avenue.
(Code 1958, § 29-351.30)

Oak Avenue at its intersection with Riverside Drive.
(Ord. No. 40,633, § 9, 3-19-02)

Oakmont Court, at its intersection with Oakmont Drive.
(Ord. No. 40,460, § 5, 9-11-01)

Reserved.
(Code 1958, § 29-351.31; Ord. No. 47,062, § 1, 11-21-17)

Orion Avenue, at its intersection with Huntsman Road.
(Ord. No. 37,583, § 2, 4-19-94)

Palem Road, at Quail Street.
(Ord. No. 30,322, § 1, 3-11-80)

Pascal Place, at its intersection with Prince Avenue.
(Ord. No. 37,957, § 3, 4-2-95)

Reserved.
(Code 1958, § 29-351.33; Ord. No. 48,078, § 1, 7-14-20)

Reserved.
(Code 1958, § 29-351.34; Ord. No. 48,078, § 1, 7-14-20)

Pendleton Street, at its intersection with Patrick Street.
(Ord. No. 41,310, § 4, 2-10-04)

Pennington Road, at its intersection with Naval Base Road.
(Code 1958, § 29-351.34-1)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Pilot Avenue, at its intersection with Jefferson Court.
(Ord. No. 36,793, § 1, 4-14-92)

Pine Grove Avenue, at its intersection with Huntsman Road.
(Ord. No. 46,349, § 6, 4-26-16)

Pioneer Avenue, at its intersection with Godfrey Avenue.
(Code 1958, § 29-351.35-1)

Pleasant Avenue, as to westbound traffic, at its intersection with the easternmost end of Pleasant Avenue Park.
(Ord. No. 46,349, § 6, 4-26-16)

Pope Avenue, at its intersection with Argonne Avenue.
(Ord. No. 39,635, § 2, 6-22-99)

Pope Avenue, at its intersection with Bapaume Avenue.
(Ord. No. 37,887, § 1, 2-14-95)

Production Road, at its intersection with Village Avenue.
(Code 1958, § 29-351.37)

Quarantine Road, at its intersection with Cedar Lane.
(Ord. No. 46,071, § 1, 9-15-15)

Red Brook Road, at its intersection with Banning Road.
(Ord. No. 48,476, § 3, 8-24-21)

Red Brook Road, at its intersection with Skyline Drive.
(Ord. No. 31,470, § 1, 12-15-81)

Redgate Avenue, at its intersection with the median opening, which is located approximately 250 feet west of Orapax Street.
(Ord. No. 34,746, § 1, 10-13-87)

Revere Drive, at its intersection with Riverwood Road.
(Ord. No. 46,558, § 1, 9-13-16)

Rhode Island Avenue, at its intersection with Newport Avenue.
(Ord. No. 40,460, § 5, 9-11-01)

Ridgeley Point at its intersection with South Ridgeley Road.
(Ord. No. 44,420, § 3, 10-25-11)

Riverwood Road, at its intersection with Revere Drive.
(Ord. No. 46,558, § 1, 9-13-16)

Reserved.
(Ord. No. 36,594, § 1, 10-15-91; Ord. No. 44,317, § 1, 7-12-11)

Rockbridge Avenue, at its intersection with Carillo Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Rolfe Avenue, at its intersection with Buckingham Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Rolfe Avenue, at its intersection with Catalpa Street.
(Ord. No. 46,071, § 1, 9-15-15)

Rolfe Avenue, at its intersection with Magnolia Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Roxboro Road, at its intersection with Dixie Drive.
(Ord. No. 44,317, § 2, 7-12-11)

Seay Avenue, at its intersection with Scott Street.
(Ord. No. 38,835, § 3, 7-15-97)

Reserved.
(Ord. No. 41,358, § 8, 4-6-04; Ord. No. 46,675, § 1, 12-13-16)

Second Street, at its intersection with Woodis Street.
(Ord. No. 41,358, § 8, 4-6-04)

Selma Avenue, at its intersection with Tifton Street.
(Ord. No. 47,062, § 3, 11-21-17)

Sheppard Avenue, as to westbound traffic at its intersection with Capeview Avenue.
(Ord. No. 44,807, § 1, 8-28-12)

Shirland Avenue, northbound at its intersection with North Shore Road.
(Ord. No. 37,913, § 2, 3-14-95; Ord. No. 41,113, § 5, 7-22-03)

Shirley Avenue, for westbound traffic, at its intersection with Spotswood Avenue.
(Ord. No. 47,902, § 5, 2-25-20)

Sloane Street, at its intersection with Orange Avenue.
(Ord. No. 36,059, § 1, 6-12-90)

Somme Avenue, at its intersection with Alsace Avenue.
(Ord. No. 37,583, § 2, 4-19-94)

Somme Avenue at its intersection with Silber Road.
(Ord. No. 45,557, § 4, 5-20-14)

Spaulding Drive, at its intersection with Tifton Street.
(Ord. No. 47,062, § 3, 11-21-17)

St. Mihiel Avenue, at its intersection with Pope Avenue.
(Ord. No. 37,583, § 2, 4-19-94)

Stoney Point North at its intersection with Stoney Point South.
(Ord. No. 44,420, § 3, 10-25-11)

Stuart Circle, at its intersection with Poplar Hall Drive.
(Ord. 37,818, § 1, 11-22-94)

Studeley Avenue, at its intersection with Longwood Drive.
(Ord. No. 46,071, § 1, 9-15-15)

Studeley Avenue, at its intersection with Magnolia Avenue.
(Ord. No. 46,071, § 1, 9-15-15)

Sunset Drive, at its intersection with Chanelka Road.
(Ord. 37,788, § 1, 10-11-94;Ord. No. 40,925, § 1, 1-14-03; Ord. No. 43,285, § 4, 11-18-08)

Sussex Place, at its intersection with Eastwood Terrace.
(Ord. No. 46,071, § 1, 9-15-15)

Sycamore Street, at its intersection with Waltham Street.
(Ord. No. 43,358, § 5, 2-3-09)

Tarrant Street, at its intersection with Harrell Street.
(Code 1958, § 29-351.43-1)

Thurston Street, as to northbound traffic, at its intersection with Norvella Avenue.
(Code 1958, § 29-351.48)

Tidewater Drive east service or frontage road, as to northbound traffic, at its intersection with Olney Road.
(Code 1958, § 29-351.49)

Tuttle Avenue, at its intersection with George Street.
(Code 1958, § 29-351.50)

University Drive, at its intersection with Tifton Street.
(Ord. No. 42,426, § 3, 10-3-06)

Upper Brandon Place, at its intersection with Buckingham Avenue.
(Ord. No. 37,340, § 1, 7-20-93)

Upper Brandon Place, at its intersection with Westmoreland Avenue.
(Ord. No. 37,340, § 1, 7-20-93)

Vimy Ridge Avenue, at its section with Pope Avenue.
(Ord. No. 37,583, § 2, 4-19-94)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for eastbound traffic from Virginia Beach Boulevard, such entrance being located at Azalea Garden Road.
(Code 1958, § 29-351.52-1)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for eastbound traffic from Virginia Beach Boulevard, such entrance being located at Ingleside Road.
(Code 1958, § 29-351.52-7)

Virginia Beach Boulevard service or frontage road, at its intersection with an entrance to such service or frontage road for eastbound traffic from Woodland Avenue.
(Ord. No. 36,559, § 1, 9-10-91)

Reserved.
(Code 1958, § 29-351.61; Ord. No. 46,968, § 2, 9-12-17)

Walker Avenue, at its intersection with Craig Street.
(Code 1958, § 29-351.62)

Walnut Street, at its intersection with Dodson Street.
(Code 1958, § 29-351.63-1)

Wedgefield Avenue, at its intersection with Fontaine Avenue.
(Code 1958, § 29-351.64, Ord. No. 34,155, § 2, 9-24-86; Ord. No. 37,377, § 1, 8-24-93)

West Mayflower Road, at its intersection with Virginia Avenue.
(Code 1958, § 29-351.65)

Westmoreland Avenue, at its intersection with 49th Street.
(Ord. No. 46,071, § 1, 9-15-15)

Whitehead Avenue, at its intersection with Fauquier Street.
(Ord. No. 47,796, § 4, 10-22-19)

Reserved.
(Code 1958, § 29-351.67; Ord. No. 48,078, § 1, 7-14-20)

Winder Drive, at its intersection with Alsace Avenue.
(Code 1958, § 29-351.66)

Winn Lane, at its intersection with Hunters Chase.
(Ord. No. 47,062, § 3, 11-21-17)

Reserved.
(Ord. No. 40,363, § 4, 6-12-01; Ord. No. 49,007, § 1, 11-29-22)

Woodbury Avenue, at its intersection with Longwood Drive.
(Ord. No. 46,071, § 1, 9-15-15)

Workwood Road, at its intersection with Tifton Street.
(Ord. No. 47,062, § 3, 11-21-17)

Yarmouth Street, at its intersection with Mowbray Arch.
(Code 1958, § 29-351.69)

(Ord. No. 49,170, § 1, 5-9-23; Ord. No. 49,657, § 1, 7-9-24)

Cross reference—Yield intersections at airport, § 4-35.

State law references—Authority of city to designate yield intersections, Code of Virginia, § 46.2-1300; duty of drivers approaching a yield sign, § 46.2-823.

Sec. 25-654. Stop intersections generally.

Generally. The city manager is hereby authorized and directed to erect and maintain, at the intersections designated in the following

subsections of this section, appropriate stop signs or markers. Except as otherwise provided in this

section, the driver of every vehicle proceeding on the street first designated in the following subsections of this section shall, immediately before crossing or entering the second street designated in such subsections, bring this vehicle to a complete stop and, upon crossing or entering such second designated street, shall yield the right-of-way to vehicles approaching thereon, when appropriate stop signs or markers are in place. When intersections are so designated as to require a four-way stop, and more than one vehicle arrives at such intersection simultaneously, then the vehicle having the other on its left shall have the right-of-way and shall proceed through the intersection after coming to a full stop.
(Code 1958, §§ 29-101—29-103)

2nd Street, at its intersection with Front Street.
(Ord. No. 46,675, § 3, 12-13-16)

13th Street, at its intersection with Armistead Avenue.
(Ord. No. 46,349, § 7, 4-26-16)

14th Street, at its intersection with Armistead Avenue.
(Ord. No. 46,349, § 7, 4-26-16)

15th Street, at its intersection with DeBree Avenue.
(Code 1958, § 29-191)

15th Street, at its intersection with Moran Avenue.
(Code 1958, § 29-192)

16th Street, at its intersection with Armistead Avenue.
(Ord. No. 46,349, § 7, 4-26-16)

17th Street, at its intersection with Armistead Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

17th Street, at its intersection with Moran Avenue.
(Code 1958, § 29-286.43)

19th Street, at its intersection with 19th Bay Street.
(Ord. No. 48,715, § 2, 3-22-22)

19th Street, at its intersection with Armistead Avenue.
(Ord. No. 47,549, § 2, 3-5-19)

19th Street, at its intersection with DeBree Avenue.
(Code 1958, § 29-281)

19th Street, at its intersection with Omohundro Avenue.
(Code 1958, § 29-282)

20th Street, at its intersection with DeBree Avenue.
(Code 1958, § 29-286.781)

20th Street, at its intersection with Manteo Street.
(Code 1958, § 29-286.80; Ord. No. 31,050, § 2, 3-24-81; Ord. No. 43,211, § 2, 9-9-08)

20th Street, at its intersection with Omohundro Avenue.
(Ord. No. 44,584, § 5, 2-28-12)

21st Street, at its intersection with Armistead Avenue.
(Code 1958, § 29-286.83)

22nd Street, at its intersection with Omohundro Avenue.
(Code 1958, § 29-286.86)

24th Street, at its intersection with 25th Street.
(Ord. No. 36,735, § 1, 2-11-92)

24th Street, at its intersection with Gosnold Avenue.
(Ord. No. 37,913, § 3, 3-14-95)

24th Street, at its intersection with Morton Avenue.
(Ord. No. 39,079, § 4, 3-3-98)

24th Street, at its intersection with Omohundro Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

25th Street, at its intersection with Omohundro Avenue.
(Code 1958, § 29-286.81)

27th Street, at its intersection with Elkhorn Avenue.
(Ord. No. 39,321, § 3, 9-22-98)

28th Street, at its intersection with Debree Avenue.
(Ord. No. 38,721, § 2, 4-22-97)

28th Street, at its intersection with Fawn Street.
(Ord. No. 39,321, § 3, 9-22-98)

28th Street, at its intersection with Gosnold Avenue.
(Ord. No. 45,049, § 6, 3-26-13)

28th Street, at its intersection with Leo Street.
(Ord. No. 39,079, § 4, 3-3-98)

28th Street, at its intersection with Newport Avenue.
(Ord. No. 45,049, § 6, 3-26-13)

28th Street, at its intersection with Waverly Way.
(Ord. No. 41,589, § 4, 9-28-04)

29th Street, at its intersection with DeBree Avenue.
(Ord. No. 29,724, § 1, 11-21-78)

29th Street, at its intersection with Gosnold Avenue.
(Ord. No. 45,863, § 6, 2-10-15)

29th Street, at its intersection with Leo Street.
(Ord. No. 41,310, § 5, 2-10-04)

E 29th Street, at its intersection with Leo Street.
(Ord. No. 48,352, § 3, 4-13-21)

30th Street, at its intersection with Debree Avenue.
(Ord. No. 38,835, § 4, 7-15-97)

30th Street, at its intersection with Omohundro Avenue.
(Ord. No. 30,587, § 1, 4-29-80)

31st Street, at its intersection with Debree Avenue.
(Ord. No. 38,583, § 3, 11-26-96)

31st Street, at its intersection with Killam Avenue.
(Code 1958, § 29-286.62)

31st Street, at its intersection with Omohundro Avenue.
(Ord. No. 38,235, § 1, 12-12-95)

32nd Street, at its intersection with Omohundro Avenue.
(Ord. No. 38,235, § 1, 12-12-95)

32nd Street, at its intersection with DeBree Avenue.
(Code 1958, § 29-286.62-1)

33rd Street, at its intersection with DeBree Avenue.
(Ord. No. 29,738, § 1, 11-28-78)

33rd Street, at its intersection with Omohundro Avenue.
(Ord. No. 47,062, § 4, 11-21-17)

34th Street, at its intersection with Debree Avenue.
(Ord. No. 40,192, § 3, 1-9-01)

34th Street, at its intersection with Killam Avenue.
(Code 1958, § 29-286.63)

34th Street, at its intersection with Newport Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

34th Street, at its intersection with Omohundro Avenue.
(Code 1958, § 29-286.64)

35th Street, at its intersection with Bowdens Ferry Road.
(Ord. No. 47,902, § 6, 2-25-20)

36th Street, at its intersection with DeBree Avenue.
(Ord. No. 43,358, § 6, 2-3-09)

36th Street, at its intersection with Killam Avenue.
(Ord. No. 40,247, § 5, 3-20-01)

36th Street, at its intersection with Omohundro Avenue.
(Code 1958, § 29-286.66)

37th Street, at its intersection with Killam Avenue.
(Ord. No. 34,276, § 1, 12-23-86)

37th Street, at its intersection with Bowdens Ferry Road.
(Ord. No. 38,484, § 2, 7-30-96)

38th Street, at its intersection with Bluestone Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

38th Street, at its intersection with Parker Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

39th Street, at its intersection with Bowden's Ferry Road.
(Ord. No. 35,935, § 1, 3-27-90)

39th Street, at its intersection with Columbus Avenue.
(Ord. No. 38,481, § 1, 7-30-96)

39th Street, at its intersection with Elkhorn Avenue.
(Ord. No. 33,300, § 1, 2-12-85)

39th Street, at its intersection with Killam Avenue.
(Code 1958, § 29-286.65)

40th Street, at its intersection with Bowden's Ferry Road.
(Ord. No. 35,935, § 1, 3-27-90)

40th Street, at its intersection with Columbus Avenue.
(Ord. No. 38,481, § 1, 7-30-96)

40th Street, at its intersection with Killam Avenue.
(Code 1958, § 29-194)

40th Street, at its intersection with Elkhorn Avenue.
(Code 1958, § 29-195.1)

40th Street, at its intersection with Parker Avenue.
(Ord. No. 38,484, § 2, 7-30-96)

41st Street, at its intersection with Bowden's Ferry Road.
(Ord. No. 35,935, § 1, 3-27-90)

41st Street, at its intersection with Elkhorn Avenue.
(Code 1958, § 29-197.1)

41st Street, at its intersection with Killam Avenue.
(Code 1958, § 29-198; Ord. No. 44,420, § 4, 10-25-11)

42nd Street, at its intersection with Bluestone Avenue.
(Ord. No. 35,935, § 1, 3-27-90)

42nd Street, at its intersection with Bowden's Ferry Road.
(Ord. No. 35,935, § 1, 3-27-90)

42nd Street, at its intersection with Columbus Avenue.
(Ord. No. 38,481, § 1, 7-30-96)

42nd Street, at its intersection with Elkhorn Avenue.
(Code 1958, § 29-200.1)

42nd Street, at its intersection with Killam Avenue.
(Ord. No. 41,637, § 2, 11-16-04)

42nd Street, at its intersection with Parker Street.
(Ord. No. 38,484, § 2, 7-30-96)

43rd Street, at its intersection with Elkhorn Avenue.
(Ord. No. 48,405, § 1, 6-8-21)

43rd Street, at its intersection with Killam Avenue.
(Code 1958, § 29-201)

43rd Street, at its intersection with Monarch Way.
(Ord. No. 42,635, § 2, 4-24-07)

44th Street, at its intersection with Elkhorn Avenue.
(Code 1958, § 29-199)

44th Street, at its intersection with Killam Avenue.
(Ord. No. 41,637, § 2, 11-16-04)

44th Street, at its intersection with Parker Avenue.
(Code 1958, § 29-200)

45th Street, at its intersection with Elkhorn Avenue.
(Code 1958, § 29-196)

45th Street, at its intersection with Killam Avenue.
(Code 1958, § 29-196.1)

45th Street, at its intersection with Monarch Way.
(Ord. No. 42,635, § 2, 4-24-07)

45th Street, at its intersection with Parker Avenue.
(Code 1958, § 29-197)

46th Street, at its intersection with Killam Avenue.
(Ord. No. 41,637, § 2, 11-16-04)

46th Street, at its intersection with Monarch Way.
(Ord. No. 41,637, § 2, 11-16-04)

47th Street at its intersection with Killam Avenue.
(Ord. No. 44,420, § 4, 10-25-11)

48th Street, at its intersection with Killam Avenue.
(Ord. No. 39,635, § 3, 6-22-99)

49th Street, at its intersection with Killam Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

50th Street, at its intersection with Killam Avenue.
(Ord. No. 40,515, § 2, 11-13-01)

2nd Bay Street, at its intersection with Pretty Lake Avenue.
(Code 1958, § 29-286.40)

3rd Bay Street, at its intersection with Pretty Lake Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

4th Bay Street, at its intersection with Pretty Lake Avenue.
(Ord. No. 43,069, § 4, 4-29-08)

6th Bay Street, at its intersection with Pretty Lake Avenue.
(Code 1958, § 29-186.41-1)

6th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.48)

7th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.441)

7th Bay Street, at its intersection with Pretty Lake Avenue.
(Ord. No. 37,844, § 1, 12-27-94)

8th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-177)

9th Bay Street, at its intersection with Pleasant Avenue.
(Ord. No. 34,777, § 1, 11-10-87)

10th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.59)

10th Bay Street, at its intersection with Pretty Lake Avenue.
(Code 1958, § 29-286.59-1)

11th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-178)

11th Bay Street, at its intersection with Pretty Lake Avenue.
(Code 1958, § 29-178.1)

12th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.76)

13th Bay Street, at its intersection with Pleasant Avenue.
(Ord. No. 48,715, § 2, 3-22-22)

14th Bay Street, at its intersection with Pleasant Avenue.
(Ord. No. 38,319, § 2, 3-26-96)

15th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-190)

17th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.42)

18th Bay Street, at its intersection with Pleasant Avenue.
(Ord. No. 38,319, § 2, 3-26-96)

20th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.77)

21st Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.82)

22nd Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.85)

23rd Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.86-1)

24th Bay Street, at its intersection with Pleasant Avenue.
(Code 1958, § 29-286.4)

25th Bay Street, at its intersection with East Beach Drive.
(Ord. No. 42,890, § 5, 10-30-07)

25th Bay Street, at its intersection with Hammock Lane.
(Ord. No. 42,765, § 4, 7-24-07)

25th Bay Street, at its intersection with Pleasant Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

26th Bay Street, at its intersection with East Beach Drive.
(Ord. No. 42,890, § 5, 10-30-07)

26th Bay Street, at its intersection with Hammock Lane.
(Ord. No. 42,765, § 4, 7-24-07)

26th Bay Street, at its intersection with Pleasant Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

27th Bay Street, at its intersection with Coventry Lane, northbound traffic only.
(Ord. No. 42,890, § 5, 10-30-07)

27th Bay Street, at its intersection with Pleasant Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

27th Bay Street at its intersection with Hammock Lane.
(Ord. No. 44,037, § 5, 11-9-10)

Reserved.
(Ord. No. 42,890, § 5, 10-30-07; Ord. No. 45,557, § 2, 5-20-14)

28th Bay Street, at its intersection with Pleasant Avenue.

28th Bay Street, at its intersection with Willben Street.
(Ord. No. 42,890, § 5, 10-30-07)

28th Bay Street at its intersection with Hammock lane.
(Ord. No. 44,037, § 5, 11-9-10)

29th Bay Street at its intersection with Hammock Lane.
(Ord. No. 44,037, § 5, 11-9-10)

29th Bay Street at its intersection with Willben Street.
(Ord. No. 44,037, § 5, 11-9-10)

30th Bay Street, at its intersection with Pleasant Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

4th View Street, service or frontage road, at its intersection with Staten Street.
(Ord. No. 42,426, § 4, 10-3-06)

10th View Street at its intersection with Little Bay Avenue.
(Ord. No. 44,037, § 5, 11-9-10)

12th View Street at its intersection with Little Bay Avenue.
(Ord. No. 44,037, § 5, 11-9-10)

"A" Avenue, at its intersection with Hunter Street.
(Ord. No. 39,856, § 2, 2-1-00; Ord. No. 39,911, § 4, 4-11-00)

Abbey Road, at its intersection with Dunkirk Avenue.
(Ord. No. 40,633, § 10, 3-19-02)

Abbey Road, at its intersection with Somme Avenue.
(Ord. No. 40,633, § 10, 3-19-02)

Abilene Avenue, at its intersection with Newark Avenue.
(Ord. No. 42,945, § 1, 12-18-07)

Abingdon Circle, at its intersection with Central Avenue.
(Ord. No. 39,859, § 3, 2-1-00; Ord. No. 39,911, § 4, 4-11-00)

Adair Avenue, at its intersection with Clarence Street.
(Ord. 37,821, § 1, 11-22-94)

Adderly Street, at its intersection with Honaker Avenue.
(Code 1958, § 29-104)

Adderley Street, at its intersection with Wellman Street.
(Ord. No. 45,180, § 3, 7-9-13)

Albert Avenue, at its intersection with Glenoak Drive.
(Ord. No. 43,019, § 2, 3-18-08)

Albert Avenue, at its intersection with Pierce Street.
(Ord. No. 43,019, § 2, 3-18-08)

Albert Avenue, at its intersection with Pugh Street.
(Ord. No. 39,964, § 5, 5-23-00)

Alder Street, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Alder Street, at its intersection with Denver Avenue.
(Ord. No. 36,390, § 1, 4-9-91)

Alder Street, at its intersection with Larkin Street.
(Ord. No. 36,390, § 1, 4-9-91)

Alexander Street, at its intersection with Strand Street.
(Code 1958, § 29-105)

Alfred Lane, at its intersection with Morwin Street.
(Ord. No. 44,807, § 2, 8-28-12)

Alma Drive, at its intersection with Merritt Street.
(Ord. No. 43,445, § 3, 5-19-09)

Almeda Avenue, as to northbound traffic, at its intersection with Henneman Drive.
(Ord. No. 38,979, § 4, 11-25-97)

Amelia Street, at its intersection with Fremont Street.
(Ord. No. 39,856, § 2, 2-1-00; Ord. No. 39,911, § 4, 4-11-00)

Alsace Avenue, at its intersection with Elmore Place.
(Ord. No. 39,964, § 5, 5-23-00)

Alsace Avenue, at its intersection with Peronne Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Alsace Avenue, at its intersection with Vimy Ridge Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Amherst Street, at its intersection with Jersey Avenue.
(Code 1958, § 29-106)

Appomattox Street, at its intersection with Fairfield Street.
(Ord. No. 48,524, § 3, 10-12-21)

Appomattox Street, at its intersection with Louisa Street.
(Ord. No. 40,925, § 4, 1-14-03)

Ara Street, at its intersection with Cape View Avenue.
(Ord. No. 49,007, § 4, 11-29-22)

Ara Street, at its intersection with Grove Avenue.
(Ord. No. 42,355, § 4, 8-15-06)

Ardmore Road, at its intersection with Brentwood Drive.
(Code 1958, § 29-107)

Ardmore Road, at its intersection with Dovercourt Road.
(Ord. No. 43,358, § 6, 2-3-09)

Argall Avenue, at its intersection with Buckingham Avenue.
(Ord. No. 40,515, § 2, 11-13-01)

Argall Avenue, at its intersection with Cedar Lane.
(Ord. No. 40,515, § 2, 11-13-01)

Argonne Avenue, at its intersection with Pershing Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Argonne Avenue at its intersection with Tait Terrace.
(Ord. No. 45,557, § 5, 5-20-14)

Argyle Avenue, at its intersection with Daniel Avenue.
(Ord. No. 41,639, § 3, 11-16-04)

Arizona Avenue, at its intersection with Hanbury Street.
(Ord. No. 42,200, § 3, 3-7-06)

Arizona Avenue, at its intersection with Lafayette Boulevard.
(Code 1958, § 29-108)

Arkansas Avenue, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Arkansas Avenue, at its intersection with Denver Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Armfield Avenue, at its intersection with Armfield Circle.
(Ord. No. 36,383, § 1, 4-9-91)

Armistead Avenue, at its intersection with Eighteenth Street.
(Code 1958, § 29-109)

Armistead Bridge Road, as to southbound traffic, at its intersection with Gates Avenue.
(Ord. No. 41,828, § 4, 5-10-05)

Armistead Avenue, at its intersection with Twentieth Street.
(Code 1958, § 29-110)

Armistead Avenue, at its intersection with 24th Street.
(Ord. No. 39,843, § 1, 5-26-92)

Armistead Avenue, at its intersection with 25th Street.
(Ord. No. 36,843, § 1, 5-26-92)

Armistead Bridge Road, at its intersection with Old Brandon Avenue.
(Ord. No. 39,758, § 4, 11-9-99)

Armistead Bridge Road, at its intersection with Gates Avenue.
(Code 1958, § 29-111)

Arthur Circle, at its intersection with Darden Street.
(Ord. No. 40,633, § 10, 3-19-02)

Ashland Avenue, at its intersection with Elmere Place.
(Ord. No. 46,968, § 8, 9-12-17; Ord. No. 48,634, § 2, 1-25-22)

Ashlawn Drive, at its intersection with Galveston Boulevard.
(Code 1958, § 29-112)

Ashlawn Drive, at its intersection with Simons Drive.
(Code 1958, § 29-113)

Ashlawn Drive, at its intersection with Van Patten Road.
(Ord. No. 42,635, § 2, 4-24-07)

Ashlawn Drive, at its intersection with Van Patten Road.
(Ord. No. 42,765, § 4, 7-24-07)

Ashlawn Drive, at its intersection with West Glen Road.
(Code 1958, § 29-114)

Aspin Street, at its intersection with Denver Avenue.
(Ord. No. 36,390, § 1, 4-9-91)

Atlans Street, at its intersection with Hillside Avenue.
(Ord. No. 42,635, § 2, 4-24-07)

Atlans Street, at its intersection with Leicester Avenue.
(Ord. No. 40,235, § 1, 2-27-01)

Atlans Street, at its intersection with Modoc Avenue.
(Code 1958, § 29-115)

Atterbury Street, at its intersection with Danwood Drive.
(Ord. No. 42,200, § 3, 3-7-06)

Atterbury Street, at its intersection with Glen Avenue.
(Code 1958, § 29-116)

Atwood Avenue, at its intersection with Ridgewell Avenue.
(Ord. No. 47,062, § 4, 11-21-17)

Auburn Avenue, at its intersection with West Tanners Creek Drive.
(Ord. No. 40,235, § 1, 2-27-01)

Avenue E, at its intersection with Evelyn T Butts Avenue.
(Ord. No. 49,007, § 4, 11-29-22)

Avenue F, at its intersection with Evelyn T Butts Avenue.
(Ord. No. 49,007, § 4, 11-29-22)

Avenue G, at its intersection with Evelyn T Butts Avenue.
(Ord. No. 49,007, § 4, 11-29-22)

Avenue I, at its intersection with Merritt Street.
(Ord. No. 34,194, § 1, 10-28-86)

Avenue J, at its intersection with Evelyn T Butts Avenue.
(Code 1958, § 29-117; Ord. No. 35,855, § 3, 1-9-90; Ord. No. 40,633, § 10, 3-19-02)

Avenue J, at its intersection with Merritt Street.
(Ord. No. 40,633, § 10, 3-19-02)

Avon Road, at its intersection with Lowell Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Ayliff Road, at its intersection with Beamon Road.
(Ord. No. 40,925, § 4, 1-14-03)

Azalea Garden Road, at its intersection with Dominion Avenue.
(Code 1958, § 29-118)

"B" Avenue, at its intersection with Hunter Street.
(Ord. No. 39,856, § 2, 2-1-00)

"B" Avenue, at its intersection with Sutton Street.
(Ord. No. 45,863, § 6, 2-10-15)

Bagnall Road, at its intersection with Wide Street.
(Ord. No. 49,078, § 1, 2-14-23)

Bainbridge Boulevard, at its intersection with South Main Street.
(Ord. No. 35,231, § 1, 9-13-88)

Baldwin Avenue, at its intersection with Leigh Street.
(Ord. No. 40,791, § 4, 7-30-02)

Baldwin Avenue, at its intersection with Manteo Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Baldwin Avenue at its intersection with Matoaka Street.
(Ord. No. 44,316, § 5, 7-12-11)

Baldwin Avenue, at its intersection with Stockley Gardens.
(Ord. No. 45,180, § 3, 7-9-13)

Ball Avenue, at its intersection with Tulane Road.
(Code 1958, § 29-119)

Baltimore Street, at its intersection with Armfield Avenue.
(Ord. No. 36,197, § 1, 9-18-90)

Baltimore Street, at its intersection with Mt. Pleasant Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Balview Avenue, at its intersection with Beach View Street.
(Ord. No. 42,635, § 2, 4-24-07)

Balview Avenue, at its intersection with Warwick Avenue.
(Ord. No. 42,355, § 4, 8-15-06)

Bancker Road, at its intersection with Van Patten Road.
(Ord. No. 43,018, § 3, 3-18-08)

Bank Street, at its intersection with Main Street.
(Ord. No. 37,205, § 1, 4-27-93)

Bankhead Avenue, at its intersection with Essex Circle.
(Ord. No. 41,639, § 3, 11-16-04)

Bankhead Avenue, at its intersection with Hyde Circle.
(Ord. No. 41,639, § 3, 11-16-04)

Bankhead Avenue, at its intersection with Lenoir Circle.
(Ord. No. 45,415, § 7, 1-14-14)

Bankhead Avenue, at its intersection with Pamlico Circle.
(Ord. No. 41,639, § 3, 11-16-04)

Banning Road, at its intersection with Gardner Drive.
(Ord. No. 36,712, § 1, 1-14-92)

Bapaume Avenue, at its intersection with Pershing Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Bapaume Avenue, at its intersection with Alsace Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Bapaume Avenue, at its intersection with Bellevue Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Bapaume Avenue, at its intersection with Columbia Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Bapaume Avenue, at its intersection with Dunkirk Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Barney Street, at its intersection with East Lexington Street.
(Ord. No. 39,856, § 2, 2-1-00)

Barnhollow Drive, at its intersection with Bayberry Drive.
(Ord. No. 43,211, § 2, 9-9-08)

Barnhollow Road, at its intersection with Poplar Hall Drive.
(Ord. No. 38,955, § 1, 10-28-97)

Barnhollow Road, at its intersection with Poplar Hall Drive.
(Ord. No. 41,113, § 6, 7-22-03)

Barraud Avenue, at its intersection with Rugby Street.
(Ord. No. 38,485, § 2, 7-30-96)

Barre Street, at its intersection with Rugby Street.
(Ord. No. 29,963, § 1, 6-12-79)

Barre Street, at its intersection with Rugby Street.
(Ord. No. 40,883, § 3, 11-12-02)

Bartee Street, at its intersection with Glenrock Road.
(Ord. No. 38,842, § 2, 7-15-97)

Bartee Street, at its intersection with Frizzell Avenue.
(Ord. No. 39,079, § 4, 3-10-98)

Bartee Street, at its intersection with Honaker Avenue.
(Ord. No. 39,079, § 4, 3-10-98)

Battersea Road, at its intersection with Hammett Parkway.
(Ord. No. 42,910, § 1, 11-20-07)

Battersea Road, at its intersection with Sherwood Place.
(Ord. No. 43,018, § 3, 3-18-08)

Baupaume Avenue, at its intersection with Pope Avenue.
(Ord. No. 47,478, § 3, 12-11-18)

Bayberry Drive, at its intersection with Brookville Road.
(Ord. No. 38,955, § 1, 10-28-97; Ord. No. 40,092, § 1, 8-22-00; Ord. No. 41,113, § 6, 7-22-03)

Bayberry Drive, at its intersection with Poplar Hall Drive.
(Ord. No. 39,705, § 5, 8-24-99)

Baychester Avenue, at its intersection with Willow Terrace.
(Ord. No. 49,314, § 1, 9-12-23)

Bayne Avenue, at its intersection with Godfrey Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Bayne Avenue, at its intersection with Merrimac Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Bayne Avenue at its intersection with Norchester Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Baywood Drive, at its intersection with Dominion Avenue.
(Ord. No. 40,235, § 1, 2-27-01)

Beachmont Avenue, at its intersection with Godfrey Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Beachmont Avenue at its intersection with Majestic Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Beachmont Avenue, at its intersection with Norchester Avenue.
(Ord. No. 42,539, § 2, 1-30-07)

Beachmont Avenue at its intersection with Oaklawn Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Beachmont Avenue, at its intersection with Parish Road.
(Ord. No. 42,890, § 5, 10-30-07)

Beachmont Avenue, at its intersection with Woodland Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Beaumont Street, at its intersection with Inwood Avenue/Jana Court.
(Ord. No. 47,277, § 2, 6-26-18)

Beach View Street, at its intersection with Devon Street.
(Ord. No. 35,112, § 1, 6-21-88)

Beach View Street, at its intersection with Hillside Avenue.
(Code 1958, § 29-119.1)

Beach View Street, at its intersection with Modoc Avenue.
(Ord. No. 39,079, § 4, 3-10-98)

Beach View Street, at its intersection with Plymouth Street.
(Ord. No. 44,253, § 1, 5-24-11)

Beach View Street, at its intersection with Virgilina Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

Beacon Hill Circle, at its easternmost terminus with Poplar Hall Drive.
(Ord. No. 40,092, § 6, 8-22-00)

Beacon Hill Circle, western terminus, at its intersection with Poplar Hall Drive.
(Ord. No. 41,113, § 6, 7-22-03)

Beamon Road, at its intersection with Herbert Street.
(Code 1958, § 29-120)

Beatty Street, at its intersection with Barbara Drive.
(Ord. No. 47,478, § 3, 12-11-18)

Beaumont Street, at its intersection with Modoc Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Beck Street, at its intersection with Stratford Street.
(Ord. No. 44,179, § 2, 3-22-11)

Beckett Street, at its intersection with Brentwood Drive.
(Code 1958, § 29-121)

Bedford Avenue, at its intersection with Monroe Place.
(Ord. No. 44,807, § 2, 8-28-12; Ord. No. 45,049, § 6, 3-26-13)

Beechwood Avenue, at its intersection with Evergreen Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Beechwood Avenue, at its intersection with Glen Myrtle Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Beechwood Avenue, at its intersection with Laurel Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Bell Street, at its intersection with Hampshire Avenue.
(Ord. No. 44,707, § 3, 6-12-12)

Bell Street, at its intersection with Norvella Avenue.
(Ord. No. 42,964, § 3, 1-8-08)

Bell Street, at its intersection with Texas Avenue.
(Ord. No. 42,964, § 3, 1-8-08)

Bell Street, at its intersection with Windermere Avenue.
(Ord. No. 42,964, § 3, 1-8-08)

Belgrave Avenue, at its intersection with Orange Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Belgrave Avenue, at its intersection with Gilpin Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Belgrave Avenue, at its intersection with Lorengo Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Bellamy Avenue, at its intersection with South Main Street.
(Ord. No. 38,979, § 4, 11-25-97)

Bellefield Road, at its intersection with Eastover Road.
(Ord. No. 41,828, § 4, 5-10-05)

Bellefield Road, at its intersection with Pickett Road.
(Ord. No. 41,828, § 4, 5-10-05)

Bellefield Road, at its intersection with Piney Branch Road.
(Ord. No. 38,979, § 4, 11-25-97)

Bellefield Road, at its intersection with Pleasant Valley Road.
(Ord. No. 41,828, § 4, 5-10-05)

Bellevue Avenue, at its intersection with Argonne Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Bellevue Avenue, at its intersection with Lorraine Avenue.
(Ord. No. 40,883, § 3, 11-12-02)

Bellevue Avenue, at its intersection with Racine Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Bellevue Avenue, at its intersection with Saint Mihiel Avenue.
(Ord. No. 48,905, § 2, 9-13-22)

Benton Street, at its intersection with Glenrock Road.
(Ord. No. 44,540, § 1, 1-24-12)

Benton Street, at its intersection with Honaker Avenue.
(Ord. No. 39,079, § 4, 3-10-98)

Benton Street, at its intersection with Hicks Avenue.
(Ord. No. 44,540, § 1, 1-24-12)

Berry Hill Road, at its intersection with Poplar Hall Drive.
(Ord. No. 41,113, § 6, 7-22-03)

Bessie Street, at its intersection with Norvella Avenue.
(Ord. No. 39,321, § 3, 9-22-98)

Bickel Street, at its intersection with Norchester Street.
(Code 1958, § 29-122)

Bill Street, at its intersection with Pythian Avenue.
(Ord. No. 39,855, § 3, 2-1-00)

Billings Street, at its intersection with Taggart Street.
(Ord. No. 39,911, § 4, 4-11-00)

Biltmore Road, at its intersection with Stockton Road.
(Ord. No. 40,092, § 6, 8-22-00)

Birch Street, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Birch Street, at its intersection with Denver Avenue.
(Code 1958, § 29-123)

Birmingham Avenue, at its intersection with Doris Drive.
(Ord. No. 39,481, § 2, 2-23-99)

Birmingham Avenue, at its intersection with Fayver Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Birmingham Avenue, at its intersection with Ruthven Street.
(Ord. No. 36,290, § 1, 7-14-92)

Birmingham Avenue, at its intersection with Sheryl Drive.
(Ord. No. 39,481, § 2, 2-23-99)

Birmingham Avenue, at its intersection with Victory Drive.
(Ord. No. 42,765, § 4, 7-24-07)

Blair Avenue, at its intersection with Dupont Circle.
(Ord. No. 43,156, § 5, 7-1-08)

Blair Avenue, at its intersection with Jason Avenue.
(Ord. No. 40,883, § 3, 11-12-02)

Bland Street, at its intersection with Hyde Circle.
(Ord. No. 33,421, § 1, 4-30-85; Ord. No. 49,657, § 4, 7-9-24)

Blow Street, at its intersection with Redgate Avenue.
(Code 1958, § 29-123.1)

Blow Street, at its intersection with Westover Avenue.
(Code 1958, § 29-124)

Bluestone Avenue, at its intersection with 26th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Bluestone Avenue, at its intersection with 37th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Bluestone Avenue, at its intersection with 39th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Bluestone Avenue, at its intersection with 41st Street.
(Ord. No. 38,484, § 2, 7-30-96)

Bluestone Avenue, at its intersection with 44th Street.
(Code 1958, § 29-125)

Bluestone Avenue, at its intersection with 43rd Street.
(Code 1958, § 29-126)

Bluestone Avenue, at its intersection with Monterey Avenue.
(Ord. No. 38,583, § 3, 11-26-96)

Boissevain Avenue, at its intersection with Claremont Avenue.
(Ord. No. 41,113, § 6, 7-22-03)

Boissevain Avenue, at its intersection with Orapax Street.
(Ord. No. 46,558, § 2, 9-13-16)

Boissevain Avenue, at both of its intersections with Stockley Gardens.
(Ord. No. 47,902, § 6, 2-25-20)

Bolling Avenue, at its intersection with Argall Avenue.
(Ord. No. 47,177, § 5, 3-27-18)

Bolling Avenue, at its intersection with Carillo Avenue.
(Ord. No. 47,177, § 5, 3-27-18)

Bolton Street, at its intersection with Goff Street.
(Ord. No. 31,261, § 1, 7-14-81)

Bolton Street, at its intersection with Rugby Street.
(Ord. No. 44,253, § 1, 5-24-11)

Bolton Street, at its intersection with Wall Street.
(Ord. No. 44,253, § 1, 5-24-11)

Bond Street, at its intersection with Marshall Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Bond Street, at its intersection with Reservoir Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Bonnot Drive, at its intersection with Branch Road.
(Ord. No. 40,633, § 10, 3-19-02)

Bonnot Drive, at its intersection with East Tanners Creek Road.
(Ord. No. 40,633, § 10, 3-19-02)

Bonnot Drive at its intersection with Falkland Drive.
(Ord. No. 44,884, § 3, 10-23-12)

Booth Street, at its intersection with Cecelia Street.
(Ord. No. 40,925, § 4, 1-14-03)

Booth Street, at its intersection with Maltby Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Botetourt Gardens, at its intersection with W. Shirley Avenue.
(Ord. No. 46,113, § 2, 10-27-15)

Botetourt Street, at its intersection with College Place.
(Ord. No. 46,349, § 7, 4-26-16)

Botetourt Street, at its intersection with Mowbray Arch.
(Ord. No. 45,415, § 7, 1-14-14)

Boush Creek Avenue, at its intersection with Glendale Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Bowdens Ferry Road, at its intersection with 35th Street.
(Ord. No. 47,902, § 6, 2-25-20)

Bowdens Ferry Road, at its intersection with 44th Street.
(Code 1958, § 29-127)

Bowdens Ferry Road, at its intersection with 26th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Bowdens Ferry Road, at its intersection with 27th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Bowdens Ferry Road, at its intersection with 35th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Bowdens Ferry Road, as to northbound traffic, at its intersection with 43rd Street.
(Code 1958, § 29-128)

Bowe Place, at its intersection with Dubose Drive.
(Ord. No. 47,939, § 5, 3-24-20)

Bowe Place, at its intersection with E. Virginia Beach Boulevard.
(Ord. No. 47,939, § 5, 3-24-20)

Bower Street, at its intersection with Galt Street.
(Ord. No. 47,177, § 5, 3-27-18)

Bower Street, at its intersection with Sutton Street.
(Ord. No. 48,715, § 2, 3-22-22)

Boyce Drive, at its intersection with Elmore Place.
(Ord. No. 36,560, § 1, 9-10-91)

Brackenridge Avenue, at its intersection with Colonial Avenue.
(Ord. No. 41,038, § 2, 5-13-03)

Bracy Street, at its intersection with Galt Street.
(Code 1958, § 29-129; Ord. No. 35,855, § 3, 1-9-90; Ord. No. 39,856, § 2, 2-1-00; Ord. No. 39,911, § 4, 4-11-00)

Bracey Street, at its intersection with Sutton Street.
(Ord. No. 48,715, § 2, 3-22-22)

Braden Crescent, at its intersection with Kilmer Lane.
(Ord. No. 38,955, § 1, 10-28-97)

Branch Road, at its intersection with East Tanners Creek Drive.
(Ord. No. 47,902, § 6, 2-25-20)

Branch Road, at its intersection with West Tanners Creek Drive.
(Ord. No. 38,955, § 1, 10-28-97; Ord. No. 39,911, § 2, 4-11-00; Ord. No. 40,235, § 1, 2-27-01)

Brandon Avenue, at its intersection with Core Avenue.
(Ord. No. 43,809, § 2, 4-27-10)

Brandon Avenue, at its intersection with Princess Anne Road.
(Code 1958, § 29-130)

Brest Avenue, at its intersection with Alsace Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Brentwood Drive, at its intersection with Becket Street.
(Ord. No. 43,358, § 6, 2-3-09)

Brentwood Drive, at its intersection with Glade Road.
(Ord. No. 43,358, § 6, 2-3-09)

Brest Avenue, at its intersection with Columbia Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Brest Avenue, at its intersection with Pershing Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Briar Hill Road, at its intersection with Brickell Road.
(Ord. No. 41,639, § 3, 11-16-04)

Brickby Road, at its intersection with Galveston Boulevard.
(Ord. No. 42,589, § 5, 3-6-07)

Brickell Road, at its intersection with Briar Hill Road.
(Code, 1958, § 29-131)

Brightley Road, at its intersection with Sunshine Avenue.
(Ord. No. 44,278, § 5, 6-14-11)

Brighton Street, at its intersection with Beachview Street.
(Ord. No. 39,388, § 2, 11-24-98)

Brighton Street, at its intersection with Chester Street.
(Ord. No. 39,388, § 2, 11-24-98)

Brighton Street, at its intersection with Dune Street.
(Ord. No. 39,388, § 2, 11-24-98)

Brighton Street, at its intersection with Warwick Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

Brinda Avenue, at its intersection with Lydia Avenue.
(Ord. No. 39,214, § 1, 6-9-98)

Broadfield Road at its intersection with Grove Avenue
(Ord. No. 45,557, § 5, 5-20-14)

Brockwell Avenue, at its intersection with Bartee Street.
(Ord. No. 44,540, § 1, 1-24-12)

Brockwell Avenue, at its intersection with Adderly Street.
(Ord. No. 39,321, § 3, 9-22-98)

Brookville Road, at its intersection Bayberry Drive.
(Ord. No. 41,639, § 3, 11-16-04)

Brookville Road, at its intersection with Berry Hill Road.
(Ord. No. 40,515, § 2, 11-13-01)

Brookwood Road (Eastern Terminus), at its intersection with Dominion Avenue.
(Ord. No. 40,235, § 1, 2-27-01)

Brookwood Road (Western Terminus), at its intersection with Dominion Avenue.
(Ord. No. 40,235, § 1, 2-27-01)

Brunswick Avenue, at its intersection with Carillo Avenue.
(Ord. No. 40,247, § 5, 3-20-01)

Brunswick Avenue, at its intersection with Monroe Place.
(Ord. No. 46,071, § 2, 9-15-15)

Buchanan Street, at its intersection with Appomattox Street.
(Code 1958, § 29-134)

Buckingham Avenue, at its intersection with Carillo Avenue.
(Ord. No 38,835, § 4, 7-15-97)

Buckingham Avenue, at its intersection with Monroe Place.
(Ord. No. 38,721, § 2, 4-22-97)

Buckingham Street, at its intersection with Jersey Avenue.
(Code 1958, § 29-135)

Buckingham Avenue, at its intersection with Powhatan Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Buckingham Street, at its intersection with Westmoreland Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Buckman Avenue, at its intersection with Orange Avenue.
(Ord. No. 43,211, § 2, 9-9-08)

Buckman Avenue, at its intersection with Saint George Avenue.
(Ord. No. 47,241, § 4, 5-22-18)

Buffalo Avenue, at its intersection with Eagle Avenue.
(Ord. No. 46,968, § 8, 9-12-17)

Burksdale Avenue, at its intersection with Pythian Avenue.
(Ord. No. 39,855, § 3, 2-1-00)

Burksdale Road, at its intersection with Carlton Street.
(Ord. No. 44,278, § 5, 6-14-11)

Burksdale Road, at its intersection with Simons Drive.
(Code 1958, § 29-136)

Burleigh Avenue, at its intersection with Cedar Level Avenue.
(Ord. No. 43,525, § 2, 7-21-09)

Burleigh Avenue, at its intersection with Colonial Avenue.
(Ord. No. 46,272, § 1, 2-23-16)

Burleigh Avenue, at its intersection with Ruthven Avenue.
(Ord. No. 42,765, § 4, 7-24-07)

Bute Street, at its intersection with Botetourt Street.
(Ord. No. 36,415, § 1, 5-14-91)

Bute Street, as to westbound traffic, at its intersection with Charlotte Street.
(Ord. No. 43,293, § 7, 11-25-08)

Cabot Avenue, at its intersection with Clarence Street.
(Ord. 37,821, § 1, 11-22-94)

Calhoun Street, at its intersection with Denhart Street.
(Ord. No. 39,911, § 4, 4-11-00)

Caliente Street, at its intersection with Ransom Road.
(Ord. No. 38,721, § 2, 4-22-97)

Calla Avenue, at its intersection with Beach View Street.
(Ord. No. 44,807, § 2, 8-28-12)

Calla Avenue, at its intersection with Morwin Street.
(Code 1958, § 29-137)

Cambridge Crescent, at its intersection with Monroe Place.
(Ord. No. 40,791, § 4, 7-30-02)

Cambridge Crescent, at its intersection with Wythe Place.
(Ord. No. 40,515, § 2, 11-13-01)

Canton Avenue, at its intersection with Oakwood Street.
(Ord. No. 42,467, § 3, 11-28-06)

Canton Avenue, at its intersection with Waltham Street.
(Ord. No. 43,358, § 6, 2-3-09)

Cape Henry Avenue, at its intersection with Birch Street.
(Ord. No. 43,211, § 2, 9-9-08)

Cape Henry Avenue, at its intersection with McKann Avenue.
(Ord. No. 38,721, § 2, 4-22-97)

Cape Henry Avenue, at its intersection with Rush Street.
(Ord. No. 42,589, § 5, 3-6-07)

Cape Henry Avenue, at its intersection with Wyoming Avenue.
(Ord. No. 43,211, § 2, 9-9-08)

Carillo Avenue, at its intersection with Cedar Lane.
(Ord. No. 42,945, § 1, 12-18-07)

Carillo Avenue, at its intersection with Monterey Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Carl Street, at its intersection with Galveston Boulevard.
(Ord. No. 42,589, § 5, 3-6-07)

Carl Street, at its intersection with Kirby Crescent.
(Code 1958, § 29-138)

Carl Street, at its intersection with Suburban Parkway.
(Ord. No. 42,589, § 5, 3-6-07)

Carlisle Way, at its intersection with Catherine Street.
(Ord. No. 39,964, § 5, 5-23-00)

Carlisle Way, at its intersection with Colonial Avenue.
(Ord. No. 41,038, § 2, 5-13-03)

Carlton Street, at its intersection with Eagle Avenue.
(Code 1958, § 29-138.1)

Carlton Street, at its intersection with Elk Avenue.
(Code 1958, § 29-138.2)

Carlton Street, at its intersection with Newell Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Carlton Street, at its intersection with Tallwood Street.
(Ord. No. 39,855, § 3, 2-1-00)

Carolina Avenue, at its intersection with Gosnold Avenue.
(Code 1958, § 29-139)

Carolina Avenue, at its intersection with Mayflower Road.
(Ord. No. 40,791, § 4, 7-30-02)

Carona Avenue, at its intersection with Rugby Street.
(Ord. No. 45,415, § 7, 1-14-14)

Carona Avenue, at its intersection with Vista Street.
(Ord. No. 44,253, § 1, 5-24-11)

Carona Avenue, at its intersection with Wall Street.
(Ord. No. 44,253, § 1, 5-24-11)

Carroll Place, at its intersection with Larchmont Crescent.
(Ord. No. 39,859, § 3, 2-1-00)

Cary Avenue, at its intersection with Monitor Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Cass Street, at its intersection with Selden Avenue.
(Ord. No. 44,317, § 3, 7-12-11)

Catherine Street, at its intersection with Talbot Hall Road.
(Ord. No. 47,062, § 4, 11-21-17)

Cecelia Avenue, at its intersection with Corprew Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Cedar Level Avenue, at its intersection with Burleigh Avenue.
(Ord. No. 43,525, § 2, 7-21-09)

Cedar Level Avenue, at its intersection with Maycox Avenue.
(Ord. No. 43,525, § 2, 7-21-09)

Cedar Level Avenue, at its intersection with North Shore Road.
(Code 1958, § 29-140)

Cedar Street, at its intersection with Oakfield Avenue.
(Ord. No. 47,062, § 4, 11-21-17)

Central Avenue, at its intersection with Dare Circle.
(Code 1958, § 29-142; Ord. No. 39,859, § 1, 2-1-00; Ord. No. 41,329, § 1, 2-24-04)

Chalfin Avenue, at its intersection with Kennebeck Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Chalfin Avenue, at its intersection with Pinehurst Street.
(Ord. No. 39,911, § 4, 4-11-00)

Chalfin Avenue, at its intersection with Windermere Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Chanelka Road, at its intersection with Radnor Road.
(Ord. No. 39,911, § 4, 4-11-00)

Chanelka Road, at its intersection with Sunset Drive.
(Ord. No. 39,911, § 4, 4-11-00)

Chapel Street, at its intersection with Bagnall Road.
(Ord. No. 49,078, § 1, 2-14-23)

Chapel Street, at its intersection with E Olney Road.
(Ord. No. 49,078, § 1, 2-14-23)

Chapel Street, at its intersection with Mariner Street.
(Ord. No. 42,355, § 4, 8-15-06)

Chapel Street, at its intersection with Proescher Street.
(Ord. No. 39,856, § 2, 2-1-00)

Chapel Street, southbound, at its intersection with St. Julian Avenue.
(Ord. No. 41,965, § 5, 8-16-05)

Charleston Street, at its intersection with Diven Street.
(Ord. No. 48,078, § 3, 7-14-20)

Charleston Street, at its intersection with Fargo Avenue.
(Ord. No. 48,078, § 3, 7-14-20)

Charlney Avenue, at its intersection with George Town Road.
(Ord. No. 38,301, § 2, 3-12-96)

Charlotte Street, at its intersection with Bank Street.
(Code 1958, § 29-144)

Charlotte Street, at its intersection with Bute Street.
(Ord. No. 34,236, § 1, 11-25-86)

Charlotte Street at its intersection with Walke Street.
(Ord. No. 43,659, § 4, 11-17-09)

Charnwood Court, at its intersection with Widgeon Road.
(Ord. No. 39,964, § 5, 5-23-00)

Chatham Circle, at its intersection with Central Avenue.
(Ord. No. 41,329, § 1, 2-24-04)

Chatham Circle, at its intersection with South Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Chelsea Avenue, at its intersection with Orange Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Cherry Street, at its intersection with Atwood Avenue.
(Ord. No. 39,079, § 4, 3-10-98)

Cherry Street, at its intersection with Mason Creek Road.
(Ord. No. 41,231, § 2, 11-18-03)

Cherry Street, at its intersection with Peachtree Street.
(Code 1958, § 29-145)

Cherry Street, at its intersection with Phillip Avenue.
(Ord. No. 41,231, § 2, 11-18-03)

Chester Street, at its intersection with Devon Street.
(Ord. No. 41,310, § 5, 2-10-04)

Chester Street, at its intersection with Hammett Avenue.
(Ord. No. 38,390, § 2, 5-28-96)

Chester Street, at its intersection with Mapelwood Avenue.
(Ord. No. 38,583, § 3, 11-26-96)

Citadel Road, at its intersection with Ball Avenue.
(Code 1958, § 29-146)

Clare Road, at its intersection with North Quail Street.
(Ord. No. 39,214, § 1, 6-9-98)

Clare Road, at its intersection with Partridge Street.
(Ord. No. 44,807, § 2, 8-28-12)

Claremont Avenue, at its intersection with Boissevain Avenue.
(Ord. No. 48,270, § 7, 1-12-21)

Claremont Avenue, at its intersection with Gates Avenue.
(Ord. No. 48,476, § 4, 8-24-21)

Claremont Avenue, at its intersection with Graydon Avenue.
(Ord. No. 48,352, § 3, 4-13-21)

Claremont Avenue, at its intersection with Princess Anne Road.
(Code 1958, § 29-147)

Claremont Avenue, at its intersection with Raleigh Avenue.
(Ord. No. 46,349, § 7, 4-26-16)

Claremont Avenue, at its intersection with Redgate Avenue.
(Code 1958, § 29-148)

Claremont Avenue, at its intersection with Spotswood Avenue.
(Ord. No. 48,476, § 4, 8-24-21)

Claremont Avenue, at its intersection with Westover Avenue.
(Ord. No. 43,525, § 2, 7-21-09)

Clarence Street, at its intersection with Adair Avenue.
(Ord. No. 48,905, § 2, 9-13-22)

Clarence Street, at its intersection with Hudson Street.
(Ord. No. 48,905, § 2, 9-13-22)

Clarence Street, at its intersection with Wailes Avenue.
(Ord. No. 45,180, § 3, 7-9-13)

Clay Avenue, at its intersection with Brown Avenue.
(Code 1958, § 29-149)

Clayton Drive, at its intersection with Lasser Drive.
(Ord. No. 47,062, § 4, 11-21-17)

Cleveland Street, at its intersection with Bangor Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

Cloncurry Road, at its intersection with Argyle Avenue.
(Ord. No. 42,426, § 4, 10-3-06)

Coach Way Drive, at its intersection with Pickett Road.
(Ord. No. 41,828, § 4, 5-10-05)

Colchester Crescent, at its intersection with Norchester Avenue.
(Ord. No. 37,117, § 1, 1-12-93)

Colin Drive, at its intersection with Leonard Road.
(Ord. No. 40,235, § 1, 2-27-01)

College Cross, at its intersection with College Place.
(Ord. No. 36,415, § 1, 5-14-91)

College Place, at its intersection with Botetourt Street.
(Ord. No. 40,092, § 6, 8-22-00)

College Place, at its intersection with Duke Street.
(Ord. No. 39,229, § 1, 6-30-98; Ord. No. 39,345, § 3, 10-20-98)

College Place, at its intersection with Dunmore Street.
(Ord. No. 41,310, § 5, 2-10-04)

College Place, at its intersection with Yarmouth Street.
(Ord. No. 46,349, § 7, 4-26-16)

Colley Avenue, at its intersection with Raleigh Avenue.
(Ord. No. 36,041, § 1, 5-29-90)

Colley Avenue, at its intersection with Front Street.
(Ord. No. 43,434, § 5, 5-12-09)

Colonial Avenue, at its intersection with Burleigh Avenue.
(Ord. No. 43,525, § 2, 7-21-09)

Colonial Avenue, at its intersection with Delaware Avenue.
(Ord. No. 40,140, § 4, 10-17-00)

Colonial Avenue, at its intersection with North Shore Road.
(Ord. No. 40,515, § 2, 11-13-01)

Colonial Avenue, at its intersection with Mowbray Arch.
(Ord. No. 45,415, § 7, 1-14-14)

Colonial Avenue, at its intersection with Pembroke Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Columbia Avenue, at its intersection with Argonne Avenue.
(Ord. No. 51,965, § 5, 8-16-05)

Columbia Avenue, at its intersection with Ashland Avenue.
(Ord. No. 44,707, § 3, 6-12-12)

Columbia Avenue, at its intersection with Dunkirk Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Columbia Avenue, at its intersection with Peronne Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Columbia Avenue, at its intersection with Verdun Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Columbus Avenue, at its intersection with 41st Street.
(Ord. No. 38,481, § 1, 7-30-96)

Columbus Avenue, at its intersection with La Valette Avenue.
(Ord. No. 49,078, § 1, 2-14-23)

Condor Avenue, at its intersection with Buffalo Avenue.
(Ord. No. 40,140, § 4, 10-17-00)

Connecticut Avenue, at its intersection with Gosnold Avenue.
(Code 1958, § 29-149.1)

Condor Avenue, at its intersection with Bison Avenue.
(Code 1958, § 29-149.2)

Connecticut Avenue, at its intersection with Newport Avenue.
(Code 1958, § 29-150)

Connecticut Avenue, at its intersection with Mayflower Road.
(Ord. No. 42,765, § 4, 7-24-07)

Conoga Street, at its intersection with Cypress Street.
(Ord. No. 41,589, § 4, 9-28-04)

Conoga Street, at its intersection with Vine Street.
(Ord. No. 44,317, § 3, 7-12-11)

Core Avenue, at its intersection with Baldwin Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Core Avenue, at its intersection with Brandon Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

Core Avenue, at its intersection with Gates Avenue.
(Code 1958, § 29-152)

Core Avenue, at its intersection with Harrington Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

Core Avenue, at its intersection with Shirley Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

Core Avenue, at its intersection with Spotswood Avenue.
(Code 1958, § 29-154)

Corprew Avenue, at its intersection with Majestic Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Corprew Avenue, at its intersection with Maltby Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Corprew Avenue, at its intersection with Mapole Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Corprew Avenue, at the intersection with Merrimac Avenue.
(Ord. No. 36,966, § 1, 8-25-92)

Corprew Avenue, at its intersection with Reservoir Avenue.
(Ord. No. 41,965, § 5, 8-16-05)

Cortlandt Place, at its intersection with North Shore Road.
(Ord. No. 41,310, § 5, 2-10-04)

Cortlandt Place, at its intersection with Runnymede Road.
(Ord. No. 41,113, § 6, 7-22-03)

Cortlandt Place, at its intersection with Trouville Avenue.
(Ord. No. 48,352, § 3, 4-13-21)

Cottage Avenue, at its intersection with Lindenwood Avenue.
(Ord. No. 44,253, § 1, 5-24-11)

Cottage Avenue, at its intersection with Rugby Street.
(Ord. No. 44,253, § 1, 5-24-11)

Cottage Avenue, at its intersection with Wall Street.
(Ord. No. 42,467, § 3, 11-28-06)

Cougar Avenue, at its intersection with Danbury Drive.
(Ord. No. 47,241, § 4, 5-22-18)

Court Street, as to northbound traffic, at its intersection with Market Street.
(Ord. No. 36,071, § 1, 6-19-90)

Courtney Avenue, at its intersection with Goff Street.
(Ord. No. 44,584, § 5, 2-28-12)

Courtney Avenue, at its intersection with Rugby Street.
(Ord. No. 44,316, § 5, 7-12-11)

Courtney Avenue, at its intersection with Wall Street.
(Ord. No. 38,390, § 2, 5-28-96; Ord. No. 38,884, § 1, 8-26-97; Ord. No. 40,192, § 3, 1-9-01)

Covel Street, at its intersection with Hatton Street.
(Ord. No. 44,317, § 3, 7-12-11)

Covel Street, at its intersection with Joyce Street.
(Ord. No. 44,317, § 3, 7-12-11)

Covington Lane, at its intersection with Wythe Place.
(Ord. No. 46,071, § 2, 9-15-15)

Coyote Avenue, as to westbound traffic, at its intersection with Bison Avenue.
(Code 1958, § 29-155)

Craig Street, at its intersection with Walker Avenue.
(Ord. No. 42,945, § 1, 12-18-07)

Crane Avenue, at its intersection with Bison Avenue.
(Code 1958, § 29-156)

Crane Avenue, at its intersection with Buffalo Avenue.
(Code 1958, § 29-157)

Craven Circle, at its intersection with Central Avenue.
(Ord. No. 39,859, § 3, 2-1-00)

Creamer Road, at its intersection with Devon Street.
(Ord. No. 44,253, § 1, 5-24-11)

Crosman Avenue, at its intersection with Covel Street.
(Ord. No. 44,317, § 3, 7-12-11)

Crosman Avenue, at its intersection with Pike Street.
(Ord. No. 44,317, § 3, 7-12-11)

Croyden Road at its intersection with Grove Avenue.
(Ord. No. 45,557, § 5, 5-20-14)

Croyden Road, at its intersection with Portal Road.
(Ord. No. 36,329, § 1, 2-12-91)

Culpepper Street, at its intersection with Walker Avenue.
(Ord. No. 37,429, § 2, 10-12-93)

Cumberland Street, at its intersection with Charlotte Avenue.
(Code 1958, § 29-158)

Cumberland Street at its intersection with Freemason Street.
(Ord. No. 40,633, § 10, 3-19-02)

Cumberland Street, at its intersection with Market Street.
(Code 1958, § 29-159)

Cumberland Street, as to northbound traffic, at its intersection with Nicholson Street.
(Code 1958, § 29-160)

Curlew Drive, northern portion, at its intersection with Bristol Avenue.
(Ord. No. 43,293, § 7, 11-25-08)

Curlew Drive, at its intersection with Corporate Boulevard.
(Ord. No. 43,293, § 7, 11-25-08)

Curlew Drive, at its intersection with Huntsman Road.
(Ord. No. 29,869, § 1, 3-27-79)

Curlew Drive, north of the Norfolk and Southern Railway right-of-way, at its intersection with the projection of Kidd Boulevard, where westbound vehicles on Curlew Drive shall, immediately before crossing or entering the projection of Kidd Boulevard, come to a complete stop, and, upon crossing or entering the projection of Kidd Boulevard, shall yield the right-of-way to vehicles approaching from the Norfolk and Southern right-of-way and vehicles approaching eastbound from Curlew Drive.
(Ord. No. 30,022, § 1, 7-10-79)

Cypress Street, at its intersection with Selden Avenue.
(Ord. No. 44,317, § 3, 7-12-11)

D View Avenue, at its intersection with Mason Creek Road.
(Code 1958, § 29-161)

Dakota Avenue, at its intersection with Pelham Street.
(Ord. No. 48,078, § 3, 7-14-20)

Dallas Street, at its intersection with San Antonio Boulevard.
(Ord. No. 45,863, § 6, 2-10-15)

Dana Street, at its intersection with Cromwell Road.
(Ord. No. 46,558, § 2, 9-13-16)

Dana Street, at its intersection with Grandy Avenue.
(Ord. No. 49,007, § 4, 11-29-22)

Danwood Drive, at its intersection with Larkin Street.
(Ord. No. 36,390, § 1, 4-9-91)

Danwood Drive, at its intersection with Little John Drive.
(Ord. No. 47,902, § 6, 2-25-20)

Dare Circle, at its intersection with Nassau Avenue.
(Ord. No. 42,765, § 4, 7-24-07)

David Avenue, at its intersection with Dominion Avenue.
(Ord. No. 46,968, § 8, 9-12-17)

Davis Street, at its intersection with Birch Street.
(Ord. No. 41,038, § 2, 5-13-03)

Davis Street, at its intersection with Harrell Avenue.
(Ord. No. 48,905, § 2, 9-13-22)

Davis Street, at its intersection with Keller Avenue.
(Ord. No. 42,095, § 4, 11-29-05)

Davis Street, at its intersection with Kennon Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Davis Street, at its intersection with McKann Avenue.
(Ord. No. 41,113, § 6, 7-22-03)

Davis Street, at its intersection with Overbrook Avenue.
(Ord. No. 45,863, § 6, 2-10-15)

DeBree Avenue, at its intersection with 22nd Street.
(Ord. No. 40,140, § 4, 10-17-00)

DeBree Avenue, at its intersection with W. 23rd Street.
(Ord. No. 48,476, § 4, 8-24-21)

DeBree Avenue, at its intersection with W. 24th Street.
(Ord. No. 44,278, § 5, 6-14-11)

DeBree Avenue, at its intersection with 25th Street.
(Code 1958, § 29-162)

Deerfield Road, at its intersection with Ridgefield Drive.
(Ord. No. 40,140, § 4, 10-17-00)

Dehlman Avenue, at its intersection with North Shore Road.
(Ord. No. 41,310, § 5, 2-10-04)

Delaware Avenue, at its intersection with Newport Avenue.
(Code 1958, § 29-163)

Delevan Street, at its intersection with Cypress Street.
(Ord. No. 41,589, § 4, 9-28-04)

Delevan Street, at its intersection with Vine Street.
(Ord. No. 44,317, § 3, 7-12-11)

Dell Street, at its intersection with Brentwood Drive.
(Ord. No. 42,945, § 1, 12-18-07)

Denhart Street, at its intersection with Bolton Street.
(Ord. No. 39,911, § 4, 4-11-00)

Denny's Road, at its intersection with Elizabeth Avenue.
(Ord. No. 37,118, § 1, 1-12-93)

Denver Avenue, at its intersection with Early Street.
(Ord. No. 34,167, § 1, 10-14-86)

Denver Avenue, at its intersection with Birch Street.
(Ord. No. 36,390, § 1, 4-9-91)

Devon Street, at its intersection with Beach View Street.
(Ord. No. 44,253, § 1, 5-24-11)

Devon Street, at its intersection with Earl Street.
(Ord. No. 41,310, § 5, 2-10-04)

Devon Street, at its intersection with Warwick Avenue.
(Ord. No. 44,253, § 1, 5-24-11)

Devonshire Road, at its intersection with Winward Road.
(Ord. No. 44,707, § 3, 6-12-12)

Dey Street, at its intersection with Norvella Avenue.
(Ord. No. 44,707, § 3, 6-12-12)

Dey Street, at its intersection with Texas Avenue.
(Ord. No. 43,156, § 5, 7-1-08)

Diggs Court, at its intersection with Bancker Road.
(Ord. No. 41,231, § 2, 11-18-03)

Diggs Road, at its intersection with Bancker Road.
(Ord. No. 41,231, § 2, 11-18-03)

Diggs Road, at its intersection with Burksdale Road.
(Ord. No. 43,018, § 3, 3-18-08)

Diggs Road, at its intersection with Leonard Road.
(Ord. No. 43,018, § 3, 3-18-08)

Dinwiddie Street, at its intersection with Poplar Avenue.
(Ord. No. 48,524, § 3, 10-12-21)

Diven Street, at its intersection with Charleston Street.
(Ord. No. 49,657, § 4, 7-9-24)

Diven Street, at its intersection with Elliott Street.
(Ord. No. 49,657, § 4, 7-9-24)

Diven Street, at its intersection with North Shore Road.
(Code 1958, § 29-164)

Dixie Drive, at its intersection with East Glen Road.
(Ord. No. 37,427, § 1, 10-12-93)

Dixie Drive, at its intersection with Galveston Boulevard.
(Ord. No. 38,390, § 2, 5-28-96)

Dixie Drive, at its intersection with Simons Drive.
(Code 1958, § 29-165)

Dixie Drive, at its intersection with Van Patten Road.
(Ord. No. 43,018, § 3, 3-18-08)

Dogwood Terrace, at its intersection with Seay Avenue.
(Ord. No. 43,156, § 5, 7-1-08)

Dominion Avenue, at its intersection with Camellia Road.
(Ord. No. 46,349, § 7, 4-26-16)

Dominion Avenue, at its intersection with Mona Drive.
(Code 1958, § 29-166)

Dominion Avenue, at its intersection with Tarpon Place.
(Code 1958, § 29-167)

Don Drive, at its intersection with Kevin Drive.
(Ord. No. 46,968, § 8, 9-12-17)

Dora Circle, at its intersection with Lenoir Circle.
(Ord. No. 45,415, § 7, 1-14-14)

Doris Drive, at its intersection with Birmingham Avenue.
(Ord. No. 39,481, § 2, 2-23-99)

Doris Drive, at its intersection with Timothy Avenue.
(Ord. No. 39,481, § 2, 2-23-99)

Dorwin Drive, at its intersection with Pleasant Point Drive.
(Ord. No. 45,415, § 7, 1-14-14)

Doswell Street, at its intersection with Redmill Road.
(Ord. No. 48,352, § 3, 4-13-21)

Doummar Drive, at its intersection with Red Brook Road.
(Ord. No. 47,177, § 5, 3-27-18)

Doummar Drive, at its intersection with Skyline Drive.
(Ord. No. 40,247, § 5, 3-20-01)

Dove Street, at its intersection with Partridge Street.
(Ord. No. 39,214, § 1, 6-9-98)

Dove Street, at its intersection with Quail Street.
(Ord. No. 44,807, § 2, 8-28-12)

Dovercourt Road, at its intersection with Westcliff Drive.
(Ord. No. 43,358, § 6, 2-3-09)

Downham Way, at its intersection with Middle Towne Crescent.
(Ord. No. 37,117, § 1, 1-12-93)

Draper Drive, at its intersection with Macdonald Road.
(Ord. No. 45,863, § 6, 2-10-15)

Driftwood Drive, at its intersection with Dominion Avenue.
(Ord. No. 40,235, § 1, 2-27-01)

Drummond Place, at its intersection with Mowbray Arch.
(Ord. No. 45,415, § 7, 1-14-14)

Duck Pond Road, at its intersection with Barnhollow Road.
(Ord. No. 40,092 § 6, 8-22-00)

Duck Pond Road, at its intersection with Poplar Hall Drive.
(Ord. No. 38,955, § 1, 10-28-97)

Duke Street, at its intersection with Brooke Avenue.
(Ord. No. 39,345, § 3, 10-20-98; Ord. No. 39,911, § 2, 4-11-00; Ord. No. 41,113, § 6, 7-22-03)

Duke Street, at its intersection with College Place.
(Ord. No. 39,229, § 2, 6-30-98; Ord. No. 39,345, § 3, 10-20-98)

Duke Street, at its intersection with Tazewell Street.
(Ord. No. 39,345, § 3, 10-20-98)

Duke Street, at its intersection with W Freemason Street.
(Ord. No. 46,349, § 7, 4-26-16)

Dune Street, at its intersection with Devon Street.
(Ord. No. 41,310, § 5, 2-10-04)

Dune Street, at its intersection with Hammett Avenue.
(Ord. No. 40,515, § 2, 11-13-01)

Dune Street, at its intersection with Stratford Street.
(Ord. No. 44,179, § 2, 3-22-11)

Dungee Street, at its intersection with Chapel Street.
(Ord. No. 39,856, § 2, 2-1-00; Ord. No. 39,911, § 4, 4-11-00)

Dungee Street, at its intersection with Washington Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Dunkirk Avenue, at its intersection with Alsace Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Dunkirk Avenue, at its intersection with Bellevue Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Dunkirk Avenue, at its intersection with Columbia Avenue.
(Ord. No. 43,753, § 2, 3-2-10)

Dunkirk Avenue, at its intersection with Pershing Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Dunkirk Avenue, at its intersection with Pope Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Dunmore Street, at its intersection with Bute Street.
(Code 1958, § 29-168)

Dunmore Street, at its intersection with College Place.
(Ord. No. 36,415, § 1, 5-14-91)

Dunmore Street, at its intersection with Freemason Street.
(Ord. No. 36,415, § 1, 5-14-91)

Dunn Place, at its intersection with Wide Street.
(Code 1958, § 29-169; Ord. No. 36,415, § 2, 5-19-91; Ord. No. 41,734, § 3, 3-1-05)

Dunning Road, at its intersection with Turner Road.
(Code 1958, § 29-170; Ord. No. 44,707, § 3, 6-12-12)

Dunning Road, at its intersection with Ransom Road.
(Ord. No. 41,734, § 3, 3-1-05)

Dunway Street, at its intersection with Beamon Road.
(Ord. No. 40,925, § 4, 1-14-03)

Dunway Street, at its intersection with Kennebeck Avenue.
(Ord. No. 40,363, § 5, 6-12-01)

E. Balview Avenue, at its intersection with Atlans Street.
(Ord. No. 49,170, § 4, 5-9-23)

E Balview Avenue, at its intersection with Warwick Avenue.
(Ord. No. 46,349, § 7, 4-26-16)

E Bayview Boulevard, at its intersection with Capeview Avenue.
(Ord. No. 47,062, § 4, 11-21-17)

E Indian River Road, at its intersection with South Main Street.
(Ord. No. 47,902, § 6, 2-25-20)

E Indian River Road, at its intersection with Stafford Street.
(Ord. No. 47,902, § 6, 2-25-20)

E. Ocean Avenue. at its intersection with Norfolk Avenue.
(Ord. No. 47,177, § 5, 3-27-18)

E. Olney Road, at its intersection with Whitaker Lane.
(Ord. No. 48,546, § 2, 10-26-21)

Eagle Avenue, as to eastbound traffic, at its intersection with Bison Avenue.
(Code 1958, § 29-171)

Eagle Avenue, at its intersection with Carlton Street.
(Code 1958, § 29-172)

Eagle Avenue, at its intersection with Moose Avenue.
(Code 1958, § 29-173)

Eagle Avenue, at its intersection with Pythian Avenue.
(Code 1958, § 29-173.1)

Earl Street, at its intersection with Devon Street.
(Ord. No. 34,495, § 1, 5-26-87)

Early Street, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Early Street, at its intersection with Denver Avenue.
(Ord. No. 43,069, § 4, 4-29-08)

Early Street, at its intersection with Krick Street.
(Code 1958, § 29-174)

East Gilpin Avenue, at its intersection with Dudley Avenue.
(Ord. No. 39,758, § 4, 11-9-99)

East Glen Road, at its intersection with Galveston Boulevard.
(Ord. No. 47,332, § 2, 8-28-18)

East Kenmore Avenue, at its intersection with Virginian Drive.
(Ord. No. 42,765, § 4, 7-24-07)

East Lexington Street, at its intersection with Galt Street.
(Ord. No. 39,911, § 4, 4-11-00)

East Street, at its intersection with Main Street.
(Code 1958, § 29-175)

East Tanners Creek Drive, at its intersection with Edward Street.
(Ord. No. 39,214, § 1, 6-9-98)

East Tanners Creek Road, at its intersection with Longdale Drive.
(Ord. No. 30,035, § 1, 7-17-79)

East Westmont Avenue, at its intersection with Hammett Avenue.
(Ord. No. 44,179, § 2, 3-22-11)

Eastover Road, at its intersection with Eastover Circle.
(Ord. No. 41,828, § 4, 5-10-05)

Edward Street, eastbound, at its intersection with Edward Street, northbound and International Boulevard.
(Ord. No. 42,355, § 4, 8-15-06)

Edward Street, at its intersection with Picadilly Street.
(Ord. No. 38,563, § 2, 11-12-96)

Edward Street, at its intersection with Geneva Way.
(Ord. No. 38,563, § 2, 11-12-96)

Edward Street, at its intersection with East Tanners Creek Drive.
(Ord. No. 39,214, § 1, 6-9-98)

Edwin Drive, at its intersection with Burksdale Road.
(Ord. No. 47,177, § 5, 3-27-18)

Elizabeth Avenue, at its intersection with Cowand Avenue.
(Ord. No. 38,884, § 3, 8-26-97)

Elk Avenue, as to eastbound traffic, at its intersection with Buffalo Avenue.
(Code 1958, § 29-179)

Elk Avenue, at its intersection with Carlton Avenue.
(Code 1958, § 29-180)

Elk Avenue, at its intersection with Pythian Avenue.
(Code 1958, § 29-181)

Elkhorn Avenue, at its intersection with 26th Street.
(Ord. No. 39,321, § 3, 9-22-98)

Elkhorn Avenue, at its intersection with 37th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Elkhorn Avenue, at its intersection with 40th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Elkhorn Avenue, at its intersection with 45th Street.
(Code 1958, § 29-182)

Elkhorn Avenue, as to eastbound traffic, at its intersection with 43rd Street.
(Code 1958, § 29-183)

Elliott Street, at its intersection with Dakota Avenue.
(Ord. No. 48,078, § 3, 7-14-20)

Elliott Street, at its intersection with Diven Street.
(Ord. No. 48,078, § 3, 7-14-20)

Ellsmere Avenue, at its intersection with Beamon Road.
(Code 1958, § 29-184; Ord. No. 33,300, § 2, 2-12-85; Ord. No. 40,925, § 4, 1-14-03)

Ellsmere Avenue, at its intersection with Henneman Drive.
(Ord. No. 46,675, § 3, 12-13-16)

Elm Street, at its intersection with Avenue E.
(Ord. No. 37,187, § 1, 4-13-93)

Elm Street, at its intersection with Avenue F.
(Ord. No. 37,844, § 1, 12-27-94)

Elm Street, at its intersection with Avenue G.
(Ord. No. 37,844, § 1, 12-27-94)

Elm Street, at its intersection with Avenue H.
(Ord. No. 31,156, § 1, 5-26-81)

Elm Street, at its intersection with Avenue I.
(Ord. No. 37,187, § 1, 4-13-93)

Elm Street, at its intersection with Avenue J.
(Code 1958, § 29-184.1)

Elm Street, at its intersection with Clements Street.
(Ord. No. 39,911, § 4, 4-11-00)

Elm Street, at its intersection with Joyner Street.
(Ord. No. 39,911, § 4, 4-11-00)

Elm Street, at its intersection with Kane Street.
(Ord. No. 35,824, § 1, 12-12-89)

Elm Street, at its intersection with Kennedy Street.
(Ord. No. 39,911, § 4, 4-11-00)

Elm Street, at its intersection with Kittrell Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Elm Street, at its intersection with Trant Avenue.
(Ord. No. 46,675, § 3, 12-13-16)

Elmere Place, at its intersection with Ashland Avenue.
(Ord. No. 42,200, § 3, 3-7-06)

Elmere Place, at its intersection with Columbia Avenue.
(Ord. No. 42,200, § 3, 3-7-06)

Elmere Place, at its intersection with Morris Avenue.
(Ord. No. 42,200, § 3, 3-7-06)

Elmhurst Avenue, at its intersection with Chalfin Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Elmhurst Avenue, at its intersection with Herbert Street.
(Ord. No. 38,301, § 2, 3-12-96)

Elmhurst Avenue, at its intersection with Hyde Circle.
(Ord. No. 40,192, § 3, 1-9-01)

Elmhurst Avenue, at its intersection with Thomas Street.
(Ord. No. 42,355, § 4, 8-15-06)

Elton Avenue, at its intersection with Jerome Avenue.
(Code 1958, § 29-185)

Esquire Street, at its intersection with Grove Avenue.
(Ord. No. 45,557, § 5, 5-20-14)

Essex Circle, at its intersection with Central Avenue.
(Ord. No. 39,859, § 3, 2-1-00)

Essex Circle, at its intersection with Hampshire Avenue.
(Ord. No. 41,639, § 3, 11-16-04)

Ethan Allen Lane, as to westbound traffic, at its intersection with Stanwix Square.
(Code 1958, § 29-186)

Ethel Avenue, at its intersection with Lucile Avenue.
(Ord. No. 48,905, § 2, 9-13-22)

Evelyn Street, at its intersection with Pythian Avenue.
(Code 1958, § 29-187)

Evelyn T Butts Avenue, at its intersection with Avenue G.
(Ord. No. 42,765, § 4, 7-24-07)

Evergreen Avenue, at its intersection with Beechwood Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Evergreen Avenue, at its intersection with Forrest Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Evergreen Avenue, at its intersection with Glendale Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Evergreen Avenue, at its intersection with Rogers Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Evergreen Avenue, at its intersection with Woodview Avenue.
(Ord. No. 45,049, § 6, 3-26-13)

Executive Drive, at its intersection with Bayview Boulevard.
(Ord. No. 41,734, § 3, 3-1-05)

Executive Drive, at its intersection with W. Evans Street.
(Ord. No. 43,285, § 5, 11-18-08)

Exeter Road, at its intersection with Radnor Road.
(Ord. No. 39,911, § 4, 4-11-00)

Factory Street, at its intersection with Goff Street.
(Ord. No. 39,911, § 4, 4-11-00)

Fairbanks Avenue, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Fairbanks Avenue, at its intersection with Denver Avenue.
(Ord. No. 47,062, § 4, 11-21-17)

Fairfax Avenue, at its intersection with Botetourt Street.
(Ord. No. 31,527, § 1, 1-12-82)

Fairfax Avenue, at its intersection with Colonial Avenue.
(Code 1958, § 29-188)

Fairfax Avenue, at its intersection with Dundaff Street.
(Ord. No. 46,558, § 2, 9-13-16)

Fairfax Avenue, at its intersection with Mowbray Arch.
(Code 1958, § 29-189)

Fairfax Avenue, at its intersection with Olney Road.
(Ord. No. 33,904, § 1, 3-11-86)

Fairfax Avenue, as to westbound traffic only, at its intersection with Wagner Road.
(Ord. No. 39,109, § 1, 4-14-98)

Fairfield Street, at its intersection with Craig Street.
(Ord. No. 48,524, § 3, 10-12-21)

Falkland Drive, at its intersection with Bonnot Drive.
(Ord. No. 49,170, § 4, 5-9-23)

Falkland Drive, at its intersection with E. Tanners Creek Drive.
(Ord. No. 49,170, § 4, 5-9-23)

Faraday Court, at its intersection with Picadilly Street.
(Ord. No. 42,765, § 4, 7-24-07)

Fargo Street, at its intersection with Elliot Street.
(Ord. No. 40,633, § 10, 3-19-02)

Fargo Avenue, at its intersection with Pelham Street.
(Ord. No. 48,078, § 3, 7-14-20)

Farragut Avenue, at its intersection with Jason Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

Farrell Avenue, at its intersection with Pinedale Street.
(Ord. No. 39,109, § 1, 4-14-98)

Farrell Street, at its intersection with Stratford Street.
(Ord. No. 44,179, § 2, 3-22-11)

Faulk Road, at its intersection with McClure Road.
(Ord. No. 44,420, § 4, 10-25-11)

Fawn Street, as to southbound traffic, at its intersection with 23rd Street.
(Ord. No. 36,739, § 1, 2-11-92)

Fawn Street, as to southbound traffic, at its intersection with 25th Street.
(Ord. No. 36,739, § 1, 2-11-92)

Fearer Avenue, at its intersection with Somme Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Fenner Street, at its intersection with Guy Avenue.
(Ord. 37,821, § 1, 11-22-94)

Finney Street, at its intersection with Brockwell Avenue.
(Ord. No. 44,540, § 1, 1-24-12)

Finney Street, at its intersection with Frizzell Avenue.
(Ord. No. 44,540, § 1, 1-24-12)

Finney Street, at its intersection with Honaker Avenue.
(Ord. No. 39,079, § 4, 3-10-98)

Finney Street, at its intersection with Lucas Avenue.
(Ord. No. 44,540, § 1, 1-24-12)

Fisherman's Road, at its intersection with Portal Road.
(Ord. No. 33,419, § 2, 4-30-85)

Florida Avenue, at its intersection with Cape Henry Avenue.
(Code 1958, § 29-193)

Fluvanna Street, at its intersection with Culpepper Street.
(Ord. No. 48,524, § 3, 10-12-21)

Fluvanna Street, at its intersection with Grayson Street.
(Ord. No. 48,524, § 3, 10-12-21)

Fluvanna Street, at its intersection with Rockingham Street.
(Ord. No. 48,524, § 3, 10-12-21)

Fontainebleau Crescent, at its intersection with Lasalle Avenue.
(Ord. No. 47,478, § 3, 12-11-18)

Forbes Street, at its intersection with Westminster Avenue.
(Ord. No. 41,310, § 5, 2-10-04)

Forrest Avenue, at its intersection with Boush Creek Avenue.
(Ord. No. 39,321, § 3, 9-22-98)

Forrest Avenue, at its intersection with Evergreen Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Forrest Avenue, at its intersection with Glen Myrtle Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Forrest Avenue, at its intersection with Laurel Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Fort Tar Lane, at its intersection with 11th Street.
(Ord. No. 47,549, § 2, 3-5-19)

Fort Worth Avenue, at its intersection with Dallas Street.
(Ord. No. 42,308, § 2, 6-13-06)

Fort Worth Avenue, at its intersection with Galveston Boulevard.
(Code 1958, § 29-195)

Foxdale Drive, at its intersection with Leonard Road.
(Ord. No. 40,235, § 1, 2-27-01)

Foxwell Lane, at its intersection with Mississippi Avenue.
(Ord. No. 42,635, § 2, 4-24-07)

Frament Avenue, at its intersection with Janaf Place.
(Ord. No. 39,486, § 2, 2-23-99)

Frament Avenue, at its intersection with Pascal Place.
(Ord. No. 38,935, § 2, 10-14-97)

Frank Street, at its intersection with Pythian Avenue.
(Code 1958, § 29-202)

Frederick Street, at its intersection with Poplar Avenue.
(Ord. No. 48,524, § 3, 10-12-21)

Freemason Street, at its intersection with Botetourt Street.
(Ord. No. 36,415, § 1, 5-14-91)

Freemason Street, at its intersection with Duke Street.
(Ord. No. 39,345, § 3, 10-20-98)

Freemason Street, at its intersection with Granby Street.
(Ord. No. 34,236, § 1, 11-25-86)

Fremont Street, at its intersection with O'Keefe Street.
(Ord. No. 39,856, § 2, 2-1-00)

Fresh Meadow Road, at its intersection with Dune Street.
(Ord. No. 42,426, § 4, 10-3-06)

Frizzell Avenue, at its intersection with Bartee Street.
(Ord. No. 37,844, § 1, 12-27-94)

Frizzell Avenue, at its intersection with Chambers Street.
(Ord. No. 44,540, § 1, 1-24-12)

Fulcher Avenue, at its intersection with Sandy Street.
(Ord. No. 45,415, § 7, 1-14-14)

Gabriel Drive, at its intersection with River Oaks Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Galveston Boulevard, at its intersection with Bartee Street.
(Code 1958, § 29-205)

Galveston Boulevard, at its intersection with Glen Road.
(Ord. No. 39,911, § 4, 4-11-00)

Galveston Boulevard, at its intersection with Virginian Drive.
(Ord. No. 40,247, § 5, 3-20-01)

Gamage Drive, at its intersection with Townley Avenue.
(Ord. No. 43,285, § 5, 11-18-08)

Garden Street, at its intersection with Green Street.
(Ord. No. 49,314, § 1, 9-12-23)

Garden Street, at its intersection with Hugo Street.
(Ord. No. 40,460, § 6, 9-11-01)

Gardner Drive, at its intersection with Keswick Drive.
(Ord. No. 42,355, § 4, 8-15-06)

Gardner Drive, at its intersection with Springmeadow Boulevard.
(Ord. No. 49,007, § 4, 11-29-22)

Gardner Drive, at its intersection with While Lane.
(Ord. No. 35,491, § 1, 5-9-89)

Garfield Drive, at its intersection with Cape View Avenue.
(Ord. No. 49,007, § 4, 11-29-22)

Gate House Road, at its intersection with Merrimac Avenue.
(Ord. No. 36,311, § 1, 1-15-91; Ord. No. 39,738, § 1, 2-11-92; Ord. No. 37,117, § 1, 1-12-93)

Gates Avenue, at its intersection with Core Avenue.
(Ord. No. 43,809, § 2, 4-27-10

Gates Avenue, at its intersection with Harrington Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Gatling Avenue, at its intersection with Scott Street.
(Ord. No. 42,765, § 4, 7-24-07)

Gazel [Gazell] Street, as to northbound traffic, at its intersection with 25th Street.
(Ord. No. 36,739, § 1, 2-11-92)

Gazel [Gazell] Street, at its intersection with 28th Street.
(Ord. No. 39,321, § 3, 9-22-98)

George Street, at its intersection with Adair Avenue.
(Ord. No. 41,310, § 5, 2-10-04)

George Street, at its intersection with Hudson Avenue.
(Ord. No. 41,310, § 5, 2-10-04)

George Town Road, at its intersection with Charlney Avenue.
(Ord. No. 38,301, § 2, 3-12-96)

George Town Road, at its intersection with Greenwich Avenue.
(Ord. No. 38,301, § 2, 3-12-96)

Georgia Avenue, at its intersection with Gosnold Avenue.
(Code 1958, § 29-206)

Georgia Avenue, at its intersection with Newport Avenue.
(Code 1958, § 29-207)

Ghent Commons Court, at its intersection with Ghent Commons Drive.
(Ord. No. 41,639, § 3, 11-16-04)

Ghent Commons Drive, at its intersection with Prince Edward Way.
(Ord. No. 41,639, § 3, 11-16-04)

Ghent Commons Drive, at its intersection with Queens Way.
(Ord. No. 41,639, § 3, 11-16-04)

Gifford Street, at its intersection with Skyline Drive.
(Ord. No. 40,883, § 3, 11-12-02)

Giles Circle, at its intersection with Central Avenue.
(Ord. No. 41,329, § 1, 2-24-04)

Giles Circle, at its intersection with Nassau Avenue.
(Ord. No. 42,765, § 4, 7-24-07)

Giles Circle, at its intersection with South Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Glade Road, at its intersection with Alma Drive.
(Ord. No. 46,349, § 7, 4-26-16)

Glade Road, at its intersection with Brentwood Drive.
(Code 1958, § 29-208)

Gladstone Road, at its intersection with Pennington Road.
(Ord. No. 45,415, § 7, 1-14-14)

Gladstone Road, at its intersection with Stockton Road.
(Ord. No. 45,415, § 7, 1-14-14)

Glen Echo Drive, at its intersection with Midfield Street.
(Ord. No. 38,390, § 2, 5-28-96)

Glen Myrtle Avenue, at its intersection with Beechwood Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Glen Myrtle Avenue, at its intersection with Forrest Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Glen Myrtle Avenue, at its intersection with Glendale Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Glen Myrtle Avenue, as to northbound traffic, at its intersection with Greenbrier Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Glen Myrtle Avenue, at its intersection with Rogers Avenue.
(Ord. No. 40,140, § 4, 10-17-00)

Glen Myrtle Avenue, at its intersection with Woodview Avenue.
(Ord. No. 45,049, § 6, 3-26-13)

Glendale Avenue, at its intersection with Glen Myrtle Avenue
(Ord. No. 47,796, § 5, 10-22-19)

Glendale Avenue, at its intersection with Laurel Avenue.
(Ord. No. 45,049, § 6, 3-26-13)

Glenoak Drive, at its intersection with Widgeon Road.
(Ord. No. 39,964, § 5, 5-23-00)

Glenrock Road, at its intersection with Adderly Street.
(Ord. No. 38,583, § 3, 11-26-96)

Glenrock Road, at its intersection with Bartee Street.
(Code 1958, § 29-209)

Glenrock Road, at its intersection with Finney Street.
(Ord. No. 39,079, § 4, 3-10-98)

Glenrock Road, at its intersection with Poplar Hall Drive.
(Ord. No. 30,876, § 1, 11-18-80)

Godfrey Avenue, at its intersection with Bayne Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Godfrey Avenue, at its intersection with Beachmont Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Godfrey Avenue, at its intersection with Mapleton Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Godfrey Avenue, at its intersection with Hollister Avenue.
(Ord. No. 38,936, § 1, 11-14-97)

Godfrey Avenue, at its intersection [with] northernmost terminus with Woodland Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Godfrey Avenue, at its intersection with southmost terminus with Woodland Avenue.
(Ord. No. 44,317, § 1, 7-12-11)

Goff Street, at its intersection with Maltby Avenue.
(Ord. No. 34,042, § 1, 6-17-86)

Gordon Street, at its intersection with Calhoun Street.
(Ord. No. 39,911, § 4, 4-11-00)

Gosnold Avenue, at its intersection with W. 23rd Street.
(Ord. No. 48,476, § 4, 8-24-21)

Gosnold Avenue, at its intersection with 25th Street.
(Code 1958, § 29-209.2)

Government Avenue, as to westbound traffic, at its intersection with Mason Creek Road.
(Code 1958, § 29-210)

Government Avenue, at its intersection with Norfolk Avenue.
(Ord. No. 42,910, § 1, 11-20-07)

Government Avenue, at its intersection with Wells Parkway.
(Ord. No. 42,910, § 1, 11-20-07)

Gowrie Avenue, at its intersection with Jason Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

Grace Street, at its intersection with Yarmouth Street.
(Code 1958, § 29-211)

Granby Park, at its intersection with Midfield Street.
(Ord. No. 46,804, § 3, 4-11-17)

Granby Street, with its intersection with Willow Wood Drive.
(Ord. No. 49,170, § 4, 5-9-23)

Grand Bassa Drive, at its intersection with Liberia Drive.
(Ord. No. 38,582, § 2, 11-26-96)

Grandy Avenue, at its intersection with Cape Henry Avenue.
(Ord. No. 34,236, § 1, 11-25-86; Ord. No. 36,749, § 1, 3-10-92; Ord. No. 40,140, § 4, 10-17-00)

Grandy Avenue, at its intersection with Davis Street.
(Ord. No. 44,278, § 5, 6-14-11)

Granite Arch, at its intersection with South Stonebridge Drive.
(Ord. No. 41,113, § 6, 7-22-03)

Grantham Road, at its intersection with Restmere Road.
(Ord. No. 39,481, § 2, 2-23-99)

Grantham Road, at its intersection with Ruthven Road.
(Ord. No. 35,301, § 1, 11-15-88)

Graydon Avenue, at its intersection with Duke Street.
(Code 1958, § 29-212)

Graydon Avenue, at its intersection with Langley Road.
(Ord. No. 48,476, § 4, 8-24-21)

Graydon Avenue, at its intersection with Manteo Street.
(Code 1958, § 29-213)

Graydon Avenue, at its intersection with Old Brandon Avenue.
(Ord. No. 44,975, § 4, 1-8-13)

Graydon Park, at its intersection with Blow Street.
(Code 1958, § 29-214)

Grayson Avenue, at its intersection with Walker Avenue.
(Ord. No. 36,560, § 1, 9-10-91)

Greenbrier Avenue, at its intersection with Laurel Avenue.
(Ord. No. 48,715, § 2, 3-22-22)

Greenplain Road, at its intersection with Piney Branch Road.
(Ord. No. 41,828, § 4, 5-10-05)

Greenway Court, at its intersection with Redgate Avenue.
(Code 1958, § 29-215)

Greenwich Avenue, at its intersection with George Town Road.
(Ord. No. 38,301, § 2, 3-12-96)

Gregory Drive, at its intersection with Widgeon Road.
(Ord. No. 39,964, § 5, 5-23-00)

Grove Avenue, at its intersection with Kingston Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Grove Avenue at its intersection with Sunset Drive.
(Ord. No. 45,557, § 5, 5-20-14)

Hacienda Street, at its intersection with Ransom Road.
(Ord. No. 38,721, § 2, 4-22-97)

Hagan Avenue, at its intersection with Riverside Drive.
(Ord. No. 45,049, § 6, 3-26-13)

Hale Street at its intersection with Rugby Street.
(Ord. No. 45,557, § 5, 5-20-14)

Halprin Drive, at its intersection with Dominion Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Halprin Drive, at its intersection with Tarrallton Drive.
(Ord. No. 49,314, § 1, 9-12-23)

Hammett Avenue, at its intersection with Evans Street.
(Code 1958, § 29-216)

Hammett Avenue, at its intersection with Farrell Street.
(Ord. No. 37,583, § 1, 4-19-94)

Hammett Parkway, at its intersection with Battersea Road.
(Ord. No. 42,910, § 1, 11-20-07)

Hammett Parkway, at its intersection with Government Avenue.
(Ord. No. 42,200, § 3, 3-7-06)

Hammett Avenue, at its intersection with Seaview Avenue.
(Ord. No. 37,158, § 1, 3-9-93)

Hammett Avenue, at its intersection with Twilley Street.
(Ord. No. 38,065, § 2, 7-18-95)

Hammock Lane, at its intersection with 25th Bay Street.
(Ord. No. 42,890, § 5, 10-30-07)

Hammock Lane, at its intersection with 24th Bay Street.
(Ord. No. 43,905, § 3, 6-22-10)

Hammock Lane, at its intersection with 26th Bay Street.
(Ord. No. 42,890, § 5, 10-30-07)

Hammock Lane, at its intersection with 27th Bay Street.
(Ord. No. 42,890, § 5, 10-30-07)

Hampshire Avenue, at its intersection with Dey Street.
(Ord. No. 39,911, § 4, 4-11-00)

Hampshire Avenue, at its intersection with Essex Circle.
(Ord. No. 35,281, § 1, 10-25-88)

Hampshire Avenue, at its intersection with Hyde Circle.
(Ord. No. 41,639, § 3, 11-16-04)

Hampshire Avenue, at its intersection with Pamlico Circle.
(Ord. No. 41,639, § 3, 11-16-04)

Hanbury Street, at its intersection with Grandy Avenue.
(Ord. No. 39,321, § 3, 9-22-98)

Hannah Street, as to eastbound traffic, at its intersection with Armfield Avenue.
(Ord. No. 36,197, § 2, 9-18-90)

Hannah Street, at its intersection with Mt. Pleasant Avenue.
(Ord. No. 36,197, § 2, 9-18-90)

Hannah Street, at its intersection with Ogden Avenue.
(Ord. No. 36,197, § 2, 9-18-90)

Hannah Street, westbound service road for westbound traffic only, at its intersection with an entrance thereto, located at Ogden Avenue.
(Ord. No. 36,197, § 2, 9-18-90)

Hanover Avenue, at its intersection with Wythe Place.
(Ord. No. 38,535, § 3, 9-24-96)

Hanson Avenue, at its intersection with Rugby Street.
(Ord. No. 44,316, § 5, 7-12-11)

Hanson Avenue, at its intersection with Wall Street.
(Ord. No. 40,140, § 4, 10-17-00)

Hanyen Drive, at its intersection with Gabriel Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Hanyen Drive, at its intersection with Julianna Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Harbor Street, at its intersection with Brooke Avenue.
(Ord. No. 41,113, § 6, 7-22-03)

Harbor Street, at its intersection with Tazewell Street.
(Ord. No. 41,113, § 6, 7-22-03)

Hardy Avenue, at its intersection with Fauquier Street.
(Ord. No. 48,524, § 3, 10-12-21)

Hardy Avenue, at its intersection with Stafford Street.
(Ord. No. 48,524, § 3, 10-12-21)

Harmon Street, at its intersection with Gifford Street.
(Ord. No. 42,890, § 5, 10-30-07)

Harmony Road, at its intersection with Raby Road.
(Ord. No. 35,366, § 1, 1-10-89)

Harrell Avenue, at its intersection with Cape Henry Avenue.
(Ord. No. 39,321, § 3, 9-22-98)

Harrell Avenue at its intersection with Dana Street.
(Ord. No. 44,884, § 3, 10-23-12)

Harrell Avenue, at its intersection with Davis Street.
(Ord. No. 39,321, § 3, 9-22-98)

Harrell Avenue at its intersection with Tarrant Street.
(Ord. No. 43,659, § 4, 11-17-09)

Harriet Road, at its intersection with Ashlawn Drive.
(Ord. No. 42,765, § 4, 7-24-07)

Harrington Avenue, at its intersection with Core Avenue.
(Code 1958, § 29-218)

Hartford Drive at its intersection with Grimes Avenue.
(Ord. No. 44,884, § 3, 10-23-12)

Hastings Street, at its intersection with Mapelwood Avenue.
(Ord. No. 38,583, § 3, 11-26-96)

Hatten Street, at its intersection with Hibie Street.
(Ord. No. 36,595, § 1, 10-15-91)

Hatton Street, at its intersection with Marsh Street.
(Ord. No. 44,317, § 3, 7-12-11)

Hatton Street, at its intersection with Midland Street.
(Ord. No. 44,317, § 3, 7-12-11)

Hayes Street, at its intersection with Hale Street.
(Ord. No. 42,308, § 2, 6-13-06)

Hayes Street, at its intersection with Ludlow Street.
(Ord. No. 40,192, § 3, 1-9-01)

Hayes Street, at its intersection with Middle Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Hayes Street, at its intersection with West Avenue.
(Ord. No. 38,485, § 1, 7-30-96)

Head Street, at its intersection with Stockton Road.
(Ord. No. 45,415, § 7, 1-14-14)

Hedgwood Lane, at its intersection with Diven Street.
(Code 1958, § 29-219)

Reserved.
(Ord. No. 39,388, § 2, 11-24-98; Ord. No. 47,796, § 2, 10-22-19)

Hemlock Street, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Hemlock Street, at its intersection with Denver Avenue.
(Code 1958, § 29-220.1)

Hemlock Street, at its intersection with Larkin Street.
(Ord. No. 36,390, § 1, 4-9-91)

Henrico Street, at its intersection with Jersey Avenue.
(Code 1958, § 29-221)

Henrico Street, at its intersection with Oklahoma Avenue.
(Ord. No. 40,192, § 3, 1-9-01)

Herbert Collins Way, at its intersection with Cary Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Herbert Street, at its intersection with Hampshire Avenue.
(Ord. No. 40,460, § 6, 9-11-01)

Herbert Street, at its intersection with Kennebeck Avenue.
(Ord. No. 35,567, § 1, 6-13-89)

Herbert Street, at its intersection with Norvella Avenue.
(Ord. No. 40,192, § 3, 1-9-01)

Herbert Street, at its intersection with Windermere Avenue.
(Code 1958, § 29-220)

Heutte Drive, at its intersection with Camellia Road.
(Ord. No. 38,583, § 3, 11-26-96)

Heutte Drive, at its intersection with Flowerfield Road.
(Ord. No. 48,634, § 2, 1-25-22)

Heutte Drive, at its intersection with Nancy Drive.
(Ord. No. 48,634, § 2, 1-25-22)

Hibie Street, at its intersection with Crosman Avenue.
(Ord. No. 44,317, § 3, 7-12-11)

Hibie Street, at its intersection with Joyce Street.
(Ord. No. 36,595, § 1, 10-15-91)

Hibie Street, at its intersection with Roseclair Street.
(Ord. No. 36,595, § 1, 10-15-91)

Hickory Street, at its intersection with Maple Avenue.
(Code 1958, § 29-222)

Hickory Street at its intersection with Government Avenue.
(Ord. No. 44,037, § 5, 11-9-10)

Hickory Street, at its intersection with Orange Street.
(Ord. No. 39,758, § 4, 11-9-99)

Hicks Avenue, at its intersection with Adderley Street.
(Ord. No. 39,388, § 2, 11-24-98)

Hicks Avenue, at its intersection with Bartee Street.
(Ord. No. 39,079, § 4, 3-10-98)

Hicks Avenue, at its intersection with Chambers Street.
(Ord. No. 44,540, § 1, 1-24-12)

Hicks Avenue, at its intersection with Finney Street.
(Ord. No. 44,540, § 1, 1-24-12)

Hillendale Road, at its intersection with Halstead Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Hillside Avenue, at its intersection with Beach View Street.
(Ord. No. 48,634, § 2, 1-25-22)

Hillside Avenue, at its intersection with Elnora Avenue.
(Ord. No. 41,231, § 2, 11-18-03)

Hillside Avenue, at its intersection with Warwick Avenue.
(Ord. No. 44,179, § 2, 3-22-11)

Hilton Street, at its intersection with Gifford Street.
(Ord. No. 42,890, § 5, 10-30-07)

Holland Avenue, at its intersection with Huntington Crescent.
(Ord. No. 48,634, § 2, 1-25-22)

Hollister Avenue, at its intersection with Godfrey Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Hollister Avenue at its intersection with Majestic Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Hollister Avenue, at its intersection with Norchester Avenue.
(Ord. No. 42,539, § 2, 1-30-07)

Holt Street, at its intersection with Chapel Street.
(Code 1958, § 29-223)

Holt Street, at its intersection with Reilly Street.
(Ord. No. 43,753, § 2, 3-2-10)

Honaker Avenue, at its intersection with Bartee Street.
(Code 1958, § 29-224)

Honaker Avenue, at its intersection with Chambers Street.
(Ord. No. 44,540, § 1, 1-24-12)

Hough Avenue, at its intersection with Fauquier Street.
(Ord. No. 48,524, § 3, 10-12-21)

Hough Avenue, at its intersection with South Main Street.
(Ord. No. 45,180, § 3, 7-9-13)

Hough Street, at its intersection with Stafford Street.
(Ord. No. 36,560, § 1, 9-10-91)

Howe Street, at its intersection with Stratford Street.
(Ord. No. 44,179, § 2, 3-22-11)

Hudson Avenue, at its intersection with Clarence Street.
(Ord. No. 35,425, § 2, 3-14-89; Ord. No. 49,170, § 4, 5-9-23)

Hudson Avenue, at its intersection with George Street.
(Ord. No. 35,742, § 1, 9-26-89)

Hudson Avenue, at its intersection with Land Street.
(Code 1958, § 29-225)

Hudson Avenue, at its intersection with Reel Street.
(Ord. No. 40,235, § 1, 2-27-01)

Hughart Street, at its intersection with Wilmington Street.
(Ord. No. 39,911, § 4, 4-11-00)

Hugo Street, at its intersection with Defoe Avenue.
(Ord. No. 42,765, § 4, 7-24-07)

Hugo Street, at its intersection with Wayne Circle.
(Ord. No. 42,765, § 4, 7-24-07)

Hullview Avenue, at its intersection with Atlans Street.
(Ord. No. 41,639, § 3, 11-16-04)

Hullview Avenue, at its intersection with Beach View Street.
(Ord. No. 44,807, § 2, 8-28-12)

Hullview Avenue, at its intersection with Warwick Avenue.
(Code 1958, § 29-225.1)

Humboldt Street, at its intersection with Elmhurst Avenue.
(Code 1958, § 29-226)

Humboldt Street, at its intersection with Hampshire Avenue.
(Ord. No. 37,888, § 3, 2-14-95)

Humboldt Street, at its intersection with Norvella Avenue.
(Ord. No. 42,964, § 3, 1-8-08)

Humboldt Street, at its intersection with Texas Avenue.
(Ord. No. 41,231, § 2, 11-18-03)

Humboldt Street, at its intersection with Windermere Avenue.
(Code 1958, § 29-227)

Hummel Drive, at its intersection with Gabriel Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Hunters Chase, at its intersection with Hunters Trail.
(Ord. No. 41,113, § 6, 7-22-03)

Hunters Trail, at its intersection with Gardner Drive.
(Ord. No. 45,415, § 7, 1-14-14)

Huntington Crescent, at its intersection with Ashland Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Huntington Crescent, at its intersection with Morris Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Hurley Avenue, at its intersection with Atterbury Street.
(Ord. No. 40,460, § 6, 9-11-01)

Hurley Avenue, at its intersection with Lafayette Boulevard.
(Ord. No. 43,525, § 2, 7-21-09)

Hyde Circle, at its intersection with Bankhead Avenue.
(Ord. No. 38,583, § 3, 11-26-96)

Hyde Circle, at its intersection with Green Street.
(Code 1958, § 29-227.1)

Hyde Circle, at its intersection with Kennebeck Avenue.
(Ord. No. 40,192, § 3, 1-9-01)

Hyde Circle, at its intersection with Windermere Avenue.
(Ord. No. 40,192, § 3, 1-9-01)

Illinois Avenue, at its intersection with Lafayette Boulevard.
(Code 1958, § 29-228)

Inlet Road, at its intersection with Kingston Avenue.
(Code 1958, § 29-228.1)

Inlet Road, at its intersection with Parkview Avenue.
(Ord. No. 45,049, § 6, 3-26-13)

International Boulevard, at its intersection with Edward Street.
(Ord. No. 38,563, § 2, 11-12-96)

Iowa Avenue, at its intersection with Johns Street.
(Code 1958, § 29-229)

Iowa Avenue, at its intersection with Thomas Street.
(Ord. No. 40,646, § 5, 3-26-02)

Irving Street, at its intersection with Fauquier Street.
(Ord. No. 48,524, § 3, 10-12-21)

Irwin Avenue, at its intersection with South Lakeland Drive.
(Ord. No. 45,415, § 7, 1-14-14)

Isaac Street, at its intersection with Cypress Street.
(Ord. No. 41,589, § 4, 9-28-04)

Isaac Street, at its intersection with Manson Street.
(Ord. No. 44,317, § 3, 7-12-11)

Isaac Street, at its intersection with Vine Street.
(Ord. No. 44,317, § 3, 7-12-11)

Janaf Place, at its intersection with Frament Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Janaf Place, at its intersection with Prince Avenue.
(Ord. No. 38,935, § 2, 10-14-97)

Jason Avenue, at its intersection with Blair Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Jason Avenue, at its intersection with Hancock Avenue.
(Code 1958, § 29-230; Ord. No. 40,883, §§ 1, 3, 11-12-02)

Jason Avenue, at its intersection with Pope Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

Jay Court, at its intersection with Stockton Road.
(Ord. No. 45,415, § 7, 1-14-14)

Jean Court, at its intersection with Stockton Road.
(Ord. No. 40,092, § 6, 8-22-00)

Jefferson Court, at its intersection with Dundale Avenue.
(Ord. No. 36,793, § 2, 4-14-92)

Jeffrey Drive, at its intersection with Tarrallton Drive.
(Ord. No. 41,310, § 5, 2-10-04)

Jenifer Street, at its intersection with Quincy Street.
(Code 1958, § 29-230.1)

Jenifer Street, at its intersection with Sunset Drive.
(Ord. No. 33,419, § 2, 4-30-85)

Jenny Court, at its intersection with Modoc Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Jerrylee Drive, at its intersection with Dominion Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Jerry Lee Drive, at its intersection with Ridgefield Drive.
(Ord. No. 39,109, § 1, 4-14-98)

Joe Austin Drive, at its intersections with Kenton Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Joe Austin Drive, at its intersection with Majestic Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Johnnie Branch Street, at its intersection with Cary Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Johnnie Branch Street, at its intersection with Joe Austin Drive.
(Ord. No. 42,890, § 5, 10-30-07)

Johns Street, at its intersection with Norvella Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Johns Street, at its intersection with Texas Avenue.
(Ord. No. 40,646, § 5, 3-26-02)

Johnson Avenue, at its intersection with Okeefe Street.
(Ord. No. 48,715, § 2, 3-22-22)

Jolima Avenue, at its intersection with Lillian Avenue.
(Ord. No. 45,180, § 3, 7-9-13)

Jolima Avenue, at its intersection with Mona Avenue.
(Ord. No. 49,007, § 4, 11-29-22)

Joseph Street, at its intersection with Madison Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Joyce Street, at its intersection with Oakfield Avenue.
(Ord. No. 44,317, § 3, 7-12-11)

Joyce Street, at its intersection with Selden Avenue.
(Ord. No. 48,524, § 3, 10-12-21)

Julianna Drive, at its intersection with Gabriel Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Julianna Drive, at its intersection with River Oaks Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Juniper Street, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Juniper Street, at its intersection with Denver Avenue.
(Ord. No. 36,390, § 1, 4-9-91)

Juniper Street, at its intersection with Larkin Street.
(Ord. No. 43,069, § 4, 4-29-08)

Juniper Street, at its intersection with Woolsay Street.
(Ord. No. 40,235, § 1, 2-27-01)

Kale Lane, at its intersection with Edwin Drive.
(Ord. No. 47,177, § 5, 3-27-18)

Kale Lane, at its intersection with Simons Drive.
(Ord. No. 47,177, § 5, 3-27-18)

Kansas Street, at its intersection with Upshur Street.
(Ord. No. 40,646, § 5, 3-26-02)

Kanter Avenue, at its intersection with Lillian Avenue.
(Ord. No. 45,180, § 3, 7-9-13)

Karen Marie Court, at its intersection with Tait Terrace.
(Ord. No. 49,314, § 1, 9-12-23)

Kathy Court at its intersection with Sheppard Avenue.
(Ord. No. 45,557, § 5, 5-20-14)

Kearney Road, at its intersection with Portal Road.
(Ord. No. 36,329, § 1, 2-12-91)

Keene Road, at its intersection with Galveston Boulevard.
(Ord. No. 40,791, § 4, 7-30-02)

Keene Road, at its intersection with West Glen Road.
(Code 1958, § 29-231)

Keller Avenue at its intersection with Dana Street.
(Ord. No. 43,659, § 4, 11-17-09)

Keller Avenue, at its intersection with Kitchener Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Keller Avenue, at its intersection with McLemore Street.
(Ord. No. 48,905, § 2, 9-13-22)

Keller Avenue, at its intersection with Peterson Street.
(Ord. No. 39,859, § 3, 2-1-00)

Keller Avenue, at its intersection with South Cape Henry Avenue.
(Ord. No. 41,965, § 5, 8-16-05)

Kempsville Road at its intersection with Cornick Road.
(Ord. No. 44,037, § 5, 11-9-10)

Kennebeck Avenue, at its intersection with Chalfin Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Kennebeck Avenue, at its intersection with Herbert Street.
(Ord. No. 42,095, § 4, 11-29-05)

Kennebeck Avenue, at its intersection with Humboldt Street.
(Ord. No. 42,095, § 4, 11-29-05)

Kennon Avenue, at is intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Kennon Avenue, at its intersection with Krick Street.
(Ord. No. 40,140, § 4, 10-17-00)

Kennon Avenue, at its intersection with Larkin Street.
(Code 1958, § 29-232)

Kennon Avenue, at its intersection with Denver Avenue.
(Ord. No. 36,390, § 1, 4-9-91)

Kenosha Avenue, at its intersection with Tappahannock Drive.
(Ord. No. 47,478, § 3, 12-11-18)

Kenton Avenue, at its intersection with Cary Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Kenton Avenue, at its intersection with Herbert Collins Way.
(Ord. No. 43,753, § 2, 3-2-10)

Kenton Avenue, at its intersection with Joe Austin Drive.
(Ord. No. 43,624, § 3, 10-13-09)

Kenwood Drive, at its intersection with Leonard Road.
(Ord. No. 40,235, § 1, 2-27-01)

Keswick Drive, at its intersection with Pallister Road.
(Ord. No. 42,355, § 4, 8-15-06)

Killam Avenue, at its intersection with W 24th Street.
(Ord. No. 47,177, § 5, 3-27-18)

Killam Avenue, at its intersection with 25th Street.
(Code 1958, § 29-233; Ord. No. 41,637, §§ 1, 3, 11-16-04)

Killam Avenue, at its intersection with W. 41st Street.
(Ord. No. 44,584, § 5, 2-28-12)

Reserved.
(Code 1958, § 29-234; Ord. No. 41,637, §§ 1, 2, 11-16-04; Ord. No. 47,241, § 1, 5-22-18)

Killam Avenue, at its intersection with 45th Street.
(Code 1958, § 29-235; Ord. No. 41,637, § 2, 11-16-04)

Killam Avenue, at its intersection with 47th Street.
(Code 1958, § 29-236; Ord. No. 41,637, §§ 1, 3, 11-16-04)

Killam Avenue, at its intersection with 49th Street.
(Ord. No. 43,019, § 2, 3-18-08)

Kilmer Lane, at its intersection with Braden Crescent.
(Ord. No. 38,955, § 1, 10-28-97)

Kilmer Lane, at its intersection with Lewis Road.
(Ord. No. 36,672, § 1, 12-10-91)

Kincaid Avenue, at its intersection with Aspin Street.
(Ord. No. 41,965, § 5, 8-16-05)

Kincaid Avenue, at its intersection with Juniper Street.
(Ord. No. 39,911, § 4, 4-11-00)

Kingsley Lane, at its intersection with Newport Avenue.
(Ord. No. 43,525, § 2, 7-21-09)

Kingston Avenue, at its intersection with Grove Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Kingsway Road, at its intersection with Gifford Street.
(Ord. No. 36,672, § 1, 12-10-91)

Kingswell Drive, at its intersection with Pickett Road.
(Ord. No. 41,828, § 4, 5-10-05)

Kirby Crescent, at its intersection with Brickby Road.
(Ord. No. 39,321, § 3, 9-22-98)

Kirby Crescent, at its intersection with Suburban Parkway.
(Ord. No. 42,589, § 5, 3-6-07)

Kirby Crescent, at its intersection with Virginian Drive.
(Ord. No. 40,247, § 5, 3-20-01)

Kitchener Avenue, at its intersection with Argonne Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Krick Street, at its intersection with Birch Street.
(Ord. No. 41,038, § 2, 5-13-03)

Krick Street, at its intersection with Danwood Drive.
(Ord. No. 43,018, § 3, 3-18-08)

Krick Street, at its intersection with Early Street.
(Ord. No. 40,363, § 5, 6-12-01)

La Valette Avenue, at its intersection with Columbus Avenue.
(Ord. No. 49,078, § 1, 2-14-23)

Lafayette Boulevard, at its intersection with Glen Avenue.
(Ord. No. 44,707, § 3, 6-12-12)

Lafayette Boulevard, at its intersection with Kansas Avenue.
(Ord. No. 40,646, § 5, 3-26-02)

Lamberts Point Road, at its intersection with Gosnold Avenue.
(Ord. No. 40,092, § 6, 8-22-00)

Lamberts Point Road, at its intersection with Killam Avenue.
(Code 1958, § 29-238)

Lancaster Street, at its intersection with Walker Avenue.
(Ord. No. 48,524, § 3, 10-12-21)

Lance Road, at its intersection with Lowery Road.
(Ord. No. 35,366, § 1, 1-10-89)

Lance Road, at its intersection with Sabre Road.
(Ord. No. 35,366, § 1, 1-10-89)

Lance Road, at its intersection with Raby Road.
(Ord. No. 35,366, § 1, 1-10-89)

Land Street, at its intersection with Wailes Avenue.
(Code 1958, § 29-239)

Langley Road, at its intersection with Graydon Avenue.
(Code 1958, § 29-240)

Langley Road, at its intersection with Redgate Avenue.
(Code 1958, § 29-241)

Larchmont Crescent, at its intersection with Monroe Place.
(Ord. No. 39,859, § 3, 2-1-00)

Larkin Street, at its intersection with Birch Street.
(Ord. No. 36,390, § 1, 4-9-91)

Larkin Street, at its intersection with Early Street.
(Ord. No. 36,390, § 1, 4-9-91)

Larkin Street, at its intersection with Overbrook Avenue.
(Ord. No. 42,355, § 4, 8-15-06)

Lasalle Avenue, at its intersection with Fontainebleau Crescent.
(Ord. No. 48,634, § 2, 1-25-22)

LaSalle Avenue, at its intersection with Racine Avenue.
(Ord. No. 46,558, § 2, 9-13-16; Ord. No. 46,804, § 3, 4-11-17)

Lathan Road, at its intersection with West McGinnis Circle.
(Ord. No. 47,177, § 5, 3-27-18)

Laurel Avenue, at its intersection with Beechwood Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Laurel Avenue, at its intersection with Forrest Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Laurel Avenue, at its intersection with Glendale Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Laurel Avenue, as to northbound traffic, at its intersection with Greenbrier Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Laurel Avenue, at its intersection with Rogers Avenue.
(Ord. No. 40,140, § 4, 10-17-00)

Laurel Avenue, at its intersection with Woodview Avenue.
(Ord. No. 45,049, § 6, 3-26-13)

Lavallette Avenue, at its intersection with Columbus Avenue.
(Ord. No. 38,721, § 2, 4-22-97)

Layton Street, at its intersection with Hudson Avenue.
(Ord. No. 47,902, § 6, 2-25-20)

Lead Street, at its intersection with Cary Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Leake Street, at its intersection with Covel Street.
(Ord. No. 44,317, § 3, 7-12-11)

Leake Street, at its intersection with Hibie Street.
(Ord. No. 36,595, § 1, 10-15-91)

Leake Street, at its intersection with Marsh Street.
(Ord. No. 44,317, § 3, 7-12-11)

LeClair Street, as to southbound traffic, at its intersection with Little Bay Avenue.
(Code 1958, § 29-242)

Leicester Avenue, at its intersection with Marathon Avenue.
(Ord. No. 40,633, § 10, 3-19-02)

Leicester Avenue, at its intersection with Belgrave Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Leigh Street, at its intersection with Graydon Avenue.
(Ord. No. 39,758, § 4, 11-9-99)

Leigh Street, at its intersection with Shirley Avenue.
(Ord. No. 44,179, § 2, 3-22-11)

Leigh Street, at its intersection with Westover Avenue.
(Ord. No. 41,589, § 4, 9-28-04)

Lenior Circle, at its intersection with Bankhead Street.
(Code 1958, § 29-243)

Lenoir Circle, at its intersection with Central Avenue.
(Ord. No. 39,859, § 3, 2-1-00)

Lenoir Circle, at its intersection with Hampshire Avenue.
(Ord. No. 41,639, § 3, 11-16-04)

Lenoir Circle, at its intersection with Hugo Street.
(Ord. No. 42,797, § 3, 8-21-07)

Lens Avenue, at its intersection with Columbia Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Lens Avenue, at its intersection with Gornto Avenue.
(Ord. No. 41,828, § 4, 5-10-05)

Lens Avenue, at its intersection with Pershing Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Lens Avenue, at its intersection with Pope Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Leonard Road, at its intersection with Van Patten Road.
(Ord. No. 33,328, § 1, 2-26-85)

Lesselle Drive, eastern terminus, at its intersection with Halstead Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Lewis Road, at its intersection with Braden Crescent.
(Ord. No. 38,955, § 1, 10-28-97)

Lewis Road, at its intersection with Kilmer Lane.
(Ord. No. 40,235, § 1, 2-27-01; Ord. No. 40,247, § 5, 3-20-01)

Lewis Road, at its intersection with South Braden Crescent.
(Ord. No. 38,955, § 1, 10-28-97)

Ligon Street, at its intersection with Ivy Street.
(Code 1958, § 29-244)

Lillian Avenue, at ats intersection with Mona Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Lillian Avenue, at its intersection with Nathan Avenue.
(Ord. No. 41,828, § 4, 5-10-05)

Lillian Avenue, at its intersection with Norristown Drive.
(Ord. No. 49,007, § 4, 11-29-22)

Limestone Arch, western terminus, at its intersection with South Stonebridge Drive.
(Ord. No. 41,113, § 6, 7-22-03)

Lincoln Street, at its intersection with East Olney Road.
(Ord. No. 32,993, § 1, 7-10-84)

Lind Street, at its intersection with Danwood Drive.
(Ord. No. 42,200, § 3, 3-7-06)

Lindale Lane, at its intersection with Devon Street.
(Ord. No. 41,310, § 5, 2-10-04)

Lindenwood Avenue, at its intersection with Carona Avenue.
(Ord. No. 44,253, § 1, 5-24-11)

Lindsay Avenue, at its intersection with 18th Street.
(Code 1958, § 19-245)

Lindsay Avenue, at its intersection with 20th Street.
(Code 1958, § 29-246)

Lion Avenue, at its intersection with Eagle Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Lion Avenue, at its intersection with Elk Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Little Bay Avenue, at its intersection with 9th View Street.
(Ord. No. 38,841, § 1, 7-15-97)

Little Bay Avenue, at its intersection with 11th View Street.
(Ord. No. 38,841, § 1, 7-15-97)

Little Bay Avenue, at its intersection with 12th View Street.
(Ord. No. 38,841, § 1, 7-15-97)

Little Bay Avenue, at its intersection with 13th View Street.
(Code 1958, § 29-247)

Lockamy Avenue, at its intersection with Charlney Avenue.
(Ord. No. 38,301, § 2, 3-12-96)

Locust Avenue, at its intersection with Kennebeck Avenue.
(Ord. No. 40,092, § 6, 8-22-00)

Logan Street, at its intersection with Diven Street.
(Ord. No. 48,078, § 3, 7-14-20)

Logan Street, at its intersection with Fargo Street.
(Ord. No. 48,078, § 3, 7-14-20)

Lois Lane, at its intersection with Edward Street.
(Ord. No. 46,349, § 7, 4-26-16)

London Street, at its intersection with Beach View Street.
(Ord. No. 44,253, § 1, 5-24-11)

London Street, at its intersection with Chester Street.
(Ord. No. 39,911, § 4, 4-11-00)

London Street, at its intersection with Dune Street.
(Ord. No. 44,253, § 1, 5-24-11)

London Street, at its intersection with Warwick Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Longwood Drive at its intersection with Bluestone Avenue.
(Ord. No. 45,557, § 5, 5-20-14)

Lorengo Avenue, at its intersection with Mace Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Lorengo Avenue, at its intersection with St. George Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Louisa Street, at its intersection with Craig Street.
(Ord. No. 48,524, § 3, 10-12-21)

Louisa Street, at its intersection with Middlesex Street.
(Ord. No. 40,925, § 4, 1-14-03)

Lucas Avenue, at its intersection with Benton Street.
(Ord. No. 39,321, § 3, 9-22-98)

Lucille Avenue, at its intersection with Columbus Avenue.
(Ord. No. 38,481, § 1, 7-30-96)

Lunenberg Street, at its intersection with Appomattox Street.
(Ord. No. 36,560, § 1, 9-10-91)

Lunenberg Street, at its intersection with Craig Street.
(Ord. No. 48,524, § 3, 10-12-21)

Luxemburg Avenue, at its intersection with Versailles Avenue.
(Ord. No. 42,308, § 2, 6-13-06)

Lynn River Road, at its intersection with Cape View Avenue.
(Ord. No. 47,549, § 2, 3-5-19)

Lynn Street, at its intersection with Croft Street.
(Ord. No. 44,278, § 5, 6-14-11)

Lyons Avenue, at its intersection with Kitchener Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Lyons Avenue, at its intersection with Pershing Avenue.
(Ord. No. 40,460, § 6, 9-11-01)

Macdonald Road, at its intersection with Galveston Boulevard.
(Ord. No. 45,863, § 6, 2-10-15)

Mace Arch, at its northern most terminus at its intersection with Mace Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Mace Avenue, at its intersection with Leicester Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Magnolia Avenue, at its intersection with Monroe Place.
(Ord. No. 44,316, § 5, 7-12-11)

Magnolia Avenue, at its intersection with Powhatan Avenue.
(Code 1958, § 19-248; Ord. No. 46,071, § 2, 9-15-15)

Magnolia Avenue, at its intersection with Studeley Avenue.
(Ord. No. 44,540, § 1, 1-24-12)

Maiden Lane, at its intersection with 26th Bay Street.
(Ord. No. 42,890, § 5, 10-30-07)

Mahone Avenue, at its intersection with Rockingham Street.
(Ord. No. 43,445, § 3, 5-19-09)

Majestic Avenue, at its intersection with Mapleton Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Majestic Avenue, at its intersection with Myrtle Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Major Avenue, at its intersection with North Shore Road.
(Ord. No. 29,891, § 1, 4-10-79)

Major Avenue, at its intersection with Pelham Street.
(Ord. No. 48,715, § 2, 3-22-22)

Mallory Court, at its intersection with Langley Road.
(Ord. No. 44,975, § 4, 1-8-13)

Malmgren Court, western terminus, at its intersection with Halstead Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Maltby Avenue, at its intersection with Goff Street.
(Ord. No. 48,905, § 2, 9-13-22)

Maltby Avenue, at its intersection with Maltby Crescent.
(Ord. No. 39,388, § 2, 11-24-98; Ord. No. 39,859, § 1, 2-1-00; Ord. No. 40,925, § 4, 1-14-03)

Maltby Avenue, at its intersection with Olney Road.
(Ord. No. 40,925, § 4, 1-14-03)

Maltby Avenue, at its intersection with Rugby Street.
(Ord. No. 44,316, § 5, 7-12-11)

Maltby Avenue, at its intersection with Wall Street.
(Ord. No. 40,925, § 4, 1-14-03)

Maltby Avenue, at its intersection with Wall Street.
(Ord. No. 38,485, § 2, 7-30-96)

Manchester Avenue, at its intersection with Monroe Place.
(Ord. No. 38,535, § 3, 9-24-96)

Mangrove Street, at its intersection with Scott Street.
(Ord. No. 38,065, § 2, 7-18-95)

Manson Street, at its intersection with Melon Street.
(Ord. No. 43,156, § 5, 7-1-08)

Manteo Street, at its intersection with Boissevain Avenue.
(Code 1958, § 29-250)

Manteo Street, at its intersection with Raleigh Avenue.
(Code 1958, § 29-251)

Manteo Street, at its intersection with 20th Street.
(Code 1958, § 29-252; Ord. No. 31,855, § 2, 7-27-82; Ord. No. 33,546, § 1, 7-9-85)

Manteo Street, at its intersection with W. 22nd Street.
(Ord. No. 43,905, § 3, 6-22-10)

Manteo Street, at its intersection with Westover Avenue.
(Code 1958, § 29-253)

Mapleshade Avenue, as to westbound traffic, at its intersection with Laurel Avenue.
(Ord. No. 36,260, § 1, 11-20-90)

Mapleton Avenue, at its intersection with Norchester Avenue.
(Ord. No. 42,539, § 2, 1-30-07)

Mapleton Avenue, at its intersection with Godfrey Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Mapleton Avenue, at its intersection with Majestic Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Mapleton Avenue, at its intersection with Oaklawn Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Mapleton Avenue, at its intersection with Parish Road.
(Ord. No. 39,079, § 4, 3-10-98)

Mapleton Avenue, at its intersection with Woodland Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Maplewood Avenue, at its intersection with Beach View Street.
(Ord. No. 37,583, § 1, 4-19-94)

Marchant Road, at its intersection with Van Pattern Road.
(Ord. No. 43,018, § 3, 3-18-08)

Marcy Street, at its intersection with Harvard Street.
(Ord. No. 44,884, § 3, 10-23-12)

Marcy Street, at its intersection with Warren Street.
(Ord. No. 44,884, § 3, 10-23-12)

Marietta Avenue, at its intersection with Glenoak Drive.
(Ord. No. 39,964, § 5, 5-23-00)

Marietta Avenue, at its intersection with Partridge Street.
(Ord. No. 43,019, § 2, 3-18-08)

Mariette Avenue, at its intersection with Pierce Street.
(Code 1958, § 29-254)

Marius Road, at its intersection with Halstead Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Market Street, at its intersection with Granby Street.
(Ord. No. 34,236, § 1, 11-25-86)

Marlboro Avenue, at its intersection with Majestic Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

Marlboro Avenue, at its intersection with Norchester Street.
(Ord. No. 39,388, § 2, 11-24-98)

Marlfield Drive, at its intersection with Eastover Road.
(Ord. No. 41,828, § 4, 5-10-05)

Marlfield Drive, at its intersection with Pickett Road.
(Ord. No. 41,828, § 4, 5-10-05)

Marlfield Drive, at its intersection with Piney Branch Road.
(Ord. No. 41,828, § 4, 5-10-05)

Marlfield Drive, at its intersection with Pleasant Valley Road.
(Ord. No. 41,828, § 4, 5-10-05)

Marlow Avenue, at its intersection with St. George Avenue.
(Ord. No. 41,231, § 2, 11-18-03)

Marne Avenue, at its intersection with Kitchener Avenue.
(Ord. No. 41,965, § 5, 8-16-05)

Marne Avenue, at its intersection with Pershing Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Marshall Avenue, at its intersection with Claiborne Avenue.
(Code 1958, § 29-255)

Marshall Avenue, at its intersection with Olney Road.
(Code 1958, § 29-256)

Maryland Avenue, at its intersection with Gosnold Avenue.
(Ord. No. 42,095, § 4, 11-29-05)

Maryland Avenue, at its intersection with Newport Avenue.
(Code 1958, § 29-257)

Masi Street, at its intersection with Rugby Street.
(Ord. No. 48,715, § 2, 3-22-22)

Mason Creek Road, at its intersection with Maple Avenue.
(Code 1958, § 29-258)

Mason Creek Road, at its intersection with W Government Avenue.
(Ord. No. 47,062, § 4, 11-21-17)

Massachusetts Avenue, at its intersection with Gosnold Avenue.
(Ord. No. 42,095, § 4, 11-29-05)

Massachusetts Avenue, at its intersection with Newport Avenue.
(Ord. No. 42,095, § 4, 11-29-05)

Massachusetts Avenue, at its intersection with Mayflower Road.
(Ord. No. 42,765, § 4, 7-24-07)

Matoaka Street, at its intersection with Graydon Avenue.
(Ord. No. 44,316, § 5, 7-12-11)

Matoaka Street, at its intersection with Redgate Avenue.
(Ord. No. 40,791, § 4, 7-30-02; Ord. No. 42,095, § 6, 11-29-05)

Matoaka Street, at its intersection with Spotswood Avenue.
(Ord. No. 42,635, § 2, 4-24-07)

Maurice Drive, at its intersection with Wildwood Drive.
(Ord. No. 47,549, § 2, 3-5-19)

Maury Arch, at its intersection with Daniel Avenue.
(Ord. No. 41,639, § 3, 11-16-04; Ord. No. 42,095, § 6, 11-29-05)

Maycox Avenue, at its intersection with Cedar Level Avenue.
(Ord. No. 46,272, § 1, 2-23-16)

Maycox Avenue, at its intersection with Colonial Avenue.
(Ord. No. 43,525, § 2, 7-21-09; Ord. No. 46,272, § 1, 2-23-16)

Maycox Avenue, at its intersection with Restmere Road.
(Ord. No. 39,911, § 4, 4-11-00)

Maycox Avenue, at its intersection with Ruthven Avenue.
(Ord. No. 42,426, § 4, 10-3-06)

Mayflower Avenue, at its intersection with Gonsold Avenue.
(Code 1958, § 29-258.1)

Mayflower Road, at its intersection with Virginia Avenue.
(Ord. No. 41,113, § 6, 7-22-03)

Mayflower Road, at its intersection with W. 40th Street.
(Ord. No. 46,675, § 3, 12-13-16)

McCloy Road, at its intersection with Simons Drive.
(Code 1958, § 29-259)

McDowell Road, at its intersection with Ball Avenue.
(Code 1958, § 29-260)

McDowell Road, at its intersection with Grimes Avenue.
(Code 1958, § 29-261)

McFarland Road, at its intersection with Marchant Road.
(Ord. No. 47,549, § 2, 3-5-19)

McFarland Road, at its intersection with Van Pattern Road.
(Ord. No. 43,018, § 3, 3-18-08)

McKann Avenue, at its intersection with Cape Henry Avenue.
(Ord. No. 46,675, § 3, 12-13-16)

McKann Avenue, at its intersection with Dana Street.
(Ord. No. 39,321, § 3, 9-22-98)

McLemore Street, at its intersection with Grandy Avenue.
(Ord. No. 41,828, § 4, 5-10-05)

McLemore Street, at its intersection with Harrell Avenue.
(Ord. No. 48,905, § 2, 9-13-22)

Meadowbrook Lane, at its intersection with Dune Street.
(Ord. No. 42,426, § 4, 10-3-06)

Meadow Creek Road, at its intersection with Dominion Avenue/Wapiti Avenue.
(Ord. No. 49,078, § 1, 2-14-23)

Meadow Lake Court, at its intersection with Meadow Lake Drive.
(Ord. No. 42,945, § 1, 12-18-07)

Meads Road, at is intersection with Ogden Avenue.
(Ord. No. 36,197, § 2, 9-18-90)

Meads Road, westbound service road for westbound traffic only, at its intersection with an entrance thereto, located at Ogden Avenue.
(Ord. No. 36,197, § 2, 9-18-90)

Meads Road, at its intersection with Ruthven Street.
(Ord. No. 36,920, § 1, 7-14-92)

Melrose Parkway, at its intersection with Bluestone Avenue.
(Ord. No. 46,071, § 2, 9-15-15)

Mercer Drive, at its intersection with Burksdale Road.
(Code 1958, § 29-262)

Merrimac Avenue, at its intersection with Bayne Avenue.
(Ord. No. 48,546, § 2, 10-26-21)

Merrimac Avenue, at its intersection with Cary Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Merrimac Avenue, at its intersection with Mapleton Avenue.
(Ord. No. 48,546, § 2, 10-26-21)

Merrimac Avenue, at its intersection with Middle Towne Crescent.
(Ord. No. 37,117, § 1, 1-12-93)

Merritt Avenue, at its intersection with Alma Drive.
(Ord. No. 38,065, § 2, 7-18-95)

Merritt Street, at its intersection with Avenue J.
(Code 1958, § 29-263)

Merritt Street, at its intersection with Brentwood Drive.
(Code 1958, § 29-264)

Michigan Avenue, at its intersection with Gosnold Avenue.
(Ord. No. 35,565, § 1, 6-13-89)

Middle Avenue, at its intersection with Pollard Street.
(Ord. No. 47,062, § 4, 11-21-17)

Middle Avenue, at its intersection with Rugby Street.
(Ord. No. 40,883, § 3, 11-12-02)

Middlesex Street, at its intersection with Barton Street.
(Ord. No. 48,524, § 3, 10-12-21)

Middlesex Street, at its intersection with Fairfield Street.
(Ord. No. 36,560, § 1, 9-10-91)

Middlesex Street, at its intersection with Fluvanna Street.
(Ord. No. 48,524, § 3, 10-12-21)

Middlesex Street, at its intersection with Lunenberg Street.
(Ord. No. 48,524, § 3, 10-12-21)

Midfield Street, at its intersection with Filbert Street.
(Ord. No. 39,911, § 4, 4-11-00)

Reserved.
(Ord. No. 38,842, § 2, 7-15-97; Ord. No. 46,968, § 3, 9-12-17)

Midland Street, at its intersection with Joyce Street.
(Ord. No. 44,317, § 3, 7-12-11)

Midland Street, at its intersection with Leake Street.
(Ord. No. 44,317, § 3, 7-12-11)

Midland Street, at its intersection with Roseclair Street.
(Ord. No. 44,317, § 3, 7-12-11)

Military Highway, feeder road at its intersection with Meadow Lake Drive.
(Ord. No. 45,180, § 3, 7-9-13)

Military Highway service or frontage road, as to northbound traffic, at its intersection with Corporate Boulevard.
(Ord. No. 40,883, § 3, 11-12-02)

Military Highway service or frontage road, as to southbound through traffic, at its intersection with Corporate Boulevard.
(Ord. No. 40,883, § 3, 11-12-02)

Military Highway service road, as to southbound right turn lane traffic, at its intersection with Corporate Boulevard.
(Ord. No. 40,883, § 2, 11-12-02; Ord. No. 589, § 6, 9-28-04)

Military Highway service or frontage roads, at their intersection with an entrance to such service or frontage roads for southbound traffic from Military Highway, such entrance being located approximately three hundred (300) feet south of Curlew Drive.
(Code 1958, § 29-268)

Military Highway southbound service or frontage roads for southbound traffic only, at their intersection with an entrance thereto, located approximately nine hundred (900) feet south of Lewis Road.
(Ord. No. 34,342, § 1, 2-17-87)

Military Highway southbound service or frontage roads for southbound traffic only, at their intersection with an entrance thereto, located approximately five hundred fifty (550) feet north of Lowery Road.
(Ord. No. 34,342, § 1, 2-17-87)

Military Highway southbound service or frontage roads for southbound traffic only at their intersection with an entrance thereto, located approximately one thousand two hundred fifty (1,250) feet north of Lowery Road.
(Ord. No. 34,342, § 1, 2-17-87)

Military Highway southbound service or frontage roads for southbound traffic only, at their intersection with Vaughn Drive.
(Ord. No. 34,342, § 1, 2-17-87)

Military Highway southbound service or frontage roads for southbound traffic only, at their intersection with an entrance thereto, located approximately four hundred fifty (450) feet south of Vaughn Drive.
(Ord. No. 34,342, § 1, 2-17-87)

Millard Street, at its intersection with Barbara Drive.
(Ord. No. 40,092, § 6, 8-22-00)

Millard Street, at its intersection with Helsley Avenue.
(Ord. No. 38,842, § 2, 7-15-97)

Millard Street, at its intersection with Tarrallton Drive.
(Ord. No. 38,842, § 2, 7-15-97)

Millbrook Road, at its intersection with North Shore Road.
(Code 1958, § 29-269)

Milson Avenue, at its intersection with Cloncurry Road.
(Ord. No. 43,753, § 2, 3-2-10; Ord. No. 46,804, § 3, 4-11-17)

Milson Avenue, at its intersection with Daniel Avenue.
(Ord. No. 41,639, § 3, 11-16-04)

Milton Street, at its intersection with Major Avenue.
(Ord. No. 49,170, § 4, 5-9-23)

Minnesota Avenue, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Minnesota Avenue, at its intersection with Tait Terrace.
(Ord. No. 43,285, § 5, 11-18-08)

Minnie Avenue, at its intersection with Widgeon Road.
(Ord. No. 39,964, § 5, 5-23-00)

Modoc Avenue, at its intersection with Beaumont Street.
(Ord. No. 39,486, § 2, 2-23-99)

Modoc Avenue, at its intersection with Warwick Avenue.
(Ord. No. 37,041, § 1, 10-27-92)

Modoc Avenue, at its intersection with Willow Terrace.
(Ord. No. 38,390, § 2, 5-28-96)

Mona Avenue, at its intersection with Lillian Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Monarch Way, at its intersection with 41st Street.
(Ord. No. 38,301, § 2, 3-12-96; Ord. No. 38,535, § 2, 9-24-96; Ord. No. 41,637, § 2, 11-16-04)

Monarch Way, at its intersection with 43rd Street.
(Ord. No. 41,637, § 2, 11-16-04)

Monarch Way, at its intersection with 45th Street.
(Ord. No. 41,637, § 2, 11-16-04)

Monarch Way, at its intersection with 46th Street.
(Ord. No. 42,635, § 2, 4-24-07)

Monarch Way, at its intersection with 47th Street.
(Ord. No. 41,637, § 2, 11-16-04)

Monroe Place, at its intersection with Buckingham Avenue.
(Ord. No. 47,332, § 2, 8-28-18)

Monroe Place, at its intersection with Hanover Avenue.
(Ord. No. 38,535, § 3, 9-24-96)

Monroe Place, at its intersection with Lexan Avenue.
(Ord. No 38,835, § 4, 7-15-97; Ord. No. 41,637, § 3, 11-16-04)

Monroe Place, at its intersection with Magnolia Avenue.
(Ord. No. 47,062, § 4, 11-21-17)

Montague Street, at its intersection with Pythian Avenue.
(Code 1958, § 29-270)

Montana Avenue, at its intersection with Lafayette Boulevard.
(Ord. No. 40,247, § 5, 3-20-01)

Montana Avenue, at its intersection with Upshur Street.
(Ord. No. 40,646, § 5, 3-26-02)

Montclair Avenue, at its intersection with Oakwood Street.
(Ord. No. 42,467, § 3, 11-28-06)

Monterey Avenue, at its intersection with Bluestone Avenue.
(Ord. No. 38,583, § 3, 11-26-96)

Monticello Avenue, west service or frontage roads, at its intersection with 21st Street.
(Ord. No. 41,113, § 6, 7-22-03)

Morton Avenue, at its intersection with Lamberts Point Road.
(Code 1958, § 29-271)

Morton Avenue, at its intersection with 25th Street.
(Code 1958, § 29-271.1)

Morwin Street, at its intersection with Calla Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

Morwin Street, at its intersection with Modoc Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Moultrie Avenue, at its intersection with Dupont Circle.
(Ord. No. 43,019, § 2, 3-18-08)

Mount Vernon Avenue, at its intersection with Oakwood Street.
(Ord. No. 42,467, § 3, 11-28-06)

Mowbray Arch, at its intersection with Drummond Place and Botetourt Street.
(Ord. No. 48,634, § 2, 1-25-22)

Mowbray Arch, at its intersection with Westover Avenue.
(Ord. No. 44,707, § 3, 6-12-12)

Mulberry Street, at its intersection with Pear Street.
(Code 1958, § 29-272)

Munden Avenue, at its intersection with Dallas Street.
(Ord. No. 42,308, § 2, 6-13-06)

Munden Avenue, at its intersection with Galveston Boulevard.
(Ord. No. 44,316, § 5, 7-12-11)

Murray Avenue, at its intersection with Nancy Drive.
(Ord. No. 44,584, § 5, 2-28-12)

Murray Avenue, at its intersection with Tarpon Place.
(Ord. No. 47,796, § 5, 10-22-19)

Museum Place, at its intersection with Mowbray Arch.
(Code 1958, § 29-273)

Muskogee Avenue, at its intersection with Natrona Avenue.
(Ord. No. 47,241, § 4, 5-22-18)

Muskogee Avenue, at its intersection with Tappahannock Drive.
(Ord. No. 43,358, § 6, 2-3-09)

Myrtle Avenue, at its intersection with Kenton Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Myrtle Avenue, at its intersection with Majestic Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Myrtle Avenue, at its intersection with Mapole Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

Myrtle Avenue, at its intersection with Marathon Avenue.
(Ord. No. 40,633, § 10, 3-19-02)

Myrtle Avenue, at its intersection with Norchester Avenue.
(Ord. No. 43,018, § 3, 3-18-08)

N Military Highway, northbound traffic right turn onto E Little Creek Road.
(Ord. No. 46,968, § 8, 9-12-17)

Namsemond Circle, at its intersection with Central Avenue.
(Ord. No. 42,765, § 4, 7-24-07)

Nansemond Circle, with its intersection with Nassau Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Nassau Avenue, at its intersection with Chatham Circle.
(Ord. No. 42,765, § 4, 7-24-07)

Nassau Avenue, at its intersection with Lenoir Circle.
(Ord. No. 42,765, § 4, 7-24-07)

Nassau Avenue, at its intersection with Nansemond Circle.
(Ord. No. 42,765, § 4, 7-24-07)

Nassau Avenue, at its intersection with Wake Circle.
(Ord. No. 42,765, § 4, 7-24-07)

Nassau Avenue, at its intersection with Wayne Circle.
(Ord. No. 40,092, § 6, 8-22-00)

Natrona Avenue, at its intersection with Muskogee Avenue.
(Ord. No. 47,332, § 2, 8-28-18)

Natrona Avenue, at its intersection with Roland Drive.
(Ord. No. 43,358, § 6, 2-3-09)

Natrona Avenue, at its intersection with Waukesha Avenue.
(Ord. No. 47,939, § 5, 3-24-20)

Naval Base Road, at its intersection with Draper Drive.
(Ord. No. 42,765, § 4, 7-24-07)

Naval Base Road, at its intersection with Waco Street.
(Ord. No. 41,113, § 6, 7-22-03)

Nelson Street, at its intersection with Middlesex Street.
(Ord. No. 48,524, § 3, 10-12-21)

Nesbitt Drive, at its intersection with Grantham Road.
(Ord. No. 39,321, § 3, 9-22-98)

Nevada Avenue, at its intersection with Cape Henry Avenue.
(Code 1958, § 29-274)

New Hampshire Avenue, at its intersection with Gosnold Avenue.
(Code 1958, § 29-274.1)

New Hampshire, at its intersection with Newport Avenue.
(Ord. No. 42,095, § 4, 11-29-05)

New Jersey Avenue, at its intersection with Gosnold Avenue.
(Code 1958, § 29-275)

New Jersey Avenue, at its intersection with Newport Avenue.
(Code 1958, § 29-276)

New Jersey Avenue, at its intersection with Mayflower Road.
(Ord. No. 42,765, § 4, 7-24-07)

New Street, at its intersection with Hammett Avenue.
(Ord. No. 40,515, § 2, 11-13-01)

New Street, at its intersection with Stratford Street.
(Ord. No. 44,179, § 2, 3-22-11)

New York Avenue, at its intersection with Gosnold Avenue.
(Code 1958, § 29-278.1)

New York Avenue, at its intersection with Mayflower Road.
(Ord. No. 41,828, § 4, 5-10-05)

New York Avenue, at its intersection with Newport Avenue.
(Code 1958, § 29-279)

Newell Avenue, at its intersection with Carlton Street.
(Ord. No. 42,945, § 1, 12-18-07)

Newell Avenue, at its intersection with Pythian Avenue.
(Ord. No. 39,855, § 3, 2-1-00)

Newport Avenue, at its intersection with W. 23rd Street.
(Ord. No. 48,476, § 4, 8-24-21)

Newport Avenue, at its intersection with 24th Street.
(Ord. No. 47,796, § 5, 10-22-19)

Newport Avenue, at its intersection with 25th Street.
(Ord. No. 47,796, § 5, 10-22-19)

Newport Avenue, at its intersection with Birmingham Avenue.
(Code 1958, § 29-277)

Newport Avenue, at its intersection with Kingsley Lane.
(Ord. No. 43,358, § 6, 2-3-09)

Newport Avenue, at its intersection with Harvard Street.
(Ord. No. 43,445, § 3, 5-19-09)

Newport Avenue, at its intersection with North Shore Road.
(Ord. No. 43,445, § 3, 5-19-09)

Newport Avenue, at its intersection with Ridgeley Road.
(Ord. No. 46,804, § 3, 4-11-17)

Newport Avenue, at its intersection with Talbot Hall Road.
(Ord. No. 43,445, § 3, 5-19-09)

Newport Avenue, at its intersection with Mayflower Road.
(Code 1958, § 29-278)

Newport Avenue, at its intersection with West 29th Street.
(Ord. No. 35,409, § 1, 2-28-89)

Noble Street, at its intersection with Pythian Avenue.
(Code 1958, § 29-283)

Noble Street, at its intersection with Pythian Avenue.
(Ord. No. 39,855, § 3, 2-1-00)

Norchester Avenue, at its intersection with Cary Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Norchester Avenue, at its intersection with Corprew Avenue.
(Ord. No. 47,939, § 5, 3-24-20)

Norchester Avenue, at its intersection with Hollister Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Norchester Avenue, at its intersection with Mapleton Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Norchester Avenue, at its intersection with Middle Towne Crescent.
(Ord. No. 37,117, § 1, 1-12-93)

Norchester Avenue, at its intersection with Myrtle Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Norchester Avenue, at its intersection with Westminster Avenue.
(Code 1958, § 29-284)

Norchester Street, at its intersection with Stanhope Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

Norfolk Square, eastbound, at its intersection with Norfolk Square.
(Ord. No. 49,657, § 4, 7-9-24)

North Brandon Avenue, at its intersection with Brandon Avenue.
(Ord. No. 47,902, § 6, 2-25-20)

North Brandon Avenue, at its intersection with Gates Avenue.
(Ord. No. 38,390, § 2, 5-28-96)

North Gate Drive, at its intersection with East Tanners Creek Drive.
(Ord. No. 40,235, § 1, 2-27-01)

North Ingleside Road, at its intersection with Wakefield Avenue.
(Ord. No. 43,358, § 6, 2-3-09)

North Lakebridge Drive, at its intersection with the access road to Ballentine Boulevard.
(Ord. No. 40,460, § 6, 9-11-01)

North Lakeland Drive, at its intersection with Grimes Avenue.
(Code 1958, § 29-285)

North Shore Road, at its intersection with Cedar Level Avenue.
(Ord. No. 46,272, § 1, 2-23-16)

North Shore Road, at its intersection with Cloncurry Road.
(Ord. No. 39,321, § 3, 9-22-98)

North Shore Road, at its intersection with Colonial Avenue.
(Ord. No. 46,272, § 1, 2-23-16)

North Shore Road, at its intersection with Cortlandt Place.
(Ord. No. 46,271, § 1, 2-23-16)

North Shore Road, at its intersection with Hedgewood Lane.
(Ord. No. 39,388, § 2, 11-24-98; Ord. No. 47,796, § 5, 10-22-19)

North Shore Road, at its intersection with Shirland Avenue.
(Ord. No. 41,113, § 6, 7-22-03)

North Stonebridge Drive, at its intersection with South Stonebridge Drive.
(Ord. No. 41,113, § 6, 7-22-03)

North View Boulevard at its intersection with Seafarer Avenue.
(Ord. No. 45,557, § 5, 5-20-14)

Norvella Avenue, at its intersection with Bessie Street.
(Ord. No. 39,911, § 4, 4-11-00)

Norvella Avenue, at its intersection with Wellington Street.
(Code 1958, § 29-286)

Norway Place, at its intersection with Ashland Avenue.
(Ord. No. 39,109, § 1, 4-14-98)

Norway Place, as to northbound traffic only, at its intersection with the southernmost intersection with Bordeaux Avenue.
(Ord. No. 39,109, § 1, 4-14-98; Ord. No. 39,321, § 2, 9-22-98)

Norway Place, at its intersection with Holland Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Norway Place, at its intersection with Maury Crescent.
(Ord. No. 47,939, § 5, 3-24-20)

Norway Place, at its intersection with Montpelier Court.
(Ord. No. 41,639, § 3, 11-16-04)

Norway Place, as to southbound traffic only, at its intersection with North Veaux Loop.
(Ord. No. 39,109, § 1, 4-14-98)

Norway Place, at its intersection with South Veaux Loop.
(Ord. No. 39,109, § 1, 4-14-98)

Nottoway Street, at its intersection with Jersey Avenue.
(Code 1958, § 29-286.1)

Oak Grove Road, at its intersection with Catherine Street.
(Ord. No. 39,388, § 2, 11-24-98)

Oakfield Avenue, at its intersection with Hatton Street.
(Ord. No. 44,317, § 3, 7-12-11)

Oak Grove Road, at its intersection with Colonial Avenue.
(Ord. No. 40,363, § 5, 6-12-01)

Oakmont Place, at its intersection with Oakmont Drive.
(Ord. No. 40,460, § 6, 9-11-01)

Oak Park Avenue, at its intersection with Beach View Street.
(Ord. No. 44,807, § 2, 8-28-12)

Oak Park Avenue, at its intersection with Warwick Avenue.
(Ord. No. 41,310, § 5, 2-10-04)

Oakwood Street, at its intersection with Arlington Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Oakwood Street, at its intersection with Canton Avenue.
(Ord. No. 48,524, § 3, 10-12-21)

Ocella Avenue, at its intersection with Leichester Avenue.
(Ord. No. 38,065, § 2, 7-18-95)

Ogden Avenue, southbound service road for southbound traffic only, at its intersection with an entrance thereto, located at Lex Street.
(Ord. No. 36,197, § 2, 9-18-90)

O'Keefe Street, at its intersection with "A" Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

O'Keefe Street, at its intersection with "C" Avenue.
(Ord. No 38,835, § 4, 7-15-97)

O'Keefe Street, at its intersection with Goff Street.
(Ord. No. 39,911, § 4, 4-11-00)

O'Keefe Street, at its intersection with Johnson Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

O'Keefe Street, at its intersection with "A" Avenue.
(Ord. No. 39,856, § 2, 2-1-00)

O'Keefe Street, at its intersection with Washington Avenue.
(Ord. No. 43,809, § 2, 4-27-10)

Oklahoma Avenue, at its intersection with Upshur Street.
(Ord. No. 39,856, § 2, 2-1-00; Ord. No. 40,192, § 2, 1-9-01; Ord. No. 40,646, § 5, 3-26-02)

Old Brandon Avenue, at its intersection with Mallory Court.
(Ord. No. 44,975, § 4, 1-8-13)

Old Court Drive, at its intersection with Pickett Road.
(Ord. No. 39,856, § 2, 2-1-00; Ord. No. 39,911, § 2, 4-11-00; Ord. No. 41,828, § 4, 5-10-05)

Old Court Drive, at its intersection with Piney Branch Road.
(Ord. No. 41,828, § 4, 5-10-05)

Old Ocean View Road, at its intersection with Bancker Road.
(Ord. No. 44,807, § 2, 8-28-12)

Old Ocean View Road, at its intersection with Burksdale Road.
(Ord. No. 44,807, § 2, 8-28-12)

Old Ocean View Road, at its intersection with Dune Street.
(Ord. No. 46,675, § 3, 12-13-16)

Old Ocean View Road, at its intersection with E Chester Street/Mariners Way.
(Ord. No. 49,314, § 1, 9-12-23)

Old Ocean View Road, at its intersection with Earl Street.
(Ord. No. 49,314, § 1, 9-12-23)

Old Ocean View Road, at its intersection with Fishermans Road.
(Ord. No. 44,807, § 2, 8-28-12)

Old Ocean View Road, at its intersection with Mayfield Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Old Ocean View Road, at its intersection with Sheppard Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

Old Ocean View Road, at its intersection with Woodford Street.
(Ord. No. 49,314, § 1, 9-12-23)

Olean Street, at its intersection with Larkin Street.
(Ord. No. 39,388, § 2, 11-24-98)

Olean Street, at its intersection with Tait Terrace.
(Ord. No. 39,388, § 2, 11-24-98)

Oleo Road, at its intersection with Martone Road.
(Ord. No. 40,883, § 3, 11-12-02)

Olney Road, at its intersection with Claremont Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Olney Road, at its intersection with Chapel Street.
(Code 1958, § 29-286.2)

Olney Road, at its intersection with Maltby Crescent.
(Ord. No. 40,925, § 4, 1-14-03)

Olney Road, at its intersection with Reservoir Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Omohundro Avenue, at its intersection with 22nd Street.
(Ord. No. 42,945, § 1, 12-18-07)

Omohundro Avenue, at its intersection with 23rd Street.
(Ord. No. 42,890, § 5, 10-30-07)

Omohundro Avenue, at its intersection with W. 24th Street.
(Ord. No. 48,476, § 4, 8-24-21)

Omohundro Avenue, at its intersection with 33rd Street.
(Ord. No. 46,968, § 8, 9-12-17)

Omohundro Avenue, at its intersection with 37th Street.
(Code 1958, § 29-286.3)

Omohundro Avenue, at its intersection with 20th Street.
(Ord. No. 31,050, § 1, 3-24-81)

Omohundro Avenue, at its intersection with Broadway Avenue.
(Ord. No. 40,460, § 6, 9-11-01)

Orangewood Avenue, at its intersection with Branch Road.
(Ord. No. 40,235, § 1, 2-27-01)

Orange Avenue, at its intersection with Marlow Avenue.
(Code 1958, § 29-286.4-1)

Orange Avenue, at its intersection with Mason Creek Road.
(Ord. No. 47,062, § 4, 11-21-17)

Orange Avenue, at its intersection with Phillips Avenue.
(Code 1958, § 29-286.5)

Orange Street, at its intersection with Jersey Avenue.
(Code 1958, § 29-286.6)

Orapax Street, at its intersection with Boissevain Avenue.
(Ord. No. 48,270, § 7, 1-12-21)

Orapax Avenue, at its intersection with Redgate Avenue.
(Code 1958, § 29-286.7)

Orapax Street, at its intersection with Westover Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Orchid Avenue, at its intersection with Bancker Road.
(Ord. No. 46,804, § 3, 4-11-17)

Orion Avenue, at its intersection with Curlew Drive.
(Ord. No. 47,277, § 2, 6-26-18)

Overbrook Avenue, at its intersection with Atterbury Street.
(Code 1958, § 29-286.8)

Overbrook Avenue, at its intersection with Lafayette Boulevard.
(Ord. No. 43,525, § 2, 7-21-09)

Overbrook Avenue, at its intersection with Peterson Street.
(Code 1958, § 29-286.9)

Palem Road, at its intersection with Albert Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

Palem Road, at its intersection with Marietta Avenue.
(Ord. No. 39,964, § 5, 5-23-00)

Palem Road, at its intersection with Partridge Street.
(Ord. No. 39,214, § 1, 6-9-98)

Palmetto Street, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Palmetto Street, at its intersection with Santos Street.
(Ord. No. 44,707, § 3, 6-12-12)

Palmyra Street, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Palmyra Street, at its intersection with Denver Avenue.
(Ord. No. 36,390, § 1, 4-9-91)

Palmyra Street, at its intersection with Larkin Street.
(Ord. No. 36,390, § 1, 4-9-91)

Pamlico Circle, at its intersection with Central Avenue.
(Ord. No. 39,859, § 3, 2-1-00)

Pamlico Circle, at its intersection with Green Street.
(Ord. No. 37,319, § 3, 3-14-95)

Pamlico Circle, at its intersection with Hugo Street.
(Code 1958, § 29-286.10)

Parish Road, at its intersection with Hollister Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Parkdale Drive, at its intersection with Virginian Drive.
(Ord. No. 40,247, § 5, 3-20-01)

Parker Avenue, at its intersection with 39th Street.
(Ord. No. 38,484, § 2, 7-30-96)

Parker Avenue, at its intersection with 41st Street.
(Ord. No. 38,484, § 2, 7-30-96)

Parker Avenue, at its intersection with 44th Street.
(Code 1958, § 29-286.11)

Parker Avenue, at its intersection with 43th[rd] Street.
(Code 1958, § 29-286.12)

Parkview Avenue, at its intersection with Grove Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Parkview Avenue, at its intersection with Beaumont Street.
(Ord. No. 36,935, § 1, 7-28-92)

Partridge Street, at its intersection with Albert Avenue.
(Ord. No. 39,964, § 5, 5-23-00)

Partridge Street, at its intersection with Dove Street.
(Ord. No. 39,214, § 1, 6-9-98)

Partridge Street, at its intersection with North Quail Street.
(Ord. No. 39,214, § 1, 6-9-98)

Partridge Street, at its intersection with Widgeon Road.
(Ord. No. 39,964, § 5, 5-23-00)

Partridge Street, in the southbound direction only, at its intersection with Winward Road.
(Ord. No. 39,214, § 1, 6-9-98)

Partridge Street, at its intersection with Wolcott Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

Pascal Place, at its intersection with Frament Avenue.
(Ord. No. 38,935, § 2, 10-14-97)

Pasteur Court, at its intersection with Dundale Avenue.
(Ord. No. 36,793, § 2, 4-14-92)

Paul Street, at its intersection with Diven Street.
(Ord. No. 48,078, § 3, 7-14-20)

Peachtree Street, at its intersection with Maple Avenue.
(Code 1958, § 29-286.13)

Peachtree Street, at its intersection with Orange Avenue.
(Ord. No. 39,758, § 4, 11-9-99)

Pebble Lane, at its intersection with Piping Rock Road.
(Code 1958, § 29-286.14)

Pelham Street, at its intersection with Diven Street.
(Ord. No. 48,078, § 3, 7-14-20)

Pelham Street, at its intersection with Major Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

Pembroke Avenue, at its intersection with Botetourt Street.
(Code 1958, § 29-286.15)

Pembroke Avenue, at its intersection with Colonial Avenue.
(Code 1958, § 29-286.16)

Pembroke Avenue, at its intersection with Dundaff Street.
(Ord. No. 48,634, § 2, 1-25-22)

Pembroke Avenue, at its intersection with Mowbray Arch.
(Ord. No. 45,863, § 6, 2-10-15)

Pennington Road, at its intersection with Biltmore Road.
(Code 1958, § 29-286.17)

Pennington Road, at its intersection with Naval Base Road.
(Ord. No. 45,415, § 7, 1-14-14)

Pennsylvania Avenue, at its intersection with Gosnold Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Pennsylvania Avenue, at its intersection with Newport Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Pennsylvania Avenue, at its intersection with Mayflower Road.
(Ord. No. 42,765, § 4, 7-24-07)

Pepper Mill Lane, eastern and western terminus, at its intersection with Poplar Hall Drive.
(Ord. No. 41,113, § 6, 7-22-03)

Peronne Avenue, at its intersection with Pershing Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Peronne Avenue, at its intersection with Bellevue Avenue.
(Ord. No. 42,964, § 3, 1-8-08)

Peronne Avenue, at its intersection with Pope Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Peronne Avenue, at its intersection with St. Denis Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Pershing Avenue, at its intersection with Flanders Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Pershing Avenue, at its intersection with Verdun Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Pershing Avenue, at its intersection with Vimy Ridge Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Peterson Street, at its intersection with Birch Street.
(Ord. No. 41,038, § 2, 5-13-03)

Peterson Street, at its intersection with Glen Avenue.
(Code 1958, § 29-286.18)

Peterson Street, at its intersection with Harrell Avenue.
(Ord. No. 39,321, § 3, 9-22-98)

Peterson Street, at its intersection with Grandy Avenue.
(Ord. No. 39,321, § 3, 9-22-98)

Peterson Street, at its intersection with Hurley Avenue.
(Code 1958, § 29-286.19)

Peterson Street, at its intersection with Kennon Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Peterson Street, at its intersection with McKann Avenue.
(Ord. No. 48,905, § 2, 9-13-22)

Peterson Street, at its intersection with Vincent Avenue.
(Ord. No. 39,321, § 3, 9-22-98)

Phillips Avenue, at its intersection with Maple Avenue.
(Code 1958, § 29-286.21)

Philpotts Road, at its intersection with Partridge Street.
(Ord. No. 49,314, § 1, 9-12-23)

Philpotts Road, at its intersection with Pierce Street.
(Ord. No. 49,314, § 1, 9-12-23)

Philpotts Road, at its intersection with Glenoak Drive.
(Ord. No. 49,314, § 1, 9-12-23)

Pierce Street, at its intersection with Widgeon Road.
(Code 1958, § 29-286.22; Ord. No. 38,319, § 1, 3-26-96; Ord. No. 39,964, § 5, 5-23-00)

Pike Street, at its intersection with Hatton Street.
(Ord. No. 44,317, § 3, 7-12-11)

Pike Street, at its intersection with Leake Street.
(Ord. No. 44,317, § 3, 7-12-11)

Pike Street, at its intersection with Roseclair Street.
(Ord. No. 44,317, § 3, 7-12-11)

Pine View Avenue, at its intersection with Beachview Street.
(Ord. No. 40,140, § 4, 10-17-00)

Pinedale Street, at its intersection with Euwanee Place.
(Ord. No. 48,270, § 7, 1-12-21)

Pineview Avenue, at its intersection with Hastings Street.
(Ord. No. 41,310, § 5, 2-10-04)

Pineview Avenue, at its intersection with Morwin Street.
(Ord. No. 44,807, § 2, 8-28-12)

Piping Rock Road, at its intersection with Pebble Lane.
(Ord. No. 43,358, § 6, 2-3-09)

Piping Rock Road, at its intersection with Poplar Hall Drive.
(Ord. No. 41,113, § 6, 7-22-03)

Pleasant Avenue, at its intersection with 5th Bay Street.
(Code 1958, § 29-286.23)

Pleasant Avenue, at its intersection with 7th Bay Street.
(Ord. No. 46,558, § 2, 9-13-16)

Pleasant Avenue, at its intersection with 9th Bay Street.
(Code 1958, § 29-286.25)

Pleasant Avenue, at its intersection with 11th Bay Street.
(Ord. No. 46,558, § 2, 9-13-16)

Pleasant Avenue, at its intersection with 13th Bay Street.
(Ord. No. 38,319, § 2, 3-26-96)

Pleasant Avenue, at its intersection with 15th Bay Street.
(Ord. No. 48,715, § 2, 3-22-22)

Reserved.
(Ord. No. 38,319, § 2, 3-26-96; Ord. No. 48,715, § 1, 3-22-22)

Pleasant Avenue, at its intersection with 17th Bay Street.
(Ord. No. 48,715, § 2, 3-22-22)

Pleasant Avenue, at its intersection with 19th Bay Street.
(Ord. No. 38,319, § 2, 3-26-96)

Pleasant Avenue, at its intersection with 21st Bay Street.
(Ord. No. 48,715, § 2, 3-22-22)

Pleasant Avenue, at its intersection with 25th Bay Street.
(Ord. No. 42,635, § 2, 4-24-07)

Reserved.
(Ord. No. 42,890, § 5, 10-30-07; Ord. No. 44,316, § 2, 7-12-11)

Pleasant Avenue, as to eastbound traffic, at its intersection with 27th Bay Street.
(Ord. No. 44,316, § 5, 7-12-11)

Pleasant Avenue, at its intersection with 30th Bay Street.
(Ord. No. 42,890, § 5, 10-30-07)

Pleasant Valley Road, at its intersection with Greenplain Road.
(Ord. No. 41,828, § 4, 5-10-05)

Pleasant Valley Road, at its intersection with Kingswell Drive.
(Ord. No. 41,828, § 4, 5-10-05)

Plymouth Crescent, at its intersection with Newport Avenue.
(Code 1958, § 29-286.27)

Plymouth Street, at its intersection with Dune Street.
(Ord. No. 44,253, § 1, 5-24-11)

Plymouth Street, at its intersection with E. Chester Street.
(Ord. No. 44,253, § 1, 5-24-11)

Plymouth Street, at its intersection with Warwick Avenue.
(Ord. No. 44,253, § 1, 5-24-11)

Pollard Street, eastern terminus, at its intersection with Barre Street.
(Ord. No. 43,019, § 2, 3-18-08)

Pomroy Avenue, at its intersection with Tarrall Avenue.
(Ord. No. 47,177, § 5, 3-27-18)

Pope Avenue, at its intersection with Bapaume Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Pope Avenue, at its intersection with Jason Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Pope Avenue, at its intersection with Kitchener Avenue.
(Ord. No. 37,583, § 1, 4-19-94)

Pope Avenue, at its intersection with Somme Avenue.
(Ord. No. 41,639, § 3, 11-16-04)

Pope Avenue, at its intersection with St. Mihiel Avenue.
(Ord. No. 47,478, § 3, 12-11-18)

Poplar Avenue, at its intersection with Fauquier Street.
(Ord. No. 39,964, § 5, 5-23-00)

Poplar Avenue, at its intersection with Stafford Street.
(Code 1958, § 29-286.27-1)

Poppleton Street, at its intersection with Springfield Avenue.
(Code 1958, § 29-286.28)

Portal Road, as to northbound traffic, at its intersection with Broadfield Road.
(Ord. No. 42,945, § 1, 12-18-07)

Portal Road, at its intersection with Fisherman's Road.
(Ord. No. 33,419, § 2, 4-30-85)

Portview Avenue, at its intersection with Mason Creek Road.
(Ord. No. 41,639, § 3, 11-16-04)

Posey Lane, at its intersection with E Bute Street.
(Ord. No. 47,902, § 6, 2-25-20)

Powhatan Avenue, at its intersection with 38th Street.
(Ord. No. 41,589, § 4, 9-28-04)

Powhatan Avenue, at its intersection with 49th Street.
(Ord. No. 41,639, § 3, 11-16-04)

Powhatan Avenue, at its intersection with Bolling Avenue.
(Ord. No. 41,639, § 3, 11-16-04)

Pretty Lake Avenue, applying to westbound traffic, at its intersection with 30th Bay Street.
(Ord. No. 47,062, § 4, 11-21-17)

Pretty Lake Avenue, as to westbound traffic at its intersection with 1st Bay Street.
(Ord. No. 43,624, § 3, 10-13-09)

Pretty Lake Avenue, at its intersection with 3rd Bay Street.
(Ord. No. 43,018, § 3, 3-18-08)

Pretty Lake Avenue, at its intersection with 5th Bay Street.
(Ord. No. 43,018, § 3, 3-18-08)

Pretty Lake, at its intersection with 7th Bay Avenue.
(Ord. No. 48,715, § 2, 3-22-22)

Pretty Lake Avenue, at its intersection with 8th Bay Street.
(Ord. No. 36,920, § 1, 7-14-92)

Pretty Lake Avenue, at its intersection with 9th Bay Street.
(Ord. No. 46,113, § 2, 10-27-15)

Pretty Lake Avenue, at its intersection with 13th Bay Street.
(Ord. No. 33,302, § 1, 2-12-85)

Prince Avenue, at its intersection with Janaf Place.
(Ord. No. 38,935, § 2, 10-14-97)

Princess Anne service or frontage roads, at their intersections with Sigmon Street.
(Ord. No. 40,460, § 6, 9-11-01)

Princeton Avenue, at its intersection with Oakwood Street.
(Ord. No. 42,467, § 3, 11-28-06)

Princeton Avenue, at its intersection with Sycamore Street.
(Ord. No. 43,358, § 6, 2-3-09)

Princeton Avenue, at its intersection with Waltham Street.
(Ord. No. 43,358, § 6, 2-3-09)

Pugh Street, at its intersection with Marietta Avenue.
(Ord. No. 39,486, § 2, 2-23-99; Ord. No. 39,855, § 2, 2-1-00; Ord. No. 39,964, § 5, 5-23-00)

Pugh Street, at its intersection with Widgeon Road.
(Ord. No. 39,964, § 5, 5-23-00)

Pugh Street, western terminus, at its intersection with Wolcott Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

Pythian Avenue, at its intersection with Burksdale Road.
(Ord. No. 44,975, § 4, 1-8-13)

Pythian Avenue, at its intersection with Eagle Avenue.
(Code 1958, § 29-286.28-1)

Pythian Avenue, at its intersection with Elk Avenue.
(Code 1958, § 29-286.28-2)

Reserved.
(Ord. No. 39,855, § 3, 2-1-00; Ord. No. 44,975, § 1, 1-8-13)

Pythian Avenue, at its intersection with Frank Street.
(Ord. No. 39,855, § 3, 2-1-00)

Pythian Avenue, at its intersection with Sunset Drive.
(Code 1958, § 29-286.29)

Pythian Avenue, at its intersection with Winston Street.
(Ord. No. 44,975, § 4, 1-8-13)

Quail Street, at its intersection with Devonshire Street.
(Code 1958, § 29-286.30)

Quail Street, at its intersection with Partridge Street.
(Code 1958, § 29-286.32)

Quarantine Road, at its intersection with Longwood Drive.
(Ord. No. 39,321, § 3, 9-22-98)

Quarantine Road, at its intersection with Melrose Parkway.
(Ord. No. 37,166, § 1, 3-16-93)

Queens Way, at its intersection with Shirley Avenue.
(Ord. No. 41,639, § 3, 11-16-04)

Quincy Street, at its intersection with Sunset Drive.
(Ord. No. 39,911, § 4, 4-11-00; Ord. No. 41,639, § 5, 11-16-04)

Raby Road, at its intersection with Sabre Road.
(Ord. No 38,835, § 4, 7-15-97)

Racine Avenue, at its intersection with Ashland Avenue.
(Ord. No. 42,200, § 3, 3-7-06)

Racine Avenue, at its intersection with Bellevue Avenue.
(Ord. No. 40,883, § 3, 11-12-02)

Racine Avenue, at its intersection with Columbia Avenue.
(Ord. No. 42,200, § 3, 3-7-06)

Racine Avenue, at its intersection with St. Denis Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Rader Street, at its intersection with Front Street.
(Ord. No. 35,256, § 1, 10-11-88)

Radford Street, at its intersection with Jersey Avenue.
(Ord. No. 41,965, § 5, 8-16-05)

Raleigh Avenue, at its intersection with Claremont Avenue.
(Ord. No. 41,965, § 5, 8-16-05; Ord. No. 46,349, §§ 3, 7, 4-26-16)

Raleigh Avenue, at its intersection with Orapax Street.
(Code 1958, § 29-286.33)

Raleigh Avenue, at its intersection with Gresham Drive.
(Ord. No. 36,041, § 1, 5-29-90)

Ralph Street at its intersection with Harvard Street.
(Ord. No. 44,884, § 3, 10-23-12)

Ralph Street at its intersection with Warren Street.
(Ord. No. 44,884, § 3, 10-23-12)

Randall Avenue, at its intersection with Belgrave Avenue.
(Ord. No. 43,525, § 2, 7-21-09)

Randall Avenue, at its intersection with Mace Avenue.
(Ord. No. 43,525, § 2, 7-21-09)

Randall Avenue, at its intersection with St. George Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Redgate Avenue, at its intersection with Claremont Avenue.
(Ord. No. 48,270, § 7, 1-12-21)

Redgate Avenue, at its intersection with Greenway Court.
(Ord. No. 49,657, § 4, 7-9-24)

Redgate Avenue, at its intersection with Manteo Street.
(Ord. No. 31,855, § 1, 7-27-82)

Redgate Avenue, at its intersection with Orapax Avenue.
(Ord. No. 49,657, § 4, 7-9-24)

Redgate Avenue, at its intersection with Weyanoke Street.
(Ord. No. 49,657, § 4, 7-9-24)

Reel Street, at its intersection with Cabot Avenue.
(Ord. No. 45,180, § 3, 7-9-13)

Reeves Avenue, at its intersection with Claiborne Avenue.
(Code 1958, § 29-286.34)

Remsen Street, at its intersection with Harvard Street.
(Ord. No. 44,884, § 3, 10-23-12)

Remsen Street, at its intersection with Marcy Street.
(Ord. No. 44,884, § 3, 10-23-12)

Remsen Street, at its intersection with Warren Street.
(Ord. No. 44,884, § 3, 10-23-12)

Reservoir Avenue, at its intersection with Cary Avenue.
(Ord. No. 41,113, § 6, 7-22-03)

Reservoir Avenue, at its intersection with Claiborne Avenue.
(Code 1958, § 29-286.35)

Reservoir Avenue, at its intersection with Corprew Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Reservoir Avenue, at its intersection with Goff Street.
(Ord. No. 42,635, § 2, 4-24-07)

Reservoir Avenue, at its intersection with Olney Road.
(Code 1958, § 29-286.36)

Reservoir Avenue, at its intersection with Wall Street.
(Ord. No. 40,140, § 4, 10-17-00)

Reservoir Crescent, at its intersection with Reservoir Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Restmere Road, at its intersection with Birmingham Avenue.
(Ord. No. 39,481, § 2, 2-23-99)

Restmere Road, at its intersection with Burleigh Avenue.
(Code 1958, § 29-286.37)

Restmere Road, at its intersection with North Shore Road.
(Ord. No. 40,092, § 6, 8-22-00)

Rhode Island Avenue, at its intersection with Gosnold Avenue.
(Ord. No. 42,095, § 4, 11-29-05)

Rhode Island Avenue, at its intersection with Mayflower Road.
(Ord. No. 42,765, § 4, 7-24-07)

Richview Street at its intersection with Little Bay Avenue.
(Ord. No. 44,037, § 5, 11-9-10)

Ridgefield Drive, at its intersection with Camellia Road.
(Ord. No. 46,349, § 7, 4-26-16)

Ridgeley Road, at its intersection with Newport Avenue.
(Ord. No. 36,810, § 1, 5-5-92)

River Crescent, at its intersection with River Road.
(Ord. No. 41,038, § 2, 5-13-03)

River Edge Road, at its intersection with Bayberry Drive.
(Ord. No. 40,092, § 6, 8-22-00)

Roberts Road, at its intersection with Cary Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Robin Hood Road, at its intersection with Miller Store Road.
(Ord. No. 46,968, § 8, 9-12-17)

Rockingham Street, at its intersection with Louisa Street.
(Ord. No. 48,905, § 2, 9-13-22)

Rockingham Street, at its intersection with Walker Avenue.
(Ord. No. 36,560, § 1, 9-10-91)

Rodman Road, at its intersection with Commodore Drive.
(Ord. No. 41,639, § 3, 11-16-04)

Rogers Avenue, at its intersection with Glen Myrtle Avenue.
(Ord. No. 47,796, § 5, 10-22-19)

Rogers Avenue, at its intersection with Laurel Avenue.
(Ord. No. 45,049, § 6, 3-26-13)

Roseclair Street, at its intersection with Covel Street.
(Ord. No. 44,317, § 3, 7-12-11)

Roseclair Street, at its intersection with Marsh Street.
(Ord. No. 44,317, § 3, 7-12-11)

Roslyn Drive, eastern terminus, at its intersection with Gabriel Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Roslyn Drive, western terminus, at its intersection with Gabriel Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Roswell Avenue, at its intersection with Tunstall Avenue.
(Ord. No. 49,078, § 1, 2-14-23)

Round Bay Road, at its intersection with River Edge Road.
(Ord. No. 38,955, § 1, 10-28-97)

Ruffin Street, at its intersection with Vista Street.
(Ord. No. 48,715, § 2, 3-22-22)

Ruffin Way, at its intersection with E. 28th Street.
(Ord. No. 48,476, § 4, 8-24-21)

Rugby Street, at its intersection with Barre Street.
(Ord. No. 34,193, § 1, 10-28-86; Ord. No. 40,883, § 1, 11-12-02; Ord. No. 41,038, § 2, 5-13-03)

Rugby Street, at its intersection with Carona Avenue.
(Ord. No. 38,485, § 2, 7-30-96)

Rugby Street, at its intersection with Ruffin Street.
(Ord. No. 40,883, § 3, 11-12-02)

Rugby Street, at its intersection with West Avenue.
(Ord. No. 40,883, § 3, 11-12-02)

Runnymede Road, at its intersection with Shirland Avenue.
(Ord. No. 41,113, § 6, 7-22-03)

Rush Street, at its intersection with Cape Henry Avenue.
(Ord. No. 34,779, § 1, 11-10-87)

Rush Street, at its intersection with Denver Avenue.
(Ord. No. 42,589, § 5, 3-6-07)

Ruthven Road, at its intersection with Meads Road.
(Ord. No. 39,481, § 2, 2-23-99)

Ruthven Road, at its intersection with North Shore Road.
(Code 1958, § 29-286.38)

Ruthven Road, at its intersection with Sterling Street.
(Ord. No. 39,481, § 2, 2-23-99)

Salem Avenue, at its intersection with Little Bay Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

San Antonio Boulevard, at its intersection with Galveston Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

Sandpiper Lane, at its intersection with Poplar Hall Drive.
(Ord. No. 35,366, § 1, 1-10-89; Ord. No. 38,835, § 1, 7-15-97; Ord. No. 40,092, § 6, 8-22-00)

Sangamon Avenue, at its intersection with Muskogee Avenue.
(Ord. No. 40,791, § 4, 7-30-02)

Sangamon Avenue, at its intersection with Roland Drive.
(Ord. No. 43,358, § 6, 2-3-09)

Sangamon Avenue, at its intersection with Waukesha Avenue.
(Ord. No. 47,478, § 3, 12-11-18)

Santos Street, at its intersection with Kennon Avenue.
(Ord. No. 46,968, § 8, 9-12-17; Ord. No. 47,177, § 5, 3-27-18)

Santos Street, at its intersection with Nevada Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

Santos Street, at its intersection with Palmyra Street.
(Ord. No. 45,863, § 6, 2-10-15)

Scott Street, at its intersection with Trant Avenue.
(Code 1958, § 29-286.39)

Seaview Avenue, at its intersection with Norfolk Avenue.
(Ord. No. 42,910, § 1, 11-20-07)

Seaview Avenue, at its intersection with Wells Parkway.
(Ord. No. 42,910, § 1, 11-20-07)

Sedgefield Drive at its intersection with Lowell Avenue.
(Ord. No. 44,884, § 3, 10-23-12)

Sedgefield Drive at its intersection with Maymont Avenue.
(Ord. No. 44,884, § 3, 10-23-12)

Seekel Street, at its intersection with Midfield Street.
(Ord. No. 38,842, § 2, 7-15-97)

Selby Place, at its intersection with Battersea Road.
(Ord. No. 42,910, § 1, 11-20-07)

Selby Place, at its intersection with Government Avenue.
(Ord. No. 42,910, § 1, 11-20-07)

Selby Place, at its intersection with Seaview Avenue.
(Ord. No. 42,910, § 1, 11-20-07)

Selden Avenue, at its intersection with Hatton Street.
(Code 1958, § 29-286.41)

Selma Avenue, at its intersection with Gregory Drive.
(Ord. No. 47,062, § 4, 11-21-17)

Semmes Avenue, at its intersection with W. Westmont Avenue.
(Ord. No. 46,968, § 8, 9-12-17)

Sewells Point Road service or frontage roads, at its intersection with North Quail Street.
(Ord. No. 39,214, § 1, 6-9-98)

Sewells Point Road, southbound right turn slip lane, at Norview Avenue.
(Ord. No. 42,355, § 4, 8-15-06)

Sewells Point Road service or frontage roads, at its intersection with Partridge Street.
(Ord. No. 39,214, § 1, 6-9-98)

Sharp Street, at its intersection with Turner Road.
(Code 1958, § 29-286.45)

Sheppard Avenue, at its intersection with Pythian Avenue.
(Ord. No. 41,310, § 5, 2-10-04)

Sherwood Forest Lane, at its intersection with Little John Drive.
(Ord. No. 40,791, § 4, 7-30-02)

Sherwood Place, at its intersection with Battersea Road.
(Ord. No. 42,910, § 1, 11-20-07)

Sherwood Place, at its intersection with Government Avenue.
(Ord. No. 37,158, § 1, 3-9-93)

Sherwood Place, at its intersection with Seaview Avenue.
(Ord. No. 37,158, § 1, 3-9-93)

Sheryl Drive, at its intersection with Birmingham Avenue.
(Code 1958, § 29-286.46)

Shipp Avenue, at its intersection with Marshall Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Shipp Avenue, at its intersection with Reservoir Avenue.
(Ord. No. 43,156, § 5, 7-1-08)

Shirland Avenue, at its intersection with North Shore Road.
(Ord. No. 41,113, § 6, 7-22-03)

Shirland Avenue, at its intersection with Trouville Avenue.
(Code 1958, § 29-286.47)

Shirley Avenue at its intersection with Core Avenue.
(Ord. No. 43,809, § 2, 4-27-10)

Shirley Avenue, at its intersection with Manteo Street.
(Ord. No. 38,583, § 3, 11-26-96)

Shoop Avenue, at its intersection with Baupaume Avenue.
(Ord. No. 47,478, § 3, 12-11-18)

Shoop Avenue, at its intersection with Vimy Ridge Avenue.
(Ord. No. 48,270, § 7, 1-12-21)

Shorewood Drive, at its intersection with Shorewood Court.
(Ord. No. 45,863, § 6, 2-10-15)

Short Street, at its intersection with Calla Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

Short Street, at its intersection with Elm View Avenue.
(Ord. No. 44,807, § 2, 8-28-12)

Silbert Road, at its intersection with Brest Avenue.
(Ord. No. 47,478, § 3, 12-11-18)

Silvey Drive, at its intersection with Gabriel Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Silvey Drive, at its intersection with River oaks Drive.
(Ord. No. 42,964, § 3, 1-8-08)

Simms Road, at its intersection with Redmon Road.
(Ord. No. 46,804, § 3, 4-11-17)

Simms Road, at its intersection with Woodall Road.
(Ord. No. 46,804, § 3, 4-11-17)

Sinclair Street, at its intersection with Colonial Avenue.
(Ord. No. 40,363, § 5, 6-12-01)

Sinoe Place, at its intersection with Liberia Drive.
(Ord. No. 38,582, § 2, 11-26-96)

Skyline Drive, at its intersection with Wildwood Drive.
(Ord. No. 47,549, § 2, 3-5-19)

Sloane Street, at its intersection with Gilpin Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

Somme Avenue, at its intersection with Alsace Avenue.
(Ord. No. 40,247, § 5, 3-20-01)

Somme Avenue, at its intersection with Baupaume Avenue.
(Ord. No. 42,355, § 4, 8-15-06)

Somme Avenue, at its intersection with Bellevue Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Somme Avenue, at its intersection with Columbia Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Somme Avenue, at its intersection with St. Denis Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Somme Avenue, at its intersection with Pershing Avenue.
(Ord. No. 33,858, § 1, 1-28-86)

Sorby Court, at its intersection with Dundale Avenue.
(Ord. No. 47,177, § 5, 3-27-18)

South Avenue, at its intersection with Nansemond Circle.
(Ord. No. 45,415, § 7, 1-14-14)

South Braden Crescent, at its intersection with Lewis Road.
(Ord. No. 38,955, § 1, 10-28-97)

South Cape Henry Avenue, at its intersection with Vincent Avenue.
(Ord. No. 41,965, § 5, 8-16-05)

South Lakebridge Drive, at its intersection with Lakebridge Drive.
(Ord. No. 41,113, § 6, 7-22-03)

South Lakeland Drive, at its intersection with Ball Avenue.
(Code 1958, § 29-286.49)

South Lakeland Drive, at its intersection with Grimes Avenue.
(Code 1958, § 29-286.50)

South Main Street, at its intersection with Bellamy Avenue.
(Ord. No. 49,007, § 4, 11-29-22)

South Mowbray Arch, at its intersection with Yarmouth Street.
(Ord. No. 34,122, § 1, 8-19-86)

South Quail Street, at its intersection with Devonshire Road.
(Ord. No. 47,902, § 6, 2-25-20)

South Ridgeley Road, at its intersection with Ridgeley Road.
(Ord. No. 46,804, § 3, 4-11-17)

South Warwick Circle, at its intersection with Bankhead Avenue.
(Code 1958, § 29-286.51; Ord. No. 35,855, 1-9-90; Ord. No. 41,639, § 3, 11-16-04)

South Warwick Circle, at its intersection with Hampshire Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Spotswood Avenue, at its intersection with Core Avenue.
(Ord. No. 43,809, § 2, 4-27-10)

Spotswood Avenue, at its intersection with Manteo Street.
(Ord. No. 35,426, § 2, 3-14-89)

Springfield Avenue, at its intersection with Oakwood Street.
(Ord. No. 38,438, § 1, 6-25-96)

Springfield Avenue, at its intersection with Sycamore Street.
(Ord. No. 38,438, § 2, 6-25-96)

Springhill Road, eastern terminus, at its intersection with Brickell Road.
(Ord. No. 44,316, § 5, 7-12-11)

Springmeadow Boulevard, at its intersection with Gardner Drive.
(Ord. No. 49,007, § 4, 11-29-22)

Spruce Street, at its intersection with Cape Henry Avenue.
(Ord. No. 42,467, § 3, 11-28-06)

Spruce Street, at its intersection with Denver Street.
(Ord. No. 36,390, § 1, 4-9-91)

Spruce Street, at its intersection with Larkin Street.
(Ord. No. 36,390, § 1, 4-9-91)

St. Denis Avenue, at its intersection with Dunkirk Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

St. Denis Avenue, at its intersection with St. Mihiel Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

St. George Avenue, at its intersection with Leicester Avenue.
(Ord. No. 43,518, § 2, 7-14-09)

St. Mihiel Avenue, at its intersection with Bellevue Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

St. Mihiel Avenue, at its intersection with Pope Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

St. Mihiel Avenue, at its intersection with Shoop Avenue.
(Ord. No. 47,478, § 3, 12-11-18)

Stafford Street, at its intersection with Bellamy Avenue.
(Ord. No. 48,524, § 3, 10-12-21)

Stafford Street, at its intersection with Poplar Avenue.
(Ord. No. 48,524, § 3, 10-12-21)

Stanley Street, at its intersection with Pennington Road.
(Ord. No. 41,231, § 2, 11-18-03)

Stanwix Square, at its intersection with Stoney Point South.
(Ord. No. 40,883, § 3, 11-12-02)

Stanwix Square, as to northbound traffic, at its intersection with Stoney Point North.
(Code 1958, § 29-286.52)

Stanwix Square, as to southbound traffic, at its intersection with Stoney Point South.
(Code 1958, § 29-286.53)

Sterling Court, at its intersection with Victory Drive.
(Ord. No. 42,765, § 4, 7-24-07)

Sterling Street, at its intersection with Ruthven Street.
(Ord. No. 36,920, § 1, 7-14-92)

Sterling Street, at its intersection with Victory Drive.
(Ord. No. 42,765, § 4, 7-24-07)

Stockley Gardens, at its intersection with Boissevain Avenue.
(Code 1958, § 29-286.54)

Stockley Gardens, at its intersection with Raleigh Avenue.
(Code 1958, § 29-286.55)

Stockley Gardens, at its intersection with Redgate Avenue.
(Code 1958, § 29-286.55-1)

Stockton Road, at its intersection with Naval Base Road.
(Ord. No. 45,415, § 7, 1-14-14)

Strand Street, at its intersection with Alexander Street.
(Ord. No. 48,546, § 2, 10-26-21)

Strand Street, at its intersection with Wellington Street.
(Ord. No. 39,388, § 2, 11-24-98)

Stratford Street, at its intersection with Chester Street.
(Code 1958, § 29-286.56)

Stratford Street, at its intersection with East Evans Street.
(Ord. No. 44,179, § 2, 3-22-11)

Stratford Street, at its intersection with Westmont Avenue.
(Ord. No. 41,358, § 9, 4-6-04)

Strathmore Avenue, at its intersection with East End Avenue.
(Ord. No. 47,902, § 6, 2-25-20)

Studeley Avenue, at its intersection with Bolling Avenue.
(Ord. No. 41,310, § 5, 2-10-04)

Sturgis Street, at its intersection with Baychester Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Sturgis Street, at its intersection with Calla Avenue.
(Ord. No. 41,231, § 2, 11-18-03)

Sturgis Street, at its intersection with Modoc Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Sturgis Street, at its intersection with Sturgis Road.
(Ord. No. 41,231, § 2, 11-18-03)

Suburban Parkway, at its intersection with Galveston Boulevard.
(Ord. No. 39,758, § 4, 11-9-99)

Suburban Parkway, at its intersection with Kirby Crescent.
(Ord. No. 42,765, § 4, 7-24-07)

Summers Drive, at its intersection with Muskogee Avenue.
(Ord. No. 47,241, § 4, 5-22-18)

Summit Avenue, at its intersection with Barre Street.
(Ord. No. 38,485, § 2, 7-30-96)

Summit Avenue, at its intersection with Ludlow Street.
(Ord. No. 45,415, § 7, 1-14-14)

Summit Avenue, at its intersection with Middle Avenue.
(Ord. No. 40,925, § 4, 1-14-03)

Sunset Drive, at its intersection with Quincy Street.
(Ord. No. 43,358, § 6, 2-3-09)

Sussex Place, at its intersection with Upper Brandon Place.
(Ord. No. 46,071, § 2, 9-15-15)

Swan Arch, northern terminus at its intersection with Partridge Street.
(Ord. No. 44,807, § 2, 8-28-12)

Tait Court, at its intersection with Tait Terrace.
(Ord. No. 49,314, § 1, 9-12-23)

Tait Terrace, at its intersection with Arkansas Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

Tait Terrace, at its intersection with Chesapeake Boulevard.
(Ord. No. 48,270, § 7, 1-12-21)

Tait Terrace, at its intersection with Karen Marie Court.
(Ord. No. 49,314, § 1, 9-12-23)

Tait Terrace, at its intersection with Keller Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Tait Terrace, at its intersection with McKann Avenue.
(Ord. No. 49,314, § 1, 9-12-23)

Tait Terrace, at its intersection with Nevada Avenue.
(Ord. No. 39,388, § 2, 11-24-98)

Tait Terrace, at its intersection with Olean Street.
(Ord. No. 40,192, § 3, 1-9-01)

Talbot Hall Road, at its intersection with Colonial Avenue.
(Ord. No. 41,038, § 2, 5-13-03)

Tallwood Street, at its intersection with Pythian Avenue.
(Code 1958, § 29-286.57; Ord. No. 39,855, § 3, 2-1-00)

Tarrall Avenue, at its intersection with Elmore Place.
(Ord. No. 42,308, § 2, 6-13-06)

Tappahannock Drive, at its intersection with Roland Drive.
(Ord. No. 43,358, § 6, 2-3-09)

Tarrant Street, at its intersection with Keller Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Tarrant Street at its intersection with McKann Avenue.
(Ord. No. 43,659, § 4, 11-17-09)

Tazewell Street, at its intersection with Duke Street.
(Ord. No. 40,883, § 3, 11-12-02)

Tazewell Street, at its intersection with Yarmouth Street westbound only.
(Ord. No. 40,247, § 5, 3-20-01)

Templar Boulevard, at its intersection with Carlton Street.
(Code 1958, § 29-286.58; Ord. No. 39,911, § 4, 4-11-00)

Templar Boulevard, at its intersection with Pythian Avenue.
(Ord. No. 39,855, § 3, 2-1-00)

Terry Drive, at its intersection with Gamage Drive.
(Ord. No. 46,968, § 8, 9-12-17)

Texas Avenue, at its intersection with Herbert Street.
(Ord. No. 42,964, § 3, 1-8-08)

Texas Street, at its intersection with Thomas Street.
(Ord. No. 40,646, § 5, 3-26-02)

Thaxton Street, at its intersection with Albert Avenue.
(Ord. No. 39,964, § 5, 5-23-00)

Thayor Street, at its intersection with Westminster Avenue.
(Ord. No. 41,310, § 5, 2-10-04)

Thaxton Street, at its intersection with Marietta Avenue.
(Ord. No. 43,019, § 2, 3-18-08)

Thomas Street, at its intersection with Elmhurst Street.
(Ord. No. 42,426, § 4, 10-3-06)

Thomas Street, at its intersection with Iowa Avenue.
(Ord. No. 40,646, § 5, 3-26-02)

Thomas Street, at its intersection with Texas Avenue.
(Ord. No. 40,646, § 5, 3-26-02)

Tidewater Drive northbound service road at 35 feet unnamed lane located between Alsace Avenue and Cromwell Road.
(Ord. No. 39,964, § 5, 5-23-00)

Tidewater Drive service or frontage roads, at their intersection with Gilpin Avenue.
(Code 1958, § 29-286.67)

Tidewater Drive service or frontage roads, at their intersection with Granby Street.
(Code 1958, § 29-286.68)

Tidewater Drive service or frontage roads, at their intersection with Goff Street.
(Code 1958, § 29-286.69)

Tidewater Drive service or frontage roads, at their intersections with Little Creek Road.
(Code 1958, § 29-286.70)

Tidewater Drive service or frontage roads, at their intersections with Olney Road.
(Code 1958, § 29-286.71)

Tidewater Drive service or frontage roads, at their intersections with Princess Anne Road.
(Code 1958, § 29-286.72)

Tidewater Drive service or frontage roads, at their intersections with Saint Julian Avenue.
(Code 1958, § 29-286.73)

Tidewater Drive service or frontage roads, at their intersection with Tidewater Drive.
(Code 1958, § 29-286.74)

Tidewater Drive service or frontage roads, at their intersection with Virginia Beach Boulevard.
(Code 1958, § 29-286.75)

Tillman Road, at its intersection with Little John Drive.
(Ord. No. 47,902, § 6, 2-25-20)

Timothy Avenue, at it intersection with Restmere Road.
(Ord. No. 39,481, § 2, 2-23-99)

Timothy Avenue, at its intersection with Ruthven Street.
(Ord. No. 36,920, § 1, 7-14-92)

Trant Avenue, at its intersection with Scott Street.
(Ord. No. 38,583, § 3, 11-26-96)

Tree Chop Road, at its intersection with Little John Drive.
(Ord. No. 47,177, § 5, 3-27-18; Ord. No. 47,902, § 6, 2-25-20)

Trice Terrace, at its intersection with Seay Avenue.
(Ord. No 38,835, § 4, 7-15-97)

Trouville Avenue, at its intersection with Cortland Place.
(Ord. No. 38,583, § 3, 11-26-96)

Tunstall Avenue, at its intersection with Chapel Street.
(Ord. No. 49,078, § 1, 2-14-23)

Tyler Street, at its intersection with Chapel Street.
(Ord. No. 48,715, § 2, 3-22-22)

Tyler Street, at its intersection with Mission Street.
(Ord. No. 48,715, § 2, 3-22-22)

Unnamed Lane, at its intersection with Prince Edward Way.
(Ord. No. 41,639, § 3, 11-16-04)

Unnamed Lane, at its intersection with Queens Way.
(Ord. No. 41,639, § 3, 11-16-04)

Upper Brandon Place, at its intersection with Brunswick Avenue.
(Ord. No. 40,247, § 5, 3-20-01; Ord. No. 41,639, § 5, 11-16-04)

Upper Brandon Place, at its intersection with Magnolia Avenue.
(Ord. No. 41,113, § 6, 7-22-03; Ord. No. 41,639, § 5, 11-16-04)

Upper Brandon Place, at its intersection with Rockbridge Avenue.
(Ord. No. 40,092, § 6, 8-22-00; Ord. No. 41,639, § 5, 11-16-04)

Upshur Street, at its intersection with Arizona Avenue.
(Ord. No. 40,646, § 5, 3-26-02; Ord. No. 41,639, § 5, 11-16-04)

Vaiden Street, at its intersection with Green Street.
(Ord. No. 42,765, § 4, 7-24-07)

Van Patten Road, at its intersection with Burksdale Road.
(Ord. No. 43,018, § 3, 3-18-08)

Verdun Avenue, at its intersection with Kitchener Avenue.
(Ord. No. 37,583, § 1, 4-19-94)

Versailles Place, at its intersection with Luxembourg Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Vick Street, at its intersection with Mission Street.
(Ord. No. 48,715, § 2, 3-22-22)

Victoria Avenue, at its intersection with Norchester Street.
(Ord. No. 42,635, § 2, 4-24-07)

Vimy Ridge Avenue, at its intersection with Bapaume Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Vimy Ridge Avenue, at its intersection with Bellevue Avenue.
(Ord. No. 39,911, § 4, 4-11-00)

Vimy Ridge Avenue, at its intersection with Columbia Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Vimy Ridge Avenue, at its intersection with Pope Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Vimy Ridge Avenue, at its intersection with St. Denis Avenue.
(Ord. No. 42,797, § 3, 8-21-07)

Vincent Avenue, at its intersection with Dana Street.
(Ord. No. 43,358, § 6, 2-3-09)

Vincent Avenue, at its intersection with Cape Henry Avenue.
(Ord. No 38,835, § 4, 7-15-97)

Vincent Avenue, at its intersection with Davis Street.
(Ord. No. 39,321, § 3, 9-22-98)

Vincent Avenue, at its intersection with Hanbury Street.
(Ord. No. 42,635, § 2, 4-24-07)

Vincent Avenue, at its intersection with Tarrant Street.
(Ord. No. 39,911, § 4, 4-11-00)

Vine Street, at its intersection with Melon Street.
(Ord. No. 39,911, § 4, 4-11-00)

Virgilina Avenue, at its intersection with Willow Terrace.
(Ord. No. 36,197, § 2, 9-18-90)

Virginia Avenue, at its intersection with Gosnold Avenue.
(Code 1958, § 29-286.87)

Virginia Avenue, at its intersection with Mayflower Road.
(Ord. No. 46,675, § 3, 12-13-16)

Virginia Avenue, at its intersection with Newport Avenue.
(Code 1958, § 29-286.88)

Virginia Avenue, at its intersection with Warwick Avenue.
(Ord. No. 43,905, § 3, 6-22-10)

Virginia Beach Boulevard eastbound service or frontage road, at its intersection with an entrance to such service or frontage road for

eastbound traffic from Virginia Beach Boulevard, such entrance being located approximately five hundred (500) feet east of Anna Street.
(Code 1958, § 29-286.88-1)

Reserved.
(Code 1958, § 29-286.88-02; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Code 1958, § 29-286.88-2; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Code 1958, § 27-286.88-3; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Ord. No. 34,342, § 1, 2-17-87; Ord. No. 46,804, § 1, 4-11-17)

Virginia Beach Boulevard westbound service or frontage road for westbound traffic only, at its intersection with an entrance thereto, located approximately three hundred (300) feet east of Burling Avenue.
(Ord. No. 34,342, § 1, 2-17-87)

Virginia Beach Boulevard service or frontage roads, at their intersections with entrances to such service or frontage roads for eastbound traffic and westbound traffic from Virginia Beach Boulevard, such entrances being located at Clarence Street.
(Code 1958, § 29-286.88-6)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for westbound traffic from Virginia Beach Boulevard, such entrances being located approximately three hundred twenty (320) feet west of Clarence Street.
(Code 1958, § 29-286.88-7)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for eastbound traffic from Virginia Beach Boulevard, such entrance being located approximately four hundred eighty (480) feet east of Clarence Street.
(Code 1958, § 29-286.88-8)

Virginia Beach Boulevard eastbound service or frontage road for eastbound traffic only, at its intersection with an entrance thereto, located approximately three hundred forty (340) feet west of George Street.
(Ord. No. 34,342, § 1, 2-17-87)

Virginia Beach Boulevard westbound service or frontage road for westbound traffic only at its intersection with an entrance thereto, located approximately three hundred twenty-five (325) feet east of George Street.
(Ord. No. 34,342, § 1, 2-17-87)

Virginia Beach Boulevard westbound service or frontage road for westbound traffic only, at its intersection with an entrance thereto, located approximately two hundred twenty (220) feet east of Glenrock Road.
(Ord. No. 34,342, § 1, 2-17-87)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for westbound traffic from Virginia Beach Boulevard, such entrance being located at Hanson Avenue.
(Code 1958, § 29-286.88-13)

Reserved.
(Code 1958, § 29-286.88-14; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Code 1958, § 29-286.88-15; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Ord. No. 34,342, § 1, 2-17-87; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Ord. No. 34,342, § 1, 2-17-87; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Ord. No. 34,342, § 1, 2-17-87; Ord. No. 46,804, § 1, 4-11-17)

Virginia Beach Boulevard eastbound service or frontage road for eastbound traffic only, at its intersection with an entrance thereto, located approximately two hundred fifty-five (255) feet west of Kempsville Road.
(Ord. No. 34,342, § 1, 2-17-87)

Virginia Beach Boulevard westbound service or frontage road for westbound traffic only, at its intersection with an entrance thereto, located approximately two hundred fifty (250) feet east of Kempsville Road.
(Ord. No. 34,342, § 1, 2-17-87)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for eastbound traffic from Virginia Beach Boulevard, such entrance being located approximately six hundred fifty (650) feet east of Kempsville Road.
(Code 1958, § 29-286.88-20)

Virginia Beach Boulevard westbound service or frontage roads, at its intersection with an entrance to such service or frontage roads for westbound traffic from Virginia Beach Boulevard, such entrance being located at Maltby Avenue.
(Code 1958, § 29-286.88-21)

Reserved.
(Code 1958, § 29-286.88-22; Ord. No. 46,804, § 1, 4-11-17)

Virginia Beach Boulevard service or frontage roads, at their intersection with entrances to such service or frontage roads for eastbound traffic and westbound traffic from Virginia Beach Boulevard, such entrances being located approximately six hundred (600) feet west of Newtown Road.
(Code 1958, § 29-286.88-24)

Virginia Beach Boulevard eastbound service or frontage road for eastbound traffic only, at its intersection with an entrance thereto, located approximately three hundred (300) feet west of Newtown Road.
(Ord. No. 34,342, § 1, 2-17-87)

Virginia Beach Boulevard north and south service or frontage roads for westbound traffic only, at their intersections with entrances thereto, located at Newtown Road.
(Ord. No. 34,342, § 1, 2-17-87)

Reserved.
(Code 1958, § 29-286.88-25; Ord. No. 46,804, § 1, 4-11-17)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for westbound traffic from Virginia Beach Boulevard, such entrance being located approximately four hundred twenty-five (425) feet east of Park Avenue.
(Code 1958, § 29-286.88-26)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for westbound traffic from Virginia Beach Boulevard, such entrance being located approximately seven hundred ninety (790) feet east of Park Avenue.
(Code 1958, § 29-286.88-27)

Reserved.
(Code 1958, § 29-286.88-28; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Ord. No. 34,342, § 1, 2-17-87; Ord. No. 46,804, § 1, 4-11-17)

Reserved.
(Ord. No. 34,342, § 1, 2-17-87; Ord. No. 46,804, § 1, 4-11-17)

Virginia Beach Boulevard westbound service or frontage roads, at their intersection with an entrance to such service or frontage roads for westbound traffic from Virginia Beach Boulevard, such entrance being located at Reservoir Avenue.
(Code 1958, § 29-286.88-30)

Reserved.
(Code 1958, § 29-286.88-31; Ord. No. 46,804, § 1, 4-11-17)

Virginia Beach Boulevard service or frontage roads, at their intersection with an entrance to such service or frontage roads for eastbound traffic from Virginia Beach Boulevard, such entrance being located approximately two hundred eighty (280) feet west of Scott Street.
(Code 1958, § 29-286.88-32)

Virginia Beach Boulevard service or frontage roads, at their intersection with entrances to such service or frontage roads for eastbound traffic and westbound traffic from Virginia Beach Boulevard, such entrances being located approximately three hundred (300) feet east of Winburne Lane.
(Code 1958, § 29-286.88-33)

Virginian Drive, at its intersection with Galveston Boulevard.
(Ord. No. 42,589, § 5, 3-6-07)

Virginian Drive, at its intersection with Kirby Crescent.
(Ord. No. 42,589, § 5, 3-6-07)

Vivian Street, at its intersection with Norvella Avenue.
(Code 1958, § 29-286.98)

Vivian Street, at its intersection with Texas Avenue.
(Ord. No. 46,968, § 8, 9-12-17)

W. 24th Street, at its intersection with DeBree Avenue.
(Ord. No. 48,476, § 4, 8-24-21)

W. 24th Street, at its intersection with Newport Avenue.
(Ord. No. 48,476, § 4, 8-24-21)

W. 25th Street, at its intersection with Bowdens Ferry Road.
(Ord. No. 47,478, § 3, 12-11-18)

W. 25th Street, at its intersection with DeBree Avenue.
(Ord. No. 48,476, § 4, 8-24-21)

W. 25th Street, at its intersection with Newport Avenue.
(Ord. No. 48,476, § 4, 8-24-21)

W. 25th Street, at its intersection with Omonhundro Avenue.
(Ord. No. 48,476, § 4, 8-24-21)

W. 42nd Street, at its intersection with Mayflower Road.
(Ord. No. 46,675, § 3, 12-13-16)

W. 49th Street, at its intersection with Bluestone Avenue.
(Ord. No. 48,546, § 2, 10-26-21)

W Indian River Road, at its intersection with South Main Street.
(Ord. No. 47,902, § 6, 2-25-20)

W Olney Road, at its intersection with Orapax Street.
(Ord. No. 46,349, § 7, 4-26-16)

W Princess Anne Road, at its intersection with Langley Road.
(Ord. No. 47,902, § 6, 2-25-20)

W. Princess Anne Road, at its intersection with Leigh Street.
(Ord. No. 48,476, § 4, 8-24-21)

Wailes Avenue, at its intersection with George Street.
(Ord. No. 34,916, § 1, 2-23-88)

Wailes Avenue, at its intersection with Winburne Lane.
(Ord. No. 39,388, § 2, 11-24-98)

Wakefield Avenue, at its intersection with Gatling Avenue.
(Ord. No. 43,156, § 5, 7-1-08)

Wakefield Avenue, at its intersection with Seay Avenue.
(Code 1958, § 29-286.99)

Walke Street, at its intersection with Mariner Street.
(Ord. No. 42,355, § 4, 8-15-06)

Walker Avenue, at its intersection with Culpepper Street.
(Ord. No. 48,524, § 3, 10-12-21)

Walker Avenue, at its intersection with Fauquier Street.
(Ord. No. 42,308, § 2, 6-13-06)

Walker Avenue, at its intersection with Rockingham Street.
(Ord. No. 48,524, § 3, 10-12-21)

Wall Street, at its intersection with Barraud Avenue.
(Ord. No. 38,485, § 2, 7-30-96; Ord. No. 44,316, § 5, 7-12-11)

Walters Drive, at its intersection with Dominion Avenue.
(Ord. No. 46,968, § 8, 9-12-17)

Walters Drive, at its intersection with Ridgefield Drive.
(Ord. No. 46,968, § 8, 9-12-17)

Waltham Street, at its intersection with Arlington Avenue.
(Ord. No. 36,833, § 1, 5-19-92; Ord. No. 39,911, § 2, 4-11-00; Ord. No. 42,765, § 4, 7-24-07)

Waltham Street, at its intersection with Canton Avenue.
(Ord. No. 48,524, § 3, 10-12-21)

Wapiti Avenue, as to westbound traffic, at its intersection with Bison Avenue.
(Code 1958, § 29-286.100)

Warren Crescent, at its intersection with Colonial Avenue.
(Ord. No. 40,883, § 3, 11-12-02)

Warren Crescent, eastern terminus at its intersection with Pembroke Avenue.
(Ord. No. 46,804, § 3, 4-11-17)

Warren Crescent, western terminus at its intersection with Pembroke Avenue.
(Ord. No. 46,804, § 3, 4-11-17)

Warwick Avenue eastbound, at its intersection with Hastings Street.
(Ord. No. 40,140, § 4, 10-17-00)

Washington Avenue, at its intersection with O'Keefe Street.
(Ord. No. 39,635, § 3, 6-22-99)

Washington Avenue, at its intersection with Proescher Street.
(Ord. No. 39,856, § 2, 2-1-00; Ord. No. 39,911, § 4, 4-11-00)

Washington Park, at its intersection with Leonard Road.
(Ord. No. 34,155, § 1, 9-24-86)

Watson Street, at its intersection with Elkin Street.
(Ord. No. 39,911, § 4, 4-11-00)

Waukesha Avenue, at its intersection with Tappahannock Drive.
(Ord. No. 43,358, § 6, 2-3-09)

Waverly Way, at its intersection with 28th Street.
(Ord. No. 41,310, § 5, 2-10-04)

Wayman Street, at its intersection with Oakfield Avenue.
(Ord. No. 44,317, § 3, 7-12-11)

Wayman Street, at its intersection with Selden Avenue.
(Ord. No. 41,734, § 3, 3-1-05)

Wayne Circle, at its intersection with Central Avenue.
(Ord. No. 41,329, § 1, 2-24-04)

Wayne Circle, at its intersection with South Avenue.
(Ord. No. 45,415, § 7, 1-14-14)

Wellington Road, at its intersection with Biltmore Road.
(Ord. No. 45,415, § 7, 1-14-14)

Wellington Road, at its intersection with Stanley Street.
(Ord. No. 45,415, § 7, 1-14-14)

Wellington Street, at its intersection with Norvella Avenue.
(Ord. No. 44,707, § 3, 6-12-12)

Wellington Street, at its intersection with Picadilly Street.
(Ord. No. 40,633, § 10, 3-19-02)

Wellington Street, at its intersection with Strand Street.
(Ord. No. 39,388, § 2, 11-24-98)

Wellington Street, at its intersection with Texas Avenue.
(Ord. No. 43,156, § 5, 7-1-08)

Wellington Street, at its intersection with Windermere Avenue.
(Ord. No. 42,964, § 3, 1-8-08)

Wellman Street, at its intersection with Bartee Street.
(Ord. No. 43,018, § 3, 3-18-08)

Wellman Street, at its intersection with Chambers Street.
(Ord. No. 44,317, § 3, 7-12-11)

Wells Parkway, at its intersection with Battersea Road.
(Ord. No. 42,910, § 1, 11-20-07)

Wells Parkway, at its intersection with Government Avenue.
(Ord. No. 37,158, § 1, 3-9-93)

Wells Parkway, at its intersection with Seaview Avenue.
(Ord. No. 39,964, § 5, 5-23-00)

West Azalea Point Road, at its intersection with Martone Road.
(Ord. No. 44,316, § 5, 7-12-11)

West Glen Road, at its intersection with Galveston Boulevard.
(Ord. No. 47,332, § 2, 8-28-18)

Westcliff Drive, at its intersection with Brentwood Drive.
(Code 1958, § 29-286.101)

Westmont Avenue, at its intersection with the southern leg of Stratford Street.
(Ord. No. 41,358, § 9, 4-6-04)

Westmoreland Avenue, at its intersection with Bolling Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Westmoreland Avenue, at its intersection with Buckingham Avenue.
(Ord. No. 47,241, § 4, 5-22-18)

Westmoreland Avenue, at its intersection with Monroe Place.
(Code 1958, § 29-286.102)

Westover Avenue, at its intersection with Blow Street.
(Ord. No. 41,828, § 4, 5-10-05)

Westover Avenue, at its intersection with Matoaka Street.
(Ord. No. 39,486, § 2, 2-23-99)

Westover Avenue, at its intersection with Clarement Avenue.
(Ord. No. 36,153, § 1, 7-31-90)

Whit Avenue, at its intersection with Parkview Avenue, where southbound vehicles on Whit Avenue shall, immediately before crossing or entering Parkview Avenue, come to a complete stop and upon crossing or entering Parkview Avenue, shall yield the right-of-way to vehicles approaching on Parkview Avenue.
(Ord. No. 31,127, § 1, 5-12-81)

Whitaker Lane, at its intersection with E Olney Road.
(Ord. No. 48,546, § 2, 10-26-21)

White Chapel Road, at its intersection with Alsace Avenue.
(Ord. No. 47,241, § 4, 5-22-18)

Whitehead Avenue, at its intersection with Culpepper Street.
(Ord. No. 42,635, § 2, 4-24-07)

Whitehead Street, at its intersection with Craig Street.
(Code 1958, § 29-286.102-1)

Whitehorn Drive, at its intersection with Widgeon Road.
(Ord. No. 39,964, § 5, 5-23-00)

Wide Street, at its intersection with Bagnall Road.
(Ord. No. 49,078, § 1, 2-14-23)

Wide Street, at its intersection with Henry Street.
(Ord. No. 48,715, § 2, 3-22-22)

Wide Street, at its intersection with Olney Road.
(Ord. No. 40,235, § 1, 2-27-01)

Widgeon Road, at its intersection with Partridge Street.
(Ord. No. 49,314, § 1, 9-12-23)

Widgeon Road, at its intersection with Pugh Street.
(Ord. No. 49,314, § 1, 9-12-23)

Wilby Street at its intersection with Marcy Street.
(Ord. No. 44,884, § 3, 10-23-12)

Reserved.
(Ord. No. 44,884, § 3, 10-23-12; Ord. No. 45,180, § 2, 7-9-13)

Wilkie Road, at its intersection with Quincy Street.
(Code 1958, § 29-286.102-2)

Wilkie Road, at its intersection with Radnor Road.
(Ord. No. 39,911, § 4, 4-11-00)

Willard Place, at its intersection with Columbia Avenue.
(Ord. No. 48,634, § 2, 1-25-22)

Willben Street at its intersection with 27th Bay Street.
(Ord. No. 45,557, § 5, 5-20-14)

Willingham Street, at its intersection with Hughart Street.
(Ord. No. 48,078, § 3, 7-14-20)

Willow Court, at its intersection with Modoc Avenue.
(Ord. No. 47,241, § 4, 5-22-18)

Willow Terrace, at its intersection with Kingston Avenue.
(Ord. No. 47,062, § 4, 11-21-17)

Willow Terrace, at its intersection with Virgilina Avenue.
(Ord. No. 39,486, § 2, 2-23-99)

Willoughby Avenue, at its intersection with Reeves Avenue.
(Code 1958, § 29-286.103)

Willoughby Avenue, at its intersection with Clay Avenue.
(Code 1958, § 29-286.104)

Wilmington Street, at its intersection with Diven Street.
(Ord. No. 48,078, § 3, 7-14-20)

Winburne Lane, at its intersection with Wailes Avenue.
(Code 1958, § 29-286.105)

Windermere Avenue, at its intersection with Herbert Street.
(Ord. No. 44,278, § 5, 6-14-11)

Windermere Avenue, at its intersection with Humboldt Street.
(Ord. No. 44,278, § 5, 6-14-11)

Windsor Avenue, at its intersection with Olney Road.
(Code 1958, § 29-286.106)

Winshire Street, at its intersection with Hammett Avenue.
(Ord. No. 47,478, § 3, 12-11-18)

Winston Street, at its intersection with Pythian Avenue.
(Ord. No. 38,390, § 2, 5-28-96; Ord. No. 39,855, § 3, 2-1-00)

Wolcott Avenue, at its intersection with Pierce Street.
(Ord. No. 42,426, § 4, 10-3-06)

Wolcott Avenue, at its intersection with Glenoak Drive.

Wolcott Avenue, at its intersection with Pierce Street.
(Ord. No. 43,019, § 2, 3-18-08)

Wolcott Avenue, at its intersection with Thaxton Street.
(Ord. No. 38,390, § 2, 5-28-96)

Wolferton Street, at its intersection with Middle Towne Crescent.
(Ord. No. 37,158, § 1, § 3-9-93)

Wood Street, at its intersection with Chapel Street.
(Code 1958, § 29-286.107)

Woodall Road, at its intersection with Flowerfield Road.
(Ord. No. 42,890, § 5, 10-30-07)

Woodbine Road, at its intersection with Shorewood Drive.
(Ord. No. 49,007, § 4, 11-29-22)

Woodfin Avenue, at its intersection with Suburban Parkway.
(Ord. No. 42,589, § 5, 3-6-07)

Woodford Street, at its intersection with Chapin Street.
(Ord. No. 42,095, § 4, 11-29-05; Ord. No. 42,539, § 2, 1-30-07; Ord. No. 42,589, § 5, 3-6-07)

Woodland Avenue, northernmost terminus, at its intersection with Godfrey Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Woodland Avenue, southernmost terminus, at its intersection with Godfrey Avenue.
(Ord. No. 42,890, § 5, 10-30-07)

Woodland Avenue, at its intersection with Majestic Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Woodland Avenue, at its intersection with Norchester Avenue.
(Ord. No. 42,539, § 2, 1-30-07; Ord. No. 42,589, § 5, 3-6-07)

Woodland Avenue, at its intersection with Oaklawn Avenue.
(Ord. No. 43,624, § 3, 10-13-09)

Woodland Avenue, at its intersection with Parish Road.
(Ord. No. 42,890, § 5, 10-30-07)

Woodrow Avenue, at its intersection with North Brandon Avenue.
(Ord. No. 40,633, § 10, 3-19-02; Ord. No. 42,095, § 6, 11-29-05; Ord. No. 42,539, § 2, 1-30-07; Ord. No. 42,589, § 5, 3-6-07)

Woodview Avenue, at its intersection with Evergreen Avenue.
(Ord. No. 48,715, § 2, 3-22-22)

Woodview Avenue, at its intersection with Glen Myrtle Avenue.
(Ord. No. 48,715, § 2, 3-22-22)

Woolsey Street, at its intersection with Danwood Drive.
(Ord. No. 42,890, § 5, 10-30-07)

Woolsey Street, at its intersection with Early Street.
(Ord. No. 39,964, § 5, 5-23-00; Ord. No. 42,539, § 2, 1-30-07; Ord. No. 42,589, § 5, 3-6-07)

Workwood Road, at its intersection with Clayton Drive.
(Ord. No. 40,791, § 4, 7-30-02; Ord. No. 42,539, § 2, 1-30-07; Ord. No. 42,589, § 5, 3-6-07)

Workwood Road, at its intersection with University Drive.
(Ord. No. 47,062, § 4, 11-21-17)

Woronoca Avenue, at its intersection with Atlans Street.
(Ord. No. 46,349, § 7, 4-26-16)

Worth Street, at its intersection with Little Bay Avenue.
(Ord. No. 44,037, § 5, 11-9-10)

Wyngate Drive, at its intersection with Pickett Road.
(Ord. No. 41,828, § 4, 5-10-05; Ord. No. 42,539, § 2, 1-30-07; Ord. No. 42,589, § 5, 3-6-07)

Wyngate Drive, at its intersection with Piney Branch Road.
(Ord. No. 41,828, § 4, 5-10-05; Ord. No. 42,539, § 2, 1-30-07; Ord. No. 42,589, § 5, 3-6-07)

Wyngate Drive, at its intersection with Pleasant Valley Road.
(Ord. No. 41,828, § 4, 5-10-05; Ord. No. 42,539, § 2, 1-30-07; Ord. No. 42,589, § 5, 3-6-07)

Wyoming Avenue, at its intersection with Cape Henry Avenue.
(Code 1958, § 29-286.108)

Wythe Place, at its intersection with Manchester Avenue.
(Ord. No. 37,618, § 1, 5-24-94)

Yarmouth Street, at its intersection with Bute Street.
(Code 1958, § 29-286.109)

Yarmouth Street, at its intersection with College Place.
(Ord. No. 36,415, § 1, 5-14-91)

Yarmouth Street, at its intersection with Freemason Street.
(Ord. No. 36,415, § 1, 5-14-91)

Yarmouth Street, at its intersection with Tazewell Street.
(Ord. No. 40,092, § 6, 8-22-00)

York Street, as to eastbound traffic only, at its intersection with Duke Street.
(Ord. No. 39,345, § 3, 10-20-98)

Yorktown Drive, at its intersection with Suburban Parkway.
(Ord. No. 42,589, § 5, 3-6-07)

Yorktown Drive, at its intersection with Virginian Drive.
(Ord. No. 42,589, § 5, 3-6-07)

Cross references—Stop intersections at airport, § 4-34; duty to stop at mall intersections, § 31-15.

State law reference—Authority of city to designate stop intersections, Code of Virginia, § 46.2-1301.

Sec. 25-655. Through streets.

Generally. The city manager is hereby authorized and directed to erect and maintain, at the intersections of the streets designated in the following subsections of this section, appropriate markers or signs clearly indicating such intersections as intersections at which vehicles entering such streets shall stop. When such markers or signs are in place, the driver of every vehicle crossing or entering any of the streets designated in the following subsections of this section, between the designated points, shall, immediately before crossing or entering the same, bring such vehicle to a full stop and, upon crossing or entering the same, shall yield the right-of-way to vehicles approaching on such streets, except at intersections where automatic signals are installed.
(Code 1958, §§ 29-352—29-354)

4th View Street, between Ocean View Avenue and O'Connor Crescent.
(Ord. No. 40,363, § 6, 6-12-01)

21st Street, between the eastern line of Hampton Boulevard and the western line of Monticello Avenue, except at its intersection with Colley Avenue, Colonial Avenue, Llewellyn Avenue and Granby Street.
(Code 1958, § 29-390.72)

26th Street, from the eastern line of Hampton Boulevard to its intersection with Lafayette Boulevard, except at its intersection with Colley Avenue, Monticello Avenue and Church Street.
(Code 1958, § 29-390.74)

27th Street, from its intersection with 26th Street at Ruffin Way to the eastern line of Hampton Boulevard, except at its intersection with Colley Avenue, Monticello Avenue and Church Street.
(Code 1958, § 29-390.73)

35th Street, between the eastern line of Hampton Boulevard and the western line of Granby Street, except at its intersection with Colley Avenue, Colonial Avenue and Llewellyn Avenue.
(Code 1958, § 29-390.69)

38th Street, between the eastern line of Powhatan Avenue and the western line of Granby Street, except at its intersection with Hampton Boulevard, Colley Avenue, Colonial Avenue and Llewellyn Avenue.
(Code 1958, § 29-390.68)

49th Street, between the eastern line of Powhatan Avenue and the western line of Colley Avenue, except at its intersection with Hampton Boulevard.
(Code 1958, § 29-390.1)

Admiral Taussig Boulevard, between the eastern line of Hampton Boulevard and the northern line of Little Creek Road, except at its intersection with Granby Street.
(Code 1958, § 29-355)

Almeda Avenue, between the southern line of Robin Hood Road and the southern line of the Norfolk-Southern Railroad tracks.
(Code 1958, § 29-356)

Azalea Garden Road, between the southern line of Little Creek Road and the northern line of Virginia Beach Boulevard, except at its intersection with Military Highway and Princess Anne Road.
(Code 1958, § 29-357)

Bainbridge Boulevard, between the eastern line of South Main Street and the city limits.
(Code 1958, § 29-358)

Ballentine Boulevard, between the eastern line of Chesapeake Boulevard and the northern line of Virginia Beach Boulevard, except at its intersection with Princess Anne Road.
(Code 1958, § 29-359)

Bank Street, between the southern line of City Hall Avenue and the northern line of Main Street.
(Code 1958, § 29-360)

Bay Avenue, between the eastern line of First View Street and the western line of Tidewater Drive, except at its intersection with Granby Street.
(Code 1958, § 29-361)

Bay View Boulevard, between the eastern line of Granby Street and the eastern line of Cape View Avenue, except at its intersection with Tidewater Drive and Chesapeake Boulevard.
(Code 1958, § 29-362)

Beachland Street, between the northern line of Indian River Road and the southern line of Springfield Avenue.
(Code 1958, § 29-363)

Berkley Avenue, between the eastern line of Chestnut Street and the southerly line of Berkley Avenue Extended, except at its intersection with State Street.
(Code 1958, § 29-364)

Berkley Avenue Extended, between the eastern line of Berkley Avenue and the city limits, except at its intersection with Wilson Road and Campostella Road.
(Code 1958, § 29-365)

Boush Street, between the southern line of Virginia Beach Boulevard and the southern line of Main Street, except at its intersection with Brambleton Avenue.
(Code 1958, § 29-367)

Brambleton Avenue, between Hampton Boulevard and the Campostella Bridge.
(Code 1958, § 29-368)

Campostella Road, between the Campostella Bridge and the city limits.
(Code 1958, § 29-369)

Cape View Avenue, between the northern line of Bay View Boulevard and the southern line of Ocean View Avenue.
(Code 1958, § 29-370)

Chesapeake Boulevard, between the northern line of Tait Terrace and the southern line of Ocean View Avenue.
(Ord. No. 41,358, § 10, 4-6-04)

Chesapeake Street, between the eastern line of Chesapeake Boulevard and the southern line of Ocean View Avenue.
(Code 1958, § 29-373)

Chestnut Street, between the western line of Pearl Street and the northern line of Liberty Street.
(Code 1958, § 29-374)

Church Street, between the eastern line of Granby Street and the southern line of Wood Street, except at its intersection with Princess Anne Road, Virginia Beach Boulevard and Brambleton Avenue.
(Code 1958, § 29-375)

City Hall Avenue, between the eastern line of Boush Street and Tidewater Drive, except at its intersection with St. Paul's Boulevard.
(Code 1958, § 29-376)

Claremont Avenue, between the northern line of Redgate Avenue and western line of Hampton Boulevard, except at its intersections with Westover Avenue and Princess Anne Road.
(Ord. No. 35,855, § 1, 1-9-90)

Colley Avenue, between the northern line of Bolling Avenue and the northern line of Brambleton Avenue.
(Code 1958, § 29-377)

Colonial Avenue, between the northern line of Olney Road and Mayflower Road, except at its intersection with 26th Street and 27th Street.
(Code 1958, § 29-378)

Corprew Avenue, between the eastern line of Park Avenue and the western line of Ballentine Boulevard.
(Ord. No. 36,389, § 2, 4-9-91)

Cromwell Drive, between the southern line of Willow Wood Drive and the western line of Chesapeake Boulevard, except at its intersection with Tidewater Drive.
(Code 1958, § 29-380)

Cromwell Road, between the eastern line of Chesapeake Boulevard and the northern line of Tait Terrace.
(Code 1958, § 20-381)

Curlew Drive, between the eastern line of Military Highway and the western line of Newtown Road.
(Code 1958, § 29-382)

Delaware Avenue, between the eastern line of Colonial Avenue and the western line of Granby Street, except at its intersection with Llewellyn Avenue.
(Code 1958, § 29-383)

Diven Street, between the northern line of Little Creek Road and the southern line of International Terminal Boulevard.
(Code 1958, § 29-384)

Dudley Avenue, between the western line of Hume Street and the western line of Chesapeake Boulevard.
(Code 1958, § 29-385)

Duffy's Lane, between the northern line of Portview Avenue and the southern line of Ocean View Avenue.
(Code 1958, § 29-386)

Fenchurch Street, between the southern line of Wood Street and the northern line of Market Street.
(Code 1958, § 29-388)

First View Street, between the southern line of Bay Avenue and the southern line of Ocean View Avenue.
(Code 1958, § 29-389)

Fisherman's Road, between the eastern line of Chesapeake Boulevard and the western line of Portal Road.
(Code 1958, § 29-390; Ord. No. 33,419, § 1, 4-30-85)

Glenrock Road, between the southern line of Virginia Beach Boulevard and the southern line of Poplar Hall Drive.
(Code 1958, § 29-390.2)

Granby Street, between the southern line of Ocean View Avenue and the northern line of Portview Avenue and the southern line of Bute Street, except at its intersection with 27th Street, 26th Street, Virginia Beach Boulevard and Brambleton Avenue.
(Code 1958, § 29-390.3)

Halprin Drive, between the western line of Winn Lane and the northern line of Wharton Avenue, except at its intersection with Little Creek Road.
(Code 1958, § 29-390.4)

Hampton Boulevard, between Brambleton Avenue and the northern line of Admiral Taussig Boulevard.
(Code 1958, § 29-390.5)

Heutte Drive, between the eastern line of Azalea Garden Road and the western line of Shore Drive.
(Code 1958, § 29-390.6)

Indian River Road, between the eastern line of State Street and the city limits, except at its intersection with Wilson Road and Campostella Road.
(Code 1958, § 29-390.7)

Ingleside Road, between the northern line of Tait Terrace and the southern line of Westminster Avenue, except at its intersection with Princess Anne Road and Virginia Beach Boulevard.
(Code 1958, § 29-390.8)

Jamestown Crescent, between the eastern line of Hampton Boulevard and the northern line of Bolling Avenue.
(Code 1958, § 29-390.9)

Johnstons Road, between the eastern line of Denison Avenue and the western line of Winn Lane, except at its intersection with Sewells Point Road, Chesapeake Boulevard and Military Highway.
(Code 1958, § 29-390.10)

Kempsville Road, between the southern line of Northampton Boulevard and the city limits, except at its intersection with Virginia Beach Boulevard.
(Code 1958, § 29-390.11)

Kidd Boulevard, between the northern line of Sellger Drive and the southern line of Curlew Drive.
(Code 1958, § 29-390.12)

Kilmer Lane, between the southern line of the Norfolk-Southern Railroad tracks and the northern line of Princess Anne Road.
(Code 1958, § 29-390.13)

Kimball Terrace, between the eastern line of Brambleton Avenue and the southern line of Westminster Avenue.
(Code 1958, § 29-390.14)

Kingsley Lane, between the western line of Granby Street and the eastern line of Newport Avenue.
(Code 1958, § 29-390.15; Ord. No. 34,790, § 1, 11-10-87)

Lafayette Boulevard, between the 26th Street Bridge and the western line of Chesapeake Boulevard, except at its intersection with Tidewater Drive.
(Code 1958, § 29-390.16)

Lens Avenue, between the northern line of Shoop Avenue and the southern line of Lafayette Boulevard.
(Code 1958, § 29-390.17)

Liberty Street, between the western line of Chestnut Street and the city limits.
(Code 1958, § 29-390.18)

Lindenwood Street, between the western line of Tidewater Drive and the northern line of 25th Street.
(Code 1958, § 29-390.19)

Little Creek Road, between the eastern line of Hampton Boulevard and the western line of Shore Drive, except at its intersection with Granby Street, Chesapeake Boulevard and Military Highway.
(Code 1958, § 29-390.20)

Llewellyn Avenue, between the western line of Granby Street and the northern line of Virginia Beach Boulevard, except at its intersection with 26th Street and 27th Street.
(Code 1958, § 29-390.21)

Lorengo Avenue, between the eastern line of Granby Street and the western line of Hume Street, except at its intersection with Tidewater Drive.
(Code 1958, § 29-390.22)

Lovitt Avenue, between the northern line of Water Street and the eastern line of Park Avenue.
(Code 1958, § 29-390.23)

Lowery Road, between the eastern line of Military Highway and the western line of Kempsville Road.
(Code 1958, § 29-390.24)

Main Street, between the eastern line of Boush Street and the eastern line of Bank Street.
(Code 1958, § 29-390.25)

Maple Avenue, between the western line of Granby Street and the eastern line of First View Street.
(Code 1958, § 29-390.26)

Meadow Creek Road, between the northern line of Little Creek Road and the southern line of the property owned by the United States of America.
(Code 1958, § 29-390.27)

Meadowlake Drive, between the eastern line of Military Highway and the eastern line of Grimes Avenue.
(Code 1958, § 29-390.28)

Merrimac Avenue, between the northern line of Kimball Terrace and the southern line of Ballentine Boulevard, and between the northern line of Corprew Avenue and the southern line of Princess Anne Road, except at its intersection with Virginia Beach Boulevard.
(Ord. No. 36,389, § 2, 4-9-91)

Military Highway, between the northern line of Little Creek Road and the city limits at the eastern branch of the Elizabeth River.
(Code 1958, § 29-390.30)

Monticello Avenue, between the western line of Church Street and the northern line of City Hall Avenue, except at its intersection with Brambleton Avenue.
(Code 1958, § 29-390.31)

Newport Avenue, between the northern line of Kingsley Lane and the southern line of West Little Creek Road.
(Code 1958, § 29-390.32)

Newtown Road, between the southern line of Lyndhurst Avenue and the northern line of

Cabot Avenue, except at its intersection with Kempsville Road and Virginia Beach Boulevard.
(Code 1958, § 29-390.33)

Northampton Boulevard, between the eastern line of Military Highway and the city limits.
(Code 1958, § 29-390.34)

Norview Avenue, between the eastern line of Tidewater Drive and the western line of Azalea Garden Road, except at its intersection with Chesapeake Boulevard and Military Highway.
(Code 1958, § 29-390.35)

Norway Place, between the western line of Lafayette Boulevard and the southern line of Willow Wood Drive.
(Code 1958, § 29-390.36)

Ocean Avenue, between the eastern line of Bay Avenue and the western line of Tidewater Drive, except at its intersection with Granby Street.
(Code 1958, § 29-390.37)

Ocean View Avenue, between Shore Drive and the city limits, except at its intersection with Tidewater Drive.
(Code 1958, § 29-390.38)

Oklahoma Avenue, between the northern line of Tait Terrace and the southern line of Robin Hood Road.
(Code 1958, § 29-390.39)

Old Ocean View Road, between the northern line of Little Creek Road and the eastern line of Tidewater Drive, except at its intersection with Bay View Boulevard.
(Code 1958, § 29-390.40)

Olney Road, between the eastern line of Colley Avenue and the western line of Monticello Avenue, except at its intersection with Boush Street and Granby Street.
(Code 1958, § 29-390.41)

Park Avenue, from the northern line of Lovitt Avenue to the southern line of Princess Anne Road, except at its intersection with Brambleton Avenue and Virginia Beach Boulevard.
(Code 1958, § 29-390.42)

Philpotts Road, between the eastern line of Tidewater Drive and the western line of Sewells Point Road.
(Code 1958, § 29-390.43)

Plume Street, between the eastern line of Boush Street and the western line of St. Paul's Boulevard, except at its intersection with Bank Street.
(Code 1958, § 29-390.44)

Polling Avenue, between the western line of Powhatan Avenue and the western line of Jamestown Crescent, except at its intersection with Hampton Boulevard.
(Code 1958, § 29-366)

Poplar Hall Drive, between the eastern line of Military Highway and the southern line of Virginia Beach Boulevard.
(Code 1958, § 29-390.45; Ord. No. 32,024, § 2, 11-9-82)

Powhatan Avenue, between the southern line of 39th Street and the southern line of Bolling Avenue.
(Code 1958, § 29-390.46; Ord. No. 41,589, § 1, 9-28-04)

Pretty Lake Avenue, between the eastern line of Shore Drive and the eastern line of 30th Bay Street.
(Ord. No. 36,330, § 1, 2-12-91)

Princess Anne Road, between the eastern line of Claremont Avenue and the western line of Military Highway, except at its intersection with Hampton Boulevard, Colley Avenue, Colonial Avenue, Llewellyn Avenue, Granby Street, Monticello Avenue, Church Street, Tidewater Drive, Park Avenue, Ballentine Boulevard, Ingleside Road, Azalea Garden Road, Sewells Point Road and Kilmer Lane.
(Code 1958, § 29-390.47; Ord. No. 32,849, § 1, 4-24-84)

Raby Road, between the northern line of Virginia Beach Boulevard and the western line of Military Highway.
(Code 1958, § 29-390.48)

Randall Avenue, between the eastern line of Granby Street and the western line of Hume Street, except at its intersection with Tidewater Drive.
(Code 1958, § 29-390.49)

Roberts Road, between the southern line of St. Julian Avenue and the northern line of Princess Anne Road.
(Code 1958, § 29-390.50)

Robin Hood Road, between the eastern line of Chesapeake Boulevard and the eastern line of Miller Store Road, except at its intersection with Sewells Point Road, Azalea Garden Road and Military Highway.
(Code 1958, § 29-390.51)

Rush Street, between the southern line of Tait Terrace and the northern line of Princess Anne Road.
(Code 1958, § 29-390.52)

Sedgefield Drive, between the southern line of Philpotts Road and the northern line of Norview Avenue.
(Code 1958, § 29-390.53)

Sellger Drive, between the eastern line of Military Highway and the western line of McGinnis Circle.
(Code 1958, § 29-390.54)

Sewells Point Road, between the southern line of Little Creek Road and the northern line of Princess Anne Road, except at its intersection with Chesapeake Boulevard and Azalea Garden Road.
(Code 1958, § 29-390.55)

Sheppard Avenue, between the eastern line of Tidewater Drive and the eastern line of Dickson Drive, except at its intersection with Old Ocean View Road and Chesapeake Boulevard.
(Code 1958, § 29-390.56)

Shore Drive, between the southern line of Ocean View Avenue and the city limits.
(Code 1958, § 29-390.57)

Shoop Avenue, between the eastern line of Tidewater Drive and the eastern line of Chesapeake Boulevard.
(Code 1958, § 29-390.58)

South Main Street, between the southern line of Bainbridge Boulevard and the southern line of Indian River Road, except at its intersection with Liberty Street and Berkley Avenue.
(Code 1958, § 29-390.59)

Springfield Avenue, between the eastern line of Campostella Road and the eastern line of Beachland Street.
(Code 1958, § 29-390.60)

Springmeadow Boulevard, between the eastern line of Military Highway and the western line of Hunt Road.
(Code 1958, § 29-390.61)

State Street, between the northern line of Liberty Street and the Berkley Plaza of the Norfolk-Berkley Bridge.
(Code 1958, § 29-390.62)

St. Julian Avenue, between the eastern line of Tidewater Drive and the eastern line of Roberts Road.
(Code 1958, § 29-390.63)

St. Paul's Boulevard, between the northern line of Waterfront Drive and the eastern line of Monticello Avenue, except at its intersection with Brambleton Avenue.
(Code 1958, § 29-390.64)

Sturgis Street, between the northern line of Bay View Boulevard and the southern line of Ocean View Avenue.
(Code 1958, § 29-390.65)

Suburban Parkway, between the eastern line of Granby Street and the northern line of Thole Street.
(Code 1958, § 29-390.66)

Tait Terrace, between the western line of Chesapeake Boulevard and the eastern line of Rush Street, except at its intersection with Ballentine Boulevard and Ingleside Road.
(Code 1958, § 29-390.67)

Thole Street, between the eastern line of Granby Street and the western line of Tidewater Drive.
(Code 1958, § 29-390.70)

Tidewater Drive, between the northern line of Ocean View Avenue and the northern line of

Holt Street, except at its intersection with Granby Street, Little Creek Road, Virginia Beach Boulevard and Brambleton Avenue.
(Code 1958, § 29-390.71)

Village Avenue, between the eastern line of Ingleside Road and the southern line of Princess Anne Road, except at its intersection with Azalea Garden Road.
(Code 1958, § 29-390.75)

Virginia Beach Boulevard, between the northern line of Brambleton Avenue and the eastern city limits, except at its intersection with Olney Road and Monticello Avenue.
(Code 1958, § 29-390.76)

Walters Drive, between the northern line of Heutte Drive and the northern line of Creekwood Drive, except at its intersection with Heutte Drive.
(Code 1958, § 29-390.77)

Water Street, between Waterfront Drive and the eastern line of Lovitt Avenue.
(Code 1958, § 29-390.78)

Waterfront Drive, between the southern line of Main Street and Interstate 264.
(Code 1958, § 29-390.79)

Westminster Avenue, between the eastern line of Merrimac Avenue and the western line of Ingleside Road.
(Code 1958, § 29-390.80)

Westmont Avenue, between the western line of Tidewater Drive and the eastern line of Granby Street.
(Code 1958, § 29-390.81)

Westover Avenue, between the western line of Hampton Boulevard and the Southern line of Weyanoke Street, excluding its intersection with Claremont Avenue.
(Code 1958, § 29-390.82; Ord. No. 36,154, § 1, 7-31-90)

Willow Wood Drive, between the eastern line of Granby Street and the western line of Tidewater Drive.
(Code 1958, § 29-390.83)

Wilson Road, between the western line of Campostella Road and the city limits.
(Code 1958, § 29-390.84)

Sec. 25-656. Trucks of one and one-half tons or over prohibited on certain streets; exceptions.

Generally. The city manager is hereby authorized and directed to erect and maintain, at proper places on the streets designated in the following subsections of this section, appropriate signs or markers indicating that motor trucks of a rated capacity of one and one-half (1½) tons and over shall not be driven or operated on such streets between the designated points. When such signs or markers are in place, it shall be unlawful for any person to drive or operate any motor truck of a rated capacity of one and one-half (1½) tons and over on the streets designated in this section between the designated points, except for the purpose of receiving loads and making deliveries.

27th Street, between Hampton Boulevard and Bowdens Ferry Road.

36th Street, between Granby Street and Killam Avenue.

37th Street, between Granby Street and Hampton Boulevard.

38th Street, between Granby Street and Colley Avenue.

39th Street between Hampton Boulevard and Killam Avenue.

47th Street, between Colley Avenue and Killam Avenue.

Abilene Avenue, between Curlew Drive and Blackstone Street.

Adderley Street, between Brockwell Avenue and Lucas Avenue.

Addison Street, between Granby Street and Moseley Lane.

Alsace Avenue, from Tidewater Drive to Cromwell Street.

Argonne Avenue, between Lafayette Boulevard and Cromwell Drive.

Arkansas Avenue, between Tait Terrace and Cape Henry Avenue.

Arlington Avenue, between Waltham Street and Campostella Road.

Atterbury Street, between Sewells Point Road and Azalea Garden Road.

Avenue "B", between Church Street and Sutton Street.

Avenue H, between Sewells Point Road and Chesapeake Boulevard.

Avon Road, between Philpotts Road and Marmot Avenue.

Azalea Garden Road, between Military Highway and Little Creek Road.

Azalea Garden Road, between Robin Hood and Princess Anne Road.

Baldwin Avenue, between Colley Avenue and Manteo Street.

Ball Avenue, between Norview Avenue and Tulane Road.

Ballentine Boulevard, between Princess Anne Road and Chesapeake Boulevard.

Bangor Avenue, between Kempsville Road and Newtown Road.

Barraud Avenue between Wall Street and Thistle Street.

Bartee Street, between Glenrock Road and N. Military Highway.

Battersea Road, between Granby Street and Norfolk Avenue.

Bay Avenue, between Tidewater Drive and its intersection with Ocean Avenue.

Bellmore Avenue, between Myrtle Avenue and Virginia Beach Boulevard.

Berkley Avenue Extended, between Berkley Avenue and Obendorfer Road.

Biltmore Road, between Tidewater Drive and Stockton Road.

Blackstone Street, between Kempsville Road and Abilene Avenue.

Bland Street, between Sewells Point Road and its western terminus.

Bluestone Avenue, between Bolling Avenue and 49th Street.

Boissevain Avenue, between Colley Avenue and Colonial Avenue.

Bolling Avenue, between Colley Avenue and its western terminus.

Bolton Street, between Goff Street and Saint Julian Avenue.

Bond Street, between Park Avenue and Reservoir Avenue.

Briar Hill Road, between Virginia Beach Boulevard and Poplar Hall Drive.

Brickell Road, between Military Highway and Briar Hill Road.

Brightley Road, between Sunshine Avenue and Tidewater Drive.

Brockwell Avenue, between Adderley Street and Hargrove Street.

Bruce Street, between Sewells Point Road and Azalea Garden Road.

Buckingham Street, between Chesapeake Boulevard and County Street.

Burleigh Avenue, between Colonial Avenue and Granby Street.

Camellia Road, between Little Creek Road and Heutte Drive.

Campos Place, between Indian River Road and Mount Vernon Avenue.

Canton Avenue, between Campostella Road and Waltham Street.

Cape Henry Avenue, between Azalea Garden Road and Wyoming Avenue.

Center Drive, between Kempsville Road and Newtown Road.

Chambers Street, from 300 feet west of Wellman Street to Bartee Street.

Charlotte Street, between Fenchurch Street and Tidewater Drive.

Chester Street, between Granby Street and Tidewater Drive.

Church Street, between Princess Anne Road and Wood Street.

Claremont Avenue, between Hampton Boulevard and Redgate Avenue.

Claremont Avenue, between Hampton Boulevard and Raleigh Avenue.

Colley Avenue, between Bolling Avenue and 52nd Street.

Colonial Avenue, between W Olney Road and Washington Park.

Cornick Road, between Military Highway and Kempsville Road.

Corprew Avenue, between Park Avenue and Reservoir Avenue.

Courtney Avenue, between Princess Anne Road and Goff Street.

Cromwell Drive, between Tidewater Drive and Chesapeake Boulevard.

Cypress Street, between Wilson Road and Vernon Drive.

Delaware Avenue, between Granby Street and Gosnold Avenue.

Duke Street, between Brambleton Avenue and a point one hundred fifty (150) feet southeast of Tazewell Street.

Dunway Street, between Kennebeck Avenue and Beamon Road.

Dure Road, between Kempsville Road and Cornick Road.

Edwards Street, between International Boulevard and East Tanners Creek Drive.

Elk Avenue, between Chesapeake Boulevard and Buffalo Avenue.

Elkins Street, between Campostella Road and Indian River Road.

Ellsmere Avenue, between Kennebeck Avenue and Beamon Road.

Fauquier Street, between Berkley Avenue and Indian River Road.

Fauquier Street, between Berkley Avenue and Liberty Street.

Filbert Street, between Granby Street and Midfield Street.

Frizzell Avenue, between Adderley Street and Hargrove Street.

Frizzell Avenue, between Poplar Hall Drive and Chambers Street.

Gabriel Drive, beginning one hundred eighty (180) feet north of Silvey Drive.

George Street, between E Virginia Beach Boulevard and its northern terminus.

Gladstone Road, between Tidewater Drive and Stockton Road.

Glenoak Drive, between Philpotts Road and Maymont Avenue.

Glenrock Road, between Hargrove Street and Curlew Drive.

Glenrock Road, between Poplar Hall Drive and Chambers Street.

Granby Street, between Main Street and Brambleton Avenue.

Granby Street, between Admiral Taussig Boulevard and Bay View Boulevard.

Granby Avenue, between Lafayette Boulevard and Tait Terrace.

Green Street, between Sewells Point Road and Hyde Circle.

Grimes Avenue, between Norview Avenue and Tulane Road.

Hale Street, between Rugby Street and Lindenwood Avenue.

Halprin Drive, between Johnstons Road and Little Creek Road.

Hampshire Avenue, between Humboldt Street and Sewells Point Road.

Hanson Avenue, between Virginia Beach Boulevard and Booth Street.

Hargrove Street, between Frizzell Avenue and Glenrock Road.

Harrington Avenue, between Colley Avenue and Hampton Boulevard.

Henrico Street, between Chesapeake Boulevard and County Street.

Heutte Drive, between Azalea Garden Road and Shore Drive.

Hicks Avenue, between Curlew Drive and Hargrove Street.

Hicks Avenue, between Poplar Hall Drive and Chambers Street.

Hilton Street, between Military Highway and Gifford Street.

Honaker Avenue, between Curlew Drive and Hargrove Street.

Hugo Street, between Sewells Point Road and its western terminus.

Humboldt Street, between Norview Avenue and Hampshire Avenue.

Indian River Road, between South Main Street and Fauquier Street.

Ingleside Road, between the southern terminus thereof and Virginia Beach Boulevard.

Jamestown Crescent, between Hampton Boulevard and the Colley Avenue Bridge.

Johns Street, between Norview Avenue and Norvella Avenue.

Johnstons Road, between Military Highway and Halprin Drive.

Joyner Street, between Chesapeake Boulevard and Sewells Point Road.

Kempsville Road, between Northampton Boulevard and Virginia Beach Boulevard.

Kennebeck Avenue, between Azalea Garden Road and Ellsmere Avenue.

Kennebeck Avenue, between Sewells Point Road and Azalea Garden Road.

Kidd Boulevard, between Curlew Drive and Sellger Drive.

Kilmer Lane, between Princess Anne Road and Lewis Road.

Kimball Terrace, between Ballentine Boulevard and Westminster Avenue.

Kimball Terrace, between Forbes Street and East End Avenue.

Knox Road, between Philpotts Road and Glen Oak Road.

Krick Street, between Sewells Point Road and Azalea Garden Road.

LaSalle Avenue, between Norway Place and Tidewater Drive.

Lewis Road, between Kilmer Lane and Military Highway.

Lexan Avenue, between Hampton Boulevard and Monroe Place.

Liberty Street, between South Main Street and Halifax Street.

Lindenwood Avenue, between Tidewater Drive and Carona Avenue.

Lion Avenue, between Little Creek Road and Templar Boulevard.

Llewellyn Avenue, between Granby Street and 27th Street.

Longdale Drive, between Military Highway and East Tanners Creek Drive.

Louisiana Drive, between Granby Street and Virginian Drive.

Lowery Road, between Kempsville Road and Military Highway.

Lucas Avenue, between Adderley Street and Curlew Drive.

Maltby Avenue, between Brambleton Avenue and Olney Road.

Maltby Avenue, between Virginia Beach Boulevard and Maltby Crescent.

Mangrove Avenue, between Ingleside Road and Scott Street.

Mapole Avenue, between E. Virginia Beach Boulevard and Corprew Avenue.

Marsh Street, between Berkley Avenue Extension and Indian River Road.

Marshall Avenue, between Brambleton Avenue and Virginia Beach Boulevard.

Marvin Avenue, between Tidewater Drive and Old Ocean View Road.

Mary Avenue, between Kempsville Road and Cornick Road.

Maycox Avenue, between Colonial Avenue and Granby Street.

Meadow Lake Drive, between Military Highway and Grimes Avenue.

Melon Street, between Berkley Avenue Extended and Campostella Road.

Merrimac Avenue, between Virginia Beach Boulevard and Princess Anne Road.

Military Highway, West Service Road, between Pebble Lane and Curlew Drive.

Montclair Avenue, between Waltham Street and Campostella Road.

Moseley Lane, between Wilson Avenue and Addison Street.

Mowbray Arch, between Olney Road at the Hague Landing and its intersection with the eastern extremity of Pembroke Avenue at the Sarah Leigh Hospital.

Myrtle Avenue, between Merrimac Avenue and Bellmore Avenue.

Nevada Avenue, between Cape Henry Avenue and Tait Terrace.

Newport Avenue, between Little Creek Road and Kingsley Lane.

Norchester Avenue, between Virginia Beach Boulevard and East Princess Anne Road.

Norfolk Avenue, between Battersea Road and Ocean View Avenue.

North Center Drive, between Kempsville Road and Center Drive.

North Shore Road, between Colonial Avenue and Granby Street.

North Shore Road, between Hampton Boulevard and Diven Street.

Norvella Avenue, between Johns Street and Military Highway.

Nottaway Street, between Chesapeake Boulevard and County Street.

Oaklawn Avenue, between Princess Anne Road and Virginia Beach Boulevard.

Oakwood Street, between Indian River Road and Arlington Avenue.

Ocean Avenue, between Tidewater Drive and its intersection with Bay Avenue.

Ocean View Avenue, between 4th View Street and its western terminus.

Olney Road, between Cecelia Street and Park Avenue.

Orapax Street, between Redgate Avenue and Westover Avenue.

Pasadena Court, between Hampton Boulevard and Shirland Avenue.

Pebble Lane, between Military Highway and Piping Rock Road.

Poplar Hall Drive, between Military Highway and Briar Hill Road.

Pennington Road, between Naval Base Road and Biltmore Road.

Pythian Avenue, between Little Creek Road and Elk Avenue.

Pollard Street, between West Avenue and Barre Street.

Portview Avenue, between Mason Creek Road and 1st View Street.

Princess Anne Road, between Monticello Avenue and Hampton Boulevard.

Princeton Avenue, between Campostella Road and Sycamore Street.

Redgate Avenue, between Hampton Boulevard and Orapax Avenue westbound direction only.

Reservoir Avenue, between Brambleton Avenue and Virginia Beach Boulevard.

Robin Hood Road, between Chesapeake Boulevard and Azalea Garden Road.

Round Bay Road, between Virginia Beach Boulevard and River Edge Road.

Rugby Street, between West Avenue and Middle Avenue.

Rush Street, between Princess Anne Road and Tait Terrace.

Ruthven Road, between West Little Creek Road and Terminal Boulevard.

Seaview Avenue, between Granby Street and Norfolk Avenue.

Sedgefield Drive, between Philpotts Road and Norview Avenue.

Sellger Drive, between Kidd Boulevard and Military Highway.

Sewells Point Road, between Princess Anne Road and Azalea Garden Road.

Shirland Avenue, between North Shore Road and Pasadena Court.

Springfield Avenue, between Campostella Road and Sycamore Street.

Stanley Street, between Pennington Road and Tidewater Drive.

Stockton Road, between Naval Base Road and Biltmore Road.

Sunshine Avenue, between Norview Avenue and Brightley Road.

Templar Boulevard, between Chesapeake Boulevard and Lion Avenue.

Thole Street, between Tidewater Drive and Granby Street.

Tidewater Drive east side service road, between Saint Julian Avenue and Taggart Street, for northbound traffic only.

Vernon Drive, between Berkley Avenue Extended and Campostella Road.

Virginia Avenue, between Colley Avenue and Colonial Avenue.

Virginian Drive, between Little Creek Road and Louisiana Drive.

W. Balview Avenue, between Mason Creek Road and 1st View Street.

Wade Street, between Kempsville Road and Wailes Avenue.

Waltham Street, between Indian River Road and Arlington Avenue.

Wellington Road, between Stanley Street and Biltmore Road.

West Avenue, between Rugby Street and Lindenwood Avenue.

Wildwood Drive, between Little Creek Road and Johnstons Road.

Willow Wood Drive, between Granby Street and Tidewater Drive.

Wilson Avenue, between Granby Street and Monticello Avenue.

Woodford Street, between Tidewater Drive and Old Ocean View Road.

Woodrow Avenue, between Hampton Boulevard and 21st Street.

Woolsey Street, between Sewells Point Road and Azalea Garden Road.

Wyoming Avenue, between Princess Anne Road and Tait Terrace.

(Ord. No. 49,298, § 1, 8-29-23; Ord. No. 49,314, § 2, 9-12-23)

Editor's note—Ord. No. 49,298, § 1, adopted August 29, 2023, amended § 25-656 in its entirety to read as herein set out. Former § 25-656, pertained to similar subject matter. See the Code Comparative Table for historical derivation.

State law reference—Authority for above section, Code of Virginia, § 46.2-1304.

Sec. 25-656.1. Tractor trucks restricted on certain streets; exceptions.

(a) *Generally.* The city manager is hereby authorized and directed to erect and maintain, at proper places on the streets designated in the following subsections, appropriate signs or markers indicating that driving or operating tractor trucks (with or without trailers), as defined within this section, is restricted in the manner

indicated on such streets. When such signs or markers are in place, it shall be unlawful for any person to drive or operate any tractor truck (with or without a trailer), as defined in this section, so as to violate the restrictions expressed therein, except for the purpose of receiving loads and making deliveries.

(b) *Definitions.* For the purposes of this section the following words and phrases shall have the meanings ascribed to them here, unless the context clearly indicates otherwise

Tractor truck: Every motor vehicle designed and used primarily for drawing other vehicles, and not so constructed as to carry a load, other than a part of the load and weight of the vehicle attached thereto.

Trailer: Every vehicle, without motive power, designed for carrying property or passengers wholly on its on structure and for being drawn by a motor vehicle (such as a tractor truck).

Vehicle: Every device in, upon or by which any person or property is or may be transported or drawn upon a highway, except devices moved by human power or used exclusively upon stationary rails or tracks, and except any vehicle as may be included within the term "bicycle," as defined in section 25-2 of the Norfolk City Code.

(c) *Tractor trucks prohibited on certain streets; exceptions.* Tractor trucks, with or without trailers, shall not be driven or operated on the following streets, between the designated points, except for the purpose of receiving loads and making deliveries.

(1) *Little Creek Road,* between Granby Street and Hampton Boulevard.

(2) *Redgate Avenue,* between Hampton Boulevard and Orapax Avenue, eastbound direction.

(3) *Widgeon Road*, between Sewells Point Road and Tidewater Drive.

(d) *Right turns by tractor trucks prohibited at certain intersections.* It shall be unlawful for any person driving a tractor truck, with or without a trailer, on the first street designated in the following subsections, to make or attempt to make a right turn into the second street designated in such subsections, when a sign or marker indicating that a right turn is prohibited to tractor trucks, with or without trailers, is in place at the intersection.

(e) *Left turns by tractor trucks prohibited at certain intersections.* It shall be unlawful for any person driving a tractor truck, with or without a trailer, on the first street designated in the following subsections, to make or attempt to make a left turn into the second street designated in such subsections, when a sign or marker indicating that a left turn is prohibited to tractor trucks, with or without trailers, is in place at the intersection.

(Ord. No. 40,391, § 1, 6-26-01; Ord. No. 41,092, § 1, 7-8-03; Ord. No. 43,285, § 6, 11-18-08; Ord. No. 43,358, § 4, 2-3-09)

Sec. 25-656.2. Trucks of four axles or more prohibited on certain streets; exceptions.

(a) *Definitions.* For the purposes of this section the following words and phrases shall have the meaning ascribed to them here, unless the context clearly indicates otherwise.

National network means the Dwight D. Eisenhower System of Interstate and Defense Highways and other qualifying federal-aid primary system highways designated by the Secretary of Transportation of the United States pursuant to federal law. It is one component of the national highway system, and it includes all interstates as well as those local, noninterstate federal-aid highways to be found, listed by state, in appendix A to 23 CFR pt. 658 of the U.S. Code of Federal Regulations, as amended. A list of local noninterstate national highway system highways included in the national network, as it pertains to the city is on file with and available from the department of public works.

National highway system means those highway routes and connections to transportation facilities depicted on the map submitted by the Secretary of Transportation of the United States to the Congress of the United States with the report entitled "Pulling Together: The National Highway System and

its Connections to Major Intermodal Terminals" and dated May 24, 1996, as subsequently modified pursuant to federal law. The national highway system includes the interstate system, other urban and rural principal arterial routes, the strategic highway network necessary to the strategic defense of the United States in both peacetime and wartime, and major strategic highway connectors between the strategic highway network and other highways, and other components as listed in 23 USC section 103 of the United States Code, as amended (national highway system components thereof). A list of local national highway system highways, in addition to those included in the national network, as it pertains to the city, is on file with and available from the department of public works.

Terminal means either an intermodal transportation facility where property is moved from one means of transportation to another for further transport or a trucking terminal where property is moved from large tractor truck and trailer combinations for travel on the national network to smaller combinations, such as tractor trucks with trailers of twenty-eight (28) feet or less in length and one hundred two (102) inches or less in width.

Tractor truck means every motor vehicle designed and used primarily for drawing other vehicles, and not so constructed as to carry a load, other than a part of the load and weight of the vehicle attached thereto.

Trailer means every vehicle, without motored power, designed for carrying property wholly on its own structure and for being drawn by a motor vehicle (such as a tractor truck).

Truck means every motor vehicle of four (4) axles or more designed or used either to transport property on its own structure independent of any other vehicle or on an attached trailer (a tractor truck). The term "truck" as used in this section does not refer to vehicles designed and used for transporting people.

Vehicle means every device in, upon or by which property is or may be transported or drawn upon a highway, except devices moved by human power or used exclusively upon stationary rails or tracks, and except any vehicle as may be included within the term "bicycle", as defined elsewhere within the Norfolk City Code.

(b) *Generally.* The city manager is hereby authorized and directed to erect and maintain, at proper places on the streets designated in the following subsections, appropriate signs or markers indicating that driving or operating a truck is restricted in the manner indicated on the designated portions of such streets. When such signs or markers are in place, it shall be unlawful for any person to drive or operate any such truck on the streets designated in this section between the designated points unless his purpose for doing so falls under one of the exceptions listed below.

(c) *Trucks prohibited on certain streets.* Trucks shall not be driven or operated on the following streets between the designated points and at the times indicated unless for a purpose authorized in the "exceptions" subsection of this section. If no time is indicated, the prohibition is effective at all times.

(1) Church Street, between its origin at the intersection of Broadway Street and Granby Street and Brambleton Avenue, between the hours of 4:00 p.m. and 6:00 a.m.

(2) Colley Avenue, between the north end of the bridge over Colley Bay and Front Street.

(3) Granby Street, between East Ocean View Avenue and Main Street, between the hours of 4:00 p.m. and 6:00 a.m.

(4) Hampton Boulevard, between Terminal Boulevard and Redgate Avenue, between the hours of 4:00 p.m. and 6:00 a.m.

(5) Jamestown Crescent, between Hampton Boulevard, through the point where it combines with Surrey Crescent, and the north end of the bridge over Colley Bay.

(6) Surrey Crescent, between Hampton Boulevard, through the point where it

combines with Jamestown Crescent, and the north end of the bridge over Colley Bay.

(d) *Exceptions.*

(1) *Exceptions generally applicable.*

(A) *Loading and unloading.* For all trucks, access for loading or unloading within the prohibited area, if carrying a manifest or similar official document indicating a required stop in the prohibited area.

(B) *National network.* For all trucks, access between the national network and points within one road-mile of entrances and exits of the national network in the prohibited area. The one road-mile route shall be measured using the most reasonable and most practicable route available. Representatives of the trucking industry are encouraged to contact the director of public works for prior approval of particular routes under this exception. However, this exception is not conditioned upon prior approval.

(2) *Exceptions by permit.*

(A) *Administration.* These permit provisions shall be administered by the city manager or a designee of the city manager. Copies of permits issued under this subsection shall be kept on file in the offices of the permit official and, for enforcement purposes, the department of police. Permits may be suspended or revoked for cause or if a change of circumstances removes the need for the permit. All permits applied for and issued under this subsection shall be valid for one year, shall require payment of a fee of three hundred fifteen dollars ($315.00), and shall be subject to such further requirements as are listed in the subsections below.

(B) *Terminal access for certain trucks.* For carriers of household goods and tractor trucks with one attached trailer of twenty-eight (28) feet or less in length and one hundred two (102) inches or less in width traveling upon the national network, if they would otherwise be prohibited access under this section, for access by a specific route from the national network to a specific terminal off the national network, when carrying a currently valid copy of a city permit granting permission to do so. Response to all such requests shall be expedited and denials shall be based upon safety considerations tied to the characteristics of the trucks for which such access is sought in relation to the characteristics of the local highways the requested route will pass through.

(C) *Business necessity through-routes.* For all trucks, for travel by a specific route through the city, if they would otherwise be prohibited from such travel by this section, where a reasonable business necessity for a regular, specific through-route on the streets restricted in this section, during the days and times, if any, they are restricted, is shown, when carrying a currently valid copy of a city permit granting permission to do so. Response to all such requests for permits shall be expedited and denials shall be based upon balancing the business need of the party requesting the permit against safety considerations tied to the characteristics of the trucks for which such access is sought and congestion considerations in relation to the characteristics of the local highways the requested route will pass through.

(3) *Exceptions for emergencies.* Nothing in this section or this subsection shall abrogate or restrict the existing right of

the city manager and the public safety departments of the city to make blanket exceptions to traffic prohibitions in emergency conditions, such as natural or manmade disasters.

(e) *Conflicts.* This section is not intended to and does not create an exception to any other Norfolk City Code sections regulating driving or operating vehicles, including inter alia, those other sections of chapter 25 regulating "trucks", "tractor trucks", "buses" or "vehicles" of unique sizes, weights or loads as those terms are defined elsewhere within this Code.

(f) *Severability.* Severability is intended throughout and within the provisions of this section. If any provision, including inter alia any subsection, part, phrase or term, is for any reason held invalid, either on its face or in application to any particular person or circumstance, the remainder of this section shall continue in full force and effect, and its application to other persons or circumstances shall not be affected.

(g) *Penalty.* A violation of section 25-656.2(c)(4) is a traffic offense subject to a fine in the amount of five hundred dollars ($500.00). Any other violation of this section is a traffic offense subject to a fine in the amount of two hundred fifty dollars ($250.00).
(Ord. No. 42,874, § 1, 10-23-07; Ord. No. 47,229, § 31, 5-22-18, eff. 7-1-18; Ord. No. 49,189, § 1, 5-9-23)

Sec. 25-657. Vehicles of over five tons and over prohibited on certain streets.

Generally. The city manager is hereby authorized and directed to erect and maintain, at proper places on the streets designated in the following subsections of this section, appropriate signs or markers indicating that vehicles which, together with the load thereon, shall be in excess of five (5) tons and over shall not be driven or operated on such streets between the designated points, except for the purpose of receiving loads and making deliveries.

35th Street, from Lamberts Point Road to Granby Street.

Atwood Avenue, from Maple Avenue to Government Avenue.

First View Street from Maple Avenue to D View Avenue.

Maple Avenue, from Granby Street to its western terminus.

Wayland Street, from Fisherman's Road to Bay View Boulevard.
(Ord. No. 49,298, § 2, 8-29-23)

Editor's note—Ord. No. 49,298, § 2, adopted August 29, 2023, amended § 25-657 in its entirety to read as herein set out. Former § 25-657, pertained to similar subject matter. See the Code Comparative Table for historical derivation.

Cross reference—Authority for above section, Code of Virginia, § 46.2.1304.

Sec. 25-658. Vehicles over twenty thousand pounds gross vehicle weight rating (GVWR) or thirty feet in length are prohibited on certain streets.

(1) *Generally.* The city manager is hereby authorized and directed to erect and maintain at proper places on the streets designated in the following subsections of this section appropriate signs or markers indicating that any vehicle which is in excess of twenty thousand (20,000) pounds gross vehicle weight rating (GVWR) or thirty (30) feet in length bumper to bumper, shall not be driven or operated on such streets between the designated points.

(2) *Exceptions.* This section shall not prohibit:

(a) The operation of emergency vehicles upon any street in the city;

(b) The operation of trucks owned or operated by the state, city, public utility, trash-removal company licensed to operated within the city, or a contractor engaged in the repair, maintenance, or construction of streets, street improvements, or utilities in the city;

(c) The operation of trucks on any street which has been designated by the city as a detour route;

(d) The operation of school or passenger buses;

(e) The operation of moving vans for the loading and unloading of furniture or household goods; and

(f) Except when necessary to traverse another street or streets to any building for the purpose of delivering materials to be used in the actual and bona fide repair, alteration, remodeling or construction of any building or structure upon such restricted street, for which a building permit and oversized load permit has been previously obtained.

(3) *Definition.* For purposes of this section, vehicle means every device in, upon or by which any person or property is or may be transported or driven upon a highway or street. Vehicle shall specifically include, but is not limited to, trucks, tractor trailers, semitrailers, and trailers.

Washington Avenue between Church Street and Tidewater Drive.

Fremont Avenue between Church Street and O'Keefe Street.

Proescher Street between Chapel Street and Lexington Street.

Dungee Street between Chapel Street and Barney Street.

O'Keefe Street between Washington Avenue and A Avenue.

Arlington Avenue between Camposella Road and Waltham Street.
(Ord. No. 42,468, § 1, 11-28-06; Ord. No. 43,624, § 4, 10-13-09)

Sec. 25-659. Buses prohibited on certain streets; exceptions.

Generally. The city manager is authorized and directed to erect and maintain, at proper places on the streets designated in the following subsections of this section, appropriate signs or markers indicating that motor buses with a seating capacity in excess of ten (10) persons shall not be driven or operated thereon between the designated points. When such signs or markers are in place, it shall be unlawful for any person operating as a private carrier for hire or as a common carrier to drive or operate any motor bus of a seating capacity in excess of ten (10) persons on the streets designated in this section, between the designated points, except for the purpose of discharging and receiving passengers. The provisions of this section shall not apply to any common carrier carrying only school children to and from school.
(Code 1958, §§ 29-560—29-562)

Avenue "B", between Church Street and Sutton Street.
(Code 1958, § 29-563.001)

Azalea Garden Road, between Military Highway and Little Creek Road.
(Code 1958, § 29-563.002)

Bay Avenue, between Granby Street and Tidewater Drive.
(Code 1958, § 29-563.01)

Belgrave Avenue, between Bay Avenue and Gilpin Avenue.
(Code 1958, § 29-563)

Burleigh Avenue, between Granby Street and Ruthven Road.
(Code 1958, § 29-563.1)

Carrolton Road, between Granby Street and Sewells Point Road.
(Code 1958, § 29-564)

Colley Avenue, between Bolling Avenue and 52nd Street.
(Code 1958, § 29-564.01)

Elk Avenue, between Chesapeake Boulevard and Buffalo Avenue.
(Code 1958, § 29-564.1)

Granby Street, between Taussig Boulevard and Bay View Boulevard.
(Code 1958, § 29-564.2)

Leicester Avenue, between Granby Street and Tidewater Drive.
(Code 1958, § 29-565)

Lion Avenue, between Little Creek Road and Templar Boulevard.
(Code 1958, § 29-566)

Lorengo Avenue, between Granby Street and Tidewater Drive.
(Code 1958, § 29-567)

Louisiana Drive, between Granby Street and Virginian Drive.
(Code 1958, § 29-567.1)

Mace Avenue, between Bay Avenue and Lorengo Avenue.
(Code 1958, § 29-568)

Maycox Avenue, between Granby Street and Ruthven Road.
(Code 1958, § 29-568.1)

Newport Avenue, between Sewells Point Road and Kingsley Lane.
(Code 1958, § 29-569)

North Shore Road, between Granby Street and Ruthven Road.
(Code 1958, § 29-569.1)

Oak lawn Avenue, between Princess Anne Road and Virginia Beach Boulevard.
(Ord. No. 29,700, § 1, 10-31-78)

Ocean Avenue, between Granby Street and Tidewater Drive.
(Code 1958, § 29-569.2)

Randall Avenue, between Granby Street and Tidewater Drive.
(Code 1958, § 29-570)

St. George Avenue, between Bay Avenue and Gilpin Avenue.
(Code 1958, § 29-571)

Templar Boulevard, between Chesapeake Boulevard and Lion Avenue.
(Code 1958, § 29-572)

Trouville Avenue, between Hampton Boulevard and Cortlandt Place.
(Code 1958, § 29-573)

Virginian Drive, between Little Creek Road and Louisiana Drive.
(Code 1958, § 29-573.1)

Wildwood Drive, between Little Creek Road and Johnstons Road.
(Code 1958, § 29-573.2)

Wyoming Avenue, between Princess Anne Road and Tait Terrace.
(Code 1958, § 29-573.3)

State law reference—Authority for above section, Code of Virginia, § 46.2-1304.

Sec. 25-660. Automatic traffic signals.

Generally. The city manager is hereby authorized and directed to erect and maintain automatic traffic signals at the intersections designated in the following subsections of this section. The city transportation engineer shall evaluate the need for and proper placement of such automatic traffic signals and shall recommend the installation of said signals, as deemed appropriate, to the city manager.
(Ord. No. 40,378, § 3, 6-19-01)

2nd Street, at its intersection with Brambleton Avenue.
(Ord. No. 43,293, § 8, 11-25-08)

Admiral Taussig Boulevard, at its intersection with commissary exit.

Admiral Taussig Boulevard, at its intersection with dental clinic.

Admiral Taussig Boulevard, at its intersection with gate #3.

Almeda Avenue just north of Cape Henry Avenue to meter traffic north and southbound on Almeda Avenue.
(Ord. No. 40,432, § 2, 7-31-01)

Azalea Garden Road, at its intersection with Norview Avenue.

Azalea Garden Road, at its intersection with Princess Anne Road.

Azalea Garden Road, at its intersection with Robin Hood Road.

Azalea Garden Road, at its intersection with Village Avenue.

Azalea Garden Road, at its intersection with Virginia Beach Boulevard.

Ballentine Boulevard, at its intersection with Corprew Avenue.

Ballentine Boulevard, at its intersection with Middle Town Arch and Lakebridge Drive.
(Ord. No. 41,547, § 1, 8-24-04)

Ballentine Boulevard, at its intersection with Princess Anne Road.

Ballentine Boulevard, at its intersection with Tait Terrace.

Ballentine Boulevard, at its intersection with Virginia Beach Boulevard.

Bay Avenue, at its intersection with 1st View Street.

Berkley Avenue, at its intersection with I-464.

Berkley Avenue, at its intersection with Main Street.

Berkley Avenue, at its intersection with State Street.

Berkley Avenue extended, at its intersection with Wilson Road.

Botanical Garden Entrance, approximately four hundred (400) feet from the guard house.

Boush Street, at its intersection with Brambleton Avenue.

Boush Street, at its intersection with Bute Street.

Boush Street, at its intersection with City Hall Avenue.

Boush Street, at its intersection with College Place.

Boush Street, at its intersection with Freemason Street.

Boush Street, at its intersection with Main Street.

Boush Street, at its intersection with Olney Road.

Boush Street, at its intersection with Plume Street.

Boush Street, at its intersection with Virginia Beach Boulevard.

Boush Street, at its intersection with York Street.

Brambleton Avenue at its intersection with 2nd Street.
(Ord. No. 43,623, § 1, 10-13-09)

Brambleton Avenue, at its intersection with Botetourt Street.
(Ord. No. 42,301, § 2, 6-13-06)

Brambleton Avenue, at its intersection with Kimball Terrace.

Brambleton Avenue at its intersection with Yarmouth Street.
(Ord. No. 43,623, § 1, 10-13-09)

Bute Street, at its intersection with Duke Street.
(Ord. No. 42,974, § 1, 1-15-08)

Berkley Avenue, at its intersection with Campostella Road.
(Ord. No. 38,745, § 1, 5-13-97)

Berkley Avenue, at its intersection with Fauquier Street.
(Ord. No. 38,979, § 6, 11-25-97)

Campostella Road, at its intersection with Filmore Street.

Campostella Road, at its intersection with Greenleaf Drive.
(Ord. No. 39,301, § 1, 8-25-98)

Campostella Road, at its intersection with Indian River Road.

Campostella Road, at its intersection with Wilson and Springfield Roads.

Charlotte Street, at its intersection with Granby Street.
(Ord. No. 42,974, § 1, 1-15-08)

Chesapeake Boulevard, at its intersection with Bayview Boulevard.

Chesapeake Boulevard, at its intersection with Chesapeake Street and Dudley Avenue.
(Ord. No. 39,848, § 1, 2-1-00)

Chesapeake Boulevard, at its intersection with Cromwell Road.

Chesapeake Street, at its intersection with East Ocean View Avenue.

Chesapeake Boulevard, at its intersection with Fisherman's Road.

Chesapeake Boulevard, at its intersection with Hyde Circle.

Chesapeake Boulevard, at its intersection with Johnston's Road.

Chesapeake Boulevard, at its intersection with Little Creek Road.

Chesapeake Boulevard, at its intersection with Norview/Five Points.

Chesapeake Boulevard, at its intersection with Robin Hood Road.

Chesapeake Boulevard, at its intersection with Sheppard Avenue.

Church Street, at its intersection with 26th Street.

Church Street, at its intersection with 27th Street.

Church Street, at its intersection with Brambleton Avenue.

Church Street, at its intersection with Princess Anne Road.

Church Street, at its intersection with Virginia Beach Boulevard.

City Hall Avenue, at its intersection with Bank Street.
(Ord. No. 40,790, § 1, 7-30-02)

City Hall Avenue, at its intersection with MacArthur Center Main Exit.
(Ord. No. 39,301, § 1, 8-25-98)

Colley Avenue, at its intersection with 21st Street.

Colley Avenue, at its intersection with 25th Street.

Colley Avenue, at its intersection with 26th Street.

Colley Avenue, at its intersection with 27th Street.

Colley Avenue, at its intersection with 35th Street.

Colley Avenue, at its intersection with 38th Street.

Colley Avenue, at its intersection with 42nd Street.

Colley Avenue, at its intersection with Brambleton Avenue.

Colley Avenue, at its intersection with Fairfax Avenue.
(Ord. No. 37,309, § 1, 6-29-93)

Colley Avenue, at its intersection with Olney Road.

Colley Avenue, at its intersection with Princess Anne Road.

Colley Avenue, at its intersection with Raleigh Avenue.

Colley Avenue, at its intersection with Redgate Avenue.

Colonial Avenue, at its intersection with 21st Street.

Colonial Avenue, at its intersection with 26th Street.

Colonial Avenue, at its intersection with 27th Street.

Colonial Avenue, at its intersection with 35th Street.

Colonial Avenue, at its intersection with 38th Street.

Colonial Avenue, at its intersection with Olney Road.

Colonial Avenue, at its intersection with Princess Anne Road.

Cromwell Road, at its intersection with Tait Terrace.

Curlew Drive, at its intersection with Bristol Avenue.
(Ord. No. 42,974, § 1, 1-15-08)

Curlew Drive, at its intersection with east industrial access.
(Ord. No. 42,974, § 1, 1-15-08)

Curlew Drive, at its intersection with west industrial access.
(Ord. No. 42,974, § 1, 1-15-08)

Duke Street, at its intersection with Brambleton Avenue.

East Main Street, at its intersection with East Street.
(Ord. No. 39,229, § 1, 10-20-98; Ord. No. 42,974, § 1, 1-15-08)

East Main Street, at its intersection with Park Avenue.
(Ord. No. 42,974, § 1, 1-15-08)

East Ocean View Avenue, at its intersection with 3rd Bay Street.

East Ocean View Avenue, at its intersection with 13th Bay Street.

East Ocean View Avenue, at its intersection with Capeview Avenue.

East Ocean View Avenue, at its intersection with Chesapeake Boulevard.

East Ocean View Avenue, at its intersection with Sturgis Road.

Farm Fresh Entrance, at its intersection with 21st Street.

Granby Street, at its intersection with 21st Street.

Granby Street, at its intersection with 26th Street.

Granby Street, at its intersection with 27th Street.

Granby Street, at its intersection with 35th Street.

Granby Street, at its intersection with 38th Street.

Granby Street, at its intersection with 42nd Street and Connecticut Avenue.
(Ord. No. 43,105, § 1, 6-3-08)

Granby Street, at its intersection with Admiral Taussig Boulevard.

Granby Street, at its intersection with Bayview Boulevard.

Granby Street, at its intersection with Brambleton Avenue.

Granby Street, at its intersection with Broadway and Church Streets.

Granby Street, at its intersection with City Hall Avenue.

Granby Street, at its intersection with Delaware Avenue.

Granby Street, at its intersection with Kingsley Lane.

Granby Street, at its intersection with Little Creek Road.

Granby Street at its intersection with Louisiana Drive.
(Ord. No. 45,557, § 7, 5-20-14)

Granby Street, at its intersection with Maple Avenue.

Granby Street, at its intersection with Ocean & Bay Avenues.

Granby Street, at its intersection with Olney Road.

Granby Street, at its intersection with Plume Street.
(Ord. No. 39,229, § 1, 6-30-98; Ord. No. 40,790, § 1, 7-30-02))

Granby Street, at its intersection with Princess Anne Road.

Granby Street, at its intersection with Thole Street.

Granby Street, at its intersection with Virginia Beach Boulevard.

Granby Street, at its intersection with West Ocean View Avenue.

Granby Street, at intersection with Willow Wood Drive.

Hampton Boulevard, at its intersection with W. 26th Street.
(Ord. No. 48,834, § 1, 7-12-22)

Hampton Boulevard, at its intersection with 27th Street.

Hampton Boulevard, at its intersection with 38th Street.

Hampton Boulevard at its intersection with 41st street.
(Ord. No. 40,514, § 1, 11-13-01)

Hampton Boulevard, at its intersection with 43rd Street.

Hampton Boulevard, at its intersection with 45th Street.

Hampton Boulevard, at its intersection with 47th Street.
(Ord. No. 37,478, § 1, 11-30-93)

Hampton Boulevard, at its intersection with 49th Street.

Hampton Boulevard at its intersection with 90th Street.
(Ord. No. 43,623, § 1, 10-13-09)

Hampton Boulevard, at its intersection with Admiral Taussig Boulevard.

Hampton Boulevard, at its intersection with Azalea Court.

Hampton Boulevard, at its intersection with Baker Street.

Hampton Boulevard, at its intersection with Beechwood Avenue.

Hampton Boulevard, at its intersection with Bolling Avenue.

Hampton Boulevard, at its intersection with the S & S Piers/B Street.

Hampton Boulevard, at its intersection with Helmick Street.
(Ord. No. 37,478, § 1, 11-30-93; Ord. No. 37,787, §§ 1, 2, 10-11-94)

Hampton Boulevard, at its intersection with Glendale Avenue.

Hampton Boulevard, at its intersection with Greenbrier Avenue.
(Ord. No. 39,846, § 1, 2-1-00)

Hampton Boulevard, at its intersection with International Terminal Boulevard.

Reserved.
(Ord. No. 47,549, § 4, 3-5-19)

Hampton Boulevard, at its intersection with Lexan Avenue.

Hampton Boulevard, at its intersection with Little Creek Road.

Hampton Boulevard, at its intersection with Magnolia Avenue.

Hampton Boulevard, at its intersection with Pier 3 entrance.
(Ord. No. 37,478, § 2, 11-30-93; Ord. No. 39,846, § 1, 2-1-00)

Hampton Boulevard, at its intersection with Princess Anne Road.

Hampton Boulevard, at its intersection with Redgate Avenue.

Hampton Boulevard, at its intersection with Spotswood Avenue.

Hampton Boulevard, at its intersection with Staff College.

Indian River Road, at its intersection with Beachland Street.

Indian River Road, at its intersection with Berkley Avenue after Marsh Street.

Indian River Road, at its intersection with Wilson Road.

Ingleside Road, at its intersection with Princess Anne Road.

Ingleside Road, at its intersection with Village Avenue.

Ingleside Road, at its intersection with Virginia Beach Boulevard.

International Terminal Boulevard, at its intersection with Diven Street.

International Terminal Boulevard, at its intersection with Meredith Street.

Johnston's Road, at its intersection with Sewell's Point Road.

Kempsville Road, at its intersection with Center Drive.

Kempsville Road, at its intersection with Doctor Clinic.

Kempsville Road, at its intersection with Lake Taylor School.

Kempsville Road, at its intersection with Leigh Hospital, North.

Kempsville Road, at its intersection with Leigh Hospital, South.

Kempsville Road at its intersection with Lowery Road
(Ord. No. 43,623, § 1, 10-13-09)

Kempsville Road, at its intersection with Newtown Road.

Kempsville Road, at its intersection with North Center Drive.

Kempsville Road, at its intersection with Virginia Beach Boulevard.

Kempsville Road, at its intersection with Wellville Street.

Lens Avenue, at its intersection with Lafayette Boulevard.

Liberty Street, at its intersection with Main Street.

Little Creek Road, at its intersection with Admiral Taussig Boulevard.

Little Creek Road, at its intersection with Armfield Avenue.

Little Creek Road, at its intersection with Azalea Garden Road.

Little Creek Road, at its intersection with Camellia Street.

Little Creek Road, at its intersection with Dallas Street/Simons Drive.
(Ord. No. 37,478, § 1, 11-30-93)

Little Creek Road, at its intersection with Diven Street.

Little Creek Road, at its intersection with Farm Fresh entrance.
(Ord. No. 37,478, § 1, 11-30-93)

Little Creek Road, at its intersection with Halprin Drive.

Little Creek Road, at its intersection with I-64 EB Off Ramp.
(Ord. No. 37,478, § 1, 11-30-93)

Little Creek Road, at its intersection with I-64 WB Off Ramp.
(Ord. No. 37,478, § 1, 11-30-93)

Little Creek Road, at its intersection with K & K pedestrian crossing.

Little Creek Road, at its intersection with Mona Avenue.
(Ord. No. 41,547, § 1, 8-24-04)

Little Creek Road, at its intersection with Nancy Road/School.

Little Creek Road, at its intersection with Newport Avenue.

Little Creek Road, at its intersection with Old Ocean View Avenue.

Little Creek Road, at its intersection with Little Creek East Shopping Center.

Little Creek Road, at its intersection with Ruthven Road.
(Ord. No. 41,547, § 1, 8-24-04)

Little Creek Road, at its intersection with Sewells Point Road.
(Ord. No. 42,059, § 1, 10-25-05)

Little Creek Road, at its intersection with Shore Drive.

Little Creek Road, at its intersection with Southern Shopping Center.

Little Creek Road at its intersection with Suburban Park Shopping Center.
(Ord. No. 45,557, § 7, 5-20-14)

Little Creek Road, at its intersection with Van Patten Road.

Little Creek Road at its intersection with the entrance to Wedgewood Plaza Shopping Center.
(Ord. No. 36,674, § 1, 12-10-91)

Llewellyn Avenue, at its intersection with 21st Street.

Llewellyn Avenue, at its intersection with 26th Street.

Llewellyn Avenue, at its intersection with 27th Street.

Llewellyn Avenue, at its intersection with 35th Street.

Llewellyn Avenue, at its intersection with 38th Street.

Llewellyn Avenue, at its intersection with Delaware Avenue.

Llewellyn Avenue, at its intersection with Princess Anne Road.

Lowery Road at its intersection with Walmart/ Farm Fresh entrance.
(Ord. No. 43,623, § 1, 10-13-09)

Main Street at its intersection with Atlantic Street.
(Ord. No. 36,674, § 1, 12-10-91)

Maple Avenue, at its intersection with 1st View Street.

Merrimac Avenue, at its intersection with I-264/Westminster Avenue.

Military Highway, at its intersection with Azalea Garden Road.

Military Highway, at its intersection with Best Road and Executive Drive.

Military Highway, at its intersection with Corporate Boulevard.

Military Highway, at its intersection with Elizabeth Avenue.

Military Highway, at its intersection with International Boulevard.
(Ord. No. 38,246, § 1, 1-9-96)

Military Highway, at its intersection with Janaf Entrance.

Military Highway, at its intersection with Johnston's Road.

Military Highway, at its intersection with Lake Herbert Drive.
(Ord. No. 43,105, § 1, 6-3-08)

Military Highway, at its intersection with Little Creek Road.

Military Highway, at its intersection with Lowery Road.

Military Highway, at its intersection with Military Circle/K-Mart.

Military Highway, at its intersection with Norview Avenue.

Military Highway, at its intersection with Poplar Hall Drive.

Military Highway, at its intersection with Princess Anne Road.

Military Highway, at its intersection with Raby Road.

Military Highway, at its intersection with Robin Hood Road.

Military Highway, at its intersection with Springmeadow Road.

Military Highway, at its intersection with Target entrance.
(Ord. No. 38,478, § 1, 7-30-96)

Military Highway, at its intersection with Virginia Beach Boulevard.
(Ord. No. 38,745, § 1, 5-13-97)

Military Highway Frontage Road, at its intersection with Curlew Avenue.
(Ord. No. 42,974, § 1, 1-15-08)

Monticello Avenue, at its intersection with 18th Street.

Monticello Avenue, at its intersection with 20th Street.

Monticello Avenue, at its intersection with 21st Street.

Monticello Avenue, at its intersection with 26th Street.

Monticello Avenue, at its intersection with 27th Street.

Monticello Avenue, at its intersection with Brambleton Avenue.

Monticello Avenue, at its intersection with Charlotte Street.

Monticello Avenue, at its intersection with City Hall Avenue.

Monticello Avenue, at its intersection with Church Street.

Monticello Avenue, at its intersection with Freemason Street.

Monticello Avenue, at its intersection with Market Street.
(Ord. No. 38,743, § 1, 5-13-95; Ord. No. 42,974, § 1, 1-15-08)

Monticello Avenue, at its intersection with Princess Anne Road.

Monticello Avenue, at its intersection with St. Paul's Boulevard.

Monticello Avenue, at its intersection with Virginia Beach Boulevard.

Newport Avenue, at its intersection with 38th Street.

Newtown Road, at its intersection with Center Drive.

Newtown Road, at its intersection with Curlew Drive.

Newtown Road, at its intersection with Ethan Allen Lane.

Newtown Road, at its intersection with Greenwich Road/I-64, exit 118.

Newtown Road, at its intersection with Stoney Point Road.

Northampton Boulevard, at its intersection with Cornick Road.

Northampton Boulevard, at its intersection with I-64 off ramp.

Northampton Boulevard, at its intersection with Lake Wright East.
(Ord. No. 44,511, § 1, 1-10-12)

Northampton Boulevard, at its intersection with Wesleyan Drive.

Norview Avenue, at its intersection with I-64 EB off ramp.
(Ord. No. 44,511, § 1, 11-10-12)

Norview Avenue, at its intersection with Johns Street.

Norview Avenue, at its intersection with Super K-Mart Entrance.
(Ord. No. 38,246, § 1, 1-9-96)

Park Avenue, at its intersection with Brambleton Avenue.

Park Avenue, at its intersection with Corprew Avenue.

Park Avenue, at its intersection with Harbor Park Main Entrance of Lots A and B.
(Ord. No. 42,974, § 1, 1-15-08)

Park Avenue, at its intersection with Harbor Park West Entrance of Lot D.
(Ord. No. 42,974, § 1, 1-15-08)

Park Avenue, at its intersection with Princess Anne Road.

Park Avenue, at its intersection with Virginia Beach Boulevard.

Plume Street, at its intersection with Bank Street.
(Ord. No. 42,974, § 1, 1-15-08)

Plume Street, at its intersection with Norfolk Southern Parking Garage.
(Ord. No. 42,974, § 1, 1-15-08)

Plume Street, at its intersection with Saint Pauls Boulevard.
(Ord. No. 42,974, § 1, 1-15-08)

Poplar Hall Drive, at its intersection with Glenrock Road.
(Ord. No. 41,547, § 1, 8-24-04)

Princess Anne Road, at its intersection with Kilmer Lane.

Princess Anne Road, at its intersection with Majestic Avenue.
(Ord. No. 47,549, § 3, 3-5-19)

Princess Anne Road, at its intersection with Norchester Avenue.
(Ord. No. 48,834, § 1, 7-12-22)

Robin Hood Road, at its intersection with I-64 east off ramp.
(Ord. No. 39,547, § 1, 4-13-99)

Robin Hood Road, at its intersection with I-64 west off ramp.
(Ord. No. 39,547, § 1, 4-13-99)

Saint Paul's Boulevard, mid-block pedestrian crossing.
(Ord. No. 45,557, § 7, 5-20-14)

Sewell's Point Road, at its intersection with Azalea Garden Road.

Sewell's Point Road, at its intersection with Princess Anne Road.

Sewell's Point Road, at its intersection with Robin Hood Road.

Sewell's Point Road, at its intersection with Widgeon Road.
(Ord. No. 37,478, § 1, 11-30-93)

Shore Drive, at its intersection with Dunning Road.

Shore Drive, at its intersection with Pleasant Avenue.

Shore Drive, at its intersection with Pretty Lake Avenue.

St. Paul's Boulevard, at its intersection with Brambleton Avenue.

St. Paul's Boulevard, at its intersection with Bute Street.

St. Paul's Boulevard, at its intersection with Charlotte Street.

St. Paul's Boulevard, at its intersection with City Hall Avenue.

St. Paul's Boulevard, at its intersection with Freemason Street.
(Ord. No. 49,861, § 1, 2-11-25)

St. Paul's Boulevard, at its intersection with Main Street.

St. Paul's Boulevard, at its intersection with Market Street.

St. Paul's Boulevard, at its intersection with Waterside Drive.

Tidewater Drive, at its intersection with Alsace Avenue.

Tidewater Drive, at its intersection with Bayview Avenue.

Tidewater Drive, at its intersection with Biltmore Street.

Tidewater Drive, at its intersection with Brambleton Avenue.

Tidewater Drive, at its intersection with Cromwell Road.

Tidewater Drive, at its intersection with Crossroads School.

Tidewater Drive, at its intersection with Goff Street.
(Ord. No. 39,848, § 1, 2-1-00)

Tidewater Drive, at its intersection with Lafayette Boulevard.

Tidewater Drive, at its intersection with Lakewood Plaza.

Tidewater Drive, at its intersection with Lindenwood Avenue.

Tidewater Drive, at its intersection with Little Creek Road.

Tidewater Drive, at its intersection with Mason Creek Road.

Tidewater Drive, at its intersection with Norview Avenue.

Tidewater Drive, at its intersection with Princess Anne Road.

Tidewater Drive, at its intersection with Shoop Avenue.

Tidewater Drive, at its intersection with Southern Shopping Center.

Tidewater Drive, at its intersection with St. Julian Avenue.

Tidewater Drive, at its intersection with Stanley Street and Gregory Street.
(Ord. No. 40,149, § 1, 11-7-00)

Tidewater Drive, at its intersection with Thole Street.

Tidewater Drive, at its intersection with Virginia Beach Boulevard.

Tidewater Drive, at its intersection with Widgeon Road.

Tidewater Drive, at its intersection with Willow Wood Drive.

Union Street, at its intersection with East Main Street.
(Ord. No. 42,974, § 1, 1-15-08)

USAA Drive, at its intersection with Elizabeth Avenue.
(Ord. No. 45,415, § 9, 1-14-14)

Virginia Beach Boulevard, at its intersection with George Street.

Virginia Beach Boulevard, at its intersection with Glenrock Road/Janaf.

Virginia Beach Boulevard, at its intersection with Jett Street.

Virginia Beach Boulevard, at its intersection with Kingwood Avenue/Norfolk Square.

Virginia Beach Boulevard, at its intersection with Merrimac Avenue.

Virginia Beach Boulevard, at its intersection with Military Circle.

Virginia Beach Boulevard, at its intersection with Newtown Road.

Virginia Beach Boulevard, at its intersection with Olney Road.

Virginia Beach Boulevard, at its intersection with Poplar Hall Drive.

Virginia Beach Boulevard, at its intersection with Raby and Round Bay Roads.

Virginia Beach Boulevard, at its intersection with Scott Street.

Virginia Beach Boulevard, at its intersection with Virginia Natural Gas.

Virginia Beach Boulevard, at its intersection with Winburne Lane.
(Ord. No. 48,352, § 4, 4-13-21)

Waterside Drive, at its intersection with Atlantic Street.

Waterside Drive, at its intersection with Martin's Lane.

Waverly Way, at its intersection with 26th Street.

Wesleyan Drive, at its intersection with Norfolk Academy.

West Ocean View Avenue, at its intersection with 1st View Street.

West Ocean View Avenue, at its intersection with 4th View Street.

West Ocean View Avenue, at its intersection with 13th View Street.

West Ocean View Avenue, at its intersection with Mason Creek Road.
(Ord. No. 36,576, § 1, 9-24-91; Ord. No. 41,614, § 1, 10-26-04; Ord. No. 42,301, § 2, 6-13-06)

York Street, at its intersection with Botetourt Street.
(Ord. No. 43,178, § 1, 7-22-08)

Sec. 25-661. Temporary traffic-control devices.

(a) The city manager is hereby authorized and directed to erect and maintain the appropriate temporary traffic-control devices at intersections designated by the city transportation engineer. The city transportation engineer shall evaluate the need for and proper placement of such temporary traffic-control devices and shall recommend the installation of such devices, as deemed appropriate, to the city manager.

(b) No temporary traffic-control device shall be erected and maintained for a period in excess of twenty-four (24) months unless it is approved by city council.

(c) The city manager is authorized to accept appropriate funds in connection with the installation and maintenance of temporary traffic-control devices and to do all things necessary in connection therewith.
(Ord. No. 36,577, § 1, 9-24-91; Ord. No. 40,378, § 3, 6-19-01)

Sec. 25-662. Intersection-control beacons.

(1) *Generally.* The city manager is hereby authorized and directed to erect and maintain the appropriate intersection-control beacons at

intersections designated in the following subsections of this section. The city transportation engineer shall evaluate the need for and proper placement of such intersection-control beacons and shall recommend the installation of such beacons, as deemed appropriate, to the city manager.
(Ord. No. 40,378, § 3, 6-19-01)

(2) Bayview Avenue and Capeview Avenue.

(3) Granby Street and entrance to Forest Lawn Cemetery.

(4) Indian River Road and entrance to Riverside Cemetery.

(5) Newport Avenue and 38th Street.

(6) Newport Avenue and North Shore Road.

(7) Princess Anne Road and Manteo Street.
(Ord. No. 36,578, § 1, 9-24-91)

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Chapter 25.1

VEHICLE PARKING CODE*

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§§ 25.1-11—25.1-20. Reserved.

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Article II. Parking Ticket Office

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§ 25.1-61. Report and notice of and general penalty for violations of chapter.
§ 25.1-62. Removal or immobilization of motor vehicles against which there are outstanding parking violations.
§§ 25.1-63—25.1-74. Reserved.

*__Cross references—__Airport motor vehicle regulations, § 4-31 et seq.; bicycles, Ch. 8; speed of vehicles in cemeteries, § 12-28; motor vehicle code, Ch. 25.

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ARTICLE I. CHAPTER PROVISIONS

DIVISION 1. TITLE AND TERRITORIAL APPLICATION

Sec. 25.1-1. Title and territorial application.

This chapter shall be cited as the Vehicle Parking Code of the City of Norfolk, and its provisions shall be applicable within the corporate limits of the city. Provisions of this chapter will apply to parked vehicles only and shall not apply to any vehicles cited in violation of any traffic infractions.
(Ord. No. 38,366, § 1(25.1-1), 5-21-96)

Secs. 25.1-2—25.1-10. Reserved.

DIVISION 2. RESERVED*

Secs. 25.1-11—25.1-20. Reserved.

DIVISION 3. GENERAL PROVISIONS

Sec. 25.1-21. Designation of parking zones.

(a) The city manager is hereby authorized to construct, maintain, or designate the city's properties, including, but not limited to, the civic center, the public health center parking lot and Harrison Opera House parking lot for the creation of parking zones.

(b) Whenever any such zone is established, it shall be appropriately designated and marked by painting, signs, or both, and when so designated and marked, it shall be unlawful for any person to stop or park, or cause or permit to be stopped or parked, any vehicle contrary to such sign or designation or in excess of the time indicated. A violation of this subsection shall be subject to the provisions of the penalties prescribed in section 25.1-61 of this Code.
(Ord. No. 38,366, § 1(25.1-3.1), 5-21-96; Ord. No. 40,338, § 2, 6-5-01)

*__Editor's note—__Ord. No. 39,590, § 1, adopted May 18, 1999, repealed §§ 25.1-11 and 25.1-12. Said sections constituted the substantive provisions of div. 2 of art. I, pertaining to the division of parking facilities and parking ticket office, and were derived from Ord. No. 38,366, adopted May 21, 1996.

Sec. 25.1-22. Reward for information leading to the apprehension and conviction of person damaging, etc., vehicles parked in facilities.

A reward of fifty dollars ($50.00) is hereby offered for information leading to the apprehension and conviction of any person who willfully damages or defaces, breaks into or steals from any motor vehicle parked in a parking facility owned and/or operated by the city. This offer does not extend to any member of the Norfolk Police Department or of the parking system and no such reward or any part thereof shall be paid to any such member.
(Ord. No. 38,366, § 1(25.1-3.2), 5-21-96; Ord. No. 40,338, § 3, 6-5-01)

Sec. 25.1-23. Impoundment of vehicle.

Any vehicle unlawfully parked may be removed or otherwise made immobile at the discretion of the director of facilities and enterprise management or his designee. Such vehicle may be removed there from to the city vehicle compound and possession thereof shall be delivered to the owner or his agent upon furnishing satisfactory evidence of identity and ownership or agency and upon payment of all costs.
(Ord. No. 38,366, § 1(25.1-3.3), 5-21-96; Ord. No. 40,338, § 4, 6-5-01)

Sec. 25.1-24. Parking permitted only in designated spaces.

It shall be unlawful for any person to park any vehicle on city-owned streets, avenues, rights-of-way, or in any city-owned and/or -operated parking lot or parking garage where lines, painted markings or buttons or any other markings are placed, except within the spaces indicated for such parking. It shall be unlawful for any person to park any vehicle across any such lines, markings or buttons or to park such vehicle in such a position that the same shall not be entirely within the area so designated by such lines, markings or buttons.
(Ord. No. 38,366, § 1(25.1-3.4), 5-21-96; Ord. No. 42,393, § 2, 9-12-06)

Sec. 25.1-25. Failure to pay fees for parking in city parking facilities; penalty.

(a) It shall be unlawful for any person to fail or refuse to pay the parking fee at any parking facility owned and/or operated by the city. Any person who fails to pay upon demand parking fees accrued shall be guilty of a class 4 misdemeanor and punished by a fine in a specific amount no less than fifty dollars ($50.00) and no more than two hundred and fifty dollars ($250.00).

(b) An administrative fee of twenty-five dollars ($25.00) shall be collected by the parking administration on all collection actions pursuant to this section where payment is not promptly made upon demand.
(Ord. No. 38,366, § 1(25.1-3.5), 5-21-96)

Sec. 25.1-26. Authority of city manager to establish special parking fees.

The city manager is hereby authorized to establish parking fees as set forth in the following articles of this chapter and to change hourly and daily rates and fines when it is determined that the demand or other market conditions merit an increase or decrease. Additionally, the city manager is hereby authorized to establish alternative daily rates in the case of special events. The city manager shall report to the council any changes in fees made under this authority as soon as possible.
(Ord. No. 38,366, § 1(25.1-3.6), 5-21-96; Ord. No. 45,084, § 17, 5-14-13, eff. 7-1-13)

Sec. 25.1-27. Reserved.

Editor's note—Ord. No. 40,338, § 1, adopted June 5, 2001, repealed § 25.1-27, which pertained to Harborfest parking rates, and derived from Ord. No. 38,366, adopted May 21, 1996.

Sec. 25.1-28. Charge to replace lost monthly passes or decals.

There shall be a replacement charge for a lost pass or decal, issued to monthly parkers, which shall not exceed fifteen dollars ($15.00).
(Ord. No. 38,366, § 1(25.1-3.8), 5-21-96)

Sec. 25.1-29. Intoxication; possession or consumption of illegal drugs or intoxicating beverages.

(a) It shall be unlawful for any person to enter or be upon the premises of any parking facility while under the influence of intoxicating liquors or self-administered intoxicants or drugs; nor shall any person be in possession of or consume or use any illegal drug while on municipal off-street parking facilities.

(b) It shall be unlawful for any person to bring, possess or ingest upon the premises of any parking facility any alcoholic beverage of whatsoever nature or kind at any time.

(c) Any person violating the provisions of sections (a) or (b) above shall be deemed guilty of a class 1 misdemeanor and, upon conviction thereof, shall be fined no less than two hundred fifty dollars ($250.00) and no more than two thousand five hundred dollars ($2,500.00) or shall be sentenced to a period of confinement for no less than ten (10) days and no more than twelve (12) months, or shall receive both a fine not to exceed two thousand five hundred dollars ($2,500.00) and a period of confinement not to exceed twelve (12) months.
(Ord. No. 38,366, § 1(25.1-3.9), 5-21-96)

Sec. 25.1-30. Speed of vehicles.

No person shall drive a vehicle in any city-owned or operated facility in excess of five (5) miles per hour.
(Ord. No. 38,366, § 1(25.1-3.10), 5-21-96)

Sec. 25.1-31. Reserved.

Editor's note—Section 1 of Ord. No. 40,338, adopted June 5, 2001, repealed § 25.1-31, which pertained to security in city-owned and/or operated facilities, and derived from Ord. No. 38,366, adopted May 21, 1996.

Sec. 25.1-32. Theft, vandalism.

The city shall not be responsible for damage to vehicles resulting from theft of the vehicle and/or contents therein.
(Ord. No. 38,366, § 1(25.1-3.12), 5-21-96)

Sec. 25.1-33. Trespassing.

(a) It shall be unlawful for any person to enter or remain in any city-owned facility who is not a patron or passenger. This section shall not apply to law enforcement officers or employees of the division while engaged in employment by the city during their working hours.

(b) A violation of this section shall constitute a Class 1 misdemeanor.
(Ord. No. 38,366, § 1(25.1-3.13), 5-21-96; Ord. No. 40,338, § 5, 6-5-01; Ord. No. 40,453, § 1, 8-28-01)

Sec. 25.1-34. Central business district.

The central business district is hereby defined as that area lying and being in downtown Norfolk which is south of Brambleton Avenue, west of St. Paul's Boulevard, east of Duke Street and north of the Elizabeth River. So long as the discount parking program is provided by the city and subject to applicable rules, regulations and procedures, businesses, merchants and commercial establishments located within the central business district shall be eligible to participate in the discount stamp parking program hereinafter established by section 25.1-35.
(Ord. No. 38,366, § 1(25.1-3.14), 5-21-96)

Sec. 25.1-35. Discount parking stamps.

(a) Subject to all rules, regulations and procedures promulgated, established or ratified by the city manager, the director of facilities and enterprise management is hereby authorized to print and sell discount parking stamps. Stamps shall be issued in booklets of one hundred (100) stamps. Each stamp shall be in the amount of fifty cents ($0.50) or seventy-five cents ($0.75), or one dollar ($1.00). These stamps may be utilized to defray in whole or part the cost of parking in any attendant-operated parking facility within the central business district for up to four (4) hours.

(b) So long as provided by the city and subject to applicable rules, regulations and procedures, parking stamps may be sold to any business, merchant or commercial establishment located in the central business district. Except as provided in paragraph (f) below, participating businesses may provide stamps to customers who have parked at an attendant-operated city facility within the central business district.

(c) All booklets of parking stamps shall be sold to participating merchants at fifty (50) percent of the face value. A booklet of one hundred (100) stamps at fifty cents ($0.50) each shall be sold for twenty-five dollars ($25.00) and a booklet of stamps at seventy-five cents ($0.75) shall be sold for thirty-seven dollars and fifty cents ($37.50) and a booklet of stamps at one dollar ($1.00) shall be sold for fifty dollars ($50.00).

(d) Participating merchants shall affix parking stamps to the customer's parking stub. The merchant may validate up to four (4) hours of discounted parking. The customer shall present his stub with the stamp affixed thereto at such time as he leaves the parking lot or garage. The lot or garage attendant shall credit the face amount of the stamp or stamps to the parking fee owed; provided, however, that no cash rebate shall be due even if the face amount of the affixed stamps exceed the fee for parking.

(e) Merchants purchasing discount parking stamps pursuant to this section shall utilize such stamps for the sole purpose of providing discount parking to bona fide customers; use of said stamps for any other purpose or sale of stamps to any unauthorized party is unlawful and is strictly prohibited.

(f) The discount parking stamp program shall not be used for the garages to be built on the R-8 site and presently known as the North and South MacArthur Center Garages. With respect to the Freemason Street Garage, the city manager has the continuing power and right to include or exclude the Freemason Street Garage from the discount parking stamp program. The city manager's decision to include or exclude the Freemason Street Garage shall be based upon the competitiveness of its rates and utilization without inclusion.

(g) The city council shall have the continuing right and power to amend or terminate this section at any time, which right and power are hereby expressed reserved.
(Ord. No. 38,366, § 1(25.1-3.15), 5-21-96; Ord. No. 40,338, § 6, 6-5-01)

Sec. 25.1-36. Discount parking for students in the central business district.

(a) Subject to all rules, regulations and procedures promulgated, established or ratified by the city manager, the city may lease parking spaces in Bank Street Garage and in MacArthur North Garage to educational institutions located within the central business district.

(b) Spaces leased to educational institutions pursuant to this section shall be for the sole purpose of providing parking for bona fide currently enrolled students of said institutions. The institution shall issue an appropriate pass to students to allow parking in designated spaces. The institution may charge the student for this service an amount which equals the price charged by the city to the institution; no greater parking fee, however described or styled, shall be charged to any student.

(c) Spaces leased by the city to an educational institution pursuant to this section shall be rented at fifty (50) percent of the normal rate for month-to-month parking.

(d) Use of these spaces by the institution for any purpose other than discount parking for bona fide students of the institution is unlawful and is strictly prohibited. The educational institution is prohibited from issuing any parking pass or undertaking any other act that would allow a nonstudent to park in the allocated student spaces and receive discount parking.

(e) Spaces leased to educational institutions pursuant to this section 25.1-36 shall be available seven (7) days per week between the hours of 6:00 a.m. and 10:00 p.m.

(f) Commencing on July 1, 2025, spaces leased to Tidewater Community College ("TCC") pursuant to this section 25.1-36 for the sole purpose of providing parking to bona fide students of TCC shall be leased at thirty dollars ($30.00) per space per academic term (summer, fall, spring) and shall be available during the hours set forth in (e) above. This section 25.1-36(f) shall terminate automatically and be of no further force of effect on July 1, 2028.

(Ord. No. 38,366, § 1(25.1-3.16), 5-21-96; Ord. No. 40,338, § 7, 6-5-01; Ord. No. 45,955, § 24, 5-19-15, eff. 7-1-15; Ord. No. 49,962, § 1, 5-13-25)

Sec. 25.1-37. Discount parking for residents of and visitors to the central business district.

(a) Subject to the rules, regulations and procedures promulgated, established or ratified by the city manager or designee, the director of general services shall establish a discount parking program for residents of and visitors to the central business district.

(b) Residents of the central business district may apply to lease parking spaces in lots or garages on a monthly basis. Subject to the availability of said spaces and subject to verification of their status as residents, said individuals may lease parking spaces on a month-to-month basis at the following monthly rates:

Facility No.	*Facility*	*Monthly Rates*	
		Unreserved	*Reserved*
1	Waterside Garage	N/A	N/A
2	Freemason Street Garage	$50.50	$65.50
3	Town Point Garage	$50.50	$65.50
6	York Street Garage	$40.00	$55.00
7	Main Street Garage	$50.50	$65.50
8	Boush Street Garage	$50.50	$65.50
9	MacArthur Center, North Garage	$50.50	$65.50
10	MacArthur Center, South Garage	$50.50	$65.50
11	Commercial Place Garage	$50.50	$65.50
12	Scope Garage	N/A	N/A
13	Bank Street Garage	$52.50	$67.50
14	Charlotte Street Garage	N/A	N/A
30	Plume Street Lot	N/A	N/A
33	City Hall South Garage	N/A	N/A
34	City Hall North Garage	N/A	N/A
36	Education Lot	N/A	N/A
37	Brambleton Lot	N/A	N/A
38	Harrison Opera House Lot	N/A	N/A
39	Cedar Grove (Lot 39)	N/A	N/A

Facility No.	*Facility*	*Monthly Rates*	
		Unreserved	*Reserved*
42	St. Paul's Lot	N/A	N/A
55	Harbor Park (Park and Ride) (Lots A-G)	N/A	N/A
60	West Plume Street Garage	$55.60	$72.40
61	Fountain Park Garage	$55.60	$72.40

(c) The city manager or designee shall verify the status of individuals seeking to lease parking spaces as residents of the central business district by requiring proof of ownership or rental agreement and verification that the vehicle is registered to the individual at an address within the central business district.

(d) Reserved.

(e) Residents of the central business district may apply for passes for visitor parking on weekends. For purposes of this section, a "weekend" is defined as the period of time from 6:00 p.m. on Friday until 6:00 a.m. on the following Monday. Any resident seeking to purchase a visitor's pass shall present evidence of his status as a resident. The director may require a copy of a lease, written statement from a landlord or such other documentation as may be appropriate. A visitor's pass shall state on its face the dates and times for which it is issued. The fee for such pass shall be four dollars ($4.00) for each twenty-four-hour period or portion thereof; provided, however, that a visitors' pass for an entire weekend, as hereinabove defined may be issued for nine dollars ($9.00).
(Ord. No. 38,366, § 1(25.1-3.17), 5-21-96; Ord. No. 40,338, § 8, 6-5-01; Ord. No. 42,071, § 1, 11-1-05; Ord. No. 45,955, § 25, 5-19-15, eff. 7-1-15; Ord. No. 46,252, § 1, 2-9-16)

Sec. 25.1-38. Reserved.

Editor's note—Ord. No. 39,014, § 1, adopted Jan. 13, 1999, repealed § 25.1-38, which pertained to the unauthorized use of parking spaces reserved for persons with disabilities and which derived from Ord. No. 38,366, adopted May 21, 1996.

Secs. 25.1-39—25.1-49. Reserved.

DIVISION 4. REVISIONS/AMENDMENTS TO PARKING REGULATIONS

Sec. 25.1-50. Revisions/amendments to parking regulations.

The city manager is hereby authorized to promulgate and/or amend district parking regulations from time to time.
(Ord. No. 38,366, § 1(25.1-4.1), 5-21-96)

Secs. 25.1-51—25.1-60. Reserved.

ARTICLE II. PARKING TICKET OFFICE

DIVISION 1. REPORTS AND NOTICE OF PARKING VIOLATIONS

Sec. 25.1-61. Report and notice of and general penalty for violations of chapter.

(a) It shall be the duty of police officers, the fire marshal and their assistants, special police officers, such other employees of the city designated by the city manager, and other uniformed personnel employed as an independent contractor by the city to enforce parking regulations, acting in accordance with instructions issued by the chief of police, to issue summonses and/or parking tickets to report violations of this chapter or chapter 25 of the Norfolk City Code and Code of Virginia, section 46.2-1242, as amended, or successor sections, concerning parking spaces reserved for persons with disabilities, without the necessity of a warrant being obtained by the owner of the private parking area. Each such person shall attach to any vehicle parked in violation of any parking provision, except City Code section 25-278 a notice to the owner thereof that such vehicle has been parked in violation of such provision and instructing such owner to report to the parking ticket office in regard to such violation. The fine schedule is as follows:

Parking Violation Fines	
Violation	*Fine*
Overtime Parking—Meter	$35.00
Overtime Parking—Time Zone	$50.00
Overtime Parking—Meter Feeding	$50.00

Parking Violation Fines	
Violation	*Fine*
No Parking	$50.00
No Parking—Fire Hydrant	$150.00
No Parking—Cross Walk	$50.00
No Parking—Loading Zone	$50.00
No Parking—Here to Corner	$50.00
No Parking Bus Stop	$50.00
No Parking—Street Cleaning	$60.00
Facing Wrong Way	$50.00
No Parking—This Side	$50.00
No Stopping Zone	$50.00
Restricted City Lot/Garage	$50.00
Handicapped Parking	$300.00
Taxi Stand	$50.00
Blocking Driveway	$50.00
Overnight Parking	$50.00
Parking Off Roadway	$50.00
Blocking Fire Lane	$150.00

(1) Violation of any provision limiting the time a vehicle may be parked shall be subject to a cumulative fine calculated for each hour or fraction thereof during which such vehicle is parked in violation of such provision.

(2) Where payment remains unpaid for thirty (30) or more calendar days, the above-specified penalties shall be increased by fifty dollars ($50.00).

(3) Where payment remains unpaid for ninety (90) or more calendar days, the above-specified penalties shall be further increased by twenty dollars ($20.00).

(4) Where payment remains unpaid for one hundred fifteen (115) or more calendar days, the above-specified penalties shall be further increased by twenty dollars ($20.00) for fees related to initiating a department of motor vehicles hold.

(5) Should a delinquent payment be eligible for the commonwealth's tax intercept program, the above-specified penalties shall be further increased by twenty-five dollars ($25.00) for fees related to the tax intercept program.

(6) After a vehicle has been towed for three (3) or more unpaid parking tickets, an administration towing fee of ten dollars ($10.00) will be collected prior to authorizing release of the vehicle towed.

(7) Where payment remains unpaid for longer than thirty (30) days, the above-specified penalties may be collected and accounted for by a contracted official body compensated by the city. Every action to collect unpaid parking citation penalties imposed for violation of a provision in this chapter shall be commenced within three (3) years of the date upon which such penalty became delinquent.

(8) If payment for the violation of any of the provisions of this chapter is paid with a personal check which is returned unpaid by the banking institution upon which it is drawn with the notation that the account upon which it is drawn has insufficient funds or has been closed or that the drawer has no account with that bank, the violator shall be charged a fee of thirty-five dollars ($35.00) in addition to the penalty already imposed. This additional fee must be paid by the violator in addition to the penalty for any outstanding parking violations and shall not be dismissed or set aside.

(b) The failure of such owner to make payment within the appropriate time shall, upon conviction of such parking violation, renders such owner subject to a fine of not less than twenty-five dollars ($25.00) and not more than one hundred dollars ($100.00) in addition to the penalty prescribed in this section and any other penalties as provided by law.

(c) In addition, any such owner who has three (3) or more outstanding unpaid or otherwise unsettled parking violation notices shall be subject to the removal and immobilization procedures as set forth in chapter 25.

(d) Any person desiring to contest a parking citation for which no date for court appearance is specified on the citation shall appear in person at the parking ticket office within thirty (30) days of the issuance of said citation to register his/her intent to contest the violation. Failure to

initiate action within thirty (30) days shall constitute a waiver and the matter shall proceed for collection.

(e) Upon proper notification, the parking administration unit, or other authorized person, shall cause a notice to be issued which will summons the person to appear before the general district court on an appointed date. Signing of the notice by the person contesting the parking citation shall constitute acknowledgement of receipt of the notice. Notice of such action shall be certified in writing on an appropriate form to the general district court.
(Ord. No. 38,366, § 1(25.1-2.1), 5-21-96; Ord. No. 39,383, § 1, 11-24-98; Ord. No. 40,338, § 9, 6-5-01; Ord. No. 42,393, § 3, 9-12-06; Ord. No. 45,084, § 18, 5-14-13, eff. 7-1-13; Ord. No. 47,999, § 17, 5-19-20, eff. 7-1-20)

Sec. 25.1-62. Removal or immobilization of motor vehicles against which there are outstanding parking violations.

(a) In addition to any other penalty or remedy provided for in this chapter, any motor vehicle found parked upon public streets or highways or public grounds of the city, when there are three (3) or more outstanding unpaid or otherwise unsettled parking violation notices issued under this chapter, may, by towing or otherwise, be removed or conveyed to a place within the city or without in an adjacent locality designated by the city for the temporary storage of such vehicle, or such vehicle may be immobilized in such a manner as to prevent its removal or operation except by authorized members of the police department. Such removal, conveyance or immobilization of a motor vehicle shall be by or under the direction of an officer of the police department.

(b) It shall be the duty of the officer of the police department removing or immobilizing a motor vehicle pursuant to this section, or under whose direction such vehicle is removed or immobilized, to inform, as soon as practicable, the owner of the vehicle of the nature and circumstances of the prior unsettled parking violation notices.

(c) In any case where a vehicle is immobilized pursuant to this section, there shall be placed on such vehicle, in a conspicuous manner, a notice warning that such vehicle has been immobilized and that any attempt to move such vehicle might result in damage to the vehicle.

(d) Within twenty-four (24) hours from the time of removal or immobilization of a vehicle under this section, the vehicle may be released following payment of all outstanding parking violation notices for which the vehicle was removed or immobilized and all costs incidental to the immobilization, removal and storage of the vehicle, including costs of efforts to locate the owner, or those who may have a security interest in the vehicle. Failure to repossess or secure the release of the vehicle within this period may result in the removal of such vehicle to a storage area for safekeeping under the direction of the police department. In the event that the fines and costs are not paid, or should the identity or whereabouts of the owner, or person having a security interest in the vehicle, be unknown and unascertainable, the vehicle may be removed and sold pursuant to article XI of chapter 25 of the City Code; and the city shall deduct from the sale price monies sufficient to satisfy payment of the outstanding notices for which the vehicle was removed or immobilized and payment of all costs incurred by the city related to the immobilization, removal, storage and sale of the vehicle, including costs incurred to locate the owner or those who may have a security interest.
(Ord. No. 38,366, § 1(25.1-2.1.2), 5-21-96; Ord. No. 39,122, § 1, 4-28-98; Ord. No. 40,025, § 1, 6-27-00; Ord. No. 40,338, § 10, 6-5-01)

Secs. 25.1-63—25.1-74. Reserved.

ARTICLE III. OFF-STREET PARKING FACILITIES

DIVISION 1. RATES

Sec. 25.1-75. Rates for parking in off-street facilities.

(a) *[Rates.]* The rates for parking in off-street facilities are as follows:

			Monthly Rates		*Nightly Rates*	
Facility No.	*Facility*	*Daily Rate*	*Unreserved*	*Reserved*	*Unreserved*	*Reserved*
1	Waterside Garage	A, RSE	$85.00	$115.00		
2	Freemason Street Garage	A, RSE	$85.00	$115.00	$34.00	$39.00
3	Town Point Garage	A, RSE	$85.00	$115.00	$34.00	$39.00
6	York Street Garage	A, RSE	$64.00	$94.00	$27.00	$32.00
7	Main Street Garage	A, RSE	$85.00	$115.00	$34.00	$39.00
8	Boush Street Garage	A, RSE	$85.00	$115.00	$34.00	$39.00
9	MacArthur Center, North Garage	MC #1, RSE	$85.00	$115.00		
10	MacArthur Center, South Garage	MC #1, RSE	$85.00	$115.00		
12	Scope Garage	A/COE	$52.00	$82.00		
13	Bank Street Garage	A, RSE	$89.00	$119.00		
14	Charlotte Street Garage	A, RSE	$89.00	$119.00		
30	Plume Street Lot	No Daily, RSE	$69.00	$99.00	$28.00	$33.00
33	Union Street Lot	A/RCL/RSE, RSE	$69.00	$99.00	$28.00	$33.00
34	East Street Lot	RCL/RSE	$69.00	$99.00	$28.00	$33.00
36	Education Lot	Metered, RSE				
37	Brambleton Lot	No Daily, RSE	$52.00			
38	Harrison Opera House Lot	No Daily, RSE	$37.00	$67.00		
39	Cedar Grove (Lot 39)	No Daily, RSE	$43.00		$20.00	$25.00
55	Harbor Park (Lots C, E, F and G)	RSE; Amtrak daily rate in designated metered Amtrak customer parking areas $10.00	$43.00	$73.00		
60	West Plume Street Garage	A, RSE	$95.20	$128.80	$34.00	$39.00
61	Fountain Park Garage	A, RSE	$95.20	$128.80	$34.00	$39.00

Definition Notes:

A — Applicable.

No Daily — Lots where the city does not have daily parking.

RCL - Restricted City Lot.

RCG — Restricted City Garage.

Metered — Off-street lots with meter controls; see meter pricing.

MC #1 — MacArthur Center North and South Garages have separate transient rates.

COE — Collect-on-entry.

RSE — Recreational and special event parking (collect on entry).

(b) *Regulations and rules:*

(1) *Monthly rates:* Rates set forth in (a) above are for Monday through Friday 6:00 a.m. to 9:00 p.m., Monday through Sunday. Unlimited parking is also available at these facilities with a sixteen dollar ($16.00) fee in addition to the monthly rates shown herein.

(2) *City government parking:* Union Street Lot and East Street may be used for city government parking.

(3) *Recreational and special event parking:* RSE "event" rates may apply Monday through Sunday. All recreational and special event rates shall be determined based on demand and proximity to the event and shall be either five dollars ($5.00) per vehicle, ten dollars ($10.00) per vehicle, or otherwise as set by the city manager in accordance with section 25.1-26 of Norfolk City Code, 1979, as amended.

(4) *Authorized monthly parking discounts:* Subject to (c) below, the following are applicable discounts allowed:

(i) If one account has fifty (50) or more spaces, then a five dollar ($5.00) per space, per month discount shall apply.

(ii) If one account has fifty (50) or more spaces and manages the account centrally, then five dollars ($5.00) per space, per month discount shall also apply.

(iii) If the above two criteria are met and a full year of parking fees is paid in advance, then an additional five dollars ($5.00) per space, per month discount shall apply to such advance payment.

(c) *Corporate rate:* If one account has five hundred (500) vehicles or more, the monthly rate will be fifty dollars ($50.00) per space, per month. No additional discounts may be applied.

(d) *Top Deck Parking Program:*

(1) The monthly rates set below are for the designated roof top parking spaces and are limited to qualifying businesses, as defined below, which shall be known as the Top Deck Parking Program. The parking spaces are on the roof or top deck of the Boush Street Garage, West Plume Street Garage, and the Bank Street Garage.

(2) The program shall be available to businesses with a Norfolk business license:

(i) Up to one hundred (100) parking spaces for new businesses, having obtained a Norfolk business license within the preceding ninety (90) business days with fifty (50) employees or less;

(ii) Up to one hundred (100) parking spaces for businesses, having a current/existing Norfolk business license with fifty (50) employees or less;

(iii) Up to one hundred (100) parking spaces for businesses having fifty-one (51) to one hundred (100) employees; and

(iv) The city manager has the authority to reallocate the number of spaces assigned to (i), (ii), and (iii) above; however, in no event shall the total number of Top Deck Parking Program spaces exceed three hundred (300).

(3) Top Deck Parking Program rates:

(i) Qualifying new businesses, as described in subsection (2)(i) above, may lease Top Deck parking spaces, for up to two (2) years for forty dollars ($40.00) per month, per space;

(ii) Existing businesses with fifty (50) or less employees, may lease Top Deck parking spaces for sixty dollars ($60.00) per month, per space; and,

(iii) Existing businesses with fifty-one (51) to one hundred (100) employees may lease Top Deck parking spaces for seventy dollars ($70.00) per month, per space.

(4) Business accounts must be in the name of the business or company and parking spaces and each individual with access under the account must be identified by name and license plate.

(5) All program parking participants are required to park on the top deck of the assigned parking garage unless the top deck is closed by the city. If the top deck is closed by the city, authorized parkers will be permitted to park one floor lower in the respective assigned parking garage.

(6) Access shall be by license plate reader and shall be available twenty-four (24) hours per day, seven (7) days of the week.

(7) Participants who do not park on the designated top deck area will be required to pay the full daily rate for the respective garage.

Additionally, for the 1st offense, the business owner and named individual parker will receive a courtesy warning; for the 2nd offense, the named individual parker will be ticketed (a fine of thirty dollars ($30.00) shall be imposed); and, for the 3rd offense, the named individual parker's access will be deactivated and the business or company will be notified. Continued violations may cause the business or company to be removed from the Top Deck Parking Program.

(8) The Top Deck Parking Program may be discontinued for any reason at the city manager's sole discretion.

(9) Applications for the parking spaces will be approved on a first-come, first-served basis, not to exceed the capacity of the top deck per garage and the limits set forth in paragraph (2) above. Once the above limits have been reached, an application-dated waiting list will be maintained.

(e) *Daily rate structure (excluding MacArthur Center Garages):*

Category	*Rate*
0 to 1 Hour	FREE
1 to 2 Hours	FREE
2 to 3 Hours	$2.00
3 to 4 Hours	$3.00
4 to 5 Hours	$5.00
5 to 6 Hours	$6.00
6 to 7 Hours	$8.00
7 to 8 Hours	$9.00
8 to 9 Hours	$11.00
9 to 10 Hours	$12.00
Maximum Daily Rate (more than 10 Hours up to 24 Hours)	$13.00

(f) *Daily rate structure MacArthur Center Garages:*

	Rate
Weekdays—Entry prior to 6:00 p.m.:	
0 to 1 Hour	FREE
1 to 2 Hours	FREE
2 to 3 Hours	$1.00
3 to 4 Hours	$3.00
4 to 5 Hours	$5.00
5 to 6 Hours	$7.00
6 to 7 Hours	$9.00
More than 7 Hours	$10.00
Maximum Daily Rate (more than 10 Hours up to 24 Hours)	$10.00
Weekends:	
0—2 Hours	FREE
More than two hours	$1.00

(Ord. No. 38,366, § 1(Art. III, Div. 1), 5-21-96; Ord. No. 38,757, § 1, 5-20-97; Ord. No. 39,370, § 1, 11-10-98; Ord. No. 39,494, § 1, 2-23-99; Ord. No. 40,081, § 1, 8-15-00; Ord. No. 40,088, § 1, 8-22-00; Ord. No. 40,312, § 1, 5-15-01; Ord. No. 40,454, § 1, 8-28-01; Ord. No. 40,462, § 1, 9-11-01; Ord. No. 40,626, § 1, 2-26-02; Ord. No. 41,340, § 1, 3-16-04; Ord. No. 43,453, § 1, 5-19-09; Ord. No. 43,664, § 1, 11-17-09; Ord. No. 43,748, § 1, 2-23-10; Ord. No. 44,870, § 1, 10-9-12; Ord. No. 45,084, § 19, 5-14-13, eff. 7-1-13; Ord. No. 46,252, § 2, 2-9-16; Ord. No. 47,999, § 18, 5-19-20, eff. 7-1-20; Ord. No. 48,720, § 1, 3-22-22; Ord. No. 49,962, § 2, 5-13-25, eff. 7-1-25)

Sec. 25.1-75.1. Reserved.

Editor's note—Section 1 of Ord. No. 40,312, adopted May 15, 2001, enacted new parking rates in § 25.1-75. Inasmuch as these new provisions include night monthly rates for parking in off-street facilities, the editor has treated § 25.1-75.1 as being superseded by those now set out in § 25.1-75. Former § 25.1-75.1 derived from Ord. No. 39,494, adopted Feb. 23, 1999; Ord. No. 40,081, adopted Aug. 15, 2000; and Ord. No. 40,088, adopted Aug. 22, 2000.

Secs. 25.1-76—25.1-85. Reserved.

DIVISION 2. FACILITIES

Sec. 25.1-86. Designated parking lots.

The following lots are hereby designated:

(1) Those certain spaces set aside for parking on the city-owned property situated north of the Maintenance Building, Civic Center located at the northwest corner of East Main and East Streets (address known as Civic Center, Maintenance Building, 920 East Main Street).

(2) Lot #30—The area bounded by City Hall Avenue on the north, Plume Street on the south, St. Paul's Boulevard on the east and the property of the Signet Bank on the west. This facility is hereby established as Plume Street Lot (located on the 500 block of East Plume Street).

(3) Lot #33—The area bounded by Union Street on the west and E. Main Street on the east. This facility is hereby established as the Union Street Parking Lot (location known as 999 E. Main Street).

(4) Lot #34—The area located on the northeast corner or E. Main Street and East Street. This facility is hereby established as the East Street Parking Lot (location known as 100 East Street).

(5) Lot #36—The area situated at the southeastern intersection of St. Paul's Boulevard and Market Street. This facility is hereby established as Education Building Lot (address known to be as 800 block of City Hall Avenue).

(6) Lot #37—The area at the southeast intersection of Brambleton Avenue and St. Paul's Boulevard from Brambleton to Bute Street and fronting approximately two hundred six (206) feet on the north side of Bute Street. This facility is hereby established as Brambleton Avenue Lot (address known to be as 300 block of East Bute Street).

(7) Lot #38—The area bounded by Boush Street and Llewellyn Avenue on the west, 9th Street on the north, Granby Street on the east and Virginia Beach Boulevard on the south. This facility is hereby established as the Harrison Opera House Monthly Lots (address known to be as 160 Virginia Beach Boulevard).

(8) Lot #39—The area located on the northeast corner of Monticello Avenue and Virginia Beach Boulevard. This facility is hereby established as Cedar Grove Lot (address known to be as 1000 Monticello Avenue).

(10) Lot #55—The area bounded by Interstate 264 on the west, Park Avenue on the north, Harbor Park Stadium on the east, and the Elizabeth River on the south. A portion of Lot E is hereby designated as "Park and Ride" for patrons of Hampton Roads Transit.

(11) Lot #59—The area bounded on the north by Brandon Avenue, on the south by Spotswood Avenue, and west of Colley Avenue approximately two hundred (200) feet. This facility is hereby established as the Spotswood Parking Lot (location known as 800 block of Spotswood Avenue).

(Ord. No. 38,366, § 1(25.1-3.2.1), 5-21-96; Ord. No. 40,081, § 3, 8-15-00; Ord. No. 40,088, § 3, 8-22-00; Ord. No. 40,312, § 4, 5-15-01; Ord. No. 40,454, § 2, 8-28-01; Ord. No. 41,340, § 3, 3-16-04; Ord. No. 43,664, § 2, 11-17-09; Ord. No. 49,962, § 3, 5-13-25)

Sec. 25.1-87. Designated parking garages.

The following garages are hereby designated:

(1) Garage #01—This facility at the premises known as 50 Martins Lane under the present system of street numbering has been established as the Waterside Parking Garage.

(2) Garage #02—This facility at the premises known as 161 Freemason Street under the present system of street numbering has been established as the Freemason Street Garage.

(3) Garage #03—This facility at the premises known as 112 West Main Street under the present system of street numbering has been established as the Town Point Parking Garage.

(4) Garage #06—This facility at the premises known as 215 West York Street under the present system of street numbering has been established as the York Street Parking Garage.

(5) Garage #07—This facility at the premises known as 230 East Main Street under the present system of street numbering has been established as the Main Street Parking Garage.

(6) Garage #08—This facility at the premises known as 112 West City Hall Avenue under the present system of street numbering has been established as the Boush Street Garage.

(7) Garage #12—This facility at the premises located on the 600 block of St. Paul's Boulevard under the present system of street numbering has been established as the Scope Garage.

(8) Garage #60—This facility at the premises located at 100 Plume Street, at its intersection with Boush Street, under the present system of street numbering has been established as the West Plume Street Garage.

(9) Garage #9—This facility at the premises known as 545 Market Street under the present system of street numbering has been established as the MacArthur Center North Garage.

(10) Garage #10—This facility at the premises known as 500 E. City Hall Avenue under the present system of street numbering has been established as the MacArthur Center South Garage.

(11) Garage #13—This facility at the premises located at 441 Bank Street, under the present system of street numbering, has been established as the Bank Street Garage.

(12) Garage #14—This facility at the premises located at 440 Monticello Avenue, under the present system of street numbering, has been established as the Charlotte Street Garage.

(13) Garage #61—This facility at the premises located at 130 Bank Street, under the present system of street numbering, has been established as the Fountain Park Garage.

(Ord. No. 38,366, § 1(25.1-3.2.2), 5-21-96; Ord. No. 39,370, § 2, 11-10-98; Ord. No. 40,081, § 4, 8-15-00; Ord. No. 40,626, § 2, 2-26-02; Ord. No. 41,340, § 4, 3-16-04; Ord. No. 43,748, § 2, 2-23-10; Ord. No. 46,252, § 3, 2-9-16; Ord. No. 49,962, § 4, 5-13-25)

Sec. 25.1-88. Parking rates for faculty and staff of Tidewater Community College.

The monthly parking rate for faculty and staff of Tidewater Community College shall be an

amount equal to sixty-eight (68) percent of the then current unreserved 24/7 rate for the Freemason Street Garage as set forth in this chapter 25.1 regardless of which downtown parking facilities are then currently assigned by the city to TCC for parking.

The rate set forth in this section 25.1-88 is subject to any additional quantity or other discounts set forth in this chapter 25.1 as they may exist from time to time.
(Ord. No. 47,666, § 1, 6-11-19, eff. 7-1-19)

Secs. 25.1-89—25.1-99. Reserved.

ARTICLE IV. PARKING METERED SPACES

DIVISION 1. ESTABLISHED

Sec. 25.1-100. Authority of council to establish meter zones.

The council may, from time to time, establish parking meter zones and rates on certain streets, in order to regulate parking on the streets in the city
(Ord. No. 38,366, § 1(25.1-4.1), 5-21-96)

Sec. 25.1-101. General powers and duties of city manager with respect to meters.

The city manager is hereby authorized to provide for the procurement, installation, regulation, control, operation, maintenance and use of parking meters provided for in this chapter.
(Ord. No. 38,366, § 1(25.1-4.1.2), 5-21-96)

Sec. 25.1-102. Location; manner of installation; required signals; etc.

(a) Parking meters installed in the parking meter zones established by this article shall be placed upon the curb immediately adjacent to the individual parking spaces designated in accord with this article. Each parking meter shall be placed or set in such manner as to show or display, by signal, that the parking meter space adjacent to such meter is or is not legally in use.

(b) Each parking meter provided for in the article shall be installed and set to display, upon the deposit of the required payment therein, a signal indicating legal parking for that period of time conforming to the limit of parking time which has been or may be established for that area or zone of the street upon which such parking meter is installed and shall continue to operate from the time of the deposit of such payment therein until the expiration of the time fixed as the parking limit for part of the street upon which such parking meter is placed. Each such meter shall also be so arranged that, upon the expiration of such legal parking time, it will indicate, by display of a red luminescent signal, that the lawful parking period has expired.
(Ord. No. 38,366, § 1(25.1-4.1.3), 5-21-96; Ord. No. 45,955, § 26, 5-19-15, eff. 7-1-15)

Secs. 25.1-103—25.1-114. Reserved.

DIVISION 2. METERED SPACES

Sec. 25.1-115. Designated metered spaces.

The city manager or his designee shall have authority to designate metered parking spaces. Such designation shall be kept on file at the parking office.
(Ord. No. 38,366, § 1(25.1-4.2.1), 5-21-96; Ord. No. 39,762, § 1, 11-9-99; Ord. No. 39,827, §§ 1, 2, 1-11-00; Ord. No. 39,857, § 1, 2-1-00; Ord. No. 40,107, § 1, 9-19-00; Ord. No. 40,338, § 11, 6-5-01)

Secs. 25.1-116—25.1-124. Reserved.

DIVISION 3. USE OF PARKING METER SPACES AND HOURS OF OPERATION

Sec. 25.1-125. Enforcement.

(a) Except as otherwise provided, the parking lot meters referred to in this article shall be in operation between the hours of 9:00 a.m. and 6:00 p.m., Monday through Saturday, and the Spotswood Lot parking meters shall be in operation from 8:00 a.m. to 8:00 p.m., Monday through Saturday.

(b) The provisions of this article shall not apply on Sundays, state election days, federal legal holidays, state legal holidays, or other holidays set by city council.

(c) The city manager is hereby authorized to waive the provision of this article with respect to any and/or all rates, designated streets, zones, or public areas of the city.

(d) Where the provisions of this article are waived, signs or notices advising the public of such waiver shall be conspicuously posted for the streets, zones, or areas so affected.
(Ord. No. 38,366, § 1(25.1-4.3.1), 5-21-96; Ord. No. 39,427, § 1, 1-12-99; Ord. No. 39,767, § 1, 11-9-99; Ord. No. 40,338, § 12, 6-5-01; Ord. No. 45,955, § 27, 5-19-15, eff. 7-1-15; Ord. No. 47,999, § 19, 5-19-20, eff. 7-1-20)

Sec. 25.1-125.1. Veterans' paid parking exemption.

(a) A veteran to whom special license plates issued under Virginia Code sections 46.2-741 (Pearl Harbor Survivor), 46.2-742 (Purple Heart), 46.2-742.1 (Bronze Star or Silver Star), 46.2-742.1:1 (Air Medal), 46.2-742.2 (Navy Cross, Distinguished Service Cross, Air Force Cross, or Distinguished Flying Cross), 46.2-745 (Medal of Honor), or 46.2-746 (Prisoner of War) have been issued, or a person transporting such veteran in a motor vehicle displaying such special license plates, may park such motor vehicle, without charge, in a City of Norfolk on-street, metered parking space.

(b) The unremarried surviving spouse of a veteran to whom special license plates issued under 46.2-742 (Purple Heart), 46.2-742.1 (Bronze Star or Silver Star), 46.2-742.1:1 (Air Medal), 46.2-742.2 (Navy Cross, Distinguished Service Cross, Air Force Cross, or Distinguished Flying Cross), 46.2-745 (Medal of Honor), or 46.2-746 (Prisoner of War) have been issued, or a person transporting such unremarried surviving spouse in a motor vehicle displaying such special license plates, may park such motor vehicle, without charge, in a City of Norfolk on-street, metered parking space.

(c) This section shall not exempt a vehicle displaying special license plates from compliance with any other state law or city ordinance, including, but not limited to, limitations on the types of vehicles that may park in certain reserved parking spaces and time-based restrictions on parking in city metered parking spaces.
(Ord. No. 45,245, § 1, 9-10-13)

Sec. 25.1-126. Specific meter zones.

Nothing in this article shall alter or affect any existing ordinance, rule or regulation, or any ordinance, rule or regulation hereafter adopted, relating to traffic or parking on any other street, alley, lane or highway within the city, other than those included within the parking meter zones established in this article.
(Ord. No. 38,366, § 1(25.1-4.3.2), 5-21-96)

Sec. 25.1-127. Deposit of payment required; over-time parking.

(a) When any vehicle shall be parked in any parking meter space, the operator of such vehicle shall, upon entering the parking meter space, immediately pay via mobile payment or deposit payment in a parking meter, either centralized or adjacent to the parking meter space, and the parking meter space may then be legally occupied by such vehicle during the period indicated by such parking meter, which is hereby prescribed as the period of parking time allowed in such parking meter. If such vehicle shall remain parked in such parking meter space beyond the parking time limit fixed for such parking meter space, either by centralized parking meter or the parking meter adjacent to the parking meter space, the vehicle parked in such parking meter space shall be considered as parked overtime and beyond the period of legal parking time.

(b) It shall be unlawful for any person to cause, and allow or permit any vehicle to be parked overtime or beyond the period of legal parking time established for any parking meter space as provided in this article.

(c) It shall be unlawful and a violation of this section for any person to permit any vehicle to remain or to be placed in any parking meter space while such a meter is displaying a signal or

indication that the vehicle occupying such parking space has already been parked beyond the period of time prescribed for such parking meter space.

(d) The provisions of this section shall apply to the areas set forth in sections of this article.
(Ord. No. 38,366, § 1(25.1-4.3.3), 5-21-96; Ord. No. 45,955, § 28, 5-19-15, eff. 7-1-15)

Sec. 25.1-128. Extending legal parking time prohibited.

It shall be unlawful for any person to deposit, or cause to be deposited, in a parking meter any coin or coins for the purpose of extending the parking time beyond the period of legal parking time establish the parking meter space described in this division.
(Ord. No. 38,366, § 1(25.1-4.3.4), 5-21-96)

Sec. 25.1-129. Reserved.

Editor's note—Ord. No. 39,014, adopted Jan. 13, 1999, repealed § 25.1-129, which pertained to parking spaces reserved for persons with disabilities and derived from Ord. No. 38,366, adopted May 21, 1996.

Sec. 25.1-129.1. Four hours' free parking exemption.

(a) Section 46.2-1245 of the Code of Virginia, 1950, as amended, providing for four (4) hours' free parking for the disabled person, vehicle owner, or volunteer for an institution or organization to which disabled parking license plates, organizational removable windshield placards, permanent windshield placards, or temporary removable windshield placards are issued or any person to whom disabled parking license plates have been issued under subsection B of section 46.2-739, Code of Virginia, 1950, as amended, shall not apply within the boundaries of the City of Norfolk. The disabled are subject to the time restrictions applicable to parking.

(b) There shall be posted within the city signs or other means of giving reasonable notice that the provisions of section 46.2-1245 do not apply within the City of Norfolk. Such signs or other means of notice shall include the following: FREE PARKING FOR THE DISABLED LIMITED TO POSTED TIME. SECTION 46.2-1245 DOES NOT APPLY WITHIN THE CITY OF NORFOLK.
(Ord. No. 39,491, § 3, 2-23-99)

Secs. 25.1-130—25.1-139. Reserved.

DIVISION 4. PARKING METER FEES

Sec. 25.1-140. Parking meter rates.

The following rates for metered parking are hereby established:

Metered Area	*General Location*	*Hourly Rate*
Tier 1	All streets west of St. Paul's Boulevard, City Hall Avenue and South, Waterside Drive and north, all streets east of Boush Street including Boush Street, and east side of St. Paul's Boulevard between Market Street and Charlotte Street (St. Paul's Lot)	$0.95 per 15 minutes
Tier 2	All streets west of St. Paul's Boulevard and east of Duke Street; north of City Hall Avenue and south of Charlotte Street; and all remaining downtown areas with meters, generally north of Charlotte Street to Princess Anne Road to east of Llewellyn Avenue to west of Monticello Avenue	$0.85 per 15 minutes
Education Lot	Corner of St. Paul's Boulevard and City Hall Avenue	$0.45 per 15 minutes
ODU Village and Spotswood Parking Lot #59	Meters located on 41st, 43rd, 45th, 46th, 47th Street and Monarch Way, and Lot #59 Spotswood Parking Lot (800 Block of Spotswood Avenue between Colley Avenue and Core Avenue)	$0.50 per 30 minutes

Notes:

Pricing: Pricing is provided in 15-minute increments for on-street meters except in ODU Village.

Metered lots: The meters are for a maximum of two (2) hours except for Metered Lot #59 (Spotswood Parking Lot).

Metered rentals: Rental of bags to cover meters. Monday through Sunday rental, including holidays.

Metered lot #59 (Spotswood Parking Lot): The meters are for four (4) hours maximum and priced at 30-minute increments, with a maximum fee of two dollars ($2.00).

(Ord. No. 38,366, § 1(25.1-4.4.1), 5-21-96; Ord. No. 40,312, § 2, 5-15-01; Ord. No. 43,664, § 3, 11-17-09; Ord. No. 45,084, § 20, 5-14-13, eff. 7-1-13; Ord. No. 45,955, § 29, 5-19-15, eff. 7-1-15; Ord. No. 49,962, § 5, 5-13-25, eff. 7-1-25)

Secs. 25.1-141—25.1-149. Reserved.

DIVISION 5. VIOLATIONS

Sec. 25.1-150. Report and notice.

Any violation of this chapter shall constitute a Class 4 misdemeanor or as otherwise provided.

(Ord. No. 38,366, § 1(25.1-5.5.1), 5-21-96)

Chapter 25.2

RESERVED*

*__Editor's note—__Ord. No. 48,503, § 1, adopted Sept. 14, 2021, repealed Ch. 25.2, §§ 25.2-1—25.2-205, which pertained to neighborhood and leisure services and derived from Ord. No. 39,590, § 4, 5-18-99; Ord. No. 39,723, § 1, 9-14-99; Ord. No. 39,741, § 1, 10-26-99; Ord. No. 39,819, § 1, 12-14-99; Ord. No. 40,325, § 1, 5-22-01; Ord. No. 40,826, § 1, 9-17-02; Ord. No. 40,827, § 1, 9-17-02; Ord. No. 40,097, § 1, 8-29-00; Ord. No. 41,092, § 1, 7-8-03; Ord. No. 41,776, § 1, 3-29-05; Ord. No. 42,850, § 1, 9-18-07; Ord. No. 42,979, § 1, 1-29-08; Ord. No. 43,299, § 2, 11-25-08; Ord. No. 43,541, §§ 2—4, 8-18-09; Ord. No. 43,998, § 1, 10-5-10; Ord. No. 44,098, § 1, 1-11-11; Ord. No. 47,229, §§ 32—35, 5-22-18, eff. 7-1-18; Ord. No. 47,920, §§ 1, 3, 2-25-20.

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Chapter 26

NOISE*

§ 26-1. Declaration of policy.
§ 26-2. Definitions.
§ 26-3. Enforcement.
§ 26-4. Violations and penalties.
§ 26-5. Exemptions.
§ 26-6. Specific prohibitions.
§ 26-7. Conflict of ordinance.
§ 26-8. Severability.

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*__Editor's note—__Ord. No. 48,923, § 1, adopted Sept. 13, 2022, amended Ch. 26 in its entirety to read as herein set out. Former Ch. 26, §§ 26-1—26-13, pertained to similar subject matter, and derived from Ord. No. 36,406, § 1, adopted April 30, 1991; Ord. No. 41,696, §§ 1, 2, adopted Jan. 18, 2005; Ord. No. 43,426, § 1, adopted April 28, 2009; Ord. No. 43,541, § 4, adopted August 18, 2009; Ord. No. 43,546, § 1, adopted August 18, 2009; Ord. No. 44,134, § 1, adopted Feb. 8, 2011; Ord. No. 44,583, § 1, adopted Feb. 16, 2012.

__Charter reference—__Authority of city to prevent unnecessary noise, § 2(16).

__Cross references—__Advertising, Ch. 3; animals, Ch. 6; creation of loud, unreasonable, etc., noise by persons aboard boat, § 9-134; use of noise-making devices on vehicles used for sale of ice cream, § 18-166; license tax for sound trucks, § 24-118; motor vehicle code, Ch. 25; prohibited noise-making devices and further limitations on use of vehicle horns, § 25-47; requirements of motor vehicle code relative to vehicle exhaust, § 25-54 et seq.; use of sound-amplifying equipment on pedestrian malls, § 31-26; use of noise to attract attention to auctions, § 38-24.

Sec. 26-1. Declaration of policy.

At certain levels, noise can be detrimental to health, welfare, safety, and quality of life. It is therefore in the public interest and the policy of the city to prohibit unnecessary, excessive, and annoying noise from all sources subject to its police power, to the extent such action is not inconsistent with the First Amendment rights of the people. Nothing contained in this article should be construed to authorize or direct any action which would result in any substantial increase in noise levels from any noise source in the city. Such noise is a nuisance, and all powers of the city regarding the abatement of nuisances apply to noise disturbances.
(Ord. No. 48,923, § 1, 9-13-22)

Sec. 26-2. Definitions.

As used in this chapter, the following words, terms, and phrases have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning:

Ambient noise. The all-encompassing noise associated with a given environment, being usually a composite of sounds from many sources near and far. Ambient noise levels are established by taking a series of observations on the adversely affected property.

Audio players. Any device capable or producing or reproducing sound, including but not limited to mobile phones, hardware or software digital audio players, computers, televisions, radios, compact disc players, cassette players, record players, and audio systems in a motor vehicle.

Decibel (dB). A unit for measuring the volume of sound, equal to twenty (20) times the logarithm to the base ten (10) of the ratio of the pressure of the sound measured to the reference pressure, which is twenty (20) micropascals (twenty (20) micronewtons per square meter). The sound pressure level in decibels as measured on a sound level meter using the A-weighting network. The level so read is designated dB(A).

Dwelling unit. One (1) or more rooms connected together and constituting a single housekeeping unit, with independent cooking (including range), bathroom (including bathtub, shower, or both), and sleeping facilities, designed, or used for occupancy by a single family or housekeeping unit, and separate from any other dwelling units or rooms in the same building. Recreational vehicles are not dwelling units.

Emergency. Any occurrence or set of circumstances involving actual or imminent physical trauma or property damage which demands immediate action.

Emergency and public safety work. Any work performed for the purpose of preventing or alleviating the physical trauma or property damage threatened or caused by an emergency or work performed by public and private service companies constructing, inspecting, and repairing utilities, repairing and maintaining roads, bridges, and highways, providing snow removal, and the operation of public safety and emergency vehicles.

Enclosed dwelling unit. A dwelling unit with doors and windows closed.

Impulsive sound. Sound of short duration usually less than one second, with an abrupt onset and rapid decay.

Motor vehicle. Every vehicle defined as a motor vehicle by § 46.2-100 of Code of Virginia (1950), as amended, and for the purposes of this chapter, the definition also includes autocycles, golf carts, motor scooters, minibikes, and mopeds.

Muffler. A device for abating the sound of escaping gases of an internal combustion engine.

Noise. Any sound which disturbs humans, or which causes or tends to cause an adverse psychological or physiological effect on humans.

Noise source. Any equipment, facility, motor vehicle, conduct, activity, or operation whether human, animal, mechanical, electronic, or other; and whether continuous, intermittent, or sporadic; and whether stationary or ambulatory in nature, which produces or results in plainly audible and discernible noise.

Plainly audible and discernable. Sound that can be heard by the human ear and is sufficiently distinct so that its source can be clearly

identified by a person using their unaided hearing faculties, unless that aid is a functioning medical hearing aid device. Specific words or phrases do not need to be discernible for sound to be plainly audible. The detection of rhythmic bass tones or reverberations is sufficient to be considered a plainly audible and discernable sound.

Sound. An oscillation in pressure, particle displacement, particle velocity or other physical parameter, in a medium with internal forces that cause compression and rarefaction of that medium. The description of sound may include any characteristics of such sound, including duration, intensity, and frequency.

Sound level. The weighted sound pressure level obtained using a sound level meter and frequency weighting network, such as A, B, or C, as specified in the American National Standards Institute specifications for sound level meters. If the frequency weighting employed is not indicated, the A weighting will apply.

Sound level meter. An instrument which includes a microphone, amplifier, RMS detector, integrator or time averager, output meter, and any applicable weighting network used to measure sound pressure levels.
(Ord. No. 48,923, § 1, 9-13-22)

Sec. 26-3. Enforcement.

(a) The Norfolk Police Department and any other law enforcement agency with concurrent jurisdiction within the City of Norfolk may enforce the provisions of this article and may be assisted by other city departments as directed by the city manager, or by the Virginia Department of Health.

(b) Each and every person operating, permitting, or controlling a source of noise is guilty of any violation caused by that source. If the person operating, permitting, or controlling the noise source cannot be identified, or the noise source is a business entity or premises; each and every owner, tenant, resident, or manager physically present on the property where the noise source is located is rebuttably presumed to be in violation of this chapter.

(c) For purposes of the measurements set forth below in this chapter, if the source of the sound is not visible, then the measurement should be taken from the exterior wall of the building, structure, or other enclosure in which the source of the sound is located.

(d) Nothing in this section should be construed to abridge, limit, or otherwise impair the right of any person or entity to claim, in a separate, private action, damages or other relief on account of injuries to persons or property, and to maintain any action or other appropriate proceedings.

(e) Nothing in this article is meant to prevent enforcement efforts to obtain voluntary compliance through warning, conference, or any other appropriate means.
(Ord. No. 48,923, § 1, 9-13-22)

Sec. 26-4. Violations and penalties.

(a) Unless otherwise specified, a violation of any provision of this chapter is a class 3 misdemeanor, punishable by a fine of up to five hundred dollars ($500.00).

(b) As an additional remedy, the operation or maintenance of any device, instrument, vehicle, or machinery in violation of any provision of this chapter, which operation or maintenance endangers the comfort, repose, health, or peace of residents in the area, is declared to be a public nuisance and may be subject to abatement summarily by a restraining order or injunction issued by a court of competent jurisdiction, or any other power to abate a nuisance held by the city.
(Ord. No. 48,923, § 1, 9-13-22)

Sec. 26-5. Exemptions.

No provision of this chapter applies to:

(1) Sound or noise with the purpose of alerting persons to the existence of an emergency.

(2) Noises resulting from any public emergency vehicle at any time or resulting from other authorized emergency vehicles when responding to an emergency call or acting in time of emergency.

(3) Noises resulting from emergency and public safety work necessary to restore property to a safe condition following a public calamity or weather event, or work required to protect persons or property from an imminent danger.

(4) Noises created by the operation of generators during power outages or under other emergency or necessary circumstances.

(5) Noises generated by city sponsored or authorized parades, performances, fireworks, and other special events or activities for which all required permits have been issued by the city.

(6) Noises generated by organized athletic and recreational activities conducted on or in private or public property and facilities, provided that such athletic or recreational activity is lawfully conducted and has been authorized by the owner of such property or facilities or its agent.

(7) Noises generated by locomotives and other railroad equipment, including federally-mandated safety features.

(8) Noises generated by all aircraft under the jurisdiction the Federal Aviation Administration.

(9) Noises generated by the striking of clocks and ringing or chiming of church bells, including such sounds made by a synthesizer or played recording.

(10) Noises generated by the operation of heating, ventilation, and air conditioning units (HVAC units) attached to a building or structure that does not exceed the ambient noise level by more than ten (10) decibels.

(11) Noises generated by city waste collection, including public recycling and waste removal services rendered by the city's agent, contractor, or designee.

(12) Noises generated by the lawful operation of a motor vehicle with a functioning muffler on public streets and highways, including without limitation, the sounding of any horn or signaling device of a motor vehicle as a warning of danger in accordance with state and local law. This exemption does not apply to noises generated by revving engines, compression braking, racing motor vehicles, test driving motor vehicles under repair and similar use of a motor vehicle for purposes other than as a lawful mode of transportation.

(13) Noises resulting from the emanation of sound from a building occupied by a church or other religious organization as a place of worship during worship services and other religious activities.

(14) Noise resulting from utility facilities, as defined in the Norfolk Zoning Ordinance; and lawful activities in industrial areas, as designated in the Norfolk Zoning Ordinance, including federally-mandated safety features on motor vehicles and equipment.

(15) Noises resulting from activities of a temporary duration permitted by law and for which a license or permit has been granted by the city.

(Ord. No. 48,923, § 1, 9-13-22)

Sec. 26-6. Specific prohibitions.

Subject to the exemptions in section 26-5, any of the following acts, or the causing or permitting of the following acts, is prohibited.

(a) *Per se offenses.* The following activities are deemed to comprise creating noise in violation of this section, without any requirement of scientific measurement of sound levels:

(1) Vehicle exhaust. A person operating a motor vehicle that generates loud exhaust sound without having a muffler that meets all applicable motor code requirements, as provided by Code of Virginia § 46.2-1047.

(2) Audio players, musical instruments, and similar devices. Operating, playing or permitting the operation or playing of any audio player, musical instrument, or any device capable of

producing or reproducing sound in such a manner or with such volume or physically perceptible vibrations that it is plainly audible (i) inside the confines of another person's enclosed dwelling unit or enclosed vehicle; or (ii) at a distance of 100 or more feet in any direction from the operator between the hours of 7:00 a.m. and 10:00 p.m.; or (iii) at a distance of 50 or more feet in any direction from the operator between the hours of 10:00 p.m. and 7:00 a.m.

(3) Loudspeakers, public address systems, amplifiers, and similar devices. Using, operating, or permitting the operation of any loudspeaker, public address system, mobile sound vehicle, communication system, amplifier, or similar device capable of amplifying sound, including any such device in a motor vehicle, for any purpose between the hours of 10:00 p.m. and 7:00 a.m. in such a manner as to permit sound to be plainly audible (i) inside the confines of another person's enclosed dwelling unit or enclosed motor vehicle; or (ii) at fifty (50) or more feet from the noise; or (iii) amplified music that is plainly audible at ten (10) or more feet from an entrance to a nightclub or restaurant on Granby Street, observed when all doors and windows facing the street are closed.

(4) Vehicle horns, signaling devices, and similar devices. Sounding or permitting the sounding of any horn, whistle, signaling device, or similar device on any automobile, motorcycle, or other vehicle on any right-of-way or in any public space continuously or intermittently for more than ten (10) consecutive seconds, except when the sounding of any such device is intended as a danger warning.

(5) Yelling, shouting, etc. Yelling, shouting, whistling, or singing between the hours of 10:00 p.m. and 7:00 a.m. in such a manner as to permit sound to plainly audible (i) inside the confines of another person's enclosed dwelling unit; or (ii) at fifty (50) or more feet from the source of the sound, unless exempt under section 26-5.

(6) Social gatherings and parties. Allowing any noise between 10:00 p.m. and 7:00 a.m. generated from a gathering of two (2) or more people that is plainly audible (i) inside the confines of another person's enclosed dwelling unit; or (ii) in a residential area, at fifty (50) or more feet from the gathering.

(7) Construction equipment, pneumatic hammer, chain saw, etc. The operation of any bulldozer, crane, backhoe, front loader, pile driver, jackhammer, pneumatic drill, pneumatic hammer, chain saw, steam shovel, derrick, steam or electric hoist, or other appliance or other construction equipment between the hours of 10:00 p.m. and 7:00 a.m., unless exempt or specifically deemed necessary and authorized by a written document issued by the city manager or their designee.

(8) Vehicle repairs, etc. Repairing, rebuilding, modifying, or testing any motor vehicle, motorcycle, or motorboat in such a manner that is plainly audible inside the confines of another person's enclosed dwelling unit between the hours of 10:00 pm and 7:00 am in a residential area as defined by Norfolk's Zoning Ordinance, unless exempt under section 26-5.

(9) Lawn care activities. Creating any noise plainly audible inside the confines of another person's enclosed dwelling unit between 10:00 p.m. and 7:00 a.m. in connection with

lawn care, leaf removal, gardening, tree maintenance or removal, or other landscaping activities.

(b) *Immediate threats to health and welfare.*

(1) An enforcement officer may order an immediate halt to any sound which exposes any person to sound levels more than those shown below as Table I, "Impulsive Sound Levels."

(2) Notwithstanding section 26-4, any violation of this subsection (b) is a Class 1 misdemeanor.

TABLE I:
IMPULSIVE SOUND LEVELS WHICH POSE AN IMMEDIATE THREAT TO HEALTH AND WELFARE
Measured from at least 50 feet from the noise source

Sound Level Limit (dB)A	*Number of Repetitions per 24-Hour Period*
140	1
135	10
125	100

(c) *Offenses requiring scientific measurement of sound levels.* Any noise not listed as an exemption or prohibited act in this subsection, that exceeds the maximum sound pressure level in Table II below is a violation of this chapter. Where the ambient noise level exceeds the maximum sound pressure levels, the noise complained of is permitted to exceed the ambient level by ten (10) decibels but no more.

(1) Scientific measurement procedures.

a. The decibel level of any noise regulated this subsection must be measured by the use of a sound level meter at least fifty (50) feet from the noise source. Such measurement is *prima facie* evidence of the level of noise at issue in any court or legal proceeding to enforce the provisions of this section.

b. The accuracy of the sound level meter must be tested by a calibrator in accordance with the device manufacturer's instructions. Any sworn report of the results of any test of the calibrator for the accuracy of a sound level meter is admissible in court in any criminal or civil proceeding, as evidence of the facts stated.

c. An individual operating a sound level meter pursuant to the provisions of this section must issue a certificate to indicate:

1. That the sound level meter used to take the decibel level reading was operated in accordance with the manufacturer's specifications;
2. That the city has on file a sworn report which states that the sound level meter has been tested within the past twelve (12) months and has been found to be accurate;
3. The name of the accused;
4. The location of the noise source;
5. Where the reading was made and the receiving land use zoning district in which the reading was made;
6. The ambient sound level at the location of the noise source;
7. The date and time that the reading was made; and
8. The decibel level reading measured for the sound emitted from the noise source.

d. Such certificate, when attested by the operator taking the decibel level reading, is admissible in court in any criminal or civil proceeding as evidence of the facts stated and of the

decibel level reading. A copy of the certificate may be delivered to the accused upon written request.

TABLE II: MAXIMUM SOUND PRESSURE LEVELS		
Receiving Land Use Base Category in Norfolk Zoning Ordinance	*Sound Level Limit db(A)*	
	7:00 a.m. — 10:00 p.m.	*10:00 p.m. — 7:00 a.m.*
Residential Base; Historic and Cultural Conservation Base; and Special Purpose Districts: IN, IN-C, UV, EBH, G-1, TOD-C, and TOD-S	57	52
Special Purpose Districts: OSP, Resource, MI	67	62
Commercial Base	67	62
Downtown Base: D-W, D-BC, D-AD	67	62
Downtown Base: D-MU, D-FN, D-SP; and Commercial Base: C-N	67	52
Industrial Base	77	77

(Ord. No. 48,923, § 1, 9-13-22)

Sec. 26-7. Conflict of ordinance.

In any case where a provision of this chapter is found to conflict any other provision of the Norfolk Code existing on the effective date of this chapter, the provision which establishes the more stringent standard for the promotion and protection of the health and safety of the public will prevail. In any case where a provision of this chapter is found to be in conflict with any other provision of the Norfolk Code existing on the effective date of this chapter which establishes a less stringent standard for the promotion and protection of the health and safety of the public, the provisions of this chapter must be deemed to prevail; and such other provisions are hereby declared to be repealed to the extent that they may be found in conflict with this chapter.
(Ord. No. 48,923, § 1, 9-13-22)

Sec. 26-8. Severability.

Should any section, subsection, sentence, clause, or phrase of this chapter be declared invalid or unconstitutional by a court of competent jurisdiction, such declaration must not affect the validity of the chapter in its entirety or of any part thereof other than that part declared to be invalid.
(Ord. No. 48,923, § 1, 9-13-22)

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CODE OF THE CITY

OF

NORFOLK, VIRGINIA, 1979

VOLUME II

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Chapter 27

NUISANCES*

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ARTICLE I. IN GENERAL

Sec. 27-1. Violations.

Unless otherwise specified, any person violating any provision of this article shall be guilty of a Class 2 misdemeanor. Each day a violation continues shall be deemed a new and separate violation. In addition to any penalties imposed for each violation, a judge hearing the case shall order the person responsible for such condition to remove, restore, remediate or correct the violation or condition, and each day's default in such removal, restoration, remediation or correction after being so ordered shall constitute a violation of and a separate offense under this article.
(Ord. No. 39,649, § 2, 6-22-99)

Sec. 27-2. Definitions.

(a) For purposes of this article, a "nuisance" is defined as any condition, substance, material or thing which may be annoying, obnoxious, offensive, irritating or detrimental or potentially hazardous or detrimental to the health, safety, comfort and general welfare of the public or the environment, including, but not limited to, refuse, trash, rubbish, debris, junk, garbage, containers, wire, glass, wood, ashes, animal matter, vegetable matter, human and animal wastes, and odors.

(b) For purposes of this article, a "person" is defined as any individual, firm, owner, sole proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant or other legal entity.

(c) For purposes of this article, "vegetable matter" is defined as any grass, weeds, bushes, underbrush, poison ivy, poison oak or any other vegetable matter which has grown to sufficient height and cover or to a height of more than twelve (12) inches or accumulated so as to provide cover or harborage or potential cover or harborage for rodents or vermin.

(d) For purposes of this article, "overgrowth" is defined to include overgrown shrubs, trees, and other such vegetation, including but not limited to running bamboo, vines, ivy, noxious weeds, and any other plant material that may inhibit the growth of native vegetation which has grown to sufficient height and cover or to a height of more than twelve (12) inches or accumulated so as to provide cover or harborage or potential cover or harborage for rodents or vermin.
(Ord. No. 39,649, § 2, 6-22-99; Ord. No. 48,245, § 1, 12-8-20)

Sec. 27-3. Enforcement.

(a) The director of public health or his designee is hereby vested with the authority to require the abatement of any and all conditions in the city which constitute a nuisance or are detrimental to the public health, safety or welfare or the environment.

(b) It shall be the duty of the director of public health or his designee to have made continuous sanitary inspections of all parts of the city and to cause all nuisances to be abated; and when necessary, to institute legal proceedings therefor and for the recovery of expenses incurred by the city in abating any nuisance.

(c) Any law enforcement officer, fire marshal or any of his assistants, fire inspectors, or sworn special police officer, is authorized and shall have authority to enforce all provisions of this chapter.
(Ord. No. 39,649, § 2, 6-22-99)

Secs. 27-4, 27-5. Reserved.

Editor's note—Ord. No. 39,649, § 1, adopted June 22, 1999, repealed provisions formerly codified as §§ 27-4 and 27-5, which provided for inspections by city police and provided that the executor, trustee, agent, etc., will be deemed owner of property for purposes of this chapter, and which derived from Ord. No. 38,340, adopted May 14, 1996.

Sec. 27-6. Notice of Violation.

(a) Whenever it shall come to the knowledge of the director of public health or his designee, or persons specified in section 27-3(c), that there exists upon any land or premises in the city any nuisance, such person shall serve, post, mail or deliver a notice to any of the following to cause

such nuisance to be abated from such land or premise within forty-eight (48) hours or in the time limit set forth in the notice:

(1) The person causing or creating the nuisance;

(2) The person allowing the nuisance to remain or continue;

(3) The occupant of the land or premises; and/or

(4) The owner of the land or premises.

Proof of such service, delivery, mailing or posting shall be sufficient evidence of such service of notice.

(b) Notwithstanding the above, in the event the director of public health or his designee or the person specified in section 27-3(c) determines that the nuisance constitutes an imminent, substantial or compelling threat to the public health or the environment, the notice requirement shall be dispensed with, and the procedure provided in City Code section 27-10 may be utilized.

(c) Any person issued a notice of violation pursuant to this section who shall fail to comply therewith within the time specified shall be guilty of a Class 2 misdemeanor. Any person receiving two or more notices within twelve (12) months of an initial violation notice and who fails to comply with a notice issued pursuant to this section shall be guilty of a Class 1 misdemeanor.

(d) With respect to high weeds, grass, other vegetable matter, and overgrowth, one written notice of violation and notice of abatement per growing season, sent by mail to the owner of property at the address listed in real estate records, shall be reasonable notice. Upon the failure to comply with such notice, the city may remove or contract for the removal of any excessive growth for the entire growing season without additional notice of violation or notice of abatement. "Growing season" shall mean the period from March 1 to October 31 of each year.
(Ord. No. 39,649, § 2, 6-22-99; Ord. No. 40,134, § 1, 10-10-00; Ord. No. 44,896, § 1, 10-23-12; Ord. No. 48,245, § 2, 12-8-20)

Sec. 27-7. Executor, trustee, agent, etc., deemed owner of property for purposes of chapter.

When any person is in possession of any property, or has charge thereof, within the city as executor, administrator, trustee, guardian, or agent, such person shall be deemed to be the owner of such property for the purposes of this article and shall be bound to obey all orders of the director of public health, or his designee, in regard to nuisances, sanitation, or other matters, so far as the same may affect such property, in the same manner, and subject to the same penalties and fines, as if such person were actually the owner of such property, and notice to such person shall be deemed to be sufficient.
(Ord. No. 39,649, § 2, 6-22-99)

Sec. 27-8. Notice of abatement by city; abatement by city.

(a) If a nuisance remains upon a land or premises after the expiration of the time specified in a notice of violation, the director of public health, or his designee, may issue a notice of abatement to such person identified in the notice of violation informing said person that the director of public health or his designee will cause the nuisance to be abated at the expense of such person in the time set by the director of health or his designee. An administrative fee shall be assessed for each abatement in the amount of seventy five dollars ($75.00) for amounts owed up to three hundred dollars ($300.00) and an administrative fee in the amount of one hundred and fifty dollars ($150.00) for amounts owed over three hundred dollars ($300.00). The expense of abatement and the administrative fee shall be chargeable against such person.

(b) The notice of abatement may either be served, mailed or delivered to said person, or posted on the land or premises where the nuisance is located. Proof of such service, delivery, mailing or posting shall be sufficient evidence of such service of notice.

(c) Notwithstanding the above in the event the director of health or his designee determines that the nuisance constitutes an imminent,

substantial or compelling threat to the public health or to the environment the notice requirement herein shall be dispensed with.

(d) Notwithstanding the above, the notice of violation specified in section 27-6 and the notice of abatement specified in this section can be combined in one document and issued as provided in this article.

(e) The expense of the abatement and the administrative fee shall constitute a lien on real property of the owner ranking in parity with liens for unpaid local taxes and shall be reported to the city treasurer who shall collect the same in the manner in which city taxes levied upon real estate are authorized to be collected.

(f) Abatement by the city shall be exclusive of and in addition to any criminal penalty which may be imposed.
(Ord. No. 39,649, § 2, 6-22-99; Ord. No. 40,535, § 1, 11-27-01; Ord. No. 40,697, § 1, 5-14-02; Ord. No. 44,896, § 2, 10-23-12)

Sec. 27-9. Duty of owner or occupant of abutting land to remove solid waste and to cut grass, weeds and other vegetable matter between sidewalk and curb.

It shall be the duty of the owner or occupant of any land or premises abutting upon any public right-of-way, including between the sidewalk and curb, whether paved or not, and the duty of the owner of any unoccupied land or premises abutting upon any public right-of-way, including between the sidewalk and curb, whether paved or not, to remove solid waste (as defined in chapter 14.5 of the City Code), therefrom and to have any grass, weeds, and other vegetable matter cut and removed, and at all times to prevent such area from becoming unsightly, impeded, or offensive by reason of failure to remove any such solid waste (as defined in chapter 14.5 of the City Code), or cut any such grass, weeds, and vegetable matter. No grass, weeds or other vegetable matter so cut shall be deposited or piled in any gutter or street, or storm water system. The occupant or the owner, or if unoccupied, the owner, of any such land or premises in front of which any such solid waste (as defined in chapter 14.5 of the City Code) or any such grass, weeds, or vegetable matter is found contrary to the provisions of this section shall be *prima facie* the person responsible therefor. Nothing in this section shall be construed as authorizing any person to cut or remove any city tree or bush without first obtaining a permit from the director of neighborhood development or his designee.
(Ord. No. 39,649, § 2, 6-22-99; Ord. No. 48,245, § 4, 12-8-20)

Sec. 27-10. Placarding of structure, building or facility which constitutes imminent, substantial or compelling threat to public health or safety; unlawful to occupy or use once placarded.

In the event the director of public health or his designee determines that the nuisance constitutes an imminent, substantial or compelling threat to the public health or the environment, the director of public health or his designee may placard the structure, building or facility as unfit or unsafe for human occupancy or use. The placard shall be posted at all normal means of egress to the structure, building or facility. As soon as possible after placarding, the director of public health or his designee shall mail or deliver a notice to the owner(s) or occupant(s) of the structure, building or facility informing such person of the reason for placarding and the penalty for occupancy or reuse while placarded. Once the structure, building or facility is placarded, the occupancy or use shall be prohibited. Occupancy in or use of a placarded structure, building or facility shall constitute a class 1 misdemeanor. No reoccupancy or reuse shall occur until the director of public health or his designee approves in writing the reoccupancy or reuse. Removal of a placard without permission of the director of public health or his designee shall constitute a class 1 misdemeanor.
(Ord. No. 40,133, § 1, 10-10-00)

Secs. 27-11—27-13. Reserved.

Editor's note—Ord. No. 39,649, § 1, adopted June 22, 1999, repealed provisions formerly codified as §§ 27-10—27-13, which derived from Ord. No. 38,340, adopted May 14, 1996, and which contained provisions relating to the prevention of breeding of flies; collection of water in which mosquitoes may breed; the filling of cellars and lots and lot drainage; and the cutting and removal of weeds and other vegetable matter on vacant developed and undeveloped property.

Sec. 27-14. Cutting of overgrowth.

It shall be the duty of the owner or occupant or other person who is responsible for the maintenance and upkeep of any land or premises, occupied or vacant, including the area adjoining such property extending to the center line of an abutting alley, to prevent overgrowth (as defined in chapter 27 of the City Code) to exist in a manner that is in violation of this section. Overgrowth shall be unlawful if any one or more of the following applies:

(a) The overgrowth is abandoned, neglected, or not adequately maintained;

(b) The overgrowth has caused the primary improvements on the property to be wholly or substantially screened from view from pedestrians standing at ground level upon any right-of-way abutting the property line;

(c) The overgrowth obstructs the property's address numerals;

(d) The overgrowth obstructs access to emergency escape and rescue opening points, as defined by the Virginia Uniform Statewide Building Code, or path of travel from any street to the primary entrance of any primary or accessory structure;

(e) The overgrowth is growing into or on any primary or accessory structures in a manner that is determinantal to the structure or has caused damaged to the structure;

(f) The overgrowth is likely to result in harborage for rodents or vermin or constitutes any other public health, safety, welfare, or fire hazard.

No overgrowth cut shall be deposited or piled in any gutter or street, or storm water system. The occupant or the owner, or if unoccupied, the owner, of any such land or premises in front of which any such solid waste (as defined in chapter 14.5 of the City Code) or any such overgrowth is found contrary to the provisions of this section shall be *prima facie* the person responsible therefor. Nothing in this section shall be construed as authorizing any person to cut or remove any city tree or bush without first obtaining a permit from the director of neighborhood and development or his designee.

(Ord. No. 48,245, § 5, 12-8-20)

Secs. 27-15—27-30. Reserved.

ARTICLE II. PROTECTION FROM LEAD POISONING

Sec. 27-31. Definitions.

(a) *Generally.* For the purposes of this article, certain words and phrases shall have the meanings ascribed to them by this section.

(b) *Approval* means satisfactory compliance as determined by the director of public health.

(c) *Director* means that person who heads the public health department, or his designated representative.

(d) *Dwelling, dwelling unit, rooming house and rooming unit* mean a building or structure which is wholly or partly used or intended to be used for living, sleeping, cooking or recreation, by human occupants.

(e) *Extractable or leachable lead* means the quantity of lead in solution form as applied to food containers, cooking, eating or drinking utensils or tableware shall not exceed 7.0 micrograms per milliliter.

(f) *Facility* means any building or structure and equipment therein.

(g) *Lead-containing paint* shall have either of the following meanings:

(1) Any paint containing more than five-tenths (0.5) of one percentum lead by

weight (calculated as lead metal) in the total nonvolatile content of the paint or the equivalent measure of lead in the dried film of paint already applied or both; or

(2) With respect to paint which is manufactured after February 27,1978, any paint containing more than six one-hundredths (0.06) of one percentum lead by weight (calculated as lead metal) in the total nonvolatile content of the paint or the equivalent measure of lead in the dried film of paint already applied, or both.

(h) *Lead-containing paint hazard.* Any lead-containing paint as defined above shall be considered a health hazard when any surface containing such paint is:

(1) Reachable and chewable by children; or

(2) Cracking, scaling, chipping, peeling or loose, or which paint the director determines to be a danger to a child or other person.

(i) *Premises* means a lot, plot or parcel of land, including all facilities thereon.

(j) *Substance* shall include but not be limited to lead-bearing putty, ceramics, plumbing, sealers, paint and similar items.

(k) *Surfaces* shall include but not be limited to such areas as window sills, window frames, doors, door frames, walls, ceilings, porches, stairs, handrails, toys, furniture, food utensils and other appurtenances.
(Code 1958, § 30-18; Ord. No. 31,048, § 1, 3-24-81)

Sec. 27-32. Violations of article.

In addition to any other sanction or remedial procedure, any owner, landlord, occupant or other person who shall violate any provision of this article shall be guilty of a Class 2 misdemeanor.
(Code 1958, § 30-25)

Sec. 27-33. Limitation on use of lead paint and other substances containing lead.

It shall be unlawful for any person in the city to use or apply or cause to be used or applied lead-containing paint, as defined in this article, or any substance containing lead in excess of six one-hundredths (0.06) of one percentum by weight to interior surfaces and to those exterior surfaces of any premises, dwelling, dwelling unit, rooming house, rooming unit or any facility occupied, used or likely to be used by children.
(Code 1958, § 30-19; Ord. No. 31,048, § 1, 3-24-81)

Sec. 27-34. Sale or delivery of toys, furniture, food containers, etc., painted with lead paint or having lead thereon or therein.

(a) It shall be unlawful for any person to sell, transfer, give or deliver toys or furniture to which lead-containing paint has been applied.

(b) It shall be unlawful for any person to sell, transfer, give or deliver any food container, cooking, eating or drinking utensil or tableware having extractable or leachable lead on it or in it.
(Code 1958, § 30-20; Ord. No. 31,048, § 1, 3-24-81)

Sec. 27-35. Labeling of containers with substances having lead content therein.

Containers in which substances having lead content are stored, sold, transferred or added, for wholesale or retail purposes, shall be labeled in conformance with state and federal laws and regulations and recommended standards of the Federal Hazardous Substances Labeling Act.
(Code 1958, § 30-21)

Sec. 27-36. Abatement of hazardous conditions.

(a) When the director of public health determines that the presence of lead-containing paint, or a lead-bearing substance upon any premises creates a health hazard to children or other persons, he shall issue a ten-day notice to

the owner or occupant to eliminate the hazard; however, at the discretion of the director of public

health, additional time may be granted to remove, abate or remedy such condition provided that additional time will not endanger the health of a child or other person.

(b) The methods used for the removal of lead [-containing] paint shall not present a hazard to health from fumes, dust or vapors by inhalation or absorption through the skin and mucous membranes and shall be in accordance with all applicable laws, ordinances, regulations and safety standards and practices of the city and of state and federal agencies.
(Code 1958, § 30-22; Ord. No. 31,048, § 1, 3-24-81)

Sec. 27-37. Eviction of occupants with children for purpose of avoiding corrective maintenance order prohibited.

No owner or landlord may evict, or cause to be evicted, occupants with children for the purpose of avoiding any corrective maintenance order of the director of public health, a court or other appropriate authority to eliminate hazardous lead exposures. Families with children shall be permitted to continue their occupancy in accordance with their lease or rental agreement executed prior to corrective maintenance.
(Code 1958, § 30-23)

Sec. 27-38. Physicians, etc., to report lead poisoning.

Every public health official, physician or director of a laboratory, hospital or other treatment facility who diagnoses or suspects the existence of lead poisoning in any person shall immediately notify, in writing, the director of public health of such fact. Such notification shall include the name and age of the individual, the name of his parents, if he is a minor, the name of his employer, if he is an adult, and his present address.
(Code 1958, § 30-24)

Secs. 27-39, 27-40. Reserved.

ARTICLE III. GRAFFITI

Sec. 27-41. Purpose and intent.

It is the purpose and intent of this chapter to provide a procedure for removal of graffiti from walls and structures on both public and privately owned property in order to reduce blight and deterioration within the city and to protect the public safety, and to provide for the recovery of costs of such removal, and to provide a measure of rehabilitation, through community service, for those persons guilty of violations of this chapter.
(Ord. No. 37,920, § 1, 3-14-95; Ord. No. 38,509, § 1, 8-27-96)

Sec. 27-42. Graffiti declared a nuisance.

The existence of graffiti within the city limits of the City of Norfolk, Virginia, as defined below, is declared by this council to be obnoxious and a public and private nuisance and must be quickly abated to avoid the detrimental impact of such graffiti on the city and its residents, and to prevent the further spread of such graffiti.
(Ord. No. 37,920, § 1, 3-14-95; Ord. No. 38,509, § 1, 8-27-96)

Sec. 27-43. Definitions.

As used in this article, "graffiti" includes but shall not be limited to any non-permitted inscription, word, figure, or design that is marked, etched, scratched, drawn, painted, pasted or otherwise affixed to, or on, any sidewalk, wall, building, fence, pole, sign, utility cabinet, or any other structure or surface, regardless of the nature of the material of that structural component.

As used in this article, "person" means any individual, firm, owner, sole proprietorship, corporation, unincorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant or other legal entity.
(Ord. No. 37,920, § 1, 3-14-95; Ord. No. 38,509, § 1, 8-27-96; Ord. No. 39,110, § 1, 4-14-98)

Sec. 27-44. Graffiti prohibited.

It shall be unlawful and a class 1 misdemeanor for any person to apply graffiti on any surface or structure within the city.
(Ord. No. 37,920, § 1, 3-14-95; Ord. No. 38,509, § 1, 8-27-96; Ord. No. 39,110, § 2, 4-14-98)

Sec. 27-45. Identification of graffiti and notice to abate.

(a) Whenever the chief of property maintenance or his designee determines that graffiti exists in the city, a notice to abate the graffiti shall be mailed or delivered to either the person responsible for the graffiti or the property owner or occupant of the property where the graffiti is located or posted on the property where the graffiti is located requiring the graffiti to be removed within five days (5) of the date of the notice. Failure to comply with a notice to abate the graffiti shall be a class 2 misdemeanor.

(b) Proof of mailing, delivery, or posting of the notice shall be sufficient evidence of such notice.

(c) Notwithstanding the above, when the graffiti is located on property owned by the city or located in a city right-of-way, the city, in its sole discretion, may cause the graffiti to be immediately removed and the abatement costs assessed pursuant to section 27-47.

(d) Notwithstanding the above, the owner of the property where the graffiti is located may execute a "consent to abate" form, which allows the city to immediately undertake the abatement and bill the property owner for all costs of abatement. The "consent to abate" form shall include an indemnification provision holding the city harmless for any and all damages, claims, etc., relating to the abatement.
(Ord. No. 37,920, § 1, 3-14-95; Ord. No. 39,509, § 1, 8-27-96; Ord. No. 39,110, § 3, 4-14-98; Ord. No. 42,126, § 2, 12-20-05)

Sec. 27-46. Incentive payment for abatement by property owner or occupant where graffiti not caused by property owner or occupant; reward for information leading to conviction.

Where the property owner or occupant of the property where the graffiti is located complies with the notice to abate within five (5) days and removes the graffiti, the property owner or occupant shall be entitled to an incentive payment not to exceed fifty dollars ($50.00) payable by the city upon presentation of satisfactory proof of the cost of abatement and upon verification by the city of the cost expended for graffiti removal, as long as the graffiti was not caused by said owner or occupant. In addition, a reward in an amount not to exceed five hundred dollars ($500.00) is authorized to be paid to any person, not charged with graffiti offenses, who provides information leading to conviction of any person for applying graffiti in violation of this article.
(Ord. No. 37,920, § 1, 3-14-95; Ord. No. 38,509, § 1, 8-27-96; Ord. No. 39,110, § 4, 4-14-98; Ord. No. 42,126, § 3, 12-20-05)

Sec. 27-47. Notice of abatement; abatement by city; assessment of costs.

(a) If graffiti remains on any structure, surface or premises after the expiration of the time specified in a notice of violation, the chief of property maintenance or designee may issue a notice of abatement to such person identified in the notice of violation, who shall be the owner, occupant, or person responsible for the graffiti, informing said person that the city will cause the nuisance to be abated at the expense of such person in the time set by the chief of property maintenance or designee. An administrative fee shall be assessed in each case as permitted by Code of Virginia, § 58.1-3958. The expense of abatement and the administrative fee shall be chargeable against such person.

(b) The notice of abatement may either be served, mailed or delivered to said person, or posted on the structure, surface or premises where the graffiti is located. Proof of such service, delivery, mailing or posting shall be sufficient evidence of such service of notice.

(c) Notwithstanding the above, in the event the chief of property maintenance or designee determines that the graffiti is located on property owned by the city or located on property in a city-owned right-of-way, the notice requirement herein shall be dispensed with.

(d) The notice of violation and the notice of abatement specified in this section can be combined in one document and issued as provided in this article.

(e) The expense of the abatement and the administrative fee shall constitute a lien on real property of the owner ranking in parity with liens for unpaid real estate taxes and shall be reported to the city treasurer who shall record the lien in the lien book maintained for such purposes and collect the lien in the same manner in which city taxes levied upon real estate are authorized to be collected.

(f) Abatement by the city shall be exclusive of and in addition to any criminal penalty that may be imposed.
(Ord. No. 37,920, § 1, 3-14-95; Ord. No. 38,509, § 1, 8-27-96; Ord. No. 39,110, § 5, 4-14-98; Ord. No. 42,126, § 4, 12-20-05)

Sec. 27-48. Reserved.

Editor's note—Ord. No. 42,126, § 1, adopted Dec. 20, 2005, repealed § 27-48, which pertained to publication of notice and abatement by city when notice cannot be served on owner, occupant or person responsible and derived from Ord. No. 37,920, § 1, adopted March 14, 1995; Ord. No. 38,509, § 1, adopted Aug. 27, 1996; and Ord. No. 38,110, § 6, adopted April 14, 1998.

Sec. 27-49. Community service provisions.

(a) Upon finding of guilt in any case tried before the court without a jury, in the event the violation constitutes a first offense which results in property damage, defacement, or loss, the court, without entering a judgment of guilty, upon motion of the defendant, may defer further proceedings and place the defendant on probation pending completion of a plan of community service work. If the defendant fails or refuses to complete the community service as ordered by the court, the court may make final disposition of the case and proceed as otherwise provided. If the community service work is completed as the court prescribes, the court may discharge the defendant and dismiss the proceedings against him. Discharge and dismissal under this section shall be without adjudication of guilt and is a conviction only for the purpose of applying this section in subsequent proceedings.

(b) The community service, to the extent feasible, shall include the repair, restoration or replacement of any damage or defacement to property within the city and may include cleanup, beautification, landscaping or other appropriate community service within the locality. The city's clean community coordinator shall supervise the performance of any community service work required and to report thereon to the court imposing such requirement. At or before the time of sentencing under this section, the court shall receive and consider any plan for making restitution or performing community service submitted by the defendant. The court shall also receive and consider the recommendations of the supervisor of community service in the city concerning the plan.

(c) Notwithstanding any other provision of law, no person convicted of a violation of this section shall be placed on probation or have his sentence suspended unless such person shall make restitution for such property damage or defacement.
(Ord. No. 37,920, § 1, 3-14-95; Ord. No. 38,509, § 1, 8-27-96; Ord. No. 42,126, § 5, 12-20-05)

Sec. 27-50. Reserved.

Editor's note—Ord. No. 42,126, § 1, adopted Dec. 20, 2005, repealed § 27-50, which pertained to severability and derived from Ord. No. 37,920, § 1, adopted march 14, 1995; and Ord. No. 38,509, § 1, adopted Aug. 27, 1996.

ARTICLE IV. BAWDY PLACE

Sec. 27-51. Definitions.

As used in this article:

Affidavit means the affidavit prepared by a locality in accordance with section 27-52 hereof.

Bawdy place means the same as that term is defined in section 18.2-347 of the Code of Virginia.

Corrective action means the taking of steps which are reasonably expected to be effective to abate a bawdy place on real property, such as removal, repair or securing of any building, wall or other structure.

Owner means the record owner of real property.

Property means real property.
(Ord. No 38,855, § 1, 7-22-97)

Sec. 27-52. Affidavit and notice requirements.

In addition to enforcement procedures established elsewhere, the city manager or his designee is authorized to undertake corrective action with respect to a bawdy place on real property in accordance with the procedures described herein.

(a) The city manager or his designee shall execute an affidavit, citing section 15.2-908.1 of the Code of Virginia, and this article, and affirming that a bawdy place exists on certain property in the manner described therein; that the city has used due diligence without effect to abate the bawdy place; and that the bawdy place constitutes a present threat to the public's health, safety or welfare. A present threat to the public's health, safety and welfare is defined as the regular presence on the property of persons who engage in aid or give any information or direction to any person with the intent to enable such person to commit acts of lewdness, assignation or prostitution.

(b) The city manger or his designee shall submit the affidavit to the city attorney requesting that the last known owner of the property be notified by regular mail sent to the last known address as it appears in the assessment records of the city. The notice and a copy of the affidavit shall advise the owner that the owner has up to thirty (30) days from the date thereof to undertake corrective action to abate the bawdy place described in the affidavit and, that if requested to do so, the city will assist the owner in determining and coordinating the appropriate corrective action to abate the bawdy place described in the affidavit.

(Ord. No. 38,855, § 1, 7-22-97; Ord. No. 39,610, § 1, 6-8-99)

Sec. 27-53. Failure to take corrective action.

If no corrective action is undertaken by the owner of the property within thirty (30) days from receipt of notice from the city as provided for in section 27-52, the city attorney shall send by regular mail an additional notice to the owner of the property, at the address stated in the assessment records of the city. This final notice shall state that within fifteen (15) days from the mailing of the notice, the city will commence to abate the bawdy place taking any corrective action the city deems appropriate to include, but not limited to, the removal of the building or other structure so as to abate the bawdy place on the property. Upon receipt of this final notice, the owner shall have the right, upon reasonable notice to the city, to seek equitable relief, and the city shall initiate no corrective action while a proper petition is pending before a court of competent jurisdiction.
(Ord. No. 38,855, § 1, 7-22-97; Ord. No. 39,610, § 2, 6-8-99)

Sec. 27-54. Assessment of costs.

If the city undertakes the corrective action with respect to the property after complying with the notice provisions found herein, the costs and expenses thereof shall be chargeable to and paid by the owner of such property and may be collected by the city in the same manner as taxes and levies are collected. Every charge authorized by this section with which the owner of any such property has been assessed and which remains unpaid shall constitute a lien against such property with the same priority as liens for unpaid local real estate taxes and enforceable in the same manner as provided in articles 3 (section 58.1-3940 et seq.) and 4 (section 58.1-3965 et seq.) of chapter 39, title 58.1 of the state code.
(Ord. No. 38,855, § 1, 7-22-97)

Sec. 27-55. Corrective action by owner.

If the owner of such property takes timely corrective action pursuant to this article, the city shall deem the bawdy place abated and shall close the proceeding without any charge or costs to the owner and shall promptly provide written notice to the owner that the proceeding has been terminated satisfactorily. The closing of a proceeding shall not bar the city from initiating a subsequent proceeding if the bawdy place recurs.
(Ord. No. 38,855, § 1, 7-22-97)

Sec. 27-56. Abridgement of rights.

Nothing in this section shall be construed to abridge or waive any rights or remedies of an owner of property at law or in equity.
(Ord. No. 38,855, § 1, 7-22-97)

Sec. 27-57. Severability.

If any section, subsection, sentence, clause, phrase or portion of this article is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this article. The city council declares that it would have adopted each section, subsection, sentence, clause, phrase or portion thereof, irrespective of the fact that any one or more sections, subsections, clauses, phrases or portions be declared invalid or unconstitutional.
(Ord. No. 38,855, § 1, 7-22-97)

ARTICLE V. REMOVAL OR REPAIR OF BUILDINGS OR OTHER STRUCTURES HARBORING ILLEGAL DRUG ACTIVITY

Sec. 27-58. Definitions.

As used in this article:

Affidavit means the affidavit prepared by a locality in accordance with section 27-59 hereof.

Controlled substance means the same as that term is defined in section 54.1-3401 of the Code of Virginia.

Corrective action means the taking of steps which are reasonably expected to be effective to abate drug blight on real property, such as removal, repair or securing of any building, wall or other structure.

Drug blight means a condition existing on real property which tends to endanger the public health or safety of residents of the city and is caused by the regular presence on the property of persons under the influence of controlled substances or the regular use of the property for the purpose of illegally possessing, manufacturing or distributing controlled substances.

Owner means the record owner of real property.

Property means real property.
(Ord. No. 38,858, § 1, 7-22-97)

Sec. 27-59. Affidavit and notice requirements.

In addition to enforcement procedures established elsewhere, the city manager or his designee is authorized to undertake corrective action with respect to drug blight on real property in accordance with the procedures described herein.

(a) The city manager or his designee shall execute an affidavit, citing section 15.2-907 of the Code of Virginia, and this article, and affirming that drug blight exists on certain property in the manner described therein; that the city has used due diligence without effect to abate the drug blight; and that the drug blight constitutes a present threat to the public's health, safety or welfare.

(b) The city manger or his designee shall submit the affidavit to the city attorney requesting that the last known owner of the property be notified by regular mail sent to the last known address as it appears in the assessment records of the city. The notice and a copy of the affidavit shall advise the owner that the owner has up to thirty (30) days from the date thereof to undertake corrective action to abate the drug blight described in the affidavit and, that if requested to do so, the city will assist the owner in determining and coordinating the appropriate corrective action to abate the drug blight described in the affidavit.

(Ord. No. 38,855 § 1, 7-22-97; Ord. No. 39,610, § 3, 6-8-99)

Sec. 27-60. Failure to take corrective action.

If no corrective action is undertaken by the owner of the property within thirty (30) days from receipt of notice from the city as provided for in section 27-59, the city attorney shall send by regular mail an additional notice to the owner of

the property, at the address stated in the assessment records of the city. This final notice shall state that within fifteen (15) days from the mailing of the notice, the city will commence to abate the drug blight taking any corrective action the city deems appropriate to include, but not limited to, the removal of the building or other structure so as to abate the drug blight on the property. Upon receipt of this final notice, the owner shall have the right, upon reasonable notice to the city, to seek equitable relief, and the city shall initiate no corrective action while a proper petition is pending before a court of competent jurisdiction.
(Ord. No. 38,855 § 1, 7-22-97; Ord. No. 38,887, § 1, 8-26-97; Ord. No. 39,610, § 4, 6-8-99)

Sec. 27-61. Assessment of costs.

If the city undertakes the corrective action with respect to the property after complying with the notice provisions found herein, the costs and expenses thereof shall be chargeable to and paid by the owner of such property and may be collected by the city in the same manner as taxes and levies are collected. Every charge authorized by this section with which the owner of any such property has been assessed and which remains unpaid shall constitute a lien against such property with the same priority as liens for unpaid local real estate taxes and enforceable in the same manner as provided in articles 3 (section 58.1-3940 et seq.) and 4 (section 58.1-3965 et seq.) of chapter 39, title 58.1 of the state code.
(Ord. No. 38,858, § 1, 7-22-97)

Sec. 27-62. Corrective action by owner.

If the owner of such property takes timely corrective action pursuant to this article, the city shall deem the drug blight abated and shall close the proceeding without any charge or costs to the owner and shall promptly provide written notice to the owner that the proceeding has been terminated satisfactorily. The closing of a proceeding shall not bar the city from initiating a subsequent proceeding if the drug blight recurs.
(Ord. No. 38,855 § 1, 7-22-97; Ord. No. 39,610, § 5, 6-8-99)

Sec. 27-63. Abridgement of rights.

Nothing in this section shall be construed to abridge or waive any rights or remedies of an owner of property at law or in equity.
(Ord. No. 38,858, § 1, 7-22-97)

Sec. 27-64. Severability.

If any section, subsection, sentence, clause, phrase or portion of this article is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this article. The city council declares that it would have adopted each section, subsection, sentence, clause, phrase or portion thereof, irrespective of the fact that any one or more sections, subsections, clauses, phrases or portions be declared invalid or unconstitutional.
(Ord. No. 38,858, § 1, 7-22-97)

Secs. 27-65—27-69. Reserved.

ARTICLE VI. DERELICT BUILDINGS

Sec. 27-70. Violations.

Unless otherwise specified, any person violating any provision of this article shall be guilty of a class 2 misdemeanor. Each day a violation continues shall be deemed a new and separate violation.
(Ord. No. 43,506, § 1, 6-30-09)

Sec. 27-71. Definitions.

For purposes of this article the following terms shall have the following definitions:

Derelict building means a residential or nonresidential building or structure, whether or not construction has been completed, that might endanger the public's health, safety or welfare and for a continuous period in excess of six months has been:

(i) Vacant;

(ii) Boarded up; and

(iii) Not lawfully connected to electric service from a utility service provider or not lawfully connected to any water or sewer service from a utility service provider.

Director means the director of neighborhood preservation or his designee.

Person means any individual, firm, owner, sole proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant or other legal entity.
(Ord. No. 43,506, § 1, 6-30-09)

Sec. 27-72. Enforcement.

The director of neighborhood preservation is hereby vested with the authority to require the abatement of derelict buildings pursuant to the provisions of this article and other applicable codes, laws and regulations.
(Ord. No. 43,506, § 1, 6-30-09)

Sec. 27-73. Notice of declaration of derelict building.

(a) Whenever it shall come to the knowledge of the director of neighborhood preservation that there exists upon land in the city any derelict building, he shall notify the owner of the derelict building that the owner must submit a work plan within ninety (90) calendar days to either demolish the derelict building or renovate the derelict building so that lawful use and occupancy of the building or structure is possible.

(b) The notice of declaration of derelict building shall be sent by certified mail to the owner at the address in the real estate tax assessment records. If the owner's address on the real estate tax assessment records is the address of the derelict building, the director of neighborhood preservation may also post a copy of the notice on the derelict building.

(c) The notice of declaration of derelict building shall also constitute a notice of violation under article I of chapter 27 of the Norfolk City Code.

(d) Any person sent a notice of declaration of derelict building pursuant to this section who shall fail to comply with the time specified for submitting a work plan shall be guilty of a class 2 misdemeanor; and for residential properties, the owner will also be assessed a civil fine of five hundred dollars ($500.00) per month until such time as the owner has submitted a work plan in accordance with this section. The total civil penalty imposed shall not exceed the cost to demolish the derelict building. Any such civil penalty shall be paid to the Norfolk City Treasury.

(e) Nothing in this article shall prohibit an owner from requesting that his building or structure be evaluated for a declaration of derelict building.
(Ord. No. 43,506, § 1, 6-30-09; Ord. No. 48,245, § 3, 12-8-20)

Sec. 27-74. Submittal of work plan by owner; approval by director.

(a) The work plan required to be submitted by the owner shall be on a form prescribed by the director of neighborhood preservation. The work plan must provide a proposed time within which the plan must be commenced and completed. The work plan may include one or more adjacent properties of the owner, whether or not all have been declared to contain a derelict building. The contents of the plan and the proposed schedule shall be subject to approval by the director of neighborhood preservation and shall be deemed noncompliant until such plan is approved.

(b) Once the director of neighborhood preservation approves the work plan, the contents of the work plan and the schedule for commencement and completion of the work plan shall be binding on the owner. Failure to comply with the contents of the approved work plan or the dates for commencement and completion, shall constitute a class 2 misdemeanor.

(c) Any approval granted by the director of neighborhood preservation under this section shall not relieve the owner of property located in any historic district from complying with the approval requirements established by relevant

provisions of the zoning ordinance before any demolition permit can be issued or any demolition can commence.
(Ord. No. 43,506, § 1, 6-30-09)

Sec. 27-75. Work plan completion; permit fee refund.

(a) If the approved work plan calls for demolition of the derelict building, upon submittal of proof of demolition within the prescribed time period, the owner shall be given a refund of the demolition permit fees.

(b) If the approved work plan calls for renovation of the derelict building, upon submittal of proof of renovation in the prescribed time period, the owner of the derelict building shall be given a refund of fifty (50) percent of the building permit fees.
(Ord. No. 43,506, § 1, 6-30-09)

Sec. 27-76. Tax abatement.

(a) Prior to commencement of an approved work plan to demolish or renovate a derelict building, the owner may request the real estate assessor to make an assessment of the derelict building.

(b) After demolition, at the request of the owner, the real estate assessor shall reflect the reduction in the assessment as a result of the removal of the derelict building.

(c) After renovation, at the request of the owner, the real estate assessor shall reflect the fair market value of the renovation improvements in the real estate tax assessment records. The real estate tax in an amount equal to the increase in the fair market value of the renovations shall be abated for a period of fourteen (14) years, and is transferable with the property.

(d) Notwithstanding the provisions of this section, the tax abatement process is not available for any property which either is a registered Virginia landmark or is determined by the Virginia Department of Historic Resources to contribute to the significance of a registered historic district.
(Ord. No. 43,506, § 1, 6-30-09)

Sec. 27-77. Additional remedies of city.

Notwithstanding the provisions of this article, the city may proceed to make repairs, secure the derelict building, demolish the derelict building, abate the nuisance, or exercise any and all other remedies, pursuant to Code of Virginia, title 15.2, the Uniform Statewide Building Code, the Norfolk City Code and the Norfolk City Charter.
(Ord. No. 43,506, § 1, 6-30-09)

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Chapter 28

OBSCENITY*

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§ 28-36. Exceptions from article.

*__Cross reference—__Lewd, indecent, etc., dances, etc., § 5-27.

ARTICLE I. IN GENERAL*

Sec. 28-1. Violations of chapter generally.

Unless otherwise specifically provided, a violation of any provision of this chapter shall constitute a Class 1 misdemeanor. (Code 1958, §§ 31-92, 31-101)

Sec. 28-2. "Obscene" defined.

The word "obscene," as used in this article shall mean that which, considered as a whole, has as its dominant theme or purpose an appeal to prurient interest in sex; that is, a shameful or morbid interest in nudity, sexual conduct, sexual excitement, excretory functions or products thereof or sadomasochistic abuse, and which goes substantially beyond customary limits of candor in description or representation of such matters and which, taken as a whole, does not have serious literary, artistic, political or scientific value. (Code 1958, § 31-84)

State law reference—Similar provisions, Code of Virginia, § 18.2-372.

Sec. 28-3. Obscene items enumerated.

For the purposes of this article, obscene items shall include:

(1) Any obscene books; or

(2) Any obscene leaflet, pamphlet, magazine, booklet, picture, painting, drawing, photograph, film, negative, slide, motion picture; or

(3) Any obscene figure, object, article, instrument, novelty device or recording or transcription used or intended to be used in disseminating any obscene song, ballad, words or sounds. (Code 1958, § 31-85)

State law reference—Similar provisions, Code of Virginia, § 18.2-373.

*State law reference—Authority of city to adopt ordinance similar to the provisions of this article, Code of Virginia, § 18.2-389.

Sec. 28-4. Production, publication, sale, possession, etc., of obscene items.

(a) It shall be unlawful for any person in this city knowingly to:

(1) Prepare any obscene item for the purposes of sale or distribution; or

(2) Print, copy, manufacture, produce or reproduce any obscene item for purposes of sale or distribution; or

(3) Publish, sell, rent, lend, transport within this city or distribute or exhibit any obscene item, or offer to do any of these things; or

(4) Have in his possession with intent to sell, rent, lend, transport or distribute any obscene item.

Possession in public or in a public place of any obscene item shall be deemed prima facie evidence of a violation of this section.

(b) For the purposes of this section, "distribute" shall mean delivery in person, by mail, messenger or by any other means by which obscene items may pass from one person to another. (Code 1958, § 31-86)

State law reference—Similar provisions, Code of Virginia, § 18.2-374.

Sec. 28-5. Obscene exhibitions and performances generally.

It shall be unlawful for any person in this city knowingly to:

(1) Produce, promote, prepare, present, manage, direct, carry on or participate in any obscene exhibition or performance, including the exhibition or performance of any obscene motion picture, play, drama, show, entertainment, exposition, tableau or scene; provided, that no employee of any person or legal entity operating a theatre, garden, building, structure, room or place which presents such obscene exhibition or performance shall be subject to prosecution under this

section if the employee is not the manager of the theatre or an officer of such entity, and has no financial interest in such theatre, other than receiving salary and wages; or

(2) Own, lease or manage any theatre, garden, building, structure, room or place and lease, let, lend or permit such theatre, garden, building, structure, room or place to be used for the purpose of presenting such obscene exhibition or performance or to fail to post prominently therein the name and address of a person resident in the locality who is the manager of such theatre, garden, building, structure, room or place. (Code 1958, § 31-87)

State law reference—Similar provisions, Code of Virginia, § 18.2-375.

Sec. 28-6. Advertising, obscene items, exhibitions or performances generally.

It shall be unlawful for any person in this city knowingly to prepare, print, publish or circulate, or cause to be prepared, printed or circulated, any notice or advertisement of any obscene item referred to in section 28-3, or of any obscene performance or exhibition referred to in section 28-5, stating or indicating where such obscene item, exhibition or performance may be purchased, obtained, seen or heard. (Code 1958, § 31-88)

Cross reference—Advertising, Ch. 3.

State law reference—Similar provisions, Code of Virginia, § 18.2-376.

Sec. 28-7. Obscene placards, posters, bills, etc.

It shall be unlawful for any person in this city knowingly to expose, place, display, post up, exhibit, paint, print or mark, or cause to be exposed, placed, displayed, posted, exhibited, painted, printed or marked, in or on any building, structure, billboard, wall or fence, or on any street, or in or upon any public place, any placard, poster, banner, bill, writing or picture which is obscene, or which advertises or promotes any obscene item referred to in section 28-3 or any obscene exhibition or performance referred to in section 28-5, or knowingly to permit the same to be displayed on property belonging to or controlled by him. (Code 1958, § 31-89)

State law reference—Similar provisions, Code of Virginia, § 18.2-377.

Sec. 28-8. Coercing acceptance of obscene articles or publications.

It shall be unlawful for any person in this city, as a condition to any sale, allocation, consignment or delivery for resale of any paper, magazine, book, periodical or publication, to require that the purchaser or consignee receive for resale any other article, book or other publication which is obscene. No person, in this city shall deny or threaten to deny any franchise or impose or threaten to impose any penalty, financial or otherwise, by reason of the failure or refusal of any person to accept such articles, books or publications, or by reason of the return thereof. (Code 1958, § 31-90)

State law reference—Similar provisions, Code of Virginia, § 18.2-378.

Sec. 28-9. Obscene photographs, slides and motion pictures.

Every person in this city who knowingly:

(1) Photographs himself or any other person for purposes of preparing an obscene film, photograph, negative, slide or motion picture for purposes of sale or distribution; or

(2) Models, poses, acts or otherwise assists in the preparation of any obscene film, photograph, negative, slide or motion picture for purposes of sale or distribution;

shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 31-93)

State law reference—Similar provisions, Code of Virginia, § 18.2-382.

Sec. 28-10. Showing previews of certain motion pictures.

It shall be unlawful for any person in this city to exhibit any trailer or preview of any motion picture which has a motion picture industry rating which would not permit persons in the audience viewing the feature motion picture to see the complete motion picture from which the trailer or preview is taken.
(Code 1958, § 31-97)

State law reference—Similar provisions, Code of Virginia, § 18.2-386.

Sec. 28-11. Indecent exposure generally.

No person in this city shall intentionally make an obscene display or exposure of his person, or the private parts thereof, in any public place or in any place where others are present, or procure another to so expose himself. No person shall be deemed to be in violation of this section for breastfeeding a child in any public place or any place where others are present.
(Code 1958, § 31-98; Ord. No. 46,303, § 1, 3-22-16)

Cross reference—Swimmers in certain waters to be properly clothed, § 9-13.

State law reference—Code of Virginia, § 18.2-387.

Sec. 28-12. Public nudity.

(a) It shall be unlawful for any person to knowingly, voluntarily and intentionally appear in public, or in a public place, in a state of nudity in this city, or employ, encourage or procure another person to so appear, or aid or abet another person who so appears. No person shall be deemed to be in violation of this section for breastfeeding a child in any public place or any place where others are present.

(b) As used in this section, "state of nudity" means a state of undress so as to expose the human male or female genitals, pubic area or buttocks with less than a fully opaque covering, or the showing of the female breast with less than a fully opaque covering of any portion thereof below the top of the nipple.

(c) As used in this section "public place" means any place which the public may enter, with or without an admission charge, a place open to public view or any other place open to the public.

(d) Nothing contained in this section shall be construed to apply to the exhibition, presentation, showing or performance of any play, ballet, drama, tableau, production or motion picture in any theatre, concert hall, museum of fine arts, school, institution of higher learning or other similar establishment which is primarily devoted to such exhibitions, presentations, shows or performances as a form of expression of opinion, communication, speech, ideas, information, act of drama, as differentiated from commercial or business enterprise, such as a hotel, motel, bar, nightclub, restaurant, tavern, dance hall, photography studio or a commercial establishment for which a price of admission is charged.
(Code 1958, § 31-59.1; Ord. No. 40,828, § 1, 9-17-02; Ord. No. 46,303, § 2, 3-22-16)

Sec. 28-13. Employing or permitting minor to assist in violation of article.

It shall be unlawful for any person knowingly to hire, employ, use or permit any minor to do or assist in doing any act or thing constituting an offense under this article. (Code 1958, § 31-91)

Sec. 28-14. Proceeding against obscene book.

(a) Whenever he has reasonable cause to believe that any person is engaged in the sale or commercial distribution of any obscene book, any citizen of the city or the city attorney may

institute a proceeding in the circuit court of the city for adjudication of the obscenity of the book.

(b) The proceeding shall be instituted by filing with the court a petition:

(1) Directed against the book by name or description;

(2) Alleging the obscene nature of the book; and

(3) Listing the names and addresses, if known, of the author, publisher and all other persons interested in its sale or commercial distribution.

(c) Upon the filing of a petition pursuant to this section, the court, in term or in vacation, shall forthwith examine the book alleged to be obscene. If the court finds no probable cause to believe the book obscene, the judge thereof shall dismiss the petition; but if the court finds probable cause to believe the book obscene, the judge thereof shall issue an order to show cause why the book should not be adjudicated obscene. The order to show cause shall be:

(1) Directed against the book by name or description;

(2) Published once a week for two (2) successive weeks in a newspaper of general circulation within this city;

(3) If their names and addresses are known, served by registered mail upon the author, publisher and all other persons interested in the sale or commercial distribution of the book; and

(4) Returnable twenty-one (21) days after its service by registered mail or the commencement of its publication, whichever is later.

(d) When an order to show cause is issued pursuant to this section, and upon four (4) days' notice to be given to the persons and in the manner prescribed by the court, the court may issue a temporary restraining order against the sale or distribution of the book alleged to be obscene.

(e) On or before the return date specified in the order to show cause, the author, publisher and any person interested in the sale or commercial distribution of the book may appear and file an answer. The court may, by order, permit any other person to appear and file an answer amicus curiae.

(f) If no one appears and files an answer on or before the return date specified in the order to show cause, the court, upon being satisfied that the book is obscene, shall order the clerk of court to enter judgment that the book is obscene, but the court, in its discretion, may except from its judgment a restricted category of persons to whom the book is not obscene.

(g) If an appearance is entered and an answer filed, the court shall order the proceeding set on the calendar for a prompt hearing. The court shall conduct the hearing in accordance with the rules of civil procedure applicable to the trial of cases by the court without a jury. At the hearing, the court shall receive evidence, including the testimony of experts, if such evidence be offered, pertaining to:

(1) The artistic, literary, medical, scientific, cultural and educational value, if any, of the book considered as a whole;

(2) The degree of public acceptance of the book, or books of similar character, within this city;

(3) The intent of the author and publisher of the book;

(4) The reputation of the author and publisher;

(5) The advertising, promotion and other circumstances relating to the sale of the book; and

(6) The nature of classes of persons, including scholars, scientists and physicians, for whom the book may not have prurient appeal and who may be

subject to exception pursuant to subsection (f) of this section.

(h) In making a decision on the obscenity of the book, the court shall consider, among other things, the evidence offered pursuant to subsection (g) above, if any, and shall make a written determination upon every such consideration relied upon in the proceeding in his findings of fact and conclusions of law or in a memorandum accompanying them.

(i) If it finds the book not obscene, the court shall order the clerk of court to enter judgment accordingly. If it finds the book obscene, the court shall order the clerk of court to enter judgment that the book is obscene; but the court, at its discretion, may except from its judgment a restricted category of persons to whom the book is not obscene.

(j) While a temporary restraining order made pursuant to subsection (d) of this section is in effect, or after the entry of a judgment pursuant to subsection (f), or after the entry of judgment pursuant to subsection (i), any person who publishes, sells, rents, lends, transports within this city or commercially distributes or exhibits the book, or has the book in his possession with intent to publish, sell, rent, lend, transport within this city or commercially distribute or exhibit the book, is presumed to have knowledge that the book is obscene under the provisions of this article.

(k) Any party to the proceeding, including the petitioner, may appeal from the judgment of the court to the Supreme Court of Virginia, as otherwise provided by law.

(l) It is expressly provided that the petition and proceeding authorized under this section, relating to books alleged to be obscene, shall be intended only to establish scienter in cases where the establishment of such scienter is thought to be useful or desirable by the petitioner; and the provisions of this section shall in nowise be construed to be a necessary prerequisite to the filing of criminal charges under this article. (Code 1958, § 31-95)

State law reference—Similar provisions, Code of Virginia, § 18.2-384.

Sec. 28-15. Section 28-16 applicable to motion picture film.

The provisions of section 28-16 shall apply mutatis mutandis in the case of motion picture film. (Code 1958, § 31-96)

State law reference—Similar provisions, Code of Virginia, § 18.2-385.

Sec. 28-16. Exceptions from article.

Nothing contained in this article shall be construed to apply to:

(1) The purchase, distribution, exhibition or loan of any book, magazine or other printed or manuscript material by any library, school or institution of higher learning, supported by public appropriation.

(2) The purchase, distribution, exhibition or loan of any work of art by any museum of fine arts, school or institution of higher learning, supported by public appropriation.

(3) The exhibition or performance of any play, drama, tableau or motion picture by any theatre, museum of fine arts, school or institution of higher learning, supported by public appropriation. (Code 1958, § 31-94)

State law reference—Similar provisions, Code of Virginia, § 18.2-383.

Secs. 28-17—28-30. Reserved.

ARTICLE II. OFFENSES RELATING TO JUVENILES

Sec. 28-31. Definitions.

(a) *Generally.* For the purposes of this article, certain words and phrases shall have the meanings ascribed to them in this section.

(b) *Harmful to juveniles* means that quality of any description or representation, in whatever form, of nudity, sexual conduct, sexual excitement or sadomasochistic abuse, when it:

(1) Predominantly appeals to the prurient, shameful or morbid interest of juveniles;

(2) Is patently offensive to prevailing standards in the adult community, as a whole, with respect to what is suitable material for juveniles; and

(3) Is, when taken as a whole, lacking in serious literary, artistic, political or scientific value for juveniles.

(c) *Juvenile* means a person less than eighteen (18) years of age.

(d) *Knowingly* means having general knowledge of, or reason to know, or a belief or ground for belief which warrants further inspection or inquiry of both the character and content of any material described herein, which is reasonably susceptible of examination by the defendant, and the age of the juvenile; provided, however, that an honest mistake shall constitute an excuse from liability hereunder, if the defendant made a reasonable bona fide attempt to ascertain the true age of such juvenile.

(e) *Sadomasochistic abuse* means actual or explicitly simulated flagellation or torture by or upon a person who is nude or clad in undergarments, a mask or bizarre costume, or the condition of being fettered, bound or otherwise physically restrained on the part of one so clothed.

(f) *Sexual conduct* means actual or explicitly simulated acts of masturbation, homosexuality, sexual intercourse or physical contact in an act of apparent sexual stimulation or gratification with a person's clothed or unclothed genitals, pubic area, buttocks or, if such person be a female, breast.

(g) *Sexual excitement* means the condition of human male or female genitals when in a state of sexual stimulation or arousal.

(h) *Sexually explicit nudity* means a state of undress so as to expose the human male or female genitals, pubic area or buttocks with less than a full opaque covering, or the showing of the female breast with less than a fully opaque covering of any portion thereof below the top of the nipple, or the depiction of covered or uncovered male genitals in a discernibly turgid state. (Code 1958, § 31-101)

State law reference—Similar provisions, Code of Virginia, § 18.2-390.

Sec. 28-32. Unlawful sales or loans to juveniles generally.

It shall be unlawful for any person knowingly to sell or loan to a juvenile:

(1) Any picture, photograph, drawing, sculpture, motion picture film or similar visual representation or image of a person or portion of the human body which depicts sexually explicit nudity, sexual conduct or sadomasochistic abuse and which is harmful to juveniles, or

(2) Any book, pamphlet, magazine, printed matter, however reproduced, or sound recording which contains any matter enumerated in paragraph (1) of this subsection, or explicit and detailed verbal descriptions or narrative accounts of sexual excitement, sexual conduct or sadomasochistic abuse and which, taken as a whole, is harmful to juveniles. (Code 1958, § 31-101)

State law reference—Similar provisions, Code of Virginia, § 18.2-391.

Sec. 28-33. Admitting juveniles to premises exhibiting motion pictures or other presentations harmful to juveniles; visibility of such pictures from public ways.

It shall be unlawful for any person knowingly to sell to a juvenile an admission ticket or pass, or knowingly to admit a juvenile to premises whereon there is exhibited a motion picture, show or other presentation which, in whole or in part, depicts sexually explicit nudity, sexual conduct or sadomasochistic abuse and which is harmful to juveniles, or to exhibit any such motion picture at any such premises which are not designed to prevent viewing from any

public way of such motion picture by juveniles not admitted to any such premises. (Code 1958, § 31-101)

State law reference—Similar provisions, Code of Virginia, § 18.2-391.

Sec. 28-34. Misrepresentation to persons mentioned in sections 28-32 and 28-33 as to juvenile's age, etc.

(a) It shall be unlawful for any juvenile falsely to represent to any person mentioned in section 28-32 or 28-33, or to his agent, that such juvenile is eighteen (18) years of age or older, with the intent to procure any material set forth in section 28-32, or with the intent to procure such juvenile's admission to any motion picture, show or other presentation set forth in section 28-33.

(b) It shall be unlawful for any person knowingly to make a false representation to any person mentioned in section 28-32 or 28-33, or to his agent, that he is the parent or guardian of any juvenile, or that any juvenile is eighteen (18) years of age, with the intent to procure any material set forth in section 28-32, or with the intent to procure such juvenile's admission to any motion picture, show or other presentation set forth in section 28-33. (Code 1958, § 31-101)

State law reference—Similar provisions, Code of Virginia, § 18.2-391.

Sec. 28-35. Display of material harmful to juveniles at business establishments open to juveniles.

It shall be unlawful for any person knowingly to exhibit, expose or display, in public, at a newsstand or any other business or commercial establishment frequented by juveniles, or where juveniles are or may be invited as part of the general public:

(1) Any picture, photograph, drawing, sculpture, motion picture film or similar visual representation or image of a person or portion of the human body which depicts sexually explicit nudity, sexual conduct or sadomasochistic abuse and which is harmful to juveniles, or

(2) Any book, pamphlet, magazine, printed matter, however reproduced, or sound recording which contains any matter enumerated in paragraph (2) of this subsection, or explicit and detailed verbal descriptions or narrative accounts of sexual excitement, sexual conduct or sadomasochistic abuse and which, taken as a whole, is harmful to juveniles. (Code 1958, § 31-101)

Sec. 28-36. Exceptions from article.

Nothing contained in this article shall be construed to apply to:

(1) The purchase, distribution, exhibition or loan of any work of art, book, magazine or other printed or manuscript material by any accredited museum, library, school or institution of higher learning.

(2) The exhibition or performance of any play, drama, tableau or motion picture by any theatre, museum, school or institution of higher learning, either supported by public appropriation or which is an accredited institution supported by private funds. (Code 1958, § 31-101)

State law reference—Similar provisions, Code of Virginia, § 18.2-391.1.

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Chapter 29

OFFENSES—MISCELLANEOUS

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Sec. 29-1. Attempt to commit misdemeanor.

Every person who attempts to commit an offense which is a misdemeanor shall be punishable by the same punishment prescribed for the offense the commission of which was the object of the attempt, except as otherwise specifically provided.

State law reference—Similar provisions, Code of Virginia, § 18.2-27.

Sec. 29-2. Causing or encouraging acts rendering children delinquent, abused, abandoned, etc.

Any person eighteen (18) years of age or older, including the parent of any child, who:

(i) willfully contributes to, encourages, or causes any act, omission, or condition that renders a child delinquent, in need of services, in need of supervision, or abused or neglected as defined in Virginia Code Section 16.1-288, or

(ii) engages in consensual sexual intercourse or anal intercourse with or performs cunnilingus, fellatio, or anilingus upon or by a child fifteen (15) or older not their spouse, child, or grandchild is guilty of a Class 1 misdemeanor.

If the prosecution under this section is based solely on the accused parent having left the child at a hospital or emergency medical services agency, it is an affirmative defense to prosecution of a parent under this section that such parent safely delivered the child within the first thirty (30) days of the child's life to:

(a) a hospital that provides 24-hour emergency services,

(b) an attended emergency medical services agency that employes emergency medical services personnel, or

(c) a newborn safety device located at or operated by such hospital or emergency medical services agency.

In order for the affirmative defense to apply, the child must be delivered in a manner reasonably calculated to ensure the child's safety.
(Ord. No. 50,029, § 1, 6-24-25)

State law reference—Similar provisions, Code of Virginia, § 18.2-371.

Sec. 29-3. Curfew for minors.

(a) It shall be unlawful for any minor under the age of eighteen (18) to be present on any street, road, alley, avenue, park or other public place in the city, or in any vehicle operating or parked thereon, between the hours of 11:00 p.m. and 5:00 a.m., unless accompanied by the parent, guardian or other adult person having the care, custody or control of such minor.

(b) It shall be unlawful for any parent, guardian or other adult person having the care, custody or control of any minor under the age of eighteen (18) to permit, allow or encourage such minor to be present on any street, road, alley, avenue, park or other public place in the city, or any vehicle operating or parked thereon between the hours of 11:00 p.m. and 5:00 a.m. in violation of the provisions of subsection (a).

(c) Whenever any police or other officer charged with the duty of enforcing the laws of the commonwealth or ordinances of the city shall discover or has his attention called to the fact that any minor under eighteen (18) years of age is present on any street, road, alley, avenue, park or other public place in the city, or any vehicle operating or parked thereon between the hours of 11:00 p.m. and 5:00 a.m., such officer shall make an immediate investigation for the purpose of ascertaining whether or not the presence of such minor is in violation of the provisions of this section. If such investigation reveals that the presence of such minor is in violation of the provisions of this section, the officer may charge the minor with a violation of this section. In order to charge a minor under the age of sixteen (16) years of age, the officer shall seek a petition. In cases when the minor is sixteen (16) years of age or older, the officer may either seek a petition or issue a summons. Whether or not the minor is to be charged with a violation of this section, the officer shall cause the minor to be

released to the parent, guardian or other adult person having the care, custody, or control of such minor.

(d) The provisions of this section shall not apply to any minor who has been emancipated as provided by Code of Virginia, § 16.1-333, as amended, or to any minor engaged in the following activities:

(1) Any emergency errand reasonably necessary to safeguard life, limb or property;

(2) Lawful employment, including going directly from the minor's residence to the place of such employment or returning directly from the place of such employment to the minor's residence;

(3) Attendance at a specified engagement or performance, attendance at religious services or participation in any assembly or expressive activity protected by the First Amendment of the United States Constitution; provided that the minor shall have in his possession written permission, including the signature, address and telephone number, of a parent, guardian or other adult person having care, custody or control of such minor, to attend such activity or event, and shall return directly to his residence upon conclusion thereof; or

(4) Interstate travel through, beginning or terminating in the city.

(e) Any person violating any provision of subsection (b) of this section shall be guilty of a Class 4 misdemeanor. Any minor violating any provision of subsection (a) shall be deemed to be a child in need of services as defined by Code of Virginia, title 16.1-228, as amended. Such minor and his parent, guardian, legal custodian or other person standing in loco parentis shall be subject to the provisions of Code of Virginia, § 16.1-278.4, as amended.
(Ord. No. 37,126, § 1, 2-2-93; Ord. No. 41,471, § 1, 6-29-04)

Sec. 29-4. Prohibited "trick or treat" activities.

(a) If any person over the age of twelve (12) years shall engage in the activity commonly known as "trick or treat" or any other activity of similar character or nature under any name whatsoever, he shall be guilty of a Class 4 misdemeanor. Nothing herein shall be construed as prohibiting any parent, guardian or other responsible person, having lawfully in his custody a child twelve (12) years old or younger, from accompanying such child who is playing "trick or treat" for the purpose of caring for, looking after or protecting such child.

(b) If any person shall engage in the activity commonly known as "trick or treat" or any other activity of similar character or nature under any name whatsoever after 8:00 p.m., he shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-82)

Sec. 29-5. Obstructing justice by threats or force.

(a) If any person, without just cause, knowingly obstructs a judge, magistrate, justice, juror, witness or any law enforcement officer in the performance of his duties as such, or fails or refuses without just cause to cease such obstruction when requested to do so by such judge, magistrate, justice, juror, witness or law enforcement officer, he shall be guilty of a Class 1 misdemeanor.

(b) If any person, by threats or force, knowingly attempts to intimidate or impede a judge, magistrate, justice, juror, witness or any law enforcement officer lawfully engaged in his duties as such, or obstructs or impedes the administration of justice in any court, he shall be deemed to be guilty of a Class 1 misdemeanor.

(c) Any person who knowingly and willfully makes any materially false statement or representation to a law enforcement officer who is in the course of conducting an investigation of a crime by another is guilty of a Class 1 misdemeanor.
(Ord. No. 36,407, § 1, 4-30-91; Ord. No. 40,597, § 1, 2-5-02; Ord. No. 41,096, § 1, 7-15-03; Ord. No. 42,655, § 1, 5-15-07)

State law reference—Similar provisions, Code of Virginia, § 18.2-460.

Sec. 29-6. Impersonation of city officers or employees.

It shall be unlawful and a Class 1 misdemeanor for any person to impersonate or represent himself to be, or pretend to be, any official of the city or any employee of the city authorized to conduct inspections or any member of the fire and health departments of the city, to obtain possession of any property or money, to obtain entrance to any premises or for any other purpose.
(Code 1958, § 31-33.1)

Cross reference—Impersonating peace officer, § 33-1.

Sec. 29-7. Calling ambulance or firefighting apparatus without cause; malicious activation of fire alarm in public building.

(a) Any person who, without just cause therefor, calls or summons, by telephone or otherwise, any ambulance or fire-fighting apparatus, shall be deemed guilty of a Class 1 misdemeanor.

(b) Any person who maliciously activates a manual or automatic fire alarm in any building used for public assembly or for other public use, including, but not limited to, schools, theaters, stores, office buildings, shopping centers and malls, coliseums and arenas, regardless of whether fire apparatus responds or not, shall be deemed guilty of a Class 1 misdemeanor.

(c) A reward of one hundred dollars ($100.00) is hereby offered for information leading to the apprehension and conviction of any person for violating this section.
(Code 1958, §§ 20-29, 20-29.1)

State law reference—Provisions similar to subsections (a) and (b) above, Code of Virginia, § 18.2-212.

Sec. 29-8. Assault and battery.

(a) Any person who commits a simple assault or assault and battery upon another person within the city shall be guilty of a Class 1 misdemeanor, and if the person intentionally selects the person against whom a simple assault is committed because of his race, religious conviction, color or national origin, the penalty upon conviction shall include a mandatory, minimum term of confinement of at least six (6) months, thirty (30) days of which shall not be suspended, in whole or in part.

(b) In addition, if any person commits a battery against another knowing or having reason to know that such other person is a full-time or part-time teacher, principal, assistant principal, or guidance counselor of any public or private elementary or secondary school and is engaged in the performance of school-related duties as such, he shall be guilty of a Class 1 misdemeanor and the sentence of such person upon conviction shall include a mandatory, minimum sentence of fifteen (15) days in jail, two (2) days of which shall not be suspended in whole or in part. However, if the offense is committed by use of a firearm or other weapon prohibited on school property pursuant to section 18.2-308.1, Code of Virginia, 1950, as amended, the person shall serve a mandatory, minimum sentence of confinement of six (6) months which shall not be suspended in whole or in part.

(c) As used in this section, the term "mandatory, minimum" means that the sentence it describes shall be served with no suspension of sentence in whole or in part, and no probation being given by the court.
(Code 1958, § 31-3; Ord. No. 38,685, § 1, 3-25-97; Ord. No. 38,854, § 1, 7-22-97; Ord. No. 39,921, § 1, 4-11-2000)

State law reference—Assault and battery, Code of Virginia, § 18.2-57.

Sec. 29-9. Abusive language.

If any person shall, in the presence or hearing of another, curse or abuse such other person, or use any violent abusive language to such person concerning himself or any of his relations, or otherwise use such language, under circumstances reasonably calculated to provoke a breach of the peace, he shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 31-13)

State law reference—Similar provisions, Code of Virginia, § 18.2-416.

Sec. 29-10. Disorderly conduct generally.

A person is guilty of disorderly conduct if, with the intent to cause public inconvenience, annoyance or alarm or recklessly creating a risk thereof, he:

(1) Engages in fighting or in violent, threatening or tumultuous behavior; or

(2) Disrupts or disturbs any lawful assembly or meeting of persons; or

(3) Obstructs vehicular or pedestrian traffic; or

(4) Otherwise creates a hazardous or physically offensive condition by any act, which serves no legitimate purpose of the actor; or

(5) In any street, highway, public building or while in or on a public conveyance or public place engages in conduct having a direct tendency to cause acts of violence by the person or persons at whom, individually, such conduct is directed; or

(6) Willfully or being intoxicated, whether willfully or not, and whether such intoxication results from self-administered alcohol

or other drug of whatever nature, disrupts any meeting of the governing body of any political subdivision of this commonwealth or division or agency thereof, or of any school, literary society or place of religious worship, if the disruption (i) prevents or interferes with the orderly conduct of the meeting, or (ii) has direct tendency to cause acts of violence by the person or persons at whom, individually, the disruption is directed; or

(7) Willfully or while intoxicated, whether willfully or not, and whether such intoxication results from self-administrated alcohol or other drugs of whatever nature, disrupts the operation of any school or any activity conducted or sponsored by any school, if the disruption (i) prevents or interferes with the orderly conduct of the operation or activity, or (ii) has a direct tendency to cause acts of violence by the person or persons at whom, individually, the disruption is directed.

However, the conduct prohibited under paragraphs (5), (6) and (7) of this section shall not be deemed to include the utterance or display of any words or to include conduct otherwise made punishable under this Code.

The person in charge of any such building, place, conveyance, meeting, operation or activity may eject therefrom any person who violates any provision of this section, with the aid, if necessary, of any persons who may be called upon for such purpose.

For the purposes of the section, "public" shall include, but not be limited to affecting or likely to affect persons in a neighborhood, highway, street, hospital, jail or other institution, apartment house, office building, public conveyance, shop, public building or other place to which the public or a substantial group has access.

A violation of this section shall constitute a Class 1 misdemeanor.
(Code 1958, § 31-17; Ord. No. 39,522, § 1, 3-23-99)

Sec. 29-10.1. Causing unfounded public safety responses.

It shall be unlawful for any person to undertake any action involving any substance represented as, held out to be, or which a reasonable person believes to be a potentially dangerous or suspected nuclear, chemical or biological substance or explosives which causes or requires public safety response when the person undertaking such action knows such action is a hoax. For purposes of this section the term action shall include calling, mailing, delivering, handling, releasing, depositing or storing. For purposes of this section the term hoax shall mean a deception, scam, trick, prank or practical joke. For purposes of this section, public safety shall include law enforcement, fire, paramedics, health and emergency management personnel.

A violation of this section shall constitute a Class 1 misdemeanor. Each incident shall constitute a separate offense. In addition to any penalty imposed, the city shall be entitled to recover the costs of the public safety emergency response from the person causing or requiring said response.
(Ord. No. 40,554, § 1, 12-11-01)

Sec. 29-11. Concealing or taking possession of merchandise; altering price tags; transferring goods from one container to another; counseling, etc., another in performance of such acts.

Whoever, without authority, with the intention of converting goods or merchandise to his own or another's use without having paid the full purchase price thereof, or of defrauding the owner of the value of the goods or merchandise, (i) willfully conceals or takes possession of the goods or merchandise of any store or other mercantile establishment, or (ii) alters the price tag or other price marking on such goods or merchandise, or transfers the goods from one container to another, or (iii) counsels, assists, aids or abets another in the performance of any of the above acts, shall be guilty of larceny. The willful concealment of goods or merchandise of any store or other mercantile establishment,

while still on the premises thereof, shall be prima facie evidence of an intent to convert and defraud the owner thereof out of the value of the goods or merchandise. A violation of this section shall constitute a class 1 misdemeanor.
(Ord. No. 49,958, § 1, 5-13-25)

Editor's note—Prior to reenactment by Ord. No. 49,958, Ord. No. 39,522, § 2, adopted March 23, 1999, repealed § 29-11, which pertained to disorderly conduct in public places and which derived from Code 1958, §§ 31-17.1, 31-17.2; and Ord. No. 36,115, adopted July 17, 1990.

Sec. 29-12. Disorderly house or place.

(a) It shall be unlawful for any person in the city to keep, maintain or operate, for himself or as an officer of or agent for any corporation, association, club, lodge or other organization, or under the guise of any corporation, association, club, lodge or other organization any disorderly house or place as defined herein.

(b) It shall be unlawful for any person to frequent, reside in or visit any disorderly house or place for the purpose of illegally dispensing or indulging in alcoholic beverages, illegally gambling, prostitution, dog fighting, or the illegal manufacture, distribution or use of controlled substances or imitation controlled substances.

(c) Each day's keeping, maintaining or operating any disorderly house or place or each day's frequenting, residing in or visiting of any house or place for the purposes made unlawful by subsection (b) above shall constitute a separate offense.

(d) A violation of this section shall constitute a Class 1 misdemeanor and, in any prosecution for such violation, the general reputation of such place may be proved. Each day of violation shall constitute a separate offense.

(e) For purposes of this section, "disorderly house or place" means any place within or without any building or structure where persons meet or may meet for the purpose of illegally dispensing or indulging in alcoholic beverages as defined in Virginia Code section 4.1-100; illegal gambling as defined in Virginia Code section 18.2-325; prostitution as defined in Virginia Code Section 18.2-346; dog fighting as defined in Virginia Code section 3.1-796.124; or the manufacture, distribution or use of controlled substances as defined in Virginia Code section 18.2-247 or imitation controlled substances as defined in Virginia Code section 18.2-247.

(f) Any designated special police officer, fire marshal or any of his assistants, or law enforcement officer may enforce the provisions of this Code.
(Code 1958, § 31-18.1; Ord. No. 40,283, § 1, 4-24-01)

Cross reference—Gambling generally, Ch. 19.

Sec. 29-13. Throwing stones or other missiles in or into street or square.

If any person shall throw any stone, brick or other missile in or into any street, lane or square in the city, such person shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-46)

Sec. 29-14. Throwing objects or things upon people or the playing floor, rink, etc., in public buildings.

(a) It shall be unlawful for any person to throw, or cause to be thrown, any object or thing, causing the same to strike or fall upon any person, playing floor, rink, court or stage in any public building.

(b) Any person violating any of the provisions of this section shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-76.1)

Sec. 29-15. Throwing lighted cigars or cigarettes or other articles from buildings.

(a) It shall be unlawful for any person to throw, or cause to be thrown, lighted cigars, cigarettes or any other article of any kind from any building or structure, causing the same to fall upon any awning or person, or upon the public streets, sidewalks or alleys.

(b) Any person violating this section shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-76)

Sec. 29-16. Spitting on sidewalks, floors of public buildings, etc.

(a) No person shall spit, expectorate or deposit any sputum, saliva, mucus or any form of saliva or sputum upon the floor, stairways or any other part of any public building or place where the public assembles, or upon the floor of any part of any public conveyance, or upon any sidewalk abutting on any public street, alley or lane of this city.

(b) Any person violating any provision of this section shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-73)

State law reference—Similar provisions, Code of Virginia, § 18.2-322.

Sec. 29-16.1. Urinating, etc., in public.

It shall be unlawful for any person to urinate or defecate on any public street, alley, sidewalk, park, beach or other public place or area where the public gathers or has access, other than in facilities designed for such purpose. Any person violating the provisions of this section shall be deemed guilty of a Class 3 misdemeanor.
(Ord. No. 31,457, § 1, 12-8-81; Ord. No. 40,456, § 1, 8-28-01)

Editor's note—Ord. No. 31,457, § 1, adopted on Dec. 8, 1981, added § 31-99.1 to the 1988 Code; the editor has designated it as § 29-16.1 hereof.

Sec. 29-17. Intoxication and possession of open alcoholic beverage containers in public, playgrounds and public streets prohibited.

(a) If any person be intoxicated in public, he shall be deemed guilty of a Class 4 misdemeanor.

(b) If any person shall be convicted for being intoxicated in public three (3) times within one year in this city, upon the third or any subsequent conviction for such offense within the period of one year, such person shall be guilty of a Class 3 misdemeanor.

(c) It shall be unlawful for any person to possess any open alcoholic beverage containers in the public parks, playgrounds or public streets in the city. Any person violating the provisions of this section shall be guilty of a Class 3 misdemeanor.

(d) Notwithstanding the above or anything to the contrary elsewhere within this Code, the City Manager or his designee, in connection with a specific event and as part of a special events permit, may allow possession of open beer or wine beverage containers during the course of and within the confined area of that event.
(Code 1958, § 31-99; Ord. No. 36,116, § 1, 7-17-90; Ord. No. 36,161, § 1, 8-21-90; Ord. No. 43,203, § 1, 8-19-08; Ord. No. 45,115, § 1, 5-21-13)

Cross references—Operator of public dance hall not to permit intoxicated or disorderly persons on premises, § 5-25; driving while under the influence of alcohol or drugs, § 25-251; obscenity, Ch. 28; intoxication on park premises, §§ 30-74, 30-271; consumption of alcoholic beverages or drugs by drivers of public vehicles, § 34-28.

State law references—Similar provisions, Code of Virginia, § 18.2-388; authority of city to adopt above section, § 18.2-389.

Sec. 29-18. Profanity, threats, etc., over telephone.

(a) If any person shall use obscene, vulgar, profane, lewd, lascivious or indecent language, or make any suggestion or proposal of an obscene nature, or threaten any illegal or immoral act with the intent to coerce, intimidate or harass any person, over any telephone in this city, such person shall be guilty of a Class 1 misdemeanor.

(b) It shall be the duty, on pain of contempt of court, of each telephone company in this city to furnish immediately, in response to a subpoena issued by a circuit court, such information as it, its officers and employees, may possess which, in the opinion of the court, may aid in the apprehension of persons suspected of violating the provisions of this section.

State law reference—Similar provisions, Code of Virginia, §§ 18.2-427, 18.2-431.

Sec. 29-19. Automatic delivery of prerecorded telephone message to public safety services.

No person shall use or operate, attempt to use or operate, or cause to be used or operated, or arrange, adjust, program or otherwise operate

any device or combination of devices that will, upon activation, either mechanically, electronically or by other automatic means, initiate an intracity or intercity call and deliver a prerecorded message to any telephone number assigned to public safety services in the city. A violation of this section shall constitute a Class 1 misdemeanor.
(Code 1958, § 31-100)

Sec. 29-20. Reserved.

Editor's note—Ord. No. 48,210, § 1, adopted Nov. 10, 2020, repealed § 29-20, which pertained to adultery and fornication generally and derived from Code 1958, § 31-1.

Sec. 29-21. Reserved.

Editor's note—Ord. No. 48,210, § 1, adopted Nov. 10, 2020, repealed § 29-21, which pertained to adultery and fornication by persons forbidden to marry and derived from Code 1958, § 31-1.

Sec. 29-22. Reserved.

Editor's note—Ord. No. 48,241, § 1, adopted Dec. 8, 2020, repealed § 29-22, which pertained to lewd and lascivious cohabitation and derived from Code 1958, § 31-35.

Sec. 29-23. Prostitution generally.

(a) Any person who, for money or its equivalent, (i) commits any act in violation of Code of Virginia, § 18.2-361; performs cunnilingus, fellatio, or anilingus upon or by another person; engages in sexual intercourse or anal intercourse; touches the unclothed genitals or anus of another person with the intent to sexually arouse or gratify; or allows another to touch his unclothed genitals or anus with the intent to sexually arouse or gratify or (ii) offers to commit any act in violation of Code of Virginia, § 18.2-361; perform cunnilingus, fellatio, or anilingus upon or by another person; engage in sexual intercourse or anal intercourse; touch the unclothed genitals or anus of another person with the intent to sexually arouse or gratify; or allow another to touch his unclothed genitals or anus with the intent to sexually arouse or gratify and thereafter does any substantial act in furtherance thereof is guilty of prostitution, which is punishable as a Class 1 misdemeanor.

(b) Any person who offers money or its equivalent to another for the purpose of engaging in sexual acts as enumerated in subsection (a) and thereafter does any substantial act in furtherance thereof is guilty of solicitation of prostitution, which is punishable as a Class 1 misdemeanor. However, any person who solicits prostitution from a minor (i) sixteen (16) years of age or older is guilty of a Class 6 felony or (ii) younger than sixteen (16) years of age is guilty of a Class 5 felony.
(Code 1958, § 31-56; Ord. No. 34,205, § 1, 11-10-86; Ord. No. 38,643, § 1, 2-11-97; Ord. No. 48,210, § 2, 11-10-20)

State law reference—Similar provisions, Code of Virginia, § 18.2-346.

Sec. 29-23.1. Reserved.

Editor's note—Ord. No. 48,210, § 1, adopted Nov. 10, 2020, repealed § 29-23.1, which pertained to prostitution and immoral acts; soliciting and derived from Ord. No. 31,755, § 1, adopted June 8, 1982.

Sec. 29-23.2. Testing of convicted prostitutes for infections with human immunodeficiency virus.

(a) As soon as practicable following conviction of any person for violation of section 29-23 or section 29-23.1, such person shall be required to submit to testing for infection with human immunodeficiency virus. The convicted person shall receive counseling from personnel of the department of public health concerning the meaning of the test, acquired immunodeficiency syndrome, and the transmission and prevention of infection with human immunodeficiency virus.

(b) Tests shall be conducted to confirm any initial positive test result before any test result shall be determined to be positive for infection. The result of such test shall be confidential as provided in section 32.1-36.1 of the Code of Virginia, 1950, as amended, and shall be disclosed to the person who is the subject of the test and to the department of health as required by section 32.1-36 of the Code of Virginia, 1950, as amended. The department shall conduct surveillance and

investigation in accordance with the requirements of section 32.1-39 of the Code of Virginia, 1950, as amended.

(c) The results of the test shall not be admissible in any criminal proceeding related to prostitution.

(d) The cost of the test shall be paid by the city and taxed as part of the cost of such criminal proceedings.
(Ord. No. 38,853, § 1, 7-22-97)

Sec. 29-24. Bawdy places.

(a) It shall be unlawful and a Class l misdemeanor for any person to keep any bawdy place, or to reside in or at or visit, for immoral purposes, any bawdy place. Each and every day such bawdy place shall be kept, resided in or visited shall constitute a separate offense. In a prosecution under this section, the general reputation of the place may be proved.

(b) As used in this section, the term "bawdy place" shall mean any place, within or without any building or structure, which is used or is to be used for lewdness, assignation or prostitution.
(Code 1958, § 31-18.1)

Cross reference—Renting or occupying hotel, motel, etc., room for immoral purposes, § 22-9.

State law reference—Similar provisions, Code of Virginia, § 18.2-347.

Sec. 29-25. Aiding prostitution or illicit sexual intercourse.

(a) It shall be unlawful for any person or any officer, employee or agent of any firm, association or corporation, with knowledge of, or good reason to believe, the immoral purpose of such visit, to take or transport, or assist in taking or transporting, or offer to take or transport, on foot or in any way, any person to a place, whether within or without any building or structure, used or to be used for the purpose of lewdness, assignation or prostitution, or to procure or assist in procuring, for the purpose of illicit sexual intercourse, or to give any information or direction to any person with intent to enable such person to commit an act of prostitution.

(b) Any person violating the provisions of this section shall be guilty of a Class 1 misdemeanor.
(Code 1958, § 31-57)

State law reference—Similar provisions, Code of Virginia, § 18.2-348.

Sec. 29-26. Using vehicle to promote prostitution or unlawful sexual intercourse.

(a) It shall be unlawful for any owner or chauffeur of any vehicle, with knowledge or reason to believe the same is to be used for such purpose, to use the same or to allow the same to be used for the purpose of prostitution or unlawful sexual intercourse, or to aid or promote such prostitution or unlawful sexual intercourse by the use of any such vehicle.

(b) Any person violating this section shall be guilty of a Class 1 misdemeanor.
(Code 1958, § 31-57.1)

State law reference—Similar provisions, Code of Virginia, § 18.2-349.

Sec. 29-27. Massaging body of person of opposite sex.

(a) It shall be unlawful for any person to massage the body of another person of the opposite sex in any public or private establishment.

(b) For the purposes of this section, an establishment shall not include:

(1) Hospitals, nursing homes, medical clinics, rehabilitation centers, the offices or quarters of a licensed physician, surgeon, osteopath, chiropractor, registered nurse, licensed practical nurse or licensed registered physical therapist; or

(2) Barbershops or beauty parlors, when such massage is confined to the scalp, head, face or neck of the recipient of the services; or

(3) The private home of the recipient of the services when performed by a member of the recipient's family or an individual set out in (1) or (2) above.

(c) For the purposes of this section, "massage" shall mean the manual or mechanical manipulation and physical contact with the body of the recipient of such services and shall include, but not be limited to, oil rubs, corrective gymnastics, mechanotherapy, including color therapy, dietetics, hot packs and cabinet, tub, shower, sitz, vapor, sauna or any other type of bath or other activity of a similar nature.

(d) Any person violating any provision of this section shall be guilty of a Class l misdemeanor. (Code 1958, § 31-10.1)

Cross reference—Health parlors, Ch. 21.

Sec. 29-28. Toxic vapors—Inhaling.

(a) It shall be unlawful for any person deliberately to smell or inhale any drugs or any other noxious substances or chemicals containing any ketones, aldehydes, organic acetates, ether, chlorinated hydrocarbons or any other substances containing solvents releasing toxic vapors, in such excessive quantities as to cause conditions of intoxication, inebriation, excitement, stupefaction or dulling of the brain or nervous system. This applies with particularity to, but is not limited to, finger nail polish, model airplane glue or any other substance or chemical which has the aforementioned effect upon the brain or nervous system when smelled or inhaled.

(b) Any person violating the provisions of this section shall be guilty of a Class 1 misdemeanor. (Code 1958, § 31-80)

State law reference—Similar provisions, Code of Virginia, § 18.2-264.

Sec. 29-29. Same—Inducing others to inhale.

(a) It shall be unlawful for any unauthorized or unlicensed person to cause, invite or induce any person to smell or inhale any drugs or any other noxious substances or chemicals containing any ketone, aldehydes, organic acetates, ether, chlorinated hydrocarbons or any other substances containing solvents releasing toxic vapors, which when inhaled or smelled in excessive quantities, cause conditions of intoxication, inebriation, excitement, stupefaction or dulling of the brain or nervous system.

(b) Any person violating the provisions of this section shall be guilty of a Class 2 misdemeanor. (Code 1958, § 31-81)

State law reference—Similar provisions, Code of Virginia, § 18.2-264.

Sec. 29-30. Coin-operated or self-service business facilities—Certain information to be posted.

(a) It shall be unlawful for any person to engage in the business of providing to the public coin-operated or self-service machines or facilities unless there is posted in a conspicuous place, on the machines or the premises, information giving the name, address and phone number where the owner or manager may be reached. Such notice shall not be required, if there is an attendant on the premises at all times that the machines, facilities or premises are open for business.

(b) Any person violating the provisions of this section shall be guilty of a Class 4 misdemeanor. (Code 1958, § 31-12.2)

Sec. 29-31. Same—Attendant required during certain hours at laundry or dry cleaning establishment.

(a) It shall be unlawful for any person engaged in the business of coin-operated or self-service laundry or dry cleaning to keep open his place of business, or to permit the same to be kept open, between the hours of 11:00 p.m. and 6:00 a.m., unless a responsible adult attendant is on duty at such place of business during such hours.

(b) Any person violating the provisions of this section shall be guilty of a Class 3 misdemeanor. (Code 1958, § 31-12.1)

Sec. 29-32. Fraudulent use of pay phones, parking meters and other coin-operated machines.

(a) No person shall operate, cause to be operated or attempt to operate or cause to be operated any coin box telephone, parking meter, vending machine or other machine that operates on the coin-in-the-slot principle, whether of like kind or not, designed only to receive lawful coin

of the United States of America, in connection with the use or enjoyment of telephone or telegraph service, parking privileges or any other service, or the sale of merchandise or other property, by means of a slug or any false, counterfeit, mutilated, sweated or foreign coin, or by any means, method, trick or device whatsoever, not authorized by the owner, lessee or licensee of such coin box telephone, parking meter, vending machine or other machine.

(b) No person shall obtain or receive telephone or telegraph service, parking privileges, merchandise or any other service or property from any such coin box telephone, parking meter, vending machine or other machine, designed only to receive lawful coin of the United States of America, without depositing in or surrendering to such coin box telephone, parking meter, vending machine or other machine lawful coin of the United States of America to the amount required therefor by the owner, lessee or licensee of such coin box telephone, parking meter, vending machine or other machine.

(c) A violation of this section shall constitute a Class 3 misdemeanor.

State law reference—Similar provisions, Code of Virginia, § 18.2-179.

Sec. 29-33. Tampering with parking meter, vending machine, pay telephone, etc., with intent to steal therefrom.

Any person who enters, forces or attempts to force an entrance into, tampers with or inserts any part of an instrument into any parking meter, vending machine, pay telephone, money changing machine or any other device designed to receive money, with intent to steal therefrom, shall be guilty of a Class 1 misdemeanor.
(Code 1958, § 31-14; Ord. No. 30,266, § 1, 1-15-80)

Cross reference—Tampering with parking meters generally, § 25-330.

State law reference—Similar provisions, Code of Virginia, § 18.2-152, which declares a second violation to be a Class 6 felony.

Sec. 29-34. Reserved.

Editor's note—Ord. No. 31,513, § 1, enacted on Dec. 29, 1981, repealed Code § 2934, concerning petit larceny, which section bore no history note.

Sec. 29-35. "Scalping" of tickets to public events.

(a) It shall be unlawful for any person to resell, for profit, any ticket for admission to any sporting event, theatrical production, lecture, motion picture or any other event open to the public for which tickets are ordinarily sold, except in the case of religious, charitable or educational organizations, where all or a portion of the admission price reverts to the sponsoring group.

(b) Any person violating any provision of this section shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-62.1; Ord. No. 34,628, § 1, 7-21-87)

State law reference—Authority for above section, Code of Virginia, § 15.1-29.3.

Sec. 29-36. Injuring, etc., any property, monument, etc.

(a) If any person unlawfully destroys, defaces, damages or removes without the intent to steal any property, real or personal, not his own, or unlawfully breaks down, destroys, defaces, damages or removes without the intent to steal, any monument or memorial for war veterans described in section 15.2-1812 [Code of Virginia], not his own, or any monument not his own erected for the purpose of marking the site of any engagement fought during the War Between the States, or for the purpose of designating the boundaries of the city, or a tract of land, or any tree marked for that purpose, he shall be guilty of a Class 3 misdemeanor; provided that the court may, in its discretion, dismiss the charge if the locality or organization owning or responsible for maintaining the injured property, monument, or memorial files a written affidavit with the court stating it has received full payment for the injury.

Any person who intentionally causes such injury, he shall be guilty of a Class 1 misdemeanor if the value of or damage to the property or monument is less than one thousand dollars ($1,000.00)

(b) Any person who intentionally (i) breaks any window or door of any court house, house of public worship, college, school house, city hall or

other public building or library; (ii) damages or defaces any other public building or any statuary in or on any other public building or public grounds; or (iii) destroys any property in any of such buildings shall be guilty of a Class 1 misdemeanor if the damage is less than one thousand dollars ($1,000.00).

(c) Any person who intentionally damages or defaces any book, newspaper, magazine, pamphlet, map, picture, manuscript or other property located in any library, reading room, museum or other educational institution shall be guilty of a Class 1 misdemeanor if the damage is less than one thousand dollars ($1,000.00).

(d) In the prosecution of any case under this section, the amount of loss caused by the destruction, defacing, or damage of such property or monument may be established by proof of the fair market cost of repair or fair market replacement value. Upon conviction, the court may order that the defendant pay restitution.
(Code 1958, § 31-14; Ord. No. 30,266, § 1, 1-15-80; Ord. No. 36,117, § 1, 7-17-90; Ord. No. 40,452, § 1, 8-28-01; Ord. No. 47,015, § 1, 10-10-17)

Cross references—Damaging cemetery property, § 12-35 et seq.; tampering or interfering with fire alarm system, § 17-2; damaging fire apparatus, § 17-44; damaging library property, § 23-7; damaging parking meters, § 25-330; damaging park property, § 30-66 et seq.

State law reference—Similar provisions, Code of Virginia, § 18.2-137.

Sec. 29-37. Reserved.

Editor's note—Former § 29-37, which pertained to damaging or defacing public buildings and grounds, was repealed by § 2 of Ord. No. 36,117, adopted July 17, 1990. The section derived from § 31-14 of the 1958 Code and Ord. No. 30,266, § 1, adopted Jan. 15, 1980.

Sec. 29-38. Reward for information leading to conviction of person damaging city-owned building or contents thereof.

A reward of one hundred dollars ($100.00) is hereby offered for information leading to the apprehension and conviction of any person who willfully and maliciously damages, defaces or destroys any city-owned building, including any school building, or any furnishing, fixture or equipment therein.
(Code 1958, § 20-29.1)

Sec. 29-39. Posting on bus shelters.

It shall be unlawful and a Class 4 misdemeanor for any person to post any paraphernalia on any bus shelter in the city.
(Code 1958, § 31-40.1)

Sec. 29-40. Damaging utility facilities generally.

Any person who shall intentionally destroy or damage any facility which is used to furnish oil, telegraph, telephone, electric, gas or water service to the public, provided that such destruction or damage may be remedied or repaired for one hundred dollars ($100.00) or less, shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-162.

Sec. 29-41. Tampering with utility meters or diverting service.

(a) Any person who shall tamper with any metering device incident to the facilities set forth in section 29-40, or otherwise intentionally prevent such a metering device from properly registering the degree, amount or quantity of such service supplied, or who shall divert such service, excepting, however, telephonic or electronic extension service not owned or controlled by any such company, without authorization from the owner of such facility, who furnishes such service to the public, shall be guilty of a Class 1 misdemeanor.

(b) The presence of any metering device found to have been altered, tampered with or bypassed in a manner that would cause such metering device to inaccurately measure and register the degree, amount or quantity of the service supplied, or which would cause such service to be diverted from the recording apparatus of the meter, shall be prima facie evidence of intent to

violate and of the violation of this section by the person to whose benefit it is that such service be unmetered, unregistered or diverted.
(Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-163.

Sec. 29-42. Damaging telephone or telegraph lines, poles, etc.; copying or interfering with messages; etc.

Any person who shall:

(1) Maliciously injure, molest, cut down or destroy any telephone or telegraph line, wire, cable or pole, or the material or property belonging thereto; or

(2) Maliciously cut, break, tap or make any connection with any telephone or telegraph line, wire, cable or instrument of any telegraph or telephone company which has legally acquired the right-of-way by purchase, condemnation or otherwise; or

(3) Maliciously copy in any unauthorized manner any message, either social, business or otherwise, passing over any telephone or telegraph line, wire or cable in this city; or

(4) Willfully or maliciously prevent, obstruct or delay, by any means or contrivance whatsoever, the sending, conveyance or delivery in this city of any authorized communication by or through any telephone or telegraph line, wire or cable under the control of any telephone or telegraph company doing business in this city; or

(5) Maliciously aid, agree with, employ or conspire with any unauthorized person unlawfully to do or cause to be done any of the acts hereinbefore mentioned;

shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-164.

Sec. 29-43. Damaging facilities of television cable or microwave radio system or misuse thereof.

Any person who shall willfully or maliciously break, injure or otherwise destroy or damage any of the posts, wires, towers or other materials or fixtures employed in the construction or use of any line of a television coaxial cable, or a microwave radio system, or willfully or maliciously interfere with such structure so erected, or in any way attempt to lead from its uses or make use of the electrical signal or any portion thereof properly belonging to or in use or in readiness to be made use of for the purpose of using said electrical signal from any television coaxial cable company or microwave system or owner of such property, shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-165.

Sec. 29-44. Pulling down fence of another; leaving certain gates open.

If any person, without permission of the owner, pulls down the fence of another and leaves the same down, or, without permission, opens and leaves open the gate of another, or any gate across a public road established by order of court, or if any person, other than the owner or owners of the lands through which a line of railroad runs, opens and leaves open a gate at any public or private crossing of the right-of-way of a railroad, he shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-14; Ord. No. 30,266, § 1, 1-15-80)

State law reference—Similar provisions, Code of Virginia, § 18.2-143.

Sec. 29-45. Unlawful excavations; backfilling excavations.

(a) It shall be unlawful for any person to do any excavating or to dig any pit or hole in any lot or parcel of land in the city more than six (6) inches below the level of the abutting street or surrounding land, whichever is the lowest, and carry away or remove or cause to be carried away or removed the dirt or soil taken from such excavation, pit or hole to any other area, except

in the course of the erection or in the use of a building or structure, or in the installation of any equipment or appliances on such lot or parcel of land.

(b) Any excavation, pit or hole made or dug in the course of the erection or in the use of any building or structure or in the installation of any equipment or appliances on such lot or parcel of land shall be backfilled to the same level of the surrounding land or shall be covered with concrete, brick, stone or other hard substance, and provision made so that water will not lodge therein.

(c) Any person who shall violate any of the provisions of this section shall be guilty of a Class 2 misdemeanor.
(Code 1958, § 31-23)

Cross reference—Building regulations, Ch. 11.1.

Sec. 29-46. Injuring, tampering with, etc., vehicles, aircraft, etc.

(a) Any person who shall, individually or in association with one or more others, willfully break, injure, tamper with or remove any part or parts of any vehicle, aircraft, boat or vessel for the purpose of injuring, defacing or destroying such vehicle, aircraft, boat or vessel, or temporarily or permanently preventing its useful operation, or for any purpose against the will or without the consent of the owner of such vehicle, aircraft, boat or vessel, or who shall in any other manner willfully or maliciously interfere with or prevent the running or operation of such vehicle, aircraft, boat or vessel, shall be guilty of a Class 1 misdemeanor.

(b) Any person who shall, without the consent of the owner or person in charge of a vehicle, aircraft, boat, vessel, locomotive or other rolling stock of a railroad, climb into or upon such vehicle, aircraft, boat, vessel, locomotive or other rolling stock of a railroad, with intent to commit any crime, malicious mischief or injury thereto or who, while a vehicle, aircraft, boat, vessel, locomotive or other rolling stock of a railroad is at rest and unattended, shall attempt to manipulate any of the levers and starting crank or other device, brakes or mechanism thereof, or to set into motion such vehicle, aircraft, boat, vessel, locomotive or other rolling stock of a railroad, with the intent to commit any crime, malicious mischief or injury thereto, shall be guilty of a Class l misdemeanor. This subsection shall not apply when any such act is done in any emergency or in furtherance of public safety or by or under the direction of an officer in the regulation of traffic or performance of any other official duty.

(c) The provisions of this section shall not apply to a bona fide repossession of a vehicle, aircraft, boat or vessel by the holder of a lien on such vehicle, aircraft, boat or vessel, or by the agents or employees of such lienholder.
(Code 1958, § 31-14; Ord. No. 30,266, § 1, 1-15-80)

Cross references—Reward for information leading to apprehension and conviction for damaging vehicles located in municipal off-street parking facility, § 25-377; trespass upon trains, § 35-9.

State law reference—Similar provisions, Code of Virginia, §§ 18.2-146, 18.2-147, 18.2-148.

Sec. 29-47. Misuse of rented animal, aircraft, vehicle, etc.

If any person, after having rented or leased from any other person an animal, aircraft, vehicle, boat or vessel, shall willfully injure or damage the same, by hard or reckless driving or using, or by using the same in violation of any statute of this state, or allow or permit any other person so to do, or hire the same to any other person without the consent of the bailor, such person shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 31-14; Ord. No. 30,266, § 1, 1-15-80)

State law reference—Similar provisions, Code of Virginia, § 18.2-149.

Sec. 29-48. Entering or remaining on property of another after having been forbidden to do so.

If any person shall, without authority of law, go upon or remains upon the lands, buildings, structures or premises of another, or any part, portion or area thereof, after having been forbidden to do so, either orally or in writing, by the owner, lessee, custodian or other person lawfully in charge thereof, or after having been forbidden to do so by a sign or signs posted by such persons

or by the holder of any easement or other right-of-way authorized by the instrument creating such interest to post such signs on such lands, buildings, structures, premises or part, portion or area thereof, at a place or places where it or they may be reasonably seen, or if any person, whether he is the owner, tenant or otherwise entitled to the use of such land, building or premises, goes upon, or remains upon such land, building or premises after having been prohibited from doing so by a court of competent jurisdiction by an order issued pursuant to sections 16.1-253, 16.1-253.1, 16.1-253.4, 16.1-278.2 through 16.1-278.6, 16.1-278.8, 16.1-278.14, 16.1-278.15, 16.1-279.1, 19.2-152.8, 19.2-152.9 or section 19.2-152.10[, Code of Virginia,] or an ex parte order issued pursuant to section 20-103, and after having been served with such order, he shall be guilty of a Class 1 misdemeanor. This section shall not be construed to affect section 29-51 of this chapter.

For purposes of this section, "person lawfully in charge" shall include members of the Norfolk Police Department when the owner, agent or manager of the property so authorizes in writing, according to procedures set out by the chief of police. Such authorization shall be kept on file with the chief of police.

(Code 1958, § 31-78; Ord. No. 39,657, § 1, 6-22-99; Ord. No. 40,455, § 1, 8-28-01)

State law reference—Similar provisions, Code of Virginia, § 18.2-119.

Sec. 29-49. Instigating, etc., trespass by others; preventing service to persons not forbidden on premises.

If any person shall solicit, urge, encourage, exhort, instigate or procure another person to go upon or remain upon the lands, buildings or premises of another, or any part, portion or area thereof, knowing such other person to have been forbidden, either orally or in writing, to do so by the owner, lessee, custodian or other person lawfully in charge thereof, or knowing such other person to have been forbidden to do so by a sign posted on such lands, buildings, premises or part, portion or area thereof at a place where it may reasonably be seen; or if any person shall, on such lands, buildings, premises or part, portion or area thereof, prevent or seek to prevent the owner, lessee, custodian, person in charge or any of his employees from rendering service to any person not so forbidden, he shall be guilty of a Class 1 misdemeanor.

(Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-120.

Sec. 29-50. Entering property of another for purpose of damaging such property or interfering with its use.

If any person enters the land, dwelling, outhouse or any other building of another for the purpose of damaging such property or any of the contents thereof or in any manner to interfere with the rights of the owner, user or occupant thereof to use such property free from interference, he shall be guilty of a Class l misdemeanor.

(Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-121.

Sec. 29-51. Entering property of another for purpose of hunting, fishing or trapping without consent of owner.

Any person who goes on the lands, waters, ponds, boats or blinds of another to hunt, fish or trap, without the consent of the landowner or his agent, shall be deemed guilty of a Class 3 misdemeanor.

(Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-132.

Sec. 29-52. Unauthorized use of or forcible entry into public building.

If any person shall engage in any unauthorized use of any public building or shall forcibly enter therein, he shall be guilty of a Class 2 misdemeanor.

(Code 1958, § 31-58)

Sec. 29-53. Trespass upon church or school property; violation of provisions of protective orders relating to going or remaining upon land, buildings or premises.

(a) It shall be unlawful for any person, without the consent of some person authorized to give such consent, to go or enter upon, in the night-time, the premises or property of any church or upon any school property for any purpose other than to attend a meeting or service held or conducted in such church or school property. A violation of this section shall be punishable as a Class 3 misdemeanor.

(b) It shall be unlawful for any person to enter upon or remain upon any church or school property in violation of (i) any direction to vacate the property by a person authorized to give such direction, or (ii) any posted notice which contains such information, posted at a place where it reasonably may be seen. Each time such person enters upon or remains on the posted premises or after such direction that person refuses to vacate such property, it shall constitute a separate offense. A violation of this section shall be punishable as a Class 1 misdemeanor.

(c) For the purposes of this section, school property includes school buses. A school bus is defined as a motor vehicle, other than a station wagon, automobile, truck, or commercial bus, which is: (i) designed and used primarily for the transportation of pupils to and from public, private or religious schools, or used for the transportation of the mentally or physically handicapped to and from a sheltered workshop; (ii) painted yellow and bears the words "School Bus" in black letters of a specified size on front and rear; and (iii) is equipped with warning devices prescribed by state law. Church is defined as any place of worship and includes any educational building, community center, or recreational facility owned or leased by a church.

(d) In addition to any other penalties provided by law, any person who violates any provision of a protective order issued pursuant to Code of Virginia, §§ 16.1-253, 16.1-253.1, 16.1-279 or 16.1-279.1, which prohibit such person from going or remaining upon land, buildings or premises, shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 31-78; Ord. No. 35,134, § 1, 6-28-88; Ord. No. 42,911, § 1, 11-20-07)

Cross reference—Entering cemetery at night, § 12-26.

State law reference—Similar provisions, Code of Virginia, § 18.2-128.

Sec. 29-54. Peeping toms.

(a) It shall be unlawful for any person to enter upon the property of another and secretly or furtively peep, spy or attempt to peep or spy into or through a window, door or other aperture of any building, structure, or other enclosure of any nature occupied or intended for occupancy as a dwelling, whether or not such building, structure or enclosure is permanently situated or transportable and whether or not such occupancy is permanent or temporary.

(b) It shall be unlawful for any person to use a peep hole or other aperture to secretly or furtively peep, spy or attempt to peep or spy into a restroom, dressing room, locker room, hotel room, motel room, tanning bed, tanning booth, bedroom or other location or enclosure for the purpose of viewing any none consenting person who is totally nude, clad in under garments or in a state of undress exposing the genitals, pubic area, buttocks or female breast and the circumstances are such that the person would otherwise have a reasonable expectation of privacy.

(c) The provisions of this section shall not apply to a lawful criminal investigation or a correctional official or local or regional jail official conducting surveillance for security purposes or during an investigation of alleged misconduct involving a person committed to the department of corrections or to a local or regional jail.

(d) As used in this section, "peep hole" means any hole, crack or other similar opening through which a person can be seen.

(e) A violation of this section is a Class 1 misdemeanor.
(Ord. No. 39,987, § 1, 6-20-00)

State law reference—Similar provisions. Code of Virginia, § 18.2-130.

Sec. 29-55. Entering or using public comfort stations designated for persons of opposite sex.

(a) It shall be unlawful for any person, at any time, to enter, except upon official business, or make use of any public comfort station designated for persons of the opposite sex.

(b) Any person violating this section shall be guilty of a Class 2 misdemeanor.
(Code 1958, § 31-39)

Sec. 29-56. Discarded refrigerators and other airtight containers.

(a) It shall be unlawful for any property owner or agent to place, discard or allow to remain on his property, or to put at curbside for garbage pickup, any refrigerator, icebox, or other appliance, container, device or equipment of any kind with an interior storage capacity of more than two (2) cubic feet of clear space which is airtight without first removing the door or doors or hinges.

(b) This section shall not apply to any refrigerator, icebox, container, device or equipment which is being used for the purpose it was originally intended or designed, or is being used for display purposes by any retailer, wholesale merchant, or is crated, strapped or locked to such an extent that it is impossible for a child to obtain access to any airtight container thereof.

(c) Any violation of this section shall constitute a Class 1 misdemeanor.
(Code 1958, § 31-32; Ord. No. 38,341, § 1, 5-14-96)

Cross reference—Similar provisions, Code of Virginia, § 18.2-319.

Sec. 29-57. Reserved.

Editor's note—Ord. No. 38,339, § 4, adopted May 14, 1996, repealed § 29-57, which pertained to accumulations of junk, refuse, etc., and which derived from Code 1958, § 31-34.

Sec. 29-58. Open storage of inoperable vehicles on property zoned for residential or commercial purposes.

(a) It shall be unlawful for any person to keep or permit the keeping on any property or parcel of land zoned for residential or commercial purposes, except in a fully enclosed building or structure, any inoperable vehicle. For purposes of this section, an inoperable vehicle is one which:

(1) Is missing tires, wheels, the engine, or essential parts; or

(2) Displays extensive body damage or deterioration; or

(3) Does not display a current, valid state license and a current state inspection; or

(4) Is wrecked, disassembled or partially disassembled; or

(5) Which is not in operating condition.

(b) For purposes of this section, the following terms shall have the following definitions:

(1) *Residential zoned* means property used for dwelling purposes, a place in which one lives and sleeps.

(2) *Commercial zoned* means all other zoning designations other than residential zoned.

(3) *Automobile dealer* means a business which sells automobiles and which is duly licensed by the Division of Motor Vehicles (DMV).

(4) *Scrap processor* means a business that prepares, treats, and converts, parts, discarded metal, or damaged materials for reuse or resale.

(5) *Salvage dealer* means a business or person engaged in buying, collecting and the selling of previously used, discarded or damaged materials.

(6) *Person* means any individual, firm, corporation, owner, sole proprietorship, partnership, incorporated association, govern mental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant or other legal entity.

(7) *Vehicle* means any motor vehicle, trailer or semi-trailer as such is defined in chapter 25 of this Code.

(8) *Owner* means the owner of the vehicle or, if the owner of the vehicle cannot be ascertained, the owner of the premises.

(c) Any person violating the provisions of this section shall be given a notice that the retention of any vehicle located on any parcel of land in the city which meets the criteria in subsection (a) constitutes a nuisance and shall be abated within forty-eight (48) hours or within the time period set forth in the notice.

The notice may be served, mailed or delivered to said person, or posted on the vehicle constituting the nuisance or on the premises where the vehicle is located. Proof in any form of such service, delivery, mailing or posting shall be sufficient evidence of such service of notice.

It shall be unlawful and a Class 2 misdemeanor to fail to comply with the notice to abate the nuisance.

(d) In addition to the criminal penalty prescribed in subsection (c), failure to comply with the notice to abate the nuisance within the time specified shall result in the city or its agent causing the vehicle to be removed from the property and brought to a secure location.

(e) Said vehicle shall be sold at public auction if not claimed by the lawful owner within twenty (20) days from the date of removal. Prior to sale, notice shall be given to the owner of the vehicle or the owner of the premises, as is appropriate.

(f) In addition to the sale as outlined in paragraph (e) above, the cost of any such removal and disposal shall be chargeable to the owner of the vehicle or premises and may be collected by the city as taxes and levies are collected; and every cost authorized by this section with which the owner of the premises has been assessed shall constitute a lien against the property from which the vehicle was removed, the lien to continue until actual payment of cost has been made to the city.

(g) The owner or his agent may, at any time from the date of removal up to and including the twentieth day of storage, claim said vehicle upon payment of towing and storage charges.

(h) No vehicles shall be released until the registered owner/lienholder attest on a form prepared by the Norfolk Police Department that the vehicle will be handled in one of the below listed manners:

(1) That the vehicle upon release shall be garaged or removed from the city;

(2) That the vehicle upon release shall be forthwith transported to a repair facility; and/or

(3) That the vehicle upon release shall be brought into compliance by correcting any violations of the criteria specified in subsection (a).

Any person securing the release of a vehicle towed pursuant to this section based upon false or misleading information shall be deemed guilty of a violation of this subsection and upon conviction shall be punished as a Class 2 misdemeanor. Any vehicle released pursuant to subsection (h) and found within the City of Norfolk constituting a nuisance as defined in this subsection shall be abated forthwith. Notice of the location to which the vehicle has been moved shall be posted upon the property from which the vehicle was taken by the city or its contractor.

(i) This section shall not apply to any business which on June 26, 1970, was duly licensed, appropriately zoned and regularly operated as an automobile dealer, a salvage dealer, or a scrap processor.

(j) Any designated special police officer, fire marshal or any of his assistants, or law enforcement officer may enforce the provisions of this section.

(Code 1958, § 31-4.1; Ord. No. 34,409, § 1, 4-7-87; Ord. No. 37,646, § 1, 5-31-94; Ord. No. 39,651, § 1, 6-22-99; Ord. No. 41,084, § 1, 7-1-03; Ord. No. 44,152, § 1, 3-1-11)

State law reference—Authority for above section, Code of Virginia, § 15.1-11.1.

Sec. 29-59. Removal of shopping carts off owner's property; retrieval of cart after notice to owner.

(a) The term "shopping cart," when used in this section, means those push carts of the type or types which are commonly provided by grocery

stores, drugstores, or other merchant stores or markets for the use of the public in transporting commodities in stores and markets from the store to a place outside the store. All shopping carts shall be clearly marked with the name of the owner.

(b) It shall be unlawful for any person to remove a shopping cart from the premises of the owner of such shopping cart without the written consent of the owner or of his agent, servant, or employee given at the time of such removal. For the purpose of this section, the premises shall include all the parking area set aside by the owner, or on behalf of the owner, for the parking of cars for the convenience of the patrons of the owner.

(c) It shall be unlawful for any person to leave or abandon any shopping cart on any sidewalk, right of way, street or property within the city other than the property of the owner of the shopping cart.

(d) If a shopping cart is found on any property off the premises of the owner of the shopping cart, the city may retrieve the cart and remove it to a storage location. The city shall notify the owner, if known, of the cart's retrieval and storage. If not recovered from the storage area by the owner within seven (7) days, the city may dispose of the cart. A storage fee of ten dollars ($10.00) per cart shall be paid by the owner for any cart retrieved from the storage location.

(e) If the shopping cart is not marked with the owner's name, the city shall have the right to dispose of the shopping cart.

(f) A violation of subsections (a), (b) and/or (c) shall constitute a Class 1 misdemeanor.
(Code 1958, § 31-62.2; Ord. No. 40,989, § 1, 3-18-03)

Sec. 29-60. Standing or parking near schools for sale or display purposes.

No person or vehicle shall stand or be parked for the purpose of displaying or selling wares, merchandise or services on any public street or property or private property within a distance of three hundred (300) feet of the grounds of a public school, offering one or more levels of education ranging from kindergarten through the twelfth grade, during school hours. School hours shall mean any time between 7:45 a.m. and 3:30 p.m. during such days as such schools may be in session. A violation of this section shall constitute a Class 4 misdemeanor.
(Code 1958, § 29-595.1)

Sec. 29-61. Minimum altitude for aircraft; acrobatic flying.

(a) Except when operating under a permit issued pursuant to section 29-62, and except when taking off from a landing field, airport or other property designated for that purpose by the owner, no person shall fly any aircraft in the city at a height less than the following:

(1) Over any congested area of the city, not less than one thousand (1,000) feet.

(2) Over any open-air assembly of people, not less than one thousand (1,000) feet.

(3) Elsewhere, not less than five hundred (500) feet.

(b) No person shall acrobatically fly any aircraft in the city:

(1) Over any congested area of the city.

(2) Over any open-air assembly of persons or below two thousand (2,000) feet in height over any established civil airway, or at any height over any established airport or landing field, or within one thousand (1,000) feet horizontally thereof.

(3) Over any other place at a height less than one thousand five hundred (1,500) feet.

"Acrobatic flying," as used in this subsection, means intentional maneuvers not necessary to air navigation.

(c) Any person violating any of the provisions of this section shall be guilty of a Class 3 misdemeanor.

(d) The provisions of this section shall not apply to aircraft used in interstate or foreign commerce, nor to aircraft flown over property or

places belonging to or under the control of the United States of America, or any of its agencies.
(Code 1958, § 31-2)

Cross reference—Airport, Ch. 4.

Sec. 29-62. Permit to use aircraft to lift equipment, supplies, etc.

(a) No person shall lift, by aircraft, any equipment, supplies, structures or any other material and place it either on the ground or onto any structure in the city, without first having obtained a permit from the director of public works.

(b) Such permit shall be issued only after compliance with the following conditions:

(1) Application for the permit shall include a fee in the amount of twenty-five dollars ($25.00).

(2) The applicant shall execute an agreement in which the applicant agrees to hold the city harmless from all claims, actions or law suits arising from or by reason of the issuance of such permit.

(3) The applicant shall deliver to the department of general services of the city a copy of an insurance policy, insuring the city and the aircraft lifting any equipment, supplies, structures or other material and placing it on the ground or onto structures in the city, in an amount approved by the director of general services.

(c) A violation of this section shall constitute a Class 3 misdemeanor.
(Code 1958, § 31-2.1)

Sec. 29-63. Safety devices for window washers.

(a) It shall be unlawful for any person to wash or clean any window of any building above the first floor of such building, and in so doing have his entire body on the outside of such building, unless such person uses a scaffold, ladder or safety belt or other safety device so designed and attached as to prevent his falling.

(b) Any person violating this section shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-79)

Cross reference—License tax for window cleaners, § 24-146.

Sec. 29-64. Reserved.

Editor's note—Ord. No. 42,406, § 1, adopted Sept. 19, 2006, repealed § 29-64, which pertained to tattooing; operating tattoo establishment; etc. and derived from Code 1958, § 31-74; and Ord. No. 29,862, § 1, adopted March 20, 1979.

Sec. 29-65. Reserved.

Editor's note—Ord. No. 49,631, § 1, adopted June 11, 2024, repealed § 29-65, which pertained to palmistry, phrenology, etc. and derived from Code 1958, § 31-49.

Sec. 29-66. Sale, discharge, etc., of sneeze powders, itching powder, etc.

(a) It shall be unlawful for any person to sell or distribute within the city any sneeze powders, stink bombs, itching powders or other similar articles.

(b) It shall be unlawful for any person to discharge, set off or explode any sneeze powders, itching powders, stink bombs or other similar articles in any theatre, school or other public place within the city.

(c) Any person violating any provision of this section shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 31-64)

Sec. 29-67. Footraces or bicycle races require permit.

(a) It shall be unlawful for any person to conduct a footrace or bicycle race upon any of the streets of the city or other public places of the city, without obtaining a permit therefor from the city manager. The application for the permit shall be submitted sixty (60) days in advance of the event with the director of public works and shall contain information as to the date and time of the race and the public streets and places upon which the race is to be conducted and such other information as shall be required by the director of public works. The applicant shall deposit with the director of public works the sum of one hundred dollars ($100.00) for processing

the application and in addition thereto a sum sufficient to cover the costs of city personnel, equipment and material which is utilized in connection with conducting the race; provided, however, that said sums shall not be charged to a permit applicant applying to sponsor an event on city-owned property upon which the city collects an entry or admission fee.

(b) The city manager shall grant the permit, unless he is of the opinion that such footrace or bicycle race on the streets or other public places in the city will unreasonably interfere with the public use thereof or will tend to disturb or imperil the public safety or the public peace, in which case he shall deny the permit. The city manager may temporarily close any street in the city affected by a footrace or bicycle race when in his judgment the public safety so requires.

(c) Any person violating any of the provisions of this section shall be guilty of a Class 3 misdemeanor.
(Ord. No. 30,290, § 1, 2-12-80; Ord. No. 34,627, § 1, 7-21-87; Ord. No. 39,182, § 1, 5-26-98)

Sec. 29-67.1. Parades, public assemblies and expressive activities; permits.

(a) *Purpose.* Pursuant to the authority granted to the city by the Code of Virginia and its Charter, this section is adopted in order to ensure the free and safe passage of pedestrians and vehicles on the public rights-of-way, to ensure free and safe access to public areas, and otherwise to regulate and control the time, place and manner of activities that would otherwise threaten the public health, safety, and welfare, while also encouraging the exercise of rights under the First Amendment of the United States Constitution (First Amendment) in the city.

(b) *Definitions.* The following terms shall have the meanings set out herein, unless the context in which they occur clearly indicates otherwise:

(1) *Event* means a parade, public assembly or expressive activity.

(2) *Expressive activity* means any activity protected under the First Amendment other than a parade or public assembly, addressed below, including, but not limited to, leafleting.

(3) *Parade* means any march, demonstration, procession or motorcade consisting of persons, animals, or vehicles, or a combination thereof, upon any traditional public forum within the city that interferes with or is likely to interfere with the normal flow or regulation of pedestrian or vehicular traffic within said forum.

(4) *Public assembly* means any meeting, demonstration, picket line, rally or gathering of any kind that occupies any traditional public forum within the city and interferes with or is likely to interfere with the normal flow or regulation of pedestrian or vehicular traffic or with the customary public usage of said forum.

(5) *Spontaneous event* means an unplanned coming together of persons, animals or vehicles in a parade or public assembly in a traditional public forum which was not contemplated beforehand by any participant therein, and which is caused by or in response to unforeseen circumstances or events.

(6) *Traditional public forum* means, pursuant to the public forum doctrine under the First Amendment, as created and revised by the courts, those government-owned spaces open to the public generally, such as many streets, sidewalks and parks, that have by long tradition and government fiat been devoted to parades, public assemblies and expressive activities generally.

(c) *Permit required.*

(1) It shall be unlawful for any person to conduct or participate in a parade, public assembly or expressive activity in any traditional public forum of the city without a written permit issued in accordance with the provisions of this section.

(2) The provisions of this section shall not apply to the following when occurring in a traditional public forum:

(A) Spontaneous events;

(B) Recreational activities, including jogging or walking, that do not require closing public streets or other public streets or other public rights-of-way;

(C) Funeral processions;

(D) Students going to and from school classes or participating in educational activities, provided that such conduct is under the immediate direction and supervision of the proper school authorities;

(E) The United States Army, Navy, Air Force and Coast Guard, the military forces of the state, and the employees of the city when acting within the scope of their employment; or

(F) A governmental agency or agencies acting within the scope of its functions.

(G) A parade, public assembly or expressive activity conducted in some traditional public forum other than a street and involving less than thirty (30) people.

(3) Permits may be granted if they are requested by individuals or organizations who desire to have a permit, even though the permit is not required under this section.

(d) *Application.*

(1) A written application for a permit shall be filed as follows:

(A) When a parade, public assembly or expressive activity will require the blocking or temporary closure of all or any part of one or more major streets of the city, or one or more streets in the downtown area, and the detouring of motor vehicle traffic, and will require the presence of significantly more police officers than are normally assigned to the area for traffic control, traffic diversion and/or the maintenance of order, a written application for the permit shall be filed with the city manager or her designee at least thirty (30) days prior to the occurrence, and shall include the information described under subsection (d)(1)(C) below. The reasons for this time requirement are that additional time is needed by city officials to coordinate with all involved departments; to determine previously scheduled uses of the areas or streets; to determine the need and arrange for traffic control signages and devices; to notify residents and businesses; to arrange for the rescheduling and/or recall of police officers; and to alter existing parking regulations.

(B) For all parades, public assemblies or expressive activities other than those described in subsection (d)(1)(A) above, a written application for the permit shall be filed with the city manager or her designee at least five (5) days, excluding Saturdays, Sundays and legal holidays, prior to the occurrence, and shall include the information described in subsection (d)(1)(C) below.

(C) Written applications shall include all of the following information:

(i) The name, address and telephone number of the person requesting the permit;

(ii) The name and address of the organization or group the applicant is representing;

(iii) The name, address and telephone number of a person who will act as the leader or chairman of the group at the site, and who will be responsible for the conduct of the group;

(iv) The type of event planned, including a description of the activities planned during the event;

(v) The date and time (start and ending) of the event;

(vi) If the event is a public assembly or expressive activity, the specific location or locations of it;

(vii) If the event is a parade, the specific assembly and dispersal locations, the specific route, and the plans, if any, for assembly and dispersal;

(viii) The approximate number of people, animals and vehicles that will constitute the event, and a description of any animals or vehicles involved;

(ix) A statement as to whether the event will occupy all or only a portion of the width of the streets or sidewalks or other public rights-of-way proposed to be traversed or used;

(x) A description of any recording equipment, sound-amplification equipment, banners, signs, or other attention-getting devices to be used in connection with the event; and

(xi) A statement, if applicable, that the applicant claims an exemption from the service fee and insurance requirements of subsection (e) below, and such other information as the city manager or her designee may deem reasonably necessary in order to properly provide for traffic control, street and property maintenance, administrative arrangements, police and fire protection, and for the protection of public health, safety and welfare.

(e) *Fees and insurance.*

(1) All applicants shall pay a nonrefundable fee of ten dollars ($10.00) to cover the administrative costs of processing the permit request upon submission of their application.

(2) If the application is pursuant to subsection (d)(1)(A) above, and the application is not exempt from these fees pursuant to subsection (e)(4) below, the applicant, prior to the issuance of a permit, shall:

(A) Pay the charges for all services to be provided the applicant in accordance with a schedule of service costs established by regulations of the city manager; and

(B) Procure and maintain in full force and effect during the term of the permit a policy of insurance covering general liability and property damage in an amount commensurate with the risk as determined by the city manager or her designee, which policy shall include the city, its boards, officers, agents and employees as additional insureds.

(3) No application shall be considered complete until all required fees are paid.

(4) Applicants may request an exemption from the service fees and insurance requirements of this section for noncommercial parades, public assemblies and expressive activities subject to the protection of the First Amendment. Within ten (10) days, excluding Saturdays, Sundays and legal holidays, after receiving a permit request claiming an exemption from the service fees and insurance requirements pursuant to this subsection, the city manager or her designee shall notify the applicant if his claim of exemption is denied. The city manager or her designee shall grant or deny a claim of exemption under this section with the advice and consent of the city attorney.

(f) *Issuance or denial of permit.*

(1) The city manager or her designee, upon receipt of an application, shall promptly circulate it to the chief of police, the fire chief, the director of neighborhood and leisure services if the proposed location is a park, and the director of public works, or their designees, and to any other city departments with relevant responsibilities.

(2) The city manager or her designee shall issue the permit within twenty-one (21) days after receipt of the completed application for a parade, public assembly or expressive activity described in subsection (d)(1)(A) above, and within three (3) days after receipt of an application for a parade, public assembly or expressive activity described in subsection (d)(1)(B) above, if it is determined that the proposed parade, public assembly or expressive activity will not endanger the public health, welfare or safety, based upon its meeting all of the following requirements:

(A) The time, duration, route and size of the event will not unreasonably interrupt the safe and orderly movement of vehicular or pedestrian traffic;

(B) The time, duration, route and size of the event will not require the diversion of so great a number of police and fire personnel to properly police the line of movement in the areas contiguous thereto so as to impair the normal protection of the remainder of the city;

(C) The applicant has, where appropriate, designated monitors sufficient to control the orderly conduct of the event in conformity with such permit;

(D) The conduct of the event will not unduly interfere with the proper fire and police protection of, or ambulance service to, the remainder of the city, or unreasonably disrupt other public services and protection normally provided to the city;

(E) The event will not interfere with another event for which a permit has been granted;

(F) The event proposed will not violate, and will conform with all applicable regulations and laws governing the activities of the proposed event; and

(G) The applicant has, unless exempted, met all requirements concerning fees and insurance.

(3) The city manager or her designee shall not issue the permit if any information supplied by the applicant is false or intentionally misleading.

(4) The city manager or her designee shall have the authority to and shall make reasonable efforts to consider an application hereunder which is not filed within the applicable deadlines before the proposed date of the parade, public assembly or expressive activity. The city manager or her designee shall waive the deadline if, after due consideration of the date, time, place and nature of the event, the anticipated number of participants and the city services required in connection with the event, and where good cause is otherwise shown, the city manager or her designee determines that the waiver of the permit application deadline will not present an undue hazard to public safety.

(5) If the city manager or her designee denies an application, she shall promptly attempt to call and will promptly mail to the applicant a notice of her action, stating the reasons for her denial of the permit.

(6) If two (2) or more applications are submitted requesting a permit under this section for a parade, public assembly or expressive activity to be used at the same date, time and place, the application first filed shall be granted if it meets the requirements of this section.

(7) Nothing in this section shall permit the city manager or her designee to deny a permit based upon political, social or religious grounds or reasons or based upon the content of the views expressed. Denial of a permit on such grounds is prohibited.

(8) The issuance of a permit under this section shall not excuse the applicant from any other license or permit requirements that may be otherwise necessary for the proposed event, such as business licenses and health permits.

(g) *Alternative permit.* The city manager or her designee shall have the authority to modify the route, time and place of a parade, public assembly or expressive activity to facilitate crowd control in the interest of relieving congestion and promoting public safety, provided that the applicant's rights under the First Amendment are not denied thereby. The city manager or her designee may temporarily close any street in the city affected by a parade when in her judgment the public safety so requires.

(h) *Notice to various officials.* Immediately upon the issuance of a permit under this section, the city manager or her designee shall send a copy thereof to the following:

(1) The chief of police;

(2) The fire chief;

(3) The director of public works; and

(4) The director of neighborhood and leisure services if the location is a park.

(i) *Compliance with directions and standards.* Every person to whom a permit is issued under these sections [this section] shall comply with all permit terms and conditions and with all applicable regulations and laws. The parade, public assembly or expressive activity chairman or other person heading or leading the event shall carry the permit upon his person during the conduct of the event, and show the permit when requested to do so.

(j) *Revocation of permit.* The city manager or her designee shall have the authority to revoke any permit issued pursuant to this section if any information supplied by the applicant is discovered to be false or intentionally misleading, or if any term, condition, restriction or limitation of the permit has been substantially violated, or if there is any continued violation of the terms, conditions, restrictions or limitations of the permit after the applicant or anyone acting in concert with him is notified of a violation of the permit by an appropriate law enforcement official.

(k) *Public conduct during events.*

(1) *Interference.* No person shall unreasonably hamper, obstruct, impede or interfere with any parade, public assembly or expressive activity or with any person, vehicle or animal participating or used in such an event.

(2) *Driving through parades.* No driver of a vehicle shall drive between the vehicles, persons or animals comprising a parade except when otherwise directed by a police officer. This shall not apply to authorized emergency vehicles.

(3) *Parking on parade route or the area of a public assembly or expressive activity.* The city manager or her designee shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along the public streets or public rights-of-way constituting a part of the route of a parade or an area in which a public assembly or expressive activity will occur. The city manager or her designee, shall post signs to such effect, and it shall be unlawful for any person to park or leave unattended any vehicle in violation thereof. No person shall be liable for parking on a street unposted in violation of this section.

(l) *Parades in street; relocation of parades from the street to the sidewalk.*

(1) Parades consisting of twenty-five (25) or fewer people and no vehicles shall be confined to the sidewalks and shall not enter the street except for the purpose of crossing from one sidewalk to another.

(2) Parades for which a permit to parade in the street has been issued shall be

converted to sidewalk parades on the order of the police officer in charge at the scene if, at the time designated for the start of the parade in the permit, the officer in charge determines:

(A) There are no vehicles prepared to participate in the parade; and

(B) There are twenty-five (25) or fewer people prepared to participate in the parade.

(3) Every person to whom a parade permit is issued and all participants therein shall obey the instructions converting a street parade to a sidewalk parade of the police officer in charge at the scene as though those were the terms and conditions of the original written permit.

(m) *Nonpublic forums.* Parades, public assemblies and expressive activities are prohibited in nonpublic forums because they are not compatible with the purpose, facts and circumstances of such properties. However, by special written permit the city manager or her designee may allow such an event in a nonpublic forum when under all the facts and circumstances it is determined that the specific event and the specific nonpublic forum are not incompatible. Decisions concerning requests for access to nonpublic forums by special written permit shall be made only with the advice and consent of the city attorney to ensure any denials or restrictions are viewpoint neutral and otherwise consistent with the public forum doctrine under the First Amendment of the United States Constitution, as created and revised by the courts.

(n) *Severability.* If any portion of this section is for any reason held to be invalid by a court of competent jurisdiction, such decision shall not affect the remaining portions of this section, and such invalid provisions or portions thereof shall be severable.

(o) *Penalty.* Any person violating any of the provisions of this section shall be guilty of a Class 3 misdemeanor.

(Ord. No. 43,391, § 1, 3-24-09)

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed §§ 29-67.1 through 29-67.15 and created a new section designated as § 29-67. Inasmuch as § 29-67 already existed, the new provisions were redesignated as § 29-67.1 at the editor's discretion.

Sec. 29-67.2. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.2, which pertained to same—definitions and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.3. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.3, which pertained to same—permit required and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.4. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.4, which pertained to same—application and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.5. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.5, which pertained to parades and assemblies permits required—fees and insurance and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.6. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.6, which pertained to same—determination of free expression activity exemption claim and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.7. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.7, which pertained to same—issuance or denial of permit and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.8. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.8, which pertained to same—alternative permit and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.9. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.9, which pertained to parades and assemblies permits required—notice to city and other officials and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.10. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.10, which pertained to same—compliance with directions and standards and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.11. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.11, which pertained to same—revocation of permit and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.12. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.12, which pertained to same—public conduct during parades and assemblies and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.13. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.13, which pertained to parades and assemblies permit required—parades in street; relocation of parades from the street to the sidewalk and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.14. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.14, which pertained to same—severability and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-67.15. Reserved.

Editor's note—Ord. No. 43,391, § 1, adopted March 24, 2009, repealed § 29-67.15, which pertained to same—penalty and derived from Ord. No. 41,260, § 2, adopted Dec. 2, 2003.

Sec. 29-68. Permit required for private property special event held on a non-recurring basis.

(a) *Purpose.* Pursuant to the authority granted to the city by the Code of Virginia and its Charter, this section is adopted in order to ensure that certain special events that are open to the public on property that may not regularly be used to host assembly functions shall only be held when it is determined that the assembly function can be conducted without endangering the health or safety of the public, impairing the levy of appropriate taxes or fees, or interfering with relevant land use limitations.

(b) *Definitions.* The following term when used in this section shall, for the purpose of this section, have the meaning ascribed to it herein except in those instances when the context clearly indicates a different meaning:

Extended special event means any celebration, competition, performance, exposition, gathering, or other activity expected to involve more than one thousand (1,000) people extending longer than twenty-four (24) hours during which many private property special events are expected to occur in relation to or as a result of such event and declared by resolution of the city council.

Private property special event means any event held on private property but which is open to the public and which (i) is expected to draw more than twenty-five (25) attendees, (ii) involves either the provision of entertainment or the sale or service of alcoholic beverages to the public, and (iii) is held on property which is not otherwise approved to allow the activities associated with the event under the applicable provisions of the zoning ordinance.

(c) *Permit required.* It shall be unlawful for any person to host a private property special event without a written permit issued in accordance with the provisions of this section. Any person violating this provision shall be guilty of a class 3 misdemeanor.

(d) *Limitation on number of permits.* The maximum number of permits that may be issued during any calendar year for a private property special event at any one location is established based on location as follows.

(1) For any portion of property outside of a building and not covered by any permanent structure, tent, canopy, or other shelter located in a D-W (Downtown - Waterfront), D-BC (Downtown - Business Center), D-MU (Downtown - Mixed-Use), D-AD (Downtown - Arts and Design), or D-FM (Downtown - Fort Norfolk) zoning district, as defined in the Norfolk Zoning Ordinance and shown on the official zoning map, the maximum number of permits is twelve (12).

(2) For any property or portion of property not described in subsection (1), above, the maximum number of permits is four (4).

(e) *Additional permit for extended special event.* In addition to the maximum number of permits allowed under subsection (d), above, a permit may also be issued for a private property special event during an extended special event, subject to the following requirements and restrictions:

(1) The city council has adopted a resolution declaring an extended special event setting forth all of the following:

(A) The starting date and time and ending date and time of the event.

(B) The geographical area or areas of the city designed to be eligible for permits allowing private property special events.

(C) The fee schedule required as part of the application for each permit to allow a private property special event.

(D) The earliest time and the latest time that a permit for a private property special event may be issued.

(2) No permit for a private property special event issued as part of an extended special event can authorize the use of any property or building in a manner that is prohibited by the applicable provisions of the Uniform Statewide Building Code or the city's Fire Prevention Code.

(f) *Conflict with a special exception or conditional use permit.* No permit for a private property special event shall be issued at a property that is described in a special exception or conditional use permit authorizing the sale of alcoholic beverages, the provision of live entertainment, or both except when the property is included in the geographical area identified by the city council in the resolution declaring an extended special event and only during the time period set forth in the resolution.

(g) *Permit process.*

(1) *Application.* The application for a private property special event permit shall be submitted to the department of city planning at least fifteen (15) days prior to the date scheduled for the commencement of the event. The application shall be signed by the owner of the property, or the owner's authorized representative, and the city manager may establish other reasonable requirements for the submission of a permit application in order to ensure that information sufficient to perform the permit review is provided.

(2) *Late applications.* Any application filed later than fifteen (15) days but at least one (1) day prior to the date scheduled for the commencement of the event may be accepted at the discretion of the department of city planning and may be subject to an additional fee, as authorized below.

(3) *Review.* The application shall be reviewed by the police department, department of fire-rescue, and the department of city planning. Additional agencies, including but not limited to the department of public works, the department of health, and the office of the commissioner of the revenue, may be requested to review the application whenever the nature of the event indicates such review is necessary to promote the purposes of this permit process, set forth above.

(4) *Conditions and issuance.* Within seven (7) calendar days after receipt of the application, each department involved in reviewing the permit shall submit to the department of city planning its response regarding issuance of the permit as well as any recommended conditions to be placed on the permit for the purpose of promoting or protecting public health, safety or welfare. The permit for a private property special event may be issued when it is determined that the event, conducted in accordance with the representations made in the application and in compliance with any conditions

placed on the permit, can be held without endangering the health or safety of the public, impairing the levy of appropriate taxes or fees, or interfering with relevant land use limitations.

(h) *Fees.* Except for permits issued for private property special events hosted during an extended special event, the city manager may establish a schedule of reasonable fees that each applicant for a private property special event permit is required to pay at the time of submission in order to cover the costs associated with maintaining and administering this permit process. The fees may vary depending on the expected number of attendees of the event and an additional fee may be charged for any late application that is accepted in order to cover excess costs associated with expediting the review of the application.

(i) *Authority to terminate events.* Whenever an authorized private property special event is conducted in a manner that does not comply with the permit or any condition placed on the permit and the event presents an imminent danger of serious injury to persons or property, any law enforcement officer is authorized to revoke the permit and order that the event shall be terminated immediately. The availability of this remedy shall be in addition to all other remedies or enforcement actions permitted by law.
(Ord. No. 45,753, § 1, 10-28-14; Ord. No. 49,943, § 1, 4-29-25)

Sec. 29-68.1. Filming activities in streets, parks and other public places.

(a) No person, firm or corporation shall engage in any filming activity in or upon any street, way, highway, road, parkway or other public property; or parcel unless the city manager has granted a permit for such filming, provided that a permit shall not be required for news coverage of contemporaneous events or documentaries not for profit.

(b) A written application for a permit pursuant to this section, on a form prescribed by the city manager, shall be filed with the city manager or his designee no less than fourteen (14) days prior to the date on which filming is desired to begin. The permit processing period may be shortened by the city manager or his designee when the filming period is to be of limited duration and/or the filming is to limited in scope.

(c) The permit application form shall include the following information:

(1) The name, address and telephone number of the applicant, and if the applicant is a corporation, the state of its incorporation, the name and address of its registered agent, and the address of its registered office.

(2) The inclusive dates and hours of each desired period of filming.

(3) The specific location, described with particularity, of each place at which filming is desired.

(4) Any desired temporary street obstructions or closures, unusual parking requirements, needs for police or other city personnel for crowd and/or traffic control and/or other purposes, and any other aspects of the desired filming which may affect public health or safety, traffic, or residential areas.

(5) Copies of portions of the shooting script and location schedules and/or other written materials describing the particular scenes to be filmed at specified locations designated in the permit application.

(6) Detailed descriptions of all stunts, chase scenes, special effects, etc., intended to be staged, with the specific location, date and hour desired.

(d) The permit application must be accompanied by a processing fee of one hundred dollars ($100.00), provided, however that the fee shall not be required for student or non-profit filming activities, and that the fee will be fifty dollars ($50.00) for applicants whose principal place of business is in the city.

(e) No permit shall be issued for filming activities at a particular location if the following conditions exist:

(1) When the filming activities will substantially interrupt the safe and

orderly movement of traffic contiguous to the filming site, or in or through the public place used for desired filming activities, and public traffic needs cannot be accommodated reasonably by temporary re-routing; and/or

(2) When its size or the nature of the filming activities will require the diversion of so great a number of police officers and/or other personnel of the city to properly police the film site or provide other services that normal required police or city obligations are impaired; and/or

(3) When the concentration of persons and vehicles at the filming site and surrounding areas will unduly interfere with proper fire and police protection of, or ambulance service to, locations contiguous to such areas.

(4) When the filming will interfere with the movement of firefighting equipment en route to a fire.

(f) No permit shall be issued authorizing filming unless the applicant satisfies the following conditions:

(1) Provision of sufficient insurance coverages and/or bonds to protect the city from loss or damage, of a type and with policy limits to be determined in accordance with regulations promulgated by the city manager. Liability insurance coverages required shall include the city as an additional named insured.

(2) Provision of an advance deposit of funds or irrevocable letter of credit to defray the estimated expense of city services, the amount of which is to be determined and paid or provided in accordance with regulations promulgated by the city manager.

(g) The city manager is authorized and directed to promulgate regulations consistent with and for the purpose of implementing this section. A permittee, by accepting a permit and commencing filming activities allowed by it, shall be deemed to have accepted the provisions of this section and of regulations promulgated by the city manager, and this section and such regulations shall be attached to every permit and be a part thereof.

(h) Any person, firm or corporation violating any of the provisions of this section shall be guilty of a Class 2 misdemeanor.
(Ord. No. 36,924, §, 7-14-92)

Sec. 29-69. Block parties or street fairs require permit.

(a) It shall be unlawful for any person to conduct a block party or street fair upon any of the streets of the city or other public places of the city without obtaining a permit therefor from the city manager. The application for the permit shall be submitted sixty (60) days in advance of the event with the director of public works and shall contain information as to the date and time of the block party or street fair and the public streets and places upon which the block party or street fair is to be conducted and such other information as shall be required by the director of public works. The applicant shall deposit with the director of public works the sum of one hundred dollars ($100.00) for processing the application and in addition thereto a sum sufficient to cover the cost of city personnel, equipment and material which is utilized in connection with conducting the block party or street fair.

(b) The city manager shall grant the permit unless he is of the opinion that such block party or street fair on the streets or other public places in the city will unreasonably interfere with the public use thereof or will tend to disturb or imperil the public safety or the public peace, in which case he shall deny the permit. The city manager may temporarily close any street in the city affected by a block party or street fair when in his judgment the public safety so requires.

(c) Any person violating any of the provisions of this section shall be guilty of a Class 3 misdemeanor.
(Ord. No. 34,627, § 3, 7-21-87; Ord. No. 39,182, § 3, 5-26-98)

Sec. 29-69.1. Obstructing or altering normal traffic or pedestrian movement requires permit; street/lane or sidewalk closure requires permit.

(a) *Definitions.* For the purposes of this section, the following words and phrases shall have the meaning ascribed to them here, unless the context clearly indicates otherwise.

The *Central Business District* is defined as that area lying and being in downtown Norfolk which is south of Brambleton Avenue, west of St. Paula's Boulevard, east of Duke Street and north of the Elizabeth River. This area is also identified as planning district number 59 on the city's GIS system.

Arterial is defined as major streets and/or highways used or designed primarily for fast or heavy traffic.

Collector is defined as connector streets used primarily for fast or heavy traffic.

Person is defined as any individual, employee, operator, firm, contractor, owner, sole proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent or other legal entity.

Residential is defined as local streets used primarily for access to abutting properties and including marginal access streets and/or alleyways which are generally parallel and adjacent to arterial streets or collector street, serving abutting properties and providing protection from friction with through traffic.

(b) *[Fees.]* Whenever it is necessary to issue a permit to allow normal traffic or pedestrian movement in or along a city street/lane or sidewalk to be temporarily obstructed or altered, a fee shall be charged for each such permit in accordance with the following schedule:

Street/Lane Closure; Arterials, Collectors and the Central Business District (CDB)	1—15 days	$65.00
Street/Lane Closure; Arterials, Collectors and the Central Business District (CDB)	16—30 days	$115.00
Street/Lane Closure; Arterials, Collectors and the Central Business District (CDB)	Over 30 days	$115.00 plus $10.00 per day over 30 days.
Street/Lane Closure; Residential Streets	1—30 days	$65.00
Street/Lane Closure; Residential Streets	Over 30 days	$65.00 for the first thirty days plus $5.00 per day over 30 days.
Sidewalk Closure Arterials, Collectors and CBD	1-30 days	$65.00 for the first thirty days plus $10.00 per day over 30 days.
Sidewalk Closure, Residential Streets	1—30 Days	$65.00 for the first 30 days plus $5.00 per day over 30 days
Sidewalk Closure	Over 30 days	$65.00 for each thirty-day period
Special Inspection Fee	After normal business hours	$250.00 (flat fee)
Dumpster in Right-of-way	1—15 days	$65.00
Dumpster in Right-of-way	16—30 days	$115.00
Dumpster in Right-of-way	Over 30 days	$115.00 for the first 30 days plus $10.00 per day over 30 days.

The fee shall be collected by the department of public works. All fees listed above are in addition to other right-of-way permit fees which are detailed in sections 42-9, 42-18 and 42-62 respectively.

(c) *[Barriers, traffic control devices.]* All barriers and traffic control devices shall comply with the requirements set forth in the Manual On Uniform Traffic Control Devices For Streets And Highways, published by the United States

Department of Transportation and the Virginia Work Area Protection Manual Standards And Guidelines, published by the Virginia Department of Transportation. Failure to comply with these requirements are enforceable by any law enforcement officer.

(d) *[Violations; penalties.]* A written warning on the first occurrence for failure to secure a permit will be issued to the person or contractor. An administrative fee for failure to secure a permit will be assessed on the second occurrence at five hundred dollars ($500.00) per occurrence to the person or contractor; for subsequent times thereafter, the administrative fee will be assessed at one thousand dollars ($1,000.00) per occurrence to the person or contractor.

(e) *Reserved.*

(f) *[Plan review fee.]* A plan review fee of fifty dollars ($50.00) will be assessed when representatives from more than three (3) city departments have to meet with the person or contractor to coordinate, review and approve a maintenance of traffic (MOT) plan for a major street/lane closure and/or traffic shifts.

(g) *[Administrative fee.]* An administrative fee of two hundred fifty dollars ($250.00) will be assessed when a person or contractor fails three (3) or more inspections under the same permit. Driveway inspections for residences are excluded.

(h) *[Special inspection fee.]* A special inspection fee of two hundred and fifty dollars ($250.00) will be assessed when a person or contractor chooses to work outside of normal business hours and an inspection is required, unless it is determined by the director of public works that the work must be completed outside of normal business hours.
(Ord. No. 39,186, § 1, 5-26-98; Ord. No. 41,839, § 11, 5-17-0; Ord. No. 43,853, §§ 1, 2, 5-18-10; Ord. No. 47,229, § 36, 5-22-18, eff. 7-1-18)

Sec. 29-70. Soliciting in public buildings.

(a) *Sales.* It shall be unlawful for any person who is not employed by the City of Norfolk to solicit sales in that portion of any building, owned or leased by the city, which is used by the city as a work place.

(b) *Charitable contributions.* It shall be unlawful for any person who is not either employed by the City of Norfolk or affiliated with the United Way Campaign to solicit charitable contributions in that portion of any building, owned or leased by the city, which is used by the city as a work place.

(c) *Violation; penalty.* Any person convicted of violating this section shall be guilty of a misdemeanor and subject to a fine of not more than fifty dollars ($50.00).

(d) *Definitions.* As used in this section:

(1) The term "sales" shall mean any sales solicitation of retail items to individuals for their personal use that requires individuals to buy, or commit to buying, a product at the time of the solicitation, or that requires individuals to hear or read a sales presentation.

(2) The term "charitable contributions" shall mean any solicitation of a gift of money, credit, financial assistance or property of any kind or value that requires individuals to give, or commit to giving, at the time of the solicitation, or that requires individuals to hear or read a presentation soliciting a gift.

(3) The term "public building" shall mean any building owned or leased by the City of Norfolk and used by the City of Norfolk for public purposes.

(e) *Severability.* Severability is intended throughout and within the provisions of this section. If any provision (including inter alia any exception, part, phrase or term) is for any reason held invalid, or its application to any person or circumstance is held invalid, then the remainder of this section shall continue in full force and effect, and its application to other persons and circumstances shall not be affected.
(Ord. No. 36,663, § 1, 11-19-91)

Sec. 29-70.1. Small performances in parks and on sidewalks.

(a) *Intention of council.* The Norfolk City Council finds that performers in the parks and on the sidewalks of the City of Norfolk (city) will

provide a public amenity that will enhance the character of the city. Moreover, the council recognizes that public parks and sidewalks are traditional public forums as defined by the United States Supreme Court and therefore such performances are protected by the First Amendment of the United States Constitution. Consequently, the city shall not regulate such performances except for the protection of the public health, safety, and welfare, and then only to the extent consistent with the First Amendment of the United States Constitution. The phrase "health, safety and welfare" includes, but is not limited to, the interests of residents, of the owners of lawful, code-compliant businesses and their customers, and of members of the public generally in the peaceful use and enjoyment of their homes, businesses and the public places within the city.

(b) *Definitions.* The following terms shall have the meanings set out herein, unless the context in which they occur clearly indicates otherwise:

Perform, performing or *performance* means acting, singing, playing musical instruments, pantomime, mime, magic, dancing and artistry generally, done pursuant to this ordinance, whether done for free or in exchange for individual donations from bystanders.

Performer(s) means an individual or small group performing on sidewalks or within the parks of the city, pursuant to this section.

Small performance(s) means a performance involving less than thirty (30) performers; thirty (30) or more requires a permit to assemble in a park or on the sidewalks under other sections of this Code, such as 29-67.1 (Parades, public assemblies and expressive activities; permits).

Street(s) means that portion of a highway, designed or ordinarily used for vehicular travel, including gutters and medians but excluding sidewalks and/or shoulders bordering gutters.

(c) *Small performance restrictions—Generally.* Performer(s) shall not:

(1) Perform In the streets without a permit issued pursuant to other sections of this Code, such as section 29-67.1 (Parades, public assemblies and expressive activities; permits).

(2) Perform within ten (10) feet of any bus stop, rail transit platform or track that is part of the public transportation system, which includes, but is not limited to, the project popularly known as "light rail".

(3) Perform within ten (10) feet of any street corner or a marked pedestrian crosswalk.

(4) Perform so close to the outer edge of any entrance or exit of any residence or business, including, but not limited to, doors, vestibules, driveways, outdoor dining areas or emergency exits, so as to interfere with entrance to or exit from the residence or the business during the hours that such business is open to the public.

(5) Use any weapon, tool or other object or prop in a performance that by its nature may cause serious bodily harm. Examples of such objects include, but are not limited to, firearms, knives, spears and chain saws.

(6) Engage in any activity in a performance, regardless of the nature of any object or prop, that might cause serious bodily harm to any person. An example of such an activity includes, but is not limited to, the use of fire in a performance.

(7) Use in connection with a performance any generator, wet cell battery with removable fill caps, or any other power source that poses a fire or public safety hazard.

(8) Litter a performance site. Performers must clean up their litter, if any, after the conclusion of a performance.

(9) Being a minor under the age of eighteen (18), perform unless accompanied at all times by a responsible adult eighteen (18) years of age or older, or perform under circumstances that would violate the city's juvenile curfew ordinance or any other laws regulating juveniles, including, but not limited to, the truancy laws.

(10) Perform with more instruments, props, equipment, or other items than one performer can reasonably transport or remove at one time.

(11) Leave instruments, props, equipment, or other items unattended during a performance. Performers must promptly remove such items after a performance.

(11.5) Perform between the hours of 11:59 p.m. and 7:00 a.m. the next day on Friday or Saturday evening and between the hours of 11:00 p.m. and 7:00 a.m. the next day on any other day of the week so as to generate an audible and discernable sound at a distance of one hundred (100) feet or more. For purposes of this subsection the phrase "audible and discernable" means that the sound can be heard by the human ear and is sufficiently distinct for its source to be clearly identified.

(12) Perform in violation of chapter 26 of the City Code, which restricts noise levels within the city. These restrictions include, but are not limited to, those of City Code section 26-10, setting maximum sound pressure levels based on time of day and the category of the area (e.g., "noise sensitive zone" or "residential"), and subsection 26-8(b), allowing only parties with special permission by ordinance or other lawful grant of authority from the city, such as a permit, to exceed the levels set by section 26-10 for specified periods of time on city property categorized as for "park and recreational use."

(13) Perform or otherwise behave in violation of any laws regulating the possession or use of animals, including but not limited to, such provisions of the Norfolk City Code as chapter 6.1 (concerning Animal Control and Welfare); [sections] 6.1-7 (Keeping certain animals within city); 6.1-50 (Licensing of certain animals required); 25.2-32 (Dogs and animals in parks generally); and 25.2-83 (Dogs and animals in Town Point Park).

(14) Perform or otherwise behave in violation of the law. This Code section is not an exception to other restrictions under the law which may apply to a performer or a performance depending on all the facts and circumstances of a particular performance. These restrictions include, but are not limited to, those Code sections referenced elsewhere within this section and the following laws: trespassing (Norfolk City Code section 29-48); obstructing free passage of others (Code of Virginia, § 18.2-404); assault and battery (Norfolk City Code section 29-8); begging (Norfolk City Code section 42-16); disorderly conduct (Norfolk City Code section 29-10); Riot and unlawful assembly (Code of Virginia, § 18.2-404 et seq.); charitable soliciting (Norfolk City Code section 40-15 et seq. and Code of Virginia, § 57-48 et seq.); parade and assembly (Norfolk City Code section 29-67.1); neighborhood and leisure services—park and special event requirements generally (Norfolk City Code section 25.1-1 et seq.); licenses and taxation (Norfolk City Code section 24-1 et seq.); public health regulations (Norfolk City Code section 2-478 et seq.); fire-rescue (Norfolk City Code section 17.1-1 et seq.); public nudity (Norfolk City Code section 28-12); and obscenity (Norfolk City Code section 28.1 et seq.).

(d) *Small performance restrictions—Time, place and manner.* In enforcing these restrictions, law enforcement officers shall bear in mind that the city's parks and sidewalks are traditional public forums within which all citizens have free speech and expression rights protected by the First Amendment, but that no citizen may exercise a "heckler's veto" on the speech or expression of another, and that those holding advance permits to exercise their rights within a specific traditional public forum should be given precedence, within the limits of the Constitution, over those without permits. This does not mean that the issuance of a permit converts a traditional public forum into private property or that those without permits may simply be banned from parks and sidewalks

during periods those spaces are under permit. Consequently, law officers shall enforce the following restrictions pursuant to the U.S. Supreme Court's doctrine allowing for time, place and manner restrictions of First Amendment activities in public parks and sidewalks based on circumstances at the scene, adhering to the following principles.

Law enforcement officers shall not consider the content of the speech or expression at issue, and shall take action against speakers only as necessary to ensure public order and safety, the free flow of pedestrian and vehicular traffic and to prevent interference with the message of a lawful permit holder by those without permits (that is, all restrictions imposed by officers at the scene shall be narrowly tailored to advance a substantial governmental interest). In taking such actions against speakers, law enforcement officers shall leave open ample alternative avenues of expression, such as nearby areas of the park or sidewalks. Finally, in disputes between two or more speakers, all without permits, law enforcement officers shall give precedence, within the limits of the Constitution, to the free speech and expression rights of the first speaker on the scene.

Performers shall not:

(1) Perform or otherwise behave so as to cause a performer(s) and/or the performer(s) equipment to block or obstruct the free and safe movement of pedestrians. Law enforcement officers may, if a sufficient crowd gathers to observe a performance such that the passage of the public through a public area is blocked or obstructed, disburse [disperse] that portion of the crowd that is blocking or obstructing the passage of the public. If a performer(s) cannot conduct a performance in a specific location without blocking or obstructing the passage of the public, law enforcement officers may cause the performer(s) to leave the immediate location, but shall not prevent the performer(s) from occupying another lawful location in compliance with this section.

(2) Perform or otherwise behave so as to prevent or obstruct the public's participation in and enjoyment of another performer(s) already established in the area; of another person already established in the area and exercising his or her First Amendment rights, although not by performing; or of an event or some portion thereof that is open to the public and occurring pursuant to permit. Law enforcement officers may, should this occur, require a performer(s) to take action so as to alleviate the situation. Such action includes, but is not limited to, law enforcement officers moving the performer(s) a reasonable distance from their immediate location or requiring the performer(s) to lower the volume of voice or instruments.

(3) Perform or otherwise behave so as to interfere with a resident's lawful use and enjoyment of his property. Officers shall only enforce this provision upon a complaint from the resident of the property, and shall apply the time, place and manner principles set out above.

(4) Perform or otherwise behave so as to interfere with a business owner's or operator's lawful use and administration of a business. Officers shall only enforce this provision upon a complaint from the owner, manager or other person in charge of the business, and shall apply the time, place and manner principles set out above.

(e) *Severability.* If any portion of this section of the Code is for any reason held to be invalid by a Court of competent jurisdiction, such decision shall not affect the remaining portions of this section, and such invalid provisions or portions thereof shall be severable.

(f) *Penalty.* Any person violating this section shall be guilty of a Class 3 misdemeanor.
(Ord. No. 44,226, § 1, 4-26-11; Ord. No. 46,077, § 1, 9-15-15)

Sec. 29-71. Reserved.

Editor's note—Ord. No. 41,881, § 1, adopted June 14, 2005, repealed § 29-71, which pertained to loitering with

intent to engage in prostitution—generally and derived from Ord. No. 37,127, § 1, adopted Feb. 2, 1993; and Ord. No. 39,224, § 1, adopted June 30, 1998.

Sec. 29-71.1. Reserved.

Editor's note—Ord. No. 42,151, § 1, adopted Jan. 24, 2006, repealed § 29-71.1, which pertained to same—definitions and derived from Ord. No. 37,127, § 1, adopted Feb. 2, 1993.

Sec. 29-71.2. Reserved.

Editor's note—Ord. No. 42,151, § 1, adopted Jan. 24, 2006, repealed § 29-71.2, which pertained to same—penalties and derived from Ord. No. 37,127, § 1, adopted Feb. 2, 1993.

Sec. 29-72. Reserved.

Editor's note—Ord. No. 41,881, § 1, adopted June 14, 2005, repealed § 29-72, which pertained to loitering in a public place with intent to engage in an unlawful drug transaction—generally and derived from Ord. No. 37,128, § 1, adopted Feb. 2, 1993; and Ord. No. 39,157, § 1, adopted May 26, 1998.

Sec. 29-72.1. Reserved.

Editor's note—Ord. No. 42,151, § 1, adopted Jan. 24, 2006, repealed § 29-72.1, which pertained to same—definitions.

Sec. 29-72.2. Reserved.

Editor's note—(Ord. No. 42,151, § 1, adopted Jan. 24, 2006, repealed § 29-72.2, which pertained to same—penalties and derived from Ord. No. 37,128, § 1, adopted Feb. 2, 1993.

Sec. 29-73. Loitering and prowling so as to threaten the safety of persons or property.

(a) It shall be unlawful for any person to loiter or prowl in a place, at a time, or in a manner not usual for law-abiding individuals under circumstances that warrant a justifiable and reasonable alarm or immediate concern for the safety of persons or property in the vicinity.

(b) Among the circumstances which may be considered in determining whether such alarm or concern is warranted is the fact that the person takes flight upon the appearance of a law enforcement officer, refuses to identify himself, or manifestly endeavors to conceal himself or any object.

(c) Unless flight by the person or other circumstance makes it impracticable, a law enforcement officer shall, prior to any arrest for an offense under this section, afford the person an opportunity to dispel any alarm which would otherwise be warranted, by requesting him to identify and explain his presence and conduct. No person shall be convicted of an offense under this section if the law enforcement officer did not comply with this procedure, or if it appears at trial that the explanation given by the person is true and, if believed by the officer at the time, would have dispelled the alarm or immediate concern.

(d) A person violating the provisions of this section shall be guilty of a Class 1 misdemeanor.

(e) Definitions:

(1) The phrase "to loiter" means to stand idle, to loaf, to saunter, to delay, to linger, to lag behind, or to walk about aimlessly.

(2) The phrase "to prowl" means to rove or wander about in a stealthy manner; to pace or to roam furtively.

(3) The phrase "circumstances that warrant a justifiable and reasonable alarm or immediate concern for the safety of persons or property in the vicinity" means circumstances where specific and articulable facts, taken together with rational inferences from those facts, reasonably warrant a finding that a breach of the peace is imminent or the public safety is threatened.

(Ord. No. 39,288, § 1, 8-18-98; Ord. No. 41,881, § 2, 6-14-05)

Sec. 29-73.1. Suspects to identify themselves.

(a) Any law enforcement officer may detain any person whom the officer encounters under circumstances creating a reasonable suspicion that the person has committed, is committing or is about to commit a crime, and require the person to identify himself. Any person so detained shall identify himself by giving his full legal name, but may not be compelled to answer any other inquiry of any law enforcement officer.

(b) A person violating the provisions of this section shall be guilty of a Class 3 misdemeanor.
(Ord. No. 41,880, § 1, 6-14-05)

Sec. 29-74. Occupancy in building, structure or premises after placarding.

It shall be unlawful for any person to occupy or permit to be occupied a building, structure or premises which has been placarded or condemned as unlawful, unsafe, or unfit for human habitation by the code official, health official, the fire code official, or property maintenance code official. A violation of this section shall constitute a Class 1 misdemeanor. Each day of violation shall constitute a separate offense. Any designated special police officer, fire marshal or any of his assistants, or law enforcement officer may enforce the provisions of this section.
(Ord. No. 39,653, § 1, 6-22-99; Ord. No. 40,181, § 1, 12-12-00; Ord. No. 42,647, § 1, 5-1-07)

Sec. 29-75. Removal of placard prohibited.

It shall be unlawful for any person, other than the building code official, the fire code official, or the health official to cover, obstruct, deface or remove from any building, structure or premises a placard indicating that a building, structure or premise is condemned, unlawful, unsafe or unfit for human habitation. A violation of this section shall constitute a Class 1 misdemeanor. Any designated special police officer, fire marshal or any his assistants, or law enforcement officer may enforce the provisions of this section.
(Ord. No. 39,965, § 1, 5-23-00; Ord. No. 40,181, § 2, 12-12-00)

Sec. 29-76. Impeding of towing operations.

It shall be unlawful for any person to prevent, detain, impede, obstruct or otherwise hinder the towing of any motor vehicle or other equipment undertaken by or at the direction of the city. A violation of this section shall constitute a Class 1 misdemeanor.
(Ord. No. 40,337, § 1, 6-5-01)

Sec. 29-77. Reserved.

Editor's note—Ord. No. 48,585, § 1, adopted Dec. 7, 2021, repealed § 29-77, which pertained to soliciting in streets and derived from Ord. No. 41,368, § 1, adopted April 13, 2004; Ord. No. 41,535, § 1, adopted August 17, 2004; Ord. No. 43,834, §§ 1—3, adopted May 11, 2010.

Sec. 29-78. Photographic voyeurism.*

(a) It shall be unlawful to use any camera, videotape, photo-optical, photo-electric, or any other image recording device for the purposes of observing, viewing, photographing, filming, or videotaping a person where that person has not consented to the observing, viewing, photographing, filming, or videotaping and it is for a lewd or lascivious purpose.

(b) A violation of this section shall be a Class 1 misdemeanor.
(Ord. No. 41,550, § 1, 8-24-04)

Sec. 29-79. Keeping, storing or maintaining portable storage units on residential property.

(a) It shall be unlawful for any owner or occupant of residential property to keep, place, store, or maintain or allow to be kept, placed, stored or maintained any portable storage unit for over sixteen (16) calendar days in any area zoned residential as defined in the zoning ordinance without a permit from the zoning administrator. No more than one portable storage unit with a maximum size of sixteen (16) feet long, eight (8) feet wide and eight and one-half (8½) feet high, or no more than three (3) smaller portable storage units with a combined cubic footage of less than one thousand eighty-eight (1,088) cubic feet, with no more than one sign on each unit no larger than six (6) square feet, shall be permitted per residential property address. A placard indicating the date of delivery shall be affixed to the portable storage unit and be clearly visible from the public street. The placement of a portable storage unit shall be on all sides at least 5 feet from any property line. The

*__Editor's note—__Ord. No. 41,550, § 1, adopted Aug. 24, 2004, created section 29-77, photographic voyeurism. Inasmuch as section 29-77 already existed, said provisions were set out as section 29-78 at the direction of the city attorney's office.

zoning administrator shall be notified by the owner or occupant of residential property within twenty-four (24) hours of placement.

(b) Upon payment of a fifteen-dollar permit fee, a permit issued pursuant to this section shall be issued with a stated expiration date no longer than fifteen (15) calendar days from issuance. An additional extension may be granted by the zoning administrator for good cause shown and upon payment of a fifteen-dollar permit-extension fee. A permit may include requirements for tie downs and other safety factors. A permit must be affixed to the portable storage unit and must be clearly visible from the public street. Failure to comply with this section or any conditions stated in the permit shall be a violation of this section.

(c) For purposes of this section, portable storage unit shall be defined as a moveable temporary storage container.

(d) A first violation of this section shall constitute a Class 4 misdemeanor. A second or subsequent violation by the same person shall constitute a Class 3 misdemeanor. Each day of violation shall constitute a separate offense.
(Ord. No. 41,847, § 1, 5-24-05)

Sec. 29-80. Treatment of animals used in law enforcement.

It shall be unlawful for any person to willfully torment, beat, kick, strike, injure or otherwise mistreat a dog, horse or other animal owned, used or trained by the police or sheriff's department or to willfully interfere with the lawful performance of such animal while performing a law enforcement activity or is being kept in a kennel, pen or stable. A violation of this section shall be punishable as a Class 1 misdemeanor.
(Ord. No. 43,891, § 1, 6-15-10)

Sec. 29-81. Newsracks; placement; maintenance and abandonment.

(a) It shall be unlawful to fail to maintain or abandon a newsrack upon city property or within the city's right-of-way; or place a newsrack upon city property or within the city's right-of-way in a manner contrary to this code section. For purposes of this section, a newsrack is any self-service or coin-operated box, container or other dispenser installed, used or maintained for the display, sale or distribution of newspapers or other written matter to the general public. For purposes of this section a newsrack is abandoned if it has remained empty or its contents have not been updated for a period of ten (10) continuous calendar days.

(b) Each newsrack shall be maintained in a neat and clean condition and in good repair at all times. Specifically, but without limiting the generality of the foregoing, each news rack shall be serviced and maintained so that:

(1) It is reasonably free of dirt and grease;

(2) It is reasonably free of chipped, faded, peeling and cracked paint in the visible painted areas thereof;

(3) It is reasonably free of rust and corrosion in the visible unpainted metal areas thereon;

(4) The clear plastic or glass parts thereof, if any, through which the publications therein are viewed are unbroken and reasonably free of cracks, dents, blemishes and discoloration;

(5) The paper or cardboard parts or inserts thereof are reasonably free of tears, peeling or fading; and

(6) The structural parts thereof are not broken or unduly misshapen.

(c) Newsracks shall not be placed so as to obstruct driveways, bus stops and entrances to residences or businesses. Newsracks shall not be placed so as to prevent the sidewalk from meeting the width and obstruction requirements of the Americans with Disabilities Act of 1990, as amended. Newsracks shall not be attached to city poles or other property without the written permission of the city manager or his designee.

(d) Each newsrack placed on city property or within the city's right-of-way shall have fixed to it in a readily visible place, a notice identifying the name, address, email, and telephone number of the owner or distributor for the city to provide

notice to the owner or distributor as required by this section. If the owner of a newsrack is not identified as required above, the city shall impound it for a period of fifteen (15) calendar days. If the owner or distributor comes forward within that period, the city will return the newsrack, and give the owner or distributor a copy of this ordinance. If the owner or distributor does not come forward within the time limit, the city will sell or destroy the newsrack.

(e) If a news rack is determined to be abandoned, improperly maintained or improperly placed, but the owner is identified as required above, the city shall provide written notice of the violation to the owner with the warning that if the newsrack is not repaired or removed within fifteen (15) calendar days, the city will remove and sell or destroy it.

(f) Severability is intended throughout and within the provisions of this section. If any provision (including inter alia any exception, part, phrase or term) is for any reason held invalid, or its application to any person or circumstance is held invalid, then the remainder of this section shall continue in full force and effect, and its application to other persons and circumstances shall not be affected.

(g) A violation of this section shall be a Class 4 misdemeanor.
(Ord. No. 45,141, § 1, 6-11-13)

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Chapter 30

PARKS AND RECREATION*

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***Editor's note—**Ord. No. 48,503, § 4, adopted Sept. 14, 2021, amended Ch. 30 in its entirety to read as herein set out. Former Ch. 30, § 30-253, pertained to similar subject matter, and derived from Ord. No. 39,590, § 1, adopted May 18, 1999; Ord. No. 39,865, § 1, adopted Feb. 8, 2000.

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ARTICLE I. IN GENERAL

Sec. 30-1. Created.

The department of parks and recreation is hereby created with the following bureaus:

(a) *Bureau of recreation and community wellness.* The bureau of recreation and community wellness shall be responsible for the administration and programming of all recreation facilities, to include, but not be limited to, centers, athletic fields, swimming pools, supervised beach areas, boat ramps, special use facilities, picnic shelters and all other facilities which may be placed under the bureau's control.

(b) *Bureau of parks and forestry operations.* The bureau of parks and forestry operations, in addition to the responsibilities and authorities vested in it by chapter 45 of this Code, shall be responsible for the landscaping and landscape maintenance of all parks, school grounds, median strips, right-of-way, beaches and all other public properties as may be directed. The bureau shall be responsible for the management and control of the city's urban forest.

(c) *Bureau of planning and administration.* The bureau of planning and administration shall be responsible for coordinating interdepartmental training, service delivery evaluation and monitoring.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-2. Duties of director.

The director is charged with the supervision, planning, management, care and control of all public parks, the maintenance and preservation of shade trees and shrubbery, the supervision, management, care and control of all recreative facilities of the city, now owned or hereafter acquired, including, but not limited to tennis courts, beaches, boat ramps, parks and playgrounds, the maintenance of school grounds and playgrounds and the coordination, facilitation and delivery of recreation services.

The director is authorized, with the approval of the city manager, to promulgate rules and regulations for the control and operation of parks and to control traffic movement and parking therein.

The director is authorized to develop the watershed properties of the city for park and recreational purposes, including camping facilities, with the concurrence of the director of utilities and the approval of the city manager.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-3. Violations of chapter generally.

Unless otherwise specifically provided, any person violating any of the provisions of this chapter shall be deemed guilty of a Class 2 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

ARTICLE II. GENERAL REGULATIONS GOVERNING PARKS

Sec. 30-4. When parks open.

(a) Except for unusual and unforeseen emergencies, parks shall be open to the public every day of the year during the designated hours. The opening and closing hours for each individual park shall be posted therein for public information.

(b) The director shall designate park operating hours for each individual park.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-5. Closed areas.

Any section or part of any park may be declared closed to the public by the director at any time and for any interval of time, either temporarily or at regular and stated intervals (daily or otherwise), and either entirely or confined to certain uses as the director shall determine.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-6. Intoxication on park premises; possession or consumption of alcohol, illegal drugs.

No person shall enter or be upon the premises of any park while under the influence of intoxicating liquors or self-administered intoxicants or

drugs. It shall be unlawful for any person to bring, possess or drink upon the premises of any park, any alcoholic beverage of any kind at any time. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor and upon conviction shall be fined not more than one hundred dollars ($100.00).
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-7. No glass containers in parks and on beaches.

It shall be unlawful for any person to carry into or possess in the parks or onto the beaches any glass container of any kind. Concessionaires authorized to vend food or beverages shall be permitted to use glass containers for their own use and shall remove all such containers upon termination of their activities in the park.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-8. Playing of games.

No person shall take part in or abet the playing of any games involving thrown or otherwise propelled objects, such as balls, stones, arrows, javelins or model airplanes, in a park, except in areas set apart for such forms of recreation. The playing of rough or comparatively dangerous games, such as football, baseball and quoits, is prohibited in parks, except on the fields and courts or areas provided therefor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-9. Flying model planes, kites, other objects.

No person shall use, fly or control, in any park or any city-owned or city-controlled area, gas-powered model aircraft. No person shall use, fly or control, in any park or city-owned or city-controlled areas, electric or radio-controlled or hand-thrown model aircraft except in the following areas designated for such use by the city: beaches at the following parks, Sarah Constant Beach Park, Ocean View Beach Park, Community Beach Park (during non-beach season the second week of September through the third week of May), Barraud Park, Tarrallton Community Center, Larchmont Elementary School (during non-school hours), Willard Model Elementary School (during non-school hours) and Campostella Landfill. Activities under this section and kite flying will be limited to daylight hours and will not interfere with school activities, athletic games and/or other organized events which will have priority over the uses permitted herein and kite flying.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-10. Dogs and domestic animals generally.

(a) Dogs and domestic animals shall be restrained on a leash at all times when on a public sand beach or in a public park, which term for purposes of this section includes those fields owned by the city surrounding or adjacent to a school building. In the case of a dog, the dog's owner or his custodian must secure the animal by a collar with a chain, cord or leash not exceeding eight (8) feet in length and have the animal under complete and immediate control while in beach and park areas within the city.

(b) The director may restrict public access of leashed dogs and domestic animals to public parks, as long as the prohibited days and hours are clearly indicated by signs. In establishing restrictions for those parks that are fields surrounding or adjacent to school buildings, the director shall consider the reasonable use of each field by both the school and the public generally, including the regular days and hours of attendance for the specific school involved and the geographic characteristics of the individual field, including whether the field is shared by the school with a city recreation or resource center.

(c) It shall be unlawful for any owner or custodian of a dog or domestic animal to permit such animal on public sand beaches during the time period from the Saturday before Memorial Day through Labor Day each year, such period hereinafter referred to as the "season"; provided, however, that dogs or domestic animals may be permitted on said beaches during the season before 10:00 a.m. and after 6:00 p.m. daily. The provisions of this subsection shall not apply to a guide dog, hearing dog or service dog trained to accompany a person with a disability while being accompanied by such person, or to any dog in the

custody or control or a law enforcement officer while such officer is in the performance of his duties.

(d) The owners or custodians of such leashed dogs and domestic animals when lawfully present in public parks or on public sand beaches pursuant to this section shall obey the city's provisions concerning animal feces contained in Chapter 6.1, as amended.

(e) The off-leash permit provisions of Chapter 6.1, as amended, represent a general exception to the leash requirements of this section. However, the owner or custodian of any dog or domestic animal shall not have it off-leash even with an off-leash permit in those public parks that are surrounding or adjacent to school buildings during the days and hours that on-leash animals are restricted.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-11. Horseback riding.

No person shall ride a horse in any park, except on designated bridle trails, where permitted. Horses shall be thoroughly broken and properly restrained and ridden with due care and shall not be allowed to graze or go unattended nor shall they be hitched to any rock, tree or shrub.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-12. Hunting, chasing, molesting, animals or birds.

(a) No person shall hunt, molest, frighten, kill, trap, harm, chase, tease, shoot or throw missiles at any animal, reptile or bird in any park nor shall any person remove or have in his possession the young of any wild animal, or the eggs, nest or young of any reptile or bird taken from any park. Exception to the provisions of this subsection is made in that, snakes known to be deadly poisonous, such as rattlesnakes, moccasins, coral snakes or other deadly reptiles, may be killed on sight. No provision in this chapter shall prevent the director or his agents from trapping wild animals constituting a nuisance in the city's public parks.

(b) No person shall give, offer or attempt to give any animal or bird in a park any tobacco, alcohol, poisons or other known noxious substances.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-13. Gambling.

No person shall gamble or participate in or abet any game of chance within any park.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-14. Parades.

It shall be unlawful for any person to conduct a parade in the park, except when the conduct of such parade has been specifically authorized by a permit issued for a special event in accordance with the provisions of this chapter.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-15. Use of public address or sound amplification equipment.

It shall be unlawful for any person to use any public address or sound amplification equipment or otherwise create noise in any park, in violation of Chapter 26 of this Code, 1979, as amended.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-16. Use and possession of fireworks and explosives.

(a) No person shall bring into, set off or otherwise cause to explode or discharge or burn in any park, any firecrackers, torpedo rockets or other fireworks or explosives of inflammable material, or discharge them or throw them into any park from land or highways adjacent thereto. This prohibition includes any substance, compound, mixture or article which, when in conjunction with any substance or compound, would be dangerous from any of the foregoing standpoints.

(b) Notwithstanding the provisions of subsection (a) above, fireworks displays or shows may be authorized in a park by permit granted by the director and approved by the fire chief.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-17. Building fires; dropping matches, cigarettes.

No person shall build or attempt to build a fire in a park, except in such areas and under such regulations as may be designated by the director consistent with the city fire prevention code. No person shall drop, throw or otherwise scatter lighted matches, burning cigarettes or cigars, tobacco paper or other inflammable material within any park area or on any road or street abutting or contiguous thereto.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-18. Soliciting.

It shall be unlawful for any person to beg, solicit funds or seek contributions for any purpose, public or private, in the park.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-19. Merchandising, vending machines, coin-operated amusement devices, advertising and signs.

(a) No person shall expose or offer for sale any article or thing, nor shall he station or place any stand, cart, vending machine or vehicle for the transportation, sale or display of any such article or thing, in a park. Exception is made as to any regularly licensed concessionaire acting by and under the authority and regulation of the city council.

(b) No person shall operate or place coin-operated amusements devices in the parks or on the beaches.

(c) No person in a park shall announce, advertise or call the public attention in any way to any article or service for sale or hire.

(d) No person shall paste, glue, tack or otherwise post any sign, placard, advertisement or inscription whatever in any park, nor shall any person erect or cause to be erected any sign whatever on any beach, athletic field, tree or road adjacent to a park.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-20. Display boards in certain city-owned baseball fields.

(a) Notwithstanding any provisions of this Code to the contrary, commercial advertising display boards shall be allowed on fences on city-owned ball fields used by various sports leagues in the following areas: Azalea Middle School Field, Barraud Park, Booker T. Washington Field, Crossroads Elementary Field, Ghent Elementary Field, Granby High Field, Huntersville Park Field, Ingleside Elementary Field, Lake Taylor Middle Field, Lake Taylor High Field, Lakewood Park, Larrymore Elementary Field, Maury High Field, Northside Middle Field, Northside Park, Norfolk Industrial Park, Oakwood Elementary Field, Poplar Halls Park, Rosemont Middle School Field, Sherwood Forest Elementary Field, St. Helena Elementary Field and Tarrallton Park. This shall not apply to the city's three (3) high school stadiums (Booker T. Washington, Lake Taylor and Norview high schools) or to any school gymnasiums. Access to these areas shall be limited as to subject matter and speaker identity by the restrictions in subsection (b) below and in regulations passed pursuant to subsection (c) below.

(b) The city reserves eligibility for the use of display boards along these ball field fences to the class of commercial advertising, that is, to speech which proposes a commercial transaction. Within this class, with regard to ordinary city-owned ball fields, selective access shall be with the permission of the director pursuant to this section and regulations promulgated under its authority. With regard to ball fields associated with the Norfolk Public Schools, after an initial review and approval by the director, selective access shall be with the permission of the superintendent of the Norfolk Public Schools or his designee, pursuant to this section and regulations promulgated under its authority. It is not the city's intent to create a public forum in opening these ball field fences to selective access by display boards for commercial advertising. Consistent with this intent and the nature of the ball fields upon which the display boards will be erected, the city will accept no public service, issue-oriented, religious, political or sexually oriented advertising, or any other advertising

which promotes goods or services unsuitable for children or promotes goods or services in a manner unsuitable for viewing by children.

(c) The director is hereby authorized to promulgate regulations concerning these display boards which are consistent with this section.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-21. Damaging, removing park property generally.

No person shall willfully mark, deface, disfigure, injure, tamper with, displace or remove any park property, including, but not limited to, any building, bridges, tables, benches, fireplaces, railings, paving or paving material, water lines or other public utilities or parts or appurtenances thereof, signs, notices or placards, whether temporary or permanent, monuments, stakes, posts, or other boundary markers, or other structures or equipment, facilities or park property or appurtenances whatsoever, either real or personal.

Violation of this section shall constitute a Class I misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-22. Protection of monuments, fountains, trees.

No person shall climb, stand or sit upon monuments, vases, fountains, railings, fences, trees or upon any other property in a park not designated or customarily used for such purposes.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-23. Removing sand, soil; excavations.

No person shall dig or remove, from any park or beach, sand, whether submerged or not, or any soil, rock, stones, down-timber, pine needles or other wood or materials, or make any excavation, by tool, equipment, blasting or other means or agency in any park.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-24. Construction of buildings or utilities.

No person shall construct or erect any building or structure of whatever kind, whether permanent or temporary in character, in any park or run or string any public service utility into, upon or across any park land, except on special written permit issued by authority of the city council.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-25. Traffic regulations generally.

(a) No person operating a vehicle in any park shall fail to comply with all applicable provisions of the state traffic laws in regard to equipment and operation of vehicles, together with such regulations as are contained in this chapter and other chapters of this Code.

(b) No person operating a vehicle in any park shall fail to obey all police officers and park employees, such persons being hereby authorized and instructed to direct traffic whenever and wherever needed in the parks and on the streets or roads immediately adjacent thereto in accordance with the provisions of this article and such supplementary regulations as may be issued by the director.

(c) No person operating a vehicle in any park shall fail to observe all traffic signs indicating speed, direction, caution, stopping or parking and all others posted for proper control and to safeguard life and property.

(d) No person shall ride or drive a vehicle at a rate of speed exceeding fifteen (15) miles an hour in any park, except upon such roads as are designated by posted signs for speedier travel.

(e) No person shall drive any vehicle in any park area except the paved park roads or parking areas, or on such other areas as may, on occasion, be specifically designated as temporary parking areas by the director.

(f) No person shall use or ride any motorized vehicle, minibike or motorcycle on any park, parkway, beach or any grounds for recreational use, unless on authorized official business for the city or pursuant to an authorized permit issued by the director.

(g) No person shall park a vehicle in a park, except in an established or designated parking area and such use shall be in accordance with

the posted directions there at and with the instructions of a park employee or police officer who may be present.

(h) No person shall fail to immediately notify a park employee or police officer of an emergency in the nature of a breakdown requiring the assistance of a tow truck, mechanic or other persons.

(i) No person shall double-park any vehicle on any road or parkway in a park, unless directed by a park official.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-26. Bicycle regulations.

(a) No person shall ride a bicycle in a park on other than a paved vehicular road or path designated for that purpose. A bicyclist shall be permitted to wheel or push a bicycle by hand over any grassy area or wooded trail or on any paved area reserved for pedestrian use.

(b) No person shall ride a bicycle on a park road other than on the right-hand side of the paving as close as conditions permit; and bicycles shall be kept in single file when two (2) or more are operating as a group. Bicyclists in parks shall at all times operate their machines with reasonable regard to the safety of others, signal all turns, pass to the left of any vehicle they are overtaking and pass to the right of any vehicle they are meeting.

(c) No person shall leave a bicycle lying on the ground or paving, or set against trees, or in any place or position in a park where other persons may trip over or be injured by it.

(d) these regulations do not apply to Norfolk Police Officers operating bicycles while engaged in their law enforcement assigned duties nor shall it apply to public safety ambassadors while in uniform and performing their duties.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-27. Regulations for picnic areas.

(a) No person shall picnic or lunch in a park, except in areas designated for that purpose. The director or his designee shall have the authority to regulate activities in such areas, when necessary to prevent congestion and to secure the maximum use for the comfort and convenience of all. Visitors shall comply with any directions given to achieve this end.

(b) The director is hereby authorized and directed to classify picnic shelters into individual and group classifications and to cause to be erected and maintained on such shelters appropriate signs or markers designating the classification of each such picnic shelter. Advance reservation is required for the use of picnic shelters.

(c) Picnic shelters, which have not been reserved, shall be used on the basis of "first come, first served"; provided, however, that no group exceeding twenty-five (25) persons in number shall use a shelter without having first reserved it as required by this section.

(d) No person shall leave a picnic area in a park before the fire is completely extinguished and before all trash in the nature of boxes, papers, cans, bottles, garbage and other refuse is placed in disposal receptacles, where provided. If no such receptacles are available, then refuse shall be carried away from the park area by the picnicker to be properly disposed of elsewhere.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-28. Regulations for swimming areas.

(a) Designation and marking of swimming areas. The city manager is hereby authorized to designate areas in waters within or adjoining the city for public swimming or public bathing and to mark such areas with buoys which comply with state and federal laws, or with the rules and regulations of the appropriate federal and state agencies, and to place the same offshore, but not more than one hundred (100) yards from mean low water.

(b) No person shall swim or bathe in the waters of Chesapeake Bay, Hampton Roads or the Elizabeth River, or any branches or tributaries thereof, within the limits of the city, unless properly clothed.

(c) No person shall swim, bathe or wade in any waters or waterways in or adjacent to any park, except in such waters and at such places and times as are provided therefor and in compliance with the provisions of this section.

(d) No person shall frequent any waters or places customarily designated for the purpose of swimming or bathing in or adjacent to a park, or congregate thereat, when the beach area is closed by the director upon finding that such use of the water would be dangerous or otherwise inadvisable.

(e) No person shall frequent any waters or places designated for the purpose of swimming or bathing in or adjacent to a park, or congregate thereat, except between such hours of the day as shall be designated by the director for such purposes for each individual area.

(f) No person shall erect, maintain, use or occupy, on or in any beach or bathing area in or adjacent to a park, any tent, shelter or structure of any kind not placed on the beach by the department.

(g) No person shall dress or undress on any beach, or in any vehicle, toilet or other place in a park, except in such bathhouses or structures as may be provided for that purpose.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-29. Camping.

Camp trailers, camp wagons, tents or other types of camping shelters must be registered for a camp site in a park. All camping must be done in the areas designated by the director as camping areas.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-30. Fishing and crabbing.

No person shall fish or crab in any waters in or adjacent to the parks, whether by the use of hook-and-line, net, trap or other device, except in waters designated by the director for that use and under such regulations and restrictions as have been or may be prescribed by the director.
(Ord. No. 48,503, § 4, 9-14-21)

ARTICLE III. FESTIVAL PARKS

Sec. 30-31. Establishment and designation.

Town Point Park and Ocean View Park are hereby designated and established as festival parks.

(a) A festival park to be known as Town Point Park, is hereby established on the following city-owned property:

An irregular-shaped parcel of land extending along the northern shores of the Elizabeth River, and the Eastern Branch thereof, from the southern line of Main Street, eastwardly to a point near the Berkley Bridge, the perimeter whereof being described as follows: Beginning at a point in the southern line of Main Street, at its intersection with a line distant 10 feet behind the back of curb along the west side of Waterside Drive; thence southwardly and eastwardly along a line distant 10 feet behind said back of curb, along the western and southern side of Waterside Drive, crossing the entrance pavement to Otter Berth, to the eastern line of Otter Berth Promenade, projected northwardly; thence southwardly along said projection, and along said promenade to the northern line of the promenade of The Waterside; thence eastwardly along said northern line of said promenade, but excluding the three (3) flights of steps that descend from The Waterside to the promenade, to the southwestern property corner of the Omni International Hotel; thence along the southern and eastern property line of said hotel, known as N.R. and H.A. disposition parcel 95 A-I, to the southern terminus of St. Paul's Boulevard; thence south 71° 12' 58" east, 132 feet along said terminus to the eastern line of disposition parcel 95 A-2; thence southwardly and eastwardly along the property line of said hotel to the eastern terminus of the promenade that lies along the northern shore of the Eastern Branch near the Berkley Bridge; thence southwardly along

the eastern limits of the promenade, and westwardly along the southern bulkheads of the aforesaid promenades, including the island near the southern terminus of St. Paul's Boulevard and the piers that lie in the river in front of The Waterside, whether now existing or hereafter constructed, to the southeastern mouth of Otter Berth; thence northwardly, westwardly, and southwardly along the eastern, northern, and western bulkheads of Otter Berth to the southwestern mouth thereof; thence northwestwardly along the bulkhead of Town Point Park promenade to the southwestern limits of Town Point Park; thence northeastwardly along the bulkhead of Town Point Park promenade to its terminus; thence northeastwardly along the eastern bank of the Elizabeth River to the southern line of Main Street, extended westwardly; thence eastwardly along the southern line of Main Street to the point of beginning.

(b) A festival park to be known as Ocean View Park, is hereby established on the following city-owned property:

Beginning at a point that is the intersection of the northern line of Ocean View Avenue and the western line of Parcel A-2, said point being shown on a plat entitled "Subdivision of Part of Parcel A as Shown on Survey of Ocean View Amusement Park and Adjacent Properties, Norfolk, VA (M.B. 33, P.99)," said plat being duly recorded in the Clerk's Office of the Circuit Court of Norfolk, Virginia, in Map Book 36, at page 87; thence northwestwardly 1,060.47 feet, more or less, along said northern line of Ocean View Avenue to its intersection with the eastern line of property of Alberto Loiercio et al, said line also being shown as Lot 22, in Block 3, on an unrecorded plat entitled "Replat of Blocks 1 and 2, Map of Willoughby Beach, Property of Willoughby Beach Co.," said plat being on file as "O.V.13" in the Division of Surveys, Department of Public Works, City of Norfolk; thence northwestwardly along the eastern line of the property of Alberto Loiercio et al and continuing along the prolongation of said line to the mean low water line of the Chesapeake Bay; thence southeastwardly along said mean low water line of the Chesapeake Bay; thence southeastwardly along said mean low water line to its intersection with the northerly prolongation of the western line of Parcel A-2; thence southwestwardly along said prolongation and along said western line of Parcel A-2 to the point of beginning.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-32. Application of article.

In addition to the general regulations provided in Article II and notwithstanding any other provisions of this Code which are contrary thereto, the provisions of this article shall apply to the control, maintenance and operation of the areas designated as festival parks.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-33. Responsibilities as to maintenance and operation of the festival parks.

The department of parks and recreation shall be responsible for the maintenance of the parks. The department of cultural facilities, arts and entertainment shall be responsible for the management, scheduling and operation of the festival parks.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-34. Motor vehicles prohibited—Exceptions.

It shall be unlawful for any person to operate or park any motor vehicle in the parks, except for:

(1) Fire vehicles, police vehicles, ambulances responding to emergency calls and emergency vehicles, exceeding thirty (30) feet in length with a "permit of necessity" issued by the director of cultural facilities, arts and entertainment.

(2) Utility vehicles and building services vehicles engaged in the repair of hazards or the correction of disruptions of essential services.

(3) Self-propelled wheelchairs or invalid tricycles operated by persons whose physical disabilities prohibit normal walking.

(4) Park maintenance vehicles.

(5) Vehicles for display or operated for special events at such times and places as may be authorized by a written permit issued by the director of cultural facilities, arts and entertainment.

(6) Mini-buses or trackless trains operated by a public transportation agency pursuant to a written permit issued by the director of cultural facilities, arts and entertainment.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-35. Emergency vehicle lanes.

(a) The director of parks and recreation shall designate emergency vehicle right-of-way lanes for the use of emergency vehicles. The location of such emergency vehicle lanes is plotted upon maps, which are on file in the office of the director.

(b) It shall be unlawful for any person to block or obstruct any such emergency vehicle right-of-way lane.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-36. Speed limit for vehicles.

It shall be unlawful for any person to operate any vehicle in the parks at a speed of more than five (5) miles per hour.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-37. Stopping, standing or parking of vehicles generally.

It shall be unlawful for any person to stop, stand or park any vehicle:

(1) In the park at any time in such a manner as to block the passage of any emergency vehicle.

(2) In such a manner as to block pedestrian movement in the park or access to any building or vessel adjacent to the park.

(3) In the park at any time, unless actively engaged in loading or unloading, maintenance, service or construction, during authorized hours.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-38. Protection of park surfaces from damage by vehicles or equipment.

It shall be unlawful for any person to operate or park any vehicle or equipment in the park in such a manner as to damage or deface any surface, structure, grass, shrub, tree or other planting, furniture or other property therein. No motor vehicle shall be parked upon any area of the park, unless its driver shall have placed beneath its motor, transmission or any oil reservoir, a drip pan or similar device designed to prevent oil, lubricants and similar stain-producing liquids from dripping upon the park surface, except emergency or refuse collection or other "frequent-stop" vehicles. No such vehicles or equipment shall travel on other than inflatable rubber tires and they shall not contain parts or appendages which would drag along the surface of the park. Any person operating any vehicle or equipment causing damage to the park shall be responsible to the city for the cost of satisfactory repair.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-39. Protection of park surfaces, etc. from damages resulting from work on adjacent buildings or vessels.

(a) Any person performing construction, painting, remodeling, alteration or demolition, installing signs, or performing other work, on any building fronting on the park or on any vessel moored adjacent to the park, shall cover and keep fully covered, with overlapping seams six (6) inches wide, at all times, with twenty (20) mil polyethylene sheeting or drop cloths, the park surface, street furniture, planters, light fixtures, plantings, pavilions and other accessories within his work area. In addition, when working with

plaster, mortar or other stain-producing materials, such person shall cover the park surface with sheets of plywood and, when storing beams or other structural shapes and heavy objects and equipment, shall raise them from the park surface by resting them on lumber or timbers.

(b) In addition to providing adequate liability insurance, naming the city as additional insured, when applying for a permit, each contractor shall furnish a bond or certified check, in an amount to be determined by the director, for replacing the park surface, if it is defaced or damaged due to contractor's operations.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-40. Roller skating, skateboarding, prohibited.

It shall be unlawful for any person to roller skate, to ride on a skateboard or to operate any other device having metal tread wheels in the parks.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-41. Swimming and diving prohibited.

It shall be unlawful for any person to swim or dive in any waters in or adjacent to the parks, except pursuant to a permit for such use issued by the director and under such regulations and restrictions as may be prescribed by the director.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-42. Rules and regulations of director.

The director of cultural facilities, arts and entertainment is hereby authorized, with the approval of the city manager, to promulgate rules and regulations for the control and operation of the parks and to control traffic movement and parking.
(Ord. No. 48,503, § 4, 9-14-21)

ARTICLE IV. PERMITS

DIVISION 1. PERMITS GENERALLY

Sec. 30-43. Issuance or denial.

(a) A permit applied for under this article will be issued if:

(1) The proposed activity or use of the park will not unreasonably interfere with or detract from the general public's enjoyment of the park;

(2) The proposed activity and use will not unreasonably interfere with or detract from the promotion of public health, welfare, safety and recreation;

(3) The proposed activity or use is not reasonably anticipated to incite violence, crime or disorderly conduct

(4) The proposed activity will not entail unusual, extraordinary or burdensome expense or police operation by the city; and

(5) The facilities desired have not been reserved for other use at the date and hour required in the application.

(b) If an application is not approved under this article, within fourteen (14) days after receipt of the application, the applicant will be apprised in writing of the reasons for denying the permit. Any person aggrieved by such denial shall have the right to appeal to the city manager in writing, within fourteen (14) days. The city manager shall consider the application under the standards set forth in subsection (a) above and sustain, modify or reverse the director's decision, within fourteen (14) days. The decision of the city manager shall be final.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-44. Exhibition for inspection.

No person shall fail to produce and exhibit any permit issued under this chapter, upon request of any authorized person who shall

desire to inspect such permit for the purpose of enforcing compliance with any ordinance of the city or regulation of the department.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-45. Holder bound by laws, park rules.

A person to whom a permit is issued under this chapter shall be bound by all park rules and regulations and all applicable ordinances as fully as though the same were inserted in the permit.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-46. Holder's liability for damages; insurance may be required.

A person to whom a permit is issued under this chapter shall be liable for any loss, damage or injury sustained by any person whatever by reason of the negligence of the person to whom such permit was issued. The director may require such public liability insurance as he deems to be in the best interest of the city.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-47. Interference with holder.

No person shall disturb or interfere unreasonably with any person occupying any area or participating in any activity under the authority of a permit issued under this chapter.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-48. Revocation.

The director shall have the authority to revoke a permit, upon a finding of a violation of any rule, ordinance or condition of the permit, or upon good cause shown.
(Ord. No. 48,503, § 4, 9-14-21)

DIVISION 2. PERMITS FOR PRIVATE USE OF PARKS OR RECREATION FACILITIES—FESTIVAL PARKS EXCEPTED

Sec. 30-49. Application, application fees, cancelation fees and change of date/location fees and after-hours fees.

(a) Except for festival parks, a person seeking the issuance of a permit for the rental of any park or recreation area or facility for a private purpose shall file an application with the director of parks and recreation. All will be charged a non-refundable application fee in the amount of twenty-five dollars ($25.00). The application shall state:

(1) The name and address of the applicant.

(2) The name and address of the person sponsoring the activity, if any.

(3) The day and hours for which the permit is desired and the proposed use to be made of the park.

(4) The park or portion thereof for which such permit is desired.

(5) An estimate of the anticipated attendance.

(6) Any other information which the director shall find reasonably necessary to a fair determination as to whether the permit should be issued.

(b) Cancelation fees shall be paid according to the rates as set forth below:

(1) Thirty (30) days prior to event: ten percent (10%) or twenty-five dollars ($25.00), whichever is greater.

(2) Less than thirty (30) days prior to event: twenty-five percent (25%) or fifty dollars ($50.00), whichever is greater.

(c) A change of date/location fee in the amount of fifteen dollars ($15.00) shall be charged, except in cases of beach rental.

(d) An after-hours fee of fifty dollars ($50.00) per hour with a two-person minimum.
(Ord. No. 48,503, § 4, 9-14-21)

DIVISION 3. PERMITS FOR USE OF FESTIVAL PARKS FOR SPECIFIC EVENT

Sec. 30-50. Permits authorized.

The director of cultural facilities, arts and entertainment is hereby authorized to issue special event permits for either public or private

use of the festival parks. Such permit may authorize any one or more of the following activities:

(1) The sale of food, beverages and other refreshments.

(2) The sale of goods and merchandise.

(3) Performing arts and other entertainments.

(4) Distributing educational or informational literature and other materials specifically and directly related to a special event.

(5) Charging admission for event entry for ticketed/gated events and closing portions of the park from free public access.

(6) Expressive activities.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-51. Application.

A person seeking the issuance of a permit for the use of a festival park for such purpose shall file an application with the director of cultural facilities, arts and entertainment. The application shall state:

(1) The name and address of the applicant.

(2) The name and address of the person sponsoring the activity, if any.

(3) The day and hours for which the permit is desired and the proposed use to be made of the park.

(4) The portion thereof for which such permit is desired.

(5) An estimate of the anticipated attendance.

(6) Any other information which the director shall find reasonably necessary to a fair determination as to whether the permit should be issued.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-52. Conditions for service and consumption of alcoholic beverages in the park.

The director of cultural facilities, arts and entertainment is hereby authorized to allow alcoholic beverages to be consumed on the premises of the park in specific areas, under the following conditions:

(1) That any organization using premises designated by the director shall be required to secure all proper state alcoholic beverage control board licenses and permits for the particular event held.

(2) That the organization serving alcoholic beverages at the premises designated by the director shall comply in all respects with current regulations of the state alcoholic beverage control board.

(3) The director shall designate the time and place where alcoholic beverages may be served.

(4) The director is hereby authorized to make such other rules and regulations as may be necessary to govern the use of the premises where alcoholic beverages may be served.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-53. Rules and regulations of director.

The director of cultural facilities, arts and entertainment is hereby authorized, with the approval of the city manager, to promulgate rules and regulations for the control and operation of the festival parks and to control traffic movement and parking therein.

(Ord. No. 48,503, § 4, 9-14-21)

ARTICLE V. RENTAL FEES; MEMBERSHIP FEES

Sec. 30-54. Director's authority to establish fees for recreational activities.

Except as otherwise provided by the council, the director is hereby authorized to establish fees for recreational activities, with the approval of the city manager in all cases.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-55. Rental periods for determining fees.

The fees for the rental of the facilities shall be determined by rental periods which shall be hourly unless designated as full day and half day. The hours of full day, half day and after-hours rental periods shall be as follows:

Full day: 8:00 a.m. to 7:00 p.m.

Half day: 8:00 a.m. to 1:00 p.m. or 2:00 p.m. to 7:00 p.m.

After hours: After 7:00 p.m.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-56. Picnic shelter rental fees.

(a) *Generally.* For rental of picnic shelters, the lessee shall pay one of the fees set out in this section.

(b) *Resident.* The rental fee for a resident shall be as follows:

(1) *Full day fee:* One hundred twenty-five dollars ($125.00).

(2) *Half day fee:* One hundred dollars ($100.00).

(c) *Non-resident.* The rental fee for a non-resident shall be as follows:

(1) *Full day fee:* Two hundred fifty dollars ($250.00).

(2) *Half day fee:* Two hundred dollars ($200.00).
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-57. Field rental fees.

(a) *Generally.* For rental of fields, the lessee shall pay one of the fees set out in this section.

(b) *Resident.* The rental fee for a resident shall be as follows:

(1) *Small field:* Fifty dollars ($50.00) per day.

(2) *[Large] field:* Seventy-five dollars ($75.00) per day.

(3) *Field lights:* Forty dollars ($40.00) per night.

(c) *Non-resident.* The rental fee for a non-resident shall be as follows:

(1) *Small field:* Seventy-five dollars ($75.00) per day.

(2) *Large field:* One hundred twenty-five dollars ($125.00) per day.

(3) *Field lights:* Sixty dollars ($60.00) per night.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-58. Open space rental fees.

(a) *Generally.* For rental of open space, the lessee shall pay one of the fees set out in this section.

(b) *Resident.* The rental fee for a resident shall be fifty dollars ($50.00) per day for under 200 attendees.

(c) *Non-resident.* The rental fee for a non-resident shall be one hundred dollars ($100.00) per day for under 200 attendees.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-59. Barraud Park Amphitheatre rental fees.

(a) *Generally.* For rental of Barraud Park Amphitheatre, the lessee shall pay one of the fees set out in this section.

(b) *Resident.* The rental fee for a resident shall be as follows:

(1) *Without electricity:* One hundred dollars ($100.00) per day.

(2) *With electricity:* One hundred twenty-five dollars ($125.00) per day.

(c) *Non-resident.* The rental fee for a non-resident shall be as follows:

(1) *Without electricity:* Two hundred dollars ($200.00) per day.

(2) *With electricity:* Two hundred fifty dollars ($250.00) per day.

(d) Rental of Barraud Park Amphitheatre does not include shelter rental or open space rental.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-60. Recreation center rental fees.

(a) *Generally.* For rental of recreation center space, the lessee shall pay one of the fees set out in this section.

(b) *Resident.* The rental fee for a resident shall be as follows:

(1) *Small conference room:* Twenty-five dollars ($25.00) per hour.

(2) *Large conference room:* Fifty dollars ($50.00) per hour.

(3) *Multi-purpose room:* Fifty dollars ($50.00) per hour.

(4) *Gym:* Seventy-five dollars ($75.00) per hour.

(c) *Non-resident.* The rental fee for a non-resident shall be as follows:

(1) *Small conference room:* Forty dollars ($40.00) per hour.

(2) *Large conference room:* Seventy-five dollars ($75.00) per hour.

(3) *Multi-purpose room:* Seventy-five dollars ($75.00) per hour.

(4) *Gym:* One hundred fifteen dollars ($115.00) per hour.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-61. Beach rental fees.

(a) *Generally.* For rental of beach space, the lessee shall pay one of the fees set out in this section.

(b) *Resident.* The rental fee for a resident shall be fifty dollars ($50.00) per hour.

(c) *Non-resident.* The rental fee for a non-resident shall be one hundred twenty-five dollars ($125.00) per hour.

(d) A non-refundable change of date or change of location fee in the amount of twenty-five dollars ($25.00) shall be charged.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-62. Pool rental fees.

(a) *Generally.* For rental of pool space, the lessee shall pay the rental fee as follows:

(1) *Individual lane:* Ten dollars ($10.00) per lane per hour; and

(2) *Wading pool:* Twenty-five dollars ($25.00) per hour

(3) *Birthday party:* Eighty dollars ($80.00)

(b) A fifty-dollar ($50.00) deposit in the form of a check will be collected at the beginning of the event and return to customer provided no damage occurs.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-63. Pool classroom rental fees.

(a) *Generally.* For rental of pool classrooms, the lessee shall the rental fee as follows:

(1) *Small classroom:* Twenty-five dollars ($25.00) per hour.

(2) *Large classroom:* Fifty dollars ($50.00) per hour.

(3) *Both classrooms:* Seventy-five dollars ($75.00) per hour.

(4) *Birthday party:* Eighty dollars ($80.00).

(b) A fifty-dollar ($50.00) deposit in the form of a check will be collected at the beginning of the event and returned to customer provided no damage occurs.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-64. Membership fees.

The following membership fees shall be charged:

(a) *Norfolk Fitness and Wellness Center.*

Child (5—7)	$ 50.00
Child (5—7) (PowerUp! member)	25.00
Youth (8—14)	75.00
Youth (8—14) (PowerUp! member)	50.00
Young adult (15—23)	75.00

Young adult (15—23) (PowerUp! member)	65.00
Adult (24—65)	200.00
Adult (24—65) (PowerUp! member)	120.00
Senior (66—80)	75.00
Senior (66—80) (PowerUp! member)	75.00
Monthly	75.00
Daily	5.00

(b) *Other recreation centers.*

Youth (5—17) (resident)	$ 20.00
Youth (5—17) (non-resident)	100.00
Youth (5—17) (PowerUp! member)	10.00
Adult (18—64) (resident)	50.00
Adult (18—64) (non-resident)	150.00
Adult (18—64) (PowerUp! member)	20.00
Family (adult plus three or more)	100.00
Family (adult PowerUp! member plus three or more)	50.00
Daily	3.00
Athletic card	20.00
Adult athletic card	10.00

(c) *Norfolk Boxing & Fitness Center.*

Co-ed Olympic boxing (ages 8—40) (resident)	$ 10.00
Co-ed Olympic boxing (ages 8—40) (non-resident)	50.00
Adult open fitness membership (ages 18+) (resident)	60.00
Adult open fitness membership (non-resident)	125.00

(Ord. No. 48,503, § 4, 9-14-21)

ARTICLE VI. BOATING AND WATERSKIING REGULATIONS

Sec. 30-65. Boats and boating; operating boat or manipulating water skis.

(a) No person shall bring into or operate any boat, raft or other watercraft, whether motor-powered or not, upon any waters in or adjacent to a park, except at places designated for boating by the director. Such activity shall be in accordance with applicable regulations as are now or may hereafter be adopted.

(b) No person shall navigate, direct or handle any boat upon water in or adjacent to a park in such a manner as to endanger the occupants of any other boat. State and federal regulations governing licensing and inspection of boats shall be enforced.

(c) No person shall operate any motorboat or vessel, or manipulate any skis, surfboard, or similar device, or engage in any spearfishing while skin diving or scuba diving in a reckless manner so as to endanger the life, limb, or property of any person.

(d) Any person who violates the provisions of subsection (b) or (c) hereof shall be guilty of a Class 1 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-66. Muffling device for motorboats; use of cutouts.

(a) The exhaust of every internal combustion engine used on any motorboat on the waters within the city shall be effectively muffled by equipment so constructed and used as to muffle the noise of the exhaust in a reasonable manner. The use of cutouts is prohibited, except for motorboats competing in an approved regatta or boat race, and for such motorboats while on trial runs, during a period not to exceed forty-eight (48) hours immediately preceding such regatta or race, and for such motorboats while competing in official trials for speed records during a period not to exceed forty-eight (48) hours immediately following such regatta or race.

(b) A violation of this section shall constitute a Class 4 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-67. Speed limits under bridges; "no wake" zones.

(a) It shall be unlawful for any person operating any motorboat or other watercraft propelled by a motor to pass under any bridge in the city at a speed in excess of five (5) miles per hour; and such motorboats and watercraft shall be operated in any cove or upon any waterway designated by the city manager at such speed as to create only a minimum wake.

(b) The city manager is hereby authorized to designate zones in the coves and upon the waterways in the city within which such boats and craft shall be operated at such minimum wake speeds. The city manager shall designate such zones as in his judgment may be most compatible with the public interest, safety and welfare. Such designations shall be made by written documents signed and dated by the city manager, and the city clerk is hereby directed to keep same on file in his office available to public inspection during normal office hours.

(c) No person shall be convicted of violating this section until signs indicating the speed limits of five (5) miles per hour and "no wake" have been posted so as to give notice of such restrictions, and the city manager is hereby authorized to post such signs as may be required by this section.

(d) Violation of this section shall constitute a Class 4 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-68. Observer required in towing boat unless skier wears protective device.

It shall be unlawful and a Class 4 misdemeanor for any person to operate a motorboat on any of the waters in this city for towing a person on water skis or on a surfboard or other similar device, unless there is in such motorboat, a person, in addition to the operator, in a position to observe the progress of the person being towed, or unless the person being towed wears a life preserver or ski belt.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-69. Waterskiing prohibited during certain hours.

It shall be unlawful and a Class 4 misdemeanor for any person to operate a motorboat on any waters in this city towing a person on water skis or on a surfboard or other similar device, between the hours from one hour after sunset to one hour before sunrise, and it shall be unlawful for any person to engage in water skiing or other similar activity on any of the waters in the city during these hours.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-70. Regattas, races.

The provisions of this article shall not be construed to prohibit regattas or the running of races or exhibitions, during an approved, publicly announced, properly supervised and adequately patrolled regatta, race, speed trial or exhibition. Written approval for such events from the city manager, granted pursuant to the rules and regulations of the United States Coast Guard or the state commission of game and inland fisheries shall be deemed sufficient evidence of approval.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-71. Exceptions

The provisions of sections 30-68 and 30-69 shall not apply to a performer engaged in a professional exhibition or to persons engaged in an activity authorized by section 30-70.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-72. Passing too close to capsized boats.

It shall be unlawful for any person operating any motorboat or motorboat towing water skis or a surfboard or other similar device, or for the person being towed, to pass within one hundred (100) feet of any motorboat, sailboat or other watercraft which has capsized, unless such boat is effecting a rescue or rendering aid or assistance,

or unless such boat is operated wholly within a marked channel at a speed of not more than five (5) miles per hour.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-73. Passing too close to swimmers.

It shall be unlawful for any person operating a motorboat or a motorboat towing water skis or a surfboard or other similar device, or for the person being towed, to pass within one hundred (100) feet of any swimmer or bather. For the purpose of this section, a fallen water skier or surfboarder shall be considered a swimmer. The provisions of this section shall not apply to any person operating a motorboat while effecting a rescue or rendering aid or assistance, or to any motorboat operating wholly within a marked channel, if such boat has reduced its speed to five (5) miles per hour.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-74. Operation of motorboat in swimming areas.

It shall be unlawful and a Class 4 misdemeanor for any person to operate a motorboat within any area of water designated and marked as a swimming or bathing area.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-75. Skiing near piers, shores, bulkheads.

It shall be unlawful for any person operating a motorboat and towing a person on water skis or a surfboard or other similar device, or for the person being towed, to pass within fifty (50) feet of any pier, shoreline, bulkhead, bridge or anchored or drifting boat or vessel, unless such motorboat towing such person is operated wholly within a marked channel or unless such person is "taking off" on water skis or a surfboard or other similar device or "landing" therefrom from or on private property with the consent of the owner.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-76. Motorboat following too close to skiers.

It shall be unlawful for any person operating any motorboat to follow any person on water skis or a surfboard or other similar device closer than one hundred (100) feet.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-77. Causing skis or person thereon to collide with object or person.

It shall be unlawful and a Class 4 misdemeanor for any person to operate or manipulate any motorboat, tow rope or other device by which the direction or location of water skis or a surfboard or other similar devices may be affected or controlled in such a way as to cause the water skis, surfboard or other similar device, or any person thereon, to collide with any object or person.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-78. Reckless operation of boat or manipulation of skis.

It shall be unlawful and a Class 1 misdemeanor for any person to operate any motorboat or other vessel, or to manipulate any water skis, surfboard or other similar device, on any of the waters in the city, in a reckless or negligent manner, so as to endanger or be likely to endanger the life, limb or property of any person.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-79. Operating boats, skis, under influence of alcohol or drugs.

It shall be unlawful and a Class 1 misdemeanor for any person to operate any motorboat or other vessel, or manipulate any water skis, surfboard or other similar device, on any of the waters in the city, while under the influence of intoxicating beverages or under the influence of any self-administered drug.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-80. Boat operator disobeying police officer's signal to stop.

Any person who, having received a visible or audible signal from any police officer to bring his

vessel to a stop, shall operate such vessel in a willful or wanton disregard of such signal, so as to interfere with or endanger the operation of the police vessel or endanger other property or persons, or who shall increase his speed and attempt to escape or elude such police officer, shall be guilty of reckless operation of such vessel and a Class 1 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-81. Creation of loud, unreasonable noise by persons aboard boat.

It shall be unlawful for any person, while aboard any motorboat, vessel, barge or any other watercraft, whether under way, drifting, berthed or at anchor, to make or create any loud, disturbing or unreasonable noise of such character, intensity or duration as to be detrimental to the health or life of any person or to unreasonably disturb or annoy the quiet, comfort or repose of any person.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-82. Rental and hiring of boats; when permitted; limitation on number.

Nothing shall be construed or taken as allowing the renting or hiring of boats for compensation, without the payment of the applicable license tax imposed by chapter 24 of this Code.

The renting and hiring of boats for compensation, for fishing and crabbing purposes, within the following limitations as to the number of such boats, is allowed in connection with any private residence, club, hotel, apartment house, boardinghouse or lodging house situated on land abutting on the shores of Chesapeake and Willoughby bays:

(1) Any private residence, two (2) boats.

(2) Any club without sleeping rooms, three (3) boats, and any club with sleeping rooms, two (2) boats for each sleeping room, but in no event to exceed thirty (30) boats.

(3) Any hotel, three (3) boats for every two (2) sleeping rooms, but in no event to exceed thirty (30) boats.

(4) Any apartment house, three (3) boats for every two (2) sleeping rooms, but in no event to exceed thirty (30) boats.

(5) Any boardinghouse or lodging house, three (3) boats for every two (2) sleeping rooms, but in no event to exceed thirty (30) boats.

(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-83. Determination of limitation as to number.

The limitation as to the number of boats shall be determined by the number of boats kept or available to such private residence, club, hotel, apartment house, boardinghouse or lodging house, for such purpose, and not by the number of boats actually hired or rented.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-84. Where boats to be kept when not in use.

All of the boats allowed to be kept, when not in actual use, shall at all times be kept on the land, or within the prolongation of the boundaries thereof, as the same may extend to the waters of the bay on which the private residence, apartment house, club, hotel, boardinghouse or lodging house is situated. Any person who keeps any such boat, when not in actual use, contrary to the provisions of this section shall be guilty of a Class 3 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-85. No vested rights.

No person shall be deemed to acquire any vested rights in connection with the use of any private residence, apartment house, club, hotel, boardinghouse or lodging house by reason of the provisions of this division.
(Ord. No. 48,503, § 4, 9-14-21)

ARTICLE VII. REGULATIONS GOVERNING BEACHES, BRIDGES, JETTIES, RIGHT-OF-WAY ADJACENT TO BODIES OF WATER

Sec. 30-86. Riding or driving horses or vehicles on shores or in water of Chesapeake Bay.

(a) It shall be unlawful for any person to ride or drive any horse, motor vehicle, trailer, semitrailer, motorcycle, motor scooter or like vehicle along the shores of the Chesapeake Bay, or in the waters of the Chesapeake Bay adjacent to the shores thereof, between the western end of Willoughby Spit on the west and the city limits on the east.

(b) The provisions of this section shall not apply to any person driving a city-owned motor vehicle for the purposes of law enforcement, providing emergency services or the cleaning of the shores of the Chesapeake Bay.

(c) This section shall not apply to any person using a vehicle for the purpose of launching or retrieving a boat in or from the waters of the Chesapeake Bay, provided such vehicle is removed from the beaches after such launching or retrieval and parked in an authorized parking location, and provided further, that the launching and retrieval of boats shall not be permitted at the public beaches located at City Beach, Community Beach and Sarah Constant Shrine, except in cases of emergency.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-87. Sleeping on beaches and shores of Chesapeake Bay and Willoughby Bay.

(a) It shall be unlawful for any person to sleep on the beaches or shores of Chesapeake Bay, between the western end of Willoughby Spit on the west and the city limits on the east, in the city, between the hours of 8:00 p.m. and 8:00 a.m.

(b) It shall be unlawful for any person to sleep on the beaches or shores of Willoughby Bay, between the western end of Willoughby Spit on the west and the property of the United States of America on the east, in the city, between the hours of 8:00 p.m. and 8:00 a.m.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-88. Unlawful entry on movable draw or span of bridge.

(a) It shall be unlawful for any person to go upon, or attempt to go upon, any draw or movable span of any bridge in the city, or to drive or lead, or attempt to drive or lead, any team or vehicle upon such span, while the warning bell on the bridge is being sounded, or while signals are displayed on the bridge, or after being notified by signal or direction from the attendant at the bridge, against making any attempt so to do.

(b) Any person violating any provision of this section shall be guilty of a Class 2 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-89. Unlawful entry on rock jetties, groins or stormwater pipes or conduits.

It shall be unlawful for any person to go upon, or attempt to go upon any rock jetty, groin or stormwater pipes or conduit built, constructed or maintained by the city adjacent to the beach or extending from the beach into the water. A violation of this section shall constitute a class 1 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-90. Diving or jumping from bridges.

It shall be unlawful for any person to dive or jump from any bridge over any watercourse in the city or from any recreation pier beneath any bridge. The provisions of this section shall not apply to any person attempting a rescue or in case of emergency.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-91. Pretty Lake Crab Sanctuary.

A crab sanctuary is hereby established in the body of water known as Pretty Lake and all its tributaries from the western face of the Shore Drive Bridge west. Commercial crabbing shall

be prohibited in the sanctuary. The director shall have authority to establish and mark navigational channels in the sanctuary. Noncommercial crabbing by any person shall be prohibited in the marked navigational channels.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-92. Fishing and crabbing from bridges; exception.

It shall be unlawful for any person to fish or crab from any of the bridges in the city, except from the recreation piers constructed under bridges.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-93. From portion of Mayflower Road.

It shall be unlawful for any person to fish or crab from, on or over Mayflower Road, including the unimproved portion thereof and the bulkhead therein, from its intersection with Virginia Avenue on the western side of Colonial Place to its intersection with Virginia Avenue on the eastern side of Colonial Place.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-94. From portion of New Hampshire Avenue.

It shall be unlawful for any person to fish or crab from, on or over New Hampshire Avenue, including the unimproved portion thereof and the bulkhead therein, from its intersection with Mayflower Road at Colonial Avenue to its intersection with Mayflower Road at a point approximately two hundred thirty-five (235) feet east of Colonial Avenue.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-95. From portions of Mowbray Arch, Memorial Place.

It shall be unlawful for any person to fish or crab from, on or over South Mowbray Arch, from Memorial Place to its western terminus; from, on or over Memorial Place; from, on or over Mowbray Arch from its intersection with Memorial Place to Olney Road; from, on or over a certain unnamed park south of Olney Road between Mowbray Arch and Dundaff Street; from, on or over Dundaff Street from Olney Road to its intersection with Pembroke Avenue; from, on or over a certain eighteen-foot pedestrian walkway between Smith Creek, also known as The Hague, and Brambleton Avenue, including the unimproved portions of and the bulkheads in, such streets.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-96. From portion of Willow Wood Drive and Granby Street.

It shall be unlawful for any person to fish or crab from, on or over Willow Wood Drive Bridge, or the Granby Street Bridge, including the unimproved portions thereof and including Granby Street Park located at the intersection of Willow Wood Drive and Granby Street, except from the recreation pier constructed under the Granby Street Bridge.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-97. From portions of Carroll Place and Cambridge Place.

It shall be unlawful for any person to fish or crab from, on or over Carroll Place, from Cambridge Walk to Cambridge Place or from Cambridge Place, from Carroll Place to a line which is an extension southwardly of the dividing line between Lots 36 and 37 in Block 12 as shown on the amended plat of Larchmont, including the unimproved areas of said portions of Carroll Place and Cambridge Place and the bulkheads therein.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-98. From Villa Circle and unimproved land seaward of Villa Circle.

It shall be unlawful for any person to fish or crab from, on or over Villa Circle, or on the unimproved land seaward of Villa Circle, from 26th Street to Leo Street.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-99. Removal of sand from beaches at Ocean View.

(a) In order to conserve and protect the shores and beaches at Ocean View in the following area, it shall be unlawful for any person to carry away

or remove, or cause to be carried away or removed, any sand from the shores and beaches of Chesapeake Bay at Ocean View, from Fourth View Street eastwardly to the city limits, not within the boundaries of any lots shown on a recorded plat.

(b) In the event it appears to the city manager that the removal of sand from the areas referred to in subsection (a) above will not be harmful to the conservation and protection of such shores and beaches, he may, in writing, grant a permit for such removal under such conditions as he may deem proper. The removal of such sand under such permit shall not constitute a violation of this section.

(c) Any person violating any of the provisions of this section shall be guilty of a Class 3 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-100. Removal of sand at Willoughby Spit.

(a) In order to conserve and protect that area in the city known as Willoughby Spit, lying west of Fourth View Street and extending into the waters of Chesapeake Bay, Hampton Roads and Willoughby Bay, it shall be unlawful for any person to carry away or remove, or to cause to be carried away or removed, from Willoughby Spit to any other area or place any sand from the shores, beaches or high land of Willoughby Spit. Provided, however, that in the event it shall satisfactorily appear to the city manager that the removal of sand, in any instance, will not be harmful to the conservation and protection of Willoughby Spit, he may, in writing, grant a permit for such removal, and removal under such permit shall not constitute a violation of this section.

(b) Any person violating this section shall be guilty of a Class 3 misdemeanor.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-101. Authority of city manager to move sand from privately-owned property to streets at Willoughby Spit.

The city manager is hereby authorized to remove sand from privately-owned property to streets in the area referred to in section 30-100, which streets have been accepted by the city council; provided, that such removal is at the written request or with the consent of the owner of such privately-owned property; and provided further, that such sand is not needed at, and should be removed from, such privately-owned property.
(Ord. No. 48,503, § 4, 9-14-21)

Sec. 30-102. Fires on beaches and sand dunes.

(a) It shall be unlawful and a Class 1 misdemeanor for any person to set a fire, cause the burning of flammable materials, or otherwise cause combustion or fire hazard of any kind, or procure another to cause the same, at any time on any beach or sand dune in the city.

(b) The director of the department of parks and recreation, with the approval of the fire marshal, is authorized to designate specific areas within the city beaches in which grilling is allowed under such regulations as may be determined by the fire marshal. Any person grilling in compliance with these regulations and within the designated grill area will not be deemed in violation of subsection (a) above. It shall be a Class 1 misdemeanor for any person to violate these regulations within the designated grill areas.
(Ord. No. 50,248, § 1, 1-13-26)

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Chapter 31

PEDESTRIAN MALLS*

Article I. In General

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Article II. Reserved

§§ 31-46—31-70. Reserved.

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§§ 31-71—31-76. Reserved.

*__Cross references—__Motor vehicle code, Ch. 25; parks and recreation, Ch. 30; streets and sidewalks, Ch. 42; zoning ordinance, App. A.

ARTICLE I. IN GENERAL

Sec. 31-1. Purpose of chapter.

It is the purpose of the provisions of this chapter to provide regulations for the operation, maintenance and control of pedestrian malls.
(Code 1958, § 32.1-1)

Sec. 31-2. Application of chapter; definition.

The provisions of this chapter shall apply to the control, maintenance and operation of all areas designated as pedestrian malls in section 31-5, notwithstanding any other provisions of this Code which are contrary thereto.

As used in this chapter, the word "mall" means a pedestrian mall so designated.
(Code 1958, § 32.1-38)

Sec. 31-3. Posting of portions of chapter.

Pertinent portions of this chapter shall be posted at suitable public places in the city where persons would likely to be informed of the existence and content of this chapter and the penalties for violating its provisions.
(Code 1958, § 32.1-37; Ord. No. 34,237, § 1, 11-25-86)

Sec. 31-4. Violations of chapter generally.

Unless otherwise specifically provided, any person violating any provision of this chapter shall be guilty of a Class 2 misdemeanor.
(Code 1958, § 32.1-39)

Sec. 31-5. Malls designated.

The following areas are hereby designated pedestrian malls:

(1) *Reserved.*

(2) *Main Plaza East:* All that area designated as Main Plaza East Pedestrian Way shown on a subdivision of property of Norfolk Redevelopment and Housing Authority recorded in the clerk's office of the circuit court of the City of Norfolk, Virginia, in map book 28 at page 53 shown as parcel 77-C and more particularly described as follows: Beginning at a point in the western line of Saint Paul's Boulevard, distant south 29 degrees 37 minutes 25 seconds west, 194.05 feet from the southwestern corner of Saint Paul's Boulevard and Plume Street as shown on the aforesaid map; thence along the line of the aforesaid pedestrian way the following eight (8) courses and distances: North 89 degrees 54 minutes 35 seconds west, 188.00 feet; north 0 degrees 05 minutes 25 seconds east, 9.00 feet; north 89 degrees 54 minutes 35 seconds west, 196.70 feet; south 0 degrees 05 minutes 25 seconds west, 9.00 feet; north 89 degrees 54 minutes 35 seconds west, 166.25 feet; south 7 degrees 21 minutes 12 seconds east, 77.65 feet; south 89 degrees 54 minutes 35 seconds east, 430.73 feet; and south 57 degrees 22 minutes 45 seconds east, 51.64 feet to the western line of Saint Paul's Boulevard; thence along said line, north 32 degrees 32 minutes 15 seconds east, 48.36 feet to a point; thence continuing along the western line of said Saint Paul's Boulevard, north 32 degrees 30 minutes 05 seconds east, 75.80 feet to the point of beginning.

(3) *Commercial Place:* Bounded on the north by the south curb of Plume Street, on the east by the western curb line of Commercial Place, on the south by the northern curb line of Main Street and on the west by the eastern property line of the Virginia National Bank.

(Code 1958, § 32.1-2; Ord. No. 32,358, § 1, 5-31-83; Ord. No. 34,237, § 3, 11-25-86)

Sec. 31-6. Responsibilities as to maintenance, repair and upkeep.

(a) The department of parks and recreation shall be responsible for the maintenance of grass, trees, plants, shrubs, planters, street furniture, pavilions and playground equipment on malls.

(b) The department of general services shall be responsible for the maintenance and operation of fountains on malls.

(c) The department of public works shall have the following responsibilities with respect to malls: Sweeping, cleaning of debris and litter, repair of surface, removal of snow and installation of such signs and other devices as may be necessary to

warn motorists of the existence of the mall. (Code 1958, § 32.1-22)

Sec. 31-7. Solid waste control.

(a) It shall be unlawful for any person to place any garbage, rubbish or waste matter, as those terms are defined in section 41-1 of this Code, upon any mall, except as follows:

(1) Pedestrians shall place their own personal garbage and rubbish in designated trash receptacles.

(2) Persons owning or leasing properties fronting upon a mall, other than restaurants or food establishments, shall place garbage, rubbish and waste materials in plastic bags which are securely tied, shall break down and bundle all cardboard boxes and shall place such bags and boxes in front of their establishments for removal.

(3) Persons owning or leasing properties fronting upon a mall, which establishments are being used as restaurants or food establishments, shall place garbage, rubbish and waste materials in securely tied plastic bags and shall place such bags in heavy duty plastic containers, shall break down and bundle all cardboard boxes and shall place such containers and boxes in front of their establishments for removal.

(b) Plastic containers into which the plastic bags shall be placed pursuant to this section shall be of seamless construction, designed to resist acids, alkalides or alkalines, chemicals and cleaning compounds, shall be of high density polyethylene to withstand heavy use and be leakproof and shall withstand temperature extremes from sub-freezing to above normal temperatures. Such plastic containers shall not exceed forty-four (44) gallons in capacity.

(c) The plastic bags, containers and bundled broken-down cardboard boxes provided for in this section shall be placed upon the surface of the mall no later than 9:00 a.m. for the purpose of having the same removed by a public or private garbage or waste removal service, between the hours of 9:00 a.m. and 10:00 a.m. Monday through Saturday. If such bags or cardboard boxes at any premises are not picked up by 10:00 a.m., they shall immediately be removed from the mall by the person responsible therefor.

(d) No cans for garbage, rubbish or waste matter shall be allowed on any mall.

(e) Any person violating the provisions of this section shall be given notice as provided for in section 41-5 of this Code and shall be deemed guilty of a Class 3 misdemeanor. (Code 1958, § 32.1-32)

Cross reference—Solid waste, Ch. 41.

Sec. 31-8. Vehicles prohibited—Generally.

It shall be unlawful for any person to operate or park any motor vehicle on any mall, except as otherwise specifically provided in this chapter. (Code 1958, § 32.1-3)

Sec. 31-9. Same—Exceptions generally.

The provisions of section 31-8 shall not apply to the following vehicles:

(1) Fire vehicles, police vehicles, ambulances responding to emergency calls and postal vehicles.

(2) Utility vehicles and building services vehicles engaged in the repair of hazards or the correction of disruptions of essential services.

(3) Self-propelled wheel chairs or invalid tricycles operated by persons whose physical disabilities prohibit normal walking.

(4) Mall maintenance vehicles.

(5) Vehicles for display or operated for special events at such times and places as may be authorized by a written permit issued by the city manager.

(6) Mini-buses or trackless trains operated by a public transportation agency. (Code 1958, § 32.1-4)

Sec. 31-10. Same—Reserved.

Editor's note—Ord. No. 34,237, § 3, adopted Nov. 25, 1986, repealed § 31-10, pertaining to exceptions to prohibited vehicles for Granby Mall, as derived from Code 1958, §§ 32.1-4.1, 32.1-4.2, and Ord. No. 33,985, § 1, adopted May 13, 1986.

Sec. 31-11. Same—Vehicles exceeding thirty feet in length.

Notwithstanding the exceptions granted in section 31-9, no vehicle, except an emergency vehicle, exceeding thirty (30) feet in length shall be operated or parked on any mall, unless the operator has a "permit of necessity" issued by the director of public works. (Code 1958, § 32.1-4; Ord. No. 34,237, § 1, 11-25-86)

Sec. 31-12. Emergency vehicle right-of-way lanes.

(a) All malls constructed within the city contain emergency vehicle right-of-way lanes for the use of emergency vehicles. The location of such emergency vehicle lanes is plotted upon maps, which are on file in the office of the director of public works.

(b) It shall be unlawful for any person to construct any sign, marquee, awning, scaffolding, architectural projection or other permanent or temporary structure over an area located within an emergency vehicle right-of-way lane. No building or sign permit shall be issued for such obstruction by the building official. (Code 1958, §§ 32.1-35, 32.1-36)

Sec. 31-13. Speed limit for vehicles.

It shall be unlawful for any person to operate any vehicle on any mall at a speed of more than five (5) miles per hour. (Code 1958, § 32.1-7; Ord. No. 33,985, § 1, 5-13-86; Ord. No. 34,237, § 1, 11-25-86)

Sec. 31-14. Stopping, standing or parking of vehicles generally.

It shall be unlawful for any person to stop, stand or park any vehicle:

(1) On any mall at any time in such a manner as to block the passage of any emergency vehicle.

(2) In such a manner as to block pedestrian movement on any mall or access to any building adjacent to any mall.

(3) On any mall at any time, unless actively engaged in loading or unloading, maintenance, service or construction, during authorized hours. (Code 1958, §§ 32.1-9—32.1-11; Ord. No. 33,985, § 1, 5-13-86; Ord. No. 34,237, § 2, 11-25-86)

Sec. 31-15. Reserved.

Editor's note—Ord. No. 34,237, § 3, adopted Nov. 25, 1986, repealed § 31-15, concerning stopping at mall intersections, as derived from Code 1958, § 32.1-12, and Ord. No. 33,985, § 1, adopted May 13, 1986.

Sec. 31-16. Protection of mall surfaces, etc., from damage by vehicles or equipment.

It shall be unlawful for any person to operate or park any vehicle or equipment on any mall in such a manner as to damage or deface any surface, structure or accessory thereof. No motor vehicle shall be parked upon any area of a mall, unless its driver shall have placed beneath its motor, transmission or any oil reservoir, a drip pan or similar device designed to prevent oil, lubricants and similar stain-producing liquids from dripping upon the mall surface, except postal, refuse collection or other "frequent-stop" vehicles. No such vehicles or equipment shall travel on other than inflatable rubber tires and they shall not contain parts or appendages which would drag along the surface of the mall. Any person operating any vehicle or equipment causing damage to a mall shall be responsible to the city for the cost of satisfactory repair. (Code 1958, § 32.1-8)

Sec. 31-17. Protection of mall surfaces, etc., from damage resulting from work on adjacent buildings.

(a) in addition to the precautions and restrictions contained in section 31-16, any person performing construction, painting, remodeling, alteration or demolition, or installing signs, on any building fronting on a mall shall cover and keep fully covered, with overlapping seams six (6) inches wide, at all times, with twenty (20) mil polyethylene sheeting or drop cloths, the mall surface, street furniture, planters, light fixtures, pavilions and other accessories within his work area. In addition, when working with plaster, mortar or other stain-producing materials, such person shall cover the mall surface with sheets of plywood and, when storing beams or other structural shapes and heavy objects and equipment, shall raise them from the mall surface by resting them on lumber or timbers.

(b) In addition to providing adequate liability insurance, when applying for his building permit, each general contractor shall furnish a bond or certified check, in an amount to be determined by the director of public works, for replacing the mall surface, if it is defaced or damaged due to his operations.
(Code 1958, § 32.1-34)

Sec. 31-18. Bicycles prohibited; exceptions.

It shall be unlawful for any person to ride a bicycle on any mall, but this shall not prohibit the walking or pushing of a bicycle on any mall. The parking of bicycles on any mall is prohibited, except at designated parking racks provided by the city.
(Code 1958, § 32.1-5)

Cross reference—Bicycles, Ch. 8.

Sec. 31-19. Roller skating, skate boarding, etc., prohibited.

It shall be unlawful for any person to roller skate, to ride on a skate board or to operate any other device having metal tread wheels on any mall.
(Code 1958, § 32.1-6)

Sec. 31-20. Commercial activities generally.

It shall be unlawful for any person to engage in any of the following activities on a mall, unless such activity has been specifically authorized by a franchise granted in accordance with the provisions of the Charter or by a permit to conduct a special event issued in accordance with the provisions of this chapter.

(1) Display of merchandise on any area of a mall.

(2) Street sales of flowers, souvenirs or other merchandise.

(3) Any other commercial activity not specifically authorized by this chapter or a permit for a special event.

(Code 1958, § 32.1-23)

Sec. 31-21. Vending machines and coin-operated amusement devices.

It shall be unlawful for any person to place or operate vending machines or coin-operated amusement devices on any mall.
(Code 1958, § 32.1-24)

Sec. 31-22. Reserved.

Editor's note—Ord. No. 43,541, § 1, adopted Aug. 18, 2009, repealed § 31-22, which pertained to distribution of advertising materials and derived from Code 1958, § 32.1-33.

Sec. 31-23. Reserved.

Editor's note—Ord. No. 43,541, § 1, adopted Aug. 18, 2009, repealed § 31-23, which pertained to signs and derived from Code 1958, § 32.1-25.

Sec. 31-24. Reserved.

Editor's note—Ord. No. 43,541, § 1, adopted Aug. 18, 2009, repealed § 31-24, which pertained to solicitation of funds and derived from Code 1958, § 32.1-26.

Sec. 31-25. Reserved.

Editor's note—Ord. No. 43,541, § 1, adopted Aug. 18, 2009, repealed § 31-25, which pertained to parades and derived from Code 1958, § 32.1-27.

Sec. 31-26. Reserved.

Editor's note—Ord. No. 43,541, § 1, adopted Aug. 18, 2009, repealed § 31-26, which pertained to use of public address or sound amplification equipment and derived from Code 1958, § 32.1-31.

Sec. 31-27. Climbing upon structures, trees, etc.

It shall be unlawful for any person to climb or ascend any structure, statuary object, planter or tree situated upon a mall, other than those situated in designated children's play areas and designed for such use.
(Code 1958, § 32.1-28)

Sec. 31-28. Misuse of pools or fountains.

It shall be unlawful for any person to swim or place any liquid or solid object in any pool or fountain located upon a mall.
(Code 1958, § 32.1-29)

Sec. 31-29. Reserved.

Editor's note—Ord. No. 34,237, § 3, adopted Nov. 25, 1986, repealed § 31-29, regarding animals on Granby Mall, as derived from Code 1958, § 32.1-30.

Secs. 31-30—31-45. Reserved.

ARTICLE II. RESERVED*

Secs. 31-46—31-70. Reserved.

ARTICLE III. RESERVED.†

Secs. 31-71—31-76. Reserved.

***Editor's note—**Ord. No. 34,237, § 3, adopted Nov. 25, 1986, repealed Art. 11, §§ 31-46—31-51, pertaining to the Granby Mall Advisory Commission, as derived from Code 1958, §§ 32.1-13—32.1-16.

†**Editor's note—**Ord. No. 43,541, § 1, adopted Aug. 18, 2009, repealed art. III, which pertained to permits for special events and derived from Code 1958, §§ 32.1-17—32.1-21; and Ord. No. 34,237, § 3, adopted Nov. 25, 1986.

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Chapter 32

PLANNING*

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***Cross references—**Buildings and building regulations, Ch. 11.1; civic facilities, Ch. 13; erosion and sedimentation control, Ch. 15; parks and recreation, Ch. 30; pedestrian malls, Ch. 31; streets and sidewalks, Ch. 42; subdivisions, Ch. 42.5; wetlands and coastal primary sand dunes, Ch. 49; zoning ordinance, App. A.

State law reference—Municipal planning, Code of Virginia, § 15.1-427 et seq.

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ARTICLE I. IN GENERAL*

Sec. 32-1. Department created.

Pursuant to the provisions of section 52 of the Charter, an administrative department of the city is hereby created, to be known as the department of city planning.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-2. Duties of director.

(a) The head of the department of city planning shall be known as the director of city planning. The director shall give his entire time to the duties of his office and shall be immediately responsible to the city manager for the administration of the department.

(b) Subject to the supervision and control of the city manager in all matters, the director shall be responsible for the administration of the affairs of the department which include guiding the economic and physical development of the city, protecting and enhancing the community's natural environment, preserving the historic and cultural heritage in the city, and assuring high quality new construction.

(c) The director shall be the technical advisor of the city planning commission and shall act as its executive secretary having such authority, duties and responsibilities, under the direction and control of the planning commission, as it may require and establish, consistent with its powers and duties as prescribed by the provisions of this chapter. The director shall also provide technical advice to the city's architectural review board and Norfolk Arts Commission.

(d) The director shall provide technical assistance to the board of building code appeals and to the board of zoning appeals.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-3. Bureaus designated.

There shall be in the department of city planning the bureaus of planning, zoning, building safety, environmental services and administrative services.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-3.1. Bureau of planning.

The bureau of planning shall be responsible for developing and coordinating guidance and policy direction through the comprehensive plan and other plans for land use policies, floodplain management, transportation, economic development, neighborhood planning, historic preservation, and location of facilities. The bureau is responsible for overseeing the activities of the planning commission and the architectural review board. The head of the bureau shall be the assistant director of city planning.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-3.2. Bureau of building safety.

The bureau of building safety shall be responsible for ensuring building safety during the construction process by reviewing plans, inspecting construction work, and enforcing the Virginia Uniform Statewide Building Code (USBC). The head of the bureau shall be the city building commissioner, whose duties shall be as prescribed by the director or by ordinance, and for the purpose of the administration and enforcement of the USBC, shall have all the responsibilities and exercise all the authorities vested in the "building official", "code official" and the "property maintenance code official" by the USBC.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-3.3. Bureau of zoning.

The bureau of zoning shall be responsible for implementing land use policy and regulating development practices by preparing, administering and enforcing the zoning ordinance of the City of Norfolk and other land use regulations.

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*__Editor's note—__Ord. No. 48,780, § 1, adopted May 24, 2022, amended Art. I in its entirety to read as herein set out. Former Art. I, §§ 32-1—32-17, pertained to similar subject matter, and derived from Code 1958, §§ 2-82—2-85, 33-10.1; Ord. No. 31,366, § 1, adopted Sept. 29, 1981; Ord. No. 31,661, § 1, adopted April 20, 1982; Ord. No. 35,626, §§ 1, 2, adopted July 5, 1989; Ord. No. 35,866, § 2, adopted Jan. 16, 1990; Ord. No. 36,926, §§ 1, 2, adopted July 14, 1992; Ord. No. 37,372, § 3, adopted Aug. 17, 1993; Ord. No. 38,590, § 6, adopted May 18, 1999; Ord. No. 39,081, §§ 1—3, adopted March 10, 1998; Ord. No. 39,480, § 1, adopted Feb. 23, 1999; Ord. No. 39,590, § 5, adopted May 18, 1999; Ord. No. 41,862, § 1, adopted June 14, 2005; Ord. No. 43,259, § 1, adopted Oct. 7, 2008; Ord. No. 45,954, § 18(B), adopted May 19, 2015. See the Code Comparative Table for complete derivation.

The bureau is responsible for staffing and overseeing the activities of the board of zoning appeals. The head of the bureau shall be the zoning administrator, whose duties shall be such as may be prescribed by the director or by ordinance, including those of zoning administration, as prescribed in the zoning ordinance.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-3.4. Bureau of environmental services.

The bureau of environmental services shall be responsible for administering programs and providing planning support to enable the city to anticipate and respond to environmental issues and problems, shall perform administrative and staff support functions for the Norfolk Erosion Advisory Commission and the Norfolk Wetlands Board, and shall administer the provisions of this Code relating to the enforcement of erosion and sediment control ordinance requirements, administration of the Chesapeake Bay Preservation Act, issuance of various permits that comprise the Virginia Erosion and Stormwater Management Program, and removal of sunken vessels and abandoned piers, wharves and docks. The head of the bureau shall be the environmental services manager, whose duties shall be such as may be prescribed by the director or by ordinance.
(Ord. No. 48,780, § 1, 5-24-22; Ord. No. 49,645, § 1, 6-25-24, eff. 7-1-24)

Sec. 32-3.5. Bureau of administrative services.

The bureau of administrative services shall be responsible for providing the central management and coordination of departmental resources. The head of the bureau shall be the financial operations manager, whose duties shall be such as may be prescribed by the director or by ordinance.
(Ord. No. 48,780, § 1, 5-24-22)

Secs. 32-4—32-20. Reserved.

ARTICLE II. CITY PLANNING COMMISSION*

Sec. 32-21. Definition.

As used in this article, the word "commission" means the city planning commission.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-22. Created; composition; appointment and qualifications of members.

There is hereby created in and for the city a commission to be known as the city planning commission which shall consist of seven (7) members, who shall be appointed by the council. The members so appointed shall be residents of the city and shall be freeholders qualified by knowledge and experience to make decisions on questions of community growth and development.
(Ord. No. 48,780, § 1, 5-24-22)

State law references—Duty of city to create planning commission, Code of Virginia, § 15.2-2210; composition, etc., of commission, § 15.2-2212.

Sec. 32-23. Terms of members; filling of vacancies.

Of the members first appointed to the commission, one shall be appointed for a term of one year, two (2) shall be appointed for terms of two (2) years, two (2) shall be appointed for terms of three (3) years and two (2) shall be appointed for terms of four (4) years. Thereafter, all members shall be appointed for terms of four (4) years. Any vacancy in the office of any member shall be filled by appointment by the council for the remainder of the unexpired term.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-24. Oath of members.

All members of the commission shall take the oath of office prescribed by the Charter for

*__Editor's note—__Ord. No. 48,780, § 1, adopted May 24, 2022, amended Art. II in its entirety to read as herein set out. Former Art. II, §§ 32-21—32-42, pertained to planning commission, and derived from Code 1958, §§ 33-1—33-5, 33-7—33-10; Ord. No. 41,337, § 2, adopted March 9, 2004; Ord. No. 43,259, § 2, adopted Oct. 7, 2008. See the Code Comparative Table for complete derivation.

officers of the city, and if any member shall; for ten (10) days after receiving notice of his appointment, fail to take such oath, the position shall be deemed vacant.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Authority to require planning commission members to take oath, Code of Virginia, § 15.2-2212.

Sec. 32-25. Compensation of members.

If so provided by the council, by ordinance, the members of the commission shall be reimbursed for actual expenses incurred by them in connection with their official duties; or all members, or any of them, shall be compensated for their services; or they may be both compensated and reimbursed.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, § 15.2-2212.

Sec. 32-26. Removal of members.

The council may remove any member of the commission for malfeasance in office.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, § 15.2-2212.

Sec. 32-27. Election and terms of officers.

The commission shall elect from its membership a chair and a vice-chair, whose terms shall be for one year.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, § 15.2-2217.

Sec. 32-28. Meetings; quorum.

(a) The commission shall fix the time for and hold regular meetings, but it shall meet at least every two (2) months. Special meetings may be called by the chair or by two (2) members, upon written request to the secretary. The secretary shall notify members or mail, at least five (5) days in advance of a special meeting, a written notice fixing the time and place of the meeting and the purpose thereof.

(b) Written notice of a special meeting of the commission is not required, if the time of the special meeting has been fixed at a regular meeting, if all members are present at the special meeting or file a written waiver of notice.

(c) A majority of the members of the commission shall constitute a quorum and no act of the commission shall be valid, unless authorized by a majority vote of those present and voting.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, §§ 15.2-2214, 15.2-2215.

Sec. 32-29. General powers and duties.

(a) In order to carry out its work, the commission shall:

(1) Exercise general supervision of, and make regulations for, the administration of its affairs.

(2) Prescribe rules pertaining to its investigations and hearings.

(3) Supervise its fiscal affairs and responsibilities in the same manner as a department of the city.

(4) Keep a complete record of its proceedings and be responsible for the custody and preservation of its papers and documents.

(5) Make recommendations and an annual report to the council concerning the operation of the commission and the status of planning within its jurisdiction.

(6) Prepare, publish and distribute reports, ordinances and other material relating to its activities.

(7) Prepare and submit to the council an annual budget at the time and in the manner prescribed for city departments.

(8) If deemed advisable, establish an advisory committee or committees.

(b) The commission shall, from time to time, recommend to the city manager programs for public structures and improvements and shall consult and advise with public officials, local, state and national agencies, public utility companies, civil, educational, professional and other organizations, and with citizens, with relation to carrying out its functions. In general, the

commission shall have such powers as may be necessary to enable it to fulfill its functions, promote planning and carry out the purposes for which it was created.

(c) The commission shall, from time to time, recommend to the city manager any and all things in the nature of city planning and city development or improvements that it may deem necessary or expedient for promoting or maintaining the general welfare, trade, commerce and industry of the city. Such duties are designed to augment and coordinate, rather than duplicate or conflict with, specific functions and activities of other agencies of the city government.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Provisions similar to subsection (a) above, Code of Virginia, § 15.2-2221.

Sec. 32-30. Recommendations as to creation of offices, employment of staff; assistance from city departments and employees.

(a) The commission shall recommend to the city manager the creation and filling of such offices and the employment of such employees and staff, in accordance with budget limitations, as it deems necessary for its work.

(b) Upon request of the commission, the city manager may, from time to time, for the purpose of special services under the direction of the commission, assign or detail to it any members of the staffs of the city administrative departments or any city employees to make, for the commission, special surveys or studies requested by it.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, § 15.2-2217.

Sec. 32-31. City records, maps, data, to be available to commission.

All plats, maps, reports and data, including minutes and fiscal records of the city, shall be available to the commission for its use in carrying out its functions and duties.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-32. Expenditures; gifts.

(a) The commission may expend, under the same procedure as prescribed for city departments, any sums appropriated to it for its purposes and activities.

(b) Any gifts received by the council for any of the purposes of the commission shall be placed in a special account by the city auditor and expended by the commission for any of its purposes, or for the purpose designated by the donor of such gift, by the city auditor upon vouchers signed by the chairperson and secretary of the commission.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, § 15.2-2222.

Sec. 32-33. Comprehensive plan; preparation, contents, generally.

(a) The commission shall prepare and recommend a comprehensive plan for the physical development of the territory within the city.

(b) In the preparation of a comprehensive plan, the commission shall make careful and comprehensive surveys and studies of the existing conditions and trends of growth, and of the probable future requirements of the city and its inhabitants. The comprehensive plan shall be made with the purpose of guiding and accomplishing a coordinated, adjusted and harmonious development of the territory which will, in accordance with present and probable future needs and resources, best promote the health, safety, morals, order, convenience, prosperity and general welfare of the inhabitants of the city.

(c) The comprehensive plan shall be general in nature, in that it shall designate the general or approximate location, character and extent of each feature shown on the plan and shall indicate where existing lands or facilities are proposed to be extended, widened, removed, relocated, vacated, narrowed, abandoned or changed in use as the case may be.

(d) The comprehensive plan, with the accompanying maps, plats, charts and descriptive matter, shall show the commission's long-

range recommendations for the general development of the territory covered by the plan. It may include, but need not be limited to:

(1) The designation of areas for various types of public and private development and use, such as different kinds of residential, business, industrial, agricultural, conservation, recreation, public service, floodplain and drainage and other areas.

(2) The designation of a system of transportation facilities, such as streets, roads, highways, parkways, railways, bridges, viaducts, waterways, airports, ports, terminals and other like facilities.

(3) The designation of a system of community service facilities, such as parks, forests, schools, playgrounds, public buildings and institutions, hospitals, community centers, waterworks, sewage disposal or waste disposal areas, and the like.

(4) The designation of historical areas and areas for urban renewal or other treatment.

(5) An official map, a capital improvements program, a subdivision ordinance, and a zoning ordinance and zoning district maps.

(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, § 15.2-2223.

Sec. 32-34. Comprehensive plan; surveys and studies in preparation; recommendations as to implementation.

(a) In the preparation of a comprehensive plan, the commission shall survey and study such matters as the following:

(1) Use of land, characteristics and conditions of existing development, trends of growth or changes, natural resources, population factors, employment and economic factors, existing public facilities, drainage, flood control and flood damage prevention measures, transportation facilities, the need for housing and any other matters relating to the subject matter and general purposes of the comprehensive plan.

(2) Probable future economic and population growth of the territory and requirements therefor.

(b) The comprehensive plan shall recommend methods of implementation. Unless otherwise required by this article or state law, these may include, but need not be limited to:

(1) An official map.

(2) A capital improvements program.

(3) A subdivision ordinance.

(4) A zoning ordinance and zoning district map.

(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, § 15.2-2224.

Sec. 32-35. Comprehensive plan; hearing and approval or disapproval by commission.

Prior to the recommendation of the adoption of a comprehensive plan, or any part thereof, the commission shall give notice and hold a public hearing on the plan, after notice as required by section 15.2-2204 of the Code of Virginia. After such public hearing, the commission may approve, amend and approve or disapprove the plan. Upon approval of the plan, the commission shall, by resolution, recommend the plan to the city council and submit a certified copy thereof to the council.

(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, §§ 15.2-2225, 15.2-2208.

Sec. 32-36. Comprehensive plan; approval and adoption or disapproval by council.

(a) After certification of the comprehensive plan, or part thereof, the council, after a public hearing with notice as required by section 15.2-2204 of the Code of Virginia, shall proceed to a consideration of the plan or part thereof and shall approve and adopt, amend and adopt or

disapprove the same within ninety (90) days after the date of adoption of the resolution referred to in section 32-35.

(b) If the council disapproves the plan, or part thereof, submitted to it by the commission, it shall return the same to the commission for its reconsideration, with a written statement of reasons for its disapproval. Thereafter, the commission shall have sixty (60) days in which to reconsider the plan, or part thereof, and resubmit it, with any changes, to the council.

(c) The commission may, from time to time, recommend, and the council may approve and adopt, parts of the comprehensive plan. Any such part shall cover one or more major sections or divisions of the city or one or more functional matters.

(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, §§ 15.2-2226-15.2-2228.

Sec. 32-37. Comprehensive plan; amendments; review required.

(a) After the adoption of a comprehensive plan, or part thereof, all amendments to it shall be recommended, approved and adopted, respectively, as required by section 15.15.2-2204 of the Code of Virginia. If the council desires an amendment, it may direct the commission to prepare an amendment and submit it to a public hearing within sixty (60) days after receipt of formal written request by the council.

(b) At least once every five (5) years, the commission shall review the comprehensive plan, to determine whether it is advisable to amend such plan.

(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, §§ 15.2-2229, 15.2-2230.

Sec. 32-38. Legal status of comprehensive plan.

(a) Whenever the commission has recommended a comprehensive plan or part thereof for the city and such plan has been approved and adopted by the council, the plan shall control the general or approximate location, character and extent of each feature shown on the plan. Thereafter, unless such feature is already shown on the adopted master plan or part thereof, or is deemed so under subsection (d) of this section, no street, park or other public area, public building or public structure, public utility facility or public service corporation facility, other than a railroad facility, whether publicly or privately owned, shall be constructed, established or authorized, unless and until the general location or approximate location, character and extent thereof has been submitted to and approved by the commission as being substantially in accord with the adopted comprehensive plan or part thereof. In connection with any such determination, the commission may and, at the direction of the council, shall hold a public hearing, after notice as required by section 15.2-2204 of the Code of Virginia.

(b) The commission shall communicate its findings to the council, indicating its approval or disapproval, with written reasons therefor. The council may overrule the action of the commission by a vote of a majority of the membership thereof. Failure of the commission to act within sixty (60) days of such submission, unless such time shall be extended by the council, shall be deemed approval. In the case of approval, the owner or owners or their agents may appeal the decision of the planning commission to the council, within ten (10) days after the decision of the commission. The appeal shall be by written petition to the council setting forth the reasons for the appeal. A majority vote of the council shall overrule the commission.

(c) Widening, narrowing, extension, enlargement, vacation or change of use of streets or public areas shall likewise be submitted for approval, but paving, repair, reconstruction, improvement, drainage or similar work and normal service extensions of public utilities or public service corporations shall not require approval, unless involving a change in location or extent of a street or public area.

(d) Any public area, facility or use, as set forth in subsection (a) of this section, which is identified within, but not the entire subject of, a submission under either section 15.2-2258 of the Code of Virginia for subdivision or section 15.2-

2286 of such code for development, or both, may be deemed a feature already shown on the adopted master plan, and, therefore, excepted from the requirement for submittal to and approval by the commission or the council under this section; provided, that the council has, by ordinance or resolution, defined standards governing the construction, establishment or authorization of such public area, facility or use or has approved it through acceptance of a proffer made pursuant to section 15.2-2303 of the Code of Virginia.
(Ord. No. 48,780, § 1, 5-24-22)

State law reference—Similar provisions, Code of Virginia, § 15.2-2232.

Sec. 32-39. Comprehensive plan; promotion of public interest and understanding.

The commission shall have the power to promote public interest in and an understanding of the comprehensive plan, and to that end, may publish and distribute copies of the plan and any of its reports.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-40. Action on applications for changes in zoning classification.

All applications for changes in zoning classification shall be submitted to the commission, which shall, after public notice, hold a public hearing thereon and make its recommendations to the council, through the city manager.
(Ord. No. 48,780, § 1, 5-24-22)

Cross reference—Zoning ordinance, App. A.

State law reference—Zoning, Code of Virginia, § 15.2-2280, 15.2-2281, 15.2-2289 et seq.

Sec. 32-41. Recommendations as to historical landmarks, statuary, works of art.

The commission shall make recommendations to the city manager with respect to the control, preservation and care of historical landmarks in the city and shall recommend as to the design, location, relocation, removal and alteration of statuary and other works of art which are or may become the property of the city. However, the commission shall not make such recommendations regarding works of art that fall under the powers and duties of the Norfolk Arts Commission as set forth in article III of this chapter, as amended.
(Ord. No. 48,780, § 1, 5-24-22)

Secs. 32-42—32-44. Reserved.

ARTICLE III. ARCHITECTURAL REVIEW BOARD*

Sec. 32-45. Review board designated.

The architectural review board, as defined, established, and constituted in the manner set forth in the zoning ordinance of the city, shall assist with consideration of appropriate and desirable design of buildings and structures erected by the city or with financial assistance from public funds. The board shall act in an advisory capacity to the city planning commission on those projects within the purview defined below. The term "board" as used in this division of this article of the City Code shall mean the architectural review board.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-46. Design review process.

(a) *Submission.* The planning director, or his designee, may require that plans, drawings, or other documents be prepared and signed by an architect before being presented to the board, such as when the proposed work is complex or when such professional services are necessary to resolve ambiguities. When documents are required, no application will be considered complete unless and until such are submitted and determined to be sufficient.

***Editor's note—**Ord. No. 48,780, § 1, adopted May 24, 2022, amended Art. III in its entirety to read as herein set out. Former Art. III, §§ 32-61—32-70, pertained to design review and public arts commission, and derived from Code 1958, §§ 33-12—33-16; Ord. No. 45,460, adopted Feb. 25, 2014; Ord. No. 48,503, adopted Sept. 14, 2021. See the Code Comparative Table for complete derivation.

(b) *Action.* On each project or matter that comes before it for review, the board shall recommend to the city planning commission that the application should be approved, approved with conditions, or denied.

(c) *Timing.* Action shall be taken within ninety (90) days after a completed application is delivered to the department of planning or, for matters referred to the board by the city planning commission or the city council, within such shorter or longer period of time as may be established at the time of the referral.

(d) *Definition of city agency.* For purposes of this article, the term "city agency" shall include the city, the school board of the city, the Norfolk Redevelopment and Housing Authority, the economic development authority of the city, and the Norfolk Airport Authority.
(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-47. Purview of the board.

The physical and architectural design of each building and other structural improvement, including all site plans, shall be subject to the design review process set forth in this article in the following circumstances, except where expressly exempted from review by another provision set forth in this City Code:

(a) *New public buildings.* Any construction on property owned by the city or a city agency intended for use by the city or for any public purpose.

(b) *Renovations.* Any renovation that alters the exterior of any existing public building, including any proposed alterations to parking, landscaping, hardscaping, lighting, or signage.

(c) *Contract.* Whenever a contract exists between the developer and the city or any city agency the terms of which require design review in accordance with this article.

(d) *Projects assisted by city.* Any construction on property that is either funded, in whole or in part, by the city or any city agency on land acquired or leased from the city for any of the following projects:

(1) Private multifamily and nonresidential buildings;

(2) Private townhouses, duplexes, and condominium developments; and

(3) Other private residential development projects for sale to individual owners involving attached dwelling units or party walls.

(e) *Encroachments.* Any element of a building, awning, canopy, landscaping, lighting fixture, sign, or improvement defining an outdoor dining area when such encroaches onto public property or into a public right-of-way, including any alteration to the structure, color, or materials of an existing encroachment.

(f) *Monuments.* Installation of a statue, monument, memorial, and other work of art acquired by the city on property owned by the city or a city agency and not located interior to a building, not including any object approved by the Norfolk Arts Commission in accordance with its authority and procedures.

(g) *Streets and bridges.* Construction or alteration of a bridge, overpass, underpass, or installation of landscaping along a median or verge of a public street if funded, in whole or in part, by the city.

(h) *Parks.* Construction or creation of any public park or open space, including any major renovation to a park or open space.

(i) *Streetscapes.* Design standards or guidelines as they relate to lighting fixtures, street name signs, directional signs, infill landscaping, benches, trash receptacles and other street appurtenances located in the public right of way or on public property.

(j) *Specific assignments.* Any specific request of the city planning commission or the city council seeking design review related to a proposed building, structure, or other development project.

(k) *General assignments.* Any matter of design review expressly made subject to the board's consideration by a provision of the city code or the zoning ordinance.

(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-48. Exemptions.

Notwithstanding anything to the contrary in subsection 32-47, above, the following matters shall only be considered within the purview of the board when required by a law, regulation, or ordinance imposed outside of the provisions of this article, including an obligation imposed by a contractual agreement:

(a) *Single residential lots.* Any development or improvement made on a single lot that is sold to an adjacent owner or sold for the development of a single-family dwelling unit.

(b) *Home rehabilitations.* Renovation or rehabilitation work performed on a single-family or duplex dwelling unit.

(c) *Repairs.* Work involving restoration or repair of existing materials or replacement of existing materials with the material of like design, color, and quality.

(d) *Required work.* Rehabilitation work determined by the city to be necessary to resolve or correct violations of provisions of any applicable building or housing code.

(e) *Private projects.* Any development or improvement where the only public involvement is financing provided, in whole or in part, by special industrial revenue bonds.

(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-49. Standards for review.

The board shall review matters submitted for its consideration and shall make its recommendation based on the goals of achieving coordinated and harmonious development and promoting the health, safety, order, convenience, prosperity, sustainability, and the general welfare of the city. The board shall consider the compatibility of the proposed project with its surrounding environment, including details related to scale, form, materials, color, landscaping and site appurtenances, as well as the need for improvements that would enhance the surrounding environment. For all public projects, the board shall consider any applicable standards set forth in plans or policies adopted by the city council or by a public body delegated and authorized by the city council to develop such plans or policies, consistency with other public projects, and the overall appearance of and vision for the city's civic facilities.

(Ord. No. 48,780, § 1, 5-24-22)

Sec. 32-50. Staff services.

The staff of the department of city planning shall provide to the board such staff services as are necessary to enable it to consider and act upon the matters within its purview. Such services may include a staff report and recommendation.

(Ord. No. 48,780, § 1, 5-24-22)

Secs. 32-51—32-72. Reserved.

ARTICLE IV. SUNKEN VESSELS AND ABANDONED PIERS, WHARVES AND DOCKS

Sec. 32-73. Removal, disposal or repair of abandoned vessels, hazardous or obstructing docks, wharves, piers, pilings, bulkheads or other structures or vessels.

(a) Whenever the manager of environmental services, or his designee, shall be of the opinion that any vessel has been abandoned, or that any dock, wharf, pier, piling, bulkhead or other structure or vessel might endanger the public health or safety of persons, or might constitute a hazard or obstruction to the lawful use of the waters within or adjoining the city, he shall cause a written notice to be served upon or delivered to the owner of such dock, wharf, pier, piling, bulkhead or other structure or vessel, directing the owner to remove, repair, dispose or secure such property within the time to be specified within such notice.

Any such owner who shall fail to remove, repair, dispose or secure such property within the time specified in such notice shall be guilty of a Class 1 misdemeanor. Each day's default in the removal, repair, disposal or securing shall constitute a separate offense. In addition, a judge hearing the case may order the owner to remove, repair, dispose or secure the dock, wharf, pier, piling, bulkhead or other structure or vessel.

(b) If the owner fails to remove, repair, dispose or secure such dock, wharf, pier, piling, bulkhead or other structure or vessel within the time specified in the notice given pursuant to this section, the manager of environmental services, or his designee, may remove, repair, dispose or secure such property at the expense of the owner, and the expense shall be chargeable to and paid by the owner of such property. Such expense shall be a lien upon such property or upon any parcel of land of which it is a part or to which it is affixed or from which it was removed or upon the owner's real property, until paid and shall be reported by the manager of environmental services, or his designee, to the city treasurer, who shall collect the same in the manner in which city taxes levied upon real estate are authorized to be collected. Such lien shall be recorded in the judgment lien docket book in the circuit court of the city and may be reduced to a personal judgment against the owner. If the identity or whereabouts of the lawful owner is unknown or not able to be ascertained after a reasonable search and after lawful notice has been made to the last known address of any known owner, the city, through its agents or employees, may repair or remove such wharf, pier, piling, bulkhead or other structure or vessel after a notice of publication has been advertised twice in a newspaper of general circulation in the area where such property is located, with the first notice appearing no more than twenty-eight (28) days before and the second notice appearing no less than seven (7) days before proceeding with repair or removal.
(Ord. No. 38,590, § 7, 5-18-99; Ord. No. 49,810, § 1, 12-10-24)

Sec. 32-74. Sinking or abandoning vessels, barges, etc., and floating logs or other loose debris prohibited.

It shall be unlawful and a Class 1 misdemeanor for any person to sink or abandon, or permit or cause to be sunk or abandoned, any vessel, barge, scow or other craft in any waters within or adjoining the city, or to float loose timbers, logs or other debris therein.
(Ord. No. 38,590, § 7, 5-18-99)

Sec. 32-75. Marking and removal of sunken or wrecked vessels, barges, etc.

(a) Whenever any vessel, barge, scow or other craft is wrecked or sunk in any of the waters within or adjoining the city, accidentally or otherwise, the owner of such craft shall immediately mark it with a buoy and a lighted lantern at night, and maintain such markers until such craft has been removed, and it shall be the responsibility of such person to immediately remove the same and to prosecute such removal with diligence. The neglect or failure of the owner to so mark and to remove the craft shall be unlawful and each day such craft remains abandoned and unmarked shall constitute a separate violation of this section.

(b) A violation of this section shall constitute a Class 1 misdemeanor.
(Ord. No. 38,590, § 7, 5-18-99)

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Chapter 32.1

RESERVED*

*Editor's note—Ord. No. 35,507, § 1, adopted May 9, 1989, repealed Ch. 32.1 in its entirety. Said Ch. 32.1 pertained to site plan review and derived from Ord. No. 34,815, § 1, adopted Nov. 24, 1987. The user's attention is directed to Ch. 32.2 for current site plan review provisions.

Chapter 32.2

RESERVED*

*Editor's note—Section 2 of Ord. No. 36,745, adopted Mar. 3, 1992, repealed former Ch. 32.2, which pertained to site plan review and derived from Ord. No. 35,507, § 2, adopted May 9, 1989; Ord. No. 36,171, § 2, adopted Aug. 28, 1990; and Ord. No. 35,628, §§ 3—9, adopted July 5, 1989.

Chapter 33

POLICE*

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***Cross references—**Cemetery personnel as special police, § 12-4; fire-rescue, Ch. 17.1; obstructing justice by threats or force, § 29-5; automatic delivery of prerecorded telephone message to public safety services, § 29-19; public vehicles, Ch. 34.1; police powers of sealers of weights and measures, § 48-1(c).

State law reference—General powers and duties of local police force, Code of Virginia, § 15.1-138.

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ARTICLE I. IN GENERAL

Sec. 33-1. Impersonating officer.

Any person who shall falsely assume or exercise the functions, powers, duties and privileges incident to the office of sheriff, police officer, marshal or other peace officer, or who shall falsely assume or pretend to be any such officer, shall be deemed guilty of a class 1 misdemeanor.
(Code 1958, § 31-33)

Cross reference—Impersonation of city officers and employees generally, § 29-6.

State law reference—Similar provisions, Code of Virginia, § 18.2-174.

Sec. 33-2. Local academy court cost.

The Clerks of the Norfolk Circuit Court, General District Court and Juvenile and Domestic Relations Court are hereby authorized to collect a fee of five dollars ($5.00) from each defendant convicted of a felony, misdemeanor or traffic charge written under either the City Code or the Code of Virginia to be used to support the Norfolk Police Academy and Training Division as permitted by state law. This fee shall be referred to as the "local academy court cost."
(Ord. No. 41,408, § 12, 5-18-04; Ord. No. 45,563, § 21, 5-20-14, eff. 7-1-14)

Secs. 33-3—33-20. Reserved.

ARTICLE II. DEPARTMENT OF POLICE*

DIVISION 1. GENERALLY

Sec. 33-21. Created; composition.

Pursuant to the provisions of section 2(25) and 52 of the Charter, an administrative department of the city is hereby created to be known as the department of police. Such department shall be composed of a chief of police appointed by the city manager and as many other employees as the city council may designate from time to time.
(Code 1958, §§ 2-99, 2-102)

Sec. 33-22. Chief designated department head.

The head of the department of police shall be known as the chief of police.
(Code 1958, § 2-100)

Sec. 33-23. General powers and duties of chief.

The chief of police shall be charged with the administration of the department of police and shall have the immediate direction and control of the police force. In addition to policies transmitted to him by the city manager, the chief of police shall establish such other policies, directives, rules and regulations for the administration and operation of the department as he sees fit.
(Code 1958, § 2-101)

Sec. 33-23.1. Division of emergency 911 communications.

The division of emergency 911 communications shall be responsible for providing daily emergency communications through the management and operation of the 911 call taking and dispatching functions.
(Ord. No. 49,595, § 3, 5-14-24)

Editor's note—Prior to reenactment by Ord. No. 49,595, Ord. No. 43,362, § 1, adopted Feb. 3, 2009, repealed § 33-23.1, which pertained to division of planning and research and derived from Ord. No. 37,322, § 1, adopted June 29, 1993.

Sec. 33-24. Warrant of appointment for members.

Each member of the police force, both rank and file, except the chief of police, shall have issued to him a warrant of appointment signed by the chief of police, in which the date of his commission shall be stated and such warrant shall be his commission. The warrant of appointment of the chief of police shall be issued in accordance with section 60 of the Charter.
(Code 1958, § 36-2.2)

***Charter references—**Authority of city to establish and maintain a police department, § 2(25); division of police of former department of public safety, § 60; police-fire trial board, § 63; policemen appointed by port and industrial authority, § 143(c)(o1).

Cross references—Composition of police-fire trial board, § 2-36; standard work week for police officers, § 2-47; division of animal protection of department of police, § 6-2 et seq.; retirement system, Ch. 37.

Sec. 33-25. Applicants for appointment to be reexamined if on list of eligibles for six months or longer.

No person shall be appointed to the department of police, if he has been on the civil service list of eligibles for such department as long as six (6) months, unless before and at the time of appointment he shall appear before the director of public health, stand a further physical examination and be found by the director of public health to be physically able and fit for the duties of such department. The director of public health, upon application, shall make such examination free of charge to the applicant.
(Code 1958, § 36-7)

Sec. 33-26. Appointments not from civil service lists.

Whenever the city manager shall be unable to obtain persons on the regular civil service eligible lists to fill vacancies existing in the department of police, the civil service commission is authorized, from time to time, upon request of the city manager, to certify a sufficient number of persons to fill such vacancies without regard to the regular eligible lists and without the holding of regular civil service examinations, upon being satisfied that such persons are fit for the duties of the positions to be filled and upon the certificate of the director of public health that they are physically able and fit for the performance of such duties. Upon such appointments by the chief of police, approved by the city manager, such appointees shall enter upon their duties as of such rank as may be authorized in the warrant of appointment or as may be provided by ordinance, and such appointees shall serve under the same conditions and for the same term of service as are now provided by law for all appointees to such department. This section shall not relieve the civil service commission from the duty of holding regular civil service examinations.
(Code 1958, § 36-8)

Charter reference—Civil service commissions, § 110 et seq.

Sec. 33-27. Reserved.

Editor's note—Ord. No. 35,457, § 1, adopted April 11, 1989, repealed §§ 33-27 and 33-29 which pertained to procedure when captain or sergeant loses position or is not reappointed as such without fault on his part and clothing allowance for members, and derived from Code 1958, §§ 36-9, 36-26.

Sec. 33-28. Compensation of members; acceptance of gifts for performance of duty prohibited.

The chief of police and all other members of the department of police shall be paid such salaries and at such periods as may be prescribed, from time to time, by the council.

Salaries shall be paid by the city treasurer on a payroll certified by the chief of police and audited by the city auditor. No member of the department of police shall receive any other compensation for his services in the department, from the city or from any person, nor shall any such member accept any gift from any person for the performance of any duty connected with his position.
(Code 1958, § 36-5)

Sec. 33-29. Reserved.

Note—See the editor's note at § 33-27.

Sec. 33-30. Arming of department.

The chief of police may arm the department of police of the city in such a manner as he may think proper to preserve the peace.
(Code 1958, § 36-2)

Sec. 33-31. Member's equipment generally.

(a) All articles furnished by the city to any member of the department of police shall be and remain the property of the city and shall be receipted for by such member at the time he receives the same. When any such member leaves the service of the department for any cause, he shall surrender such articles to the chief of police and the chief shall be held personally responsible for the return of such articles before such member receives his final pay.

(b) Any articles furnished by the city to members of the department of police shall be for the exclusive use of the member to whom furnished, shall be used only by such member

and shall be retained in his possession and he shall be responsible for any loss thereof or damage thereto that occurs by other than ordinary use and shall be accountable to the chief of police therefor.
(Code 1958, §§ 36-3, 36-23, 36-24)

Sec. 33-32. Members' uniform and badge.

(a) The chief of police shall prescribe the uniform and badge for members of the police department. When so prescribed, the uniform and badge shall be the official uniform and badge for members of the police department.

(b) When the chief of police has prescribed an official uniform and badge for the use of the police department, as provided in this section, no other person in the city shall wear any uniform or badge identical with such official uniform and badge, or so similar in appearance as to be likely to deceive the casual observer. Any person violating the provisions of this subsection shall be guilty of a Class 2 misdemeanor.
(Code 1958, §§ 31-78.1, 36-2.1)

Charter reference—Unauthorized persons wearing police uniform or badge subject to penalty prescribed by council, § 60.

Sec. 33-33. Reserved.

Sec. 33-34. Effect of suspension of member.

Whenever any sworn member of the department of police is suspended as provided for in section 63 of the Charter, such member shall not exercise any of the duties of his office or receive the emoluments thereof during such period of suspension, except that such member will be compensated in accordance with the regulations for the administration of the compensation plan of the city.
(Code 1958, § 36-14; Ord. No. 35,457, § 2, 4-11-89)

Sec. 33-35. Report to council when officer killed or disabled in line of duty.

If any police officer is killed, wounded or otherwise disabled while in the act of discharging his duty and as a consequence thereof, the chief of police shall submit a complete report of the circumstances thereof to the council, for such special action thereon as the council may, at its option, decide to take.
(Code 1958, § 36-4)

Sec. 33-36. Secret service agents.

The city manager is hereby authorized to employ, from time to time or continuously, such number of persons to be used for secret service work in the department of police as the city manager shall determine. The city manager shall issue a warrant of appointment to each such person, to serve during and at the pleasure of the city manager and subject to such rules and regulations as may be prescribed by him.

Unless otherwise provided, such persons shall receive the same salary as is paid to police officers, payable in the same manner.
(Code 1958, § 36-11)

Sec. 33-37. Substitute officers.

The chief of police shall, with the approval of the city manager, select, in addition to the regular force of the department of police authorized by law, from a qualified list other persons who shall be qualified to act as police officers for temporary periods and who shall be designated as substitutes and shall be placed on the roll of the department of police. In case of absence, sickness or other disqualification of any regular police officer, it shall be the duty of the chief of police to supply his place with a substitute, and such substitute, when on duty, shall be vested with the same powers, be subject to the same regulations and orders and be entitled to the like pay as a regular police officer. Any such substitute shall be entitled to receive the pay of the police officer for whom he may thus be temporarily substituted; provided, that the chief of police shall certify it to be due him.
(Code 1958, § 36-6)

Sec. 33-38. Special police—Generally.

(a) The chief of police shall have the authority to confer upon qualified persons the privilege of acting as special police officers, and he shall sign and issue to such persons a warrant of appointment for a specified time, which shall be issued only to persons who satisfactorily meet the following criteria:

(1) Are persons of established good moral character who are over the age of eighteen (18) years;

(2) Are free from any felony convictions;

(3) Are free from any misdemeanor convictions involving crimes of violence, crimes of a sexual nature, or larceny within ten (10) years from the date of application;

(4) Are free from any misdemeanor convictions to include threats of assaults within five (5) years from the date of application;

(5) Are free from any restraining or protective orders involving acts of violence, threats of assaults or the use of illegal drugs; and

(6) Have satisfactorily completed the Norfolk Police Department's special police officer training course.

No person shall be deemed qualified while a charge for an offense enumerated above is pending adjudication. The privilege of acting as a special police officer shall be exercised only under the direction and control of the chief of police.

(b) The chief of police shall issue to all persons appointed under this section appropriate special police badges, which he shall cause to be returned when the appointments expire or are revoked. Possession, sale or exchange of such badge, without authority, shall be unlawful.

(c) All special police officers, before entering upon the duties of such office, shall take and subscribe an oath, before some person authorized to administer oaths, that he will faithfully, without fear or favor, perform the duties of his office, and such oath shall be filed and preserved with the records of the police department.

(d) Each special police officer appointed in accordance with this section shall deliver to the chief of police, along with the aforesaid oath, a bond, with corporate surety, in the amount of one thousand dollars ($1,000.00), conditioned upon the faithful performance of his duties.

(e) The requirements of subsection (d) notwithstanding, no city employee appointed special police officer pursuant to this section shall be required to post a bond, where such appointment is in furtherance of the employee's official duties.

(f) Any person violating any of the provisions of this section shall be guilty of a class 3 misdemeanor.

(Code 1958, § 36-16; Ord. No. 38,733, § 1, 5-13-97; Ord. No. 42,319, § 1, 6-20-06)

Sec. 33-39. Same—Employees operating drawbridges.

The chief of police is hereby authorized to appoint, as special police officers for service only on drawbridges, the city employees designated to operate the draw spans and to invest such employees with authority to apprehend all persons found violating any provision of section 9-14 of this Code or acting in a disorderly manner on such bridges. All such appointments shall be made by warrant and shall continue during the pleasure of the chief of police. Each person so appointed shall be furnished with a regulation police officer's whistle and a badge, which shall be worn by such person at all times while on duty.

(Code 1958, § 36-17)

Sec. 33-40. Uniformed school crossing guards.

(a) The city manager is authorized to employ uniformed school crossing guards as members of the department of police on a part-time basis. Uniformed school crossing guards shall perform such other duties at such other times and for such periods of time as may be prescribed by the chief of police, with the approval of the city manager.

(b) The city manager is authorized to furnish, at the cost of the city, proper uniforms and equipment for each school crossing guard, which are to be worn and carried by such guard at such times as may be prescribed by the chief of police. All articles so furnished such guards by the city shall be for the exclusive use of the person to whom furnished, shall not be used or permitted to be used by any other person, shall be and remain the property of the city and shall be surrendered to the city when the services of such person are terminated.

(c) The conditions of employment, rights, benefits and limitations of school crossing guards employed under this section shall be as set forth in article II, division 4, of chapter 2 of this Code.

(Code 1958, § 36-18; Ord. No. 29,645, § 1, 9-26-78; Ord. No. 41,357, § 4, 4-6-04)

Sec. 33-40.1. Authority of chief to deputize persons to direct traffic in certain circumstances.

(a) Pursuant to section 46.2-1310 of the Code of Virginia (1950), as amended, the chief of police is hereby authorized upon the written request of any private corporation to deputize persons in that corporation's employ over the age of eighteen (18) years for the limited purpose of directing traffic in the vicinity of that corporation's facilities in accordance with section 46.2-1309 of the Code of Virginia (1950), as amended, to alleviate heavy traffic or congestion. The chief shall have sole discretion to determine whether the traffic or congestion warrants his action.

(b) Such persons shall not be employees, volunteers, or uniformed school crossing guards of the City of Norfolk and their deputization shall be contingent upon the requesting corporation executing an agreement with the city to hold the city harmless from any liability for injuries to their employees or to persons or property caused by any action or inaction of their employees when directing traffic.

(c) Before engaging in directing traffic, such persons shall undergo any training the chief of police determines necessary to fully acquaint them with the techniques of traffic control, the provisions of this section, as amended, and the provisions of Virginia Code §§ 46.2-1310 and 46.2-1309, as amended.

(d) The chief shall provide such persons with a distinctive uniform, safety vest, or white reflectorized belt which crosses both the chest and back above the waist, which they must wear at all times while engaged in directing traffic pursuant to this section and Virginia Code §§ 46.2-1310 and 46.2-1309, as amended.
(Ord. No. 48,373, § 1, 5-11-21)

Sec. 33-41. Police escorts of funerals.

The department of police shall provide police escorts for funerals. For these services, a fee shall be charged as follows:

(1) Funeral escort for the first hour or any portion thereof (per officer)	$30.00
(2) Funeral escort for each additional half hour or any portion thereof (per officer).	15.00

(Code 1958, § 36-18.1; Ord. No. 37,242, § 1, 5-18-93; Ord. No. 37,330, § 1, 7-13-93)

State law reference—Authority for above section, Code of Virginia, § 46.1-224.1.

Sec. 33-42. Storage and disposal of motor vehicles in possession of department as evidence.

(a) It shall be the duty of the city manager, or his designee, to store, in the city vehicle compound, any motor vehicle seized by or coming into the hands of the department of police as evidence.

(b) The owner of any motor vehicle stored as provided in this section shall be responsible for any towing or storage charged provided by law.

(c) Any stored motor vehicle not claimed within the time period established by law after notice has been given in accordance with Code section 25-595, may be disposed of pursuant to the provisions in Code sections 25-595 and 25-596.

(d) Notwithstanding the above provisions, the city manager, or his designee, is authorized to release from the city vehicle compound, without the payment of towing and storage charges, any motor vehicle stored as provided in this section, whenever he deems it proper to do so.
(Code 1958, §§ 29-732—29-735; Ord. No. 35,457, § 2, 4-11-89)

Sec. 33-43. Charges for certain reports and services.

(a) Unless otherwise prohibited by law, the department of police is hereby authorized to furnish photostatic copies of accident reports, offense reports (front only), photographs of motor vehicle accidents (only after all criminal charges are disposed of by court), and other photographs, to make record checks and reports (local record only), take fingerprints of individuals on request, to make concealed weapon record checks, to process special officer commissions, allow offense reports to be viewed, and to provide copies of other records required by the Virginia Freedom of Information Act and by subpoena duces tecum.

(b) The reports of accidents and photographs shall be furnished only to any person involved or injured in the accident or his attorney or any authorized representative of any insurance carrier reasonably anticipating exposure to civil liability as a consequence of the accident. The furnishing of other reports and information, subject to the requirements of the Virginia Freedom of Information Act and subpoena duces tecum, shall be permitted or allowed only to persons having a legitimate interest therefor, and the chief of police or his agent may refuse any of the above records or services to any person he has reason to believe may use same for other than legitimate purposes.

(c) The above services shall be furnished only between the hours of 9:00 a.m. and 3:00 p.m. Monday through Friday. The above services will not be furnished on Saturdays, Sundays and holidays.

(d) For the above services, a fee may be charged as follows:

(1) *Production of records:* A fee may be charged at a rate not to exceed the actual cost incurred to search for, access, duplicate, and supply the requested records.

(2) *Processing services:* Fingerprinting of individuals on request ($10.00); and concealed weapon applications ($30.00).

(e) Reserved.

(f) The aforesaid charges shall be collected when the service is rendered and a receipt shall be given. All sums collected shall be turned over to the city treasurer in the same manner as other city funds.

(Ord. No. 30,959, § 1, 1-27-81; Ord. No. 31,385, § 1, 10-20-81; Ord. No. 31,997, § 1, 10-19-82; Ord. No. 32,457, § 1, 7-19-83; Ord. No. 35,057, § 1, 5-24-88; Ord. No. 35,457, § 2, 4-11-89; Ord. No. 37,240, § 1, 5-18-93; Ord. No. 38,396, § 1, 5-28-96; Ord. No. 40,532, § 1, 11-27-01; Ord. No. 42,590, § 1, 3-6-07; Ord. No. 45,084, § 21, 5-14-13, eff. 7-1-13)

Editor's note—Section l of Ord. No. 30,959, enacted Jan. 27, 1981, as amended, added § 36-18.2 to the 1958 Code and has been designated by the editor as § 33-43 hereof.

Sec. 33-43.1. Public surveillance cameras.

(a) *Authority to erect.* The resident(s) of any Project Focus Neighborhood or the chief of police may petition for the installment of public surveillance cameras on city property within that neighborhood. The city manager in her capacity as the director of public safety, pursuant to section 2-33.1 of the Norfolk City Code, 1979, as amended, hereinafter "director", is hereby authorized to act upon such petitions, following the procedures set out in this section. Once such camera(s) are installed, the chief of police under the guidance of the director shall be solely responsible for their use.

(b) *Procedures for installment.* Camera(s) shall only be installed pursuant to all the following procedures:

(1) A resident or residents of the specific Project Focus Neighborhood where the camera(s) is proposed to be installed or the chief of police must petition for the installment of the camera(s);

(2) The director shall hold a community meeting comprised of residents of the affected Project Focus Neighborhood to discuss the proposed installation of the camera(s) before a formal plan for installation is developed;

(3) The director, working with other city departments as needed, shall after such meeting develop an official, formal, written plan for installing the camera(s) based on the petition and the community meeting, which shall include specific fact findings establishing the need for such camera(s) and identifying appropriate locations for such camera(s);

(4) The director shall then schedule and hold a public hearing on the plan, notifying the public of the date and time thereof beforehand; and

(5) At any time after the public hearing, including immediately thereafter, the council may act to adopt the plan by formal resolution.

(c) *Protection of privacy.* Cameras shall be installed and used so as not to violate the constitutional, statutory or regulatory rights of the public. The video and audio technology associated with these cameras shall not be used to observe the public under circumstances where an individual has a reasonable expectation of privacy. Each camera shall be placed so as to be visible to the public and shall be accompanied by signs clearly stating that the public area surrounding each camera is under police surveillance. Cameras shall not be used to capture private conversations even if they are technically able to do so. Cameras shall not be used to capture images on private property under circumstances where the public has a reasonable expectation of privacy. Also, no image of a person recorded by these cameras shall be used for advertising or for the purposes of trade without the express written consent of such person, or if dead, of the surviving consort and if none, of the next of kin, or if a minor, the written consent of his or her parent or guardian, as required by Code of Virginia, § 8.01-40, as amended.

(d) *Administrative policies.* The director is hereby authorized, working in conjunction with the chief of police, to adopt any policies necessary to carry out the purposes of this section, but not inconsistent with it, in the form of police department general and special orders. Said policies shall include provisions to protect the constitutional, statutory and regulatory rights of the public, to address any improper use of these cameras by officers and employees of the city and to review the continued need for them once installed.

(Ord. No. 42,931, § 1, 12-4-07)

Secs. 33-44—33-60. Reserved.

DIVISION 2. DISPOSAL OF UNCLAIMED PROPERTY IN CUSTODY OF DEPARTMENT*

Sec. 33-61. General duty of chief.

It shall be the duty of the chief of police to properly dispose of all monies, goods, wares and merchandise remaining unclaimed, for a minimum of sixty (60) days, in the custody of the department of police, in accord with the provisions of this division; however, all property referred to in section 25-378 of the City Code may be disposed of in accordance with the provisions of that section.

(Code 1958, § 36-15; Ord. No. 47,086, § 1, 12-12-17)

Sec. 33-62. Notice prior to disposal.

Prior to the disposal of any property under this division, the chief of police, or an agent authorized by the chief of police, must do all of the following:

(a) Make reasonable attempts to notify the rightful owner of the property that it is in the possession of the city;

(b) Obtain from the attorney for the commonwealth a written statement advising that the item is not needed in any criminal prosecution;

(c) Give notice by advertising twice, in a newspaper of general circulation in the locality, that there will be a public display and sale of unclaimed personal property to the highest bidder, with the first notice appearing no more than twenty-eight (28) days before and the second notice appearing no less than seven (7) days before the public display and sale of the unclaimed personal property, which notice must describe generally the property, the date, time, and place of the sale, and must state that, if the property is not sold, it may be otherwise appropriately disposed of; and

(d) Make the property available for public viewing at the sale.

(Code 1958, § 36-15; Ord. No. 49,810, § 2, 12-10-24)

Sec. 33-63. Sale—Generally.

On the day and at the place specified in the notice referred to in section 33-62, all property remaining unclaimed, and not otherwise

*__Cross references—__Disposition of unclaimed bicycles in possession of department of police, § 8-4; sale of unclaimed motor vehicles, § 25-596.

appropriately disposed of, except money, shall be sold at auction by the chief of police or under his direction.
(Code 1958, § 36-15)

Sec. 33-64. Same—Property which is perishable or expensive to keep.

Notwithstanding any other provision of this division, if any goods, wares, merchandise or chattels, which are of a perishable nature or which are expensive to keep, shall at any time remain unclaimed in the custody of the department of police, it shall be lawful for the chief of police to sell the same at public auction, at such time and after such notice as to him shall seem proper.
(Code 1958, § 36-15)

Sec. 33-65. Same—Disposition of proceeds.

Immediately after the sale of any property under this division, the chief of police shall pay to the city treasurer the proceeds of such sale, after deducting the expense of the sale.
(Code 1958, § 36-15)

Sec. 33-66. Confiscation for city use.

Notwithstanding any other provision of this division, the chief of police may, as he deems proper, confiscate for city use any property which is utilizable and which remains unclaimed in the custody of the department of police on the day specified in the notice published in accord with section 33-62.
(Code 1958, § 36-15)

Sec. 33-67. Alcoholic beverages.

Notwithstanding any other provision of this division, all alcoholic beverages in the custody of the department of police shall be either destroyed or delivered to the state alcoholic beverage control board.
(Code 1958, § 36-15)

Sec. 33-68. Narcotics.

Notwithstanding any other provision of this division, the chief of police may, upon court order, destroy all narcotics in the custody of the department of police.
(Code 1958, § 36-15)

Sec. 33-69. Unclaimed firearms or other weapons in the possession of sheriff or police.

Notwithstanding any other provision of this chapter, any unclaimed firearms and other weapons which have been in the possession of law enforcement agencies for a period of more than sixty (60) days may be destroyed. For the purposes of this section, "unclaimed firearms and other weapons" shall be defined the same as "unclaimed personal property."

At the discretion of the chief of police or his duly authorized agent, unclaimed firearms and other weapons may be destroyed by any means which render the firearm and other weapons permanently inoperable. Prior to the destruction of such firearms and other weapons, the chief of police or his duly authorized agent shall comply with the notice provisions of section 33-62.

The chief of police or his duly authorized agent, in their discretion, may confiscate unclaimed firearms and other weapons or may exchange said property for more suitable police weapons or supplies for use by the department of police, whichever the chief of police may deem proper.
(Code 1958, § 36-15; Ord. No. 36,290, § 1, 12-18-90)

Cross reference—Weapons, Ch. 47.

Sec. 33-70. Worthless property.

Notwithstanding any other provision of this division, if any goods, wares, merchandise, clothing or chattels are found to be worthless and at any time remain unclaimed in the custody of the department of police, the chief of police may dispose of such items in any manner which to him may seem proper.
(Code 1958, § 36-15)

Sec. 33-71. Unclaimed money to be paid to city treasurer.

All money remaining unclaimed in the custody of the department of police on the day specified in the notice published in accord with section 33-62 shall be paid to the city treasurer by the chief of police.
(Code 1958, § 36-15)

ARTICLE IIA. AUXILIARY POLICE

Sec. 33-72. Appointment of auxiliary police officers.

In accordance with Virginia Code section 15.1-159.2 et seq., as amended, the city manager is hereby authorized to appoint auxiliary police officers, as he deems necessary.
(Ord. No. 36,755, § 1, 3-10-92)

Sec. 33-73. Qualifications; manner of selection; training; uniforms and equipment.

The city manager is authorized and directed to prescribe and promulgate rules and regulations governing the qualifications, manner of selection, training, uniforms and equipment of auxiliary police officers. Such rules and regulations shall require that all auxiliary police officers satisfy all training requirements established by or pursuant to the laws of the commonwealth, and that their qualifications, manner of selection, training and equipment, to the greatest extent practical, be comparable to that of full-time law enforcement officers. The badges of auxiliary police officers shall be distinguishable from those of full-time law enforcement officers.
(Ord. No. 36,755, § 1, 3-10-92)

Sec. 33-74. Organization; terms and duration of service; status; compensation.

The city manager is authorized and directed to prescribe and promulgate rules and regulations for the organization and service of auxiliary police officers. Such officers shall have the status of volunteers, their appointments shall be revocable at the will of the city manager, and they shall receive no compensation or benefits except workers' compensation coverage.
(Ord. No. 36,755, § 1, 3-10-92)

Sec. 33-75. Authority; powers; immunities.

Auxiliary police officers appointed by the city manager, when called into service in accordance with rules and regulations prescribed and promulgated by the city manager, shall have all the powers and authority and all the immunities of

full-time law enforcement officers, if such officers have met the training requirements established by or pursuant to the laws of the commonwealth.
(Ord. No. 36,755, § 1, 3-10-92)

Secs. 33-76—33-79. Reserved.

ARTICLE IIB. POLICE CADETS

Sec. 33-80. Police cadet program.

(a) The city manager is hereby authorized to employ individuals as police cadets, upon the recommendation of the chief of police, to be assigned to the department of police and to serve in designated nonpermanent employment capacities as part of a program designed to prepare them for appointment as police officers, subject to the regulations and jurisdiction of the civil service commission.

(b) The city manager, upon recommendation of the chief of police, is authorized and directed to prescribe and promulgate rules and regulations governing the qualifications, manner of selection, training, uniforms, equipment and service of police cadets, which such regulations shall comport with all federal, state and local laws.

(c) Persons employed as police cadets shall be designated in a specific nonpermanent employment status established by sections 2-84 through 2-111 of this Code, and the terms of their employment shall be governed by the respective ordinances regulating their designated employment status.
(Ord. 37,772, § 1, 9-27-94)

Secs. 33-81—33-85. Reserved.

ARTICLE III. REPORTS, PHOTOGRAPHING, ETC., OF FELONS

Sec. 33-86. Violations of article.

Any person violating any provision of this article shall be guilty of a class 2 misdemeanor.
(Code 1958, § 36-37)

Sec. 33-87. Exemptions from article.

Nothing in this article shall be deemed or construed to apply to any person, as to any crime of which he has been convicted and for which he has received a full and unconditional pardon, or to any person who is on probation under the laws of the state, or whose probation period under the laws of the state has expired, without any revocation of such probation having bean made.
(Code 1958, § 36-36)

Sec. 33-88. Reports generally.

(a) Any person who has been convicted of any offense punishable as a felony in this state or elsewhere, who comes into the city from any point outside of the city and remains in the city for a period exceeding twenty-four (24) hours, shall report to the chief of police, within twelve (12) hours after his arrival within the city, and shall furnish to the chief of police a statement, in writing, signed by such person and giving the following information:

(1) His true name and all aliases which he has used or under which he may have been known.

(2) A full and complete description of his person.

(3) The kind, character and nature of each crime of which he has been convicted.

(4) The place where such crimes were committed and the place of conviction of the same.

(5) The name under which he was convicted in each instance and the date thereof.

(6) The name, if any, and the location of each prison, reformatory, jail or other penal institution in which he was confined, or to which he was sentenced.

(7) The location and address of his residence, stopping place, living quarters or place of abode in the city, and each one thereof, if more than one; or the address or location of his intended residence, stopping place, living quarters or place of abode in the city, and each one thereof, with a description of the character of each such place,

whether a hotel, apartment house, dwelling house or otherwise, giving the street number thereof, if any, or such description of the address or location thereof as will so identify the same as to make it possible of location, and the length of time for which he expects or intends to reside within the territorial boundaries of the city.

(b) Every person residing in the city, who is convicted outside the city of any offense punishable as a felony in this state or elsewhere, shall, within twenty-four (24) hours after his return to the city, report to the chief of police and furnish to the chief a statement conforming to subsection (a) of this section.

(c) No person whose latest conviction occurred at least ten (10) years prior to his arrival in the city shall be required to comply with this section.
(Code 1958, §§ 36-30—36-32)

Sec. 33-89. Photographing and fingerprinting.

At the time of making the report required by section 33-88, the person making the same shall be photographed and fingerprinted by the chief of police.
(Code 1958, § 36-30)

Sec. 33-90. Report of change of address.

In the event that any person required to comply with section 33-88 changes his place of residence, stopping place or living quarters to any new or different place within the city, other than any place last shown in a report to the chief of police, he shall, within twenty-four (24) hours after making such change, notify the chief of police, in a written and signed statement, of such change of address, and shall furnish, in such statement, his new address.
(Code 1958, § 36-33)

Sec. 33-91. False reports.

It shall be unlawful for any person required by any provision of this article to furnish any report to furnish, in such report, any false or fictitious address, or any address other than a true address or intended address, or to furnish, in making any such report, any false, untrue or misleading information or statement relating to any information required by any provision of this article to be furnished.
(Code 1958, § 36-33)

Sec. 33-92. Filing of reports, photographs and fingerprints and inspection thereof.

The statements, photographs and fingerprints provided for in this article shall at all times be kept by the chief of police in a file separate and apart from other files and records maintained and kept by the department of police and shall not be open to inspection by the public or by any person other than a regular member of the department of police; provided however, that any such photograph or duplicates thereof may be exhibited to persons other than police officers of the city, for the purpose of assisting in identifying perpetrators of any crime.
(Code 1958, § 36-34)

Sec. 33-93. Furnishing copies of reports, photographs and fingerprints to other law-enforcement agencies.

Copies of statement, photographs and fingerprints referred to in this article may be transmitted to the sheriff of any county of the state, to the head of any department of the state engaged in the enforcement of any criminal law of the state, or to the head of any federal law-enforcement agency, or to any sheriff or chief of police of a municipality, or the head of any other law-enforcement agency of any state or territory outside the state, when request is made in writing by such sheriff or other head of a law-enforcement agency asking for the record of a certain person named therein, or for the record of a person whose photograph or fingerprints reasonably correspond with photographs or fingerprints submitted with such request. Such written request must state that such record is deemed necessary for the use of such law-enforcement officer or agency in or concerning the investigation of any crime, or any person who is accused of committing a crime, or

any crime which is reported to have been committed. Such request must further state that the record will be used only for such purpose.
(Code 1958, § 36-35)

ARTICLE IV. ALARM SYSTEMS

Sec. 33-94. Purpose.

(a) The purpose of this article is to reduce the number of false alarms and thereby protect the public safety by minimizing unnecessary use of city law enforcement and emergency service resources.

(b) This article pertains to burglary, panic and holdup alarm system businesses, alarm systems, alarm system users, establishes permit and registration procedures and service fees, and provides for a system of administration.
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-95. Definitions.

(a) The term "alarm company operator" means and includes any business which engages in the installation, maintenance, alteration, servicing, repairing, replacing or monitoring of a burglar, panic or holdup alarm system, or which causes any of these activities to take place in the City of Norfolk.

(b) The term "alarm system" means an assembly of equipment and devices installed in or for commercial or residential premises and arranged to signal the presence of a hazard requiring urgent attention to which police are expected to respond. Such alarm system may be installed, maintained, altered or serviced by an alarm company operator in commercial or residential premises. In this article, the term "alarm system" shall refer to all systems which are designed to attract the attention and response of the city police department, including alarm bells, sirens, horns and strobe lights which are audible or visible beyond the lot lines of the protected property premises.

(c) The term "alarm system user" means any person on whose premises an alarm system is maintained within the city except for alarm systems on motor vehicles or proprietary systems. If, however, an alarm system on a motor vehicle is connected with an alarm system at a premises, the person using such system is an alarm system user.

(d) The term "automatic dialing device" refers to an alarm system which automatically sends over regular telephone lines, by direct connection or otherwise, a prerecorded voice message or coded signal indicating the existence of the emergency situation that the alarm system is designed to detect. Such a system shall not be connected to the city emergency services facility.

(e) The term "chief of police" means the chief of the Norfolk police department, or his designee.

(f) The word "city" means the City of Norfolk, Virginia.

(g) The term "city attorney" means the Norfolk city attorney or his designee.

(h) The term "coordinator of emergency services" means the director of the city's emergency operations center or his designee.

(i) The term "direct line" means a telephone ring-down line leading directly from an alarm company central station to the city emergency services facility that is used only to report emergency signals on a person-to-person basis.

(j) The term "false alarm" means any security alarm signal communicated to the police department which is not in response to actual or threatened criminal activity requiring immediate police response. False alarms include negligently or accidentally activated signals; signals which are the result of faulty, malfunctioning or improperly installed or maintained equipment; signals which are purposely activated to summon the police in nonemergency situations; and alarm signals for which the actual cause is not determined. False alarms shall not include signals activated by unusually severe weather conditions or other causes which are identified and determined by the chief of police to be beyond the control of the alarm system user.

(k) The term "local alarm system" refers to a signaling system which when activated causes an audible and/or visual signaling device to be activated in or on the premises within which the system is installed.

(l) The term "person" means any person, firm, partnership, association, corporation, company or organization of any kind.

(m) The term "proprietary system" means an alarm system sounding and/or recording alarm and supervisory signals only at a control center located within the protected premises, the control center being under the supervision of the proprietor of the protected premises. If a proprietary system includes a signal line connected directly or by means of an automatic dialing device to a central station, modified central station or answering service, it thereby is an "alarm system" other than proprietary as defined in this article.

(n) The term "police" or "police department" means the Norfolk police department or any authorized agent thereof.
(Ord. No. 36,288, § 1, 1211-90)

Sec. 33-96. Alarm system user registration and permits.

(a) Every alarm system user shall, within sixty (60) days after the effective date of this article, obtain an alarm system user permit from the city, for the operation of such alarm system. If the alarm system is to be installed or maintained by an alarm company operator, the alarm company operator may obtain the required permit for the alarm system user. The person applying for the permit required in this section shall state on a permit application form provided by the city the following: name, address of the commercial or residential premises in or for which the alarm system will be installed, telephone number of the alarm system user, the type of alarm system (local or monitored), name of the alarm company operator selling or leasing the new or existing alarm system equipment or services and the names, addresses and telephone numbers of at least two (2) other persons who can be reached at any time, day or night, and who are authorized to respond to an alarm signal and who can open and represent the premises in which the system is installed for reporting and investigative purposes. It shall be the responsibility of the alarm system user to notify the city in writing of any subsequent changes in the information provided on the permit application.

Upon approval by the chief of police of the permit application, the permit shall be issued to the alarm system user.

(b) The information contained in the alarm system permit application required by this section and other information received by the chief of police or the coordinator of emergency services through correspondence or communications with an alarm system user or an alarm company operator shall be securely maintained and restricted to inspection only by the certain officers or city employees specifically assigned the responsibility for handling any processing alarm system user permits in the course of official duties. The release of any information contained in the alarm system permit application or related communications or correspondence to another person for any unlawful purpose shall constitute a class 2 misdemeanor.

(c) Any alarm system user who operates or allows an alarm system to be operated without first obtaining a permit as required by this section, or who, after having a permit revoked, operates or allows the system to be operated, shall be in violation of this article, and subject to fine, as provided by section 33-105. The owner of the alarm system to whom the alarm system user permit is issued shall be the person held in violation.
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-97. Duties of alarm system users.

(a) Alarm system users shall instruct employees, tenants or others who may have occasion to activate an alarm that alarm systems are to be activated only in emergency situations to summon an immediate police response and shall instruct as to the operation of the alarm system, including setting, activation, deactivation and resetting of the alarm. All instructions pertaining to alarm systems and procedures shall be in written form, suitable for distribution and shall be available for inspection by representatives of the police

department. The alarm system user shall be responsible for maintaining the alarm system in proper working order.

(b) An alarm system user or person authorized and capable of deactivating the alarm, who allows an alarm to continue to emit an audible signal for thirty (30) minutes after notification of the alarm commencing to emit such signal shall be guilty of a class 4 misdemeanor.
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-98. Deliberate false alarms.

Any person who intentionally or deliberately and without just cause activates an alarm system in a nonemergency situation shall be deemed guilty of a class 2 misdemeanor. Nothing herein contained shall apply to the periodic testing of alarms after prior coordination with and approval of the coordinator of emergency services. Testing the alarm system without such prior coordination and approval is unlawful.
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-99. Service fees for false alarms.

Notwithstanding the penalties provided for in section 33-98, the following provisions shall also apply to false alarms:

(a) Schedule of fees. The third false alarm originating from any premises and to which police are dispatched or respond within six (6) consecutive months will result in a service fee being imposed by the city upon the alarm system user which fee must be paid within thirty (30) days after billing. The service fee shall be twenty-five dollars ($25.00) for the third false alarm and forty-five dollars ($45.00) for the fourth false alarm and each subsequent false alarm. Fees shall be collected pursuant to section 33-100.

(b) The city will notify an alarm system user upon occurrence of the fifth false alarm within a six-month period that the user's alarm system must be inspected by a registered alarm company operator to identify any problems or defects with the alarm system. The choice of alarm company operator and cost of the inspection are the responsibility of the alarm system user. The alarm company operator shall provide a copy of a report of inspection to the chief of police. The report shall outline the problems or defects found and the actions taken or needed to correct such problems or defects. If no problems or defects are noted, the report will certify the system as operable. If the system is certified as operable, it will be presumed that the false alarm(s) occurred through alarm system user error. The user must then be retrained and/or provide an alarm operator's training program for its employees, tenants and all others having access to the system. A report of this training must be filed by the alarm system user with the chief of police.
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-100. Payment of fees; revocation of permit for failure to pay fees.

(a) The city shall on the last day of each month certify to the city treasurer the name of the alarm system user, the address from which false alarms subject to penalty emanated and the amount due the city. The city shall cause billing to be sent and shall in turn notify the city attorney when any account is more than thirty (30) days in arrears.

(b) All service fees assessed against the alarm system user shall be due and owing to the city treasurer. In the event legal action is necessary to collect the service fees, the alarm system user shall be required to pay the service fees and any and all legal fees, attorney's fees and court costs required to collect such monies.

(c) The failure of a permit holder to pay any outstanding service fees and/or expenses of collection shall constitute grounds for the revocation of the alarm system users permit by the chief of police. The continued operation of an alarm system after notification that the permit has been revoked shall constitute a class 4 misdemeanor, and each day of continued operation of the alarm system shall constitute a separate offense.

(d) An alarm system user permit that has been revoked pursuant to subsection (c) of this section may be reinstated by the chief of police upon payment of all outstanding service fees and expenses of collection plus a reinstatement fee of one hundred dollars ($100.00).
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-101. Telephone dial alarm systems regulated.

It shall be unlawful for any person to install, sell, lease or use, or cause or allow to be installed, sold, leased or used an automatic telephone dialing device or system which is set or programmed to directly dial, call or in any other manner make direct contact with any telephone line or radio circuit of the city emergency services facility or the police department. A violation of this section shall constitute a class 1 misdemeanor.
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-102. Alarm company operator registration.

(a) Every alarm company operator shall, within thirty (30) days after the effective date of this article, register with the city on forms provided by the city. The application for registration shall include name of the alarm company operator, names of owners and officers and the services offered by the alarm company operator. It shall be the responsibility of the alarm company operator to notify the city in writing of any subsequent changes in the information provided on the application for registration.

(b) Registration applications shall be accompanied by a nonrefundable fee of thirty dollars ($30.00) to cover the costs of processing the application and investigating the applicant. The registration must be renewed annually thereafter at an annual fee of twenty dollars ($20.00).
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-103. Duties of alarm company operators.

(a) No alarm system shall be installed, monitored, altered, serviced or repaired to a level of operation by an alarm company operator unless the alarm system user has complied with the registration and permit provisions of section 33-96.

(b) Every alarm company operator that installs, monitors, alters, services or repairs an alarm system after the effective date of this article shall certify on the permit required in section 33-96 that the alarm system user has been instructed in the proper use and operation of the alarm system.
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-104. Exceptions.

This article shall not apply to any alarm system used, operated or installed in any premises owned, leased, occupied or under the control of the city or its school board or any officer, agent or employee of the aforesaid governmental agencies while acting or employed in their official capacity. This article shall not apply to facilities owned or operated by federal or state governments.
(Ord. No. 36,288, § 1, 12-11-90)

Sec. 33-105. Penalties.

Except as otherwise provided, any person who violates any section of this article shall be guilty of a class 3 misdemeanor.
(Ord. No. 36,288, § 1, 12-11-90)

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Chapter 33.1

PROCUREMENT*

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*__Editor's note—__Ord. No. 33,095 added Ch. 11.1 to the Code; in organization and, in some respects, style, it is modeled on the equivalent provisions of the Code of Virginia, §§ 11-35—11-80.

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ARTICLE I. IN GENERAL

Sec. 33.1-1. Purpose.

To the end that the city obtain high-quality goods and services at reasonable cost, that all procurement procedures be conducted in a fair and impartial manner with avoidance of any impropriety or appearance of impropriety, that all qualified vendors have access to public business and that no bidder or offeror be arbitrarily or capriciously excluded, it is the purpose and intent of this chapter that competition be sought to the maximum feasible degree, that procurement procedures involve openness and administrative efficiency, that the rules governing contract awards be made clear in advance of the competition, that specifications reflect the procurement needs of the city rather than being drawn to favor a particular vendor, and that the city and vendor freely exchange information concerning what is sought to be procured and what is offered. The city may consider best value concepts when procuring goods and nonprofessional services, but not construction or professional services. The criteria, factors, and basis for consideration of best value and the process for the consideration of best value shall be as stated in the procurement solicitation.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 43,223, § 1, 9-9-08)

Sec. 33.1-2. Application.

This chapter applies to all contracts for the procurement of goods, services, and construction entered into by the city with nongovernmental sources, to include city procurement that may or may not result in monetary consideration for either party. This chapter shall apply whether the consideration is monetary or nonmonetary and regardless of whether the city, the contractor, or some third party is providing the consideration.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 43,223, § 1, 9-9-08)

Sec. 33.1-3. Rules and regulations.

The city manager shall establish rules and regulations to implement the provisions of this chapter which shall be amended from time to time as deemed necessary. Such rules and regulations shall be consistent with the objectives set forth in this chapter and approved as to form and correctness by the city attorney. Public notice of such amendments shall be given by posting in a designated public area for a minimum of ten (10) days before such amendments take effect.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-4. Cooperative procurement.

(1) The city may enter into a cooperative procurement agreement with any public body; provided, that if the city is the procuring agency, the procurement shall comply with the policies and procedures set forth within this chapter and the rules and regulations promulgated to implement this chapter; and if the city is not the procuring agency, then the procurement will comply with the policies and procedures of the other public body, provided that such compliance is consistent with the intent of this chapter.

Except for contracts for architectural and engineering services, the city may purchase from another public body's contract even if it did not participate in the request for proposals or invitation to bid, if the request for proposals or invitation to bid specified that the procurement was being conducted on behalf of other public bodies.

(2) The city may enter into a cooperative procurement agreement with any nonprofit entity if the entity was formed and is maintained for the purpose of advancing the public interest; provided, that if the city is the procuring agency, the procurement shall comply with the policies and procedures set forth within this chapter and the rules and regulations promulgated to implement this chapter; and if the city is not the procuring agency, the procurement is based upon an open competitive process and is fiscally advantageous to the public.

(3) As authorized by the United States Congress and consistent with applicable federal regulations, and provided the terms of the contract permit such purchases, the city may purchase goods and nonprofessional services from a U.S.

General Services Administration contract or a contract awarded by any other agency of the U.S. government.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 38,335, § 1, 4-23-96; Ord. No. 43,413, § 1, 4-21-09)

Sec. 33.1-5. Procurement involving federal or state funding.

(1) When the procurement involves the expenditure of federal assistance or contract funds, the procurement shall be conducted in accordance with any applicable mandatory federal law and regulation in addition to those which are consistent herein. Nothing in this chapter shall prevent the city from complying with the terms and conditions of any grant, gift, or bequest which are otherwise consistent with law.

(2) No contract for the construction of any building or for an addition to or improvement of an existing building by the city for which state funds of not more than thirty thousand dollars ($30,000.00) in the aggregate or for the sum of all phases of a contract or project either by appropriation, grant-in-aid or loan, are used or are to be used for all or part of the cost of construction shall be let except after competitive sealed bidding or after competitive sealed proposals. The procedure for the advertising for bids or for proposals and for letting of the contract shall conform to section 33.1-36.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 43,223, § 1, 9-9-08)

Sec. 33.1-6. Certain contracts prohibited.

Except in the event of an emergency affecting the public health, safety, or welfare, no public contract shall be awarded on the basis of cost plus a percentage of cost. A policy or contract of insurance or prepaid coverage having a premium computed on the basis of claims paid or incurred, plus the insurance carrier's administrative costs and retention stated in whole or part as a percentage of such claims, shall not be prohibited by this provision.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-7. Certain contracts excepted.

Contracts for legal services and police undercover activities may be entered into without competitive procedures required by this chapter. Contracts associated with litigation or regulatory proceedings, such as contracts for expert witnesses or related goods or services, may also be entered into without the competitive procedures required in this chapter.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-7.5. Goods or personal services to individual recipients of public assistance excepted.

Any procurement on behalf of public assistance programs as defined in section 63.1-87, Code of Virginia, or the fuel assistance program may be made without competitive sealed bids or proposals or competitive negotiations if the procurement is made for an individual recipient. Contracts for the bulk procurement of goods or services for the use of recipients shall not be exempted from the requirements of section 33.1-2.
(Ord. No. 33,354, § 1, 3-19-85)

Sec. 33.1-8. Certain contracts with the handicapped excepted.

The city may enter into contracts without competition for the purchase of goods or services (i) which are performed or produced by persons, or in schools or workshops, under the supervision of the Virginia Department for the Visually Handicapped; or (ii) which are performed or produced by nonprofit sheltered workshops or other nonprofit organizations which offer transitional or supported employment services serving the handicapped.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 39,908, § 1, 4-11-2000)

Sec. 33.1-8.3. Essential election materials and services exempted from procurement requirements.

Contracts for the printing of ballots, statements of results, or other materials or services essential to the conduct of elections, [shall be] exempt from procurement requirements.
(Ord. No. 36,832, § 1, 5-19-92)

Sec. 33.1-8.5. Insurance from associations excepted.

Insurance may be purchased through an association of which the city or its officer or employee is a member if the association was formed and is maintained for the purpose of promoting the interest and welfare of any developing close relationship with similar public bodies, provided such association has procured the insurance by use of competitive principles and provided that the city manager had made a determination in advance after reasonable notice to the public and set forth in writing that competitive sealed bidding and proposals are not fiscally advantageous to the public.
(Ord. No. 34,574, § 1, 6-30-87)

Sec. 33.1-9. Public inspection of procurement records.

(1) Except as provided herein, all proceedings, records, contracts and other public records relating to procurement transactions shall be open to the inspection of any citizen, or any interested person, firm or corporation, in accordance with the Virginia Freedom of Information Act.

(2) Cost estimates relating to a proposed procurement transaction shall not be open to public inspection.

(3) Upon request any bidder shall be afforded the opportunity to inspect bid records after the opening of all bids. Bids records shall be open to public inspection only after award of the contract. Any inspection of procurement records under this section shall be subject to reasonable restrictions to ensure the security and integrity of the record.

(4) Upon request any offeror of a proposal shall be afforded the opportunity to inspect proposal records within a reasonable time after the evaluation and negotiations of proposals are complete but prior to award, except in the event that the public body decides not to accept any of the proposals and to reopen the contract. Otherwise, proposal records shall be open to public inspection only after award of the contract.

(5) Trade secrets or proprietary information submitted by a bidder, offeror or contractor in connection with a procurement shall not be subject to public disclosure under the Virginia Freedom of Information Act; however, the bidder, offeror or contractor must invoke the protections of this section prior to or upon submission of the data or other materials, and must identify the specific area or scope of data or other materials to be protected and state the reasons why protection is necessary. A bidder, offeror, or contractor shall not designate as trade secrets or proprietary information (a) an entire bid, proposal, or prequalification application; (b) any portion of a bid, proposal, or prequalification application that does not contain trade secrets or proprietary information; or (c) line item prices or total bid, proposal, or prequalification application prices.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 47,280, § 1, 6-26-18, eff. 7-1-18)

Sec. 33.1-10. Modifications and change orders.

A public contract may include provisions for modifications and change orders during performance, except that no contract may be increased by more than five thousand dollars ($5,000.00) without the written approval of the city manager. Such modifications and change orders shall not be artificially divided to avoid this procedure.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-11. Illegal discrimination prohibited; participation of small, women-owned, minority-owned, military family-owned, and service disabled veteran-owned businesses and employment services organizations.

(a) In the solicitation or awarding of contracts, the city shall not discriminate against a bidder or offeror because of race, religion, color, sex, sexual orientation, gender identity, national origin, age, disability, status as a service disabled veteran, status as a military family, or any other basis prohibited by federal or state law relating to discrimination in employment.

(b) Through the rules and regulations established pursuant to City Code section 33.1-3, the city shall facilitate the participation of small businesses, businesses owned by women, businesses owned by minorities, businesses owned by service disabled veterans, military family-owned businesses, and employment services organizations in procurement transactions.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 47,667, § 2, 6-11-19; Ord. No. 48,246, § 1, 12-8-20; Ord. No. 50,126, § 1, 9-23-25)

Sec. 33.1-12. Lease or installment purchase.

The city may acquire personal property by lease or installment contract and may grant security interests therein. Any debt incurred shall be subject to the limitations imposed by Article VII, Section 10 of the Constitution of Virginia.
(Ord. No. 35,587, § 1, 6-20-89)

Secs. 33.1-13—33.1-19. Reserved.

ARTICLE II. DEFINITIONS

Sec. 33.1-20. Definitions.

(1) *Brand name specification:* A specification limited to one or more items by manufacturers' names or catalog numbers.

(2) *Brand name or equal specification:* A specification limited to one or more items by manufacturers' names or catalog numbers to describe the standard of quality, performance, and other salient characteristics needed to meet the requirements of the city and which provides for the submission of equivalent products.

(3) *Business:* Any corporation, partnership, individual, sole proprietorship, joint stock company, joint venture, or any other private legal entity.

(4) *Change order:* A written order signed and unilaterally issued by the procuring agent, directing the contractor to make changes which the changes clause of the contract authorizes the procuring agent to order without the consent of the contractor.

(5) *Complex project:* A construction project that includes one or more of the following significant components: difficult site location, unique equipment, specialized building systems, multifaceted program, accelerated schedule, historic designation, or intricate phasing or some other aspect that makes the design-bid-build project delivery method not practical.

(6) *Contract modification:* A written contract modification that alters specifications, delivery point, rate of delivery, period of performance, price, quantity, or other provisions of any contract accomplished by mutual action of the parties to the contract.

(7) *Confidential information:* Any information which is available to an employee only because of the employee's status as an employee of the city and is not a matter of public knowledge or available to the public on request.

(8) *Construction:* Building, altering, repairing, improving, or demolishing any structure, building or highway, and any draining, dredging, excavation, grading, or similar work upon real property.

(9) *Construction-management contract:* A contract in which a party is retained by the owner to coordinate and administer contracts for construction services for the benefit of the owner and may also include, if provided in the contract, the furnishing of construction services to the owner.

(10) *Contract:* Any type of arrangement, regardless of what it may be called, for the procurement of goods, services, or construction.

(11) *Cooperative purchasing:* Procurement conducted by, or on behalf of, more than one public procurement unit.

(12) *Cost-reimbursement contract:* A contract under which a contractor is reimbursed for costs which are allowable and allocable in accordance with the contract terms and the provisions of this chapter, and a fee or profit, if any.

(13) *Design-bid build:* A project delivery method in which a public body sequentially awards two separate contracts: the first for professional services to design the project, and

the second utilizing competitive sealed bidding for construction of the project according to design.

(14) *Design-build contract:* A contract between a public body and another party in which the party contracting with the public body agrees to both design and build the structure or other item specified in the contract.

(15) *Direct or indirect participation:* Involvement through decision, approval, disapproval, recommendation, preparation of any part of a purchase request, influencing the content of any specification or procurement standard, rendering of advice, investigation, auditing, or any other advisory capacity.

(16) *Goods:* All material, equipment, supplies, printing, and automated data processing hardware and software.

(17) *Immediate family:* A spouse, children, parents, brothers and sisters, and any other persons living in the same household as the employee.

(18) *Informality:* A minor defect or variation of a bid or proposal from the exact requirements of the invitation to bid, or the request for proposal, which does not affect the price, quality, quantity or delivery schedule for the goods, services, or construction being procured.

(19) *Invitation for bids:* All documents, whether attached or incorporated by reference, utilized for soliciting sealed bids.

(20) *Nonprofessional service:* Any service not specifically identified as professional service as defined herein.

(21) *Official responsibility:* Administrative or operating authority, whether immediate or final, to initiate, approve, disapprove or otherwise affect a procurement transaction, or any claim resulting therefrom.

(22) *Pecuniary interest arising from the procurement:* A personal interest in a contract as defined in the State and Local Government Conflict of Interests Act (Virginia Code, § 2.1-639.1 et seq.).

(23) *Person:* Any business, individual, union, committee, club, other organization, or group of individuals.

(24) *Prequalification for inclusion on bidders' lists:* A prospective bidder or offeror who satisfies the criteria established for inclusion on bidders' lists, which does not represent necessarily a finding of responsibility.

(25) *Procurement transaction:* Any function that pertains to the obtaining of any goods, services or construction, including description of requirements, selection and solicitation of sources, preparation and award of contract, and all phases of contract administration.

(26) *Professional service:* Work performed by an independent contractor within the scope of the practice of accounting, actuarial services, architecture, land surveying, landscape architecture, law, dentistry, medicine, optometry, pharmacy or professional engineering.

(27) *Proprietary information:* Trade secrets or particularized business data which are exempt from public disclosure under the Virginia Freedom of Information Act and which the bidder, offeror or contractor identifies prior to or upon submission of the data or other materials stating the reasons why protection is necessary.

(28) *Public employee:* Any person employed by the city, including elected officials or appointed members of governing bodies.

(29) *Qualified products list:* An approved list of goods, services, or construction items described by model or catalog numbers, which, prior to competitive solicitation, the city has determined will meet the applicable specification requirements.

(30) *Request for proposals:* All documents, whether attached or incorporated by reference, utilized for soliciting proposals.

(31) *Responsible bidder or offeror:* A person who has the capability in all respects to perform fully the contract requirements, and the tenacity, perseverance, experience, integrity, reliability, capacity, facilities, equipment and credit which will assure good faith performance.

(32) *Responsive bidder or offeror:* A person who has submitted a bid which conforms in all material respects to the invitation for bids.

(33) *Service:* Any work performed by an independent contractor, specifically including insurance coverage, wherein the service rendered does not consist primarily of acquisition of equipment or materials, or the rental of equipment, materials and goods.

(34) *Sheltered workshop:* A work-oriented rehabilitative facility with a controlled working environment and individual goals which utilizes work experience and related services for assisting the handicapped person to progress toward normal living and a productive vocational status.

(35) *Specification:* Any description of the physical or functional characteristics, or of the nature of a good, service, or construction item, which may include a description of any requirement for inspecting, testing, or preparing a good, service, or construction item for delivery.

(36) *Surplus property:* Personal property of the city that is determined to be unusable or unnecessary by the director of a department, which property may or may not have value to the city.

(37) *Using agency:* Any department, agency, commission, bureau, or other unit in the government of the city which requires goods, services, or construction as provided in this chapter.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 34,573, § 1, 6-30-87; Ord. No. 35,590, § 1, 6-20-89; Ord. No. 47,667, § 3, 6-11-19; Ord. No. 50,127, § 1, 9-23-25)

ARTICLE III. PROCUREMENT ORGANIZATION*

Sec. 33.1-21. Reserved.

Editor's note—Section 2 of Ord. No. 36,459, adopted May 28, 1991, repealed former § 33.1-21, which pertained to the purchasing division and purchasing agent and derived from Ord. No. 33,095, § 1, adopted Sept. 11, 1984.

Sec. 33.1-22. General duties of purchasing agent.

The purchasing agent shall serve as the central procurement officer of the city. Except as provided in the following section of this article or as otherwise specifically provided by the council, the purchasing agent shall perform the following duties in accordance with the rules and regulations promulgated to implement this chapter:

(1) Procure or supervise the procurement of all goods, services, and construction needed by the city;

(2) Exercise general supervision and control over inventory of goods of the storehouse division; and

(3) Sell, trade, or otherwise dispose of surplus property.

(Ord. No. 33,095 § 1, 9-11-84)

Sec. 33.1-23. Procurement duties exclusive of the purchasing division.

Unless otherwise provided by the council, the following procurement need not be processed through the office of the purchasing agent, but shall nevertheless be procured by the appropriate agency subject to the requirements of this Code and the regulations promulgated by the city manager:

(1) Construction, inspection, or testing which constitutes a public work or improvement as designated in the provisions of section 54 of the Charter for which purposes the director of public works will be the appropriate procurement agent; provided, however, that if the construction is less than twenty-five thousand dollars ($25,000.00) then the director of public works may issue a requisition to the purchasing agent to make such procurement and the purchasing agent may issue a purchase order using a form prepared by the city attorney;

(2) Construction for the department of utilities for which purposes the director of utilities will be the appropriate procurement agent; provided, however, that if the construction is less than twenty-five thousand dollars ($25,000.00) then the director of utilities may issue a requisition to the purchasing agent to make

*__Cross reference—__Vouchers and warrants for departmental expenses, §§ 16-28—16-33.

such procurement and the purchasing agent may issue a purchase order using a form prepared by the city attorney;

(3) Demolition of structures for which purposes the code official in the department of neighborhood development will be the appropriate procurement agent;

(4) Published books (including binding services), maps, periodicals, pamphlets, recordings and materials for library circulation, such as audio-visual items for which purposes the Director of the Norfolk Public Library System or the director of The Slover will be the appropriate procurement agent;

(5) Reserved.

(6) Animals for Virginia Zoological Park for which purposes the Director of the Virginia Zoological Park will be the appropriate procurement agent in accordance with section 30-14 of this Code;

(7) Promotion services and ticketing services for the department of cultural facilities, arts and entertainment for which purposes the director will be the appropriate procurement agent in accordance with sections 13-6 and 13-7 of this Code; and

(8) Consulting services for which purposes the city manager will appoint the appropriate procurement agents or committees.

(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 35,705, § 1, 8-29-89; Ord. No. 36,831, § 1, 5-19-92; Ord. No. 47,667, § 4, 6-11-19; Ord. No. 49,382, § 3, 10-24-23)

Cross reference—Directors of public utilities and public works authorized to sign contracts for less than five thousand dollars, § 2-7.

Sec. 33.1-24. Advisory committees.

The city manager may establish procurement advisory committees composed of qualified representatives of the city as deemed appropriate. Such committees shall conduct studies and make written reports and recommendations on procurements assigned to them by the city manager. All such reports and recommendations shall state the reasons therefor.

(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-25. Requisition for goods, services, or construction; sufficiency of funds for purchases.

Except as otherwise specifically provided in this chapter, no goods, services, or construction for any department, division, bureau, or office of the city government may be ordered, except by a requisition upon the purchasing agent, signed by the head of such bureau, division, or office, or by his authorized deputy, and approved by the director of the department, provided sufficient funds exist in the account to be charged for such procurement.

(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-26. Authorization of certain employees to purchase goods; decentralized purchasing system.

Under rules and regulations established by the director of finance and under the supervision of the purchasing agent, the director of a department or the authorized designee may purchase goods and services which do not exceed the amount of five thousand dollars ($5,000.00), provided that sufficient funds are available for such procurement.

(Ord. No. 33,085, § 1, 9-11-84; Ord. No. 34,649, § 1, 7-28-87; Ord. No. 36,829, § 1, 5-19-92; Ord. No. 38,628, § 1, 1-28-97; Ord. No. 43,413, § 1, 4-21-09)

Sec. 33.1-27. Procurement of storehouse goods and services.

(a) The purchasing agent may procure goods and services on the storehouse account; and when furnished to city departments, the purchasing agent shall charge the costs of the goods or services to the receiving department. All purchases on the storehouse account shall be

made in accordance with the provisions of this chapter and rules and regulations promulgated to implement this chapter.

(b) The Norfolk Redevelopment and Housing Authority may cooperatively procure office supplies as requested to service storehouse accounts; and when furnished to city departments and agencies, the authority shall charge the costs of office supplies without mark-up or surcharge to the receiving department. All purchases shall be made in accordance with the provisions of the Virginia Public Procurement Act and rules and regulations promulgated to implement the Act.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 36,830, § 1, 5-19-92)

Sec. 33.1-28. Disposition of surplus property.

The purchasing agent shall sell, trade, or otherwise dispose of all surplus property. The purchasing agent shall promote free and open competition in the disposal of surplus property and make such awards as are in the best interest of the city.
(Ord. No. 33,095, § 1, 9-11-84)

Cross reference—Procedure for sale of city-owned real estate not needed for municipal purposes, § 2-12.

Sec. 33.1-29. Disposition of replaced articles of equipment.

If any article of new equipment is purchased to replace similar equipment, the director of finance may trade the existing equipment applying the proceeds as necessary to the account from which the new equipment is purchased, and the balance, if any, to the appropriate general revenue account.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-30. Disposition of property damaged beyond repair in accidents involving third parties.

Notwithstanding the provisions of any other ordinance to the contrary, in any case where city property is damaged beyond repair in an accident involving a third party, or in which the city acquires ownership of property damaged beyond repair in an accident involving a third party, the purchasing agent may sell or otherwise dispose of such property upon such terms and after such opportunity for competition as he may determine are practicable under the circumstances. In determining the terms for sale or disposal and the sufficiency and practicability of opportunity for competition in cases, the purchasing agent shall take into account the salvage practices of private insurance carriers, and shall not be limited to the usual means of disposing of surplus property.
(Ord. No. 33,095, § 1, 9-11-84)

Secs. 33.1-31—33.1-35. Reserved.

ARTICLE IV. SOURCE SELECTION AND CONTRACT FORMATION

Sec. 33.1-36. Competitive sealed bidding.

(1) *Conditions for use.* All contracts of the city shall be awarded by competitive sealed bidding except as otherwise provided in this article.

(2) *Invitation for bids.* An invitation for bids shall be issued and shall include specifications and contractual terms and conditions applicable to the procurement.

(3) *Public notice.* Public notice of the invitation for bids shall be given a minimum of ten (10) days prior to the date set for opening of bids by posting in a designated public area, or by publication in a newspaper of general circulation, or both. The public notice shall state the place, date, and time of bid opening.

(4) *Bid opening.* Bids shall be opened publicly at the time and place designated in the invitation for bids. The amount of each bid, and such other relevant information as the procuring agent deems appropriate, together with the name of each bidder shall be recorded; and the record and each bid, with the exception of proprietary information, shall be open to public inspection, after award of the contract.

(5) *Bid acceptance and bid evaluation.* Bids shall be accepted without alteration or correction, except as authorized in this chapter. Bids shall be evaluated based on the requirements set

forth in the invitation for bids. Those criteria that will affect the bid price and be considered in evaluation for award shall be objectively measurable, such as discounts, transportation costs, and total or life cycle costs. The invitation for bids shall set forth the evaluation criteria to be used, such as inspection, testing, quality, workmanship, maintenance requirements, delivery, and suitability for a particular purpose.

(6) *Award.* The contract shall be awarded by written notice to the lowest responsible and responsive bidder whose bid meets the requirements and criteria set forth in the invitation for bids. In the event that a responsive bid from the lowest responsible bidder exceeds available funds as determined by the director of finance, the procuring agent may negotiate the amount of the bid with the apparent low bidder to obtain a contract price within available funds.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-37. Competitive sealed proposals.

(1) *Conditions for use.* When the purchasing agent determines it to be the most advantageous method of procurement, competitive sealed proposals method may be used as the method of procurement unless competitive negotiation is required.

(2) *Request for proposals.* Proposals shall be solicited by a request for proposals which shall state the objective of the procurement and specify the factors which will be used in evaluating the proposals, including any qualifications which will be required.

(3) *Public notice.* Public notice of the request for proposals shall be given a minimum of ten (10) days prior to the date set for receipt of proposals by a means that can be expected to provide reasonable notice to the maximum number of prospective offerors that can be practically anticipated to submit proposals in response to the particular request. Where substantial changes in public policy are involved in such a proposal, there shall be more extensive advertising to help ensure notice to prospective bidders and the public. In addition, proposals may be solicited directly from potential contractors. The public notice shall state the deadline and the location for receipt of proposals.

(4) *Receipt of proposals.* No proposals shall be handled so as to permit disclosure of the contents of any proposal to competing offerors during the process of evaluation. The name of each offeror, the number of modifications received, if any, and a description sufficient to identify such proposals and modifications shall be recorded. The record shall be open for public inspection after award of the contract.

(5) *Discussion with responsible offerors and revisions to proposals.* As provided in the request for proposals, discussions may be conducted with responsible offerors who submit proposals for the purpose of clarification to assure full understanding of and conformance to the solicitation requirements. Such offerors shall be accorded fair and equal treatment with respect to any opportunity for discussion and revision of proposals and such revisions may be permitted after submissions and prior to award for the purpose of obtaining best and final offers. In conducting discussions, there shall be no disclosure of any information derived from proposals submitted by competing offerors.

(6) *Award.* Award shall be made to the responsible offeror whose proposal is determined in writing to be the most advantageous to the city taking into consideration price and the evaluation factors set forth in the request for proposals. The contract file shall contain the basis on which the award is made.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 34,572, § 1, 6-30-87; Ord. No. 35,591, § 1, 6-20-89; Ord. No. 47,667, § 5, 6-11-19)

Sec. 33.1-38. Competitive negotiation.

(1) *Conditions for use.* When professional services are the subject of the procurement, a contract shall be entered into by use of the competitive negotiation method.

(2) *Request for proposals.* Written requests for proposals shall be issued indicating in general terms that which is sought to be procured, specifying the factors which will be used in

evaluating the proposals and containing or incorporating by reference the other applicable contractual terms and conditions, including any unique capabilities or qualifications which will be required of the contractor. The request for proposals shall not, however, request that offerors furnish estimates of hours of work or cost for services.

(3) *Public notice.* Public notice of the request for proposals shall be given a minimum of ten (10) days prior to the date set for receipt of proposals by a means that can be expected to provide reasonable notice to the maximum number of prospective offerors that can be practically anticipated to submit proposals in response to the particular request. Where substantial changes in public policy are involved in such a proposal, there shall be more extensive advertising to help ensure notice to prospective offerors and the public. In addition, proposals may be solicited directly from potential contractors. The public notice shall state the deadline and the location for receipt of proposals.

(4) *Procedure.* The city shall engage in individual discussions with two (2) or more offerors deemed fully qualified, responsible and suitable on the basis of initial responses and with emphasis on professional competence, to provide the required services. Repetitive informal interviews shall be permissible. Such offerors shall be encouraged to elaborate on their qualifications and performance data or staff expertise pertinent to the proposed project, as well as alternative concepts. At the discussion stage, the city may discuss nonbinding estimates of total project costs, including, but not limited to, life-cycle costing, and where appropriate, nonbinding estimates of price for services. Proprietary information from competing offerors shall not be disclosed to the public or to competitors. At the conclusion of discussions, outlined in this paragraph above, on the basis of evaluation factors published in the request for proposals and all information developed in the selection process to this point, the city shall select in the order of preference two (2) or more offerors whose professional qualifications and proposed services are deemed most meritorious. Negotiations shall then be conducted, beginning with the offeror ranked first. If a contract satisfactory and advantageous to the city can be negotiated at a price considered fair and reasonable, the award shall be made to that offeror. Otherwise, negotiations with the offeror ranked first shall be formally terminated and negotiations conducted with the offeror ranked second, and so on until such a contract can be negotiated at a fair and reasonable price. Should the city determine in writing and in its sole discretion that only one offeror is fully qualified, or that one offeror is clearly more highly qualified and suitable than the others under consideration, a contract may be negotiated and awarded to that offeror.

A contract for architectural or professional engineering services relating to construction projects may be negotiated by the city, for multiple projects provided (i) the projects require similar experience and expertise, (ii) the nature of the projects is clearly identified in the request for proposals, and (iii) the contract term is limited to one year or when the cumulative total project fees reach the maximum cost authorized in this paragraph, whichever occurs first. Such contract may be renewable for four additional one-year terms at the option of the city. Under such contract, (a) the fair and reasonable prices, as negotiated, shall be used in determining the cost of each project performed, (b) the sum of all projects performed in one contract term shall not exceed eight million dollars ($8,000,000.00); and (c) the project fee of any single project shall not exceed one million five hundred thousand dollars ($1,500,000.00). Any unused amounts from the first contract term shall not be carried forward to the additional term. Competitive negotiations for such contracts may result in awards to more than one offeror provided (1) the request for proposals so states and (2) the city has established procedures for distributing multiple projects among the selected contractors during the contract term.

Multiphase professional-services contracts satisfactory and advantageous to the city for environmental, location, design and inspection work regarding construction of infrastructure projects may be negotiated and awarded based on qualifications at a fair and reasonable price for the first phase only, when completion of the

earlier phases is necessary to provide information critical to the negotiation of a fair and reasonable price for succeeding phases. Prior to the procurement of any such contract, the city shall state the anticipated intended total scope of the project and determine in writing that the nature of the work is such that the best interests of the city require awarding the contract.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 34,462, § 1, 5-12-87; Ord. No. 35,591, § 1, 6-20-89; Ord. No. 43,223, § 1, 9-9-08; Ord. No. 48,194, § 1, 10-27-20)

Sec. 33.1-39. Small purchases.

Any procurement for goods and services other than professional services not exceeding two hundred thousand dollars ($200,000.00) and any procurement for professional services not exceeding eighty thousand dollars ($80,000.00) may be made in accordance with small purchase procedures which shall be specified in the rules and regulations promulgated to implement this provision; provided, however, that contract requirements shall not be artificially divided so as to constitute a small purchase under this provision; provided also that any procurement of goods or services under five thousand dollars ($5,000.00) may be made directly under the decentralized purchasing system. To the extent practicable, no less than three (3) businesses shall be solicited. Names of businesses solicited for procurement under this section shall be recorded with dates and amounts and such entries shall be maintained as public records. For the purchase of goods in an amount not exceeding two hundred thousand dollars ($200,000.00) or the procurement of services in an amount not exceeding fifty thousand dollars ($50,000.00), the purchasing agent may issue a purchase order using a form prepared by the city attorney, without following the requirements set forth in section 2-7 of the City Code.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 34,649, § 1, 7-28-87; Ord. No. 36,829, § 1, 5-19-92; Ord. No. 38,628, § 1, 1-28-97; Ord. No. 39,344, § 1, 10-20-98; Ord. No. 43,413, § 1, 4-21-09; Ord. No. 46,808, § 1, 4-11-17; Ord. No. 47,667, § 6, 6-11-19; Ord. No. 48,194, § 1, 10-27-20)

Sec. 33.1-40. Sole source procurement.

Upon a determination in writing that there is only one source practicably available for that which is to be procured, a contract may be negotiated and awarded to that source. Any sole source procurement which otherwise would have required competitive sealed bidding, competitive sealed proposals, or competitive negotiations shall be reported to the city council on a monthly basis.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-41. Emergency procurement.

In the event of a threat to public health, welfare, or safety, a contract may be awarded without competitive sealed bidding, competitive sealed proposals or competitive negotiation. Such procurement, however, shall be made with such competition as is practicable under the circumstances. In addition to regular reports of emergency public works according to Charter section 81, any emergency procurement which would have required competitive sealed bidding, competitive sealed proposals or competitive negotiation under nonemergency conditions shall be reported to the city council on a monthly basis.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-42. Correction or withdrawal of bids or proposals; cancellation of awards.

(1) *Construction.* A bidder for a public construction contract, other than a contract for construction or maintenance of public highways, may withdraw his bid from consideration if the price was substantially lower than others due solely to a mistake therein, provided the bid was submitted in good faith, the mistake was a clerical mistake as opposed to a judgment mistake, and the mistake was actually due to an unintentional arithmetic error or an unintentional omission of a quantity of work, labor, or material made directly in the compilation of a bid, which unintentional arithmetic error or unintentional omission can be clearly shown by objective

evidence drawn from inspection of original work papers, documents, and materials used in the preparation of the bid sought to be withdrawn.

If a bid contains both clerical and judgment mistakes, a bidder may withdraw his bid from consideration if the price bid would have been substantially lower than the other bids due solely to the clerical mistake, that was an unintentional arithmetic error or an unintentional omission of a quantity of work, labor or material made directly in the compilation of a bid that shall be clearly shown by objective evidence drawn from inspection of original work papers, documents and materials used in the preparation of the bid sought to be withdrawn.

Within two (2) business days after the conclusion of the opening procedure, the bidder shall give notice in writing to the agent responsible for the procurement of his claim of right to withdraw his bid. Such mistake shall be proved only from the original work papers, documents, and materials delivered as required herein.

(2) *Other.* A bidder or offeror on contracts other than construction contracts may withdraw a bid or proposal according to procedures established by the rules and regulations promulgated by the city manager.

(3) *Bidders or offerors owning other bidders or offerors.* No bid or proposal may be withdrawn under this section when the result would be the awarding of the contract on another bid or proposal of the same bidder or offeror or of another bidder or offeror in which the ownership of the withdrawing bidder or offeror is more than five (5) percent.

(4) *Lowest remaining bid.* If a bid is withdrawn under the authority of this section, the lowest remaining bid shall be deemed to be low.

(5) *Withdrawal precludes subcontracting.* No bidder or offeror who is permitted to withdraw shall, for compensation, supply any material or labor to or perform any subcontract or other work agreement for the person or firm to whom the contract is awarded or otherwise benefit, directly or indirectly, from the performance of the project for which the withdrawn bid or proposal was submitted.

(6) *Denial.* If the withdrawal is denied, the bidder or offeror shall be notified in writing of the denial and the reasons therefor.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 43,223, § 1, 9-9-08)

Sec. 33.1-43. Cancellation of invitations for bids or requests for proposals; waiver of informalities; rejection of bids or proposals; determination of responsibility.

Any invitation for bids, request for proposals, or other solicitation may be canceled, or any or all bids or proposals may be rejected in whole or in part, when it is in the best interest of the city. The right to waive informalities in bids or proposals submitted is reserved to the city. The right to determine responsibility of all bidders or offerors is reserved to the city.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-44. Prequalification and bidders' list.

(1) Prospective contractors may be prequalified for particular types of supplies, services, insurance or construction, and consideration of bids or proposals limited to prequalified contractors. Any prequalification procedure shall be established in writing and sufficiently in advance of its implementation to allow potential contractors a fair opportunity to complete the process.

(2) Any prequalification of prospective contractors for construction by the city shall be pursuant to a prequalification process for construction projects adopted by the city. The process shall be consistent with the provisions of this section.

The application form used in such process shall set forth the criteria upon which the qualifications of prospective contractors will be evaluated. The application form shall request of prospective contractors only such information as is appropriate for an objective evaluation of all prospective contractors pursuant to such criteria. The form shall allow the prospective contractor seeking prequalification to request, by checking the appropriate box, that all information voluntarily submitted by the contractor pursu-

ant to this subsection shall be considered a trade secret or proprietary information subject to the provisions of subsection 33.1-9(5).

In all instances in which the city requires prequalification of potential contractors for construction projects, advance notice shall be given of the deadline for the submission of prequalification applications. The deadline for submission shall be sufficiently in advance of the date set for the submission of bids for such construction so as to allow the procedures set forth in this subsection to be accomplished.

At least thirty (30) days prior to the date established for submission of bids or proposals under the procurement of the contract for which the prequalification applies, the city shall advise in writing each contractor who submitted an application whether that contractor has been prequalified. In the event that a contractor is denied prequalification, the written notification to the contractor shall state the reasons for the denial of prequalification and the factual basis of such reasons.

A decision by the city denying prequalification under the provisions of this subsection shall be final and conclusive unless the contractor appeals the decision as provided in section 33.1-101.

(3) The city may deny prequalification to any contractor only if the city finds one of the following:

(a) The contractor does not have sufficient financial ability to perform the contract that would result from such procurement. If a bond is required to ensure performance of a contract, evidence that the contractor can acquire a surety bond from a corporation included on the United States Treasury list of acceptable surety corporations in the amount and type required by the city shall be sufficient to establish the financial ability of the contractor to perform the contract resulting from such procurement;

(b) The contractor does not have appropriate experience to perform the construction project in question;

(c) The contractor or any officer, director or owner thereof has had judgments entered against him within the past ten (10) years for the breach of contracts for governmental or nongovernmental construction, including, but not limited to, design-build or construction management;

(d) The contractor has been in substantial noncompliance with the terms and conditions of prior construction contracts with the city without good cause. If the city has not contracted with a contractor in any prior construction contracts, the city may deny prequalification if the contractor has been in substantial noncompliance with the terms and conditions of comparable construction contracts with another public body without good cause. The city may not utilize this provision to deny prequalification unless the facts underlying such substantial noncompliance were documented in writing in the prior construction project file and such information relating thereto given to the contractor at that time, with the opportunity to respond;

(e) The contractor or any officer, director, owner, project manager, procurement manager or chief financial official thereof has been convicted within the past ten (10) years of a crime related to governmental or nongovernmental construction or contracting, including, but not limited to, a violation of:

(i) Article 6 ([Code of Virginia,] § 2.2-4367 et seq.) of this chapter;

(ii) The Virginia Governmental Frauds Act (Code of Virginia, § 18.2-498.1 et seq.);

(iii) Chapter 4.2 (Code of Virginia, § 59.1-68.6 et seq.) of title 59.1; or

(iv) Any substantially similar law of the United States or another state;

(f) The contractor or any officer, director or owner thereof is currently debarred pursuant to an established debarment procedure

from bidding or contracting by any, agency of another state or agency of the federal government; and

(g) The contractor failed to provide to the city in a timely manner any information requested by the city relevant to subdivisions (a) through (f) of this subsection.

(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 43,223, § 1, 9-9-08)

Sec. 33.1-45. Debarment.

Contractors may be barred from contracting for particular types of construction, goods, and services for specified periods of time.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-46. Policy for recycled materials; preference for recycled paper and paper products in competitive sealed bidding.

(1) It shall be the policy of the city to promote the recycling of materials and the reduction of waste matter so as to make environmentally sound procurement decisions.

(2) In the procurement of the following products for use in city operations, the city will select products containing recycled materials provided the quality is suitable for the purpose intended:

(a) Cement and concrete containing fly ash;

(b) Paper and paper products containing recovered materials;

(c) Lubricating oils containing re-refined oils;

(d) Retreaded tires; and

(e) Building insulation products containing recovered materials.

(3) In determining the award of any contract for paper and paper products, the purchasing agent shall procure using competitive sealed bidding and shall award, consistent with Virginia Code section 11-47.2, to the lowest responsible bidder offering recycled paper and paper products of a quality suitable for the purpose intended, so long as the bid price is not more than ten (10) percent greater than the bid price of the lowest responsive and responsible bidder offering a product that does not contain recycled material.
(Ord. No. 36,567, § 1, 9-17-91)

Secs. 33.1-47—33.1-50. Reserved.

ARTICLE V. SPECIFICATIONS

Sec. 33.1-51. Maximum practicable competition.

All specifications shall be drafted so as to promote overall economy for the purposes intended and encourage maximum free and open competition in satisfying the minimum needs of the city and shall not be unduly restrictive.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-52. Brand names or equal specification.

Unless otherwise provided in the invitation to bid, the name of a certain brand, make, or manufacturer does not restrict bidders to the specific brand, make or manufacturer named; conveys the general style, type, character, and quality of the article desired, and any article which the city in its sole discretion determines to be the equal of that specified, considering quality, workmanship, economy of operation, and suitability for the purpose intended, shall be accepted.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-53. Employment discrimination by contractor prohibited.

Every contract over one thousand dollars ($1,000.00) shall include or incorporate by reference the following provisions:

(1) During the performance of this contract, the contractor agrees as follows:

a. The contractor will not discriminate against any employee or applicant for employment on the basis of race, color, religion, sex, sexual orientation, gender identity, national origin, age, disability, genetic information, marital status, political affiliation, whistleblower activity, parental

status, military service or any other characteristic protected by federal or state law. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this non-discrimination clause.

b. The contractor, in all solicitations or advertisements for employees placed by or on behalf of the contractor, will state that such contractor is an equal opportunity employer. Notices, advertisements, and solicitations placed in accordance with federal law, rule, or regulation shall be deemed sufficient for the purpose of meeting the requirements of this section.

c. If the contractor employs more than five (5) employees, prior to award by the city to the contractor of any contract or purchase order of over ten thousand dollars ($10,000), the contractor shall (i) provide annual training on the contractor's sexual harassment policy to all supervisors and employees providing services in the City of Norfolk, and (ii) post the contractor's sexual harassment policy in (a) a conspicuous public place in each building located in the Commonwealth of Virginia that the contractor owns or leases for business purposes and (b) the contractor's employee handbook.

(2) The contractor will include the provisions of the foregoing paragraphs a, b, and c in every subcontract or purchase order over ten thousand dollars ($10,000.00), so that the provisions will be binding upon each subcontractor or vendor.

(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 39,912, § 1, 4-11-2000; Ord. No. 46,755, § 1, 2-28-17; Ord. No. 48,194, § 1, 10-27-20)

Sec. 33.1-54. Tie bids.

In the event of a tie bid, preference shall be given to goods, services, and construction produced in Virginia or provided by Virginia persons, if such choice is available; otherwise the tie shall be decided by lot.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-55. Retainage on construction contracts.

(1) In any public contract for construction which provides for progress payments in installments based upon an estimated percentage of completion, the contractor shall be paid at least ninety-five (95) percent of the earned sum when payment is due, with not more than five (5) percent being retained to assure faithful performance of the contract. All amounts withheld may be included in the final payment upon satisfactory completion of all of the work.

(2) Any subcontract for a public project which provides for similar progress payments shall be subject to the same limitations.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-56. Deposit of certain retained funds on certain construction contracts; penalty for failure to timely complete.

(a) Contracts of two hundred thousand dollars ($200,000.00) or more for construction of highways, roads, streets, bridges, parking lots, demolition, clearing, grading, excavating, paving, pile driving, miscellaneous drainage structures, and the installation of water, gas, sewer lines and pumping stations in which portions of the contract price are to be retained, shall include in the invitation to bid an option for the contractor to use an escrow account procedure for utilization of the retainage funds by so indicating in the space provided in the bid documents. In the event the contractor elects to use the escrow account procedure, the "escrow agreement" form included in the invitation to bid and contract shall be executed and submitted to the political subdivision within fifteen calendar days after notification. If the "escrow agreement" form is not submitted within the fifteen-day period, the contractor shall forfeit his rights to the use of the escrow account procedure.

(b) In order to have retained funds paid to an escrow agent, the contractor, the escrow agent, and the surety shall execute an "escrow agreement" form. The contractor's escrow agent shall be a trust company, bank or savings institution with its principal office located in the commonwealth. The "escrow agreement" and all regulations shall be substantially the same as that used by the Commonwealth of Virginia Department of Transportation.

(c) This section shall not apply to public contracts for construction for railroads, public transit systems, runways, dams, foundations, installation or maintenance of power systems for the generation and primary and secondary distribution of electric current ahead of the customer's meter, the installation or maintenance of telephone, telegraph or signal systems for public utilities and the construction or maintenance of solid waste or recycling facilities and treatment plants.

(d) Any such public contract for construction which includes payment of interest on retained funds may require a provision whereby the contractor, exclusive of reasonable circumstances beyond the control of the contractor stated in the contract, shall pay a specified penalty for each day exceeding the completion date stated in the contract.

(e) Any subcontract for such public project which provides for similar progress payments shall be subject to the provisions of this section. (Ord. No. 35,589, § 1, 6-20-89)

Sec. 33.1-57. Permitted contracts with certain religious organizations; purpose; limitations.

(1) The Personal Responsibility and Work Opportunity Reconciliation Act of 1996, P.L. 104-193, authorizes the city to enter into contracts with faith-based organizations for the purposes described in this section on the same basis as any other nongovernmental source without impairing the religious character of such organization, and without diminishing the religious freedom of the beneficiaries of assistance provided under this section.

(2) For the purposes of this section, "faith-based organization" means a religious organization that is or applies to be a contractor to provide goods or services for programs funded by the block grant provided pursuant to the Personal Responsibility and Work Opportunity Reconciliation Act of 1996, P.L. 104-193.

(3) The city, in procuring goods or services, or in making disbursements pursuant to this section, shall not:

(i) Discriminate against a faith-based organization on the basis of the organization's religious character or

(ii) Impose conditions that:

(a) Restrict the religious character of the faith-based organization, except as provided in subsection (6), or

(b) Impair, diminish, or discourage the exercise of religious freedom by the recipients of such goods, services, or disbursements.

(4) The city shall ensure that all invitations to bid, requests for proposals, contracts, and purchase orders prominently display a nondiscrimination statement indicating that the city does not discriminate against faith-based organizations.

(5) A faith-based organization contracting with the city:

(i) Shall not discriminate against any recipient of goods, services, or disbursements made pursuant to a contract authorized by this section on the basis of the recipient's religion, religious belief, refusal to participate in a religious practice, or on the basis of race, age, color, gender or national origin and

(ii) shall be subject to the same rules as other organizations that contract with the city to account for the use of the funds provided; however, if the faith-based organization segregates public funds into separate accounts, only the accounts and programs funded with public funds shall be subject to audit by the city.

Nothing in clause (ii) shall be construed to supersede or otherwise override any other applicable state law.

(6) Consistent with the Personal Responsibility and Work Opportunity Reconciliation Act of 1996, P.L. 104-193, funds provided for expenditure pursuant to contracts with the city shall not be spent for sectarian worship, instruction, or proselytizing; however, this prohibition shall not apply to expenditures pursuant to contracts, if any, for the services of chaplains.

(7) Nothing in this section shall be construed as barring or prohibiting a faith-based organization from any opportunity to make a bid or proposal or contract on the grounds that the faith-based organization has exercised the right, as expressed in 42 U.S.C. (section 2000e-1 et seq.), to employ persons of a particular religion.

(8) If an individual who applies for or receives goods, services, or disbursements provided pursuant to a contract between a public body and a faith-based organization, objects to the religious character of the faith-based organization from which the individual receives or would receive the goods, services, or disbursements, the city shall offer the individual, within a reasonable period of time after the date of his objection, access to equivalent goods, services, or disbursements from an alternative provider.

The city shall provide to each individual who applies for or receives goods, services, or disbursements provided pursuant to a contract between the city and a faith-based organization a notice in bold face type that states: "Neither the city's selection of a charitable or faith-based provider of services nor the expenditure of funds under this contract is an endorsement of the provider's charitable or religious character, practices, or expression. No provider of services may discriminate against you on the basis of religion, a religious belief, or your refusal to actively participate in a religious practice. If you object to a particular provider because of its religious character, you may request assignment to a different provider. If you believe that your rights have been violated, please discuss the complaint with your provider or notify the appropriate person as indicated in this form."
(Ord. No. 43,223, § 2, 9-9-08)

Sec. 33.1-58. Substance abuse and drug-free work place policy for city construction contracts.

Every bid response for a construction project solicited on or after March 1, 1996, shall include, by reference or incorporation, legally defensible, written substance abuse policies which shall be in effect during the period of performance of the contract. Notwithstanding the aforesaid, every contract as declared by the director of public works entered into on or after March 1, 1996, shall include, by reference or incorporation, legally defensible, written substance abuse policies which shall be in effect during the period of performance of the contract. The substance abuse policy shall include all workers who will perform on City of Norfolk projects both general and subcontractors. Said policies shall include, but not be limited to, the following requirements:

(1) Drug testing by a state-approved laboratory licensed to conduct such tests in accordance with standards established by the National Institute On Drug Abuse (NIDA). Drugs to be tested for shall be as follow:

a. Amphetamines/methamphetamine (e.g., crystal and speed);

b. Cocaine and crack cocaine;

c. Opiates (e.g., codeine, heroin, morphine, hydromorphone, hydrocodone);

d. Phencyclidine (PCP); and

e. Marijuana (THC).

f. Alcohol.

(2) Drug testing will be conducted on the employee(s) by and at the expense of the employer before the employee(s) is/are allowed to visit and/or work on any job site.

(3) Random drug testing shall be required. The criteria for random testing should be

based upon the function(s) performed by the employee, particularly those functions in which a momentary lapse could cause death, serious bodily injury or destruction of property.

(4) Testing upon reasonable suspicion is required. For purposes of this section, "reasonable suspicion" means an articulable belief based on specific facts, and reasonable inferences, drawn from those facts, that an employee is under the influence of drugs or alcohol. Circumstances which constitute a basis for determining reasonable suspicion may include, but are not limited to:

a. A pattern of abnormal or erratic behavior (e.g. hyperactivity, unexplained mood swings, paranoia, hallucinations);

b. Information provided by a reliable and credible source;

c. A work-related accident;

d. Direct observation of drug or alcohol use;

e. Possession of drugs or drug paraphernalia; or

f. Presence of the physical symptoms of drug or alcohol use (e.g., glassy or bloodshot eyes, odor of alcohol on breath, slurred speech, needle marks/scar tracks on arms, unusual drowsiness or sluggishness).

(5) Written notice of the testing policy is required to be given to all employees by the employer.

(6) A consent form shall be executed authorizing the drug and/or substance abuse testing and permitting the release of tests results to the employer to be used to prove compliance with drug and/or substance abuse policies. Test results for all personnel working pursuant to a City of Norfolk contract will be made available to the City on a confidential basis.

(7) A refusal to consent section will be required which specifically informs the employee that refusal to consent to a drug and/or substance abuse test will be grounds for preventing the employee from working on city-contracted work.

(8) Confirmation of positive test results through at least one additional test is required.

(9) Confidentiality of tests results, except as exempted by other subsections of this section, is required as part of any drug and/or substance abuse policy adopted pursuant to this section.

(10) An employer is required to notify the City of Norfolk of any employee who is arrested or convicted for drug-related offenses as stipulated in this section as soon as such information is known to the employer.

(11) A section stipulating that searches may be conducted of all areas and property jointly controlled by the employee(s) and the employer, or fully controlled by the employer, is required.

(12) A severability section stating that each provision of the drug and/or substance abuse policy is severable from other sections and provisions of the policy and, if found to be illegal by a court, such invalidity shall not affect the validity of the other sections or provisions.

(13) No contractor shall allow any employee to engage in work on a city project upon notification of a positive test result unless and until the employees is certified to be drug free.

(14) That the city manager is hereby authorized to take all actions necessary to implement the aforesaid provisions including defining terms, establishing reports and forms, and establishing deadlines for the production of information.

(Ord. No. 38,261, § 1, 2-6-96)

Sec. 33.1-59. Design-build or construction management contracts.

While the competitive sealed bid process remains the preferred method of construction

procurement, the city may enter into a contract for construction on a fixed-price or not-to-exceed price design-build or construction-management basis, provided the city complies with the requirements of this section adopts a resolution or ordinance on a per project basis prior to issuing a request for qualifications; complies with Virginia Code § 2.2-4382, and has by ordinance or resolution implemented procedures consistent with the procedures adopted by the secretary of administration for utilizing construction-management or design-build contracts.

Prior to making a determination as to the use of design-build or construction management for a specific construction project, the city shall have in its employ or under contract a licensed architect or engineer with professional competence appropriate to the project who shall advise the city regarding the use of design-build or construction management for that project and who shall assist the city with the preparation of the request for proposals and the evaluation of such proposals.

Prior to issuing a request for qualifications for any design-build or construction-management contract for a specific construction project, the city shall:

(1) Document in writing that, for a specific construction project:

(a) A design-build or construction-management contract is more advantageous than a design-bid-build construction contract;

(b) There is a benefit to the city to using a design-build or construction-management contract;

(c) Design-bid-build is not practical or fiscally advantageous, and

(d) The project's complexity requires the need to utilize the design-build or construction-management method.

(2) Include the written determination in the request for qualifications and maintain it in the procurement file.

(3) Have adopted, by ordinance or resolution, written procedures governing the selection, evaluation, and award of construction-management and design-build contracts consistent with the procedures adopted by the secretary of administration, which procedures shall include all of the following:

(a) Requests for proposals shall include and define the criteria for the construction project in areas such as site plans; floor plans; exterior elevations; basic building envelope materials; fire protection information plans; structural, mechanical (HVAC), and electrical systems; and special telecommunications; and may define other such requirements as the city determines appropriate for that particular construction project;

(b) Construction-management or design-build may be utilized on projects provided that the project is complex and the procurement method for the project is approved by resolution or ordinance;

(c) Design-build construction projects shall include a two-step competitive negotiation process consistent with the standards established by the Virginia Department of General Services, Division of Engineering and Building;

(d) Construction-management projects shall include selection procedures and required contract terms consistent with the regulations established by the Virginia Secretary of Administration and the Department of General Services, Division of Engineering and Building;

(e) Public notice of the request for qualifications shall be posted on the department's central electronic procurement website or the city's website at least thirty (30) days prior to the date set for receipt of qualification proposals;

(f) Construction-management contracts to be entered into no later than the completion of the schematic phase of design, unless prohibited by authorization of funding restrictions;

(g) Prior construction management or design-build experience shall not be considered a prerequisite or factor considered for prequalification of a contract. However, in the selection of a contractor, city may consider the experience of each contractor on comparable construction- management or design-build projects;

(h) Construction-management contracts shall require that no more than ten (10) percent of the construction work, as measured by the cost of the work, be performed by the construction manager with its own forces and the remaining ninety (90) percent of the construction work, as measured by the cost of the work, be performed by subcontractors of the construction manager, which the construction manager shall procure by publicly advertised, competitive sealed bidding to the maximum extent practicable.

(i) The procedures are required to allow a two-step competitive process;

(j) Price is a critical basis for award of the contract; and

(k) Be authorized to post on an electronic website, or the city's own website, when and where the general contractor plans to advertise bid packages for subcontracting opportunities.

(Ord. No. 43,223, § 2, 9-9-08; Ord. No. 50,127, § 2, 9-23-25)

Sec. 33.1-60. Public contracts for information technology governed by Virginia law.

(a) As used in this section, "information technology goods and services" means communications, telecommunications, automated data processing, applications, databases, data networks, management information systems, and other related goods and services.

(b) No term or provision in any public contract for the acquisition of information technology goods or services shall be valid or enforceable to the extent that it is in conflict with Virginia law. A public contract containing such a term or provision shall otherwise remain enforceable.

(c) Any term or provision in such a public contract that (a) makes the public contract subject to, governed by, or interpreted under the laws of another state or country or (b) requires or permits any litigation or other dispute resolution proceeding arising from the public contract to be conducted in another state or country shall be void. Such public contract shall instead be deemed to provide for the application of the law of the Commonwealth of Virginia, without regard to such contract's choice of law provisions, and to provide for jurisdiction in the courts of the commonwealth.

(Ord. No. 50,044, § 1, 7-8-25)

Secs. 33.1-61—33.1-75. Reserved.

ARTICLE VI. BONDS AND BID SECURITY

Sec. 33.1-76. Construction contracts.

(1) *Bid bonds on contracts which exceed one hundred thousand dollars.* Except in cases of emergency, all bids or proposals for construction contracts in excess of one hundred thousand dollars ($100,000.00) shall be accompanied by a bid bond from a surety company selected by the bidder which is legally authorized to do business in Virginia, as a guarantee that if the contract is awarded to such bidder, that bidder will enter into the contract for the work mentioned in the bid. The amount of the bid bond shall not exceed five (5) percent of the amount bid. No forfeiture under a bid bond shall exceed the lesser of (a) the difference between the bid for which the bond was written and the next low bid, or (b) the face amount of the bid bond.

(2) *Performance and payment bonds.* Upon the award of any public construction contract exceeding one hundred thousand dollars ($100,000.00) awarded to any prime contractor, such contractor shall furnish to the city the following bonds:

(a) A performance bond in the sum of the contract amount conditioned upon the faithful performance of the contract in strict conformity with the plans, specifications, and conditions of the contract.

(b) A payment bond in the sum of the contract amount. Such bond shall be for the protection of claimants who have and fulfill contracts to supply labor or materials to the prime contractor to whom the contract was awarded, or to any subcontractors, in the prosecution of the work provided for in such contract, and shall be conditioned upon the prompt payment for all such materials furnished or labor supplied or performed in the prosecution of the work. "Labor or materials" shall include public utility service and reasonable rentals of equipment, but only for periods when the equipment rented is actually used at the site.

(3) Each of such bonds shall be executed by one or more surety companies selected by the contractor which are legally authorized to do business in Virginia.

(4) Bonds shall be made payable to the City of Norfolk.

(5) Each of the bonds shall be filed with the city or a designated office or official thereof.

(6) Nothing in this section shall preclude the city from requiring payment or performance bonds for construction contracts below one hundred thousand dollars ($100,000.00).

(7) Nothing in this section shall preclude such contractor from requiring each subcontractor to furnish a payment bond with surety thereon in the sum of the full amount of the contract with such subcontractor conditioned upon the payment to all persons who have and fulfill contracts which are directly with the subcontractor for performing labor and furnishing materials in the prosecution of the work provided for in the subcontract.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 37,367, § 1, 8-17-93)

Sec. 33.1-77. Action on performance bond.

No action against the surety on a performance bond shall be brought unless within one year after (a) completion of the contract, including the expiration of all warranties and guarantees, or (b) discovery of the defect or breach of warranty, if the action be for such.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-78. Action on payment bond.

(1) Subject to the provisions of subsection (2) hereof, any claimant who has performed labor or furnished materials in accordance with the contract documents in the prosecution of the work provided in any contract for which a payment bond has been given, and who has not been paid in full therefor before the expiration of ninety (90) days after the day on which such claimant performed the last of such labor or furnished the last of such materials for which he claims payment, may bring an action on such payment bond to recover any amount due him for such labor or materials, and may prosecute such action to final judgment and have execution on the judgment. The obligee named in the bond need not be named a party to such action.

(2) Any claimant who has a direct contractual relationship with any subcontractor from whom the contractor has not required a subcontractor payment bond under 33.1-76(7) of this chapter but who has no contractual relationship, express or implied, with such contractor, may bring an action on the contractor's payment bond only if he has given written notice to such contractor within one hundred eighty (180) days from the day on which the claimant performed the last of the labor or furnished the last of the materials for which he claims payment, stating with substantial accuracy the amount claimed and the name of the person for whom the work was performed or to whom the material was furnished. Any claimant who has a direct contractual

relationship with a subcontractor from whom the contractor has required a subcontractor payment bond under section 33.1-76(7) of this chapter but who has no contractual relationship, express or implied, with such contractor, may bring an action on the subcontractor's payment bond. Notice to the contractor shall be served by registered or certified mail, postage prepaid, in an envelope addressed to such contractor at any place where his office is regularly maintained for the transaction of business. Claims for sums withheld as retainage with respect to labor performed or materials furnished, shall not be subject to the time limitations stated in this subsection.

(3) Any action on a payment bond must be brought within one year after the day on which the person bringing such action last performed labor or last furnished or supplied materials
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-79. Bonds on other than construction contracts.

The city may require bid, payment or performance bonds for contracts for goods or services if provided in the invitation for bids or request for proposals.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-80. Alternative forms of security.

(1) In lieu of a bid, payment, or performance bond, a bidder may furnish a certified check or cash escrow in the face amount required for the bond.

(2) If approved by the city attorney, a bidder may furnish a personal bond, property bond, or bank or saving and loan association letter of credit on certain designated funds in the face amount required for the bid, payment or performance bond. Approval shall be granted only upon a determination that the alternative form of security proffered affords protection to the city which is equivalent to the corporate surety's bond.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 35,588, § 1, 6-20-89)

Secs. 33.1-81—33.1-85. Reserved.

ARTICLE VII. ETHICS IN PUBLIC CONTRACTING

Sec. 33.1-86. Purpose.

The provisions of this chapter supplement, but do not supersede, other provisions of law including but not limited to, the State and Local Government Conflict of Interests Act (Virginia Code, § 2.1-639.1 et seq.), the Virginia Governmental Frauds Act (Virginia Code, § 18.2-498.1 et seq.), and Articles 2 (Virginia Code, § 18.2-438 et seq.) and 3 (Virginia Code, § 18.2-446 et seq.) of Chapter 10 of Title 18.2 (related to bribery). The provisions of this article apply notwithstanding the fact that the conduct described may not constitute a violation of the State and Local Government Conflict of Interests Act.
(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 34,573, § 2, 6-30-87)

Sec. 33.1-87. Proscribed participation by public employees in procurement transactions.

Except as may be specifically allowed by provisions of the State and Local Government Conflict of Interests Act (Virginia Code, section 2.1-639.1 et seq.), no public employee having official responsibility for a procurement transaction shall participate in that transaction on behalf of the public body when the employee knows that:

(1) The employee is contemporaneously employed by a bidder, offeror or contractor involved in the procurement transaction; or

(2) The employee, the employee's partners, or any member of the employee's immediate family holds a position with a bidder, offeror or contractor such as an officer, director, trustee, partner or the like, or is employed in a capacity involving personal and substantial participation in the procurement transaction, or owns or controls an interest of more than five (5) percent; or

(3) The employee, the employee's partner, or any member of the employee's immediate family has a pecuniary interest arising from the procurement transaction; or

(4) The employee, the employee's partner, or any member of the employee's immediate family is negotiating, or has an arrangement concerning, prospective employment with a bidder, offeror or contractor.

(Ord. No. 33,095, § 1, 9-11-84; Ord. No. 34,573, § 3, 6-30-87)

Sec. 33.1-88. Solicitation or acceptance of gifts.

No public employee having official responsibility for a procurement transaction shall solicit, demand, accept, or agree to accept from a bidder, offeror, contractor or subcontractor any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal or minimal value, present or promised, unless consideration of substantially equal or greater value is exchanged. The city may recover the value of anything conveyed in violation of this section.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-89. Disclosure of subsequent employment.

No public employee or former public employee having official responsibility for procurement transactions shall accept employment with any bidder, offeror or contractor with whom the employee or former employee dealt in an official capacity concerning procurement transactions for a period of one year from the cessation of employment by the city unless the employee, or former employee, provides written notification to the city manager prior to commencement of employment by that bidder, offeror or contractor.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-90. Gifts by bidders, offerors, contractors or subcontractors.

No bidder, offeror, contractor or subcontractor shall confer upon any public employee having official responsibility for a procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised, unless consideration of substantially equal or greater value is exchanged.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-91. Kickbacks.

(1) No contractor or subcontractor shall demand or receive from any of his suppliers or his subcontractors, as an inducement for the award of a subcontract or order, any payment, loan, subscription, advance, deposit of money, services or anything, present or promised, unless consideration of substantially equal or greater value is exchanged.

(2) No subcontractor or supplier shall make, or offer to make, kickbacks as described in this section.

(3) No person shall demand or receive any payment, loan, subscription, advance, deposit of money, services or anything of value in return for an agreement not to compete on a public contract.

(4) If a subcontractor or supplier makes a kickback or other prohibited payment as described in this section, the amount thereof shall be conclusively presumed to have been included in the price of the subcontract or order and ultimately borne by the city and will be recoverable from both the maker and recipient. Recovery from one offending party shall not preclude recovery from other offending parties.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-92. Purchase of building materials, supplies or equipment from architect or engineer prohibited.

Except in cases of emergency, no building materials, supplies or equipment for any building or structure constructed by or for the city shall be sold by or purchased from any person employed as an independent contractor by the city to furnish architectural or engineering services, but not construction, for such building or structure, or from any partnership, association, or corporation in which such architect or engineer has a pecuniary interest.
(Ord. No. 33,095, § 1, 9-11-84)

Sec. 33.1-92.1. Participation in bid preparation; limitation on submitting bid for same procurement.

No person who, for compensation, prepares an invitation to bid or request for proposals for or on behalf of the city shall:

(i) Submit a bid or proposal for that procurement or any portion thereof; or

(ii) Disclose to any bidder or offeror information concerning the procurement that is not available to the public. However, the city may permit such person to submit a bid or proposal for that procurement or any portion thereof if the city determines that the exclusion of the person would limit the number of potential qualified bidders or offerors in a manner contrary to the best interests of the city.

(Ord. No. 43,223, § 2, 9-9-08)

Sec. 33.1-92.2. Certification of compliance required; penalty for false statements

(1) The city may require public employees having official responsibility for procurement transactions in which they participated to annually submit for such transactions a written certification that they complied with the provisions of this article.

(2) Any public employee required to submit a certification as provided in subsection (1) who knowingly makes a false statement in the certification shall be punished as provided in section 33.1-95.

(Ord. No. 43,223, § 2, 9-9-08)

Sec. 33.1-92.3. Misrepresentations prohibited.

No public employee having official responsibility for a procurement transaction shall knowingly falsify, conceal, or misrepresent a material fact; knowingly make any false, fictitious or fraudulent statements or representations; or make or use any false writing or document knowing it to contain any false, fictitious or fraudulent statement or entry.

(Ord. No. 43,223, § 2, 9-9-08)

Sec. 33.1-93. Penalty for violation.

Willful violation of any provision of this article shall constitute a Class 1 misdemeanor. Upon conviction, any public employee, in addition to any other fine or penalty provided by law, shall forfeit his employment.

(Ord. No. 33,095, § 1, 9-11-84)

State law reference—Similar provisions, Code of Virginia, § 11-80.

Sec. 33.1-94—33.1-100. Reserved.

ARTICLE VIII. REMEDIES

Sec. 33.1-101. Ineligibility.

(a) Any bidder, offeror or contractor refused permission to, or disqualified from participation in public contracts shall be notified in writing. Such notice shall state the reasons for the action taken. This decision shall be final unless the bidder, offeror, or contractor appeals within thirty (30) days of receipt by instituting legal action as provided in section 33.1-106 of this Code.

(b) If, upon appeal, it is determined that the action taken was arbitrary or capricious, or not in accordance with the constitution of Virginia, statutes or regulations, the sole relief shall be restoration of eligibility.

(Ord. No. 36,892, § 1, 6-23-92)

Sec. 33.1-102. Appeal of denial of withdrawal of bid.

(a) A decision denying withdrawal of bid under the provisions of section 33.1-42 shall be final and conclusive unless the bidder appeals the decision within ten (10) days after receipt of the decision by instituting legal action as provided in section 33.1-106 of this Code.

(b) If no bid bond was posted, a bidder refused withdrawal of a bid under the provisions of section 33.1-42, prior to appealing, shall deliver to the city a certified check or cash bond in the amount of the difference between the bid sought to be withdrawn and the next low bid. such security shall be released only upon a final determination that the bidder was entitled to withdraw the bid.

(Ord. No. 36,892, § 1, 6-23-92)

Sec. 33.1-103. Determination of nonresponsibility.

(a) Any bidder who, despite being the apparent low bidder, is determined not to be a responsible bidder for a particular contract shall be notified in writing. Such notice shall state the basis for the determination, which shall be final

unless the bidder appeals the decision within ten days by instituting legal action as provided in section 33.1-106 of the Code.

(b) If, upon appeal, it is determined that the decision of the city was arbitrary or capricious, and the award of the contract in question has not been made, the sole relief shall be a finding that the bidder is a responsible bidder for the contract in question. If it is determined that the decision of the city was arbitrary or capricious, the relief shall be as set forth in section 33.1-104.

(c) A bidder contesting a determination that he is not a responsible bidder for a particular contract shall proceed under this section, and may not protest the award or proposed award under section 33.1-104 of the Code.

(d) Nothing contained in this section shall be construed to require the city, when procuring by competitive negotiation, to furnish a statement of the reasons why a particular proposal was not deemed to be the most advantageous.
(Ord. No. 36,892, § 1, 6-23-92)

Sec. 33.1-104. Relief.

If prior to an award it is determined that the decision to award is arbitrary or capricious, then the sole relief shall be a finding to that effect. The city shall cancel the proposed award or revise it to comply with the law. If, after an award, it is determined that an award of a contract was arbitrary or capricious, then the sole relief shall be as hereinafter provided. Where the award has been made but performance has not begun, the performance of the contract may be enjoined. Where the award has been made and performance has begun, the city may declare the contract void upon a finding that this action is in the best interest of the public. Where a contract is declared void, the performing contractor shall be compensated for the cost of performance up to the time of such declaration. In no event shall the performing contractor be entitled to lost profits.
(Ord. No. 36,892, § 1, 6-23-92)

Sec. 33.1-105. Effect of appeal upon contract.

Pending final determination of an appeal, the validity of a contract awarded and accepted in good faith in accordance with this chapter shall not be affected by the fact that an appeal has been filed.
(Ord. No. 36,892, § 1, 6-23-92)

Sec. 33.1-106. Legal actions.

(a) A bidder or offeror, actual or prospective, who is refused permission or disqualified from participation in procurement, or who is determined not to be a responsible bidder or offeror for a particular contract, may bring an action in the Norfolk Circuit Court challenging that decision which shall be reversed only if the petitioner establishes that the decision was arbitrary or capricious.

(b) A bidder denied withdrawal of a bid under section 33.1-42 of this Code may bring an action in the Norfolk Circuit Court challenging that decision, which shall be reversed only if the bidder establishes that the decision of the city was clearly erroneous.

(c) A bidder, offeror or contractor, or a potential bidder or offeror on a contract negotiated on a sole source or emergency basis in the manner provided in sections 33.1-40 and 33.1-41, may bring an action in Norfolk Circuit Court challenging a proposed award or the award of a contract, which shall be reversed only if the petitioner establishes that the proposed award is not an honest exercise of discretion, but rather is arbitrary or capricious or not in accordance with the Constitution of Virginia, statutes, regulations or the terms and conditions of the invitation to bid or request for proposals.

(d) If injunctive relief is granted, the court, upon request of the city, shall require the posting of reasonable security to protect the city.

(e) A contractor may bring an action involving a contract dispute with the city in the Norfolk Circuit Court.

(f) Nothing herein shall be construed to prevent the city from instituting legal action against a contractor.
(Ord. No. 36,892, § 1, 6-23-92)

Secs. 33.1-107—33.1-109. Reserved.

ARTICLE IX. PUBLIC-PRIVATE PARTNERSHIPS*

Sec. 33.1-110. Purpose.

(a) *Purpose and definitions.* This article enacts the guidelines that the City of Norfolk, Virginia, ("city") shall follow in implementing the Public-Private Education Facilities and Infrastructure Act of 2002, § 56-575.1 et seq. of the Code of Virginia, 1950, as amended (PPEA). Pursuant to the PPEA, this article allows the city to create public-private partnerships for the development of projects for public use if the city determines that there is a need for a project and that private involvement may provide the project in a timely and cost-effective fashion. In order for a project to come under the PPEA, it must meet the definition of a "qualifying project" as defined within the PPEA. Individually negotiated interim and comprehensive agreements will define the respective rights and obligations of the city and the private party in any project approved pursuant to this article.

The terms used in this article shall have the meanings ascribed to them by the PPEA at § 56-575.1 of the Code of Virginia, 1950, as amended, or by section 33.1-20 of the Code of the City of Norfolk, 1979, as amended, unless the context clearly indicates a different meaning. "Business days" means Monday through Friday excluding city holidays. "Calendar days" means any day of the week including holidays.
(Ord. No. 45,063, § 1, 4-9-13)

Sec. 33.1-111. General provisions.

(a) *Proposal submission.*

(1) A proposal may be either solicited by the city ("solicited proposal") or delivered to the city by a private entity on an unsolicited basis ("unsolicited proposal"). Offeror's shall follow a two-part proposal submission process consisting of an initial conceptual phase and then a detailed phase. The conceptual phase of the proposal shall contain specified information on the offeror's qualifications and experience, project characteristics, project financing, anticipated public support or opposition, or both, project benefit and compatibility and any other matters the city requests. The detailed phase of a proposal shall contain specified deliverables. Any proposal submitted pursuant to this policy shall be clearly identified as a PPEA proposal.

(2) Any unsolicited proposal shall be submitted to the city by delivering six (6) complete copies, together with the required initial review fee as provided below, to the city manager or his designee. The city manager shall establish a committee to review and evaluate all solicited or unsolicited proposals and make recommendations to the city council concerning them. The city may require any proposal to be clarified in any manner, including but not limited to, requiring the submission of additional documentation, responses to specific written questions and interviews with the offeror and any potential project participants.

(3) In addition to describing the project, conceptual proposals should provide a description of the proposer's capabilities to complete the proposed qualifying project and the benefits to be derived from the qualifying project. Conceptual proposals should also include a scope of work and a financial plan for the project, which must contain enough detail to allow an analysis by the city of the financial feasibility of the proposed project. The cost analysis of a proposal should not be linked solely to the financing plan, as the city may determine to finance the project through other available means. The specific requirements for any solicited proposal shall be identified in the city's request for proposals ("RFP").

(b) *Affected jurisdictions.*

(1) Any private entity requesting approval from or submitting a conceptual or de-

*__Editor's note—__Ord. No. 45,063, § 1, adopted April 9, 2013, amended Art. IX in its entirety to read as herein set out. Former Art. IX, §§ 33.1-110—33.1-117, pertained to similar subject matter, and derived from Ord. No. 42,265, § 1, adopted May 9, 2006.

tailed proposal to the city must provide any other affected jurisdictions with a copy of the proposal by certified mail, express delivery or hand-delivery within five (5) business days of its submission of the proposal to the city. Such affected jurisdiction shall have sixty (60) calendar days from the date of receipt to submit written comments to the city indicating whether the proposed qualifying project is compatible with the (a) city's comprehensive plan, (b) city's infrastructure development plans or (c) city's capital improvements, city's budget or other government spending plan. The city will consider comments received within the deadline; however, no negative inference will be drawn from the absence of comment by an affected jurisdiction. Still, the city may begin or continue its evaluation of any such proposal during the 60-day period for receipt of comments from affected jurisdictions.

(2) The city may engage the services of qualified professionals, including but not limited to, an architect, professional engineer or certified public accountant not otherwise employed by the city, to provide independent analysis.

(c) *Freedom of Information Act.*

(1) General applicability of disclosure provisions. Proposal documents submitted by private entities are generally subject to the Virginia Freedom of Information Act ("FOIA") except that subdivision 11 of § 2.2-3705.6 of the Code of Virginia, 1950, as amended, exempts certain documents from public disclosure. FOIA exemptions, however, are discretionary, and the city may elect to release some or all of the proposal documents except to the extent the documents are:

a. Trade secrets of the private entity as defined in the Uniform Trade Secrets Act § 59.1-336 et seq. of the Code of Virginia, 1950, as amended.

b. Financial records of the private entity that are not generally available to the public through regulatory disclosure or otherwise, including but not limited to, balance sheets and financial statements; or

c. Other information submitted by a private entity, where, if the record or document were made public prior to the execution of an interim or comprehensive agreement, the financial interest or bargaining position of the public or the private entity would be adversely affected.

Additionally, the city shall comply with the provisions of any court order compelling access or protecting from disclosure any proposal documents submitted by private entities.

(2) Protection from mandatory disclosure for certain documents submitted by a private entity.

a. Any confidential and proprietary information provided to the city pursuant to this article shall be subject to disclosure under FOIA except as provided by § 56-575.4 G of the Code of Virginia, 1950, as amended.

b. Before documents of a private entity may be withheld from disclosure, the private entity shall first make a written request for their withholding to the city. The private entity shall submit the request at the same time the documents are submitted and designate with specificity the documents for which the protection is being sought. The private entity shall also provide in its submission a clear statement of the reasons for invoking the protection with reference to one or more of the three classes of records listed in this article. A private entity may request and receive a determination from the city as to the anticipated scope of protection before submitting a proposal.

c. Upon the receipt of a written request for protection of documents, the city will determine, with the advice of

the city attorney, whether the documents contain (i) trade secrets, (ii) financial records, or (iii) other information that would adversely affect the financial interest or bargaining position of the city or the private entity in accordance with this article. The city attorney shall make a written determination of the nature and scope of the protection to be afforded by the city. If the written determination provides less protection than requested by the private entity, the private entity will be accorded a reasonable opportunity to clarify and justify its request and re-submit it. If thereafter the city attorney's final determination is to afford less protection than requested, the private entity will be given a chance to withdraw its proposal. Nothing shall prohibit further negotiations of the documents to be accorded protection from release, although what may be protected must be limited to the categories of records identified within this article.

d. Once the city attorney has made a final written determination, the protected documents shall continue to be protected from disclosure while in the possession of the city or any affected local jurisdiction. Any documents afforded such protection shall continue to be protected from disclosure when in the possession of the city or any affected jurisdiction to which such documents are provided.

e. If a private entity fails to designate trade secrets, financial records, or other confidential or proprietary information for protection from disclosure, such information, records or documents shall be subject to disclosure under FOIA.

(3) Protection from mandatory disclosure for certain documents produced by the city. The council may withhold from disclosure memoranda, staff evaluations, or other records prepared by the city, its staff, outside advisors, or consultants exclusively for the evaluation and negotiation of proposals: (a) if such records were made public prior to or after the execution of an interim or a comprehensive agreement, the financial interest or bargaining position of the council would be adversely affected, and (b) the basis for the determination required in clause (a) is documented in writing by the city.

Cost estimates relating to a proposed procurement transaction prepared by or for the city shall not be open to public inspection.

(4) The city may not withhold from public access:

a. Procurement records other than those subject to the written determination of the city;

b. Information concerning the terms and conditions of any interim or comprehensive agreement, service contract, lease, partnership, or any agreement of any kind entered into by the city and the private entity;

c. Information concerning the terms and conditions of any financing arrangement that involves the use of any public funds; or

d. Information concerning the performance of any private entity developing or operating a qualifying project.

However, to the extent that access to any procurement record or other document or information is compelled or protected by a court order, the city must comply with such order.

(d) *Use of public funds.* Virginia constitutional and statutory requirements as they apply to appropriation and expenditure of public funds apply to any interim or comprehensive agreement entered into under the PPEA and pursuant to this article. Accordingly, the processes and procedural requirements associated with the expenditure or

obligation of public funds shall be incorporated into planning for any project done pursuant to this article.

(e) *Applicability of other laws.* Nothing in this article shall affect the duty of the city to comply with all other applicable laws not in conflict with this article. The applicability of the Virginia Public Procurement Act (the "VPPA"), § 2.2-4300 et seq. of the Code of Virginia, 1950, as amended, is as set forth in the PPEA.
(Ord. No. 45,063, § 1, 4-9-13)

Sec. 33.1-112. Solicited proposals.

(a) The city may issue a request for proposals (RFP) inviting proposals from private entities to develop or operate qualifying projects pursuant to this article. The city will use a two-part proposal process consisting of an initial conceptual phase and a detailed phase. In such solicitations the city will set forth in the RFP the format and supporting information that the city requires to be submitted, consistent with the provisions of the PPEA and this article. The city may also establish suggested timelines for the review and selection of solicited proposals. The city reserves the right, at any time, to cancel any solicitation or to reject any solicited PPEA proposal, in the city's sole discretion. Furthermore, the city reserves the right to solicit proposals under this article after receiving an unsolicited proposal; in the event the city so elects, the provisions applying to soliciting proposals shall govern.

(b) The RFP will specify any information and documents required by the city as well as the factors the city will use in evaluating any submitted proposals. The RFP will be posted in such public areas as are normally used for posting of the city notices, including but not limited to the city's website. Notices will also be published in a newspaper of general circulation in the city and the Hampton Roads area, advertised in Virginia Business Opportunities and posted on the commonwealth's electronic procurement website. In addition, solicited proposals will be posted pursuant to this article. The RFP will also contain or incorporate by reference other applicable terms and conditions, including any unique capabilities or qualifications that will be required of private entities submitting proposals. Pre-proposal conferences will be held as deemed appropriate by the city. Any proposal not submitted in response to a RFP issued pursuant to this article shall be an unsolicited proposal.
(Ord. No. 45,063, § 1, 4-9-13)

Sec. 33.1-113. Unsolicited proposals.

The city may, pursuant to the PPEA and this article, publicize its needs and encourage interested parties to submit unsolicited proposals. When a proposal is received without the prior issuance of an official RFP, the proposal is an unsolicited proposal. The city will establish timelines for the review and selection of unsolicited proposals. Unsolicited proposals shall be submitted to the city manager or his/her designee.

(a) *Decision to accept and consider unsolicited proposal; notice.*

(1) The city reserves the right to reject any unsolicited proposals at any time, in its sole discretion.

(2) Upon receipt of any unsolicited proposal or group of proposals and payment of the required fee, the city will initially determine whether to accept the unsolicited proposal for the purpose of publication and conceptual-phase consideration, as described below. If the city determines not to accept an unsolicited proposal, it will return the proposal, together with any fees not expended in initially considering the proposal and accompanying documentation, to the private entity.

(3) If the city chooses to accept an unsolicited proposal for publication and conceptual-phase consideration, it will give public notice in accordance with the PPEA and this article and specify a period of time not less than forty-five (45) days during which it will receive competing unsolicited proposals pursuant to § 56-575.4 of the Code of Virginia, 1950, as amended and this article. The city will publish notice during this period in one or

more newspapers or periodicals of general circulation within the city and the Hampton Roads area to notify other parties that may be interested in submitting competing unsolicited proposals. In addition, the notice will be advertised in Virginia Business Opportunities and on the Commonwealth's electronic procurement website. The notice shall state that the city (a) has received an unsolicited proposal under the PPEA, (b) intends to evaluate the proposal, (c) may negotiate an interim or comprehensive agreement with the proposer based on the proposal, and (d) will receive for simultaneous consideration any competing unsolicited proposals that comply with the PPEA and this article. The notice will also summarize the proposed qualifying project, and identify its proposed locations.

(4) To ensure that sufficient information is available upon which to base the development of a serious competing unsolicited proposal, representatives of the city familiar with the initial unsolicited proposal and this article will be available to respond to inquiries and meet with private entities that are considering the submission of competing unsolicited proposals. The city will conduct an analysis of the information pertaining to the unsolicited proposal included in the notice to ensure that such information sufficiently encourages competing unsolicited proposals. The city will also establish criteria, including but not limited to, key decision points and approvals, to ensure proper consideration of the extent of competition from available private entities prior to selection. Copies of the unsolicited proposals will be available upon request, subject to the provisions of FOIA and § 56-575.4 G of the Code of Virginia, 1950, as amended.

(5) Before the city posts notice and proceeds, the initial proposer shall pay the balance due, if any, of the required review fee.

(b) *Proposal posting requirements.*

(1) Conceptual proposals, whether solicited or unsolicited, shall be posted by the city within ten (10) business days after acceptance of such proposals in the following manner:

a. The city will post the proposal or a summary thereof on its website and by publication, in a newspaper of general circulation in the city and the Hampton Roads area. The city may also post the proposal on the department of general service's web-based electronic procurement program commonly known as "eVA," in the discretion of the city.

b. The posting will include, either (i) a copy of the proposal, except for items afforded protection pursuant to this article, or (ii) a summary of the proposal and the location(s) where copies of it are available for public inspection. At least one copy of the proposal(s) shall be made available for public inspection.

(2) Nothing within this article shall be construed to prohibit the posting of any conceptual proposals by additional means deemed appropriate by the city so as to provide maximum notice to the public of the opportunity to inspect any proposals.

(3) Trade secrets, financial records, or other records of the private entity excluded from disclosure under the provisions of subdivision 11 of § 2.2-3705.6 of the Code of Virginia, 1950, as amended, or this article need not be posted, except as otherwise agreed to by the city and the private entity. The city will impose reasonable re-

strictions upon the inspection of any procurement transaction records to ensure the security and integrity of the records.

(c) *Proposal review fee.*

(1) The city will charge a fee to any private entity to cover the costs of processing, reviewing, and evaluating any unsolicited proposal or competing unsolicited proposal submitted, including the costs of attorneys, outside consultants, and financial advisors. Except as otherwise provided in the RFP of a solicited proposal, no fee will be charged to process, review or evaluate solicited proposals.

(2) For unsolicited proposals and competing unsolicited proposals, the city shall impose review fees based on the reasonably anticipated costs to the city in accordance with the following schedule:

a. The payment of an initial fee must accompany the submission of an unsolicited proposal to the city before it will proceed with its initial review. This fee shall be one thousand dollars ($1,000.00).

b. The city will impose additional fees throughout the processing, review and evaluation of the unsolicited proposal if and as the city reasonably anticipates incurring costs in excess of the initial fee. The city will notify the private entity of such additional fees as and when it anticipates incurring such costs, and the city's further continuance of the review process will be conditioned upon prompt payment of any additional fees required.

(d) *Review by the city at the conceptual stage.*

(1) Only unsolicited proposals fully complying with the requirements of this article and the PPEA that contain sufficient information for a meaningful evaluation and that are provided in the required format will be considered by the city for publication and further review at the conceptual stage.

(2) The city will determine in writing before commencing the conceptual stage of review whether it will proceed using (a) standard procurement procedures consistent with the VPPA and its procurement ordinance, or (b) procedures under this article. However, the city may proceed to the conceptual phase under this article only if it first makes a written determination with the advice of the city attorney that doing so is likely to be advantageous to the city and the public based upon either: the probable scope, complexity or priority of need; the risk sharing, including but not limited to, guaranteed cost or completion guarantees, added value or debt, or equity investments proposed by the private entity; or the increase in funding, dedicated revenue or other economic benefit that would otherwise not be available.

(3) After reviewing the original unsolicited proposal and any competing proposals submitted during the notice period, the city will determine either: (a) not to proceed further with any proposal; (b) to proceed to the detailed phase of review with the original proposal; (c) to proceed to the detailed phase with a competing proposal; (d) to proceed to the detailed phase with multiple proposals; or (e) to request modifications or amendments to any proposals and postpone the final decision under this subsection. The decision to proceed to the detailed phase on a conceptual proposal shall not commit the city to going forward with the proposal, and the city reserves the right, at its sole discretion, to reject

a proposal after entering the detailed phase of its review. If the city proceeds with more than one proposal into the detailed stage, the city may, as its sole discretion, choose to reimburse the unsuccessful proposer for costs incurred in the detailed phase of review, and charge such costs to the successful proposer in the interim or comprehensive agreement.

(4) Discussions between the city and any private entity about the need for infrastructure improvements shall not limit the ability of the city to choose to use standard procurement procedures to meet its infrastructure needs. The city retains the right to reject any proposal at any time prior to the city's approval of and the city's execution of an interim or comprehensive agreement.

(Ord. No. 45,063, § 1, 4-9-13)

Sec. 33.1-114. Proposal preparation and submission.

(a) *Information format for submissions at conceptual phase.* Except as provided otherwise in this article or in any RFP issued for solicited proposals, conceptual stage proposals shall include the following information in the format indicated, together with any other information or documents that the city may request.

(1) *Qualification and experience.*

a. Identify the legal structure of the firm or consortium of firms making the proposal. Identify the organizational structure for the project, the management approach and how each partner and major subcontractor in the structure fits into the overall team. All members of the proposer's team known to the proposer shall be identified and submitted at this time. Identified team members may not be substituted or replaced after the execution of a comprehensive agreement without the approval of the city in the form of a written amendment to such agreement.

b. Describe the experience of the firm or consortium of firms making the proposal and the key principals involved in the proposed project, including experience with projects of comparable size and complexity. Describe the length of time in business, business experience, public sector experience and other engagements of the firm or consortium of firms. Include the identity of any firms that will provide design, construction and completion guarantees and warranties, and a description of such guarantees and warranties.

c. For each firm, contractor or major sub contractor utilized in the project, provide a statement listing all of their prior projects and clients for the past three (3) years with contact information, including names, addresses, telephone numbers and email addresses if available. If such entity has worked on more than ten (10) projects during this period, it may limit its response to ten (10), but (i) shall include all projects similar in scope and size to the proposed project, and (ii) shall include as many of its most recent projects as possible. Each such entity must submit all performance evaluation reports or other documents in its possession evaluating its performance during the preceding three (3) years in terms of cost, quality, schedule, safety and other matters relevant to successful project development, operation and completion.

d. Provide the names, addresses, and telephone numbers of persons within the firm or consortium of firms making the proposal who may be contacted for further information.

e. Provide a current or most recently audited financial statement of the

firm or firms and each partner with an equity interest of twenty (20) percent or greater.

f. Identify any persons known to the proposer who would be obligated to disqualify themselves from participation in any transaction arising from or in connection to the project pursuant to the Virginia State and Local Government Conflict of Interest Act (COIA), Chapter 31 (§ 2.2-3100 et seq.) of Title 2.2 of the Code of Virginia, 1950, as amended.

g. Provide for each firm, major contractor or major subcontractor that will perform construction and/or design activities, a sworn certification by an authorized representative of the firm, major contractor or subcontractor attesting to the fact that it is not currently debarred or suspended from government design or construction projects by any federal, state or local government entity.

(2) *Project characteristics.*

a. Provide a description of the project, including the conceptual design. Describe the proposed project in sufficient detail so that type and intent of the project, the location, and the communities that may be affected are clearly identified.

b. Identify and fully describe any work to be performed by the city or any other public entity.

c. Include a list of all federal, state, and local permits and approvals required for the project and a schedule for obtaining such permits and approvals.

d. Identify any anticipated adverse social, economic, and environmental impacts of the project. Specify the strategies or actions to mitigate any known adverse impacts of the project.

e. Identify the projected positive social, economic, and environmental impacts of the project.

f. Identify the proposed schedule for the work on the project, including the estimated time for completion, and identify contingency plans for addressing public needs in the event that all or some of the project is not completed according to the proposed schedule.

g. Propose allocation of risk and liability for work completed beyond the agreement's completion date, and assurances for timely completion of the project.

h. Identify assumptions related to ownership, legal liability, law enforcement, and operation of the project and the existence of any restrictions on the city's use of the project.

i. Provide information relative to phased or partial openings of the proposed project prior to completion of the entire work.

j. Describe any architectural, building, engineering or other applicable standards that the project will meet.

k. List any contingencies that must occur for the project to be successful.

l. List any other assumptions relied upon for the project to succeed.

(3) *Project financing.*

a. Provide a preliminary estimate (and estimating methodology) of the cost of the work by phase, segment, or both.

b. Submit a plan for the development, financing, and operation of the project showing the anticipated schedule on which funds will be required. Describe the anticipated costs of and proposed sources and uses for such funds including any anticipated debt service costs. The operational plan shall include appropriate staffing lev-

els and associated costs, and any due diligence studies, analyses, or reports.

c. Include a list and discussion of assumptions underlying all major elements of the plan. Assumptions shall include all fees associated with financing given the recommended financing approach and disclose all interest rate assumptions. Also disclose any ongoing operational fees, if applicable, as well as any assumptions with regard to increases in such fees.

d. Identify all anticipated risk factors and methods for dealing with them.

e. Identify any local, city, state, or federal resources that the proposer contemplates requesting for the project. Describe the total commitment, if any, expected from government sources (and identify each source), and the timing of any anticipated commitment. Such disclosure shall include any direct or indirect guarantees or pledges of the city's credit or revenue.

f. Identify the amounts and the terms and conditions for any revenue sources.

g. Identify any aspect of the project that could disqualify the project from obtaining tax-exempt financing.

(4) *Project benefit and compatibility.*

a. Identify who will benefit from the project, how they will benefit and how the project will benefit the city, the overall community, region or state. Describe the nature of these benefits. Indicate whether additional tax revenue will be generated for the city and in what amount.

b. Identify any anticipated public support or opposition, as well as any anticipated government support or opposition, for the project.

c. Explain the strategy and plans that will be carried out to involve and inform the general public, business community, and governmental agencies within the city and any other areas affected by the project.

d. Describe the anticipated benefits to the city, the region or state as a whole, including but not limited to, any anticipated benefits to the economic condition of the city. Indicate whether the project is critical to attracting or maintaining competitive industries and businesses to the city or the region.

e. Describe the project's compatibility with the city's local comprehensive plan, local infrastructure development plans, capital improvements budget, and any other government spending plan.

f. Provide a statement indicating what participation efforts the proposer intends to undertake in connection with this project with regard to including the following types of businesses: (i) minority-owned businesses, (ii) woman-owned businesses, and (iii) small businesses.

(b) *Format for submissions at detailed stage.* If the city decides to proceed to the detailed phase of review with one or more proposals, the following information shall be provided by each proposer unless waived by the city:

(1) A topographical map (1:2,000 or other appropriate scale) depicting the location of the proposed project;

(2) A list of public utility facilities, if any, that will be crossed by the project and a statement of the plans of the proposer to accommodate such crossings, which shall include the names and addresses, if known, of the current owners, and a list of any properties the proposer will ask the city to condemn;

(3) A statement and strategy setting out the plans for securing all necessary property and the estimated cost of such property;

(4) A detailed listing of all firms that will provide specific design, construction and completion guarantees and warranties, and a description of such guarantees and warranties;

(5) A total life-cycle cost specifying methodology and assumptions of the project or projects and the proposed project start date. Include anticipated commitment of all parties; equity, debt, and other financing mechanisms; and a schedule of project revenues and project costs. The life-cycle cost analysis shall include, but not be limited to, a detailed analysis of the projected return, rate of return, or both, expected useful life of facility, and estimated annual operating expenses;

(6) A detailed discussion of assumptions about user fees or rates, and usage of the projects.

(7) Identification of any known government support or opposition, or general public support or opposition for the project. Government or public support shall be demonstrated through resolution of official bodies, minutes of meetings, letters, or other official communications;

(8) Demonstration of consistency with appropriate local comprehensive or infrastructure development plans or indication of the steps required for acceptance into such plans;

(9) Sufficient design and engineering detail to establish floor plans, elevations and site characteristics;

(10) Explanation of how the proposed project would impact the city's development plans and those of any affected jurisdictions;

(11) Identification of the executive management and the officers and directors of the firm or firms submitting the proposal. In addition, identification of any known conflicts of interest or other disabilities that may impact the city's consideration of the proposal or the city's approval of any interim or comprehensive agreement, including the identification of any persons known to the proposer obligated to disqualify themselves from participation in any transaction arising from or in connection to the project pursuant to the COIA;

(12) Detailed analysis of the financial feasibility of the proposed project, including its impact on similar facilities operated or planned by the city. This analysis shall include a detailed description of any financing plan proposed for the project, a comparison of that plan with financial alternatives that may be available to the city and all underlying data supporting any conclusions reached in the proposer's analysis or selection of the financing plan proposed for the project;

(13) Detailed listing of all performance securities the proposer will provide to guarantee success of the project, and what payments or returns will be made to the city if the project is not fully and successfully completed; and

(14) Any other additional material and information the city may request.

(Ord. No. 45,063, § 1, 4-9-13)

Sec. 33.1-115. Proposal evaluation.

The city will consider the following when evaluating and selecting a proposal under the PPEA and this article:

(a) *Qualifications and experience.* Factors to be considered in either phase of the city's review to determine whether the private entity possesses the requisite qualifications and experience include:

(1) Experience with similar projects;

(2) Demonstration of ability to perform work, including but not limited to, a record of successful past performances on similar projects;

(3) Leadership structure;

(4) Project manager's experience;

(5) Management approach;

(6) Financial condition;

(7) Project ownership; and

(8) Any other factors the city deems appropriate.

(b) *Project characteristics.* Factors to be considered in determining the project characteristics include but are not limited to:

(1) Project definition;

(2) Proposed project schedule;

(3) Operation of the project;

(4) Technology and technical feasibility;

(5) Conformity to laws, regulations, and standards;

(6) Environmental impacts;

(7) Condemnation impacts;

(8) City, state and other local permits (if any);

(9) Maintenance of the project; and

(10) Any other factors the city deems appropriate.

(c) *Project financing.* Factors to be considered in determining whether the proposed project financing allows access to the necessary capital at the lowest practical cost given the nature of the project shall include but are not limited to:

(1) Cost and cost benefit to the city;

(2) Financing and the impact on the debt burden of the city;

(3) Financial plan, including the overall feasibility and reliability of the plan; the proposer's past performance with similar plans and projects; and the degree to which the proposer has conducted a due diligence investigation of the proposed financial plan and the results of any such inquiries or studies;

(4) Opportunity costs assessment;

(5) Estimated cost;

(6) Life-cycle cost analysis;

(7) The identity, credit history and past performance of any third party that will provide financing for the project and the nature and timing of their commitment, as applicable; and

(8) Such other items as the city deems appropriate.

In the event that any project is financed through the issuance of obligations that are deemed to be tax-supported debt of the city, or if financing such a project may impact the city's debt rating or financial position, the city may choose to select its own finance team, source, and financing vehicle.

(d) *Project benefit and compatibility.* Factors to be considered in determining the proposed project's compatibility with any appropriate local or regional comprehensive or development plans include but are not limited to:

(1) Community benefits;

(2) Community support or opposition, or both;

(3) Strategies for involving the community in decisions;

(4) Compatibility with existing and planned city facilities; and

(5) Compatibility with city and any other relevant local, regional, and state economic development efforts.

(e) *Other factors.* Other factors that may be considered by the city in the evaluation and selection of proposals pursuant to this article include but are not limited to:

(1) The proposed cost of the qualifying project;

(2) The general reputation, industry experience, and financial capacity of the proposer;

(3) The proposed design of the qualifying project;

(4) The eligibility of the project for accelerated documentation, review, and selection;

(5) The comments of Norfolk citizens and government agencies;

(6) The likely benefits to the public, including financial and nonfinancial;

(7) The private entity's compliance with a minority business enterprise participation plan or good faith effort to comply with the goals of such plan;

(8) The private entity's plans to employ local contractors and residents;

(9) The recommendation of a committee established to provide advisory oversight for the project, made up of representatives of the city; and

(10) Any other criteria that the city deems appropriate.

(Ord. No. 45,063, § 1, 4-9-13; Ord. No. 45,167, § 1, 6-25-13)

Sec. 33.1-116. Reserved.

Sec. 33.1-117. Interim and comprehensive agreements.

Prior to developing or operating the qualifying project, the selected private entity shall enter into a comprehensive agreement with the city. Prior to entering a comprehensive agreement, the city may first require an interim agreement permitting the private entity to perform compensable activities related to the project. The city will designate an advisory committee to be responsible for negotiating any interim or comprehensive agreement, which will be made up of city representatives. Any interim or comprehensive agreement shall define the rights and obligations of the city and the private entity with regard to the project. The city will not accept liability for any part or phase of a project prior to entering into a council-approved and properly executed interim or comprehensive agreement.

(a) *Interim agreement terms.* The city will not execute an interim agreement requiring the city to assume risks that should be assumed by the private entity or to pay costs attributable to the private entity's efforts in making the proposal. The development and execution (upon the approval of the council) of an interim agreement is at the sole discretion of the city. The city reserves the right to terminate the evaluation of any or all proposals at any time prior to its execution of an interim agreement.

(b) *[Scope.]* The scope of an interim agreement may include but is not limited to:

(1) Project planning and development;

(2) Design and engineering;

(3) Environmental analysis and mitigation;

(4) Survey;

(5) Ascertaining the availability of financing for the proposed facility through financial and revenue analysis;

(6) Establishing the process for and the timing of the negotiation of the comprehensive agreement and its approval by council; and

(7) Any other provisions related to any aspect of the development or operation of a qualifying project that the parties may deem appropriate prior to the execution of a comprehensive agreement.

Any changes in the terms of the interim agreement as may be agreed upon by the parties shall be added to the interim agreement by execution of a written amendment first approved by an affirmative vote of a majority of the council (not merely a majority of a quorum).

(c) *Comprehensive agreement terms.* The scope of the comprehensive agreement will include but need not be limited to:

(1) The delivery of maintenance, performance and payment bonds or letters of credit in connection with any acquisition, design, construction, improvement, renovation, expansion, equipping, maintenance, or operation of the qualifying project;

(2) The review of plans and specifications for the qualifying project by the city;

(3) The right of the city to inspect the qualifying project to ensure compliance with the comprehensive agreement;

(4) The maintenance of a policy or policies of liability insurance or self-insurance, each in form and amount satisfactory to the city and reasonably sufficient to insure coverage of tort liability to the city and its officers, employees, agents and volunteers, so as to enable the continued operation of the qualifying project;

(5) The monitoring of the practices of the private entity by the city to ensure proper maintenance;

(6) The terms under which the private entity will reimburse the city for services provided by the city;

(7) The policy and procedures that will govern the rights and responsibilities of the city and the private entity in the event that the comprehensive agreement is terminated or there is a material default by the private entity. These shall include but are not limited to conditions governing assumption of the duties and responsibilities of the private entity by the city and the transfer or purchase of property or other interests of the private entity by the city (any purchase or transfer of rights in real property shall be made in the usual fashion of city real estate transactions);

(8) The terms under which the private entity will file appropriate financial statements on a periodic basis;

(9) The mechanism by which user fees, lease payments, or service payments, if any, may be established from time to time upon agreement of the parties, which shall be the same for persons using the facilities under like conditions and shall not discourage use of the qualifying project. A copy of any service contract shall be filed with the city; a schedule of the current user fees or lease payments shall be made available by the private entity to any member of the public on request; and a system of classification according to reasonable categories for assessment of user fees may be created;

(10) The terms and conditions under which the city may contribute financial resources for the qualifying project;

(11) The terms and conditions under which existing site conditions will be assessed and addressed, including but not limited to, the identification of the responsible party for conducting the assessment and taking necessary remedial action;

(12) The terms and conditions under which the city will be required to pay money to the private entity and the amount of any such payments for the project;

(13) Other requirements of the PPEA or other applicable law; and

(14) Such other terms and conditions as the city may deem appropriate.

Any changes in the terms of the comprehensive agreement as may be agreed upon by the parties shall be added to the comprehensive agreement by written amendment first approved by an affirmative vote of a majority of the council (not merely a majority of a quorum), and then executed by the parties. The comprehensive agreement may provide for the development or operation of phases or segments of a qualifying project.

(Ord. No. 45,063, § 1, 4-9-13; Ord. No. 45,167, § 2, 6-25-13)

Sec. 33.1-118. Additional review procedures.

(a) The city will establish an advisory committee of city representatives to review proposals under this ordinance [article] and to recommend to the council whether to execute any interim or comprehensive agreement.

(b) The following decisions require council action in the manner described:

(1) *Interim agreement.* The city may only enter into or amend an interim agreement with the approval of a majority of the council as a whole (not merely a majority of a quorum); and

(2) *Comprehensive agreement.* The city may only enter into or amend a comprehensive agreement with the approval of a majority of the council as a whole (not merely a majority of a quorum).

(Ord. No. 45,063, § 1, 4-9-13; Ord. No. 45,167, § 3, 6-25-13)

Sec. 33.1-119. Procurement of insurance.

Except in instances where the city manager determines in writing that the use of competitive negotiation is preferred because it is both practicable and fiscally advantageous to the public, insurance shall be procured through a licensed agent or broker selected in the manner provided for the procurement of things other than professional services set forth in Virginia Code § 2.2-4302.2.

(Ord. No. 46,117, § 1, 10-27-15)

Chapter 34

RESERVED*

*Editor's note—Ord. No. 39,757, § 1, adopted Nov. 9, 1999, repealed Ch. 34, Public Vehicles, which chapter derived from provisions enacted as a part of the 1982 codification; Code 1958, §§ 47-1—47-3, 47-5, 47-6, 47-8—47-23, 47-25, 47-26—47-26.3, 47-27—47-29, 47-31, 47-32, 47-32.1, 47-33, 47-34, 47-36—47-41, 47-43, 47-46, and 47-47; and from the following ordinances:

Ord. No.	Date	Ord. No.	Date	Ord. No.	Date
29,957	6- 5-79	33,008	7-17-84	34,813	11-24-87
30,127	9-18-79	33,538	6-25-85	34,852	12-29-87
30,581	4-29-80	33,646	9-10-85	35,056	5-24-88
30,940	1-13-80	33,960	4-22-86	35,773	10-24-89
31,997	10-19-82	33,974	4-29-86	37,909	3- 7-95
32,690	12-20-83	34,053	6-24-86	38,995	12- 9-97
33,016	7-17-84	34,502	5-26-87		

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Chapter 34.1

PUBLIC VEHICLES*

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§ 34.1-2. Application of and compliance with chapter.
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Article II. Certificate of Public Convenience and Necessity

§ 34.1-35. Limit in number.
§ 34.1-36. Required; fee.
§ 34.1-37. Conditions and transfer.

***Charter reference—**Authority of city to regulate the services rendered and rates charged by vehicles for hire, § 2(11).

Cross references—Operation of or soliciting for public vehicles at airport, § 4-40; vehicle licenses, § 24-158 et seq.; motor vehicle code, Ch. 25; disorderly conduct in public conveyance, § 29-10; spitting on floor of public conveyance, § 29-16; use of vehicles to promote prostitution or unlawful sexual intercourse, § 29-26; streets and sidewalks, Ch. 42.

State law reference—Authority of city to regulate taxicabs and similar for-hire vehicles, Code of Virginia, § 46.1-353.

§ 34.1-38. Term.
§ 34.1-39. Posting.
§ 34.1-40. Revocation of certificates; board of review; appeals to board.
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Article V. Reserved

§§ 34.1-68—34.1-73. Reserved.

ARTICLE I. IN GENERAL

Sec. 34.1-1. Definitions.

(a) *Generally.* For the purposes of this chapter, certain words and phrases shall have the meanings ascribed to them by this section.

(b) *Chief of police* means the chief of police of the city or his designated representative.

(c) *For-hire automobile* means any seven (7) passenger or five (5) passenger motor-driven vehicle or any station wagon used for the transportation for hire of passengers, except motor buses operated on fixed routes, specially chartered buses, sight-seeing buses and taxicabs, for which a certificate has been or may hereafter be issued under this chapter and which is not equipped with a taximeter.

(d) *Owner.* The word "owner," as applied to a public vehicle, means the person who holds the legal title to the public vehicle and who holds the certificate of public convenience and necessity for the public vehicle or, in the event the public vehicle is the subject of an agreement for the conditional sale or lease thereof, with the right of immediate right of possession vested in the conditional vendee or lessee, the conditional vendee or lessee shall be deemed the owner for the purposes of this chapter, except, that when the rent paid by the lessee includes charges for services of any nature, provided by the lessor or when the lease does not provide that the title shall pass to the lessee upon payment of the rent stipulated, the lessor shall be regarded as the owner of the public vehicle. If the public vehicle is subject to a mortgage and the mortgagor is entitled to possession, the mortgagor shall be deemed the owner of the public vehicle.

(e) *Public vehicle* means a taxicab or a for-hire automobile, as defined in this section.

(f) *Taxicab* means any motor vehicle having a seating capacity of not more than six (6) passengers, excluding the driver, used for the transportation for hire of passengers, except motor buses operated on fixed routes, specially chartered buses, sight-seeing buses and for-hire automobiles, for which a certificate of public convenience and necessity has been or may hereafter be issued under this chapter and which is equipped with a taximeter.

(g) *Taximeter* means any mechanical instrument or device, or any electronic instrument or device approved by the chief of police and which meets all applicable specifications of the National Bureau of Standards, by which the charge for hire of a taxicab for a trip wholly within the city is mechanically or electronically calculated and on which such charge is plainly indicated.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 47,223, § 1, 5-8-18)

Sec. 34.1-2. Application of and compliance with chapter.

The operation of public vehicles within the city shall be subject to the conditions, regulations and restrictions set forth in this chapter. It shall be unlawful for any person to operate, or cause to be operated, in the city any public vehicle, unless the conditions, regulations and restrictions prescribed in this chapter are complied with.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-3. Violations of chapter generally.

Unless otherwise specifically provided, any person violating the provisions of this chapter shall be guilty of a class 2 misdemeanor.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-4. Notice of violation of certain provisions of chapter.

When the owner of any public vehicle, or the vehicle itself, is found to be in violation of any provision of section 34.1-9, 34.1-10, 34.1-16, 34.1-18, 34.1-19, 34.1-23 or 34.1-34, the owner shall be notified of such violation and the date thereof. Such notice shall be in writing and sent by registered mail to the certificate holder. The owner shall have five (5) days after receipt of such notice within which to remedy the condition which caused the violation and it shall be unlaw-

ful for the owner to fail or refuse to remedy the condition within such period of five (5) days and section 34.1-3 shall apply.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-5. Rules and regulations.

The city manager or designee is authorized and directed to make and enforce administrative and procedural rules and regulations not in conflict with the provisions of the state law or any provisions of this Code or other ordinance of the city, as deemed proper to regulate the operation of public vehicles.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 42,398, § 1, 9-12-06)

Sec. 34.1-6. Permit for operation of passenger for-hire vehicles other than taxicabs and for-hire automobiles.

The operation of any motor-driven vehicle used for the transportation for hire of passengers within the city, and not classified in this chapter as a taxicab or for-hire automobile, shall require a special permit from the city council. This section shall not apply to vehicles operated by the Hampton Roads Transportation District Commission.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-7. Business license.

No public vehicle shall be operated unless and until the owner has obtained a business license from the commissioner of the revenue.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-8. Insurance or bond.

(a) No public vehicle shall be operated nor shall any certificate of public convenience and necessity or a business license be issued therefor unless and until the owner has filed with the Department of Motor Vehicles and the Virginia State Corporation Commission for each vehicle operated, evidence of a liability insurance policy, issued by a liability insurance company authorized to do business in Virginia, providing for coverage in the minimum amount of one hundred twenty-five thousand dollars ($125,000.00) for injury to or death of one person and in the minimum amount of three hundred thousand dollars ($300,000.00) for injury to or death of more than one person in any one accident, and the minimum amount of twenty-five thousand ($25,000.00) for damage to property, for injury, death or damage caused by or arising out of the operation of such vehicle, and until a certificate that the same has been so filed, is filed with and the city's risk manager. The city's risk manager shall notify the commissioner of the revenue in writing following his receipt of the required evidence of insurance.

(b) In lieu of the insurance policy required by subsection (a) above, the owner of a public vehicle may deposit with the city clerk and the city's risk manager a bond of a surety company authorized to do business in Virginia, running to the city and indemnifying persons who may be injured or whose property may be damaged by the operation of such public vehicle, in the same amounts as required for such insurance policy, and conditioned that action may be brought thereon by any person so injured or damaged against such surety company for the amount of such damage, up to the amount named therein.

(c) In lieu of the insurance or bond provided for in subsections (a) and (b) above, the owner of a public vehicle may provide a program of self-insurance alone or in combination with insurance in the minimum amounts as set forth in subsection (a) above. All owners shall maintain, as a minimum, net assets equivalent to any self-insurance and self-insured retentions. In lieu of maintaining such minimum net assets, an owner may provide cash, securities or a line of credit acceptable to the city's risk manager and the city attorney. A minimum of twenty-one (21) vehicles must be registered to the self-insured owner in the State of Virginia. All such self-insurance shall obligate the owner to pay any final judgment for damages sustained by any person who may be injured or whose property may be damaged by the operation of such public vehicle in such amounts as provided in subsection (a) and likewise conditioned in accordance with the provisions thereof.

(d) The insurance policy or certificate, the bond, evidence of the program of self-insurance, or self-insured retentions, the amount of minimum net assets, cash, securities or a line of credit shall be filed with the city clerk and submitted by the owner of a public vehicle to the city's risk manager, subject to the approval of the city attorney, prior to the issuance or renewal of a business license for each public vehicle pursuant to section 34.1-7.

(e) The policy of insurance, bond or program of self-insurance provided for in this section shall contain a clause obligating the company issuing the same, or the owner of the public vehicle, if there is no such company, to give not less than thirty (30) days' notice in writing to the city manager before cancellation or amendment thereof.

(f) The certificate of public convenience and necessity and license for the operation of a public vehicle shall expire upon the lapse or termination of the insurance policy, bond or self-insurance provided for in this section, subject to reinstatement upon compliance with the provisions of this section; but such cancellation shall not relieve the insurer or guarantor of liability for any injury or damage happening before such cancellation becomes effective. In the event of such lapse or termination, the owner of the public vehicle shall notify the chief of police in writing within five (5) days of such lapse or termination and as of the date of such lapse or termination, the public vehicle shall not be operated.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-9. Dispatching service required.

Public vehicle owners shall provide a dispatching service making taxicab services available twenty-four (24) hours per day, seven (7) days per week.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-10. Business telephones required.

Public vehicle owners shall have City of Norfolk telephone numbers which shall be listed in the local phone directory where they can be reached at all times.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-11. Business plan required.

Public vehicle owners shall file with the chief of police once every five (5) years a business plan addressing the provision of taxicab services by such owner.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-12. Limitations on advertising.

No person shall use the term "taxi", "taxicab" or "for-hire automobile" or "for-hire car" in any advertising or hold himself out as a taxicab or for-hire automobile operator, or represent himself to be such by means of advertisements, signs, trade names or otherwise, unless he has previously thereto complied with the conditions, regulations and restrictions prescribed by this chapter. The distinction by this chapter made between taxicabs and for-hire automobiles shall be maintained in such advertisements, signs, trade names and other devices.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-13. Business records generally; financial statements required.

A standard form of accounts and system of bookkeeping, to be approved by the city auditor, shall be kept and observed by owners of public vehicles, insofar as the system of accounts and bookkeeping applies to public vehicles. The city auditor, or a certified public accountant duly authorized by the council, shall have the right and privilege, at any time, to examine the books of such owner in order to verify, or, if need be, to correct the same or any returns and reports made by such owner therefrom.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 49,169, § 2, 5-9-23)

Sec. 34.1-13.1. Lease agreements.

(a) All lease agreements between owners and lessees of public vehicles shall contain a provision stating that the lease agreement does not create or intend any vested rights in the owners or lessees of public vehicles, which are superior to any amendment of chapter 34.1 of the Code of the City of Norfolk, Virginia, 1979, or any provision thereof, which may be adopted by the council of the city. All lease agreements between owners and lessees of public vehicles shall be submitted to the city attorney's office for review of the form of said agreements for compliance with the City Code. If the form of said agreements is determined to be in compliance with the City Code, the lease agreements shall be approved by the city attorney's office prior to execution of the agreements.

(b) The city reserves the right to amend chapter 34.1 of the Code of the City of Norfolk, Virginia, 1979, or any provision thereof, and no vested rights in the owners or lessees of public vehicles, which are superior to the city's right to amend such chapter or any provision thereof, are created or intended by lease agreements between owners and lessees of public vehicles.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-14. Manifests.

(a) Public vehicle owners shall keep and maintain in the city a manifest showing, for each day, the number of public vehicles operated and the driver of each public vehicle.

(b) Every person driving a public vehicle shall keep and maintain, in a written or electronic format, a manifest, in a form prescribed by the city auditor, showing for each day, each trip made by such driver, the amount charged therefor, the time the trip commenced, the time the trip terminated, where the trip commenced, the destination of the trip and such other information as the city auditor may require. The time, current location, and destination shall be entered in the manifest or written record immediately upon embarkation of said passenger(s). Such manifests of each trip shall be completed immediately after the termination of such trip and prior to the commencement of another trip.

(c) The manifests referred to in subsections (a) and (b) above shall be delivered to the police department, upon demand by the chief of police, for inspection by the chief of police or designee. All manifests referred to in subsections (a) and (b) above shall be kept by the public vehicle owner for at least twelve (12) months and shall be available for inspection at all reasonable times by the chief of police or designee, or by the city auditor.

(d) For the purposes of this section, the word "trip" shall mean the entire time and distance that one person, or more than one person, as provided for in section 34.1-64 has engaged the services of a public vehicle beginning with the actual commencement of such service, including waiting time, and ending when such service has been terminated and the fare has been paid.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 47,223, § 2, 5-8-18)

Sec. 34.1-15. Dispatcher's records.

It shall be unlawful for any dispatcher of a public vehicle to fail to keep accurate drivers' records and telephone order records.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-16. General vehicle requirements.

(a) No public vehicle shall be placed in operation as a public vehicle, unless and until the same is found by the chief of police or designee, as he may deem necessary to make or cause to be made, to be in proper physical condition to render safe, adequate and proper public service and so as not to be a menace to the safety of the patrons or the general public.

(b) All public vehicles shall at all times be kept in proper physical condition to the satisfaction of the chief of police or designee, so as to render safe, adequate and proper public service and so as not to be a menace to the safety of the patrons or the general public.

(c) All public vehicles shall at all times be kept clean and sufficiently ventilated and shall be efficiently lighted at night.

(d) All public vehicles shall be subject to inspection pursuant to this section on an annual basis. All public vehicles which are eight (8) or more years old shall be subject to inspection pursuant to this section twice annually.

(e) All public vehicles for which the city issues a certificate of public convenience and necessity shall be subject to a license tax due and paid to the city.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 42,398, § 2, 9-12-06)

Sec. 34.1-17. Reserved.

Editor's note—Ord. No. 42,398, § 3, adopted Sept. 12, 2006, repealed § 34.1-17, which pertained to minimum number of taxicabs required and derived from Ord. No. 39,757, § 2, adopted Nov. 9, 1999.

Sec. 34.1-17.1. Minimum number of taxicabs.

An owner of taxicabs for which no certificates of public convenience and necessity have been issued by the city until after October 1, 2006, must own and operate a minimum of five (5) taxicabs within twelve (12) months after certificates have been issued to such owner. Taxicabs for which such certificates have been issued by the city must be in service and operating within one hundred twenty (120) days after certificate issuance.
(Ord. No. 42,398, § 4, 9-12-06)

Sec. 34.1-18. Construction requirements for taxicabs, used automobiles not to be converted for use as taxicab.

No vehicle shall be operated as a taxicab, unless it is a four-door full-size vehicle.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-19. Appearance of vehicles.

The vehicles of a holder of a certificate of public convenience and necessity issued under this chapter must display the trade name or company name of the certificate holder and vehicle number on both sides of each vehicle in letters at least two (2) inches in height to aid the public and law enforcement in readily identifying the vehicle as a taxicab. All such color schemes shall be approved by the chief of police.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 47,223, § 3, 5-8-18; Ord. No. 48,514, § 1, 9-28-21; Ord. No. 49,169, § 3, 5-9-23)

Sec. 34.1-20. Periodic inspection of vehicles; correction of defects.

The chief of police shall, from time to time, cause to be made an inspection of public vehicles. If any such vehicle is found unsafe or unfit for operation, notice shall be given to the holder of the certificate and license therefor and such vehicle shall not be operated thereafter until the same has been put in a safe and fit condition.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-21. Taximeters generally.

All taxicabs operated in the city shall be equipped with a taximeter. No for-hire automobile shall be equipped with a taximeter.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-22. Reserved.

Editor's note—Ord. No. 49,169, § 1, adopted May 9, 2023, repealed § 34.1-22, which pertained to identification light for taximeters, location of mechanical taximeters and derived from Ord. No. 39,757, § 2, adopted Nov. 9, 1999; Ord. No. 48,182, § 1, adopted Oct. 13, 2020.

Sec. 34.1-23. Maintenance of taximeters.

All taximeters shall be kept accurate and in proper condition and repair and sufficiently lighted so that the figures thereon shall be plainly visible to the passengers.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-24. Inspection of taximeters and correction of defects.

The chief of police shall, from time to time, cause to be made an inspection of taximeters. If any taximeter is found inaccurate, no vehicle equipped therewith shall be operated until the same has been corrected.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-25. Refusal of passengers.

Except as provided in section 34.1-67, and unless previously engaged, the driver of a public vehicle shall not refuse to carry an orderly person anywhere in the city or to any point beyond the city limits for the legal fare. It shall be unlawful for a driver of a public vehicle to fail to go to a location and carry orderly passengers after the dispatching system has, at the driver's request, identified the pickup location of the passenger. This provision shall not apply to any person who is prohibited by section 4-40 of this Code from picking up passengers or property for transportation from the terminal building at the Norfolk Municipal Airport, or ways adjacent thereto, to points beyond the airport. Nothing in this section shall require drivers of public vehicles to transport passengers to points other than in the cities of Norfolk, Chesapeake, Portsmouth and Virginia Beach.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-26. Taxicabs carrying additional passengers after being engaged.

Once a passenger has engaged a taxicab, the driver shall commence transportation of that passenger immediately and shall engage in no other service prior to the termination of such transportation. If prior to commencement of such transportation, transportation is solicited by another person, such subsequent person shall not be transported without the consent of the one who first engaged the taxicab.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-27. Maximum work hours for drivers.

It shall be unlawful for any driver of a public vehicle, while on duty, to drive a public vehicle in the city for more than thirteen (13) hours in any period of twenty-four (24) hours or for a period which, when added to the time such driver may have driven a public vehicle in any other city, would make an aggregate of more than thirteen (13) hours in any period of twenty-four (24) hours. For the purposes of this section, the term "drive" shall not be limited to such time as the vehicle is in motion or such time as it is engaged by a customer, but shall include the entire time that such vehicle is available for hire.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-28. Drivers to use shortest practicable route.

The driver of every public vehicle shall operate the same over the shortest practicable route from the place of the beginning of the trip to the place of destination.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-29. Consumption of alcoholic beverages or drugs by drivers.

It shall be unlawful for any driver of a public vehicle to consume, be under the influence of or otherwise take any alcoholic beverage or narcotic drug or any other intoxicant of whatsoever nature while on duty.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-30. Maximum number of passengers.

The driver of a public vehicle shall permit no more passengers than the number of seatbelts, which are available for use within the vehicle.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-31. Designation, assignment and use of public vehicle stands; limitation on public vehicles standing on public property; cruising for or soliciting patronage.

(a) The chief of police shall, upon application therefor, designate and assign, or cause to be designated and assigned, stands for public vehicles at such places within the city as, in his judgment, will best serve the convenience and necessity of the public. Not more than two (2) such vehicles shall be allowed on any one stand at any one time unless, in the opinion of the chief of police, the public convenience and necessity shall justify a greater number. The application shall

be in writing and shall state the location of the stand and the number of vehicles which the applicant desires to occupy the same.

(b) No person shall leave a public vehicle unattended on a stand.

(c) A violation of this section shall constitute a class 4 misdemeanor.

(d) Public vehicles shall not be permitted to stand waiting employment except at designated and assigned public vehicle stands nor cruise seeking employment, nor shall any person solicit by word, signal or otherwise patronage for such vehicles except within five (5) feet from same, nor in such manner as to interfere with the passing public.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 41,714, § 1, 2-8-05)

Sec. 34.1-32. Dispatcher not to broadcast police information; duty of dispatcher to assist police.

It shall be unlawful for any dispatcher or public vehicle operator of a public vehicle to broadcast a warning concerning the location of the police or to fail to assist police officers in the accomplishment of official police duties.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-33. Interference with operation.

The operation of public vehicles and the furnishing of transportation thereby shall not be in anyway hindered, retarded or interfered with. Improper, misleading, false or unauthorized calls shall be prima facie evidence of the intention to hinder, retard or interfere with the proper operation of public vehicles, and the furnishing of transportation thereby.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-34. Disposition of property left in vehicles.

The person in charge of any public vehicle shall carefully preserve any money or other property left in such vehicle by any passenger and the same shall be promptly deposited with the owner of such vehicle, who shall keep the same at some convenient point within the city, where the same may be called for by the owner. Within two (2) hours after money or other property having a value or estimated value exceeding $50.00 is found, a report thereof shall be made to the police department. When any such found money or property shall have been identified and the ownership established, the same shall be promptly delivered to such owner. Money or other property having a value or estimated value of fifty dollars ($50.00) or less which shall not be claimed by the owner within thirty (30) days shall be disposed of by owner of the vehicle.
(Ord. No. 39,757, § 2, 11-9-99)

ARTICLE II. CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY

Sec. 34.1-35. Limit in number.

The number of taxicabs which shall be operated in the city pursuant to certificates of public convenience and necessity granted by city council shall be limited to two hundred fifty (250), pursuant to authority granted to the city by section 46.2-2020.1 of the Code of Virginia, 1950, as amended.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-36. Required; fee.

(a) It shall be unlawful for any person, whether owner or lessee of a taxicab, to operate, or cause to be operated, any public vehicle taxicab on the streets of the city, unless the city has issued a certificate therefor.

(b) Except as provided in section 34.1-17.1, taxicabs for which a certificate of public convenience and necessity has been issued by the city must be in service and operating within sixty (60) days after certificate issuance.

(c) No business license for a public vehicle shall be issued under chapter 24 of this Code, unless the certificate required by this section has been issued.

(d) The annual fee for a certificate of public convenience and necessity shall be sixty dollars ($60.00) which fee shall be collected by the chief of police and, after collection, shall be paid by him to the city treasurer.

(e) In the event any certificate of public convenience and necessity issued under this article shall be lost or destroyed, the certificate holder may make application for and obtain a duplicate thereof, upon furnishing information of such fact, by affidavit or otherwise, satisfactory to the city manager or designee and upon the payment of a fee of two dollars ($2.00) for each duplicate certificate.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 42,398, § 5, 9-12-06)

Sec. 34.1-37. Conditions and transfer.

No certificate of public convenience and necessity shall be used for any public vehicle other than that public vehicle for which it was issued nor shall such certificate of public convenience and necessity be transferred from one person to another, except that a vehicle may be substituted for a worn out or obsolete vehicle upon notice given in writing to that effect to the chief of police. A person substituting a public vehicle in accordance with this section need not be the title holder of such public vehicle provided that such person owns and operates a sufficient number of other public vehicles and complies with all other requirements of this chapter applicable to an owner of such public vehicle.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 48,927, § 1, 9-13-22)

Sec. 34.1-38. Term.

A certificate issued under this article shall be effective unless revoked or surrendered.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-39. Posting.

There shall be posted, in a conspicuous place to be designated by the chief of police, inside each public vehicle the certificate of public convenience and necessity issued for such vehicle.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-40. Revocation of certificates; board of review; appeals to board.

(a) A certificate of public convenience and necessity may be revoked by the city manager upon the failure of the certificate holder to comply with any provision of this chapter or any federal, state or local law. The city manager shall provide thirty (30) days' advance written notice of any proposed revocation to the certificate holder by certified mail to the address on the certificate.

(b) The city may rescind the proposed revocation notice by so advising the certificate holder in writing upon a determination by the city manager that the certificate holder is in compliance with the law.

(c) In the event of the revocation of a certificate under this section, the holder of the certificate shall forthwith surrender the certificate to the city. In case of revocation, the holder may appeal the revocation as provided in this section by filing with the city manager a written notice of appeal within ten (10) days after the date of revocation. The city manager shall forward such appeal, along with a copy of her decision and all papers pertaining hereto to the board of review within five (5) days after receiving such appeal.

(d) For the purpose of hearing appeals as provided in this section, there is hereby established in the city a board to be called the board of review. Such board shall consist of five (5) members. Such board shall be composed of the city assessor, the city traffic engineer and the director of human services, each of whom shall serve as ex-officio members of the board, and two (2) representatives of those persons holding certificates to be appointed by the council, hereinafter referred to as the holders. Of the last two (2) mentioned members, the holders shall be appointed aforesaid for a term of twelve (12) months. Thereafter, they shall each be appointed for terms of twelve (12) months. Vacancies shall be filled for any unexpired term in the manner in which original appointments are made.

(e) The city assessor shall serve as chairman of the board of review established by this section.

(f) Three (3) concurring votes shall be necessary for a decision by the board of review at the meeting of the board. Three (3) members shall constitute a quorum of the board of review, at least one of whom shall be a representative of the holders.

(g) The board of review, after a hearing, may affirm, modify or reverse the decision of the city manager. The board shall act within thirty (30) days of its receipt of a notice of appeal. Every decision of the board shall be final, subject, however, to such remedy as any aggrieved party might have at law or in equity. Such decision shall be in writing and shall indicate the vote on the decision. Every decision shall be filed in the office of the city manager and the chief of police, shall be open to inspection and a copy thereof shall be delivered to the appellant.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-41. Surrender of certificates.

A certificate of pubic convenience and necessity shall be surrendered to the city by the holder of the certificate in the event that the public vehicle for which the certificate was issued is out of service for more than sixty (60) consecutive days or if the entire business of the certificate holder is discontinued for more than sixty (60) consecutive days.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-42. Vehicle inspection and reinspection fees.

The annual fee for inspection of a public vehicle by the police department shall be forty dollars ($40.00) and the fee for reinspection of public vehicles shall be ten dollars ($10.00), which fees shall be collected by the chief of police at the time of inspection and, after collection, shall be paid by him to the city treasurer. Such fees shall be in addition to any city license tax now or hereafter imposed upon such applicant.
(Ord. No. 39,757, § 2, 11-9-99)

ARTICLE III. PUBLIC VEHICLE OPERATOR'S LICENSE

Sec. 34.1-43. Violations of article.

A violation of any provision of this article shall constitute a class 4 misdemeanor.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-44. Required.

No person shall operate a public vehicle within the city, unless he has a current and valid "public vehicle operator's license issued by the city," which license shall be in addition to any other licenses or fees required of such person.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-45. Application.

(a) Application for a public vehicle operator's license shall be in writing, sworn to and presented to the chief of police. Such application shall state the applicant's full name, residence, places of residence previous to moving to the applicant's present address, age, height, race, color of eyes and hair, sex, place of birth and places of previous employment, whether married or single, the length of time of residence in city; whether the applicant is a citizen of the United States; whether the applicant has previously been employed or licensed as a driver or chauffeur; whether the applicant has ever had any driver's license suspended, revoked, or refused, and for what cause; whether the applicant has ever been convicted of the violation of any state or municipal law; whether the applicant is addicted to the use of intoxicating liquors or drugs; and any other information required by the chief of police.

(b) The application required by this section shall be accompanied by a current department of motor vehicle driver's abstract, reflecting a current valid driver's license from Virginia or another state as provided by law and the status of the applicant's driving record.

(c) The application required by this section and any exhibits attached thereto shall be kept by the chief of police for a period of two (2) years. Any false statement made in any application or affidavit filed hereunder shall be grounds for refusal of the issuance of the license in accordance with section 34-78.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-46. Investigation and examination of applicant.

The chief of police shall make an investigation, including such examinations and hearings

as he may deem proper, concerning the qualifications and fitness of the applicant for a public vehicle operator's license. The chief of police shall require of such applicant such medical examinations and certificates as he deems proper.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-47. Fee.

The biannual fee for a public vehicle operator's license shall be fifty dollars ($50.00). Such fee shall be collected by the chief of police prior to issuance of the license and, after collection, shall be paid by him to the city treasurer. Such fee shall be in addition to any business license tax now or hereafter imposed upon the applicant for such license.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 39,934, § 1, 4-25-2000)

Sec. 34.1-48. Issuance or refusal.

(a) If the chief of police is satisfied that the applicant for a public vehicle driver's license is at least eighteen (18) years of age; is of sound physique with good eyesight and not subject to epilepsy, vertigo, heart trouble or any other bodily or mental infirmity which might render him unfit for the operation of a public vehicle; is able to read and write the English language; is clean in dress and person and not addicted to the use of intoxicating liquors or drugs; is qualified by his knowledge of the provisions of this chapter and of the traffic laws of the state and the traffic ordinances of the city; and is otherwise bodily, mentally and morally fit to operate a public vehicle, the chief of police shall, upon the payment of the prescribed fee, issue to the applicant a public vehicle operator's license.

(b) If the chief of police is not satisfied as to the qualifications and fitness of the applicant to operate a public vehicle, he shall refuse to issue such public vehicle driver's license.

(c) The chief of police shall refuse to issue a public vehicle operator's license to any person convicted of:

(1) Any violent felony as defined in § 19.2-297.1 of the Code of Virginia.

(2) Any non-violent felony within ten (10) years prior to the date of application.

(3) Petit larceny within ten (10) years prior to the date of application.

(4) Driving any motor vehicle while under the influence of alcohol or self-administered drugs within ten (10) years prior to the date of application.

(5) Twice driving any motor vehicle in a reckless manner within a twelve-month period.

(6) Any five (5) provisions of title 46.2 of the Code of Virginia or chapter 25 of this Code within a twelve-month period.

(7) Violations of any state law or municipal ordinance relating to prostitution, illicit sexual intercourse, sexual assault, lewdness and assignation. No person who is required to register with the Sex Offender and Crimes Against Minors Registry pursuant to Chapter 9 (§ 9.1-900 et seq.) of Title 9.1 of the Code of Virginia for a sexually violent offense, as defined in subsection E of § 9.1-902, or who is listed on the U.S. Department of Justice's National Sex Offender Public Website for an offense that is similar to a sexually violent offense may operate a public vehicle for the transportation of passengers for remuneration over the highways of the City of Norfolk.

(8) Violations of any state law or municipal ordinance relating to intoxicating liquors or drugs.

(9) Charging and collecting for any service a sum in excess of the lawful rates therefor.

(10) Three (3) violations of any other provision of this chapter as now in effect or as may be hereafter amended and put into effect, all within a twelve-month period.

(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 39,934, § 2, 4-25-2000; Ord. No. 47,760, § 1, 8-27-19; Ord. No. 49,169, § 4, 5-9-23)

Sec. 34.1-49. Form and contents.

The public vehicle operator's license issued to the applicant under this article shall be in such form as the chief of police may prescribe and shall contain the fingerprint and signature of the licensee. The license shall be in such form that alterations cannot be made without detection.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-50. Official entries not to be erased.

No official record made upon a public vehicle operator's license shall be altered or obliterated.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-51. Carrying license.

A licensed public vehicle driver shall carry his license at all times while operating a public vehicle.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-52. Term, renewal, duplicate when original lost or destroyed.

(a) A public vehicle operator's license shall be effective for two (2) years from the date of issue, unless sooner suspended, revoked or surrendered. Such license may be renewed every two (2) years by the chief of police, by appropriate endorsement thereon, upon the payment of a fee of fifty dollars ($50.00) therefor, if the applicant for such renewal would, at the time thereof, be qualified under the provisions of this article to have been issued to such applicant an original public vehicle operator's license.

(b) In the event any license issued under this article shall be lost or destroyed or a duplicate otherwise required by the licensee, the person entitled thereto may make application for and obtain a duplicate thereof, upon furnishing information of such fact, by affidavit or otherwise, satisfactory to the chief of police and upon the payment of a fee of ten dollars ($10.00) for each such duplicate license.

(c) The fees prescribed by this section shall be collected by the chief of police and, after collection, paid over by him to the city treasurer and shall be used for the purpose of defraying the costs and expenses incident to the administration of the provisions of this chapter. Such fees shall be in addition to any business license tax now or hereafter imposed upon such applicant.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-53. Revocation or suspension generally.

(a) The chief of police shall forthwith revoke the public vehicle driver's license of any person upon receiving a record of the final conviction of such person of any of the following:

(1) Any felony.

(2) Petit larceny within ten (10) years prior to the date of application.

(3) Driving any motor vehicle while under the influence of alcohol or self-administered drugs.

(4) Twice driving any motor vehicle in a reckless manner within a twelve-month period.

(5) Any five (5) provisions of title 46.2 of the Code of Virginia or chapter 25 of this Code within a twelve-month period.

(6) Violations of any state law or municipal ordinance relating to prostitution, illicit sexual intercourse, sexual assault, lewdness and assignation.

(7) Violations of any state law or municipal ordinance relating to intoxicating liquors or drugs.

(8) Charging and collecting for any service a sum in excess of the lawful rates therefor.

(9) Three (3) violations of any other provisions of this chapter as now in effect or as may be hereafter amended and put into effect, all within a twelve-month period.

(b) The chief of police, except in the cases set forth above where the revocation is mandatory, after due hearing and upon not less than five (5) days' notice in writing to the licensee, such notice to be sent by registered letter to the address given by the licensee when applying for such license, or by delivering a copy of such

notice to the licensee in person, either of which shall constitute sufficient form of notice, may suspend or revoke the public vehicle driver's license of any person for good cause shown, including the conviction of the licensee for the violation of any of the provisions of this chapter or any state law or other municipal ordinance. In addition, in those instances where the chief of police deems it to be in the best interest of the public health, safety or general welfare, he may suspend the public vehicle operator's license of any person for a period not to exceed five (5) days, pending the outcome of the appeal hearing herein provided for.

(c) In the event of the suspension or revocation of a license under this section, the license shall be forthwith surrendered to the chief of police, and in case of suspension only, the license shall be restored to the driver at the expiration of the period of suspension. In the event of a second suspension for the same cause or of a third suspension for any cause, the chief of police shall revoke the license. Each such suspension shall be noted on the license.

(d) No person whose license has been revoked shall again be issued a public vehicle operator's license unless, upon the presentation of reasons satisfactory to the chief of police, he shall order such new license to be issued.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-54. Board of review for hearing appeals from revocation or suspension—Established, composition, appointment of members, etc.

(a) For the purpose of hearing appeals as provided for in section 34.1-55, there is hereby established in the city a board to be called the board of review. Such board shall consist of five (5) members. Such board shall be composed of the city assessor, the city traffic engineer and the director of human services, each of whom shall serve as ex officio members of the board, and two (2) members to be appointed by the council, one of whom shall be a representative of those persons holding public vehicle driver's licenses, hereinafter referred to as the drivers, and the other shall be a representative of the operating taxicab companies holding certificates of public convenience and necessity, hereinafter referred to as the owners. Of the last two (2) mentioned members, the representative of the drivers shall be first appointed as aforesaid for a term of six (6) months and the representative of the owners shall be first appointed as aforesaid for a term of two (2) years. Thereafter, they shall each be appointed for terms of twelve (12) months. Vacancies shall be filled for any unexpired term in the manner in which original appointments are made.

(b) The city assessor shall serve as chairman of the board of review established by this section.

(c) Three (3) concurring votes shall be necessary for a decision by the board of review at any meeting of the board. Three (3) members shall constitute a quorum of the board of review, at least one of whom shall be a representative of the drivers or a representative of the owners. The board of review shall establish rules and regulations for its own procedure.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-55. Same—Appeals to board.

(a) Whenever it is the decision of the chief of police that the public vehicle operator's license of any person should be revoked or suspended for good cause shown, as authorized in section 34.1-53, the person whose public vehicle driver's license has been so suspended or revoked may appeal from the decision of the chief of police to the board of review established by section 34.1-54. Notice of appeal shall be in writing and filed with the chief of police within fifteen (15) days after the decision of the chief of police. The chief of police shall forward such appeal, along with a copy of his decision and all papers pertaining thereto to the board of review within five (5) days after receiving such appeal.

(b) The board of review, when so appealed to, after a hearing, may affirm, modify or reverse the decision of the chief of police. The board shall act within sixty (60) days of its receipt of a notice of appeal. Every decision of the board shall be final, subject, however, to such remedy as any aggrieved party might have at law or in equity. Such decision shall be in writing and shall

indicate the vote on the decision. Every decision shall be filed in the office of the chief of police, shall be open to inspection and a copy thereof shall be delivered to the appellant.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-56. Records to be kept pertaining to licenses.

There shall be kept in the department of police a complete record of all public vehicle operator's licenses issued and all renewals, suspensions and revocations thereof.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-57. Appeal of denial of issuance of license.

(a) An applicant for a public vehicle driver's license who is denied such license by action of the chief of police shall have the same right of appeal to the board of review as one whose license is revoked or suspended by the chief pursuant to section 34.1-53. Such applicant must file notice of appeal with the chief of police within fifteen (15) days after the chief gives notice of his decision in denying a license. The chief shall forward all papers and documents to the board of review within five (5) days after such appeal is filed.

(b) The right of appeal granted by subsection (a) hereinabove shall not be available to an applicant who is denied a public vehicle driver's license where such denial is a mandatory denial within the provisions of section 34.1-53. However, when a period of twelve (12) months shall have elapsed from the date of the last criminal conviction giving rise to the mandatory denial of the license, the applicant may reapply for such license to the chief of police. The chief of police shall review such application and determine whether or not such license shall be issued. Should the chief of police, in his discretion, elect to deny such license, the applicant shall then have a right of appeal in accordance with the provisions of subsection (a).
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-58. Appearance of public vehicle operator.

Public vehicle operators shall maintain a clean and neat appearance at all times during the operation of public vehicles.
(Ord. No. 39,757, § 2, 11-9-99)

ARTICLE IV. FARES

Sec. 34.1-59. Application of article.

The charges for the transportation of passengers within the city by public vehicles shall not exceed the rates set forth in this article for service or for the transportation of passengers from the city to points beyond the city limits. However, nothing in this article shall be deemed to prohibit the city council from entering into agreements with any other city concerning the rates to be charged or collected for service or for transportation of passengers originating within this city and passing through or terminating in this city.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-60. Rates prescribed—Taxicabs.

(a) The charges to be made and collected for services by taxicabs must be determined by a taximeter and must not exceed the following rates:

(1)	For the first one-seventh mile, or fraction thereof....	$6.00
(2)	For each succeeding one-seventh mile, or fraction thereof.....	$0.30

(b) The rates must not exceed the rates set forth above regardless of the number of passengers carried.

(c) For each minute of waiting time, an additional charge of thirty cents ($0.30) may be made and collected by the operator of a taxicab. Waiting time includes the time consumed while the taxicab is stopped or moving at a speed less than twelve (12) miles per hour, and time consumed waiting for a passenger, beginning five (5) minutes after the time of arrival at the place which it has been called, and the time consumed

while it is standing at the direction of the passenger. Waiting time does not include, and no charge may be made for, the time lost on account of inefficiency of the taxicab, or its operation, or time consumed by premature response to a call. No charge may be made for mileage while waiting time is being charged. What constitutes waiting time and the charges therefor must be clearly set forth in the notices relating to rates required under section 34-105.

(d) A fee of fifty cents ($0.50) per piece may be charged for the transportation and handling of trunks, baggage (other than ordinary handbags and briefcases) and parcels provided that such charge shall be made for the loading of such items into the taxicab at the curb and the unloading of such items from the taxicab to the curb at the point of destination, with the assistance of the driver.

(e) In addition to the charges set forth above, taxicab passengers must pay all tolls.

(f) Notwithstanding anything in this section to the contrary, charges in addition to the amounts set forth in this section may be charged and collected for services by taxicabs pursuant to a written contract with a third-party payor for the transportation of passengers provided (1) the contract requires services in addition to transportation services, and (2) the difference between the charges provided for in the contract and the charges set forth in this section bears a reasonable relationship to the value of the additional services provided by the taxicabs as required under the contract.

For purposes of this subsection, "third-party payor" means an insurance company, a health care provider, an educational institution, a non-profit organization or a federal, state, or local governmental entity and their contractors and subcontractors.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 39,934, § 3, 4-25-00; Ord. No. 42,398, § 6, 9-12-06; Ord. No. 43,161, § 1, 7-1-08; Ord. No. 46,081, § 1, 10-13-15; Ord. No. 48,514, § 2, 9-28-21)

Sec. 34.1-61. Same—For-hire automobiles.

(a) The rates to be charged and collected for services by for-hire automobiles, except as hereinafter set forth, shall not exceed eight dollars and eighty-five cents ($8.85) for the first hour, or fraction thereof, and for each succeeding one-quarter hour, or fraction thereof the rates shall not exceed two dollars and fifty cents ($2.50), except that for fares picked up at Norfolk International Airport the charges shall not exceed nor be less than the aforesaid rates.

(b) For the transportation, by a for-hire automobile, of five (5) or more passengers from the downtown business district, south of Princess Anne Road, to and including any point within the confines of the Naval Operating Base, or from any point within the confines of the Naval Operating Base to the downtown business district, south of Princess Anne Road, the fare to be charged shall be at the rate of seventy-five cents ($0.75) per passenger. For the transportation of less than five (5) passengers to and from such points aforementioned, the minimum total fare shall be three dollars and fifty cents ($3.50).
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-62. Dispatchers and drivers not to quote excessive rate.

It shall be unlawful for any dispatcher or driver of a public vehicle to state or quote any fare in excess of the rates prescribed by this article.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-63. Posting.

There must be posted, in a conspicuous place to be designated by the chief of police, inside each public vehicle, a card printed in legible type showing the rates of fare prescribed to be charged for the use thereof and stating that a receipt will be given for the fare paid, if requested. There must also be displayed on the outside surface of each public vehicle, at such place thereon and in such form as is designated by the city manager, the rates of fare prescribed to be charged for the use thereof.
(Ord. No. 39,757, § 2, 11-9-99; Ord. No. 49,169, § 5, 5-9-23)

Sec. 34.1-64. Division among passengers.

(a) When two (2) or more passengers engage a public vehicle to the same destination, the charge shall be made as if the vehicle was hired by one passenger.

(b) When two (2) or more passengers, not traveling together, engage a public vehicle for transportation to different destinations, the passenger first arriving at his destination shall pay in accordance with the meter charge, whereupon the driver of the vehicle shall immediately clear his meter and set the same for immediate operation for the next passenger, who shall pay the meter charge upon arrival at his destination. The same method shall be followed for each succeeding passenger.

(c) When two (2) or more passengers, bona fide traveling together, engage a public vehicle to different destinations, the charge shall be made as if the vehicle was hired by one passenger for the last destination.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-65. Receipts for payment.

Upon request, a receipt shall be delivered to the person paying any fare for transportation by a public vehicle at the time of such payment. Such receipt shall be in legible type or writing and shall contain the name of the owner of the vehicle, the city license number, the driver's name, all items for which a charge is made and the date and total amount of the payment. Such receipt shall be in such form as may be prescribed by the chief of police, and shall be supplied by and at the cost and expense of the owner of the vehicle.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-66. Refusal to pay.

It shall be unlawful and a class 4 misdemeanor for any person to engage a public vehicle and, without previously making arrangements for credit, use the same and refuse to pay the lawful fare for such use.
(Ord. No. 39,757, § 2, 11-9-99)

Sec. 34.1-67. Prepayment may be required.

Drivers of public vehicles authorized to transport passengers from one point in the city to another point in the city or from one point in the city to a point beyond the city limits may refuse employment, unless the legal fare, upon request, is prepaid.
(Ord. No. 39,757, § 2, 11-9-99)

ARTICLE V. RESERVED*

*__Editor's note—__Ord. No. 42,398, § 7, adopted Sept. 12, 2006, repealed art. V, pertaining to fuel surcharge and consisting of §§ 34.1-68—34.1-73. Section 34.1-68 pertained to application of article, 34.1-69 pertained to fuel surcharge, 34.1-70 pertained to posting, 34.1-71 pertained to division of fuel surcharge among passengers, 34.1-72 pertained to refusal to pay fuel surcharge and 34.1-73 pertained to prepayment of fuel surcharge may be required; all derived from Ord. No. 42,007, § 1, adopted Aug. 30, 2005.

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Chapter 34.2

LIGHT RAIL PUBLIC TRANSIT SERVICES

Article I. In General

§ 34.2-1. Definitions.
§ 34.2-2. Enforcement.

Article II. Fare Enforcement

§ 34.2-3. Proper fare; fraudulent ticket; proof of payment.
§ 34.2-4. Authority to order a passenger from the public transportation system, or rail transit platform.

Article III. Regulations for Public Transportation System, Light Rail Vehicles, and Rail Transit Platforms.

§ 34.2-5. Transit parking and boarding.
§ 34.2-6. Impeding railway.
§ 34.2-7. Injuring, tampering with, etc., the public transportation system, light rail vehicle, etc.
§ 34.2-8. Animals.
§ 34.2-9. Prohibited conduct.
§ 34.2-10. Validity; severability

ARTICLE I. IN GENERAL

Sec. 34.2-1. Definitions.

For the purposes of this chapter, certain words, terms and phrases shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(a) *Fare* means the compensation paid for a light rail or bus boarding ticket from a vending machine or other lawful source. Said charges shall be established by the Transportation District Commission of Hampton Roads doing business as Hampton Roads Transit ("HRT"), for the use of its public transportation system.

(b) *Fare enforcement officer* means an employee of a private entity which has entered into an employment relationship with HRT.

(c) *Guideway* means an area where light rail vehicles will operate and includes the light rail track, overhead catenary system and the entire area extending to the outside edge of the (red) differential contrasting pavement color.

(d) *Passenger* means any person lawfully occupying, riding or using any light rail vehicle, boarding, embarking or disembarking from such vehicle, or waiting within a designated waiting area at a rail transit platform.

(e) *Proof of fare payment* means the ticket or receipt, if any, valid for the status of the passenger and the time of use, given to a person by HRT or authorized vendors upon the tender of the posted fare published by the HRT for a specific public transportation service.

(f) *Public transportation system* means any property, real or personal, owned, leased, or controlled by the HRT, and used to operate, maintain or provide public transportation services by rail, or any other means of conveyance. "Public transportation system" shall also include any property, real or personal, owned, leased, or controlled by the City of Norfolk that is used to operate, maintain or provide light rail public transportation services.

(g) *Rail transit platform* means real property owned or controlled by HRT or the City of Norfolk that is generally open for public use as an embarkation/disembarkation area or waiting area for any rail component of the public transportation system, including adjoining stairways, ramps, elevators, and attached equipment or fixtures.

(h) *Ticket* means any ticket or document or electronic method of storing travel value issued by or on behalf of TDCHR for any person on a light rail vehicle.

(Ord. No. 44,312, § 1, 7-12-11)

Sec. 34.2-2. Enforcement.

Any law enforcement officer, designated sworn special officer, HRT fare enforcement aides, or the fire marshal or any of his assistants, is authorized and shall have authority to enforce all provisions of this chapter. These persons shall be collectively referred to as "authorized person" throughout this chapter.

(Ord. No. 44,312, § 1, 7-12-11)

ARTICLE II. FARE ENFORCEMENT

Sec. 34.2-3. Proper fare; fraudulent ticket; proof of payment.

(a) It shall be unlawful and a violation of this chapter, for any person to:

(1) Board or ride any light rail vehicle when he fails or refuses to pay the usual, proper and posted fare for the purpose of riding therein.

(2) Use a ticket for more journeys than permitted by the ticket.

(3) Use a ticket outside the designated zone of the paid ride.

(4) Fail to provide proof of fare payment while upon a light rail vehicle or rail transit platform when proof is requested by an authorized person.

(5) A violation of this section is punishable as a class 4 misdemeanor.

(b) It shall be unlawful for any person to board or ride any light rail vehicle when he uses a fraudulent or counterfeit ticket as a means to evade payment of the posted fare published by HRT. A violation of this subsection continues from the point of boarding through termination of the light rail vehicle's scheduled trip. A violation of this subsection is punishable as a class 2 misdemeanor with a fine of not less than five hundred dollars ($500.00).
(Ord. No. 44,312, § 1, 7-12-11)

Sec. 34.2-4. Authority to order a passenger from the public transportation system, or rail transit platform.

A passenger who refuses to provide proof of fare payment or conform to any lawful regulation of this chapter may be removed from the public transportation system, light rail vehicle or rail transit platform by any authorized person at any rail transit platform or usual stopping place.
(Ord. No. 44,312, § 1, 7-12-11)

ARTICLE III. REGULATIONS FOR PUBLIC TRANSPORTATION SYSTEM, LIGHT RAIL VEHICLES, AND RAIL TRANSIT PLATFORMS.

Sec. 34.2-5. Transit parking and boarding.

(a) A driver shall not park any vehicle in the area designated for vehicle parking unless the person complies with the posted parking regulations.

(b) If intending to pick up or drop off a transit passenger, a driver shall park in the area designated for vehicle parking or briefly stop his or her vehicle in areas designated for passenger loading or unloading, while remaining with the vehicle, and then remove the vehicle from the rail transit station without delay after the transit passenger is dropped off or picked up.

(c) No person shall stop or park a vehicle at a transit parking facility in such a manner that the vehicle blocks access to a marked pedestrian walkway, designated traffic lane, parking space, fire lane, boarding zone or guideway.

(d) A violation of this section is punishable as a class 4 misdemeanor.
(Ord. No. 44,312, § 1, 7-12-11)

Sec. 34.2-6. Impeding railway.

(a) No person shall park or use any vehicle in any place where it may be or may become a danger, nuisance, obstruction to any person or the operation and maintenance of a light rail vehicle or railway.

(b) No person shall park or use any vehicle in any place where it may restrict the passage of any light rail vehicle.

(c) Law enforcement officers shall have authority to order the towing of any vehicle in violation of this section pursuant to chapter 25, as amended.

(d) A violation of this section is punishable as a class 1 misdemeanor.
(Ord. No. 44,312, § 1, 7-12-11)

Sec. 34.2-7. Injuring, tampering with, etc., the public transportation system, light rail vehicle, etc.

(a) It shall be unlawful for any person to individually or in association with one or more others, willfully break, injure, tamper with or remove any part or parts of the public transportation system, a light rail vehicle, or rail transit platform for the purpose of injuring, defacing or destroying such light rail vehicle rail transit platform or public transportation system, or temporarily or permanently preventing its useful operation, or for any purpose against the will or without the consent of the owner, or willfully or maliciously interfere with or prevent the running or operation of such light rail vehicle, rail transit platform, or public transportation system.

(b) It shall be unlawful for any person, without the consent of the owner or person in charge of a light rail vehicle, to climb into or upon such vehicle, with intent to commit any crime, malicious mischief or injury thereto or who, while a vehicle, is at rest and unattended to manipulate any of the levers and starting crank or other device, brakes or mechanism thereof, or to set into motion such vehicle, with the intent to commit any crime, malicious mischief or injury thereto.

This subsection shall not apply when any such act is done in any emergency or in furtherance of public safety or by or under the direction of an authorized person in the regulation of traffic or performance of any other official duty.

(c) A violation of this section is punishable as a class 1 misdemeanor.
(Ord. No. 44,312, § 1, 7-12-11)

Sec. 34.2-8. Animals.

(a) It shall be unlawful for any person who owns or has control of any animal to permit such animal to enter any light rail vehicle or rail transit platform. For the purposes of this section, the term "animal" shall be deemed to include, but not be limited to any mammal, bird, or reptile.

(b) This section shall not apply to a guide or service animal, including a service animal in training, that has been specially trained to assist persons with disabilities and is on a leash as required in chapter 6.1.

(c) A violation of this section is punishable as a Class 4 misdemeanor.
(Ord. No. 44,312, § 1, 7-12-11)

Sec. 34.2-9. Prohibited conduct.

(a) It shall be unlawful and a violation of this chapter, punishable as a class 1 misdemeanor, for any person to:

(1) Carry onto or aboard the public transportation system, a light rail vehicle, or rail transit platform any flammable or explosive substance or hazardous material. Hazardous material includes, but is not limited to, any pesticides, poisons, caustics, acids, infectious materials, explosives, corrosives, petroleum products, compressed gases, biological and chemical materials, radioactive materials, toxic materials or other materials which may be injurious to health or safety of persons or the environment.

(2) Hang onto or attach his or her body to any exterior part of a public transportation vehicle or touch a moving transit vehicle.

(3) Walk between coupled light rail vehicles.

(4) Enter upon, occupy or remain upon the guideway except as necessary to board or a light rail vehicle unless authorized by a valid permit.

(5) Throw an object at or from any light rail vehicle or at any person or thing on or in any light rail vehicle or rail transit platform.

(6) Travel in any mode, including, but not limited to, motor vehicle, pedestrian, bicycle, equestrian, roller skate, rollerblade, upon or across any guideway or rail transit platform, except within a marked crosswalk at a signalized intersection.

(7) Place any object on any portion of the guideway.

(8) Post signs or notices on the public transportation system, light rail vehicles or rail transit platforms unless so authorized by HRT.

(9) Apply graffiti, as defined and prohibited by chapter 27, article III, on any surface within the public transportation system, light rail vehicles or rail transit platforms.

(10) Engage in illegal dumping or litter, as defined and prohibited by chapter 14.5, within the public transportation system, light rail vehicles or rail transit platforms.

(b) It shall be unlawful and a violation of this chapter, punishable as a Class 2 misdemeanor, for any person to:

(1) Beg, as defined and prohibited by chapter 42, article I, as amended, within the public transportation system, light rail vehicles, or rail transit platforms.

(2) Operate a sound-emitting device, as prohibited in chapter 26, as amended. This subsection does not apply to authorized persons or emergency response professionals in the course of employment.

(c) It shall be unlawful and a violation of this chapter, punishable as a class 3 misdemeanor, for any person to:

(1) Transport any item that blocks the aisle or the areas of the light rail vehicle reserved for passengers in wheelchairs or who use mobility aids.

(2) Possess an open container of or consume an alcoholic beverage within the public transportation system, light rail vehicles, or rail transit platforms.

(3) Light a flashlight, scope light, laser light, or object that projects a flashing light or beams of light while inside a light rail vehicle or towards a light rail vehicle, except in an emergency.

(4) Use any camera or video recorder or any form of equipment for recording sound or images so as to interfere with any other person in the public transportation system, light rail vehicles, and rail transit platforms.

(5) Urinate or defecate within or upon the public transportation system, light rail vehicles, or rail transit platforms

(6) Sell or offer to sell any goods, wares, merchandise, books, magazines, newspapers or any article of value, or take orders for or sell subscriptions to same for future delivery, or distribute commercial advertising matter on or within any part of the public transportation system, light rail vehicles, or rail transit platforms. For the purpose of this section "commercial activity" means the advertising, display, sale, lease, offer for sale or lease, or distribution of food, goods, services or entertainment, including but not limited to the free distribution of promotional goods or materials. This section shall not be construed as prohibiting the actual distribution or circulation, without any charge therefor, to the public, of publications, leaflets, pamphlets or any printed or written matter that disseminates opinion or information or provokes thought or pertains to any religious information or belief.

(d) It shall be unlawful and a violation of this chapter, punishable as a class 4 misdemeanor, for any person to:

(1) Smoke, as defined and prohibited by chapter 39.5, as amended, upon a light rail vehicle or rail transit platform.

(2) Spit, expectorate or deposit any sputum, saliva, mucus or any form of saliva or sputum within or upon the public transportation system, light rail vehicles, or rail transit platforms.

(Ord. No. 44,312, § 1, 7-12-11)

Sec. 34.2-10. Validity; severability

The provisions of this chapter are hereby declared to be severable. If any part, section, provision, exception, sentence, clause, phrase, or the application thereof to any person or circumstance for any reason be adjudged to be invalid, the remainder of the chapter shall remain in full force and effect and its validity shall not be impaired, it being the legislative intent now hereby declared that this would have been adopted even if such invalid matter had not been included therein, or if such application had not been made.

(Ord. No. 44,312, § 1, 7-12-11)

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Chapter 34.3

PEDICABS

§ 34.3-1. Definitions.
§ 34.3-2. Permit required to operate pedicab.
§ 34.3-3. Application for pedicab operating permit.
§ 34.3-4. Pedicab operating permit fee.
§ 34.3-5. Duration of validity of pedicab operating permit.
§ 34.3-6. Pedicab operating permit renewal.
§ 34.3-7. Denial of pedicab operating permit.
§ 34.3-8. Suspension or revocation of pedicab operating permit.
§ 34.3-9. Identification badges issued to pedicab operators with a pedicab operating permit.
§ 34.3-10. Pedicab decal.
§ 34.3-11. Application for pedicab decal.
§ 34.3-12. Rates prescribed for pedicab services and pedicab tours.
§ 34.3-13. Insurance.
§ 34.3-14. Requirements for issuance of pedicab decal.
§ 34.3-15. Pedicab decal fee.
§ 34.3-16. Duration of validity of pedicab decal.
§ 34.3-17. Pedicab decal renewal.
§ 34.3-18. Denial of pedicab decal for failure to comply with chapter.
§ 34.3-19. Suspension or revocation of pedicab decal.
§ 34.3-20. Other laws applicable to pedicab owners and operators.
§ 34.3-21. Report of accidents.
§ 34.3-22. Minimum age for pedicab operators.
§ 34.3-23. Driver's license requirement to operate pedicab.
§ 34.3-24. Business license requirement to operate pedicab.
§ 34.3-25. Equipment regulations for the operation of pedicabs.
§ 34.3-26. Right of appeal to the board of review from denial of issuance of pedicab operating permit or decal.
§ 34.3-27. Right of appeal to board of review from suspension or revocation of pedicab operating permit or decal.
§ 34.3-28. Procedure upon appeal.
§ 34.3-29. Enforcement.
§ 34.3-30. General pedicab operation.

Sec. 34.3-1. Definitions.

For the purposes of this chapter, certain words, terms and phrases shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(a) *Chief of police* means the chief of police or his/her designee.

(b) *City* means the City of Norfolk.

(c) *Darkness* means any time from one-half (½) hour after sunset to one-half (½) hour before sunrise and any time when visibility is not sufficient to render clearly-discernible any person or vehicle on the highway at a distance of one thousand (1,000) feet.

(d) *Decal* means the numbered decal issued by the city to a pedicab owner for display on the pedicab to indicate that the pedicab is permitted to operate.

(e) *Identification badge* means a badge that identifies the operator with a color passport-size photo.

(f) *Operator* means any individual who operates a pedicab within the city.

(g) *Owner* means any person who owns a pedicab, or, a pedicab business.

(h) *Pedicab* means:

1. A bicycle that has three (3) or more wheels which transports, or is capable of transporting, passengers on seats attached to the bicycle, that is operated by an individual and is used for transporting passengers for consideration; or

2. A bicycle that pulls a trailer, sidecar or similar device which transports, or is capable of transporting, passengers on seats attached to the trailer, sidecar or similar device, operated by an individual and used for transporting passengers for consideration.

(i) *Pedicab business* means a commercial enterprise that provides transportation and tours via pedicab, also referred to as owner.

(j) *Pedicab operating permit* means a written permit issued by the city authorizing a person to operate a pedicab.

(k) *Pedicab tour* means a fixed-itinerary pedicab service with fixed stops which is organized by a pedicab business.

(l) *Person* means both singular and plural and shall mean any individual, firm, corporation, association, partnership or society, exclusive of public agencies.

(Ord. No. 44,694, § 1, 5-22-12; Ord. No. 47,735, § 1, 7-23-19)

Sec. 34.3-2. Permit required to operate pedicab.

It shall be unlawful for any person to operate a pedicab within the city without first having obtained a pedicab operating permit issued by the city pursuant to this chapter. Pedicab operating permits are the property of the city and are not transferable to any other operator.

(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-3. Application for pedicab operating permit.

(a) Before operating a pedicab, an applicant shall apply for a pedicab operating permit in person.

(b) The pedicab operating permit application form shall be in a form prescribed by the chief of police.

(c) The applicant shall provide the following information to complete the application under oath or affirmation:

(1) The applicant's full name and residence address;

(2) The applicant's date of birth; and

(3) The applicant's valid Commonwealth of Virginia or other state's driver's license;

(4) Proof that the applicant is eighteen (18) years of age or older;

(5) Proof of ability to drive lawfully in the United States;

(6) Such other material as the chief of police may require and is approved by the board of review as established by sections 34.1-40 and 34.1-54 of the City Code.

(d) When an application has been denied, the applicant may not reapply for pedicab operating permit for one calendar year from the date of denial.

(e) The chief of police shall investigate the facts stated in an application for a pedicab operating permit and other relevant data.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-4. Pedicab operating permit fee.

The city shall charge twenty dollars ($20.00) as a pedicab operating permit fee to recover the cost of activities associated with the administration, regulation, and issuance of pedicab operating permits.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-5. Duration of validity of pedicab operating permit.

Pedicab operating permits shall be valid for a period of one year from date of issuance, unless suspended or revoked.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-6. Pedicab operating permit renewal.

Pedicab operating permits shall be renewable annually upon filing and approval of a new application and payment of the pedicab operating permit fee.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-7. Denial of pedicab operating permit.

The chief of police may deny issuance of a pedicab operating permit if an applicant:

(a) Fails to comply with the requirements of this chapter;

(b) Misrepresents facts relevant to the fitness of the applicant;

(c) Does not possess a valid driver's license issued by a state in the United States;

(d) Has been convicted of a crime involving moral turpitude, alcohol or narcotics; or

(e) Has been convicted of hit and run, reckless driving or driving while under the influence of intoxicating alcohol or drugs within the three (3) years immediately preceding application for a pedicab operating permit.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-8. Suspension or revocation of pedicab operating permit.

(a) The chief of police may suspend, for a period not to exceed thirty (30) days, and/or may revoke a pedicab operating permit if the operator:

(1) Misrepresents facts relevant to the fitness of the operator if such misrepresentation becomes known after a permit has been issued;

(2) Violates the traffic laws of the city or state;

(3) Is convicted of hit and run, reckless driving, or driving while under the influence of intoxicating alcohol or drugs;

(4) Drives a pedicab known to the operator not to be in good order and repair;

(5) Knowingly falsifies material and relevant facts on an application for a pedicab operating permit;

(6) Is convicted or pleads nolo contendere to the violation of any law involving alcohol or narcotics;

(7) Is convicted or pleads nolo contendere to the violation of any law involving moral turpitude;

(8) Operates any vehicle in a manner which constitutes a misdemeanor under the laws of the Commonwealth of Virginia; or

(9) Fails to comply with the applicable provisions of this chapter or the rules and regulations prescribed by the chief of police.

(b) The chief of police shall immediately suspend, for a period not to exceed thirty (30) days, the pedicab operating permit of any operator upon the receipt of information reasonably sufficient and reliable to establish that the operator has committed a violation of law involving:

(1) A felony;

(2) A sex offense;

(3) Soliciting for prostitution;

(4) An alcohol or narcotics offense; or

(5) A driver's license either being suspended or revoked.

(c) The chief of police shall immediately revoke the pedicab operating permit if that operator has been found guilty by final court judgment of a violation of the law involving:

(1) A felony;

(2) A sex offense;

(3) Soliciting for prostitution;

(4) An alcohol or narcotics offense; or

(5) A driver's license either being suspended or revoked.

(d) Upon permit suspension or revocation, the operator shall immediately surrender the pedicab operating permit to the chief of police. In the event of suspension, the chief of police shall return the pedicab operating permit to its operator immediately after termination of the suspension period.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-9. Identification badges issued to pedicab operators with a pedicab operating permit.

(a) The city shall issue an identification badge to an individual who operates a pedicab.

(b) While the pedicab is in operation, the pedicab operator shall wear the identification badge at all times on his or her person, in a manner clearly visible to the public.

(c) It shall be unlawful for a pedicab operator to fail to wear an identification badge, in a manner clearly visible to the public, while operating a pedicab.

(d) Identification badges are the property of the city and are not transferable to any other operator. In the event that an operator's pedicab operating permit is suspended or revoked, the operator shall also immediately surrender the identification badge to the chief of police. In the event of a suspension, the chief of police shall return the identification badge to the operator immediately after termination of the suspension period.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-10. Pedicab decal.

(a) It shall be unlawful for any owner to lease, rent,or allow a pedicab to be operated for hire within the city without first having obtained a decal issued pursuant to this chapter. The decal shall be affixed to the pedicab on the rear or back side of the pedicab in a manner clearly visible to the public.

(b) It shall be unlawful for any person to operate a pedicab that does not have a valid decal affixed to it.

(c) Decals are the property of the city and are not transferable to any other pedicab.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-11. Application for pedicab decal.

(a) Before allowing a pedicab to be operated for hire,an owner shall obtain a pedicab decal.

(b) The pedicab decal application form shall be prescribed by the chief of police.

(c) The applicant shall provide the following information to complete the application:

(1) The full name and address of the applicant;

(2) The name and address of all legal and registered owners of the pedicab; and

(3) A description of the vehicle, including trade name, if any, serial number or owner identification number, and body style.

(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-12. Rates prescribed for pedicab services and pedicab tours.

(a) The charges to be made and collected for services by pedicabs shall not exceed two dollars ($2.00) per block, twenty-five dollars ($25.00) per half-hour or forty-five dollars ($45.00) per hour.

(b) The fares charged for a pedicab tour shall not exceed fifty dollars ($50.00) per person or ticket and five hundred dollars ($500.00) for the requisition of a full pedicab tour.

(Ord. No. 44,694, § 1, 5-22-12; Ord. No. 47,735, § 1, 7-23-19)

Sec. 34.3-13. Insurance.

No pedicab shall be operated nor shall any pedicab permit or decal or a business license be issued therefor unless and until the owner has filed with the city's risk manager for each pedicab operated evidence of a liability insurance policy, issued by a liability insurance company authorized to do business in Virginia, providing for coverage in the minimum amount of one million dollars ($1,000,000.00) per occurrence for injury to or death of one person and in the minimum amount of two million dollars ($2,000,000.00) in the aggregate for covered claims arising from the pedicab operations for bodily injury, property damage, personal and advertising injury and contractual liability. Any pedicab operator operating in the city shall maintain a separate policy of comprehensive general liability insurance for each separate pedicab, except where such person actually owns or holds legal title to more than one pedicab, in which event such person may maintain one policy of comprehensive liability insurance covering all pedicabs actually owned. The insurance policy must require written notice to the permit-holder at least thirty (30) days before any policy is canceled or coverage is reduced. Pedicab operators will provide written notice to the city within ten (10) days after becoming aware of such cancellation or reduction in coverage. The operator shall maintain employer's liability insurance with limits not less than two hundred thousand dollars ($200,000.00) per accident covering all employees involved in the pedicab operations and required workers' compensation coverage.

The pedicab operator shall furnish the city with two (2) copies of the policies or a certificate of insurance evidencing the required policies and shall furnish a certificate of insurance evidencing renewal of such coverage to the city's risk manager within ten (10) days of the renewal of the coverage.

(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-14. Requirements for issuance of pedicab decal.

Pedicab decals will be issued only when a pedicab meets all of the following requirements:

(a) A battery-operated headlight capable of projecting a beam of white light for a distance of five hundred (500) feet shall be permanently affixed to the pedicab;

(b) Battery-operated taillights shall be permanently affixed on the right and the left, respectively, at the same level on the rear exterior of the passenger area. Taillights shall be red in color and plainly visible from all distances within five hundred (500) feet to the rear of the pedicab and and with a red reflector visible from a distance of at least six hundred (600) feet to the rear when directly in front of lawful lower beams of headlights on a motor vehicle.

(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-15. Pedicab decal fee.

The city shall charge sixty dollars ($60.00) as a pedicab decal fee to recover the cost of activities associated with the administration, regulation, and issuance of pedicab decals.

(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-16. Duration of validity of pedicab decal.

Pedicab decals shall be valid for a period of one year from date of issuance.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-17. Pedicab decal renewal.

Pedicab decals shall be renewable annually upon filing of a new application and payment of a pedicab decal fee.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-18. Denial of pedicab decal for failure to comply with chapter.

The city may deny issuance of a pedicab decal if the chief of police determines that the pedicab does not meet the requirements of this chapter.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-19. Suspension or revocation of pedicab decal.

(a) Pedicab decals may be suspended by the chief of police for a period not to exceed thirty (30) days or revoked at any time if the owner:

(1) Fails to comply with the applicable provisions of this chapter or the rules and regulations prescribed by the chief of police;

(2) Fails to maintain insurance as required by this chapter;

(3) Fails to notify the chief of police thirty (30) days prior to the effective date of liability insurance cancellation or reduction;

(4) Fails to maintain pedicabs in good order and repair as prescribed herein;

(5) Provides false statements on an application for a decal;

(6) Fails to pay any fees or damages lawfully assessed upon the ownership or operation of any pedicab licensed under this chapter; or

(7) Violates any of the provisions of this chapter or any applicable city, state or federal laws, rules or regulations.

(b) Pedicab decals which have been suspended shall forthwith be surrendered to the chief of police for a period covering the term of suspension. The chief of police shall return the decal to its owner immediately after termination of the suspension period.

(c) Decals which have been revoked shall forthwith be surrendered to the chief of police by the owner.

(d) The chief of police shall notify in writing and by certified mail any decal owner whose permit has been suspended or revoked. Such notice shall state any and all reasons for such action as well as all laws or regulations violated by the decal owner.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-20. Other laws applicable to pedicab owners and operators.

Pedicab owner operators are subject to all applicable city, state and federal laws, rules and regulations.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-21. Report of accidents.

Each owner of a pedicab decal and a pedicab operating permit involved in any accident resulting in property damage or personal injury of any kind shall within forty-eight (48) hours thereof give written report thereof to the chief of police. A copy of a report required under state law shall be deemed sufficient for such purposes; otherwise, such report shall contain all information required with respect to reports otherwise required under state law as to amounts involved.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-22. Minimum age for pedicab operators.

It is unlawful for any individual under the age of eighteen (18) to operate a pedicab.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-23. Driver's license requirement to operate pedicab.

(a) It is unlawful for any individual without a motor vehicle driver's license issued by a state in the United States to operate any pedicab within the city.

(b) While the pedicab is in operation, the pedicab operator shall have his or her valid driver's license on his or her person at all times.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-24. Business license requirement to operate pedicab.

It shall be unlawful for a person to operate a pedicab without first obtaining a business license.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-25. Equipment regulations for the operation of pedicabs.

(a) It shall be unlawful for any person to operate, or cause to be operated, a pedicab during the hours of darkness, without a permanently affixed headlight capable of projecting a beam of white light for a distance of five hundred (500) feet.

(b) It is unlawful for any person to operate, or cause to be operated, a pedicab during the hours of darkness, without using permanently affixed battery-operated taillights mounted on the right and left, respectively, at the same level on the rear exterior of the passenger area. Taillights shall be red in color and plainly visible from all distances within five hundred (500) feet to the rear of the pedicab and with a red reflector visible from a distance of at least six hundred (600) feet to the rear when directly in front of lawful lower beams of headlights on a motor vehicle.

(c) It is unlawful for any person to operate a pedicab in an unsafe operating condition.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-26. Right of appeal to the board of review from denial of issuance of pedicab operating permit or decal.

(a) The chief of police shall notify the applicant that the issuance of his or her pedicab operating permit or decal has been denied. The chief of police shall also notify the applicant of the right to appeal the denial to the board of review. Any written appeal shall be filed with the chief of police within ten (10) calendar days after service of notice of denial. Service shall be by regular postal service or personal delivery. The applicant shall set forth in the appeal the reason why the denial is not proper.

(b) If no appeal is filed within the time allowed, the decision of the chief of police to not issue the pedicab operating permit or decal shall be considered final.

(c) The board of review shall hear an appeal within fifteen (15) days after a notice of appeal is filed with the chief of police as required by this subsection.

(d) A denial shall remain in effect until a duly-filed appeal is heard by the board of review. The board shall suspend a pedicab operating permit for as long as a license to drive and vehicle issued by the Commonwealth of Virginia is suspended or revoked by the state. In the case of suspension for any other reason under this section, board of review shall consider the propriety of the suspension and may either rescind or continue the suspension as may be required to protect public safety, peace and welfare.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-27. Right of appeal to board of review from suspension or revocation of pedicab operating permit or decal.

(a) The chief of police shall notify the pedicab operator or owner that his or her pedicab operating permit or decal has been suspended or revoked. The chief of police shall also notify the pedicab owner or operator of the right to appeal the suspension or revocation to the board of review. Any written appeal shall be filed within ten (10) calendar days after service of notice of suspension or revocation. The pedicab operator or owner shall set forth in the appeal the reason why the suspension or revocation is not proper.

(b) If no appeal is filed within the time allowed, the pedicab operating permit or decal shall be considered suspended or revoked and the pedicab operator or owner shall immediately surrender the pedicab operating permit or decal in the manner prescribed by the city.

(c) Once a timely appeal is filed, the suspension or revocation of the operating permit or decal shall be stayed pending the final determination by the taxi board.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-28. Procedure upon appeal.

(a) If an applicant served with a notice of denial, suspension, or revocation chooses to appeal, he or she shall file an appeal within ten (10) calendar days from the service of the notice.

(b) Appeals to the board of review:

(1) Any decision of the chief of police which is a denial to issue or a suspension or revocation of any pedicab operating permit or decal shall not become final until ten (10) days after the date of transmittal of the written notice to the person affected by such decision, during which period the party to the action may appeal the decision in the manner provided herein at any time prior to the expiration date of the ten-day period. If no appeal is taken before the expiration of the ten-day period, the decision of the chief of police shall be final.

(2) The appeal of any decision shall be in writing signed by the party to the action briefly setting forth the reasons why such decision is not proper, stating an address at which the appellant will receive notices and filed with the clerk of the city.

(3) Upon filing an appeal, the party to the action shall be entitled to a hearing by the board of review within thirty (30) days after the date of filing the appeal.

(4) The party (or a representative) shall have the right to present his or her case in person.

(5) The board of review shall consider the case record as well as any statements offered by the party. The hearing will be conducted according to administrative rules relating to evidence and witnesses as adopted by the board.

(6) If the board of review refuses to issue or restore a pedicab operating permit or decal, the party to the action, or such party's agent, shall not file a new application within three hundred sixty-five (365) days from the date of final action by the board of review.

(7) If the board of review suspends a pedicab operating permit or decal, the chief of police shall determine a period of suspension of not more than thirty (30) days.

(8) If the board of review's action is to grant or restore a permit or decal, the board shall direct the chief of police to issue or restore the permit or decal.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-29. Enforcement.

The city is authorized to administer and enforce the provisions of this chapter. Unless otherwise specifically provided, any person violating the provisions of this chapter shall be guilty of a Class 2 misdemeanor.
(Ord. No. 44,694, § 1, 5-22-12)

Sec. 34.3-30. General pedicab operation.

(a) All pedicab operators must be dressed in clean company uniforms where the logo is visible to passengers.

(b) Every pedicab while in operation for the solicitation or transportation of passengers shall be attended by the operator at all times.

(c) A pedicab operator shall not leave the pedicab operating permit in an unattended or unsecured pedicab.

(d) No pedicab owner or operator shall knowingly permit such pedicab to be used for unlawful purposes or knowingly to transport persons therein to places for such purposes.

(e) Operation of pedicab shall only occur on roadways posted at a speed limit of twenty-five (25) miles per hour or less and on routes designated by the chief of police.

(f) Pedicab operators shall not stop to load or unload passengers or their belongings in the intersection of any street or any marked crosswalks. No pedicab shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

(g) A pedicab operator shall assist a passenger in and out of a pedicab when requested; however, a driver is not required to lift a passenger.

(h) No pedicab operator shall transport any more persons, including the operator, than the manufacturer's designated seating capacity for the pedicab.

(i) All pedicab operators shall comply with all reasonable and lawful requests of a passenger as to the speed of travel and the route to be taken.

(j) Cruising is permitted, but only when such movements do not usually obstruct the normal flow of traffic. If it is determined by the chief of police upon review of actual traffic data that cruising significantly obstructs the normal flow of traffic at certain locations or times, the city manager may, by administrative order, prohibit cruising at such locations or times.

(k) Pedicabs shall not operate on sidewalks.

(l) Pedicabs shall not be parked nor stand on a sidewalk.

(m) Every pedicab shall have permanently affixed to the outside thereof a frame covered with clear plastic, enclosing a card upon which shall be printed in plain, legible letters the schedule of pedicab rates.
(Ord. No. 44,694, § 1, 5-22-12)

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Chapter 35

RAILROADS*

§ 35-1. Violations of chapter generally.
§ 35-2. Erection of crossing gates and signals.
§ 35-3. Maintenance and operation of crossing gates.
§ 35-4. Trains to stop at certain crossings.
§ 35-5. Reserved.
§ 35-6. Trains obstructing crossings.
§ 35-7. Standing vehicle on tracks.
§ 35-8. Trespass on tracks.
§ 35-9. Trespass upon trains.
§ 35-10. Trespassers jumping on or off trains.

*Cross references—Duty of vehicle drivers to keep to right when crossing railroads, § 25-154; duty of vehicle drivers to obey railroad warning signals, § 25-176; unlawful opening of gate at railroad crossing, § 29-44; injuring, tampering with, etc., railroad rolling stock, § 29-46; streets and sidewalks, Ch. 42.

State law reference—Railroad corporations, Code of Virginia, § 56-345 et seq.

Sec. 35-1. Violations of chapter generally.

Unless otherwise specifically provided, any person violating this section shall be guilty of a Class 4 misdemeanor.

Sec. 35-2. Erection of crossing gates and signals.

(a) It shall be the duty of all railroad companies operating in the city, within sixty (60) days after receiving notice so to do from the council, to provide and erect vertical arm gates at such railroad crossings of streets in the city as the council may deem necessary for the public safety, such gates to be of such pattern and erected in such manner as may be satisfactory to the city manager.

(b) It shall also be the duty of such railroad companies, within sixty (60) days after receiving notice so to do from the council, to provide and erect electrical flashing signals at such railroad crossings of streets in the city as the council may deem necessary for the public safety and not suitable for the erection of vertical arm gates, such signals to be of such pattern and erected in such manner as may be satisfactory to the city manager.

(c) It shall be the duty of railroad companies receiving notice pursuant to this section to station guards or flagmen at the crossings where vertical arm gates or electrical flashing signals are to be erected, until such gates or signals are put in operation. (Code 1958, § 38-5)

State law reference—Proceedings for installation of gates, signals, etc., at crossings, Code of Virginia, § 56-406.1.

Sec. 35-3. Maintenance and operation of crossing gates.

It shall be the duty of railroad companies, or of any corporation, receiver or individual operating the same, to maintain the gates referred to in section 35-2 and to provide for the closing of the same on the approach of cars, engines or trains, so as to prevent accidents, and to have the same immediately opened when the engine or train has passed, so as to interfere as little as possible with public travel over the crossing. (Code 1958, § 38-6)

Sec. 35-4. Trains to stop at certain crossings.

At such street crossings as shall be designated by the council, where no gates or signals are required pursuant to section 35-2, railroad cars and trains shall be brought to a stop before entering the crossing, and such cars or trains shall not proceed until the conductor in charge of same has gone ahead and signalled such cars or trains to proceed. (Code 1958, § 38-5)

Sec. 35-5. Reserved.

Editor's note—Ord. No. 32,174, § 1, adopted March 8, 1983, repealed § 35-5, which required that a locomotive approaching a street crossing must ring its bell. Section 35-5 derived from Code 1958, § 38-4.

Sec. 35-6. Trains obstructing crossings.

(a) It shall be unlawful for any railroad company, or any receiver or trustee operating a railroad, to obstruct, for a longer period than five (5) minutes, the free passage on any street or road, by standing cars or trains across the same, except a passenger train while receiving or discharging passengers, but a passway shall be kept open to allow normal flow of traffic; provided, that when a train has been uncoupled, so as to make a passway, the time necessarily required, not exceeding three (3) minutes to pump up the air after the train has been recoupled shall not be included in considering the time such cars or trains were standing across such street or road.

(b) This section shall not apply when a train is stopped due to a breakdown, mechanical failure or emergency.

(c) Any railroad company, receiver or trustee violating any of the provisions of this

section shall, upon conviction, be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00); provided, that the fine may be one hundred dollars ($100.00) for each minute beyond the permitted time, but the total fine shall not exceed five hundred dollars ($500.00). (Code 1958, § 38-9)

State law reference—Similar provisions, Code of Virginia, § 56-412.1.

Sec. 35-7. Standing vehicle on tracks.

It shall be unlawful for any person to stand any vehicle on the track of any railroad which will hinder or endanger a moving train. (Code 1958, § 38-8)

Sec. 35-8. Trespass on tracks.

It shall be unlawful for any person to be on the track of a railroad within one hundred (100) yards of an approaching train, otherwise than in passing over such track at a public or private crossing, or to willfully ride, drive or lead any animal, or contrive for any animal to go on such track, except in crossing as aforesaid, without the consent of the railroad company or person operating such road. (Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-159.

Sec. 35-9. Trespass upon trains.

No person, not being a passenger or employee, shall trespass upon any railroad car or train of any railroad in this city, by riding on any car, or any part thereof, on its arrival, stay or departure at or from any station or depot of such railroad, or on the passage of any such car or train over any part of any such railroad. (Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-160.

Sec. 35-10. Trespassers jumping on or off trains.

No person, not being a passenger or employee, but a trespasser, shall jump on or off any railroad car or train on its arrival, stay or departure at or from any station or depot of such railroad, or on the passage of any such car or train over any part of any such railroad. (Code 1958, § 31-78)

State law reference—Similar provisions, Code of Virginia, § 18.2-161.

Chapter 36

RAT AND MOSQUITO CONTROL*

§ 36-1.	Violations of chapter.
§ 36-2.	Reserved.
§ 36-3.	Enforcement.
§ 36-4.	Definitions.
§ 36-5.	Ratproofing, ratstopping, of buildings or structures.
§ 36-6.	Duty to ratproof or ratstop building or structure upon order of director of public health.
§ 36-7.	Duty to keep building or structure free of rats after ratproofing or ratstoppage.
§ 36-8.	Maintenance of ratproof or ratstopped condition.
§ 36-9.	Restoration of removed ratproofing or ratstoppage; new openings.
§ 36-10.	Structural changes to eliminate rat harborage.
§ 36-11.	Certificate from director of public health as to absence of rat infestation prerequisite to demolition buildings and structures.
§ 36-12.	Storage of animal feed and grass seed.
§ 36-13.	Garbage and trash affording food and harborage for rats.
§ 36-14.	Lumber, boxes, bricks and similar material affording harborage for rats.
§ 36-15.	Prevention of breeding of flies.
§ 36-16.	Collections of water in which mosquitoes may breed.
§ 36-17.	Filling of cellars and lots; Lot drainage.

*__Cross references__—Buildings and building regulations, Ch. 11.1; duty of occupant of dwelling unit to eliminate infestation of rodents, § 11-150; protection of rooming houses from rodent infestation, § 11-214; nonresidential structures to be rat-stopped and maintained free of rats in accord with existing ordinances, § 11-286; food establishments to be in ratproof condition, § 18-34; approval of insecticides, poisons, etc., used for repelling or destroying rodents at food establishments, § 18-72; health parlors to be free of material which affords harborage for rats, § 21-3; trailer coach skirting not to create harborage for rats, § 44-43.

Sec. 36-1. Violations of chapter.

Unless otherwise provided, any person violating any provision of this chapter shall be guilty of a Class 1 misdemeanor. Each day a violation continues shall be deemed a new and separate violation. In addition to any penalties imposed for each violation, a judge hearing the case shall order the person responsible for the violation or condition to remove, restore, remediate or correct the violation or condition, and each day's default in such removal, restoration, remediation or correction shall constitute a violation of and a separate offense under this chapter.
(Code 1958, § 39-15; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-2. Reserved.

Editor's note—Ord. No. 39,650, § 1, adopted June 22, 1999, repealed § 36-2, which pertained to the effect of this chapter on contracts between owner and occupants, and which derived from Code 1958, § 39-14.

Sec. 36-3. *Enforcement.*

The director of public health or his designee is authorized and shall have authority to enforce all provisions of this chapter.
(Code 1958, § 39-6; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-4. Definitions.

(a) *Person.* The term person means any individual, firm, owner, sole proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant, or other legal entity.

(b) *Rat harborage.* The term "rat harborage" means any condition which provides shelter or protection for rats, thus favoring their multiplication and continued existence in, under or outside of any building or any kind.

(c) *Ratproofing.* The term "ratproofing" means a method of preventing the ingress or rats into buildings or structures from the exterior or from one building or structure to another, consisting essentially of closing, with material impervious to rat gnawing, all openings in the exterior walls, ground or first floors, basements, roofs and foundations that may be reached by rats from the ground, by climbing or by burrowing.

(d) *Ratstoppage.* The term "ratstoppage" means a method of preventing the ingress of rats from the exterior into buildings and structures, consisting essentially of closing, with material impervious to rat gnawing, all openings in floors and exterior walls and the proper screening of doors and windows within four (4) feet of the grounds and all structures or parts of the roof including, but not limited to, fascia, soffits, vents, and attics.
(Code 1958, § 39-1; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-5. Ratproofing, ratstopping, of buildings or structures.

All buildings and structures in the city shall be ratproofed, freed of rats and maintained in a ratproof and rat-free condition in accordance with established specifications and under the supervision of the director of public health or his designee.
(Code 1958, § 39-2; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-6. Duty to ratproof or ratstop building or structure upon order of director of public health.

Upon receipt of a written notice or order from the director of public health or his designee, the owner of any building or structure specified therein shall take immediate measures for ratproofing or ratstopping such building or structure. Unless such ratproofing and ratstoppage shall be completed by the owner in the time specified in the written notice or order, in no event to be less than fifteen (15) days, or within the time to which a written extension may have been granted by the director of public health or his designee, then such owner shall be guilty of a violation of this section.
(Code 1958, § 39-3; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-7. Duty to keep building or structure free of rats after ratproofing or ratstoppage.

When any building or structure, other than a multi-family building, has been ratproofed or ratstopped, as provided in this chapter, the occu-

pant thereof shall cause any such building to be freed of rats and kept free of rats. In the case of multi-family buildings:

(1) It shall be the responsibility of the owner to free of rats and keep free of rats that portion of such building not occupied by or lived in by tenants;

(2) It shall be the responsibility of the occupant to free of rats and keep free of rats that portion of such building occupied by such occupant; and,

(3) Where there is no janitor service provided for the collection of garbage, it shall be the responsibility of the occupant to keep that portion of such building occupied by him, including landings, free of rat infestation and refuse.

(Code 1958, § 39-4; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-8. Maintenance of ratproof or ratstopped condition.

The occupant of any ratproofed or ratstopped building or structure is required to maintain the premises in a ratproof or ratstopped condition and to repair all breaks or leaks that may occur in the ratproofing or ratstoppage, unless such breaks or leaks develop as the result of natural deterioration of the building.

(Code 1958, § 39-5; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-9. Restoration of removed ratproofing or ratstoppage; new openings.

It shall be unlawful for any person to remove the ratproofing or ratstoppage from any building or structure for any purpose and fail to restore the same in a satisfactory condition or to make any new openings that are not closed or sealed against the entrance of rats.

(Code 1958, § 39-8; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-10. Structural changes to eliminate rat harborage.

Whenever conditions inside or under any building provide such extensive harborage for rats that the director of public health or his designee deems it necessary to eliminate such harborage, he may require the owner to install suitable cement floors in basements or to replace wooden first or ground floors or require the owner to correct such other interior rat harborage as may be necessary in order to facilitate the eradication of rats in a reasonable time and thereby to reduce the cost thereof.

(Code 1958, § 39-7; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-11. Certificate from director of public health as to absence of rat infestation prerequisite to demolition buildings and structures.

(a) Before any person shall demolish any building or structure, the building or structure shall be inspected by the director of public health or his designee to determine if any rat infestation exists and, if in his opinion, no such rat infestation does exist, he shall issue a certificate of inspection. If in his opinion such rat infestation does exist, the building or structures involved shall be treated with rat poison in accordance with requirements of the director of public health or his designee; however, in no case shall such treatment be required for a period of more than fifteen (15) days, if the directions of the director of public health as to such treatment have been substantially complied with. Any person demolishing any building or structure without first securing a certificate of inspection from the director of public health or his designee shall be guilty of violation of this section.

(b) The code official shall refuse to issue a permit for the demolition of any building or structure, unless and until the certificate required by this section is submitted to him with the application for such demolition permit.

(c) The certificate of inspection, also known as a rat free certificate, shall be valid for a period of thirty (30) days from the date of inspection. If any building or structure has not been demolished by the expiration date of the rat free certificate, then another inspection shall be conducted and another certificate shall be issued before demolition can proceed.

(Code 1958, §§ 39-12, 39-13,; Ord. No. 38,822, § 1, 7-15-97; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-12. Storage of animal feed and grass seed.

All food, feed and grass seed kept within the city for feeding birds, ducks, geese, dogs, cats, chickens, cows, pigs, horses and other animals shall be kept and stored in rat-free and ratproof containers, compartments or rooms, unless kept in a ratproof building.
(Code 1958, § 39-9; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-13. Garbage and trash affording food and harborage for rats.

It shall be unlawful for any person to place, leave, dump, accumulate, or allow to be placed, left, dumped or accumulated any garbage, rubbish or trash on any property or inside or outside any building or structure in the city which shall or may afford food or harborage for rats.
(Code 1958, § 39-10; Ord. No. 38,343, § 1, 5-14-96; Ord. No. 39,650, § 2, 6-22-99)

Cross reference—Solid waste, Ch. 41.

Sec. 36-14. Lumber, boxes, bricks and similar material affording harborage for rats.

It shall be unlawful for any person to place, leave, dump, accumulate, or allow to be placed, left, dumped or accumulated on any property in the city yard waste, lumber, boxes, barrels, brick, stone or similar material which shall or may afford food or harborage for rats.
(Code 1958, § 39-11; Ord. No. 38,343, § 2, 5-14-96; Ord. No. 39,650, § 2, 6-22-99)

Sec. 36-15. Prevention of breeding of flies.

No person shall suffer, permit or have upon any premises owned or leased by him any animal manure, privy, vault, cesspool, pit or like place, or any garbage, trash, litter, rags or other thing in which flies may breed or multiply, unless the same is securely protected against the entrance of flies.
(Ord. No. 39,650, § 3, 6-22-99)

Sec. 36-16. Collections of water in which mosquitoes may breed.

(a) It shall be unlawful for the owner, agent, occupant or person in control of any premises in the city to dig any hole wherein any rain may settle, or to cause, allow, suffer or permit any collection of standing or flowing water in which mosquitoes breed, or which is favorable to the breeding of mosquitoes on such premises, unless such collection of water is treated in a manner prescribed by the director of public health, or his designee, so as to prevent the breeding of mosquitoes therein. Water so collected without being treated is hereby declared to be a nuisance detrimental to the public health and welfare.

(b) Collections of water to be considered as coming within the terms of this section are those which are contained in ditches, ponds, retention ponds, pools, lakes, creeks, depressions, privies, vaults, fountains, cisterns, tanks, wells, barrels, troughs (except drinking troughs in constant use), urns, cans, tubs, buckets, bottles, defective house gutters or any other artificial container.

(c) Methods of treatment approved by the director public health, or his designee, under this section may be one or more of the following:

(1) Screening with wire net at least twenty-two (22) meshes to the linear inch or other material which will prevent the ingress or egress of mosquitoes.

(2) Complete emptying, every six (6) days, of all unscreened containers, together with a thorough drying and cleaning.

(3) Use of an effective and approved larvicide.

(4) Stocking with mosquito-destroying fish or top minnows (Gambusia Affinis), or other natural predators.

(5) Filling or draining such contained water in a manner satisfactory to the director of public health, or his designee, or other environmentally approved methods.

(6) Prompt and proper disposal of tin cans, tires, crockery, bottles, barrels or other articles or artificial containers likely to hold water.

(7) Repairing of defective house gutters, tanks which are out of order and the like.

(d) Any person who shall be responsible under the terms of this section for the existence of any condition which gives rise to or is favorable to the

breeding of mosquitoes or who shall fail or refuse to take all necessary measures ordered by the director of public health, or his designee, to prevent the such conditions in accordance with the terms of this section, shall be deemed guilty of a Class 1 misdemeanor.
(Ord. No. 39,650, § 3, 6-22-99)

Sec. 36-17. Filling of cellars and lots; Lot drainage.

(a) All cellars under warehouses, stores, dwellings and other buildings shall, when so ordered by the director of public health or his designees, be filled with sound materials approved by the director of public health and the director of public works or their designee and paved with hard bricks, stones or other materials approved by the director of public health. All lots, when so ordered by the director of public health, shall be filled above the level of the streets, so as to prevent the lodgment of water. Any person owning such place and failing to comply with the requirements of the director under this subsection shall be guilty of a Class 1 misdemeanor. Upon such failure, the director of public health may cause such work to be done and the expense thereof shall be paid by such owner and shall constitute a lien upon the property to be enforced upon the property as liens for taxes are enforced.

(b) The owner of any lot within the city shall see that it drains to the street upon which it abuts, or to a creek, if it abuts on a creek; and the owner of any lot upon which water accumulates and does not drain off to the street or creek upon which it abuts shall be required by the director of public health or the director of public works or their designees to properly fill the lot, so that the water will drain to the street or creek and not accumulate; or, if the director or his designee deems it proper, the owner of such lot shall be required, by drain pipes or otherwise, to properly drain the lot to the street or creek, as the case may be. Any owner who shall, after ten (10) days' notice from the director of public health or his designee to himself or to his tenant or occupant, fail to properly fill or drain his lot shall be guilty of a Class 1 misdemeanor.
(Ord. No. 39,650, § 3, 6-22-99)

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Chapter 36.1

RESIDENTIAL RENTAL DWELLING UNIT INSPECTION DISTRICTS

§ 36.1-1. Definitions.
§ 36.1-2. Factors for establishing residential rental dwelling unit inspection districts.
§ 36.1-3. Residential rental dwelling unit inspection districts established.
§ 36.1-4. Notification to locality by owner of residential rental dwelling units.
§ 36.1-5. Initial inspection of dwelling units when residential rental inspection district is established.
§ 36.1-6. Provisions for initial and periodic inspections of multiple-family complex.
§ 36.1-7. Follow-up inspections.
§ 36.1-8. Periodic inspections.
§ 36.1-9. Exemptions from rental inspection ordinance; revocation of exception.
§ 36.1-10. Fees.
§ 36.1-11. Amendment of rental inspection ordinance or maps.
§ 36.1-12. Reserved.
§ 36.1-13. Failure to submit to required inspection.
§ 36.1-14. Violations.
§ 36.1-15. Chapter not to alter certain duties or responsibilities.

Sec. 36.1-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building code means the set of rules, regulations and provisions adopted by the city pursuant to chapter 11.1 of the City Code.

Codes compliance administrator means the manager of the bureau of neighborhood revitalization in the department of neighborhood preservation, and his designees who are employees of such bureau.

Codes compliance office means the bureau of neighborhood revitalization in the department of neighborhood preservation.

Dwelling unit means a building or structure or part thereof that is used for a home or residence by one or more persons who maintain a household. The term "dwelling unit" shall not include hospitals, nursing homes, convalescent homes or similar facilities providing medical care to the aged, infirm or disabled.

Multiple-family complex means any structure, consisting of ten (10) or more dwelling units under common ownership and occupied for valuable consideration. The term "multiple-family complex" shall not include mobile homes under common ownership in a mobile home park or subdivision; nor shall such term include single-family detached dwellings, duplex dwellings, or townhouse dwellings under common ownership.

Owner means the person or entity shown on the current real estate assessment books or current real estate assessment records of the city.

Residential rental dwelling unit means a dwelling unit that is leased or rented to one or more tenants month to month or for any period in excess of thirty (30) days including, but not limited to, condominiums, manufactured or mobile homes, single-family detached dwellings, duplex dwellings, townhouse dwellings or multifamily dwellings (which shall include efficiency apartments and condominiums). However, a dwelling unit occupied in part by the owner thereof shall not be construed to be a residential rental dwelling unit unless a tenant occupies a part of the dwelling unit which has its own cooking and sleeping areas, and a bathroom, unless otherwise provided in the zoning ordinance.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-2. Factors for establishing residential rental dwelling unit inspection districts.

After holding a duly advertised public hearing as required by Code of Virginia, § 36-105.1:1, city council finds that within the inspection districts designated in section 36.1-3 (i) there is a need to protect the public health, safety and welfare of the occupants of dwelling units inside the designated rental inspection districts; (ii) the residential rental dwelling units within the designated districts are either (a) blighted or in the process of deteriorating, or (b) the residential rental dwelling units are in need of inspection by the codes compliance office to prevent deterioration, taking into account the number, age and condition of residential dwelling rental units inside said districts, and (iii) the inspection of residential rental dwelling units inside the districts is necessary to maintain safe, decent and sanitary living conditions for tenants and other residents living in the districts. This chapter may be referred to as the "rental inspection ordinance."
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-3. Residential rental dwelling unit inspection districts established.

(a) Based upon the findings of city council as set forth in section 36.1-2 hereinabove, the following areas are included and hereby declared to be residential rental dwelling unit inspection districts which are subject to the requirements of this chapter:

(1) *District 1—Denby Park district.* The Denby Park district shall consist of that part of the city which is bounded as follows: BEGINNING at the intersection of the centerline of East Little Creek Road with the centerline of Tidewater Drive; thence, southwardly along the centerline Tidewater Drive to its intersection with the northern line of Interstate 64; thence, westwardly and northerly along the north-

ern and eastern line of Interstate 64 to its intersection with the centerline of East Little Creek Road; thence, eastwardly along the centerline of East Little Creek Road to the point of beginning.

(2) *District 2—Huntersville district.* The Huntersville district shall consist of that part of the city which is bounded as follows: BEGINNING at the intersection of the centerline of Bolton Street and centerline of Princess Anne Road; thence, northwestwardly along said centerline of Princess Anne Road to the southerly prolongation of the eastern line of the subdivision of Barbersville; thence, northeastwardly along said eastern line of Barbersville, said eastern line being shown on a plat entitled, "Subdivision of Barbersville, Property of Norfolk Redevelopment and Housing Authority," said plat being duly recorded in the Clerk's Office of the City of Norfolk, Virginia, in Map Book 39 at Page 34, and along the northerly prolongation of said eastern line of Barbersville to the centerline of Goff Street; thence, westwardly along said centerline of Goff Street to the centerline of Church Street; thence, northwardly along said centerline of Church Street to the westerly prolongation of the southern line of property now or formerly that of the City of Norfolk, Virginia, as described in Deed Book 81 at Page 325, said deed being duly recorded in the Clerk's Office of the Circuit Court of the City of Chesapeake, Virginia; thence, eastwardly along said southern line to the centerline of Norfolk & Western Railroad; thence, eastwardly and southeastwardly along said centerline of Norfolk & Western Railroad to the centerline of Taggart Street; thence, southeastwardly along said centerline of Taggert Street to the centerline of Bolton Street; thence, southwestwardly along said centerline of Bolton Street to the point of beginning.

(3) *District 3—Pleasant Avenue district.* The Pleasant Avenue district shall consist of that part of the city which is bounded as follows: BEGINNING at a point that is the centerline intersection of 7th Bay Street and East Ocean View Avenue; thence easterly along the said centerline of East Ocean View Avenue to its centerline intersection with 23rd Bay Street; thence southerly along the said centerline of said 23rd Bay Street to its intersection with the centerline of Shore Drive; thence southerly along the said centerline of Shore Drive to its intersection with the mean low water of the western branch of Little Creek (also known as Pretty Lake); thence westerly along the mean low water of the western branch of Little Creek to its intersection with the centerline of 7th Bay Street extended; thence northerly along the said centerline of 7th Bay Street to the Point of Beginning.

(b) A map showing the residential rental dwelling unit inspection districts is hereby adopted as a part of this chapter, and shall be available for public inspection in the codes compliance office. Said districts are hereinafter referred to collectively as "inspection districts" and individually as "inspection district."
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-4. Notification to locality by owner of residential rental dwelling units.

(a) Every owner of a residential rental dwelling unit located within a rental inspection district shall notify the codes compliance office, in writing, within sixty (60) days after the creation or expansion of a rental inspection district, if the owner's dwelling unit is used for residential rental purposes.

(b) Failure of an owner of a residential rental dwelling unit subject to a residential rental inspection to comply with the above-written notification requirement in subsection (a) will result in a civil penalty of fifty dollars ($50.00) for every thirty-day period of failure to give notice. However, there shall be no penalty for the failure of an owner of a residential rental dwelling unit to comply with the written notification provision, unless and until the codes compliance office pro-

vides personal or written notice to the property owner. For purposes of this section, notice sent by regular first class mail to the last known address of the owner as shown on the current real estate tax assessment books or current real estate tax assessment records shall be deemed to comply with this requirement.

(c) Within thirty (30) days of giving the notification required under subsection (a), the owner of the residential rental dwelling unit shall contact the codes compliance office and arrange for an initial inspection.

(d) The owner of any residential rental dwelling unit shall within thirty (30) days of title transfer notify the codes compliance office of the change of ownership.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-5. Initial inspection of dwelling units when residential rental inspection district is established.

Upon the establishment of a rental inspection district, the codes compliance office may, in conjunction with the written notifications as provided in section 36.1-4, proceed to inspect dwelling units in the designated residential rental dwelling unit inspection district to determine if a dwelling unit is being used as residential rental property and to determine compliance with the provisions of the building code that affect the safe, decent and sanitary living conditions for the tenants of such property.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-6. Provisions for initial and periodic inspections of multiple-family complex.

For a multiple-family complex, in the initial and periodic inspections, the codes compliance office shall inspect only a sampling of the total dwelling units, of not less than two (2) and not more than ten (10) percent of the dwelling units. However, in no event shall the codes compliance office charge a fee authorized by this chapter for the inspection of more than ten dwelling units. If the codes compliance office determines upon inspection of the sampling of dwelling units that there are violations of the building code that affect the safe, decent and sanitary living conditions for the tenants of such multiple family complex, the codes compliance office may inspect as many dwelling units as necessary to enforce the building code. In the latter case, the fee shall be based upon a charge per dwelling unit inspected.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-7. Follow-up inspections.

Upon the initial or periodic inspection of a residential rental dwelling unit subject to this chapter, the codes compliance office may require the owner of the dwelling unit to submit to such follow-up inspections of the dwelling unit as the codes compliance office deems necessary, until such time as the dwelling unit is brought into compliance with the provisions of the building code that affect the safe, decent and sanitary living conditions for the tenants.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-8. Periodic inspections.

Except as provided in section 36.1-7, following the initial inspection of a residential rental dwelling unit subject to this chapter, the codes compliance office may inspect any residential rental dwelling unit in a rental inspection district that is not otherwise exempted no more than once each calendar year. The term "periodic inspection" shall not be deemed to include a follow-up inspection as provided in section 36.1-7.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-9. Exemptions from rental inspection ordinance; revocation of exception.

(a) Upon the initial or periodic inspection of a residential rental dwelling unit as described in sections 36.1-6 and 36.1-8, and provided that there are no violations of the building code that affect the safe, decent and sanitary living conditions for the tenants of such residential rental dwelling unit, the codes compliance office shall provide to the owner of such residential rental dwelling unit, an exemption from the rental inspection ordinance for a period of four years. In the event that a violation of the building code

affecting the safe, decent and sanitary living conditions is found to exist, an exemption will not be granted. The owner shall be provided with a written notice listing all violations and the period of time required to bring the property into compliance. A residential rental dwelling unit shall be subject to periodic inspections until such time as a periodic inspection reveals no violations of the building code and an exemption is granted.

(b) The codes compliance office may perform a periodic inspection subsequent to a sale of the residential rental dwelling unit.

(c) If a residential rental dwelling unit was issued a certificate of occupancy prior to July 1, 2005, the codes compliance office shall grant an exemption for a minimum period of four years from the date of the issuance of the certificate of occupancy.

(d) If the condition of the residential rental dwelling unit violates the building code during the exemption period, the codes compliance office may revoke the exemption previously granted.

(e) No exemption granted shall be considered permanent. After the expiration of the exemption period, the owner shall submit a written request to the codes compliance office for a periodic inspection and shall schedule such inspection within forty-five (45) days of the exemption's expiration.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-10. Fees.

There shall be no fee for an initial inspection. Except as otherwise provided in this chapter, there shall be a fee of fifty dollars ($50.00) per residential rental dwelling unit for a follow-up inspection or a periodic inspection.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-11. Amendment of rental inspection ordinance or maps.

This chapter and the rental inspection districts maps may be amended only after advertisement and public hearing in accordance with Code of Virginia § 36-105.1:1 and any amendment thereto.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-12. Reserved.

Sec. 36.1-13. Failure to submit to required inspection.

It shall be unlawful for any owner of a residential rental dwelling unit to fail to make timely contact to schedule any inspection required under this chapter or to fail to allow such inspection to proceed on the date for which it was scheduled.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-14. Violations.

Except as otherwise provided in this chapter, the penalty for a violation of this chapter shall be as set forth in Code of Virginia, § 36-106, as amended.
(Ord. No. 42,921, § 1, 12-4-07)

Sec. 36.1-15. Chapter not to alter certain duties or responsibilities.

The provisions of this chapter shall not in any way alter the rights and obligations of landlords and tenants under the Code of Virginia nor the duties and responsibilities of the city under the building code.
(Ord. No. 42,921, § 1, 12-4-07)

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Chapter 37

RETIREMENT SYSTEM*

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ARTICLE I. IN GENERAL

Sec. 37-1. Established; purpose; operative date; name.

A retirement system is hereby established for the purpose of providing retirement allowances and death benefits under the provisions of this chapter for employees of the city. The system shall begin operation as of January 1, 1942, and shall be known as the Employees' Retirement System of the City of Norfolk.
(Code 1958, § 40-2)

Sec. 37-2. Definitions.

Generally. As used in this chapter, certain words and phrases shall have the meanings ascribed to them by this section, unless a different meaning is plainly required by the context, the provisions of this chapter, or other applicable law. These terms are defined as follows:

(1) *Accidental disability retirement* means the retirement of a member pursuant to section 37-65 and other applicable law due to the total and permanent mental or physical incapacitation of the member from performing the duties of his job which is the natural and proximate result of an accident compensable under the Virginia Worker's Compensation Act and which occurred in the actual performance of his duties at a definite time and place and without willful negligence on his part, as determined by the medical board.

(2) *Accumulated contributions* means the sum of all the amounts credited to a member's individual account in the annuity savings account, together with regular interest thereon, as provided in subsections (a) and (b) of section 37-103.

(3) *Actuarial equivalent* means a benefit of equal value when computed at regular interest on the basis of the tables last adopted by the board.

(4) *Annuity* means annual retirement payments derived from the accumulated contributions of a member and payable to him for life, with the proviso that if he dies before he has received, in payments of annuity, the amount of his accumulated contributions at retirement, the balance of such amount shall be paid to such person, if any, as he shall have nominated by written designation duly acknowledged and filed with the board, otherwise to his estate.

(5) *Annuity reserve* means the present value of all payments to be made on account of annuity or benefit in lieu of an annuity, computed at regular interest on the basis of the tables last adopted by the board.

(6) *Average final compensation* means the average annual earnable compensation of a member for the three (3) years of creditable service during which his earnable compensation was highest or, if he has had less than three (3) years of creditable service, then his average annual earnable compensation during his total years of creditable service for persons who became members of the system on or before June 30, 2018.

Average final compensation means the average earnable compensation of a member for the sixty (60) consecutive months of creditable service during which his earnable compensation was highest or, if he has had less than sixty (60) months of creditable service, then his average earnable compensation during his total creditable service, for persons who became members of the system on or after July 1, 2018.

(7) *Beneficiary* means any person in receipt of a pension, an annuity, a retirement allowance or other benefits as provided by the system.

(8) *Board* means the board of trustees of the system provided for in this chapter to administer the system.

(9) *Council member* means any member of the Norfolk City Council including the Norfolk City Mayor as set forth in Section 5.1 of the Norfolk City Charter.

(10) *Creditable service* means membership service, plus prior service or service purchased pursuant to section 37-43 or 37-47.

(11) *Deferred retirement option program (DROP)* means a voluntary retirement incentive program whereby sworn public safety members who have reached their normal service retirement age may, pursuant to section 37-84, elect to receive a deferred and reduced retirement allowance for a period of up to four (4) years while remaining employed as a public safety officer, and upon termination of the DROP period, receive the deferred allowance as a lump sum in addition to their normal service retirement allowance.

(12) *Disability retirement* means ordinary disability retirement pursuant to section 37-64 or accidental disability retirement pursuant to section 37-65 wherein the member's retirement eligibility and allowance are based on a member's permanent and total disability to perform his job duties as determined by the medical board.

(13) *Early service retirement age* means the age at which a member in service who has not reached his normal service retirement age, but who is within five (5) years of reaching such age; or who has not completed the years of creditable service for normal service retirement, but is within five (5) years of completing such service; may apply to be retired by the board on an early service retirement allowance and receive a deferred or reduced pension allowance in accordance with section 37-62.

(14) *Earnable compensation* means all usual compensation, pay or salary, including compensation, pay or salary for temporary acting service performed within six (6) years preceding retirement in any certain position for at least thirty (30) consecutive work days, in whatsoever manner paid; without regard for any deduction required by virtue of any employee participating in any voluntary benefit plan authorized by the city for participation by employees. Notwithstanding the foregoing, effective for any fiscal year of the system beginning on or after July 1, 1996, the earnable compensation taken into account by the system shall not exceed the compensation limit under section 401(a)(17) of the Internal Revenue Code of the United States of America and as adjusted by the United States Commissioner of Internal Revenue for increases in the cost of living. If compensation for any prior period is used in determining benefits accrued in any fiscal year, the applicable annual limit (as adjusted) on earnable compensation for such prior period shall be applied. However, the aforementioned limit shall not apply to any employee who became a member of the system prior to July 1, 1996. In no event shall application of the aforementioned annual limit on earnable compensation reduce the accrued benefit of a member of the system below the amount of the member's accrued benefit as of June 30, 1996.

(15) *Effective date of the social security agreement* means the effective date the agreement with the secretary of health, education and welfare is signed extending coverage under the Social Security Act to members of the system who are eligible for coverage thereunder.

(16) *Employee* means any regular full-time and permanent and permanent part-time officer or employee of the city whose entire compensation is fully paid by the city and shall include policemen and firemen and appointed officials, but shall not include officials elected by the people or the General Assembly of Virginia, unless specifically provided for by the city council, any employee or officers on a periodic or casual part-time, seasonal or temporary employment status or any person providing services to the city pursuant to an agreement, a contract or a lease

unless specifically provided for by the city council. For the purpose of this chapter, permanent part-time employees shall be those appointed to positions requiring twenty (20) or more regularly scheduled hours of work per week, with such length of service during at least thirty-six (36) calendar weeks in a calendar year in order to qualify as a permanent part-time employee for any particular calendar year. Employee shall also include such persons identified in article II of this chapter.

(17) *Former police and fire pension fund* means the pension fund for members of the division of police or fire of the former department of public safety of the city, established by an ordinance adopted by the city council on January 8, 1924, as amended, as such fund existed immediately prior to January 1, 1942.

(18) *Funded pension* means that portion of a member's service retirement pension payable on account of his creditable membership service on June 30, 1958, plus that percentage of his pension payable on account of his creditable prior service as shall be determined by actuarial valuation as fully funded on such date. There shall be no funded pension in the case of an employee who last became a member after June 30, 1958, unless such member is a beneficiary reinstated in service with credit for service prior to June 30, 1958.

(19) *General member* means any member who is not a sworn public safety officer or a city council member.

(20) *Mandatory retirement age* means the age at which vested sworn public safety officers, with the exception of the chief of police and the chief of fire rescue, shall be retired by the board pursuant to section 37-61(b).

(21) *Medical board* means the board of physicians provided for in this chapter.

(22) *Member* means any person included in the membership of the system.

(23) *Membership service* means service as a member for which credit is allowable as provided in section 37-42.

(24) *Normal service retirement age* means (i) for persons who became members of the system on or before June 30, 2018, sixty (60) years with at least five (5) years of creditable service or the age at which thirty (30) years of creditable service have been completed, whichever occurs first, for general employees, and fifty-five (55) years with at least five (5) years of creditable service or the age at which twenty-five (25) years of creditable service have been completed, whichever occurs first, for policemen and firemen; (ii) for persons who became members of the system on or after July 1, 2018, the retirement age as defined under the Social Security Act (42 U.S.C. § 416 et seq. and as amended) with at least five (5) years of creditable service or the age at which the sum of creditable service years and age equals ninety (90) for general employees, and (60) years with at least five (5) years of creditable service or age fifty (50) years with twenty-five (25) years of creditable service having been completed, whichever occurs first, for policemen and firemen.

(25) *Ordinary disability retirement* means the retirement of a member with five (5) or more years of creditable service pursuant to section 37-64 based on the member's permanent and total mental or physical incapacitation from performing the duties of his job as determined by the medical board.

(26) *Pension* means annual payments for life derived from money provided by the city.

(27) *Pension reserve* means the present value of all payments to be made on account of a pension, or benefits in lieu of a pension, computed at regular interest on the basis of the tables last adopted by the board.

(28) *Prior service* means service rendered prior to January 1, 1942, for which credit is allowable as provided in section 37-43.

(29) *Public safety member* means any member who is a sworn police officer, sworn firefighter, or deputy city manager for public safety pursuant to section 37-85.

(30) *Regular interest* means interest at the rates established from time to time by the board as provided in subsection (b) of section 37-105.

(31) *Retirement allowance* means the sum of the annuity and pension for policemen and firemen retired prior to January 12, 1971, and general employees retired prior to July 1, 1972; otherwise, the pension. All retirement allowances shall be payable in monthly installments continuing to the last payment after death [and], unless a balance is payable in accordance with subsection (d) of this section, no beneficiary or his estate shall be entitled to any payment unless such beneficiary is alive on the first day of the month, in which case the beneficiary or his estate will be entitled to the retirement allowance for the entire month. When directed by the board, the secretary shall mail all retirement allowance checks on the last working day of each month.

(32) *Service* means service as an employee paid for by the city.

(33) *System* means the employees' retirement system of the city, as defined in section 37-1.

(34) *Social security benefit* means the primary insurance amount, payable as an old age insurance benefit or a disability insurance benefit under Title II of the Social Security Act as in effect at the date of retirement, to which the member shall or would become entitled, irrespective of his failing to make proper application therefor or thereafter engaging in covered employment.

(35) *Trustee* means a member of the board of trustees of the system.

(36) *Vested member* means a member who will be due a retirement benefit at a future point in time based on his accrual of five (5) or more years of membership service at some time on or after January 1, 1997 or ten (10) or more years of creditable service prior to January 1, 1997, so long as he has not converted his creditable service to another qualifying retirement system.

(37) *Virginia retirement system* or *VRS* means the public employee retirement system authorized and administered pursuant to Title 51.1 of the Code of Virginia and administered by the Board of Trustees of the Virginia Retirement System for the benefit of qualifying and participating public employees of the Commonwealth of Virginia and its political subdivisions.

(Code 1958, § 40-1; Ord. No. 35-094, § 1, 6-14-88; Ord. No. 36,124, § 1, 7-17-90; Ord. No. 38,385, § 1, 5-21-96; Ord. No. 38,409, § 1, 6-4-96; Ord. No. 39,711, § 1, 8-24-99; Ord. No. 40,628, § 2, 3-5-02; Ord. No. 41,303, § 1, 2-3-04; Ord. No. 41,454, § 1, 6-22-04; Ord. No. 47,233, § 1, 5-22-18, eff. 7-1-18; Ord. No. 48,436, § 2, 7-13-21)

Sec. 37-3. Fiscal year.

The fiscal year of the system shall be from July 1 to June 30.

(Code 1958, § 40-43)

Sec. 37-4. Amendment of chapter.

The city council shall have the continuing right and power to amend or supplement this chapter at any time, which right and power is hereby expressly reserved, but no amendment shall be adopted which will reduce the then accrued benefits of employees or beneficiaries below the extent they are then covered by accumulated reserves, which reserves shall constitute a trust fund for the payment of such benefits.

(Code 1958, § 40-36)

Sec. 37-5. Former pension funds or plans superseded; applicability of future plans to members, etc., of system.

(a) On and after January 1, 1942, this chapter and the provisions of the system shall supersede any existing pension fund or funds or other

similar plan financed in whole or in part by the city. No further contributions shall be made to any such fund or plan, either by employees or by the city, and no further benefits shall be paid from any such fund or plan.

(b) No other provision of law or ordinance which hereafter may provide wholly or partly, at the expense of the city, for pensions or retirement benefits for employees of the city, their widows or other dependents, shall apply to members or beneficiaries of the system established by this chapter, their widows or other dependents, except that this limitation shall not apply to the benefits payable under Title II of the Social Security Act or to the taxes imposed under the Federal Insurance Contributions Act.
(Code 1958, § 40-32)

Sec. 37-6. Rights, benefits, accounts, etc., provided for in chapter not subject to execution, garnishment, assignment, etc.

The right of a person to a pension, an annuity or a retirement allowance or to the return of contributions, and the pension, annuity or retirement allowance itself, any optional benefit or death benefit and any other right accrued or accruing to any person under the provisions of this chapter and the money in the various accounts created by this chapter shall not be subject to execution, garnishment, attachment, the operation of bankruptcy or insolvency law or any other process by law whatsoever, and shall be unassignable, except as in this chapter specifically provided.
(Code 1958, § 40-33)

Sec. 37-7. False statement or reports; falsification of system records.

Whoever, with intent to deceive, shall make any statements or reports required under this chapter which are untrue, or shall falsify or permit to be falsified any record of records of the system, shall be guilty of a Class 2 misdemeanor.
(Code 1958, § 40-34)

Secs. 37-8—37-20. Reserved.

ARTICLE II. MEMBERSHIP

Sec. 37-21. Generally.

(a) Any person who becomes an employee eligible to participate in the system on or after January 1, 1942; and prior to January 1, 2022; shall become member of the system as a condition of his employment.

(b) Any person who is an employee on January 1, 1942, shall become a member of the system as of such date, unless prior thereto he shall file with the board, on form[s] prescribed by the board, a notice, of his election not to be covered in the membership of the system and a duly executed waiver of all present and prospective benefits which would otherwise inure to him as a member.

(c) Any employee whose membership in the system is contingent on his own election and who elects not to become a member may thereafter apply for and be admitted to membership, but no such employee shall receive prior service credit, unless he becomes a member on or before January 1, 1943.

(d) The board shall maintain in its records the name, title, compensation, duties, date of birth and length of service of each member, and such information regarding other employees as the board may require, and on the basis thereof the board shall classify each member, either as a "general employee" or as a "policeman" or "fireman."

(e) Should any member, except one who elects to have his interest vested pursuant to subsection (c) of section 37-74, if he meets the service requirement for such vesting, be absent from service more than five (5) years in any period of six (6) consecutive years, or should any member withdraw his accumulated contributions or die or retire under the provisions of this chapter, he shall thereupon cease to be a member.

(f) In the event any member of the retirement system, who is appointed by a board, commission or other body or person, other than the city manager, shall fail or refuse to retire from the service of the city at the time and as now or hereafter provided by the system, or after his

retirement accept appointment or employment to a position covered by the system, such member shall ipso facto cease to be a member of the system, and thereafter shall not be entitled to any of the benefits prescribed by the system, but shall be entitled to have his accumulated contributions refunded to him.

(g) The provisions of this chapter shall not apply to employees hired or rehired on or after January 1, 2022 or to members who on or after January 1, 2022 elect to become members of the Virginia Retirement System pursuant to section 37-46.

(Code 1958, 40-3; Ord. No. 48,436, § 3, 7-13-21)

Sec. 37-22. Commissioner of the revenue; city treasurer; city sheriff; general district court and juvenile and domestic relations court; judges; clerks of courts of record and employees in their offices; commonwealth's attorney and employees in his office; and city council members.

(a) The term "employee," as defined in section 37-2, shall also include the following officers and employees:

(1) The commissioner of the revenue of the city.

(2) The city treasurer.

(3) The city sheriff.

(4) The judges of the general district court of the city.

(5) The judges of the general district juvenile and domestic relations court of the city.

(6) The clerks of the courts of record of the city and the regular, full-time and permanent employees of such clerks in their respective offices.

(7) The commonwealth's attorney of the city and the regular, full-time and permanent employees of such attorney in his office.

(8) Notwithstanding (f) and (i) below or any other provision of this system to the contrary, any member serving on the council of the City of Norfolk on July 1, 1995, but not on July 1, 2001, shall be a member of the system as of July 1, 1995.

(9) Notwithstanding any provision to the contrary any member serving on the council of the City of Norfolk on or after July 1, 2001, shall be a member of the system as of such first day of their first term on the city council.

(b) The term "service," as used in this chapter and as applied to the officers and employees covered by this section, shall mean service as an employee in such offices or positions or as a full-time employee in any office or position with the city now covered by the system.

(c) The term "prior service," as used in this chapter and as applied to the officers and employees covered by this section, shall mean service rendered prior to January 1, 1942, for which credit shall be allowable as provided in section 37-43, and in addition thereto, credit for prior service shall be allowable for one-half of the service rendered during the period from January 1, 1942, to January 1, 1954.

(d) Any officer or employee holding, on January 1, 1954, an office or position covered by this section, who elects to become a member of the system, shall not be entitled to credit for prior service, unless he shall file with the board, prior to January 1, 1955, on a form prescribed by the board, a notice of his election to become a member of the system. The failure to file such notice within such time shall constitute a waiver of all the present and prospective benefits which would otherwise accrue to him as such member, unless he later becomes a member of the system as hereinafter in this section provided.

(e) Any officer or employee holding, on January 1, 1954, an office or position covered by this section, whose membership in the system is contingent on his own election and who does not elect to become a member of the system prior to January 1, 1955, may thereafter apply for and be admitted to membership, but no such officer or employee shall receive service credit for any service rendered by him prior to his becoming a member.

(f) Any person who is elected or appointed to or begins employment in any office or position covered by this section after January 1, 1954, shall have sixty (60) days from the date of such election, appointment or employment to file with the board, on forms prescribed by the board, a notice of his intention to become a member of the system, and upon his failure so to do, he shall not be entitled to any of the present and prospective benefits which would otherwise accrue to him as a member of the system, unless he later elects to become a member of the system, and should he later so elect, he shall not receive service credit for any service prior to the date of such election.

(g) The officers and employees covered by this section shall participate in the system on the basis of the total amount of their compensation received by reason of their employment in such offices and positions, and contributions to the system shall be based thereon.

(h) Reserved.

(i) Reserved.

(j) Except as in this section otherwise provided, all the provisions of this chapter, as now in effect or hereafter amended and put into effect, relating to the system, shall apply to the officers and employees covered by this section.
(Code 1958, § 40-41; Ord. No. 37,985, § 1, 5-23-95; Ord. No. 40,392, §§ 1, 2, 6-26-01; Ord. No. 40,628, § 1, 3-5-02)

Editor's note—To conform to current terminology and practices, the following changes were made in the above section: "City sergeant" was changed to "city sheriff"; "civil judge" was changed to "judges of the general district court"; and "judge of the juvenile and domestic relations court" was changed to "judges of the general district juvenile and domestic relations court."

Sec. 37-23. Employees in offices of city treasurer and commissioner of the revenue.

(a) The term "employee," as defined in section 37-2, shall also include the employees in the offices of the city treasurer and the commissioner of the revenue of the city.

(b) On and after August 1, 1946, and until otherwise changed by the council, employees in the offices referred to in-this section shall participate in the retirement system established by this chapter on the basis of the total amount of their compensation, as fixed by the state compensation board, and their contributions to the system shall be based thereon.

(c) The earnable compensation of employees referred to in this section shall be the amount of their compensation paid directly by the city prior to August 1, 1946, and the amount of their compensation, as fixed by the state compensation board, after August 1, 1946. Any such employee shall have the privilege of paying, within thirty (30) days from August 1, 1946, to the system, an amount equal to the difference between what he paid during the period from January 1, 1943, to July 31, 1946, and what he would have paid had his participation in the system during such period been based on the amount of his compensation as fixed by such compensation board, and upon such payment being made within such time, his earnable compensation during such period shall be the amount fixed by such compensation board.

(d) The term "service," as used in this chapter, and as applied to the employees in the offices referred to in this section, shall mean services as an employee in such offices, or either of them, and in computing prior service, the year 1942 shall not be included.

(e) In the event any employee in the offices referred to in this section, who becomes a member of the system, shall fail or refuse to retire at the time and as provided by this chapter, unless his service is extended as provided by this chapter, such employee shall ipso facto cease to be a member of the system and thereafter shall not be entitled to any of the benefits provided by the system, but shall be entitled to have his accumulated contributions refunded to him.

(f) Except as herein otherwise provided, all of the provisions of this chapter, as now in effect or as hereafter amended and put into effect, shall apply to the employees of the offices referred to in this section.
(Code 1958, § 40-37)

Sec. 37-24. Employees in office of city sheriff.

(a) The term "employee," as defined in section 37-2, shall include the employees in the office of the city sheriff.

(b) The employees in such office shall participate in the retirement system established by this chapter on the basis of the total amount of their compensation, as fixed by the state compensation board, and their contributions to the system shall be based thereon.

(c) The term "service," as used in this chapter and as applied to the employees in such office, shall mean service as an employee in such office, but in computing prior service, the period from January 1, 1942, to August 31, 1946, shall not be included.

(d) In the event any employee in such office, who becomes a member of the system, shall fail or refuse to retire at the time and as provided by this chapter, unless his service is extended as provided by this chapter, such employee shall ipso facto cease to be a member of the system and thereafter shall not be entitled to any of the benefits provided by the system, but shall be entitled to have his accumulated contributions refunded to him.

(e) The employees in such office on August 13, 1946, shall have until January 1, 1947, within which to elect to become members of the system and receive prior service credit for any service rendered prior to January 1, 1942; provided, however, that such employees in such office as are now seventy (70) years of age or over shall make such election prior to September 1, 1946.

(f) Except as in this section otherwise provided, all of the provisions of this chapter, as now in effect or as hereafter amended and put into effect, shall apply to the employees in such office.
(Code 1958, § 40-38)

Editor's note—The above section, as it appeared in the 1958 Norfolk City Code, referred to the office of "city sergeant." It was changed to "city sheriff" to conform to current terminology.

Sec. 37-25. Employees of Norfolk Port-Traffic Commission.

(a) The term "employee," as defined in section 37-2, shall also include such officers and employees of the Norfolk Port-Traffic Commission as are members of the retirement system on June 30, 1948, and are employed by the Norfolk Port Authority on and after said date, subject to the provisions set forth in this section.

(b) The Norfolk Port Authority shall make the proper periodic pension deductions from the salaries of such officers and employees and pay the same to the system.

(c) In the event any of such officers and employees whose membership in the system is continued by this section should fail or refuse to retire at the time and as provided by the provisions of the system now or hereafter in effect, such officers or employees shall ipso facto cease to be members of the system, and thereafter shall not be entitled to any of the benefits provided by the system, but shall be entitled to have their accumulated contributions refunded to them.
(Code 1958, § 40-39)

Sec. 37-26. Employees of Norfolk Port Authority.

(a) The term "employee," as defined in section 37-2, shall also include such officers and employees of the city as are members of the retirement system and are employed by the Norfolk Port Authority from time to time, subject to the provisions set forth in this section.

(b) The Norfolk Port Authority shall make the proper periodic pension deductions from the salaries of such officers and employees and pay the same to the system.

(c) In the event any of such officers and employees whose membership in the retirement system is continued by this section should fail or refuse to retire at the time and as provided by the provisions of the system now or hereafter in effect, such officers or employees shall ipso facto cease to be members of the system, and thereafter shall not be entitled to any of the benefits provided by the system, but shall be entitled to have their accumulated contributions refunded to them.

(d) No officer or employee of the Norfolk Port Authority, other than the officers and employees of the city who were members of the retirement

system and are employed by the Norfolk Port Authority, shall be included within the term "employee" as aforesaid or be entitled to membership in the system.
(Code 1958, § 40-40)

Sec. 37-26.1. Special project employees.

(a) Notwithstanding any other provisions of this chapter, on and after January 1, 1982, special project employees, as defined in section 2.1-10 of this Code, who have completed two (2) consecutive years of service with the city on said date, and special project employees after said date when they complete either two (2) consecutive years of service prior to January 1, 2022; or a shorter period if authorized by council or the city manager pursuant to section 114.1 of the Charter or chapter 2.1 of the City Code, as amended, shall become members of the employees' retirement system of the city. No prior service credits shall be allowed for special project employment.

(b) The director of the department of human resources shall certify to the executive secretary of the retirement system every special project employee who on January 1, 1982, is eligible to become a member of the system pursuant to the provisions of this section and shall thereafter notify the executive secretary of the employees' retirement system as each special project employee becomes eligible for membership. The director's notice shall include a copy of the ordinance or city manager's writing that created the employment.
(Ord. No. 31,516, § 1, 12-29-81; Ord. No. 34,501, § 2, 5-26-87; Ord. No. 41,842, § 12D, 5-17-05; Ord. No. 48,436, § 4, 7-13-21)

Editor's note—Ord. No. 31,516, § 1, adopted Dec. 29, 1981, added § 4041.2 to the 1958 Code; the editor has designated it as § 37-26.1 hereof.

Sec. 37-27. Certain state employees.

The term "employee," as defined in section 37-2, shall include any person who becomes a state employee by virtue of an agreement between the city and the state, or any department thereof, affiliating the city's department of public health with-the state health department; provided, that such person was a city employee and member of the system on the effective date of such agreement and does not elect, in writing addressed to the secretary of the system, and within sixty (60) days after the effective date of any such agreement, to become a member of the state supplemental retirement system, and those state employees of the general district court, the general district juvenile and domestic relations court and those persons providing social services therefor who elected to remain in the system when such courts and personnel become an operation of the state.
(Code 1958, § 40-42)

Sec. 37-28. Certain new employees not to be members.

(a) *New employees in the offices of clerk of the circuit court and commonwealth's attorney and certain other officers.* Notwithstanding any other provision of this chapter, on and after July 31, 1980, no employees of the offices of the clerk of the circuit court or commonwealth's attorney, nor any new commissioner of the revenue, city treasurer, city sheriff, judge of a general district court or commonwealth's attorney shall be members of the employees retirement system of the city, unless such person was an employee in the offices of the clerk of the circuit court or commonwealth's attorney, or was the commissioner of the revenue, city treasurer, city sheriff, general district court judge or commonwealth's attorney and a member of the retirement system on July 31, 1980. Nothing in this subsection shall in any way affect the rights of those employees who are members of the system on July 31, 1980, nor shall it affect the rights of any beneficiary of any such member.

(b) *New employees in the offices of the city treasurer and commissioner of the revenue.* Notwithstanding any other provision of this chapter, on and after July 31, 1980, no person employed in the offices of the city treasurer or commissioner of the revenue shall be a member of the employees' retirement system of the city, unless such person was an employee in the offices of the city treasurer or commissioner of the revenue and a member of the employees' retirement system of the city on July 31, 1980. Nothing in this subsection shall in any way

affect the rights of those employees who are members of the system on July 31, 1980, nor shall it affect the rights of any beneficiary of any such member.

(c) *New employees in the office of the city sheriff.* Notwithstanding any other provision of this chapter, on and after July 31, 1980, no person employed in the office of the city sheriff shall be a member of the employees' retirement system of the city, unless such person was an employee in the office of the city sheriff and a member of the retirement system of the city on July 31, 1980. Nothing in this subsection shall in any way affect the rights of those employees who are members of the system on July 31, 1980, nor shall it affect the rights of any beneficiary of any such members.
(Ord. No. 30,664, § 1, 6-24-80; Ord. No. 30,665, § 1, 6-24-80; Ord. No. 30,666, § 1, 6-24-80; Ord. No. 30,696, § 1, 7-1-80; Ord. No. 30,697, § 1, 7-1-80; Ord. No. 30,698, § 1, 7-1-80)

Editor's note—Ord. No. 30,664, 30,665 and 30,666, all enacted June 24, 1980 (as enacted), added sections to Chapter 40 of the 1958 Code to provide that certain new employees should not be members of the employees' retirement system. The editor has consolidated these provisions as § 37-28 hereof.

Secs. 37-29—37-40. Reserved.

ARTICLE III. CREDITABLE SERVICE

Sec. 37-41. What constitutes.

Creditable service at retirement on which the retirement allowance of a member shall be based shall consist of their membership service credit, and also, if the member has a prior service certificate which is in full force and effect, the amount of the service certified on their prior service certificate. In addition to the foregoing, and notwithstanding any applicable cap on the creditable service or retirement allowance of the member set forth in section 37-61(c) or (d), each member shall receive as creditable service one hundred (100) percent of the accumulated unused sick leave at the time of their retirement; provided, however, that in the case of firefighters, each shall receive, as creditable service, one hundred (100) percent of forty-six (46) percent of the unused sick leave accumulated prior to July 1, 1985, and one hundred (100) percent of unused sick leave accumulated on and after July 1, 1985, at the time of retirement. Except for firefighters the foregoing percentages shall be computed on a twenty-two (22) work-day month.
(Code 1958, § 40-4; Ord. No. 31,807, § 1, 6-29-82; Ord. No. 33,566, § 4, 7-16-85; Ord. No. 34,519, § 1, 6-2-87; Ord. No. 34,538, § 1, 6-16-87; Ord. No. 48,436, § 5, 7-13-21)

Sec. 37-42. Membership service.

Each member shall receive membership service credit for all service rendered while a member of the system since he became a member, or since he last became a member in the event of a break in his membership.
(Code 1958, § 40-4)

Sec. 37-43. Prior service.

(a) Each employee in service on January 1, 1942, who becomes a member within one year thereafter, shall file a detailed statement of all service as an employee rendered by him prior to such date for which he claims credit, and of such other facts as the board may require for the proper operation of the system. The board shall fix and determine, by appropriate rules and regulations, how much service in any year is equivalent to a year of service, but in no case shall more than one year of service be creditable for all service in one calendar year, nor shall the board allow credit as service for any period of more than one month's duration during which the employee was absent without pay.

(b) The board shall verify, as soon as practicable after the filing of such statement of service, the service therein claimed, and shall issue prior service certificates certifying to each member the number of years of prior service with which he is credited; provided, that in no event shall prior service credit be allowed in excess of the maximum number of years of such credit determined pursuant to the provisions of this chapter in effect as of January 1, 1942; provided, further, that for the purpose of determining such maximum prior service credit, his retirement allowance on account of membership service shall be computed as

exactly one-seventieth of his average final compensation, multiplied by the number of years from January 1, 1942, to the attainment of his normal service retirement age.

(c) As long as membership continues, a prior service certificate shall be final and conclusive for retirement purposes as to such prior service credit; provided, however, that any member may, within one year after the date of issuance or modification of such certificate, request the board to modify or correct his prior service certificate.

(d) When membership ceases, a prior service certificate shall become void, and should the employee again become a member, he shall enter the system as an employee not entitled to prior service credit.

(e) Any current full-time employee who had a period or periods of full-time employment with the city under a program which did not include creditable service in the city's retirement system shall be permitted, upon being credited with five (5) years of creditable service or upon attaining his normal service retirement age to purchase membership service credit for such period or periods of employment.

Any full-time employee who had a period or periods of active duty service in the armed forces of the United States, not recognized as creditable service under section 37-44, shall be permitted, upon being credited with five (5) years of creditable service or upon attaining his normal service retirement age as defined in section 37-61(a), to purchase membership service credit for such period or periods of service in the armed forces to a maximum of four (4) years of credit.

Such membership-service credit shall be purchased in accordance with rules and procedures adopted by the board that may include authorizing such service purchase on a pretax basis in accordance with section 414(h)(2) of the Internal Revenue Code, as amended. The purchased service credit amount that must be contributed by the member is the amount determined using actuarial factors and methods adopted from time to time by the board that is equal to the cost to the system of crediting to the member the years of membership service credit to be credited under this section. Any member electing to purchase such credit through payroll deduction shall enter into an annual irrevocable salary reduction agreement with the system and the city by which the elected purchased service credit amount shall be withheld from the compensation otherwise payable to the member by the city and contributed to the system. Such contributions, although designated as employee contributions, will be considered paid by the employer in lieu of contributions by the employee in order to be considered "picked up" by the employer for purposes of section 414(h)(2) of the Internal Revenue Code, as amended. The employee will not be given the option of choosing to receive the contributed amounts directly instead of having them paid by the employer to the employees' retirement system. If a member making contributions by salary reduction agreement terminates employment, dies or retires before all agreed contributions have been made, the lost service credited to the member shall be proportionately reduced. The purchased service credit amount that must be contributed by the member is the amount determined using actuarial factors and methods adopted from time to time by the board that is equal to the cost to the system of crediting to the member the years of membership service credit to be credited under this section.

In no event shall the combination of purchased service credit and creditable service exceed thirty-five (35) years in total for general employees nor exceed sixty-five (65) percent of average final compensation for police officers and firefighters.

(f) An employee of the city or a constitutional officer or an employee of a constitutional officer who during previous employment with the city or as a constitutional officer or as an employee of a constitutional officer was a member of the city's retirement system and earned at least five (5) years of creditable service prior to January 1, 1997, shall, upon re-employment as a city employee or as a constitutional officer or as an employee of a constitutional officer, be deemed to have vested in the city's retirement system.
(Code 1958, § 40-4; Ord. No. 40,381, § 2, 6-19-01; Ord. No. 41,441, § 1, 6-8-04; Ord. No. 42,606, § 1, 3-20-07)

Sec. 37-44. Military service.

(a) Any employee who, while in the active service of the city, entered in any way, or was called to active duty in, the armed forces of the United States at any time after January 1, 1940, and prior to January 1, 1942, and was serving in such armed forces on January 1, 1942, who becomes an employee and a member of the system after January 1, 1942, shall be entitled to credit for prior service for the service rendered by him as such employee prior to his entering, or being called to active duty in, said armed forces; provided, he becomes such employee and a member of the system within six (6) months after his discharge or release from activity duty in said armed forces. Notwithstanding any provision of this chapter to the contrary, contributions, benefits and service credits with respect to qualified military service will be as provided in accordance with section 414(u) of the Internal Revenue Code and other applicable laws and as amended. In no event shall the time period for returning to the service of the city be less than ninety (90) days following discharge from active duty in the armed forces or after release from hospitalization continuing after discharge.

(b) To the extent required by section 401(a)(37) of the Internal Revenue Code of 1986, as amended, for purposes of determining vesting in a service allowance and entitlement to death benefits under this chapter, in the event a member ceases to be in the active service of the city in order to perform qualified military service and dies on or after January 1, 2007, while performing qualified military service, the member's death shall be considered to have occurred while he was in the active service of the city so that his beneficiaries are entitled to any additional benefits provided under this chapter (other than benefit accruals relating to the period of qualified military service unless otherwise expressly provided), including, without limitation, any additional or enhanced vesting or death benefits which would have been paid had the member resumed active service with the city and then terminated employment on account of death.
(Code 1958, § 40-4; Ord. No. 39,711, § 2, 8-24-99; Ord. No. 44,614, § 1, 3-27-12)

Sec. 37-45. Restoration of creditable service upon re-enrollment after service terminated.

(a) Subject to the following requirements, a member whose service with the city was terminated for any reason other than retirement under the provisions of this chapter shall be re-enrolled as a member upon their re-enrollment as an employee. After being credited with five (5) years of creditable service in the system or upon attaining his normal service retirement age as defined in subsection 37-61(a), the creditable service of such member, as of the date of his last termination of service, shall be restored to him; provided, that if he did not have five (5) or more years of creditable service at the time of said termination, only the creditable service rendered during his continuous employment with the city immediately prior to such termination shall be restored to him; and further provided that, if he elected to withdraw his contributions with interest thereon, no creditable service shall be restored to him unless he repays, in a lump sum not later than the date of his retirement, subject to such conditions as the board may prescribe, the amount withdrawn as contributions. If such contributions are repaid no later than the last day of the calendar month coincident with or next following the expiration of three (3) months from September 30, 1975, or the date of his re-enrollment, whichever is later, such contributions shall be paid to the member in accordance with the provisions of this chapter.

(b) The provisions of this section shall not apply to former members hired or rehired on or after January 1, 2022.
(Code 1958, § 40-14; Ord. No. 38,388, § 1, 5-21-96; Ord. No. 44,001, § 2, 10-5-10; Ord. No. 48,436, § 6, 7-13-21)

Sec. 37-46. Portability of service between the system, certain political subdivisions of the commonwealth and the Virginia Retirement System.

(a) The system shall endeavor to enter into agreements (portability agreements) with the Virginia Retirement System and any political

subdivisions of the commonwealth which has a defined benefit plan that is not supplemental to the Virginia Retirement System ("independent plan") permitting vested members to purchase service credit in each other's systems (portability).

(b) The portability agreements shall be in accordance with Code of Virginia §§ 51.1-801.1 and 51.1-143.1, and before the system enters into any such portability agreements, it shall be approved as to form and correctness by the city attorney, be approved for contents by the city manager, and approved by city council.

(c) In the implementation of this section, the city manager shall have the authority and responsibility to render such assistance as the system requires.

(d) During the period of January 1, 2022 through December 31, 2022, members may elect to become members of the Virginia Retirement System. Members who elect to join VRS during this period may elect to convert one hundred (100) percent of their creditable service to service credit in the Virginia Retirement System on such terms and conditions as the Virginia Retirement System may prescribe.
(Ord. No. 38,900, § 1, 9-23-97; Ord. No. 48,436, § 7, 7-13-21)

Sec. 37-47. Purchase of service.

(a) A member who, prior to participating in the system, was a vested member of the Virginia Retirement System or of a public retirement system sponsored by a political subdivision of the commonwealth with which the system has entered into a portability agreement in accordance with the provisions of section 37-46 providing for the transfer of assets from such other system to the system and who has elected to have assets transferred from such other system to the system and who as a result of the transfer has received additional years of creditable service under the system, may elect within the eighteen-month period after being credited with five (5) years of creditable service in the system or upon attaining his normal service retirement age as defined in subsection 37-61(a), to contribute to the system all or a portion of the member's purchased service credit amount to a maximum of four (4) years of credit. A member who makes such election is referred to herein as an electing member. The purchased service credit amount is the amount determined using actuarial factors adopted from time to time by the board that is equal to the cost to the member the difference between the years of creditable service earned by the member in the Virginia Retirement System or such other public retirement system and the years of creditable service credited to the member under the system as a result of the asset transfer from such other system with such service being referred to herein as lost service. A member who contributes all or a portion of the purchased service credit amount in accordance with paragraph (b) shall have such lost service recognized by the system as creditable service. In no event shall the combination of purchased service credit and creditable service exceed thirty-five (35) years in total for general employees nor exceed sixty-five (65) percent of average final compensation for policemen, firemen and paramedic employees.

(b) An electing member who elects to contribute less than the full amount of the purchased service credit amount will receive the same portion of lost services as his elected contribution bears to the full purchased service credit amount. An electing member shall contribute his elected purchased service credit amount either (i) by making a single-sum contribution to the system that is an "eligible rollover distribution" within the meaning of section 402 of the Internal Revenue Code, as amended, or (ii) by entering into a salary reduction agreement with the system and the city in accordance with section 414(h)(2) of the Internal Revenue Code, as amended. Any member electing to purchase such credit through payroll deduction shall enter into an annual irrevocable salary reduction agreement with the system and the city by which the elected purchased service credit amount plus regular interest shall be withheld from the compensation otherwise payable to the member by the city and contributed to the system. Such contributions, although designated as employee contributions, will be considered paid by the employer in lieu of contributions by the employee

in order to be considered "picked up" by the employer for purposes of section 414(h)(2) of the Internal Revenue Code, as amended. The employee will not be given the option of choosing to receive the contributed amounts directly instead of having them paid by the employer to the employees' retirement system. Such salary reduction agreement shall provide for minimum payments of not less than fifty dollars ($50.00) per payroll period. If a member making contributions by a salary reduction agreement terminates employment, dies or retires before all agreed contributions have been made, the lost service credited to the member shall be proportionately reduced.

(c) The board shall adopt for the system such rules and procedures as it deems appropriate to provide for the administration of this section.
(Ord. No. 40,188, § 1, 12-19-00; Ord. No. 40,381, § 3, 6-19-01; Ord. No. 40,628, § 3, 3-5-02; Ord. No. 42,606, § 2, 3-20-07)

Secs. 37-48—37-60. Reserved.

ARTICLE IV. BENEFITS

Sec. 37-61. Normal service retirement age and allowance.

(a) For persons who became members of the system on or before June 30, 2018, the normal service retirement age shall be sixty (60) years with at least five (5) years of creditable service or the age at which thirty (30) years of creditable service have been completed, whichever occurs first, for general employees, and the normal service retirement age shall be fifty-five (55) years with at least five (5) years of creditable service or the age at which twenty-five (25) years of creditable service have been completed, whichever occurs first, for policemen and firemen and paramedic employees (for the purpose of this section 37-61, paramedic employee shall mean any member of the division of paramedical services of the department of fire and paramedical services whose primary and usual duties routinely involve the rendering of emergency medical care).

For persons who became members of the system on or after July 1, 2018, the normal service retirement age shall be the retirement age as defined under the Social Security Act (42 U.S.C § 416 et seq. and as amended) with at least five (5) years of creditable service or the age at which the sum of creditable service years and age equals ninety (90) for general employees and the normal service retirement age shall be sixty (60) years with at least five (5) years of creditable service or age fifty (50) years with twenty-five (25) years of creditable service having been completed, whichever occurs first, for policemen, firemen and paramedic employees (for the purpose of this section 37-61, paramedic employee shall mean any member of the division of paramedical services of the department of fire and paramedical services whose primary and usual duties routinely involve the rendering of emergency medical care).

Any member in service who has attained his normal service retirement age shall be retired by the board on a normal service retirement allowance, upon his written application setting forth at what time, not less than thirty (30) nor more than ninety (90) days next following the execution and filing thereof, he desires to be retired, notwithstanding that during such period of notification he may have separated from service.

(b) Any member in service who has attained age sixty-five 65), if he is a policeman or fireman, shall be retired forthwith by the board on a service retirement allowance. The provisions of this section shall not apply to the chief of police as defined at Charter section 60 and City Code section 33-22 or to the chief of fire rescue as defined at Charter section 62 and City Code section 17.1-2.

(c) The normal service retirement allowance of a general employee who became a member of the system on or before June 30, 1980, shall consist of a pension equal to two (2) percent of his average final compensation multiplied by the number of years of creditable service up to a maximum of thirty-five (35) years of creditable service (i.e., thirty-five (35) years serves as a cap on the amount of normal service retirement allowance).

The normal service retirement allowance of a general employee who became a member of the system subsequent to June 30, 1980, shall consist of a pension equal to 1.75 percent of his average final compensation, multiplied by the number of years of creditable service up to a maximum of thirty-five (35) years of creditable service (i.e., thirty-five (35) years serves as a cap on the amount of normal service retirement allowance).

(d) The normal service retirement allowance of a policeman, fireman or paramedic employee shall consist of a pension equal to 2.5 percent of his average final compensation multiplied by the number of years of creditable service up to a maximum of sixty-five (65) percent of average final compensation.

(e) Reserved.

(f) The board may, on its own motion, pay a retirement benefit to a former member not in service, if such member was otherwise entitled to a retirement benefit at the time he separated from service and was not in a disciplinary status or under suspension at that time. Such benefit to be effective on the first of the month following the member's removal from the payroll.

(g)—(k) Reserved.

(l) On or after January 1, 1997, permanent part-time employees shall be members of the system. Upon the completion of five (5) years of creditable service as defined by this paragraph, such members shall be entitled to benefits of the system based on creditable service earned and compensation in proportion to which their annual hours bear to the compensation of full-time employees.

(1) Creditable service for permanent part-time employees shall be a fraction of one year of service, the numerator of which is the number of hours scheduled for the permanent part-time employees for the year and the denominator of which is the number of hours scheduled for a full-time employee for the year. Creditable service earned by permanent part-time employees shall be calculated in this manner on an annual basis or at the time they cease to be a member of the system to determine whether the employee has earned five (5) years of creditable service necessary to receive a benefit upon retirement.

Earnable compensation for each full calendar year of permanent part-time employment shall be the annualized base compensation of the permanent part-time employee determined by multiplying such employee's rate of pay by the number of hours scheduled for a full-time employee for the year. Average final compensation for permanent part-time employees shall be determined in the manner set forth in Section 37-2.

(2) Any employee who transfers from full-time to permanent part-time status; transfers from permanent part-time to full-time status; or retires while in permanent part-time status, shall receive membership service as determined in paragraph (1) for any period of permanent part-time employment.

(3) All other provisions of this chapter applicable to general employees who became members on or after January 1, 1997, and not inconsistent with this subparagraph (1), shall apply to permanent part-time employees who became members of the system on or after January 1, 1997.

(m) Any member serving on the council of the City of Norfolk on July 1, 1995, but not serving on July 1, 2001, shall maintain the normal service retirement allowance for their creditable service which was in effect at the time of their retirement from the council of the City of Norfolk.

(n) For persons serving on the council of the City of Norfolk who became members of the system on or before June 30, 2018, the normal service retirement age shall be fifty-five (55) years with at least five (5) years of creditable service or the age at which twenty-five (25) years of creditable service has been completed, whichever occurs first. For persons serving on the council of the City of Norfolk who became members of the system on or after July 1, 2018, the normal service retirement age shall be sixty

(60) years with at least five (5) years of creditable service or age fifty (50) years with twenty-five (25) years of creditable service having been completed, whichever occurs first.

Any member serving on the council of the City of Norfolk on or after July 1, 2001, shall have a normal service retirement allowance of 2.5 percent of his average final compensation multiplied by the number of his years of creditable service up to a number of years of creditable service which would allow his normal retirement allowance to equal up to sixty-five (65) percent of his average final compensation.

(o) Members of the employees' retirement system of the city who have fifteen (15) years of creditable service with the city are eligible upon retirement to elect to participate in the health care insurance benefit plans available to employees of the city until such time as the member reaches the age defined as the normal age of eligibility for Medicare pursuant to 42 U.S. Code § 1395c, as amended. In addition, and notwithstanding the above, the following members shall also be eligible for the benefit regardless of the length of their creditable service: (1) council members serving on or after April 30, 2010; (2) city officers appointed to their positions pursuant to the Charter; (3) employees in the department of law who are city attorneys; and (4) city employees identified as executive in the annual compensation plan ordinance and its attachments.

Within thirty (30) days of the member's retirement; or, within thirty (30) days of a qualifying event whereby the member is no longer enrolled as a dependent beneficiary of a health care insurance benefit available to employees of the city or an affiliated agency who participates in the city's health care insurance plan; the member shall elect to enroll in the health care insurance benefit plan by communicating their election to the department of human resources. The member shall be responsible for payment of the full premium cost of the plan less any supplement authorized by the city council in its annual budget or other ordinance. Once enrolled, the member shall remain eligible to participate in the health care insurance plan until such time as the member disenrolls or reaches the age defined as the normal age of eligibility for Medicare pursuant to 42 U.S. Code § 1395c.

(p) Notwithstanding any ordinance to the contrary, the city attorney shall have a normal service retirement allowance consisting of a pension equal to 2.5% of his average final compensation multiplied by the number of years of creditable service as city attorney from May 1, 1997 to his retirement ("city attorney years") plus unused sick leave, plus 1.75% of his average final compensation multiplied by the number of years from November 4, 1984 to April 30, 1997 (the "assistant city attorney years"), which when added to the city attorney years causes the total to equal 35 (the assistant city attorney years reduced so that when added to the city attorney years the total equals thirty-five (35)). Any unused sick leave will be subject to the 2.5% multiplier and added to the thirty-five (35) years of creditable service. Pursuant to section 143 of the Norfolk City Charter, as amended, this retirement benefit cannot be reduced to the extent it has accrued.

(Code 1958, § 40-9; Ord. No. 30,205, § 1, 11-27-79; Ord. No. 30,663, § 1, 6-24-80; Ord. No. 34,357, § 1, 2-24-87; Ord. No. 36,872, § 1, 6-9-92; Ord. No. 38,389, § 1, 5-21-96; Ord. No. 38,406, § 1, 5-28-96; Ord. No. 39,711, § 3, 8-24-99; Ord. No. 40,381, §§ 4, 6, 6-19-01; Ord. No. 40,393, § 1, 6-26-01; Ord. No. 43,895, § 13, 6-15-10; Ord. No. 43,997, § 1, 10-5-10; Ord. No. 45,589, § 19(d), 6-10-14, eff. 7-1-14; Ord. No. 47,233, § 2, 5-22-18, eff. 7-1-18; Ord. No. 48,380, Exh. B, § 7, 5-11-21, eff. 7-1-21; Ord. No. 48,436, § 8, 7-13-21; Ord. No. 48,670, § 1, 2-8-22, eff. retro 7-13-21)

Sec. 37-62. Early service retirement allowance.

(a) Any member in service who has not reached his normal service retirement age, but who is within five (5) years of reaching such age or who has not completed the years of creditable service for normal service retirement, but is within five (5) years of completing such service, shall be retired by the board on an early service retirement allowance, upon his written application setting forth at what time, not less than thirty

(30) nor more than ninety (90) days next following the execution and filing thereof, he desires to be retired, notwithstanding that during such period of notification he may have separated from service.

(b) The early service retirement allowance shall consist of a deferred pension, commencing on the first day of the calendar month coincident with or next following the date on which the member would have attained his normal service retirement age or would have completed the years of creditable service required for normal service retirement if he had continued in service, equal to the amount computed as a normal service retirement allowance on the basis of his average final compensation and creditable service at the time of his retirement; provided, that at the time of retirement the member may elect to receive, in lieu of such deferred pension, an early service retirement allowance commencing on his early retirement date in a reduced amount, which shall be equal to the deferred pension reduced by one-quarter (0.25) of one percent of itself for general employees and one-half (0.5) of one percent of itself for policemen, firemen and paramedics for each month that the date of commencement of the pension payments precedes the date on which the deferred pension would otherwise have been payable.

(c) Members of the retirement system who (i) are appointed city manager, city attorney, city auditor, city clerk or city assessor pursuant to section 11 of the City Charter; (ii) are involuntarily separated from service; and (iii) have fifteen (15) or more years of creditable service or are fifty (50) years of age at the date of separation may retire and receive their retirement allowance without meeting the requirements of subsection 37-62(a) or 37-74(c) and without the reduction in retirement allowance required by subsection 37-62 (b).

For purposes of this subsection, "involuntary separation" means any dismissal, requested resignation, or failure to obtain reappointment.

Severability is intended throughout and within all the provisions of this subsection. If any provision (including *inter alia,* any word, phrase, sentence or paragraph), and/or the application thereof to any person or circumstance, is judicially declared invalid, then: (i) any provision declared invalid in its application to one person or circumstance shall remain valid in its application to all others; and (ii) any other provision, and/or its application to any person or circumstance, shall remain valid.
(Code 1958, § 40-9.1; Ord. No. 30,663, § 1, 6-24-80; Ord. No. 38,386, § 1, 5-21-96; Ord. No. 38,401, § 1, 5-21-96; Ord. No. 39,798, § 1, 11-23-99; Ord. No. 40,135, § 1, 10-10-00)

Sec. 37-63. Retirement allowance of beneficiaries elected to office covered by section 37-22.

Except for persons who are beneficiaries of the system on April 25, 1968, no beneficiary elected to any office covered by section 37-22 shall be entitled to his retirement allowance, except in the following manner:

(1) Should any such beneficiary elect, pursuant to section 37-22, to again become a member of the retirement system, then the provisions of section 37-75 shall apply.

(2) Should any such beneficiary elect not again to become a member of the retirement system, then all retirement allowances shall be suspended during the time he serves in office, pursuant to his election, and no retirement allowance shall be again paid until the termination of his term of office.

Upon the termination of his office his retirement allowance shall again be continued and the payment recomputed on the basis of his age at the time of the termination of his office. No creditable service shall be allowed while not a member of the retirement system during the time while he is in office and the contributions and earned interest of such person at the time of the suspension of his retirement allowance shall be paid to the annuity savings fund and interest credited thereon at the same rate as for active members.
(Code 1958, § 40-42.1; Ord. No. 44,001, § 3, 10-5-10)

Sec. 37-64. Ordinary disability retirement allowance.

(a) Upon the application of a member in service or of the head of his department, any member who has had five (5) or more years of

creditable service may be retired by the board on an ordinary disability retirement allowance, not less than thirty (30) nor more than ninety (90) days next following the execution and filing of such application; provided, that the medical board, after a medical examination of such member, shall certify that he is mentally or physically totally incapacitated for the further performance of duty, that such incapacity is likely to be permanent and that such member should be retired.

(b) The ordinary disability retirement allowance shall be equal to the normal service retirement allowance; if the member has attained his normal service retirement age; otherwise it shall be computed in accordance with subsection (c) of this section.

(c) The ordinary disability retirement allowance shall consist of a pension equal to the amount computed as a normal service retirement allowance for such member on the basis of his average final compensation and creditable service at the time of his retirement; provided, however, that if such amount is less than twenty-five (25) percent of the member's average final compensation, the pension shall be increased to the lesser of the following amounts:

(1) Twenty-five (25) percent of his average final compensation; or

(2) The amount which would have been payable to the member as a normal service retirement allowance on retirement at his normal service retirement age, if he had continued in service until such age without change in his average final compensation.

(Code 1958, § 40-10)

Sec. 37-65. Accidental disability retirement allowance—Generally.

(a) Upon the application of a member in service or of the head of his department, any member who has been totally and permanently incapacitated for duty as the natural and proximate result of an accident, the cause of which is compensable under the Virginia Workers' Compensation Act, occurring while in the actual performance of duty at some definite time and place, without willful negligence on his part, may be retired by the board on an accidental disability retirement allowance, and not an ordinary disability retirement allowance, not less than thirty (30) nor more than ninety (90) days next following the execution and filing of such application; provided that such application is filed within six (6) years from the definite time of such accident and that the medical board, after a medical examination of such member, shall certify that he is mentally or physically totally incapacitated for the further performance of duty, that such incapacity is likely to be permanent and that he should be retired. Notwithstanding the foregoing, in the event the board, in its discretion, determines that manifest injustice would result from an application of the six-year limitations period for application under this section, or from the requirement in this section that the member be in service at the time of application, and that there is evidence satisfactory to the board that a qualifying disability was the natural and proximate result of an accident compensable under the Virginia Workers' Compensation Act occurring at some definite time and place, it shall have the authority to waive such limitations period and the requirement that the member be in service at the time of application.

(b) The accidental disability retirement allowance shall consist of a pension which shall be equal of sixty-six and two-thirds (66⅔) percent of the member's average final compensation.

(Ord. No. 39,721, § 1, 9-14-99)

Sec. 37-66. Same—Presumptions and physical examinations for firemen, policemen, sheriff and deputy sheriffs.

(a) For the purposes of section 37-65, on or after July l, 1973, any condition or impairment of health of a fireman caused by respiratory disease, hypertension or heart disease, or on or after July l, 1974, for a policeman, and on or after July l, 1976, for the sheriff and a deputy sheriff, any condition or impairment of health caused by hypertension or heart disease resulting in disability shall be presumed to have been suffered in the line of duty, unless the contrary be shown

by competent evidence. Prior to making any claim based upon such presumption for retirement on account of such disability, such fireman, policeman, sheriff or deputy sheriff shall have been found free from hypertension, heart disease or respiratory disease as above set forth, as the case may be, by a physical examination which shall include such appropriate laboratory and other diagnostic studies as the council may prescribe, and which shall have been conducted by a physician whose qualifications shall have been prescribed by the council. Any fireman, policeman, sheriff or deputy sheriff claiming that his disability was suffered in the line of duty shall, if requested by the council or its authorized representative, submit himself to a physical examination by any physician designated by the council, which examination may include such tests or studies as may reasonably be prescribed by the physician so designated. A fireman, policeman, sheriff or deputy sheriff shall have the right to present at such examination, at his own expense, any qualified physician he may designate.

(b) All firemen employed by the city on July l, 1973, who have been in service for more than one year as of that date, and all policemen employed by the city on July l, 1974, who have been in service for more than one year as of that date, shall, for the purposes of the pre-physical required by subsection (a) of this section, be deemed to have taken the necessary physical examination and found to be free from hypertension, heart disease or respiratory disease, as the case may be.

(c) The director of public health or his designee, who shall be a duly qualified physician, shall give to all probationary firemen and policemen and to all firemen employed after July l, 1973, and policemen employed after July 1, 1974, and to the sheriff and deputy sheriffs employed on July 1, 1976, and all employed subsequent thereto, a general physical examination with the appropriate blood, urine and X-ray tests, together with blood pressure tests, and an electrocardiogram, followed by a Masters test and such other respiratory function tests as he shall deem appropriate. He shall keep a permanent record of such tests and the results thereof, as well as a record of all subsequent tests.

(Code 1958, §§ 40-11, 40-11.1; Ord. No. 30,226, § 1, 12-11-79)

Sec. 37-67. Reexamination of and reduction of benefits for beneficiaries retired on account of disability.

(a) Once each year during the first five (5) years following the retirement of a member of an ordinary or accidental disability retirement allowance, and once in every three (3) year period thereafter, the board may, and upon his application shall, require any disability beneficiary to undergo a medical examination, if he has not yet attained his normal service retirement age, such examination to be made at the place of residence of such beneficiary or some other place mutually agreed upon. Should any disability beneficiary refuse to submit to such medical examination, his retirement allowance may be discontinued by the board until his withdrawal of such refusal, and should his refusal continue for one year, all his rights in and to his pension may be revoked by the board.

(b) Should the board of trustees determine that a disability beneficiary, who has not attained his normal service retirement age, is engaged in a gainful employment, or should the medical board certify to the board of trustees that a disability beneficiary is able to engage in a gainful employment, paying more than the difference between his retirement allowance, including any supplements, and the highest rate in the pay range effective January first of the current year for the position he occupied at retirement, or if no such position is now included in the compensation plan, then a comparable range as identified by the personnel department, the board of trustees may reduce his retirement allowance, including any supplements, to an amount which, together with the amount earnable by him, shall equal the amount established on January first of the year being considered. The reduction will be made in the year following the year in which the earnings excess occurs. Should the retiree's earning capacity later change, the amount of his benefit may be increased or decreased in accordance with the provisions of this chapter.

(c) The board of trustees is hereby authorized to require retired disability beneficiaries to file such reports with the executive secretary of the

system as it feels are in the best interest of the system and necessary to carry out the provisions of this section. The board may discontinue benefits to any retiree who fails or refuses to provide such reports as are requested, and may continue to do so until such information is received.
(Code 1958, § 40-15)

Sec. 37-68. Optional allowances.

(a) For persons who became members of the system before July 1, 2016, until the first payment on account of his retirement allowance becomes normally due, any member may elect to convert the pension otherwise payable to him into a modified pension of equivalent actuarial value in accordance with one of the optional forms named below; provided, that if the contingent annuitant selected is other than the member's spouse, the value of the pension payable to the member under the option shall be more than one-half (½) of the present value of the benefits payable under the option to the member and his contingent annuitant; and further provided, that should the member die within thirty (30) days after retirement, his optional election shall not be effective, he shall be considered to be a member in service at the time of his death and the only benefit payable on his account shall be the ordinary death benefit provided in section 37-70, reduced by any retirement allowance payments received by him prior to his death:

Option A: A reduced pension payable during the life of the retired member, with the provision that, upon his death, the reduced pension shall be continued throughout the life of and paid to the contingent annuitant nominated by him by written designation duly acknowledged and filed with the board at the time of his retirement; or

Option B: A reduced pension payable during the life of the retired member, with the provision that, upon his death, one-half of the reduced pension shall be continued throughout the life of, and paid to, the contingent annuitant nominated by him by written designation duly acknowledged and filed with the board at the time of his retirement; or

Option C: A reduced pension payable during the life of the retired member, with the provision that, upon his death, some other benefit shall be payable; provided, that the benefit shall be approved by the board.

Option D: A reduced pension as set forth under paragraph (b) below.

(b) For persons who became members of the system on or after July 1, 2016, until the first payment on account of his retirement allowance becomes normally due, any member may elect to convert the pension otherwise payable to him into a reduced pension payable during the life of the retired member, with the provision that, upon his death, one-half (½) of the reduced pension shall be continued throughout the life of, and paid to, the contingent annuitant nominated by him by written designation duly acknowledged and filed with the board at the time of his retirement.

After the first payment on account of his retirement allowance becomes normally due, any member who has elected a modified benefit pursuant to paragraph (b) of this section may petition the board of trustees to revoke or amend his election of a modified benefit. Upon the receipt of proofs, satisfactory to the board, of one of the following qualifying occurrences, the board may grant the requested revocation or amendment as set forth below:

(1) Upon the receipt of proofs, satisfactory to the board, of the death of the contingent annuitant.

(2) Where the contingent annuitant is the member's spouse, upon the receipt of proofs, satisfactory to the board, that the member and contingent annuitant have divorced with less than twenty (20) years of marriage.

(3) Where the contingent annuitant is the member's spouse and the member and spouse have divorced after having been married for more than twenty (20) years at the time of the petition, upon the receipt of proofs, satisfactory to the board, of a qualified domestic relations order, other judicial order, or other writing signed

and notarized by the spouse in which the spouse consents to revocation or modification of the member's contingent annuitant election.

A member may only file one (1) petition to the board for amendment of his modified benefit election pursuant to paragraphs (b)(1)—(3) during his lifetime.

Upon receipt of notification by the secretary of the board that the member's petition has been granted pursuant to paragraphs (b)(1)—(3), the member may thereafter file with the secretary notice by written designation of a new contingent annuitant nominated by him.

(c) Notwithstanding any optional election in effect in accordance with this section, the annuity shall be payable, without modification, in accordance with subsection (b)(4) of section 37-2. (Code 1958, § 40-17; Ord. No. 48,266, § 1, 12-22-20)

Sec. 37-69. Increase of retirement allowance for service in armed forces.

From and after May l, 1974, the retirement allowance of any beneficiary shall be increased to grant creditable service for his period of service in the armed forces, as provided in section 37-44; provided, he submits evidence satisfactory to the board regarding his service in such armed forces.

The pension shall be recomputed in accordance with the benefit formula in effect at the time of the member's retirement, based on the increased number of years of his creditable service. (Code 1958, § 40-17.1)

Sec. 37-70. Ordinary death benefit.

Upon the receipt of proofs, satisfactory to the board, of the death of a member which was not the result of an accident in the actual performance of duty, as defined in section 37-71, there shall be paid to such person, if any, as he shall have nominated by written designation duly acknowledged and filed with the board, otherwise to his estate:

(1) Any contribution made prior to October 5, 2010, and if the deceased member was not vested, mandatory contributions made after October 5, 2010, prior to vesting, together with such interest thereon, not less than one-half of accumulated regular interest, as the board shall allow; and,

(2) If he was in service at the time of his death and had one or more years of creditable service, a lump sum benefit equal to fifty (50) percent of his earnable compensation during the year immediately preceding his death; provided that if the member dies on or after July 1, 1974, after attaining his normal service retirement eligibility, and if the person nominated was his spouse, the spouse may elect to receive, in lieu of such lump sum benefit, a monthly benefit equal to one-half of the normal service retirement allowance that would have been payable to the member had he retired on the date of his death. Such allowance shall be payable to the surviving spouse of the deceased member until said spouse's death or remarriage; provided, that if such death or remarriage occurs before the youngest unmarried child of the deceased member has attained age eighteen (18), then such allowance shall be continued to his unmarried children, if any, under such age, divided in such manner as the board in its discretion shall determine, until all of these children die, marry or attain age eighteen (18), whichever occurs first; further provided, that in the case of a surviving spouse who is receiving a monthly allowance pursuant to this paragraph on or before June 30, 1978, the allowance shall continue to be paid after said spouse's remarriage, and no further payments shall be made after said spouse's death. The surviving spouse s benefit shall accrue from the first day of the month following the death of the member in active service. The provisions

of this paragraph, as it pertains to the lump sum benefit, shall not be applicable to any employee who becomes a member of the system on or after July 1, 1979, until such person has attained five (5) or more years of creditable service in such system.

(3) Should any member with five (5) or more years of service, or any member who has attained normal service retirement eligibility, die, and if the designated beneficiary was his or her spouse, the spouse may elect to receive, in lieu of such lump sum benefit, a monthly benefit equal to one-half of the normal service retirement allowance that would have been payable to the member had he or she vested his or her benefit immediately prior to death, such monthly benefit to commence at the same time as the vested benefit would have been paid to such member. The time, manner, and eligibility for said payment shall be the same as set forth in paragraph (2) above.

(4) Should any member with five (5) or more years of service, or any member who has attained early service retirement eligibility die, and if the designated beneficiary was his or her spouse, the spouse may elect to receive, in lieu of such lump sum benefit, a monthly benefit equal to one-half of the early service retirement allowance that would have been payable to the member had he or she vested his or her benefit immediately prior to death, such monthly benefit to commence at the same time as the vested benefit would have been paid to such member. The early service retirement allowance for purposes of this ordinary death benefit shall consist of an early service retirement allowance commencing on the first day of the month following the member's death in a reduced amount, which shall be equal to the deferred pension reduced by one-quarter of one percent of itself for general employees and one-half of one percent of itself for policemen, firemen and paramedics for each month that the date of commencement of the pension payments precedes the date on which the deferred pension would otherwise have been payable.

(Code 1958, § 40-12; Ord. No. 29,806, § 1, 1-30-79; Ord. No. 31,440, § 1, 11-24-81; Ord. No. 40,724, § 1, 5-21-02; Ord. No. 44,001, § 4, 10-5-10)

Sec. 37-71. Accidental death benefit.

(a) If, upon receipt of proof, satisfactory to the board, of the death of a member in service indicating that such death was the natural and proximate result of an accident occurring while the member was in the actual performance of duty and that death occurred within six (6) years from the time of such accident, the board shall decide that death was the result of an accident in the actual performance of duty occurring at some definite time and place, and not caused by willful negligence on the part of the member, there shall be paid, in lieu of any benefits otherwise payable under section 37-70:

(1) The deceased member's contributions made prior to October 5, 2010, and if not vested prior to death, the mandatory contributions made on or after October 5, 2010, prior to vesting, together with such interest thereon, not less than one-half of accumulated regular interest thereon, as the board shall allow, to such person, if any, as he shall have nominated by written designation, duly acknowledged and filed with the board, otherwise to his estate.

(2) A pension, of one-half of his average final compensation, to his surviving spouse, if any, to continue until his death or remarriage; or if there is no spouse surviving or the spouse dies or remarries before the youngest child of the deceased member has attained age eighteen (18), then to his children under such age, if he leaves children, divided in such manner as the board, in its discretion, shall determine, to continue as a joint and survivorship pension for the benefit of the children under such age until all of those children die or attain such age; or if he leaves no

spouse or children under the age of eighteen (18) years living at his death, then to his dependent parents, living at his death, divided in such manner as the board, in its discretion, shall determine, to continue for life; provided, that if he leaves no such beneficiary living at his death, the amount which otherwise would have been paid as an ordinary death benefit, pursuant to section 37-70, shall be paid.

(b) On and after July 1, 1973, the death of any fireman caused by respiratory disease, hypertension or heart disease shall be presumed to have been suffered in the line of duty, unless the contrary be shown by competent evidence. Prior to making any claim, based upon such presumption, for accidental death benefits on account of such death, such fireman shall have been found free from hypertension, heart disease or respiratory disease, by a physical examination, which shall include such appropriate laboratory and other diagnostic studies as the council may prescribe and which shall have been conducted by a physician whose qualification shall have been prescribed by the council. The provisions of subsections (b) and (c) of section 37-66 shall apply *mutatis mutandis* to the provisions of this subsection.

(c) On and after July l, 1975, the death of any policeman caused by hypertension or heart disease shall be presumed to have been suffered in the line of duty, unless the contrary be shown by competent evidence. Prior to making any claim based upon such presumption for accidental death benefits on account of such death, such policeman shall have been found free from hypertension or heart disease by physical examination which shall include such appropriate laboratory and other diagnostic studies as the council may prescribe and which shall have been conducted by a physician whose qualifications shall have been prescribed by the council. The provisions of subsections (b) and (c) of section 37-66 shall apply *mutatis mutandis* to the provisions of this subsection.

(d) On or after July 1, 1976, the death of any sheriff or deputy sheriff caused by hypertension or heart disease shall be presumed to have been suffered in the line of duty unless the contrary be shown by competent evidence. Prior to making any claim based upon such presumption for accidental death benefits on account of such death, such sheriff or deputy sheriff shall have been found free from hypertension or heart disease by physical examination which shall include such appropriate laboratory and other diagnostic studies as the council may prescribe and which shall have been conducted by a physician whose qualifications shall have been prescribed by the council.
(Code 1958, § 40-13; Ord. No. 44,001, § 5, 10-5-10)

Sec. 37-72. Death benefits after retirement.

(a) Upon receipt of proof, satisfactory to the board, of the death on or after January 1, 1965, of a person who became a member of the system before July 1, 2016 and who had retired under the system; or a spouse receiving an accidental death benefit pursuant to section 37-71, and provided that such deceased retired member or Spouse had received or was, at the time of death, eligible to receive his or her first monthly retirement allowance check, a single lump sum death benefit, equal to one-half (½) of the average final compensation on which the retirement allowance of such retired member or spouse was based, shall be paid to the surviving spouse; or, if there is no surviving spouse, then to a surviving unmarried child or children under age eighteen (18) at the date of death, or to a surviving unmarried child or children over age eighteen (18), if the medical board shall certify that such unmarried child or children are physically or mentally unable to make a living. The lump sum death benefit provided for in this subsection shall not be applicable to any employee who becomes a member of the system on or after July 1, 1979, unless such person has attained five (5) or more years of creditable service in the system; to any employee who became a member of the system on or after July 1, 2016; or to any employee who became a member of the system before July 1, 2016 and who elects a modified pension pursuant to paragraph (b) of section 37-68.

(b) In the case of a retired member who dies on or after July 1, 1974 and has not elected a reduced pension under section 37-68, the surviving spouse may elect to receive, in lieu of the single lump sum death benefit provided in subsection (a) above, if applicable, a monthly benefit equal to one-half (1½) of the retirement allowance payable monthly to the deceased retired member at the time of his death; provided, in the case of a member who retires on or after July 1, 1974, the member had not made an optional election under section 37-68 which was in full force and effect. Such allowance shall be payable to the surviving spouse of the deceased retired member until said spouse's death or re-marriage; provided, that if such death or remarriage occurs before the youngest unmarried child of the deceased member has attained age eighteen (18), then such allowance shall be continued to his unmarried children under such age, divided in such manner as the board, in its discretion, shall determine, until all of these children die, marry or attain age eighteen (18), whichever occurs first. In the case of a surviving spouse who is receiving a monthly allowance pursuant to this subsection on or before June 30, 1978, the allowance shall continue to be paid after said spouse's remarriage, and no further payments shall be made after said spouse's death. The surviving spouse's benefit shall accrue from the date the retired member received his last and final retirement allowance payment.
(Code 1958, § 40-13.1; Ord. No. 29,806, 2, 1-30-79; Ord. No. 48,266, § 1, 12-22-20)

Sec. 37-73. Fixing time for benefits.

Notwithstanding any other provision of this chapter, on and after January 1, 1974, the benefits accruing to a member or his surviving spouse under normal service retirement, ordinary disability retirement or accidental disability retirement, shall be fixed as of the date the board acts upon such application for such retirement. For all other purposes, the date of retirement shall be that set by the board, when acting upon such member's application. Nothing herein shall affect the date on which the first benefit check is now paid. In no event shall a member's benefit commence (or otherwise be paid) later than the first day of April immediately following the calendar year in which the member attains age seventy and one-half (70½) or retires, whichever is later. All benefits (including death benefits) shall be paid in accordance with Section 401(a)(9) of the Internal Revenue Code of the United States of America and regulations of the United States Department of the Treasury issued thereunder, and as amended.
(Code 1958, § 40-13.2; Ord. No. 39,711, § 4, 8-24-99)

Sec. 37-74. Disposition of contributions upon retirement from or termination of service.

(a) A member who retires on or after July 1, 1972, under the provisions of sections 37-61, 37-62, 37-64 or 37-65 or subsection (c), shall be paid, at such time as the board approves, his contributions, if any made prior to October 5, 2010, together with such interest thereon, not less than one-half of accumulated interest thereon, as the board shall allow; provided, however, that such member may elect, prior to the commencement of his retirement allowance, to receive, in lieu of his contributions with interest thereon, an annuity which shall be the actuarial equivalent of his accumulated contributions at the time of retirement.

(b) Should a member cease to be an employee for any reason other than death or retirement under the provisions of this chapter, he shall, if he so demands, be paid, at such time as the board approves, his contributions, if any made prior to October 5, 2010, in whole or in part, together with such interest thereon, not less than one-half of accumulated interest thereon, as the board shall allow. If he elects, at the time of his termination of service, pursuant to subsections (c) and (d), to leave his contributions in the system, the amount of his contributions made prior to October 5, 2010, with interest thereon shall be refunded, in lieu of any other benefits from the system, upon his request made prior to the attainment of his normal service retirement age or upon his death prior thereto.

(c) A member with five (5) or more years of creditable service at the time he ceases to be an employee for any reason other than retirement

or death shall be entitled to apply for retirement on the first day of the calendar month coincident with or next following the date on which the member would have attained his normal service retirement age if he had continued in service, at which time he shall commence to receive a retirement allowance determined as a normal service retirement allowance on the basis of his creditable service and average final compensation at the time of termination of service and in accordance with the provisions of this chapter in effect at the time of his termination; provided, however, that no retirement allowance shall be payable to him pursuant to this subsection if he elects, in lieu thereof, to receive a refund of his contributions made prior to July 1, 1972, with interest thereon, pursuant to subsection (b) of this section. An employee who becomes a member on or after December 13,2011, must meet the vesting requirement as set forth in this subsection (c) in order to be eligible to retire.

(d) A member with less than ten (10) years of creditable service who, on July 1, 1988, is separated from the service of the city to become an employee of the Lake Taylor City Hospital Authority, shall be entitled to apply for retirement on the first day of the calendar month coincident with or next following the date on which the member attains either (i) age sixty (60) if he became a participant before July 1, 1980, or (ii) age sixty-five (65) if he became a participant on or after July 1, 1980, at which time he shall commence to receive a retirement allowance determined as a normal service retirement allowance on the basis of his creditable service and average final compensation as of June 30, 1988, and in accordance with the provisions of this chapter in effect on June 30, 1988.

(e) Benefits forfeited by any member for any reason shall not be applied to increase the benefits any employee would otherwise receive under the system.

(f) Notwithstanding anything to the contrary in this chapter, but subject to any de minimis or other exceptions or limitations provided for under

section 401(a)(31) of the Internal Revenue Code of 1986, as amended, (the "Code") any prospective recipient (whether a member, a surviving spouse, a current or former spouse) who is an alternate payee under a qualified domestic relations order or any other person eligible to make a rollover of a distribution from the system which constitutes an "eligible rollover distribution" (to the extent otherwise includible in the recipient's gross income) may direct the system to pay the distribution directly to an "eligible retirement plan". For purposes hereof, the following terms have the meanings assigned to them in section 401(a)(31) of the Code and, to the extent not inconsistent therewith, shall have the following meanings:

(i) The term "eligible retirement plan" means a defined contribution plan which is either an individual retirement account described in section 408(a) of the Code, an individual retirement annuity described in section 408(b) of the Code (other than an endowment contract), an annuity plan described in Section 403(a) of the Code or a qualified trust described in section 401(a) of the Code that accepts the prospective recipient's eligible rollover distribution. For distributions made before January 1, 2002, for eligible rollover distribution payable to a member's surviving spouse, an "eligible retirement plan" means only an individual retirement account or individual retirement annuity. Effective for distributions made after December 31, 2001, an eligible retirement plan shall also mean an annuity contract described in section 403(b) of the Code and an eligible plan under section 457(b) of the Code which is maintained by a state, political subdivision of a state or any agency or instrumentality of a state or political subdivision of a state and which agrees to account separately for amounts transferred into such plan from this plan. Effective for distributions made after December 31, 2001, the definition of eligible retirement plan applicable to a participant shall also apply for a distribution to a participant's surviving spouse and to a participant's spouse or former spouse who is the alternate payee under a domestic relations order accepted by the system. Effective for distributions made after December 31, 2007, an "eligible retirement plan" includes an individual retirement plan described in Section 408A of the Code (sometimes referred to as a Roth IRA) provided that for tax years beginning before January 1, 2010, the recipient does not have modified adjusted gross income in excess of one hundred thousand dollars ($100,000.00) and is not married filing a separate return, both as determined under section 408A(c)(3)(B) of the Code. For distributions made in plan years beginning on or after January 1, 2010, in the case of an eligible rollover distribution payable to a nonspouse designated beneficiary within the meaning of section 401(a)(9)(E) of the Code an "eligible retirement plan" means only an "inherited IRA".

(ii) The term "eligible rollover distribution" means any distribution other than:

(A) A distribution which is one of a series of substantially equal periodic payments (not less frequently than annually) made either for the life (or life expectancy) of the recipient or the joint lives (or joint life expectancies) of the recipient and his beneficiary who is an individual or for a specified period of ten (10) or more years;

(B) A distribution to the extent it is required under the minimum distribution requirement of section 401(a)(9) of the Code; or

(C) Any other amount which is not considered an eligible rollover distribution for purposes of section 402(c)(4) of the Code with respect to the plan.

(iii) The term "inherited IRA" means an individual retirement account described in section 408(a) of the Code, an individual retirement annuity described in section 408(b) of the Code (other than an endowment contract) or, for plan years beginning in or after 2010, an individual retirement plan described in section 408A of the

Code (sometimes referred to as a Roth IRA) established for the purpose of receiving the distribution where the individual retirement account or annuity or Roth IRA is treated as an inherited individual retirement account or annuity within the meaning of section 408(d)(3)(C) or, as applicable, section 409A(d)(3)(B) of the Code.

(g) A member who was a Norfolk Community Services Board ("NCSB") employee on June 30, 2012 and who becomes a city employee on July 1, 2012 ("former NCSB employee") shall have his period of employment at NCSB counted toward the five-year service requirement for vesting under City Code section 37-74(c) as if such period of employment constituted service while a member of the system under City Code section 37-42. In no event shall this subsection (g) be construed as including service at NCSB as creditable service in the city's retirement plan under City Code section 37-41 for any purpose other than vesting under City Code section 37-74(c), with a former NCSB employee only receiving creditable service in the city's retirement system for service as a Norfolk city employee or as provided in City Code sections 37-43, 37-44, 37-46 or 37-47.

Any such direction shall be filed with the system in such form and at such time as the system may require and shall adequately specify the eligible retirement plan to which the payment shall be made. The system shall make payment as directed only if the proposed transferee plan will accept the payment. Any such plan-to-plan transfer shall be considered a distribution option under this plan and shall be subject to all the usual distribution rules of the system (including, but not limited to, the requirement of an advance explanation of the option). The system is authorized in its discretion, applied on a uniform and non-discriminatory basis, to apply any discretionary de minimis or other discretionary exceptions or limitations provided for under section 401(a)31) of the Code in effecting or declining to effect plan-to-plan transfers hereunder. Within a reasonable time (generally not more than ninety (90) nor less than thirty (30) days) before the benefit payment date of a prospective recipient of an eligible rollover distribution from the plan, the system shall provide the prospective recipient with a written explanation of the rollover and tax rules required by section 402(f) of the Code. In the event of a mandatory distribution greater than one thousand dollars ($1,000.00), if the member does not elect to have such distribution paid directly to an eligible retirement plan specified by the member in a direct rollover or to receive the distribution directly in accordance with this section, then the member will pay the distribution in a direct rollover to an individual retirement plan designated by the system administrator. The system will select the individual retirement plan in accordance with the safe harbor provisions established under Code of Virginia § 51.1-803.C. and such provisions shall be interpreted and administered in accordance therewith. This mandatory rollover requirement does not apply to a lump sum payment made to a surviving spouse or former spouse who is an alternate payee under a domestic relations order accepted by the system. (Code 1958, § 40-14; Ord. No. 35,119, §§ 1, 2, 6-21-88; Ord. No. 38,387, § 1, 5-21-96; Ord. No. 39,711, § 5, 8-24-99; Ord. No. 40,628, § 4, 3-5-02; Ord. No. 44,001, § 6, 10-5-10; Ord. No. 44,483, § 1, 12-13-11; Ord. No. 44,614, § 2, 3-27-12; Ord. No. 44,719, § 1, 6-12-12)

Sec. 37-75. Restoration of beneficiaries to membership.

(a) Should a disability beneficiary under normal service retirement age be restored to or be in service at a compensation equal to or greater than his average final compensation at retirement, or should any other beneficiary be restored to service prior to his normal service retirement age, his retirement allowance shall cease, and he shall again become a member of the system. An amount equal to the actuarial reserve held for the annuity provided by his own contribution made prior to October 5, 2010, shall be credited to him as accumulated contributions. Anything in this chapter to the contrary notwithstanding, any prior service certificate on the basis of which his service was computed at the time of his retirement shall be restored to full force and effect and he shall be credited with all service as a member standing to his credit at the time of his retirement; provided, however, that upon his subsequent retirement, the pension part of his retirement allowance shall

be reduced by the actuarial equivalent of any pension payments previously paid to him for reasons other than disability retirement; and further provided, that his retirement allowance, upon subsequent retirement, shall not be less than the sum of his previous retirement allowance, plus the amount computed on the basis of his creditable service and earnable compensation for the period after his restoration.

(b) Should any beneficiary be restored to service with the city in an employment position other than as a retiree part-time employee pursuant to section 2.1-26.5 of the Norfolk City Code, 1979, as amended, on or after his early or normal service retirement age , the pension part of his retirement allowance shall be discontinued during the period of restoration, but in the event of his death during such period, any payments under an optional benefit, if one has been elected and has become effective, shall commence. If he elects to become a member of the system at the time of his restoration, he shall be considered a new member with respect to service rendered subsequent to his restoration.

(c) If a former employee who is entitled to a deferred retirement allowance, commencing after he attains his normal service retirement age, returns to service as an employee of the city before such allowance has become payable, he shall again become a member of the system upon his return, and his retirement allowance payable on subsequent retirement shall be computed in accordance with the provisions of this chapter in effect at such time on the basis of service standing to his credit at the time of his termination and service credited to him after his return.
(Code 1958, § 40-16; Ord. No. 44,001, § 6, 10-5-10; Ord. No. 44,224, § 1, 4-19-11; Ord. No. 47,233, § 3, 5-22-18, eff. 7-1-18)

Sec. 37-76. Waiver of annuity portion of retirement allowance.

(a) Any person entitled to a retirement allowance may, by a waiver signed by such person and filed with the board at a regular meeting of the board, decline to accept all or any part of the annuity portion of such retirement allowance. Such waiver may be revoked at any time by a written revocation filed with the board at a regular meeting of the board, but no payment of the waived annuity, or part thereof, shall be made covering the period during which such waiver was in effect.

(b) Any such waiver or revocation of waiver shall become effective on the first day of the month following the date of the meeting of the board at which such waiver or revocation of waiver is filed.
(Code 1958, § 40-18)

Sec. 37-77. Offset of workers' compensation benefits.

Any amounts which may be paid or payable under the provisions of any workers' compensation or similar law to any member or beneficiary, or to the dependents of any member or beneficiary, on account of any disability or death arising out of and in the course of employment with the city shall be offset against, and payable in lieu of, any benefits payable out of funds provided by the city under the provisions of this chapter; provided, however, that no such offset shall be made against the normal service or early service retirement allowance of a member whose workers' compensation or similar benefit is not paid to such member because of a voluntary relinquishment, suspension or other termination thereof due to the member's failure, refusal or desire not to accept vocational rehabilitation or selective employment.
(Code 1958, § 40-19; Ord. No. 34,369, § 1, 3-10-87; Ord. No. 35,195, § 1, 8-16-88)

Sec. 37-78. Adjustment of benefits in case of error.

Should any change of error in the records of the system result in any member or beneficiary receiving from the system more or less than he would have been entitled to receive had the records been correct, the board shall have the power to correct such error; and, as far as practicable, to adjust the payments in such a manner that the actuarial equivalent of the benefit to which such member or beneficiary was correctly entitled shall be paid.
(Code 1958, § 40-35)

Sec. 37-79. Retirement extra opportunity program.

Notwithstanding any other provisions of this chapter, the system shall provide certain members with the opportunity to elect participation in a voluntary retirement opportunity program, the provisions of such program are stated below:

(a) Members of the system who are eligible to participate in the retirement opportunity program shall be those general employees and policemen and firemen who are active employees on October 31, 1988, and who have met the requirements for either:

(1) A normal service retirement allowance under section 37-61; or

(2) An early service retirement allowance under section 37-62.

(b) During the election period, eligible members will have the opportunity to elect to retire under the provisions of this section. The election period will begin on November 1, 1988, and continue through December 31, 1988. An election by an eligible member to retire under this section shall be irrevocable.

(c) If an eligible member elects to retire under this section, his retirement allowance will begin on the first day of the calendar month coincident with or immediately following the date which is thirty (30) days after his application to the board for a retirement allowance. Notwithstanding the preceding sentence, the board may delay the effective date of retirement and the beginning of the retirement allowance to any date up to April 1, 1989, for those eligible members whose services are deemed essential for the proper operation of the city, by the city manager and such delay is agreed to by the eligible member.

(d) If an eligible member who has fulfilled the requirements for normal service retirement elects to retire under the provisions of this section, the amount of his normal service retirement allowance shall be calculated under the provisions of section 37-61 except that:

(1) Three (3) additional years of creditable service shall be added to such member's creditable service; and

(2) Average final compensation shall be the annual earnable compensation during the twelve (12) consecutive months of creditable service during which the eligible member's earnable compensation was the highest.

(e) If an eligible member who has fulfilled the requirements for an early service retirement but who has not fulfilled the requirements for a normal service retirement elects to retire under the provisions of this section the amount of his early retirement allowance shall be calculated under the provisions of sections 37-61 and 37-62 except that:

(1) In computing the amount of early service retirement allowance, three (3) additional years of creditable service shall be added to such member's creditable service; and

(2) Average final compensation shall be the amount of annual earnable compensation during the twelve (12) consecutive months of creditable service during which the eligible member's earnable compensation was the highest.

Additional creditable service granted under subsection (e)(1) of this section shall not be considered in determining the normal service or early service retirement age of such member.

(Ord. No. 35,244, § 1, 9-20-88)

Sec. 37-80. Retirement opportunity window for 1993.

Notwithstanding any other provisions of this chapter, the system shall provide certain members

with the opportunity to elect participation in a voluntary retirement program, the provisions of such program are stated below:

(a) Members of the system who are eligible to participate in the retirement opportunity window for 1993 shall be those city general employees and police officers and firefighters who are active employees on April 16, 1993, and who are at step J during the election period, or were eligible to receive before July 1, 1994 an increment to step J, as step J and its eligibility are defined by the City of Norfolk Compensation Plan, effective July 1, 1992, and who have met the requirements for either:

(1) A normal service retirement allowance under section 37-61; or

(2) An early service retirement allowance under section 37-62.

(b) Only during the election period, eligible members have the opportunity to elect to retire under the provisions of this section. The election period will begin on April 16, 1993, and continue through May 7, 1993. An election by an eligible member to retire under this section shall be irrevocable.

(c) If an eligible member elects to retire under this section, his or her retirement allowance will begin on July 1, 1993. Notwithstanding the preceding sentence, the board may delay the effective date of retirement and the beginning date of the retirement allowance to any date up to October 1, 1993, for those eligible members whose services are deemed essential for the proper operation of the city by the city manager and such delay is agreed to by the eligible employee.

(d) If an eligible member who has fulfilled the requirements for normal service retirement elects to retire under the provisions of this section, the amount of his or her normal service retirement allowance shall be calculated under the provisions of section 37-61 except that the average final compensation shall be the annual earnable compensation at the J step for his or her pay range established in the City of Norfolk Compensation Plan effective July 1, 1992.

(e) If an eligible member who has fulfilled the requirements for an early service retirement but who has not fulfilled the requirements for a normal service retirement elects to retire under the provisions of this section, the amount of his or her early retirement allowance shall be calculated under the provisions of sections 37-61 and 37-62 except that average final compensation shall be the annual earnable compensation at the J step for his or her pay range established in the City of Norfolk Compensation Plan effective July 1, 1992.

(Ord. No. 37,259, § 1, 5-18-93)

Sec. 37-81. Post-retirement supplements.

In addition to the pension otherwise payable under this chapter, post-retirement supplements shall be payable as stated below:

(1) Post-retirement supplements shall be payable from the system to any recipient of post-retirement supplements provided by the Norfolk City Council and previously paid from the city's general funds, which post-retirement supplements commenced prior to June, 1994 (pre-1994 supplements). The right to receive such pre-1994 supplements from the system shall hereby vest in such prior recipients and their beneficiaries. The amounts of the pre-1994 supplements shall be equal to the amounts of retirement supplements paid in fiscal year 1993-1994 by the city from its general fund. The intent of this section is to not change the amounts of supplements made from the general fund prior to June, 1994, but to continue their payment from the system. Notwithstanding the foregoing, pre-1994 supplements shall be subject to the same terms and conditions as for the payment of the pension.

(2) Beginning on July 1, 2003, in addition to the supplements provided above, an additional supplement of one percent be payable by the system to those retirees and their beneficiaries who were receiving city retirement payments as of December 31, 2001. The additional supplement shall be calculated by multiplying one percent by the recipient's total benefit (base pension plus previous supplements, plus monthly adjustment). The right to receive this additional supplement shall hereby vest in the eligible recipients and their beneficiaries. Notwithstanding any provision to the contrary, the additional supplement shall be subject to the same terms and conditions as for the payment of the pension.

(3) Retirees who qualified for the monthly adjustment as of July 1, 2000, due to receiving a monthly pension of less than five hundred dollars ($500.00) shall continue to receive the monthly adjustment as a permanent benefit and expense of the retirement system.

(4) Beginning on July 1, 2004 in addition to the supplements provided above, an additional supplement of one percent shall be payable by the system to those retirees and their beneficiaries who are receiving city retirement payments as of June 30, 2003. The additional supplement shall be calculated by multiplying one percent by the recipient's total benefit (base pension plus previous supplements, plus monthly adjustment). The right to receive this additional supplement shall hereby vest in the eligible recipients and their beneficiaries. Notwithstanding any provision to the contrary, the additional supplement shall be subject to the same terms and conditions as for the payment of the pension.

(5) Beginning on July 1, 2005, in addition to the supplements provided above, an additional supplement of one percent shall be payable by the system to those retirees and their beneficiaries who were receiving city retirement payments as of June 30, 2004. The additional supplement shall be calculated by multiplying one percent by the recipient's total benefit (base pension plus previous supplements, plus monthly adjustment). The right to receive this additional supplement shall hereby vest in the eligible recipients and their beneficiaries. Notwithstanding any provision to the contrary, the additional supplement shall be subject to the same terms and conditions as for the payment of the pension.

(6) Beginning on July 1, 2006, an additional supplement of two and one-half (2½) percent shall be payable by the system to those retirees and their beneficiaries who are receiving city retirement payments as of June 30, 2005. The additional supplement shall be calculated by multiplying two and one-half (2½) percent by the recipient's total benefit (base pension plus previous supplements, plus monthly adjustment). The right to receive this additional supplement shall hereby vest in the eligible recipients and their beneficiaries. Notwithstanding any provision to the contrary, the additional supplement shall be subject to the same terms and conditions as for the payment of the pension.

(7) Beginning on July 1, 2007, an additional supplement of two (2) percent shall be payable by the system to those retirees and their beneficiaries who are receiving city retirement payments as of June 30, 2006. The additional supplement shall be calculated by multiplying two (2) percent by the recipient's total benefit (base pension plus previous supplements, plus monthly adjustment). The right to receive this additional supplement shall hereby vest in the eligible recipients and their beneficiaries. Notwithstanding any provision to the contrary, the additional supplement shall be subject to the same terms and conditions as for the payment of the pension.

(8) Beginning on July 1, 2012, an additional supplement of two percent (2.0%) shall

be payable by the system to those retirees and their beneficiaries who are receiving city retirement payments as of June 30, 2011. The additional supplement shall be calculated by multiplying two percent (2.0%) by the recipient's total benefit (base pension plus previous supplements plus monthly adjustment). The right to receive this additional supplement shall hereby vest in the eligible recipients and their beneficiaries. Notwithstanding any provision to the contrary, the additional supplement shall be subject to the same terms and conditions as for the payment of the pension.

(9) Beginning on July 1, 2018, an additional supplement of two percent (2.0%) shall be payable by the system to those retirees and their beneficiaries who are receiving city retirement payments as of June 30, 2014. The additional supplement shall be calculated by multiplying two percent (2.0%) by the recipient's total benefit (base pension plus previous supplements plus monthly adjustment), on an amount not to exceed total benefit of $36,000.00. The right to receive this additional supplement shall hereby vest in the eligible recipients and their beneficiaries. Notwithstanding any provision to the contrary, the additional supplement shall be subject to the same terms and conditions as for the payment of the pension.

(Ord. No. 37,633, § 1, 5-24-94; Ord. No. 38,962, § 1, 11-4-97; Ord. No. 39,002, § 1, 12-9-97; Ord. No. 40,381, §§ 7, 8, 6-19-01; Ord. No. 40,724, § 2, 5-21-02; Ord. No. 41,047, § 7, 5-20-03; Ord. No. 41,408, § 7, 5-18-04; Ord. No. 41,839, § 12, 5-17-05; Ord. No. 42,277, § 7, 5-16-06; Ord. No. 42,662, § 9, 5-15-07; Ord. No. 44,695, § 8, 5-22-12; Ord. No. 47,229, § 37, 5-22-18, eff. 7-1-18)

Sec. 37-82. Retirement opportunity program for 1996.

Notwithstanding any other provisions of this chapter, the system shall provide certain members with the opportunity to elect participation in a voluntary retirement opportunity program, the provisions of such program are stated below:

(1) Members of the system who are eligible to participate in the retirement opportunity program shall be those employees who are active employees on June 5, 1996, and who have met or will meet the requirements for a normal service retirement allowance under section 37-61 on or before December 31, 1996.

(2) During the election period, eligible members will have the opportunity to elect to retire under the provisions of this section. The election period will begin on June 5, 1996, and continue through July 12, 1996. An election by an eligible member to retire under this section shall be irrevocable.

(3) If an eligible member elects to retire under this section, the member may designate as a date of retirement the first day of any month between July 1996 and January 1997. Notwithstanding the preceding sentence, the board may delay the effective date of retirement and the beginning of the retirement allowance to any date up to April 1, 1997, for those eligible members whose services are deemed essential for the proper operation of the city, by the city manager or by the appointing authority in the case of members appointed by other persons and such delay is agreed to by the eligible member.

(4) If an eligible member who has fulfilled the requirements for normal service retirement elects to retire under the provisions of this section, the amount of his normal service retirement allowance shall be calculated under the provisions of section 37-61 except that:

a. Four (4) additional years of creditable service shall be added to such member's creditable service; unless

b. Such member elects, in lieu thereof, to receive a one-time payment from

the city (not the retirement system) equal to forty (40) percent of his/her salary in effect on the date of retirement.

(5) Notwithstanding any provision to the contrary, including, but not limited to, subsections (b) and (c) of this section, any employee who is an elected official on June 4, 1996, and is eligible to participate as provided in subsection (a) of this section shall receive the additional creditable service granted under subsection (d) of this section so long as the elected official retires on or before the expiration of the term being served as of June 4, 1996. Notwithstanding section 37-4 of this chapter or any other provisions to the contrary, the provisions of this subsection (5) are not revocable by the city council and shall require no further action on behalf of the eligible employee in order to be deemed to have accepted and relied upon the terms of this subsection (5) of this section.

Additional creditable service granted under subsection (4) of this section shall not be considered in determining the normal service retirement age of such member.
(Ord. No. 38,408, § 1, 6-4-96; Ord. No. 38,501, § 1, 7-30-96)

Sec. 37-82.1. Retirement enhancement program for policemen and firemen.

Notwithstanding any other provision of this chapter, the system shall provide certain members with the opportunity to elect participation in a voluntary retirement enhancement program, with the provisions of such program as stated below:

(a) Members of the system who are eligible to participate in the retirement enhancement program shall be those policemen and firemen who are members in service on May 1, 2005, and who have met the requirements for a normal service allowance under section 37-61 due to years of membership service as defined in section 37-42 and expressly excluding creditable service for unused sick leave.

(b) Only during the election period from May 1 through June 15, 2005, will eligible members have the opportunity to elect to retire under the provisions of this section. An election by an eligible member to retire under this section shall be irrevocable.

(c) If an eligible member elects to retire under this section, his retirement allowance will begin on either July 1, August 1, or September 1, 2005, as requested by the member. Notwithstanding the previous sentence and any provision to the contrary, the city manager may require that certain employees delay their retirement in order to be eligible for this retirement enhancement program. Retirement may be delayed for those members whose services are deemed essential for the proper operation of the city by the city manager. In the event of such a determination the city manager shall notify the board and the employee. Should the city manager elect to require any employee to delay his retirement pursuant to this subsection, the provisions restricting the accumulation of annual leave found in chapter 2 of the Norfolk City Code, 1979, as amended, shall not apply. Upon their eventual retirement, employees who are delayed in their retirement by the city manager pursuant to this section past September 30, 2005, shall receive compensation in the form of pay for their annual leave accrued as of September 30, 2005. Such employees shall begin to accrue new annual leave beginning October 1, 2005, and shall continue to accrue it in the fashion dictated by chapter 2 of the Norfolk City Code, 1979, as amended, until such time as the city manager permits them to retire. However, notwithstanding any other ordinance or regulation to the contrary, the payment of annual leave accumulated by such employees after

September 30, 2005, upon their eventual retirement, shall be in the form of leave alone. They shall take all such accumulated leave prior to the actual date of their retirement.

(d) If an eligible member who has fulfilled the requirements for normal service retirement due to years of membership service elects to retire under the provisions of this section, the amount of his normal service retirement allowance shall consist of a pension equal to the percentage provided below multiplied by his average final compensation.

(e) While unused sick leave will not be counted towards eligibility to participate in the enhancement provided by this section, upon qualification, unused sick leave shall count towards creditable service in accordance with section 37-41.

(f) The normal service allowance percentage based upon time of creditable service is as listed in the table below:

Years of Creditable Service	*Normal Service Allowance Percentage*
25	67.5
26	70.5
27	71.0
28	71.5
29	72.0
30	72.5
31	73.0
32	73.5
33	74.0
34	74.5
35 and beyond	75.0

For partial years of service, the percentage shall be prorated; for example, if an employee has twenty-five (25) years and six (6) months of creditable service, his normal service allowance percentage would be sixty-nine (69) percent.

(g) The sixty-five-percent limitation (the cap) provided in section 37-61 does not apply to the normal service allowance percentages provided under this section 37-82.1 enhancement program.

(Ord. No. 41,813, § 1, 4-26-05; Ord. No. 41,974, § 1, 8-16-05)

Sec. 37-83. Limit on retirement allowances and benefits.

All retirement allowances and other benefits provided by the system shall be subject to the limitations on benefits and contributions imposed upon governmental pension plans by section 415 of the Internal Revenue Code and as amended. The limitation year shall be the fiscal year.

(Ord. No. 39,711, § 6, 8-24-99; Ord. No. 40,628, § 5, 3-5-02)

Sec. 37-84. Deferred retirement option program.

(a) *Eligibility.* Effective January 1, 2023, the Deferred Retirement Option Program ("DROP") is hereby expanded to include all eligible members of the Norfolk Employees' Retirement System (NERS or the system), including any police officer or firefighter member and general employee classifications. Members of the system in active service who have met normal service retirement age may elect to participate in the Deferred Retirement Option Program ("DROP"). In order to participate in the DROP, the police officer, firefighter, or general member must submit a written application to the retirement office not less than thirty (30) days nor more than ninety (90) days before they desire to be retired under the DROP.

(b) *Effects of participation.* Upon approval by the board of the police officer, firefighter, or general member's ("DROP participant") application to participate in the DROP, the DROP participant will be considered to be a retired member for all purposes related to the NERS. Participation in the DROP is irrevocable. No retirement allowance will be paid directly to the DROP participant during the duration of participation in the DROP ("DROP period"), however, seventy percent (70%) of the DROP participant's monthly retirement allowance shall be paid to a DROP account.

(c) *Duration.* Effective October 1, 2022, the DROP period shall not exceed five (5) years from the date upon which the member enters DROP. For members who are policemen or firemen and who enter DROP on or after attaining sixty (60) years of age, the DROP period shall terminate upon the member attaining age sixty-five (65) in accordance with Section 37-61(b). Members who entered DROP prior to January 1, 2023 and whose DROP period has not expired may extend their DROP period to the lesser of five (5) years from their original date of entry into DROP or their attaining sixty-five (65) years of age. Nothing herein shall be construed to extend the mandatory service retirement age set forth in Section 37-61(b) of this chapter.

(d) *Termination.* At the end of a DROP participant's DROP period, (1) the DROP participant's employment with the city shall terminate, (2) the DROP participant's accrued DROP account balance shall be paid either as a lump sum distribution to the DROP participant or the DROP participant may direct the System to pay the DROP account balance to an eligible retirement plan as such term is defined in City Code section 37-74(f)(i), and (3) the DROP participant shall be considered to be a normal service retired member for all purposes related to employment with the city. In the event the DROP participant's employment is terminated prior to the end of the maximum DROP period, the DROP participant's accrued DROP account balance shall be paid either as a lump sum to the DROP participant or the DROP participant may direct the System to pay the DROP account balance to an eligible retirement plan as such term is defined in City Code section 37- 74(f)(i). In the event of a DROP participant's death during the DROP period, City Code section 37-72 shall apply to the payment of death benefits. In the event of a DROP participant's death during the DROP period, the DROP participant's accrued DROP account balance shall be paid to his estate.

(e) *Accidental disability.* If a DROP participant is retired on an accidental disability retirement allowance during the DROP period, at the DROP participant's election, the DROP participant will receive either:

(1) The accidental disability retirement benefit as if the DROP participant had never participated in the DROP, forfeiting the DROP participant's accrued DROP account balance or

(2) The normal service retirement allowance (calculated with years of creditable service up to the commencement of the DROP participant's DROP participation date) in addition to the DROP participant's accrued DROP account balance.

(Ord. No. 45,566, § 1, 5-20-14, eff. 1-1-15; Ord. No. 45,954, § 18(C), 5-19-15, eff. 7-1-15; Ord. No. 46,753, § 1, 2-28-17, eff. 7-1-16; Ord. No. 48,976, § 1, 10-25-22)

Sec. 37-85 Deputy city manager of public safety.

Beginning July 1, 2016, members appointed from the Department of Police or Fire-Rescue to the position of Deputy City Manager of Public Safety shall be considered sworn and entitled to retirement benefits as a sworn officer if the following eligibility requirements are met (1) employed in the position of Deputy City Manager of Public Safety on or after July 1, 2016 and (2) previous employment status was as a Norfolk policeman or fireman member.
(Ord. No. 46,854, § 18, 5-23-17, eff. 7-1-17)

Secs. 37-86—37-95. Reserved.

ARTICLE V. ADMINISTRATION AND FINANCES

Sec. 37-96. Board of trustees generally.

(a) The general administration and management and the responsibility for the proper operation of the system and for making effective the provision[s] of this chapter are hereby vested in the board of trustees of the system. The board of trustees of the system shall have discretionary authority to determine eligibility for benefits and to construe the terms of this plan (for judicial review, an abuse of discretion standard of review should apply).

(b) The board shall consist of ten (10) trustees, as follows: The city manager, ex officio; the director of finance, ex officio; and eight (8) trustees appointed by the city council.

(c) Of the eight (8) trustees appointed by the city council, one member shall be an employee in the department of police or the department of fire, one shall be an employee of some department of the city other than the department of police or the department of fire, four (4) shall be citizens of the city, none of whom shall be members of the system and one of whom may be a retiree and two (2) shall be citizens of the city, each of whom shall be a responsible officer of a bank authorized to do business within the commonwealth, or who shall be experienced in the investment of funds, and neither of whom shall be a member of the system.

(d) The terms of office of all appointed trustees shall be for four (4) years. If a vacancy occurs in the office of a trustee, the vacancy shall be filled for the unexpired term in the same manner as the office was previously filled.

(e) The trustees shall serve as such without compensation.

(f) Each trustee shall, within ten (10) days after his appointment, take the oath of office prescribed by the Charter for city officers.

(g) Each trustee shall be entitled to one vote in the board. Five (5) concurring votes shall be necessary for a decision by the trustees at any meeting of the board, and five (5) trustees shall constitute a quorum of the board.

(h) Subject to the limitations of this chapter, the board shall, from time to time, establish rules and regulations for the administration of the system and for the transaction of its business.

(i) The board shall elect from its membership a chairman and a vice-chairman and shall appoint a secretary, who may or may not be a member of the board. The board may employ such actuarial, medical and other services as shall be required.

(j) The board shall keep in convenient form such data as shall be necessary for actuarial valuation of the system and for checking the experience of the system.

(k) The city manager shall provide staff to execute the administrative functions of the system, including but not limited to an executive director who shall be an unclassified officer of the city and who shall report to the director of finance. The executive director may serve as the secretary of the board and shall perform other duties designated by the board and consistent with this chapter.

(Code 1958, §§ 40-2, 40-5; Ord. No. 29,687, § 1, 10-24-78; Ord. No. 29,778, § 1, 12-29-78; Ord. No. 35,781, § 1, 10-31-89; Ord. No. 45,604, § 1, 6-24-14; Ord. No. 48,436, § 9, 7-13-21)

Charter reference—Qualification of members of the council and other officials, § 133.

Sec. 37-97. Board's records and annual report to council.

The board shall keep a record of all its proceedings, which shall be open to public inspection. It shall submit to the city council, annually, a report showing the fiscal transactions of the system for the preceding year, the amount of the accumulated cash and securities of the system and the last balance sheet indicating the financial condition of the system, as shown by an actuarial valuation of the assets and liabilities of the system.

(Code 1958, § 40-5; Ord. No. 29,687, § 1, 10-24-78; Ord. No. 29,778, § 1, 12-29-78)

Sec. 37-98. Annual certification of board for budget purposes.

On or before the first day of April of each year, the board shall file with the city manager its

certification of the amount of the appropriation necessary to pay the normal and accrued liability contributions to the pension accumulation account for the ensuing year, and such amounts shall be included in the budget, in accordance with legal budget procedure.
(Code 1958, 40-29; Ord. No. 36,847, § 1, 5-26-92)

Sec. 37-99. Board's legal adviser.

The city attorney shall be the legal adviser of the board.
(Code 1958, § 40-6)

Sec. 37-100. Medical board.

(a) The board shall designate a medical board of six (6) physicians who are not eligible to participate in the system. The medical board, or any one or more members thereof, shall arrange for and pass upon all medical examinations required under the provisions of this chapter, shall investigate all essential statements and certificates by or on behalf of a member in connection with application for disability retirement and shall report, in writing, to the board its conclusions and recommendations upon all matters referred to it.

(b) The board is authorized to appoint a substitute physician who may act in the absence or disability of any of the regular members of the medical board.

(c) The board is authorized to engage, as consultants to the medical board, such physicians in medical specialties as the board shall deem in the best interest of the system.
(Code 1958, § 40-7; Ord. No. 29,722, § 1, 11-21-78; Ord. No. 31,845, § 1, 7-20-82; Ord. No. 32,110, § 1, 12-28-82; Ord. No. 35,781, § 2, 10-31-89)

Sec. 37-101. Actuary; adoption of tables, rates, etc.

(a) The board shall designate an actuary who shall be the technical advisor of the board on matters regarding the operation of the system and who shall perform such other duties as are required in connection therewith.

(b) Immediately after the establishment of the system, the actuary shall make such investigation of the mortality, service and compensation experience of the members as he shall recommend and the board shall authorize, and on the basis of such investigation he shall recommend for adoption by the board, such tables and such rates as are required for the proper operation of the system. The board shall adopt tables and certify rates, and as soon as practicable thereafter, the actuary shall make a valuation based on such tables and rates, of the assets and liabilities of the system.

(c) The board shall certify from time to time the rates of contribution payable under the provisions of this chapter, and shall adopt for the system, from time to time, such mortality, service and other tables as shall be deemed necessary, and on the basis of such tables, the actuary shall make annually an actuarial valuation of the assets and liabilities of the system. At least once in each five-year period, the board shall cause an actuarial investigation to be made into the mortality, service and compensation experience of the members and beneficiaries of the system.
(Code 1958, § 40-8)

Sec. 37-102. Assets to be accounted for.

All assets of the system shall be accounted for by use of such generally accepted accounting practices as shall be prescribed by the board.
(Code 1958, § 40-20)

Sec. 37-103. Annuity savings account: members' contributions.

(a) The annuity savings account shall be the account in which shall be accumulated the contributions deducted prior to October 5, 2010, from the compensation of members to provide for their annuities. Except as provided in section 37-103.1, no contributions shall be deducted after June 30, 1970, from the compensation of policemen and firemen, and after June 30, 1972, from the compensation of other members.

(b) Contributions deposited by members in the annuity savings account prior to July 1, 1972, to purchase an annuity shall continue to be held in such account. In addition, any member may, subject to approval of the board and such conditions as the board may prescribe, deposit therein after such date, additional amounts by periodic or

other payments; provided, that the total of a member's voluntary contributions does not exceed ten (10) percent of his compensation earned as an employee since he became a member.

(c) Interest at such rates as may be set from time to time by the board shall be allowed on contributions held in the annuity savings account, and benefits payable from such contributions shall be determined on the basis of the interest rate and tables last adopted by the board.

(d) A member who retires on or after July 1, 1972, shall be paid, at such time as the board approves, his contributions made prior to October 5, 2010, together with such interest thereon as the board shall allow; provided, that he may elect, prior to the commencement of his retirement allowance, to receive, in lieu of the contributions with interest thereon, an annuity which shall be the actuarial equivalent of his accumulated contributions.

(e) Should a member cease to be an employee for any reason other than death or retirement under the provisions of this chapter, he shall be paid, at such time as the board approves, his contributions made prior to October 5, 2010, with such interest thereon as the board shall allow. Contributions made after October 5, 2010, are governed by subsection 37-103.1(f).

(f) The contributions of a member made prior to October 5, 2010, and such interest as may be allowed thereon, paid upon his death or withdrawn by him as provided in this chapter shall be paid from the annuity savings account, and any balance of the accumulated contributions of such a member shall be transferred to the pension accumulation account. Upon the retirement of a member who elects to receive an annuity, in lieu of his post-October 5, 2010 contributions with interest thereon, as provided in subsection (d) of this section, his accumulated contributions shall be transferred from the annuity savings account to the pension accumulation account.
(Code 1958, § 40-21; Ord. No. 44,001, § 8, 10-5-10)

Sec. 37-103.1. Members' mandatory contributions.

(a) A person who becomes a member on or after October 5, 2010, shall be required to pay member contributions on a salary reduction basis in accordance with section 414(h) of the Internal Revenue Code, as amended, in the amount of five percent (5%) of earnable compensation. A member with a break in service who returns after October 5, 2010 shall be required to make the aforesaid five percent (5%) contribution through salary reduction. For the purpose of this contribution, for the city manager, earnable compensation shall not include direct employer contributions to his/her retirement savings plan and car allowances.

Beginning on January 8, 2015, all members hired prior to October 5, 2010, shall be required to pay member contributions on a salary reduction basis in accordance with section 414(h) of the Internal Revenue Code, as amended, in the amount of five percent (5%) of earnable compensation, with the exception of city council members initially elected prior to October 5, 2010 who shall not be required to pay the member contribution. For the purpose of this contribution, for the city attorney, earnable compensation shall not include Section 457 deferred compensation payments and car allowances.

(b) Each member shall contribute five percent (5%) of his earnable compensation for each pay period during which he receives compensation to the maximum number of years of creditable service as provided in section 37-61. The city shall deduct the contribution payable by the member. Every employee accepting employment with the city on or after October 5, 2010, shall be deemed to consent and agree to the deductions from his compensation required by this section and the use of the deductions as provided in this section.

Beginning on January 8, 2015, all members hired prior to October 5, 2010, shall be deemed to consent and agree to the deduction from their compensation as required by this section and the use of deductions as provided in this section, with the exception of city council members initially elected prior to October 5, 2010 who shall not be required to pay the member contribution.

(c) In determining the earnable compensation of a member in a payroll period, the city may consider the rate of compensation payable to the member on the date of entry or removal of his name from the payroll as having been received throughout the month if service for the month is

earnable compensation. If service for the month is not creditable, the city may consider any compensation payable during the month as not being earnable compensation.

(d) Except for any benefits provided by this chapter, payment of compensation minus the deduction shall be a full and complete discharge of all claims for service rendered by the member during the period covered by the payment.

(e) The board may adopt regulations consistent with this mandatory deduction which it deems necessary to facilitate the deduction or its management.

(f) Mandatory member contributions made on or after October 5, 2010, are not refundable after the member vests in the system. Nonvested members departing service who elect a refund and later return to service may have creditable service restored in accordance with section 37-45. Members who vest are not eligible to receive any refund of the mandatory member contribution. Upon vesting, the mandatory member contribution becomes an asset of the System to be used to pay benefits under the System.

(g) Mandatory member contributions made on or after October 5, 2010, shall be deposited, invested and accounted for as deemed appropriate by the board.

(h) Beginning on July 1, 2014, in the event of death or departure prior to retirement or vesting, mandatory member contributions made on or after October 5, 2010, shall be refunded with interest on the accumulated contributions of the member. Annual interest is limited to a maximum of four percent (4%) and a minimum of zero percent (0%). The board shall determine the interest rate. Interest shall accrue on any contribution beginning at the end of the fiscal year in which the contribution was made.

(i) In the event that the provisions of this section conflict with any others in this chapter, this section shall govern.

(j) Beginning on January 8, 2015, section 37-103.1 shall apply to a member who was a Norfolk Community Services Board employee on June 30, 2012 and became a city employee on July 1, 2012. (Ord. No. 44,001, § 1, 10-5-10; Ord. No. 44,720, § 1, 6-12-12; Ord. No. 45,563, § 22, 5-20-14, eff. 7-1-14)

Sec. 37-104. Pension accumulation account generally; city's contributions.

(a) The pension accumulation account shall be the account in which shall be accumulated all reserves for the payment of all pensions and other benefits not credited to the annuity savings account.

(b) All interest and dividends earned on the funds of the system shall be credited to the pension accumulation account.

(c) On account of each member, there shall be paid annually into the pension accumulation account a certain percentage of the earnable compensation of each member to be known as the "normal contribution" and a further contribution as determined under this section to be known as the "accrued liability contribution."

(d) At each annual valuation, the actuary shall (i) compute the amount of accrued liability of the system on account of members and beneficiaries using the projected unit credit actuarial cost method and (ii) compute the amount by which the assets held in the fund exceed the accrued liability or if the accrued liability exceeds the assets, the amount of the unfunded accrued liability. The actuary also shall determine the normal rate of contribution and the accrued liability contribution in accordance with the following paragraphs of this section.

(e) If the actuary determines that there is an unfunded accrued liability:

(1) The normal rate contribution shall be a percentage of the earnable compensation of all members determined using the projected unit credit actuarial cost method.

(2) The accrued liability contribution shall be an amount for interest and amortization of the unfunded accrued liability.

(f) If the actuary determines that there is no unfunded accrued liability:

(1) The normal rate of contribution shall be a percentage of the earnable compensation as computed under subsection (e)(1) above but reduced by an amount, expressed as a percentage of earnable compensation of all members, which if paid annually for

twenty (20) years would meet the interest and amortization of the difference between the assets held in the fund and the accrued liability.

(2) No accrued liability contribution shall be made by the city.

(g) The total amount payable by the city in each year to the pension accumulation account shall not be less than the sum of the normal contribution and regular interest on the unfunded accrued liability; provided, however, that the aggregate payment shall be sufficient, when combined with the assets of the system, to provide the benefits payable to members and beneficiaries during the year then current.
(Code 1958, §§ 40-22—40-24; Ord. No. 36,444, § 1, 5-21-91)

Sec. 37-105. Transfers from pension accumulation account to annuity savings account; definition and determination of "regular interest."

(a) Once each year, the board shall transfer from the pension accumulation account to the annuity savings account amounts sufficient to allow regular interest on the balances of the members' accounts in the annuity savings account.

(b) For the purposes of this chapter, "regular interest" shall mean interest at such percent rates, compounded annually, as shall be determined by the board from time to time. The board, from time to time, shall determine one rate of regular interest for use in all calculations of members' accumulated contributions made prior to October 5, 2010, and the annuities and other benefits provided thereby, with a rate of four (4) percent annually applicable from the effective date of the system until changed by the board, and shall determine a second rate of regular interest for use in all calculations of the liabilities of the system for pensions at a rate of three (3) percent, applicable from the effective date of the system until changed by the board.
(Code 1958, § 40-24; Ord. No. 44,001, § 9, 10-5-10)

Sec. 37-106. Payment of benefits from pension accumulation account—Generally.

All pensions to beneficiaries, and benefits in lieu thereof, and death benefits not payable from the annuity savings account as accumulated contributions of members shall be paid from the pension accumulation account. All annuities on account of retired members and benefits in lieu thereof, for which accumulated contributions have been transferred to the pension accumulation account, shall be paid from the pension accumulation account; provided, however, if such a retired member should be restored to membership, the reserve for the annuity payable to him from his accumulated contributions shall be transferred to the annuity savings account.
(Code 1958, § 40-25)

Sec. 37-107. Same—Pensions under former police and fire pension fund.

All pensions payable to or on account of former policemen and firemen under the provisions of the former police and fire pension fund and in force on December 31, 1941, shall, on and after January 1, 1942, be paid under this system from the pension accumulation account at the same rates theretofore paid during the year 1941 under the former police and fire pension fund. The residue of any appropriations or assets available on January 1, 1942, for the payment of pensions under such former police and fire pension fund shall be transferred and credited to the pension accumulation account, and any additional amounts required to continue such pensions shall be provided by an increase in the accrued liability contributions payable by the city to the pension accumulation account.
(Code 1958, § 40-31)

Sec. 37-108. Permitted use of system funds; accrued benefits and credits not forfeited upon termination of system.

All of the funds of the system shall be held for use in providing the benefits of the system and paying its expenses, provided, that except as otherwise herein provided, no part of the funds or

earnings derived from such funds shall be used for or diverted to purposes other than for the exclusive benefit of members, spouses, former members and beneficiaries under the system, prior to the satisfaction of all liabilities with respect to them. Upon termination of the system or upon the complete discontinuance of contributions having the effect of such a termination, the rights of all members to benefits accrued to the date of such termination or discontinuance, to the extent then funded, and the amounts, if any, credited to members' accounts shall be nonforfeitable.
(Code 1958, § 40-29; Ord. No. 36,846, § 1, 5-26-92)

Sec. 37-109. Custodian of assets; procedure for disbursements.

(a) The board shall designate one of its members, with an appropriate bond, or a bank or trust company, to be the custodian of the assets of the system. All payments from the funds of the system shall be made by the custodian only upon regular vouchers signed by two (2) persons designated by the board. A duly attested copy of a resolution of the board designating such persons and bearing upon its face specimen signatures of such persons shall be filed with the custodian as his authority for making payments upon such vouchers. No voucher shall be drawn, unless it shall have been previously authorized by resolution of the board.

(b) The board may provide that, in making monthly payments of authorized retirement allowances, the total amount thereof payable in any month may be withdrawn from the funds of the system by a voucher, signed as provided in subsection (a) of this section, payable to the retirement payroll account of the system. In such case, the secretary of the board shall place the total amount to the credit of such account in some bank to be designated by the board, and the same may be disbursed for the payment of the retirement allowances by checks payable to the respective beneficiaries and signed by the secretary of the board or by the facsimile signature of such secretary. In the event provision is made for the use of such facsimile signature, a proper bond, with corporate surety, shall be secured to protect the system.

(c) In addition to the above procedure, payment for various types of investments purchased for the system may be paid by debiting the bank account of the system in order to cover such purchases.
(Code 1958, § 40-30(2); Ord. No. 29,756, § 1, 12-12-78; Ord. No. 29,916, § 1, 5-8-79; Ord. No. 30,206, § 1, 11-27-79; Ord. No. 30,341, § 1, 3-25-80)

Sec. 37-110. Available cash may be kept on deposit.

For the purpose of meeting disbursements for pension, annuity and other payments, there may be kept on deposit available cash not exceeding ten (10) percent of the total assets of the system.
(Code 1958, § 40-30(3); Ord. No. 29,756, § 1, 12-12-78; Ord. No. 29,916, § 1, 5-8-79; Ord. No. 30,206, § 1, 11-27-79; Ord. No. 30,344, § 1, 3-25-80)

Sec. 37-111. Investment of funds generally.

The members of the board shall be the trustees of all of the assets of the system and shall have full power and authority to invest and reinvest such assets and to change such investments and reinvestments from time to time; and the board may engage an investment manager or managers and grant to them complete or partial investment discretion including the execution of orders without prior consultation and the investment and reinvestment of monies allocated or assigned to them within the guidelines prescribed by the board; subject, however, as to any particular investment or reinvestment, to all of the terms, conditions, limitations and restrictions now or hereafter imposed by the laws of the state for the investment of assets of domestic life insurance companies or for the investment of funds held by fiduciaries; provided, that in the event investments are made under the laws pertaining to the investment of funds held by fiduciaries, not exceeding ten (10) percent of the book value of the investments of such system shall at any one time be invested in the securities or properties of any one person, firm, company or corporation, and may be invested and reinvested in common stocks. Subject to like terms, conditions, limitations and restrictions, the board shall have full power and

authority to acquire, purchase, hold, sell, assign, transfer and dispose of any of the securities, properties and investments in which any of the assets of such system may be or may have been invested or reinvested, as well as the proceeds of such investments in any monies belonging to the system.
(Code 1958, § 40-30(1); Ord. No. 29,756, § 1, 12-12-78; Ord. No. 29,916, § 1, 5-8-79; Ord. No. 30,206, § 1, 11-27-79; Ord. No. 30,344, § 1, 3-25-80)

Cross reference—Money received for endowed care of cemeteries to be invested in securities approved by board of trustees of retirement system, §§ 12-330, 12-345.

Sec. 37-112. Investment committee.

(a) The board may appoint an investment committee to consist of members of the board, who shall serve at the pleasure of the board and operate under the rules and regulations promulgated by the board. When so appointed, the committee shall have the same power and authority to invest and reinvest the assets of the system, and to change such investments and reinvestments from time to time, as is conferred upon the board by the provisions of section 37-111. The committee shall report to the board any and all transactions made by it, and such reports shall be made at the meeting of the board following such transaction and shall be duly recorded in the minutes of the board.

(b) The secretary of the board shall be the secretary of the investment committee, and any and all instruments in writing necessary to consummate the sale of any of the assets of the system authorized by the investment committee shall be signed by the chairman or vice-chairman of the board and the secretary of the board, or by the nominee as the case may be.
(Code 1958, § 40-30(5); Ord. No. 29,756, § 1, 12-12-78; Ord. No. 29,916, § 1, 5-8-79; Ord. No. 30,206, § 1, 11-27-79; Ord. No. 30,344, § 1, 3-25-80)

Sec. 37-113. Bond exchange committee.

(a) Notwithstanding any other provision of this chapter, the board is authorized to appoint a bond exchange committee. This committee shall be composed of three (3) members of the board, any two (2) of whom may act on behalf of the committee. When established, this committee is authorized to sell bonds held by the system before their maturity, in order to invest the proceeds from such sale in other bond issues, so as to increase the income to the pension fund as a result of such exchange. No sale or purchase of bonds made by this committee shall exceed the sum of one million dollars ($1,000,000.00) for any single transaction.

(b) The secretary of the board shall be the secretary of the bond exchange committee, and any and all instruments in writing necessary to consummate the sale of any of the assets of the system authorized by the bond exchange committee shall be signed by the chairman or vice-chairman of the board and the secretary of the board, or by the nominee as the case may be.

(c) The bond exchange committee shall report to the board any and all exchanges made by it. Such reports shall be made at the meeting of the board immediately following each such exchange and shall be recorded in the minutes of the board.

(d) The limitations prescribed by this section shall apply only to the bond exchange committee and not to the board of trustees.
(Code 1958, § 40-30(7); Ord. No. 29,756, § 1, 12-12-78; Ord. No. 29,916, § 1, 5-8-79; Ord. No. 30,206, § 1, 11-27-79; Ord. No. 30,344, § 1, 3-25-80)

Sec. 37-114. Holding, buying, selling, etc., securities in name of nominee.

(a) Notwithstanding any provision contained in this chapter to the contrary, and in addition to any other power granted in this chapter, the board may hold, buy, sell, transfer or exchange the securities of the system, in whole or in part, in the name of a nominee, without indicating in the name that such securities are held in trust. No member of the board shall be required to serve as a nominee or as a member of a nominee partnership, nor shall any person not a member of the board serve as a nominee or as a member of a nominee partnership, and no member of the board who is the person, or an officer or employee of the person, bank or trust company holding the secu-

rities of the system as custodian, shall be eligible to serve as a nominee or a member of a nominee partnership.

(b) Notwithstanding any provision of this section to the contrary, the board may elect to use a nominee of a national bank to hold, buy, sell, transfer or exchange the securities of the system, in whole or in part, without indicating in the name that such securities are held in trust.
(Code 1958, § 40-30(6); Ord. No. 29,756, § 1, 12-12-78; Ord. No. 29,916, § 1, 5-8-79; Ord. No. 30,206, § 1, 11-27-79; Ord. No. 30,344, § 1, 3-25-80)

Sec. 37-115. Conflict of interests, etc., of board members of employees.

Except as otherwise herein provided, no member or employee of the board shall have any direct or indirect interest in the gains or profits of any investment made by the board nor, as a member of the board, receive any pay or emolument for his services. No member or employee of the board shall, directly or indirectly, for himself or as an agent, in any manner use the same, except to make such current and necessary payments as are authorized by the board.
(Code 1958, § 40-30(4); Ord. No. 29,756, § 1, 12-12-78; Ord. No. 29,916, § 1, 5-8-79; Ord. No. 30,206, § 1, 11-27-79; Ord. No. 30,344, § 1, 3-25-80)

Sec. 37-116. Nonrecourse fiduciary liability insurance for the board of trustees and the system.

The board of trustees shall be permitted to purchase nonrecourse fiduciary liability insurance to protect the board of trustees and the system. The premiums for said insurance shall be paid for out of retirement plan assets.
(Ord. No. 38,948, § 1, 10-28-97)

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Chapter 38

SALES; SECONDHAND GOODS; PAWNBROKERS AND JUNK AND ANTIQUE DEALERS*

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*__Cross references—__License tax for junk dealers and secondhand paper dealers, § 24-115; license tax for pawnbrokers, § 24-122.

__State law references—__Dealers in junk and secondhand articles, Code of Virginia, §§ 54-825—54-835; pawnbrokers, §§ 54-840—54-859.

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ARTICLE I. IN GENERAL

Sec. 38-1. Violations of chapter generally.

(a) Unless otherwise specifically provided, a violation of any provision of this chapter shall constitute a Class 4 misdemeanor.

(b) Additionally, any violation of the provisions of this chapter by a pawnbroker shall constitute a prohibited practice in accordance with section 59.1-200 of the Virginia Code and shall be subject to any and all of the enforcement provisions of the Virginia Consumer Protection Act (§ 59.1-196 et seq.).

(c) "Pawnbroker" means any person who lends or advances money or other things for profit on the pledge and possession of tangible personal property, or other valuable things, other than securities or written or printed evidences of indebtedness or title, or who deals in the purchasing of personal property or other valuable things on condition of selling the same back to the seller at a stipulated price.
(Ord. No. 39,740, § 1, 10-26-99)

Sec. 38-2. Violation of article as grounds for revocation of pawnbroker's or junk, antique or secondhand dealer's license.

In addition to any penalty imposed, upon conviction of any pawnbroker, junk dealer, antique dealer or dealer in secondhand clothing, furniture, appliances and similar articles of a violation of this article, the officer who issued the license to such offender may, in his discretion, revoke the same.
(Code 1958, § 42-8; Ord. No. 29,860, § 2, 3-20-79; Ord. No. 39,740, § 1, 10-26-99)

Cross references—Licenses, § 24-25 et seq.; similar provisions relative to precious metals dealers, § 38-84.

Sec. 38-2.1. Pawnbrokers and junk, antique and secondhand dealers to examine identifying credentials of persons from whom articles received.

It shall be unlawful for any pawnbroker, junk dealer, antique dealer or dealer in secondhand clothing, furniture, appliances and similar articles to take in pawn, buy or exchange any article prior to examining the identifying credentials of the person pawning, selling or exchanging the article.
(Ord. No. 29,860, § 1, 3-20-79)

Cross reference—Similar provisions relative to precious metals and gem dealers, § 38-93.

Sec. 38-2.2. Pawnbrokers or junk, antique or secondhand dealers receiving articles from minors.

(a) It shall be unlawful for any pawnbroker, junk dealer, antique dealer or dealer in secondhand clothing, furniture, appliances and similar articles to take in pawn, buy or exchange any article of any kind from a minor.

(b) It shall be unlawful for any dealer in secondhand books to purchase any book from any person under the age of eighteen (18) years, or apparently under the age of eighteen (18) years, without the consent of the parent or guardian of such minor given in person.
(Code 1958, §§ 42-2, 42-7; Ord. No. 29,860, § 2, 3-20-79)

Cross reference—Similar provisions concerning precious metals and gem dealers, § 38-95.

Sec. 38-2.3. Retention of items and/or parts for inspection.

(a) All dealers in secondhand furniture, appliances and similar articles shall retain in his immediate, physical possession, on the business premises and readily available for inspection by the chief of police or any members of his department, all secondhand clothing, furniture, appliances and similar articles for a minimum of fifteen (15) calendar days from the date on which a copy of the bill of sale is received by the chief of police or any member of his department. Until the expiration of this period, the dealer shall not sell, alter, or dispose of a purchased item in whole or in part, or remove it from the city.

(b) If a dealer performs the service of removing parts and/or repairing articles purchased, he shall retain the parts removed and the article from which the removal was made for a period of fifteen (15) calendar days after receiving such article.
(Ord. No. 43,478, § 2, 6-16-09)

Sec. 38-2.4. Secondhand dealer permit required.

Sec. 38-2.4. Secondhand and junk dealer permit required.

(a) No person or entity shall engage in the business in the city of purchasing or acquiring secondhand furniture, appliances and similar articles and no person or entity shall canvass in the city for the purchase or acquisition of any such secondhand articles for any person engaged in such business, without first obtaining a permit therefor from the chief of police or designee. The dealer shall file with the chief of police or designee an application form which shall include the dealer's full name, any aliases, address, age, sex and fingerprints; the name, address and telephone number of the applicant's employer if any; and the location of the dealer's place of business. A permit shall not be issued to any person convicted of a felony or crime of moral turpitude within seven (7) years prior to the date of application. The permit shall be denied if the applicant has been denied a permit or has had a permit revoked under any ordinance similar in substance to the provisions of this article. This permit shall be valid for one year from the date issued and may be renewed in the same manner as such permit was initially obtained with an annual permit fee of one hundred dollars ($100.00). No permit shall be transferable.

(b) Every junk dealer making a sale or purchase for any secondhand building materials shall display the permit required by these code sections to the scrap metal processor and comply with all additional reporting requirements as cited in Code of Virginia, § 59.1-136.4, as amended. Junk dealers shall not purchase ferrous scrap, nonferrous scrap, metal articles, proprietary articles, or other scrap metal from any person under the age of eighteen (18) years. Junk dealers shall not be required to first pay a fee to obtain a permit.
(Ord. No. 43,478, § 2, 6-16-09; Ord. No. 43,883, § 1, 6-8-10)

Sec. 38-2.5. Application for permits.

(a) Applicants for permits under this article shall provide information as requested on the form prepared for this purpose by the chief of police. Such information may include, but shall not be limited to the state of incorporation and the name of the registered agent of the business for which the permit is sought and the names and addresses of all employees of the business.

(b) A fee of one hundred dollars ($100.00), plus twenty-five dollars ($25.00) for each employee of the business, shall be due to the central records division of the Norfolk Police Department and such fee shall accompany the application when submitted.

(c) Before a permit may be issued, the dealer must have his business inspected and approved by the chief of police or his designee.

(d) If the business of the dealer is not operated without interruption, with Saturdays, Sundays, and recognized holidays excepted, the dealer shall notify the chief of police or his designee. The business of a dealer shall be conducted only from the fixed and permanent location specified in the application for a permit.
(Ord. No. 43,478, § 2, 6-16-09)

Sec. 38-2.6. False statements.

Any false statement made on the application form shall render the application and any permit obtained there under void, and any permit shall be as though never issued.
(Ord. No. 43,478, § 2, 6-16-09)

Sec. 38-2.7. Transfer of permits.

No permit shall be transferred to any other person or location.
(Ord. No. 43,478, § 2, 6-16-09)

Sec. 38-2.8. Secondhand dealer bond required.

(a) Every applicant for a permit issued pursuant to this article shall post with the commissioner of revenue a surety bond, approved as to form by the city attorney, in favor of the city in the amount of ten thousand dollars ($10,000.00), which bond shall not be accepted unless it be with a corporate surety licensed to do business in the state and unless it is conditioned that the appli-

cant shall comply fully with all applicable regulations concerning the activity for which the applicant is to be permitted.

(b) Any person aggrieved by an act of the principal named in such bond in violation of the provisions of this article may proceed on such bond against the principal or surety therein, or both.

(c) In lieu of a bond, a dealer may cause to be issued by a bank authorized to do business in the state a letter of credit in favor of the city in the sum of ten thousand dollars ($10,000.00).
(Ord. No. 43,478, § 2, 6-16-09)

Sec. 38-3. Records to be kept by pawnbrokers, junk dealers, antique dealers and secondhand dealers.

(a) All junk dealers, antique dealers and dealers in secondhand clothing, furniture, appliances and similar articles shall keep daily records of every article bought or exchanged by them. Such records shall contain a full description of such articles and shall show all distinguishing marks, numbers, brands, letters or monograms of any kind on such articles, together with the name, address and description of the person from whom such articles are received, which description shall include the age, date of birth, height, build and general appearance of such person.

(b) Every pawnbroker shall keep at his place of business an accurate and legible record of each loan or transaction in the course of his business. The account shall be recorded at the time of the loan or transaction and shall include:

(1) A description, serial number, and a statement of ownership of the goods, article or thing pawned or pledged or received on account of money loaned thereon;

(2) The time, date and place of the transaction;

(3) The amount of money loaned thereon at the time of pledging the same;

(4) The rate of interest to be paid on such loan;

(5) The fees charged by the pawnbroker, itemizing each fee charged;

(6) The full name, residence address, telephone number, and driver's license number or other form of identification of the person pawning or pledging the goods, article or thing, together with a particular description, including the height, weight, date of birth, race, gender, hair and eye color, and any other identifying marks, of such person;

(7) Verification of the identification by the exhibition of a government-issued identification card such as a driver's license or military identification card. The record shall contain the type of identification exhibited, the issuing agency, and the number thereon;

(8) The terms and conditions of the loan, including the period for which any such loan may be made; and

(9) All other facts and circumstances respecting such loan.

(10) *Bulk loan or bulk transaction.* A bulk loan or bulk transaction shall mean, for purposes of this section, any loan or transaction for which more than one item of goods, articles or things pawned or pledged or received on account of money loaned thereon, is accepted for one loan or during one transaction. For bulk loans or bulk transactions, each item of goods, articles or things pawned or pledged or received on account of money loaned thereon, shall be listed on the required accurate and legible record by serial number, title, and identification number, or any means of identification specific to the item pawned, pledged or received on account of money loaned on it.

The provisions of this section shall not apply to the purchase of used aluminum cans by junk dealers.

The superintendent of state police shall promulgate regulations specifying the nature of the particular description for the purposes of subsection (b)(6) above. The superintendent of state police shall promulgate regulations specifying the nature of identifying credentials of the person

pawning or pledging the goods. The pawnbroker shall examine such credentials and an appropriate record retained thereof.

(c) The records of junk dealers shall contain, in addition to the information hereinbefore required in subsection (a), the number of all license plates and identification tags attached to vehicles in which articles are transported to such dealers, the name of the state and city, town or county which issued such license plates and identification tags and the year for which the same were issued.

(d) All dealers in secondhand books in the city shall keep, for a period of one year from the date of purchase, in duplicate, on forms to be furnished by the chief of police, an accurate record of all secondhand school books purchased by them, with the name of the parties from whom such purchases were made and the prices paid therefor.

(e) The records described in this section shall be available for inspection at any reasonable time by the chief of police or his designated agent.
(Code No. 1958, §§ 42-2, 42-4; Ord. No. 29,860, § 2, 3-20-79; Ord. No. 30,277, § 1, 1-29-80; Ord. No. 36,292, § 1, 12-18-90; Ord. No. 39,740, § 1, 10-26-99; Ord. No. 41,218, § 1, 11-4-03)

Cross reference—Similar provisions concerning dealers in precious metals and gems, § 38-91.

State law reference—Records to be kept by junk dealers and pawnbrokers, Code of Virginia, §§ 54.1-4009, 54.1-4011.

Sec. 38-4. Reports to be made by pawnbrokers, junk dealers and secondhand dealers.

(a) All junk dealers and dealers in secondhand furniture, appliances and similar articles shall furnish daily to the chief of police, upon blanks to be prescribed by him, a full and complete report of all articles taken in, bought or exchanged by them within the twenty-four (24) hours next preceding the date of such report. Such report shall contain a full description of all such articles, together with all marks, numbers, brands, letters or monograms on such articles, and the names, addresses, dates of birth and general description of the parties from whom such articles were received.

(b) Every pawnbroker, and every dealer in secondhand furniture, appliances and similar articles, shall prepare a daily report of all goods, articles or things pawned, pledged or purchased with or from him that day and shall file such report by noon of the following day with the chief of police. The report shall include the pledgor's name, residence, and driver's license number or other government form of identification, a description of the goods, articles or other things pledged, including all marks, numbers, brands, letters or monograms on such articles, the names, addresses, dates of birth and general description of the parties from whom such articles were received and shall be in writing and clearly legible to any person inspecting it.

If requested by the chief of police or his designee, the pawnbroker, secondhand dealer or junk dealer conducting business shall furnish to the chief of police or designee a report of all items pawned or purchased. Each report shall:

(i) Be submitted by noon on the next business day following the date of a purchase; and

(ii) Include the seller's name, date of birth, identification number, address, height, and weight of the person pledging or selling articles; and

(iii) Be submitted in an electronic format.

For each loan or transaction, a pawnbroker, junk dealer, and secondhand dealer may charge a service fee for making daily electronic reports to the chief of police required to be maintained under this section. Such fee shall not exceed five (5) percent of the amount of the loan or transaction or three dollars ($3.00), whichever is less.

(c) Where the purchase, sale or acquisition occurs during a weekend or holiday, then the delivery of the information required to be submitted to the chief of police shall be made no later than 10:00 a.m. of the next regular working day.

(d) The report furnished by junk dealers shall contain, in addition to the information hereinabove required, the numbers of all license plates and identification tags attached to vehicles in which articles were transported to such dealers, the

name of the state and city, town or county which issued such license plates and identification tags and the year for which the same were issued.

Every pawnbroker or secondhand dealer and every employee of the pawnbroker and secondhand dealer shall admit to the pawnbroker's or secondhand dealer's place of business during regular business hours, any duly authorized law enforcement officer of the jurisdiction where the business is being conducted, or any law enforcement official of the state or federal government. The pawnbroker, secondhand dealer or employee shall permit the officer to:

(i) Examine all records required by this chapter and any article listed in a record which is believed by the officer to be missing or stolen, and

(ii) Search for and take into possession any article known to him to be missing, or known or believed by him to have been stolen. However, the officer shall not take possession of any article without providing to the pawnbroker or secondhand dealer a receipt.

No property received on deposit, pledge or purchase by any pawnbroker or secondhand dealer shall be disfigured or its identity destroyed or affected in any manner:

(i) So long as it continues in pawn or in the possession of the pawnbroker while in pawn or in the possession of the secondhand dealer, or

(ii) In an effort to obtain a serial number or other information for identification purposes, nor shall any person take in pawn or buy any property which the serial number has been removed, changed or altered without the consent of the chief of police or his designee.

(e) Every junk dealer shall keep and maintain accurate and legible records of acquisitions of all secondhand building materials. The records of such acquisitions shall be retained by the junk dealer for a minimum of twelve months from the date of acquisition. The records shall contain the following information:

(i) Date and time secondhand building material was acquired.

(ii) The location of secondhand building material acquired, to include the property owner's name and/or address from which the secondhand building material was obtained.

(iii) A full and complete description of the secondhand building material obtained.

(f) Any person, firm or corporation violating any of the provisions of this section shall be guilty of a class 4 misdemeanor.

(Code 1958, § 42-5; Ord. No. 29,860, § 2, 3-20-79; Ord. No. 39,740, § 1, 10-26-99; Ord. No. 41,218, § 11-4-03; Ord. No. 43,478, § 1, 6-16-09; Ord. No. 43,883, § 2, 6-8-10; Ord. No. 43,883, § 2, 6-8-10)

Cross reference—Similar provisions applicable to prescious metal and gem dealers, § 38-91.

State law reference—Pawnbrokers' reports, Code of Virginia, § 54-853.

Sec. 38-4.1. Identification number on articles received by pawnbrokers and junk, antique and secondhand dealers not to be removed or altered.

It shall be unlawful for any pawnbroker, junk dealer, antique dealer or dealer in secondhand clothing, furniture, appliances and similar articles to remove, change, alter or conceal any serial or other identification number which may be attached or affixed to any property of any kind received by such person, without the consent of the chief of police or his designated agent, nor shall such person knowingly take in pawn, buy, exchange or keep in his possession any such property, the serial or other identification number of which has been removed, changed or altered, without the consent of the chief of police or his designated agent.

(Ord. No. 29,860, § 2, 3-20-79)

Sec. 38-5. Injuring, concealing, etc., property received on deposit or pledge by pawnbrokers.

(a) No property received on deposit or pledge by any pawnbroker shall be disfigured or its identity destroyed or affected in any manner (i) so

long as it continues in pawn or in the possession of the pawnbroker while in pawn or (ii) in an effort to obtain a serial number or other information for identification purposes.

(b) Pawnbrokers shall store, care for and protect all of the tangible personal property in the pawnbroker's possession and protect the property from damage or misuse. Nothing in this chapter shall be construed to mean that pawnbrokers are insurers of pawned property in their possession.

(c) A pawnbroker may charge a monthly storage fee for any items requiring storage, which fee shall not exceed five (5) percent of the amount loaned on such item.

(Code 1958, § 42-6; Ord. No. 29,860, § 2, 3-20-79; Ord. No. 38,922, § 1, 10-14-97; Ord. No. 39,740, § 1, 10-26-99)

State law reference—Similar provisions, Code of Virginia, § 54-855.

Sec. 38-5.1. Definitions; exclusions from this article.

Generally. As used in this article, unless the context requires a different meaning:

(a) *Antique dealer.* Any person, corporation, or other business organization or entity engaged in the business of purchasing, for the purpose of resale to the public, objects made in or typical of, an earlier period of time, having special value because of their age or are examples of art or handicrafts.

(b) *Building material.* For purposes of this article "building material," shall mean any secondhand heating or plumbing fixture or supplies, electric fixtures or wiring, gas fixtures or appliances, water faucets, pipes, locks or any other secondhand fixture of whatsoever kind or description used in construction of a building.

(c) *Regularly engaged.* For purposes of this article, "regularly engaged," shall mean any person, firm, partnership, corporation or entity conducting more than twenty (20) combined transactions or offers for sale more than three hundred (300) pounds combined weight of secondhand building materials annually within the city.

(d) *Junk dealer*. For purposes of this article "junk dealer," shall mean any person, firm, partnership or corporation who regularly engages in the business of purchasing, acquiring, or canvassing secondhand building material, to include all nonferrous scrap metal and/or proprietary articles for the purpose of resale.

(e) *Secondhand dealer.* Any person, firm, partnership or corporation engaged in the business of purchasing secondhand goods for sale.

(f) *Secondhand goods*. Personal property previously owned or used that is purchased as used property and made available for resale to the public. "Secondhand goods" shall not include office furniture, pianos, books, clothing, organs, coins, motor vehicles, or costume jewelry.

(g) *Secondhand shop*. The place or premises at which a secondhand dealer is registered to conduct business as a secondhand dealer or at which he conducts business.

(h) *Transaction*. Any purchase or resale of secondhand goods by a secondhand dealer.

Exclusions. The provisions of this chapter shall not apply to:

(a) Any consignment of secondhand goods to a consignment shop or any resale of consigned secondhand goods by a consignment shop.

(b) Any purchase or resale of antiques by an antique dealer.

(c) Any secondhand goods transaction involving a nonprofit, religious, or charitable organization or any school-sponsored association or organization, unless the organization or association sells secondhand goods to a pawnbroker or secondhand dealer.

(d) A law enforcement officer acting in an official capacity.

(e) A trustee in bankruptcy, executor, administrator, or receiver unless the trustee in

bankruptcy, executor, administrator, or receiver sells secondhand goods to a pawnbroker or secondhand dealer.

(f) Any public official acting under judicial process or authority unless such official sells secondhand goods to a pawnbroker or secondhand dealer.

(g) A sale on the execution, or by virtue of any process issued by a court unless there is a sale of secondhand goods to a pawnbroker or secondhand dealer.

(h) Any garage sale operator who holds garage sales less than ten (10) weekends per year.

(i) Any person at antique, coin, or collectible shows or sales.

(j) Any person who sells household personal property as an agent for the property owner or his representative pursuant to a written agreement at that person's residence.

(k) The sale of secondhand goods by a pawnbroker or secondhand dealer to another pawnbroker or secondhand dealer when the selling pawnbroker or secondhand dealer has complied with the requirements of this article.

(l) Any person accepting a secondhand good as a trade-in for other merchandise.

(m) Any resale of secondhand goods by an itinerant merchant or any purchase of secondhand goods by such itinerant merchant provided that the purchase does not take place at the itinerant merchant's normal place of business.

(n) Any auction firm or Virginia-licensed auctioneer.

(o) Any person offering his own personal property for sale via an internet website or a person or entity offering the personal property of others for sale or trade via an internet website, when that person or entity does not have, and is not required to have, a local occupational or business license for this purpose.

(p) Precious metals or gem dealers regulated under this chapter.

(q) Licensed motor vehicle dealers.

(r) Authorized scrap seller, including any licensed plumber, electrical HVAC contractor, building and construction contractor, public utilities, public transportation companies, licensed peddlers and brokers, industrial and manufacturing companies, marine, automobile, and aircraft salvaging and wrecking companies and governmental entities.

(s) Authorized scrap metal processors, including any licensed entity that is involved in the sheering, bailing, shredding or cutting of scrap metals.

(Ord. No. 38,922, § 1, 10-14-97; Ord. No. 43.478, § 2, 6-16-09; Ord. No. 43,883, § 3, 6-8-10)

Sec. 38-5.2. Sale of goods pawned.

(1) No pawnbroker shall sell any pawn or pledge item until (i) it has been in his possession for the minimum term set forth in the memorandum, but not less than thirty days, plus a grace period of fifteen (15) days and (ii) a statement of ownership is obtained from the pawner. If a motor vehicle is pawned, the owner of the motor vehicle shall comply with the requirements of section 46.2-637 of the Virginia Code. In the event of default by the pawner, the pawnbroker must comply with the requirements of section 46.2-633. Otherwise, the pawnbroker must comply with the requirements of section 46.2-636 et seq. of the Virginia Code. The pawnbroker may make all sales of items pursuant to this section in the ordinary course of his business.

(2) No pawnbroker shall ask, demand or receive a greater rate of interest than ten percent per month on a loan of twenty-five dollars ($25.00) or less, or seven (7) percent per month on a loan of more than twenty-five dollars ($25.00) and less than one hundred dollars ($100.00), or five (5) percent per month on a loan of one hundred dollars ($100.00) or more, secured by a pledge of tangible personal property. No loan shall be divided for the purpose of increasing the percentage to be paid the pawnbroker. Loans may be renewed

based on the original loan amount. Loans may not be issued that compound the interest or storage fees from previous loans on the same item.

An annual percentage rate computed and disclosed under the provisions of the federal Truth-in-Lending Act shall not be deemed a violation of this section.

(3) For the purposes of this section, consumer goods, equipment and items of whatever nature acquired in any manner by a pawnbroker shall be presumed to be a pawn or pledge. Property acquired in the course of business by a pawnbroker, who is also licensed as a retail merchant, is presumed to be a pawn or pledge unless it was acquired from a merchant. The burden shall be upon the pawnbroker to establish by proof upon demand of the chief of police, or his designee, that an item for sale is not a pawn or pledge. Such proof may include a bill of lading or receipt which identifies the items as part of the pawnbroker's retail inventory.
(Ord. No. 38,922, § 1, 10-14-97; Ord. No. 39,740, § 1, 10-26-99)

Sec. 38-6. Right of entry to premises of pawnbrokers, junk dealers, antique dealers and secondhand dealers.

Every pawnbroker, junk dealer, antique dealer and dealer in secondhand clothing, furniture, applicances and similar articles, and every person in the employ of such person, shall admit to his place of business during regular business hours, the chief law enforcement officer, or his designee, of the City of Norfolk, or any law enforcement official of the State of Virginia or federal government. The aforementioned officers shall be permitted to (i) examine all records required by this chapter and any article listed in a record which is believed by the officer to be missing or stolen, and (ii) search for and take into possession any article known to him to be missing, or known or believed

by him to have been stolen. However, the official shall not take possession of any article without providing to the pawnbroker a receipt.
(Ord. No. 29,860, § 2, 3-20-79; Ord. No. 36,292, § 1, 12-18-90; Ord. No. 39,740, § 1, 10-26-99)

Sec. 38-7. Duty of purchaser of secondhand builders' hardware, electric, gas or plumbing fixtures, etc.

Any person, except a licensed plumber, buying any secondhand grate baskets, locks or other builders' hardware, electric light or gas fixtures, plumbing fixtures, bells and bell fixtures or lead or brass water pipe, at private or public sale within the corporate limits of the city, shall take from the seller a properly dated written receipt or bill of sale signed by such seller, who shall therein specifically state the seller's address or place of residence. If such seller is not personally known to the buyer, or if the seller is unable to write his name, such seller shall produce an adult witness, personally known to the buyer, to identify the seller and to sign such receipt or bill of sale, as witness, the latter also stating therein his full address or place of residence. The receipt or bill of sale shall set forth the list of articles purchased and shall be written in duplicate and the buyer shall file a copy thereof with the chief of police, within twenty-four (24) hours after such purchase.
(Code 1958, § 42-3)

State law reference—Buying above-named articles with intent to defraud, Code of Virginia, § 18.2-237.

Sec. 38-8. Going-out-of-business sales; permit required.

(a) Any person desiring a special sale permit required by section 24-25.9(g) of this Code shall make application therefor to the commissioner of the revenue in writing and under oath. All applications for special sale permits shall include an affidavit attesting that the applicant has been lawfully conducting a business pursuant to a proper license in this city continuously for at least one year prior to filing an application for a license under this section and shall be accompanied by an inventory, including the kind and quantity of all goods which are to be offered for sale during the sale and only the goods specified in the inventory list may be advertised or sold during the sale. Goods not included on the inventory of special sale goods shall not be commingled with or added to the special sale goods. Such application shall also specify the proposed period of time during which such sale shall continue. The commissioner of the revenue shall allow any person to inspect such application upon request.

(b) If the commissioner of the revenue shall be satisfied from the application filed under this section (i) that the proposed sale is of the character, as to all goods, wares and merchandise to be sold, represented in the application, (ii) that the applicant paid the permit fee prescribed by section 24-25.9(g) of this Code, (iii) the applicant has been lawfully conducting a business pursuant to a proper license in this city continuously for at least one year prior to filing an application for a license under this section, then the commissioner of the revenue shall issue a permit to the applicant, authorizing him to advertise and conduct a sale of the particular kind mentioned in the application, in accordance with the requirements of this section, for the period of time stated in the application and for which the permit fee is paid.

(c) The special sale permit provided for in this section shall be valid only for a sale of goods, wares and merchandise listed in the inventory referred to in subsection (a) above in the manner and at the time and place set forth and described in the application, and no other goods, wares or merchandise shall be sold at such sale.

(d) It shall be unlawful for the applicant to list on the inventory referred to n subsection (a) above any goods, wares, or merchandise which are not part of the regular stock of the store or business, the goods of which are to be closed out at such sale, or which have been purchased by the applicant with return privileges or on consignment, or to add to, supplement or replenish such goods, wares or merchandise from any source whatsoever after the filing of the inventory, and thereafter to advertise the sale as being of the character set out in the application. Each and every addition to such stock and each sale of goods, wares and merchandise added thereto shall constitute a separate offense under this section.

(e) The commissioner of the revenue shall inspect the proposed advertisement, the inventory of special sale goods and the conducting of such sale to ensure that it is being advertised and conducted in conformity with the required permit.

(f) No special sales permit shall be issued for any inventory which has been the subject of sale pursuant to Code of Virginia, section 18.2-224, 1950, as amended, unless such goods were the product of a bona fide sale to a person unrelated to the business and/or operator and/or seller-permittee.

(g) Each applicant shall attest that the items for sale have not been included for sale in any other special sales permit as described in Code of Virginia, section 18.2-224, 1950, as amended, and that the total inventory shall be liquidated pursuant to the advertised sale, subject to the provisions of section 24-25.9(g).

(h) The permittee shall maintain accurate and complete records of all sales made during the special sale period. Upon the completion of the special sale period, the permittee shall provide to the commissioner of the revenue an accurate and complete inventory of all items sold during the permitted period.

(i) The commissioner of the revenue shall have the right to revoke the special sale permit upon proof that goods not appearing on the original inventory of special sale goods have been commingled with or added to the special sale goods.

(j) Any person who advertises such sale shall conspicuously include in the advertisement the permit number assigned for the sale by the commissioner of the revenue.

(k) Any person who shall violate any of the provisions of this section or shall make any false statement in the application referred to in this section shall be deemed guilty of a Class 1 misdemeanor.
(Ord. No. 38,987, § 1, 12-9-97)

Secs. 38-9—38-20. Reserved.

ARTICLE II. AUCTIONS GENERALLY*

Sec. 38-21. Definitions.

For the purposes of this article, "selling at auction" shall mean the offering for sale or selling of personal property to the highest bidder, or the offering for sale or selling of such property by the method known as "down hill selling." By "down hill selling" is meant the first offering of an article at a higher price and then offering the same at successive lower prices until a bidder is secured.
(Code 1958, § 6-1)

Sec. 38-22. Reserved.

Editor's note—Section 1 of Ord. No. 33,517, adopted June 18, 1985, repealed § 38-22; "Approval of application for auctioneer's license; auctioneer's bond," as derived from § 6-2 of Code 1958.

Sec. 38-23. Inventory of goods to be sold.

No person shall sell or offer for sale in the city, by auction, a stock of merchandise which, by advertisement, sign, poster or otherwise, such person advertises, represents or states as being goods belonging to or kept in the business of another person, without having filed in the office of the city clerk an inventory of such stock of merchandise, duly supported by affidavit, setting out the quantity, quality and kind or grade of each item thereof. To such inventory there shall be attached an affidavit that such inventory is in all respects true and correct. In the case of an individual, such affidavit shall be made by him as such; in the case of a firm, it shall be made by one of the partners; and in case of a corporation, it shall be made by the president, general manager, secretary or treasurer. Such inventory and affidavit shall be kept on file as a public record by the city clerk.
(Code 1958, § 6-8)

Sec. 38-24. Certain means of advertisement prohibited.

No bellman or crier, or drum or other instrument causing sound of any kind, or any show signal or other means of attracting the attention

*State law reference—Auctioneers, Code of Virginia, 54-824.1 et seq.

of passersby, except the usual auctioneer's flag, shall be employed, or be permitted to be used at or near any auction.
(Code 1958, § 6-10)

Cross references—Advertising, Ch. 3; noise generally, Ch. 26.

Sec. 38-25. Jewelry, silverware, etc., not to be sold during certain hours.

No person conducting the business of selling diamonds, watches, clocks, jewelry, silverware, oriental rugs or like articles, at public auction, shall conduct such business between the hours of 6:00 p.m. and 8:00 a.m.
(Code 1958, § 6-9)

State law reference—Regulations governing sale, at auction, of goods referred to above, Code of Virginia, § 54-795 et seq.

Sec. 38-26. Misrepresentations as to ownership or quality of property offered for sale.

No auctioneer of personal property shall, with intent to induce any person to purchase the same, make any false representation or statement as to the ownership, character or quality of the property offered for sale, or as to the property or circumstances of the owner or pretended owner of such property.
(Code 1958, §§ 6-4, 6-6)

Sec. 38-27. Misrepresenting goods as bankrupt or insolvent stock, etc.

No person who sells or offers for sale by auction, or advertises for sale any goods, wares or merchandise, shall falsely represent or pretend that such goods, wares or merchandise are, in whole or in part, a bankrupt or insolvent stock, or damaged goods, or goods saved from fire, or make any false statement as to the purchase history or character of such goods, wares or merchandise.
(Code 1958, § 6-7)

Sec. 38-28. Substitution of articles purchased.

No auctioneer of personal property shall offer for sale at public auction any article, and induce its purchase by any bidder, and thereafter substitute any article in lieu of that offered to and purchased by the bidder.
(Code 1958, § 6-5)

Sec. 38-29. Reserved.

Editor's note—Section 1 of Ord. No. 33,517, adopted June 18, 1985, repealed § 38-29, concerning revocation of auctioneers' licenses, as derived from Code 1958, §§ 6-4—6-7.

Secs. 38-30—38-45. Reserved.

ARTICLE III. SALE OF USED MOTOR VEHICLES AT AUCTION

Sec. 38-46. Exemptions from this article.

The provisions of this article shall not apply to:

(1) Sales at auction conducted by or under the direction of any public authority, or pursuant to any judicial order or decree;

(2) Sales by any person who is acting as a receiver, trustee in bankruptcy, guardian, conservator, administrator, or executor, or any person acting under a court order;

(3) Sales by an assignee under a bona fide general deed of assignment for the benefit of creditors; and

(4) Sales by a trustee acting under a trust agreement, deed of trust, or will.

(Code 1958, § 6-16; Ord. No. 39,909, § 1, 4-11-2000)

Sec. 38-47. Violations of article.

Any person who shall violate any of the provisions of this article shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 6-17)

Sec. 38-48. Reserved.

Editor's note—Section l of Ord. No. 30,569, adopted April 22, 1980, repealed Code 1958, § 6-11, codified as subsection (a) of § 38-48, which required a bond. Section 2 of said ordinance then re-enacted §§ 6-12—6-14, omitting the bond requirements and thereby effectively repealing subsections (b)—(d), which the editor has deleted.

Sec. 38-49. Seller's affidavit.

(a) Before any public auction sale of secondhand or used motor vehicles is held, the person on whose behalf the sale is to be held shall file with the commissioner of the revenue an affidavit stating the place of the proposed sale, the name of the auctioneer who will conduct the same, if any, the length of time the same will be conducted, the estimated number of motor vehicles it is proposed to offer for sale during the ensuing month, and the aggregate amount it is anticipated that such motor vehicles will be sold for.

(b) It shall be unlawful for any person to make any false statement in an affidavit filed under this section.
(Code 1958, §§ 6-12, 6-17; Ord. No. 30,569, § 2, 4-22-80)

Sec. 38-50. Business license tax.

(a) Every person who shall engage in the business of offering for sale, at public auction in the city, secondhand or used motor vehicles, shall pay to the city a license tax for engaging in such business, to be based on the amount of sales in such business, as shown by the affidavit provided for in section 38-49, and at the same rates provided by section 24-116 of this Code for retail merchants, such tax to be paid on a monthly basis. The provisions of article II of chapter 24 of this Code, relating to the assessment of additional license taxes, shall apply to any underestimate in the amount of such sales.

(b) A separate license tax shall be paid for each month any sale under the provisions of this article is conducted.
(Code 1958, §§ 6-13, 6-14; Ord. No. 30,569, § 2, 4-22-80)

Sec. 38-51. Auctioneer's license tax.

In the event any sale governed by this article is cried by an auctioneer or crier, such auctioneer or crier shall pay the license tax prescribed by article II of chapter 24 of this Code, which shall be in addition to the license tax required by section 38-50.
(Code 1958, § 6-15)

Secs. 38-52—38-67. Reserved.

ARTICLE IV. DEALERS IN SECONDHAND MOTOR VEHICLE PARTS OR ACCESSORIES

Sec. 38-68. Violations of article.

Any person violating any of the provisions of this article shall be guilty of a Class 1 misdemeanor.
(Code 1958, § 42-21)

Sec. 38-69. Seller's certificate required for purchases.

(a) Before any person engaged in the business of buying or acquiring secondhand motor vehicle parts or accessories shall buy or acquire any such part or accessory, he shall require the person selling or delivering the same to certify, in writing signed by the person selling or delivering the same, on a form to be prescribed by the chief of police, an accurate description of such secondhand motor vehicle part or accessory and when, from whom and how the same was acquired by such seller. Such certificate shall be preserved by the person engaged in such business and shall at all times be subject to inspection by the chief of police or any member of the department of police.

(b) The certificate required by this section may, in the case of a corporation, be made by any officer or agent thereof, and in the case of an association, firm or company, may be made by any member thereof.

(c) It shall be unlawful for any person to make a false statement in the certificate required by this section.
(Code 1958, §§ 42-17, 42-18)

Sec. 38-70. Record of purchases.

(a) Every person engaged in the business, in the city, of buying or acquiring secondhand motor vehicle parts or accessories shall keep, at his place of business, a permanently-bound book in which shall be legibly written in ink, in English, at the time of each transaction in the course of his

business, an accurate record of each purchase or acquisition of any secondhand motor vehicle parts or accessories made by him.

(b) The record required by this section shall contain a full description of the secondhand motor vehicle parts or accessories and shall show all distinguishing marks, numbers, brands, letters or monograms on such articles, purchased or acquired, together with the name, residence and description of the person from whom the articles were received. The description of the person shall include the age, height, build, color, sex, general appearance and any distinguishing feature of such person.

(c) The records required by this section shall at all times be open and subject to the inspection of the chief of police and any member of the department of police.
(Code 1958, §§ 42-14, 42-15, 42-18)

Sec. 38-71. Report of purchases to police.

Every person engaged in the business of buying or acquiring secondhand motor vehicle parts or accessories shall furnish daily, to the chief of police, upon forms to be prescribed by the chief, full and complete lists of all secondhand motor vehicle parts and accessories so purchased or acquired by him within the twenty-four (24) hours next preceding the date of such report. Such lists shall contain accurate descriptions of such secondhand motor vehicle parts and accessories, including all distinguishing marks and numbers thereon so purchased or acquired, and the names, addresses and descriptions of the parties from whom purchased or acquired.
(Code 1958, § 42-19)

Sec. 38-72. Purchases prohibited during certain hours.

No secondhand motor vehicle part or accessory shall be purchased or acquired by any dealer therein between the hours of 7:00 p.m. of any day and 7:00 a.m. of the day following.
(Code 1958, § 42-16)

Sec. 38-73. Minimum holding period for purchases.

Every person engaged in the business of buying or acquiring secondhand motor vehicle parts or accessories shall retain in his possession, open to the inspection of the chief of police or any member of the department of police, any such motor vehicle part or accessory purchased or acquired by him, for at least ten (10) days before disposing of the same.
(Code 1958, § 42-20)

Secs. 38-74—38-83. Reserved.

ARTICLE V. DEALERS IN PRECIOUS METALS AND GEMS*

Sec. 38-84. Penalties.

(a) Any person convicted of violating any of the provisions of this article shall be guilty of a Class 2 misdemeanor for the first offense. Upon conviction of any subsequent offense, he shall be guilty of a Class 1 misdemeanor.

(b) Upon the first conviction by any court of a dealer for violation of any provision of this chapter, the chief law enforcement officer may revoke his permit to engage in business as a dealer under this chapter for a period of one full year from the date the conviction becomes final. Such revocation shall be mandatory upon a second conviction.
(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § l, 10-13-81)

Cross references—Revocation of licenses of pawnbrokers', etc.; licenses for violation of chapter, § 38-2.

Sec. 38-85. Definitions.

Generally. For the purposes of this article, certain words and phrases shall have the meanings ascribed to them by this section.

***Editor's note—**Ord. No. 30,898, § 2, adopted Dec. 9, 1980, repealed §§ 42-9—42-13 of the 1958 Code, codified as Art. V hereof, relative to dealers in old gold and silver. Section 1 of said ordinance enacted new §§ 42-8.1—42-8.13, relative to precious metals dealers, codified as amended as §§ 38-84—38-95. Section 42-8.13 contained a severability clause, which the editor has omitted as covered by § 1-6 hereof.

Cross reference—License tax for buyers of old gold and silver, § 24-115.

State law reference—Authority of city to adopt ordinance from which this article is derived, Code of Virginia, § 54.1-4111.

(a) Dealer. Any person, firm, partnership or corporation engaged at any location in the city in the business of purchasing or acquiring precious metals or gems or making loans for which precious metals or gems are received and held as security; provided, however, that retail merchants permanently located within the city shall be exempted insofar as they make purchases directly from manufacturers or wholesalers of precious metals or gems for their inventories. This definition includes merchants whose business is itinerant in nature as well as those whose business is permanently located in the city. As used herein "dealer" includes employers and principals on whose behalf the purchase or loan was made and all employers and agents who personally made such purchase and loans. When any act is required of a corporation, its president shall perform it.

The definition of "dealer" shall not include persons engaged in the following:

(1) Purchases of precious metals or gems directly from other dealers, manufacturers, or wholesalers for retail or wholesale inventories, provided that the selling dealer has complied with the provisions of this chapter.

(2) Purchases of precious metals or gems from a qualified fiduciary who is disposing of the assets of an estate being administered by the fiduciary.

(3) Acceptance by a retail merchant of trade-in merchandise previously sold by the retail merchant to the person presenting that merchandise for trade-in.

(4) Repairing, restoring or designing jewelry by a retail merchant, if such activities are within his normal course of business.

(5) Purchases of precious metals or gems by industrial refiners and manufacturers, insofar as such purchases are made directly from retail merchants, wholesalers, dealers, or by mail originating outside the Commonwealth.

(6) Persons regularly engaged in the business of purchasing and processing nonprecious scrap metals which incidentally may contain traces of precious metals recoverable as a byproduct.

(b) *Gems.* Any item containing precious or semiprecious stones customarily used in jewelry.

(c) *Precious metals.* Any item, except coins, containing as part of its composition in any degree gold, silver, platinum or platinum alloys.
(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § 1, 10-13-81; Ord. No. 39,740, § 1, 10-26-99)

Sec. 38-86. Permit required.

No dealer shall engage in the business in the city of purchasing or acquiring precious metals or gems or making loans for which precious metals or gems are received and held as security and no person shall canvass in the city for the purchase or acquisition of any such articles for any person engaged in such business, without first obtaining a permit therefor from the chief of police. The dealer shall file with the chief of police an application form which shall include the dealer's full name, any aliases, address, age, sex and fingerprints; the name, address and telephone number of the applicant's employer if any; and the location of the dealer's place of business. A permit shall not be issued to any person convicted of a felony or crime of moral turpitude within seven (7) years prior to the date of application. The permit shall be denied if the applicant has been denied a permit or has had a permit revoked under any ordinance similar in substance to the provisions of this article. This permit shall be valid for one year from the date issued and may be renewed in the same manner as such permit was initially obtained with an annual permit fee of two hundred dollars ($200.00). No permit shall be transferable.
(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § 1, 10-13-81)

Cross reference—Permit not transferable, § 38-89.

Sec. 38-87. Application for permits.

(a) Applicants for permits under this article shall provide information as requested on the form prepared for this purpose by the chief of police. Such information may include, but shall not be limited to the state of incorporation and the

name of the registered agent of the business for which the permit is sought and the names and addresses of all employees of the business.

(b) A fee of two hundred fifty dollars ($250.00) plus fifty dollars ($50.00) for each employee of the business shall be due to the central records division of the Norfolk Police Department and such fee shall accompany the application when submitted.

(c) The applicant must have all weighing devices used in the business inspected and approved by local or state weights and measures officials and present written evidence of such approval to the chief of police or his designee.

(d) The application must specify a fixed and permanent location for conduct of the business.

(e) The dealer must have been located in one fixed location in the city for a period of not less than ninety (90) days prior to submission of the application.
(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § l, 10-13-81; Ord. No. 43,478, § 3, 6-16-09)

Sec. 38-88. False statements.

Any false statement made on the application form voids the permit ab initio.
(Ord. No. 30,898, § l, 12-9-80; Ord. No. 31,370, § 1, 10-13-81)

Sec. 38-89. Transfer.

No permit shall be transferred.
(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § 1, 10-13-81)

Cross reference—Similar provisions, § 38-86.

Sec. 38-90. Bond required.

(a) Every applicant for a license pursuant to this article shall post with the commissioner of revenue a surety bond in favor of the city in the amount of ten thousand dollars ($10,000.00), which bond shall not be accepted unless it be with a corporate surety licensed to do business in the state and unless it is conditioned that the applicant shall comply fully with all applicable regulations concerning the activity for which the applicant is to be licensed, and that the property purchased by any person doing business with the applicant is guaranteed to be in accordance with the specifications, standards and conditions represented to the purchaser by the applicant.

(b) Any person aggrieved by an act of the principal named in such bond in violation of the provisions of this article may proceed on such bond agamst the priiicipal or surety therein, or both.

(c) In lieu of a bond, a dealer may cause to be issued by a bank authorized to do business in the state a letter of credit in favor of the city in the sum of ten thousand dollars ($10,000.00).
(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 30,964, § 1, 1-27-81; Ord. No. 31,370, § 1, 10-13-81)

Sec. 38-91. Records of purchases to be kept by dealers and furnished daily to police.

(a) Every dealer shall keep at his place of business an accurate and legible record of each purchase of precious metals or gems. The record of each purchase shall be retained by the dealer for at least twenty-four (24) months and shall set forth the following:

(1) A complete description of all precious metals or gems purchased from each seller. The description shall include all names, initials, serial numbers or other identifying marks or monograms on each item purchased, the true weight or carat of any gem, and the price paid for each item;

(2) The date, time and place of receiving the items purchased;

(3) The full name, residence address, workplace, home and work telephone numbers, date of birth, sex, race, height, weight, hair and eye color, and other identifying marks;

(4) Verification of the identification by the exhibition of a government-issued identification card such as a driver's license or military identification card. The record shall contain the type of identification exhibited, the issuing agency and the number thereon; and

(5) A statement of ownership from the seller.

(b) The information required by subsections (1) through (5) of paragraph (a) shall appear on each bill of sale for all precious metals and gems purchased by a dealer, and a copy shall be mailed or delivered within twenty-four (24) hours of the time of purchase to the chief law-enforcement officer of the city.

(c) Where the purchase, sale or acquisition occurs during a weekend or holiday, then the delivery of the information required to be submitted to the chief of police shall be made no later than 10:00 a.m. of the next regular working day.

(d) Every dealer or his employee shall admit to his place of business during regular business hours the chief law-enforcement officer of the city, or his designee or any law-enforcement officer of the state or federal government. The dealer or his employee shall permit the officer to:

(i) Examine all records required by this article and any item listed in a record which is believed by the officer to be missing or stolen; and

(ii) Search for and take into possession any article known to him to be missing, or known or believed by him to have been stolen.

(e) All transactions shall be subject to the waiting period as provided in section 38-92.

(f) If requested by the chief of police or his designee the report required by this subsection shall be compiled and maintained in an electronic format, and such reports shall be filed with the chief of police using a disk, electronic transmission, or any other electronic means of reporting approved by the chief of police or his designee.

For each loan or transaction, a dealer may charge a service fee for making daily electronic reports to the chief of police required to be maintained under this section. Such fee shall not exceed five (5) percent of the amount of the loan or transaction or three dollars ($3.00), whichever is less.

(g) The dealer must have a signed pawn or purchase receipt which states the seller is the rightful owner of the property to be pawned or sold. The receipt of the pawn or purchase shall be retained by the dealer for a period of at not less than twelve (12) months.

(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § 1, 10-13-81; Ord. No. 36,291, § 1, 12-18-90; Ord. No. 39,740, § 1, 10-26-99; Ord. No. 43,478, § 4, 6-16-09)

Cross reference—Similar provisions applicable to junk dealers, pawnbrokers, etc., §§ 38-3, 38-4.

Sec. 38-92. Purchases to be retained for inspection.

The dealer shall retain in his immediate, physical possession, on the business premises and readily available for inspection by the chief of police or any members of his department, all precious metals or gems purchased for a minimum of fifteen (15) calendar days from the date on which a copy of the bill of sale is received by the chief law-enforcement officer of the locality in which the purchase is made. Until the expiration of this period, the dealer shall not sell, alter, or dispose of a purchased item in whole or in part, or remove it from the county, city, or town in which the purchase was made.

(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § 1, 10-13-81; Ord. No. 39,740, § 1, 10-26-99; Ord. No. 43,478, § 5, 6-16-09)

Sec. 38-93. Inspection of identifying credentials.

It shall be unlawful for any dealer under this article to take in pawn, buy, acquire or exchange any precious metals or gems without first (i) ascertaining the identity of the seller by requiring an identification issued by a governmental agency with a photograph of the seller thereon, and at least one other corroborating means of identification, and (ii) obtaining a statement of ownership from the seller.

(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § 1, 10-13-81; Ord. No. 39,740, § 1, 10-26-99)

Cross reference—Similar provisions relative to pawnbroke's, junk dealers, etc., § 38-2.1.

Sec. 38-94. Liability of dealers for acts of agents.

Every dealer shall be liable to all the penalties provided for violation of any of the provisions of this article, whether such violations be committed by himself or by his agent, clerk or employee.
(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § 1, 10-13-81)

Sec. 38-95. Prohibited purchases.

(a) No dealers shall purchase, sell to or acquire precious metals or gems from any seller who is under the age of eighteen (18).

(b) No dealer shall purchase precious metals or gems from any seller who the dealer believes or has reason to believe is not the owner of such items, unless the seller has written and duly authenticated authorization from the owner permitting and-directing such sale.
(Ord. No. 30,898, § 1, 12-9-80; Ord. No. 31,370, § 1, 10-13-81)

Cross reference—Pawnbrokers, etc., not to deal with minors, § 38-2.2.

Secs. 38-96—38-104. Reserved.

ARTICLE VI. YARD AND GARAGE SALES

DIVISION 1. GENERALLY

Sec. 38-105. Enforcement of article.

The provisions of this article shall be enforced jointly by the police department and any special police officer.
(Code 1958, § 31-50.1; Ord. No. 47,402, § 2, 10-9-18)

Sec. 38-105.1. Statement of purpose.

It is the purpose of this article to provide for garage, yard or household sales by persons who are moving from the premises of such sale or who intend to dispose of their own accumulated personal or household property.
(Ord. No. 33,308, § l, 2-12-85)

Sec. 38-106. Exemptions from article.

Periodic yard or garage sales held exclusively on the grounds of any place of worship, are exempt from the requirements of this article. For purposes of this section, the phrase "periodic yard or garage sales" means sales held not more frequently than once every sixty (60) days.
(Code 1958, § 31-50.1; Ord. No. 45,910, § 1, 4-14-15; Ord. No. 46,044, § 1, 8-25-15)

Sec. 38-107. Not to be conducted prior to 12:00 noon on Sunday.

No yard or garage sale shall be conducted prior to 12:00 noon on a Sunday. This provision shall not limit or prevent the display of material intended for sale.
(Code 1958, § 31-50.1)

Sec. 38-108. Not to be conducted in residential zone by more than two persons residing at different addresses.

It shall be unlawful for more than two (2) persons residing at different addresses to arrange to conduct a yard or garage sale on a common site in any residential zone.
(Code 1958, § 31-50.1)

Cross reference—Zoning ordinance, App. A.

Sec. 38-109. Not to be conducted in residential zone by fraternal or civic organization.

It shall be unlawful for any fraternal or civic organization to conduct a yard or garage sale in any residential zone.
(Code 1958, § 31-50.1)

Cross reference—Zoning ordinance, App. A.

Sec. 38-110. Advertising signs.

No person conducting a yard or garage sale shall erect or display any sign advertising such sale on any street, sidewalk or other public right-of-way. One sign may be displayed on the premises on which the sale is conducted, provided the area of such sign does not exceed twelve (12) square feet. Any such sign displayed shall be

removed from display within twenty-four (24) hours following the termination of the permitted sale.
(Code 1958, § 31-50.1)

Cross reference—Advertising, Ch. 3.

Sec. 38-111. Duration.

No yard or garage sale shall be conducted for more than three (3) consecutive days.
(Code 1958, § 31-50.1)

Sec. 38-112. Limitation on property to be offered for sale.

No person conducting a yard or garage sale shall offer for sale any personal property that is new or that has been both acquired and transported to the premises solely for the purpose of such sale.
(Ord. No. 33,308, § 1, 2-12-85)

Sec. 38-113. Limitation of number of yard or garage sales each year.

It shall be unlawful for any person to conduct or stage any yard or garage sale on any property more than four (4) times in a calendar year. For purposes of this section, calendar year shall mean January 1st to December 31st.
(Ord. No. 47,402, § 3, 10-9-18)

Secs. 38-114—38-127. Reserved.

DIVISION 2. RESERVED*

Secs. 38-128—38-144. Reserved.

*__Editor's note—__Ord. No. 47,402, § 1, adopted Oct. 9, 2018, repealed Div. 2, §§ 38-128—38-133, which pertained to permit and derived from Code 1958, § 31-50.1; Ord. No. 39,242, § 1, adopted June 30, 1998. The user's attention is directed to § 38-113.

ARTICLE VII. DEALERS OF SALVAGE VEHICLES; REPORTING AND HOLDING REQUIREMENTS*

Sec. 38-145. Violations of this article.

Any person violating any of the provisions of this article shall be assessed a fine of two thousand five hundred dollars ($2,500.00).
(Ord. No. 44,473, § 1, 12-13-11)

Sec. 38-146. Definitions.

The following words, terms, and phrases when used in this article shall have the meaning ascribed to them in this section, except where the context indicates otherwise:

Actual cash value, as applied to a vehicle, means the retail cash value of the vehicle prior to damage as determined, using recognized evaluation sources, either:

(1) By an insurance company responsible for paying a claim; or

(2) If no insurance company is responsible therefor, by the Department of Motor Vehicles.

Current salvage value, as applied to a vehicle, means:

(1) The salvage value of the vehicle, as determined by the insurer responsible for paying the claim; or

(2) If no insurance company is responsible therefor, twenty-five (25) percent of the actual cash value.

Demolisher means any person whose business is to crush, flatten, or otherwise reduce a vehicle to a state where it can no longer be considered a vehicle.

Diminished value compensation means the amount of compensation that an insurance company pays to a third-party vehicle owner, in addition to the cost of repairs, for the reduced value of a vehicle due to damage.

Independent appraisal firm means any business providing cost estimates for the repair of damaged motor vehicles for insurance purposes and having all required business licenses and zoning approvals. This term shall not include insurance companies that provide the same service, nor shall any such entity be a rebuilder or affiliated with a rebuilder.

Late model vehicle means the current-year model of a vehicle and the five (5) preceding model years, or any vehicle whose actual cash value is determined to have been at least ten thousand dollars ($10,000.00) prior to being damaged.

Licensee means any person who is licensed or is required to be licensed under Code of Virginia, ch. 46.2, as amended.

Major component means any one of the following subassemblies of a motor vehicle:

(1) Front clip assembly, consisting of the fenders, grille, hood, bumper, and related parts;

(2) Engine;

(3) Transmission;

(4) Rear clip assembly, consisting of the quarter panels, floor panels, trunk lid, bumper, and related parts;

(5) Frame;

(6) Air bags; and

(7) Any door that displays a vehicle identification number.

Nonrepairable certificate means a document of ownership issued by the Department of Motor Vehicles for any nonrepairable vehicle upon surrender or cancellation of the vehicle's title and registration or salvage certificate.

Nonrepairable vehicle means:

(1) Any late model vehicle that has been damaged and whose estimated cost of repair exceeds ninety (90) percent of its actual cash value prior to damage, or

*__Editor's note—__*Ord. No. 44,473, § 1, adopted Dec. 13, 2011, added art. V, consisting of §§ 38-84—38-87 to ch. 38. Inasmuch as said article and sections already existed, the new material has been redesignated as herein set out at the editor's discretion.

(2) Any vehicle which has been determined to be nonrepairable by its insurer or owner, and for which a nonrepairable certificate has been issued or applied for, or

(3) Any other vehicle which has been damaged, is inoperable, and has no value except for use as parts and scrap metal.

Rebuilder means any person who acquires and repairs, for use on the public highways, two (2) or more salvage vehicles within a twelve-month period.

Rebuilt vehicle means:

(1) Any salvage vehicle that has been damaged as a result of collision, fire, flood, accident, trespass, or any other occurrence and has been repaired and the estimated cost of repair exceeded seventy-five (75) percent of its actual cash value, for use on the public highways; or

(2) Any late model vehicle which has been repaired and the estimated cost of repair exceeded seventy-five (75) percent of its actual cash value, excluding the cost to repair damage to the engine, transmission, or drive axle assembly.

Repaired vehicle means any salvage vehicle that has had repairs less than the amount necessary to make it a rebuilt vehicle.

Salvage certificate means a document of ownership issued by the department for any salvage vehicle upon surrender or cancellation of the vehicle's title and registration.

Salvage dealer means any person who acquires any vehicle for the purpose of reselling any parts thereof.

Salvage pool means any person providing a storage service for salvage vehicles or nonrepairable vehicles who either displays the vehicles for resale or solicits bids for the sale of salvage vehicles or nonrepairable vehicles, but this definition shall not apply to an insurance company which stores and displays fewer than one hundred (100) salvage vehicles and nonrepairable vehicles in one location; however, any two (2) or more insurance companies who display salvage and nonrepairable vehicles for resale, using the same facilities, shall be considered a salvage pool.

Salvage vehicle means:

(1) Any late model vehicle which has been:

a. Acquired by an insurance company as a part of the claims process other than a stolen vehicle; or

b. Damaged as a result of collision, fire, flood, accident, trespass, or any other occurrence to such an extent that its estimated cost of repair, excluding charges for towing, storage, and temporary replacement/or rental vehicle or payment for diminished value compensation, would exceed its actual cash value less its current salvage value;

(2) Any recovered stolen vehicle acquired by an insurance company as a part of the claims process, whose estimated cost of repair exceeds seventy-five (75) percent of its actual cash value; or

(3) Any other vehicle which is determined to be a salvage vehicle by its owner or an insurance company by applying for a salvage certificate for the vehicle, provided that such vehicle is not a nonrepairable vehicle.

Scrap metal means any manufactured item or article consisting of or containing metal; any metal removed from or obtained by cutting, demolishing, or disassembling any building, structure, manufactured item, or article; and any other metal that is no longer used for its original purpose and that can be processed for reuse in mills, foundries, and other manufacturing facilities.

Scrap metal processor means any person who is engaged in the business of processing vehicles into scrap for remelting purposes who, from a fixed location, utilizes machinery and equipment for processing and manufacturing ferrous and nonferrous metallic scrap into prepared grades, and whose principal product is metallic scrap.

Vehicle removal operator means any person who acquires a vehicle for the purpose of reselling it to a demolisher, scrap metal processor, or salvage dealer.
(Ord. No. 44,473, § 1, 12-13-11)

Sec. 38-147. Maintenance and contents of records.

(a) Each licensee shall maintain a record of the receipt of any vehicle. The record, at a minimum, shall contain:

(1) A description of each vehicle purchased, exchanged, or acquired by the licensee, including, but not limited to, the model, make, year of the vehicle as well as the vehicle's title number with state of issuance and vehicle identification number;

(2) The price paid for each vehicle;

(3) The name and address of the seller from whom each vehicle is purchased, exchanged, or acquired;

(4) The date and hour the purchase, exchange, or acquisition was made;

(5) A photocopy of the seller's driver's license, state identification card, official United States military identification card, or any other form of personal identification with photograph;

(6) A digital photograph of the seller, along with the vehicle that he is selling or exchanging with the licensee; and

(7) The signature of the licensee and the seller as executed at the time of the purchase, exchange, or acquisition of the vehicle by the licensee.

(b) If any major component, as defined in section 38-146, is sold, the salvage dealer shall provide, upon request of any law-enforcement official, the information required by this section as to the vehicle from which the part was taken.

(c) The provisions of subsections (a)(5) and (a)(6) shall not apply to vehicles when the licensee maintains a photocopy or electronic copy of one of the documents set out in Code of Virginia, § 46.2-1206, as amended, or this article.

(d) The provisions of this section shall not apply to salvage pools as defined in section 38-146, except that salvage pools shall maintain a record of the receipt of any vehicle that contains the date of receipt of the vehicle, its make, year, model, identification number, name, and address of the person from whom it was acquired, the vehicle's title number, and state of issuance.
(Ord. No. 44,473, § 1, 12-13-11)

Sec. 38-148. Reports to police department; holding period.

(a) Each licensee within the city shall make an electronic report of the information required to be maintained by section 38-147, at the request of the police department, on a daily basis, by noon the next business day, or such other frequency as requested by the police department, of every purchase, exchange or acquisition of any salvage or scrap vehicle. The licensee shall, in addition, transmit a photocopy of the seller's driver's license, state identification card, official United States military identification card, or any other form of personal identification with photograph and a copy of the digital photograph required by section 38-147, electronically to the police department on a weekly basis at an electronic address to be provided.

(b) No licensee shall crush, flatten, or otherwise reduce a vehicle to a state where it can no longer be considered a vehicle until it has been in his possession for up to ten (10) days unless the vehicle is accompanied by proper documentation pursuant to subsection (c). This subsection shall not apply to inoperable vehicles. For purposes of this subsection, an "inoperable vehicle" shall mean any vehicle that is physically damaged beyond use or any vehicle that does not contain or have an engine in running condition or does not have any other essential parts required for operation of the vehicle.

(c) The provisions of this section shall not apply to vehicles when the licensee maintains a photocopy or electronic copy of the certificate of title, vehicle removal certificate, properly executed vehicle disposition history, or sales receipt from a foreign jurisdiction.

(d) The provisions of this section shall not apply to scrap metal processors or to salvage pools as defined in section 38-146.
(Ord. No. 44,473, § 1, 12-13-11)

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Chapter 39

RESERVED*

*Editor's note—Ord. No. 36,188, § 1, adopted August 28, 1990, repealed Ch. 39. Prior to such repeal, Ch. 39, §§ 39-1—39-12, pertained to sewers and drains, and was derived from Code 1958, §§ 43-1—43-9; Ord. No. 29,870, § 1, adopted March 27, 1979; Ord. No. 31,174, § 1, adopted May 26, 1981; Ord. No. 31,211, § 1, adopted June 9, 1981; Ord. No. 33,107, § 1, adopted Sept. 25, 1984; Ord. No. 34,504, § 1, adopted May 26, 1987; Ord. No. 34,593, § 1, adopted July 14, 1987; and Ord. No. 35,532, § 1, adopted May 23, 1989. See now Ch. 39.1 and Ch. 39.2 of this Code.

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Chapter 39.1

SEWER USE—PUBLIC*

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§ 39.1-29. Grease control devices.
§ 39.1-30. Existing establishments.
§ 39.1-31. Retrofitting.

***Editor's note—**Ord. No. 44,838, § 1, adopted Sept. 11, 2012, amended Ch. 39.1 in its entirety to read as herein set out. Former Ch. 39.1, §§ 39.1-1—39.1-4, 39.1-5, 39.1-6, 39.1-7—39.1-14, 39.1-15—39.1-25, pertained to similar subject matter, and derived from Ord. No. 36,188, § 2, adopted August 28, 1990; Ord. No. 42,948, §§ 1, 2, adopted Dec. 18, 2007. See the Code Comparative Table for complete derivation.

Cross references—Buildings and building regulations, Ch. 11.1; food and food establishments, Ch. 18; site plan review, Ch. 32.2; sewer use, private, Ch. 39.2; streets and sidewalks, Ch. 42; subdivisions, Ch. 42.5; trailer coaches and trailer coach parks, Ch. 44; water supply, Ch. 46; zoning, App. A.

§ 39.1-32. Installation of grease control devices.
§ 39.1-33. Registration, waste manifest, requirements and notification.
§ 39.1-34. Maintenance of grease control devices.
§ 39.1-35. Inspection of grease control devices.
§ 39.1-36. Recordkeeping.
§ 39.1-37. FOG program compliance.
§ 39.1-38. Fees.

ARTICLE I. IN GENERAL

Sec. 39.1-1. Purpose.

The purpose of this chapter is to prevent the introduction of pollutants and wastes into the city's public sewerage system which will interfere with the operation of the system or contaminate the receiving waters or the atmosphere or otherwise be incompatible with the system.

This chapter provides for the regulation of direct and indirect contributors to the city's public sewerage system and shall apply to the City of Norfolk and to persons outside the city who are, by contract or agreement with the city, users of the city's public sewerage system. Except as otherwise provided herein, the Department of Utilities of the City of Norfolk shall administer, implement, and enforce the provisions of this chapter. (Ord. No. 44,838, § 1, 9-11-12)

Sec. 39.1-2. Definitions.

The following words and terms as used in this chapter shall have the following meanings unless the context clearly indicates otherwise:

(a) *Act* shall mean the Federal Clean Water Act.

(b) *Approval authority* means the director of the department of utilities.

(c) *BOD (denoting biochemical oxygen demand)* shall mean the quantity of oxygen used in the biochemical oxidation of organic matter under standard laboratory procedure in five (5) days at twenty (20) degrees C, expressed in milligrams per liter.

(d) *Brown grease* shall mean floatable fats, oils, grease and settled solids produced during food preparation that are recovered from grease control devices.

(e) *Categorical pretreatment standard* or *categorical standard* shall mean any regulation containing pollutant discharge limits promulgated by the EPA in accordance with sections 307(a) and 307(c) of the Act, which apply to specific categories of industrial users which appear in 40 CFR chapter I, subchapter N, parts 405—471.

(f) *Day* shall mean the twenty-four-hour period beginning at 12:01 a.m.

(g) *Director* shall mean the Director of the Department of Utilities or an authorized designee.

(h) *Discharger* shall mean person or persons, firm, company, industry or other similar sources of wastewater who introduce into the POTW.

(i) *Effluent meter* shall mean a city owned meter that measures wastewater flow into the public sewerage system and is used by the city, at its sole discretion, when it believes that the volume of wastewater entering into the public sewerage system may be greater than the volume of water passing through the city water meter.

(j) *EPA* shall mean the United States Environmental Protection Agency.

(k) *Fats, oils, and grease (FOG)* shall mean material, either liquid or solid, composed of fats, oils or grease from animal or vegetable sources. Examples of FOG include, but are not limited to, kitchen cooking grease, vegetable oil, bacon grease and organic polar compounds derived from animal and/or plant sources that contain multiple carbon triglyceride molecules. These substances are detectable and measurable using analytical test procedures established in the United States Code of Federal Regulations at 40 CFR Part 136, as may be amended from time to time. FOG may be referred to herein as "grease" or "greases".

(l) *Food service establishment (FSE)* shall mean any commercial, industrial, institutional, or food processing facility discharging kitchen or food preparation wastewaters including, but not limited to, restaurants, commercial kitchens, caterers, motels, hotels, cafeterias, correctional facilities, prisons or jails, cafeterias, care institutions, hospitals, schools, and

churches. Any establishment engaged in preparing, serving or otherwise making food available for consumption by the public shall be included. Such establishments use one or more of the following preparation activities: cooking by frying (all methods), baking (all methods), grilling, sautéing, rotisserie cooking, broiling, boiling, blanching, roasting, toasting, or poaching. Also included are infrared heating, searing, barbequing, and other food preparation activity that produces a hot, non-drinkable food product in or on a receptacle that requires washing.

(m) *Garbage* shall mean the solid animal and vegetable wastes resulting from the domestic or commercial handling, storage, dispensing, preparation, cooking, and serving foods.

(n) *Grease control device (GCD)* shall mean a device used to collect, contain, or remove food waste and grease from the wastewater while allowing the remaining wastewater to be discharged to the City of Norfolk's sanitary sewer system by gravity. Devices include grease interceptors, grease traps, automatic grease removal devices or other devices approved by the director.

(o) *Grease hauler* shall mean a contractor who collects the contents of a grease control device and transports it to an approved recycling or disposal facility. A grease hauler may also provide other services related to grease control devices for a FSE, including but not limited to, transport of grease for renderization or for donation.

(p) *Grease interceptor* shall mean a structure or device, usually located underground and outside a food service establishment, designed to collect, separate and contain food waste and grease while allowing the wastewater to be discharged to the City of Norfolk's sanitary sewer system by gravity.

(q) *Grease removal device* shall mean an active, automatic device that separates and removes FOG from effluent discharge and that cleans itself of accumulated FOG at least once every twenty-four (24) hours utilizing electromechanical apparatus.

(r) *Grease trap* shall mean a device typically located indoors and under the sink or in the floor, designed for separating and containing grease prior to the wastewater exiting the trap and entering the sanitary sewer system. Such devices are typically passive (gravity fed) and compact with removable baffles.

(s) *Hampton Roads Sanitation District (HRSD)* means a political subdivision of the Commonwealth of Virginia for the specific purpose of water pollution abatement in Hampton Roads by providing a system of interceptor mains and wastewater treatment plants. The district's boundaries encompass the cities of Norfolk, Chesapeake, Portsmouth, Virginia Beach, Suffolk, Hampton, Newport News, Poquoson and Williamsburg, and the counties of Gloucester, Isle of Wight, James City, and York.

(t) *Hazardous wastes* shall mean types of waste that pose threats to human health or the environment, and which require special disposal techniques to make them harmless or less dangerous.

(u) *Industrial user* or significant discharger means a source or indirect discharge, or nondomestic discharge to a treatment works.

(v) *Interference* shall mean an inhibition or disruption of the POTW, its treatment processes or operations, or its sludge processes which clearly causes, in whole or in part, a violation of any requirement of the POTW's VPDES permit, including those discharges that prevent the use of disposal of sludge by the POTW in accordance with any federal or state laws, regulations, permits or sludge management plans.

(w) *Municipality* shall mean a city, county, town, district association, authority or

other public body created under the law and having jurisdiction over disposal of sewage, industrial, or other wastes.

(x) *New source* shall have the same meaning as provided in 40 CFR part 403.3(m) (2006).

(y) *Person* shall mean any individual, firm, company, association, society, partnership, corporation, municipality, or other similar organization, agency or group.

(z) *pH* shall mean the logarithm of the reciprocal of the hydrogen ion concentration expressed in grams per liter of solution as determined by Standard Methods.

(aa) *Pollutant* shall mean any dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical waste, chemical waste, industrial waste, biological materials, radio active material, heat wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial waste, and certain characteristics of the wastewater (i.e., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, odor).

(bb) *POTW, publicly owned treatment works* shall mean any sewage treatment works that is owned by a state, regional authority, or municipality. Sewers, pipes, or other conveyances are included in this definition only if they convey wastewater to POTW providing treatment.

(cc) *Premises* means a building under one roof occupied as one residence or business, a combination of buildings in one common enclosure and occupied by one or more than one family or business or each division of a double or tenement house having a vertical partition or wall, a building of more than one apartment and having one or more entrances, or a building having a number of apartments or offices or both and having one or more entrances.

(dd) *Pretreatment standard* means any regulation containing pollutant discharge limits as defined by the Hampton Roads Sanitation District regulations.

(ee) *Public sewerage system* means pipelines or conduits, pumping stations, force mains, and all other construction, devices, and appliances appurtenant thereto, used for transference of residential, commercial or industrial sewage or wastewater or other wastes to the Hampton Roads Sanitation District.

(ff) *Public sewerage system user* means any uses falling under classifications of residential, commercial and industrial use as defined by the Hampton Roads Sanitation District regulations.

(gg) *Renderable FOG container* shall mean a closed, leak-proof container for the collection and storage of yellow grease.

(hh) *Slug discharge* shall mean any discharge at a flow rate or concentration which could cause a violation of the prohibited discharge standard in sections 39.1-4 and 39.1-23 or any discharge of a nonroutine, episodic nature, including, but not limited to, an accidental spill or a noncustomary batch discharge.

(ii) *Sewer code enforcement official* means the deputized special officer(s) who have the right to enter FSEs for the purpose of inspecting for compliance with the sewer ordinance.

(jj) *State* shall mean the Commonwealth of Virginia.

(kk) *Standard methods* shall mean the latest edition of Standard Methods for the Examination of Water and Wastewater, published by the American Public Health Association, Water Pollution Control Federation and American Water Works Association.

(ll) *Storm sewer* shall mean a sewer for conveying storm, surface, and other waters, which is not intended to be transported to a treatment works.

(mm) *Surfacewater* shall mean:

(i) All waters which are currently used, were used in the past, or may be susceptible to use in interstate or

foreign commerce, including all waters which are subject to the ebb and flow of the tide;

(ii) All interstate waters, including interstate "wetlands";

(iii) All other waters, such as inter/intrastate lakes, rivers, streams (including intermittent streams), mudflats, sand flats, "wetlands," sloughs, prairie potholes, wet meadows, playa lakes, or natural ponds, the use, degradation, or destruction of which would affect or could affect interstate or foreign commerce including any such waters:

(i) Which are or could be used by interstate or foreign travelers for recreational or other purposes;

(ii) From which fish or shellfish are or could be taken and sold in interstate or foreign commerce; or

(iii) Which are used or could be used for industrial purposes by industries in interstate commerce.

(iv) All impoundments of waters otherwise defined as surface waters under this definition;

(v) Tributaries of waters identified in subsections (i) through (iii);

(vi) The territorial sea; and

(vii) "Wetlands" adjacent to waters other than waters that are themselves wetlands, identified in subsection (iii).

(nn) *Treatment facility* shall mean only those mechanical power-driven devices necessary for the transmission and treatment of pollutants (e.g., pump stations, unit treatment processes).

(oo) *Treatment works* shall mean any devices and systems used for the storage, treatment, recycling and/or reclamation of sewage or liquid industrial waste, or other waste necessary to recycle or reuse water, including interception sewers, outfall sewers, sewage collection systems, individual systems, pumping, power and other equipment and their appurtenances, extensions, improvements, remodeling, additions, or alterations, and any works, including land that will be an integral part of the treatment process or is used for ultimate disposal of residues resulting from such treatment, or any other method or system used for preventing, abating, reducing, storing, treating, separating, or disposing of municipal waste or industrial waste, including waste in combined sewer water and sanitary sewer systems.

(pp) *VPDES* shall mean Virginia Pollutant Discharge Elimination System permit program, as administered by the commonwealth.

(qq) *Wastewater* shall mean a combination of liquid and water-carried wastes from residences, commercial buildings, industries, and institutions, together with any groundwater, surface water, or storm water that may be present.

(rr) *Yellow grease* shall mean FOG used in food preparation that have not been in contact or contaminated with other sources such as water, wastewater or solid waste. An example of yellow grease is fryer oil, which can be recycled into products such as animal feed, cosmetics and alternative fuel. Yellow grease is also referred to as renderable FOG.

(Ord. No. 44,838, § 1, 9-11-12; Ord. No. 45,034, § 1, 3-19-13)

Sec. 39.1-3. Violations of chapter generally.

(a) Any person who violates this chapter, notwithstanding any other provision to the contrary, shall, upon conviction, be guilty of a Class 1 misdemeanor. Each day's continuance of such violation shall constitute a separate offense. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the violation to correct such violation and each day's default in such correction shall constitute a violation of a separate offense under this section.

(b) Notwithstanding any other provision to the contrary, the discharging of sewage, industrial waste, or other waste into the city's public sewerage system, contrary to the provisions of this chapter, federal, state or Hampton Roads Sanitation District pretreatment requirements, or any

order of the director of utilities, shall constitute a public nuisance. The city may commence an action for appropriate removal or legal and/or equitable relief to assure the abatement of such nuisance. Any such person shall furthermore be liable for all damage, removal, loss and expense suffered or incurred by the city as a result of such violation.

(c) Failure to install or maintain wastewater utilities as shown on an approved site plan where the wastewater utilities have been reviewed and approved by the director as part of the site plan review process pursuant to the zoning ordinance shall be a violation of this chapter. Each day of violation shall constitute a separate offense.

(d) Any city law enforcement officer, duly designated sworn special police officer, the director of public health or his designee, or the fire marshal or any of his assistants, is authorized and shall have authority to enforce all provisions of this chapter.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-4. Unlawful sewer deposits generally.

(a) It shall be unlawful for any person to place or deposit any article or substance in a plumbing system that impedes or interferes with the free flow of sewage and other wastes.

(b) No discharge of any nature shall be made into the public sewerage system except through authorized connections as set forth herein or by special permit from the department of utilities.

(c) It shall be unlawful under state and federal law to discharge without a VPDES permit to any natural outlet within the city or in any area under its jurisdiction. Wastewater discharges to the city's public sewage system are not authorized unless permitted by the director of utilities in accordance with the provisions of this chapter.

(d) Except as provided in this chapter, it shall be unlawful to construct or maintain any privy, privy vault, septic tank, cesspool, or other facility intended or used for the disposal of wastewater.

(e) All discharges of stormwater, surfacewater, groundwater, roof runoff, subsurface drainage, or other waters shall be made to storm sewers or natural outlets designed for such discharges. Any connection, drain, or arrangement which will permit any such waters to enter the sanitary sewer shall be deemed to be a violation of this section and this chapter.
(Ord. No. 44, 838, § 1, 9-11-12)

ARTICLE II. MANDATORY SEWER CONNECTIONS

Sec. 39.1-5. Mandatory sewer connections.

(a) The owner of any premises or other building in which human beings live or congregate shall, when a public sewerage system is made available by the city, connect such premises or building with such public sewer line, within five (5) years after such line becomes available; provided, however, that the director of health may require connection within sixty (60) days if, in his opinion, a health hazard exists. The date of availability shall be that on which notice is given by publication or by mailing or delivering notice to the affected property owner that public sewers are accessible within two hundred (200) feet of the property line.

(b) If, within the five (5) years after notification to connect to the public sewerage system, the property owner sells the property, an escrow account shall be established by the seller, in an amount as determined by the director in accordance with section 39.1-7, for the connection of the property to the public sanitary sewer within sixty (60) days of the transfer of the property.

(c) After connection to the public sewerage system as required by this section, it shall be unlawful, unless permitted by the state or other appropriate regulatory agency, for any person to empty any sewage or residential, commercial or industrial waste into any well, septic tank, open stream or waterway, upon any other land or water or into any noncertified sewer service at any time.

(d) It shall be unlawful for any person to occupy, lease or rent any premises, unless the same is connected to the public sewerage system, if such connection is required by this section.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-6. Sewer connections outside city limits.

The director is hereby authorized, in his discretion, to permit premises or buildings located outside of and adjacent to the city limits to connect directly with the public sewerage system of the city, subject to the following provisions:

(1) That sewer service is not available from the adjacent locality and that the locality's director of utilities, or his designee, petition the Norfolk Department of Utilities to allow said premises to be connected to the Norfolk Public Sewerage System;

(2) That the existing Norfolk Public Sewerage Service to which such connection is proposed is of ample capacity to meet the present and future needs therefore;

(3) That such connection shall be made at no cost to the City of Norfolk and in a manner approved by the Norfolk Director of Utilities;

(4) That, for each single-family dwelling connected directly with the public sewerage system, the owner shall pay the City of Norfolk in advance the usual tap fee required, and will pay an assessed sewer maintenance fee the same as that fee charged to residents of Norfolk;

(5) That, in the event the aforesaid sums are not paid for any premises when and as due, or in the event the Norfolk Director of Utilities deems it necessary to protect the interests of the city, he shall have the right to disconnect such premises from the city sewer system if fees are not paid as prescribed by section 46-77 of the City Code; and

(6) All discharges by such customers not residing in Norfolk shall be made in compliance with HRSD requirements and the requirements of this chapter.

(Ord. No. 44, 838, § 1, 9-11-12)

ARTICLE III. RATES, CHARGES AND FEES

Sec. 39.1-7. Sewer connection charges.

(a) The following charges shall be made for sewer connections, from the main line to the customer's cleanout at the property line:

(1) For reconnection to a sewer service in existence and which is serviceable as determined by the director and previously in use the charge shall be two hundred fifty dollars ($250.00);

(2) For connection to a sewer service in existence but not previously in use at the time of adoption of this chapter and determined serviceable by the director, the charge shall be two hundred fifty dollars ($250.00);

(3) For a sewer installed by a developer after the adoption of this chapter, the connection charge shall be two hundred fifty dollars ($250.00);

(4) Where there is no existing sewer service connection or where any existing connection is found to be unusable, the sewer service connection charge shall be the actual cost of the connection; and

(5) For assessment connections to sewer service, the charge shall be one-half (½) of the actual cost of construction of the gravity sewer system divided by the number of platted lots at the time of construction.

(b) Prior to the installation of any new sewer service connection, or connection to an existing sewer service, the costs as defined in subsection (a)(1) through (4) above shall be deposited with the department of utilities. No sewer connections shall be made until all utilities charges and HRSD fees are paid, and the work is authorized by the department of utilities.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-8. Fees for maintenance of city sewers—Established.

(a) The fee for maintenance of city sewers, which shall also be known as the charge for wastewater, shall be two dollars seventy-eight

cents ($2.78) per one hundred (100) cubic feet for all water consumption during the period from July 1, 2007, through June 30, 2008, with annual increases of four (4) percent over the previous year's wastewater rate beginning July 1, 2007, and each July 1 thereafter, until amended.

(b) The basis for measurement shall be a sewer effluent meter, if available; if not available, the city water consumption shall be the basis for measurement.

(c) The basis for measurement for residential dwelling units that do not have a sewer effluent meter or a city water meter but who are serviced by city sewers will be a flat monthly fee equal to the annual wastewater rate multiplied by household consumption of six hundred (600) cubic feet. Each account shall also pay published service charges and utility taxes.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-9. Collection of rates, charges and fees.

The fee for sewer maintenance shall be placed on the public service bill. If the monies received in payment of the public service bill are not sufficient to cover that bill in total then service may be terminated upon delinquency.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-10. Responsibility for payment.

Payment of the fees for the maintenance of the city's public sewerage system shall be the responsibility of the person responsible for the water account.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-11. Billing.

(a) The director is hereby authorized to bill each customer for charges due the city under this article. Charges provided for by this article to customers receiving water service from the city will be included in the public service bill.

(b) The director thereof shall mail or deliver all bills for charges prescribed by this article, but failure to receive such bills shall not prevent the discontinuation of service if the amount due is not paid within the time limits set forth in this article.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-12. When due and payable; notice of delinquency.

All bills for charges prescribed by this article shall be due and payable in accordance with the provisions of section 46.1-37 of the City Code and shall be deemed delinquent when not paid by the prescribed due date.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-13. Discontinuing service for failure to pay.

(a) If, within two (2) months of the due date of a bill, all fees, charges and interest are not paid in accordance with this article of the City Code, the water supply to the premises, if furnished by the city, and/or the sewer service to the premises shall be disconnected. Such unpaid fees and charges and the penalty and interest thereon shall constitute a lien against the property, ranking on a parity with liens for unpaid taxes. If service is disconnected, arrearages, the cost of disconnection, all costs incurred in collecting the delinquent bill and a reconnection fee shall be paid prior to reestablishment of service.

(b) In the case of a premises outside the City of Norfolk connected to the Norfolk Public Sewerage System but not supplied water by Norfolk, if within two (2) months of the due date of a bill all fees, charges and interest are not paid in accordance with this article of the City Code, the sewer service to the premises shall be disconnected. If sewer service is so disconnected, arrearages, all costs incurred in collecting the delinquent bill and a reconnection fee shall be paid prior to reestablishment of service.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-14. Additional fees and charges; fees for removal of obstructions.

If the drainage or discharge from any establishment or premises causes a deposit, obstruction, or damage to any of the city's public sewerage sys-

tem facilities, which includes but is not limited to manholes, sewer lines and pump stations, and the surfaces including streets and rights-of-way above, below and around such facilities, the director shall cause the deposit or obstruction to be promptly removed or cause the damage to be promptly repaired. The cost of such work, including materials, labor, overhead and supervision, whether such work is performed by the city or by an outside contractor, shall be paid by such person causing or contributing to such deposit, obstruction, or damage, or by the owner of the premises which causes such deposit, obstruction, or damage. Payment of such cost does not relieve that person from criminal prosecution or other liability that may be imposed by this chapter or other applicable law.
(Ord. No. 44, 838, § 1, 9-11-12)

ARTICLE IV. CONDITIONS OF USE OF THE PUBLIC SEWERAGE SYSTEM

Sec. 39.1-15. Application for sewer connections.

Whenever a service connection with the city's public sewerage system is required, the owner, tenant or agent of the property to be connected with such system shall be required to make application on forms provided by the department of utilities before such service connection is made. The owner, tenant or agent must provide the location and character of the premises for which the service is to be rendered.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-16. Service agreement.

(a) Whenever public sewerage service is required or requested, an application must be submitted for service with the department of utilities which shall set forth the service and billing address.

(b) The owner of unimproved property who elected to pay the connection fees as set forth in section 39.1-7(a) shall be required to pay the minimum fees as set forth in section 39.1-8, as long as the property remains unimproved.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-17. Inspections and repairs.

(a) The director, bearing proper credentials and identification, shall be permitted to enter properties at any reasonable time for the purposes of inspection, observation, measurement and sampling and/or copying records of the wastewater discharge to ensure that discharge to the city's public sewerage system is in accordance with the provisions of this chapter.

(b) While performing the necessary work on private properties referred to in subsection (a) above, the director shall observe all city safety rules and special safety requirements as established by the owner or occupant of the property and applicable to the premises.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-18. Sewer cleanout requirements.

(a) For each connection with the city's public sewerage lines, there will be a sewer cleanout required. Sewer cleanouts are to be installed by persons with an authorized plumbing permit issued by the City's Code Official. In the judgment of the director, multiple connections may be allowed for a premises. No sewer service shall be allowed to serve more than one platted parcel of property.

(b) The location of cleanouts shall be installed and maintained at grade and shall be in front of the premises to be served, at the property line, unless the premises is bordered by city public sewerage lines other than in front of the lot or premises in which case the location shall be determined by the director.

(c) Whenever a building or premises is demolished, torn down or removed, the owner of the building or premises, at his expense, shall be required to obtain a demolition permit. The owner is responsible for all permits, capping and required inspection, by the City's Code Official, of the sanitary sewer lateral at the property line.

(d) It shall be the responsibility of the property owner to install and maintain said cleanout.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-19. Restriction on interconnection with city's utility systems; cross connection prohibited.

(a) It shall be unlawful for any opening to be left in a private sanitary sewer, or for any connection to be made with such sewer, whereby rainwater can enter, either from the building or the premises. All discharges of stormwater, surfacewater, groundwater, roof runoff, subsurface drainage, or other waters not intended to be treated in a treatment facility shall be made to storm sewers or natural outlets designed for such discharges. Any connection, drain or arrangement which will permit any such waters to enter the public sewerage system shall be deemed to be a violation of this article. Connection between water-to-air heat pumps and sanitary sewer lines is prohibited.

(b) It shall be unlawful for any person to connect any privy or flush toilet with any stormwater drainpipes, or to cause or permit any excrementitious matter to flow therein.

(c) The provisions of this section shall be administered and enforced by the City's Code Official.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-20. Authorized work related to service connections.

No person, except those duly authorized by the department of utilities, shall make any connection with any sanitary sewer lines. Those extending an existing sewer service to a premises shall obtain a plumbing permit from the City's Code Official.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-21. Protection of city's utilities.

(a) It shall be unlawful for any person in any manner to damage or obstruct or interfere with the operation of any part of the city's water or public sewerage system including any pipes, pumping station, apparatus, tools or fixtures. Only a representative of the department of utilities shall operate any valves connected with its sewer systems.

(b) If the drainage or discharge from any establishment causes a deposit, obstruction, or damage to any of the city's sewerage facilities, the director shall cause the deposit or obstruction to be promptly removed or cause the damage to be promptly repaired. The cost for such work, including materials, labor, and supervision shall be borne by the person causing such deposit, obstruction, or damage.

(c) No person shall maliciously, willfully, or negligently break, damage, destroy, uncover, deface, or tamper with any structure, appurtenance or equipment which is a part of the city's public sewerage system.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-22. Liability of city for restricting water and sewer service.

The city shall not be liable for any damage resulting from the bursting of any water main, service pipe or cock, from the cutting off of water for repairs, extensions or connections, or from the accidental failure of the water supply from any cause whatsoever. Neither shall the city be liable for any damage resulting from the restriction of sewage flows due to sewer stoppage or any other failure of the system components such as pumping stations, manholes or collection lines. In cases of emergency, the city shall have the right to restrict the use of public sewerage facilities in any reasonable manner for the protection of the citizenry, water supply and utility systems.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-23. Restricted discharges.

(a) No person shall discharge or cause to be discharged to any city's public sewerage system substances subject to an applicable categorical pretreatment standard promulgated by EPA in excess of the quantity prescribed in such applicable pretreatment standards. Compliance with such applicable pretreatment standards shall be within three (3) years of the date the standard is promulgated, provided, however, compliance with a categorical pretreatment standard for new sources shall be required upon commencement of discharge to the public sewage system.

(b) No person shall discharge trucked hazardous wastes to the city's public sewage system.

(c) No person shall discharge or cause to be discharged to any of the city's public sewerage system any substances, materials, waters or wastes in such quantities or concentrations contrary to the regulations of the Hampton Roads Sanitation District which do or are likely to:

(i) Create a fire or explosion hazard including, but not limited to, gasoline, benzene, naphtha, fuel oil, or other flammable or explosive liquid, solid, or gas; waste stream with a closed cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Centigrade using test methods specified in 40 CFR 261.21;

(ii) Cause corrosive damage or hazard to structures, equipment, or personnel of the wastewater facilities, having a PH lower than 5.0 or greater than 11.0;

(iii) Cause obstruction to the flow in sewers, or other interference with the operation of treatment facilities due to accumulation of solid or viscous materials;

(iv) Constitute a rate of discharge or substantial deviation from normal rates of discharge, ("slug discharge"), sufficient to cause interference in the operation and performance of the public sewerage system and/or treatment facilities;

(v) Contain heat in amounts which are likely to accelerate the biodegradation of wastes, causing the formation of excessive amounts of hydrogen sulfide in the public sewerage system and/or treatment works or inhibit biological activity in the treatment facilities, but in no case shall the discharge of heat cause the temperature in the city's wastewater sewer to exceed sixty-five (65) degrees C (one hundred fifty (150) degrees F) or the temperature of the influent to the treatment facilities to exceed forty (40) degrees C (one hundred four (104) degrees F) unless the facilities can accommodate such heat and the city has obtained prior approval from the approval authority;

(vi) Contain more than one hundred (100) milligrams per liter of nonbiodegradable oils of mineral or petroleum origin;

(vii) Contains oils, fat, or grease;

(viii) Contain noxious gases, vapors or fumes, malodorous gas or substance in quantities that may cause a public nuisance or cause acute human or safety problems;

(ix) Contain radioactive wastes in harmful quantities as defined by applicable state and federal regulations;

(x) Contain any garbage that has not been properly shredded to pass through a ⅜ inch screen or sieve;

(xi) Contain any odor- or color-producing substances exceeding concentration limits which may be established by the director of utilities.

(xii) Contain petroleum oil, nonbiodegradable cutting oil or products of mineral oil origin in amounts that will cause interference or pass through;

(xiii) Contain any trucked or hauled pollutants except at designated discharge points;

(d) If, in establishing discharge restrictions, discharge limits, or pretreatment standards pursuant to this chapter, the director of utilities establishes concentration limits to be met by a user, the director of utilities in lieu of concentration limits, may establish mass limits of comparable stringency for an individual user at the request of such user. Upon approval by the state, such limits should become pretreatment standards.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-24. Industrial discharges.

(a) The department of utilities shall approve the amount of discharge allowable by industrial users by issuance of a permit. The discharge shall also meet the requirements of the HRSD industrial discharge regulations.

(b) The industrial discharger shall submit a spill prevention plan to the department of utilities to prevent or mitigate spills or overflows caused by an industrial discharge. The spill prevention plan shall contain the following items:

(i) Measurement of pollutants in the waste stream,

(ii) Standard operating procedure to prevent an industrial spill, slug discharge, or overflow,

(iii) Standard operating procedure to respond to an industrial spill, slug discharge, or overflow,

(iv) Twenty-four-hour, three-hundred-sixty-five-day-a-year responder contact and number, and

(v) Listing of equipment or contractors who will respond to a spill, slug discharge, or overflow.

(c) All compliance reports, testing and schedules furnished in accordance with the HRSD industrial discharge regulations shall also be provided to the department of utilities for review.

(d) The department of utilities reserves the right to fine, restrict, condition, or deny industrial discharges if the discharger is found not to be in compliance with the requirements of the HRSD industrial discharge regulations.

(e) The department of utilities reserves the right to sample any industrial discharges and shall be permitted on the industrial users' property for the purpose of taking industrial waste samples.

(f) Pretreatment of industrial wastes shall be as required by the HRSD industrial discharge regulations and any further requirements as determined by the department of utilities to control fats, oils and grease.
(Ord. No. 44, 838, § 1, 9-11-12)

Sec. 39.1-25. Violations of industrial discharges.

Violators of section 39.1-24 shall be subject to penalties as outlined in section 39.1-3 including termination of water and wastewater services.
(Ord. No. 44, 838, § 1, 9-11-12)

ARTICLE V. FATS, OILS, AND GREASE (FOG), FOG MANAGEMENT PROGRAM

Sec. 39.1-26. Purpose.

The purpose of this article is to aid in preventing the introduction and accumulation of fats, oils, and grease into the city's sanitary sewer system that may contribute to sanitary sewer blockages and obstructions. Food service establishments, grease haulers and other industrial or commercial establishments generating or collecting wastewater containing fats, oils, and grease are subject to this chapter. This article regulates such users by requiring that grease control devices and other approved strategies be installed, implemented and maintained in accordance with the provisions of this article and other applicable requirements of the City of Norfolk.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-27. Application.

The FOG management program shall apply to all food service establishment within the City of Norfolk and to all grease haulers providing services to any such food service establishment.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-28. FOG discharge limitations.

No person shall discharge or cause to be discharged from any food service establishment any wastewater with FOG in concentrations or quantities that will damage the sewers or sanitary sewer system, as determined by Section 301 D of the Hampton Roads Sanitation District's Industrial Wastewater Discharge Regulations, as periodically amended.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-29. Grease control devices.

Except as provided in section 39.1-30 through 39.1-32 of this chapter, food service establishments hall be required to install, operate and maintain all grease control devices CDs in compliance with this article, Virginia Uniform Statewide Building Code or its successors, and the Norfolk Technical Standards for Sizing of Grease

Control Devices. Grease control devices shall be installed and registered prior to the issuance of a certificate of occupancy.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-30. Existing establishments.

Existing food service establishments in operation as of the effective date of this article shall be allowed to operate and maintain their existing grease control devices, provided such grease control devices are in proper operating condition and not found to be contributing FOG. If its grease control device is determined to be contributing FOG into the sanitary sewer system, the offending food service establishment shall comply with the requirements of section 39.1-29 of this article.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-31. Retrofitting.

Existing food service establishment may be required to install or upgrade a GCD if such FSE is contributing FOG to the sanitary sewer system, as determined by the City of Norfolk and/or HRSD. The installation or upgrade of grease control devices shall meet the requirements of section 39.1-29 of this article. Such devices shall be registered with the municipality within thirty (30) days of installation.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-32. Installation of grease control devices.

Grease control devices shall be installed by a plumber licensed in the Commonwealth of Virginia. Prior to installation of grease control devices a permit is required to be obtained in accordance with the Virginia Uniform Statewide Building Code or its successor and the Norfolk Technical Standards for Sizing of Grease Control Devices. Every GCD shall be installed and connected so that it may be readily accessible for inspection, cleaning, and removal of the intercepted food waste and grease at any time.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-33. Registration, waste manifest, requirements and notification.

(a) All food service establishments shall be required to complete the grease control device registration form. Registrations shall be on forms provided by the department of utilities to ensure that such devices are properly sized and maintained, as well as to facilitate inspection in accordance with the requirements established herein.

(b) Existing food services establishments shall complete the grease control device registration form within ninety (90) days of the adoption of this chapter. New establishments shall register when setting up their water and sewer service or prior to obtaining a certificate of occupancy.

(c) All grease haulers, owners, or employees servicing grease control devices for food services establishments within the City of Norfolk shall be required to obtain a certification to service grease control devices from the Hampton Roads FOG regionally-approved training program provided by the Hampton Roads Planning District Commission (HRPDC).

(d) All grease haulers shall obtain the required permits, certifications and or approvals from the facility in which waste will be disposed of. Grease haulers discharging to a Hampton Roads Sanitation District (HRSD) treatment plant shall be approved through the HRSD Indirect Wastewater Discharge Permit.

(e) Food service establishments shall have a current employee/staff/volunteer that has successfully completed the Hampton Roads FOG regionally-approved Best Management Practices training program provided by the HRPDC.

(f) All food service establishments shall be required to maintain on site and make available for copying all waste manifests associated with the disposal of grease to the department of utilities.

These records shall remain available for a period of at least three (3) years.

(g) Grease haulers shall retain and make available for inspection and copying, all records related to grease interceptor pumping and waste disposal from businesses located in the City of Norfolk wastewater service area. Records shall include waste manifests that, at a minimum, include time, date and volume of waste removed from the device and the time, date, volume and

destination of the waste disposed. These records shall remain available for a period of at least three (3) years.

(h) All grease haulers shall notify the City of Norfolk within twenty-four (24) hours of any incident, within the limits of the City of Norfolk, required to be reported to the Virginia Department of Environmental Quality.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-34. Maintenance of grease control devices.

(a) All grease control devices shall be maintained at the owner's expense. Maintenance shall include the complete removal of all contents, including floating material, wastewater and settled solids. Decanting or discharging of removed waste back into the grease interceptor or private sewer line or into any portion of the City of Norfolk or HRSD's sanitary sewer system is prohibited.

(b) Grease interceptors shall be pumped out completely when the total accumulation of FOG, including floating solids and settled solids, reaches twenty-five percent (25%) of the overall liquid volume. At no time shall a grease control device be cleaned less frequently than once every three (3) months unless allowed by the director for good cause shown. Approval will be granted on a case-by-case basis upon submittal of a request by the food service establishment, documenting reasons for the proposed frequency variance.

(c) Grease traps and grease removal devices shall be opened, inspected and completely cleaned of food solids and FOG a minimum of once per week, unless allowed by the director for good cause shown. Approval will be granted on a case-by-case basis upon submittal of a request by the food service establishment documenting reasons for the proposed frequency variance. In no event shall the content of food solids and FOG exceed twenty-five percent (25%) of the overall liquid depth of the device.

(d) The director of utilities may establish a more frequent cleaning schedule if the food service establishment is found to be contributing FOG in quantities sufficient to cause line stoppages or to necessitate increased maintenance of the sanitary sewer system.

(e) The use of additives by food service establishment including, but not limited to, products that contain solvents, emulsifiers, surfactants, caustics, acids, enzymes or bacteria are prohibited for use as grease management control; provided, however, that additives may be used to clean the food service establishment drain lines so long as the usage of such additives will not cause FOG to be discharged from the grease control device to the sanitary sewer system. The use of additives shall not be substituted for the maintenance procedures required by this chapter.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-35. Inspection of grease control devices.

The director shall have the right of entry into any food service establishment for the purpose of making inspections, observation, measurements, sampling, testing or records review of the sanitary sewer system and grease control devices installed in such building or premise to ensure that the food service establishment is in compliance with this division. The owner or occupant may accompany the director. Operational changes, maintenance and repairs required by the director shall be implemented as noted in the written notice received by the food service establishment.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-36. Recordkeeping.

(a) Food service establishments shall retain and make available for inspection and copying records of all cleaning, maintenance and disposal (waste manifests) for the previous three (3) years for all grease control devices. Cleaning and maintenance records shall include, at a minimum, the dates of cleaning/maintenance, the names and business addresses of the company or person performing each cleaning/maintenance, the volume of waste removed in each cleaning, the transporter and the disposal site. Such records shall be kept on site and shall be made immediately available to the sewer code enforcement

official of the department of utilities upon request. This includes grease that is donated, sent for recycling or any other form of disposal.

(b) Food service establishments shall retain and make available for inspection and copying records of yellow grease disposal for the previous three (3) years. Yellow grease disposal logs shall include, at a minimum, the dates of disposal, name and business address of the company or person performing the disposal and the volume of yellow grease removed in each cleaning. Such records shall be kept on site and shall be made immediately available to the sewer code enforcement official. This includes grease that is donated, sent for recycling or any other form of disposal.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-37. FOG program compliance.

Compliance with the requirements of the FOG program is mandatory for all food service establishments within the City of Norfolk and may require existing food service establishments to modify or repair any noncompliant GCD and appurtenances as noted in the written notice received by the food service establishment.
(Ord. No. 44, 838, § 2, 9-11-12)

Sec. 39.1-38. Fees.

Fees provided for in this article are separate and distinct from all other fees chargeable by the City of Norfolk. There will be no initial inspection fee. Re-inspection fees shall be in the amount of fifty dollars ($50.00) and shall be due upon invoice by the City of Norfolk.
(Ord. No. 44, 838, § 2, 9-11-12)

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Chapter 39.2

SEWER USE–PRIVATE*

§ 39.2-1. Violations of chapter
§ 39.2-2. Adoption of regulations.
§ 39.2-3. Design standards; drainage easements.
§ 39.2-4. Maintenance.
§ 39.2-5. Unlawful sewage discharges.
§ 39.2-6. Correction of violation.

Sec. 39.2-1. Violations of chapter.

Any person violating any provision of this chapter shall be guilty of a Class 3 misdemeanor. Each day's continuance of such violation shall constitute a separate offense. This chapter shall be enforced by the department of health. (Ord. No. 36,176, § 1, 8-28-90)

Sec. 39.2-2. Adoption of regulations.

The Commonwealth of Virginia, State Board of Health, *Sewage Handling and Disposal Regulations*, 1988, as amended, and as hereinafter supplemented in this chapter, are hereby adopted as the private sewer disposal regulations for the City of Norfolk. A copy of the regulations shall be kept on file at all times in the offices of the city clerk and the department of health. (Ord. No. 36,176, § 1, 8-28-90)

Sec. 39.2-3. Design standards; drainage easements.

The permit required by the regulations shall specify the design standards for the septic tank or other system, such as tank size, length of drainfield, location of tank, drainfield and well, where applicable, and such other facilities as may be required under rules and criteria of the health department. A reserve sewage disposal site with a capacity at least equal to that of the primary sewage disposal site shall be provided. This requirement shall not apply to any lot or parcel recorded prior to October 1, 1989, if such lot or parcel is not sufficient in capacity to accommodate a reserve sewage disposal site, as determined by the health department. Building or construction of any impervious surface shall be prohibited on the area of all sewage disposal sites. Where grading and drainage improvements are required under rules and criteria of the health department, the permit shall so stipulate. The director of the department of health shall require such drainage easements and other assurances as he deems adequate to guarantee the perpetual maintenance of such drainage improvements. (Ord. No. 36,176, § 1, 8-28-90)

Sec. 39.2-4. Maintenance.

All on-site sewage disposal systems not requiring a Virginia Pollution Discharge Elimination System (VPDES) permit shall be pumped out at least once every five (5) years in accordance with state and local law and Hampton Roads Sanitation District requirements. It shall be unlawful for any person to fail, neglect or refuse to maintain or cause to be maintained any septic tank or other sewage disposal system, including associated drainage improvements, in the manner specified in the permit issued under this chapter and in a manner satisfactory to the director of the health department. All duties and responsibilities of any person for whose property a permit is issued under this chapter shall be binding upon any and all subsequent owners of such property for as long as the septic tank or sewage disposal system remains in service. (Ord. No. 36,176, § 1, 8-28-90)

*Cross references–Buildings and building regulations, Ch. 11.1, food and food establishments, Ch. 18; site plan review, Ch. 32.2; sewer use, public, Ch. 39.1; streets and sidewalks, Ch. 42; subdivisions, Ch. 42.5; trailer coaches and trailer coach parks, Ch. 44; waster supply, Ch. 46; zoning, App. A.

Sec. 39.2-5. Unlawful sewage discharges.

(a) It shall be unlawful for any person in any manner to discharge, cause to be discharged or allow to be discharged, or allow or cause to accumulate any sewage, as defined in the regulations, on any public or private property within the city.

(b) It shall be the duty of the director of the department of health or his authorized agent to direct, by written notice, the person who is responsible for the discharge or accumulation, the owner, agent, or occupant, to cause such matter to be removed, or the conditions corrected, on such property within forty-eight (48) hours. (Ord. No. 36,176, § 1, 8-28-90)

Sec. 39.2-6. Correction of violation.

If, upon any inspection, the director of the health department or his authorized agent shall find any violation of this chapter or the provisions of the permit issued under it, he shall direct the person to whom the permit was issued, by written notice, to make the necessary corrections, within such reasonable time as shall be specified therein. When it comes to the knowledge of the director of the health department that any sewage system is causing an offensive or unwholesome condition, the director shall serve notice upon the owner of the property, the person who created or maintained the offensive or unwholesome condition, or the occupant of the land or premises, to cause the offensive or unwholesome condition to be abated in conformance with sections 27-4 through 27-6 of the City Code. (Ord. No. 36,176, § 1, 8-28-90)

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Chapter 39.5

SMOKING*

§ 39.5-1. Purpose and intent.
§ 39.5-2. Definitions.
§ 39.5-3. Smoking prohibited in certain public places.
§ 39.5-4. Regulation of smoking in restaurants.
§ 39.5-5. Where smoking not regulated.
§ 39.5-6. Posting requirements.
§ 39.5-7. Regulation of smoking by private employers.
§ 39.5-8. Governmental agency cooperation.
§ 39.5-9. Violations and penalties.
§ 39.5-10. Enforcement.
§ 39.5-11. Other applicable laws.
§ 39.5-12. Validity; severability.

*__Editor's note—__Ord. No. 43,697, § 1, adopted Dec. 15, 2009, amended Ch. 39.5 in its entirety and enacted similar provisions as set out herein. The former Ch. 39.5 derived from Ord. No. 43,034, § 1, adopted March 25, 2008.

__Cross references—__Smoking prohibited areas in airports, § 4-68; smoking restrictions during fueling or defueling of aircraft, § 4-126; smoking in auditorium of theater or other public building, § 17.1-11.

Sec. 39.5-1. Purpose and intent.

The purpose and intent of this chapter is to promote the public health, safety and general welfare by prohibiting smoking in public places, except in designated areas, and to strike a reasonable balance between the desires of smokers and the health of nonsmokers and the public generally.
(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-2. Definitions.

The words and phrases set forth in this section shall, for the purposes of this chapter, have the meanings respectively ascribed to them in this section:

Bar or lounge area means any establishment or portion of an establishment devoted to the sale and service of alcoholic beverages for consumption on the premises and where the sale or service of food or meals is incidental to the consumption of the alcoholic beverages.

Educational facility means any building used for instruction of enrolled students, including, but not limited to, any day care center, nursery school, public or private school, college, university, medical school, law school, or career and technical education school.

Health care facility means any institution, place, building, or agency required to be licensed under Virginia law, including, but not limited to, any hospital, nursing facility or nursing home, boarding home, assisted living facility, supervised living facility, or ambulatory medical and surgical center.

Private club means an organization, whether incorporated or not, that:

(i) Is the owner, lessee, or occupant of a building or portion thereof used exclusively for club purposes, including club- or member-sponsored events;

(ii) Is operated solely for recreational, fraternal, social, patriotic, political, benevolent, or athletic purposes, and only sells alcoholic beverages incidental to its operation;

(iii) Has established bylaws, a constitution, or both that govern its activities; and

(iv) The affairs and management of which are conducted by a board of directors, executive committee, or similar body chosen by the members at an annual meeting.

Private function means any gathering of persons for the purpose of deliberation, education, instruction, entertainment, amusement, or dining that is not intended to be open to the public and for which membership or specific invitation is a prerequisite to entry.

Private work place means any office or work area that is not open to the public in the normal course of business except by individual invitation.

Proprietor means the owner or lessee of the public place who ultimately controls the activities within the public place. The term "proprietor" includes corporations, associations, or partnerships as well as individuals.

Public conveyance or *public vehicle* means any air, land, or water vehicle used for the mass transportation of persons in intrastate travel for compensation, including, but not limited to, any airplane, train, bus, or boat that is not subject to federal smoking regulations.

Public place means any enclosed, indoor area used by the general public, including but not limited to any building owned or leased by the commonwealth or any agency thereof or any locality, public conveyance or public vehicle, educational facility, hospital, nursing facility or nursing home, other health care facility, library, retail store of fifteen thousand (15,000) square feet or more, auditorium, arena, theater, museum, concert hall, or other area used for a performance or an exhibit of the arts or sciences, or any meeting room.

Recreational facility means any enclosed, indoor area used by the general public and used as a stadium, arena, skating rink, video game facility, or senior citizen recreational facility.

Restaurant means any place where food is prepared for service to the public on or off the premises, or any place where food is served. Examples of such places include, but are not

limited to, lunchrooms, short-order places, cafeterias, coffee shops, cafes, taverns, delicatessens, dining accommodations of public or private clubs, kitchen facilities of hospitals and nursing homes, dining accommodations of public and private schools and colleges, and kitchen areas of local correctional facilities subject to standards adopted under Code of Virginia § 53.1-68. "Restaurant" shall not include:

(i) Places where packaged or canned foods are manufactured and then distributed to grocery stores or other similar food retailers for sale to the public,

(ii) Mobile points of service to the general public that are outdoors, or

(iii) Mobile points of service where such service and consumption occur in a private residence or in any location that is not a public place.

"Restaurant" shall include any bar or lounge area that is part of such restaurant.

Smoke or *smoking* means the carrying or holding of any lighted pipe, cigar, or cigarette of any kind, or any other lighted smoking equipment, or the lighting, inhaling, or exhaling of smoke from a pipe, cigar, or cigarette of any kind.

Theater means any indoor facility or auditorium, open to the public, which is primarily used or designed for the purpose of exhibiting any motion picture, stage production, musical recital, dance, lecture, or other similar performance.
(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-3. Smoking prohibited in certain public places.

(a) Smoking shall be prohibited in the following public places:

(1) Educational facilities, with the exception of public meeting rooms during times when they are being used for private functions;

(2) School buses and public conveyances;

(3) Elevators, regardless of capacity, except in any open material hoist elevator not intended for use by the general public;

(4) The interior of any public elementary, intermediate, and secondary school;

(5) Hospital emergency rooms;

(6) Local or district health departments;

(7) Polling rooms;

(8) Indoor service lines and cashier lines;

(9) Public restrooms in any building owned or leased by the commonwealth or any agency thereof or any health care facility; and

(10) The interior of any child day center licensed pursuant to state regulations that is not also used for residential purposes.

(b) Those persons with the authority to manage the operation of the following places shall designate a no-smoking area of reasonable size, considering the nature of the use and the size of the building, in which smoking shall be prohibited:

(1) Retail and service establishments of fifteen thousand (15,000) square feet or more serving the general public, including, but not limited to, department stores, grocery stores, drug stores, clothing stores, shoe stores, hardware stores, financial institutions, hair salons and barbershops;

(2) Health care facilities;

(3) Rooms in which a public meeting or hearing is being held;

(4) Places of entertainment and cultural facilities, including, but not limited to, theaters, concert halls, gymnasiums, auditoriums, other enclosed arenas, art galleries, libraries, and museums;

(5) Indoor facilities used for recreational purposes;

(6) Bowling alleys, provided that any bowling alley that is also a restaurant shall also comply with the regulations of section 39.5-4, below;

(7) Bingo halls;

(8) Public transportation waiting rooms including, but not limited to, waiting rooms of bus, train, airport and other transit terminals and stations; and

(9) Buildings owned or leased by the commonwealth, any agency thereof, or the city.

(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-4. Regulation of smoking in restaurants.

(a) Smoking shall be prohibited in any restaurant.

(b) Notwithstanding the prohibition set forth in subsection (a), above, a proprietor may permit smoking in the following places, provided that certain requirements are met:

(1) Any place where food is prepared or stored for distribution to persons of the same or a related business operation for service to the public at some other location, such as preparation or storage facilities used by catering services, pushcarts, hotdog stands, and other mobile food vendors;

(2) Any outdoor area of a restaurant, with or without roof covering, whenever the area is not enclosed, in whole or in part, by any screened walls, roll-up doors, windows, or other seasonal or temporary enclosures;

(3) Any restaurants located on the premises of any manufacturer of tobacco products; and

(4) Any portion of a restaurant that is constructed in such a manner that the area where smoking may be permitted satisfies all of the following criteria:

a. The portion is structurally separated from all areas of the restaurant where smoking is prohibited and to which ingress and egress to said portion is only available through a single door that cannot be propped open;

b. The portion is separately vented to prevent the recirculation of air from such portion to any area of the restaurant where smoking is prohibited; and

c. At least one public entrance to the restaurant shall be into an area of the restaurant where smoking is prohibited, provided that such public entrance shall not be through any outdoor area where smoking is permitted in accordance with subsection (b)(2), above, unless such entrance was the only public entrance to the restaurant in existence as of December 1, 2009.

(c) The proprietor of any restaurant shall remove all ashtrays and other smoking paraphernalia from any area in the restaurant where smoking is prohibited in accordance with this chapter.

(d) No proprietor of any restaurant shall require any individual who is wait staff or bus staff to work in any portion of the restaurant where smoking may be permitted without the prior consent of such individual.

(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-5. Where smoking not regulated.

This chapter is not intended to prohibit smoking in the following places under the following conditions:

(a) Assembly rooms while being used for private functions;

(b) Private work places, although it is possible that an employer may prohibit smoking, in accordance with section 39.5-7, below;

(c) Areas of enclosed shopping centers or malls that are external to the retail stores therein, are used by customers as a route of travel from one store to another, and that consist primarily of walkways and seating arrangements; or

(d) Lobby areas of hotels, motels, and other establishments open to the general public for overnight accommodation.

(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-6. Posting requirements.

(a) The proprietor or other person in charge of a space subject to the provisions of this chapter, with the exception of any proprietor of a restaurant, shall post signs conspicuous to public view

stating "Smoking Permitted" or "No Smoking," in accordance with the applicable provisions of this chapter.

(b) The proprietor of any restaurant shall post signs stating "No Smoking" or containing the international "No Smoking" symbol, consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a bar across it, clearly and conspicuously in every restaurant where smoking is prohibited by the provisions of this chapter.
(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-7. Regulation of smoking by private employers.

(a) Private employers may regulate smoking in the private workplace in whatever manner they deem appropriate, provided the following circumstances apply:

(1) If the designation of smoking and no-smoking areas is the subject of a written agreement between the employer and his employees, the provisions of the written agreement shall control such designation; and

(2) A total ban on smoking in any workplace shall only be enforced by the employer upon an affirmative vote of a majority of the affected employees voting, unless such ban is the subject of a contract of employment between the employer and the employees as a prior condition of employment.

(b) The provisions of this section shall not affect any no-smoking policies established by employers prior to December 1, 2009.
(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-8. Governmental agency cooperation.

The city manager or his designated representative shall request other governmental and educational agencies having offices within the city to establish local operating procedures in cooperation and compliance with this chapter. In federal, state and special governmental offices within the city, the city manager or his designated representative shall urge the enforcement of their existing smoking prohibitions and request voluntary compliance with this chapter.
(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-9. Violations and penalties.

(a) It shall be unlawful for any person who owns, manages, operates or otherwise controls the use of any premises subject to the prohibitions or restrictions of this chapter to fail to comply with its provisions.

(b) It shall be unlawful for any person to smoke in any area prohibited or restricted by the provisions of this chapter.

(c) Any person violating any provision of this chapter or failing to comply with any requirement of this chapter shall be guilty of a class 4 misdemeanor.
(Ord. No. 43,697, § 1, 12-15-09)

Cross reference—Classification of and penalties for violations, § 1-11.

Sec. 39.5-10. Enforcement.

The provisions of this chapter may be enforced by the Norfolk Department of Public Health and by any law-enforcement officer.
(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-11. Other applicable laws.

This chapter shall not be interpreted or construed to permit smoking where it is otherwise prohibited or restricted by other applicable laws.
(Ord. No. 43,697, § 1, 12-15-09)

Sec. 39.5-12. Validity; severability.

The provisions of this chapter are hereby declared to be severable. If any part, section, provision, exception, sentence, clause, phrase, or the application thereof to any person or circumstance for any reason be adjudged to be invalid, the remainder of the chapter shall remain in full force and effect and its validity shall not be impaired, it being the legislative intent now hereby declared that this would have been adopted even if such invalid matter had not been included therein, or if such application had not been made.
(Ord. No. 43,697, § 1, 12-15-09)

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Chapter 40

SOLICITORS AND SOLICITATIONS*

Article I. In General

§§ 40-1—40-14. Reserved.

Article II. Charitable Solicitations

§ 40-15. Definitions.
§ 40-16. Exemptions from certain provisions of article.
§ 40-17. American Red Cross exempt from article.
§ 40-18. Reciprocal agreements with other municipalities.
§ 40-19. Article does not authorize unlawful acts or omissions or decrease liability imposed by law.
§ 40-20. Appeals from orders under article.
§ 40-21. Investigations to enforce article.
§ 40-22. Penalty for violations of article.
§ 40-23. Actions to enjoin violations of article.
§ 40-24. Registration of organizations.
§ 40-25. Reports by organizations with no local office, which solicit solely by telephone, mail, etc.
§ 40-26. Publication of warning as to unregistered organizations.
§ 40-27. Records to be kept by organizations.
§ 40-28. Contracts between organizations and fund-raising counsels and professional solicitors.
§ 40-29. Limitation on compensation of professional solicitors.
§ 40-30. Statements, reports, contracts, etc., filed under article constitute public records; charge for copies thereof.
§ 40-31. False or misleading information in statements or reports required by article.
§ 40-32. Receipt required for certain contributions.
§ 40-33. Soliciting without authority from organization.
§ 40-34. Soliciting by certain persons prohibited.
§ 40-35. Soliciting for benefit of nonresident who fails to supply information to commissioner.
§ 40-36. Misleading solicitations generally.
§ 40-37. Misrepresentations as to sponsors, endorsers, etc.
§ 40-38. Misrepresentations as to income tax deductions.

*Cross references—Solicitation of funds at airport, § 4-7; soliciting in cemeteries, § 12-29; solicitation at civic facilities, § 13-87; soliciting in parks, § 30-75; solicitation of funds in Town Point Park, § 30-264; solicitation of funds on pedestrian malls, § 31-24; solicitations prohibited on certain streets and sidewalks, § 42-15; begging on streets, § 42-16.

ARTICLE I. IN GENERAL

Secs. 40-1—40-14. Reserved.

ARTICLE II. CHARITABLE SOLICITATIONS*

Sec. 40-15. Definitions.

(a) *Generally.* For the purposes of this article, certain words and phrases shall have the meanings ascribed to them by this section.

(b) *Charitable organization* means any organization which is, or holds itself out to be, organized or operated for any charitable purpose, or any organization which solicits contributions from the public or obtains contributions from the public. This definition shall not be deemed to include any church, or convention or association of churches, primarily operated for nonsecular purposes and no part of the net income of which inures to the direct benefit of any individual; nor shall it include any political party, as defined in section 24.1-1 of the Code of Virginia, or any political committee required by local, state or federal law to file a report or statement of contributions and expenditures; nor shall it include any labor union registered under section 40.1-76 of the Code of Virginia, or any trade association; nor shall it include any authorized individual who solicits, by authority of such organization, solely on behalf of a registered or exempt charitable organization or on behalf of an organization excluded from the definition of charitable organization.

(c) *Charitable purpose* means any charitable, benevolent, humane, philanthropic or eleemosynary purpose and the purpose of influencing legislation or influencing the actions of any public official or instigating, prosecuting or intervening in litigation.

(d) *Commissioner* means the commissioner of the revenue or a member of his staff to whom he may delegate his duties under this article.

(e) *Contribution* means and includes any gift, bequest, devise or other grant or any money, credit, financial assistance or property of any kind of value, including the promise to contribute; except payments by the membership of an organization for membership fees, dues, fines or assessments, or for services rendered to individual members; and except money, credit, financial assistance or property received from any governmental authority. The term "contribution" shall not include any donation of blood or any gift made pursuant to the Uniform Anatomical Gift Act.

(f) *Federated fund-raising organization* means any federation of independent charitable organizations which have voluntarily joined together, including, but not limited to, a United Fund or Community Chest, for purposes of raising and distributing money for and among themselves, and where membership does not confer operating authority and control of the individual agencies upon the federated group organization.

(g) *Fund-raising expenses* are the expenses of all activities that constitute or are an integral and inseparable part of a solicitation.

(h) *Membership* means those persons to whom, for payment of fees, dues, assessments, etc., an organization provides services and confers a bona fide right, privilege, professional standing, honor or other direct benefit, in addition to the right to vote, elect officers or hold offices. The term "membership" shall not include those persons who are granted a membership upon making a contribution as the result of solicitation.

(i) *Parent organization* means that part of a charitable organization which coordinates, supervises or exercises control over policy, fund raising and expenditures, or assists or advises one or more chapters, branches or affiliates.

*State law references—Solicitations by charitable organizations, Code of Virginia, §§ 57-48—57-69; local ordinances governing such solicitations, § 57-63.

(j) *Person* means any individual, organization, trust, foundation, association, partnership, corporation, society or other group or combination acting as a unit.

(k) *Professional fund-raising counsel* means any person who, for a flat, fixed fee under a written agreement, plans, conducts, manages, carries on, advises or acts as a consultant, whether directly or indirectly, in connection with soliciting contributions for or on behalf of any charitable organization, but who actually solicits no contributions as part of such services. A bona fide salaried officer or employee of a registered or exempt charitable organization or of a registered parent organization shall not be deemed to be a professional fund-raising counsel.

(l) *Professional solicitor* means any person who, for a financial or other consideration, solicits contributions for or on behalf of a charitable organization, whether such solicitation of contributions is performed personally or through his agents, servants or employees or through agents, servants or employees specially or employed by or for a charitable organization, who are engaged in the solicitation of contributions under the direction of such person; or any person who, for a financial or other consideration, plans, conducts, manages, carries on, advises or acts as a consultant to a charitable organization in connection with the solicitation of contributions, but does not qualify as a professional fund-raising counsel. A bona fide salaried officer or employee of a registered or exempt charitable organization or of a registered parent organization shall not be deemed a professional solicitor.

(m) *Sale, sell and sold* means the transfer of any property or the rendition of any service to any person in exchange for consideration, including any purported contribution without which such property would not have been transferred or such services would not have been rendered.

(n) *Solicit* and *solicitation* means the request or appeal, directly or indirectly, for any contribution on the plea or representation that such contribution will be used for a charitable purpose, including without limitation, the following methods of requesting such contribution:

(1) Any oral or written request;

(2) Any announcement to the press, over the radio or television, or by telephone or telegraph, concerning an appeal or campaign to which the public is requested to make a contribution for any charitable purpose connected therewith.

(3) The distribution, circulation, posting or publishing of any handbill, written advertisement or other publication which, directly or by implication, seeks to obtain public support;

(4) The sale of, or any offer or attempt to sell, any advertisement, advertising space, subscription, ticket or any service or tangible item in connection with which any appeal is made for any charitable purpose; or where the name of any charitable organization is used or referred to in any such appeal as an inducement or reason for making any such sale; or when or where, in connection with any such sale, any

statement is made that the whole or any part of the proceeds from any such sale will be donated to any charitable purpose.

"Solicitation," as defined herein, shall be deemed to occur when the request is made, at the place the request is received, whether or not the person making the same actually receives any contribution. (Code 1958, § 44.1-1)

State law reference—Similar provisions, Code of Virginia, § 57-48.

Sec. 40-16. Exemptions from certain provisions of article.

(a) The following shall be exempt from the registration requirements of section 40-24 and the requirements of section 40-27, but shall otherwise be subject to the provisions of this article:

(1) Educational institutions that are recognized by the superintendent of public instruction or that are accredited by a regional accrediting association or by an organization affiliated with the National Commission on Accrediting; any foundation having an established identity with any of the aforementioned educational institutions; and any other educational institution confining its solicitation of contributions to its student body, alumni, faculty and trustees, and their families.

(2) Persons requesting contributions for the relief of any individual specified by name at the time of the solicitation, when all of the contributions collected, without any deductions whatsoever, are turned over to the named beneficiary for his use.

(3) Charitable organizations which do not intend to solicit and receive during a calendar year, and have not actually raised or received during any of the three (3) next preceding calendar years, contributions from the public in excess of two thousand dollars ($2,000.00), or which do not receive contributions from more than ten (10) persons during a calendar year, if all of their functions, including fund-raising activities, are carried on by persons who are unpaid for their services and if no part of their assets or income inures to the benefit of or is paid to any officer or member. Nevertheless, if the contributions raised from the public, whether all of such is or is not received by any charitable organization during any calendar year, shall be in excess of two thousand dollars ($2,000.00), it shall, within thirty (30) days after the date it shall have received total contributions in excess of two thousand dollars ($2,000.00), register with and report to the commissioner as required by this article.

(4) Organizations which solicit only within the membership of the organization by the members thereof.

(5) Organizations which have no office within the city, which solicit in the city from without the commonwealth solely by means of telephone or telegraph, direct mail or advertising in national media.

(6) Organizations which have registered with the administrator of the office of consumer affairs of the commonwealth or organizations which are a chapter, branch or affiliate included in the consolidated report of an organization or federated organization which is so registered with such administrator.

(b) No charitable organization shall be exempt under this section, unless it shall submit, before any solicitation in any calendar year, to the commissioner, on forms to be prescribed by him, the name, address and purpose of the organization and a statement setting forth the reason for the claim for exemption. If exempted, the commissioner shall issue annually a letter of exemption which may be exhibited to the public. No registration fee shall be required of any exempt organization. (Code 1958, § 44.1-12)

State law reference—Similar provisions, Code of Virginia, §§ 57-60, 57-63(d).

Sec. 40-17. American Red Cross exempt from article.

Nothing in this article shall be construed as being applicable to the American Red Cross or any of its local chapters.

State law reference—Similar provisions, Code of Virginia, § 57-60(d).

Sec. 40-18. Reciprocal agreements with other municipalities.

The commissioner may enter into a reciprocal agreement with the appropriate authority of any other municipality within the commonwealth, for the purpose of exchanging information with respect to charitable organizations, professional fund-raising counsels and professional solicitors. Pursuant to such agreements, the commissioner may accept information filed by charitable organizations, professional fund-raising counsels and professional solicitors with the appropriate authority of another locality within this commonwealth, in lieu of the information required to be filed by this chapter. (Code 1958, § 44.1-3)

Sec. 40-19. Article does not authorize unlawful acts or omissions or decrease liability imposed by law.

Nothing contained in this article shall be construed as making lawful any act or omission which is now unlawful, or as decreasing the civil or criminal liability of any person imposed by existing laws. (Code 1958, § 44.1-13)

State law reference—Similar provisions, Code of Virginia, § 57-62.

Sec. 40-20. Appeals from orders under article.

Any person aggrieved by any final order of the commissioner under this article, denying such person any right to which he is entitled under law, may, within fifteen (15) days from the date of such order, apply for relief to the circuit court for the city. Either party may appeal any final order of such court in the same manner as provided by law in cases other than cases of appeals of right. (Code 1958, § 44.1-14)

State law reference—Similar provisions, Code of Virginia, § 57-67.

Sec. 40-21. Investigations to enforce article.

The commissioner, upon his own motion or upon complaint of any person, may investigate any charitable organization, professional fund-raising counsel or professional solicitor to determine whether such charitable organization, professional fund-raising counsel or professional solicitor has violated any of the provisions of this article. (Code 1958, § 44.1-11)

State law reference—Similar provisions, Code of Virginia, § 57-59(b).

Sec. 40-22. Penalty for violations of article.

Any person who wilfully and knowingly violates or causes to be violated any provision of this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be sentenced, for the first offense, to pay a fine of not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00), or undergo imprisonment for not more than six (6) months, or both; and for the second and any subsequent offense, to pay a fine of not less than five hundred dollars ($500.00) and not more than one thousand dollars ($1,000.00), or to undergo imprisonment for not more than one year, or both. (Code 1958, § 44.1-11)

State law reference—Similar provisions, Code of Virginia, § 57-59(a).

Sec. 40-23. Actions to enjoin violations of article.

Whenever the city attorney shall have reason to believe that any charitable organization, professional fund-raising counsel or professional solicitor is operating in violation of the provisions of this article, or has knowingly and wilfully made any false statement in any registration application or statement, report or other information required by this article; or that a charitable

organization, professional fund-raising counsel or professional solicitor has failed to file a registration statement required by this article; or that there is employed or is about to be employed, in any solicitation or collection of contributions for a charitable organization, any device, scheme or artifice to defraud or to obtain money or property by means of any false pretense, representation or promise; or that the officers or representatives of any charitable organization, professional fund-raising counsel or professional solicitor have refused or failed, after notice, to produce any records of such organization or that the funds raised by solicitation activities are not devoted or will not be devoted to the charitable purposes of the charitable organization; the city attorney may, in addition to all other remedies provided by law, bring an action against such charitable organization and its officers and such professional fund-raising counsel or professional solicitor to enjoin such charitable organization or professional fund-raising counsel or professional solicitor from continuing such violation, solicitation or collection, or engaging therein, or doing any acts in furtherance thereof and for such other relief as the court deems appropriate. (Code 1958, § 44.1-11)

State law reference—Similar provisions, Code of Virginia, § 57-59(c).

Sec. 40-24. Registration of organizations.

(a) Every charitable organization, except as otherwise provided herein, which intends to solicit contributions within the city, or have funds solicited on its behalf, shall, prior to any solicitation, file an initial registration statement with the commissioner upon forms acceptable to him. Each registration statement shall thereafter be refiled on or before the first day of the fourth calendar month of the next and each following fiscal year in which such charitable organization is engaged in solicitation activities within the city. It shall be the duty of the president, chairman or principal officer of such charitable organization to file the statements required herein. Such statement shall contain the following information:

(1) The name of the organization and the purpose for which it was organized.

(2) The principal address of the organization, the address of any offices in the city and its designated agent for process within the commonwealth. If no such agent is designated, the organization shall be deemed to have designated the secretary of the commonwealth. If the organization does not maintain an office, the name and address of the person having custody of its financial records.

(3) The names and addresses of any chapters, branches or affiliates in the city.

(4) The place where and the date when the organization was legally established, the form of the organization and a reference to any determination of its tax-exempt status under the Internal Revenue Code.

(5) The names and addresses of the officers, directors, trustees and the principal salaried executive staff officer.

(6) A copy of a balance sheet and income statement, with the opinion of an independent public accountant for the organization's immediately preceding fiscal year, or a copy of a financial statement certified by an independent public accountant covering, in a consolidated report, complete information as to all the preceding year's fund raising activities of the charitable organization, showing the kind and amount of funds raised; provided, that no charitable organization which has registered with the commissioner for the current and next preceding three (3) years, or is exempt for such years under section 40-16, shall be required to file any financial information. The report required by this subparagraph shall

comply with the accounting standards prescribed pursuant to section 40-27.

(7) A statement showing the computation of the percentages provided for in subsection (b) of this section and section 40-29.

(8) A statement indicating whether the organization intends to solicit contributions from the public directly or have such done on its behalf by others.

(9) A statement indicating whether the organization is authorized by any other governmental agency within the commonwealth to solicit contributions and whether it, or any officer, professional fund raiser or professional solicitor thereof, is or has ever been enjoined by any court or otherwise prohibited from soliciting contributions in any jurisdiction.

(10) The general purpose for which the contributions to be solicited shall be used.

(11) The names under which it intends to solicit contributions.

(12) The names of the individuals or officers of the organization who will have final responsibility for the custody of the contributions.

(13) The names of the individuals or officers of the organization responsible for the final distribution of the contributions.

(14) A statement indicating whether the organization, or any officer, professional solicitor or professional fund raiser thereof, has ever been convicted of a felony and, if so, a description of the pertinent facts.

(b) Each charitable organization shall, as a part of its registration statement, compute the percentage which its fund-raising expenses for its preceding fiscal year bore to its support received directly from the public during such year.

(c) Each chapter, branch or affiliate located in the city, except an independent member agency of a federated fund-raising organization, shall separately report the information required by this section or report the information to its parent organization, which shall then furnish such information, as to itself and all local affiliates, chapters and branches, in a consolidated form.

(d) Each federated fund-raising organization located in the city shall report the information required by this section in a consolidated form. Any federated fund-raising organization may elect to exclude from its consolidated report information relating to the separate fund-raising activities of all of its independent member agencies. No member agency of a federated fund-raising organization shall be required to report separately any information contained in such a consolidated report; provided, that any separate solicitation campaign conducted by or on behalf of any such member agency in the city shall, nevertheless, be subject to all other provisions of this chapter.

(e) The registration forms shall be verified under oath or affirmation by an authorized officer of the charitable organization.

(f) Every charitable organization which submits an independent registration to the commissioner shall pay an annual registration fee of ten dollars ($10.00). A parent organization filing on behalf of one or more chapters, branches or affiliates, or a federated fund-raising organization filing on behalf of its member agencies, shall pay a single annual registration fee for itself and such chapters, branches, affiliates or member agencies included in the registration statement. All fees paid hereunder shall be credited to the office of the commissioner for reimbursement of administrative expenses. (Code 1958, § 44.1-2, 44.1-10)

State law reference—Similar provisions, Code of Virginia, §§ 57-49, 57-58.

Sec. 40-25. Reports by organizations with no local office, which solicit solely by telephone, mail, etc.

Any charitable organization having no office or place of business within the city, and soliciting in the city from without the city solely by telephone or telegraph, direct mail or by advertising in local or national media, and any professional fund-raising counsel or professional solicitor engaged by such an organization, shall file with the commissioner any report which would otherwise be required of it; provided, such charitable organization maintains an office or place of business within the commonwealth. (Code 1958, § 44.1-3)

State law reference—Similar provisions, Code of Virginia, § 57-51(b).

Sec. 40-26. Publication of warning as to unregistered organizations.

If the commissioner shall determine that any charitable organization, not registered with his office and not exempt from registration, irrespective of whether such organization is subject to the jurisdiction of the city, is soliciting in the city, directly or indirectly, by any means, including, without limitation, by telephone or telegraph, by direct mail or by advertising in national media, he may, after ten (10) days' written notice to the charitable organization, cause to be printed in one or more newspapers published or distributed in the city a notice in substantially the following form:

WARNING—UNREGISTERED
CHARITABLE SOLICITATION

The organization named below has solicited contributions from area resident for allegedly charitable purposes. It has not registered with the commissioner of the revenue as required by law. Contributors are cautioned that their contributions to such organization may be used for noncharitable purposes.

A copy of such warning shall immediately thereupon be forwarded to the administrator of consumer affairs for the commonwealth. (Code 1958, § 44.1-4)

State law reference—Similar provisions, Code of Virginia, § 57-52.

Sec. 40-27. Records to be kept by organizations.

Every charitable organization shall keep true fiscal records for all fiscal years in accordance with the standards set out in section 57-53 of the Code of Virginia. Such records shall be retained for a period of at least three (3) years after the end of the period to which they relate. (Code 1958, § 44.1-5)

Sec. 40-28. Contracts between organizations and fund-raising counsels and professional solicitors.

(a) Every contract or agreement between a professional fund-raising counsel and a charitable organization must be in writing and shall be filed with the commissioner within ten (10) days after such contract or written agreement is entered into.

(b) Every contract, or a written statement of the nature of the arrangement to prevail in the absence of a contract, between a professional solicitor and a charitable organization shall be filed with the commissioner within ten (10) days after such contract is entered into or such arrangement is agreed to.

(c) All agreements and arrangements between professional fund-raising counsels and charitable organizations must be reduced to writing before executed or acted upon. (Code 1958, § 44.1-6)

State law reference—Similar provisions, Code of Virginia, § 57-54.

Sec. 40-29. Limitation on compensation of professional solicitors.

(a) No charitable organization shall pay or agree to pay to a professional solicitor or his agents, servants or employees in the aggregate, including reimbursement for expenses incurred, a total amount in excess of fifteen (15) percent of the gross amount collected by

it as a result of his solicitation activities or campaigns; nor shall any charitable organization pay or agree to pay to all professional solicitors retained by it and their agents, servants and employees in the aggregate a total amount in excess of ten (10) percent of its support received directly from the public in the year in which such services are performed.

(b) For purposes of this section, the payments to the professional solicitor shall not include the purchase price to the charitable organization of any tangible personal property or services which are resold by the organization as a part of its fund-raising activities; but the amount so expended by the organization shall be deducted from the gross amount collected by it, or the organization's support received directly from the public, before the computation of the percentage limitations. (Code 1958, § 44.1-7)

State law reference—Similar provisions, Code of Virginia, § 57-55.

Sec. 40-30. Statements, reports, contracts, etc., filed under article constitute public records; charge for copies thereof.

Registration statements, reports, professional fund-raising counsel contracts or professional solicitor contracts and all other documents and information required to be filed under this chapter shall become public records in the office of the commissioner and shall be open to the general public for inspection at such time and under such conditions as the commissioner may prescribe. A charge, not exceeding one dollar ($1.00) per page, may be made for any copy of such documents and information as may be furnished any person by the commissioner. (Code 1958, § 44.1-8)

State law reference—Similar provisions, Code of Virginia, § 57-56.

Sec. 40-31. False or misleading information in statements or reports required by article.

It shall be unlawful for any person to wilfully and knowingly give any false, incorrect or misleading information to the commissioner in any registration application, statement or report required to be filed or given by this article, whether such application, statement or report is verified or not. (Code 1958, § 44.1-11)

State law reference—Similar provisions, Code of Virginia, § 57-59(a).

Sec. 40-32. Receipt required for certain contributions.

No charitable organization shall accept any contribution exceeding five dollars ($5.00) in cash or tangible property, without providing, on request of the donor, a written receipt acknowledging such contribution and personally signed by the person accepting such contribution. (Code 1958, § 44.1-9)

State law reference—Similar provisions, Code of Virginia, § 57-57.

Sec. 40-33. Soliciting without authority from organization.

(a) No person shall make any representation that he is soliciting contributions for or on behalf of a charitable organization, or use or display any emblem, device or printed matter belonging to or associated with a charitable organization for the purpose of soliciting or inducing contributions from the public, without first being authorized to do so by the charitable organization.

(b) No professional solicitor shall solicit in the name of or on behalf of any charitable organization, unless such solicitor has written authorization of two (2) officers of such organization, a copy of which shall be filed with the commissioner. Such written authorization shall bear the signature of the solicitor and shall expressly state on its face the period for which it is valid, which shall not exceed one year from the date issued. Such authorization shall be carried by such solicitor, when making solicitations, and shall be exhibited, on request, to persons solicited, police officers or agents of the commissioner. (Code 1958, § 44.1-9)

State law reference—Similar provisions, Code of Virginia, § 57-57.

Sec. 40-34. Soliciting by certain persons prohibited.

No person, and no organization of which such person is an officer, professional fund-raising counsel or professional solicitor, shall solicit within the city, if:

(1) Such person has been convicted in any jurisdiction of embezzlement, larceny or other crime involving the obtaining of money or property by false pretenses or the misapplication of funds impressed with a trust, unless such person has received a pardon for such offense or the public is informed of such conviction in a manner approved in writing by the commissioner before any solicitation occurs.

(2) Such person has ever been enjoined by any court or otherwise prohibited from soliciting in any jurisdiction, unless the commissioner shall first determine, in writing, that such person is entitled to solicit in such jurisdiction at the time of soliciting within the city or that the reason for such injunction or prohibition does not involve moral turpitude. (Code 1958, § 44.1-9)

State law reference—Similar provisions, Code of Virginia, § 57-57.

Sec. 40-35. Soliciting for benefit of nonresident who fails to supply information to commissioner.

No person shall solicit within the city, for the benefit of any other person located without the city, if such other person refuses to supply any information which the commissioner deems necessary to assure himself that the provisions of this chapter are complied with. A solicitation shall be deemed to be on behalf of every person who receives, directly or indirectly, more than ten (10) percent of the gross amount collected. (Code 1958, § 44.1-9)

State law reference—Similar provisions, Code of Virginia, § 57-57.

Sec. 40-36. Misleading solicitations generally.

(a) No charitable organization shall use or exploit the fact of registration under this chapter so as to lead the public to believe that such registration in any manner constitutes an endorsement or approval by the city; provided, that the use of the following statement shall not be deemed a prohibited exploitation: "Registered with the commissioner of the revenue as required by law. Registration does not imply endorsement of a public solicitation for contributions."

(b) No person shall, in connection with the solicitation of contributions for the sale of tangible personal property or services, represent or lead anyone by any manner, means, practice or device whatsoever to believe that the person on whose behalf such solicitation or sale is being conducted is a bona fide charitable organization or that the proceeds of such solicitation or sale will be used for charitable purposes, if he has reason to believe such not to be the fact. (Code 1958, § 44.1-9)

State law reference—Similar provisions, Code of Virginia, § 57-57.

Sec. 40-37. Misrepresentations as to sponsors, endorsers, etc.

(a) No person shall, in connection with the solicitation of contributions or the sale of tangible personal property or services for charitable purposes, represent or lead anyone by any manner, means, practice or device whatsoever to believe that any other person sponsors or endorses such solicitation of contributions, sale of tangible personal property or services for charitable purposes, or approves of such charitable purposes or a charitable organization connected therewith, when such other person has not given written consent to the use of his name for these purposes.

(b) Any member of the board of directors or trustees of a charitable organization, or any

other person who has agreed to either serve or to participate in any voluntary capacity in the campaign, shall be deemed thereby to have given this consent to the use of his name in such campaign. Nothing contained in this section shall prevent the publication of names of contributors, without their written consent, in an annual or other periodic report issued by a charitable organization for the purposes of reporting on its operations and affairs to its membership or for the purpose of reporting contributions to contributors. (Code 1958, § 44.1-9)

State law reference—Similar provisions, Code of Virginia, § 57-57.

Sec. 40-38. Misrepresentations as to income tax deductions.

No person shall denominate any membership fee or purchase price of goods or services sold as a contribution or as a donation, or in any other manner represent or imply that the member or the purchaser of such goods or services will be entitled to an income tax deduction for his cost or any portion thereof, unless:

(1) there shall have been first obtained a signed opinion of counsel or an internal revenue service ruling or determination letter holding such cost to be deductible; or

(2) the member or purchaser is informed in writing that such cost may not be deductible;

nor shall any charitable organization, other than an organization exempt under section 40-16, represent or imply that a contributor thereto will be entitled to an income tax deduction for his contribution, unless there shall have been first obtained a signed opinion of counsel or an internal revenue service ruling or determination letter holding gifts to such organization to be so deductible. (Code 1958, § 44.1-9)

State law reference—Similar provisions, Code of Virginia, § 57-57.

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Chapter 41

SOLID WASTE*

Article I. In General

§ 41-1. Violations of chapter; penalties.
§ 41-2. Enforcement.
§ 41-3. Definitions.
§ 41-4. General responsibilities.
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§ 41-6. Solid waste violation notice; penalty schedule; summons for failure to comply.
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§ 41-8. Containers required.
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§ 41-11. Interference with inspections, containers, collection, disposal, etc.
§ 41-12. Disposal to be at approved site.

Article II. Private Collection

§ 41-13. Bulk containers—Regulations.
§ 41-14. Same—Responsibilities of a permittee.
§ 41-15. Same—Duties of private solid waste collectors.
§ 41-16. Same—Requirements for individual roll out solid waste containers served by non-city collection.

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*__Editor's note—__Ord. No. 39,971, § 2, adopted May 23, 2000, amended and reordained Ch. 41 in its entirety to read as herein set out. Prior to being amended and reordained, Ch. 41 pertained to similar subject matter and was derived from the following:

Code 1958	Code 1958	Code 1958	Code 1958	Code 1958
45-47	45-53.1	45-58.1	45-62.1	45-71.1
45-50.1	45-54.1	45-59.1	45-63.1	45-67.1
45-51.1	45-56.1	45-60.1	45-66.1	45-67.1
45-52.1	45-57.1	45-61.1	45-70.1	45-69.1

Ord. No.	Date	Ord. No.	Date	Ord. No.	Date
29,665	10-10-78	34,503	5-26-87	36,445	5-21-91
30,667	6-24-80	34,593	7-14-87	37,244	5-18-93
31,472	12-15-81	34,926	2-23-88	37,535	2-22-94
31,705	5-18-82	35,053	5-24-88	37,935	3-28-95
31,966	9-28-82	35,104	6-14-88	38,371	5-21-96
33,137	10-16-84	35,535	5-23-89	38,468	7-16-96
33,318	2-26-85	35,556	5-30-89	38,601	12-17-96
33,707	10-8-85	36,028	5-22-90	39,097	4-7-98
34,421	4-21-87	36,309	1-15-91	39,452	1-26-99

Charter reference—Authority of city to collect and dispose of solid waste, § 2(15).

Cross references—Disposition of waste; material at airport, § 4-12; receptacles for solid waste at rooming houses, § 11.1-64; food establishments to be maintained free of solid waste, § 18-34; storage and disposal of garbage and refuse at food establishments, § 18-71; health parlors to be free of solid waste, § 21-3; storage and disposal of refuse at health parlors, § 21-13; solid waste control on pedestrian malls, § 31-7; solid waste affording food or harborage for rats, § 36-13.

State law references—Authority of city to require property owners to remove garbage and refuse and city right to operate a garbage and refuse collection and disposal service, Code of Virginia, §§ 15.1-11, 15.1-857; solid and hazardous waste management, § 32.1-177 et seq.

Article III. Collection by City

§ 41-17. Collection service by the city; generally.
§ 41-18. Residential service.
§ 41-19. Retail, wholesale and commercial service.
§ 41-20. Placement of containers at collection site and removal of same therefrom.
§ 41-21. Fees for the collection and disposal of refuse.
§ 41-22. Special unscheduled service.

Article IV. Private Collectors

§ 41-23. Permit—Required; disposal of solid municipal waste at SPSA facilities.
§ 41-24. Same—Application.
§ 41-25. Same—Issuance and revocation.
§ 41-26. Hours of operation near residential zones.
§ 41-27. Frequency of collections.

Article V. Collection and Disposal of Certain Waste

§ 41-28. Dead animals.
§ 41-29. Hazardous waste.
§ 41-30. Fecal matter, nonhousehold organic waste, etc.
§ 41-31. Structural waste.
§ 41-32. Bulk waste; collection.
§ 41-33. Industrial waste, commercial waste.
§ 41-34. Evictions and moveouts.
§ 41-35. Yard waste.
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Article VI. Solid Waste Recycling

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ARTICLE I. IN GENERAL

Sec. 41-1. Violations of chapter; penalties.

Unless otherwise provided, a violation of any provision of this chapter shall constitute a class 3 misdemeanor. Each day's continuance of the violation shall constitute a separate offense. In addition to any penalties imposed for a violation of this chapter, upon conviction the court shall require that the violation be corrected. Any person who violates any provision of this chapter or regulation adopted shall also be liable for all damage, loss, cost and expense suffered or incurred by the city as a result of the violation. Three (3) or more violations within twelve (12) months by the same person shall constitute a class 2 misdemeanor.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-2. Enforcement.

Any waste management inspector, law enforcement officer, fire marshal or any of his assistants, or city special police officer, is authorized and shall have authority to enforce all provisions of this chapter.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-3. Definitions.

Generally, for the purposes of this chapter, certain words and phrases shall have the meanings ascribed to them by this section:

(a) *Automated collection container* means a container of not more than one hundred (100) gallons content provided by the department of public works for city collection.

(b) *Bulk truckload* is a volume that can be contained in city vehicles designated for bulk waste collections, approximately nine (9) cubic yards.

(c) *Bulk container* means any receptacle with a capacity over one hundred (100) gallons which is made of metal or other acceptable material, is of durable and rigid construction, is capable of being transported as a unit intact, is capable of unloading by mechanical equipment without spillage, and which meets the following tip resistance requirements when empty with the doors or covers in the most adverse position to effect tipping: the refuse container shall be tested on a level surface with the wheels chocked in the most adverse position to effect tipping. The refuse bin shall not tip when a separately applied horizontal force of seventy (70) pounds is applied at a point and in a direction most likely to cause tipping, and when a separately applied vertical downward force of one hundred ninety-one (191) pounds is applied at a point most likely to cause tipping.

(d) *Bulk waste* means appliances, furniture, vehicle tires, bedding material, mechanical equipment, mechanical parts, carpeting and other items too large to fit into a collection container, excluding yard waste, structural waste, and hazardous waste.

(e) *Business* shall mean any nonresidential generator of solid waste and any company, business or other party which collects, transports, processes, manages or recycles solid waste.

(f) *Collection site* means any alleyway, curbside, street, sidewalk or other authorized place of deposit for collection.

(g) *Commercial waste* means all solid waste from any retail, wholesale or commercial establishment not excluding industrial waste, hazardous waste, yard waste, and structural waste.

(h) *Container* means a receptacle for solid waste which meets one of the descriptions specified in this chapter for specific types of containers.

(i) *Curbside* means solid waste placed in a public right-of-way for collection by the city provided the solid waste does not impede or impact pedestrian or motor vehicle traffic.

(j) *Disposable container* means any moisture proof plastic (polyethylene, propylene), metallic or paper bag.

(k) *Disposal site* means any place where solid waste may legally be deposited or disposed of and which meets the requirements of all applicable federal, state and local laws and regulations.

(l) *Duplex* means a residence whose use is limited to one to two (2) families or households.

(m) *Hazardous waste* means pesticides, poisons, caustics, acids, infectious materials, explosives, corrosives, combustibles, flammable materials, petroleum products, compressed gases, biological and chemical materials, radioactive materials, toxic materials or other materials which may be injurious to health or safety of persons or the environment.

(n) *Household waste* means all solid waste resulting from the conduct, maintenance, and operation of a residential household, excluding structural waste, yard waste, bulk waste, commercial waste, industrial waste, hazardous waste, recyclables and tires.

(o) *Individual roll-out solid waste container* means any commercial grade receptacle with a capacity of over thirty-two (32) gallons but less than one hundred (100) gallons.

(p) *Industrial waste* includes all materials or substances related to manufacturing, processing or production.

(q) *Multiple residence* means any apartment or group of apartments under a common roof and used for a dwelling for five (5) or more families or households not all owned by individual tenants.

(r) *Overflow* means any household or commercial waste that has not been placed in the collection container with the lid fully closed.

(s) *Person* means any individual, firm, owner, occupant, sole proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporation, agent, executor, trustee, agent, guardian or other legal entity.

(t) *Private solid waste collection service* means the collection of solid waste by a private, non-city business.

(u) As used in this article, *recycle* means the following:

(1) To sell, donate, or otherwise transfer solid waste material to any other person located outside of the City of Norfolk so that such waste material may be processed and used again as a raw material for a product which may or may not be similar to the original product, and

(2) To process a given waste material at a location within the City of Norfolk so that such material may be used again as a raw material for a product which may or may not be similar to the original product.

(v) *Recycling container* means the container provided by the city or Southeastern Public Service Authority (SPSA) for the collection of recyclables.

(w) *Recyclables* means any materials designated for recycling services by the city.

(x) *Single residence* means any dwelling whose use is limited by law to not more than one family or household and individually owned housing units.

(y) *Solid waste* means all forms of matter in whatever shape or condition, such as household waste, bulk waste, industrial waste, yard waste, structural waste, commercial waste, hazardous waste, recyclable materials, litter, garbage, refuse, trash, tires and similar matter.

(z) *Solid waste transfer station* means any facility or activity where solid waste is regularly shifted, transferred, transloaded or moved from one carrier, conveyance or means of transport to any other carrier, conveyance or form of transport.

(aa) *SPSA* means Southeastern Public Service Authority.

(bb) *Specialized container* means a container judged to be acceptable in writing by the director of public health.

(cc) *Structural waste* means all building materials including rubble and debris resulting from storms, fires or other disasters, from construction and demolition, or from erecting, removing, repairing, remodeling or razing buildings or other structures.

(dd) *Waste management inspector* means an inspector designated by the director of public works to enforce this chapter.

(ee) *Yard waste* consists of materials derived from trees, leaves, fallen branches, shrubbery, plants, and lawn trimmings.

(ff) *Yard waste container* is an uncovered thirty (30) gallon or less plastic or metal container for placement of yard waste.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,662, § 11, 5-15-07)

Sec. 41-4. General responsibilities.

(a) The director of public works shall be responsible for the collection and disposal of solid waste as prescribed by the City Code. He shall have authority to establish procedures and to enforce the regulations concerning:

(1) The days and time of collection.

(2) The location and type of containers for collection by the city.

(3) The conveyance of solid waste collected.

(4) The disposal of solid waste collected.

(5) The designation of collection areas.

(6) Other matters pertaining to collection, disposal or fees to be charged, or bill adjustments and credits.

He shall have the authority to change or modify procedures pertaining to collection, conveyance and disposal. Disposal of all solid waste shall be only at the location and in the manner specified by the director of public works.

(b) The director of public health shall be responsible for health, safety, environmental and sanitary conditions, as prescribed by the City Code. He shall have authority to establish procedures and to enforce the regulations concerning:

(1) The storage of solid waste.

(2) The elimination of nuisances.

(3) The protection of the environment.

(4) The protection of the health and welfare of the citizens.

(5) The location and type of collection container for private collection.

He shall have authority to change or modify procedures pertaining to storage, nuisance, environment or health.

(c) The director of planning shall be responsible for the review of building plans to assure that the location of containers meets appropriate requirements of the City Code.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-5. Responsibilities of superintendent of waste management; report and removal of nuisances.

Under the supervision and control of the director of public works, there shall be a superintendent of waste management, who shall be charged with the collection and disposal of solid waste from the streets, the removal of all nuisances which may come to his attention, or to the attention of those employed in his division, existing on the streets or other designated public places in the city, and the performance of such other duties as are or may be prescribed by ordinance or by order of the said director.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-6. Solid waste violation notice; penalty schedule; summons for failure to comply.

(a) Any waste management inspector, law enforcement officer, fire marshal or any of his assistants, or special police officer observing a violation of any section, except sections 41-12, 41-14, 41-15, and 41-29, of this chapter or regulations promulgated thereunder, may issue a notice of violation to the person(s) responsible for such violation, to the person(s) listed as responsible for payment of the public service bill for that address, or to the property owner, informing that person of the date and nature of the violation and the prepayment penalty amount. The violation notice may be served by delivering a copy thereof to the person to whom it is directed in person or, if such person cannot be found, by delivering a copy and giving information of its contents and meaning to any adult member of the family found at such person's regular place of abode or at his usual place of business. In lieu of such service, the violation notice may be served by certified mail with delivery reported, a copy thereof to the last known address of the person to whom it is di-

rected. If notice cannot be served after all the attempts set forth above, the notice may be directed to the owner of the premises.

(b) The prepayment penalty schedule for a violation is as follows:

(1) First violation—Twenty-five dollar ($25.00) fine.

(2) Second violation within twelve (12) months—Fifty dollar ($50.00) fine.

(3) Third and subsequent violations within twelve (12) months—One hundred dollar ($100.00) fine.

(c) Within ten (10) days of service of a violation notice pursuant to this section, the person to whom it was directed shall pay the prepayment penalty amount specified on the notice.

(d) Upon failure to pay the prepayment penalty specified in a violation notice in the time required, a summons shall be issued against and served on the person to whom the notice was directed, directing him to appear before the general district court of the city on the date and at the time specified in the summons to answer for the violation alleged, the date and nature of which shall be set forth in the summons. Such summons shall be served in the manner provided by law for such service.

(e) The payment of the penalty prescribed by subsection (b) of this section shall not relieve any person from the obligation to take immediate remedial steps to correct any and all conditions which constitute a violation of this chapter. Such corrections shall be undertaken promptly and shall be completed within such time as may be allowed by city officials responsible for requiring the corrective measures.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-7. Executor, trustee, agent, etc. deemed owner of property.

When any person is in possession of any property, or has charge thereof, within the city as executor, administrator, trustee, guardian, or agent, such person shall be deemed to be the owner of such property for the purposes of this chapter and shall be bound to obey all requirements of this chapter so far as the same may affect such property, in the same manner, and subject to the same penalties and fines, as if such person were actually the owner of such property, and notice to such person shall be deemed sufficient.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-8. Containers required.

Every residence, business or person handling or having solid waste shall have a city approved container. Solid waste of any type shall not be placed outside the container for collection, unless provided for by this chapter or as approved by the director of public works or public health.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-9. Labeling of containers.

Containers required by this chapter shall be so labeled by the property owner or occupant so as to permit identification of the owner or occupant of the premises or the user of the container.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-10. Maintenance of containers.

Every person owning, using or handling a container shall be responsible for maintaining it in an intact, clean, sanitary and closed condition, so as to prevent leakage or spillage. It shall be the owner's or user's responsibility not to place solid waste in a defective container. It is the responsibility of the person, other than city employees, handling or emptying the container not to damage or destroy it or to leave it in an open condition.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-10.1 Placement of container on light rail guideway.

It shall be unlawful for any person owning, using, moving or handling any container to place [it] in, on, at, or near a light rail guideway so as to impede or obstruct the light rail vehicle. Light rail guideway and light rail vehicle shall be defined as set forth in City Code section 34.2-1.
(Ord. No. 44,583, § 3, 2-16-12)

Sec. 41-11. Interference with inspections, containers, collection, disposal, etc.

(a) It shall be unlawful for any person to prevent, detain or impede the inspection of storage areas, containers and housing sites where solid waste is produced, stored or prepared for collection.

(b) Except for city employees, it shall be unlawful for any person to overhaul, overturn, molest or interfere with the contents of any recepta-

cle, plastic bag or container used for the storage or collection of solid waste or carry away any solid waste from the streets, unless authorized to do so by the director of public works.

(c) It shall be unlawful for any person to prevent, detain or impede the collection or transportation of solid waste from collection sites or rights-of-way.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-12. Disposal to be at approved site.

No solid waste material shall be disposed of at any place except at a site or sites authorized and designated for such purpose, and in the manner specified.
(Ord. No. 39,971, § 2, 5-23-00)

ARTICLE II. PRIVATE COLLECTION

Sec. 41-13. Bulk containers—Regulations.

(a) The regulations set forth in this section shall be administered by the director of public health. The director of planning, the director of public works and the fire chief shall assist the director of public health as provided herein.

(b) All bulk containers shall require current permits issued by the director of health. The permit application and site plan, along with such application fees as specified by the director of health, shall be submitted before the permit is issued.

(c) In granting a permit, the director shall require the following:

(1) The bulk container will not be located on any city property, roadway, street, right-of-way or easement except for temporary staging pursuant to a permit issued by the director of public works.

(2) The bulk container will be accessible for removal, transportation or emptying from a public right-of-way.

(3) The proposed location will not violate any fire code, building code, zoning ordinance, or other applicable City Code.

(4) The base on which the bulk container is located will be firm (concrete or equal) and cleanable. It must also be clearly marked for container placement with a line approximately four (4) to six (6) inches in width using white or yellow paint.

(5) The bulk container will be located not less than ten (10) feet from any building, fire escape or doorway.

(6) The bulk container will be located behind the building line.

(7) The bulk container will not displace a required parking space.

(8) Bulk containers shall be labeled designating the name, unit or business address the bulk container belongs to.

(9) The bulk container shall be enclosed with an opaque fence or otherwise screened from view from the public right-of-way.

The requirement of this section shall not apply to the temporary staging on private property of a bulk container for construction debris or property maintenance. Failure to comply with the requirements in this subsection shall constitute a violation of this chapter. The director of public health may revoke the permit when the conditions in this subsection are not complied with.

(d) The director of public health may seek independent verification of data set forth in the site plan and may disapprove a plan if he cannot verify compliance with the requirements of subsection (c) unless a waiver is requested in writing and approved by the appropriate department.

(e) When a bulk container was installed at a structure prior to February 28, 1985, if the site fails to meet any criteria in subsection (c) and the site cannot accommodate the application of the criteria, the director of public health may grant a waiver and establish appropriate conditions for the waiver. A waiver fee shall be charged to offset administrative costs.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-14. Same—Responsibilities of a permittee.

(a) One who obtains a bulk container permit under this chapter shall have the following duties and responsibilities:

(1) To obtain and maintain a valid permit annually.

(2) To establish and maintain a local or on-site person responsible for the bulk container and its surrounding area, and to notify the director of public health of any change in the name, local address or telephone number of such person having that responsibility. The local on-site person shall ensure proper maintenance of solid waste and the correction of any violations in an expedient manner.

(3) To maintain the bulk container site free of solid waste and/or spillage or overflow in accordance with all applicable codes.

(4) To maintain the bulk container in a closed condition.

(5) To ensure that collections are accomplished as frequently as stated on the permit or more frequently if necessary to comply with all applicable codes.

(6) To ensure that there is clear and sufficient access to the bulk container during all collection periods.

(7) To maintain the bulk container pad in good repair.

(8) To ensure that the bulk container is of sufficient size to accommodate all units to be served.

(b) A violation of any provisions in this section shall constitute a Class 1 misdemeanor.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-15. Same—Duties of private solid waste collectors.

(a) Each private collector who collects refuse from bulk containers shall have the following duties and responsibilities:

(1) To refrain from placing a bulk container on any site until the director of public health confirms that a valid permit has been issued for the site.

(2) To place the bulk container at the approved location.

(3) To maintain the bulk container in good working order; all moving parts shall be operable, there shall be no holes or gaps in the container, etc.

(4) To ensure that all doors and lids are properly closed immediately following collection.

(5) To maintain the interior of the container in a sanitary condition in order to minimize offensive odors and fly breeding.

(6) To transport and collect bulk container refuse in such a manner so as to prevent solid waste spillage or leakage. Any solid waste spilled during collection shall be removed by the collector.

(7) To remove solid waste from the bulk containers as required by the director of public health or his designee.

(8) To deliver bulk container refuse only to facilities of the Southeastern Public Service Authority or other facility authorized by City Code section 41-23.

(b) A violation of any provision of this section shall constitute a class 1 misdemeanor.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,834, § 1, 9-18-07)

Sec. 41-16. Same—Requirements for individual roll out solid waste containers served by non-city collection.

(a) This section shall apply when the city is not the collection agency.

(b) If the site fails to meet the criteria set forth in section 41-13, individual roll-out solid waste containers shall be required in lieu of bulk containers. The director of public health may approve the use of such containers and issue an individual bulk container permit. In granting a permit, the director of public health shall require the following:

(1) A minimum of one container shall be provided for every two (2) apartments or

units unless otherwise authorized by the director of health and shall be identified so as to designate unit use.

(2) A collection frequency of at least once weekly is required or more frequently if required by the director of public health.

(3) The container(s) storage location shall be designated by the director of public health and shall be enclosed with an opaque fence or otherwise screened from view from the public right-of-way.

(4) The containers shall be emptied and returned to the designated site collection location by the private collector on the days designated for pickup. The owner or manager of the premises shall be responsible for ensuring the appropriate arrangements are made with a private collector to empty all containers in accordance with this chapter. These containers are not to be placed in areas designated for city collection. The hours that containers may be outside of designated site locations shall correspond to the requirements for city containers in section 41-20.

(5) The containers shall be maintained without overflowing, the lids kept closed and in good working order. Responsibilities of the permittee and private refuse collectors shall be as set forth in sections 41-14 and 41-15 above.

(6) Large items such as furniture and appliances shall not be placed in these containers but shall be the responsibility of the owner/agent to dispose of properly.

(c) The requirements of sections 41-14 and 41-15 shall apply.
(Ord. No. 39,971, § 2, 5-23-00)

ARTICLE III. COLLECTION BY CITY

Sec. 41-17. Collection service by the city; generally.

(a) The city shall use its personnel and equipment to collect solid waste from residential property on a regular schedule, which shall be set by the director of public works. Every single residence, duplex and multiple residence of four (4) or less units producing solid waste shall be required to pay for city collection. Multiple residences with more than four (4) units and non-residential structures may receive city collection for a fee at the discretion of the director of public works.

(b) Waste shall not be permitted to overflow containers or to be placed outside of containers except as provided in regulations promulgated. Presence of overflow solid waste shall constitute a violation of this section. Overflow solid waste will not be collected except as provided herein and approved by the director of public works.

(c) Household waste of a loose nature shall be packaged in a disposable container before being deposited in a container for collection.

(d) Persons using automated collection containers shall be responsible for keeping containers clean and odor-free and shall place all loose and wet garbage in bags within the container.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-18. Residential service.

(a) *Residences with four or fewer units.* The collection of household waste from residences with four (4) or fewer units shall be conducted using a minimum of one automated collection container per unit.

(b) *Multiple residences with more than four (4) units.* The collection of solid waste from multiple residences with more than four (4) units by city forces shall be handled as follows:

(1) A minimum of one automated collection container is required for every two (2) units. An odd number of units requires an additional container. Additional containers may be leased only after each unit is assigned one automated container.

(2) If the director of public works or his designee finds that solid waste quantities or location, building design or other factors, are not compatible for solid waste collection by city forces and equipment, the solid waste shall be removed by private collectors. The director of public works or his designee shall give at least thirty

(30) days' notice of such noncollectibility or noncompliance, so that other collection arrangements may be made.

(c) When the waste exceeds that which can be stored in the containers specified for that location under subsection (a) or (b), collection shall be provided by private collection.

(d) Where accessibility for city collection is not possible from a public street, lane or alley, private collection service shall be utilized.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,662, § 12, 5-15-07)

Sec. 41-19. Retail, wholesale and commercial service.

Retail, wholesale and commercial solid waste collections by the city shall be made on a weekly schedule if and as designated by the director of public works. Automated city services shall be limited to five (5) automated collection containers of the approved type per unit per collection day. Continuous accumulation of solid waste in excess of these limits shall be removed by private collectors and shall be stored and collected in bulk containers or individual roll out containers. Waste shall not be permitted to overflow containers or to be placed outside of containers. Presence of overflow solid waste shall constitute a violation of this section. Collections from designated shopping centers and the central business district shall be made three (3) days per week.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,662, § 13, 5-15-07)

Sec. 41-20. Placement of containers at collection site and removal of same therefrom.

It shall be the responsibility of the property owner or user of a container, the contents of which are to be collected by the city forces, to:

(a) Place the container at the edge of pavement of the public street, alley or area designated by the director of public works or his designee as the pickup area, so that there is no danger of the container being overturned and so that there is sufficient clearance to accommodate city collection equipment, vehicles and pedestrians. Placement shall not obstruct or interfere with use of any driveway.

(b) For residents and businesses receiving regular weekly solid waste collection, place containers at the collection site no later than 7:00 a.m. on the day of collection and not earlier than 5:00 p.m. on the night prior to the day of collection.

(c) For those designated shopping centers and the central business district receiving collection services on a regular three-day per week schedule, place containers at the collection site no earlier than 5:00 p.m. and no later than 7:00 a.m. on Monday, Wednesday and Friday. Recyclables may be placed out at the collection site no earlier than 5:00 p.m. and no later than 7:00 a.m. on Tuesday and Thursday. No nonrecyclables may be placed out for collection Tuesday and Thursday.

(d) Remove all emptied containers from the alley, curbside, street or sidewalk as soon as practicable after they have been emptied, but in no case later than 11:30 p.m. of the collection day.

(e) Containers shall be located five (5) feet behind the front plane of the building or structure on the premises or screened so as to not be visible from the street or public right-of-way except during the times prescribed for placement for collection. This provision applies to all residential and commercial locations. Where placement as described herein is not possible, an alternate location may be designated and approved by the director of public health.

(f) When determined necessary by the director of public works, some residences serviced by automated collection containers shall be required to place the container on the opposite side of the street from their residence, or in the street at the street side edge of the parked car location, or at another location.

(g) The provisions of this section shall apply when the city collects waste of the type described in article V of this chapter.

(h) The provisions of this section shall apply to recycling containers.

(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-21. Fees for the collection and disposal of refuse.

The following maximum fees are hereby established for the collection and disposal of refuse (garbage and bulky waste) by city forces:

(a) Four hundred two dollars and twelve cents ($402.12) per year for each single family dwelling unit or dwelling units in multiple residences not exceeding four (4) families or dwelling units.

(b) One thousand eight hundred nineteen dollars and sixty-eight cents ($1,819.68) per year for business units, including retail, wholesale and commercial units, receiving collection service five (5) days per week.

(c) Seven hundred thirty-four dollars and sixteen cents ($734.16) per year for each business unit including retail, wholesale and commercial units receiving once weekly refuse collection service from the city.

(d) If business and family units are combined on a single property, the charge shall be seven hundred thirty-four dollars and sixteen cents ($734.16) per year for each business unit plus three hundred twenty-four dollars and twelve cents ($324.12) for each dwelling unit.

(e) Five hundred sixty-nine dollars and twenty-eight cents ($569.28) per year for each container serving multiple residences exceeding four (4) families.

(f) Additional containers, up to the maximum permissible, will be supplied for each dwelling or business unit at the following fee:

90-gallon. Sixty dollars ($60.00) per additional container per year for once-a-week collection service for residential units up to four (4) units. One hundred twenty dollars ($120.00) per additional container per year for once-a-week collection service for multiple residential and business units. Three hundred dollars ($300.00) per additional container per year for five-times-a-week collection service.

65-gallon. Forty two dollars ($42.00) per additional container per year for once-a-week collection service for residential units up to four (4) units. Eighty four dollars ($84.00) per additional container per year for once-a-week-collection service for multiple residential and business units. Two hundred ten dollars ($210.00) per additional container per year for five-times-a-week collection service.

30-gallon. Forty-two dollars ($42.00) per additional container per year for once-a-week collection service for residential units up to four (4) units. Eighty-four ($84.00) per additional container per year for once-a-week-collection service for multiple residential and business units. Two hundred ten dollars ($210.00) per additional container per year for five-times-a-week collection service.

(g) Thirty-nine dollars forty-eight cents ($39.48) per year for each recycling container for each business unit including retail, wholesale and commercial units receiving once-weekly refuse collection service from the city and biweekly recycling service.

All payments for this service shall be the responsibility of the person(s) listed as responsible for payment of the public-service bill for that address. This fee shall be paid monthly and shall be placed on the bill for water service. If the monies received in payment of the water bill and the solid-waste-collection fee are not sufficient to pay both in full including any

penalties or interest, the water bill and any penalties or interest attributed thereto shall be paid first out of the monies available. The fee may be prorated for less than a full year's service. Refunds will not be provided for vacant units and for services not utilized. Written notification must be made to the superintendent of waste management with a copy of the applicable service agreement prior to discontinuing city solid waste collection services and commencing with contracted services. Solid waste collection services must be provided by either the city or a private collector.

(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 40,316, § 1, 5-15-01; Ord. No. 41,408, § 9, 5-18-04; Ord. No. 41-839, § 13, 5-17-05; Ord. No. 41,958, § 1, 7-19-05; Ord. No. 42,277, § 9, 5-16-06; Ord. No. 42,662, § 14, 5-15-07; Ord. No. 43,441, § 1, 51-12-09; Ord. No. 45,563, § 23, 5-20-14, eff. 7-1-14; Ord. No. 47,262, § 1, 6-12-18, eff. 7-1-18; Ord. No. 47,636, § 18, 5-14-19, eff. 7-1-19; Ord. No. 49,220, § 17, 6-13-23, eff. 7-1-23; Ord. No. 49,966, § 24, 5-13-25, eff. 7-1-25)

Sec. 41-22. Special unscheduled service.

City forces will perform special solid waste removal or collection services, when authorized to do so by the director of public works, according to the following schedule:

(a) Fees for equipment:

1.	Dump truck, four (4) cubic yard, ten (10) cubic yard, with operator, per hour	$22.00
2.	Motor sweeper, mechanical, with operator, per hour	50.00
3.	Motor sweeper, vacuum, with operator, per hour	75.00
4.	Payloader, wheel type, with operator, per hour	26.00
5.	Payloader, track type, with operator, per hour	40.00
6.	Water spray truck, with operator, per hour	26.00
7.	Bulldozer, with operator, per hour	50.00
8.	Crane, with operator, per hour	60.00
9.	Pick-up truck standard, with operator, per hour	12.00
10.	Air compressor, with operator, per hour	10.00
11.	Reserved.	

(b) The fee for removal and disposal or incineration of dead animals on private property, per animal 30.00

(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 40,274, § 1, 4-17-01; Ord. No. 42,662, § 2; 15, 5-15-07)

ARTICLE IV. PRIVATE COLLECTORS

Sec. 41-23. Permit—Required; disposal of solid municipal waste at SPSA facilities.

(a) No person shall operate a private solid waste collection business within the city without first obtaining a permit from the director of public works or his designee.

(b) All solid waste generated or collected within the city shall be disposed of only at the facilities of the Southeastern Public Service Authority of Virginia or such other publicly owned and operated facilities designated by the director of public works or his designee.

Subsection (b) shall not apply to:

(1) Solid waste generated, purchased or utilized by an entity engaged in the business of manufacturing, mining, processing, refining or conversion except for an entity engaged in the production of energy or solid waste-derived fuels for sale to a person other than any entity controlling, controlled by or under the same control as the manufacturer, miner, processor, refiner or converter.

(2) Recyclable materials, which are those materials that have been source-separated

by any person or materials separated from solid waste by any person for utilization in both cases as a raw material to be manufactured into a product other than fuel or energy.

(3) Construction debris to be disposed of in a landfill.

(4) Waste oil.

Subsection (b) shall not prevent or prohibit disposal of solid waste at any facility which was issued a solid waste management facility permit by an agency of the commonwealth on or before July 1, 1991, or for which a part A permit application for a new solid waste management facility permit, including local governing body certification, was submitted to the Virginia Department of Environmental Quality in accordance with Code of Virginia, § 10.1-1408.1 B on or before December 31, 1991.

(c) It shall be unlawful for any person to dispose of solid waste generated or collected within the city at any place other than those designated pursuant to subsection (b). In addition to the remedies available under City Code section 41-1, the director of public works or his designee following a hearing may revoke a permit to operate a private solid waste collection business obtained under subsection (a) for failure to comply with this section, and shall have the power to seek and obtain injunctive relief from a court of competent jurisdiction to prevent violations of this section, without a showing of irreparable harm.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,834, § 2, 9-18-07)

Sec. 41-24. Same—Application.

Application for a permit required by this article shall be submitted to the director of public works or his designee and shall include:

(a) The private collector or contractor's name.

(b) The address and telephone number of the applicant.

(c) The address and location of the solid waste containers to be serviced.

(d) The character and description of material to be collected.

(e) The equipment to be used, including the location and type of receptacle.

(f) Such other requirements as the director of public works or his designee deems necessary.

(g) The applicant shall pay the established permit fee and post a deposit when required.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-25. Same—Issuance and revocation.

(a) The director of public health or his designee may authorize the private collection and disposal of solid waste by private collectors or contractors, and issue a permit applied for under this article, when:

(1) The person or organization abides by rules and regulations promulgated by the director of public works.

(2) The director of public health or his designee determines that the containers used are adequate for the quantities of waste.

(3) The director of public health or his designee determines that the private collector or contractor has an adequate, safe and sanitary disposal site lawfully available to him which he uses.

(b) A permit may be revoked by the director of public works or his designee when any applicable law, code, ordinance regulation is not complied with, or when any of the permit conditions or requirements are not complied with.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-26. Hours of operation near residential zones.

No person shall operate a private collection business within the city within six hundred (600) feet of any area zoned residential within the terms of the zoning ordinance of the city, except between the hours of 7:00 a.m. and 10:00 p.m. Notwithstanding the foregoing, the collection of

waste containers is permitted from 5:00 a.m. to 6:00 a.m. at 312 West Bute Street, 317 Monticello Avenue, 310 Monticello Avenue, 310 Granby Street, and the corner of Charlotte and Monticello Avenue.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 44,583, § 2, 2-16-12)

Sec. 41-27. Frequency of collections.

The frequency of collections by private collectors shall be at least once per week or as often as deemed necessary by the director of health or his designee for the protection of public health or the prevention of the public nuisance. The department of public works may designate days of the week for collection within certain areas of the city.
(Ord. No. 39,971, § 2, 5-23-00)

ARTICLE V. COLLECTION AND DISPOSAL OF CERTAIN WASTE

Sec. 41-28. Dead animals.

(a) Dead animals, unless hereinafter excepted, will be collected by city forces provided the dead animal is placed in a location accessible to the collector and is of a size and condition which makes it collectible. Animals which do not fit these conditions shall be removed by a private contractor paid for by the owner or custodian of the animal.

(b) Dead animals will not be collected by city forces from businesses or individuals doing business in the treatment or boarding of animals or other such commercial activities.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-29. Hazardous waste.

No hazardous waste shall be placed in any container used for collection of solid waste or otherwise placed out for collection. It shall be the responsibility of the owner or producer of such waste to legally store, collect and dispose of such waste in accordance with applicable local, state and federal law. A violation of this section shall constitute a class 1 misdemeanor.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 40,274, § 2, 4-17-01)

Sec. 41-30. Fecal matter, nonhousehold organic waste, etc.

No fecal matter or other nonhousehold organic waste other than bagged pet waste or bagged food waste shall be placed in any container used for the collection of waste by city forces, nor will city forces collect such waste. It shall be the responsibility of the producer to obtain private collector services for this type of solid waste. It shall be the responsibility of the owners or producers to collect, store and dispose of such wastes in such a way that the public health and welfare is not prejudiced. Excrement from household pets is excluded from this section, provided it is wrapped and placed in a collection container.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-31. Structural waste.

(a) All structural waste, solid waste, rubble, debris or discarded materials resulting from the construction, alteration, repairing, erecting, moving or demolition of buildings or other structures shall be collected, loaded and removed by the contractor or builder during the progress of the work, so as to leave the area of the construction or demolition in a clean, sanitary and safe condition. On the failure of the contractor or builder to carry out his obligation, it shall be the responsibility of the property owner to do so or to have a private collector or contractor to do it for him.

(b) Structural and other solid waste from construction, alteration, repairing, erection or demolition carried out by the owner or occupant of a property, which does not exceed the equivalent volume of one automated collection container full of solid waste per collection, may be collected by city forces at no charge. Amounts exceeding the volume of one ninety-gallon automated container shall be collected by city forces or a private collector under contract with the city to

dispose of bulk waste with the contractual cost being billed to the owner or tenant. Such collections shall not exceed twelve (12) collections per year. Such materials shall be arranged, packaged, bundled or placed in such a manner to facilitate efficient collection. Loose materials will not be collected and constitute a violation of this section. Materials outside the containers must be called in as bulk waste.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,662, § 16, 5-15-07)

Sec. 41-32. Bulk waste; collection.

(a) It shall be unlawful to place bulk waste in the city right-of-way without contacting the division of waste management to schedule a special city collection in advance. Bulk waste shall be placed at the collection site no later than 7:00 a.m. on the scheduled day of collection and no earlier than 5:00 p.m. on the night prior to the scheduled pickup. The location and arrangement of bulk waste materials shall be as designated by the city's division of waste management. A maximum of twelve (12) bulk waste collections will be provided at no cost by city forces in one twelve-month period, except as authorized by the director of public works. These collections shall be limited to a volume of three (3) cubic yards. Fees for volumes exceeding three (3) cubic yards will be assessed up to the following maximum amounts:

Up to nine (9) cubic yards total. Seventy-five dollars ($75.00) per scheduled bulk collection for residential properties of four (4) or fewer units. One hundred fifty dollars ($150.00) per nonscheduled bulk collection or collection for businesses and residential properties of five (5) or more units.

From ten (10) to fifteen (15) cubic yards total. One hundred fifty dollars ($150.00) per scheduled bulk collection for residential properties of four (4) or fewer units. Two hundred twenty-five dollars ($225.00) per nonscheduled bulk collection or collection for businesses and residential properties of five (5) or more units.

From sixteen (16) to twenty-two (22) cubic yards total. Two hundred dollars ($200.00) per scheduled bulk collection for residential properties of four (4) or fewer units. Two hundred seventy-five dollars ($275.00) per nonscheduled bulk collection or collection for businesses and residential properties of five (5) or more units.

Amounts exceeding twenty-two (22) cubic yards or items that must be collected by private collector under contract with the city. Twelve dollars ($12.00) per cubic yard per scheduled bulk collection for residential properties of four (4) or fewer units. Fifteen dollars ($15.00) per cubic yard per nonscheduled bulk collection or collection for businesses and residential properties of five (5) or more units.

The aforementioned fees shall be placed on the public service bill or shall be billed to the owner.

(b) For persons receiving private collection services bulk waste removal shall be done by the private collector at no cost to the city.

(c) Tires: Collection of tires shall be limited to four (4) tires per collection day and twelve (12) tires per year. Tires shall be of non-commercial sizes.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,662, § 17, 5-15-07)

Sec. 41-33. Industrial waste, commercial waste.

It shall be the responsibility of the owner or operator of any industry or business creating or causing industrial waste or commercial waste to collect, store, protect and cause to be disposed of all such industrial waste or commercial waste. Such waste will not be collected or disposed of by the city.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-34. Evictions and moveouts.

No later than twenty-four (24) hours after an eviction or moveout, the owner, owner's agent, or property manager shall remove the material, or may request the waste management division, at

their option, to remove the material. Fees for evictions and moveouts will be assessed at the bulk waste rate. The fees set forth in this section shall be placed on the public service bill or shall be billed to the owner. Materials under this section shall be arranged, packaged, bundled, or placed in a container so as to facilitate efficient collection. It shall be unlawful to fail to comply with this section.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,662, § 18, 5-15-07)

Sec. 41-35. Yard waste.

Any person receiving solid waste collection services by the city shall identify and separately package yard waste either in clear (not opaque) plastic bags, securely tied into bundles not more than four (4) feet in length and eighteen (18) inches in diameter nor weighing more than seventy-five (75) pounds, or placed in a yard waste container not to exceed thirty (30) gallons. No more than twenty (20) bundles, twenty (20) clear plastic bags or three (3) cubic yards of yard waste shall be picked up each collection day except as with the director of public works. Trees, limbs in excess of six (6) inches in diameter, and quantities exceeding three (3) cubic yards will not be collected by city forces unless authorized by the director of public works. Quantities in excess of the limits of this section shall be collected by a private collector under contract with the city to dispose of yard waste with the contractual cost being billed to the owner or tenant. Limits in excess may be waived by the director of public works in the event of special circumstances or natural disasters. Yard waste shall not be mixed with other solid waste. Yard waste shall be placed for collection only on days designated for yard waste pickup. The city shall not collect yard waste from persons receiving private collection. Persons receiving private collection shall provide for the removal of yard waste at no cost to the city. Yard waste shall not be placed for collection in an area that impedes vehicular or pedestrian traffic.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,662, § 19, 5-15-07)

Sec. 41-36. Lot clearing, tree removal and pruning waste.

No materials, such as trees, shrubbery or underbrush from land being developed and cleared, shall be picked up by city forces, but shall be collected by private collectors.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-37. Carton and other crating waste.

For persons receiving city collection of these items, craft and corrugated board, cardboard, wooden crates and other such rubbish or debris from cartons or carting shall be flattened, straightened and securely tied in bundles of not more than four (4) feet in length and eighteen (18) inches in diameter nor weighing more than seventy-five (75) pounds. No more than twenty (20) bundles shall be picked up each collection day. Such waste shall be placed for collection only on days designated for collection.
(Ord. No. 39,971, § 2, 5-23-00)

ARTICLE VI. SOLID WASTE RECYCLING

Sec. 41-38. Definitions.

Recycling services. For recycling services provided by city forces or SPSA, requirements for placement for collection, collection times shall be the same as for city collection of household waste. Recyclables may only be placed in the SPSA-provided containers. Times for placement or removal of containers shall be as set for in article III.
(Ord. No. 39,971, § 2, 5-23-00; Ord. No. 42,662, § 20, 5-15-07)

Sec. 41-39. Annual report required.

(a) Each business located within the City of Norfolk who recycles solid waste shall submit an annual report to the director of public works of the City of Norfolk.

(b) Each report required by this article shall cover the twelve-month period beginning January 1 and ending December 31. Each annual

report shall be submitted not later than sixty (60) days following the close of such twelve-month period.

(c) Each annual report required to be submitted hereunder shall include the following information with respect to the reporting party for the period covered by the report:

(1) The name and address of the reporting party and the name and telephone number of the individual who may be contacted on behalf of the reporting party with regard to its report; and

(2) The total quantity of solid waste recycled by the reporting party during the period.

(d) All quantities of solid waste required to be reported hereunder shall be measured by weight. When the reporting party is unable to accurately determine quantity by weight, such quantities shall be reported based upon carefully estimated data. Each reporting party shall identify in its report all information which is based upon estimated weight.

(e) Any person who recycles solid waste at or from locations both within and without the city and who is not reasonably able to identify the quantity of solid waste recycled at or from each location may submit a consolidated report to the city. Any such consolidated report shall state that it reflects quantities of solid waste recycled at or from all locations of the person within the City of Norfolk.

(f) Nothing hereunder shall be construed to require any party to report information of a proprietary nature. Where any party fails to report any information otherwise required hereunder based upon a determination that such information is of a proprietary nature, the party shall specify in its report the nature of the information withheld and the basis for its determination that such information is of a proprietary nature.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-40. Report forms.

The director of public works shall prescribe the form to be used by any person required to submit a report under this article. Any such form shall be available at the offices of the director of public works and at the principal offices of the Southeastern Public Service Authority.
(Ord. No. 39,971, § 2, 5-23-00)

Sec. 41-41. Penalty.

Failure to furnish any report required pursuant to this article shall be punishable by a fine of not more than five hundred dollars ($500.00) for each such violation.
(Ord. No. 39,971, § 2, 5-23-00)

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Chapter 41.1

STORMWATER MANAGEMENT*

Article I. In General

§ 41.1-1. Definitions.
§ 41.1-2. Violations of chapter.
§ 41.1-3. General responsibilities of director.
§ 41.1-4. Pollution of the stormwater system.
§ 41.1-5. Failure to install or maintain stormwater best management practice.
§ 41.1-6. Swimming or entering stormwater retention ponds, storm sewers or storm drains.
§§ 41.1-7—41.1-20. Reserved.

Article II. Stormwater Management Fees

§ 41.1-21. Findings, intent and authority.
§ 41.1-22. Classification of properties.
§ 41.1-23. Stormwater management fees.
§ 41.1-24. Stormwater utility fund.
§ 41.1-25. Virginia Erosion and Stormwater Management Program fees.

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*__Editor's note—__Ord. No. 38,344, § 1, adopted May 14, 1996, amended and reordained Ch. 41.1 to read as herein set out. Prior to this amendment, Ch. 41.1 contained similar subject matter and was derived from Ord. No. 36,492 § 1, adopted June 25, 1991; Ord. No. 36,850, § 1, adopted May 26, 1992; and Ord. No. 37,247, § 1, adopted May 18, 1993.

__Cross references—__Department of public works, § 2-130; building regulations, Ch. 11.1; erosion and sedimentation control, Ch. 15; planning, Ch. 32; sewers and drains, Ch. 39.1; Virginia Erosion and Stormwater Management Program, Ch. 41.2; wetlands and primary coastal sand dunes, Ch. 49.

ARTICLE I. IN GENERAL

Sec. 41.1-1. Definitions.

For purposes of this chapter, certain words and phrases shall have the meaning ascribed to them by this section:

Billing period: The term or length of time during which the stormwater management fee accrues and for which such fee is fixed and collected.

Council: The council of the City of Norfolk, Virginia.

Department: The department of public works.

Developed property: Any parcel which contains impervious surface area.

Director: The director of the department of public works or his designee.

Exempt property: Any parcel which is owned by any federal, state or local agencies on which said agency provides for maintenance of storm drainage and stormwater control facilities that drain directly into United States waters.

Impervious area or *impervious cover:* A surface composed of any material that significantly impedes or prevents natural infiltration of water into the soil. Impervious surfaces include, but are not limited to, roofs, buildings, streets, parking areas, and any concrete, asphalt, or compacted gravel surface.

Nonresidential property: All developed properties not meeting the residential property definition, including, but not limited to, commercial properties, industrial properties, parking- lots, recreational and cultural facilities, hotels, offices, churches, condominium associations, and multifamily facilities of five (5) units or more.

Person: Any individual, corporation, partnership, association, company, business, trust, joint venture, or other legal entity.

Residential property: Developed property containing at least one but no more than four (4) residences or dwelling units and accessory uses related to but subordinate to the purpose of providing a permanent dwelling facility. Such property shall include, but not be limited to, houses, duplexes, triplexes, guadroplexes, townhouses, and mobile homes.

Storm sewer or *storm drain:* A sewer which carries stormwaters, surface runoff, street wash waters, and drainage, but which does not carry sanitary sewage.

Stormwater management code: Chapter 41.1 of the code of the City of Norfolk, Virginia.

Stormwater runoff: That part of precipitation that travels over natural, altered, or impervious surfaces to the nearest stream, channel, conduit or impoundment and appears in surface waters.

Stormwater system: All facilities, structures, and natural watercourses used for collecting and conveying stormwater to, through, and from drainage areas to the points of final outlet including, but not limited to, the following: streets, curbs and gutters, inlets, conduits and appurtenant features, canals, creeks, channels, catch basins, ditches, drains, sewers, streams, gulches, gullies, flumes, culverts, siphons, retention or detention basins, dams, floodwalls, levees, pumping stations, and wetlands.

Undeveloped property: Any parcel which has not been altered from its natural state to disturb or alter the topography or soils on the property in a manner which substantially reduces the rate of infiltration of stormwater into the earth.
(Ord. No. 38,344, § 1, 5-14-96; Ord. No. 49,648, § 1, 6-25-24, eff. 7-1-24)

Sec. 41.1-2. Violations of chapter.

Any person who violates any provision of this chapter or any regulation promulgated pursuant to authority granted in this chapter shall be guilty of a class 1 misdemeanor. Each day of violation shall constitute a separate offense. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the violation or the property owner to correct the violation and each days default in such correction shall constitute a violation of and a separate offense under this section.
(Ord. No. 38,344, § 1, 5-14-96)

Sec. 41.1-3. General responsibilities of director.

The director of public works shall be responsible for the use, management, operation and maintenance of the stormwater system as prescribed by this chapter. He shall have authority to establish procedures and to enforce regulations pertaining to the stormwater system.
(Ord. No. 38,344, § 1, 5-14-96)

Sec. 41.1-4. Pollution of the stormwater system.

(a) It shall be unlawful for any person to put, throw, place or deposit, or allow to be put, thrown, placed or deposited, any filth, animal or vegetable matter, chips, compost, construction debris, shavings, or any other substance or pollutant whether solid or liquid in the stormwater system or place or dispose of such material or substance in an area which drains into the stormwater system.

(b) It shall be unlawful for any person to pour or discharge, or to permit to be poured or discharged, or to deposit, so that the same may be discharged, any gasoline, oil waste, antifreeze, or other automotive, motor or equipment fluids into the stormwater system.

(c) It shall be unlawful for any commercial, industrial, or manufacturing entity to discharge process water, wash water, or unpermitted discharge into the stormwater system.

(d) It shall be unlawful for any person to throw, place or deposit, or cause to be thrown, placed or deposited, in any gutter, ditch, storm drain or other drainage area in the city, anything that impedes or interferes with the free flow of stormwater therein.

(e) It shall be unlawful for any person to discharge chlorinated swimming pool water into the stormwater system.
(Ord. No. 38,344, § 1, 5-14-96)

Sec. 41.1-5. Failure to install or maintain stormwater best management practice.

It shall be unlawful to neglect or fail to install or maintain a stormwater best management practice as shown on an approved site plan where the stormwater best management practice has been reviewed and approved by the stormwater management division of the department of public works.
(Ord. No. 38,344, § 1, 5-14-96)

Sec. 41.1-6. Swimming or entering stormwater retention ponds, storm sewers or storm drains.

It shall be unlawful for any person to enter or swim in any stormwater retention pond, storm sewer or storm drain. This section shall not apply to city personnel in the performance of their duties.
(Ord. No. 40,696, § 1, 5-14-02)

Secs. 41.1-7—41.1-20. Reserved.

ARTICLE II. STORMWATER MANAGEMENT FEES

Sec. 41.1-21. Findings, intent and authority.

(a) The Federal Clean Water Act requires the city to implement a stormwater management program based on regulations and requirements published by the United States Environmental Protection Agency.

(b) The city is authorized by the State Code of Virginia to construct, reconstruct, improve and extend a stormwater utility system and to issue revenue bonds, if needed, to finance in whole or in part the cost of such system and to establish just and equitable rates, fees and charges for the services and facilities provided by the system.

(c) It is necessary and essential that the city provide for effective management ad financing of a stormwater system within the city, to provide a mechanism for mitigating the damaging effects of stormwater runoff on our environment, to improve the public health, safety and welfare by providing for the safe and efficient capture and conveyance of stormwater runoff, improvement of water quality and the correction of stormwater problems.

(d) Stormwater runoff is associated with all developed properties in the city, whether residential or nonresidential and the volume of each individual property's stormwater runoff is determined by the amount of impervious surface on the property.
(Ord. No. 38,344, § 1, 5-14-96)

Sec. 41.1-22. Classification of properties.

(a) For the purpose of determining the stormwater management fee, all properties in the city shall be classified by the director into one of the following categories:

(1) Residential.

(2) Nonresidential.

(3) Undeveloped.

(4) Exempt.

(b) The director shall determine impervious area for nonresidential property accounts considering data supplied by the real estate assessor, other city staff and/or the property owner's certified land surveyor or professional engineer. The director may require additional information from the owner as necessary to make such a determination. The assessed stormwater management fee shall be updated by the director based on any change in impervious area.

(c) The stormwater management fee for vacant developed property, both residential and nonresidential, shall be the same as that for occupied property of the same class.

(d) Undeveloped property shall be exempt from the stormwater management fee.
(Ord. No. 38,344, § 1, 5-14-96)

Sec. 41.1-23. Stormwater management fees.

(a) The following stormwater management fees are hereby authorized:

Type of Account	*Daily Rate*	*Effective Date*
Residential Accounts	$0.452	July 1, 2023
Nonresidential Accounts	$0.452 per 2,000 square foot of impervious area	July 1, 2023

For residential accounts that are active as of July 1, 2023, the rate will increase on July 1, 2023, so that the rate will be $0.452 per day. For nonresidential accounts, the rate will increase on July 1, 2023, to $0.452 per day per two thousand (2,000) square feet of impervious surface. Rates will be calculated by rounding to the nearest two thousand (2,000) square feet of impervious area with a minimum bill based on two thousand (2,000) square feet. Annual increases of four percent (4%) over the previous year's stormwater rate for residential and nonresidential accounts will begin July 1 of each year, until amended.

In addition to the above daily rates, the residential stormwater charge shall be one dollar ($1.00) per month per account and the nonresidential stormwater charge shall be one dollar ($1.00) per month per two thousand (2,000) square feet of impervious surface.

(b) All charges for this service shall be assessed to the property owner or occupant. If the occupant is a tenant and the party to whom the water and sewer service is billed, the charges may be assessed to the tenant. Assessed charges, or stormwater management fees, shall be paid periodically in accordance with promulgated regulations.

(c) When new properties are brought into the utility system, fees will accrue commencing with either the issuance of a valid building permit or upon completion of any construction which contributes impervious surface area where no certificate is issued or required for such construction.

(d) In the event of alteration or addition to a nonresidential property which alters the amount of impervious surface area, the stormwater management fees will be adjusted upon either the release of the final building inspection or upon completion of the construction, whichever occurs first, and the adjustment will be reflected in the next billing cycle prorated on a daily basis.

(e) Petitions for adjustments of the stormwater fees for residential and nonresidential properties shall be submitted to the director of public works, who shall be given authority to administer

the procedures and standards and review criteria for the adjustment of fees as established herein.

(f) As required by Section 15.2-2114 of the Code of Virginia, 1950, as amended, the director of public works shall provide for adjustments in the form of full or partial waivers of stormwater management fees under the following circumstances:

(1) *Full waivers:* Full waivers will be granted to any federal, state or local government, or public entity that holds a permit to discharge stormwater from a municipal separate storm sewer system, except that the waiver shall apply only to property covered by any such permit; and to all public roads and street rights-of-way that are owned and maintained by state or local agencies, including property rights-of-way acquired through the acquisitions process.

(2) *Partial waivers:* Partial waivers will be granted when a property owner installs, operates, and maintains a stormwater management facility that achieves a permanent reduction in stormwater flow or pollutant loadings. Partial waivers shall be based on the percentage reduction in stormwater flow and pollutant loadings from pre-installation to post-installation of the facility. The maximum reduction shall be no more than (60%) of the pre-installation fee. No person shall qualify for a waiver unless a stormwater permit from the Department of Environmental Quality has been obtained if such permit is required by statute or regulation.

(3) *Residential partial waivers:* Residential partial waivers will be granted for the following storm water management facilities of the required dimensions:

a. Rain barrels and cisterns, 10% credit (minimum drainage area 300 square feet);

b. Grass swale, 10% credit (minimum drainage area 500 square feet);

c. Buffer area, 10% credit (no minimum square feet requirement);

d. Nutrient management plan, 10% credit (minimum drainage area 100% of the site);

e. Bioswale, 20% credit (minimum drainage area 500 square feet);

f. Rain garden, 20% credit (minimum drainage area square 500 square feet);

g. Permeable pavement with undertrain, 20% credit (minimum drainage area 300 square feet);

h. Rooftop disconnect with soil amendments, 20% credit (minimum drainage area 300 square feet);

i. Green roof, 50% credit (minimum drainage area 800 square feet);

j. Living shoreline, 50% credit (no minimum drainage area requirement);

(4) *Non-residential partial waivers:* Non-residential property waivers will be granted when a non-residential property owner installs a storm water management facility that reduces runoff pollution from the site. In order to qualify for a waiver, the design and related calculations of the facility must be developed by a professional engineer or survey licensed to practice in Virginia. The percent fee reduction for non-residential partial waivers will be computed to the nearest percent using the following formula: % fee reduction = (% storm water management efficiency rating) multiplied by (area served by storm water management facility in acres/total site area)

(5) *Definitions:*

Green roof means the roof of a building that is partially or completely covered with vegetation and a growing medium, planted over a waterproof membrane.

Living shoreline means a shoreline protection option allowing for natural coastal processes to remain through the

strategic placement of plants, stone, sand, fill and other structural and organic materials.

Municipal separate storm sewer means a facility which has been shown to be effective in helping to remove pollutants from stormwater runoff.

Nutrient management plan means a program designed to manage the amount, source, placement, form and timing of the application of nutrients and soil amendments.

Permeable pavement with underdrain means pervious pavement such as concrete blocks, grid pavers, or pervious concrete or asphalt with a stone reservoir underneath. Gravel is not considered pervious pavement.

Rain garden means a landscaped area slightly below ground level that captures and filters stormwater runoff from a roof or other impervious (paved) surface.

Rooftop/downspout disconnect means a system of separating roof downspouts from the storm system and redirecting roof runoff onto pervious surfaces where soil amendments have been applied, most commonly a lawn.

Stormwater management facility means a facility which has been shown to be effective in helping to remove pollutants from stormwater runoff.

(6) *Review and inspection:*

a. The city will review each storm water management facility granted a partial waiver on a regular basis to determine whether the facility still meets the criteria for a waiver. The city will revoke a waiver if the facility no longer meets the criteria.

b. Owners receiving partial waivers must complete annual inspections of their storm water management facilities. Owners must document the results of their inspection and provide them to the city. Such documents must include a photo of the facility and a written summary of any discrepancies with the facility and the actions taken to correct them. The inspections must be submitted to the division no later than June 1 of each year and will be retained by the division. Failure to submit the annual inspection will void the rate reduction starting on July 1 of that year.

(7) *Adoption of Stormwater Fee Reduction Manual:*

a. The City of Norfolk Stormwater Fee Reduction Manual, including any appendices, referenced standards, indexes and forms is attached to this ordinance and hereby adopted for purposes of granting waivers pursuant to this Code section.

(Ord. No. 38,344, § 1, 5-14-96; Ord. No. 38,403, § 1, 5-28-96; Ord. No. 42,277, § 10, 5-16-06; Ord. No. 42,662, § 21, 5-15-07; Ord. No. 44,695, § 10, 5-22-12; Ord. No. 44,695, § 10, 5-22-12; Ord. No. 45,084, § 22, 5-14-13, eff. 7-1-13; Ord. No. 46,629, § 1, 11-15-16; Ord. No. 47,636, § 17, 5-14-19, eff. 7-1-19; Ord. No. 47,999, § 20, 5-19-20, eff. 7-1-20; Ord. No. 49,220, § 18, 6-13-23, eff. 7-1-23)

Editor's note—The Stormwater Fee Reduction Manual, referenced above, is not set out herein, but is on file and available for inspection in the city offices.

Sec. 41.1-24. Stormwater utility fund.

There shall be established a stormwater utility fund for the deposit of all fees collected pursuant to this article. The fund will be used exclusively to provide services and facilities related to the stormwater management system. The deposited monies shall be used for the following expenditures:

(1) Operation, maintenance, and repair of the stormwater system;

(2) Costs for the evaluation, design, construction management, and construction of major and minor structural replacements, improvements, and extensions of the stormwater system;

(3) Administrative and overhead costs related to the management of the stormwater system;

(4) Management services such as permit review and planning and development review related to the stormwater system;

(5) Debt service financing of capital projects related to the stormwater system; and

(6) Establishment of reasonable operating and capital reserves to meet unanticipated or emergency requirements of the utility system.

(Ord. No. 38,344, § 1, 5-14-96)

Sec. 41.1-25. Virginia Erosion and Stormwater Management Program fees.

The following fees are assessed to an applicant applying for coverage under the Virginia Erosion and Stormwater Management Program (VESMP) Authority Permit. All required fees shall be paid by the applicant to the City of Norfolk prior to the issuance of the coverage under the VESMP Authority Permit.

(a) *VESMP Authority Permit issuance fee:* When a site or sites are purchased for development within a previously-permitted common plan of development or sale, the applicant shall pay fees in accordance with the disturbed acreage of the site or sites according to the following table:

Fee Type	*Permit Fee*
Land-Disturbing Activity in a Chesapeake Bay Preservation Area (not subject to General Permit coverage; sites within designated areas of Chesapeake Bay Act localities with land-disturbance acreage equal to or greater than 2,500 square feet and less than one acre)	$290.00
General/Stormwater Management—Small Construction Activity/Land-Disturbing Activity in a Chesapeake Bay Preservation Area (not subject to General Permit coverage)/Land Clearing (Single-family detached residential structure within or outside a common plan of development or sale with land-disturbance acreage less than 5 acres	$209.00
General/Stormwater Management—Small Construction Activity/Land Clearing (Areas within common plans of development or sale with land-disturbance acreage less than 1 acre, except for single-family detached residential structures)	$450.00
General/Stormwater Management—Small Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance equal to or greater than 1 acre and less than 5 acres)	$4,100.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 5 acres and less than 10 acres)	$5,100.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 10 acres and less than 50 acres)	$6,800.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans or sale with land-disturbance acreage equal to or greater than 50 acres and less than 100 acres)	$9,100.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans or development or sale with land-disturbance acreage equal to or greater than 100 acres)	$14,300.00

The city shall remit the following administrative portion of the VESMP Authority Permit issuance fees, based on land disturbance associated with the site, to the Department of Environmental Quality (DEQ), on a routine basis:

Fee Type	*DEQ Fee*
Land-Disturbing Activity in a Chesapeake Bay Preservation Area (not subject to General Permit coverage; sites within designated areas of Chesapeake Bay Act localities with land-disturbance acreage equal to or greater than 2,500 square feet and less than one acre)	$0.00

Fee Type	*DEQ Fee*
General/Stormwater Management—Small Construction Activity/Land-Disturbing Activity in a Chesapeake Bay Preservation Area (not subject to General Permit coverage)/Land Clearing (Single-family detached residential structure within or outside a common plan of development or sale with land-disturbance acreage less than 5 acres)	$0.00
General/Stormwater Management—Small Construction Activity/Land Clearing (Areas within common plans of development or sale with land-disturbance acreage less than 1 acre, except for single-family detached residential structures)	$135.00
General/Stormwater Management—Small Construction Activity/Land Clearing (Sites or areas within common plans or development or sale with land-disturbance acreage equal to or greater than 1 acre and less than 5 acres)	$1,230.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Site or areas within common plans of development with land-disturbance acreage equal to or greater than 5 acres and less than 10 acres)	$1,530.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas with land-disturbance acreage equal to or greater than 10 acres and less than 50 acres)	$2,040.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 50 acres and less than 100 acres)	$2,730.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 100 acres)	$4,290.00

(b) *VESMP Authority Permit modification or transfer fee:* The following fees apply to modifications or transfers of individual permits or registration statements for the General Virginia Pollutant Discharge Elimination System (VPDES) Permit for Discharges of Stormwater issued by DEQ. If the permit modifications result in changes to the storm water management plans that require additional review by the city, such reviews shall be subject to the fees set out in this section. The fee assessed shall be based on the total disturbed acreage of the site. In addition to the permit modification fee, modifications resulting in an increase in total disturbed acreage shall pay the difference in the initial permit fee paid and the permit fee that would have applied for the total disturbed acreage in section (a) above.

Fee Type	*Permit Fee*
General/Stormwater Management—Small Construction Activity/Land-Disturbing Activity in a Chesapeake Bay Preservation Area (not subject to General Permit coverage)/Land Clearing (Single-family detached residential structure within or outside a common plan of development or sale with land-disturbance acreage less than 5 acres)	$20.00
General/Stormwater Management—Small Construction Activity/Land Clearing (Areas within common plans of development or sale with land-disturbance acreage less than 1 acre, except for single-family detached residential structures)	$20.00
General/Stormwater Management—Small Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 1 acre and less than 5 acres)	$320.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 5 acres and less than 10 acres)	$400.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 10 acres and less than 50 acres)	$480.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 50 acres and less than 100 acres)	$720.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 100 acres)	$1,120.00

(c) *VESMP Authority Permit annual maintenance fee:* The following annual permit maintenance fees shall apply to each permit identified below, including expired permits that have been administratively continued. With respect to the General VPDES Permit for Discharges of Stormwater from Construction Activities assessed by the city as the VESMP Authority, these fees shall apply until the permit coverage is terminated. The following annual maintenance fees shall be assessed on the permit anniversary date and based on the land-disturbance activity of the site:

Fee Type	*Permit Fee*
Land-Disturbing Activity in a Chesapeake Bay Preservation Area (not subject to General Permit coverage; sites within designated areas of Chesapeake Bay Act localities with land-disturbance acreage equal to or greater than 2,500 square feet and less than 1 acre)	$80.00
General/Stormwater Management—Small Construction Activity/Land Clearing (Areas within common plans of development or sale, with land-disturbance acreage less than one acre, except for single-family detached residential structures)	$80.00
General/Stormwater Management—Small Construction Activity/Land-Disturbing Activity in a Chesapeake Bay Preservation Area (not subject to General Permit coverage)/Land-Clearing (Single-family detached residential structure within or outside a common plan of development or sale with land-disturbance acreage less than 5 acres)	$80.00
General/Stormwater Management—Small Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance equal to or greater than 1 acre and less than 5 acres)	$650.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 5 acres and less than 10 acres)	$800.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 10 acres and less than 50 acres)	$1,050.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 50 acres and less than 100 acres)	$1,450.00
General/Stormwater Management—Large Construction Activity/Land Clearing (Sites or areas within common plans of development or sale with land-disturbance acreage equal to or greater than 100 acres)	$2,250.00

(d) *Virginia Erosion and Stormwater Management Program Fund:* The fees collected for the VESMP Authority Permit shall be deposited in the stormwater utility fund and shall be used exclusively to provide services and facilities related to the administration and implementation of the VESMP Authority Permit compliance. The deposited monies shall be used for the following expenditures:

(1) Costs associated with the administration and implementation of the VESMP Authority Permit.

(2) Costs associated with erosion and sediment control and storm water management site plan review.

(3) Costs associated with erosion and sediment control, construction and post-construction storm water best management practice and VESMP Authority Permit compliance inspections.

(4) Administrative, accounting and overhead costs related to tracking and reporting the VESMP.

(Ord. No. 45,563, § 24, 5-20-14, eff. 7-1-14; Ord. No. 49,647, § 1, 6-25-24, eff. 7-1-24; Ord. No. 50,344, § 1, 4-28-26, eff. 7-1-26)

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Chapter 41.2

VIRGINIA EROSION AND STORMWATER MANAGEMENT PROGRAM*

§ 41.2-1. Adoption of the City of Norfolk Stormwater Design and Construction Manual.
§ 41.2-2. Violations.
§ 41.2-3. Enforcement.
§ 41.2-4. Right of entry.
§ 41.2-5. Monitoring, reports, investigations, inspections, and stop work orders.
§ 41.2-6. Information to be furnished.
§ 41.2-7. Civil penalties, injunctions and other legal actions.

*__Editor's note—__Ord. No. 49,646, § 1, adopted June 25, 2024, effective July 1, 2024, amended the title of Ch. 41.2 to read as herein set out. The former Ch. 41.2 title pertained to Virginia Stormwater Management Program.

__Cross references—__Erosion and sediment control, Ch. 15; stormwater management, Ch. 41.1.

Sec. 41.2-1. Adoption of the City of Norfolk Stormwater Design and Construction Manual.

The City of Norfolk Stormwater Design and Construction Manual, including any appendices, referenced standards, indexes and forms is hereby adopted for use in the development, design and construction of projects which impact stormwater runoff and soil erosion. It shall be unlawful for any person to fail to comply with the requirements and regulations in this chapter and the referenced manual. A copy of the manual shall be kept in the department of city planning.
(Ord. No. 45,534, § 1, 5-13-14, eff. 7-1-14; Ord. No. 49,644, § 1, 6-25-24, eff. 7-1-24; Ord. No. 49,646, § 2, 6-25-24, eff. 7-1-24; Ord. No. 50,343, § 2(Exh. A), 4-28-26)

Sec. 41.2-2. Violations.

Any person violating any provisions of this chapter, including the referenced manual, shall be guilty of a Class I misdemeanor. Each day of violation shall constitute a separate offense. In addition to any penalty imposed for each violation, a judge hearing the case may order that the violation be corrected. Each day's default in such correction shall constitute a separate offense. Criminal penalties for willful or knowing violations shall be as provided for in Virginia Code section 62.1-44.15:48.
(Ord. No. 45,534, § 1, 5-13-14, eff. 7-1-14)

Sec. 41.2-3. Enforcement.

The director of the department of city planning, or his designee ("administrator"), shall administer the regulatory program set forth in this chapter and the referenced manual.

Any law enforcement officer, fire marshal or any of his assistants, or sworn special police officer, is authorized and shall have authority to enforce all provisions of this chapter.
(Ord. No. 45,534, § 1, 5-13-14, eff. 7-1-14; Ord. No. 49,646, § 3, 6-25-24, eff. 7-1-24)

Sec. 41.2-4. Right of entry.

The administrator, or his designee, may, at reasonable times and under reasonable circumstances, enter any establishment or upon any property, public or private, for the purpose of obtaining information or conducting surveys or investigations necessary in the enforcement of the provisions of this chapter.

In accordance with a performance bond with surety, cash escrow, letter of credit, any combination thereof, or such other legal arrangement, the administrator, or his designee, may also enter any establishment or upon any property, public or private, for the purpose of initiating or maintaining appropriate actions that are required by the permit conditions associated with a land-disturbing activity when a permittee, after proper notice, has failed to take acceptable action within the time specified.
(Ord. No. 45,534, § 1, 5-13-14, eff. 7-1-14)

Sec. 41.2-5. Monitoring, reports, investigations, inspections, and stop work orders.

(a) The administrator or his designee (i) may undertake periodic inspections of the installation of stormwater management measures, (ii) may require monitoring and reports from the person responsible for meeting the permit conditions to ensure compliance with the permit and to determine whether the measures required in the permit provide effective stormwater management, and (iii) may conduct such investigations and perform such other actions as are necessary to carry out the provisions of this chapter.

(b) If the city determines that there is a failure to comply with the permit or plan conditions, notice shall be provided to the permittee or person responsible for carrying out the permit conditions by mailing to the address specified in the permit application, by delivery at the site of the development activities to the agent or employee supervising such activities or by posting on the property. The notice shall specify the measures needed to comply with the permit conditions and shall specify the time within which such measures shall be completed. Upon failure to comply within the time specified, a stop work order may be issued or the permit may be revoked. However, if the city finds any such violation is grossly affecting or presents an

imminent and substantial danger of causing harmful erosion of lands or sediment deposition in waters within the watersheds of the commonwealth or otherwise substantially impacting water quality, it may issue, without prior notice, an emergency order directing such person to cease immediately all land-disturbing activities on the site.

(c) If a permittee fails to comply with a notice issued in accordance with subsection (b) within the time specified, the city may issue an order requiring the owner, permittee, person responsible for carrying out an approved plan, or person conducting the land-disturbing activities without an approved plan or required permit to cease all land-disturbing activities until the violation of the permit has ceased, or an approved plan and required permits are obtained, and specified corrective measures have been completed.
(Ord. No. 45,534, § 1, 5-13-14, eff. 7-1-14)

Sec. 41.2-6. Information to be furnished.

The administrator, or his designee may require every permit applicant, every permittee, or any person subject to permit requirements under this chapter to furnish when requested such application materials, plans, specifications, and other pertinent information as may be necessary to determine the effect of his discharge on the quality of state waters, or such other information as may be necessary to accomplish the purposes of this chapter. It shall be unlawful for any person to submit or cause to be submitted any false, fictitious, untrue or misleading statement or information in any report, document, application or written material required to be submitted.
(Ord. No. 45,534, § 1, 5-13-14, eff. 7-1-14)

Sec. 41.2-7. Civil penalties, injunctions and other legal actions.

In addition to the penalties set forth in section 41.2-2 of this chapter, the city may also pursue civil penalties, injunctions, and other legal actions pursuant to the provisions of Virginia Code sections 62.1-44.15:42 and 62.1-44.15:38 for any violations of this chapter, and the referenced manual.
(Ord. No. 45,534, § 1, 5-13-14, eff. 7-1-14)

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Chapter 42

STREETS AND SIDEWALKS*

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§ 42-2. Certain ordinances relating to streets not affected by Code.
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***Charter references—**General authority of city relative to streets, § 2(11); general rights of city with respect to streets and dedication of streets in subdivisions, § 57; powers and duties of director of public works relative to streets and sidewalks, § 54.

Cross references—Division of streets and bridges, § 2-130(c); authority of director to fix lines of streets and lots, § 2-132; application to fix street line and grade prerequisite to construction work, § 2-133; disputes as to lines fixed by director, § 2-134; leaving dead or disabled animal in street, § 6.1-73; building regulations, Ch. 11.1; canceling and correcting erroneous assessment for installation of sidewalks, § 16-36; garages, gasoline supply stations and automobile service and parking stations, Ch. 20; motor vehicle code, Ch. 25; minors prohibited on streets and sidewalks between certain hours, § 29-3; disorderly conduct, § 29-10; throwing stones or other missiles in streets, § 29-13; spitting on sidewalks, § 29-16; damaging telephone or telegraph lines, poles, etc., § 29-42; abandoning shopping carts on public property, § 29-59; parade permit required, § 29-68; block parties or street fairs require permit, § 29-69; pedestrian malls, Ch. 31; planning, Ch. 32; railroads, Ch. 35; sewers, Chs. 39.1, 39.2; subdivision regulations, Ch. 42.5; streets in trailer coach parks, § 44-25; urban enterprise zones, ch. 45.5; water supply, Ch. 46.1; zoning ordinance, App. A.

State law reference—General authority of city relative to streets and sidewalks, Code of Virginia, §§ 15.1-363—15.1-426, 15.1-888 et seq.

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ARTICLE I. IN GENERAL

Sec. 42-1. Violations of chapter generally.

Unless otherwise provided, a violation of any provision of this chapter shall constitute a Class 4 misdemeanor.

Sec. 42-2. Certain ordinances relating to streets not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall affect the validity of any ordinance opening, accepting, dedicating, vacating or naming any street, or providing the grade or location of any street or providing for the improvement thereof, and all such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code.

Sec. 42-3. Streets not to be improved until accepted by council.

It shall be unlawful for any person to grade, pave, light, clean or otherwise improve, at the expense of the city, any street dedicated to the public by any owners of private property, unless the same shall have been accepted by the council and, under its direction, laid out by the director of public works.
(Code 1958, § 45-1)

Sec. 42-4. Erecting or maintaining improper street name signs or markers.

It shall be unlawful for any person to erect, place or maintain, or cause to be erected, placed or maintained, any sign, plate or marker for the purpose of designating, and designating, any public street, alley or lane in the city by any name other than the proper name of such street, alley or lane, as shown by the official records of the department of public works.
(Code 1958, § 45-37)

Sec. 42-5. Sidewalk improvements—Assessments for.

The assessment upon the abutting property owner or owners when making, constructing, improving, replacing or enlarging walkways or sidewalks shall be measured by the peculiar benefits to such abutting property owner or owners resulting from the improvements but in no event more than eight dollars ($8.00) per lineal foot.
(Code 1958, § 45-2.1; Ord. No. 30,257, § 1, 1-8-80)

Cross reference—Cancellation or correction of erroneous assessments for installation of sidewalks, § 16-36.

Sec. 42-6. Same—Paving generally.

The director of public works shall, subject to review by the city council, determine the material with which sidewalks shall be paved, the width to be paved, the kind of foundation to be used for the pavement and any other matter material to such paving.
(Code 1958, § 45-4)

Sec. 42-7. Same—Repaving with more expensive material at request of abutting owner.

Whenever the director of public works shall, in keeping the sidewalks in repair, find it necessary to repave the same, and the owner of any property abutting on the sidewalk desires to have a more expensive sidewalk than that proposed, then the director shall, if he deems it expedient, put down the more expensive sidewalk; provided, that such owner shall first pay to the city treasurer the difference between the cost of the sidewalk proposed and the more expensive sidewalk desired by such owner, which amount shall be placed to the credit of the account from which the repaving of the sidewalk is to be paid.
(Code 1958, § 45-3)

Sec. 42-8. Same—Paving by private persons.

No person, except duly authorized employees or agents of the city, shall pave a sidewalk within the city without first obtaining a permit from the director of public works, which permit shall designate the material and foundation to be used, the width of the pavement and such other

matters as may be material. Such paving shall be done under the supervision of the director of public works.
(Code 1958, § 45-5)

Sec. 42-9. Driveway permits.

(a) No person shall construct or rehabilitate a driveway to or from a city street without first obtaining a permit therefor from the director of public works.

(b) The director of public works shall issue a permit for any such driveway not exceeding thirty (30) feet in width if the same meets with his approval; provided, however, that with the consent of the city manager, he shall issue a permit for a driveway exceeding thirty (30) feet in width, if and when he shall deem such driveway appropriate.

(c) For the issuance of such a permit, the applicant shall pay to the city the following fees:

(1)	For the construction of one or more commercial driveways on one site, per driveway	$ 315.00
(2)	For the rehabilitation of one or more commercial driveways on one site, per driveway	20.00
(3)	For the construction or rehabilitation of one or more residential driveways on one site having two (2) or fewer dwelling units, per driveway	45.00
(4)	For the construction of one or more driveways on one site having more than two (2) dwelling units, per driveway	50.00
(5)	For the rehabilitation of one or more driveways on one site having more than two (2) dwelling units, per driveway	20.00

(d) All such driveways shall be constructed under the supervision of the director of public works subject to such conditions as he may prescribe as to materials used and manner of construction, and all paving and repaving, where necessary, shall be done at the expense of the person receiving such permit. If a sidewalk is crossed by such driveway, it shall be the duty of the owner of such driveway to keep the sidewalk in good repair at his own expense. When any such driveway is discontinued, the owner of the abutting property shall remove it, if it is on city property, and shall restore any such sidewalk and curbing, if the curbing was lowered to accommodate the driveway, in accordance with the established street and sidewalk pattern.

(e) An administrative fee of two hundred fifty dollars ($250.00) will be assessed when a contractor installing a commercial driveway fails three (3) or more inspections under the same permit.

(f) Any person violating any provision of this section shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 45-14; Ord. No. 31,061, § 1, 3-31-81; Ord. No. 37,628, § 1, 5-24-94; Ord. No. 39,192, §§ 1, 2, 5-26-98; Ord. No. 43,855, §§ 1, 2, 5-18-10; Ord. No. 47,229, § 38, 5-22-18, eff. 7-1-18)

Sec. 42-9.1. Maintenance of accessways.

(a) All accessways crossing the unimproved public right-of-way between the paved vehicular portion and the private property line shall be graded, surfaced, and maintained in a manner prescribed by the director of public works, permitting safe and convenient use under normal weather conditions. At which time an accessway becomes a hazard to vehicular or pedestrian traffic it shall be the abutting property owner's responsibility to repave or replace such within a reasonable time as prescribed by the director of public works.

(b) If any such person fails to comply with an order given pursuant to this section, the necessary repairs shall be performed by city forces at the expense of the property owner, which expense shall be certified to the city treasurer for collection. Such repairs shall not relieve the owner from prosecution for such violation.

(c) Any person violating any provision of this section shall be guilty of a Class 3 misdemeanor. In addition to any penalty imposed for each violation, the judge hearing the case may direct the abutting property owner to restore and/or maintain the accessway.
(Ord. No. 36,094, § 1, 7-10-90)

Sec. 42-10. Encroachments and obstructions generally.

(a) No piazza, porch, step, fence, enclosure or other projection attached to any building or lot shall be extended beyond the building line, unless authorized by the council.

(b) It shall be unlawful for any person to affix, place, erect, maintain, post or attach or cause or allow to be affixed, placed, erected, maintained, posted or attached any sign, banner, poster, sticker, post, light bay or other window, shed, porch, portico, door, platform, step, or any other object or thing of any form or nature whatsoever in or on any right of way, street, alley or land of the city without authorization of council, unless otherwise authorized by law or ordinance.

(c) The director of public works or his designee may order the person responsible for a violation of this section to remove, correct or abate the violation in the time period provided by the director of public works or his designee. If damage to city property is incurred during removal, it shall be the responsibility of the person ordered to remove the encumbrance, obstruction, hazard, nuisance, or encroachment to restore such damaged property back to its original condition. The director of public works or his designee may also undertake the immediate removal, correction or abatement of any violation.

(d) If any person fails to comply with an order given pursuant to this section, or when the director of public works or his designee desires to undertake the removal, the encumbrance, obstruction, hazard, nuisance or encroachment shall be removed by the director of public works or his designee and the costs and expenses thereof, including any damage to city property incurred during the removal, shall be chargeable to and paid by the person causing or allowing the encumbrance, obstruction, hazard, nuisance, or encroachment and may be collected by the city treasurer, upon certification of such costs and expenses by the director of public works or his designee in the same manner as taxes and levies are collected. Every charge authorized by this section which remains unpaid shall constitute a lien against real property of the person causing or allowing the encumbrance, obstruction, hazard, encroachment and such lien shall have the same priority as liens for unpaid local real estate taxes and enforceable in the same manner as such taxes are collected.

(e) The director of public works or his designee, any law enforcement officer, designated special police officer, or the fire marshal and his assistant, shall have authority to enforce this section. Additionally, a citizen designated by the director of public works, who has attended training provided by the director, may be authorized by the director to remove signs, placards or notices placed in the right-of-way or on city property, except for political signs, civic league signs, and real estate signs.

(f) For purposes of this section, "person" is defined as any individual, firm, owner, sole proprietorship, partnership, corporation, unincorporated municipal association, governmental body, municipal corporation, executor, administrator, occupant, or other legal entity.

(g) A violation of this section shall constitute a Class 1 misdemeanor. Each day of violation shall constitute a separate offense.
(Code 1958, §§ 45-18, 45-28, 45-29; Ord. No. 39,111, § 1, 4-14-98; Ord. No. 41,869, § 1, 6-14-05)

Charter reference—Authority of city to prevent street obstruction, §§ 2(11).

Cross reference—Trains obstructing street crossings, § 35-6.

Sec. 42-10.1. Administrative approval of certain minor installations in the right-of-way.

(a) *Definitions.* The following words when used in this section shall, for the purpose of this section, have the following meanings respectively

ascribed to them herein, except in those instances when the context clearly indicates a different meaning:

Integrated Directional Signing Program (IDSP) shall mean that program administered by the Virginia Department of Transportation or its agents designed to provide information to the motoring public by means of signs installed along any state highway relating to gasoline and motor vehicle services, food, lodging, attractions, or other categories as defined by the program.

Interstate shall mean any highway in or component of the interstate system.

Interstate system shall mean the same as that term is defined in 23 U.S.C. § 103(c). The interstate system also includes highways or highway segments in the Commonwealth that constitute a part of the Dwight D. Eisenhower National System of Interstate and Defense Highways as authorized and designated in accordance with § 7 of the Federal-Aid Highway Act of 1944 and § 108(a) of the Federal-Aid Highway Act of 1956 and are declared by resolution of the Commonwealth Transportation Board to be portions of the interstate system.

State highway shall mean any highway in or component of the state highway system.

State highway system shall mean that system consisting of all public highways, causeways, bridges, landings, and wharves that are either under the jurisdiction and control of the Commonwealth Transportation Board or that have been accepted by the Virginia Department of Transportation for supervision and maintenance.

Utility box artwork wrap shall mean any vinyl wrap or coating containing an image of artwork specifically designed to be displayed on a ground-mounted public utility box located in the public right-of-way.

Wayfinding sign shall mean any sign located in any public right-of-way within the city along a portion that is not part of the state highway system which provides directional information to motorists about a specific facility or establishment that is (i) identified on signage approved through the IDSP, (ii) classified as an "attraction" under the IDSP, and (iii) installed along an interstate or other controlled-access state highway. A wayfinding sign may also be known as a trailblazer sign.

(b) *Permit for installation of wayfinding signs.* Notwithstanding the general prohibitions set forth in section 42-10, the city manager or his designee is authorized to approve the installation of a wayfinding sign allowing it to encroach in the public right-of-way in order to aid the navigation of vehicular tourist traffic associated with facilities or establishments located within the city and identified by IDSP signage. Such approval shall only be granted in accordance with the standards set forth below, shall be documented by issuance of a permit, and shall require the permittee and owner or operator of the referenced facility or establishment to comply with the following conditions:

(1) The owner or operator of the facility or establishment to which the sign refers shall pay an annual fee of one hundred fifty dollars ($150.00) per sign for the right to encroach in the public right-of-way and for other administrative and maintenance costs associated with the sign;

(2) The owner or operator of the facility or establishment to which the sign refers shall maintain the sign's structural integrity, the security of the fasteners used for installation, and the visibility of the sign face and shall remove any markings or other additions to the sign face or back, including graffiti, that are not part of the original image or text as approved through the Virginia Department of Transportation's IDSP.

(3) In the event that the installation presents any risk or interference with any matter of public health, safety or welfare or for any other public necessity, upon the request of the director of public works or his designee the owner or operator of the facility or establishment shall promptly remove the sign at his own expense;

(4) In the event that the facility or establishment to which the sign refers is closed or moved, then the owner or operator of such facility or establishment shall remove the sign from its approved location within ten (10) days of the date of closing or moving;

(5) In the event that permission allowing the sign is revoked, any ownership interest in the installation and elements associated therewith shall be considered abandoned and may be removed by the city without further notice; and

(6) The owner or operator of the facility or establishment to which the sign refers shall hold and save the city, its agents, and employees harmless from any and all liability of any nature and shall indemnify the city against any loss whatsoever incurred by reason of the existence or maintenance of the sign.

(c) *Permit review.* The application for a wayfinding sign permit shall be submitted to the department of public works and shall be issued when it is determined that all of the following criteria are met:

(1) The owner or operator of the facility or establishment to which the sign refers has consented to and signed the application for the permit and acknowledge understanding of the conditions recited in subsection (b) above.

(2) The sign, including all construction materials, content, size, and appearance, has been approved through the Virginia Department of Transportation's IDSP;

(3) The proposed location for the sign has been approved by the city's department of public works;

(4) The sign shall be installed in accordance with durability and construction standards established or adopted by the department of public works;

(5) No more than three (3) signs referring to the same facility or establishment are permitted within the city's corporate limits; and

(6) The installation will not cause any obstruction, hazard, nuisance, or risk of injury to person or property when properly installed and maintained.

(d) *Status of permit.* Any permit issued for a wayfinding sign pursuant to this section shall constitute a license only and shall be revocable by the city at any time.

(e) *Installation of utility box artwork wrap.* Notwithstanding the general prohibitions set forth in section 42-10, the city manager or his designee is authorized to approve the installation of a utility box artwork wrap allowing it to encroach in the public right-of-way as part of a public art display. Such approval shall only be granted in accordance with the conditions set forth below:

(1) The artistic image or expression conveyed by the utility box artwork wrap has been evaluated and approved by the Norfolk Arts Commission, including consideration of the location of the utility box on which it will be installed;

(2) Every artist who creates or has rights in the artistic image or expression conveyed by the utility box artwork wrap has executed a written agreement or release allowing the city to use it for display on a utility box; and

(3) Whenever the utility box on which the utility box artwork wrap is installed is not owned by the city, the owner has executed a written agreement or release allowing the city to use it for displaying the artwork wrap.

(Ord. No. 45,995, § 1, 6-23-15; Ord. No. 50,374, § 1, 5-19-26)

Sec. 42-11. Obstructing by gates and doors.

It shall be unlawful for any person to hang or maintain any gates or doors within the limits of the city in such a manner that they shall or can swing outward over sidewalks or into streets.
(Code 1958, § 45-35)

Sec. 42-12. Posts on streets; wooden framework or covering across sidewalks.

No posts of any kind shall be maintained or erected on the streets of the city, and no permanent wooden framework or covering shall be erected, constructed or maintained across any sidewalk for any purpose whatsoever, unless authorized by the city council.
(Code 1958, § 45-27)

Sec. 42-12.1. Installation of outdoor dining areas.

(a) *Definitions.* The following terms as used in this section shall have the meanings set forth herein.

(1) *Outdoor dining area.* A space located entirely within the public right-of-way, including all structural elements associated therewith, designed to be used for outdoor dining as an ancillary activity related to the operation of a nearby restaurant.

(2) *Pop-up space.* An outdoor dining area designed to be used for no longer than seventy-two (72) consecutive hours.

(3) *Seasonal space.* An outdoor dining area designed to be used for no longer than four (4) consecutive months.

(4) *Semi-permanent space.* An outdoor dining area designed to be used for no longer than three (3) consecutive years.

(b) *Approval.*

(1) *Approval by ordinance.* An encroachment or obstruction that is otherwise unlawful under the general prohibitions set forth in section 42-10 may be authorized by ordinance approved by the city council, subject to all appliable limitations of state law.

(2) *Approval by permit.* An application for a permit allowing an encroachment in the public right-of-way in the manner proposed by the application, submitted in accordance with the requirements of subsection (d), below, shall be issued when it is determined that the proposal satisfies all of the installation requirements set forth in subsection (e), below, as well as all other applicable guidelines, regulations, requirements, and laws. The right-of-way management division of the department of public works may require that the application be reviewed by any other department or division of the city that the right-of-way management division determines may have information relevant to evaluating the application's compliance with said installation requirements. An approval issued under this section shall only authorize the encroachment into the public right-of-way as proposed in the application and shall not be deemed to grant any other approvals or permissions that might be required by other provisions of law, including the uniform statewide building code, fire prevention code, or food safety code.

(c) *Prohibited and restricted activities.* The following prohibitions and restrictions apply to all approvals for any outdoor dining area, whether granted by ordinance or permit:

(1) No use of the area for any purpose shall occur between the hours of 11:00 p.m. and 7:00 a.m. the following morning.

(2) Seating must be provided for a minimum of eighty (80) percent of the occupant capacity of the outdoor dining area.

(3) No entertainment or amplified music or other sound shall be provided anywhere in the outdoor dining area.

(4) No smoking or vaping shall occur in any outdoor dining area.

(5) No food shall be cooked on an open flame in any outdoor dining area.

(6) No outdoor dining area shall be occupied in excess of the maximum occupant load identified either in the permit issued pursuant to this section or established pursuant to other provision of law.

(d) *Application requirements.* Notwithstanding the general prohibitions set forth in section 42-10, the director of the department of public works, or the director's designee, is authorized to approve the placement or installation of structures allowing them to encroach in the public right-of-way for the purpose of creating an outdoor dining area. The director may establish reasonable requirements for the submission and review of a permit application, including but not limited to drawings, specifications, elevations, and surveys stamped by a surveyor registered with the Commonwealth of Virginia, and also shall require the following information from the applicant:

(1) Written documentation from the owner of the property where the restaurant affiliated with the outdoor dining area is located acknowledging no objection to the application.

(2) For any application for a seasonal space or semi-permanent space, an operation and management requirements agreement defining the duties and responsibilities of the operator of the proposed outdoor dining area, in a form established and approved by both the director of the department of public works and the city attorney, signed by the operator.

(3) Wherever the outdoor dining area is located such that other permits or approvals are needed for its lawful placement or installation, written documentation that all such other approvals have been granted.

(4) Payment of any fee established by the city council for the outdoor dining area shown in the application submittal.

(e) *Installation requirements.*

(1) *Location and dimension.* Every outdoor dining area shall conform to the following location restrictions:

(A) No area shall be located in or adjacent to a street that has a posted speed limit greater than twenty-five (25) miles per hour.

(B) No portion of any area shall be located in a manner that would restrict the width of unobstructed space for pedestrian access around it to less than six (6) feet.

(C) The maximum allowable length of any area shall equal the width of the lot where the affiliated restaurant is located.

(D) Nothing shall be placed or constructed in the area that:

(i) Interferes with a defined fire lane, vehicular traffic, turning radii, or maneuvering areas.

(ii) Adversely affects the health of existing vegetated plantings or trees.

(iii) Impairs safe emergency egress from any building.

(2) *Signage.* All signage affixed to or located in any outdoor dining area shall conform to the following limitations:

(A) The aggregate, maximum area of the sign face of all signage shall not exceed two (2) square feet.

(B) The structure and message of every sign shall be composed of permanent materials.

(C) No temporary materials shall be used for any portion of any sign.

(3) *Limit on number.* No more than one outdoor dining area may be affiliated with a single restaurant. No affiliated restaurant shall be permitted for more than five (5) pop-up spaces in any single calendar year.

(4) *Other safety measures.*

(A) Any feature of the outdoor dining area that constitutes a hazard to pedestrian or vehicular travel is prohibited and shall be removed.

(B) The permittee shall be responsible for maintaining all areas within the outdoor dining area and within ten (10) feet on all sides, other than the side facing the street, so as to keep such areas free of litter, refuse, and both solid and liquid waste.

(C) For any electrical service connected to a semi-permanent space, wiring running to the space must be installed withing a conduit located under the sidewalk, in accordance with applicable electrical codes.

(D) The director of the department of public works is expressly authorized to impose conditions designed to protect and promote public safety on any approved permit, including requiring the immediate removal of the outdoor dining area structure in order to accommodate special events, street or sidewalk repair work, or emergency conditions, and the permittee shall comply with all such conditions.

(f) *Expiration and renewal.*

(1) Every permit authorizing a pop-up space shall expire seventy-two (72) hours after the date and time it is made effective.

(2) Every permit authorizing a seasonal space shall expire three (3) months after the date it is made effective, but may be renewed as many as two (2) times, provided that the request for renewal is made before the applicable expiration date.

(3) Every permit authorizing a semi-permanent space shall expire three (3) years after the date it is made effective but may be renewed, provided that the request for renewal is made before the applicable expiration date.

(4) In the event that a fee schedule adopted by the city council requires the periodic payment of a usage fee to either maintain an existing permit or renew a permit, the failure to timely pay such fee shall constitute an expiration of the permission to use or maintain the outdoor dining area and also a violation subject to the penalty set forth in subsection (i), below.

(5) No request for renewal shall be granted except when all elements of the structure of the outdoor dining area are found to be in compliance with all applicable regulations and guidelines and, notwithstanding such compliance, may be denied at the pleasure of the city.

(g) *Insurance required.* Any person issued a permit authorizing the placement or installation of an outdoor dining area shall maintain a comprehensive public liability insurance policy for personal injury or death and for property damage occasioned by reason of the installation, operation, maintenance or any other condition associated with the outdoor dining area with minimum policy limits of one million dollars ($1,000,000.00) for bodily injury or death to one or more persons in any one accident or event and fifty thousand dollars ($50,000.00) for damage to property resulting from any one accident or event. The policy shall include the City of Norfolk as an additional insured. Evidence that such policy is satisfactory and in effect shall include a certificate of insurance or a policy endorsement by and with an insurance company licensed to do business in the Commonwealth of Virginia and shall be furnished to the city's risk manager after issuance of the permit but prior to the commencement of any construction of the outdoor dining area.

(h) *Removal.* The permittee shall remove all elements associated with the placement or installation of a permitted outdoor dining area within three (3) business days after expiration of the permit. All areas of pavement, sidewalk, or other infrastructure and all areas of landscaping that were altered as a result of the placement or installation shall be repaired to match or exceed the quality of their condition prior to such placement or installation, subject to approval of the city's department of public works. In the event the removal is not timely completed, all such elements that are not removed shall be deemed abandoned and the city may remove them and charge the permittee for the actual costs incurred to remove the outdoor dining area and restore the area to a safe and suitable condition, which costs the permittee shall be required to pay.

(i) *Penalty.* Every violation of any provision or requirement set forth in this section and every violation of the terms of a permit issued pursu-

ant to this section, including any term establishing a deadline for the completion of the construction of an outdoor dining area, shall constitute a Class 1 misdemeanor. Each day that the violation exists shall constitute a separate offense.
(Ord. No. 45,623, § 1, 7-8-14; Ord. No. 48,300, § 1, 2-9-21; Ord. No. 49,158, § 1, 4-25-23)

Sec. 42-13. Placing goods, wares, show cases, etc., on sidewalks.

No person shall place any goods, wares, show cases, bicycle racks, signs or merchandise on any sidewalk area in the city; provided, however, that goods, wares or merchandise in the process of being received or delivered may be permitted to remain on the sidewalk so long as is reasonably necessary to receive or deliver the same, in such a manner as not to inconvenience or endanger the general public in the use of the sidewalk.
(Code 1958, § 45-15)

Sec. 42-14. Obstructing passage for purpose of making sale.

It shall be unlawful for any person to obstruct the passage along any of the streets or sidewalks of the city, by catching hold of or soliciting persons, or in any way interfering with their free passage, for the purpose of inducing or compelling them to buy any article or thing from any store or stand.
(Code 1958, § 31-65)

Sec. 42-15. Sales, solicitations and distribution of commercial advertising matter prohibited on certain streets and sidewalks.

(a) No person shall sell or offer to sell any goods, wares, merchandise, books, magazines, newspapers or any article of value, except daily publications sold on the date of publication, or take orders for or sell subscriptions to same for future delivery, or distribute commercial advertising matter on the following streets and sidewalks of the city, such streets and sidewalks being congested areas for pedestrian travel and use:

(1) The streets and sidewalks in the area bounded on the north by the northern line of Olney Road, on the east by the eastern line of Bank Street and the prolongation thereof southwardly to the southern line of Main Street, on the south by the southern line of Main Street and on the west by the western line of Boush Street.

(2) The streets and sidewalks in the area bounded on the north by the southern line of Main Street, on the east by the eastern line of Commercial Place and the prolongation southwardly thereof to the Elizabeth River, on the west by the western line of Campbell's Wharf and on the south by the Elizabeth River.

(3) The streets and sidewalks of Brooke Avenue from the Chesapeake and Ohio Terminal to Boush Street; of Church Street, from Main Street to Olney Road; of Hampton Boulevard, from Ninety-ninth Street to the Virginian Railway right-of-way; and of Main Street from Bank Street to Fenchurch Street.

(4) The streets and sidewalks in the area within a radius of one-quarter mile from the intersection of Sewells Point Road and Granby Street.

(5) The streets and sidewalks of West Ocean View Avenue from Granby Street to Mason Creek Road, and of First View Street from Portview Avenue to West Ocean View Avenue.

(6) The streets and sidewalks of Twenty-first Street from Granby Street to Hampton Boulevard, and of all streets intersecting Twenty-first Street between Granby Street and Hampton Boulevard for a distance thereon of one block in each direction from Twenty-first Street.

(b) The prohibition against the sale or distribution of the articles mentioned in subsection (a) of this section shall not be construed as prohibiting the actual distribution or circulation, without any charge therefor, to the public, of publications, leaflets, pamphlets or any printed or writ-

ten matter that disseminates opinion or information or provokes thought or pertains to any religious information or belief.

(c) Any person violating the provisions of this section shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 31-67)

Cross references—Advertising, Ch. 3; solicitations, Ch. 40.

Sec. 42-16. Reserved.

Editor's note—Ord. No. 49,044, § 1, adopted Jan. 10, 2023, repealed § 42-16, which pertained to begging and derived from Code 1958, § 31-10; Ord. No. 40,594, § 1, adopted Jan. 29, 2002.

Sec. 42-17. Installation of flag sockets.

No person shall install any flag sockets on any of the public streets or sidewalks of the city, without first obtaining a permit therefor from the city manager.
(Code 1958, § 45-16)

Sec. 42-18. Excavations—Permit and deposit.

(a) No person shall dig up any street, lane, alley or park for any purpose whatsoever, without first obtaining a written permit therefor from the director of public works. Where the street, lane, alley or park which is to be dug up is paved, the person desiring to dig up the same shall make written application to the director of public works therefor, and in such application shall state the character of the pavement to be dug up, the amount of pavement in square feet, the size of the excavation in feet, the character of the work to be done, the time when the digging will begin and the time when the work will be completed, and the director of public works shall, if the application meets with his approval, issue a permit therefor, subject to such conditions as he may impose.

(b) The applicant for a permit under this section shall, at the time of making his application, deposit with the director of public works a sum, bond or letter of credit sufficient to pay the estimated cost of restoring the street, lane, alley or park in a manner satisfactory to the director of public works, in accordance with a schedule of costs to be prepared by the director from time to time, plus (as needed) twelve (12) percent to cover the cost of overhead charges. Should the cost of the work of restoring the street, lane, alley or park, plus the overhead charges, exceed the amount of the deposit, the applicant will be required to pay the difference, within ten (10) days from the date of notice thereof. Any excess of deposit over the cost of the work and overhead charges shall be refunded to the applicant. Such deposit shall be paid to the city treasurer and placed to the credit of the fund for the payment of this work.

(c) In the case of new street construction, a permit fee in the amount of two hundred dollars ($200.00) plus one dollar ($1.00) per linear foot of new street construction shall be charged to any utility company or contractor for the cost of issuing said permit and inspecting the work. For cuts to the existing streets, a permit fee in the amount of two hundred dollars ($200.00) plus one dollar ($1.00) per square foot shall be charged to any utility company or contractor for the cost of issuing said permit and inspecting the work.

(d) Permits for excavation of the public ways shall be issued in accordance with the policies and standards set forth in the city's Right-of-Way Excavation and Restoration Manual dated July 1, 2002, which may be amended from time to time. A written warning on the first occurrence for failure to secure a permit will be issued to the utility company or contractor. An administrative fee for failure to secure a permit will be assessed to the utility company or contractor on the second occurrence at five hundred dollars ($500.00); for subsequent times thereafter, the administrative fee will be assessed at one thousand dollars ($1,000.00) per occurrence to the utility company or the contractor.
(Code 1958, §§ 45-19, 45-20; Ord. No. 39,192, § 3, 5-26-98; Ord. No. 40,778, § 1, 7-16-02; Ord. No. 43,856, § 1, 5-18-10; Ord. No. 47,918, § 1, 2-25-20)

Sec. 42-19. Same—Backfilling.

The director of public works shall, at his option, permit the person to whom a permit was issued under section 42-18 to backfill the excava-

tion, subject to such conditions as the director may impose, and under the supervision of such inspectors as the director may appoint therefor, the expense of such inspection to be added to the cost of the work, in addition to the twelve (12) percent required in section 42-18.
(Code 1958, § 45-21)

Sec. 42-20. Same—Warning lights.

Any person making any excavation in any street shall place as many lights as may be necessary to warn passers-by of such excavation, on each and every night, from sunset until sunrise, so long as such excavation shall remain in the street.
(Code 1958, § 45-23)

Sec. 42-20.1. Obstructing gutters or drains generally.

It shall be unlawful for any person to throw, place or deposit, or cause to be thrown, placed or deposited, in any gutter, ditch, storm drain or

other drainage area in the city, anything that impedes or interferes with the free flow of water therein. Any person violating the provisions of this section shall be guilty of a Class 3 misdemeanor and each day that the free flow of water is impeded or interfered with shall constitute a separate offense. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the obstruction to remove the obstruction and each day's default in removal of the obstruction shall constitute a violation of and a separate offense under this section.
(Ord. No. 36,187, § l, 8-28-90)

Sec. 42-20.2. Fill permit; required when filling or grading areas.

(a) Before any filling or grading is done by any person of any area in the city, a fill plan shall be obtained from the director of public works, or his designee. Upon approval of the fill plan and issuance of a fill permit by the director of public works or his designee, the filling or grading shall be done in accordance therewith.

(b) The fill plan shall include:

(1) A survey drawn to scale, certified as complete and accurate by a professional engineer or a certified land surveyor, which clearly delineates:

a. The existing topography of the area proposed to be filled or graded shown by contour lines;

b. The location, elevation, extent, and type of proposed fill or grading shown by contour lines and total fill and disturbed area calculations; and

c. The location of natural drainage areas which would or could be obstructed by the fill.

(2) Appropriate erosion and sedimentation control procedures as required by chapter 15 of the City Code.

(3) A description of the purpose and necessity of the filling or grading.

(4) Any additional information or data the director of public works or his designee requests to complete their review of the fill plan.

(c) The director of public works or his designee prior to issuing a fill permit, may require the applicant to submit a reasonable performance bond with surety, cash bond, letter of credit, any combination thereof, or such other legal arrangement acceptable to the director of public works or his designee to ensure that measures could be taken by the city at the applicant's expense should he fail, after proper notice, within the time specified, to fill and maintain drainage in accordance with the fill permit. If the applicant should fail to fill or maintain drainage in accordance with the fill permit, the city may collect from the permittee the difference should the amount of the reasonable cost of such action exceed the amount of security held. Within sixty (60) days of the inspection and approval of the filling and adequate stabilization, such bond, cash bond, letter of credit, or other legal arrangement, or the unexpended or unobligated portion thereof shall be refunded to the applicant or terminated. These requirements are in addition to all other provisions relating to the issuance of fill permits and are not intended to otherwise affect the requirements for such permits.

(d) Upon the approval of the fill plan under this section a fill permit shall be issued. Upon the completion of the work thereunder, the owner of the land or the person obtaining the permit shall thereafter maintain the drainage in such condition as to allow the free flow of water through it in an unobstructed manner. Should this drainage become obstructed, a plan for reopening it must be submitted to the director of public works or his designee.

(e) Any person violating any provision of this section shall be guilty of a Class 1 misdemeanor. Each day that drainage is obstructed shall constitute a separate offense. If the owner or any other person with the knowledge and consent of the owner fails to carry out the filling within the terms and conditions set forth in the approved fill plan, the director of public works or his designee shall revoke the same and take such

action as is appropriate to remedy or restore the area affected. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the improper filling to remove such material and/or restore the area, and each day's default in such removal or restoration shall constitute a violation of and a separate offense under this section.
(Ord. No. 36,187, § 1, 8-28-90; Ord. No. 37,168, § 1, 3-16-93; Ord. No. 40,580, § 1, 1-8-02)

Sec. 42-20.3. Filling of Chesapeake Bay Preservation Areas.

(a) Before any filling, clearing or grading is done by the owner, or by any other person with the knowledge or consent of the owner, of any area designated pursuant to section 494 of the zoning ordinance as a Chesapeake Bay Preservation Area a fill plan shall be submitted to the director of public works. The fill plan shall be reviewed by the department of public works and by the division of environmental affairs to ensure consistency with the provisions of this section and of section 494 of the Zoning ordinance. Upon approval of the fill plan by the department of public works and the division of environmental affairs, the filling, clearing or grading shall be done in accordance therewith.

(b) For purposes of this section, the fill plan shall include:

(1) A survey drawn to scale, certified as complete and accurate by a professional engineer or a certified land surveyor, which clearly delineates:

a. The existing topography of the area proposed to be filled, cleared or graded shown by contour lines;

b. The tidal wetlands, tidal shores, non-tidal wetlands connected by surface flow and contiguous to tidal wetlands and tributary streams, and a one hundred-foot buffer located adjacent to and landward of the components listed above;

c. The location, elevation, extent, and type of proposed fill, clearing or grading shown by contour lines and total fill and disturbed area calculations; and

d. The location of natural drainage areas which would or could be obstructed by the fill.

(2) Appropriate erosion and sedimentation control procedures as required by chapter 15 of the City Code.

(3) A showing of all wetlands permits required by law.

(4) A description of the purpose and necessity of the filling, clearing or grading. If the filling, clearing or grading results in over two thousand five hundred (2,500) square feet of land disturbance or land-disturbing activity as defined in section 32.2-3 of the City Code, and is done as part of development or redevelopment as defined in section 32.2-3 of the City Code, the owner shall follow the appropriate procedures as detailed in article III of chapter 32.2 of the City Code.

(5) If trees or other vegetation are to be removed in the buffer area of the resource protection area, as defined in section 32.2-3 of the City Code, in order to fill, clear or grade, a showing of all necessary tree permits pursuant to section 30-24(a)(9) of the City Code is required.

(6) Any additional information or data the director of public works or the division of environmental affairs requests to complete their review of the fill plan.

(c) Upon the approval of a fill plan under this section and the completion of the work thereunder, the owner of the land shall thereafter maintain the drainage in such condition as to allow the free flow of water through it in an unobstructed manner. If the drainage becomes obstructed, the owner shall submit a plan to the director of public works for reopening it.

(d) Any person violating any provision of this section shall be guilty of a Class 1 misdemeanor. Each day that drainage is obstructed shall constitute a separate offense. If the owner or any other person with the knowledge or consent of

the owner fails to carry out the filling, clearing or grading within the terms and conditions set forth in the approved fill plan, the director of public works shall revoke the same and take such action as is appropriate to remedy or restore the area affected. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the improper filling, clearing or grading to remove such material and/or restore the area, and each day's default in such removal or restoration shall constitute a violation of and a separate offense under this section.
(Ord. No. 36,175, § 1, 8-28-90; Ord. No. 40,580, § 2, 1-8-02)

Sec. 42-21. General responsibility to pay for damaging sidewalks.

Any person damaging any sidewalk shall, when required by the director of public works, pay to the city treasurer such an amount as shall be estimated by the director to be necessary to repair the damage and the director shall repair the same.
(Code 1958, § 45-6)

Sec. 42-22. Damage to street or sidewalk by private sewer, drain or underground utility.

Whenever the surface of any street or sidewalk area, whether paved or not, is damaged by reason of any private sewer, drain or underground utility, it shall be the duty of the person owning the same to have the surface properly repaired and, upon neglect thereof for five (5) days, the director of public works shall cause the repairs to be made, at the expense of such owner, to be collected as other debts due the city are collected.
(Code 1958, § 45-11)

Sec. 42-23. Closing defective private sewer, drain or underground utility.

No person shall install or maintain, or cause to be installed or maintained, any defective private sewer, drain or underground utility, where the same passes under a public street. The director of utilities shall have the right to cause such defective sewer, drain or underground utility to be closed and the cost thereof shall be recoverable from such person.
(Code 1958, § 45-12)

Sec. 42-24. Deposit or transportation of liquid waste on street; penalty for violation.

(a) It shall be unlawful for any person to cast or cause to flow any swill, liquid refuse, or liquid waste into any street or right-of-way, or transport such material except in a covered watertight vessel or tank.

(b) A violation of this section shall constitute a Class 1 misdemeanor.
(Code 1958, § 45-9; Ord. No. 38,345, § 1, 5-14-96)

Sec. 42-25. Protection of pavement from spilling or dripping petroleum product or other liquid.

(a) No person shall pour, spill, drop, release, or allow to pour, spill, drop or release upon or over any pavement laid or any street, sidewalk, right-of-way, or public place in the city, any petroleum products or any other liquids which could or would be injurious to the environment or the public.

(b) All wagons, tanks, vehicles, vessels, trailers, semi-trailers, and trucks used for the delivery of the substances referred to in subsection (a) above shall be properly equipped with non-drip taps and faucets, securely attached thereto, and in filling any measure or other vessel from such taps or faucets, such measure or other vessel must be held so that there shall be no drip or overflow from such measure or vessel, and in removing the same from over any street, sidewalk or other public place, no drip or overflow from such measure or other no receptacle for holding such material shall be placed on any street, sidewalk or public place.

(c) A violation of any provision of this section shall constitute a Class 1 misdemeanor. Each day of violation shall constitute a separate offense. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the violation to correct

the violation and restore the area or site impacted and each days default in such correction, remediation or restoration shall constitute a violation of and a separate offense under this section.
(Code 1958, § 45-25; Ord. No. 38,346, § 1, 5-14-96)

Sec. 42-26. Water from building roof to be conducted under sidewalk.

The water from the roof of every building which would flow by gravity over a public sidewalk, or over a driveway crossing a public sidewalk, shall be carried by means of a conductor under the sidewalk to the gutter, and the owner of any such building shall provide the same with the necessary conductor for such purpose. The provisions of this section shall not apply to sections of the city where there is no curbing or guttering.
(Code 1958, § 45-26)

Sec. 42-27. Wetting sidewalk by persons washing store fronts or windows.

It shall be unlawful for any person to wash, or cause to be washed, any store front or window in a manner that results in wetting any sidewalk; provided, that the washing of store fronts and windows by the use of squeegee or some other modern device, where no water flows on or over the sidewalk shall be permitted, if proper care is exercised in protecting pedestrians while such washing is in operation.
(Code 1958, § 45-10)

Sec. 42-28. Registration and bond of persons using scaffolds or other devices over streets in business of cleaning buildings.

It shall be the duty of every person who shall use scaffolding and other apparatus suspended over the streets of the city in the conduct of his business in cleaning buildings to register with the building official, giving his name, residence and place of business, and, in case of removal from one place to another in the city, to have made a corresponding change in such register. It shall be the further duty of every such person to give good and sufficient bond, in the sum of five thousand dollars ($5,000.00), with corporate surety to be approved by the city attorney, to indemnify the city against any loss or damage resulting from the suspension of such scaffolding or apparatus over the public streets of the city.
(Code 1958, § 45-33)

Cross reference—Acceptance of liability insurance in lieu of indemnity bond, § 2-10.

Sec. 42-29. Cleaning buildings located on streets by sand blast method.

The cleaning of buildings or other structures located on public streets in the city, by the sand blast method, is hereby prohibited, unless the staging and work is so enclosed as to catch all sand and dust from such cleaning operation, and to prevent the same from falling or being blown into the streets or buildings adjacent thereto. Any person violating any provision of this section shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 45-32)

Sec. 42-30. Protection of pedestrians from dripping paint.

It shall be unlawful for any person to engage in the painting of the side or any part of a building abutting upon any public street, without first protecting the sides and bottom of his platform or scaffolding with canvas or some other material, so as to prevent the dripping or falling of paint upon pedestrians using such public street.
(Code 1958, § 45-34)

Sec. 42-31. Duty of persons selling from vehicles to keep adjacent street and sidewalk clean.

Any person selling produce, material or other articles from a vehicle shall at all times keep the sidewalk and street adjacent to his vehicle free and clear of debris and refuse from the produce, material or other articles sold by him and, whenever required to do so by the chief of police, his assistants or any police officer, shall clean up such debris and refuse from the street and sidewalk adjacent to his vehicle and deposit same in his vehicle or in a receptacle to be provided by him.
(Code 1958, § 45-8)

Sec. 42-32. Duty of owner or occupant of abutting land to keep sidewalk clean and free from grass and weeds.

(a) It shall be the duty of the occupant of any land or premises abutting upon any sidewalk, whether paved or not, and the duty of the owner of any unoccupied land or premises abutting upon any paved sidewalk, to remove any grass or weeds from the sidewalk in front of such land or premises, and to keep such sidewalk clear of paper, debris and refuse. No grass, weeds, debris, dirt, refuse or other litter swept or removed from such sidewalk shall be deposited or piled in any gutter or street, but shall be placed in a proper receptacle for collection. Such receptacle shall be provided by the occupant or owner and placed for collection on the day specified by the director of public works for collection from such premises. The occupant, or if unoccupied, the owner, of any such land or premises in front of which any such grass, weeds, dirt, refuse, debris or other litter is found contrary to the provisions of this section shall be prima facie the person responsible therefor.

(b) The director of public health is hereby authorized to give to any such occupant or owner who shall fail to keep the sidewalk abutting his premises clean and free from grass or weeds, such notice as he may deem advisable, and to see that the provisions of this section are enforced, and every day that any sidewalk shall not remain clean and free from grass or weeds, after notice from the director of public health to clean the same, shall constitute a separate offense under this section.

(Code 1958, § 45-7; Ord. No. 37,889, § 1, 2-14-95)

State law reference—Authority of city to require removal of weeds from public property, Code of Virginia, 15.1-867.

Sec. 42-33. Reserved.

Editor's note—Section 1 of Ord. No. 36,397, adopted April 16, 1991, repealed former § 42-33, which pertained to the duty of the owner or occupant of abutting lands to remove litter and to cut grass, weeds and other vegetable matter between the sidewalk and the curb, and derived from Ord. No. 29,813, § 1, adopted Feb. 13, 1979, and Ord. No. 32,469, § 1, adopted July 26, 1983.

Sec. 42-34. Removal of snow from sidewalks—By owners or occupants of abutting property.

It shall be the duty of every person using or occupying, in any manner or for any purpose whatsoever, any house, store, shop, building or tenement of any kind, and of persons having charge of religious institutions and public buildings of any description, other than public schools and buildings owned or occupied by the city, and of owners of unoccupied houses or unimproved lots, situate on any paved street, lane or alley in the city, within three (3) hours after the fall of any snow has ceased, to remove and clear away, or cause to be removed and cleared away, the snow from the sidewalks fronting such house, store, shop, religious institution, building or lot, in such manner as not to obstruct the passage of the water in the gutters. If snow ceases to fall between the hours of 3:00 p.m. and 7:00 a.m., the removal of the snow before 11:00 a.m. will be deemed compliance with this section.

(Code 1958, § 45-30; Ord. No. 46,270, § 3, 2-23-16)

State law reference—Authority for above section, Code of Virginia, § 15.1-867.

Sec. 42-35. Same—By director of public works.

(a) It shall be the duty of the director of public works to cause snow and ice to be removed, by persons employed for cleaning the streets and by additional labor when an emergency shall require it, from the sidewalks or footways across intersecting streets, and to remove ice and other obstructions to the free passage of water at the intersections of the several streets of the city, and to cause snow and ice to be removed from the sidewalks fronting the houses, stores, religious institutions, lots or buildings of such persons as shall neglect or refuse to remove the same as provided in section 42-34, at the expense of such persons, the expense thereof to be certified to the city treasurer for collection.

(b) It shall also be the duty of the director of public works, at the cost of the city, to clear away the snow from the sidewalks and crossings in front of the public schools of the city and buildings owned or occupied by the city.
(Code 1958, § 45-31; Ord. No. 46,270, § 4, 2-23-16)

ARTICLE I-A. VENDORS*

Sec. 42-36. Definitions.

The definitions set out in this section shall apply in the interpretation and enforcement of this article.

(a) *Designated parking location.* A space or series of spaces within the public right-of-way along the edge of a paved, vehicular roadway that is approved by the city manager pursuant to section 42-37, below, as a location where a food truck vendor is permitted to operate in accordance with a vendor license.

(b) *Designated sidewalk location.* An area or series of areas within the public right-of-way outside of the paved, vehicular roadway that is approved by the city manager pursuant to section 42-37, below, as a location where a food vendor or merchandise vendor is permitted to operate in accordance with a vendor license.

(c) *Food.* Any raw, cooked or processed edible substance, beverage, ingredient, ice or water used or intended for use or for sale in whole or in part for human consumption.

(d) *Food truck vendor.* Any vendor who sells or offers for sale food, other than a vendor who sells or offers for sale only ice cream or ice confectionaries, from a motor vehicle or a trailer licensed to be operated on the highway by the Virginia Department of Motor Vehicles.

(e) *Food vendor.* Any vendor who sells or offers for sale food from a pushcart but not including a food truck vendor.

(f) *Ice cream truck vendor.* Any vendor who sells or offers for sale only ice cream or ice confectionaries from a motor vehicle or a trailer licensed to be operated on the highway by the Virginia Department of Motor Vehicles.

(g) *Merchandise vendor.* Any vendor who sells or offers for sale goods other than food for immediate delivery upon purchase from a pushcart.

(h) *Person.* Any individual, partner, partnership, corporation, association, municipal corporation, unincorporated association or other legal entity.

(i) *Pushcart.* Any wheeled vehicle or device used by a vendor for the purpose of displaying, dispensing, or storing any merchandise or food that is offered for sale and which may be moved without the assistance of a motor.

(j) *Special event.* An activity, such as a show, exhibit of any kind, convention, parade, festival, circus, sporting event, fair, or carnival, held for a limited period of time at a specific location.

(k) *Stand.* Any structure, table, tent, or device used by a vendor for the purpose of displaying, dispensing, or storing any merchandise or food that is offered for sale.

(l) *Vendor.* Any person, mobile or stationary, who sells or offers for sale food, goods, or services for immediate delivery upon purchase from a pushcart, stand, tent, or vehicle. The term "vendor" shall not include a person who exclusively sells or offers for sale farm products from a vehicle, provided that the farm products are produced in an agricultural operation, as defined in section 3.2-300 of the Code of Virginia, located within fifty (50) miles of the corporate limits of the city.

(Ord. No. 45,119, § 1, 5-21-13)

*__Editor's note—__Ord. No. 45,119, § 1, adopted May 21, 2013, amended Art. I-A in its entirety to read as herein set out. Former Art. I-A, §§ 42-36—42-51.1, pertained to similar subject matter, and derived from Ord. No. 39,280, § 1, adopted August 18, 1998.

Sec. 42-37. Designated locations.

(a) *Parking spaces.* The city manager may establish one or more designated parking locations as spaces within the public right-of-way where a food truck vendor may operate. Such designated locations shall:

(1) Not be within ten (10) feet of an intersection, crosswalk, driveway, bus stop, taxi stand, or handicapped parking space; and

(2) Not be situated in any part of any designated loading zone or fire lane.

(b) *Sidewalk locations.* The city manager may establish one or more designated sidewalk locations as areas within the public right-of-way where a food vendor or merchandise vendor may operate. Such designated locations shall:

(1) Not be within ten (10) feet of an intersection, crosswalk, driveway, bus stop or taxi stand; and

(2) Not be located on any sidewalk less than nine (9) feet in width.

(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-38. Locations limited.

No vendor shall operate in any area of the city other than the following:

(a) On property where the applicable zoning regulations allow vending activity;

(b) Within the boundaries of any area designated for a special event pursuant to section 42-48, below; and

(c) Within the public right-of-way, subject to the following restrictions:

(1) All food vendors and merchandise vendors shall only operate in a designated sidewalk location;

(2) All food truck vendors shall only operate in a designated parking location; and

(3) All ice cream truck vendors shall only operate in either a designated parking location or in other areas of the right-of-way such that the truck is not parked for more than five (5) minutes, but never in a parking space with an active meter.

(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-39. Vendor license requirements.

(a) *Types of vendors limited.* No vendors other than ice cream truck vendors, food vendors, merchandise vendors, and food truck vendors shall be permitted to operate within the city.

(b) *Vendor license.*

(1) No vendor shall be permitted to operate in any public right-of-way, including any designated parking location or designated sidewalk location, without a vendor license.

(2) When a vendor is operating outside the public right-of-way and on property where the applicable zoning regulations allow such activity, no vendor license shall be required

(3) No vendor license shall be leased, sold, or otherwise transferred.

(4) In addition to any other applicable fees required pursuant to this Code or other applicable law, ordinance, rule or regulation, a vendor license fee established by the city manager must be paid at the time each vendor license is issued.

(c) *Business license.*

(1) No vendor shall be permitted to operate without either a business license or a special event business license obtained from the commissioner of the revenue.

(2) No business license or special event business license shall be issued or renewed if the applicant has failed to answer a summons, appear at a hearing for violation of a department of health regulation, or has failed to pay a fine or penalty assessed by a court or other authority having enforcement powers against the vendor as a result of violations related to a vending operation.

(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-40. Health and fire safety permits.

(a) *Health permit.* An ice cream truck vendor, food vendor, or food truck vendor must obtain a health permit from the department of health and shall not operate without a valid, current health permit.

(b) *Fire safety permit.* Wherever the operations of a vendor involve heating, cooking, or preparing food in a manner that involves a fire hazard, the vendor must undergo an annual fire inspection and must obtain a fire safety permit from the fire marshal. The vendor shall not operate without a valid, current fire safety permit.
(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-41. Display of licenses and permits.

(a) *Licenses.* Any vendor operating in a designated parking location or designated sidewalk location must conspicuously display the vendor license and appropriate business license at all times while operating.

(b) *Permits.* Ice cream truck vendors, food vendors, and food truck vendors shall conspicuously display the health permit and any required fire safety permit on the pushcart, stand, or vehicle at all times while operating.
(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-42. Compliance with food safety regulations.

In order to promote the safe storage, preparation, and handling of food and safe operation of vehicles and other equipment, every ice cream truck vendor, food vendor, and food truck vendor shall:

(a) Permit regular inspections of any pushcart, stand or vehicle used in the vending operation by the department of health and the fire marshal or any other person authorized by law to enforce the provisions of the Virginia Statewide Fire Prevention Code;

(b) Possess, retain and make available for inspection satisfactory proof or documentation detailing the source of all foods being held, stored, offered for sale, sold, distributed, or given away; and

(c) Not use or permit any person to use the pushcart, stand or vehicle for distributing or giving away of any foods other than those persons authorized by the vendor license or approved in writing by the department of health.
(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-43. Hours of operation.

(a) *Merchandise vendors, food vendors, and food truck vendors.*

(1) Hours of operation for merchandise vendors, food vendors, and food truck vendors may be established by the city manager and may vary based on the type of vendor, the location, and whether the vendor is operating in conjunction with a special event.

(2) Where applicable to a vendor operating in a designated parking location or designated sidewalk location, the city manager may also establish minimum days of operation per week, month, or longer period of time and may vary them based on the type of vendor and the location.

(b) *Ice cream trucks.*

(1) When operating in the public right-of-way, an ice cream truck vendor shall only operate between the hours of 7:00 a.m. and 10:00 p.m. Sunday through Thursday and between the hours of 7:00 a.m. and 11:00 p.m. Friday and Saturday.

(2) When operating outside the boundaries of any public right-of-way, an ice cream truck vendor shall be limited by the hours established for a food truck vendor.
(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-44. Operational requirements for all vendors.

The following requirements apply to all vendors while in operation.

(a) No radio or other sound-amplifying device shall be used with the exception of recorded music used by an ice cream truck vendor.

(b) No flashing sign or sign that moves or gives the appearance of moving shall be used.

(c) No portion of the pushcart, stand, or vehicle shall be connected to any water, sewer, or gas utility and any electrical generator or electrical connection must comply with any applicable building code and electrical code requirements.

(d) Whenever the vendor is operating within the boundaries of a public right-of-way, no sign, menu board, table, waste receptacle or any other object associated with the vendor operation shall be situated on the road, sidewalk, or ground with the exception of one chair and one cooler, which may be placed on the sidewalk immediately adjacent to the pushcart, stand, or vehicle.

(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-45. Operational requirements for vendors using pushcarts and stands.

The following limitations apply to any merchandise vendor or food vendor using a pushcart or stand.

(a) If located within the boundaries of any public right-of-way:

(1) The entire pushcart or stand shall be situated within the boundaries of a designated sidewalk location;

(2) The pushcart shall not exceed four (4) feet in width or seven (7) feet in length. If an umbrella or awning is used, it shall not exceed eight (8) feet in height, nine (9) feet in diameter, and shall be extended a minimum of seven (7) feet above grade; and

(3) The vendor must occupy and operate in the designated sidewalk location and shall not be absent more than the maximum number of days allowable under rules established by the city manager.

(b) If located outside the boundaries of any public right-of-way, the pushcart or stand shall not be situated on any landscaped, unpaved, or unimproved surface.

(c) A waste receptacle shall be provided for the use of customers and shall be affixed or attached to the pushcart or stand.

(d) Pushcarts or stands shall not touch, lean against or be affixed to any building or structure including lamp posts, parking meters, mail boxes, or similar structures.

(e) Pushcarts or stands shall not be located against display windows of fixed-location businesses.

(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-46. Operational requirements for food truck vendors.

The following restrictions apply to any food truck vendor.

(a) If located within the boundaries of any public right-of-way:

(1) The entire vendor vehicle shall be situated on the paved roadway within the boundaries of a designated parking location;

(2) No vending shall be allowed from either the back of the vehicle or the side of the vehicle that faces the roadway. All vending activity must take place toward the curb;

(3) The vehicle shall be enclosed and accommodate the performance of all vendor operations by persons who are onboard the vehicle. Only those openings used to service customers through the side of the vehicle are allowed;

(4) The vendor shall secure and maintain a policy of automobile liability insurance coverage issued by a company authorized to do business in the state in the amount of at least one million dollars ($1,000,000.00) for injury to or death of any person or persons in any one

incident and one hundred thousand dollars ($100,000.00) for property damage, and the policy shall list the city as an additional insured; and

(5) The vendor must occupy and operate in the designated parking location and shall not be absent more than the maximum number of days allowable under rules established by the city manager.

(b) If located outside the boundaries of any public right-of-way and on property where the applicable zoning regulations allow such activity, the vendor vehicle shall not be situated on any unpaved or unimproved surface.

(c) A waste receptacle shall be provided for the use of customers and shall be mounted to the vehicle.

(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-47. Operational requirements for ice cream truck vendors.

The following restrictions apply to any ice cream truck vendor.

(a) If located within the boundaries of any public right-of-way:

(1) When stopping to vend to a customer, the vehicle shall be pulled to the curb or shoulder of the road and the engine shall be turned off except when the operation of the engine is necessary for producing the product;

(2) The vendor shall not stop within one hundred (100) feet of any intersection;

(3) The vendor shall not stop on any street having a speed limit higher than twenty-five (25) miles per hour;

(4) The vendor vehicle shall not be parked in the public right-of-way unless actively operating and shall not remain parked in any location for more than five (5) minutes; and

(5) The vendor shall secure and maintain a policy of automobile liability insurance coverage issued by a company authorized to do business in the state in the amount of at least one million dollars ($1,000,000.00) for injury to or death of any person or persons in any one incident and one hundred thousand dollars ($100,000.00) for property damage, and the policy shall list the city as an additional insured.

(b) If located outside the boundaries of any public right-of-way, the vendor vehicle shall not be situated on any unpaved or unimproved surface.

(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-48. Special events.

Notwithstanding any other provision or limitation set forth in this article, the city council or city manager may designate certain portions or segments of any public right-of-way or certain areas of city-owned property for use by vendors for limited periods of time in conjunction with a special event. The following special rules and exemptions apply to such vendors who are operating in conjunction with the established location and time limits for such a special event.

(a) The prohibition against the operation of vendors other than ice cream truck vendors, food vendors, merchandise vendors, and food truck vendors in section 42-39(a) shall not apply.

(b) The requirement of obtaining a vendor license in section 42-39(b) shall not apply.

(c) The limitation on connections to utilities in section 42-44(d) shall not apply.

(d) The location requirements and size limitations for food vendors and merchandise vendors in section 42-45 shall not apply.

(e) The location requirements for food truck vendors in section 42-46 shall not apply.

(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-49. Enforcement.

(a) Any city law enforcement officer, duly designated sworn special police officer, the director of the department of health or his designee,

or the fire marshal or any of his assistants, is authorized and shall have authority to enforce all provisions of this article.

(b) Any police officer or other person authorized to enforce the provisions of this article may request that a vendor cease operating or cease operating in a particular manner due to a special public safety concern. In such instances the vendor shall promptly adjust, limit, move, or cease the operation in order to fully comply with the request.
(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-50. Penalties.

(a) Any vendor operating without a vendor license shall be guilty of a Class 2 misdemeanor.

(b) Any vendor operating with a vendor license found to be in violation of any limitation of his license or any of the rules authorized by or expressed in this article may have his license suspended or revoked and may be deemed ineligible for any new vendor license for a period of time determined by the city manager.

(c) Any business license issued to a vendor may be suspended or revoked by the commissioner of the revenue upon notice and an informal hearing in the event that the vendor fails to comply with the requirements and restrictions of this article.
(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-51. Seizure.

(a) *Illegal and unlicensed vending.* Any police officer or other person authorized to enforce the provisions of this article may seize any pushcart or stand which is being used by an unlicensed vendor and may seize any food held or offered for sale by any food vendor who operates in violation of any provision of this article. Any seized pushcart, stand or food shall be subject to forfeiture and disposal as authorized by law.

(b) *Treatment of seized food.* In the event that a seizure made pursuant to this article shall include any perishable item of food which cannot be retained in custody without such item becoming unwholesome, putrid, decomposed or unfit for human consumption, such item may be ordered to be destroyed or otherwise disposed of provided, however, that written notice of such destruction or other disposal setting forth any itemized description of the property, the reason for its destruction or other disposition, and the date when it was destroyed or otherwise disposed of has been mailed to the vendor from whom it was seized.
(Ord. No. 45,119, § 1, 5-21-13)

Sec. 42-51.1. Reserved.

ARTICLE II. UTILITY POLES, WIRES AND CONDUITS IN, OVER OR UNDER STREETS*

DIVISION 1. GENERALLY

Sec. 42-52. Definitions.

(a) Certain words used in this article shall have the meanings ascribed to them by this section, unless clearly indicated to the contrary.

(b) *Distributing pole.* The words "distributing pole" shall mean any pole on which an underground cable terminates, and which is used only for the support of distributing wires or transformers, or both.

(c) *Distributing wire.* The words "distributing wire" shall mean any wire strung direct from a distributing pole to some building or structure, without any intervening pole.

(d) *Inferior block work.* The words "inferior block work" shall mean the grouping of distributing wires into cables, metal rings or pipes, and attaching the same to the exterior wall of some building or structure.

(e) *Install.* The word "install" shall mean to set or use.

(f) *Pole.* The word "pole" shall mean a pole on any street or lot in the city.

*__Cross reference—__Posting advertisements on utility poles, 3-8.

(g) *Street.* The word "street" shall mean the entire width from property line to property line of any street, as defined in section 1-2 of this Code, which has been accepted as such by action of the city council.

(h) *Utility facility.* The words "utility facility" shall mean the plant, equipment and property, including, but not limited to, pipes, mains, conduits, ducts, cables, fiber optic cables, circuits, wires, guy wires, pedestals, cross-connect cabinets, power supplies, transformers, meters, lines, plant and equipment located under, on or above the surface of the ground within the public ways of the city.

(i) *Overhead catenary system.* The words "overhead catenary system" shall mean the conductors and related items, including foundations, poles, contact wire, messenger wire, feeder cables, support assemblies, sectioning devices, disconnect switches, grounding connections together with their related supports, terminations and insulation and other equipment and assemblies that distributes DC electric power from substations to light rail transit vehicles.
(Code 1958, § 35-1; Ord. No. 40,212, § 1, 2-13-01; Ord. No. 43, 637, § 1, 10-27-09)

Sec. 42-53. General duties of city right-of-way administrator of division of right-of-way.

Under the supervision and control of the director of public works, the city right-of-way administrator of the division of right-of-way shall have charge of all matters relating to poles, wires, conduits, electrolysis and tests pursuant to the provisions of this article.
(Code 1958, § 35-2; Ord. No. 35,363, § 1, 1-10-89; Ord. No. 40,378, § 4, 6-19-01; Ord. No. 47,014, § 1, 10-10-17)

Sec. 42-54. Poles and wires installed prior to 1919.

All poles and wires installed prior to 1919 on any street shall be deemed to have been installed under and by virtue of a permit granted in accordance with the city ordinances as they existed at the time of such installation and to be subject to all the provisions thereof, and to all the conditions and restrictions required to be attached to permits issued thereunder; provided, however, that nothing in this section shall be deemed to authorize the maintenance of poles and wires, regardless of when installed, contrary to the provisions of section 42-58.
(Code 1958 § 35-13)

Sec. 42-55. Franchise and permit required for installation.

It shall be unlawful for any person to install in, over or under any street any utility facility intended to support or carry wires or cables for telecommunications, telephone, fiber optic, electricity, gas or cable television services, without having first obtained a franchise from the city council permitting the same, and until the director of public works has granted a permit for such installation in accordance with the requirements of this article and other city ordinances.
(Ord. No. 35,363, § 1, 1-10-89; Ord. No. 40,212, § 2, 2-13-01)

Sec. 42-56. Suspension of permits and franchises for violation of article or other applicable ordinances or regulations; discontinuance of current in emergencies.

Any violation of this article or any other ordinance of the city relating to the subject matter of this article, or any refusal to make such alterations and repairs in present or future construction as may be required to conform to this article or such ordinances and to regulations of the department of public works, shall work immediate suspension of all permits, rights and franchises, held by the person guilty of such violation or refusal, and in case of persistent violations, and in case of emergencies or dangerous necessity, the director of public works is authorized to issue a discontinuance of electrical service order in any locality concerned and to enforce the discontinuance of electrical service until all ordinances and regulations are complied with.
(Code 1958, § 35-19; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-57. District for underground wires—Designated.

All that portion of the city bounded and described as follows is hereby designated as the district for underground wires: Beginning at the prolongated western end of the centerline of Clay Avenue where it intersects with the waters of the Eastern Branch of the Elizabeth River; thence northeastwardly along the centerline of Clay Avenue to the point where it intersects with the centerline of Lovitt Avenue; thence northwestwardly along the centerline of Lovitt Avenue to where it intersects with the centerline of Park Avenue; thence westwardly along the centerline of Park Avenue to where it intersects with the centerline of Holt Street; thence northwardly along the centerline of Holt Street and as it meanders to the point where the centerline of Holt Street intersects with the eastern right-of-way line of Tidewater Drive; thence northwardly along the eastern right-of-way of Tidewater Drive to the point where it intersects with the northern right-of-way of Virginia Beach Boulevard; thence westwardly along the northern right-of-way of Virginia Beach Boulevard to where it intersects with the eastern line of St. Paul's Boulevard; thence southward along the eastern right-of-way line of St. Paul's Boulevard to the southern right-of-way line of Virginia Beach Boulevard; thence westwardly along said line, across St. Paul's Boulevard, Granby Street, Boush Street and Duke Street, to the southern line of Olney Road; thence westwardly along said line to the eastern line of Mowbray Arch; thence southwardly, westwardly and northwardly along the eastern, southern and western line of Mowbray Arch to the intersection of said line with the prolongation eastwardly of the southern line of Fairfax Avenue; thence westwardly along the last-mentioned line to the western line of the new relocated Colley Avenue; thence northwardly along said line to the southern line of Redgate Avenue; thence westwardly along said line to the eastern line of Hampton Boulevard; thence southwardly along said line across Gresham Drive and Brambleton Avenue to the southeastern corner of Riverview Avenue and Brambleton Avenue; thence southwardly along the eastern line of Riverview Avenue across Southampton Avenue to the northern boundary line of the property of the United States of America (Fort Norfolk); thence eastwardly along said line and southwardly along the eastern boundary line of the aforesaid property of the United States of America (Fort Norfolk) to the southern line of Front Street; thence eastwardly along said line to the dividing line between the aforesaid property of the United States of America and property of others; thence southwardly along said line to the pier head line of the Elizabeth River and eastwardly along the pier head line of the Eastern Branch of the Elizabeth River to the point of beginning.

(Code 1958, § 35-4; Ord. No. 47,972, § 1, 4-28-20)

Charter reference—Authority of city to require wires carrying electricity to be placed underground, § 2(11).

Sec. 42-58. Same—Certain poles and wires prohibited.

(a) It shall be unlawful for any person to maintain or use on any street in the district or districts designated in section 42-57 any pole or to maintain or use any overhead wire or cable, other than poles and overhead wires and cables used for street lights, traffic signals, and overhead catenary systems.

(b) No permit shall be granted to install, within the district designated by section 42-57, any pole, other than poles intended to support street lights, traffic signals, and overhead catenary systems, and no permit shall be granted to install any distributing pole in such district, until the director of public works shall be satisfied that all reasonable effort has been made, without avail, to secure permission to install interior block work construction in order to eliminate the necessity for such pole.

(Code 1958, § 35-5; Ord. No. 35,363, § 1, 1-10-89; Ord. No. 43,637, § 2, 10-27-09)

Sec. 42-59. Permit application and bond for conduits; use of conduits for municipal wires.

(a) No permit to construct a conduit under any street shall be granted until application therefor, in writing, has been filed with the director of public works, accompanied by a diagram, in triplicate, showing the location, the

desired depth and dimensions of such conduit, the desired size and location of the manhole to be constructed therewith, and the desired size and number of each duct or compartment therein, nor until a bond has been delivered, with surety approved by the director of public works, in a penalty of five thousand dollars ($5,000.00), conditioned to indemnify the city from all loss, damage, expense or cost incurred by it by reason of anything done or omitted to be done in or about the construction of such conduit. No such bond shall be required in any case where a proper bond, required by the franchise of the applicant for the purpose of such indemnity, is in force.

(b) Every permit for the construction of a conduit system shall be subject to the condition that the city shall at all times have the free and unrestricted use of one duct for municipal wires. Upon request the city may release the requirement for the use of this one duct.
(Code 1958, § 35-12; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-60. Manholes for conduits—Generally.

(a) No person shall construct any manhole connected with any underground conduit, without first obtaining a permit from the director of public works.

(b) Every manhole connected with any underground conduit shall be so constructed, and the cover thereof so maintained, as to prevent such cover from being displaced by vehicles passing over the same.
(Code 1958, §§ 35-6, 35-14; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-61. Same—Precautions to be taken when uncovered.

It shall be unlawful for any person to remove the cover from any manhole connected with any underground conduit, unless conformance with city standards for traffic and pedestrian control as well as all standards pertaining to work zone traffic control as contained in the Federal and Virginia Manuals on Uniform Traffic Control Devices for Streets and Highways and the Virginia Work Area Protection Manual, are adhered to.
(Code 1958, § 35-7; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-62. Utility cut permit fee.

(a) Whenever it is necessary to issue a permit to any utility company or contractor for a cut to be made in city streets, other than for test hole boring, a fee in the amount of two hundred fifteen dollars ($215.00) plus one dollar ($1.00) per square foot of the street cut shall be charged for the cost of issuing said permit and inspecting the work. This fee shall be applicable in all such cases, regardless of whether the work is performed directly by a utility company or by a contractor. The fee shall be collected by the department of public works.

(b) Whenever it is necessary to issue a permit to any utility company or contractor for test hole boring in a city street, a fee in the amount of forty dollars ($40.00) shall be charged for the cost of issuing said permit and a fee in the amount of five dollars ($5.00) per test hole shall be charged for inspecting the work. For a test pit, a fee in the amount of three hundred fifteen dollars ($315.00) shall be charged for the cost of issuing said permit. These fees shall be applicable in all such cases, regardless of whether the work is performed directly by a utility company or by a contractor. The fees shall be collected by the department of public works. The permit and inspection fees for test hole boring shall not be applicable in the case of any work performed for or in behalf of the city.

(c) Whenever it is necessary to issue a permit to any utility company or contractor for a cut to be made in city verge (grass/dirt) area, other than for test hole boring, a fee in the amount of sixty-five dollars ($65.00) shall be charged for the cost of issuing said permit and inspecting the work. This fee shall be applicable in all such cases, regardless of whether the work is performed directly by a utility company or by a contractor. The fee shall be collected by the department of public works.

(d) Whenever roadway construction takes place for a period exceeding thirty (30) days or takes place on an arterial, collector street, or in the central business district (CBD), a permit for street and major utility construction is required. A fee in the amount of two hundred dollars ($200.00) plus one dollar ($1.00) per square foot of the street cut shall be charged to any utility company or contractor for the cost of issuing said permit and inspecting the work. This fee shall be applicable in all such cases, regardless of whether the work is performed directly by a utility company or by a contractor. The fee shall be collected by the department of public works.

(e) An administrative fee of two hundred fifty dollars ($250.00) will be assessed when a utility company or contractor fails three (3) or more inspections under the same permit. An administrative fee of two hundred fifty dollars ($250.00) will be assessed when a utility company or contractor works outside of normal business hours and an inspection is required outside of normal business hours.

(f) A written warning on the first occurrence for failure to secure a permit will be issued to the utility company or contractor. An administrative fee for failure to secure a permit will be assessed on the second occurrence at five hundred dollars ($500.00); for subsequent times thereafter, the administrative fee will be assessed at one thousand dollars ($1,000.00) per occurrence to the utility company or contractor.

(g) If there are any cuts to a newly resurfaced roadway within a four-year period after the roadway has been repaved per final contract invoice date or work order date if in-house paving, a five hundred dollar ($500.00) administrative fee will be assessed to the utility company or contractor.

(Ord. No. 38,267, § 1, 5-24-94; Ord. No. 38,369, § 1, 5-21-96; Ord. No. 39,191, § 1, 5-26-98; Ord. No. 43,857, § 1, 5-18-10; Ord. No. 47,229, § 39, 5-22-18, eff. 7-1-18)

Sec. 42-63. Sidewalk repair fee; plumber's cut fee.

Whenever it is necessary to issue a permit to anyone other than a utility company for a cut to be made in a city sidewalk, then a fee in the amount of one hundred twelve dollars ($112.00) per square block of concrete shall be charged to cover the cost of the permit and the inspection. The fee shall be collected by the department of public works.

(Ord. No. 39,192, § 4, 5-26-98; Ord. No. 47,229, § 40, 5-22-18, eff. 7-1-18)

Sec. 42-64. Payment of permit fee prerequisite to grant of permit to install.

No permit shall be granted to install any utility facility until there has been paid into the city treasury a permit fee of sixty-five dollars ($65.00) per utility facility. Pipe, conduit, conductor, and cable lines will be assessed a fee of sixty-five dollars ($65.00) per five hundred (500) linear feet. The fees shall be collected by the department of public works.

(Ord. No. 40,212, § 3, 2-13-01; Ord. No. 47,229, § 41, 5-22-18, eff. 7-1-18)

Sec. 42-65. Conditions of permits.

(a) Every permit to install, renew or change any utility facility shall be subject to all conditions and restrictions set out in this division.

(b) Utility facilities shall comply with the standards set forth in the city's policy pertaining to certain telecommunications and cable television facilities dated April 18, 2000, which may be amended from time to time.

(Ord. No. 40,212, § 4, 2-13-01)

Sec. 42-66. Relocation or removal of facilities.

(a) Within one hundred twenty (120) days following written notice from the city, the owner of utility facilities shall temporarily or permanently remove, relocate, change or alter the position of any utility facilities within the public ways at owner's expense whenever the city shall have determined that such removal, relocation, change or alteration is reasonably necessary for:

(1) The construction, repair, maintenance or installation of any city facilities or other public improvement in or upon the public ways.

(2) The operations of the city or other governmental entity in or upon the public ways.

(b) The owner of such utility facilities may file with the director of public works an application for an extension of time in which to comply with the requirements of subsection (a). Such application may be granted upon a finding that removal within the time specified in subsection (a) is not feasible or will result in an undue hardship upon the owner.
(Ord. No. 40, 213, § 1, 2-13-01)

Secs. 42-67—42-72. Reserved.

DIVISION 2. POLES

Sec. 42-73. Application of division.

The provisions of this division shall apply to poles for which permits are required by section 42-55 of this article.

Sec. 42-74. Application for permit to install.

No permit required by this article shall be granted to install any pole until application therefor, in writing, has been filed with the director of public works, accompanied with a diagram, in duplicate, showing the intended location of such pole and the location of all existing poles on the same side of the street in the block in which such pole is to be installed, and by whom such poles are owned.

Such application shall state:

(1) The diameter of such pole at the butt;

(2) The minimum depth to which such pole is to be set; or pole base design;

(3) The height of such pole above the surface of the street;

(4) The service for which such pole is to be used; and,

(5) Any other information prescribed by the director of public works.

(Code 1958, § 35-8; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-75. General prerequisites to grant of permit to install.

No permit to install any pole shall be granted until the director of public works shall be satisfied that such installation will not be a menace to the safety of the public and will not injure any municipal or private property.
(Code 1958, § 35-9; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-76. Payment of inspection fee prerequisite to grant of permit to install.

No permit shall be granted to install any pole until there has been paid into the city treasury an inspection fee of sixty-five dollars ($65.00) per pole.
(Code 1958, § 35-11; Ord. No. 39,192, § 5, 5-26-98; Ord. No. 47,229, § 42, 5-22-18, eff. 7-1-18)

Sec. 42-77. Permit to renew or change position.

No person shall renew or change the position of any telegraph, telephone, electric light or power pole, without first obtaining a permit therefor.

Application for such permit shall be made, in writing, to the director of public works, accompanied by a diagram, in duplicate, showing the location of the proposed poles and of all other poles on the same side of the street within the same block, together with the dimension of the poles to be set.
(Code 1958, § 35-14; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-78. Conditions of permits.

Every permit to install, renew or change any pole shall be granted subject to all conditions and restrictions set out in this division.
(Code 1958, § 35-10)

Sec. 42-79. Revocation of permit.

(a) Any permit granted to install, renew or change any pole may be revoked by the city council at its pleasure, after sixty (60) days notice to the owner, proprietor or lessee of such pole of its intention to revoke the same.

(b) If the owner or proprietor of a pole is convicted of a violation of any city ordinance relating to poles, wires or conduits, or shall, in the judgment of the director of public works, fail to observe any condition or restriction attached to the permit for installing, renewing or changing such pole, the director of public works shall have the right to revoke such permit.

(c) Whenever the permit to install, renew or change a pole has been revoked, the owner or proprietor thereof shall, within thirty (30) days, remove the same from the street, and in the event of a failure so to do, the director of public works may cause such pole to be taken down and removed from the street, at the risk and expense of such owner or proprietor.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-80. Authority of city right-of-way administrator to prohibit installation.

The city right-of-way administrator shall have the authority to prohibit the installation of a pole whenever such pole, or the proposed location thereof, or the manner of installing the same shall, in his judgement, fail to conform to the requirements of this article or any other city ordinance, or to any condition or restriction attached to the permit for its installation. Such prohibition shall stand until reversed by the director of public works.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89; Ord. No. 40,378, § 4, 6-19-01; Ord. No. 47,014, § 2, 10-10-17)

Sec. 42-81. Commencing installation deemed assent to terms, conditions, etc., of permit and ordinances.

The commencing of the work of installing a pole shall be deemed an assent to all the terms, conditions and restrictions named in such permit or prescribed by city ordinances relating to poles, wires or conduits.
(Code 1958, § 35-10)

Sec. 42-82. Preparation prior to installation.

Every wood pole shall, before being set in the ground, be sawed off straight at the butt and have its top cut to a peak or wedge shape and shall be free from bark, reasonably straight and sightly and free from rot, and shall taper from butt to tip.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-83. Identification.

Each pole shall, at all times, have the L-name, or initial letters of the name, of the owner or proprietor thereof neatly and legibly stenciled thereon, at a point six (6) feet above the surface of the street.
(Code 1958, § 35-10)

Sec. 42-84. Minimum distance between poles in same block on same side of street.

If a pole is to carry any wire or cable for electric light, heat or power service or for telegraph or telephone service, it shall not be set less than fifty (50) feet from any other pole within the same block on the same side of the street, unless otherwise authorized by the director of public works on a showing of sufficient cause.
(Code 1958, § 35-9; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-85. Reserved.

Editor's note—Ord. No. 35-363, § 2, adopted Jan. 10, 1989, repealed § 42-85, relative to placement of poles on same side of street.

Sec. 42-86. Uniformity of height.

All poles installed by virtue of a permit granted under this article shall be of uniform height, unless the director of public works shall authorize to the contrary.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-87. Removal of excess space at top.

Whenever a pole shall have out of service a space of more than two (2) feet above the highest attachment thereon in service, such excess space shall be removed.
(Code 1958, § 35-10)

Sec. 42-88. Minimum height of wires and cables above street.

All wires or cable attached to a pole shall comply with height requirements in the current National Electrical Code and in the National Electrical Safety Code.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-89. Attaching wires or cables to, or running them through, trees.

No cable or wire supported by a pole shall be attached to a tree on any street and, except in the case of a single cut-in wire, no wire or cable supported by a pole shall be carried through the branches of any tree, unless enclosed in a protecting casing approved by the city right-of-way administrator.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89; Ord. No. 40,378, § 4, 6-19-01; Ord. No. 47,014, § 3, 10-10-17)

Sec. 42-90. Insulation of guy wires.

(a) Guy wires on poles supporting any wire or wires shall be insulated and maintained as set forth in this section.

(b) An insulator shall be located in each guy which is attached to a pole or structure carrying any supply conductors of more than one hundred (100) volts to ground and not more than fifteen thousand (15,000) volts, or in any guy which is exposed to such voltages. This guy insulator shall be located at least eight (8) feet above the ground.

(c) Where a guy attached to any pole carrying communication or supply conductors or both is carried over or under any overhead supply conductor of more than one hundred (100) volts to ground, and where a hazard would otherwise exist, two (2) or more guy insulators shall be placed so as to include the exposed section of the guy between them as far as possible. Neither insulator shall be within eight (8) feet of the ground.

(d) Guy insulators shall be made of wet process porcelain, wood or other material of suitable mechanical and electrical properties. Such insulators shall have a dry flash-over voltage at least double the normal line voltage and a wet flash-over voltage at least as high as the normal line voltage between conductors.

(e) Guy insulators shall have a mechanical strength at least equal to that required of the guys in which they are installed.

(f) Where guys in which it is necessary to install insulators are so arranged that one crosses or is above another, insulators shall be so placed that, in case any guy sags down upon another, the insulators will not become ineffective.

(g) A guy insulator or insulators are not required, if the guy is attached to a pole on a private right-of-way, which pole carries no supply circuits whose voltage exceeds two hundred fifty (250) volts or whose transmitted power exceeds three thousand two hundred (3,200) watts.

(h) A guy insulator is not required, if all supply conductors are cabled having effectively grounded continuous metal sheath or insulated conductors supported on and cabled together with an effectively grounded messenger.

(i) Insulators are not required in guys under any one of the following conditions:

(1) Where the guy is electrically connected to grounded steel structures or to an effective ground connection on wood poles.

(2) Where the guys are uniformly effectively grounded throughout any system of overhead lines.

(3) Where the guys are connected to a line conductor which has at least four (4) ground connections in each mile of line, in addition to the ground connections at individual services.

(Code 1958, § 35-10.1)

Sec. 42-91. Grounding of guys attached to wood poles.

(a) The anchored end of guys attached to wood poles carrying circuits of more than fifteen thousand (15,000) volts shall be effectively grounded wherever this part of the guy has a clearance of less than eight (8) feet to ground. This requirement does not apply, if the guy contains an insulator which will meet the requirements for the highest voltage liable to be impressed on it.

(b) For the purposes of this section, "effectively grounded" means permanently connected to earth through a ground connection of sufficiently low impedance and having sufficient current-carrying capacity to prevent the building up of voltages which may result in undue hazard to connected equipment or to persons.
(Code 1958, § 35-10.1)

Sec. 42-92. Joint use generally.

(a) The director of public works shall have the right to designate a pole for the joint use of the owner of such pole and other proprietors of lines, and to assign to each such joint user a certain section thereof on such terms as may be agreed upon. In the event of failure to reach such agreement, such director shall have the right to determine such terms, and to revoke the permit for such pole, unless such determination is accepted by the owner or proprietor thereof.

(b) Notwithstanding any other provisions of this division, the right to use a pole shall not be conferred upon any other person or corporation not having the necessary franchise.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-93. City's right to use.

The city shall have the right to the free and unrestricted use of any pole in accordance with the National Electrical Safety Code, specifically, a two-foot open area for the city's use shall be reserved on the pole above the television service area and a two-foot open area for the city's use shall be reserved below the telephone service area. Upon request the city may release the requirement to provide this area.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-94. Limitations as to crossarms on poles not in joint use.

If a pole is not a joint pole, it shall not carry more than nine (9) crossarms, all of which shall be uniform in length, which shall not be greater than is necessary for ten (10) pins.
(Code 1958, § 35-10)

Sec. 42-95. Map showing location of poles.

All persons having, using or maintaining any telegraph, telephone, electric light or other poles in any of the streets, lanes or alleys of the city, shall file with the director of public works a map, in sections, drawn to a scale of one hundred (100) feet to the inch, showing accurately the location of each of such poles used, possessed or maintained by them.
(Code 1958, § 35-18)

Sec. 42-96. Duty of owners of certain poles as to linemen and cut-off switches.

The owner or proprietor of a pole, if the same is used for the support of any wire or cable for electric light, heat or power service, shall at all times have an experienced lineman stationed in the city and within reach of a telephone call, who shall be kept supplied with all necessary appliances for cutting and repairing such wire or cable, and who shall be required by such owner or proprietor to render prompt and necessary service about such wire or cable. Such owner or proprietor shall also, at all times, maintain all necessary cut-off switches on all feed wires entering the city charged with electric current generated beyond the city limits. The number and location of such switches shall be shown on the maps required in section 42-95.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89)

Sec. 42-97. Removal of abandoned wires or cables.

All abandoned wires or cables attached to a pole shall be removed by the owner or proprietor of such pole immediately upon such abandonment.
(Code 1958, § 35-10)

Sec. 42-98. Removal of abandoned poles.

Every pole, when no longer used for the service named in the permit, granted therefor, shall be taken down and removed from the street immediately upon such abandonment, unless a permit for its use is granted to some other person or corporation having a franchise authorizing such use.
(Code 1958, § 35-10)

Sec. 42-99. Removal of dangerous, etc., poles.

Whenever a pole shall, in the judgment of the director of public works, become a menace to persons or property, or shall interfere with any municipal work, or with the operation of any municipal construction, it shall be removed, and a new pole may be substituted therefor, unless the director shall direct otherwise. Unless such pole is removed within forty-eight (48) hours after notice, the permit therefor may be revoked; provided that, if in the opinion of the city right-of-way administrator or the director of public works, such pole should be removed at once on account of imminent danger to persons or property, the permit therefor may be revoked, unless the necessary precautions to obviate such danger are taken as soon as the owner or proprietor of such pole has knowledge of such imminent danger.
(Code 1958, § 35-10; Ord. No. 35,363, § 1, 1-10-89; Ord. No. 40,378, § 4, 6-19-01; Ord. No. 47,014, § 4, 10-10-17)

Sec. 42-100. Effect of acceptance of street by council after pole installed.

If a pole is installed on any street which has not been accepted as such by action of the city council, and such street shall thereafter be so accepted, all the conditions of the permit provided for in this article and all provisions of the city ordinances relating to poles, wires or conduits shall thereupon become applicable to such pole and all wires supported thereon.
(Code 1958, § 35-10)

Secs. 42-101—42-116. Reserved.

DIVISION 3. ESCAPE OF ELECTRIC CURRENT

Sec. 42-117. Violations of division.

Any person violating any provision of this division shall be guilty of a Class 4 misdemeanor, whether the entire electrical current imposed on the water mains, pipes, cables or other structures belonging to the city, in the streets, alleys or other parts thereof, escapes from, or comes from the power house or works of such person, or whether such person, by failing to restrain his current materially contributes to the injury of the water mains, pipes, cables or other structures belonging to the city.
(Code 1958, § 35-25)

Sec. 42-118. Required precautions generally.

(a) All persons using or employing electrical currents in the city shall provide and always have in use the latest designs and most effective means, ways and appliances to control and effectively retain such currents in their proper channels and on their own wires, tracks and other works, so as to prevent injury to the water mains, pipes, cables and other structures within the city or belonging to the city, in the streets and alleys or other parts of the city, and repair and renew such means, ways and appliances or, from time to time, change and improve the same as may be necessary to accomplish such purpose, all at their expense and at their own risk, selecting and adopting such means, ways and appliances as shall prevent injury to the water mains, pipes, cables and other structures belonging to the city.

(b) Neither the collection of any penalty for violating any provision of this article, nor any prosecution of such violation, nor the passage of

any ordinance shall have the effect to take away or abridge the right of the city to damages arising from any injury heretofore or hereafter done to the city or to the water mains, pipes, cables or other structures belonging to the city, by the escape of current from the structures of the person generating or transmitting such current contrary to the provisions of this section.
(Code 1958, §§ 35-20, 35-21)

Secs. 42-119, 42-120. Reserved.

Editor's note—Ord. No. 35,363, § 2, adopted Jan. 10, 1989, repealed §§ 42-119 and 42-120, pertaining to stray currents, as derived from Code 1958, §§ 35-23 and 35-24.

Sec. 42-121. Liability for damages occasioned by electrolysis.

Every person, in the equipment and maintenance of his roadbed and other fixtures, shall use the best and most approved fixtures, means, ways and appliances to prevent injury by electrolysis to the water mains, pipes, cables or other structures of the city and shall pay to the city all damages occasioned by electrolysis, after a survey and estimate thereof by some suitable person appointed by the director of public works for that purpose. In case the person responsible for such fixtures, when notified of such survey and estimate, objects in writing to such assessment within ten (10) days, then the amount of such damage shall be ascertained by arbitrators to be appointed, one by such person, one by the city manager and one by the arbitrators so appointed. If they [the two (2) arbitrators so appointed] fail to agree [on selection of the third arbitrator], the third arbitrator shall be selected by the judge of the circuit court of the city. Such person responsible for such fixtures shall also indemnify and save harmless the city from all claims for damage occasioned to any person or property growing out of injury to such water mains, pipes, cables or other structures from that cause.
(Code 1958, § 35-22; Ord. No. 35,363, § 1, 1-10-89)

Secs. 42-122—42-137. Reserved.

ARTICLE III. STREET AND SIDEWALK VAULTS

DIVISION 1. GENERALLY

Sec. 42-138. "Vault" defined.

The word "vault", wherever used in this article, shall mean any excavation, pit, well or cellar opening made or constructed in or under any sidewalk or street in the city.
(Code 1958, § 45-72)

Sec. 42-139. Compliance with article and other applicable ordinances.

In the construction, maintenance and use of any vault and of all fixtures, appliances and appurtenances therein or connected therewith, the provisions of this article and other city ordinances in regard to vaults shall at all times be complied with.
(Code 1958, § 45-82)

Sec. 42-140. Violations of article.

A violation of any provision of this article shall constitute a Class 3 misdemeanor.

Sec. 42-141. Supervision and approval of construction.

The construction of every vault, including the retaining walls thereof, shall be under the supervision of the director of public works and all work thereon shall be done in a manner satisfactory to the director and shall be subject to his approval.
(Code 1958, § 45-97)

Sec. 42-142. Safety precautions during construction.

During the construction of a vault, all necessary precautions shall be observed, as prescribed by the director of public works, in order to prevent injury to persons or property.
(Code 1958, § 45-97)

Sec. 42-143. Interference with sewer or water pipes, fire hydrants, etc.

Vaults and all fixtures, appliances and appurtenances therein or connected therewith shall be constructed, maintained and used so as not to interfere with any sewer pipe, water pipe, fire hydrant, manhole, catch basin, conduit or other public work.
(Code 1958, § 45-84)

Sec. 42-144. Paving of sidewalk over vault.

(a) The sidewalk over a vault not occupied by glass floor lights shall be paved with stone or concrete according to specifications of the director of public works, and shall be laid to the grade designated by him. All such paving shall be laid and maintained at the expense of the owner of such vault.

(b) Glass prisms or blanks may be set in the paving referred to in subsection (a) above, not exceeding two (2) inches square or two (2) inches in diameter, and not less than one and three-fourths (1¾) inches thick at the edges. Glass floor lights may be set in such paving, but the thickness of such lights, and the method of setting the same, shall be such as, in the judgment of the building official, may be necessary.
(Code 1958, § 45-94)

Sec. 42-145. Lifts and elevators and openings therefor.

No lift or elevator shall be installed in a vault, if the sidewalk over the same has a less width than six (6) feet. No opening for a lift or elevator shall be more than four (4) feet, measured perpendicular to the curb, or more than six (6) feet, measured parallel with the curb, or extended across more than one-third of the width of the sidewalk.
(Code 1958, § 45-95)

Sec. 42-146. Covers for openings.

Every opening into a vault from the sidewalk shall at all times have a heavy iron cover set in a substantial iron frame and fastened thereto by noncorroding metal hinges. Such cover and the frame into which it is set shall be kept well scored, and no part of either, or of the hinges attached thereto, shall project more than one-half inch above the established surface of the sidewalk. Such cover shall be fastened down with an iron rod or chain, except when raised to permit access to such vault. No such opening shall have a grated covering.
(Code 1958, § 45-96)

Sec. 42-147. Sidewalk repairs.

The right of the city to make any necessary repairs to the sidewalk over a vault shall not be interfered with, and the city shall not be liable for any damage done to such vault, its fixtures or appurtenances, during or in consequence of any such repairs. The owner of the land abutting on a vault shall reimburse the city for all money expended in making repairs to the sidewalk over the same during the continuance of the permit for the maintenance thereof.
(Code 1958, § 45-91)

Sec. 42-148. Change in grade of sidewalk.

Whenever any change shall be made in the grade of the sidewalk over a vault, such vault shall be made to conform to such new grade and paved over, if necessary, at the expense of the proprietor of such vault or the owner of the land abutting thereon. (Code 1958, § 45-93)

Sec. 42-149. Changes when adjacent street widened.

Whenever the street adjacent to a vault shall be widened, all necessary changes in the construction of such vault, its fixtures and appurtenances, shall be made by the owner or proprietor thereof, and if not made within a reasonable time after notice, may be made by the director of public works at the risk and expense of such owner or proprietor. (Code 1958, § 45-88)

Sec. 42-150. Prohibited equipment, appliances, etc.

No person shall place, locate, install, maintain, use or operate, in any vault:

(1) Any boiler.

(2) Any engine operated by steam, gas or gasoline.

(3) Any tank or container for storing gas, gasoline or any explosive.

(4) Any pump or any appliance or pipe for generating or emitting gas, steam or any offensive odor.

(5) Any fan for ejecting vitiated or superheated air.

(6) Any exhaust pipe intended to open or discharge into such vault. (Code 1958, § 45-92)

Sec. 42-151. Maintenance or use does not vest title in owner of abutting land or affect city's rights.

The maintenance or use of a vault shall not be taken to vest any title thereto in the owner of the abutting land, or to abridge in any manner the rights of the city therein. (Code 1958, § 45-89)

Sec. 42-152. City not liable for losses, damages, etc., resulting from construction, maintenance or use.

The city shall not be liable for any loss, damage, injury, cost or expense incurred by any person by reason of the construction, maintenance or use of a vault or any fixture therein or any appliance or appurtenance thereof. (Code 1958, § 45-90)

Sec. 42-153. Installation of public work in, under or through vault.

The director of public works shall have the right, at any time, without making compensation therefor, to install and maintain any public work in, under or through a vault, and the owner or proprietor of the land abutting on such vault, upon receipt of notice from such director to the effect that it is desired to make any such installation, or any extension or alternation of any such installation, shall, without cost to the city, at once remove from such vault any pipe, wall, beam, fixture or other part, appurtenance or appliance therein or connected therewith, which, in the opinion of such director, should be removed, so as to leave a clear space in such vault sufficient for the installation, operation, maintenance or extension of such public work. Upon failure on the part of such owner or proprietor to comply with such notice, such removal may be made by such director at the risk and expense of the person so in default, or the permit for such vault may be revoked by such director. (Code 1958, § 45-86)

Sec. 42-154. Right of entry of city agents and employees.

The agents and employees of the city shall, at all times, have the right to enter a vault for the purpose of inspecting the same, or installing, inspecting, extending or repairing any public work therein. (Code 1958, § 45-87)

Secs. 42-155—42-170. Reserved.

DIVISION 2. PERMIT TO CONSTRUCT, MAINTAIN OR USE

Sec. 42-171. Required.

It shall be unlawful for any person to construct or to maintain or use any vault, without first obtaining a permit so to do from the director of public works. (Code 1958, § 45-73)

Sec. 42-172. Application.

Application for a permit for the construction of a vault shall be filed with the director of public works by the owner of the land fronting on the street or sidewalk under which such vault is to be constructed. Such application shall state the purposes for which such vault is intended, the nature of all fixtures, machinery and appliances to be installed therein and such other information as the director of public works may require. Such application shall be accompanied by plans and specification showing the dimensions of such vault, the character of the proposed construction, the method of draining the same, the number, size and location of all openings therein from the street, the method for protecting such openings and any other facts that may be required by the director of public works. (Code 1958, § 45-74)

Sec. 42-173. Not to be granted if vault interferes with public utility or work.

No permit shall be granted for the construction, maintenance or use of any vault which will interfere with or injure any public utility or any public work. (Code 1958, § 45-77)

Sec. 42-174. Approval of plans and specifications as prerequisite to grant.

No permit for the construction of a vault shall be granted until the plans and specifications provided for in section 42-172 have been approved by the building official as making sufficient provision for the safety of the public and adjoining property. (Code 1958, § 45-74)

Sec. 42-175. Abutting owner's agreement as prerequisite to grant.

No permit shall be granted for the construction of any vault until the owner of the land abutting on the sidewalk under which such vault is to be constructed has, by means of a writing in the nature of a covenant running with such land and intended to bind all future owners thereof, duly executed and admitted to record, stipulated and agreed that the rights and privileges conferred by such permit shall be at all times subject to all and singular the terms, conditions and restrictions imposed by this article. (Code 1958, § 45-76)

Sec. 42-176. Bond or liability insurance as prerequisite to grant.

No permit shall be granted for the construction of any vault until a proper bond, with surety, or a liability insurance policy payable to the city, in the penalty of five thousand dollars ($5,000.00), has been given, and the surety therein approved by the city manager, and the form thereof approved by the city attorney. Every such bond or insurance policy shall be with condition to indemnify the city against any and all loss, damage, injury, cost or expense that may be incurred by the city by reason of the construction, maintenance or use of such vault or any appurtenance or appliance thereof, or any fixture or machinery therein, or in closing such vault or removing any fixture or machinery therefrom, or in doing anything in or about such vault which should have been done by the owner or proprietor thereof, or by the applicant for a permit therefor. No such bond or insurance policy shall be accepted which is so drawn that the liability of the surety therein is limited to such claim, loss, damage, cost or expense as may arise or be incurred by the city during any specified period of time. (Code 1958, § 45-75)

Sec. 42-177. To be granted subject to provisions of article.

All permits for the construction, maintenance or use of any vault shall be granted subject to the terms, conditions and restrictions set out in this article.
(Code 1958, § 45-81)

Sec. 42-178. Revocation—Generally.

The permit for the construction, maintenance or use of any vault may be revoked by the director of public works whenever it shall be shown that the proprietor of such vault, or the owner of the land abutting thereon, has failed to comply with any provision of this article or other city ordinances in regard to vaults, or any condition of the permit for the same, or that such vault or any part thereof is required by public work, or that such vault is a nuisance or is a menace to persons or property, or that the bond or liability insurance required to section 42-176 has ceased to be effective for the protection of the city.
(Code 1958, §§ 45-78, 45-85, 45-98)

Sec. 42-179. Same—Vault to be closed, fixtures, etc., removed and street or sidewalk restored.

Whenever the permit for the construction, maintenance or use of a vault shall be revoked, such vault shall be closed, and all fixtures, appliances and appurtenances therein or connected therewith shall be removed, and the sidewalk or street over such vault shall be restored to a safe and proper condition by the owner or proprietor of the land abutting on such vault, within ten (10) days after receipt of notice from the director of public works, and in default thereof, such work may be done by order of the director of public works at the risk and expense of such owner or proprietor.
(Code 1958, §§ 45-79, 45-83)

Secs. 42-180—42-195. Reserved.

ARTICLE IV. STREET NUMBERS FOR BUILDINGS

Sec. 42-196. Compliance with article; general duties of director of public works under article.

(a) All buildings or any street as defined in section 42.4-2 of this Code whether public or private, now or hereinafter erected or constructed within the boundaries of the city shall be numbered and named as provided in this article.

(b) It shall be the duty of the director of public works to see that all buildings in the city are numbered in accordance with the plans prescribed in this article and he shall adopt, and require to be used, a uniform size and style of numbers for all buildings.

(c) The official name of all streets shall be as maintained in the master street name file. The director of public works shall be responsible for maintaining the master street name file.
(Code 1958, §§ 45-50, 45-45; Ord. No. 40,114, § 1, 9-19-00)

Sec. 42-197. Division of city into blocks; base lines—Generally.

The entire city, with the exception of that part of the city commonly known as Berkley, shall be divided into blocks, with Granby Street as the base line from which all such blocks on east and west streets north of Main Street are to be computed, and Fayette Street as the base line from which all such blocks on east and west streets south of Main Street are to be computed, and the pier head line of the Elizabeth River shall be the base line from which all such blocks on north and south streets, lying west of the center line of Broad Creek, are to be computed. The numbering of all such blocks on north and south streets located east of the center line of Broad Creek are to be computed north and south from a base line along the Norfolk—Southern Railway's right-of-way to Virginia Beach.
(Code 1958, § 45-41)

Sec. 42-198. Same—Berkley.

That part of the city commonly known as Berkley shall be numbered in accordance with the following plan: South Main Street in said part of the city the base line from which all such blocks on east and west streets are to be computed, and the port warden's line in the southern branch of the Elizabeth River the base line from which all such blocks on north and south streets are to be computed.
(Code 1958, § 45-42; Ord. No. 40,114, § 2, 9-19-00)

Sec. 42-199. Blocks and parcels in each block to be numbered consecutively.

For the purposes of this article, all blocks referred to in sections 42-197 and 42-198 shall be deemed to be numbered in regular order from their respective base lines as named in such sections. In each block so computed as block one, parcel numbers beginning with one hundred (100) shall be assigned or reserved for each street. In each block so computed as block two (2), parcel numbers beginning with two hundred (200) shall be assigned or reserved for each street, and so on for each block, the first parcel number in each block to be one hundred (100) multiplied by the number of such block computed from its base line as aforesaid. Block range numbers shall be noted in the street sign starting with the lowest number.
(Code 1958, § 45-43; Ord. No. 40,114, § 3, 9-19-00)

Sec. 42-199.1. Special provisions as to certain parcels of property located in the Subdivision of Crown Point, Section Two.

Notwithstanding any requirements under this Code to the contrary, the following parcels of property, located in Blocks DD and EE as shown on the plat entitled "Subdivision of Crown Point, Norfolk, Virginia, Section Two," recorded in the Norfolk Circuit Court Clerk's Office in Map Book 22, page 77, shall be numbered as follows:

Block DD	*Block EE*
Lot 1—1135 Eastover Road	Lot 1—1132 Eastover Circle
Lot 2—1133 Eastover Road	Lot 2—1130 Eastover Circle
Lot 3—1131 Eastover Road	Lot 3—1128 Eastover Circle
Lot 4—1129 Eastover Road	Lot 4—1126 Eastover Circle
Lot 5—1127 Eastover Road	Lot 5—1124 Eastover Circle
Lot 6—1125 Eastover Road	Lot 6—1122 Eastover Circle
Lot 7—1123 Eastover Road	Lot 7—1120 Eastover Circle
Lot 8—1121 Eastover Road	Lot 8—1118 Eastover Circle
Lot 9—1119 Eastover Road	Lot 9—1116 Eastover Circle
Lot 10—1117 Eastover Road	Lot 10—1114 Eastover Circle
Lot 11—1115 Eastover Road	Lot 11—1112 Eastover Circle
Lot 12—1113 Eastover Road	Lot 12—1110 Eastover Circle
Lot 13—1111 Eastover Road	
Lot 14—1109 Eastover Road	
Lot 15—1107 Eastover Road	
Lot 16—1105 Eastover Road	
Lot 17—1103 Eastover Road	
Lot 18—1101 Eastover Road	

(Ord. No. 46,772, § 1, 3-21-17)

Sec. 42-200. Odd and even numbers.

(a) Every parcel on the north side of any street shall have an even number and every parcel on the south side of any street shall have an odd number.

(b) Every parcel on the east side of any street shall have an even number and every parcel on the west side of any street shall have an odd number.
(Code 1958, § 45-44; Ord. No. 40,114, § 4, 9-19-00)

Sec. 42-201. Special provisions as to certain buildings.

(1) (a) The numbering of the property, and any building thereon, south of Main Street, East of Atlantic Avenue and north of Waterside Drive, currently known as One Commercial Place, shall be assigned according to Article IV, sections 42-196 through 42-200 of the Code.

(b) The numbering of the building located on the property south of Main Street and abutting on portions of the eastern line of Commercial Place and the northern line of Waterside Drive shall be Two Commercial Place.

(c) The numbering of the building located on the property south of Main Street and abutting on portions of the eastern line of Commercial Place and the southern line of Main Street shall be Three Commercial Place.

(2) The numbering on the building, located on property south of Southampton Avenue, west abutting the line of property of the United States of America, south abutting Front Street and east abutting a portion of Colley Avenue, known as parcel A as shown on a plat entitled, "Resubdivision of Harbor's Edge at Fort Norfolk," recorded in the Clerk's Office of the City of Norfolk, Virginia, in Map Book 57 at Pages 62A and 63A, known as 101 Colley Avenue shall be hereby changed to the new number of One Colley Avenue and the same building shall be hereinafter known and designated as One Colley Avenue.

(3) The numbering on the building known as the Chrysler Museum of Art, located on property designated as parcel 33, Lee Park, pts. of closed Sts. (Mowbray Arch, Fairfax Ave, Virginia Beach Boulevard, Memorial Place and Pibble St.) and numbered 245 West Olney Road, shall be One Memorial Place.

(4) The numbering on the building located on the property designated as Lot 43a and numbered as 117 W. Virginia Beach Boulevard shall be 888 Magazine Lane.

(5) The numbering on the building known as CMA CGM, located on property designated as parcel MP4-D1-B, as numbered 5701 Lake Wright Drive, shall be One CMA CGM Way.

(Code 1958, § 45-46.2; Ord. No. 31,918, § 1, 8-31-82; Ord. No. 35,267, § 1, 10-11-88; Ord. No. 40,114, § 5, 9-19-00; Ord. No. 42,392, § 1, 9-12-06; Ord. No. 45,071, § 1, 4-23-13; Ord. No. 46,690, § 1, 12-20-16; Ord. No. 47,362, § 1, 9-11-18; Ord. No. 48,512, § 1, 9-28-21)

Sec. 42-202. Duty of owner to apply for and display number.

(a) When any building is erected within the city limits, the owner or agent thereof shall apply to the director of public works for the proper number for the same and, upon the assignment by the director of public works of the proper number for such building, it shall be the duty of the owner thereof, within thirty (30) days from the receipt of notice of such assignment, to cause such building to be numbered, at his own expense, in accordance with the provisions and requirements contained in this article.

(b) It shall be the duty of the owner or agent of each residential, commercial or industrial building in the city to display properly on the front thereof, and in a position easily observed from the street, and in numbers not less than four (4) inches in height, the proper street address number of such building, for the ascertainment of which he shall apply to the director of public works. All such buildings shall be numbered in accordance with this article.

(c) Before any certificate of occupancy is issued by the building official, the department of planning and community development shall cause an inspection to be done to ensure that the proper number has been posted as required by this article.

(d) All buildings with multiple floors, suites or units shall submit a plan for an internal numbering system to the fire department for

approval prior to occupancy. The internal plan as required in this section shall be submitted annually, and whenever there is a reconfiguration of suites or units, or a reuse.
(Code 1958, §§ 45-38, 45-46; Ord. No. 30,144, § 1, 10-9-79; Ord. No. 40,114, § 6, 9-19-00; Ord. No. 41,616, § 1, 11-2-04)

Sec. 42-203. Display of number other than one assigned.

It shall be unlawful for the occupant or the owner of any building in the city, to which a street number has been assigned in accordance with this article, to attach or paint, or permit to be or remain attached to or painted on such building, any figure tending or purporting to indicate the street number of such building, unless the number so indicated is the street number assigned to such building in accord with this article.
(Code 1958, § 45-39)

Secs. 42-204—42-210. Reserved.

ARTICLE V. VACATION OF PUBLIC STREETS OR ALLEYS*

Sec. 42-211. Fee for processing application.

A fee of one hundred dollars ($100.00) shall be paid to the city for the processing of an application for the vacation of any public street, lane, alley or other public right-of-way pursuant to Code of Virginia, § 15.2-2006. The application shall not be received unless such fee be paid at the time the application is filed.
(Ord. No. 30,160, § 1, 10-23-79; Ord. No. 42,536, § 1, 1-30-07)

State law reference—Authority for above section, Code of Virginia, § 15.2-2006.

Sec. 42-212. Sale of public street or alleys.

Unless otherwise provided by the council, as a condition of the vacation or abandonment of any public street, lane, alley or other public right-of-way, the abutting property owner or owners, other than the original subdivider, requesting the vacation or abandonment shall purchase from the city such abutting property owner's fractional portion of the public street, lane, alley, or other public right-of-way. The price shall be no greater than the property's fair market value or its contributory value to the abutting property, whichever is greater, or the amount agreed to by the parties. No such vacation or abandonment shall be concluded until the agreed price has been paid. If any abutting property owner does not pay for such owner's fractional portion within one year, or other time period made a condition of the vacation or abandonment, then the vacation or abandonment shall be void as to any such property owner.
(Ord. No. 30,160, § 1, 10-23-79; Ord. No. 42,536, § 2, 1-30-07)

Sec. 42-213. Public hearing required before the vacation of any public street or alley.

A public hearing shall be held before any ordinance is adopted vacating or abandoning a public street, lane, alley, or other public right-of-way or any portion thereof. Notice shall be given as required by Code of Virginia, § 15.2-2006.
(Ord. No. 34,230, § 1, 11-25-86; Ord. No. 42,536, § 3, 1-30-07)

*__Editor's note—__Section 1 of Ord. No. 30,160, enacted Oct. 23, 1979 added Art. V, §§ 45-98.1, 45-98.2 to the 1958 Code. The editor has included these provisions as Art. V, §§ 42-211, 42-212.

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Chapter 42.5

SUBDIVISIONS*

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§ 42.5-15. Fees.
§ 42.5-16. Penalties.

*__Editor's note—__Ord. No. 42,733, § 1(Exh. A), adopted July 10, 2007, amended ch. 42.5 in its entirety and enacted similar provisions as set out herein. The former ch. 42.5 derived from Ord. No. 30,009, § 1, adopted July 10, 1979; Ord. No. 32,150, §§ 1, 2, adopted Feb. 15, 1983; Ord. No. 32,784, §§ 1, 2, adopted March 13, 1984; Ord. No. 34,330, § 1, adopted Feb. 10, 1987; Ord. No. 34,776, § 1, adopted Nov. 10, 1987; Ord. No. 35,631, §§ 1, 2, adopted July 5, 1989; Ord. No. 36,172, §§ 1—3, adopted Aug. 28, 1990; Ord. No. 39,341, § 1, adopted Oct. 20, 1998; Ord. No. 41,549, § 1, adopted Aug. 24, 2004; and Ord. No. 41,727, §§ 1—5, adopted Feb. 15, 2005.

__Cross references—__Ordinances regulating subdivisions of land not affected by Code or ordinance adopting Code, § 1-5(7); buildings and building regulations, Ch. 11.1; erosion and sedimentation control, Ch. 15; fire prevention and protection, Ch. 17; motor vehicle code, Ch. 25; parks and recreation, Ch. 30; planning generally, Ch. 32; approval of subdivision plats by planning commission, § 32-40; sewers and drains, Ch. 39; solid waste, Ch. 41; streets and sidewalks, Ch. 42; swimming pools, Ch. 43; trailer coaches and trailer coach parks, Ch. 44; water supply, Ch. 46; wetlands and coastal primary sand dunes, Ch. 49; zoning ordinance, App. A.

__State law references—__Land subdivision and development, Code of Virginia, § 15.1-465 et seq.; requirement that municipalities adopt ordinances to assure orderly subdivision of land and its development, § 15.1-465; provisions to be included in subdivision ordinance, § 15.1-466.

Sec. 42.5-1. Authority and intent.

The regulations and restrictions set out in this chapter are hereby adopted in order to provide for the orderly division, subdivision, resubdivision or development of land within the corporate limits of the city.
(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-2. Definitions.

The words and phrases set forth in this section shall, for the purposes of this chapter, have the meanings respectively ascribed to them in this section.

Beach: The shoreline zone comprised of unconsolidated sandy material as defined in Code of Virginia, § 28.2-1400.

Best management practices or *BMPs:* A practice, or a combination of practices, that is determined by the city to be the most effective, practical means of preventing or reducing the amount of pollution generated by nonpoint sources to a level compatible with water quality goals in accordance with the performance standards of subsection 11-2.9(b)(5) of the Zoning Ordinance.

Buffer area: An area of natural or established vegetation managed to protect other components of a resource protection area and state waters from significant degradation due to land disturbances.

Chesapeake Bay Preservation Area or *CBPA:* Any land designated by the city pursuant to part III of the management regulations, 9 VAC 10-20-70, and Code of Virginia, § 10.1-2107. A Chesapeake Bay Preservation Area consists of a resource protection area and a resource management area. The general limits of the CBPA are shown on the official zoning map and the general requirements pertaining to CBPAs are detailed in section 11-2 of the Zoning Ordinance.

Coastal primary sand dune: A mound of unconsolidated sandy soil as defined in Code of Virginia, § 28.2-1400.

Designated floodplain districts: Those floodplain districts specifically designated in the flood insurance study (as amended) for the city prepared by the Federal Emergency Management Agency, dated April 17, 1984, as being inundated by the one-hundred-year flood. Included would be areas identified as the one-hundred-year floodplain districts (A-3, A-4, A-6), and the coastal high hazard district (V-7).

Intensely developed areas or *IDAs:* A portion of the Chesapeake Bay Preservation Area designated by the city where development is concentrated and little of the natural environment remains and where at least one of the following conditions existed on or before March 3, 1992:

(a) Development has severely altered the natural state of the area such that it has more than fifty (50) percent impervious surface;

(b) Public sewer and water systems, or a constructed stormwater drainage system, or both, have been constructed and served the area on or before March 3, 1992;

(c) Housing density is equal to or greater than four (4) dwelling units per acre.

Intensely developed areas are designated as an overlay on the Chesapeake Bay Preservation Area, as depicted in the Chesapeake Bay Preservation Areas supplemental working map.

Nontidal wetlands: Those wetlands other than tidal wetlands that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions, as defined by the U.S. Environmental Protection Agency pursuant to section 404 of the federal Clean Water Act, in 33 CFR 328.3b.

One-hundred-year flood: A flood that, on the average, is likely to occur once every one hundred (100) years (i.e., one that has a one percent chance of occurring each year, although the flood may occur in any year).

Resource management area or *RMA:* That component of the Chesapeake Bay Preservation Area that is not classified as the resource protection area. RMAs include land types that, if improperly used or developed, have the potential for causing significant water quality degradation or for diminishing the functional value of the resource protec-

tion area. The RMA is adjacent to and landward of the resource protection area and extends landward to include the remainder of the lot or parcel designated as a resource protection area. When the landward boundary of the resource protection area falls within the public right-of-way, the RMA is defined as the remainder of the public right-of-way. When the resource protection area boundary falls within a flag lot subdivision, unimproved public right-of-way, coastal primary sand dune, or beach, the resource management area shall extend landward to the first improved public right-of-way.

Resource protection area or *RPA:* That component of the Chesapeake Bay Preservation Area comprised of lands adjacent to water bodies with perennial flow that have an intrinsic water quality value due to the ecological and biological processes they perform or are sensitive to impacts which may result in significant degradation to the quality of state waters. The RPA includes wetlands, tidal shores, and a buffer area.

Street: A vehicular way, which may also serve, in whole or in part, as a way for pedestrian traffic, whether called street, highway, thoroughfare, parkway, throughway, road, avenue, boulevard, lane, place, alley, mall or otherwise designated.

(1) Arterial or major streets or highways are used or designed primarily for fast or heavy traffic and for the purposes of these regulations shall be considered to be shown in the General Plan of Norfolk, as amended, or element thereof designating such arterial or major streets or highways officially adopted by city council.

(2) Collector streets are used primarily to carry traffic from local streets to arterial or major streets or highways.

(3) Local streets are used primarily for access to abutting properties, and include marginal access streets, which are generally parallel and adjacent to arterial streets or highways, serve abutting properties, and provide protection from friction with through traffic.

(4) Marginal access streets are used to separate local traffic from through-traffic on an adjacent thoroughfare and to provide controlled ingress to and egress from through-traffic.

(5) Alleys are minor ways used primarily for vehicular access to the rear or side of properties otherwise abutting a street.

Subdivision: The division of any parcel of land into two (2) or more lots or parcels for immediate or future transfer of ownership or building development. The term shall be construed to include all changes in existing lot or street lines, the creation of new lots involving any division of an existing lot or lots; or, if a new street is involved in such division of a parcel of land, any division of land. The term also includes resubdivision and, when appropriate to the context, shall relate to the process of subdividing or to the land subdivided.

Tidal shore or *shore:* Land or shoreline stabilization structure contiguous to a tidal body of water between the mean low water level and the mean high water level.

Tidal wetlands: Vegetated and nonvegetated wetlands as defined in Code of Virginia, § 28.2-1300.

Wetlands: Tidal and nontidal wetlands.
(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-3. Subdivisions within the Chesapeake Bay Preservation Area.

If the boundaries of the Chesapeake Bay Preservation Area Overlay district include a portion of a lot or parcel, the entire lot or parcel shall comply with the requirements of the overlay district. The subdivision of property shall not constitute an exemption from this requirement.
(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-4. Recording plats.

After the effective date of this chapter [July 10, 1979], the owner of any tract or any person authorized by the owner of any tract who desires to subdivide it shall submit the required number of copies of the final plat, a subdivision plat fee, payment of all obligatory construction costs (e.g. street lights, street signs, etc.), and appropriate performance surety (e.g. performance bond, irrevocable letter of credit, cash bond, etc.) to the

department of public works, which is hereby charged with responsibility for coordinating the processing of such plats. In addition to the plat or plats, the owner or subdivider shall submit to the department of public works certifications that all real estate taxes and nuisance abatement costs due and owing on such property to be subdivided by such plats have been paid in full. Such certifications shall be signed by the city treasurer and the director of neighborhood and leisure services, or any authorized designee of either. The department of planning and the department of utilities shall review plats and other information to ensure their compliance with regulations concerning subdivisions. If and after a final plat and appropriate performance surety have been approved and payment of obligatory construction costs accepted by the director of public works and other affected agencies, the division of surveys shall cause it to be recorded with the clerk of the circuit court.

No person shall subdivide land without making and recording a plat thereof and complying fully with the provisions of this chapter and all other state and local laws applying to subdivisions.

No person shall sell or transfer any land of a subdivision before such plat has been duly approved and recorded as provided herein, unless such subdivision was lawfully created prior to the adoption of a subdivision ordinance applicable thereto; provided, that nothing herein contained shall be construed as preventing the recordation of the instrument by which such land is transferred or the passage of title as between the parties to the instrument.

No clerk of any court shall file or record a plat of a subdivision required by this article to be recorded until such plat has been approved as required herein.
(Ord. No. 42,733, § 1(Exh. A), 7-10-07; Ord. No. 45,630, § 1, 7-22-14)

Sec. 42.5-5. Procedure for preliminary plat approval.

At the option of the landowner, a subdivider may elect to prepare a preliminary plat with other material required as set forth in sections 42.5-10 and 42.5-11 and submit ten (10) copies thereof to the department of public works for processing and referral to other affected agencies. For minor subdivisions, the director of public works shall have discretion to reduce the number of copies to be submitted to fewer than ten (10).

Within sixty (60) days of their submission, the preliminary plat and other related materials shall be reviewed by the department of public works and other appropriate agencies of the city for conformity to this chapter and other applicable regulations, and discussions with the subdivider as to changes deemed advisable and the kind and extent of improvements to be made. However, in cases where approval of a feature or features of the plat by a state agency is necessary, such action on the plat shall be taken within ninety (90) days of submission. The time limits set forth herein shall be tolled during the time any application requires a traffic review analysis under chapter 28 of appendix A ("Zoning Ordinance of the City of Norfolk, 1992") until such time as all reviews are returned by the Virginia Department of Transportation or until ninety (90) days have elapsed, whichever is sooner. The director of public works or his designee shall act upon the preliminary plat and related materials as submitted or as modified by the subdivider and, if approved, shall certify its approval and state the conditions of such approval, if any, or if disapproved, shall indicate its disapproval and the reasons therefor.

The action of the director of public works or his designee shall be noted on all copies of the preliminary plat to be retained in the record, referenced and attached to any changes or conditions determined. One such copy shall be returned to the subdivider, and others retained as required for records or further action of the department or other affected agencies of the city.

Approval of a preliminary plat shall not constitute approval of the final plat, but shall be deemed an expression of general agreement with the layout submitted on the preliminary plat and other matters determined in connection therewith which shall serve as a guide in preparation of the final plat to be submitted for final approval and for recording upon fulfillment of the requirements of this chapter and the conditions of the

preliminary plat, if any. Such approval of the preliminary plat shall be valid for a period of five (5) years, provided that the subdivider submits a final plat within one year of approval and thereafter diligently pursues approval of the final plat, unless an extension is granted in writing by the director of the department of public works or is conferred by an applicable provision of state law. (Ord. No. 42,733, § 1(Exh. A), 7-10-07; Ord. No. 43,261, § 4(Exh. D), 10-28-08; Ord. No. 45,630, § 2, 7-22-14)

Sec. 42.5-6. Procedures for approval of final plat.

The final plat and other exhibits required for approval shall be prepared as specified in section 42.5-12 and submitted to the department of public works for review. For any submission that has not yet been approved as a preliminary subdivision plat, the subdivider shall also provide the other material required as set forth in sections 42.5-10 and 42.5-11 for preliminary plats and shall submit ten (10) copies thereof to the department of public works for processing and referral to other affected agencies. For minor subdivisions, the director of public works shall have discretion to reduce the number of copies to be submitted to fewer than ten (10). Where provision has been made for staged development in connection with approval of the preliminary plat, including time limitations, the subdivider may submit a final plat for only that portion of the approved preliminary plat which he proposes to record and develop at the time, if such portion conforms to all requirements of these regulations.

The subdivider shall submit to the department of public works for approval the final plat on reproducible linen or film, payment of the review fee required by section 42.5-15, payment of the circuit court recording fee, and a performance security as required in section 42.5-12.1. Upon submittal of the final plat and other materials required for final approval, the department of public works shall initiate and coordinate the review by other agencies of the city to determine compliance with all applicable regulations and with any preliminary subdivision plat, if such had previously been approved and is still valid.

In cases where approval of a feature or features of the plat by a state agency is necessary, action shall be taken on the plat within ninety (90) days of submission and in all other cases action shall be taken within sixty (60) days of submittal, or such longer period as may be agreed upon in writing by the subdivider and the department of public works. Within such time, the final plat and related materials shall be approved or disapproved by the director of public works and other appropriate agencies or designees. The time limits set forth herein shall be tolled during the time any application requires a traffic review analysis under Chapter 28 of Appendix A ("Zoning Ordinance of the City of Norfolk, 1992") until such time as all reviews are returned by the Virginia Department of Transportation or until 90 days have elapsed, whichever is sooner. Approval shall be in the form provided in section 42.5-12. Disapproval shall include written reasons therefor.

Upon approval of the final plat and acceptance of appropriate performance security estimate, and subsequent submittal of acceptable performance surety, the division of surveys shall cause the plat to be recorded, unless directed otherwise by the applicant. Approval of the final plat shall be withdrawn and the plat marked void unless it is recorded in the circuit court within six (6) months from the date of final approval. However, in any case where construction of facilities to be dedicated for public use has commenced pursuant to an approved plan or permit with surety approved by the director of public works, or where the developer has furnished surety to the department of public works by certified check, cash escrow, bond, or letter of credit in the approved amount of the estimated cost of construction of such facilities, the time for plat recordation shall be extended to one year after final approval or to the time limit specified in the surety agreement approved by the city, whichever is greater.
(Ord. No. 42,733, § 1(Exh. A), 7-10-07; Ord. No. 43,261, § 4(Exh. E), 10-28-08; Ord. No. 45,630, § 3, 7-22-14)

Sec. 42.5-7. Design standards.

(a) *Streets.* Arrangement, character, extent, width, grade and location of all streets shall conform to the General Plan of Norfolk, as

amended, insofar as elements of the plan relating to streets have been adopted, and shall be considered in their relation to existing and planned streets, topographical conditions, public convenience and safety, and appropriate relation to the proposed uses of land to be served by such streets.

Where not indicated in the General Plan of Norfolk, as amended, arrangement of streets in a subdivision shall either provide for continuation or appropriate projection of existing arterial or collector streets in surrounding areas or be subject to approval by the department of public works where topography or other conditions make continuance or projection of existing streets unnecessary or impracticable.

Local streets in residential neighborhoods shall be so laid out that their use by through-traffic will be discouraged.

Where a subdivision abuts or contains an existing or proposed arterial street, the department of public works may require marginal access streets, reversed frontage with screen planting contained in a nonaccess reservation along the rear property line, lots with rear service alleys or wider pavement widths, as may be necessary for adequate protection of residential or other properties and separation of local and through-traffic.

Where a subdivision borders or contains a railroad or limited access highway right-of-way, the department of public works may require a street approximately parallel to and on each side of such right-of-way and at such a distance therefrom as required for appropriate use of intervening land, if any, and as determined with due regard for requirements of future approach grades and grade separations.

Reserve strips controlling access to public streets shall be prohibited unless ownership or control of said strips is conveyed to the city.

Street jogs with center line offsets of less than one hundred twenty-five (125) feet shall be avoided.

No street intersection shall have more than four (4) street approaches.

Streets shall be laid out so as to intersect as nearly as possible at right angles, and no street shall intersect another at less than sixty (60) degrees; provided, however, that Y-shaped or other arrangements for smooth merging of traffic shall be permitted where the total effect on the intersection is to reduce traffic hazards and to provide for smooth traffic flow at the intersection as a whole.

Property lines at the intersection of local streets with each other shall be rounded with a minimum radius of ten (10) feet. Property lines at the intersection of alleys with any streets shall be rounded with a minimum radius of ten (10) feet. Property lines at all other street intersections shall be rounded with a minimum radius of twenty (20) feet.

A tangent of at least one hundred (100) feet in length shall be introduced between reverse curves on arterial and collector streets.

When connecting street lines deflect from each other by more than ten (10) degrees, they shall be connected by a curve with a radius adequate to ensure sight distance from motor vehicles within the right-of-way of such streets of not less than one hundred (100) feet.

Street right-of-way widths shall be as specified in elements of the General Plan of Norfolk, as amended, unless otherwise approved by the director of public works. Where not shown therein, right-of-way width for public streets shall be in relation to the proposed density and/or the land use of the property adjacent to the roads and within the parcel sought to be subdivided. In no case shall arterial streets be less than ninety (90) feet wide nor shall collector streets be less than sixty (60) feet wide. Local streets serving multiple-family, commercial, or industrial uses shall not be less than sixty (60) feet wide. All other local streets shall not be less than fifty (50) feet wide.

Except in planned unit developments established under terms of the Zoning Ordinance of the city, private streets are not permitted.

Half-streets are prohibited, except where essential to the reasonable development of the subdivision in relation to surrounding lands and where the department of public works finds it practicable to require dedication of the other half when adjoining property is subdivided. Where a half-street is adjacent to a tract to be subdivided, the

other half of the street shall be platted within such tract at the time of its subdivision. No residence shall be constructed with sole access from a half-street.

Unless otherwise approved of by the director of public works, cul-de-sac streets, designed to be so permanently, shall not be longer than four hundred (400) feet to the turnaround and shall be provided at the closed end with a circular turnaround having an outside roadway radius of at least forty (40) feet and a right-of-way radius of at least fifty (50) feet, or with a "Y" or "T" turnaround of which the width of roadway in the arms shall be not less than twenty (20) feet and the distance between the end of the arms shall be not less than eighty (80) feet, as measured along the center lines of the arms. Property lines at the intersection of such arms with the street shall be rounded to a radius of twenty (20) feet in the case of a T, and a similar rounding shall be provided at the intersection of the arms opposite the center line of the street in the case of a Y.

Street names shall be subject to approval by the department of public works. No street name shall be used which will duplicate or is likely to be confused with the name of an existing street.

Alley rights-of-way in commercial or industrial districts shall be at least twenty-four (24) feet wide and elsewhere, twenty (20) feet. Alleys which dead-end against permanent barriers are prohibited unless provisions for turning at the terminus are approved. Alley intersections and sharp changes in alignment shall be avoided where possible, but where necessary, corners shall be cut off sufficiently to permit safe turning movement.

(b) *Easements.* Easements for utilities and drainage shall be provided where necessary across lots entered on rear or side lot lines and shall be of whatever width is necessary to provide for installation of such utilities or drainage and for access for maintenance; provided, however, that no such easement shall be less than ten (10) feet wide.

Where a subdivision is traversed by a watercourse, drainageway, channel or stream, there shall be provided a stormwater easement or drainage right-of-way conforming substantially with the lines of such watercourse, and such further width or construction, or both, as will be required for the purpose of handling drainage. Streets or parkways parallel, but not necessarily adjacent to such watercourses, may be required. Deviations from existing locations of watercourses, drainageways, channels or streams are subject to findings by the department of public works that such deviations would result in equivalent or better drainage both on and off the subdivision site.

(c) *Blocks.* Lengths, widths and shapes of blocks shall be determined with due regard to provision of adequate building sites suitable to the special needs of the type of use anticipated, zoning requirements as to lot sizes and dimensions, needs for convenient access, circulation, control and safety of street and pedestrian traffic, and limitations and opportunities of topography. Block lengths shall not exceed one thousand (1,000) feet, nor be less than four hundred (400) feet.

Walks or pedestrian ways not less than ten (10) feet wide may be required at midblock points when deemed essential by the department of public works to provide circulation or access to schools, playgrounds, shopping centers, transportation and other community facilities.

(d) *Lots.* Lot size, width, depth, shape and orientation, and minimum building setback lines shall be appropriate for the location of the subdivision and the type of development and use contemplated.

Lot dimensions in residential districts or for residential uses in other districts shall be as required by the Zoning Ordinance of the city. Depth and width of properties subdivided for commercial and industrial purposes shall be adequate for off-street parking, loading and service facilities required by the type of use and development anticipated, in accordance with applicable provisions of the Zoning Ordinance of the city.

Each lot created in a subdivision shall abut a public street or have access to a public street by means of an approved private street in a planned unit development established under the terms of the Zoning Ordinance of the city.

Double frontage and reversed frontage residential lots shall be avoided except where essential to provide residential separation from traffic arteries or to overcome other disadvantages of orientation or topography.

Side lot lines shall be substantially perpendicular or radial to street lines unless a lot pattern can be designed which otherwise provides for utility easements and area for access.

Where utility or other easements are involved, lot lines shall be so arranged with respect to such easements as to permit efficient installation of the utilities without unnecessary irregularities in alignment.

No lot shall be platted for residential or other use unless the land is suitable for building purposes, or can be so made.

(e) *Design criteria for utilities and facilities in floodplain districts.* All plats will be reviewed to determine if the tract is located in the floodplain districts as delineated in the current flood insurance study for the city prepared by the Federal Emergency Management Agency and to determine whether such subdivision proposals will be reasonably safe from flooding. Initial interpretations of these boundaries shall be made by the building official. Should a dispute arise concerning the boundaries of any of the districts, the board of zoning appeals shall make the necessary determination.

If a subdivision proposal is in a designated floodplain district, any such proposal shall be reviewed to assure that all such proposals are consistent with the need to minimize flood damage within the district. In addition, all such subdivision proposals with more than fifty (50) lots or larger than five (5) acres, whichever is less, shall include within such proposals base flood elevation data.

All subdivision proposals located in designated floodplain districts shall be reviewed to assure compliance with the following standards:

(1) All new or replacement sanitary sewer facilities, and private package sewage treatment plants, including all pumping stations and collector systems, shall be designed to minimize or eliminate infiltration of floodwaters into the systems and discharges from the systems into the floodwaters. In addition, they should be located and constructed to minimize or eliminate flood damage and impairment.

(2) All new or replacement water facilities shall be designed to minimize or eliminate infiltration of floodwaters into the system and be located and constructed to minimize or eliminate flood damages.

(3) All storm drainage facilities shall be designed to convey the flow of surface waters without damage to persons or property. The system shall ensure drainage away from buildings and on-site waste disposal sites. The department of public works may require a primarily underground system to accommodate frequent floods and a secondary surface system to accommodate larger, less frequent floods. Drainage plans shall be consistent with local and regional drainage plans. The facilities shall be designed to prevent discharge of excess runoff onto adjacent properties.

(4) All utilities such as gas lines, electrical and telephone systems being placed in floodplain districts should be located, elevated, where possible, and constructed to minimize the chance of impairment during a flooding occurrence.

(5) Streets and sidewalks should be designed to minimize their potential for increasing and aggravating the levels of flood flow. Drainage openings shall be required to sufficiently discharge flood flows without unduly increasing flood heights.

(f) *Design criteria for environmental stormwater management.* All single-family subdivisions greater than four (4) zoning lots or which include street platting or construction shall meet the performance standards set forth in section 11-2.9(b)(5) and 26-13.5 of the Zoning Ordinance. Whenever a BMP is required or contemplated in order to control stormwater runoff and reduce nonpoint source pollution, the location, size and configuration of the appropriate BMP shall be shown on the preliminary plat. Sufficient information shall be provided to determine that any proposed BMP is

sufficiently sized to meet the subject performance standards based on the full buildout of the proposed subdivision.

Every effort shall be made to incorporate regional BMPs, such as ponds, as opposed to individual BMPs on each lot. Individual BMPs will only be allowed in those circumstances where regional facilities are determined to be inappropriate or infeasible by the department of public works.

The siting of all BMPs within the Chesapeake Bay Preservation Area Overlay district shall be in accordance with section 11-2.9(c) of the Zoning Ordinance.

For purposes of this section the director of public works or his designee may determine that multiple subdivisions involving the same parcels or related group or groups of parcels which are requested within two (2) years of each other may be aggregated for purposes of determining how many lots are created. In the event that any of these aggregated subdivisions result in more than four (4) lots, the stormwater management requirements stated herein shall apply.
(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-8. Required improvements.

(a) *Monuments.* Permanent monuments of concrete shall be placed at all block corners or at tangent points of curves connecting intersecting street lines, at all corners in the exterior boundary of the subdivision except those inaccessible due to topography, and at such other points as may be designated by the department of public works. Such monuments shall be set flush with the surface of the ground or finished grade.

The location and character of all such monuments shall be clearly designated on the final plat.

Monuments shall be of precast concrete thirty (30) inches or more in length and either six (6) inches square or eight (8) inches in diameter, having a metal pin imbedded therein or the monument may be a steel or iron pin five-eighths of an inch by thirty (30) inches, or larger, set in one cubic foot of concrete eighteen (18) inches deep and ten (10) inches square, at top and bottom marking the point represented on the final plat. All concrete mixture shall be 1:3:6 or equal. Persons, firms, corporations or governmental agencies shall protect all such monuments, and any monument which is moved or destroyed shall be immediately reported to the department of public works and shall be replaced as directed.

(b) *Public facility improvements.* Prior to approval of a final plat, the director of public works may further require approval of a detailed engineering plan, prepared by an engineer licensed to practice in the commonwealth, to be submitted by the subdivider. This plan shall include adequate and acceptable provisions for streets, curbs, gutters, sidewalks, bicycle trails, drainage and flood control, sewerage, water supply, ingress and egress improvements, traffic signalization and control, street lighting, structures necessary to ensure stability of critical slopes, stormwater management facilities and provisions for their perpetual maintenance, landscaping, and other improvements required by standards and specifications of applicable city departments. Provisions for temporary improvements, such as street turnarounds or street lighting, may be required in phased developments or where immediate buildout of a subdivision may not occur.

The city may impose reasonable fees for the review of plats and plans to be submitted in accordance with the regulations of this chapter.
(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-9. Procedures regarding improvements.

Utilities, street, drainage, and other improvements required shall be provided in each new subdivision in accordance with the standards, specifications and procedures adopted by the department of utilities and the department of public works. The city may impose reasonable fees for the inspection of facilities to be installed in accordance with the regulations of this chapter.
(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-10. Preliminary plats and data generally.

The preliminary plat shall be at a scale not smaller than one inch equals one hundred (100) feet. The plat shall include the following:

(1) Name of subdivision, which shall not duplicate the name of an existing subdivi-

sion, names and addresses of owner or owners of record, subdivider, and person or firm responsible for preparation of preliminary plat, date plat was prepared, graphic scale and north arrow.

(2) Boundaries and location and identification of adjacent or abutting streets, subdivisions, unsubdivided parcels, easements, water areas and other geographic features.

(3) Boundaries and location of all adjoining properties held in the same ownership as the tract to be subdivided.

(4) Location and identification of existing features and improvements within the tract, including streets, structures, water areas by type, including areas in marsh or subject to frequent inundation, wooded areas, easements, installed utilities and other important details. Plats of tracts abutting on or containing natural or artificial bodies of water shall show the approximate high water lines, bulkhead and pierhead lines if officially established, and top of bank and toe of slope.

(5) Identification of the existing zoning and location and identification of existing and proposed uses in each structure within the tract. Where a residential use exists, the number of dwelling units shall be indicated.

(6) Location, identification and widths of existing and proposed streets, alleys and easements.

(7) Location of existing and proposed water mains, sanitary sewers, storm sewers and catch basins, with indications of proposals for disposal of surface drainage if other than or in addition to storm drains.

(8) Existing and proposed lot lines, with dimensions.

(9) Location and dimensions of all parcels proposed to be dedicated or reserved for public use or common use by occupants of the subdivisions, with conditions or restrictions, if any, of such dedications or reservation.

(10) If required by chapter 28 of appendix A ("Zoning Ordinance of the City of Norfolk, 1992"), a traffic impact analysis.

(11) In addition to subsections (1) through (10) above, in Chesapeake Bay Preservation Areas the preliminary plat shall also show:

1. The coastal primary sand dune and/or beach where applicable,
2. The limits of the fifty-foot and one-hundred-foot resource protection area buffer,
3. Maximum buildable area based on all required zoning setbacks, CBPA buffer requirements, general performance standards found in section 11-2.9 of the Norfolk Zoning Ordinance, and all other applicable city requirements to permit development of the lot,
4. The boundary of the resource management area,
5. The boundary of the intensely developed area where applicable,
6. The location, size and configuration of all BMPs based on the design criteria in subsection 42.5-7(f) shall be shown on the preliminary plat, and
7. A notation stating that no improvement, development, or removal of vegetation, except those permitted pursuant to chapter 11.2 of the city Zoning Ordinance shall be permitted within the resource protection areas, resource management areas, and intensely developed areas.

Whenever it is deemed necessary, the director of the department of public works may require as a necessary element of any application a phase I environmental site assessment based on the anticipated use of the property proposed for the subdivision or development. Such assessments shall be based on generally accepted national standards for such assessments, such as those developed by the American Society for Testing and Materials. A phase II environmental site assessment may also be required, based

on findings in the phase I assessment, in accordance with regulations of the United States Environmental Protection Agency and the American Society for Testing and Materials. A reasonable fee shall be charged for the review of such environmental assessments to be determined by the director of public works.

(Ord. No. 42,733, § 1(Exh. A), 7-10-07; Ord. No. 43,261, § 5(Exh. F), 10-28-08)

Sec. 42.5-11. Preliminary plats and data; special waiver conditions.

If during preapplication conferences, the department of public works determines that portions of the requirements set forth in section 42.5-10 are unnecessary for making determinations in a particular case because of the small number of lots involved or for other reasons, such requirements may be waived; provided, however, that any such waiver shall be in writing, and signed by an authorized officer of the department of public works.

At the time of submission of preliminary plats and related data, or at any time thereafter prior to acting on approval, the department of public works may request and the applicant shall supply additional information required in the circumstances of the particular case. Time elapsing between the request and provision of the information shall be added to the general time limitation on processing.

Nothing herein contained shall be construed to prohibit submittal of preliminary plats and data in the form required for final plats and data for use in both preliminary and final review.

(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-12. Final plats and data generally.

The final plat of the subdivision shall be prepared by a person properly licensed and authorized to prepare subdivision plats in the state, in ink, on reproducible linen or film, at a scale of one inch equals one hundred (100) feet, unless a different scale is approved by the department of public works in a particular case. All original tracings shall not be smaller than eight and one-half (8½) by eleven (11) inches and not larger than eighteen (18) by twenty-four (24) inches, including margins.

Margins shall be at least one-fourth inch on all sides, and inscriptions are to be made on only one side of the medium. All drawings shall have centering marks on each side. Grid ties delineating eight and one-half (8½) by eleven (11) inch sections shall be inscribed on all plats larger than eight and one-half (8½) by eleven (11) inches. When more than one sheet is required, all sheets shall be of the same size, with match marks or matched lines to guide preparation of composite maps and, if deemed necessary by the department of public works, an index map on a sheet of the same size as the sectional maps shall be filed, which shall show, among other things, sectional map numbers, all lot and block numbers and street names. In addition, a small scale map (minimum one inch equals one thousand six hundred (1,600) feet) showing location of the property shall be required. Only the original or a first-generation unreduced black line copy of the original plat drawing, which meets the quality inscription standards noted below and has the stamp and original signature of the preparer, shall be submitted for approval. All required signatures shall be in a durable black ink.

Color or original inscription shall be black and shall be solid, uniform, dense, sharp, and unglazed. Lettering shall be no less than one-tenth inch or 2.54 millimeters in height. Lettering and line weight shall be no less than .013 inches or .3302 millimeters. The drawing substance shall be wet ink. Good drafting practices shall be followed to eliminate ghost lines after making erasures, and all shading and screening shall be eliminated over written data.

The final plat shall show the following data and shall be completed and processed as indicated:

(1) The subdivision name, the date the plat was prepared, a graphic scale and a north arrow with the confirming note, "The meridian source of this plat is based on the Virginia Coordinate System of 1983, South Zone."

(2) A certificate endorsed and sealed by the preparer indicating the source of title of

the owner of the land subdivided and place of record of the last instrument in the chain of title. When the plat is of land acquired from more than one source, outlines of the several tracts shall be indicated on the plat. The certificate shall further state that the subdivision is entirely within lands owned by the subdivider and that monuments shown on the plat have been put in place and that their location and character are correctly shown.

(3) Either on each plat or on the deed of dedication to which the plat is attached a statement as follows:

"The platting or dedication of the following described land (here insert a correct description of the land subdivided) is with the free consent and in accordance with the desire of the undersigned owners, proprietors, and trustees, if any."

This statement shall be signed by such persons and acknowledged before an officer authorized to take acknowledgments of deeds. When thus executed and acknowledged, the plat, upon final approval and in accord with other provisions specified herein, shall be filed and recorded in the office of the clerk of the circuit court of the city.

(4) On the face of the plat, a place reserved to receive the signature, with the date, of the director of public works, the director of city planning, and the director of utilities, or their designees, whose signatures, when affixed, shall indicate approval of the final plat. A place shall also be prepared to receive the signature and seal of the clerk of the circuit court of the city. All required signatures shall be in a durable black ink.

(5) Linear dimensions expressed in feet and hundredths of a foot and angular measurements expressed by bearings or angles of degrees, minutes, and seconds shall be used for locating boundaries of the subdivision, lots, streets, alleys, and public and private easements. All curves shall be defined by their radius, central angle, tangent distance, and arc length. Such curve data may be expressed in a curve table on the face of the plat, each curve being tabulated and numbered to correspond with the respective numbered curves shown throughout the plat. Dimensions, both linear and angular, shall be determined by an accurate control survey performed in accordance with the minimum standards set forth by the board of architects, professional engineers, land surveyors, certified interior designers, and landscape architects. Horizontal control shall be based on the Virginia Coordinate System of 1983, South Zone. A minimum of two (2) coordinate values must be shown on the plat. No plat showing plus or minus distance will be approved. The director of public works may require such office and field checks as necessary to assure the accuracy of the plat.

(6) Description and location of all monuments.

(7) The boundary of the property being subdivided, names of all proposed streets, and boundaries of all property within the subdivision intended to be dedicated to public use. For resubdivisions of existing recorded lots, existing lot lines shall be shown by dotted lines, resubdivision by full lines, unless specifically waived by the department of public works.

(8) Exact lengths and bearings of boundary lines of blocks, public grounds, streets, alleys and existing locations of all easements.

(9) Exact widths of all easements, streets and alleys.

(10) Direction of adjoining property, street and alley lines, with names of abutting property owners or abutting recorded subdivisions.

(11) Widths and names of abutting or adjoining roads, streets and alleys.

(12) A definite bearing and distance tie between not less than two (2) property corners on the exterior boundary of the sub-

division and to existing street intersections where possible and reasonably convenient.

(13) Exact length and bearing of all lot lines, provided that where lines in any rectangular tier of lots are parallel, it shall be sufficient to mark the bearings of the outer lines thereof.

(14) Designating symbols for all lots and blocks. If the final plat consists of one section of a proposed larger subdivision, then the block numbers shall run consecutively throughout the several sections of the entire subdivision and each section shall be designated by letter or number. All lots in each block shall be consecutively lettered or numbered.

(15) On plats of property abutting on or containing a natural or artificial body of water the approximate high and low water lines, bulkhead and pierhead lines, if officially established, and where such lines are intersected by lot or block lines, measurements locating such lines shall be given along such lot or block lines.

(16) In addition to [subsections] (1) through (15) above, [in] the Chesapeake Bay Preservation Areas, the final plat shall also show:

1. The coastal primary sand dune and/or beach where applicable,
2. The limits of the fifty-foot and one-hundred-foot resource protection area buffer,
3. A maximum buildable area based on all required zoning setbacks, CBPA buffer requirements, general performance standards found in section 11-2.9 of the Norfolk Zoning Ordinance, and all other applicable city requirements to permit development of the lot,
4. The boundary of the resource management area,
5. The boundary of the intensely developed area where applicable,
6. The location, size and configuration of all BMPs based on the design criteria in subsection 42.5-7(f) shall be shown on the preliminary plat, and
7. A notation stating that no improvement, development, or removal of vegetation, except those permitted pursuant to chapter 11.2 of the city Zoning Ordinance shall be permitted within the resource protection areas, resource management areas, and intensely developed areas.

(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-12.1. Assurance for completion and maintenance of improvements.

(a) *Guarantee of completion of public improvements.*

(1) *Generally.* The director of public works may accept for dedication for public use any street, curb, gutter, sidewalk, bicycle trail, drainage or sewerage system, waterline as part of a public system or other improvement dedicated for public use, and maintained by the locality, the commonwealth, or other public agency, and for the provision of other site-related improvements required by local ordinances for vehicular ingress and egress, including traffic signalization and control, for public access streets, for structures necessary to ensure stability of critical slopes, and for stormwater management facilities, financed or to be financed in whole or in part by private funds only if the owner or developer provides security in accordance with subsection (2), below.

(2) *Performance security.* Prior to approval of the final plat, the applicant shall be required to submit to the city for review and approval a cost estimate for the public improvements and shall be required to provide sufficient security to ensure completion of the required public improvements. The amount of such certified check, cash escrow, bond, or letter of credit shall

not be required to exceed the total of the estimated cost of construction based on unit prices for new public or private sector construction in the city and a reasonable allowance for estimated administrative costs, inflation, and potential damage to existing roads or utilities, which shall not exceed twenty-five (25) percent of the estimated construction costs; provided that the applicant does one or more of the following:

(i) Furnishes to the director of public works a certified check or cash escrow in the amount of the estimated costs of construction or a personal, corporate or property bond, with surety satisfactory to the director of public works, in an amount sufficient for and conditioned upon the construction of such facilities, or a contract for the construction of such facilities and the contractor's bond, with like surety, in like amount and so conditioned; or

(ii) Furnishes to the governing body a bank or savings institution's irrevocable letter of credit on certain designated funds satisfactory to the governing body or its designated administrative agency as to the bank or savings institution, the amount and the form.

(3) *Escrow agent.* If security is provided in the form of a cash escrow, the applicant shall deposit with the director of public works a cash amount or certified check endorsed to the escrow agent for an amount specified by the director.

(i) *Accrual.* The surety bond or cash escrow account shall accrue to the city for administering the construction, operation, and maintenance of the improvements.

(ii) *Reimbursement.* Where oversized facilities are required, the director of public works and applicant may enter into an appropriate agreement to provide for a specific reimbursement to be paid to the applicant.

(4) *Maintenance bond (defect bond).* The applicant shall file a maintenance bond prior to acceptance of any dedicated improvement, in a form satisfactory to the city attorney. The amount of the bond shall be sufficient to assure the satisfactory completion and maintenance of required public improvements for a period of one year after the date of dedication to the city or the Virginia Department of Transportation. If defects are found to exist within the designated period, the costs of correcting such defects shall be deducted from the maintenance bond. Any balance remaining shall be paid to the applicant.

(b) *Temporary improvements.* The applicant shall construct and pay for all costs of temporary improvements required by the director of public works and shall maintain said temporary improvements for the period specified.

(c) *Release of performance guarantees.*

(1) Performance guarantees shall be released in accordance with the terms of Code of Virginia, § 15.2-2245.

(2) Any bond, escrow, letter of credit, or other performance guarantee required by this section shall be partially or finally released within thirty (30) days after receipt of written notice by the subdivider or developer of completion of part or all of any facilities required to be constructed hereunder, unless the director of public works notifies the subdivider or developer in writing of nonreceipt of approval by an applicable state agency, or of any specified defects or deficiencies in construction and suggested corrective measures prior to the expiration of the thirty-day period.

(3) Any inspection of such public facilities in order to detect any defects or deficiencies in construction shall be based solely upon conformance with the terms and conditions of the performance guarantee and the approved design plan and specifica-

tions for the facilities for which the performance guarantee is applicable, and shall not include the approval of any person other than an employee of the governing body, the Virginia Department of Transportation, any person contracting with either of them, or another political subdivision.

(4) If no such action is taken by the director of public works within the time specified above, the request shall be deemed approved, and a partial release granted to the subdivider or developer. No final release shall be granted until after expiration of such thirty-day period and there is an additional request in writing sent by certified mail return receipt to the city manager. The director shall act within ten (10) working days of receipt of the request; then if no action is taken the request shall be deemed approved and final release granted to the subdivider or developer.

(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-13. Fulfilling requirements.

Until all requirements of this chapter have been met in full on any land that is subdivided hereafter, and until a plat of such subdivision is duly recorded in the clerk's office of the circuit court of the city, no street shall be accepted nor maintained by the city, and no public utility shall be extended nor connected upon such land, and no city permit shall be issued for any construction. Except as provided in section 42.5-12.1, such requirements shall be construed to include the actual construction and installation of all the improvements that are required under the provisions of sections 42.5-7, 42.5-8, and 42.5-9, in conformity with the standards, specifications and procedures required by the department of utilities, the department of public works, and other relevant city departments.

(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-14. Variances.

The planning commission may permit a variance from the design standards of section 42.5-7 upon making a finding that topographic or other reasons justify modification of the requirements in a particular case, provided, however, that the reasons shall be recorded and that all variances shall be in harmony with the intended spirit and purpose of this chapter.

(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

Sec. 42.5-15. Fees.

At the time preliminary plats are presented, a fee of three hundred dollars ($300.00) plus eleven dollars ($11.00) per lot shall be paid and for a preliminary property line vacation plat a fee of one hundred dollars ($100.00) shall be paid. For any submission that has already been approved as a preliminary subdivision plat, a fee of three hundred dollars ($300.00) plus eleven dollars ($11.00) per lot shall be paid at the time that the final plat is submitted and for a final property line vacation plat a fee of one hundred dollars ($100.00) shall be paid. For any submission that has not yet been approved as a preliminary subdivision plat or preliminary property line vacation plat, a fee of six hundred dollars ($600.00) plus twenty-two dollars ($22.00) per lot shall be paid at the time that the final plat is submitted and for a final property line vacation plat a fee of two hundred dollars ($200.00) shall be paid. Such fees shall be payable to the treasurer of the city.

(Ord. No. 42,733, § 1(Exh. A), 7-10-07; Ord. No. 43,854, § 1, 5-18-10; Ord. No. 45,084, § 23, 5-14-13, eff. 7-1-13; Ord. No. 45,630, § 4, 7-22-14)

Sec. 42.5-16. Penalties.

Any person violating the provisions of this chapter shall be punishable by a fine of not more than five hundred dollars ($500.00) for each lot or parcel of land so subdivided or transferred or sold; and the description of such lot or parcel by metes and bounds in the instrument of transfer or other document used in the process of selling or transferring shall not exempt the transaction from such penalties or from other lawful remedies.

(Ord. No. 42,733, § 1(Exh. A), 7-10-07)

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Chapter 43

SWIMMING POOLS

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ARTICLE I. IN GENERAL

Sec. 43-1. Definitions.

(a) *Generally.* For the purposes of this chapter, certain words shall have the meanings ascribed to them by this section.

(b) *Fence* means a close-type vertical barrier not less than forty-eight (48) inches in height above the ground surface. A woven steel wire, chain link, picket or solid board type fence or a fence of similar construction, which will prevent the smallest of children from getting through, shall be construed as within this definition.

(c) *Private residential swimming pool* means any swimming pool which is used, or intended to be used, as a swimming pool in connection with a single-family residence and which is available only to the family of the householder and his or her private guests.

(d) *Public swimming pool* means any swimming pool, other than a private residential swimming pool, intended to be used collectively by numbers of persons for swimming or bathing, operated by any person, as owner, lessee, operator or concessionaire, regardless of whether a fee is charged for such use, and shall include, but not be limited to, a swimming pool owned or operated as a private club or association, civic club or any association, or in conjunction with an apartment house or complex.

(e) *Spray pool* means any shallow manmade structure constructed from materials other than natural earth or soil used for spraying humans with water and which has a drainage area designated to remove the water from the shower or spray nozzles at a rate sufficient to prevent the impounding of water.

(f) *Swimming pool* or *pool* means any outdoor or indoor man-made structure constructed from material other than natural earth or soil designed or used to hold water for the purpose of providing a swimming or bathing place for any person or any such structure for the purpose of impounding water therein to a depth of more than two (2) feet; and, unless otherwise specified, such term shall include all appurtenant equipment, structures and facilities for the purpose of providing a swimming or bathing place for any person or persons.

(g) *Wading pool* means any manmade structure constructed from material other than natural earth designed or used to hold water for the purposes of providing a wading place, which impounds water to a depth not greater than twenty-four (24) inches. (Ord. No. 29,835, § 1(46.1-3), 2-27-79; Ord. No. 35,501, § 1, 5-9-89)

Sec. 43-2. Purpose and application of chapter.

(a) This chapter is intended to provide, consistent with and in addition to all applicable laws, regulations governing sanitation and health in the use and operation of swimming pools, as indicated and defined herein, including all appurtenant structures and accessories incident thereto, but excluding private residential swimming pools, except as hereinafter specifically provided, single-occupant tanks and showers used exclusively for therapeutic purposes.

(b) The provisions and requirements of this chapter shall apply to all public swimming pools, and shall only apply to private residential pools where specifically designated herein, regardless of the date of construction. Reference herein to "any" or "all" swimming pool(s) shall include both public and private residential swimming pools. (Ord. No. 29,835, § 1(46.1-1, 46.1-2), 2-27-79; Ord. No. 35,501, § 1, 5-9-89)

Sec. 43-3. Violations of chapter.

Unless otherwise specifically provided, any person who shall violate any of the provisions of this chapter shall be guilty of a Class 3 misdemeanor. (Ord. No. 29,835, § 1(46.1-11), 2-27-79)

Sec. 43-4. Inspections.

The director of public health or his designated agent shall inspect all swimming pools in the city as frequently as may be necessary to ensure that each swimming pool is maintained in accordance with the applicable provisions of this chapter. Such inspections shall take place during reasonable hours and

under such circumstances as to minimize the inconvenience to the owner, lessee, operator or concessionaire of the swimming pool. (Ord. No. 29,835, § 1(46.1-4), 2-27-79)

Sec. 43-5. Orders to correct defective conditions.

Upon inspection, the director of public health shall notify or cause to be notified, in writing, the owner, lessee, operator or concessionaire of any swimming pool to correct, within a reasonable time set by the director, any condition existing in violation of this chapter or of any ordinance or statute concerning the public health, or state board of health rule or regulation, unless such condition so endangers the health of any person so as to require immediate closing of the swimming pool by the director of public health. Failure to comply with an order of the director of public health to correct such a condition shall be cause for closing the swimming pool until such condition is corrected, after notice and opportunity to be heard are given to such person. (Ord. No. 29,835, § 1(46.1-5), 2-27-79)

Sec. 43-6. Closing of dangerous pools.

When any condition exists in any swimming pool that creates an imminent and certain danger to the health of any person, the director of public health shall have the authority to order such swimming pool closed until such condition is corrected. The director of public health shall consider the magnitude of the danger and the cost of complying with the requirements imposed by this chapter in determining whether to order a swimming pool closed. (Ord. No. 29,835, § 1(46.1-4), 2-27-79)

Sec. 43-7. General maintenance and operating requirements.

All swimming pools shall be maintained and operated in a manner which will not create a nuisance or hazard to the public health. Impounded water shall, at all times, be treated in a manner which will prevent the growth of algae and the breeding of mosquitoes or other insects. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Secs. 43-8—43-23. Reserved.

ARTICLE II. PUBLIC POOLS

DIVISION 1. GENERALLY

Sec. 43-24. *Application of article.*

The provisions of this article shall apply to public swimming pools and shall be in addition to other provisions of this chapter applicable to such pools.

Sec. 43-25. Fencing.

(a) No person shall construct, maintain, use, possess or control any outdoor public swimming pool, without having completely around such pool a fence, as defined in section 43-1(b). Every gate in such fence shall be capable of being securely fastened at a height of not less than four (4) feet above ground level, and it shall be unlawful for any such gate to be allowed to remain unfastened while the pool is not in use. Such fence shall be constructed so as to come within two (2) inches of the ground at the bottom and shall be at least five (5) feet from the edge of the pool at any point.

(b) In lieu of the fence required by subsection (a) above, a natural barrier, hedge, pool cover or other protective device may be used so long as the degree of protection afforded by such device is not less than the protection afforded by a fence, as defined in section 43-1(b).

(c) A violation of this section shall constitute a Class 2 misdemeanor. (Ord. No. 29,835, § 1(46.1-3, 46.1-7), 2-27-79)

Sec. 43-26. Water sources.

Water sources for a public swimming pool, other than a municipal supply, shall be subject to approval by the director of public health. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Sec. 43-27. Chemical treatment of water—Generally.

(a) The provisions of this section shall apply to public swimming pools.

(b) At all times when the swimming pool is open for use, a minimum of 0.5 ppm (parts per million) free chlorine residual shall be maintained in all parts of the pool.

(c) At all times when the swimming pool is open for use, the pH of the pool water shall be kept between 7.2 and 7.8.

(d) Where cyanuric acid is used as a stabilizing agent of residual chlorine, or if the source of residual chlorine is from a chlorinated cyanurate, a chlorine residual of at least 1.0 ppm shall be maintained with cyanuric acid residual of 25 ppm and at least 1.5 ppm chlorine shall be maintained with cyanuric acid residuals of 50 ppm.

(e) Alum shall not be fed continuously to pool water in sand or anthiacite filters. Formation of alum floc shall be achieved separately and applied directly to the filter influent during the filter cycle.

(f) The operator or manager of each public swimming pool shall cause an adequate supply of chemicals for the proper treatment of pool water to be on hand and available for use at all times. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Sec. 43-28. Same—Records to be kept.

Any person maintaining a public swimming pool shall maintain records, which shall include the pH level, the free chlorine residual reading and the water clarity reading, taken and recorded at least every two (2) hours while the pool is open for use, and the time of day at which chemicals are added. These records shall be kept on file for a period of one year from the time recorded and shall be open to inspection by the director of public health. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Sec. 43-29. Chemical testing equipment.

(a) Each public swimming pool shall be provided with satisfactory equipment for the determination of hydrogen ion concentration (pH) ranging from 6.8 to 8.2. Satisfactory equipment shall be provided for determination of a free chlorine residual content reading from 0.2 to 3.0 ppm. Pools maintained under a stabilizer program shall be provided with satisfactory equipment for determining cyanuric acid content readings ranging from 20 to 100 ppm.

(b) A testing kit for measuring the concentration of cyanuric acid shall be provided at each public swimming pool using cyanuric acid or chlorinated cyanurates. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Sec. 43-30. Operation of filters; clarity of water.

The filters at a public swimming pool shall be operated twenty-four (24) hours per day during the season of use of the pool. At all times when the pool is open for use, the water shall be sufficiently clear to permit a six-inch disc, divided into alternate black and white quadrants, when placed on the bottom of the pool at the deepest point, to be clearly visible from the swimming pool deck at all distances up to ten (10) yards in a horizontal direction from the projection of the disc on the swimming pool surface. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Sec. 43-31. Filter room placard.

A placard shall be prominently displayed in the filter room of a public swimming pool showing:

(1) The size of the public swimming pool in square feet.

(2) The volume of water in gallons.

(3) Capacity of filters in square feet and gallons per minute.

(4) Capacity of pumps in gallons per minute at the appropriate head of pressure in feet.

(5) Head loss at which the filters should be backwashed.

(6) Complete instructions for operating the *recirculation and disinfection equipment.*

(7) The maximum number of swimmers allowed in the pool, as determined pursuant to section 43-32. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Sec. 43-32. Maximum number of swimmers.

The maximum number of swimmers or other persons allowed in a public swimming pool at any one time shall be determined by dividing the total square footage of the swimming pool water surface area by twenty-seven (27); provided, however, if the diving area is excluded from the total square footage of swimming pool water surface, twenty-four (24) may be used as the divisor. No person in charge of any public swimming pool shall allow more swimmers or other persons to be in such pool at any one time than the maximum number allowable, as so determined. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Sec. 43-33. Use by persons with skin disorders, disease, etc.; spitting, spouting water, etc., prohibited.

(a) The operator of a public swimming pool shall not knowingly allow persons having skin eruptions, abrasions, sore or infected eyes, nasal or ear discharge, a cold or other communicable disease to use such pool. Spitting, spouting water, blowing the nose, urinating or defecating in such pool is prohibited.

(b) The operator of a public swimming pool shall post suitable placards embodying the provisions of this section. (Ord. No. 29,835, § 1(46.1-8), 2-27-79)

Sec. 43-34. Laundering, storing and handling bathing suits and towels furnished users.

Bathing suits and towels furnished to users of a public swimming pool shall be laundered, stored and handled in a sanitary manner and used by only one person. (Ord. No. 29,835, § 1(46.1-9), 2-27-79)

Sec. 43-35. Toilet, lavatory and shower facilities.

(a) *Toilet facilities.* Toilet facilities, including rooms and fixtures at a public swimming pool shall be kept in clean condition and good repair.

(b) *Lavatories.* Lavatories at a public swimming pool shall be equipped with adequate liquid or powdered soap from plastic or metal dispensers, and approved hand-drying towels or other devices. Such facilities

shall be kept in a clean condition and in good repair. Waste receptacles shall be provided.

(c) *Showers.* Each shower at a public swimming pool shall be equipped with adequate liquid or powdered soap from a metal or plastic soap dispenser. Every swimmer entering the pool area shall be required to take a shower.

(d) *Exceptions.* Apartment complexes and other such establishments which provide bathroom facilities in each housing unit and which restrict the use of the swimming pool to occupants and their guests shall be deemed to comply with this section.
(Ord. No. 29,835, § 1(46.1-9), 2-27-79)

Sec. 43-36. Animals, fowl and pets prohibited.

Animals, fowl or pets shall not be permitted within a public swimming pool area. This section shall not apply to seeing eye dogs.
(Ord. No. 29,835, § 1(46.1-10), 2-27-79)
Cross reference—Animals and fowl, Ch. 6.

Secs. 43-37—43-47. Reserved.

DIVISION 2. OPERATING PERMIT

Sec. 43-48. Required.

No person shall open or operate a public swimming pool, unless he has a current permit so to do issued by the director of public health. Such permit is hereinafter referred to in this division as a "pool permit."
(Ord. No. 29,835, § 1(46.1-6), 2-27-79)

Sec. 43-49. Application.

Application for a pool permit shall be made in writing on a form prescribed by the director of public health and signed by the applicant, wherein the applicant shall agree to conform to all of health rules and regulations governing swimming pools, and to permit such inspections as the director of public health deems necessary.
(Ord. No. 27,835, 1(46.1-6), 2-27-79)

Sec. 43-50. Applicant's qualifications.

Each applicant for a pool permit shall, to the satisfaction of the director of public health, demonstrate basic knowledge of water treatment process in swimming pools, know proper techniques for collection of water samples for bacteriological analysis and be capable of performing the chemical tests necessary to maintain safe water quality at the swimming pool, or have an individual in his employ with such knowledge. Completion of a course approved by the director of public health shall be deemed to comply with the requirements of this section.
(Ord. No. 29,835, § 1(46.1-6), 2-27-79)

Sec. 43-51. Fee.

The director of public health is hereby authorized to charge annual fees for the issuance of a pool permit as follows:

(1)	Swimming pool	$ 25.00
(2)	Wading pool	10.00
(3)	Spray pool	5.00

Where any combination of the above pools exists on the same site, the total fee for all such pools shall in no event exceed the fee charged for a single swimming pool permit.
(Ord. No. 29,835, § 1(46.1-6), 2-27-79)

Sec. 43-52. Valid only for specific person and pool.

A pool permit is valid only for the person to whom it is issued and for the swimming pool for which it is obtained.
(Ord. No. 29,835, § 1(46.1-6), 2-27-79)

Sec. 43-53. Posting.

Each pool permit shall be placed in a weather proof frame and permanently posted in view at the swimming pool for which it was issued.
(Ord. No. 29,835, § 1(46.1-6), 2-27-79)

Sec. 43-54. Term; renewal.

A pool permit shall be valid beginning May 1 of each year until April 30 of the following year. The

holder of the permit shall be responsible for renewing it each year, on or before the expiration date.
(Ord. No. 29,835, § 1(46.1-6), 2-27-79)

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Chapter 43.1

TATTOO PARLORS

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ARTICLE I. IN GENERAL

Sec. 43.1-1. Violations of chapter.

It shall be unlawful for any person to violate any provision of this chapter, or to cause or allow such violation. A violation of any provision of this chapter shall constitute a class 1 misdemeanor. Each day of violation shall constitute a separate offense.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-2. Exemptions.

(a) The provisions of this chapter shall not apply to persons authorized by the laws of the commonwealth to practice medicine and surgery or osteopathy or chiropractic.

(b) The provisions of this chapter shall not apply to the puncturing of the outer perimeter or lobe of the ear with a presterilized single-use and clasp-ear piercing system.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-3. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings ascribed to them by this section:

Antiseptic shall mean an agent that inhibits the growth and multiplication of, or destroys, disease-causing microorganisms on the skin or mucosa.

Aseptic techniques shall mean methods used in piercing procedures to prevent contamination of a pierced area by microorganisms.

Autoclave shall mean a sterilization device which meets the standards of the American Society for Mechanical Engineering (ASME).

Branding shall mean any method of placing designs, letters, scrolls, figures or any other marks upon the skin by burning with a hot iron or instrument.

Client shall mean a patron of a tattoo parlor of the person receiving a tattoo.

Communicable disease shall mean a disease that is transmissible by direct or indirect contact with infection from one person to another.

Contaminated shall mean the presence of microorganisms on inanimate objects.

Director shall mean the director of the Norfolk Department of Public Health or his designee.

Department shall mean the Norfolk Department of Public Health.

Disinfection shall mean the destruction of pathogenic microorganisms on inanimate objects or surfaces, thereby rendering these objects sanitary for use or handling.

Establishment shall mean a tattoo parlor.

Equipment shall mean all machinery, including fixtures, containers, vessels, tools, devices, implements, furniture, display and storage areas, sinks and all other apparatus and appurtenances used in connection with the operation of a tattoo parlor.

Gloves shall mean single-use, sanitary, disposable medical-grade gloves, such as triple-washed latex examination gloves or vinyl gloves.

Hot water shall mean water which attains and maintains a temperature of at least one hundred ten (110) degrees Fahrenheit.

Imminent health risk shall mean a significant threat or danger to health that is considered to exist when there is evidence sufficient to show that a product, practice, circumstance, or event creates a situation that requires immediate correction or cessation of operation to prevent injury, illness or disease based on the number of potential affected persons and the nature, severity and duration of the anticipated injury, illness or disease.

Injury shall mean any unexpected complication, damage, harm, hurt, or impairment to a person's body structure or function that is caused by tattooing.

Instrument shall mean hand pieces, needles, and other tools that may come in contact with a person's body or be exposed to body fluids during tattooing procedures.

Minor shall mean any person who has not attained the age of eighteen (18) years.

Operator shall mean any person that owns, operates, manages or takes responsibility for the operation of a tattoo parlor.

Parent shall mean a natural parent, legal guardian, or legal custodian of a minor.

Person shall mean an individual, firm, owner, sole proprietorship, partnership, corporation, an incorporated association, company, limited liability company, agent or other legal entity.

Reportable disease shall mean all communicable diseases required by the laws of the commonwealth to be reported to health officials.

Sanitary shall mean free of contaminants and pathogenic microorganisms.

Sanitation shall mean the application cumulative heat or chemicals on cleaned surfaces that, when evaluated for efficacy, yield a reduction of five (5) logs, which is equal to a 99.99-percent reduction of pathogenic microorganisms.

Sanitizer shall mean disinfectant or germicide registered with the United States Environmental Protection Agency, or an approximately one to ten (1:10) dilution of household chlorine bleach made fresh daily and dispensed from a spray bottle.

Scarification shall mean to intentionally make scratches or wounds on or incisions in the skin.

Single use shall mean products or items that are intended for one-time, one-person use and are disposed of after use on each person such as cotton swabs or balls, tissues or paper products, paper or plastic cups, gauze and sanitary coverings, razors, piercing and tattooing needles, scalpel blades, protective gloves, or ink.

Sink shall mean a lavatory equipped with hot and cold running water under pressure.

Spore shall mean a highly resistant dehydrated form of a bacterial cell, such as those of the genus bacillus.

Sterile shall mean free of live bacteria or other microorganisms including highly resistant bacterial endospores.

Sterilization shall mean the destruction of all forms of microbial life.

Support animal shall mean a trained animal such as a Seeing Eye dog that accompanies a person with a disability to assist in managing the disability and enables the person to perform functions that the person would otherwise be unable to perform.

Tattoo shall mean designs, letters, scrolls, figures, symbols or any other marks upon or under the skin with ink or any other substance resulting in the coloration of the skin, including permanent makeup and permanent jewelry, by the aid of needles or any other instruments designed to touch or puncture the skin.

Tattooer shall mean the person performing the tattooing.

Tattooing shall mean the act of placing a tattoo upon or under the skin of another person.

Tattoo parlor shall mean any place in which is offered, performed or practiced the placing of designs, letters, scrolls, figures, symbols or any other marks upon or under the skin of any person with ink or any other substance, resulting in the permanent coloration of the skin, including permanent makeup and permanent jewelry, by the aid of needles or any other instrument designed to touch or puncture the skin.

Universal precautions shall mean the current set of guidelines and controls published by the Centers for Disease Control and Prevention (CDC), which includes specific recommendations for the use of gloves, masks, protective eye wear and/or other protective equipment when contact with blood or body fluids containing blood is anticipated. This method of infection control requires the employer and the employee to assume that all human blood and specified human body fluids are infectious for HIV, HBV; and other blood pathogens. Precautions include hand washing; gloving; personal protective equipment; injury prevention; and proper handling and disposal of needles, other sharp instruments, and blood- and body fluid-contaminated products.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-4. Enforcement.

The director shall enforce the provisions of this chapter.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-5. Prohibition on scarification and branding.

It shall be unlawful for any person to perform, undertake, permit, cause or allow any scarification or branding of any human.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-6. Temporary or mobile tattoo parlors prohibited.

It shall be unlawful for any person to operate or use any tattoo parlor at any temporary location or in any mobile configuration or location.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-7. Liability of operator of tattoo parlor.

Every act or omission of whatsoever nature constituting a violation of any of the provisions of this chapter, by an officer, director, manager or other agent or employee of any operator of a tattoo parlor, if said act is committed or omission is made with the authorization, knowledge, approval or acquiescence of the operator, shall be deemed and held to be the act of such operator and said operator shall be punishable in the same manner as if said act or omission had been done or omitted by such operator personally.

Sec. 43.1-8. Inspections.

The director shall conduct periodic inspections of every tattoo parlor, at such times the director sees fit, for the purpose of determining compliance with the provisions of this chapter. Refusal of an operator or tattooer to allow the director to conduct an inspection shall be grounds for the suspension of a permit to operate a tattoo parlor.
(Ord. No. 42,406, § 2, 9-19-06)

Secs. 43.1-9, 43.1-10. Reserved.

ARTICLE II. PERMITS

Sec. 43.1-11. Tattoo parlor; permit required.

(a) It shall be unlawful for any person to operate a tattoo parlor without first obtaining a permit from the director. The operator of a tattoo parlor shall conspicuously post or display the tattoo parlor permit for public viewing. Proof of an applicable permit shall be the burden of the operator.

(b) It shall be unlawful for any person to engage in tattooing at an establishment that has no permit.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-12. Tattoo parlor permit; application.

(a) An application for a permit to operate a tattoo parlor shall be submitted to the director on forms provided by the director.

(b) Each application shall include:

(1) The operator's full name, mailing address, phone number, and a statement identifying the operator(s);

(2) If the operator is a partnership, the name, mailing address and phone number of each partner; or if the operation is a corporation, the name, mailing address and phone number for each officer and the registered agent.

(3) The establishment name, location, and the types of tattoo services and other services offered;

(4) The number of tattoo stations;

(5) The signature of the operator or operators; and

(6) Such other pertinent information as requested on such forms.

(c) If more than one establishment will be operated by the operator, a separate application and fees shall be required for each location.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-13. Tattoo parlor; plan review.

An applicant for a tattoo parlor permit shall submit a scale drawing and floor plan of the proposed establishment for a plan review by the director as part of the permit application process. This shall include equipment and finish sched-

ules. A plan review fee of two hundred dollars ($200.00) shall be paid prior to the plan review occurring.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-14. Tattoo parlor permit fees; expiration; renewal.

The fee for a tattoo parlor permit shall be one thousand, eight hundred dollars ($1,800.00).

The applicant shall pay the fee for each tattoo parlor permit. The permit fee shall be for a one-year licensing period from January 1 to December 31. All permits issued, during the course of a calendar year shall expire on December 31 of that year, regardless of the date issued unless revoked prior thereto as provided for in this chapter. For any person required to obtain a permit under the provisions of this section after the first day of January, the permit fee shall be prorated as follows: between January 1 and on or before June 30, the full permit fee shall be paid; between July 1 and on or before December 31 of the licensing year, one-half of the permit fee shall be paid.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-15. Tattoo parlor permit; issuance.

(a) Upon receipt of a complete application for a permit and the permit fee, the director shall make an inspection of the proposed establishment to determine if the proposed establishment complies with the provisions of this chapter and any other applicable law, regulation or standard. If the application and establishment inspection results comply with the provisions of this chapter and all other applicable laws, regulations and standards, a permit to operate a tattoo parlor shall be issued.

(b) A permit issued hereunder is strictly limited to the operator and establishment specified in the permit.

(c) A permit shall be nontransferable from one operator to another or from one establishment to another.

(d) Any change of operator or establishment location shall require a new application and permit, with payment of fees therefore.

(e) The director may refuse to issue a permit if the operator:

(1) Has been convicted in this or any other state of a crime related to tattooing or relating to the operation of a tattoo parlor; or

(2) Has violated provisions of this chapter, or any local, state or federal law, regulation or standards which are determined by the director to pose imminent health risk to the operator, tattooers, employees or the public.

(f) The director may set forth specific conditions to be complied with in each permit issued.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-16. Suspension and revocation of tattoo parlor permit.

(a) The director may, at any time, after giving five (5) calendar days' written notice and an opportunity to be heard to the operator, suspend for such length of time as he may deem appropriate, or revoke, any tattoo parlor permit for any of the following reasons:

(1) Fraud or misrepresentation by the operator in the procurement of the permit;

(2) Any violation of any applicable local, state or federal law, regulation or standard;

(3) Failure to comply with the general or specific terms of the permit; and

(4) Any illegal or unlawful acts caused, allowed or permitted to be done by the operator or his agent.

(b) The notice referred to in this section may be hand-delivered to the operator, mailed to the last known address of the operator or to the address of the operator given by him on the application for a permit, or posted on the point(s) of egress to the establishment.

(c) Notwithstanding subsections (a) and (b), in the event the director determines that there has been a violation of the permit conditions or there has been a violation of any local, state or federal law, regulation or standard which constitutes an imminent, substantial or compelling threat to

public health or safety, the director may dispense with the notice requirement and either close the establishment immediately or issue an order excluding the operator or tattooer from the establishment until such time the director determines there is no longer a public health or safety issue.

(d) It shall be unlawful to continue to operate or cause, permit or allow tattooing after the operator receives notice of the suspension or revocation or after immediate closure by the director. It shall also be unlawful for a tattooer to perform tattooing on any person after suspension, revocation or immediate closure by the director.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-17. Suspended permit; reinstatement.

Any operator whose permit has been suspended may apply for reinstatement of such permit. The application shall provide the same information as for a new permit and shall also include a statement signed by the operator or tattooer that the conditions causing suspension of the permit have been corrected. A reinstatement fee of one thousand eight hundred dollars ($1,800.00) shall be paid at time of application.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-18. Revoked permit; application for new permit.

Any operator whose permit has been revoked by the director does not qualify for reinstatement. The operator or practitioner must make an application for a new permit and cannot obtain a new permit until at least six (6) months have passed since the date of the revocation notice.
(Ord. No. 42,406, § 2, 9-19-06)

Secs. 43.1-19, 43.1-20. Reserved.

ARTICLE III. REGULATORY REQUIREMENTS

Sec. 43.1-21. Operator's requirements.

(a) A tattoo parlor must be in a permanent building or portion of a building which must be in a location permissible under the zoning ordinance of the city and in conformance with the building code of the city. The establishment shall be separated from any living quarters by complete floor to ceiling partitioning and shall contain no access to living quarters.

(b) The establishment shall be maintained in a clean and orderly manner.

(c) All facilities shall have a blood spill cleanup kits in the work area.

(d) Work surfaces shall be cleaned with an EPA-registered, hospital-grade disinfectant. Surfaces that come in contact with blood or other body fluids shall be immediately disinfected wit an EPA-registered germicide solution. Appropriate personal protective equipment shall be worn during cleaning and disinfecting procedures.

(e) Cabinets for the storage of instruments, dyes, pigments, single-use articles, carbon stencils and other utensils shall be provided for each operator and shall be maintained in a sanitary manner.

(f) Bulk single-use articles shall be commercially packaged and handled in such a way as to protect them from contamination.

(g) All materials applied to the human skin shall be from single-use articles or transferred from bulk containers to single-use containers and shall be disposed of after each use.

(h) The walls, ceilings, and floors shall be kept in good repair. The tattooing area shall be constructed of smooth, hard, light-colored surfaces that are nonporous, free of open holes or cracks, light-colored, and easily cleaned.

(i) The establishment shall have adequate lighting of at least fifty (50) foot-candles of illumination in the tattooing and sterilization areas.

(j) Adequate mechanical ventilation shall be provided in the establishment.

(k) The establishment shall be equipped with hand-cleaning facilities for its personnel with unobstructed access to the tattooing area such that the tattooer can return to the tattooing area without having to touch anything with their hands. Hand-cleaning facilities shall be equipped either with hot and cold or tempered running water

under pressure and liquid germicidal soap, or with a sanitizing solution to clean hands. Hand-cleaning facilities shall be equipped with single-use towels or mechanical hand drying devices; and a covered refuse container. Such facilities shall be kept clean and in good repair.

(l) Animals are not permitted in the establishment except for guide or service animals accompanying persons with disabilities. No animals are allowed in the tattooing or sterilization areas.

(m) Use of tobacco products and consumption of alcoholic beverages shall be prohibited in the tattooing or sterilization area.

(n) No food or drink shall be stored or consumed in the tattooing or sterilization areas except for client's use in order to sustain optimal physical condition; such food and drink must be individually packaged.

(o) If tattooing is performed where cosmetology services are provided, it shall be performed in an area that is separate and enclosed.

(p) Restrooms shall be available in the establishment. Each restroom shall be equipped with a sink with hot and cold running water, which passes through a mixing type of faucet. Each restroom shall be supplied with soap, toilet tissue, single use paper towels and a covered waste receptacle. Restrooms shall have self-closing doors.

(q) At least one waste receptacle shall be provided in each station area. Solid waste, including infectious waste, shall be collected, stored and disposed of in a manner and frequency that complies with federal, state and local regulations.

(r) Other equipment necessary for providing tattoos and for cleaning and sterilizing instruments shall include:

(1) A one-compartment sink with hot and cold running water under pressure;

(2) An autoclave;

(3) Storage cabinets or containers for sterilized instruments and supplies and separate approved storage for soiled or waste products.

(s) Water supplies and sewage disposal shall comply with applicable provisions of the City Code.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-22. Tattooer's responsibilities.

(a) All tattooers shall wear clean outer garments, maintain a high degree of personal cleanliness, and conform to hygienic practices while on duty.

(b) All tattooers shall clean their hands thoroughly using hot or tempered water with a liquid germicidal soap or use sanitizing solution to clean hands before and after tattooing and as necessary to remove contaminants.

(c) All tattooers must wear single-use examination gloves while assembling tattooing instruments and while tattooing.

(d) Each time there is an interruption in service, each time the gloves become torn or perforate, or whenever the ability of the gloves to function as a barrier is compromised;

(1) Gloves shall be removed and disposed of; and

(2) Hands shall be cleaned and a fresh pair of gloves used.

(e) Tattooers shall use standard precautions while tattooing. A tattooer diagnosed with a communicable disease shall provide to the director a written statement from a health-care practitioner that the tattooer's condition no longer poses a threat to public health.

(f) Tattooers with draining lesions on their hands or face shall not be permitted to work until cleared by a health-care professional.

(g) The area of the client's skin to be tattooed shall be cleaned with an approved germicidal soap according to label directions.

(h) Tattooing inks and dyes shall be placed in a single-use disposable container for each client. Following the procedure, the unused contents and container shall be properly disposed of.

(i) If shaving is required, razors shall be single-use and disposed of in a puncture-resistant container.

(j) Each tattooer performing any tattooing procedures in the parlor shall have the education, training and experience, or any combination thereof, to practice aseptic technique and prevent the transmission of blood-borne pathogens. All procedures shall be performed using aseptic technique.

(k) A set of individual, sterilized needles shall be used for each client. Single-use, disposable instruments shall be disposed of in a puncture resistant container.

(l) Used, nondisposable instruments shall be kept in a separate, puncture-resistant container until brush scrubbed in hot water soap and then sterilized by autoclaving. Contaminated instruments shall be handled with disposable gloves.

(m) Used instruments that are ultrasonically cleaned shall be rinsed under running hot water prior to being placed in the used-instrument container.

(n) Used instruments that are not ultrasonically cleaned prior to being placed in the used-instrument container shall be kept in a germicidal or soap solution until brush scrubbed in hot water and soap and sterilized by autoclaving.

(o) The ultrasonic unit shall be sanitized daily with germicidal solution.

(p) Nondisposable instruments shall be sterilized and shall be handled and stored in a manner to prevent contamination. Instruments to be sterilized shall be sealed in bags made specifically for the purpose of autoclave sterilization and shall include the date of sterilization. If nontransparent bags are utilized, the bag shall also list the contents.

(q) Autoclave sterilization bags with a color-code indicator which changes color upon proper sterilization shall be utilized during the autoclave sterilization process.

(r) Instruments shall be placed in the autoclave in a manner to allow live steam to circulate around them.

(s) Contaminated disposable and single-use items shall be disposed of in accordance with state regulations regarding disposal of biological hazardous materials.

(t) Any injury or complaint of injury, suspected infection, or any reportable diseases resulting from a tattoo that became known to the operator or tattooer shall be reported to the director within twenty-four (24) hours.
(Ord. No. 42,406, § 2, 9-19-06)

Sec. 43.1-23. Client qualifications, disclosures, and records.

(a) Except as permitted in Code of Virginia, § 18.2-371.3, a client must be a minimum of eighteen (18) years of age and shall present at the time of tattooing a valid, government-issued, positive identification card including, but not limited to, a driver's license, passport, or military identification. The identification must contain a photograph of the individual and a printed date of birth.

(b) The tattooer shall verify and document in the permanent client record the client's age, date of birth, and the type of identification provided.

(c) No person may be tattooed who appears to be under the influence of alcohol or drugs.

(d) Tattooing shall not be performed on any skin surface which manifests any evidence of unhealthy conditions such as rashes, boils, infections, or abrasions.

(e) Before receiving a tattoo, each client and client's parent or guardian, if applicable, shall be informed verbally and in writing, using the client disclosure form prescribed by the State Board for Barbers and Cosmetology, about the possible risk and dangers associated with the application of each tattoo. Signatures of both the client and the tattooer shall be required on the client disclosure form to acknowledge receipt of both the verbal and written disclosures.

(f) The establishment shall maintain proper records for each client. The information shall be permanently recorded and made available for examination by the director. Records shall be

maintained at the establishment for at least two (2) years following the date of the last entry. The permanent records shall include the following:

(1) The name, address, and telephone number of the client;

(2) The date tattooing was performed;

(3) The client's age, date of birth, and a copy of the positive identification provided to the tattooer;

(4) The specific color or colors of the tattoo and, when available, the manufacturer's catalogue or identification number of each color used;

(5) The location on the body where the tattooing was performed;

(6) The name of the tattooer;

(7) A statement that the client has received a copy of applicable written care instructions, and that the client has read and understands the instructions; and

(8) The signature of the client, and if applicable, the parent or guardian.

(Ord. No. 42,406, § 2, 9-19-06)

Chapter 44

TRAILER COACHES AND TRAILER COACH PARKS*

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*Cross references—Building regulations, Ch. 11; license tax for trailer camps, § 24-143; motor vehicle code, Ch. 25; subdivision regulations, Ch. 42.5; zoning ordinance, App. A.

ARTICLE I. IN GENERAL

Sec. 44-1. Definitions.

(a) For the purposes of this chapter, certain words and phrases shall have the meanings ascribed to them by this section, unless clearly indicated to the contrary.

(b) *Dependent trailer coach* means any trailer coach which does not have a kitchen sink, toilet and bathtub or shower.

(c) *Independent trailer coach* means any trailer coach which has a kitchen sink, toilet and bathtub or shower.

(d) *Permit* means a written permit issued by the building official permitting a trailer coach park to operate under this chapter.

(e) *Service building* means a building housing toilet facilities for men and women, with laundry facilities, and with separate bath or shower accommodations.

(f) *Trailer coach* means any vehicle used, or so constructed as to permit its being used, as a conveyance upon the public streets or highways and duly licensable as such, and constructed in such a manner as will permit occupancy thereof as a dwelling or sleeping place for one or more persons.

(g) *Trailer coach park* means any site, lot, field or tract of ground upon which one or more trailer coaches are placed, regardless of whether or not a charge is made for such accommodation, and shall include any building, structure, tent, vehicle or enclosure used or intended for use as a part of the equipment of such park or of any trailer coach located therein.

(h) *Trailer coach space or lot* means a plot of ground within a trailer coach park, designated for the accommodation of one trailer coach and use by its occupants. (Code 1958, § 48-1)

Sec. 44-2. General penalty for violations of chapter.

Any person violating any provision of this chapter shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than one thousand dollars ($1,000.00), unless otherwise provided.

Sec. 44-3. Parking trailer coach on street or other public place.

It shall be unlawful for any person to park any trailer coach on any street, alley, lane or other public place in the city. (Code 1958, § 48-13)

Cross reference—General parking regulations, § 25-276 et seq.

Sec. 44-4. Parking or storing trailer coach on lot outside authorized trailer coach park.

(a) Except as otherwise provided in this section, it shall be unlawful for any person to park or store any trailer coach on any lot, parcel or tract of land within the city, other than within an authorized trailer coach park.

(b) One trailer coach may be parked or stored in an improved enclosed garage or accessory building on any lot or plot of land; provided, however, that no living quarters shall be maintained or any business practiced in such trailer coach while it is so parked or stored.

(c) The provisions of this section shall not preclude the parking or storage of trailer coaches for the purpose of display in connection with the operation of the business of trailer coach sales. No trailer coach so displayed may be occupied for dwelling purposes.

(d) An independent trailer coach may be parked on a lot on which commercial or industrial construction work is in progress for use, for dwelling purposes, by a person in the employ of the contractor performing such work. Such use must be temporary and shall be terminated and the trailer coach removed upon completion of the construction work. (Code 1958, § 48-14)

Secs. 44-5—44-20. Reserved.

ARTICLE II. TRAILER COACH PARKS

DIVISION 1. GENERALLY

Sec. 44-21. Application of article.

The provisions of this article shall apply to all trailer coach parks located within the city, regardless of when the same were established, unless otherwise specifically provided.

Sec. 44-22. To be located on well drained site.

Every trailer coach park shall be located on a well drained site in an area free from marshes, swamps or other potential breeding places for insects or rodents. (Code 1958, § 48-4)

Sec. 44-23. General area requirements.

(a) The area of a trailer coach park shall be large enough to accommodate:

(1) The designated number of trailer coach spaces.

(2) Necessary streets and roadways.

(3) Parking areas for motor vehicles.

(4) Service areas and playgrounds.

(b) No trailer coach park shall occupy a ground area of less than two hundred thousand (200,000) square feet and each such park shall have a minimum width of four hundred (400) feet. This subsection shall not apply to an automobile trailer camp or trailer coach park which was in operation on January 1, 1961, in full compliance with all applicable ordinances as they then existed, and which as has been in continuous operation since that date. (Code 1958, §§ 48-4, 48-12)

Sec. 44-24. Yards.

Front, side and rear yards in a trailer coach park shall comply with the requirements of the zoning ordinance for C-TP (trailer park commercial) districts. (Code 1958, § 48-4)

Cross reference—Zoning ordinance, App. A.

Sec. 44-25. Streets and roadways.

(a) All private streets or roadways in a trailer coach park, which are to accommodate traffic moving in both directions, shall have a minimum hard surfaced width of eighteen (18) feet, shall be well drained, plainly marked in the daytime, adequately lighted at night and easily accessible from all trailer coach spaces.

(b) All private streets or roadways in a trailer coach park, which are designed to accommodate traffic moving in one direction only, shall have a minimum hard surfaced width of nine (9) feet, shall be well drained, plainly marked in the daytime, adequately lighted at night and easily accessible from all trailer coach spaces.

(c) Along that side of any private street or roadway which abuts a trailer coach space, there shall be provided a nine (9) foot right-of-way, in addition to the hard surfaced right-of-way.

(d) Roadways required by this section shall be provided with at least one one hundred (100) watt electric light for each one hundred fifty (150) lineal feet of roadway. (Code 1958, §§ 48-5, 48-22)

Sec. 44-26. Entrances and exits for vehicular traffic.

Vehicular access to trailer coach parks shall be by means of designated entrances and exits, which shall be well marked, lighted and easily controlled and supervised. All such entrances and exits shall be over driveways as authorized by, and in accordance with specifications of, the department of public works and shall be located as shown on the plan approved for the trailer coach park. (Code 1958, §§ 48-9, 48-22)

Sec. 44-27. Parking areas.

Areas shall be provided for the parking of motor vehicles in trailer coach parks. Such areas shall accommodate at least the number of vehicles equal to the number of trailer coach spaces in such park, and shall be so located as to prevent interference with the movement of vehicles on the roadways throughout the park. (Code 1958, § 48-7)

Sec. 44-28. Walkways.

Walkways shall be provided to all service facilities used by occupants of a trailer coach park, if such facilities are not accessible from roadways. Such walkways shall have a hard surfaced width of at least three (3) feet and shall be adequately lighted. A minimum of one one hundred (100) watt electric light shall be provided for each one hundred fifty (150) lineal feet of walkway. (Code 1958, §§ 48-6, 48-22)

Sec. 44-29. Playgrounds.

Playground areas shall be provided in each trailer coach park and shall be restricted to use as playgrounds. These areas shall be protected from the roadways and from parking areas. A minimum of one hundred (100) square feet per trailer coach space in the park shall be made available, in one or more places, for such playground areas. (Code 1958, § 48-8)

Sec. 44-30. Minimum area and width of trailer coach spaces.

Each trailer coach space shall contain a minimum of two thousand one hundred (2,100) square feet of usable land, and shall have an average width of not less than thirty (30) feet. (Code 1958, § 48-4)

Sec. 44-31. Numbering of trailer coach spaces.

Each trailer coach space shall be identified with a number on a permanent marker plainly visible from the roadways within the trailer coach park. (Code 1958, § 48-23)

Sec. 44-32. Trailer coach spaces to abut roadway or clear area and have access to public street.

All trailer coach spaces shall abut a roadway or other clear area, with unobstructed access to a public street. (Code 1958, § 48-4)

Sec. 44-33. Trailer coaches prohibited except in coach spaces; joint occupancy of spaces prohibited.

The parking, storage, use or occupation of trailer coaches in trailer coach parks otherwise than in trailer coach spaces is prohibited, and no trailer coach shall be so parked, stored, used or occupied in any trailer coach space with any other trailer coach. (Code 1958, § 48-15)

Sec. 44-34. Clearance between trailer coaches and between coaches and buildings.

A distance of not less than twenty (20) feet shall be maintained between trailer coaches and between trailer coaches and buildings. (Code 1958, § 48-4)

Sec. 44-35. Limitations on dependent trailer coaches.

Dependent trailer coaches are prohibited from remaining in any trailer coach park for a period of time in excess of eight (8) consecutive days, or a total of thirty (30) days in any calendar year, are limited to eight (8) in number in any trailer coach park and, when accommodated, shall be located on trailer coach spaces which are not further distant from a service building than three hundred (300) feet. (Code 1958, § 48-16)

Sec. 44-36. Utility connections generally.

No trailer coach space may be used for the maintenance of a trailer coach, unless such space has individual connections to the trailer coach for water, sewerage and electricity. (Code 1958, § 48-17)

Sec. 44-37. Water supply and system.

(a) The only source of water supply for trailer coach parks and trailer coaches located therein shall be that of the public water supply system of the city. Any other source of water supply is prohibited.

(b) The water system of a trailer coach park shall be connected by pipes to all service buildings and all trailer coach spaces.

(c) Individual water service connections shall be provided for direct use by trailer coaches and shall be so constructed that they will not be damaged by the parking of such coaches. The trailer coach park water system shall be adequate to provide twenty (20) pounds per square inch of pressure at all trailer coach connections.

(d) An adequate supply of hot water shall be provided at all times for bathing, washing and laundry facilities. (Code 1958, § 48-18)

Cross reference—Water supply, Ch. 46.

Sec. 44-38. Sewage disposal.

(a) The only system of sewage disposal for trailer coach parks shall be the public system of the Hampton Roads sanitation district commission. Any other system of sewage disposal is prohibited.

(b) This section shall not apply to a trailer coach park or automobile trailer camp in lawful operation on January 1, 1961, unless and until a sanitary sewer line connection to the Hampton Roads sanitation district commission system is available at a property line of such park or camp. (Code 1958, §§ 48-12, 48-19)

Cross reference—Sewers, Ch. 39.

Sec. 44-39. Electrical outlets.

An electrical outlet supplying at least one hundred ten (110) volts shall be provided for each trailer coach space. (Code 1958, § 48-21)

Sec. 44-40. Garbage and refuse containers.

Garbage and refuse containers or receptacles meeting the requirements of chapter 41 of this Code shall be located on each trailer coach space in a trailer coach park, by and for the use of the occupant or occupants of such space. (Code 1958, § 48-20)

Sec. 44-41. Tents, buildings and other structures prohibited; exceptions.

(a) It shall be unlawful for any person to erect, place or maintain, in any trailer coach park, any tent, building or structure, except as follows:

(1) Buildings housing toilet, bathing and laundry facilities.

(2) Buildings housing administrative facilities, such as office and maintenance.

(3) Buildings housing water, sewerage and electrical facilities.

(4) Buildings housing storage facilities for occupants of trailer coaches, provided that no more than sixteen (16) square feet of any trailer coach space shall be used for such a building.

(b) This section shall not apply to awnings, canopies or enclosures permitted by section 44-42. (Code 1958, § 48-24)

Sec. 44-42. Awnings, canopies or enclosures attached to trailer coaches.

An awning, canopy or enclosure manufactured for use as an extension of the enclosed or covered area of a trailer coach, to accommodate the occupants of the trailer coach when so extended, may be used in a trailer coach park, subject to the following provisions:

(1) It shall be approved by the building official.

(2) It shall be unenclosed on three (3) sides, if of awning construction and material other than metal.

(3) It shall be considered a part of the trailer coach, if enclosed on more than three (3) sides.

(4) It shall not constitute a permanent addition, built onto or becoming a part of any trailer coach in such a manner or of such materials as to preclude its being moved with and as a part of a trailer coach. (Code 1958, § 48-24)

Sec. 44-43. Skirting of trailer coaches.

The skirting of trailer coaches in a trailer coach park is permissible, but such skirting shall not attach the trailer coach permanently to the ground, provide a harborage for rodents or create a fire hazard. (Code 1958, § 48-27)

Cross references—Fire prevention and protection, Ch. 17; rat control, Ch. 36.

Sec. 44-44. Removal of wheels from trailer coaches.

The wheels of a trailer coach in a trailer coach park shall not be removed, except temporarily when necessary for repairs. (Code 1958, § 48-26)

Sec. 44-45. Service buildings.

(a) Each trailer coach park shall be provided with one or more service buildings adequately equipped with flush-type toilet fixtures. No service building shall contain less than one toilet for females one toilet for males and one lavatory and one shower for each sex.

(b) Service buildings shall be located twenty (20) feet or more from trailer coaches and other buildings and shall not be located in any front, side or rear yard.

(c) Service buildings shall be so located that no trailer coach space which is used or rented for use for a dependent trailer coach is more distant than three hundred (300) feet from such facility.

(d) Service buildings shall be adequately lighted at all times. (Code 1958, §§ 48-10, 48-22)

Sec. 44-46. Laundry facilities and clothes drying areas.

(a) Laundry facilities shall be provided in the ratio of not less than two (2) washing machines for every one hundred (100) trailer coach spaces in a trailer coach park. Such facilities shall be provided in a building or compartment of a building separate from all other facilities of the trailer coach park.

(b) Clothes drying areas shall not be located in any front, side or rear yard, unless such areas are within the boundaries of a trailer coach space. (Code 1958, § 48-11)

Sec. 44-47. Emergency facilities.

(a) Where approved fire alarm boxes connected with the city fire alarm system are not provided in trailer coach parks, suitable telephone facilities for emergency use shall be readily accessible at all times.

(b) Information in printed form, to enable occupants of trailer coaches to locate the nearest fire alarm box or telephone for emergency use or summon trailer coach park employees, shall be supplied to each trailer coach at the time of registration. Emergency call numbers shall be posted conspicuously at public telephone locations. (Code 1958, § 48-25)

Sec. 44-48. Guest register.

(a) It shall be the duty of the owner, operator or manager of a trailer coach park to keep an accurate register containing a record of all trailer coaches, owners and occupants located within the trailer coach park. The register shall contain the following information:

(1) Name and address of the owner and each occupant and the age of all persons under eighteen (18) years.

(2) The trailer coach space number in which the trailer coach is parked.

(3) The license number, with state of issuance, make, model and year of each trailer coach and the license number and state of issuance of the automobile or truck by which it is towed upon entering and leaving the trailer coach park, if such information can reasonably be obtained by the exercise of due diligence.

(4) Date of entering the trailer coach park.

(5) Date of leaving the trailer coach park.

(b) The register required by this section shall be kept available for inspection at all times by law-enforcement officers, public health officials and other officials whose duties require the information contained in the register. Register records shall not be destroyed for a period of three (3) years following the date of registration.

(c) It shall be the duty of the owner or occupant of each trailer coach to provide the information required under subsection (a) of this section. (Code 1958, § 48-29)

Sec. 44-49. Procedure upon existence or suspected existence of communicable diseases.

Every owner, operator, attendant or other person concerned with the operation of a *trailer coach park shall notify the director of* public health immediately of any suspected communicable or contagious disease within the trailer coach park. In the case of diseases diagnosed by a physician as quarantinable, such owner, operator, attendant or other person shall immediately notify the office of the director of public health, if such notice that any trailer coach is to be removed or any occupant intends to move from such trailer park or intends to remove clothing or any other articles which have been exposed to infection, without the approval of the director of public health. It shall be unlawful for the *owner or occupant of a trailer coach to depart* from such trailer coach park or remove therefrom the trailer coach, clothing or other articles which have been exposed to infection, without the approval of the director of public health. (Code 1958, § 48-30)

Sec. 44-50. Right of access for inspections and repairs.

(a) It shall be the duty of the owners or occupants of trailer coach parks and trailer *coaches contained therein, or of the person in* charge thereof, to give free access to such premises at reasonable times to those officers of the city, or their representatives, whose duties require that they inspect such premises.

(b) It shall be the duty of every occupant of a trailer coach park to give the owner thereof or his agents or employees access to any part of such trailer coach park or its premises, at reasonable times, for the purpose of making *such repairs or alterations as are necessary to* effect compliance with this chapter and other applicable ordinances of the city, and with any lawful regulations adopted thereunder. (Code 1958, § 48-31)

Sec. 44-51. Animals running at large.

No dog, cat or other pet animal shall be permitted by its owner to run at large in any trailer coach park. A violation of this section shall constitute a Class 4 misdemeanor. (Code *1958, § 48-28)*

Cross reference—Animals, Ch. 6.

Sec. 44-52. Notice of change of ownership or control.

Every person holding a permit issued under this article shall give notice in writing to the building official, within twenty-four (24) hours after having sold, transferred, given away or otherwise disposed of his interest in or control of the trailer coach park covered by such permit. Such notice shall include the name and address of the person succeeding to the ownership or control of such trailer coach park. (Code 1958, § 48-2)

Secs. 44-53—44-63. Reserved.

DIVISION 2. PERMIT

Sec. 44-64. Required.

It shall be unlawful for any person to construct, maintain, operate or alter any trailer coach park within the limits of the city, unless he holds a valid permit issued by the building official in the name of such person for the specific trailer coach park. (Code 1958, § 48-2)

Sec. 44-65. Application.

(a) Application for a permit required by this division shall be made to the building official upon forms supplied by his office, and, in general, shall contain the following:

(1) The name and address of the applicant.

(2) The location and legal description of the trailer coach park, including the area in acres.

(3) The zoning district classification of the property to be or being used for the park.

(4) Number of trailer coach spaces.

(5) A complete plan of the trailer coach park, showing compliance with all applicable provisions of this article and other ordinances of the city and regulations promulgated thereunder.

(6) Such further information as may be requested by the director of public health to enable him to determine that the trailer coach park will comply with legal requirements as to health and sanitation.

(b) The complete plan referred to in subsection (a)(5) above shall be a drawing of the proposed trailer coach park at a scale of $1'' = 50'$, prepared by a land surveyor or engineer and showing:

(1) The extent, showing lot, block and subdivision identification or bearing and distances if not subdivided, and area of the property to be used for trailer coach park purposes.

(2) The location and width of roadways, walkways and driveway entrances and exits.

(3) Location, size and identifying numbers of trailer coach spaces.

(4) Location and size of service buildings and any other proposed structures.

(5) Location and quantity of proposed sanitary conveniences, including proposed toilets, washrooms, laundries, laundry drying spaces, children's play areas and utility storage.

(6) Method and plan of sewerage disposal.

(7) Location and quantity of garbage receptacles.

(8) Plan of water supply.

(9) Plan of electric lighting.

(10) Storm water drainage. (Code 1958, § 48-3)

Sec. 44-66. Issuance.

The building official shall issue a permit applied for under this division, upon compliance by the applicant with this article and all other applicable ordinances of the city and any regulations adopted pursuant thereto. (Code 1958, § 48-2)

Sec. 44-67. Not transferable.

No permit issued pursuant to this division shall be transferable. (Code 1958, § 48-2)

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Chapter 45

TREES AND OTHER VEGETATION*

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Article III. Tree Commission

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***Editor's note—**Ord. No. 41,728, § 1, adopted Feb. 15, 2005, amended ch. 45 in its entirety and enacted similar provisions as set out herein. The former ch. 45 derived from Ord. No. 38,259, § 1, adopted Jan. 23, 1996; Ord. No. 39,590, § 11, adopted May 18, 1999; and Ord. No. 39,658, §§ 1—8, adopted June 22, 1999.

ARTICLE I. GENERALLY

Sec. 45-1. Violations.

Unless otherwise specified, any person violating any provision of this chapter or any permit issued pursuant to any provisions of this chapter shall be guilty of a class 1 misdemeanor. Each day a violation continues shall be deemed a new violation. In addition to any penalties imposed for each violation, a judge hearing the case may order the person responsible for such condition or violation to restore, remediate or correct the violation or condition, and each day's default in such restoration, removal or remediation after being so ordered shall constitute a violation of and a separate offense under this chapter.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-2. Definitions.

As used in this chapter, the following terms shall have the meanings set forth herein:

ANSI: American National Standards Institute.

Controlling arboricultural specifications and standards: Professional specifications and standards governing safe and appropriate and horticultural practices, as periodically updated or revised, including, but not limited to:

(1) *ANSI Z133.1*—American National Standards for Tree Care Operations, most current edition.

(2) *ANSI A300*—The American National Standard for Tree Care Operations— Tree, Shrub and other Woody Plant Maintenance—Standard Practices, most current edition;

(3) *ANSI Z60.1*—America Standard for Nursery Stock, most current edition;

(4) *ISA tree-pruning guidelines*;

(5) *City of Norfolk Tree Protection Notes and Details*—Specifications, standards and details for protection of trees during construction, including trees located on city-owned property, trees located within Chesapeake Bay Preservation Areas, and privately-owned trees impacted by city construction activities;

(6) *City of Norfolk Street Tree Planting and Location Standards*—Standards governing the placement and type (species) of street trees approved for use in the city, most recent edition;

(7) *Council of Tree and Landscape Appraisers Guide for Plant Appraisal;* and

(8) *City of Norfolk Mitigation Standards.*

Chesapeake Bay Preservation Area Overlay District described in section 11-2 of the zoning ordinance in accordance with Code of Virginia 9 VAC 10-20-10 et seq.

City-owned property: Property within the city limits of the City of Norfolk owned by the city in fee simple or property impliedly or expressly dedicated to the public for the present or future use for the purpose of vehicular or pedestrian traffic or public right-of-way or park use.

Critical root zone: The portion of the root system of a tree that is the minimum necessary to maintain the continued health, vitality or stability of the tree, defined by a concentric circle with a radius equal to the distance from the trunk to the outermost portion of the crown spread.

Crown-spread: The distance between a tree trunk and the outermost edge of the tree canopy or branch spread.

Director: The director of neighborhood and leisure services or his designee.

Emergency utility work: Any sudden and unanticipated disruption or loss of existing utility service, including signal leaks from cable television, but not to include routine maintenance, planned repairs and service improvements or upgrades to any transmission or distribution system or residential, commercial or governmental facility.

Forester: The city forester of the city.

ISA: The International Society of Arboriculture.

Person: Any person, business, partnership, corporation, legal entity, or governmental entity or agency, and any of its subdivisions.

Property owner: The record owner or contract purchaser of any parcel of land.

Trees, shrubs, and other vegetation: All vegetation, woody, or otherwise, except lawn, ornamental grass and flowers less than twenty-four (24) inches in height.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-3. Bureau of parks and forestry.

The bureau of parks and forestry, in addition to the responsibilities and authorities vested in it by chapter 25.2 of this Code, shall have the management, control and care of the area between the street curbing and the walkway, and of all trees and shrubbery on the streets, avenues and public grounds of the city, shall direct and regulate planting, transplanting, pruning, removal, care and protection of all shade and ornamental trees and shrubbery to be planted and cultivated, determining species and distances for such planting, and shall have all other necessary and convenient powers incident to the conduct of its duties.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-4. Duties of the city forester.

Under the supervision and direction of the director and the superintendent of parks and forestry, the city forester shall have the following responsibilities:

(a) To direct a comprehensive municipal forestry program encompassing natural resource conservation, preventative, corrective and routine maintenance, and reforestation components.

(b) To administer the tree ordinance and street tree management plan and perform whatever acts are necessary including the planting, maintenance, treatment and protection of trees, and the removal of dead, dying, diseased, damaged or hazardous trees, including trees which by virtue of their type, form, condition, size, location, or site conditions are predisposed to structural failure, or otherwise undesirable trees, shrubs and other vegetation located on city-owned property; and to ensure that all trees, shrubs and other vegetation located on city property conform with the tree ordinance, street tree management plan, and other controlling arboricultural specifications and standards.

(c) To establish and periodically review and revise, as necessary, controlling arboricultural specifications and standards, street tree planting and location standards, tree protection notes and details, and policies or practices to professionally manage the city's tree population and carry out the expressed intent of this article.

(d) To direct the development and operation of a municipal nursery.

(e) Administer a vegetated buffer protection program within the Chesapeake Bay Preservation Area Overlay District.

(f) To propose annual budget requirements and staffing and equipment requirements as deemed necessary to carry out the expressed purpose and intent of this article and street tree management plan.

(g) To establish and maintain a public relations program, including annual Arbor Day observations, Tree City USA certification, and other public relations programs in furtherance of the expressed purpose and intent of this article and the street management plan.

(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-5. Interference with bureau of parks and forestry.

No person shall, in anywise, interfere with, hinder, prevent or delay or cause or permit any person to interfere with, hinder, prevent or delay the bureau of parks and forestry, or its employees, in the enforcement of this chapter, or in and about the planting, mulching, pruning, spraying, treating or removing of any tree in the public streets, parks, schools, city-owned cemeteries, or other city-owned property, or in the removing of stone, cement or other sidewalks, or stone, cement or other substances about the trunk of any tree in

any street, or in cultivating, seeding and caring for the area between the street curbing and the walkway in any sidewalk of the city.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-6. City nurseries.

The bureau of parks and forestry shall have the authority to establish and maintain nurseries for the cultivation and growth of trees and plants for public use upon such land owned by the city as may be designated by the director of neighborhood and leisure services. Such nurseries shall be under the supervision of the bureau of parks and forestry and shall be operated under such rules and regulations as may be prescribed by the bureau. Such bureau is hereby authorized to supply and install trees and plants from its nurseries to be planted on the streets, parks, schools and other city-owned property, at such points as the bureau may deem expedient or for the purpose of replacing trees which have heretofore been planted, but which have died.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-7. Picking, pulling, damaging, etc., vegetation on lands of another or in park or wildlife sanctuary.

It shall be unlawful for any person to pick, pull, pull up, tear, tear up, dig, dig up, cut, break, injure, burn or destroy, in whole or in part, any tree, shrub, vine, plant, flower or turf found growing or being upon the land of another, or upon any land reserved, set aside or maintained by the city as a public park, or as a refuge or sanctuary for wild animals, birds or fish, without having previously obtained the permission in writing of such other owner or his agent or of the superintendent or custodian of such park, refuge or sanctuary so to do, unless the same is done under the personal direction of such owner, his agent, tenant or lessee, or the superintendent or custodian of such park, refuge or sanctuary.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-8. Selling trees or shrubs removed from property of another.

It shall be unlawful for any person to sell or offer for sale within the city any tree, shrub or vine, or any part thereof which was picked, pulled up, torn up, dug up, cut or broken on the property of another without previously obtaining permission, in writing, from such other person, his agent, tenant or lessee.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-9. Failure to install or maintain landscaping.

It shall be unlawful to neglect or fail to install or maintain landscaping as shown on an approved site plan where the landscaping has been reviewed and approved by the director of neighborhood and leisure services or his designee as part of the site plan review process pursuant to the zoning ordinance.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-10. Disposal or surplus trees or urban forest products.

The director may sell surplus nursery stock produced by the city and wood and other forest products generated through urban forestry and park operations which are not needed by the city. Monies generated from permit fees, donations, gifts and the sale of surplus nursery trees and wood or other forest products, or monies received as full compensation for the appraised value of trees removed by permit, shall be used solely for the purpose of enhancing urban forestry programs and operations.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-11. Payment in lieu of tree, shrub, and other vegetation replacement or mitigation.

In any situation where replacement or mitigation is required, and it is impractical in the opinion of the director to perform replacement or mitigation, the director may accept a payment in lieu of replacement or mitigation. The payment due shall be determined by the director according to controlling arboriculture specifications and standards.
(Ord. No. 41,728, § 1, 2-15-05)

ARTICLE II. TREE ORDINANCE

Sec. 45-12. Purpose and intent.

It is the purpose of this article, to be referred to as the "Norfolk Tree Ordinance," to promote and protect the public health, safety and general welfare by providing for the regulation of the planting, maintenance and removal of trees, shrubs and other vegetation in the city. It is the intent of the city council that the terms of this article shall be construed so as to promote the planting, maintenance, restoration and protection of desirable trees, shrubs and other vegetation within the city, to protect citizens from personal injury and property damage, and to protect public property from property damage caused or threatened by improper planting, maintenance, or removal of trees, shrubs, or vegetation plants located within the city.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-13. Permits; when required.

(a) Residents of Norfolk may apply for a permit to prune and trim city trees located between the curbs and sidewalks. A request for a permit can take place only after a resident has successfully completed a workshop devoted to basic tree trimming techniques led by an I.S.A. certified arborist for the city, and the individual resident receives a certificate of completion in such training. All appropriate tools and required safety equipment must be supplied by the resident(s) and approved by the arborist. The pruning may take place from the ground only, utilizing only nonpowered hand tools. Debris from any pruning session must be removed in accordance with normal Norfolk Division of Waste Management regulations.

(b) Except as otherwise provided in this section, it shall be unlawful for any person except an authorized employee of the bureau of parks and forestry to perform any of the following acts on city-owned property without first obtaining a permit from the director:

(1) Plant, transplant, prune, trim, root prune, spray, fertilize, treat, remove, paint, climb or otherwise damage or disturb any tree, shrub or other vegetation or any part thereof (including live, diseased, declining or dead), or protective and supportive devices.

(2) Place either above or below ground level, a container for trees, shrubs or other vegetation.

(3) Affix or cause to be affixed to any tree, shrub or other vegetation any sign, notice, announcement, banner, rope, cable, nail, tape, wire, or any other object, or to use the same in any connection with any guard or stake protecting or supporting such tree, or permit any electrical wires, cables, poles, cross arms, brackets, insulators, or other wires or fixtures to come into contact with any shade tree or ornamental tree on the streets or other city owned property.

(4) Dig a tunnel, trench, or otherwise excavate within the critical root zone of a tree, except within the paved roadways from curb face to curb face.

(5) Apply and chemical or material of any sort to or within the critical root zone of any tree located on city-owned property, including but not limited to insecticides, herbicides, fungicides, or soil sterilants/or growth regulators that either prevent or hinder the establishment or viability of vegetation or is detrimental to the environment.

(6) Place any material of any sort, including, but not limited to, dirt, soil, rubble, concrete, bricks, wood, dredge spoil, asphalt, creosote timbers, logs, garbage, tires, organic wastes and personal property such as boats, trailers, vehicles on or within the critical root zone of any tree, shrub or other vegetation.

(c) It shall be unlawful for any person to perform any of the following acts within the resource protection area or intensely developed areas in the Chesapeake Bay Preservation Area Overlay District without first obtaining a permit from the director:

(1) Plant, transplant, trim, prune, remove or otherwise disturb any tree, shrub or other vegetation (including live, diseased, declining or dead), or portion thereof.

(2) Damage, cut, tap, caulk, paint, attach any rope, wire, nail, sign or any other manmade object to any tree or shrub.

(3) Dig a tunnel trench or otherwise excavate within the critical root zone of any tree, shrub or other vegetation.

(4) Apply any chemical, including, but not limited to, herbicides and/or growth regulators, that either prevents or hinders the establishment of viability of vegetation or is detrimental to the environment.

(5) Place any material of any sort, including, but not limited to, dirt, soil, rubble, concrete, bricks, wood, dredge spoil, asphalt, creosote timbers, logs, garbage, tires, organic wastes and personal property such as boats, trailers, vehicles on or within the crown-spread or critical root zone of any tree, shrub or other vegetation.

(d) For shoreline erosion control projects, trees and woody vegetation may be removed, necessary control techniques employed, and appropriate vegetation established to protect or stabilize the shoreline in accordance with the best available technical advice as approved by the bureau of environmental services and in accordance with applicable permit conditions or requirements.

(e) When trees, shrubs or other vegetation are removed, destroyed or damaged beyond recovery in violation of this section, the director may require that they be replaced in accordance with controlling arboricultural specifications and standards. Failure to mitigate as directed shall constitute a violation of this chapter.

(f) It shall be unlawful to fail to comply with any terms or conditions of any permit issued pursuant to this section.

(g) Nothing in this section shall be construed to exempt any person from the requirements of obtaining any additional permits as may be required by law.
(Ord. No. 41,728, § 1, 2-15-05; Ord. No. 44,580, § 1, 2-28-12)

Sec. 45-14. Maintenance permit for work on city property.

(a) The director, under special circumstances, may issue a maintenance permit which authorizes residents within a defined area to maintain the shrubs, trees and flowers on city-owned property lying between the paved portion of the street and in areas of the city where sidewalks do not exist and the distance between the paved portion of the street and the property line is larger than is normally found in other areas of the city, and in such other areas as the director shall determine that the issuance of such maintenance permit would be in the best interest of the city in carrying out the purpose and intent of the tree ordinance. The director may impose such conditions and limitations on the permits as would be consistent with the terms and conditions of this article. If residents in the area fail to carry out the maintenance program within the conditions and limitations set forth in the permit, the director of neighborhood and leisure services may revoke the same. The issuance of such permit shall not in any way condone or authorize any property owner to maintain a public nuisance on public or private property, nor does the permit exempt such property owner from the other provisions of this article.

(b) The director may issue an area-wide or city-wide permit in order to correct or eliminate problems or conditions where it is not feasible or practicable to handle in any other way. The director may implement this permit by advertising in a newspaper of general circulation in the city setting forth the problem or condition to be corrected or eliminated, the manner and materials to be used, and other conditions, as he sees fit, to protect the urban forest.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-15. Maintenance permit for work on private property.

The director may issue a maintenance permit for activity in the resource protection area or intensely developed area in the Chesapeake Bay Preservation Area Overlay District when he has determined that the applicant has presented sufficient information to ensure the objectives of the zoning ordinance and the tree ordinance will be faithfully carried out by the applicant. The director shall impose such conditions and limitations as would be consistent with the terms and conditions of the zoning ordinance. If the permittee fails to carry out the maintenance program within

the terms and conditions set forth in the approved management plan, the director shall revoke the same and take such action as is appropriate to remedy or restore the buffer area. The director shall be guided by the following performance standards designed to maintain the functional value of the buffer area and the indigenous vegetation located therein:

(1) Trees in excess of three (3) inches in diameter at breast height (four and one-half (4.5) feet above the ground) shall not be pruned or removed except as necessary to provide minimal sight lines and vistas, and provided that where removed they will be replaced with other vegetation that in the discretion of the director is equally effective in retarding runoff, preventing erosion and filtering nonpoint source pollution from runoff.

(2) Any access path in the buffer area shall be constructed and surfaced so as to effectively control erosion.

(3) A three-tier riparian vegetated buffer comprised of overstory, understory and groundcover plant materials will be established and/or maintained where practical in the discretion of the director. Disturbance to the soil environment and root systems of trees to remain shall be minimized.

(4) When permitted, alterations to the resource protection area or intensely developed area in the Chesapeake Bay Preservation Area Overlay District on city-owned property must be completed and maintained by a Virginia Nurseryman and Landscape Association (VNLA) certified horticulturist, or ISA certified arborist or ISA certified tree worker.

(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-16. Permit exemptions.

(a) Any person performing emergency utility work to restore, but not increase beyond the original capacity of underground transmission or distribution systems or utility services to existing residential, commercial or governmental facilities, and within the same trench as existing utilities, shall be exempt from obtaining a permit, provided that all applicable controlling arboricultural specifications and standards are followed and that the city forester is notified as soon as practical should excavation necessitate cutting roots in excess of three (3) inches in diameter.

(b) Any person performing emergency work to restore but not to relocate or increase the capacity of overhead transmission or distribution systems or overhead utilities services to residential, commercial, or governmental facilities and which necessitates the cutting of limbs or branches up to four (4) inches in diameter, as measured outside the branch collar, shall be exempt from obtaining a permit, provided that all applicable controlling arboricultural specifications and standards are followed and the city forester is notified as soon as practical following the completion of such work.

(c) A resident of the city shall not be required to obtain a permit for pruning sucker growth less than one inch in diameter which originates from the base of crape myrtle trees growing in that portion of the public right-of-way between the curb and sidewalk and directly adjacent to property owned or substantially controlled by said resident, or from watering without a permit any tree, plant or shrub located in the right-of-way.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-17. Review of application for permit.

(a) The director, within ten (10) working days of the receipt of an application for a permit, shall issue a permit to perform any of the specified acts for which a permit may be required pursuant to this chapter as long as the following conditions are met:

(1) When such acts would result in abatement of a public nuisance;

(2) When such acts consistent with the development and implementation of the street tree management plan or with any regulations and controlling arboricultural specifications and standards or with the purpose and expressed intent of this chapter;

(3) When an application has been signed by the applicant and submitted to the bureau of parks and forestry detailing the location, number, size and species of trees, shrubs and other vegetation would be affected by such acts, setting forth the purpose of such acts and the methods to be used along with any additional information the city forester may find reasonably necessary;

(4) When the applicant agrees to perform the work for which the permit is sought in accordance with the provisions of this article, the street tree management plan and controlling arboricultural specifications and standards; and

(5) When the applicant certifies that he has read and understands the provisions of this article, the terms and conditions of the permit, controlling arboricultural specifications and standards, city tree protection notes and details, and street tree planting and location standards, or other applicable standards which are pertinent to the work for which the permit is sought; or

(b) The director may place certain conditions, limitations or other applicable standards and guidelines in the permit which he deems to be necessary to carry out the purpose and expressed intent of this article.

(c) The director may require the applicant to post a bond or provide a letter of credit in an amount and with surety and with conditions satisfactory to him securing compliance with the conditions and limitations set forth in the permit.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-18. Appeal of denial of a permit.

Any person aggrieved by the actions or orders of the director respecting issuance of a permit shall within ten (10) days from such action or order have an appeal to the city manager or to a person designated by the city manager to hear such appeals. The decision of the city manager or his designee shall be the final administrative remedy under this article.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-19. Revocation of permit.

The director may revoke any permit issued under this chapter if the work for which a permit is issued is not completed in full compliance of stated conditions and limitations or if the work is completed in an unsafe manner, or in violation of any provision of this chapter, the Virginia State Code [Code of Virginia] and guidance promulgated thereto, an order of the board of zoning appeals, or any other applicable permit. The director may also take action as is appropriate to remedy or restore to a safe condition any tree, shrub or other vegetation for which a permit has been revoked or suspended at the applicant's expense.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-20. Safeguards during construction work.

For the purposes of safeguarding trees on city-owned property and in the resource protection area and intensely developed area in the Chesapeake Bay Preservation Overlay District in zoning ordinance) (sic) during construction, including pruning, overhead or underground utility, installations and excavations, within the critical root zone, the following conditions shall apply to all trees other than those for which a permit has been issued authorizing removal:

(1) Prior to the commencement of construction, all trees, shrubs and other vegetation on the building site or within the project area shall be inventoried by the applicant or contractor as to species, diameter at breast height (four and one-half (4.5) feet above ground) expressed in inches crown-spread expressed in feet, and location on the lot, and the inventory shall be clearly and accurately shown to scale on a map, drawing, or plat of known scale, and shall be submitted to the bureau of parks and forestry.

(2) Damage to any trees, shrubs and other vegetation during construction shall be immediately reported by the person causing the damage, or the owner, to the city forester, and the applicant shall treat the tree for damage in the manner specified by the director.

(3) Excavations within the critical root zone of any tree, except within the paved roadways and for all emergency repairs to existing underground utilities, shall be done only after consultation with the director and then only to the extent authorized in the permit and in accordance

with all controlling arboricultural specifications and standards and city tree protection notes and details.

(4) Unless otherwise allowed by the director, approved protective fencing shall be installed at the crown-spread or critical zone of all trees, shrubs and other vegetation located within the work zone prior to the commencement of any construction activity including mobilization, except for construction activities which limit disturbance to within the paved roadways (from face of curb to face of curb) and for emergency restoration of existing underground utility service, in order to prevent unnecessary damage to the trunk, crown, root system or soil environment.

(5) Whenever excavations, approved through a permit issued by the director, are made within the critical root zone of trees, shrubs and other vegetation appropriate measures as specifically described or referenced in the permit or City of Norfolk tree protection notes and details, shall be taken to protect the root system (roots and rooting environment) from any damage or loss, desiccation, and soil compaction.

(6) Except on improved paved roadways (from face of curb to face of curb), no material of any sort, including, but not limited to, soil, dirt, rock, stone, rubble, bricks, concrete, concrete rinse, mortar mix, asphalt, steel, wood, construction supplies, dredge spoil, fill material, organic wastes, herbicides, oil, gasoline, diesel fuel, chemicals, paint, paint thinners, waste water, construction effluents, or other materials detrimental to trees, shrubs and other vegetation or soil environment, shall be placed within the crown-spread or critical root zone of any tree, shrubs and other vegetation or uphill from such where said substance might reach the roots through a leaching process without a tree permit specifically approving same.

(7) Except on paved roadways and for emergency restoration of existing utility service to original capacity, and for construction projects where a permit has been issued by the director authorizing the use of equipment fundamental to the proposed construction activity within the critical root zone, no vehicles or heavy equipment shall be permitted within the critical root zone of any trees, shrubs and other vegetation.

(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-21. Stop work order.

The director may order the cessation of any work to any tree, shrub or other vegetation located on private property or public property when such work is completed in an unsafe manner which is deemed threatening to any property owned or controlled by the city, or the health, safety or welfare of the general public, or when such acts constitute a violation of this chapter. The director may further direct whatever action is reasonably necessary to protect the public safety, including, but not limited to, establishment of worker qualifications and work standards and specifications, hold harmless indemnification, and a liability insurance policy in the amount established by the director which names the city as an additional insured.

(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-22. Public nuisance.

(a) Any tree, shrub or other vegetation or a portion thereof, whether located on city-owned property or on private property, which by reason of its location or condition constitutes an imminent danger to the public health, safety or welfare of the general public shall constitute a public nuisance.

(b) Any tree, shrub or other vegetation or a portion thereof, whether located on city-owned property or on private property, which dangerously obstructs free passage of pedestrian or vehicular traffic shall constitute a public nuisance.

(c) Any tree, shrub or other vegetation or a portion thereof, whether located on city-owned property or on private property, which dangerously obstructs the view in the "visibility triangle"

as defined in the city street tree planting and location standards shall constitute a public nuisance.

(d) Any tree, shrub or other vegetation growing on private property, when infested by any insect or infected by any disease, which by reason of such infestation or infection endangers the life or growth or healthful existence of other trees, shrubs or other vegetation within the city not so infested or infected shall constitute a public nuisance.

(e) Any tree, shrub, or other vegetation growing on private or public property, which by reason of its invasive or aggressive growth habit encroaches upon or threatens any rights-of-way, park, or other city-owned property shall constitute a public nuisance.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-23. Eradication of public nuisance; public or private property.

(a) Any public nuisance as specified in this article which is located on city-owned property shall be pruned, removed, or otherwise treated by the director in whatever fashion is required to cause the abatement of the nuisance within a reasonable time after its discovery.

(b) Any public nuisance as specified in this article which is located on private property shall be pruned, removed, or otherwise treated by the property owner or his agent in whatever fashion is required to abate the nuisance.

(c) In the event that a confirmed infestation or infection, as described in section 45-22, shall occur, the director, at the convenience of the city and when authorized by the city manager, may cause such abatement measures as he shall deem appropriate to be accomplished at public expense.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-24. Notice.

In the event of a public nuisance existing on private property, the director shall cause a written notice to be personally served, posted on the property, or sent by regular mail to the person to whom was sent the tax bill for the real estate taxes for the last preceding quarter. Such notice shall describe the kind of tree, shrub or other vegetation which has been declared to be a public nuisance, its location on the property, the reason for the declaration of a nuisance and shall state the actions that the property owner may undertake to abate the nuisance and the time limit for the abatement. Failure to abate in the time specified shall constitute a violation of this chapter.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-25. Abatement by city.

If such nuisance remains on any land or premises after the expiration of the time specified in the notice given under this section, the director may cause the same to be abated or removed therefrom at the expense of such person, or of the occupant or owner of such land or premises, as the case may be. In addition, an administrative fee, as prescribed by the Code of Virginia and as approved by the city manager, shall be assessed in each case. If the land is unoccupied and the owner is not a resident of the city, notice of abatement by the city shall be given by mailing or delivering a letter to the last known address of the owner no less than five (5) days before the abatement by the city. If the abatement is done at the expense of the owner, the expense of abatement or removal and the administrative fee shall be a lien upon such land or premises and shall be reported to the city treasurer, who shall collect the same in the manner in which city taxes levied upon real estate are authorized to be collected. Such expenses shall be docketed in a book kept for that purpose in the office of the city treasurer and indexed in the name of the person owning such premises or land at the time such lien accrued.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-26. Reserved.

ARTICLE III. TREE COMMISSION

Sec. 45-27. Tree commission—Created.

Pursuant to section 141 of the City Charter, there is hereby created the "Norfolk Tree Com-

mission," which may be designated as "tree commission," and which shall act in an advisory capacity to the director.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-28. Same—Membership.

The tree commission shall be composed of nine (9) commissioners appointed by the council. The members of the commission shall serve without compensation and shall reside within the city. Of the commissioners initially appointed to the tree commission, three (3) shall serve for a term of one year, three (3) shall serve for a term of two (2) years, and three (3) shall serve for a term of three (3) years. Thereafter, each member appointed shall serve for a term of three (3) years with maximum service not to exceed four (4) consecutive full three-year terms. The council shall designate the individuals serving for the particular terms of the initial appointments and shall designate the chairman and initial chairman of the tree commission. The city forester shall serve in an ex-officio, nonvoting capacity and as a staff representative of the department of recreation, parks and open spaces.

The membership shall be selected to include persons from the business community and citizens at-large and persons having particular interests or associations with arboriculture, tree care, and/or landscape architecture.
(Ord. No. 41,728, § 1, 2-15-05; Ord. No. 44,060, § 2, 12-7-10)

Sec. 45-29. Same—Vacancy.

Within thirty (30) days following the expiration of the term of any appointed commissioner, who shall serve until his successor has been appointed and qualified, his successor shall be appointed by the council and the successor shall serve for the term of three (3) years. Should any commissioner resign or be removed from the tree commission, or a vacancy otherwise occur, a successor shall be appointed by the council to serve the unexpired term.
(Ord. No. 41,728, § 1, 2-15-05)

Sec. 45-30. Duties of tree commission.

The tree commission shall perform the following duties:

(1) Within a reasonable time after its appointment, the tree commission shall meet and adopt rules of procedure for regular and special meetings to fulfill the duties imposed upon it by this article.

(2) It shall advise the director on any matter pertaining to the tree ordinance and its enforcement.

(3) The topics upon which this advice may be given shall include, but are not limited to, any of the following:

(a) Amendments to the Norfolk Tree Ordinance, or revisions to the street tree management plan;

(b) Policies concerning selection, planting, maintenance, removal of trees and other vegetation within the city;

(c) Establishment of educational, environmental and information programs;

(d) Establishment and administration of volunteer programs; and

(e) Recommend to the council any legislation, plans, policies and programs complementary to the intent and purpose of the city's municipal tree policy;

(f) Assist with public relations and education programs to increase public understanding of urban forestry issues, including programs developed by the department of recreation, parks, open spaces;

(g) Work with interested private organizations to raise money for projects involving city-owned trees and programs developed by the department recreation, parks, open spaces;

(h) Prepare and submit an annual report to the council and make presentations on an annual basis and as requested by the council;

(i) The tree commission is responsible for implementation of the Celebrate Trees program.

(Ord. No. 41,728, § 1, 2-15-05; Ord. No. 44,060, §§ 1, 3, 12-7-10)

Sec. 45-31. Reserved.

Ch. 45.1

FAIR HOUSING*

§ 45.1-1.	Definitions.
§ 45.1-2.	Unlawful discriminatory housing practices—Unlawful practices by persons selling, leasing, etc., dwellings.
§ 45.1-3.	Same—Attempting to induce or discourage transfer of property; soliciting listing of dwellings for sale or lease.
§ 45.1-4.	Exemptions.
§ 45.1-5.	Interference with enjoyment of rights under this chapter.
§ 45.1-6.	Powers of department of city planning and codes administration; *action by private person for injunction and liquidated damages.*
§ 45.1-7.	Civil action.
§ 45.1-8.	Burden of proof and actions under this chapter.

*__Editor's note__—Ord. No. 39,590, § 8, adopted May 18, 1999, amended the Code by renumbering the provisions formerly set out as Ch. 15.1, §§ 15.1-1—15.1-8, as Ch. 45.1, §§ 45.1-1—45.1-8.

__State law references__—Virginia Fair Housing Law, Code of Virginia, § 36-86 et seq.; authority of city as to fair housing, § 36-96.

Sec. 45.1-1. Definitions.

For purposes of this chapter, unless the context clearly means otherwise:

(1) *Dwelling* means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as a residence by one or more families, any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. Nothing in this chapter shall apply to any:

a. Single-family house sold or rented by an owner; provided, that such private individual owner does not own more than three (3) such single-family houses at any one time; provided further, that in the case of the sale of any such single. family house by a private individual owner not residing in such house at the time of such sale or who was not the most recent resident of such house prior to such sale, the exemption granted shall apply only with respect to one such sale, within any twenty-four-month period; provided further, that such bona fide private individual owner does not own any interest in, nor is there owned or reserved on his behalf, under any express or voluntary agreement, title to or any right to all or a portion of the proceeds from the sale or rental of, more than three (3) such single-family houses at any one time. Provided further, that the sale or rental of any such single-family house shall be excepted from the application of this chapter only if such house is sold or rented:

1. Without the use in any manner of the sales or rental facilities or the sales or rental services of any real estate broker, agent, or salesman, or of such facilities or services of any person in the business of selling or renting dwellings, or of any employee or agent of any such broker, agent, salesman or person and

2. Without the publication, posting or mailing, after notice, of any advertisement or written notice in violation of this chapter; but nothing in this proviso shall prohibit the use of attorneys, escrow agents, abstractors, title companies and other such professional assistance as necessary to perfect or transfer the title; or

b. Rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than four (4) families living independently of each other, if the owner actually maintains and occupies one of such living quarters as his residence.

(2) *Family* includes a single individual, whether male or female.

(3) *Person* includes one or more individuals, whether male or female, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in bankruptcy, receivers or fiduciaries.

(4) *To rent* includes to lease, to sublease, to let or otherwise to grant for a consideration the right to occupy premises not owned by the occupant.

(5) *Restrictive covenants* shall mean any specification limiting the transfer, rental, or lease of any dwelling because of race, color, religion, national origin or sex.

(6) *Parenthood* refers to a natural, adoptive, or foster parent or other person who has physical or legal custody of a child or stands in loco parentis to a child.

(7) *Handicap* means any condition or characteristics that renders a person physically handicapped as defined herein.

(8) *Handicapped person* means any person with a physical condition resulting in a mobility, visual, hearing or other physical impairment but does not include any person who is an alcoholic or drug abuser whose current use of alcohol or drugs would constitute a direct threat to property or the safety of others.

(9) *Source of funds* means any source that lawfully provides funds to or on behalf of a renter or buyer of housing, including any assistance, benefit, or subsidy program, whether such program is administered by a governmental or nongovernmental entity.

(Ord. No. 33,138, § 1, 10-16-84; Ord. No. 39,590, § 8, 5-18-99; Ord. No. 48,636, § 1, 1-25-22)

State law reference—Similar provisions, Code of Virginia, § 36-87.

Sec. 45.1-2. Unlawful discriminatory housing practices—Unlawful practices by persons selling, leasing, etc., dwellings.

It shall be an unlawful discriminatory housing practice, because of race, color, religion, national origin, sex, elderliness, parenthood, handicap, or source of funds for any person having the right to sell, rent, lease, control, construct, or manage any dwelling constructed or to be constructed, or any agent or employee of such person:

(1) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable, or deny, a dwelling.

(2) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith.

(3) To make, print or publish, or cause to be made, printed, or published any notice, statement or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation or discrimination, or an intention to make any such preference, limitation or discrimination.

(4) To represent to any person, for reasons of discrimination, that any dwelling is not available for inspection, sale or rental when such dwelling is in fact so available.

(5) To deny any person access or membership or participation in any multiple listing service, real estate broker's organization or other service, organization or facility relating to the business of selling or renting dwellings, or to discriminate against him in the terms or conditions of such access, membership, or participation.

(6) To include in any transfer, sale, rental or lease of housing any restrictive covenant that discriminates; or for any person to honor or exercise, or attempt to honor or exercise any discriminatory covenant pertaining to housing.

Notwithstanding the foregoing provisions, it shall not be an unlawful discriminatory housing practice to operate an all-adult or all-elderly housing community.

(Ord. No. 33,138, § 1, 10-16-84; Ord. No. 39,590, § 8, 5-18-99; Ord. No. 48,636, § 2, 1-25-22)

State law reference—Similar provisions, Code of Virginia, § 36-88.

Sec. 45.1-3. Same—Attempting to induce or discourage transfer of property; soliciting listing of dwellings for sale or lease.

It shall further be an unlawful discriminatory housing practice:

(1) For any person, firm, corporation or association, acting for monetary gain, knowingly to induce or attempt to induce another person to transfer an interest in real property, or to discourage another person from purchasing real property, by representations regarding the existing or potential proximity of real property owned,

used, or occupied by persons of any particular race, color, religion, national origin or sex.

(2) For any person, firm, corporation or association to solicit or attempt to solicit the listing of dwellings for sale or lease, by door-to-door solicitation, in person or by telephone, or by mass distribution of circulars, for the purpose of changing the racial composition of the neighborhood.

(Ord. No. 33,138, § 1, 10-16-84; Ord. No. 39,590, § 8, 5-18-99)

State law reference—Similar provisions, Code of Virginia, § 36-89.

Sec. 45.1-4. Exemptions.

Nothing in this chapter shall prohibit a religious organization, association or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental, or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preferences to such persons, unless membership in such religion is restricted on account of race, color, national origin or sex. Nor shall anything in this chapter apply to a private membership club which is a bona fide club and which is exempt from taxation under section 501(c) of the Internal Revenue Code of 1954. Nor shall anything in this chapter be construed to prohibit any private, state-owned or state supported educational institution, hospital, nursing home, religious or correctional institution, from requiring that persons of both sexes not occupy any single-family residence, or room or unit in dwellings or other buildings or restrooms in said room or unit in dwellings or other buildings, which it owns or operates.

(Ord. No. 33,138, § 1, 10-16-84; Ord. No. 39,590, § 8, 5-18-99)

State law reference—Similar provisions, Code of Virginia, § 36-92.

Sec. 45.1-5. Interference with enjoyment of rights under this chapter.

It shall be unlawful to coerce, intimidate, threaten or interfere with any person in the exercise or enjoyment of, or on account of his or her having exercised or enjoyed, or on account of his or her having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by section 45.1-2 or section 45.1-3 of this Code. This section may be enforced by appropriate civil action.

(Ord. No. 33,138, § 1, 10-16-84; Ord. No. 39,590, § 8, 5-18-99)

State law reference—Similar provisions, Code of Virginia, § 36-93.

Sec. 45.1-6. Powers of department of city planning and codes administration; action by private person for injunction and liquidated damages.

(1) The department of city planning and codes administration shall have the power for the purposes of this chapter to receive complaints, mediate and conduct investigations of any violation of this chapter. A complaint under this subsection shall be filed with the city within one hundred eighty (180) days after the alleged discriminatory housing practice occurred. Complaints may be reasonably and fairly amended at any time.

(2) Any person adversely affected by the use of a discriminatory practice prohibited under this chapter may institute an action for injunctive relief and money damages against the person responsible for such discriminatory practices in the circuit court of the city. If the court finds that the defendant was responsible for such a practice, and that the plaintiff was adversely affected thereby, it shall enjoin the defendant from use of such practice, and in its discretion award the plaintiff actual damages with court costs and reasonable attorney's fees.

(Ord. No. 33,138, § 1, 10-16-84; Ord. No. 35,638, § 2, 7-5-89; Ord. No. 39,590, § 8, 5-18-99)

State law reference—Similar provisions, Code of Virginia, § 36-94.

Sec. 45.1-7. Civil action.

(1) If at any time after a complaint has been filed, the city attorney has reasonable

cause to believe that appropriate civil action to preserve the status quo or to prevent irreparable harm is advisable, he is hereby authorized-to file suit in the circuit court of the city for the purpose of preserving such status quo or preventing such irreparable harm.

(2) If, after investigating a complaint filed under this chapter, the city attorney has reasonable cause to believe that there has been a violation of this chapter, he is authorized to file suit in the circuit court of the city to enjoin such violation.

(Ord. No. 33,138, § 1, 10-16-84; Ord. No. 39,590, § 8, 5-18-99)

Sec. 45.1-8. Burden of proof and actions under this chapter.

In any action brought pursuant to this chapter, the burden shall be on the complainant.

(Ord. No. 33,138, § 1, 10-16-84; Ord. No. 39,590, § 8, 5-18-99)

State law reference—Similar provisions, Code of Virginia, § 36-95.1.

Chapter 45.5

URBAN ENTERPRISE ZONES*

§ 45.5-1. Purpose of chapter.
§ 45.5-2. Application of chapter; definitions.
§ 45.5-2.1. Powers and duties of the authority.
§ 45.5-3. Zone manager.
§ 45.5-4. Urban enterprise zones designated.
§ 45.5-5. Local urban enterprise incentives.

*__Editor's note—__Ord. No. 48,419, § 2, adopted June 22, 2021, amended Ch. 45.5 in its entirety to read as herein set out. Former Ch. 45.5, §§ 45.5-1—45.5-5, pertained to similar subject matter, and derived from Ord. No. 33,760, § 1, adopted Nov. 19, 1985; Ord. No. 38,119, § 1, adopted Sept. 19, 1995; Ord. No. 44,191, §§ 1—3, adopted March 29, 2011; Ord. No. 46,608, § 1, adopted Oct. 25, 2016.

__Cross references—__Building and building regulations, Ch. 11.1; streets and sidewalks, Ch. 42.

Sec. 45.5-1. Purpose of chapter.

It is the purpose of the provisions of this chapter to provide for the designation of areas of the city which qualify as urban enterprise zones; to implement local urban enterprise incentives; and to provide for an urban enterprise zone manager.
(Ord. No. 48,419, § 2, 6-22-21)

Sec. 45.5-2. Application of chapter; definitions.

The provisions of this chapter shall apply to the administration of urban enterprise zone objectives in all areas designated as urban enterprise zones in section 45.5-4, notwithstanding any other provisions of this Code which are contrary.

As used in this chapter, the word "zone" means an urban enterprise zone so designated in section 45.5-4.

As used in this chapter, the term "qualified business firm" means any business firm that has been so designated by the department of development (Economic Development) of the city pursuant to the provisions of Code of Virginia, § 59.1-543, as amended.

As used in this chapter, the term "authority" means the economic development authority so designated in section 45.5-2.1.
(Ord. No. 48,419, § 2, 6-22-21)

Sec. 45.5-2.1. Powers and duties of the authority.

The authority shall be permitted to act in an advisory capacity to the director of the department of development in connection with the establishment, implementation, and administration of an urban enterprise zone program to bring about the economic and social stabilization and rehabilitation of those areas comprising the zone and in connection therewith shall have the following powers and duties:

(1) Recommend guidelines and objectives for the administration of the zone.

(2) Identify and make recommendations on services requested by existing and prospective businesses that indicate a desire to apply for state and local incentives offered by the program where appropriate.

(3) Advise and make recommendations, whether administrative or legislative, on discretionary incentives, real estate dispositions, and other major program actions.

(4) Monitor the urban enterprise zone program and related services to determine the impact on those areas they were designed to benefit.

(5) Provide a forum for the cooperation and coordination between public agencies and the private sector to promote the operational effectiveness of the program.

(Ord. No. 48,419, § 2, 6-22-21)

Sec. 45.5-3. Zone manager.

The urban enterprise zone objectives shall be administered by the city manager or by an urban enterprise zone manager, who shall be an employee of the department of development of the city and designated as such by the city manager. The urban enterprise zone manager is hereby empowered and authorized to prescribe, adopt and enforce such rules and regulations as may be necessary to determine qualification for the reductions provided herein.
(Ord. No. 48,419, § 2, 6-22-21)

Sec. 45.5-4. Urban enterprise zones designated.

(1) *Old Dominion University section.*

Beginning at the intersection of the southern right-of-way (R/W) of 38th Street and the western line of Hampton Boulevard, said point being previously described in the New Enterprise Zone - Park Place Subsection; thence, northerly along said western line, crossing 38th Street; thence, westerly along the northern line of 38th Street to the western line of 3801 Hampton Boulevard; thence, northerly along said western line to the southern R/W of W. 39 Street; thence, westerly along said southern R/W to the western line of 3901 Hampton Boulevard extended southward; thence, northerly along said western line, cross-

ing 39th Street, to the southern R/W of W. 40th Street; thence, westerly along said southern R/W to the western line of 4009 Hampton Boulevard extended southward; thence, northerly along said western line, crossing 40th Street, to the southwest corner of 1227 W. 41st Street; thence, easterly along the southern line of 1227 and 1225 W. 41st Street to the southeast corner of 1225 W. 41st Street; thence, northerly along the eastern line of 1225 W. 41st Street to the southern R/W of 41st Street; thence, easterly along said southern R/W to the eastern R/W of Hampton Boulevard; thence, northerly along said eastern R/W to the southern R/W of 43rd Street; thence, easterly along said southern R/W to a point 25' west of the northwest corner of 1067 43rd Street; thence, southerly along a line 25' west of and parallel to the west line of 1067 43rd Street to the northern R/W of 41st Street; thence, easterly along said northern R/W to the western line of 4111 Monarch Way; thence, northerly along said western line of 4111 and 4211 Monarch Way to the southern R/W of 43rd Street; thence, easterly along the southern R/W to the western R/W of Monarch Way; thence, northerly along said R/W to the northern R/W of 45th Street; thence, westerly along said northern R/W to the western line of 1060 45th Street; thence, northerly along said western line to the southern R/W of 46th Street; thence, easterly along said southern R/W to the western R/W of Monarch Way; thence, northerly along said western R/W to the southern R/W of 47th Street; thence, westerly along said southern R/W to the eastern R/W of Hampton Boulevard; thence, northerly along said eastern R/W to the northern R/W of 50th Street (closed); thence, easterly along said northern line to the eastern line of 4900 Hampton Boulevard extended northward; thence, southerly along said eastern line to the southern R/W of 49th Street; thence, easterly along said R/W to the eastern line of 4820 Hampton Boulevard; thence, southerly along said eastern line to the southeast corner of 4820 Hampton Boulevard; thence, along the southern line of 4820 Hampton Boulevard to the northwest corner of 1070 48th Street; thence, southerly along the western line of 1070 48th Street to the southern R/W of 48th Street; thence, easterly along said southern R/W to the eastern line of 1073 48th Street; thence, southerly along said eastern line to the northern R/W of 47th Street; thence, easterly along said northern to the eastern R/W of Monarch Way extended northward; thence, southerly along said R/W to the northern R/W of 41st Street; thence, westerly along said R/W to the western R/W of Monarch Way; thence, southerly along said western R/W extended to the northern R/W of 39th Street; thence, westerly along said northern R/W to the eastern line of 1069 W. 39th Street extended; thence, southerly along said eastern line to the southern R/W of 38th Street; thence, westerly along said southern line to the point of beginning.

(2) *35th Street section.*

Beginning at the intersection of the southern right-of-way (R/W) of W. 31st Street and the eastern R/W of Colley Avenue, said point being previously described in the New Enterprise Zone - Park Place Subsection; thence, westerly, crossing Colley Avenue to the southern right-of-way (R/W) of W. 31st Street and the western R/W of Colley Avenue; thence, westerly along said southern R/W to the western line of 814 W. 31st Street extended southward; thence, northerly along said western line to the southern R/W of Lamberts Point Road; thence, easterly along said southern R/W to the western line of 805 34th Street extended southward; thence, northerly along said western line to the southern R/W of 34th Street; thence, easterly along said southern R/W to the western line of 3405 Colley Avenue extended southward; thence, northerly along said western line to the northwest corner of 3405 Colley Avenue; thence, westerly along the southern line of 805 35th Street to the southwest corner of 805 35th Street; thence, northerly along the western line of 805 35th Street to the southern R/W of 35th Street; thence, westerly along said southern R/W to the western line of 808 35th Street extended southward; thence, northerly along said western line to the northwest corner of 808 35th Street; thence, easterly along the northern line of 808 35th Street to the western line of 809 36th Street; thence, northerly along said western line to the southern R/W line of 36th Street; thence, easterly along said southern R/W to the western R/W of Colley Avenue; thence, northerly along said western R/W to the southern R/W of 38th Street; thence, westerly

along said southern R/W to the western line of 808 38th Street extended southward; thence, northerly along said western line to the northern R/W of 38th Street; thence, westerly along said northern R/W of 38th Street to the eastern R/W of Killam Avenue; thence, northerly along said eastern R/W to the northwest corner of 4004 Killam Avenue; thence, easterly along the northern line of 4004 Killam Avenue and other lots along W. 40th Street to the southwest corner of 809 W. 41st Street; thence, northerly along the western line of 809 W. 41st Street to the southern R/W of W. 41st Street; thence, easterly along said southern line to the western line of 4107 Colley Avenue extended southward; thence, northerly along said western line to the southern line of W. 42nd Street; thence, westerly to the eastern line of 812 W. 42nd Street extended southward; thence, northerly along said eastern line to the southern line of 813 43rd Street; thence, westerly along said southern line to the southwest corner of 815 43rd Street; thence, northerly along the western line of 815 43rd Street to the southern R/W of 43rd Street; thence, easterly along said southern R/W to the western line of 4301 Colley Avenue extended southward; thence, northerly along said western line to the southern line of 4311 Colley Avenue; thence, westerly along the southern lines of 4311 Colley Avenue to the eastern R/W of Killam Street; thence, northerly and northeastwardly along said eastern R/W to the southern R/W of 46th Street; thence, easterly along said southern R/W to the eastern line of 857 46th Street; thence, southerly along said eastern line of 857 46th Street to the southern line of 849 46th Street; thence, easterly along the southern line of 849 46th Street and other lots on 46th Street to the eastern line of 811 46th Street; thence, northerly along said eastern line to the northern R/W of 46th Street; thence, westerly along said northern R/W of 46th Street to the western line of 812 46th Street; thence, northerly along said western line to the northern R/W of 47th Street; thence, easterly along said northern R/W to the eastern line of 810 47th Street; thence, northerly along said eastern line, crossing 48th Street to the southern line of 4815 Colley Avenue; thence, westerly along said southern lines of lots on 49th Street to the western line of 811 49th Street; thence, northerly along said western line to the northern R/W of 49th Street; thence, easterly along said northern R/W to the western line of 4901 Colley Avenue; thence, northerly along said western line extended, crossing 50th Street, 51st Street and 52nd Street to the northern R/W of 52nd Street; thence, westerly along said R/W to the western line of 812 52nd Street; thence, northerly along said western line to the north line of 816 52nd Street; thence, westerly along said northern line extended to the western R/W of Waterview Avenue (closed); thence, northeastwardly along said western R/W and the northern R/W of 53rd Street (closed) to the western R/W of Colley Avenue; thence, southerly along said western R/W to a point opposite the northern line of 5200 Colley Avenue extended westward; thence, crossing Colley Avenue along said northern line to the northeast corner of 5200 Colley Avenue; thence, southerly along the eastern line of 5200 Colley to the southern R/W of 52nd Street; thence, easterly along said southern R/W to the eastern line of 5104 Colley Avenue; thence, southerly, easterly and southerly along said eastern line to the southern R/W of 51st Street; thence, westerly along said southern R/W to the eastern line of 5008 Colley Avenue; thence, southerly along said eastern line extended southerly to the northern R/W of 48th Street; thence, westerly along said northern R/W to the eastern R/W of Colley Avenue; thence, southerly along said eastern R/W to the northern R/W of 47th Street; thence, easterly along said northern R/W to the western shoreline of Knitting Mill Creek; thence, generally southerly, along the varying directions of the western and southern shoreline of Knitting Mill Creek to the intersection of the western R/W of Mayflower Road and the northern R/W line of W. 42nd Street; thence, southerly along said western R/W of Mayflower Road, crossing W. 42nd Street, to the southern line of W. 42nd Street; thence, westerly along said southern R/W to the eastern line of 707 W. 42nd Street; thence, southerly and westerly along the eastern and southern lines of 707 W. 42nd Street to the northeast corner of 4106 Colley Avenue; thence, southerly along the eastern line of 4106 Colley Avenue extended to the southern R/W of W. 41st Street; thence, easterly along said R/W to the western R/W of Mayflower Road; thence, southwestwardly along

said western R/W, crossing W. 40th Street to the southern R/W of Michigan Avenue; thence, easterly along the said southern R/W of Michigan Avenue to the eastern line of 737 Michigan Avenue; thence, southeastwardly and southwestwardly along the eastern and southern lines of 737 Michigan Avenue to the northeast corner of 3800 Colley Avenue; thence, southeastwardly along the eastern line of 3800 Colley Avenue to the southern R/W of 38th Street; thence, southwestwardly along said southern R/W to the eastern line of 739 38th Street; thence, southeastwardly along said eastern line and the eastern lines of 3710 and 3706 Colley to the southern R/W of 37th Street; thence, southwestwardly along said southern R/W to the eastern line of 3614 Colley Avenue; thence, southeastwardly along the eastern lines of 3614, 3612, 3608, 3604 and 3600 to the southern R/W of 36th Street; thence, westerly to the eastern line of 3518 Colley Avenue; thence, southeastwardly along the eastern lines of 3518, 3514 and 3510 Colley Avenue to the northern line of 3500 Colley Avenue; thence, northeastwardly along the northern line of 3500 Colley Avenue extended to the northeast corner of 738 35th Street; thence, southeastwardly along the eastern line of 738 35th Street to the northern R/W of 35th Street; thence, northeastwardly along said northern R/W to the eastern R/W of Gosnold Avenue; thence, northwestwardly along said eastern R/W to the northwest corner of 644 35th Street; thence, northeastwardly along the northern line of 644 35th Street and other lots on 35th Street to the eastern R/W of Newport Avenue; thence, northwestwardly along said eastern R/W to the southern R/W of 36th Street; thence, northeastwardly along said southern R/W to the north east corner of 539 36th Street; thence, southeastwardly along the eastern lines of 539 36th Street and 3508 Newport to the northern line of 534 35th Street; thence, northeastwardly along the northern line of 534 35th Street and other lots on 35th Street to the eastern R/W of Colonial Avenue; thence, northwestwardly along said eastern R/W to the southern R/W of 36th Street; thence, northeastwardly along said southern R/W to the eastern line of 435 36th Street; thence, southeastwardly along the eastern line of 435 36th Street and 436 35th Street to the southern R/W of 35th Street; thence, northeastwardly along said southern R/W to the eastern line of 425 35th Street; thence, southeastwardly along said eastern line to the southern line of 425 35th Street; thence, southwestwardly along said southern line of 425 35th Street and other lots on 35th Street to the western R/W line of Colonial Avenue; thence, northwestwardly along said western R/W to the southern R/W of 35th Street; thence, southwestwardly along said southern R/W to the eastern line of 513 35th Street; thence, southeastwardly along said eastern line to the southern line of 513 35th Street; thence, southwestwardly along the southern line of 513 35th Street and other lots on 35th Street, crossing Newport Avenue to the eastern R/W line of Gosnold Avenue; thence, northwestwardly along said eastern R/W of Gosnold Avenue to the southern R/W of 35th Street; thence, southwestwardly along said southern R/W of 35th Street to the northeastern corner of 3400 Colley Avenue; thence, southeastwardly along the eastern line of 3400 Colley Avenue extended southwardly to the southern R/W of 34th Street; thence, southwestwardly along said southern R/W to the eastern R/W of Colley Avenue; thence, southerly along said eastern R/W to the southern R/W of W. 31st Street, being the Point of beginning.

(3) *Park Place section.*

Beginning at the intersection of the northern right-of-way (R/W) of W. 23rd Street and the centerline (CL) of Llewellyn Avenue, said point being previously described in the Midtown Industrial New Enterprise Zone Subsection description; thence, northwestwardly along said northern R/W of W. 23rd Street, across DeBree Avenue, to the western R/W of Colonial Avenue; thence, southwestwardly along said western R/W of Colonial Avenue, across W. 23rd Street, to the northern R/W of W. 22nd Street; thence, northwestwardly along said northern R/W of W. 22nd Street to the western line of 2201 Colonial Avenue; thence, northeastwardly along said western line of 2201 Colonial Avenue, across W. 23rd Street, to the northern R/W of W. 23rd Street; thence, northwestwardly along said northern R/W of W. 23rd Street, across Newport Avenue and Gosnold Avenue to the CL of Colley Avenue; thence, southwardly along said CL of Colley avenue to the southern R/W of W. 22nd

Street; thence, northwestwardly along said southern R/W of W. 22nd Street to the northwest corner of 816 W. 21st Street; thence, southwestwardly along the western line of 816 W. 21st Street to the southwest corner of 816 W. 21st Street; thence, northwestwardly along the northern R/W of W. 21st Street to its intersection with the northerly prolongation of the western R/W of Core Avenue; thence, southwestwardly along said prolongation and western R/W of Core Avenue to the southeast corner of 901 W. 21st Street; thence, westwardly along the arc of a curve to the left, said arc being the southern line of 901 W. 21st Street and its westerly prolongation thereof to the southeast corner of 951 Woodrow Avenue; thence, northwardly along the eastern line of 951 Woodrow Avenue, across Woodrow Avenue, to the northern R/W of Woodrow Avenue; thence, westwardly along said northern R/W to the southwest corner of 950 Woodrow Avenue; thence, northwardly along the western line of 950 Woodrow Avenue to the northwest corner of 950 Woodrow Avenue; thence, eastwardly along said northern line of 950 Woodrow Avenue to the southwest corner of 939 W. 21st Street; thence, northwardly along the western line of 939 W. 21st Street and its northerly prolongation thereof to the northern R/W of Azalea Court; thence, southwestwardly along said northern R/W of Azalea Court to the eastern R/W of Hampton Boulevard; thence, northwestwardly along said eastern R/W of Hampton Boulevard to the southern R/W of W. 21st Street; thence, southeastwardly along said southern R/W of W. 21st Street to the northern R/W of Azalea Court; thence, northwardly, across W. 21st Street, to the southwest corner of 954 W. 21st Street; thence, northeastwardly along the western line of 954 W. 21st Street and its northeasterly prolongation thereof, across the R/W of Norfolk and Southern Railroad, to the northern R/W of W. 23rd Street; thence, northwestwardly along said northern R/W of W. 23rd Street to the eastern R/W of Hampton Boulevard; thence, northwestwardly along said eastern R/W of Hampton Boulevard and its northwesterly prolongation thereof to the northern R/W of W. 24th Street; thence, northwestwardly along said northern R/W of W. 24th Street, across Hampton Boulevard, to the western R/W of Hampton Boulevard; thence, southeastwardly along said western R/W of Hampton Boulevard to the southeast corner of 2309 Hampton Boulevard; thence, northwestwardly along the northern R/W of W. 23rd Street the western terminus of W.23rd Street; thence, southwestwardly along the western terminus of W. 23rd Street R/W to the northern R/W of Norfolk and Southern Railroad; thence, northwestwardly along said northern R/W of Norfolk and Southern Railroad to the eastern R/W of Bowdens Ferry Road; thence, northeastwardly along said eastern R/W of Bowdens Ferry Road to a point opposite the southern R/W of W. 24th Street; thence, northwestwardly, across Bowdens Ferry Road, along said southern R/W of W. 24th Street to its terminus; thence, northeastwardly along said terminus of W. 24th Street to the southeast corner of 1301 W. 25th Street; thence, northwardly along the eastern line of 1301 W. 25th Street to the northeast corner of 1301 W. 25th Street; thence, eastwardly along the southern R/W of W. 25th Street to the western R/W of Bowdens Ferry Road; thence, northeastwardly along said western R/W of Bowdens Ferry Road to the southern R/W of W. 26th Street; thence, eastwardly, across Bowdens Ferry Road, to the northeast corner of W. 26th Street and Bowdens Ferry Road; thence, southeastwardly along the northern R/W of W. 26th Street to the western line of 1204 W. 26th Street; thence, northeastwardly along said western line extended, across W. 27th Street, to the northern R/W of W. 27th Street; thence northwestwardly along said northern R/W of W. 27th Street to the southwest corner of 2701 Hampton Boulevard; thence northeastwardly along the western lines of 2701 Hampton Boulevard to the northwest corner of 2701 Hampton Boulevard; thence, northeastwardly, across 35th Street, to the northern R/W of 35th Street; thence, northwestwardly along said northern R/W of 35th Street to the eastern R/W of Bowdens Ferry Road; thence, northwestwardly along said eastern R/W of Bowdens Ferry Road to the southern R/W of 38th Street; thence, eastwardly along said southern R/W of 38th Street to the western R/W of Hampton Boulevard; thence, across Hampton Boulevard, to the northeast corner of 1041 38th Street; thence, southwardly along the eastern line of 1041 38th Street to the southwest corner of 1036

37th Street; thence, westwardly along the northern R/W of 37th Street to a point opposite the northeast corner of 1090 35th Street; thence, southwardly, across 35th Street, to the northeast corner of 1090 35th Street; thence, southwardly along said eastern line of 1090 35th Street and its southerly prolongation thereof, across 35th Street, to the northern R/W of Lamberts Point Road; thence, southeastwardly along said northern R/W of Lamberts Point Road to the southern line of 1037 35th Street; thence, eastwardly along said southern line of 1037 35th Street and its easterly prolongation thereof to the western R/W of Killam Avenue; thence, southwardly along said western R/W of Killam Avenue, across 34th Street, Lamberts Point Road, W. 31st Street, W. 27th Street and W. 26th Street, to the southern R/W of W. 26th Street; thence, southeastwardly along said southern R/W of W. 26th Street, across Killam Avenue, to the northeast corner of 915 W. 26th Street; thence, southwestwardly along the eastern line of 915 W. 26th Street and its southwesterly prolongation thereof to the northern R/W of W. 25th Street; thence, southeastwardly along said northern R/W of W. 25th Street to the western R/W of Morton Avenue; thence, northeastwardly along said western R/W of Morton Avenue to the southern R/W of W. 26th Street; thence, southeastwardly along said southern R/W of W. 26th Street, across Morton Avenue, to the northwest corner of 815 W. 26th Street; thence, northeastwardly, across W. 26th Street, to the southwest corner of 2601 Colley Avenue; thence, northeastwardly along the western line of 2601 Colley Avenue to the northwest corner of 2601 Colley Avenue; thence, northwardly, across W. 27th Street, to the southwest corner of 2713 Colley Avenue; thence, northwardly along the western lines of 2713 Colley Avenue to the northwest corner of 2713 Colley Avenue; thence, southeastwardly along the southern R/W of W. 28th Street to the intersection of the southern R/W of W. 28th Street and the western R/W of Colley Avenue; thence, northwardly along said western R/W of Colley Avenue to the southern R/W of W. 31st Street; thence, eastwardly along the southern R/W of W. 31st Street to the northwest corner of 733 W. 31st Street; thence, southwestwardly along the western line of 733 W. 31st Street to the southwest corner of 733 W. 31st Street; thence, northwestwardly along the northern line of 744 W. 28th Street to the northwest corner of 744 W. 28th Street; thence, southwestwardly along the western line of 744 W. 28th Street and its southwesterly prolongation thereof, across W. 28th Street, to the southern R/W of W. 28th Street; thence, southeastwardly along said southern R/W of W. 28th Street to the northeast corner of 2722 Colley Avenue; thence, southwestwardly along the eastern line of 2722 Colley Avenue to the northern line of 2710 Colley Avenue; thence, southeastwardly along said northern line of 2710 Colley Avenue to the northeast corner of 2710 Colley Avenue; thence, southwestwardly along the eastern line of 2710 Colley Avenue to the northern R/W of W. 27th Street; thence, southwardly, across W. 27th Street, to the northeast corner of 2618 Colley Avenue; thence, southwestwardly along the eastern lines of 2618 Colley Avenue to the southeast corner of 2618 Colley Avenue; thence, southeastwardly, across W. 26th Street, to the northeast corner of 2506 Colley Avenue; thence, southwestwardly along the eastern line of 2506 Colley Avenue to the southwest corner of 723 W. 26th Street; thence, southeastwardly along the southern line of 723 W. 26th Street and its southeasterly prolongation thereof, across Gosnold Avenue and Newport Avenue, to the southwest corner of 2511 Colonial Avenue; thence, northeastwardly along the western line of 2511 Colonial Avenue to the northwest corner of 2511 Colonial Avenue; thence, southeastwardly along the southern R/W of W. 26th Street to the western R/W of Colonial Avenue; thence, southwestwardly along said western R/W of Colonial Avenue to the southeastern corner of 2511 Colonial Avenue; thence southeastwardly, across Colonial Avenue, to the southwest corner of 2512 Colonial Avenue; thence, along the southern line of 2512 Colonial Avenue and its southeasterly prolongation thereof, across DeBree Avenue, to the CL of Llewellyn Avenue; thence, southwestwardly along said CL of Llewellyn Avenue to the point of beginning.

(4) *Midtown Industrial section.*

Beginning at the intersection of the eastern right-of-way (R/W) of Granby Street and the northern R/W of E. Virginia Beach Boulevard,

said point being previously described in the New Enterprise Zone - North Brambleton Subsection description; thence, northwardly along said eastern R/W of Granby Street, across E. 9th Street, 11th Street and E. Princess Anne Road to the southern R/W of 13th Street; thence, southeastwardly along said southern R/W of 13th Street across Monticello Avenue to the southeast corner of 13th Street and Monticello Avenue; thence, northeastwardly along said eastern R/W of Monticello Avenue, across 14th Street and 16th Street to the southeast corner of Monticello Avenue and 17th Street; thence, northwestwardly along the southern R/W of 17th Street across Monticello Avenue and Granby Street to the western R/W of Granby Street; thence, northeastwardly along said western R/W of Granby Street, across 17th, 18th, W. 19th, W. 20th, W. 21st, W. 22nd and W. 23rd Streets to the northern R/W of W. 23rd Street; thence, northwestwardly along said northern R/W of W. 23rd Street, across Omohundro Avenue to the centerline (CL) of Llewellyn Avenue; thence, northeastwardly along said CL of Llewellyn Avenue to a point opposite the northern line of 244 W. 25th Street; thence, southeastwardly along the said northern line of 244 W. 25th Street and its southeastwardly prolongation thereof, across Omohundro Avenue to the southeast corner of 109 W. 26th Street; thence, northeastwardly along the eastern line of 109 W. 26th Street to the southern R/W of W. 26th Street; thence, southeastwardly along said southern R/W of W. 26th Street to the western R/W of Granby Street; thence, northeastwardly along said western R/W of Granby Street and across W. 26th Street to the southern line of 2609 Granby Street; thence, northwestwardly along said southern line of 2609 Granby Street and its northwestwardly prolongation thereof to the southwest corner of 109 W. 27th Street; thence, northeastwardly along the western line of 109 W. 27th Street to the southern R/W of W. 27th Street; thence, southeastwardly along said southern R/W of W. 27th Street to a point opposite the southwest corner of 2707 Granby Street; thence, northeastwardly across W. 27th Street to the southwest corner of 2707 Granby Street; thence, northeastwardly along the western line of 2707 Granby Street to the southern R/W of W. 28th Street; thence, southeastwardly along said southern R/W of W. 28th Street to the western R/W of Granby Street; thence, northeastwardly along said western R/W of Granby Street across W. 28th Street to the northern R/W of W. 29th Street extended westward; thence, southeastwardly along said northern R/W of W. 29th Street across Granby Street to the southwestern corner of 2907 Monticello Avenue; thence, northeastwardly along the western line of 2907 Monticello Avenue to the northwestern corner of 2907 Monticello Avenue; thence, southeastwardly along the northern line of 2907 Monticello Avenue to the southwestern corner of 117 E. 30th Street; thence, northeastwardly along the western line of 117 E. 30th Street to the southern R/W of E. 30th Street; thence, southeastwardly along said southern R/W of E. 30th Street to the western R/W of Monticello Avenue; thence southeastwardly, across Church Street, to the northwest corner of 2920 Church Street; thence, northeastwardly along the northern line of 2920 Church Street to the northeastern corner of 2920 Church Street; thence, southeastwardly along the eastern line of 2920 and its southeasterly prolongation thereof, across E. 29th Street, E. 28th Street and E. 27th Street to the northeast corner of 2610 Church Street; thence, northeastwardly along the southern R/W of E. 27th Street to the northeast corner of 717 E. 27th Street; thence, southeastwardly along the eastern line of 717 E. 27th Street to the southeastern corner of 717 E. 27th Street; thence, southwestwardly along the southern line of 717 E. 27th Street and its southwesterly prolongation thereof to the eastern line of 2610 Church Street; thence, southeastwardly along said eastern line of 2610 Church Street across E. 26th Street to the southern R/W of E. 26th Street; thence, northeastwardly along said southern R/W of E. 26th Street, across Fawn Street and Gazel Street to the western R/W of Leo Street; thence, southeastwardly along said western R/W of Leo Street across E. 25th Street to the southeast corner of 819 E. 23rd Street; thence, southwardly across Rugby Street and along the eastern line of 731 Rugby Street to the southern R/W of Pollard Street; thence, southeastwardly along said southern R/W of Pollard Street to the northwest corner of 825 Pollard Street; thence, southwestwardly along the western line of 825 Pollard Street to the

southwest corner of 825 Pollard Street; thence, southeastwardly along the southern line of 825 Pollard Street and its southeasterly prolongation thereof to the western R/W of Middle Avenue; thence, southwestwardly along said western R/W of Middle Avenue to the northern R/W of Norfolk and Southern Railroad; thence, northwestwardly along said northern R/W of Norfolk and Southern Railroad to the centerline (CL) of Church Street; thence, southeastwardly along said CL of Church Street to the southern R/W of Norfolk and Southern Railroad; thence, southeastwardly along said southern R/W of Norfolk and Southern Railroad to the eastern corner of 2000 Church Street; thence, southwestwardly along the southern line of 2000 Church Street to the western R/W of O'Keefe Street; thence, southeastwardly, southwestwardly and northwestwardly along the eastern, southern and western lines of 1835 O'Keefe Street to the northern R/W of Chase Street; thence, southwestwardly along the northern terminus of Chase Street to the western R/W of Chase Street; thence, southeastwardly along the western R/W of Chase Street to the southeast corner of 1830 Church Street; thence, southwestwardly along the southern line of 1830 Church Street to the eastern R/W of Strickler Street; thence, northwestwardly along said eastern R/W of Strickler Street to the northern terminus of Strickler Street; thence, southwestwardly along the said northern terminus to the western R/W of Strickler Street; thence southeastwardly along said R/W to the southern line of 1809 Strickler Street; thence southwestwardly along said southern line to the southwest corner of 1809 Strickler Street; thence southeastwardly along the eastern line of 1806 Church Street and its southeasterly prolongation thereof, across C Avenue and B Avenue to the northern R/W of A Avenue; thence, southwestwardly along said northern R/W of A Avenue to the eastern R/W of Church Street; thence, southeastwardly along the eastern R/W of Church Street to the southern R/W of Washington Avenue; thence, eastwardly to the eastern line of 709 Washington Avenue; thence, southeastwardly, southwestwardly and southeastwardly along the eastern and southern line of 709 Washington Street to the southwest corner of 708 Johnson Avenue on the northern R/W; thence, southwestwardly along the said northern R/W of Johnson Avenue, across Church Street to the western R/W of Church Street; thence, northwestwardly along the said western R/W of Church Street the southeast corner of 1631 Church Street; thence, southwestwardly along the southern line of 1631 Church Street to the southwest corner of 1631 Church Street; thence, northeasterly along the southwestern line of 1631 Church Street to the intersection with the western line of 1701 Church Street; thence, northwestwardly along said western line of 1701 Church Street to the southern R/W of E. 18th Street; thence, southwestwardly along said southern R/W of E. 18th Street to the eastern R/W of Armistead Avenue; thence, southwestwardly along said eastern R/W of Armistead Avenue to the northern R/W of E. 17th Street; thence, southeastwardly along said northern R/W of E. 17th Street to the eastern terminus of E. 17th Street; thence southwardly along said eastern terminus of E. 17th Street to the northern line of 1630 Armistead Avenue; thence, eastwardly along said northern line of 1630 Armistead Avenue to its intersection with the northern line of Elmwood Cemetery at 238 E. Princess Anne Road; thence, southwestwardly, southwestwardly and northwestwardly along the southern lines of 1630 Armistead Avenue to the eastern R/W of Armistead Avenue; thence, northwestwardly across Armistead Avenue to the western R/W of Armistead Avenue; thence, southwestwardly along the said western R/W of Armistead Avenue across 14th and 13th Streets to the northern R/W of E. Princess Anne Road; thence, northwestwardly along said northern R/W of E. Princess Anne Road across Monticello Avenue to the western R/W of Monticello Avenue; thence, southwardly along the said western R/W of Monticello Avenue, across 11th Street and E. 9th Street to the northern R/W of E. Virginia Beach Boulevard; thence, westwardly along said northern R/W of E. Virginia Beach Boulevard to the point of beginning.

(5) *North Brambleton section.*

Beginning at the intersection of the eastern right-of-way (R/W) of Granby Street and the northern R/W of E. Virginia Beach Boulevard, said point being previously described in the New Enterprise Zone - North Brambleton Subsection

description; thence, northwardly along said eastern R/W of Granby Street, across E. 9th Street, 11th Street and E. Princess Anne Road to the southern R/W of 13th Street; thence, southeastwardly along said southern R/W of 13th Street across Monticello Avenue to the southeast corner of 13th Street and Monticello Avenue; thence, northeastwardly along said eastern R/W of Monticello Avenue, across 14th Street and 16th Street to the southeast corner of Monticello Avenue and 17th Street; thence, northwestwardly along the southern R/W of 17th Street across Monticello Avenue and Granby Street to the western R/W of Granby Street; thence, northeastwardly along said western R/W of Granby Street, across 17th, 18th, W. 19th, W. 20th, W. 21st, W. 22nd and W. 23rd Streets to the northern R/W of W. 23rd Street; thence, northwestwardly along said northern R/W of W. 23rd Street, across Omohundro Avenue to the centerline (CL) of Llewellyn Avenue; thence, northeastwardly along said CL of Llewellyn Avenue to a point opposite the northern line of 244 W. 25th Street; thence, southeastwardly along the said northern line of 244 W. 25th Street and its southeastwardly prolongation thereof, across Omohundro Avenue to the southeast corner of 109 W. 26th Street; thence, northeastwardly along the eastern line of 109 W. 26th Street to the southern R/W of W. 26th Street; thence, southeastwardly along said southern R/W of W. 26th Street to the western R/W of Granby Street; thence, northeastwardly along said western R/W of Granby Street and across W. 26th Street to the southern line of 2609 Granby Street; thence, northwestwardly along said southern line of 2609 Granby Street and its northwestwardly prolongation thereof to the southwest corner of 109 W. 27th Street; thence, northeastwardly along the western line of 109 W. 27th Street to the southern R/W of W. 27th Street; thence, southeastwardly along said southern R/W of W. 27th Street to a point opposite the southwest corner of 2707 Granby Street; thence, northeastwardly across W. 27th Street to the southwest corner of 2707 Granby Street; thence, northeastwardly along the western line of 2707 Granby Street to the southern R/W of W. 28th Street; thence, southeastwardly along said southern R/W of W. 28th Street to the western R/W of Granby Street; thence, northeastwardly along said western R/W of Granby Street across W. 28th Street to the northern R/W of W. 29th Street extended westward; thence, southeastwardly along said northern R/W of W. 29th Street across Granby Street to the southwestern corner of 2907 Monticello Avenue; thence, northeastwardly along the western line of 2907 Monticello Avenue to the northwestern corner of 2907 Monticello Avenue; thence, southeastwardly along the northern line of 2907 Monticello Avenue to the southwestern corner of 117 E. 30th Street; thence, northeastwardly along the western line of 117 E. 30th Street to the southern R/W of E. 30th Street; thence, southeastwardly along said southern R/W of E. 30th Street to the western R/W of Monticello Avenue; thence southeastwardly, across Church Street, to the northwest corner of 2920 Church Street; thence, northeastwardly along the northern line of 2920 Church Street to the northeastern corner of 2920 Church Street; thence, southeastwardly along the eastern line of 2920 and its southeasterly prolongation thereof, across E. 29th Street, E. 28th Street and E. 27th Street to the northeast corner of 2610 Church Street; thence, northeastwardly along the southern R/W of E. 27th Street to the northeast corner of 717 E. 27th Street; thence, southeastwardly along the eastern line of 717 E. 27th Street to the southeastern corner of 717 E. 27th Street; thence, southwestwardly along the southern line of 717 E. 27th Street and its southwesterly prolongation thereof to the eastern line of 2610 Church Street; thence, southeastwardly along said eastern line of 2610 Church Street across E. 26th Street to the southern R/W of E. 26th Street; thence, northeastwardly along said southern R/W of E. 26th Street, across Fawn Street and Gazel Street to the western R/W of Leo Street; thence, southeastwardly along said western R/W of Leo Street across E. 25th Street to the southeast corner of 819 E. 23rd Street; thence, southwardly across Rugby Street and along the eastern line of 731 Rugby Street to the southern R/W of Pollard Street; thence, southeastwardly along said southern R/W of Pollard Street to the northwest corner of 825 Pollard Street; thence, southwestwardly along the western line of 825 Pollard Street to the southwest corner of 825 Pollard Street; thence, southeastwardly along the southern line of 825

Pollard Street and its southeasterly prolongation thereof to the western R/W of Middle Avenue; thence, southwestwardly along said western R/W of Middle Avenue to the northern R/W of Norfolk and Southern Railroad; thence, northwestwardly along said northern R/W of Norfolk and Southern Railroad to the centerline (CL) of Church Street; thence, southeastwardly along said CL of Church Street to the southern R/W of Norfolk and Southern Railroad; thence, southeastwardly along said southern R/W of Norfolk and Southern Railroad to the eastern corner of 2000 Church Street; thence, southwestwardly along the southern line of 2000 Church Street to the western R/W of O'Keefe Street; thence, southeastwardly, southwestwardly and northwestwardly along the eastern, southern and western lines of 1835 O'Keefe Street to the northern R/W of Chase Street; thence, southwestwardly along the northern terminus of Chase Street to the western R/W of Chase Street; thence, southeastwardly along the western R/W of Chase Street to the southeast corner of 1830 Church Street; thence, southwestwardly along the southern line of 1830 Church Street to the eastern R/W of Strickler Street; thence, northwestwardly along said eastern R/W of Strickler Street to the northern terminus of Strickler Street; thence, southwestwardly along the said northern terminus to the western R/W of Strickler Street; thence southeastwardly along said R/W to the southern line of 1809 Strickler Street; thence southwestwardly along said southern line to the southwest corner of 1809 Strickler Street; thence southeastwardly along the eastern line of 1806 Church Street and its southeasterly prolongation thereof, across C Avenue and B Avenue to the northern R/W of A Avenue; thence, southwestwardly along said northern R/W of A Avenue to the eastern R/W of Church Street; thence, southeastwardly along the eastern R/W of Church Street to the southern R/W of Washington Avenue; thence, eastwardly to the eastern line of 709 Washington Avenue; thence, southeastwardly, southwestwardly and southeastwardly along the eastern and southern line of 709 Washington Street to the southwest corner of 708 Johnson Avenue on the northern R/W; thence, southwestwardly along the said northern R/W of Johnson Avenue, across Church Street to the western R/W of Church Street; thence, northwestwardly along the said western R/W of Church Street the southeast corner of 1631 Church Street; thence, southwestwardly along the southern line of 1631 Church Street to the southwest corner of 1631 Church Street; thence, northeasterly along the southwestern line of 1631 Church Street to the intersection with the western line of 1701 Church Street; thence, northwestwardly along said western line of 1701 Church Street to the southern R/W of E. 18th Street; thence, southwestwardly along said southern R/W of E. 18th Street to the eastern R/W of Armistead Avenue; thence, southwestwardly along said eastern R/W of Armistead Avenue to the northern R/W of E. 17th Street; thence, southeastwardly along said northern R/W of E. 17th Street to the eastern terminus of E. 17th Street; thence southwardly along said eastern terminus of E. 17th Street to the northern line of 1630 Armistead Avenue; thence, eastwardly along said northern line of 1630 Armistead Avenue to its intersection with the northern line of Elmwood Cemetery at 238 E. Princess Anne Road; thence, southwestwardly, southwestwardly and northwestwardly along the southern lines of 1630 Armistead Avenue to the eastern R/W of Armistead Avenue; thence, northwestwardly across Armistead Avenue to the western R/W of Armistead Avenue; thence, southwestwardly along the said western R/W of Armistead Avenue across 14th and 13th Streets to the northern R/W of E. Princess Anne Road; thence, northwestwardly along said northern R/W of E. Princess Anne Road across Monticello Avenue to the western R/W of Monticello Avenue; thence, southwardly along the said western R/W of Monticello Avenue, across 11th Street and E. 9th Street to the northern R/W of E. Virginia Beach Boulevard; thence, westwardly along said northern R/W of E. Virginia Beach Boulevard to the point of beginning.

(6) *Fort Norfolk section.*

Beginning at the intersection of the northern right-of-way (R/W) of W. Brambleton Avenue and the western R/W of Duke Street, said point being previously described in the New Enterprise Zone—North Brambleton Subsection description; thence, southwardly across W. Brambleton Avenue to the intersection of the southern R/W of W.

Brambleton Avenue and the western R/W of Duke Street; thence, generally westerly along the southern R/W of W. Brambleton Avenue across the waters of Smith Creek to the northeast corner of lands of the United States of America on the western shoreline of Smith Creek; thence, generally southwestwardly, along the varying directions of the western shoreline of Smith Creek to the northern shoreline of the Elizabeth River; thence, generally northwestwardly, along the varying directions of the northern shoreline of the Elizabeth River to the southern line of 139 Riverview Avenue, less and except the condo development site at 40 Rader Street and the lands of the United States of America at Fort Norfolk at 803 Front Street; thence, westerly and northwestwardly along said southern lines of 139 and 151 Riverview Avenue, and 902 Southampton Avenue to the western corner of 902 Southampton Avenue; thence, northeastwardly along the western lines of 902 Southampton Avenue and 151 Riverview Avenue to the northwest corner of 151 Riverview Avenue; thence, northeastwardly along the northern line of 151 Riverview Avenue to the western line of the Elizabeth River Trail; thence, northwestwardly and westwardly along said western and southern line of the Elizabeth River Trail to the eastern line of the Midtown Tunnel (Elisabeth River Tunnel Commission); thence, northeastwardly along said eastern line to the northwest corner of property of Norfolk Redevelopment and Housing (GPIN: 1428404723); thence, southeastwardly along the northern line of said Norfolk Redevelopment and Housing to the western R/W of Hampton Boulevard; thence, southeastwardly, across Hampton Boulevard to the northwest corner of 400 Gresham Drive on the eastern R/W of Hampton Boulevard; thence, northeastwardly along the northern line of 400 Gresham Drive to the northern R/W line of Gresham Drive; thence, northeastwardly along the said northern R/W to the northern R/W of Fairfax Avenue; thence, generally in a southeastern direction, northeastwardly, easterly and southeastwardly along said R/W to a point opposite the northeast corner of 400 Gresham Drive; thence, southwestwardly, across Fairfax Avenue to the northeast corner of 400 Gresham Drive; thence, southwestwardly, southeastwardly and southwestwardly along the eastern line of 400 Gresham Drive to the northern R/W of Brambleton Avenue; thence, generally southeastwardly along said northern R/W, southeastwardly, easterly and northeastwardly, across Colley Avenue and the waters of Smith Creek to the intersection of said northern (R/W) and the western R/W of Duke Street, the point of beginning.

(7) *St. Pauls section.*

Beginning at the intersection of the northern right-of-way (R/W) of E. Princess Anne Road and the western R/W of Courtney Avenue, said point being previously described in the New Enterprise Zone—St. Julian Subsection; thence, northwestwardly along said northern R/W of E. Princess Anne Road to the northeasterly prolongation of the western R/W of May Avenue; thence, southwestwardly along said western R/W of May Avenue to the southern R/W of E. Virginia Beach Boulevard; thence, southeastwardly along said southern R/W of E. Virginia Beach Boulevard to the western R/W of Cecelia Street; thence, southwestwardly along said western R/W of Cecelia Street to the northern R/W of Corprew Avenue; thence, southwardly to the northwestern corner of 1234 E. Olney Road; thence, southeastwardly along the northern line of 1234 E. Olney Road to the northeastern corner of 1234 E. Olney Road; thence, southwestwardly, along the eastern line of 1234 E. Olney Road to the northeast corner of 1232 E. Olney Road; thence, southwestwardly along the eastern line of 1232 E. Olney Road to the southern R/W of E. Olney Road; thence, northwestwardly along the said southern R/W of E. Olney Road to the northeast corner of 736 Cecilia Street; thence, southwardly along the eastern line of 736 Cecelia Street to the southeast corner of 736 Cecelia Street; thence, southwestwardly along the eastern line of an alley to the southwestern corner of 1250 E. Brambleton Avenue, being the northeastern R/W of E. Brambleton Avenue; thence, southeastwardly along the northeastern R/W of E. Brambleton Avenue to the eastern R/W of Marshall Avenue; thence, southwestwardly across E. Brambleton Avenue to the intersection of the eastern R/W of Marshall Avenue and the northwestern corner of 555 Park Avenue, being the southeastern R/W of E. Brambleton Avenue; thence, southeastwardly

along said southeastern R/W of E. Brambleton Avenue to the southeastern R/W of Park Avenue; thence, northeastwardly along said southeastern R/W of Park Avenue to the southeastern R/W of E. Brambleton Avenue; thence, southeastwardly along said southeastern R/W of E. Brambleton Avenue to the eastern corner of 1625 E. Brambleton Avenue; thence, westerly along the southern line of 1625 E. Brambleton Avenue to the southeastern R/W of Park Avenue; thence, southwestwardly along said southeastern R/W of Park Avenue to the northeastern R/W of Claiborne Avenue; thence, southeastwardly along said northeastern R/W of Claiborne Avenue to the northwestern corner of 1900 Claiborne Avenue; thence, meandering southeastwardly, eastwardly and northeastwardly along the northern line of 1900 Claiborne Avenue to the southeastern R/W of an exit ramp for Interstate Highway 264; thence, eastwardly across E. Brambleton Avenue to the western corner of 2100 Kimball Terrace; thence, meandering eastwardly along the southern R/W of I-264 to the northern corner of 2230 Kimball Terrace; thence, southeastwardly and southwardly along the northeastern and eastern lines of 2230 Kimball Terrace to the northern R/W of Kimball Terrace; thence, eastwardly along said northern R/W of Kimball Terrace to the eastern line of 2312 Kimball Terrace; thence, northwardly along said eastern line to the northern line of 2312 Kimball Terrace; thence, eastwardly along said northern line of 2312 Kimball Terrace and along the northern line of 707 Thayor Street to the western R/W of Thayor Street; thence, southwardly along said western R/W of Thayor Street to a point opposite the northern line of 2400 Kimball Terrace; thence, eastwardly across Thayor Street and along said northern line of 2400 Thayor Street to the northeast corner of 2408 Kimball Terrace; thence, southwardly along the eastern line of 2408 Kimball Terrace to the northern R/W of Kimball Terrace; thence, eastwardly along said northern R/W of Kimball Terrace to the eastern line of 2604 Kimball Terrace; thence, southwardly across Kimball Terrace to the northeast corner of 2614 Marlboro Avenue; thence, southwardly to the mean low water line of an inlet of the Eastern Branch of the Elizabeth River; thence, meandering generally in a westwardly direction, along the varying directions of the mean low water (shoreline),to the eastern R/W line of the Berkley Bridge (Interstate 264), less and except Harbor Park baseball stadium, a City of Norfolk parcel (GPIN: 1437339770), and a Dominion Virginia Power parcel (GPIN: 1437434643); thence, northerly along said R/W of the Berkley Bridge (Interstate 264) to the southern R/W of Water Street; thence, westerly along said R/W of Water Street to the eastern line of 1101 Water Street; thence, northeastwardly along the northerly prolongation of the eastern line of 1101 Water Street to the northern R/W of Water Street; thence, southeastwardly along said northern R/W of Water Street to the western R/W of Park Avenue; thence, northeastwardly along the western and northern R/W lines of Park Avenue to the western R/W of Norfolk and Southern Railroad; thence, northwardly along said western R/W of Norfolk and Southern Railroad to the southern line of 1213 E. Brambleton Avenue; thence, northwestwardly along said southern line of 1213 E. Brambleton Avenue and its northwesterly prolongation thereof to the western R/W of May Avenue; thence, southwestwardly along said western R/W of May Avenue to the southeast corner of 630 Tidewater Drive; thence, westerly along the southern line of 630 Tidewater Drive to the southwest corner of 630 Tidewater Drive; thence, northwardly along the eastern R/W of Tidewater Drive to the southern R/W of E. Brambleton Avenue; thence, northwestwardly along said southern R/W of E. Brambleton Avenue to the western R/W of Church Street; thence, southwestwardly along the western R/W of Church Street across E. Bute Street to the intersection of the southern R/W of E. Bute Street and the western R/W of Fenchurch Street; thence, southwestwardly along said western R/W of Fenchurch Street across Wood Street and E. Charlotte Street to the northern R/W of Interstate Highway 264; thence, northwestwardly along said northern R/W of I-264 to the western R/W of St. Paul's Boulevard; thence, northwardly along said western R/W of St. Paul's Boulevard to the westerly prolongation of the southern line of 501 Wood Street; thence, northeasterly, southeasterly, northeasterly, and northerly to the southern R/W of Wood Street; thence, in a westerly direction along the southern R/W of Wood Street to the

eastern R/W of St. Paul's Boulevard; thence, southeasterly along the eastern R/W of St. Paul's Boulevard to the northwest corner of 300 St. Paul's Boulevard; thence, westerly across St. Paul's Boulevard to its western R/W; thence, northwesterly along said western R/W to the southern R/W of E. Brambleton Avenue; thence, easterly across St. Paul's Boulevard to its eastern R/W; thence, northerly along said R/W to the northern line of E. Brambleton Avenue; thence, eastwardly along said northern R/W of E. Brambleton Avenue to the northeast corner of E. Brambleton Avenue and Lincoln Street; thence, northwardly along the eastern R/W of Lincoln Street to the southern R/W of E. Virginia Beach Boulevard; thence, southeastwardly along said southern R/W of E. Virginia Beach Boulevard across Church Street to the western R/W of Wide Street; thence, southwestwardly along said western R/W of Wide Street and its southerly prolongation thereof to the southern R/W of E. Olney Road; thence, southeastwardly along said southern R/W of E. Olney Road to the western R/W of Chapel Street; thence, southwestwardly along said western R/W of Chapel Street to a point opposite the intersection of the eastern R/W of Chapel Street and the northern line of 720 Chapel Street; thence, southeastwardly, northeastwardly, southeastwardly, southwestwardly and northwestwardly around the perimeter of said 720 Chapel Street to the northeast corner of 710 Chapel Street; thence, southwestwardly along the eastern line of 710 Chapel Street to the northeast corner of 900 E. Brambleton Avenue; thence, southwestwardly and southeastwardly along the eastern and northern lines of 900 E. Brambleton Avenue to the northwest corner of 914 E. Brambleton Avenue; thence, southeastwardly along the northern line of 914 E. Brambleton Avenue to the northeast corner of 1000 E. Brambleton Avenue; thence, northeastwardly to the northwest corner of 711 Roswell Avenue; thence, along the northern line of 711 Roswell Avenue to the western R/W of Roswell Avenue; thence, southwestwardly along said western R/W of Roswell Avenue to a point opposite the northern corner of 1016 E. Brambleton Avenue; thence, southeastwardly across Roswell Avenue to the said northern corner of 1016 E. Brambleton Avenue; thence, southeastwardly to the northwest corner of 1028 E. Brambleton Avenue; thence, northeastwardly to the northern corner of 1030 E. Brambleton Avenue; thence, southeastwardly to the southwest corner of 1023 Tunstall Avenue; thence, northeastwardly to the northwest corner of 1023 Tunstall Avenue; thence, southeastwardly to the intersection of the southern R/W of Tunstall Avenue and the western R/W of Tidewater Drive; thence, northeastwardly along said western R/W of Tidewater Drive to the northern R/W of E. Virginia Beach Boulevard; thence, northwestwardly along said northern R/W of E. Virginia Beach Boulevard to the eastern R/W of Chapel Street; thence, northeastwardly along said eastern R/W of chapel Street to the southern line of 1110 Chapel Street; thence, southeastwardly and northeastwardly along the southern and eastern lines of 1110 Chapel Street to the northeast corner of 1110 Chapel Street; thence, southeastwardly along the northern line of 930 E. Virginia Beach Boulevard and its southeasterly prolongation thereof to a point on the eastern R/W of Tidewater Drive; thence, northeastwardly along said eastern R/W of Tidewater Drive across E. Princess Anne Road to the northeast corner of Tidewater Drive and E. Princess Anne Road; thence, southeastwardly along said northern R/W of E. Princess Anne Road across Bolton Street and across the R/W of Norfolk and Southern Railroad to the northwest corner of E. Princess Anne Road and Courtney Avenue, the point of beginning.

(8) *Berkley section.*

Beginning at the intersection of the southern right-of-way (R/W) of Water Street and the eastern R/W of the Berkley Bridge (Interstate 264), said point being previously described in the New Enterprise Zone - St. Pauls Subsection; thence southwestwardly along said eastern R/W, across the Eastern Branch of the Elizabeth River to the intersection of the said eastern R/W of the Berkley Bridge (Interstate 264) and the southern shoreline of the Eastern Branch of the Elizabeth River; thence generally eastwardly and southwardly, along the varying directions of the said shoreline to the western shoreline of Spotico Creek; thence generally southwardly, eastwardly and northwardly, along the varying directions of the western, southern and eastern shorelines of

Spotico Creek to the southern shoreline of the Eastern Branch of the Elizabeth River; thence generally eastwardly, along the varying directions of the said shoreline to the western shoreline of Prescara Creek; thence generally southwardly, eastwardly and northwardly, along the varying directions of the western, southern and eastern shorelines of Prescara Creek to the southern shoreline of the Eastern Branch of the Elizabeth River; thence generally eastwardly, along the varying directions of the said southern shoreline to the eastern line of 508 E. Indian River Road; thence southwardly and southwestwardly along said eastern line to the northern R/W of E. Indian River Road; thence southeasterly along said R/W line to the southeast corner of 600 E. Indian River Road; thence crossing E. Indian River Road southwardly to the intersection of the southern R/W of E. Indian River Road and the western R/W of Marsh Street; thence southwestwardly along said western R/W to the southern R/W of Joyce Street; thence southeastwardly along said southern R/W to the western R/W of Oakfield Street; thence southwestwardly along said western R/W to the northern R/W of Wayman Street; thence northwestwardly along said northern R/W to the western R/W of Todd Street; thence southwestwardly along said western R/W to the northern R/W of Berkley Avenue Extended; thence northwestwardly along said northern R/W to the western line of 1050 Berkley Avenue Extended; thence northwestwardly along said western line to its intersection with the eastern R/W of Hibie Street; thence southwestwardly along said eastern R/W to the eastern R/W of Marsh Street; thence northwestwardly along said eastern R/W to a point opposite the intersection of the western R/W of Marsh Street and the eastern R/W of the Norfolk and Western Railway; thence westerly across Marsh Street to said intersection; thence northwestwardly along the eastern R/W of the Norfolk and Western Railway to a point opposite the eastern terminus of the southern R/W of Craig Street; thence westerly crossing the Norfolk and Western Railway and the Norfolk and Portsmouth Beltline Railroad rights-of-way to said eastern terminus of the southern R/W of Craig Street being on the southern line of 435 E. Indian River Road; thence westerly and northwestwardly along the southern and western lines of 435 E. Indian River Road across E. Berkley Avenue to the northern R/W of E. Berkley Avenue; thence westerly and northwestwardly along said R/W to the southeast corner of 399 E. Indian River Road; thence southwestwardly along the southern line of 399 E. Indian River Road to the southwest corner of 399 E. Indian River Road; thence northerly along the western line of 399 E. Indian River Road, crossing E. Indian River Road, to the northern R/W of E. Indian River Road; thence northwestwardly along said northern R/W to the eastern R/W of Fauquier Street; thence northeastwardly along said R/W to the northern terminus of the eastern R/W of Fauquier Street and the southern line of 180 South Main Street; thence northwestwardly along said southern line to the southeast corner of 200 South Main Street; thence northeastwardly and northwestwardly along the eastern and northern lines of 200 South Main Street, crossing South Main Street, to the western R/W of South Main Street; thence southwestwardly along said R/W to the northeast corner of 325 South Main Street; thence northwestwardly along the northern line of 325 South Main Street to the northwest corner of 325 South Main Street; thence southwestwardly along the western lines of 325, 327 and 329 South Main Street to the northeast corner of 198 W. Indian River Road; thence northwestwardly along the northern lines of 198 and 200 W. Indian River Road to the northwest corner of 200 W. Indian River Road; thence southwestwardly along the western line of 200 W. Indian River Road to the northern R/W of W. Indian River Road; thence northwestwardly along said northern R/W to the southwest corner of 214 W. Indian River Road; thence southwestwardly across W. Indian River Road at right angles to the northern R/W of W. Indian River Road to the southern R/W of W. Indian River Road; thence southeastwardly along said southern R/W to the northeast corner of 313 W. Indian River Road; thence southwestwardly along the eastern line of 313 W. Indian River Road extended to the northern line of 411 Clifton Street; thence northwestwardly along said northern line to the northwest corner of 411 Clifton Street; thence southeastwardly along the western line of 411 Clifton Street and the eastern line of 325 Sawyer

Street to the southwest corner of 429 Clifton Street; thence southeastwardly along the southern line of 429 Clifton Street, crossing Clifton Street, to the eastern R/W line of Clifton Street; thence southerly and southwestwardly along the eastern R/W of Clifton Street to the northern R/W of Patrick Street; thence southerly, crossing Patrick Street, to the southern R/W of Patrick Street at its intersection with the eastern R/W of State Street; thence southeastwardly along the southern R/W of Patrick Street to the western R/W of South Main Street; thence southwestwardly along said R/W to the southern R/W line of E. Berkley Avenue; thence southeastwardly along said southern R/W to the western R/W of Fauquier Street; thence southwestwardly along said western R/W to the northern R/W of E. Liberty Street; thence northwestwardly along said northern R/W to a point opposite the eastern corner of 109 E. Liberty Street; thence southwestwardly crossing E. Liberty Street and along the southeastern line of 109 E. Liberty Street to the southern corner of 109 E. Liberty Street, being the eastern corner of 824 South Main Street; thence northwestwardly along the northern line of 824 South Main Street to the eastern R/W of South Main Street; thence northeastwardly along said eastern R/W to the southern R/W of W. Liberty Street; thence northwestwardly along said southern R/W to its intersection with the eastern R/W of State Street extended; thence northeastwardly along the eastern R/W of State Street to the northern R/W of W. Berkley Avenue; thence northwestwardly along said northern R/W to the eastern R/W of Walnut Street; thence northerly along said eastern R/W to the southern line of 501 State Street; thence westerly and northwestwardly along the southern and western lines of 501 State Street to the northwest corner of 501 State Street; thence northeastwardly along the northern line of 501 State Street to the eastern R/W of Walnut Street; thence northwestwardly along said R/W to the northern R/W of W. Indian River Road; thence northeastwardly to the intersection of the northern R/W of Emmett Place and the eastern R/ W of State Street; thence northwestwardly and northerly along said eastern R/W to its intersection with the eastern R/W of Berkley Bridge (Interstate 264); thence northerly along said eastern R/W to its intersection with the southern shoreline of the Eastern Branch of the Elizabeth River; thence northwestwardly along said shoreline to the western R/W line of the Berkley Bridge (Interstate 264); thence northeastwardly along said R/W across the Eastern Branch of the Elizabeth River to a point opposite the intersection of the southern R/W of Water Street and the eastern R/W of the Berkley Bridge (Interstate 264); thence southeastwardly across the Berkley Bridge (Interstate 214) to the point of beginning.

(9) *Gosport section.*

Beginning at the intersection of the western right-of-way (R/W) of the Berkley Bridge (Interstate 264) and the southern shoreline of the Eastern Branch of the Elizabeth River, said point being previously described in the New Enterprise Zone - Berkley Subsection; thence generally southwestwardly along said shoreline to the eastern line of 101 Ligon Street; thence generally in a southerly direction along said eastern line, crossing Relocated Ligon Street to the western R/W of Relocated Ligon Street; thence southerly along said western R/W to northern R/W of the Norfolk and Southern Railroad; thence easterly and southerly along the northern and eastern R/W lines of the Norfolk and Southern Railroad to the western R/W line of South Main Street; thence southerly along said R/W to its intersection with the southern line of 1405 South Main Street as it intersects said R/W; thence westerly, southerly, westerly and southeastwardly along the lines of 1405 South Main Street to the southeast corner of 1405 South Main Street; thence southwestwardly along the southern line of 1405 South Main to the southwest corner of 1405 South Main Street; thence northwestwardly along the western line of 1405 South Main Street to the northeast corner of 1499 South Main Street; thence westerly along the northern line of 1499 South Main Street to the eastern shoreline of the Southern Branch of the Elizabeth River; thence generally in a northerly direction, along the varying directions of the eastern shoreline of the Southern Branch of the Elizabeth River to its intersection with the southern shoreline of the Eastern Branch of the Elizabeth River; thence generally in a northeastwardly direction, along

the varying directions of the southern shoreline of the Eastern Branch of the Elizabeth River to the point of beginning.

(10) *Virginia Renaissance Center section.*

Beginning at the intersection of the eastern line of 600 E. Indian River Road, being the southeast corner of 600 E. Indian River Road, and the northern right-of-way (R/W) of E. Indian River Road, said point being previously described in the New Enterprise Zone - Berkley Subsection; thence generally eastwardly along said R/W in an eastwardly, northeastwardly and southeastwardly along the northern R/W of E. Indian River Road to its intersection with the eastern shoreline of Steamboat Creek; thence generally northeastwardly, along the varying directions of the eastern shoreline of Steamboat Creek to its intersection with the southern shoreline of Eastern Branch of the Elizabeth River; thence generally eastwardly, along the varying directions of the southern shoreline of Eastern Branch of the Elizabeth River to the City of Norfolk Corporate Boundary; thence southwestwardly along the City of Norfolk Corporate Boundary to the southern R/W of E. Indian River Road; thence generally westerly along said R/W in an northwestwardly, southwestwardly and westerly direction to the intersection of the southern R/W of E. Indian River road with the western R/W of Marsh Street; thence northeastwardly, crossing E. Indian River Road, to the point of beginning.

(11) *Norfolk Industrial Park section.*

Beginning at the intersection of the southern right-of-way (R/W) of Nottaway Street and the northwestern R/W of Chesapeake Boulevard, said point being previously described in the Tidewater Drive Enterprise Zone Subsection description; thence, southeastwardly across Chesapeake Boulevard to the intersection of the southern R/W of Nottaway Street and the southeastern R/W of Chesapeake Boulevard; thence, southwestwardly along the said southeastern R/W of Chesapeake Boulevard to the southern R/W of Robin Hood Road; thence, southeastwardly along said southern R/W of Robin Hood Road to the western R/W of Kansas Avenue; thence, southeastwardly along said western R/W of Kansas Avenue to the southern line of 3325 Kansas Avenue; thence, southwestwardly along said southern line to the southwest corner of 3325 Kansas Avenue; thence, southeastwardly to the northeast corner of 3322 Illinois Avenue; thence, southwestwardly along the northern line of 3322 Illinois Avenue and its southwestern prolongation thereof to the western R/W of Illinois Avenue; thence, southeastwardly along said western R/W of Illinois Avenue to the southwest intersection of Illinois Avenue and Upshur Street; thence, southwestwardly along the southern R/W of Upshur Street to the northeast corner of 3138 Arizona Avenue; thence, southeastwardly along the eastern line of 3138 Arizona Avenue and its southeastwardly prolongation thereof across Lafayette Boulevard and Hanbury Street to the midpoint of the southern R/W of Hanbury Street between Arizona Avenue and Illinois Avenue; thence, northeastwardly along the said southern R/W of Hanbury Street to the southwest corner of Hanbury Street and Illinois Avenue; thence, southeastwardly along the western R/W of Illinois Avenue to the northern line of 3600 Peterson Street; thence, northeastwardly along said northern line of 3600 Peterson Street to the eastern R/W of Kansas Avenue; thence, northwestwardly along said eastern R/W of Kansas Avenue to the southern R/W of Hanbury Street; thence, northeastwardly along said southern R/W of Hanbury Street to the northern line of 3600 Peterson Street; thence, northeastwardly along said northern line of 3600 Hanbury Street to the western R/W of Oklahoma Avenue; thence, southeastwardly along said western R/W of Oklahoma Avenue to the southern R/W of Peterson Street; thence, southwestwardly along said southern R/W of Peterson Street to the eastern line of 3623 Peterson Street; thence, southeastwardly, southwestwardly and southeastwardly and southwestwardly along said eastern and southern lines of 3623 Peterson Street to the northern corner of 2700 Nevada Avenue; thence, southeastwardly along said eastern line of 2700 Nevada Avenue to the western R/W of Minnesota Avenue; thence, southeastwardly along said western R/W of Minnesota Avenue to the southern line of 2603 Minnesota Avenue; thence, southwestwardly along said southern line of 2603 Minnesota Avenue and its southwesterly prolongation thereof, across Nevada Avenue, Wyoming

Avenue and Arkansas Avenue to the northern corner of 3334 Tait Terrace; thence, southeastwardly along the eastern line of 3334 Tait Terrace to the northern R/W of Tait Terrace; thence, southwestwardly along said northern R/W of Tait Terrace to the eastern R/W of Florida Avenue; thence, southeastwardly across Tait Terrace to the intersection of the eastern R/W of Florida Avenue and the northern line of 2530 Florida Avenue; thence, northeastwardly along said northern line to the northern corner of 2530 Florida Avenue; thence, southeastwardly along the eastern line of 2530 Florida Avenue and its southeasterly prolongation thereof, across Santos Street and Denver Avenue to a point on the northern R/W of Cape Henry Avenue; thence, northeastwardly along said northern R/W of Cape Henry Avenue to the western R/W of Wyoming Avenue; thence, southeastwardly along said western R/W of Wyoming Avenue, across a R/W of Norfolk & Southern Railroad to the southern line of 1541 Wyoming Avenue; thence, southwestwardly along said southern line and the southwesterly prolongation thereof to the eastern R/W of Florida Avenue; thence, southeastwardly along said eastern R/W of Florida Avenue to the northern line of 3378 E. Princess Anne Road; thence, northeastwardly along said northern line of 3378 E. Princess Anne Road and its northeasterly prolongation thereof to the western R/W of Arkansas Avenue; thence northeastwardly across Arkansas Avenue and Wyoming Avenue to the northern corner of 3514 E. Princess Anne Road; thence, southeastwardly along the eastern R/W of Nevada Avenue, across E. Princess Anne Road to a point on the southern R/W of E. Princess Anne Road; thence, northeastwardly along said southern R/W of E. Princess Anne Road, across Azalea Garden Road and Sewells Point Road to the northern corner of 1400 Sewells Point Road; thence, southeastwardly along the eastern line of 1400 Sewells Point Road and its southeasterly prolongation thereof to the mean low water line of Broad Creek; thence, southwestwardly along said mean low water line of Broad Creek to the western line of 4845 Brookside Court; thence, northwestwardly along the western line of 4845 Brookside Court to the southeastern corner of 1194 Pineridge Road; thence, southwestwardly along the southern line of 1194 Pineridge Road and its southwesterly prolongation thereof to a point on the western R/W of Pineridge Road; thence, southwardly along said western R/W of Pineridge Road to the northern line of 1147 Pineridge Road; thence, westwardly, southwardly and eastwardly along the northern, western and southern lines of said 1147 Pineridge Road to the southeastern corner of 1140 Azalea Garden Road; thence, southeastwardly to the mean low water of Broad Creek; thence, southwardly along the mean low water of Broad Creek to the northern R/W of E. Virginia Beach Boulevard; thence, southwestwardly along said northern R/W of E. Virginia Beach Boulevard to the western line of 4530 E. Virginia Beach Boulevard; thence, northwestwardly, northeastwardly and northwestwardly along the western, northern and western lines of 4530 E. Virginia beach Boulevard to the southern R/W of Patent Road; thence, westwardly along said southern R/W of Patent Road to the eastern line of 1118 Azalea Garden Road; thence, southeastwardly and southwestwardly along the eastern and southern lines of 1118 Azalea Garden Road to the eastern R/W of Azalea Garden Road; thence, southeastwardly along said eastern R/W of Azalea Garden Road to the northern R/W of E. Virginia Beach Boulevard; thence, southwestwardly along the said northern R/W of E. Virginia Beach Boulevard, across Kingwood Avenue and Ingleside Road to the eastern R/W of Ballentine Boulevard; thence, northwestwardly along the eastern R/W of Ballentine Boulevard to the northwestern corner of 1268 Ballentine Boulevard; thence, eastwardly along said northern line to the northeastern corner of 1268 Ballentine Boulevard; thence, southeasterly along the eastern line of 1268 Ballentine Boulevard and its southeasterly prolongation to the southwestern corner of 1316 Ballentine Boulevard; thence, northeasterly along the southern line of 1316 Ballentine Boulevard to the southeastern corner; thence, northwesterly along the eastern line of 1316 Ballentine Boulevard to the southeastern corner of 1324 Ballentine Boulevard; thence, southwesterly along the southern line of 1324 Ballentine Boulevard to the eastern R/W of Ballentine Boulevard; thence, northwesterly along the eastern R/W of Ballentine Boulevard to the southern R/W of E. Princess Anne Road; thence

southwestwardly along the southeastern R/W of E. Princess Anne Road to a point at the intersection with the southern extension of the western line of Keller Avenue; thence northwestwardly across E. Princess Anne Road to the southern corner of 2100 Keller Avenue; thence, northwestwardly along the southern and western lines of 2100 Keller Avenue to the northwestern corner of 2100 Keller Avenue; thence, northeastwardly along the northern line of 2100 Keller Avenue and its northeasterly prolongation thereof to the western R/W of Vincent Avenue; thence, northwestwardly along said western R/W of Vincent Avenue to the southern line of 2126 Vincent Avenue and its westerly prolongation; thence, northeastwardly and northwestwardly along the southern and eastern lines of 2126 Vincent Avenue to the northwest corner of 2121 Ballentine Boulevard; thence, northeastwardly along the northern line of 2121 Ballentine Boulevard and the northeasterly prolongation thereof to the eastern R/W of Ballentine Boulevard; thence, northwestwardly along said eastern R/W of Ballentine Boulevard to the northern line of 2118 Ballentine Boulevard; thence northeastwardly along the northern line of 2118 Ballentine Boulevard and its northeasterly prolongation thereof to the eastern R/W of Grandy Avenue; thence, northwestwardly along said eastern R/W of Grandy Avenue to the southern R/W of South Cape Henry Avenue; thence, northeastwardly along said southern R/W of South Cape Henry Avenue to the eastern R/W of Cromwell Road; thence, northwestwardly along said eastern R/W of Cromwell Road to the southern line of 2708 Cromwell Road; thence, northeastwardly along the northern line of 2708 Cromwell Road to the western R/W of Norfolk and Southern Railroad; thence, northwestwardly along said western R/W of Norfolk and Southern Railroad to a point opposite the northwest corner of 2715 Arkansas Avenue; thence, northeastwardly across said R/W of Norfolk and Southern Railroad to the northwest corner of 2715 Arkansas Avenue; thence, northeastwardly along the northern line of 2715 Arkansas Avenue and its northeasterly prolongation thereof to the eastern line of 3331 Peterson Street; thence, northwestwardly along said eastern line of 3331 Peterson Street and its northerly prolongation thereof to the northern R/W of Peterson Street; thence, southwestwardly along said northern R/W of Peterson Street, across the R/W of Norfolk and Southern Railroad and along the northern R/W of Peterson Street to the eastern R/W of Cromwell Road; thence, northwestwardly along said eastern R/W of Cromwell Road to the southern R/W of Lafayette Boulevard; thence, northwestwardly along said southern R/W of Lafayette Boulevard to the western R/W of Grandy Avenue; thence, southeastwardly along said western R/W of Grandy Avenue to the northern line of 3037 Grandy Avenue; thence, southwestwardly along said northern line of 3037 Grandy Avenue to the eastern line of 3036 Ballentine Boulevard; thence, southeastwardly along said eastern line of 3036 Ballentine Boulevard to the southern line of 3036 Ballentine Boulevard; thence, southwestwardly along said southern line of 3036 Ballentine Boulevard and across Ballentine Boulevard to the western R/W of Ballentine Boulevard; thence, southeastwardly along said western R/W of Ballentine Boulevard to the southern line of 3017 Ballentine Boulevard; thence, southwestwardly and northwestwardly along the southern and western lines of 3017 Ballentine Boulevard to the northwest corner of 3017 Ballentine Boulevard; thence, southwestwardly along the northern line of 3016 Vincent avenue to the eastern R/W of Vincent Avenue; thence, northwestwardly along said eastern R/W of Vincent Avenue to the southeastern R/W of Chesapeake Boulevard; thence, northeastwardly along said southeastern R/W of Chesapeake Boulevard to the western R/W of Cromwell Road; thence, northwardly across Chesapeake Boulevard along the northerly prolongation of the said western R/W of Cromwell Road to the northwestern R/W of Chesapeake Boulevard; thence, northeastwardly along said northwestern R/W of Chesapeake Boulevard to the point of beginning.

(12) *St. Julian section.*

Beginning at the intersection of the eastern right-of-way (R/W) of Vincent Avenue and the southern line of 2126 Vincent Avenue, said point being previously described in the New Enterprise Zone—Norfolk Industrial Park Subsection description; thence, northwestwardly along said eastern R/W of Vincent Avenue to the intersection of the

eastern R/W of Vincent Avenue and the northern R/W of Cape Henry Avenue; thence, southwestwardly along the said northern R/W of Cape Henry Avenue to the western R/W of McKann Avenue; thence, southwestwardly along the northern R/W of Cape Henry Avenue to the southwestern corner of 2205 McKann Avenue; thence, southerly to the southeastern corner of 2839 Dana Street; thence, northwestwardly along the southern line of 2839 Dana Street to the eastern line of Calvary Cemetery; thence, southwestwardly along said eastern line of Calvary Cemetery to the northern R/W of St. Julian Avenue; thence, meandering westwardly along said northern R/W of St. Julian Avenue to the western R/W of Barraud Avenue; thence, northeastwardly along said western R/W of Barraud Avenue to the northeastern corner of 2239 Barraud Avenue; thence, westwardly along the northern line of 2239 Barraud Avenue to the northeastern R/W of Norfolk and Southern Railroad; thence, northwestwardly along said R/W of Norfolk and Southern Railroad to the western R/W of Tidewater Drive; thence, northeastwardly along said western R/W of Tidewater Drive to the southern R/W of Rugby Street; thence, northwestwardly along said southern R/W of Rugby Street to the northwest corner of 2327 Tidewater Drive; thence, southwestwardly along the western line of 2327 Tidewater Drive and its southwestwardly prolongation thereof to the southern line of 2306 Ruffin Street; thence, northwestwardly along said southern line of 2306 Ruffin Street to the eastern R/W of Ruffin Street; thence, southwestwardly along said eastern R/W of Ruffin Street to the northeastern R/W of Norfolk and Southern Railroad; thence, southeastwardly along said northeastern R/W of Norfolk and Southern Railroad to the to the western R/W of Tidewater Drive; thence, southwestwardly along said western R/W of Tidewater Drive to the southwestern R/W of Norfolk and Southern Railroad; thence, southeastwardly and southwardly along said southwestern and western R/W lines of Norfolk and Southern Railroad to the northern R/W of Goff Street; thence, westwardly along said northern R/W of Goff Street to the eastern R/W of Tidewater Drive; thence, southwardly along said eastern R/W of Tidewater Drive to the northern line of the Hebrew Cemetery at 1200 Tidewater Drive; thence, southeastwardly and southwestwardly around the perimeter of the said cemetery to the northwest corner of Bolton Street and E. Princess Anne Road; thence, southeastwardly along the northern R/W of E. Princess Anne Road to the western R/W of Courtney Avenue; thence, northeastwardly along said western R/W of Courtney Avenue to the northern R/W of Goff Street; thence, southeastwardly along said northern R/W of Goff Street to the western R/W of Hanson Avenue; thence, northeastwardly along the said western R/W of Hanson Avenue to the northern R/W of Cary Avenue; thence, southeastwardly along the said northern R/W of Cary Avenue to the western R/W of Marshall Avenue; thence, northeastwardly along said western R/W of Marshall Avenue to the northern terminus of Marshall Avenue; thence, eastwardly along said terminus of Marshall Avenue and its easterly prolongation thereof to the eastern line of 1525 St. Julian Avenue; thence, eastwardly along the southern lines of 1525 St. Julian Avenue to the southwestern corner of 1445 Roberts Road; thence, northeastwardly along the western line of 1445 Roberts Road to the southwestern corner of 1447 Roberts Road also being the property now or formerly Norfolk Southern Railroad Company; thence, along the southern line of said property line to the western R/W of Roberts Road; thence, eastwardly, across Roberts Road, along the said southern line of property now or formerly Pennsylvania Railroad Company to the western R/W of Vincent Avenue; thence, southwardly along said western R/W of Vincent Avenue to a point opposite the southern line of 2126 Vincent Avenue; thence, eastwardly and across Vincent Avenue to the point of beginning.

(13) *Five Points section.*

Beginning at the intersection of the southern right-of-way (R/W) of Nottaway Street and the northwestern R/W of Chesapeake Boulevard, said point being previously described in the New Enterprise Zone - Tidewater Drive Subsection description; thence, northeastwardly along the said northwestern R/W of Chesapeake Boulevard to the northern R/W of Norview Avenue; thence, westwardly along said northern R/W of Norview Avenue to the western line of 1126 Norview

Avenue; thence, northwardly along said western line of 1126 Norview Avenue and its northerly prolongation to a point on the northern R/W of Bland Street; thence, westwardly along the said northern R/W of Bland Street to the southern prolongation of the western line of 1125 Hugo Street; thence, northwardly along said western line of 1125 Hugo Street to the northern R/W of Hugo Street; thence, eastwardly along said northern R/W of Hugo Street to the western line of 1140 Hugo Street; thence, northwardly along said western line to the northwest corner of 1140 Hugo Street; thence, westwardly, northwardly and westwardly along the rear lines of 1136 Hugo Street to a point on the eastern line of 1129 Green Street; thence, northwardly along said eastern line of 1129 Green Street to the northern R/W of Green Street; thence, westwardly along said northern R/W of Green Street to the western line of 1118 Green Street; thence, northwardly and eastwardly along the western and northern lines of 1118 Green Street to the southwest corner of 6221 Sewells Point Road; thence, northwardly along the western line of 6221 Sewells Point Road to the northwest corner of 6221 Sewells Point Road; thence, eastwardly along said northern line of 6221 Sewells Point Road to the western R/W of Sewells Point Road; thence, northwardly along said western R/W of Sewells Point Road to the southern line of 6257 Sewells Point Road; thence, westwardly along said southern line to the western line of 6257 Sewells Point Road; thence, northwardly along said western line to the southern line of 6263 Sewells Point Road; thence, westwardly along said southern line to the western corner of 6263 Sewells Point Road; thence, northeastwardly along the northern and western lines of 6263 and 6267 Sewells Point Road to the western R/W of Sewells Point Road; thence northwestwardly along said western R/W of Sewells Point Road to a point opposite the northern line of 6324 Sewells Point Road; thence, northeastwardly across Sewells Point Road to the intersection of the northern line of 6324 Sewells Point Road and the eastern R/W of Sewells Point Road; thence, northeastwardly and southeastwardly along the northern line and the eastern line of 6324 Sewells Point Road to the northwest corner of 6331 Chesapeake Boulevard; thence, northeastwardly along the northern line of 6331 Chesapeake Boulevard to the western R/W of Chesapeake Boulevard; thence, southeastwardly along said western R/W of Chesapeake Boulevard to a point opposite the northern line of 6144 Chesapeake Boulevard; thence, eastwardly across Chesapeake Boulevard to the intersection of the northern line of 6144 Chesapeake Boulevard and the eastern R/W of Chesapeake Boulevard; thence, eastwardly, southeastwardly and southwestwardly along the northern, eastern and southern lines of 6144 Chesapeake Boulevard to the northeast corner of 6138 Chesapeake Boulevard; thence, southwardly along the eastern lines of 6138 and 6130 Chesapeake Boulevard and the southerly prolongation thereof to the southern R/W of Norview Avenue; thence, northeastwardly along said southern R/W of Norview Avenue to the intersection with the southern R/W of an access ramp to Interstate Highway 64; thence, southeastwardly along said R/W of the Interstate 64 access ramp to its intersection with the northern line of the Norview Canal; thence, southwestwardly along said northern line of the Norview Canal to the western R/W of Dey Street; thence, southeastwardly along said western R/W of Dey Street to the northern line of 3669 Dey Street; thence, southwestwardly along said northern line to the western line of 3669 Dey Street; thence, southeastwardly along said western line of 3669 Dey Street and the southeastwardly prolongation thereof to the northern R/W of Hampshire Avenue; thence, southwestwardly along said northern R/W of Hampshire Avenue and across Sewells Point Road to the intersection of the said northern R/W of Hampshire Avenue and the western line of 3649 Sewells Point Road; thence, northwestwardly along said western line of 3649 Sewells Point Road and the northwesterly prolongation thereof to the northwest corner of 3671 Sewells Point Road; thence, southwestwardly, northwestwardly, southwestwardly and northwestwardly along the western and southern lines of 3675 Sewells Point Road to the southern R/W of Chesapeake Boulevard; thence, southwestwardly along said southern R/W of Chesapeake Boulevard to the eastern line of 5822 Chesapeake Boulevard; thence southeastwardly along said eastern line to the southern corner of 5830 Chesapeake Boulevard; thence, southwestwardly

and southeastwardly along the southern and eastern lines of 5822 Chesapeake Boulevard to the northern corner of 4582 Hampshire Avenue; thence, southwestwardly along the northwestern line of 4582 Hampshire Avenue and its southwesterly prolongation thereof to the northeastern R/W of Lenoir Circle; thence, southwestwardly across Lenoir Circle to the intersection of the southeastern line of 5750 Chesapeake Boulevard and the southwestern R/W of Lenoir Circle; thence, southwestwardly along said southeastern line and northwestwardly along the southwestern line of 5750 Chesapeake Boulevard to the southeastern R/W of Chesapeake Boulevard; thence, southwestwardly along said southeastern R/W of Chesapeake Boulevard to the southern R/W of Nottaway Street; thence, northwestwardly across Chesapeake Boulevard to the point of beginning.

(14) *Tidewater Drive section.*

Beginning at the intersection of the western right-of-way (R/W) line of Interstate Highway 64 and the centerline (CL) of Thole Street, said point being described in the New Enterprise Zone—Wards Corner Subsection; thence, southwardly to the western R/W of Tidewater Drive Service Road; thence southwardly along said western R/W of Tidewater Drive Service Road to the dividing line between 6945 and 6955 Tidewater Drive; thence, along the northeastwardly prolongation of the said dividing line between 6945 and 6955 Tidewater Drive across Tidewater Drive to a point on the eastern R/W of Interstate Highway 64; thence, northeastwardly along said R/W of Interstate Highway 64 to the eastern line of 818 Widgeon Road; thence, southeastwardly and eastwardly along said eastern line of 818 Widgeon Road to the western line of 830 Widgeon Road; thence, southeastwardly along said western line of 830 Widgeon Road to the northern R/W of Widgeon Road; thence, southwestwardly along said northern R/W of Widgeon Road to a point on the eastern R/W of Tidewater Drive; thence, westerly across Tidewater Drive to the southeast corner of 6945 Tidewater Drive; thence southwestwardly along said western R/W of Tidewater Drive to its intersection with the eastern R/W line of Norfolk & Southern Railroad; thence, southeastwardly along said eastern R/W of Norfolk & Southern Railroad to the southern R/W of Philpotts Road; thence, northeastwardly along said southern R/W line of Philpotts Road to the eastern line of 835 Philpotts Road; thence, southwardly, along said eastern line of 835 Philpotts Road to the southern-most point of 835 Philpotts Road on the eastern line of 840 Norview Avenue; thence, southeastwardly along said eastern line of 840 Norview Avenue to the northeast corner of 850 Norview Avenue; thence, meandering southwardly along the eastern line of 850 Norview Avenue to the northern R/W of Norview Avenue; thence, northwestwardly along said northern R/W line of Norview Avenue to the eastern R/W of Norfolk & Southern Railroad; thence, southeastwardly along said eastern R/W of Norfolk & Southern Railroad to the northwest corner of 3587 Argonne Avenue; thence, continuing along said eastern R/W to the northwest corner 3307 Chesapeake Boulevard; thence, westerly across the said Norfolk & Southern Railroad R/W on the prolongation of the northern line of 3307 Chesapeake Boulevard; thence, northwestwardly along said western R/W of Norfolk & Southern Railroad across Norview Avenue to the southern-most corner of 6300 Tidewater Drive; thence, northeastwardly across the R/W of Norfolk & Southern Railroad to the southern R/W of Philpotts Road; thence, southwestwardly across the R/W of Norfolk & Southern Railroad to the intersection of the western R/W of Tidewater Drive and the northern R/W of Muskogee Avenue; thence, northwestwardly along said northern R/W of Muskogee Avenue to the western line of 6401 Tidewater Drive; thence, northeastwardly along said western line of 6401 Tidewater Drive and the western line of 6431 Tidewater Drive to the western line of 6435 Tidewater Drive; said western line being the eastern line of a branch of the Lafayette River; thence, meandering northwardly along the said eastern line of a branch of the Lafayette River to a point on the western R/W of Norfolk & Southern Railroad; thence, northwestwardly along said western R/W of Norfolk & Southern Railroad to the CL of Thole Street; thence, southeastwardly along said CL of Thole Street to the point of beginning.

(15) *Central Business Park section.*

Beginning at the intersection of the western right-of-way (R/W) line of Tidewater Drive and the dividing line between 6945 and 6955 Tidewater Drive, said point being described in the New Enterprise Zone—Tidewater Drive Subsection; thence, northwardly along said western R/W of Tidewater Drive to the northern R/W of Gladstone Road; thence, northwestwardly along said northern R/W of Gladstone Road to the western line of 644 Gladstone Road; thence, northeastwardly along said western line of 644 Gladstone Road to the southern line of 7431 Tidewater Drive; thence, northwestwardly along said southern line of 7431 Tidewater Drive to the western line of said 7431 Tidewater Drive; thence, northeastwardly along said western line of 7431 Tidewater Drive and its northeasterly prolongation to the northern R/W of Biltmore Road; thence, northwestwardly along said northern R/W of Biltmore Road to the southern-most corner of 7446 Wellington Road; thence, northeastwardly along the southern line of said 7446 Wellington Road to the western line of 7445 Tidewater Drive, said western line being the centerline (CL) of the 7400 block of Tidewater Drive and Wellington Road; thence, northeastwardly along said CL of said 7400 block of Tidewater Drive and Wellington Road to the southeast corner of 7486 Wellington Road; thence, northwestwardly along the southern line of 7486 Wellington Road to the eastern R/W of Wellington Road; thence, northeastwardly along said eastern R/W of Wellington Road to the northern R/W of Stanley Street; thence, southeastwardly along said northern R/W of Stanley Street across Tidewater Drive to the intersection of the eastern R/W of Tidewater Drive and the northern R/W of Central Business Park Drive; thence, meandering eastwardly along said northern R/W of Central Business Park Drive to the northern line of 7460 Central Business Park Drive; thence, eastwardly along said northern line of 7460 Central Business Park Drive to the eastern line of said 7460 Central Business Park Drive; thence, southeastwardly along said eastern line of 7460 Central Business Park Drive and its southeastward prolongation to the southwest corner of 7419 Sewells Point Road; thence, northeastwardly along the southern line of said 7419 Sewells Point Road to the western R/W of Sewells Point Road; thence, southeastwardly along said western R/W of Sewells Point Road, across Denison Avenue to the southern line of 985 Denison Avenue; thence, southwestwardly along the following three southern lines: 985 Denison Avenue, 965 Denison Avenue and 935 Denison Avenue to the eastern line of 925 Denison Avenue; thence, westwardly along the southern line of 925 Denison Avenue to the western line of 925 Denison Avenue; thence, northwestwardly and northeastwardly along the western and northern lines of 910 Denison Avenue to the northern-most corner of said 910 Denison Avenue; thence, northwestwardly along the western line of 7421 Central Business Park Drive and the northwestern prolongation of said western line to a point on the western R/W of Asbury Avenue; thence northwestwardly along said western R/W of Asbury Avenue to the southern line of the present 900 Asbury Drive; thence, southwestwardly along said southern line of 900 Asbury Drive to a point on said southern line at its intersection with the southerly extension of the eastern line of 7671 Central Business Park Drive; thence, northwestwardly along said southern line at its intersection with the southerly extension of the eastern line of 7671 Central Business Park Drive and the eastern line of 7671 Central Business Park Drive to the southern R/W of Central Business Park Drive; thence, meandering northwestwardly, southeasterly and northwestwardly along said southern R/W of Central Business Park Drive to the eastern line of 722 Miller Street; thence, southwestwardly along said eastern line of 722 Miller Street to the northern R/W of Miller Street; thence, northwestwardly along said northern R/W of Miller Street to a point opposite the western line of 719 Miller Street; thence, southwestwardly across Miller Street to the intersection of the southern R/W of Miller Street and the western line of 719 Miller Street; thence, southwestwardly along said western line of 719 Miller Street to the southwest corner of said 719 Miller Street; thence, southeastwardly along the southern line of said 719 Miller Street to the western line of 720 Guy Avenue; thence, southwestwardly along said western line of 720 Guy Street and its southwestern prolongation to the

southern R/W of Guy Street; thence, northwestwardly along said southern R/W of Guy Street to the eastern line of 7456 Tidewater Drive; thence, southwestwardly along said eastern line of 7456 Tidewater Drive to the southeast corner of 7450 Tidewater Drive; thence, southeastwardly along the northern line of 7442 Tidewater Drive to the northeast corner of said 7442 Tidewater Drive; thence, southwestwardly along the eastern line of said 7442 Tidewater Drive to the southeast corner of 7442 Tidewater Drive; thence, northwestwardly along the southern line of 7442 Tidewater Drive to the eastern line of 7434 Tidewater Drive; thence, southwestwardly along said eastern line of 7434 Tidewater Drive to the northern line of 7428 Tidewater Drive; thence, southeastwardly along said northern line of 7428 Tidewater Drive to the northeast corner of 7428 Tidewater Drive; thence, southwestwardly along the eastern line of 7428 Tidewater Drive to the northern R/W of Easy Street; thence, northwestwardly along said northern R/W of Easy Street to a point opposite the eastern line of 703 Easy Street; thence, southwestwardly across Easy Street to the intersection of the southern line of Easy Street and the eastern line of 703 Easy Street; thence, southwestwardly along the said eastern line of 703 Easy Street to the southeast corner of 703 Easy Street; thence northwestwardly along the southern lines of 703 Easy Street and 7424 Tidewater Drive to the eastern R/W of Tidewater Drive; thence, southwardly along said eastern R/W of Tidewater Drive to a point opposite the intersection of the western R/W of Tidewater Drive and the dividing line between 6945 and 6955 Tidewater Drive; thence, westwardly and across Tidewater Drive to the point of beginning.

(16) *Wards Corner section.*

Beginning at the intersection of the southern right-of-way (R/W) of W. Little Creek Road and the southern prolongation across W. Little Creek Road of the eastern R/W of Lankford Avenue; thence, northwardly along said eastern R/W of Lankford Avenue and its prolongation northwardly to the southern R/W of Norfolk & Southern Railroad; thence, southeastwardly along said railroad R/W to the eastern R/W of Granby Street; thence, northwardly along said eastern R/W of Granby Street to the southern R/W of E. Admiral Taussig Boulevard; thence, southeastwardly along said southern R/W of E. Admiral Taussig Boulevard to the southern R/W of E. Little Creek Road; thence, northeastwardly along said R/W of Little Creek Road to the western R/W of Interstate Highway 64; thence, southeastwardly along said western R/W of Interstate Highway 64 to the CL of Thole Street; thence westwardly along said CL of Thole Street to the eastern R/W of the Norfolk & Southern Railroad; thence, northwestwardly along said eastern railroad R/W to the southern R/W of E. Little Creek Road; thence, southwestwardly along said southern R/W of E. Little Creek Road to the western R/W of said Norfolk & Southern Railroad; thence, southeastwardly along said railroad R/W to the dividing line between 7550 and 7552 Yorktown Drive; thence, southwestwardly along said dividing line to the eastern R/W of said Yorktown Drive; thence, northwestwardly along said eastern R/W of Yorktown Drive to the southern R/W of E. Little Creek Road; thence, southwestwardly along said R/W of E. Little Creek Road to the western R/W of Virginian Drive; thence, southeastwardly along the said western R/W of Virginian Drive to the dividing line between the previous addresses known as 7541 and 7543 Virginian Drive; thence, southwestwardly along said dividing line to the western line of the previous address known as 7541 Virginian Drive; thence, southwardly and southeastwardly along the western and southern lines of the previous address known as 7541 Virginian Drive to the dividing line between the previous addresses known as 7539 Virginian Drive and 136 Louisiana Drive; thence, southwardly along said dividing line to the northern R/W of Louisiana Drive; thence, westwardly along said northern R/W of Louisiana Drive to a point opposite the dividing line between 111 and 115 Louisiana Drive; thence, southwestwardly across Louisiana Drive to the said dividing line between 111 and 115 Louisiana Drive; thence, southwestwardly along said dividing line to the southern line of 115 Louisiana Drive; thence, southeastwardly along said southern line of 115 Louisiana Drive to the dividing line between 106 and 112 Cromwell Parkway; thence, southwestwardly along said dividing line to the northern R/W of Cromwell

Parkway; thence, northwestwardly to the eastern R/W of Granby Street; thence, southwestwardly across Granby Street to the intersection of the western R/W of Granby Street and the northern R/W of North Shore Road; thence, westwardly along said northern R/W of North Shore Road to the dividing line between 108 and 114 North Shore Road; thence, northwardly along said dividing line to the northern line of 108 North Shore Road; thence eastwardly along said northern line to the eastern line of 109 Maycox Avenue; thence, northwardly along said eastern line to the northern R/W of Maycox Avenue; thence, westwardly along said northern R/W of Maycox Avenue to the dividing line between 110 and 116 Maycox Avenue; thence, northwardly along said dividing line to the northern line of said 110 Maycox Avenue; thence, eastwardly along said northern line of 110 Maycox Avenue to the southeast corner of 101 Burleigh Avenue; thence, northeastwardly along the eastern line of said 101 Burleigh Avenue and across Burleigh Avenue to the northern R/W of Burleigh Avenue; thence, westwardly along said northern R/W to the dividing line between 112 and 114 Burleigh Avenue; thence, northwardly along said dividing line to the southern line of 129 through 143 W. Little Creek Road; thence, westwardly along said southern line to the eastern R/W of Colonial Avenue; thence, northwardly along said eastern R/W of Colonial Avenue to the southern R/W of W. Little Creek Road; thence, eastwardly along said southern R/W to the point of beginning.

(17) *Chelsea section.*

Beginning at the intersection of the southern line of the Elizabeth River Trail and the eastern line of the Midtown Tunnel, said point being previously described in the New Enterprise Zone—Fort Norfolk Subsection description; thence, northwestwardly along said southern line of the Elizabeth River Trail to the western line of the Midtown Tunnel; thence, southwestwardly along said western line of the Midtown Tunnel to the mean low water of the Elizabeth River; thence, meandering northwestwardly along said mean low water of the Elizabeth River to the mean low water at the east side of a warehouse pier approximately 475 feet east of the western line of Orapax Avenue extended to said mean low water; thence, southwestwardly, eastwardly, northeastwardly and northwestwardly along the mean low water around said warehouse pier to the western line of the subdivision of Chelsea extended to the mean low water; thence, northeastwardly along said western line of said subdivision of Chelsea to the southern line of Redgate Avenue in the tracks of Norfolk and Southern; thence, along said tracks of Norfolk & Southern to its intersection with the southern line of 1307 Boissevain Avenue; thence southeastwardly to the southwest corner of 1307 Boissevain Avenue; thence, northeastwardly along the western line of 1307 Boissevain Avenue to the northern line of Boissevain Avenue; thence, northwestwardly along said northern line of Boissevain Avenue to the southwest corner of 1314 Boissevain Avenue; thence, northeastwardly along the western line of said 1314 Boissevain Avenue to the southwest corner of 1309 Raleigh Avenue; thence, northwestwardly along the western line of 1309 Raleigh Avenue to the southern line of Raleigh Avenue; thence, northerly across said Raleigh Avenue to the southwest corner of 1318 Raleigh Avenue; thence, northeastwardly along the western line of 1318 Raleigh Avenue to the southern line of 1323 Redgate Avenue; thence, northwestwardly along said southern line of 1323 Redgate Avenue extended to the southwest corner of 1331 Redgate Avenue; thence, northeastwardly along the western line of 1331 Redgate Avenue to the southern line of Redgate Avenue; thence, southeastwardly along said southern line of Redgate Avenue to the eastern line of 816 Orapax Avenue; thence, southwestwardly along the eastern line of 816 Orapax Avenue to the northern line of 804 Orapax Avenue; thence, southeastwardly along said northern line of 894 Orapax Avenue extended to the western line of Claremont Avenue; thence, southwestwardly along said western line of Claremont Avenue to a center point between Raleigh Avenue and Boissevain Avenue; thence, southeastwardly along the center line between Raleigh Avenue and Boissevain Avenue to the western line of Matoka Avenue; thence, southwestwardly along said western line of Matoka Avenue to the western line of the Midtown Tunnel; thence, southeastwardly to the northwest corner of property of Norfolk Redevelopment and Housing (GPIN: 1428404723) on the eastern line of the

Midtown Tunnel; thence, southwestwardly along said eastern line to the Midtown Tunnel to the Point of beginning.
(Ord. No. 48,419, § 2, 6-22-21)

Sec. 45.5-5. Local urban enterprise incentives.

(a) *Permit fee reductions.* Notwithstanding any other provisions of this Code and pursuant to the authority of Code of Virginia, § 59.1-543, as amended, no qualified business firm as defined in this chapter shall be required to pay more than fifty (50) percent of the fee for obtaining a building, electrical, mechanical, or plumbing permit required to undertake work on property located in the zone. Such reduction in fee shall be available to said qualified business firm only once as to each of the enumerated trades.

(b) *Business, professional, occupational license tax reductions.* Notwithstanding any other provision of this Code and pursuant to the authority of Code of Virginia, § 59.1-543, as amended, any qualified business firm is eligible for reduction of its business, professional and occupational license tax. Reduction of the license tax shall begin as of the date of certification of a firm as a qualified business by the department of development of the city.

(c) *Utility tax reductions.*

(1) Notwithstanding any other provision of this Code and pursuant to the authority of Code of Virginia, § 59.1-543, as amended, any qualified business firm is eligible for reduction of its utility taxes on electricity, gas, telephone and water service. Reduction of the tax shall begin as of the date of certification of a firm as a qualified business by the department of development of the city.

(2) A qualified business firm shall receive the benefit of the reduction provided in subparagraph (1) by refund from the city of the portion of the utility tax paid by such qualified business firm which is in excess of the amount of tax due after allowance of the reduction provided in said subparagraph (1), said refund to be made in the manner prescribed by the city manager.

(d) *[Schedule.]* The license tax and the utility tax shall be reduced according to the following schedule:

Time Period	*Percent Reduction*
Year 1	50
Year 2	40
Year 3	30
Year 4	20
Year 5	10

(e) *Five-year period.* The tax deductions under this section shall be allowable to a qualified business firm for only five (5) consecutive taxable years beginning with the first taxable year in which the firm qualifies. If a firm fails to become qualified for any taxable year during said five-year period, it forfeits the right to request tax reductions under this section for that year.

(f) *Responsibility of firm to apply.* It shall be the responsibility of the qualified business firm to make application for the tax and permit fee reductions authorized in this chapter.

(g) *Termination.* The local urban enterprise incentives established in this chapter may be terminated at any time by duly adopted ordinance of the council of the city. However, any such termination shall not divest any qualified business firm of any benefits under this chapter for any year in which it had qualified prior to the adoption of said ordinance.
(Ord. No. 48,419, § 2, 6-22-21)

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Chapter 45.6

TECHNOLOGY ZONES*

Article I. In General

§ 45.6-1. Purpose and intent.
§ 45.6-2. Administration.
§ 45.6-3. Burden.
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§ 45.6-5. Boundaries of technology zones.
§ 45.6-6. Technology zone incentives.
§ 45.6-7. Procedures to obtain technology zone incentives.
§ 45.6-8. Nonwaiver.
§ 45.6-9. City manager or designee.

*__Editor's note—__Ord. No. 47,542, § 1, adopted Feb. 26, 2019, amended Ch. 45.6 in its entirety to read as herein set out. Former Ch. 45.6, §§ 45.6-1—45.6-8, pertained to similar subject matter, and derived from Ord. No. 46,385, § 17, adopted May 17, 2016, effective July 1, 2016.

ARTICLE I. IN GENERAL

Sec. 45.6-1. Purpose and intent.

In order to foster the development and location of new technology businesses in the city, which will increase capital investment and create jobs, the council finds that the establishment of technology zones pursuant to § 58.1-3850 of the Code of Virginia, 1950, as amended, is necessary.
(Ord. No. 47,542, § 1, 2-26-19)

Sec. 45.6-2. Administration.

The city manager shall develop and publish procedures for applying for the benefits afforded by this chapter and for the administration of this article. Any application required by this chapter shall be on forms approved by the city manager. The city manager will review the criteria and incentives for the technology zone program annually to assure alignment with city priorities and economic development strategy and shall make recommendations to council if it is determined that the criteria or incentives should be modified.
(Ord. No. 47,542, § 1, 2-26-19)

Sec. 45.6-3. Burden.

A business applying for the benefits afforded by this chapter shall have the burden of proving qualification, shall apply for certification as a qualified technology business, as hereinafter defined, on an annual basis, and shall demonstrate annually that it continues to operate as a qualified technology business. No application submitted under this chapter shall be approved if the applicant is not then current in payment of all taxes and fees due the city.
(Ord. No. 47,542, § 1, 2-26-19)

Sec. 45.6-4. Definitions.

For purposes of this chapter, the following words and phrases shall have the following meanings, unless indicated to the contrary:

(1) *"Definite place of business"* means an office or a fixed location within a technology zone where a regular and continuous course of dealing occurs over a period of thirty (30) or more consecutive days.

(2) *"Divested technology business"* means a new business resulting from the divestiture by an existing technology business located within the city of a subsidiary technology business when the subsidiary technology business is purchased or otherwise acquired by a new owner that is not an affiliate of the existing technology business and the resulting new technology business must, as a result of its divestiture, relocate from its existing place of business in the city to a new place of business and subsequently conduct business in a technology zone for eighteen (18) consecutive months.

(3) *"Expansion technology business"* means an existing technology business located within a technology zone that meets the new jobs incentive threshold criteria set forth in section 45.6-4(5).

(4) *"New technology business"* means a technology business that either (a) establishes its initial definite place of business in a technology zone and thereafter maintains its principal definite place of business within the boundaries of a technology zone or (b) an existing business with no definite place of business in the city before establishing a definite place of business in a technology zone and thereafter maintains its principal definite place of business in a technology zone.

(5) *"Qualified technology business"* means (1) either a new technology business or a divested technology business that (a) is within the boundaries of a technology zone established in this chapter and (b) either creates at least five (5) new full-time jobs or makes a capital investment of at least two hundred thousand dollars ($200,000.00) in either (i) tangible personal property or machinery and tools or (ii) real estate improvements used exclusively in such business, or any combination thereof or (2) an expansion technology business (a) that is within the boundaries of a technology zone established in this chapter and (b) for

businesses with twenty (20) or fewer full-time employees, creates five (5) net new jobs in any calendar year or, for businesses with over twenty (20) full-time employees, creates net new jobs in any calendar year equal to twenty-five percent (25%) of its total number of full-time employees. The baseline number of employees is determined by the average number of employees reported to the Virginia Employment Commission in December of the year prior to the increase. The new jobs created and capital investment must be located at the business' definite place of business in a technology zone. The full-time job requirement may be met with part-time jobs using a full-time equivalency of forty (40) hours per week.

(6) *"Technology business"* means a business that derives its gross receipts primarily from the sale, lease, license or provision of innovative or advanced technology based products, processes or services created, designed, developed, produced, manufactured or performed by such business. Products, processes and services shall incorporate or support the use of innovative or advanced technologies having applications in one or more of the following categories: (1) cybersecurity, personal security and property security; (2) sea level rise and recurrent flooding; (3) medical devices, medical diagnostics, pharmaceuticals, biotechnology, biochemical engineering and other life sciences and health care technologies; (4) advanced materials and advanced manufacturing; (5) computer hardware and software; (6) electronics and instrumentation; (7) photonics and sensors; (8) internet and e-commerce; (9) educational and training technologies, including modeling and simulation; (10) bio-informatics and data analytics; (11) logistics and maritime commerce; (12) information technology, telecommunications and wireless technologies; (13) green technologies, renewable energy research and development, and energy conservation; (14) advanced transportation technologies; (15) nanotechnology; (16) financial technology; and (17) aerospace engineering, systems, and products and parts manufacturing. The use of computers, telecommunications services, or a web page or internet site shall not, in itself, be sufficient to qualify as a technology business.

(Ord. No. 47,542, § 1, 2-26-19)

Sec. 45.6-5. Boundaries of technology zones.

The boundaries of the city's technology zones are hereby established as shown on the "technology zone map" attached hereto as exhibit A. The technology zone map is hereby declared to be a part of this chapter and to have the same force and effect as if it were fully set forth and described herein. The technology zone map shall be kept on file in the city manager's office or other designated city departments.

(Ord. No. 47,542, § 1, 2-26-19)

Sec. 45.6-6. Technology zone incentives.

(1) *Business professional and occupational license tax.* Notwithstanding any other provision of the Norfolk City Code and pursuant to § 58.1-3850 of the Code of Virginia, 1950, as amended, any business that is certified as a qualified technology business shall be entitled to a reduction of its business, professional and occupational license tax imposed by Chapter 24, Article II-A of the Norfolk City Code against gross receipts derived from its technology business as follows:

(a) If the qualified technology business is a new technology business, then:

One hundred percent (100%) reduction in the calendar year during which the business is certified as a qualified technology business;

One hundred percent (100%) reduction in year two of certification;

Fifty percent (50%) reduction in year three of certification;

Fifty percent (50%) reduction in year four of certification; and

Fifty percent (50%) reduction in year five of certification.

(b) If the qualified technology business is a divested technology business, then:

One hundred percent (100%) reduction in the calendar year during which the business is certified as a qualified technology business, prorated as of the effective date of its certification as a qualified technology business;

One hundred percent (100%) reduction in year two of certification; and

One hundred percent (100%) reduction in year three of operation but only for such period of time that makes the total duration of the benefits afforded by this chapter to such divested technology business equal to two (2) years.

(c) If the technology business is an expansion technology business, then:

Fifty percent (50%) reduction in each business tax year for which the new jobs incentive threshold is met but in no event shall the benefits afforded to the expansion technology business be provided more than five (5) business tax years in any consecutive ten (10) year period after the business' initial application for certification.

(d) In no event shall the benefits afforded to a qualified technology business pursuant to this chapter 45.6 be greater than one hundred thousand dollars ($100,000.00) in any given year of certification, and a qualified technology business may not roll over any benefits which are in excess of such one hundred thousand dollars ($100,000.00) cap or which are not provided due to the five (5) year cap on expansion technology businesses to any successive years.

(2) *Machinery and tools tax.* Notwithstanding any other provision of the Norfolk City Code and pursuant to § 58.1-3850 of the Code of Virginia, 1950, as amended, any advanced manufacturing business that is not subject to business professional and occupational license tax and that is certified as a qualified technology business shall be entitled to a reduction of its machinery and tools tax imposed by section 24-3 of the Norfolk City Code against gross receipts derived from its technology business by an amount equal to the amount such qualified technology business would have received under section 45.6-6(1) above if it were subject to business professional and occupational license tax; provided, however, if such benefit amount is greater than the machinery and tools tax that would otherwise be payable by such qualified technology business, such excess amount may not be rolled over to any subsequent year, and in any event the benefits provided are subject to the limitation of section 45.6-6(1)(d) above.

(3) *Planning, zoning and building permit fees waivers.* Notwithstanding any other provision of the Norfolk City Code and pursuant to [Code of Virginia,] § 59.1-543, as amended, no qualified technology business as defined in this chapter shall be required to pay more than fifty (50) percent of the fee for obtaining planning, zoning and building permit fees required to undertake work on property located in the zone that is related to its technology business as follows:

(a) *Building permit fee schedule:*

i. *Administrative fees waiver.* Appeal to the board of building code appeals; re-inspection fee; changes or corrections to the application or approved plans; certificate of occupancy or certificate of compliance; and temporary C.O. for thirty (30) days.

ii. *Building plan review fees waiver.* New construction, alterations, and repairs; fire protection systems (includes all fire protection systems and alarms); and commercial fences, riprap, bulkheads, piers and similar accessory structures (includes signs, elevators, communication towers, pump stations, vaults).

iii. *Building permit/inspection fees waiver.* New construction (including additions), alterations, and repairs; demolition (any building or structure); hydraulic elevators; trac-

tion elevators; escalators/moving walkways; miscellaneous elevators (chair lifts, dumbwaiters, pneumatics, material lifts, etc.); commercial bulkhead and piers; re-roof and siding (commercial); and signs (new or alteration or modification of an existing sign).

iv. *Electrical fees waiver.* Electrical service (single-phase or three phases); and temporary release temporary electrical construction pole.

v. *Mechanical fees waiver.* Burner replacement; chiller; cooling tower/water tower; commercial hoods; condensate; hydronic piping; air conditioning equipment; boiler; combination unit; furnace; heat pump; space heater; replacement water heater; gas line; regulated equipment not addressed; air handler; commercial clothes dryer; kitchen cooking equipment; refrigerator equipment; dispenser; air distribution system; exhaust duct system; fan exhaust; make up air; fire/smoke dampers; fueling piping system; gas light; VAV box; ventilation duct system; and medical gas piping.

vi. Plumbing fees waiver. Plumbing equipment/fixtures/piping systems (indoor); plumbing site work (outdoor); backflow device; and sewer caps.

(b) *Fee schedule for planning and zoning applications:*

i. *Architectural review board fees waiver.* Certificate of appropriateness; and design review (under Norfolk City Code section 32-63).

ii. *City planning commission fees waiver.* Conditional use permit; rezoning/conditional rezoning; zoning text amendment; general plan amendment (with or without concurrent application); and development certificate (with or without waivers and right-of-way closures).

iii. *Board of zoning appeals fees waiver.* Variance/appeal; wetlands board/environmental; wetlands permit and land disturbance permit.

iv. *Staff review/approval fees waiver.* Ownership review request/buildable lot letter; zoning compliance letter; nonconforming zoning lot review (lots greater than 37.5 ft. in width); nonconforming zoning lot review (lots less than 37.5 ft. in width); site plan review (major); site plan review (minor); and moving storage container registration.

(Ord. No. 47,542, § 1, 2-26-19; Ord. No. 48,418, § 1, 6-22-21)

Sec. 45.6-7. Procedures to obtain technology zone incentives.

It shall be the responsibility of the qualified technology business to apply for certification, to obtain the necessary business license, and to provide the necessary information in order to obtain the benefits afforded by this chapter.

To qualify for the benefits afforded by this chapter, a business must apply to the city manager to be certified as a qualified technology business.

A new technology business must apply to be certified as a qualified technology business within six (6) months after obtaining a business license, except that a new technology businesses that obtained a business license after January 1, 2017 shall have until the later of August 31, 2019 or that date which is six (6) months after obtaining a business license to apply to be certified.

A divested technology businesses must apply to be certified as a qualified technology business within six (6) months after its divestiture.

An expansion technology business must apply to qualify as a qualified technology business within six (6) months after the calendar year in which the qualifying expansion occurred.

The tax reduction shall begin as of the month of certification of a technology business as a qualified technology business by the city manager. The effective date of any certification of a divested technology business as a qualified technology business shall be no earlier than eighteen (18) months after the date of its relocation and commencement of business operations in a new definite place of business in a technology zone. To maintain eligibility for the tax reduction after the year of its initial certification as a qualified technology business, the business must reapply annually to the city manager to demonstrate that it continues to be a qualified technology business. The tax reduction provided in this section shall apply to a qualified technology business that is a new technology business for no more than five (5) calendar years, including any partial initial calendar year, and to a qualified technology business that is a divested technology business for two (2) years from the date of certification.

A business certified to be a qualified technology business must have a business license and pay the applicable fee, and is subject to the provisions of Norfolk City Code section 24-25.9(b). In order to receive a tax reduction under this section, the qualified technology business shall file a business license application annually with the commissioner of the revenue and shall provide the commissioner with an annual certification from the city manager that the business is a qualified technology business. The amount of gross receipts estimated to be earned from qualified technology business activities shall be set out in the license application and shall be subject to verification by the commissioner of the revenue by audit or inspection of documents. All business license tax reductions are subject to adjustment by the commissioner of the revenue based on actual gross receipts earned from qualifying technology business activities. If a business is certified as a qualified technology business prior to payment of its business license tax liability to the city, such tax liability shall be reduced according to the schedule above. If a business is certified a qualified technology business after it has paid its business license tax liability to the city in full, it shall receive a refund, without interest, in accordance with the schedule above. No local taxes or fees may be outstanding at the time of application for the business license and reduction.

If a business ceases to be a qualified technology business during a calendar year in which tax reductions apply, business license taxes shall be payable at one hundred percent (100%) of the tax amount imposed by Chapter 24, Article II-A of the Norfolk City Code from the month the business ceased to be qualified until the end of the calendar year.

The entitlement to any license tax reduction authorized in this section shall be conditioned upon the applicant paying any tax or fee imposed by the city by the date upon which the tax or fee is due. In the event a qualified technology business is or becomes thirty (30) or more days delinquent on any local tax or fee, such business automatically forfeits any entitlement to any tax reduction authorized in this chapter.
(Ord. No. 47,542, § 1, 2-26-19)

Sec. 45.6-8. Nonwaiver.

Unless stated otherwise herein, nothing in this chapter shall be construed as a waiver of the right of the city to enforce its ordinances, regulations or policies or to collect any taxes, fees, fines, penalties or interest imposed by law on a qualified technology business or upon real or personal property owned or leased by a qualified technology business.
(Ord. No. 47,542, § 1, 2-26-19)

Sec. 45.6-9. City manager or designee.

Whenever used in this chapter 45.6, the term city manager shall mean the city manager or the city manager's designee.
(Ord. No. 47,542, § 1, 2-26-19)

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Chapter 45.7

DOWNTOWN ARTS AND CULTURAL DISTRICT

Article I. Downtown Arts and Cultural District

§ 45.7-1. Intent.
§ 45.7-2. Establishment of the Downtown Arts and Cultural District, and boundaries.
§ 45.7-3. Definitions.
§ 45.7-4. Administration.
§ 45.7-5. Eligibility requirements.
§ 45.7-6. Compliance with laws.
§ 45.7-7. Available incentives.
§ 45.7-8. BPOL tax reduction.
§ 45.7-9. Permit fee exemption.
§ 45.7-10. Change in circumstances.

ARTICLE I. DOWNTOWN ARTS AND CULTURAL DISTRICT

Sec. 45.7-1. Intent.

It is the intent of the council in establishing the Downtown Arts and Cultural District to increase awareness and support for the arts and culture in the city, which will serve to support and create arts and cultural venues in the city, to increase capital investment and create jobs, and to promote Norfolk as the arts and cultural center of the region. The council believes that establishment of an arts and cultural district will benefit the welfare of the citizens of Norfolk.
(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Sec. 45.7-2. Establishment of the Downtown Arts and Cultural District, and boundaries.

The Downtown Arts and Cultural District is hereby established. The Downtown Arts and Cultural District shall consist of the area shown on the map attached to this chapter. Any lot, piece, or parcel of land not wholly contained within the boundaries of the area shown on the maps attached to this chapter shall not be part of the Downtown Arts and Cultural District. The designation of the area as an arts and cultural district (hereinafter referred to as the "district") shall not in any respect override any applicable City Code regulatory requirements including, but not limited to zoning regulations, fire code, nuisance, and building and property maintenance codes.
(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Editor's note—The map, referenced above, is not set out herein, but is on file and available for inspection in the city offices.

Sec. 45.7-3. Definitions.

For the purposes of this chapter, and unless otherwise indicated to the contrary, the following term(s) shall have the following meaning(s):

(a) *"District administrator"* means the city manager, or another employee of the city as designated by the city manager, who shall serve as the administrator for the district.

(b) *"Qualified arts organization"* shall mean a business for profit or not-for-profit organization physically located within the district which, by the determination of the district administrator in accordance with this chapter, positively contributes to the spectrum of arts and cultural activities and venues available to the public by presenting live performances of theatre, dance, music, or other imaginative work and/or producing or exhibiting physical works created by, or under the direction of one or more artists, which are intended for unique production or limited reproduction. Museums or historic sites, the primary mission of which is education, history, or historic preservation, may also qualify as qualified arts organizations. Theaters, including movie theaters, art galleries, dance studios, music venues, performance spaces, art schools and academies, including culinary arts schools and academies, and graphic art design businesses are examples of qualified arts organizations.

In no case shall a restaurant, hair or nail salon, or an office use such as an architect, advertising agency, bank, real estate office, medical office, attorney's office or any other general office use qualify as a qualified arts organization for the purposes of this chapter. Additionally, in no case shall a retail art establishment qualify as a qualified arts organization for the purposes of this chapter unless the retail art establishment creates or exhibits visual or performing art such as painting, sculpture, textiles, dance, photography or music which is intended for unique production or limited reproduction, and the retail art establishment derives greater than fifty percent (50%) of its income from these art activities.

When applying for any benefit afforded under this chapter, the applicant shall have the burden of proving qualification as a qualified arts organization. The incentives in this chapter shall not extend beyond the time limits set forth in this

chapter unless the district administrator determines that a successor organization or assignee of an original qualified arts organization is owned and operated by a wholly separate and different entity than the original qualified arts organization. In such case, the new entity shall submit a separate application under this chapter.

(c) *"Redevelopment"* means any expansion, addition, facade change or other physical improvement to a property primarily housing a qualified arts organization that increases the assessed value of the property.

(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Sec. 45.7-4. Administration.

The district administrator shall be responsible for administration of this chapter and shall determine the procedures for applying for and obtaining the incentives provided herein.

(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Sec. 45.7-5. Eligibility requirements.

The tax incentives provided for in section 45.7-8 below and fee exemptions provided for in section 45.7-9 below will be made available to any existing for-profit business or not-for-profit organization physically located within the district as of July 1, 2019 that applies no later than September 30, 2019 to be recognized as a qualified arts organization and meets the additional criteria set forth below; or any new for-profit business or not-for-profit organization physically located in the district that is a qualified arts organization as defined in section 45.7-3(b) and meets the additional criteria set forth below. New businesses or organizations shall apply to the district administrator for qualification no later than sixty (60) days after the initial commencement of operations. The district administrator shall apply the following criteria when determining if a business or organization is eligible for the incentives provided in this chapter:

(a) The business must be a qualified arts organization as defined in section 45.7-3(b).

(b) The business or organization has the burden of proving to the district administrator on an annual basis that it qualifies as a qualified arts organization. The business or organization must provide the district administrator with a description of the principal business activities to be carried on in the district; a description of the location of said business within the district and whether such location is owned by the applicant business or organization or leased, and if leased, the name of the landlord and the length of the lease term; details regarding the structure of the business or organization (i.e. type of entity and if other than a sole proprietorship, the names and addresses of all principals of the business); a narrative description of the current and past activities of the business or organization, and in the case of an already operating business or organization, information regarding current and past locations of the business or organization; and a business plan including pro-formas for no less than three (3) years. The business plan is not required if the applicant business has been in continuous operation within the district for five (5) or more years. The business or organization must at all times comply with all applicable federal, state and local laws and regulations.

(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Sec. 45.7-6. Compliance with laws.

(a) If the qualified arts organization fails to pay in full any tax imposed by the city or other governmental entity by the date the tax becomes due, fails to comply with all applicable federal, state, and local laws and regulations, to comply with the requirements of this chapter, in the case of a first offense, such business or organization shall lose its qualification for the remainder of the current calendar year and in the case of any subsequent failure, the qualified arts organization qualification shall be revoked permanently.

(b) A qualified arts organization that loses its qualification or where a qualification has been revoked under subsection 45.7-6(a) above shall

reimburse the city the full amount of all monies that it has received as incentives under this chapter during the calendar year of the period of non-compliance; such reimbursement is to be paid to the city in full within thirty (30) days of the loss or revocation of qualification.
(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Sec. 45.7-7. Available incentives.

Upon approval by the district administrator, a qualified arts organization shall be entitled to receive the incentives provided in sections 45.7-8 and 45.7-9 below. The qualified arts organization shall have the burden of establishing its qualification(s) to receive the incentives on an annual basis.
(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Sec. 45.7-8. BPOL tax reduction.

Notwithstanding any other provision of the Norfolk City Code and pursuant to § 58.1-3850 of the Code of Virginia, 1950, as amended, any business that is certified as a qualified arts organization shall be entitled to a reduction of its business, professional and occupational license tax ("BPOL") imposed by Chapter 24, Article II-A of the Norfolk City Code against gross receipts derived from its creative activities as follows:

(a) Year one is the first calendar year in which a business or organization is certified as a qualified arts organization.

(b) The reduction shall apply for a period of three (3) calendar years, including the partial calendar year of certification and the following two (2) full calendar years, or until such earlier time that the business or organization no longer meets the definition of a qualified arts organization, whichever is the first to occur. If a business or organization ceases to be a qualified arts organization or removes its operation from the district during a year in which the reduction applies, the business or organization shall not be qualified or receive the reduction for that year. A business may not receive the BPOL reduction provided herein more than three (3) calendar years, including the calendar year of certification and the ensuing next two (2) calendar years.

(c) A qualified arts organization must establish its qualification for the incentives on an annual basis and the percentage of reduction for each year shall be: 100 percent reduction in year one; 100 percent reduction in year two; and 100 percent reduction in year three.

The business or organization shall have the burden of demonstrating, to the satisfaction of the district administrator, that it meets the definition of a qualified arts organization and that it meets all applicable criteria for a BPOL reduction.

The qualified arts organization shall also file an annual BPOL application with the City of Norfolk Commissioner of the Revenue and shall provide the commissioner of the revenue with certification from the district administrator that the business or organization qualifies as a qualified arts organization. The qualified arts organization shall certify that no taxes or fees are outstanding at the time of application for the BPOL reduction.

All BPOL tax reductions are subject to adjustment by the commissioner of the revenue based on actual gross receipts earned from qualified arts organization activities. Any additional BPOL tax assessed due to such adjustments, or due to revocation of the tax reduction, shall be subject to collection and delinquency in accordance with all applicable laws.

On or prior to March 1 of the calendar year following the last calendar year in which the BPOL reduction applies, the qualified arts organization taxpayer must report the prior calendar year's actual gross receipts to the commissioner of the revenue in accordance with Norfolk City Code.

(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Sec. 45.7-9. Permit fee exemption.

For a period of up to one hundred twenty (120) months from qualifying as a qualified arts organization but only for so long as such qualification continues during such one hundred twenty-month period, a qualified arts organization shall be exempt from any building, electrical, mechanical, plumbing, or site plan application fees that would otherwise be imposed on such qualified arts organization under City Code. This exemption shall apply to the record owner of the property where the qualified arts organization is located or to the business owner if such business is a tenant of the subject property and, in either case, only to a qualified arts organization that is in the process of redevelopment as defined in section 45.7-3. This exemption may not be applied retroactively. Permit fees are not refundable due to failure to comply with the procedures established by the district administrator at the time of application for any permits or due to subsequent certification as a qualified arts organization. The qualified arts organization must provide written evidence of its certification as a qualified arts organization at the time of application for any permit.
(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

Sec. 45.7-10. Change in circumstances.

If a business or organization ceases to be a qualified arts organization during a year in which incentives apply, the business shall be responsible for the full tax for that year.
(Ord. No. 47,676, § 1, 6-11-19, eff. 7-1-19)

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Chapter 45.8

COMMERCIAL PROPERTY ASSESSED CLEAN ENERGY (C-PACE) FINANCING PROGRAM

Article I. Commercial Property Assessed Clean Energy (C-PACE) Financing Program

§ 45.8-1. Intent.
§ 45.8-2. Definitions.

Article II. Program Structure

§ 45.8-3. C-PACE program; eligible improvements.
§ 45.8-4. C-PACE loan requirements; program fees; reporting; program administrator; program guide.
§ 45.8-5. Levy of assessment; recordation; priority; amendment; enforcement and collection costs.
§ 45.8-6. Role of the city; limitation of liability.
§ 45.8-7. Additional provisions.

ARTICLE I. COMMERCIAL PROPERTY ASSESSED CLEAN ENERGY (C-PACE) FINANCING PROGRAM

Sec. 45.8-1. Intent.

The purpose of this chapter is to create a "Norfolk Commercial Property Assessed Clean Energy (C-PACE) Financing Program," in accordance with the Commonwealth of Virginia's Clean Energy Financing Law, § 15.2-958.3 of the Code of Virginia of 1950, as amended (hereinafter the "Act"). The C-PACE program will facilitate loans made by capital providers to borrowers to finance renewable energy production and distribution facilities, energy efficiency improvements, or water usage efficiency improvements. Subject to the limitations set forth in this chapter, the Act, or other applicable law, each C-PACE loan, inclusive of principal, interest, and any financed fees, costs, or expenses, will be secured by a voluntary special assessment lien on the property that is the subject of such loan.
(Ord. No. 48,012, § 1, 6-9-20)

Sec. 45.8-2. Definitions.

For the purposes of this chapter, and unless otherwise indicated to the contrary, the following term(s) shall have the following meaning(s):

(a) *"Act"* means Virginia's "Financing Clean Energy, Resiliency, and Stormwater Management Programs" Law, § 15.2-958.3 of the Code of Virginia of 1950, as amended.

(b) *"Amendment"* means an amendment of the C-PACE lien as permitted under the loan documents and program guide.

(c) *"Assignment"* means an assignment of the loan payments and/or C-PACE lien pursuant to the terms of the assignment document.

(d) *"Borrower"* means (A) the owner(s) of eligible property who obtain(s) a C-PACE loan from a capital provider in accordance with the program guide or (B) a successor in title to the borrower.

(e) *"Capital provider"* means (A) a private lending institution that has been approved by the program administrator in accordance with the program guide to originate a C-PACE loan and its successors and assigns or (B) the current holder of a C-PACE loan.

(f) *"City"* means the City of Norfolk, Virginia.

(g) *"City council"* means the City Council of the City of Norfolk, Virginia.

(h) *"Commonwealth"* means the Commonwealth of Virginia.

(i) *"C-PACE"* means Commercial Property Assessed Clean Energy.

(j) *"C-PACE lien"* or *"lien"* means the voluntary special assessment lien levied against the property as security for the C-PACE loan.

(k) *"C-PACE lien certificate"* means the voluntary special assessment lien document duly recorded among the land records against an eligible property to secure a C-PACE loan.

(l) *"C-PACE loan"* or *"loan"* means a loan from a capital provider to a borrower to finance a project in accordance with the program guide.

(m) *"C-PACE program"* or *"program"* means the program established by the city through this chapter, in accordance with the Act, that facilitates the financing of eligible improvements and provides for a C-PACE lien to be levied and recorded against the property to secure the C-PACE loan.

(n) *"C-PACE program agreement"* means the agreement between the borrower, city, and capital provider, and their respective successors and assigns, which includes (i) the terms and conditions for participation in the C-PACE program, (ii) the borrower's acknowledgment and consent for the city to impose a voluntary special assessment and to record a C-PACE lien certificate against the borrower's eligible property, and (iii) a summary of the

terms of the C-PACE loan. The form C-PACE program agreement is included herein as Exhibit A.

(o) *"Delinquent payment"* means any C-PACE loan payment that was not paid by a borrower in accordance with the loan documents.

(p) *"DMME Guidelines"* means the Uniform Statewide Financial Underwriting Guidelines for C-PACE loans, issued on December 1, 2015, by the PACE Stakeholder Committee organized by the Virginia Department of Mines, Minerals, and Energy (DMME), as amended from time to time.

(q) *"Eligible improvement"* means the initial acquisition and installation of clean energy, energy efficiency, water efficiency, resiliency, or stormwater improvements for both existing properties and new construction, as further prescribed in this chapter and the program guide.

(r) *"Eligible property"* or *"property"* means real property located within the city other than residential property or a condominium as defined in Virginia Code § 55-79.2.

(s) *"Financing agreement"* means the written agreement, as may be amended, modified, or supplemented from time to time, between a borrower and a capital provider regarding matters related to the extension and repayment of a C-PACE loan to finance eligible improvements.

(t) *"Land records"* means the land records of the Clerk of the Circuit Court of the City of Norfolk.

(u) *"Loan amount"* means the aggregate amount of a loan, inclusive of principal, interest, and any financed fees, costs, or expenses, all as provided for in the loan documents.

(v) *"Loan documents"* means the C-PACE program agreement, financing agreement, a C-PACE lien certificate, and any other document, agreement, or instrument executed in connection with a C-PACE loan.

(w) *"Loan payment"* means the periodic installment payments of the C-PACE loan by a borrower, due and payable to the city or capital provider as permitted by the Act in such amounts and at such times as described in the loan documents.

(x) *"Program administrator"* means the person or entity retained by the city to administer the program in accordance with the requirements of the Act, this chapter, and the program guide, which entity may include either a private administrator or any public C-PACE administrator established by the commonwealth for the purposes of administering local C-PACE programs.

(y) *"Program fee(s)"* means the fee(s) authorized by the Act and charged to participating borrowers to cover the costs to design and administer the program, including, without limitation, compensation of the program administrator and recovery of expenses incurred by the city.

(z) *"Program guide"* means a comprehensive document setting forth the procedures, eligibility rules, restrictions, program fee(s), responsibilities, and other requirements applicable to the governance and administration of the program.

(aa) *"Program manager"* means the city manager or such person designated in writing by the city manager to supervise the program and act as liaison with the program administrator.

(bb) *"Project"* means the construction or installation of eligible improvements on eligible property.

(cc) *"Residential property"* means improved real property used or occupied, or intended to be used or occupied, for residential purposes.

(dd) *"Stabilized occupancy"* means the occupancy level that an income producing property is expected to achieve after

the property is exposed to the market for lease over a reasonable period of time and at comparable terms and conditions to other similar properties.

(ee) *"Stabilized value"* means the market value of the property after it reaches stabilized occupancy as evidenced by an appraisal of the property.

(ff) *"Subordination agreement"* means a written agreement executed by the holder of each existing lien, mortgage, or deed of trust on eligible property that is the subject of a C-PACE loan, which allows the C-PACE lien to have senior priority to the existing mortgage or deed of trust.

(gg) *"Useful life"* means the normal operating life of the fixed asset as determined by Generally Accepted Accounting Principles (GAAP).

(Ord. No. 48,012, § 1, 6-9-20)

Editor's note—Exhibit A, referenced above, is not set out herein, but is on file and available for inspection in the city offices.

ARTICLE II. PROGRAM STRUCTURE

Sec. 45.8-3. C-PACE program; eligible improvements.

(a) *C-PACE program:* The C-PACE program shall be available throughout the city, provided that the borrower, the property, and the proposed eligible improvements all qualify for the program. The following types of eligible improvements may be financed with a C-PACE loan:

(1) Renewable energy production and distribution facilities (e.g., solar photovoltaic, solar thermal, wind, wave and/or tidal energy, and the storage and/or distribution of the energy produced thereby);

(2) Energy usage efficiency systems (e.g., high efficiency lighting and building systems, heating, ventilation, and air conditioning (HVAC) upgrades, air duct sealing, high efficiency hot water heating systems, building shell or envelope improvements, reflective roof, cool roof, or green roof systems, and/or weatherstripping);

(3) Water usage efficiency improvements (e.g., recovery, purification, recycling, and other forms of water conservation);

(4) Construction, renovation, or retrofitting a property directly related to the accomplishment of any purpose listed in subsections (1), (2), or (3) above, whether such eligible improvement was erected or installed in or on a building or on the ground, it being the express intention of the city to allow eligible improvements that constitute, or are a part of, the construction of a new structure or building to be financed with a C-PACE loan; and

(5) Any other category of improvement approved by the program administrator with the consent of the program manager as qualifying for financing under the C-PACE Act and the program.

(b) *Use of C-PACE loan proceeds:* The proceeds of a C-PACE loan may be used to pay for the construction, development, and consulting costs directly related to eligible improvements, including without limitation, the cost of labor, materials, machinery, equipment, plans, specifications, due diligence studies, consulting services (e.g., engineering, energy, financial, and legal), program fees, C-PACE loan fees, capitalized interest, interest reserves, and C-PACE transaction underwriting and closing costs.

(c) *Program applications; prioritization:* The program administrator will develop a program application process that allows for the review and approval of proposed eligible improvements and C-PACE loan documents. Program applications will be processed on a first come, first serve basis; provided, however, that the applicant meets eligibility requirements as set forth in the program guide.

(Ord. No. 48,012, § 1, 6-9-20)

Sec. 45.8-4. C-PACE loan requirements; program fees; reporting; program administrator; program guide.

(a) *Source of loans:* C-PACE loans shall be originated by capital providers. The city shall have no obligation to originate or guarantee any C-PACE Loans.

(b) *C-PACE loan amount thresholds:* The minimum loan amount that may be financed for each project is fifty thousand dollars ($50,000.00). The maximum loan amount that may be financed for each project is twenty-five million dollars ($25,000,000.00) or thirty percent (30%) of the stabilized value of the property, whichever is greater. The program administrator may also accept other forms of valuation including, but not limited to, assessed value or value derived from a minimum assessment agreement. There shall be no limit on the total value of all C-PACE loans issued under the program.

(c) *C-PACE loan interest:* The interest rate of a C-PACE loan shall be as set forth in the loan documents.

(d) *C-PACE loan term:* The term of a C-PACE loan shall not exceed the shorter of (i) the useful life of the project improvement or (ii) thirty (30) years.

(e) *C-PACE loan amortization:* The amount of the C-PACE loan shall be fully amortized over the term of the C-PACE loan as agreed by the borrower and the capital provider.

(f) *Apportionment of costs:* All costs incidental to the financing, administration, collection, and enforcement of the C-PACE loan shall be borne by the borrower.

(g) *Financing agreements:* Capital providers may use their own financing agreements for C-PACE loans, but the financing agreement may not conflict with the provisions of this chapter, the Act, or the C-PACE program agreement. To the extent of any conflict, this chapter, the Act, and the C-PACE program agreement shall prevail.

(h) *C-PACE program agreement:* In order to participate in the C-PACE program, borrower and capital provider shall enter into a C-PACE program agreement with the city, which sets forth certain terms and conditions for participation in the city's C-PACE program. This agreement shall be binding upon the parties and their respective successors and assigns until the C-PACE loan is paid in full. Each C-PACE program agreement shall be in substantially the form provided herein in Exhibit A. The C-PACE program agreement may be modified as necessary to further the program's purpose and to encourage program participation, including such additions, deletions, or alterations as may be approved by the program manager and city attorney, so long as such modifications do not conflict with the program guide, this chapter, or the Act.

(i) *Repayment of C-PACE loan; collection of loan payments:* C-PACE loans will be repaid by the borrower through loan payments made in the amounts and at such times as set forth in the loan documents and program guide. The capital provider shall be responsible, subject to and in accordance with the terms of the C-PACE program agreement and other loan documents, for the servicing of the C-PACE loans and the collection of loan payments.

(j) *C-PACE loan assumed:* The borrower shall assume the obligation to repay all remaining unpaid loan payments, whether it obtained ownership of the property voluntarily or involuntarily, which are due upon acquisition of the property, if any, and which accrue during borrower's period of ownership. Only the current loan payment and any delinquent payments, together with any costs of collection, shall be payable at the settlement of a property upon sale or transfer, unless otherwise agreed to by the capital provider.

(k) *Transfer of C-PACE loans:* C-PACE loans may be transferred, assigned, or sold by a capital provider to another capital provider at any time until the C-PACE loan is paid in full provided the capital provider shall (i) notify the borrower and program administrator prior to the billing date of the next loan payment due, (ii) record a C-PACE loan assignment among the land records, and (iii) deliver a copy of the recorded C-PACE assignment to the borrower, city, and program administrator as set forth in the C-PACE program

agreement and program guide. Recordation of the C-PACE assignment shall constitute an assumption by the new capital provider of the rights and obligations of the original capital provider contained in the loan documents.

(l) *Program fee(s):* The program fee(s) and its effective date shall be set by a resolution of the city council and may be amended from time to time in the same manner. The program guide shall include the most current program fee(s) in effect. Program fee(s) shall be designed to cover the city's and program administrator's costs to administer the program and shall be paid by the borrower as set forth in the loan documents. If the program fee is implemented in whole or in part as a component of the C-PACE loan's interest rate, it may be capped at a dollar amount designed to encourage participation in the program.

(m) *Notification of proposed loan and closing:* The program guide will set forth the C-PACE loan notification requirements and loan closing process.

(n) *Reporting:* The city may require the capital provider and/or the program administrator to provide a written report with summary information regarding the C-PACE loan program, the portfolio performance of participating capital providers, or other program statistics as required in the program guide.

(o) *Program administrator:* The city will enter into a contract with a program administrator pursuant to the city's procurement process and in accordance with any requirements of the Virginia Public Procurement Act. The program administrator's duties shall be those set forth in its contract with the city, which may include, but not be limited to: (i) creating the program guide and revising and updating the program guide, as necessary; (ii) coordinating the billing and collection process by serving as a servicer for C-PACE loans or subcontracting with a qualified C-PACE loan servicer; (iii) processing C-PACE applications to determine project eligibility; (iv) ensuring compliance with the requirements of the C-PACE program; and (v) performing marketing and outreach with regard to the C-PACE program. In the alternative, the city may use any public C-PACE administrator established by the commonwealth for the purposes of administering local C-PACE programs.

(p) *Program guide:* The program guide shall be developed by the program administrator under the direction of, and in consultation with, the program manager. The program guide and any subsequent amendments thereto shall become effective only (i) to the extent that the program guide and such amendments do not contravene this chapter or the Act, and (ii) after review by the city attorney and written approval by the program manager. The program guide may incorporate the DMME Guidelines or other appropriate underwriting guidelines consistent with this type of program. The program guide will be designed to create an open, competitive, and efficient program. The program administrator may modify the program guide from time to time subject to the approval of the program manager and in accordance with the intent and purpose of the C-PACE program as approved by the city council.

(Ord. No. 48,012, § 1, 6-9-20)

Editor's note—Exhibit A, referenced above, is not set out herein, but is on file and available for inspection in the city offices.

Sec. 45.8-5. Levy of assessment; recordation; priority; amendment; enforcement and collection costs.

(a) *Levy of voluntary special assessment lien:* Beginning on the effective date of this chapter and for each C-PACE loan made under the program, the city council hereby levies a voluntary special assessment (C-PACE lien) against each property benefitting from eligible improvements financed with C-PACE loans, in an amount equal to the C-PACE loan, upon recordation of the C-PACE lien certificate.

(b) *Recordation of C-PACE lien certificate:* Each C-PACE loan shall be secured by a C-PACE lien as evidenced by the recordation of the C-PACE lien certificate among the land records. The program manager, on behalf of the city, is hereby authorized to execute the C-PACE lien certificate prior to recordation. The C-PACE lien

certificate shall be filed in the land records upon execution of the loan documents and funding of the project.

(c) *Priority:* The C-PACE lien shall have the same priority as a real property tax lien and priority over any previously recorded lien, mortgage, or deed of trust, as evidenced by subordination agreement(s) obtained from each prior lien holder, mortgagee, or trustee(s) of any deed(s) of trust. Only the current loan payment and any delinquent payments shall constitute a first lien on the property.

(d) *Amendment of lien:* Upon written request by a capital provider in accordance with the program guide, the program manager may execute an amendment of the C-PACE lien after the closing of a C-PACE loan. The amendment will be recorded in the land records.

(e) *Enforcement and collection costs:* In the event of borrower's default under the terms of the loan documents, the city shall enforce the C-PACE lien for the amount of the delinquent payments, penalties, interest, and any costs of collection in the same manner that a property tax lien against real property may be enforced. In the alternative, the city may assign the C-PACE lien to the capital provider by executing a C-PACE lien assignment and recording the assignment in the land records. Upon such assignment, the capital provider may enforce the C-PACE lien according to the terms of the loan documents. All collection and enforcement costs, expenses, interest, and penalties incurred by the city or capital provider, as applicable and consistent with the Act, shall (i) be added to the delinquent payments being collected, (ii) become part of the aggregate amount sued for and collected, (iii) be added to the C-PACE loan, and (iv) be secured by the C-PACE lien. Nothing herein shall prevent the capital provider from enforcing the C-PACE lien to the fullest extent permitted by the loan documents, the Act, or general law.

(Ord. No. 48,012, § 1, 6-9-20)

Sec. 45.8-6. Role of the city; limitation of liability.

By executing the loan documents including the C-PACE program agreement, or by otherwise participating in the program, the borrower and capital provider acknowledge and agree that as a condition of participation in the program: (i) the city undertakes no obligations under the program except as expressly stated herein or in the C-PACE program agreement; (ii) in the event of a default by a borrower, the city has no obligation to use city funds to make loan payments to any capital provider including, without limitation, any fees, expenses, and other charges and penalties, pursuant to a financing agreement between the borrower and capital provider; (iii) no C-PACE loan, loan payment, C-PACE lien, or other obligation arising from any loan document, the Act, or the chapter shall be backed by the credit of the city, the commonwealth, or its political subdivisions, including, without limitation, city taxes or other city funds; (iv) no C-PACE loan, loan payment, C-PACE lien or other obligation arising from any loan document, the Act, or the chapter shall constitute an indebtedness of the city within the meaning of any constitutional or statutory debt limitation or restriction; (v) the city has not made any representations or warranties, financial or otherwise, concerning a borrower, eligible property, project, capital provider, or C-PACE loan; (vi) the city makes no representation or warranty as to, and assumes no responsibility with respect to, the accuracy or completeness of any loan document, or any assignment or amendment thereof; (vii) the city assumes no responsibility or liability in regard to any project, or the planning, construction, or operation thereof; (viii) each borrower or capital provider shall, upon request, provide the city with any information associated with a project or a C-PACE loan that is reasonably necessary to confirm that the project or C-PACE loan satisfies the requirements of the program guide; and (ix) each borrower, capital provider, or other participant under the program, shall comply with all applicable requirements of the program guide.

(Ord. No. 48,012, § 1, 6-9-20)

Sec. 45.8-7. Additional provisions.

(a) *Required program guide provisions:* The program guide, including any amendments thereto, shall contain the following provisions:

"This Program Guide (this "Guide") has been prepared for purpose of providing a more detailed

description of the requirements, rules, procedures, and fees applicable to the Norfolk Commercial Property Assessed Clean Energy (C-PACE) Financing Program (the "Program"). This Guide and all provisions hereof are subject to the applicable chapter of the City Code of the City of Norfolk, Virginia (the "Chapter"), in all respects including, without limitation, the provisions of the Chapter governing the amendment of this Guide. In the case of any conflict between the provisions of this Guide and the provisions of the Chapter, the provisions of the Chapter shall control."

"THIS GUIDE IS ONLY A REFERENCE DOCUMENT AND CREATES NO LEGAL RIGHTS IN FAVOR OF ANY BORROWER, CAPITAL PROVIDER, CONTRACTOR, OR ANY OTHER PERSON, NOR DOES IT IMPOSE ANY LEGAL DUTY OR OBLIGATION ON THE CITY OF NORFOLK, VIRGINIA."

(b) *Severability:* The provisions of this chapter are severable. If a court of competent jurisdiction determines that a word, phrase, clause, sentence, paragraph, subsection, section, or other provision is invalid or that the application of any part of the chapter or provision to any person or circumstance is invalid, the remaining provisions of the chapter shall not be affected by that decision and continue in full force and effect.
(Ord. No. 48,012, § 1, 6-9-20)

Chapter 46

TOURISM ZONES

Article I. In General

§ 46-1. Purpose and intent.
§ 46-2. Administration.
§ 46-3. Burden.
§ 46-4. Boundaries of tourism zones.
§ 46-5. Incentives.
§§ 46-6, 46-7. Reserved.

Article II. 100Main Tourism Zone

§ 46-8. Intent.
§ 46-9. Establishment of the 100Main Tourism Zone.
§§ 46-10, 46-11. Reserved.

Article III. Ocean View Tourism Zone

§ 46-12. Intent.
§ 46-13. Establishment of the Ocean View Tourism Zone.
§§ 46-14, 46-15. Reserved.

Article IV. Downtown Tourism Zone

§ 46-16. Intent.
§ 46-17. Establishment of the Downtown Tourism Zone.
§§ 46-18, 46-19. Reserved.

Article V. Military Highway Tourism Zone

§ 46-20. Intent.
§ 46-21. Establishment of the Military Highway Tourism Zone.
§§ 46-22, 46-23. Reserved.

ARTICLE I. IN GENERAL

Sec. 46-1. Purpose and intent.

In order to foster the development of tourism related businesses, which will increase capital investment and create jobs, the council finds that the establishment of tourism zones pursuant to section 58.1-3851 of the Code of Virginia, 1950, as amended, is necessary.
(Ord. No. 45,559, § 1, 5-20-14)

Sec. 46-2. Administration.

This article shall be administered and enforced by the city manager or his designee. Any application required by this chapter shall be on forms approved by the city manager or his designee.
(Ord. No. 45,559, § 1, 5-20-14)

Sec. 46-3. Burden.

Any business applying for the benefits afforded by this chapter shall have the burden of proving qualification.
(Ord. No. 45,559, § 1, 5-20-14)

Sec. 46-4. Boundaries of tourism zones.

Tourism zones shall be established by the council by ordinance upon findings that the establishment thereof and any incentives provided therein will foster the development of tourism related businesses within the area under consideration. As tourism zones are established by council, the boundaries thereof shall be identified in the ordinance by map, and when deemed necessary by the city manager or city attorney, by metes and bounds description, which shall be incorporated into and made a part of this chapter.
(Ord. No. 45,559, § 1, 5-20-14)

Sec. 46-5. Incentives.

(a) Any ordinance establishing a tourism zone may provide for (i) tax incentives, regulatory flexibility, and other incentives authorized by section 58.1-3851 of the Code of Virginia, 1950, as amended, and (ii) the requirements for qualification for any such incentives or regulatory flexibility by a tourism business. All such incentives and any regulatory flexibility provided for in this chapter shall be subject to the limitations set forth in section 58.1-3851 of the Code of Virginia, 1950, as amended.

(b) The entitlement to any tax incentive authorized by this chapter 46 shall be conditioned upon the applicant paying any tax imposed by the city, including, but not limited to, business license taxes, and business personal property, meals, transient occupancy, room, and admissions taxes by the date upon which the tax is due. In the event a business is thirty (30) or more days delinquent on any local tax, such business forfeits any entitlement to any incentive authorized by this chapter.
(Ord. No. 45,559, § 1, 5-20-14)

Secs. 46-6, 46-7. Reserved.

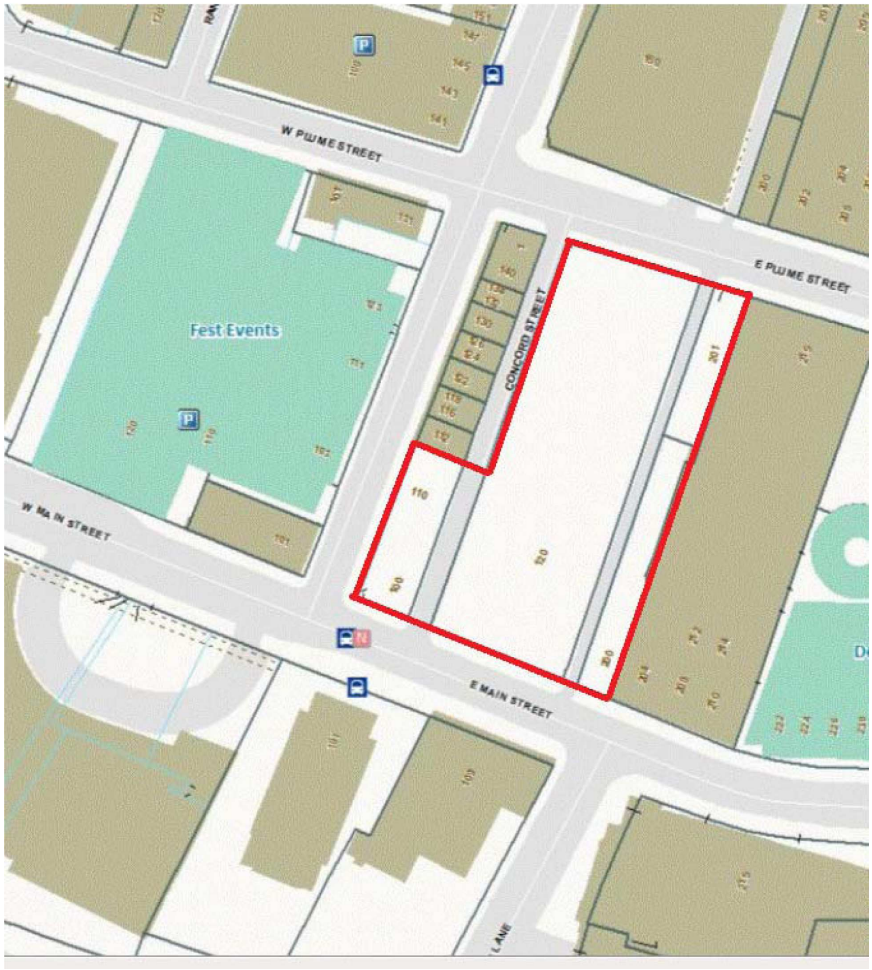
ARTICLE II. 100MAIN TOURISM ZONE

Sec. 46-8. Intent.

It is the intent of the council in establishing the 100Main Tourism Zone (a) to foster the development of tourism related businesses, which will increase capital investment and create jobs, and (b) to expand economic activity that capitalizes on Norfolk's locational advantages and economic assets by promoting downtown as the business, financial, and cultural center of the region and supporting efforts to promote Norfolk as a tourist and convention destination.
(Ord. No. 45,559, § 1, 5-20-14)

Sec. 46-9. Establishment of the 100Main Tourism Zone.

The 100Main Tourism Zone is hereby established. The 100Main Tourism Zone shall consist of the area shown on the map below.



100Main Tourism Zone Boundary

(Ord. No. 45,559, § 1, 5-20-14)

Secs. 46-10, 46-11. Reserved.

ARTICLE III. OCEAN VIEW TOURISM ZONE

Sec. 46-12. Intent.

It is the intent of the council in establishing the Ocean View Tourism Zone (a) to foster the development of tourism related businesses, which will increase capital investment and create jobs, and (b) to expand economic activity that capitalizes on Norfolk's locational advantages and economic assets by promoting Norfolk as the business, financial, and cultural center of the region and supporting efforts to promote Norfolk as a tourist and convention destination.
(Ord. No. 46,848, § 1, 5-23-17, eff. 7-1-17)

Sec. 46-13. Establishment of the Ocean View Tourism Zone.

The Ocean View Tourism Zone is hereby established. The Ocean View Tourism Zone shall consist of the area shown on the map attached to this ordinance. Any lot, piece, or parcel of land not wholly contained within the boundaries of the area shown on the maps attached to this ordinance shall not be part of the Ocean View Tourism Zone.
(Ord. No. 46,848, § 1, 5-23-17, eff. 7-1-17)

Editor's note—The map referenced above is not set out herein, but is on file and available for inspection in the city offices.

Secs. 46-14, 46-15. Reserved.

ARTICLE IV. DOWNTOWN TOURISM ZONE

Sec. 46-16. Intent.

It is the intent of the council in establishing the Downtown Tourism Zone (a) to foster the development of tourism related businesses, which will increase capital investment and create jobs, and (b) to expand economic activity that capitalizes on Norfolk's locational advantages and economic assets by promoting Norfolk as the business, financial, and cultural center of the region and supporting efforts to promote Norfolk as a tourist and convention destination.
(Ord. No. 46,848, § 1, 5-23-17, eff. 7-1-17)

Sec. 46-17. Establishment of the Downtown Tourism Zone.

The Downtown Tourism Zone is hereby established. The Downtown Tourism Zone shall consist of the area shown on the map attached to this ordinance. Any lot, piece, or parcel of land not wholly contained within the boundaries of the area shown on the maps attached to this ordinance shall not be part of the Downtown Tourism Zone.
(Ord. No. 46,848, § 1, 5-23-17, eff. 7-1-17)

Editor's note—The map referenced above is not set out herein, but is on file and available for inspection in the city offices.

Secs. 46-18, 46-19. Reserved.

ARTICLE V. MILITARY HIGHWAY TOURISM ZONE

Sec. 46-20. Intent.

It is the intent of the council in establishing the Military Highway Tourism Zone (a) to foster the development of tourism related businesses, which will increase capital investment and create jobs, and (b) to expand economic activity that capitalizes on Norfolk's locational advantages and economic assets by promoting Norfolk as the business, financial, and cultural center of the region and supporting efforts to promote Norfolk as a tourist and convention destination.
(Ord. No. 46,848, § 1, 5-23-17, eff. 7-1-17)

Sec. 46-21. Establishment of the Military Highway Tourism Zone.

The Military Highway Tourism Zone is hereby established. The Military Highway Tourism Zone shall consist of the area shown on the map attached to this ordinance. Any lot, piece, or parcel of land not wholly contained within the

boundaries of the area shown on the maps attached to this ordinance shall not be part of the Military Highway Tourism Zone.
(Ord. No. 46,848, § 1, 5-23-17, eff. 7-1-17)

Editor's note—The map referenced above is not set out herein, but is on file and available for inspection in the city offices.

Secs. 46-22, 46-23. Reserved.

Chapter 46.1

WATER SUPPLY*

Article I. In General

Sec. 46.1-1. Purpose.
Sec. 46.1-2. Definitions.
Sec. 46.1-3. Violations of chapter.
Sec. 46.1-4. Enforcement.
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Article II. Service Regulations and Policies

Sec. 46.1-6. Required connection with city's water supply system.
Sec. 46.1-7. Connection required for premises required to be connected to city sewer.
Sec. 46.1-8. Application for service generally; water taps for new connections.
Sec. 46.1-9. Service to vacant lots, piers, marinas etc.
Sec. 46.1-10. Service and meters for multi-occupant or multiple unit premises.
Sec. 46.1-11. Service for construction purposes; other meters.
Sec. 46.1-12. Service to public buildings.
Sec. 46.1-13. Service for fire protection.
Sec. 46.1-14. Limitations on use of fire hydrants.
Sec. 46.1-15. Service outside the city.
Sec. 46.1-16. Policy regarding size of mains.
Sec. 46.1-17. Unauthorized taps, connections or extensions.
Sec. 46.1-18. Renewal of taps.
Sec. 46.1-19. Ownership, repair and maintenance of meters.
Sec. 46.1-20. Access to premises supplied with water.
Sec. 46.1-21. Turning off or restoration of water for purposes of repairs; liability of city for restricting water service.
Sec. 46.1-22. City not responsible for damage from defective plumbing or open outlets.
Sec. 46.1-23. Excess water usage.
Sec. 46.1-24. Use of water by other than customer.
Sec. 46.1-25. Protection of city's utilities; tampering with water system equipment.
Sec. 46.1-26. Straight connections in meter boxes; changing service pipe from one tap or meter to another.
Sec. 46.1-27. Authorized work related to service connections; unlawfully turning water on or off.
Sec. 46.1-28. Installation and maintenance of plumbing; inspection; protection of city's water system.

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*__Editor's note—__Ord. No. 41,100, §§ 1, 2, adopted July 15, 2003, amended Ch. 46.1 in its entirety and enacted similar provisions as set out herein. The former Ch. 46.1 derived from Ord. No. 36,987, § 2, adopted Sept. 8, 1992; Ord. No. 37,100, §§ 1—3, adopted Dec. 29, 1992; Ord. No. 37,246, §§ 1, 2, adopted May 18, 1993; Ord. No. 37,422, § 1, adopted Oct. 12, 1993; Ord. No. 37,448, § 1, adopted Oct. 26, 1993; Ord. No. 37,694, § 1, adopted May 9, 1995; Ord. No. 38,048, § 1, adopted June 27, 1995; Ord. No. 38,049, § 1, adopted June 27, 1995; Ord. No. 38,076, § 2, adopted July 25, 1995; Ord. No. 38,402, § 1, adopted May 28, 1996; Ord. No. 38,821, § 1, 7-15-97; Ord. No. 39,193, § 1, 5-26-98; Ord. No. 39,201, § 1, 6-2-98; Ord. No. 39,202, § 1, 6-2-98; Ord. No. 39,450, § 1, adopted Jan. 26, 1999; Ord. No. 39,665, § 1, 6-29-99; Ord. No. 40,377, § 1, 6-19-01; Ord. No. 40,467, §§ 1, 2, 9-11-01; Ord. No. 40,858, § 1, adopted Oct. 8, 2002; and Ord. No. 41,047, §§ 14—16, adopted May 20, 2003.

__Cross references—__Department of utilities, § 2-140; barbering and beauty culture, Ch. 7; building regulations, Ch. 11.1; tax on purchase of water service, § 24-213 et seq.; tampering with utility meters or diverting service, § 29-41; subdivisions, Ch. 42.5; utility connections, §§ 44-36, 44-37; wetlands, Ch. 49.

Article III. Service Charges and Rates

Sec. 46.1-29. Application for service generally.
Sec. 46.1-30. Application for service and water taps for new connections.
Sec. 46.1-31. Fee for establishing account.
Sec. 46.1-32. Rates prescribed.
Sec. 46.1-33. Charges for fire service.
Sec. 46.1-34. Finance charge on past due accounts.
Sec. 46.1-35. Charge for turning water on or off during emergency.
Sec. 46.1-36. Size and type of meters; charges for changing meters; changing from flat-rate to metered service.
Sec. 46.1-37. Bills and due date thereof.
Sec. 46.1-38. Testing meter and adjustment of bill for inaccuracy.
Sec. 46.1-39. Adjustment of inaccurate bills.
Sec. 46.1-40. Adjustment of abnormal bills due to leakage.
Sec. 46.1-41. Charges when meter fails to register.
Sec. 46.1-42. Discontinuing service for failure to pay.
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Sec. 46.1-44. Procedure when property is vacated.
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Article IV. Pollution of Water Supply Generally; Protection of Watershed

Sec. 46.1-46. Protection of watershed.

Article V. Regulations Applicable to City-Owned Lakes and Adjoining Land

Sec. 46.1-47. Compliance with state fishing and boating laws.
Sec. 46.1-48. Permit required for boating on city-owned lakes.
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Sec. 46.1-50. Regulations applicable to city lakes and city-owned land adjoining city lakes.
Sec. 46.1-51. Damage to or removal of trees or shrubs.
Sec. 46.1-52. Permit revocation.

Article VI. Water Conservation

Sec. 46.1-53. Authority to declare a potential shortage of water and to impose water conservation measures.
Sec. 46.1-54. Conditions for the declaration of potential shortage of water.
Sec. 46.1-55. Violation of condition 4 water restrictions.
Sec. 46.1-56. Notice to the public.
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Article VII Structures on Reservoirs

Sec. 46.1-58. Permit required; prior permits validated.
Sec. 46.1-59. Permit exemption.
Sec. 46.1-60. Application for permit.
Sec. 46.1-61. Qualifications for issuance of permit.
Sec. 46.1-62. Insurance; hold-harmless agreement.
Sec. 46.1-63. Permit dependent upon other permits.
Sec. 46.1-64. Revocation of permit.
Sec. 46.1-65. Transferability.
Sec. 46.1-66. Existing structures.
Sec. 46.1-67. Rights of permittee.
Sec. 46.1-68. Prohibitions and restrictions.

ARTICLE I. IN GENERAL

Sec. 46.1-1. Purpose.

This chapter provides for the regulation and protection of the city's water system.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-2. Definitions.

The following words and terms as used in this chapter shall have the following meanings unless the context clearly indicates otherwise:

Commercial water use includes the water used by commercial establishments such as restaurants, office buildings, motels, hotels, etc.

Customer means any person to whom water is supplied directly from the water system of the city, as owner or tenant of the premise[s] to which supplied, and/or who is liable to the city for the payment of the charges for water so supplied.

Director means the director of the Norfolk Department of Utilities or his designee.

Domestic water use includes water used for household purposes such as cooking, drinking, bathing, washing clothes and dishes, flushing toilets and watering lawns and gardens.

Groundwater includes all water obtained from drilled wells and springs.

Person means any individual, firm, owner, sole proprietorship, partnership, corporation, unincorporated association, governmental body, municipal corporation, executor, administrator, trustee, guardian, agent, occupant or other legal entity.

Premise[s] means a building under one roof occupied as one residence or business, a combination of buildings in one common enclosure and occupied by one or more than one family or business or each division of a double or tenement house having a vertical partition or wall, a building of more than one apartment and having one or more entrances, or a building having a number of apartments, condominium units, or offices and having one or more entrances.

Reservoir means any body of water owned by the City of Norfolk and used for drinking as listed: Lake Wright, Lake Whitehurst (Little Creek Reservoir East), Little Creek Reservoir (Little Creek Reservoir West), Lake Smith, Lake Lawson, Lake Taylor, Lake Prince, Lake Burnt Mills, and Western Branch Reservoir.

Surface and ground water conjunctive use system means a public water system wherein surface water is the primary source and ground water is a supplemental source.

Water service means the use, or the right to the use, of city water delivered into a premise[s] or building, lot, or at the curb.

Watershed means that land area that surrounds the Norfolk lakes and reservoirs and that acts as a drainage basin into the lakes and reservoirs.

Water system of the City of Norfolk includes lakes and reservoirs, conjunctive use wells, water treatment facilities, intake, storage, pumping, transmission, distribution and related equipment and appurtenances.

Water tap means the service line that runs from the water main to the city water meter.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-3. Violations of chapter.

Any person who violates any of the provisions of this chapter, notwithstanding any other provision to the contrary, shall be guilty of a class 1 misdemeanor. Each day's continuance of such violation shall constitute a separate offense.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-4. Enforcement.

Any law enforcement officer, duly designated sworn special police officer, the director of public health, or the fire marshal or any of his assistants, is authorized and shall have authority to enforce all provisions of this chapter.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-5. Discontinuing water service, generally.

Nothing contained in this chapter shall be construed as prohibiting the department of utilities from discontinuing water services from any premise[s] upon the failure of the owner or other responsible party, to pay the entire public service bill, provided that the department of utilities follows procedures for such discontinuing of services.
(Ord. No. 41,100, § 2, 7-15-03)

ARTICLE II. SERVICE REGULATIONS AND POLICIES

Sec. 46.1-6. Required connection with city's water supply system.

(a) The owner or tenant of an improved piece of property located within the city and bordering upon a street or alley along which a public water line has been laid shall connect that same property with such public water supply line. It shall be unlawful to use private wells or other alternative facilities where city water lines are available for connection thereto; provided, however, that owners or tenants of residences connected to such lines may use alternative water sources for residential heating and cooling purposes, irrigation and for maintaining residential and related personal property normally kept outdoors and the wells maintained by Titan Virginia Ready-Mix, LLC and Capital Concrete, Inc. which were placed into operation prior to 2003 are hereby deemed grandfathered and not prohibited by this section from using wells for their industrial purposes.

(b) Failure to install or maintain water utilities as shown on an approved site plan where the water utilities have been reviewed and approved by the director of utilities or his designee as part of the site plan review process pursuant to the zoning ordinance shall be a violation of this chapter. Each day of violation shall constitute a separate offense. In addition to any penalty imposed for each violation, a judge hearing the case may direct the person responsible for the violation and each days default in such correction shall constitute a violation of a separate offense under this section.
(Ord. No. 41,100, § 2, 7-15-03; Ord. No. 48,719, § 1, 3-22-22)

Sec. 46.1-7. Connection required for premises required to be connected to city sewer.

The owner of any premise[s] which is required by ordinance to be connected with the city sewer shall see that water from the city's water system is connected on such premise[s], and not cut off therefrom at any time, except for necessary repairs, while such premise[s] is occupied. The owner or occupant shall cause the public service bill for the use of water on the premise[s] to be paid to the department of utilities when due. No person shall occupy any premise[s] required by ordinance to be connected with the city sewer, if the premise[s] is not connected with, or is cut off from, the water system of the city, except when necessary for repairs.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-8. Application for service generally; water taps for new connections.

(a) The director is hereby authorized to furnish water to customers upon request by the owner, agent or tenant of any premise[s] now connected with the city water supply system or hereafter to be connected.

(b) In case of a new building or premise[s] to be supplied with water for the first time, the person requesting the service must designate the point along the property line where the service is to enter the premise[s]. The city, however, reserves the right to regulate the size of the tap and meter and their location.

(c) Prior to the installation of any tap and meter, the cost or the cost as estimated by the department of utilities shall be deposited with the city, and appropriate Hampton Roads Sanitation District (HRSD) fees must also be paid. No tap connection shall be installed until the charges are paid.

(d) Upon the payment of the charge for the tap as prescribed in this chapter and the approval of the request for a new service, the tap will be made by the department of utilities complete to and beyond the curb line, including the meter and meter box.

(e) Except as otherwise provided in this chapter, in the introduction of water from the city water system into any house or lot, there shall be a separate tap or connection with the water main of the city and a separate tap for each premise[s], and no tap shall be used for supplying more than one premise[s].
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-9. Service to vacant lots, piers, marinas etc.

(a) No water tap and meter shall be installed to a vacant lot for any purpose other than irrigation unless authorized by the director.

(b) Premise[s]s on piers and marinas shall be connected to city water.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-10. Service and meters for multi-occupant or multiple unit premises.

All owners of multiple-family houses or business establishments occupied by more than one tenant shall provide a separate water supply with a separate meter, for each such occupant, or in lieu thereof, shall themselves make application for water service for the entire premise[s] and become responsible for all public service bills incurred on such premise[s].
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-11. Service for construction purposes; other meters.

(a) *Construction meters.* Contractors requiring water for construction purposes shall make application for appropriate services in accordance with the provisions of this chapter and shall pay for same at regular meter rates. The contractor shall be responsible for all water used through the meter until such time as the contractor shall notify the department of utilities, in writing, to turn off the water supply.

(b) *Portable meters.* Contractors requiring portable meters shall make application for appropriate services and pay all rates and fees in accordance with the provisions of article III of this chapter. The department of utilities has the authority to determine whether portable or construction meter service is appropriate. The contractor is responsible for paying, prior to installation, a security deposit, and shall pay the costs for installation and removal of the portable meter. The contractor shall be responsible for all water used through the portable meter until such time as the contractor shall notify the department of utilities, in writing, to turn off the water supply.

(c) *Bulk water.* Water in bulk quantities can be obtained at locations designated by the director of utilities at rates as specified in article III.

(d) *Lawn meters.* Application shall be made to the director of utilities to install a lawn meter. Such lawn meter shall be installed near or at the inlet side of the meter regularly installed for measuring water for household purposes, and shall be equipped with an approved backflow preventer installed in accordance with the provisions of chapter 11.1, article VII of this Code, and the requirements of the department of planning and community development. The applicant shall pay the service charge and rates provided by ordinance for metered water. The city reserves the right, at any time, to discontinue the supply of water through such lawn meters.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-12. Service to public buildings.

All public buildings (including school buildings), state, federal and municipal, in the city, as may be designated by the director, shall have attached to the supply pipes connecting such buildings with the water mains of the city such meters, for measuring the water supply furnished such buildings, as may be selected by the director as being suitable. The water supplied to such customers shall be charged to them, to the proper departments or to appropriate persons having control of such consumption, at prevailing rates.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-13. Service for fire protection.

(a) The connection of the sprinkler system to the potable water supply shall be in accordance with the Uniform Statewide Building Code and

this Code. Connection of a sprinkler system to the domestic water supply main where there is a standpipe is prohibited. All sprinkler systems shall have a connection, control valve, and drain and test connection directly connected to the city water main and separate from the domestic valve and water meter. Exception: Fire sprinklers installed in single-family detached dwellings and single-family townhouse dwellings up to a maximum of three (3) stories in accordance with the International Residential Code, chapter 29, and the Uniform Statewide Building Code (USBC).

(b) Where city water is to be used for a sprinkler system for fire protection, or underground piping and fire hydrants on a dedicated fire line, a detector check valve and bypass meter shall be installed by the department of utilities at the curb line, at the expense of the applicant, in addition to the regular charge for connection to the main. The detector check valve shall be the same size as the line serving the facility and where fire hydrants are involved shall be no smaller than six (6) inches. Such installation shall be in accordance with provisions of the Uniform Statewide Building Code (USBC).

(c) Any additional equipment installed by the department of utilities in connection with fire protection service attached to the city's water system, and associated costs of installation, shall be paid for by the owner or applicant at actual cost.

(d) Where residential (except single-family detached dwellings and single-family townhouse dwellings up to a maximum of three (3) stories), institutional or commercial fire service is provided, a separate tap and fire service meter must be installed in addition to the water distribution system of the city. The water service line for all sprinkler systems and fire service lines shall be protected from backflow/backsiphonage in accordance with the provisions of chapter 11.1, article VII of this Code and as provided by the USBC.

(e) Except for detached one- and two-family dwellings and townhouses up to a maximum of three (3) stories, the fire system will be designed by a licensed fire protection system company, with hydraulic calculations and required meter size submitted to the division of building safety and the department of utilities for review and approval.

(f) Fire sprinkler systems for single-family detached dwellings and single-family townhouse dwellings up to a maximum of three (3) stories may be installed in accordance with chapter 29 of the International Residential Code, and the Uniform Statewide Building Code (USBC) and not require separate water tap, fire meter, and city check valve. However, a nontestable double check valve shall be installed.

(g) Domestic service water lines for detached single-family dwellings and townhouse dwellings up to a maximum of three (3) stories and containing fire sprinklers must be installed in accordance with the International Residential Code, chapter 29, and the Uniform Statewide Building Code (USBC), part 1, and shall be provided with an adequately sized water meter based on design by a licensed plumbing contractor or a fire protection company. Hydraulic calculations, if required, shall be submitted to the division of building safety and department of utilities for review and approval. Designs submitted by licensed plumbers using prescriptive design methods according to the International Residential Code are permitted in lieu of hydraulic calculations.

(h) Domestic plumbing systems containing fire sprinklers shall be multi-purpose systems and serviced by a water meter adequately sized to accommodate water demands in accordance with the International Residential Code. However, a nontestable double check valve shall be provided.

(i) The owner/developer is responsible for paying the full actual cost of the fire system service tap and meter to the department of utilities. Prior to installation the owner/developer will deposit with the department of utilities an amount equal to the estimated cost.

(j) In no instance shall any fire sprinkler system or fire service line be installed without the written consent of the department of utilities, and should it be found that any unauthorized connection has been made, or that water has

been used from a sprinkler or fire service for any other purpose than extinguishing a fire, any domestic water service for that customer shall be turned off and not turned on until all water so used has been paid for.
(Ord. No. 41,100, § 2, 7-15-03; Ord. No. 43,836, § 2, 5-18-10)

Sec. 46.1-14. Limitations on use of fire hydrants.

Fire hydrants are provided for the purpose of extinguishing fires, and all persons, except the Norfolk Department of Utilities and the Norfolk Fire Department, or such persons authorized by the director of utilities, shall be prohibited from using fire hydrants. Any such persons so authorized by the director shall use only an approved spanner wrench, and shall replace the caps on the outlets when the same are not in use, and shall be responsible for backflow/backsiphonage protection in accordance with chapter 11.1, article VII of this Code.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-15. Service outside the city.

The director is hereby authorized, at his discretion, and at the request of the director[s] of utilities of adjoining localities, to furnish water from the surplus of the city to persons applying therefor in a territory adjacent to the City of Norfolk. All pipes so laid shall remain the property of the City of Norfolk. The customer shall make application and pay such fees and charges as contained in article III. The customer is responsible for the actual costs of installation and shall pay such costs and fees prior to installation. The director may at any time discontinuance water service.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-16. Policy regarding size of mains.

All water mains installed within the city or in adjoining jurisdictions, as part of the City of Norfolk's water distribution system, shall be approved by the Norfolk Director of Utilities.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-17. Unauthorized taps, connections or extensions.

No person, except the properly authorized agents of the department of utilities, shall tap, or make any connection with or extension of, the city's water system.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-18. Renewal of taps.

In case any water tap is renewed, such renewal shall be done with either copper, or other materials approved by the director, and at no cost to the customer.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-19. Ownership, repair and maintenance of meters.

All water meters installed by the department of utilities shall remain at all times the property of the city and shall be maintained and repaired, when rendered unserviceable through wear and tear, and renewed by the city. When replacement, repairs or adjustments of any meter are rendered necessary by the act, neglect or carelessness of the owner or occupant of any premise[s], any expenses caused to the city thereby shall be paid by and collected from the customer.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-20. Access to premises supplied with water.

The director and his agents shall have free access, at all reasonable hours, to all parts of any premise[s] to which water is supplied to make necessary examinations.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-21. Turning off or restoration of water for purposes of repairs; liability of city for restricting water service.

(a) The city shall not be liable for any damage resulting from the bursting of any water main, service pipe or cock, from the turning off or restoration of water for repairs, extensions or rehabilitation connections, or from the accidental failure of the water supply from any cause whatsoever.

(b) In case of breaks in the mains, services, pumping machinery, reservoirs or other water distribution system equipment making it necessary to shut off the water, or when it is necessary to shut off the water for the purpose of repairing, extending or cleaning the mains, previous notice will, if possible, be given, but in no case will any claim against the city for damage due to water being shut off or turned on be allowed.

(c) In cases of emergency, the city shall have the right to restrict the use of water in any reasonable manner for the protection of the citizenry, water supply and utility systems.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-22. City not responsible for damage from defective plumbing or open outlets.

The city will not be responsible for any damage caused by defective plumbing or open outlets when water is ordered turned off or on by the owner, lessee or agent.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-23. Excess water usage.

(a) No customer shall use city water in a careless and extravagant manner.

(b) If any pipe, hydrant, cock or fixture is found leaking, the customer shall have the necessary repairs made, within five (5) days of receipt of notice from the department of utilities to do so. In cases of severe leaks, the city has the right to discontinue service immediately and shall notify the customer. Water service will not be restored until all repairs have been made.

(c) The refusal or neglect of the owner or occupant to equip and maintain any premise[s] with service pipe connections, utilities or other plumbing fixtures so as to prevent waste of water shall be sufficient grounds for the refusal of the department of utilities to connect the premise[s]s with city water or to continue such connection after having given five (5) days' written notice of its intention to shut off water pending repairs because of water waste.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-24. Use of water by other than customer.

Inter-residential connection of water service is prohibited.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-25. Protection of city's utilities; tampering with water system equipment.

(a) It shall be unlawful for any person in any manner to damage or obstruct any part of the city's water system including any pipes, pumping station, apparatus, tools or fixtures.

(b) It shall be unlawful for any person to place upon or about any meter or meter box connected with the city's water system any vehicle, object, material, debris or structure of any kind which will prevent free access to the same at all times. The costs incurred for the removal of such materials will be at the owner's expense.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-26. Straight connections in meter boxes; changing service pipe from one tap or meter to another.

It shall be unlawful for any person to install a straight connection in meter boxes, where meters have been removed, or to change any service pipe from one tap or meter to another.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-27. Authorized work related to service connections; unlawfully turning water on or off.

(a) No person, except the duly authorized agent of the city, shall uncover any public water lines or operate any public fire hydrant, unless such use is necessary for emergencies. Only a representative of the department of utilities, or a duly authorized agent of the director of utilities shall operate any valves connected with its water system.

(b) No person or his agent, except employees of the department of utilities, shall cut off or turn on the water at any city water meter without previous permission of the director of utilities, nor remove or disconnect any water meter, water connection, or any part thereof, or any other equipment installed by the department of utilities in connection with the water system.

(c) In case of an emergency in connection with repair work on any premise[s], the person doing such repair work shall be permitted temporarily to turn on or off the water service, and upon completion of the work shall leave the water on or off as before.

(d) The customer is responsible for the actual cost of repair and is responsible, in such cases, for providing notice of such turning on or off of the water to the department of utilities as soon as possible.

(e) The customer is responsible for the cost to repair any damage incurred while doing such repair work.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-28. Installation and maintenance of plumbing; inspection; protection of city's water system.

(a) The director of planning and community development or his designated agent shall inspect the plumbing in every building or premise[s] in the city as frequently as may be necessary to ensure that such plumbing has been installed and is maintained in such a manner as to prevent the possibility of pollution or contamination to the public water supply.

(b) The director of planning and community development shall notify the owner of any building or premise[s] of any plumbing found installed or existing contrary to or in violation of the city's building code. The owner of any such building or premise[s] shall correct, within a reasonable time set by the director of planning and community development all such violations.

(c) The director of planning and community development shall notify the department of utilities if such violation of the city's building may create the risk of pollution of the city water supply or otherwise adversely affect the public health.

(d) The department of utilities shall take positive action to insure that the water system is adequately protected at all times. The department of utilities may deny or discontinue the water service to a customer if it is found upon proper inspection that any violation of the city's building codes may endanger the city's water supply system and/or be a public health hazard.

(e) Water service to such premise[s] shall not be restored by the department of utilities until the deficiencies have been corrected or eliminated in accordance with the regulations and policies of the city's building code and to the satisfaction of the department of planning and community development and the department of utilities.
(Ord. No. 41,100, § 2, 7-15-03)

ARTICLE III. SERVICE CHARGES AND RATES

Sec. 46.1-29. Application for service generally.

The director of utilities is hereby authorized to furnish water to customers upon request by the owner, agent or tenant of premises now connected with the city water system or hereafter to be connected.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-30. Application for service and water taps for new connections.

(a) In the case of a new building or premise[s] to be supplied with water for the first time, the person requesting the service must designate the point along the property line where the service is to enter the premise[s]. The city, however, reserves the right to regulate the size of the tap meter and its location.

(b) Upon the payment of the charge for the tap as herein prescribed and the approval of the request for a new service, the tap will be made by the department of utilities complete to and beyond the curb line, including the meter and meter box. The charges for taps and meters shall be as follows:

Effective July 1, 1989

Tap Size	*Charge for Tap and Meter*
¾-inch and meter	$525.00
1-inch and meter	750.00
Over 1-inch and meter	Actual cost
Meter only for ¾-inch tap	125.00
Meter only for 1-inch tap	150.00
Meter only for 1½-inch tap	225.00
Meter only for 2-inch tap	275.00
Meter only for tap over 2 inches	Actual cost

(c) The customer requesting a portable meter shall deposit the sum of fifteen hundred dollars ($1,500.00) with the department of utilities.

(d) Prior to the installation of any tap and meter, the cost or the cost as estimated by the department of utilities, as well as any fees imposed by the Hampton Roads Sanitation District (HRSD), shall be deposited with the city. No tap connection shall be installed until the charges are paid.

(e) Except as otherwise provided in this chapter, in the introduction of water from the city water system into any house or lot, there shall be a separate tap or connection with the water pipe of the city and a separate service pipe for each house or lot, and no service pipe shall be used for supplying more than one house.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-31. Fee for establishing account.

Each person making application for water service from the water system of the city shall pay to the city a fee of twenty dollars ($20.00) for each premise[s] to be served, to cover the cost of establishing an account. This fee shall be in addition to other charges prescribed by this chapter.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-32. Rates prescribed.

(a) Each Norfolk retail water customer shall pay two dollars seventy-six cents ($2.76) per one hundred (100) cubic feet (three dollars sixty-nine cents ($3.69) per one thousand (1,000) gallons) of all treated water used during the period from July 1, 2003, through June 30, 2004; and shall pay three dollars one cent ($3.01) per one hundred

(100) cubic feet (four dollars two cents ($4.02) per thousand (1,000) gallons) of all treated water used during the period from July 1, 2004, through June 30, 2005; and shall pay three dollars twenty-six cents ($3.26) per one hundred (100) cubic feet (four dollars thirty-six cents ($4.36) per thousand (1,000) gallons) for all treated water used during the period from July 1, 2005, through June 30, 2006; and annual increases of three and one-half (3.5) percent over the previous year's rate beginning July 1, 2006, and each July 1 thereafter, until amended.

(b) Reserved.

(c) Wholesale customers which are municipal corporations shall pay two dollars eighty-four cents ($2.84) per one hundred (100) cubic feet (three dollars eighty cents ($3.80) per (1,000) thousand gallons) of all treated water used during the period from July 1, 2003, through June 30, 2004; and shall pay three dollars nine cents ($3.09) per one hundred (100) cubic feet (four dollars thirteen cents ($4.13) per thousand (1,000) gallons) of all treated water used during the period from July 1, 2004, through June 30, 2005; and shall pay three dollars thirty-four cents ($3.34) per one hundred (100) cubic feet (four dollars forty-seven cents ($4.47) per thousand (1,000) gallons) for all treated water used during the period from July 1, 2005, through June 30, 2006; and annual increases of three and one-half (3.5) percent over the previous year's rate beginning July 1, 2006, and each July 1 thereafter, until amended or unless such rate is otherwise established by written contract.

(d) The director of utilities may sell to any customer untreated water at one dollar fifteen cents ($1.15) per thousand (1,000) gallons (eighty-six cents ($0.86) per hundred (100) cubic feet) from and after July 1, 2009. The untreated water rate will adjust annually each July 1 thereafter according to the Consumer Price Index for all Urban Consumers (CPI-U), U.S. City Average annual values for the preceding twelve (12) months, January through December, for the calendar year, all items, not seasonally adjusted (1982—84=100), published by the U.S. Department of Labor, Bureau of Labor Statistics. In no event shall the current untreated water rate decrease if the comparison of the year-to-year CPI shows a decrease from the previous year. The current untreated water rate shall then remain in effect until the next annual CPI index comparison shows an increase.

(e) External customers who, by mutual agreement with the host jurisdiction, are served directly by the Norfolk water system shall pay for treated water at the rate charged to such customers within the city unless otherwise established by council. Each account shall also pay published service charges and utility taxes.

(f) Reserved.

(g) The director of utilities may sell to any wholesale military customer treated water at six dollars eleven cents ($6.11) per thousand (1,000) gallons (four dollars fifty-seven cents ($4.57) per hundred (100) cubic feet) from and after July 1, 2012. The treated water rate will adjust annually each July 1 thereafter to a rate equivalent to three and one-half (3.5) percent over the previous year's rate.

(Ord. No. 41,100, § 2, 7-15-03; Ord. No. 42,277, § 11, 5-16-06; Ord. No. 42,662, § 22, 5-15-07; Ord. No. 43,447, § 1, 5-19-09; Ord. No. 44,727, § 1, 6-26-12, eff. 7-1-12; Ord. No. 45,955, § 30, 5-19-15, eff. 7-1-15)

Sec. 46.1-33. Charges for fire service.

(a) No charge shall be made for water used for fire purposes, but the following charges shall be made:

Effective January 1, 1993

Connection Size (inches)	*Daily Service Charges*
1½	0.059
2	0.094
3	0.185

Connection Size (inches)	*Daily Service Charges*
4	0.41
6	1.21
8	2.63
10	4.56

(b) Fire service fees, as established in subsection (a) for buildings with limited head fire suppression systems installed before October 1, 1992, shall be based on the fire suppression requirements for meter sizing, excluding the domestic fixture requirements, as authorized by the director of utilities.

(c) Exception: Single-family detached dwellings and townhouse dwellings up to a maximum of three (3) stories with fire sprinklers that are supplied by the domestic water meter are exempt from fire service charges.
(Ord. No. 41,100, § 2, 7-15-03; Ord. No. 43,836, § 3, 5-18-10)

Sec. 46.1-34. Finance charge on past due accounts.

For all past due accounts a finance charge of ten (10) percent per year, computed daily, shall be applied to the full outstanding balance of the public service bill, after thirty-five (35) days from the date of issue.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-35. Charge for turning water on or off during emergency.

If employees of the department of utilities are requested to turn off or on water at any city curb cock during an emergency, the customer will not be charged during normal working hours, but will be charged and billed twenty dollars ($20.00) after normal working hours for each such turn off or on of the water. This section shall not apply to the discontinuing service for failure to pay, unauthorized restoration.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-36. Size and type of meters; charges for changing meters; changing from flat-rate to metered service.

(a) All water meters shall be of such size and type as may be determined by the director of utilities.

(b) The following amounts shall be charged and collected in advance by the department of utilities for changing a meter from a larger to a smaller size:

(1) One inch or smaller to a smaller size, twenty dollars ($20.00).

(2) Charges for changing meters in excess of one inch to a smaller size shall be based on actual cost.

(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-37. Bills and due date thereof.

(a) The director of utilities or his designee is authorized to bill all water customers monthly, in accordance with the location in the city for the service rendered, and such bills shall be due and payable within twenty-one (21) days from the date of the bill.

(b) The policies and procedures related to billing, delinquent notices and collection of public service bills heretofore established by the director are ratified, confirmed and continued. The director of utilities shall periodically review, establish and enforce policies and procedures related to billing, delinquent notices and collection of public service bills.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-38. Testing meter and adjustment of bill for inaccuracy.

(a) Any customer shall have the right to request that the meter through which water is being furnished be examined and tested by the department of utilities for the purpose of ascertaining whether or not it is registering correctly the amount of water which is being delivered through it. Customers desiring to have a meter two (2) inches or less in size tested shall deposit the amount of twenty dollars ($20.00) with the department.

(b) The actual cost of testing of meters in excess of two (2) inches shall be the responsibility of the customer. The department of utilities shall estimate the cost and such estimated costs shall be paid by the customer prior to the meter being tested.

(c) If, on such examination and test, the meter is found to register three (3) percent or more water than actually passes through it, the meter shall be corrected, repaired or replaced by the department. The fee charged for the test shall then be refunded and the public service bill shall be adjusted accordingly.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-39. Adjustment of inaccurate bills.

If it is determined by the department of utilities that a customer's public service bill has been incorrectly calculated, the department reserves the right to make adjustments and bill accordingly.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-40. Adjustment of abnormal bills due to leakage.

The director is hereby authorized to adjust and settle such claims against the department of utilities for abnormal public service bills, due to leakage, as will, in the judgment of the director, work an injustice to the customer unless corrected.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-41. Charges when meter fails to register.

(a) Whenever a meter is out of order and fails to register, the customer shall be charged with an average daily consumption of water, as shown by the meter when in good working order and registering correctly.

(b) Where prior consumption data is not available or incomplete, the department of utilities shall estimate consumption based upon the data available and upon data from similar activities of equal intensity.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-42. Discontinuing service for failure to pay.

(a) Should any customer not pay a bill for fees or water service when due, that customer shall be deemed in default, and the department of utilities shall cause the water to be shut off from any or all premise[s]s then being supplied with water for that customer. The water shall not be turned on again at any such premise[s] for that customer until all arrearage and charges for such customer, regardless of where incurred, shall have been paid, including a charge of ten dollars ($10.00) for turning the water off at any premise[s], pursuant to this section. Any customer in default shall settle all past due indebtedness for fees or water service provided for under this chapter, regardless of where incurred, before again being served with city water.

(b) Termination of service will be consistent with the department's policies and procedures and no termination of service shall occur should the customer settle such indebtedness or satisfactorily explain the same to the department of utilities prior to the scheduled termination date.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-43. Unauthorized restoration of discontinued service.

(a) Should the water be cut off from any premise[s] by the department of utilities, and be reconnected without proper authorization, the service shall again be disconnected and shall not be restored until the customer pays all delinquent bills, and in addition thereto, the sum of twenty-five dollars ($25.00) for restoring the service.

(b) If it is determined to be in the city's best interest, and upon approval of the director, the water service to a premise[s] may be mechanically terminated. Restoration will not be made until all delinquent fees, charges, removal costs and new connection fees or other necessary corrections have been made.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-44. Procedure when property is vacated.

(a) The customer or the customer's authorized agent, shall promptly notify the department of utilities to terminate the supply of water to a vacated premises. Upon such notification, the department of utilities shall terminate the supply of water to the premises and record the reading of the meter. A final public-service bill shall be issued to the customer or customer's authorized

agent. If before vacating the premises the customer or customer's agent does not notify the department of utilities to terminate the supply of water, the customer shall pay the public-service bill for the consumption of water on the vacant premises when due. If there is water consumption on the premises after the department of utilities has terminated the supply of water, then the owner shall be responsible for such water consumption and the owner shall cause the public-service bill for the water consumption to be paid to the department of utilities when due.

(b) Utilities fees and charges for services provided to a premises shall constitute a lien against the real estate, ranking on parity with liens for unpaid taxes. Such amounts, plus reasonable attorney's or collection agency's fees, which shall not exceed twenty (20) percent of the delinquent bill, may be recovered by the city by action at law or suit in equity. Any lien for utility fees and charges when properly docketed in the clerk's office may, in addition to or in lieu of termination of services, be enforced in the same manner as real estate taxes due the city. Such lien shall not bind or affect a subsequent bona fide purchaser of such real estate for valuable consideration without actual notice of such lien, until and except from the time that the amount of such fees and charges are entered in a judgment lien book in the circuit court wherein the real estate or a part thereof is located. Such lien on any real estate may be discharged by the payment of the total amount of such lien and the interest, which may accrue to the date of payment.
(Ord. No. 41,100, § 2, 7-15-03; Ord. No. 42,277, § 12, 5-16-06)

Sec. 46.1-45. Charges for restoring service when property has been vacated.

When a premise[s] has been vacated and the meter removed at the owner's request, the following charges shall be made and collected when an application is made to restore service:

(1) For two (2) inches or less connections, twenty dollars ($20.00).

(2) Charges to restore service for connections in excess of two (2) inches shall be based on actual cost.

(Ord. No. 41,100, § 2, 7-15-03)

ARTICLE IV. POLLUTION OF WATER SUPPLY GENERALLY; PROTECTION OF WATERSHED

Sec. 46.1-46. Protection of watershed.

(a) It shall be unlawful for any person to pollute, threaten, jeopardize or render impure, turbid or offensive, the water supply of the City of Norfolk.

(b) No person shall put any filth, animal or vegetable matter, chips, compost, construction debris, shavings or any other substance or pollutant, whether solid or liquid, and whether buried or not, within the City of Norfolk's watershed property or place or dispose of any such substance in an area which drains into the watershed property or the lakes and reservoirs of the City of Norfolk.

(c) It shall be unlawful for any person to construct any sewer, privy vault, cesspool, septic tank or facility for the containment or treatment of domestic and household waste on any part of the watersheds surrounding the water supply of the city, without first securing a permit from the director of utilities and the director of health.

(d) The director of utilities shall have the right to develop and enforce policies and procedures for the protection of the city's water system lakes and reservoirs, including the Norfolk watershed property.

(Ord. No. 41,100, § 2, 7-15-03)

ARTICLE V. REGULATIONS APPLICABLE TO CITY-OWNED LAKES AND ADJOINING LAND

Sec. 46.1-47. Compliance with state fishing and boating laws.

Any person fishing in any of the reservoirs owned by the city shall comply with the regulations set by the Virginia Department of Game and Inland Fisheries as well as the following City of Norfolk regulations.

(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-48. Permit required for boating on city-owned lakes.

(a) No person shall be extended the privilege of boating, including canoeing on any of the city-owned reservoirs, unless a boating permit is obtained for the boat or canoe and the following fees are paid therefor:

(1) Annual permits for privately owned boats beginning January 1, shall be issued for the period January 1 to December 31 of each year at the following charges:

Nonresidents	$40.00
Norfolk residents	20.00
Sixty-two (62) years of age or over	10.00
City of Norfolk employees . .	10.00

(2) Daily permits shall be issued for a twenty-four-hour period at a cost of five dollars ($5.00).

(b) The permit is nontransferable.

(c) The director has the right to issue boat permits for law enforcement, special events, contractors and other situations as deemed appropriate.

(d) The city treasurer may establish substations in convenient locations and appoint agents for the issuance of boat permits and may require surety bonds from said agents for the faithful performance of their duties. Appointed agents shall be entitled to a one-dollar handling fee per permit to be deducted from the cost of the fee imposed by this section in accordance with procedures established by the city treasurer.

(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-49. Boat identification tag.

(a) A boat identification tag will be issued with each permit at no extra cost. The identification tag shall be securely attached to the left bow of the boat in plain view and easily recognizable.

The number on the identification tag shall be stamped on the boat permit. Should an identification tag become mutilated so that its numbers cannot be read easily, it is to be removed and a new identification tag will be issued for a fee of one dollar ($1.00). The boat owner will report a lost or stolen tag to the location where purchased.

(b) Proof of legal ownership must be presented before an impounded boat will be released to any person claiming ownership.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-50. Regulations applicable to city lakes and city-owned land adjoining city lakes.

Every permit issued pursuant to section 46.1-48, shall be subject to the following regulations which are hereby established for the use of all city reservoirs and city owned land adjoining such reservoirs:

(1) All city reservoirs and adjacent city-owned property shall be open during hours designated by the director and posted at major entry points. No person shall go on any city reservoir or adjacent watershed property outside of posted hours unless he is a warden, law enforcement officer, member of a reserve unit or other authorized personnel.

(2) No person shall use water skis, jet skis, surfboards, open bottom paddle boats, houseboats, tubes, rafts, inflatable boats or similar devices on any city reservoirs except as allowed by the director for non-recreational use.

(3) Sailing is not permitted on any portion of the city reservoirs.

(4) No person shall permit stagnant water to accumulate in such person's private boat on any city reservoirs.

(5) No person shall carry or set off any firecrackers or other fireworks from any boat on any city reservoirs or from any city-owned land adjoining any city reservoirs.

(6) No person shall swim in any city reservoirs without the permission of the director of utilities.

(7) No person shall fish from any city-owned land adjoining any city reservoirs, except on property designated therefor at the fishing stations unless otherwise authorized in writing by the director.

(8) All boating and fishing shall be in compliance with the regulations set by local, state, and federal agencies having jurisdiction.

(9) No person shall take any fish from any city reservoir except with rod, line and hooks baited with natural or artificial bait unless authorized by the director.

(10) No person under the age of twelve (12) years shall operate any boat unless accompanied by an adult on any city reservoir.

(11) No person shall use any boat having an operational outboard motor exceeding twelve (12) horsepower on any city reservoir. The director may grant exceptions for city departments, agencies and contractors.

(12) Boats shall be launched only from designated launching areas on city reservoirs and at any other launching areas designated by the director of utilities.

(13) All permits issued pursuant to this section must be produced for inspection when requested by any patrol officers or person of properly constituted authority.

(14) Except as otherwise provided by law no person shall bring, possess, or drink any alcoholic beverage on the city reservoirs or on any city-owned land adjoining any city reservoir.

(15) No person shall cause the disturbance of others through the use any sound amplification equipment or radio on the city reservoirs on any city-owned land adjoining any city reservoir.

(Ord. No. 41,100, § 2, 7-15-03; Ord. No. 42,851, § 2, 9-18-07)

Sec. 46.1-51. Damage to or removal of trees or shrubs.

(a) It shall be unlawful for any person except an authorized employee or agent of the department of utilities to perform any of the following acts without first obtaining a permit from the director:

(1) Plant, prune, trim or remove any tree or portion thereof or damage, cut, tap, caulk, paint, attach any rope, wire, nail, sign or any manmade object to any tree or shrub, or dig a tunnel trench or otherwise excavate or place any dirt, rubble or debris within the drip line of any tree or shrub.

(2) Place any material of any sort, including, but not limited to, dirt, soil, rubble, concrete, bricks, wood, dredge spoil, asphalt, creosote timbers, logs, garbage, tires, organic wastes and other materials including herbicides and growth regulators that either prevent or hinders the establishment of vegetation or is detrimental to the environment beneath the drip line of any tree or shrub except as authorized by permit.

(c) When a tree is removed, destroyed or damaged beyond recovery in violation of this section, the director may require that they be replaced on the basis of one tree with a minimum two and one-half (2.5) inches in caliper for every two and one-half (2.5) inches diameter of tree removed, destroyed or damaged. Failure to replace or replant as directed shall constitute a violation of this chapter.

(c) Nothing in this section shall be construed to exempt any person from the requirements of obtaining any additional permits as required by law.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-52. Permit revocation.

In the event of the violation of any of the foregoing regulations by any person holding a permit issued pursuant to this chapter, the director shall have the right, in addition to any other remedies herein provided or otherwise allowed by law, to revoke such permit and to deny such person access to the city reservoir and city-owned land adjoining any city reservoir for a period deemed appropriate.
(Ord. No. 41,100, § 2, 7-15-03)

ARTICLE VI. WATER CONSERVATION

Sec. 46.1-53. Authority to declare a potential shortage of water and to impose water conservation measures.

The city manager is authorized to take special measures of prudent management to prevent a critical water shortage when a declaration of a potential shortage of water and/or emergency water condition existing in the City of Norfolk's water system has been made.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-54. Conditions for the declaration of potential shortage of water.

Upon a determination by the city manager of the existence of the following conditions, the city manager shall take the following actions:

(1) *Condition 1.* When moderate but limited supplies of water are available, the city manager shall, through appropriate means, call upon the general population to employ prudent restraint in water usage, and to conserve water voluntarily by whatever methods are available.

(2) *Condition 2.* When very limited supplies of water are available, the city manager shall order curtailment of less essential usages of water, including, but not limited to, one or more of the following:

a. The watering of shrubbery, trees, lawns, grass, plants, or any other vegetation, except indoor plantings, greenhouse or nursery stocks and except watering by commercial nurseries of freshly planted plants upon planting and once a week for five (5) weeks following planting.

b. The washing of automobiles, trucks, trailers, boats, airplanes, or any other types of mobile equipment, except-

ing in facilities operating with a water recycling system approved by the director of utilities, or except from a bucket or other container not exceeding three (3) gallons in capacity; provided, however, that any facility operating with an approved water recycling system shall prominently display in public view a notice stating that such recycling system is in operation. In lieu of the provisions hereof the city manager may curtail the hours of operation of commercial enterprises offering such services or washing their own equipment.

c. The washing of streets, driveways, parking lots, service station aprons, office buildings, exteriors of home or apartments, or other outdoor surfaces, except by commercial washing/cleaning services or except from a bucket or other container not exceeding three (3) gallons of capacity.

d. The operation of any ornamental fountain or other structure making similar use of water.

e. The filling of swimming and/or wading pools, or the refilling of swimming and/or wading pools which were drained after the effective date of the order.

f. The use of water from fire hydrants for any purpose other than fire suppression or other emergency except as authorized by the director of utilities.

g. The serving of drinking water in restaurants, cafeterias or any food establishment unless requested by the individual.

h. The director of utilities may authorize exceptions to the restrictions imposed by conditions 1 and 2.

(3) *Condition 3.* When supplies of water are critically limited, the city manager shall institute mandatory reductions on each customer which include those restrictions applicable to condition 2 as well as reductions of water to each customer as follows:

a. At the city manager's discretion, allocations of water to customers shall be based on either a twenty-five (25) percent reduction based on the average of the last twelve (12) months' billing and/or water consumption data available from similar activities of equal intensity.

b. The amount of water allocated for consumption shall not be less than fifty (50) gallons per person per day per household.

c. If the monthly or bimonthly usage of water as established above is exceeded the customer shall be charged in addition to the regular rate the following charges for excess water use:

1. Any water use over the allocation will be billed at three hundred (300) percent of the current effective water rate as specified b[y] article III, section 46.1-32.

d. The above additional charges for excess water usage shall be applicable to bills for service periods beginning on and after the declaration that a potential shortage of water exists.

(4) *Condition 4.* When supplies of water are drastically limited, the city manager may implement such additional restrictions as are determined necessary.

(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-55. Violation of condition 4 water restrictions.

Upon implementation of condition 4, the city manager may impose appropriate fines and penalties for excess water usage.

(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-56. Notice to the public.

The determination of conditions 2, 3, and 4 by the city manager shall be accompanied by a

written report which shall set out the criteria utilized and data relied upon in making such determination including a narrative summary supporting the determination. Each report shall be promptly filed with the city clerk who shall make the same available for public inspection. The city clerk shall transmit a copy of each report to the city council.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-57. Appeals.

An appeals review board shall be established upon declaration of condition 3. It shall be composed of three (3) members appointed by the city council. One of the three (3) members shall be a representative of the department of utilities. The appeals review board shall hear appeals from the determinations as to allocations of water and additional charges of excess usage and shall have the power by the vote of two (2) members to approve, modify or revoke such determinations. The action of the appeals review board shall be final.
(Ord. No. 41,100, § 2, 7-15-03)

ARTICLE VII STRUCTURES ON RESERVOIRS

Sec. 46.1-58. Permit required; prior permits validated.

(a) The director is hereby authorized to issue permits authorizing the construction, maintenance and use of bulkheads and/or piers, fences, landings or similar structures made out into the waters of water supply reservoirs and adjacent property owned by the city from property adjacent to said waters owned by the city.

(b) Persons who would otherwise be subject to this section holding permits issued by the director of community improvement prior to the adoption of this section, pursuant to article IV of chapter 54 of the Code of the City of Norfolk, 1958, as amended shall not be required to apply for permits pursuant to this section if such permits issued by the director of community improvement or any renewals thereof are in effect as of the effective date of this section.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-59. Permit exemption.

Permit requirements shall not apply to the city or any of its departments, and the city specifically reserves the right to use and improve its reservoir property as it deems proper.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-60. Application for permit.

(a) Application for a permit shall be made in writing and shall set forth the proposed location of such structure and the purposes for which it is to be used, and shall be accompanied with plans and specifications for the construction thereof.

(b) No permit shall be issued unless the prescribed application with plans and specifications are approved by the director.

(c) The director shall approve, and provide public access to, standards for the type and characteristics of the materials from which such structures may be constructed, for the dimensions or ranges of dimensions thereof, for the placement of such structures with regard to the water line and any other relevant topographical features, and for any other aspects of such structures for which he deems standards necessary to preserve and protect the waters of the reservoir and/or the purity thereof. Such standards shall be mandatory upon all persons applying for permits, and shall have been set forth in documentary form on or before the effective date of this section. Documents for the construction of piers, bulkheads and similar structures shall be made available and shall set forth the standards for construction on the reservoirs.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-61. Qualifications for issuance of permit.

Only those persons owning real property in fee simple adjacent to real property owned by the city upon which such structure is proposed to be located may be issued permits pursuant to this article. Any person making application for a permit shall state in writing as part of said application, that he meets all the requirements of this article.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-62. Insurance; hold-harmless agreement.

(a) Issuance of a permit pursuant to this article shall be conditioned upon the person applying for and holding said permit obtaining, paying for and keeping in effect public liability insurance with the city as named insured, in the minimum amounts of four hundred thousand dollars ($400,000.00) per person injured and property damage per incident combined.

(b) Any person applying for or holding a permit pursuant to this article shall agree in writing to hold and save the city harmless from any and all liability of whatsoever nature, and to indemnify the city against any loss whatsoever, incurred by reason of the existence or maintenance of the permitted structure.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-63. Permit dependent upon other permits.

The granting of any permit pursuant to this article shall be conditioned upon the applicant's obtaining all other applicable permits, licenses or permissions required by any local, state or federal government agency having jurisdiction. Failure to obtain all required permits, licenses or permissions shall constitute grounds for denial of a permit or revocation of the permit issued pursuant to this article.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-64. Revocation of permit.

Any permit issued pursuant to this section [article] may be revoked by the director at any time upon reasonable evidence satisfactory to him that any of the conditions of this article or of the standards have not been complied with or have been violated.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-65. Transferability.

No permit issued under the provisions of this article shall be transferable. However, subsequent purchasers of property having such permit shall be allowed to apply for a new permit if they do so within thirty (30) calendar days after purchase.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-66. Existing structures.

The owner of any existing bulkhead and/or pier, landing or similar structure for boats made out into the waters of city-owned water supply reservoirs from property adjacent to said water owned by the city, shall make application to the director for a permit as provided in this article. Upon such application, such structure shall be inspected by the director as to its suitability and compliance with the provisions of this article and the standards established pursuant to this article. If such structure is found to be suitable and in proper repair, a permit shall be issued therefor as provided in this article. If such structure is not found to be suitable and in proper repair, the owner thereof shall be notified in writing by certified mail, return receipt requested, as to what is to be done to make such structure comply with said standards and requirements of this article. If the matters required to be done, as set forth in said written notification, have not been accomplished and completed within sixty (60) days after the date such notification is mailed to said owner at the address given on said application, the director shall cause such structure to be removed at the cost and expense of the said owner. Ten (10) days prior to the removal of such structure as aforesaid, the director shall post a notice upon such structure that it will be removed and demolished at the expense of the owner upon the date to be stated in the notice. If for any reason the notice cannot be posted upon such structure, the director shall cause such notice to be mailed to the owner at his last known address by certified mail, return receipt requested.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-67. Rights of permittee.

In granting a permit pursuant to this article, the city grants the same only insofar as it is authorized by law to do so; and it does not in any way guarantee to any permittee or any other person any rights or privileges with regard to

constructing, maintaining or using any such bulkhead and/or pier, landing or other similar structure.
(Ord. No. 41,100, § 2, 7-15-03)

Sec. 46.1-68. Prohibitions and restrictions.

(a) No such structure shall be used or permitted to be used for any commercial purpose, nor for building, constructing or repairing any boat. No charge shall be made for the use of any such structure.

(b) No vessel fitted for use as a dwelling or residence or occupied as such shall be permitted at any pier, bulkhead or similar structure allowed pursuant to this article.

(c) The person making application for a permit pursuant to this article shall at all times keep the permitted structure clean and in good repair. No changes or additions to such structure shall be allowed subsequent to issuance of the permit therefore.

(d) The person holding a pier permit pursuant to this section may keep and tie up a boat at the permitted structure, and may place such boat upon the structure from the water; such permit holder may not place such upon land owned by the city or transport such boat across such land, or cause or allow such placement or transportation. Any such boat shall be subject to the rules and regulations of the city pertaining to boats upon waters owned by the city, as the same now exist or as they may be amended in the future; except that such boat may be kept, tied up and placed as provided in this section.

(e) The person holding a pier permit pursuant to this article shall be permitted to fish from the pier provided all applicable regulations related to fishing are adhered to. For purposes of this section, person shall mean all occupants of the property and immediate family members.
(Ord. No. 41,100, § 2, 7-15-03)

Chapter 47

WEAPONS*

Article I. In General

§ 47-1. Reserved.
§ 47-2. Carrying or using slings.
§ 47-2.1. Shooting blowguns.
§ 47-3. Reserved.
§ 47-4. Reserved.
§ 47-5. Reserved.
§ 47-6. Reserved.
§ 47-7. Reserved.
§§ 47-8—47-21. Reserved.

Article II. Bows and Arrows

§ 47-22. Permit for archery ranges.
§ 47-23. Shooting or discharging generally.
§ 47-24. Shooting or discharging by minors.
§ 47-25. Exemptions from article.
§ 47-26. Violations of article.

*__Cross references—__Possession of firearms at airport, § 4-14; license tax for shooting galleries and archery ranges, § 24-135; use or possession of firearms or other weapons in parks, § 30-71; possession or discharge of firearms on city-owned lake or city-owned land adjoining such lake, § 30-119(a)(5); disposition of guns remaining unclaimed in custody of department of police, § 33-69.

ARTICLE I. IN GENERAL

Sec. 47-1. Reserved.

Editor's note—Ord. No. 42,851, § 1, adopted Sept. 18, 2007, repealed § 47-1, which pertained to personal protection; carrying concealed weapons; when lawful to carry and derived from Code 1958, § 51-1; Ord. No. 29,752, § 1, adopted Dec. 12, 1978; Ord. No. 33,049, § 1, adopted Aug. 21, 1984; Ord. No. 34,107, § 1, adopted July 29, 1986; Ord. No. 34,602, § 1, adopted July 14, 1987; Ord. No. 35,136, § 1, adopted June 28, 1988; Ord. No. 36,118, § 1, adopted July 17, 1990; Ord. No. 36,960, § 1, adopted Aug. 18, 1992; Ord. No. 37,865, § 1, adopted Jan. 17, 1995; Ord. No. 38,031, § 1, adopted June 7, 1995; Ord. No. 38,107, § 1, adopted Aug. 22, 1995; Ord. No. 38,303, § 1, adopted March 12, 1996; Ord. No. 38,847, § 1, adopted July 15, 1997; and Ord. No. 39,986, § 1, June 20, 2000.

Sec. 47-2. Carrying or using slings.

No person shall carry or use, within the limits of the city, any sling made for throwing shot, stones or other missiles. Every person violating the provisions of this section shall be guilty of a Class 4 misdemeanor.
(Code 1958, § 51-4)

Sec. 47-2.1. Shooting blowguns.

(a) No person shall shoot a blowgun at another person within the limits of the city.

(b) For the purposes of this section, the term "blowgun" is defined as a cylindrical tube designed or used to expel a projectile from one end when air is forced through it at the other end.

(c) A violation of this section shall be a Class 4 misdemeanor.
(Ord. No. 41,608, § 1, 10-19-04)

Sec. 47-3. Reserved.

Editor's note—Ord. No. 41,296, § 1, adopted Jan. 27, 2004, repealed § 47-3, which pertained to permit to carry handgun and derived from Code 1958, § 51-7; Ord. No. 30,677, §§ 1, 2, adopted June 24, 1980; Ord. No. 31,997, § 3, adopted Oct. 19, 1982; Ord. No. 37,241, § 1, adopted May 18, 1993; Ord. No. 37,727, § 1, adopted July 26, 1994; Ord. No. 37,864, § 1, adopted Jan. 17, 1995; Ord. No. 37,902, § 1, adopted Feb. 21, 1995; Ord. No. 38,031, § 1, adopted June 27, 1995; and Ord. No. 38-107, § 1, adopted Aug. 22, 1995.

Sec. 47-4. Reserved.

Editor's note—Ord. No. 42,851, § 1, adopted Sept. 18, 2007, repealed § 47-4, which pertained to sale or delivery of weapons to minors and derived from Code 1958, § 51-5.

Sec. 47-5. Reserved.

Editor's note—Ord. No. 42,851, § 1, adopted Sept. 18, 2007, repealed § 47-5, which pertained to posting of provisions of section 47-4 and derived from Code 1958, § 51-6.

Sec. 47-6. Reserved.

Editor's note—Ord. No. 42,851, § 1, adopted Sept. 18, 2007, repealed § 47-6, which pertained to possession of firearm, stun weapon or other weapon on school property prohibited and derived from Ord. No. 35,138, § 1, adopted June 28, 1988; Ord. No. 36,119, § 1, adopted July 17, 1990; Ord. No. 36,509, § 1, adopted July 16, 1991; and Ord. No. 40,100, § 1, adopted Aug. 29, 2000.

Sec. 47-7. Reserved.

Editor's note—Ord. No. 42,851, § 1, adopted Sept. 18, 2007, repealed § 47-7, which pertained to carrying weapon into courthouse and derived from Ord. No. 35,140, § 1, adopted June 28, 1988.

Secs. 47-8—47-21. Reserved.

ARTICLE II. BOWS AND ARROWS

Sec. 47-22. Permit for archery ranges.

No person shall set up or operate an archery range in the city, without first obtaining a permit from the chief of police. The chief of police shall issue a permit for the construction and operation of an archery range after the location and construction of the same have been proven to his satisfaction to be consistent with the public safety.
(Code 1958, § 51-3)

Cross reference—License tax for archery ranges, § 24-135.

Sec. 47-23. Shooting or discharging generally.

No person shall shoot or discharge an arrow from a bow within the city, except upon an archery range for which a permit has been issued under section 47-22.
(Code 1958, § 51-3)

Sec. 47-24. Shooting or discharging by minors.

No minor shall shoot or discharge an arrow from a bow, except upon an archery range for

which a permit has been issued under section 47-22 and then only when under the immediate supervision of an adult.
(Code 1958, § 51-3)

Sec. 47-25. Exemptions from article.

Nothing in this article shall apply to the discharge of an arrow equipped with a blunt rubber tip or rubber suction cup from a bow with a "pull" or "draw weight" of less than ten (10) pounds.
(Code 1958, § 51-3)

Sec. 47-26. Violations of article.

Any person violating any provision of this article shall be guilty of a Class 3 misdemeanor.
(Code 1958, § 51-3)

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Chapter 48

WEIGHTS AND MEASURES*

Article I. In General

§ 48-1. Supervision and general powers and duties of sealer; assistant sealer.
§ 48-2. Compensation of sealer.
§ 48-3. Sealer's records.
§ 48-4. Confidentiality of information furnished sealer.
§ 48-5. Neglect of duty by sealer.
§ 48-6. Proper weights and measures required; weight or quantity of commodity sold.
§ 48-7. Use of liquid measure in place of dry measure.
§ 48-8. Standards for weights and measures.
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§ 48-10. Sealing or marking approved weights and measures.
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§ 48-13. Certificate from sealer required of persons peddling articles sold by weight or measure.
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§ 48-15. Violations of article generally.
§ 48-16. Criminal process for violations involving weights and measures.
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Article II. Coal and Coke

§ 48-33. Exemptions from article.
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§ 48-70. Water or sludge in storage tanks.
§ 48-71. Pumps—Construction and location.
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*__Charter reference—__Authority of city relative to weights and measures, § 2(17).
__State law reference—__Weights and measures, Code of Virginia, § 3.1-919 et seq.

ARTICLE I. IN GENERAL

Sec. 48-1. Supervision and general powers and duties of sealer; assistant sealer.

(a) The sealer of weights and measures shall be subject to the supervision and control of the director of city planning and codes administration, or by his designee. The sealer's duties shall be such as may be prescribed by the laws of the state, by ordinance or by order of such director.

(b) It shall be the duty of the sealer of weights and measures to see that the laws of the state, on the subject of weights and measures, as well as such ordinances as may, from time to time, be adopted by the council on such subject, are rigidly enforced in the city. He shall devote his entire time and attention, and give all his services, to the exclusion of any other occupation or business, to the duties of his office.

(c) The sealer of weights and measures shall have all the powers of a policeman, which powers shall not be confined to matters pertaining to his office.

(d) There shall be an assistant sealer of weights and measures, who shall, under the supervision of the sealer of weights and measures, perform such duties as may be imposed upon the sealer of weights and measures by the laws of the state, the ordinances of the city, or by order of the director of city planning and codes administration, and all acts of such assistant shall be as valid as if performed by the sealer of weights and measures in person. (Code 1958, §§ 52-1, 52-3, 52-4; Ord. No. 35,628, § 10, 7-5-89)

State law reference—Local sealers of weights and measures, Code of Virginia, § 3.1-937 et seq.

Sec. 48-2. Compensation of sealer.

The salary of the sealer of weights and measures shall be in lieu of all fees allowed him or authorized to be collected by him under the ordinances of the city or the laws of the state. He shall be paid such salary as the council shall, from time to time, appropriate for that purpose, such salary to be paid as the salaries of other city officials are paid. (Code 1958, § 52-2)

State law reference—Compensation of local sealer, Code of Virginia, § 3.1-937.

Sec. 48-3. Sealer's records.

The sealer of weights and measures shall keep in his office, at all times open to public inspection, a record showing all balances, weights and measures inspected or tested by him, including the names of the owners or custodians and the locations thereof, dates of inspections and tests, the results thereof, and the action taken by him (with the full result and consequences) in all cases where any violations of law or ordinance are alleged. Such record shall be kept indexed or arranged in alphabetical order, under the names of the owners or custodians of each balance, weight or measure, so that reference may be easily and conveniently had thereto, and shall show the date of every inspection made. (Code 1958, § 52-8)

Sec. 48-4. Confidentiality of information furnished sealer.

No information furnished to the sealer of weights and measures in the performance of his duties or in connection with the discharge of his duties, by way of complaint or otherwise, shall be divulged or disclosed by such sealer, unless he is required by law so to do. (Code 1958, § 52-3)

Sec. 48-5. Neglect of duty by sealer.

If the sealer of weights and measures shall neglect to perform any duty imposed upon him by this chapter, he shall be guilty of a Class 2 misdemeanor. (Code 1958, § 52-9)

Sec. 48-6. Proper weights and measures required; weight or quantity of commodity sold.

No person shall sell or exchange, or offer or expose for sale or exchange, in the city, any commodity as of a specified weight or quantity without having proper weights and

measures for the purpose of weighing or measuring the same, nor unless the actual weight or quantity so sold, exchanged, offered or exposed shall be as great as the represented, pretended, indicated or claimed. (Code 1958, § 52-10)

Sec. 48-7. Use of liquid measure in place of dry measure.

(a) It shall be unlawful for any person to use liquid measure in the sale of peanuts, chestnuts, beans, peas, cranberries or any other commodities where dry measure is required by law to be used.

(b) It shall be unlawful for any person to use a liquid measure as a scoop for commodities required by law to be sold by dry measure, or to use a liquid measure for any purpose where dry measure should be law be used in the sale of such commodity.

(c) Any liquid measure found in the possession of any person in any bin, barrel, box or receptacle containing commodities which are required by law to be sold by dry measure or weight, or found in such a position as to create the impression that the liquid measure is being used in the sale of commodities that should by law be measured only by dry measure or weight shall be prima facie evidence of the violation of the provisions of this section.

(d) Any person violating any provision of this section shall be guilty of a Class 4 misdemeanor. (Code 1958, § 52-16)

Sec. 48-8. Standards for weights and measures.

(a) No person shall use or have in his possession in the city any balance, weight or measure which does not conform to the legal standard, or any measure the actual capacity of which is less than its represented or purported capacity, or any computing scale or other weighing device, intended or purporting to indicate both weight and money value, unless all points, marks, graduations and indicators thereon intended or purporting to indicate weight are so made, arranged and contrived as to indicate the same accurately, nor unless all points, marks, graduations and indicators thereon intended or purporting to indicate money value are so arranged and contrived as to indicate such value accurately at each of the several unit prices shown on the device. The face or dial of such device shall be plainly visible to the customer.

(b) No person shall manufacture, sell, exchange or give away in the city any weight, measure or weighing device that does not conform to the legal standards. (Code 1958, §§ 52-11, 52-14)

Sec. 48-9. Inspecting and testing weights and measures generally.

(a) The sealer of weights and measures shall continuously and systematically cover the entire city and visit all persons using any balances, weights or measures for purposes of trade or sale, examining and testing all such balances, weights and measures, at least once in every six (6) months, and more frequently, if possible.

(b) The sealer of weights and measures may enter and inspect any and all premises

of any kind in which he may believe or have information that there are any balances, weights or measures or other articles which are or may be subject to any of the duties of his office. The sealer shall, within twenty-four (24) hours, whenever requested by any person, inspect and test any and all balances, weights or measures produced before him for the purpose. He shall, within twenty-four (24) hours after receiving from any person information of any balances, weights or measures alleged to be inaccurate, and as often thereafter as he may deem necessary, visit the person alleged to be in possession thereof and examine the same.

(c) No person shall refuse to exhibit to the sealer of weights and measures or refuse to permit the inspection and testing of any or all balances, weights and measures used or kept by him in the city, or hinder or obstruct such officer in inspecting, testing or sealing the same. The owner, proprietor or custodian of any balance, weight, measure or weighing device in the city shall permit the sealer of weights and measures to inspect and test the same whenever such officer may desire to do so. (Code 1958, §§ 52-3, 52-13)

Sec. 48-10. Sealing or marking approved weights and measures.

Whenever the sealer of weights and measures shall find that any balance, weight or measure conforms to the legal standard therefor, he shall seal or mark the same with an appropriate device. (Code 1958, § 52-6)

Sec. 48-11. Altering weights and measures after sealing.

No person shall alter, or permit to be altered, any balance, weight or measure used or kept in the city after the same shall have been sealed by the sealer of weights and measures, or deface, alter or remove, or permit to be defaced, altered or removed, any letter or figure stamped or marked on any such balance, weight or measure by such officer for the purpose of sealing the same. (Code 1958, § 52-12)

Sec. 48-12. Destruction or correction of inaccurate weights and measures.

Whenever the sealer of weights and measures shall find that any balance, weight or measure does not conform to the legal standard, he shall deface and destroy the same; provided, that when such inaccuracy plainly appears to be due to no fault or neglect of the owner, if such balance, weight or measure can be made to agree with the legal standard, the sealer, in his discretion, may regulate and correct the same. (Code 1958, § 52-7)

Sec. 48-13. Certificate from sealer required of persons peddling articles sold by weight or measure.

(a) Any person vending or peddling, on the streets or other public places in the city, any article or commodity sold by weight or measure shall, before applying for a license therefor, obtain from the sealer of weights and measures a certificate to the effect that he is provided with proper and correct weights and measures. The commissioner of the revenue shall require such certificate to be produced by such person in every case before issuing such license.

(b) Any person violating any provision of this section shall be guilty of a Class 4 misdemeanor. (Code 1958, § 52-15)

Sec. 48-14. Investigation of complaints relative to gas and electric meters.

Whenever the director of community improvement shall receive a complaint from a citizen with respect to the accuracy or inaccuracy of a gas or electric meter, he shall investigate the same forthwith and take such action as may be necessary and within his

power to resolve the same. (Code 1958, § 18.1-13)

Sec. 48-15. Violations of article generally.

Except as otherwise specifically provided, a violation of any provision of this article shall constitute a Class 2 misdemeanor.

Sec. 48-16. Criminal process for violations involving weights and measures.

The sealer of weights and measures shall promptly procure proper criminal process against any and all persons whom he may believe to be guilty of a violation of any law or ordinance on the subject of weights and measures in the city, which process shall be served by the sealer or, in his discretion, by any other officer authorized to serve the same. (Code 1958, § 52-5)

Secs. 48-17—48-32. Reserved.

ARTICLE II. COAL AND COKE*

Sec. 48-33. Exemptions from article.

Nothing in this article shall apply in case of delivery of coal sold in car-load lots by railroad weight. (Code 1958, § 52-22)

Sec. 48-34. Violations of article.

Every person violating any of the provisions of this article or refusing to comply with the same shall be guilty of a Class 1 misdemeanor. (Code 1958, § 52-23)

Sec. 48-35. To be sold by weight.

It shall be unlawful for any person to sell or offer to sell any coal or coke in the city in any other manner than by weight. (Code 1958, §§ 52-19, 52-21)

State law reference—Similar provisions, Code of Virginia, § 3.1-953.

*Cross references—License tax for coal company agents, § 24-92; license tax on peddlers of coal, § 24-125.

Sec. 48-36. Delivery ticket.

(a) It shall be unlawful for any person to deliver any coal or coke in the city without such delivery being accompanied by a delivery ticket and a duplicate thereof, on each of which shall be distinctly expressed, in pounds, the gross weight of the load, the tare of the delivery vehicle and the quantity of coal or coke contained in the vehicle used in such delivery, with the name of the purchaser thereof and the name of the vendor from whom purchased. Entries on such ticket shall be in ink or other indelible substance. One of the tickets shall be retained by the vendor and the other shall be delivered to the purchaser, at the time of delivery, or surrendered to the sealer of weights and measures, upon demand, for his inspection. If the sealer desires to retain such ticket as evidence, he shall issue a weight slip in lieu thereof for delivery to the purchaser.

(b) When the buyer carries away the purchase of coal or coke, a delivery ticket showing the actual number of pounds delivered to him must be given to him at the time the sale is made.

(c) When coal or coke is sold in packages, no delivery ticket shall be necessary, but the true net weight of the coal or coke contained therein shall be clearly marked, stamped or printed on each package in letters or figures at least one inch in height. This subsection shall not apply to coal or coke sold by the ton, but delivered in sacks for convenience. (Code 1958, § 52-19)

State law reference—Similar provisions, Code of Virginia, § 3.1-953.

Sec. 48-37. Verification of weight shown on delivery ticket.

Whenever the sealer of weights and measures or the purchaser of coal or coke, or the person to whom the same is delivered, shall demand that the weight shown by the ticket referred to in section 48-36 be verified, it shall be the duty of the person delivering such coal or coke to proceed forthwith to the public scales designated by the sealer of

weights and measures nearest to the location where the coal or coke is to be delivered, or to the nearest private scales in the particular locality, selected by the sealer, where the owner thereof shall consent to such use. The person so delivering such coal or coke shall permit the weighing of the coal or coke, together with the delivery vehicle and equipment, for the purpose of ascertaining the gross weight thereof and, after delivery of the coal or coke, shall return forthwith to the same scales and permit the weighing of such vehicle and equipment for the purpose of verifying the net weight of the coal and coke, as shown by such ticket. (Code 1958, § 52-20)

Secs. 48-38—48-63. Reserved.

ARTICLE III. GASOLINE*

Sec. 48-64. Violations of article.

Any person violating any of the provisions of this article shall be guilty of a Class 4 misdemeanor. (Code 1958, § 52-33)

Sec. 48-65. Definition.

As used in this article, the word "gasoline" shall be construed to include naphtha, benzine and other like liquids and fluids derived from petroleum or other sources and used, or intended to be used, for power purposes, except kerosene.

State law reference—Similar provisions, Code of Virginia, § 59.1-149.

Sec. 48-66. Standards.

No person within the city shall sell, offer for sale, or have in possession with intent to sell or offer for sale, gasoline, to be used as motor fuel, unless the same shall conform to and meet the "properties and tests" for motor gasoline of the federal specifications board and the rules and regulations of the state board of agriculture and commerce, as the same now are or may hereafter be amended. (Code 1958, § 52-25)

State law reference—Similar provisions, Code of Virginia, § 59.1-153.

Sec. 48-67. Investigation of complaints and testing of gasoline.

It shall be the duty of the sealer of weights and measures to investigate complaints that may arise as to the quality of gasoline and test the same, and the sealer shall call on the department of police to assist him, when needed. (Code 1958, § 52-26)

Sec. 48-68. Chemical analyses.

The department of community improvement shall have power to require the city bacteriologist to make chemical analyses of gasoline and to report in writing to the sealer of weights and measures the result of his examination. (Code 1958, § 52-27)

Sec. 48-69. Mixture of "Norfolk Tested" gasoline with inferior product.

No person shall mix any "Norfolk Tested" gasoline with any inferior gasoline, so that the resulting product is inferior to the "Norfolk Tested," and sell or offer such inferior mixture for sale in the city. (Code 1958, § 52-29)

Sec. 48-70. Water or sludge in storage tanks.

It shall be unlawful for any person to allow such an accumulation of water or sludge in the bottom of storage tanks from which gasoline is sold, either at wholesale or retail, that such liquid, when drawn up by the pump or other device, will be contaminated by such water or sludge. (Code 1958, § 52-28)

Sec. 48-71. Pumps—Construction and location.

Every liquid measuring device, commonly called a pump, used in the sale of gasoline for motor fuel shall be so constructed and located as to accurately and plainly indicate to the

*Cross reference—Garages, gasoline supply stations and automobile service and parking stations, Ch. 20.

State law reference—Gasoline and lubricating oils, Code of Virginia, § 59.1-149—59.1-167.

buyer the true amount of gasoline delivered during every transaction. The indicating means and its position shall be subject to the approval of the sealer of weights and measures. (Code 1958, § 52-31)

Sec. 48-72. Same—Daily test.

It shall be the duty of every person in charge or the owner of a pump used for the purpose of measuring gasoline for sale as a motor fuel to test such pump each day, before a sale commences, by means of a container equal to the capacity of the pump, which container shall have been examined and approved by the sealer of weights and measures. (Code 1958, § 52-32)

Chapter 49

WETLANDS AND COASTAL PRIMARY SAND DUNES*

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***Editor's note—**Ord. No. 31,846, § 1, adopted July 20, 1982, added Ch. 49, §§ 49-1—49-33, to the Code. In order to preserve Code format, the editor has added nonsubstantive reserved §§ 49-01—49-09, styled "Article I. In General" and has renumbered as Arts. II and III what the ordinance had enacted as I and II, but no changes were made in section numbering.

Cross references—Erosion and sedimentation control, Ch. 15; Virginia Erosion and Stormwater Management Program, Ch. 41.2; subdivisions, Ch. 42.5; trees and other vegetation, Ch. 45; zoning ordinance, App. A.

ARTICLE I. IN GENERAL

Secs. 49-01—49-09. Reserved.

ARTICLE II. WETLANDS*

Sec. 49-1. Intent.

The council of the city, acting pursuant to chapter 13 of title 28.2 of the Code of Virginia, for purposes of fulfilling the policy standards set forth in such chapter, adopts this article regulating the use and development of wetlands.
(Ord. No. 37,012, § 1, 9-29-92)

Sec. 49-2. Definitions.

As used in this article, unless the context requires a different meaning:

Back Bay and its tributaries means the following, as shown on the United States Geological Survey Quadrangle Sheets for Virginia Beach, North Bay, and Knotts Island: Back Bay north of the Virginia-North Carolina state line; Capsies Creek north of the Virginia-North Carolina state line; Deal Creek; Devil Creek; Nawney Creek; Redhead Bay, Sand Bay, Shipps Bay, North Bay, and the waters connecting them; Beggars Bridge Creek; Muddy Creek; Ashville Bridge Creek; Hells Point Creek; Black Gut; and all coves, ponds, and natural waterways adjacent to or connecting with the above-named bodies of water.

Commission means the Virginia Marine Resources Commission.

Commissioner means the Commissioner of Marine Resources.

Governmental activity means any of the services provided by this city to its citizens for the purpose of maintaining this city, including but not limited to such services as constructing, repairing, and maintaining roads; providing sewage facilities and street lights; supplying and treating water; and constructing public buildings.

Nonvegetated wetlands means unvegetated lands lying contiguous to mean low water and between mean low water and mean high water, including those unvegetated areas of Back Bay and its tributaries and the North Landing River and its tributaries subject to flooding by normal and wind tides but not hurricane or tropical storm tides.

North Landing River and its tributaries means the following, as shown on the United States Geological Survey Quadrangle Sheets for Pleasant Ridge, Creeds, and Fentress: the North Landing River from the Virginia-North Carolina line to Virginia Highway 165 at North Landing Bridge; the Chesapeake and Albemarle Canal from Virginia Highway 165 at North Landing Bridge to the locks at Great Bridge; and all named and unnamed streams, creeks, and rivers flowing into the North Landing River and the Chesapeake and Albemarle Canal except West Neck Creek north of Indian River Road, Pocaty River west of Blackwater Road, Blackwater River west of its forks located at a point approximately six thousand four hundred (6,400) feet due west of the point where Blackwater Road crosses the Blackwater River at the village of Blackwater, and Millbank Creek west of Blackwater Road.

Person means any individual, corporation, partnership, association, company, business, trust, joint venture, or other legal entity.

Vegetated wetlands means lands lying between and contiguous to mean low water and an elevation above mean low water equal to the factor one and one-half times the mean tide range at the site of the proposed project in the county, city, or town in question, and upon which is growing any of the following species: saltmarsh cordgrass (Spartina alterniflora), saltmeadow hay (Spartina patens), saltgrass (Distichlis spicata), black needlerush (Juncus roemerianus), saltwort (Salicornia spp.), sea lavender (Limonium spp.), marsh elder (Iva frutescens), groundsel bush (Baccharis halimifolia), wax myrtle (Myrica sp.), sea oxeye (Borrichia frutescens), arrow arum (Peltandra virginica), pickerelweed (Pontederia cordata), big

*__Editor's note—__Section 1 of Ord. No. 37,012, adopted Sept. 29, 1992, amended Ch. 49, Art. II, §§ 49-1—49-17, to read as herein set out. Former Ch. 49, Art. II pertained to similar subject matter and derived from Ord. No. 31,846, § 1, adopted July 20, 1982; Ord. No. 35,629, § 1, adopted July 5, 1989; Ord. No. 35,691, § 1, adopted Aug. 15, 1989 and Ord. No. 35,692, § 1, adopted Aug. 15, 1989.

cordgrass (Spartina cynosuroides), rice cutgrass (Leersia oryzoides), wildrice (Zizania aquatica), bulrush (Scirpus validus), spikerush (Eleocharis sp.), sea rocket (Cakile edentula), southern wildrice (Zizaniopsis miliacea), cattail (Typha spp.), three-square (Scirpus spp.), buttonbush (Cephalanthus occidentalis), bald cypress (Taxodium distichum), black gum (Nyssa sylvatica), tupelo (Nyssa aquatica), dock (Rumex spp.), yellow pond lily (Nuphar sp.), marsh fleabane (Pluchea purpurascens), royal fern (Osmunda regalis), marsh hibiscus (Hibiscus moscheutos), beggar's tick (Bidens sp.), smartweed (Polygonum sp.), arrowhead (Sagittaria spp.), sweet flag (Acorus calamus), water hemp (Amaranthus cannabinus), reed grass (Phragmites communis), or switch grass (Panicum virgatum).

Vegetated wetlands of Back Bay and its tributaries or *vegetated wetlands of the North Landing River and its tributaries* means all marshes subject to flooding by normal and wind tides but not hurricane or tropical storm tides, and upon which is growing any of the following species: saltmarsh cordgrass (Spartina alterniflora), saltmeadow hay (Spartina patens), black needlerush (Juncus roemerianus), marsh elder (Iva frutescens), groundsel bush (Baccharis halimifolia), wax myrtle (Myrica sp.), arrow arum (Peltandra virginica), pickerelweed (Pontederia cordata), big cordgrass (Spartina cynosuroides), rice cutgrass (Leersia oryzoides), wildrice (Zizania aquatica), bulrush (Scirpus validus), spikerush (Eleocharis sp.), cattail (Typha spp.), three-square (Scirpus spp.), dock (Rumex sp.), smartweed (Polygonum sp.), yellow pond lily (Nuphar sp.), royal fern (Osmunda regalis), marsh hibiscus (Hibiscus moscheutos), beggar's tick (Bidens sp.), arrowhead (Sagittaria sp.), water hemp (Amaranthus cannabinus), reed grass (Phragmites communis), or switch grass (Panicum virgatum).

Wetlands means both vegetated and nonvegetated wetlands.

Wetlands board or *board* means a board created pursuant to Code of Virginia, § 28.2-1303.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 49,462, § 1, 1-9-24)

Sec. 49-3. Uses and activities on wetlands which are permitted.

The following uses of and activities in wetlands are authorized if otherwise permitted by law:

(1) The construction and maintenance of noncommercial catwalks, piers, boathouses, boat shelters, fences, duckblinds, wildlife management shelters, footbridges, observation decks and shelters and other similar structures, provided that such structures are so constructed on pilings as to permit the reasonably unobstructed flow of the tide and preserve the natural contour of the wetlands;

(2) The cultivation and harvesting of shellfish, and worms for bait;

(3) Noncommercial outdoor recreational activities, including hiking, boating, trapping, hunting, fishing, shellfishing, horseback riding, swimming, skeet and trap shooting, and shooting on shooting preserves, provided that no structure shall be constructed except as permitted in subdivision (1) of this section;

(4) Other outdoor recreational activities, provided they do not impair the natural functions or alter the natural contour of the wetlands;

(5) Grazing, haying, and cultivating and harvesting agricultural, forestry or horticultural products;

(6) Conservation, repletion, and research activities of the commission, the Virginia Institute of Marine Science, the Department of Wildlife Resources and other conservation-related agencies;

(7) The construction or maintenance of aids to navigation which are authorized by governmental authority;

(8) Emergency measures decreed by any duly appointed health officer of a governmental subdivision acting to protect the public health;

(9) The normal maintenance and repair of, or addition to, presently existing roads, highways, railroads beds, or facilities

abutting on or crossing wetlands, provided that no waterway is altered and no additional wetlands are covered;

(10) Governmental activity in wetlands owned or leased by the commonwealth or a political subdivision thereof;

(11) The normal maintenance of man-made drainage ditches, provided that no additional wetlands are covered. This subdivision does not authorize the construction of any drainage ditch; and

(12) The construction of living shoreline projects authorized pursuant to a general permit developed under subsection B of section 28.2-104.1 of the Code of Virginia.

(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 48,285, § 1, 1-26-21; Ord. No. 49,462, § 2, 1-9-24)

Sec. 49-4. Wetlands board—Creation, appointment and terms.

There is hereby created the Norfolk Wetlands Board, which shall consist of seven (7) residents of the city, who shall be appointed by the council. Their terms of office shall be for five (5) years, except that original appointments shall be made for such terms that the term of one (1) member shall expire each year. The chairman of the board shall notify the council at least thirty (30) days in advance of the expiration of any term of office and shall also notify the council if any vacancy occurs. Appointments to fill vacancies shall be for the unexpired portion of the term. Members may serve successive terms. Members of the board shall hold no other public office in the city except that they may be members of the planning commission, directors of soil and water conservation boards, or local erosion commissions or the board of zoning appeals. A member whose term expires shall continue to serve until his successor is appointed and qualified. When such members are appointed their terms of appointment shall be coterminous with their membership on the planning commission, soil and water conservation boards, erosion commission or the board of zoning appeals.

The city council shall also appoint one (1), but no more than three (3) residents of the city as alternate board members. The qualifications and terms of alternate members shall be the same as those of members. Any member that knows he is unable to attend a board meeting shall notify the chairman at least twenty-four (24) hours in advance of such meeting. The chairman shall select an alternate member to serve in place of the absent member at the board meeting, which shall be noted in the records of the board.

(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 41,641, § 1, 11-16-04)

Sec. 49-5. Same—Officers, meetings, rules, records and reports.

The board shall elect annually from its regular membership a chairman and such other officers as it deems necessary who shall serve one-year terms as such and may succeed themselves. For the conduct of any hearing and the taking of any action, a quorum shall be not less than four (4) members of the board. The board may make, alter and rescind rules and forms for its procedures, consistent with ordinances of the city and general laws of the commonwealth. The board shall keep a full public record of its proceedings and shall submit a report of its activities to the council at least once a year, and a copy of its report to the commission. Upon a hearing with at least fifteen (15) days' notice thereof, any board member may be removed for malfeasance, misfeasance or nonfeasance, in office, or for other just case, by the council of the city.

(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 41,641, § 2, 11-16-04)

Sec. 49-5.1. Policy.

In fulfilling its responsibilities under this ordinance, the board shall preserve and prevent the despoliation and destruction of wetlands within its jurisdiction while accommodating necessary economic development in a manner consistent with wetlands preservation and any standards set by the commonwealth in addition to those identified in section 28.2-1308 of the Code of Virginia to ensure protection of shorelines and sensitive coastal habitats from sea level rise and coastal hazards, including the provisions of

guidelines and minimum standards promulgated by the commission pursuant to section 28.2-1301 of the Code of Virginia.
(Ord. No. 37,012, § 1, 9-29-92)

Sec. 49-6. Application for permit.

(a) Any person who desires to use or develop any wetland within this city, other than for the purpose of conducting the activities specified in section 49-3 above, shall first file an application for a permit directly with the wetlands board or with the commission.

(b) The permit application shall include the following: the name and address of the applicant; a detailed description of the proposed activities; a map, drawn to an appropriate and uniform scale, showing the area of wetlands directly affected, the location of the proposed work thereon, the area of existing and proposed fill and excavation, the location, width, depth and length of any proposed channel and disposal area, and the location of all existing and proposed structures, sewage collection and treatment facilities, utility installations, roadways, and other related appurtenances or facilities, including those on adjacent uplands; a statement indicating whether use of a living shoreline as defined in section 28.2-104.1 of the Code of Virginia for a shoreline management practice is not suitable, including reasons for the determination; a description of the type of equipment to be used and the means of equipment access to the activity site; the names and addresses of owners of record of adjacent land and known claimants of water rights in or adjacent to the wetland of whom the applicant has notice; an estimate of cost; the primary purpose of the project; any secondary purposes of the project, including further projects; the public benefit to be derived from the proposed project; a complete description of measures to be taken during and after the alteration to reduce detrimental offsite effects; the completion date of the proposed work, project, or structure; and such additional materials and documentation as the wetlands board may require.

(c) A nonrefundable wetlands permit fee, established by the city council, shall accompany each application for the use or development of any wetlands within the city in order to defray the costs of processing the application and advertising the matter for a public hearing.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 37,232, § 1, 5-18-93; Ord. No. 47,373, § 1, 9-11-18; Ord. No. 48,285, § 3, 1-26-21; Ord. No. 49,462, § 3, 1-9-24)

Sec. 49-7. Public inspection of applications, maps, etc.

All applications, maps, and documents submitted shall be open for public inspection at the office of the bureau of environmental services in the department of city planning and specified in the public notice for public hearing required under section 49-8 of this article.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 49,462, § 4, 1-9-24)

Sec. 49-8. Public hearing procedures.

Not later than sixty (60) days after receipt of a complete application, the wetlands board shall hold a public hearing on the application. The applicant, city council, commissioner, owner of record of any land adjacent to the wetlands in question, known claimants of water rights in or adjacent to the wetlands in question, the Virginia Institute of Marine Science, the Department of Wildlife Resources, the State Water Control Board, the department of transportation, and any governmental agency expressing an interest in the application shall be notified of the hearing. The commission or board shall mail or email these notices not less than twenty (20) days prior to the date set for the hearing.

The board shall also:

(i) cause notice of the hearing to be published at least once in the seven (7) days prior to such hearing in a newspaper of general circulation in this city;

(ii) post a notice of the hearing on its website at least fourteen (14) days prior to such hearing; and

(iii) provide a copy of such notice to the commission for submittal to the Virginia Regulatory Town Hall.

The published notice shall specify the place or places within this city where copies of the application may be examined. The costs of publication shall be paid by the applicant. In the event that the board submits a correct and timely notice for publication and the newspaper fails to publish the notice or publishes the notice incorrectly, the board shall be deemed to have met the notice requirements of this subsection so long as the notice is published in the next available edition of such newspaper.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 37,233, § 1, 5-18-93; Ord. No. 49,462, § 5, 1-9-24)

Sec. 49-9. Action of the board.

(a) Approval of a permit application shall require the affirmative vote of three (3) members of a five-member board or four (4) members of a seven-member board.

(b) The chairman of the board, or in his absence the acting chairman, may administer oaths and compel the attendance of witnesses. Any person may testify at the public hearing. Each witness at the hearing may submit a concise written statement of his testimony. The board shall make a record of the proceeding, which shall include the application, any written statements of witnesses, a summary of statements of all witnesses, the findings and decision of the board, and the rationale for the decision.

(c) The board shall make its determination within thirty (30) days of the hearing. If the board fails to act within that time, the application shall be deemed approved. Within forty-eight (48) hours of its determination, the board shall notify the applicant and the commissioner of its determination. If the board fails to make a determination within the 30-day period, it shall promptly notify the applicant and the commission that the application is deemed approved. For purposes of this section, "act" means taking a vote on the application. If the application receives less than four (4) affirmative votes from a seven-member board or less than three (3) affirmative votes from a five-member board, the permit shall be denied.

(d) If the board's decision is reviewed or appealed, the board shall transmit the record of its hearing to the commissioner. Upon a final determination by the commission, the record shall be returned to the board. The record shall be open for public inspection at the same office as was designated under section 49-7 of this article.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 49,462, § 6, 1-9-24)

Sec. 49-10. Bonding requirements.

The board may require a reasonable bond or letter of credit in an amount and with surety and conditions satisfactory to it, securing to the commonwealth compliance with the conditions and limitations set forth in the permit. The board may, after a hearing held pursuant to this article, suspend or revoke a permit if the applicant has failed to comply with any of the conditions or limitations set forth in the permit or has exceeded the scope of the work described in the application. The board may, after a hearing, suspend a permit if the applicant fails to comply with the terms and conditions set forth in the application.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 49,462, § 7, 1-9-24)

Sec. 49-11. Review procedure.

(a) In deciding whether to grant, grant in modified form, or deny a permit, the board shall consider the following:

(1) The testimony of any person in support of or in opposition to the permit application;

(2) The impact of the proposed development on the public health, safety, and welfare; and

(3) The proposed development's conformance with standards prescribed in section 28.2-1308 of the Code of Virginia and guidelines promulgated pursuant to section 28.2-1301 of the Code of Virginia.

(b) The board shall grant the permit if all of the following criteria are met:

(1) The anticipated public and private benefit of the proposed activity exceeds its anticipated public and private detriment.

(2) The proposed development conforms with the standards prescribed in section 28.2-1308 of the Code of Virginia and guidelines promulgated pursuant to section 28.2-1301 of the Code of Virginia.

(3) The proposed activity does not violate the purposes and intent of this article or chapter 13 (§ 28.2-1300 et seq.) of title 28.2 of the Code of Virginia.

(c) If the board finds that any of the criteria listed in subsection (b) of this section are not met, the board shall deny the permit application but allow the applicant to resubmit the application in modified form.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 49,462, § 8, 1-9-24)

Sec. 49-12. Permit; form.

The permit shall be in writing and signed by the chairman of the board or his authorized representative. A copy of the permit shall be transmitted to the commissioner.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 37,780, § 1, 10-11-94; Ord. No. 49,462, § 9, 1-9-24)

Sec. 49-13. Expiration date and extensions.

No permit shall be granted without an expiration date established by the board. Upon proper application, the board may extend the permit expiration date.
(Ord. No. 37,012, § 1, 9-29-92; Ord. No. 49,462, § 10, 1-9-24)

Sec. 49-14. Permits; effect on zoning.

No permit granted by the board shall affect in any way the applicable zoning and land use ordinances of the city, or the right of any person to seek compensation for any injury in fact incurred by him because of the proposed activity.
(Ord. No. 37,012, § 1, 9-29-92)

Sec. 49-15. Investigations and prosecutions.

The wetlands board shall have the authority to investigate all projects whether proposed or ongoing which alter wetlands located within the city. The wetlands board shall have the power to prosecute all violations of any order, rule or regulation of the board, or any violation of any provision of chapter 13 of title 28.2 of the Code of Virginia or of this article.
(Ord. No. 37,012, § 1, 9-29-92)

Sec. 49-16. Violation of orders, rules and regulations.

Any person who knowingly, intentionally, negligently or continually violates any order, rule or regulation of the commission or of the wetlands board or violates any provision of chapter 13 of title 28.2 of the Code of Virginia or of the provisions contained in this article, or any provision of a permit granted by the wetlands board or the commission pursuant to chapter 13 of title 28.2 of the Code of Virginia or this article shall be guilty of a class 1 misdemeanor. Following a conviction, every day the violation continues shall be deemed a separate offense.
(Ord. No. 37,012, § 1, 9-29-92)

Sec. 49-17. Injunctions.

In addition to and notwithstanding the provisions of chapter 13 of title 28.2 of the Code of Virginia and the provisions of section 49-16, upon petition of the wetlands board to the circuit court of the city, the court may enjoin such unlawful act and may order the person so acting unlawfully to take such steps as are necessary to restore, protect and preserve the wetlands involved.
(Ord. No. 37,012, § 1, 9-29-92)

ARTICLE III. RESERVED*

Secs. 49-18—49-33. Reserved.

*__Editor's note—__Ord. No. 46,447, § 4, adopted June 28, 2016, eff. July 1, 2016, repealed Art. III, §§ 49-18—49-33, which pertained to coastal primary sand dunes and derived from Ord. No. 37,013, § 1, adopted Sept. 29, 1992; Ord. No. 37,234, § 1, adopted May 18, 1993; Ord. No. 37,235, § 1, adopted May 18, 1993; Ord. No. 37,779, § 1, adopted Oct. 11, 1994.

ARTICLE IV. EROSION ADVISORY COMMISSION*

Sec. 49-34. Creation, composition, and compensation of members.

Pursuant to the provisions of section 10.1-711 of the Code of Virginia, 1950, as amended, there is hereby created a commission to be known as the erosion advisory commission, which shall consist of the following seven (7) members, who shall serve as such without compensation:

(1) The three (3) civic league representatives who are the current members of the coastal management and review board established pursuant to Article V, below.

(2) The two (2) city council representatives who are the current members of the coastal management and review board established pursuant to Article V, below.

(3) The city's chief resiliency officer or, if no such officer exists, the city manager or his designee.

(4) The director of the department of public works or his authorized designee.

(Ord. No. 46,447, § 1, 6-28-16, eff. 7-1-16)

Sec. 49-35. Reserved.

Sec. 49-36. Duties.

The erosion advisory commission shall have the duties that are set forth in section 10.1-711 of the Code of Virginia, 1950, as amended, and shall act in an advisory capacity to the director of the department of city planning and codes administration on the following:

(1) Determination of erosion problems on city beaches.

(2) Determination of erosion control strategies.

(3) Assessment of erosion control program implementation.

(4) Participation in grant application procedures as may be required by the Virginia Board on Conservation and Development of Public Beaches.

(Ord. No. 46,447, § 1, 6-28-16, eff. 7-1-16)

Sec. 49-37. Chairperson; meetings, quorum.

The erosion advisory commission shall elect a chairperson from its membership who shall serve one year terms as such and may succeed himself or herself. Four (4) members of the commission shall constitute a quorum for the transaction of business.

(Ord. No. 46,447, § 1, 6-28-16, eff. 7-1-16)

ARTICLE V. COASTAL MANAGEMENT AND REVIEW BOARD

Sec. 49-38. Creation and composition.

The coastal management and review board (CMRB) is created to monitor changes in the beach and dune environment and to assess the progress of management projects that may be undertaken pursuant to any adopted sand management plan designed to comprehensively address the beaches and dunes along the Chesapeake Bay shore in order to evaluate and report on the efficacy of such projects. The board shall consist of the following twelve (12) members who shall serve without compensation:

(1) Two (2) members of the city council designated by the council from among the following persons:

(a) The councilperson representing Ward 1,

(b) The councilperson representing Ward 5,

(c) The councilperson representing Superward 6, and

(d) The mayor.

(2) The president of the East Ocean View Civic League or his designee.

(3) The president of the Cottage Line Civic League or his designee.

*__Editor's note—__Ord. No. 46,447, § 1, adopted June 28, 2016, eff. July 1, 2016, amended Art. IV in its entirety to read as herein set out. Former Art. IV, §§ 49-34—49-37, pertained to similar subject matter, and derived from Ord. No. 36,882, § 2, adopted June 23, 1992.

(4) The president of the Willoughby Civic League of his designee.

(5) A member of the staff of the department of public works, as designated by the director.

(6) A member of the staff of the department of city planning, as designated by the director.

(7) A member of the staff of the office of the city manager, as designated by the manager.

(8) A representative from Department of the Ocean, Earth & Atmospheric Sciences of Old Dominion University, as designated by the department chair.

(9) A staff member of the Virginia Marine Resources Commission, Habitat Management Division, designated by the Chief of Habitat Management.

(10) A staff member of the Army Corp of Engineers, Norfolk District, designated by the District Engineer.

(11) A staff member of the Virginia Institute of Marine Science, designated by the director.

(Ord. No. 46,447, § 3, 6-28-16, eff. 7-1-16)

Sec. 49-39. Designations shall be biennial; vacancies.

The designation for each member of the CMRB shall be effective for two (2) years. Any vacancy in a seat shall be filled, by selection of the designor wherever a designation is required, for the remainder of the unexpired term
(Ord. No. 46,447, § 3, 6-28-16, eff. 7-1-16)

Sec. 49-40. Meetings.

Meetings shall be held at least twice each year. Additional meetings may be held for the purpose of reviewing any information or project where review at the next regular meeting would result in a delay which would likely cause a significant increase in cost or would continue exposing persons or property to an existing threat of injury or damage for an extended period of time.
(Ord. No. 46,447, § 3, 6-28-16, eff. 7-1-16)

Sec. 49-41. Duties and responsibilities.

The CMRB has the following duties and responsibilities:

(1) Initiate and recommend amendments to any adopted sand management plan. No changes to such a plan should be made without a review and recommendation from the CMRB prior to consideration by the city planning commission or the city council.

(2) Receive and review annual reports which provide the following information:

(a) Topographical or LIDAR surveys showing any changes to the beach and dune environment, including erosion and accretion.

(b) Dune planting success and mortality and progress of invasive vegetation eradication efforts.

(c) Beach nourishment projects.

(d) Dune blowout repairs and other alteration activity in a dune.

(e) Sand fence locations and effects.

(f) Breakwater modification and performance measures.

(g) Effects of seasonal storms impacts.

(h) Alterations to, construction of, and removal of any beach access.

(i) Alterations to the profile of the crest or front face of a dune.

(j) Other projects or activities that impact the health or use of the dune environment.

(3) Make recommendations to the city manager regarding policies and procedures for:

(a) Adopt-a-Dune program to promote education and responsible stewardship of the shoreline environment.

(b) Instructional or written materials to assist citizens with appropriate dune vegetation plantings.

(c) Instructional events or written materials to assist citizens with maintenance of noncommercial beach access walkways.

(d) Conducting training for citizens to assist city field operations for eradicating invasive vegetation by identifying and locating problem areas.

(e) Guidelines for appropriate methods of performing other activities that are exempt from regulation under the provisions of Title 28.2, Chapter 14 of the Code of Virginia related to Coastal Primary Sand Dunes and Beaches.

(4) Review and recommend approval or denial of nonemergency construction of beach accesses.

(Ord. No. 46,447, § 3, 6-28-16, eff. 7-1-16)

Chapter 50

ZOOLOGICAL PARK*

§ 50-1. Virginia Zoological Park at Norfolk—Designated.
§ 50-2. Same—Disposal, exchange, acquisition, etc., of animals; acceptance of gifts.
§ 50-3. Same—Consumption of alcoholic beverages.

*__Cross references—__Virginia Zoological Park, responsibilities, §§ 2-260, 2-261; civic facilities, Ch. 13; facilities and enterprise management, Ch. 15.2.

Sec. 50-1. Virginia Zoological Park at Norfolk—Designated.

The zoo situated in Lafayette Park shall be known and designated as Virginia Zoological Park at Norfolk.
(Ord. No. 39,590, § 10, 5-18-99)

Sec. 50-2. Same—Disposal, exchange, acquisition, etc., of animals; acceptance of gifts.

(a) The city manager or his designee, based upon the recommendation of the director of the zoo, may, at his discretion, dispose of any animal in the zoo, exchange any animal in the zoo or acquire any animal for the zoo, in such manner as he deems to be in the best interest of the city.

(b) The city manager or his designee, upon the recommendation of the director of the zoo, to accept as a gift any animal, money or thing of value which, in his judgement, will be an enhancement for the zoo.
(Ord. No. 39,590, § 10, 5-18-99; Ord. No. 49,515, § 2, 3-12-24; Ord. No. 49,610, § 5, 5-28-24)

Sec. 50-3. Same—Consumption of alcoholic beverages.

(a) The city manager or his designee is hereby authorized to allow alcoholic beverages to be consumed on the premises of the Virginia Zoological Park at Norfolk designated by him, under the conditions listed in the following subsections.

(b) Any organization using premises designated by the city manager or his designee shall be required to secure all proper state alcoholic beverage control board licenses and permits for the particular event held.

(c) The organization serving alcoholic beverages at the premises designated by the city manager or his designee shall comply in all respects with current regulations of the state alcoholic beverage control board.

(d) The city manager or his designee shall designate the time and place where alcoholic beverages may be served.

(e) The city manager or his designee is hereby authorized to make such other rules and regulations as may be necessary to govern the use of the premises where alcoholic beverages may be served.
(Ord. No. 39,590, § 10, 5-18-99; Ord. No. 49,515, § 2, 3-12-24)

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ZONING ORDINANCE*

*__Editor's note—__Ordinance No. 47,116 was adopted by the Norfolk City Council on January 23, 2018. This ordinance, with an effective date of March 1, 2018, repealed Appendix A of the City Code as was previously published herein.

The user's attention is directed to the new Zoning Ordinance:

An online version of the Norfolk Zoning Ordinance is located here: https://www.norfolk.gov/index.aspx?NID=3910

A direct link to the Norfolk Zoning Ordinance is located here: https://www.norfolkva.gov/norfolkzoningordinance/

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CODE COMPARATIVE TABLE
ORDINANCES

This table gives the location within this Code of those ordinances adopted since the 1958 Code, which are included herein. (In Chapter 24, some ordinances have been added adopted prior thereto which were not included in the 1958 Code.) Ordinances adopted prior to such date were incorporated into the 1958 Code, a table of which immediately precedes this table. Ordinances not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

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34,574	6-30-87	1		33.1-8.5
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34,748	10-13-87	1		5-162.4(a)
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34,772	10-27-87	1		25-653(18.5), (18.6)
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34,777	11-10-87	1		25-654(52.5)
34,778	11-10-87	1	Rpld	25-646(14)
34,779	11-10-87	1		25-654(276.6)
34,780	11-10-87	1		2-43.1
34,782	11-10-87	1		16-92
34,790	11-10-87	1		25-655(57)
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34,815	11-24-87	1		32.1-1—32.1-13
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34,909	2-16-88	1	Rpld	29-23.2
34,913	2-16-88	1		25-652(48)
34,916	2-23-88	1		25-654(339.5)
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34,972	3-29-88	1		25-331
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35,048	5-24-88	1		24-3(2)
35,049	5-24-88	1		24-309
35,050	5-24-88	1		24-234
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35,057	5-24-88	1		33-43(d)
35,058	5-24-88	1		25-463(2)
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35,098	6-14-88	1		25-438(2)
35,104	6-14-88	1		41-54.1
35,112	6-21-88	1		25-654(67.5)
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35,119	6-21-88	1		37-74(b)
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35,131	6-28-88	1		25-298(1)
35,132	6-28-88	1		25-178
35,133	6-28-88	1		25-52
35,134	6-28-88	1		29-53
35,135	6-28-88	1		17-17
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35-162	7-12-88	1		12-89.5
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35,180	7-26-88	1		14-108
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35,191	7-26-88	1		24-254
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35,218	8-23-88	1		30-12(a), (b)
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35,233	9-13-88	1		25-377.4
35,243	9-20-88	1		24-109
35,244	9-20-88	1		37-79
35,252	9-27-88	1		13-7.1
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35,263	10-11-88	1		2-50(c)
35,265	10-11-88	1		2-327.2
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35,267	10-11-88	1		42-201(b)
35,274	10-18-88	1		25-650(21.3), (21.4)
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35,281	10-25-88	1		25-654(161.5)
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35,282	10-25-88	1		25-308
35,283	10-25-88	1	Rpld	2-349.4
35,301	11-15-88	1		25-654(156.6)
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35,309	11-22-88	1		25-286.3
35,317	11-29-88	1		2-111
35,331	12-13-88	1		34-102(e)
35,333	12-13-88	1		25-649(89.5)
35,337	12-13-88	1		25-651(6.7)
35,342	12-20-88	1		App. A, § 395.3
35,350	12-20-88	1		App. A, § 1133.1
35,354	12-27-88	1	Rpld	25-460(4), 25-463(3)
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35,390	2-14-89	1		25-635
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35,409	2-28-89	1		25-654(231.1)
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35,413	3- 7-89	1		25-650(28.8)
35,424	3-14-89	1		2-133.1
35,425	3-14-89	1	Rpld	25-653(74)
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35,426	3-14-89	1	Rpld	25-653(134)
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35,437	3-21-89	1		12-89.6
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35,501	5- 9-89	1		43-1, 43-2
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35,532	5-23-89	1		39-10
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35,535	5-23-89	1		41-54.1
35,556	5-30-89	1		41-54.1
35,558	6- 6-89	1		46-4(b)
35,563	6-13-89	1		25-646(42.6)
35,564	6-13-89	1	Rpld	25-652(79.7)
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35,565	6-13-89	1		25-654(213.5)
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35,566	6-13-89	1		25-650(32.6)

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35,586	6-20-89	1		24-135.1
35,587	6-20-89	1		33.1-12
35,588	6-20-89	1		33.1-80(2)
35,589	6-20-89	1		33.1-56
35,590	6-20-89	1		33.1-20(22)
35,591	6-20-89	1		33.1-37(3), 33.1-38(3)
35,595	6-27-89	1		2-7
35,612	6-27-89	1		11.180(j)
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35,650	7-18-89	1		25-650(11.5), (25.5), (28.5), (32.6), (39)
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35,690	8-15-89	1		49-19(5)
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35,994	5-15-90	1	Rpld	25-302(e)
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36,060	6-12-90	1		25-653(6.8)
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36,154	7-31-90	1		25-655(119)
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36,323	2- 5-91	1		25-646(37)
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36,336	2-12-91	1		25-650(11.3)
36,339	2-19-91	1		18-164
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36,354	3-12-91	1		25-651(20.6)
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36,369	3-26-91	1		2-155(h)
36,372	3-26-91	1		25-295(1)
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36,383	4- 9-91	1		25-654(36.5)
36,384	4- 9-91	1		25-656(25.5), (83.5), (89.5), (94.5), (101.5)
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36,398	4-16-91	1		25-651(6.51)
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36,411	5-14-91	1		App. A, § 480.6
36,412	5-14-91	1		24-111
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36,415	5-14-91	1		25-654(86.1), (101.3), (122.1), (122.5), (145.5), (352.1), (352.5)
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36,434	5-21-91	1		2-50(b), (f)
36,437	5-21-91	1		24-3(2)
36,438	5-21-91	1		24-253
36,439	5-21-91	1		46-67(a)—(c)
36,441	5-21-91	1		39.1-8
36,442	5-21-91	1		25-481(29)
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36,443	5-21-91	1		46-80
36,444	5-21-91	1		37-64(c)—(g)
36,445	5-21-91	1	Rpld	41-1(d)
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36,640	6-11-91	1		25-255(2)—(4)
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36,507	7-16-91	1		25-218(1)
36,508	7-16-91	1		25-152
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36,515	7-23-91	1, 2		25-256.1(4), (5)
36,538	8-20-91	1		App. A, §§ 464.0—463.9
36,541	8-27-91	1		2-43
36,545	8-27-91	1		8-4(b)
36,548	8-27-91	1		25-653(2.6)
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36,567	9-17-91	1		33.1-46
36,576	9-24-91	1		25-660
36,577	9-24-91	1		25-661
36,578	9-24-91	1		25-662
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36,594	10-15-91	1		25-653(43.5), (70.5), (70.6), (87.4), (103.8), (103.9), (125.5), (125.6), (129.5)
36,595	10-15-91	1		25-654(162.5), (166.5), (166.6), (190.8)
36,605	10-22-91	1		25-646(20.65)
36,608	10-22-91	1	Rpld	25-660(142)
36,617	10-29-91	1		12-132
36,619	10-29-91	1	Rpld	2-118(6)
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36,626	11-12-91	1		25-652(21)
36,629	11-12-91	1		25-590.23—25-590.34
36,631	11-12-91	1	Rpld	11.1-21
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36,666	11-26-91	1		2-327.2(h)
36,672	12-10-91	1		25-654(186.5), (186.55)
36,674	12-10-91	1		25-660(160.1), (167.1)
36,677	12-17-91	1		25-346.1, 25-347.1
36,678	12-17-91	1		25-348
36,685	12-17-91	1		2-133.2
		2	Rpld	2-133.1
36,700	12-31-91	1	Rpld	25-652(55.5)
36,706	12-31-91	1		25-652(52.7), (58.5)
36,712	1-14-92	1		25-654(67.45)
36,716	1-14-92	1		25-653(116.6)
36,719	1-14-92	1	Rpld	2-118(d)
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36,727	1-28-92	1	Rpld	14-1—14-3, 14-20—14-75 14-92—14-148
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36,734	2-11-92	1	Rpld	25-653(6.8)
36,745	3- 3-92	1	Added	App. A
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36,735	2-11-92	1		25-654(11.7)
36,738	2-11-92	1	Rpld	25-654(142.2), (148.2)
36,739	2-11-92	1		25-654(142.3), (142.4), (148.3)
36,743	2-18-92	1	Rpld	25-649(14)
36,749	3-10-92	1	Rpld	25-654(156.4), (156.5)
36,755	3-10-92	1		33-72—33-75
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36,786	4-14-92	1		25-298(1), (4)
36,791	4-14-92	1		5-162.1(b)(3)
36,793	4-14-92	1		25-653(125.7)
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36,810	5- 5-92	1		25-654(276.05)
36,813	5-12-92	1		25-650(33.8)
36,814	5-12-92	1		2-111.2
36,829	5-19-92	1		33.1-26
36,830	5-19-92	1		33.1-27
36,831	5-19-92	1		33.1-23(5)
36,832	5-19-92	1		33.1-8.3
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36,843	5-26-92	1		25-654(38.4), (38.5)
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36,846	5-26-92	1		37-108
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36,858	5-26-92	1		2-43.1
36,872	6- 9-92	1		37-61(a), (g)
36,882	6-23-92	1	Rpld	15-21—15-24
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36,887	6-23-92	1		25-652(1.2), (1.4)
36,889	6-23-92	1		24-47
36,890	6-23-92	1		11.1-80(m)
36,898	6-30-92	1		5-162.1(b)(4)
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36,916	7-14-92	1		25-653(94.5)
36,917	7-14-92	1	Rpld	25-660(75)
36,918	7-14-92	1		25-652(48)
36,920	7-14-92	1		25-654(72.1), (210.7), (265.6), (287.5), (302.3)
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36,928	7-21-92	1		25-252(2)—(4), (7)
36,929	7-21-92	1		25-251
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36,944	7-28-92	1		25-254
36,945	7-28-92	1		25-255(5)
36,946	7-28-92	1		25-256.1(5)
36,950	7-28-92	1		16-177
36,956	8-18-92	1		25-653(10.5)
36,958	8-18-92	1		25-4
36,959	8-18-92	1		25-218(10)
36,960	8-18-92	1		47-1(4)
36,961	8-18-92	1		25-653(71.5)
36,966	8-25-92	1		25-654(108.2)
36,987	9- 8-92	1	Rpld	46-1—46-2.1, 46-3—46-29
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36,998	9-22-92	1		25-260(36.6)
36,999	9-22-92	1		25-386.8
37,000	9-22-92	1		23-5(a)
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37,018	10-13-92	1		App. A, § 9-2.4
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37,041	10-27-92	1		25-654(218.5)
37,042	10-27-92	1		25-653(114.5)
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37,061	11-17-92	1		30-286—30-334
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37,118	1-12-93	1		25-654(117.3)
37,119	1-12-93	1		25-650(11.4)
37,120	1-12-93	1		25-650(28.10)
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37,166	3-16-93	1	25-654(271.1)
37,168	3-16-93	1	42-20.2
37,177	3-30-93	1	App. A, §§ 14-4.2, 14-6.5
37,182	4-13-93	1	App. A, § 10-2.5(f), App. A, § 10-3.6(d)
37,185	4-13-93	1	5-162.3(a)(1)

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37,191	4-13-93	1	Rpld	3-1—3-9
37,205	4-27-93	1		25-654(67.43)
37,206	4-27-93	1	Rpld	25-660(15)
37,219	5-11-93	1		30-4.1, 30-15, 30-201, 30-205—30-207, 30-209
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37,232	5-18-93	1		49-6(c)
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37,236	5-18-93	1		17.1-45
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37,239	5-18-93	1		17.1-49
37,240	5-18-93	1		33-43(d)
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37,259	5-18-93	1		37-80
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37,265	5-25-93	1		25-654(129.3)
37,266	5-25-93	1		25-646(18), (24)
37,278	6- 8-93	1		25-282(9)
37,279	6- 8-93	1		25-132(g)
37,309	6-29-93	1		25-660(59.5)
37,321	6-29-93	1		12-9(a)
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37,330	7-13-93	1		33-41
37,335	7-13-93	1		17.1-44(6)
37,340	7-20-93	1		25-653(140.1), (140.2), (140.3)
37,341	7-20-93	1		25-649(84.7)
37,343	7-20-93	1		25-652(93.5), (122.7)
37,346	7-27-93	1	Rpld	14.1-15, 14.1-81
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37,356	7-27-93	1		25-302(a), (b)
37,358	7-27-93	1		2-118(g)
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37,367	8-17-93	1		33.1-76
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37,377	8-24-93	1		25-653(77.5.5), (157)
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37,387	8-31-93	1		2-50(e)
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37,419	10-12-93	1		25-256.1(1), (2), (5)
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37,424	10-12-93	1		25-653(15.5), (39.5)
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37,429	10-12-93	1		25-653(85.5)
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37,444	10-19-93	1		2-399.1(3)
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37,484	12-14-93	1		App. A, § 4-0.5
37,490	12-21-93	1		24-194
37,503	1-25-94	1		24-170
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37,608	5-17-94	1		8-55
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		3		30-253(c)
		4		30-302(c)
37,618	5-24-94	1		25-654(351.3)
37,625	5-24-94	1		24-326—24-331
37,626	5-24-94	1		24-215.1
37,627	5-24-94	1		42-62
37,628	5-24-94	1		42-9(c)(3)
37,629	5-24-94	1		13-65.1(a)
37,630	5-24-94	1		12-206.1
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37,632	5-24-94	1		24-288(c)
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37,642	5-24-94	1		2-201
		2		2-202.1
37,645	5-31-94	1		39.1-8
37,646	5-31-94	1		29-58
37,651	5-31-94	1		24-3
37,677	6-21-94	1		25-288
37,685	6-28-94	1		25-251
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37,686	6-28-94	1		25-152
37,691	6-28-94	1		24-138
37,708	7-12-94	1		6-75—6-85
37,713	7-12-94	1		25-223
37,723	7-26-94	1		App. A, § 8-5
37,727	7-26-94	1		47-3(e)
37,732	7-26-94	1		24-159
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37,740	8-16-94	1		25-287
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37,758	9-13-94	1		25-129(e)
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37,761	9-13-94	1		6-84
37,768	9-27-94	1		25-651(12.5)
37,772	9-27-94	1	Added	33-80
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37,779	10-11-94	1		49-28
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37,821	11-22-94	1	Added	25-654(31.1),
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37,822	11-22-94	1	Added	25-656(76.5)
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37,853	1-10-95	1		25-652(58.6)
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37,864	1-17-95	1		47-31(e)
37,865	1-17-95	1		47-1
37,866	1-17-95	1		25-168
37,867	1-17-95	1	Rpld	25-177(d)
37,868	1-17-95	1		25-282(7)
37,869	1-17-95	1		25-287
37,870	1-17-95	1		25-657(1), (3)
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37,871	1-17-95	1	Rpld	25-658
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37,887	2-14-95	1		25-653(126.5)
37,888	2-14-95	1	Rpld	25-653(76)
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37,889	2-14-95	1		42-32(b)
37,891	2-14-95	1		24-164.1
37,898	2-21-95	1		27-3
37,900	2-21-95	1		12-89.9
		2		12-290.3(5)
37,902	2-21-95	1		47-31(e)
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37,913	3-14-95	1		25-652(77.5)
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37,925	3-21-95	1		App. A, § 11-20
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37,957	4-25-95	1		25-647(5.5)
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37,991	5-23-95	1		24-184
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37,993	5-23-95	1		24-3(5)
37,994	5-23-95	1		39.1-8
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38,000	5-23-95	1	Rpld	2-171—2-175, 2-180—2-184
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38,049	6-27-95	1		46.1-32(b1)
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38,074	7-25-94	1	Rpld	2-327.2(g), (h)
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38,099	8-22-95	1	Rpld	2-326.2—2-326.6
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38,107	8-22-95	1	Rpld	47-1(5)
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38,135	10-10-95	1		App. A, § 11-22
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38,387	5-21-96	1		37-74(c)
38,388	5-21-96	1		37-45
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38,396	5-28-96	1		33-43
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38,406	5-28-96	1		37-61(h)—(l)
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38,438	6-25-96	1		25-654(285.61), (285.62)
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38,478	7-20-96	1		25-660(184.5)
38,479	7-30-96	1		25-656(32.1)
38,480	7-30-96	1		25-652(87.5)
38,481	7-30-96	1	Rpld	25-654(19.42), (20.4), (24.4), 202.6), (196.4)
38,484	7-30-96	1		25-654(19.42), (20.2), (22.2)
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38,485	7-30-96	1		25-653(70.71), (96.5)
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38,501	7-30-96	1		37-82(d)
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38,520	9-10-96	1		2-286—2-290
38,522	9-10-96	1		25-652(111)
38,535	9-24-96	1	Rpld	25-653(107.5)
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		3	Added	25-654(161.59), (197.1.1), (218.51)
38,549	10-29-96	1		25-286.1(g)(1, (2),
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38,552	10-29-96	1		21-1—21-24, 21-36—21-41
38,559	11- 5-96	1		App. A, §§ 11-4.5, 11-5.2
38,560	11- 5-96	1		App. A, §§ 9-0.1, 9-0.2 9-0.4 9-0.7 9-0.10 9-2.1
38,563	11-12-96	1	Rpld	25-653(125)
		2	Added	25-654(129.41), (129.42), (176.4)
38,565	11-12-96	1		25-656(1.5)
38,566	11-12-96	1	Rpld	25-652(26.5), (80.5), (94.3), (129.5)
38,567	11-12-96	1		11.1-15
38,568	11-12-96	1	Rpld	11.1-11.1
38,573	11-19-96	1	Rpld	24-25.1, 24-25.3.1 24-26—24-148
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38,576	11-26-96	1		App. A, § 8-5
38,582	11-26-96	1	Added	25-653(63.5.1), (91.5), (109.1)
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38,583	11-26-96	1	Rpld	25-653(132)

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38,614	1-14-97	1		17.1-44(31)
38,632	1-28-97	1		25-302(a), (b)
38,637	2-11-97	1		2-524, 2-525, 2-527
38,644	2-11-97	1		25-596(3)
38,676	3-11-97	9		2-460(e)
38,677	3-11-97	1		2-46, 2-47, 17.1-1—17.1-3, 17.1-19, 17.1-22, 17.1-25, 17.1-26, 17.1-44(2)
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38,685	3-25-97	1		29-8
38,721	4-22-97	1		25-653(56.1), (103.4.1)
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38,724	4-22-97	1		25-656(11.5)
38,730	5-13-97	1		7-1—7-22, 7-27—7-37, 7-47—7-52
38,733	5-13-97	1		33-38
38,735	5-13-97	1		2-84(f)
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38,743	5-13-97	1	Rpld	25-660(14), (196), (199)
38,745	5-13-97	1		25-660(33.5), (184.6)
38,752	5-20-97	1	Rpld	2-118(c)
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38,755	5-20-97	1		24-215.1
38,756	5-20-97	1		39.1-8
38,757	5-20-97	2		25.1-75
38,758	5-20-97	1		2-42
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38,821	7-15-97	1		46.1-32
38,822	7-15-97	1	Added	36-11(c)
38,828	7-15-97	1		9-6, 9-7
38,835	7-15-97	1	Rpld	25-654(277.5)
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38,839	7-15-97	1		25-158.5
38,840	7-15-97	1		9-4.2(a)(1)a.
38,841	7-15-97	1	Added	25-654(195.6), (195.8), (195.9)
38,842	7-15-97	1	Rpld	25-653(107)
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38,847	7-15-97	1		47-1
38,849	7-15-97	1		2-46(a)
38,850	7-22-97	1		App. A, § 2-3
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38,853	7-22-97	1	Added	29-23.2
38,854	7-22-97	1		29-8
38,855	7-22-97	1	Added	27-51—27-57
38,858	7-22-97	1	Added	27-58—27-64
38,870	8-19-97	1		25-650(39)
38,871	8-19-97	1		25-656(40.8), (101)
38,875	8-19-97	1		24-25.2
38,880	8-26-97	1		App. A, § 2-3
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38,884	8-26-97	1	Rpld	25-654(108.8)
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38,887	8-26-97	1		27-60
38,892	8-26-97	1		24-25.9(f)
38,900	9-23-97	1		37-46
38,917	9-23-97	1		2-118(f), (g)
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38,918	9-30-97	1		24-309
38,922	10-14-97	1		38-5—38-5.2
38,928	10-14-97			25-652(17.5)
38,930	10-14-97	1		25-286.9
38,935	10-14-97	1	Rpld	25-653(78), (119)
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38,936	10-14-97	1		25-653(47.6), (98.5)
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38,937	10-14-97	1		25-632
38,948	10-28-97	1		37-116
38,955	10-28-97	1		25-654(47.3), (47.3.5), (47.4), (67.49.1), (79.1), (79.5), (121.51), (186.3), (192.6), (192.7), (276.3), (282.6)

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38,979	11-25-97	1	Rpld	25-652(52.5)
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38,980	11-25-97	1		2-33
38,981	11-25-97	8		2-118(f), (g)
38,986	12- 9-97	1		24-25.9(g)
38,987	12- 9-97	1		38-8
38,995	12- 9-97	1		34-50
38,998	12- 9-97	1		25-632(1)
39,002	12- 9-97	1		37-81
39,009	12-30-97	1	Rpld	24-213(b)
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			Added	24-214(a)(2)g.
39,014	1-13-98	1	Rpld	25-282(7), 25-287, 25-288, 25.1-38, 25.1-128
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39,030	1-27-98	1	Rpld	12-274
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39,060	2-24-98	1		25-656(66.5)
39,069	3- 3-98	1		24-26
39,070	3- 3-98	1		11.1-5
39,079	3-10-98	1	Rpld	25-646(11), (12)
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39,081	3-10-98	1	Rpld	32-3, 32-3.0, 32-3.14.1, 32-3.14.4
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39,103	4-14-98	1		App. A, § 8-0.2, 8-0.12(b)(1)
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39,115	4-21-98	1		24-26
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39,122	4-28-98	1		25.1-62(d)
39,123	4-28-98	1		25-280
39,127	4-28-98	1		24-252—24-263
39,128	4-28-98	1		2-155(h)(5)
		2		2-155.1(b)
39,157	5-26-98	1		29-72
39,160	5-26-98	1		24-185
39,161	5-26-98	1		2-155(a)
39,174	5-26-98	1	Rpld	2-135—2-137,
			Rpld	2-418—2-420
			Rpld	16-25.1(d)
		2		2-118(a), (c), (d), (h)
39,175	5-26-98	1		17.1-49(1)—(3)
39,176	5-26-98	1		24-289
		2		24-294
39,177	5-26-98	1		24-25.9(e)(2), (f)(2)
39,178	5-26-98	1		24-160(b), (g)
39,180	5-26-98	1		24-3(3)
39,181	5-26-98	1		16-9.1
39,182	5-26-98	1		29-67(a)
		2		29-68(d)(1)
		3		29-69(a)
39,183	5-26-98	1		24-203
39,184	5-26-98	1		11.1-11.1
39,185	5-26-98	1		11.1-15(j)
39,186	5-26-98	1		29-69.1
39,187	5-26-98	1		25-255.1
39,188	5-26-98	1		25-285
39,189	5-26-98	1		25-132(a)(2)
39,190	5-26-98	1		25-286
39,191	5-26-98	1		42-62
39,192	5-26-98	1, 2		42-9(c)(1), (3)
		3		42-18(c)
		4		42-63
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39,193	5-26-98	1		46.1-32(c)
39,194	5-26-98	1		24-214(a)(2)g.
39,200	5-26-98	1		24-3(5)
39,201	6- 2-98	1		46.1-32(f)
39,202	6- 2-98	1		46.1-32(a)
39,203	6- 2-98	1		24-164

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39,205	6- 9-98	1		App. A, § 11-25
39,207	6- 9-98	1		App. A, §§ 11-20.4(f)(2), 11-21.3(h)(3), 16-6.5, 16-8.6
39,214	6- 9-98	1		25-654(81.5), (98.5), (121.3), (129.43), (130.4), (246.3), (249.3)—(249.3.3), (279.1), (279.3)
39,221	6-30-98	1		App. A, § 9-1.4(b)(6)
39,224	6-30-98	1		29-71
39,226	6-30-98	1		7-1
39,229	6-30-98	1	Rpld	25-660(16), (74), (98)
		2		25-654(67.44), (101.50), (121.70), (156.30), (262.8), (262.83)
39,241	6-30-98	1	Rpld	2-460
		2		2-460.2
39,242	6-30-98	1		38-133
39,259	8-18-98	1		App. A, Tables 6-5, 7-6
39,265	8-18-98	1		25-652(108.1)
39,267	8-18-98	1		2-48(a)(11)
39,268	8-18-98	1		11.1-2.1 11.1-5, 11.1-5.1 11.1-11, 11.1-12 11.1-62.1, 11.1-62.2 11.1-62.4 11.1-63.1, 11.1-63.2 11.1-71—11.1-73 11.1-74(a) 11.1-75, 11.1-76 11.1-77(2) 11.1-78(a), (d) 11.1-79 11.1-83(b) 11.1-84 11.1-98 11.1-101, 11.1-102
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39,280	8-18-98	1		42-36—42-51.1
39,281	8-18-98	1		18-1(i)
39,282	8-18-98	1		App. A, § 2-3
		2		App. A, Table 5-4 App. A, Table 6-5 App. A, Table 7-6 App. A, Table 10-8
39,286	8-18-98	1		25-656(15.5)
39,288	8-18-98	1		29-73.
39,293	8-18-98	1		2-524
39,301	8-25-98	1		25-660(34.5), (51.5)
39,319	9-22-98	1		App. A, §§ 9-1.1—

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39,321	9-22-98	1	Rpld	25-653(115)
		2		25-654(236.2)
		3		25-654(12.1), (12.6), (70.7), (82.2), (133.3), (143.5), (148.5), (161.5.1), (161.7), (161.8), (186.7), (196.3.5), (210.3), (223.5), (234.5), (255.1), (255.2), (256.1), (271.0.5), (302.4.3)
39,335	9-22-98			25-282(7)
39,339	10-20-98	1		App. A, §§ 11-2, 26-0—26-14
39,340	10-20-98	1		15-1—15-15
39,341	10-20-98	1		42.5-1, 42.5-2
			Added	42.5-3
			Rnmb	42.5-3—42.5-15 as 42.5-4—42.5-16
39,344	10-20-98	1		33.1-39
39,345	10-20-98	1	Rpld	25-652(28), (48), 25-655(40), 25-660(73)
		2		25-652(28.1), (48.5), (131)
		3	Added	25-654(86.1.1), (101.4), (121.6)—(121.9), (145.7), (355)
39,350	10-20-98	1		24-14
39,354	10-20-98	1		24-203
39,370	11-10-98	1		25.1-75
		2		25.1-87(13), (14)
39,381	11-24-98	1		App. A, § 11-26
39,383	11-24-98	1		25.1-61(a)
39,388	11-24-98	1		25-653(20.5)
		2		25-654(17.5), (81.6)—(81.9), (101.05), (163.3), (167.05), (197.1.03), (202.6), (202.7), (232.6), (234.6), (237.05), (237.7), (237.8), (251.5), (277.6), (290.5), (291.7), (291.8), (339.5.5), (341.5.5)
		3		(72.5)
39,390	11-24-98	1	Rpld	25-652(15)

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39,398	12-28-98	1		25-132(h)
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39,421	1-12-99	1	Rpld	2-84(f)
		2		2-111.3, 2-111.4
39,427	1-12-99	1		25.1-125
39,441	1-26-99	1		24-288
39,449	1-26-99	1		24-214
39,450	1-26-99	1		46.1-37
39,451	1-26-99	1		39.1-11, 39.1-12
39,452	1-26-99	1		41-54.1(6)
39,454	2- 9-99	1		24-212—24-212.4
39,460	2- 9-99	1		25-286.10
39,467	2-16-99	1		App. A, § 12-1
39,481	2-23-99	1	Added	25.652(62.5)
		2	Added	25-654(72.01), (72.3), (121.2), (121.21), (156.5.7), (275.4), (276.7), (277.3), (302.2)
39,486	2-23-99	1	Rpld	25-653(59), (85), (107.4), (118)
			Added	25-654(232), (251.5)
		2	Added	25-654(36.3), (69.5), (144.3), (160.7), (177.5), (186.5.3), (218.3), (249.1), (265.9), (267.5), (268.5), (268.7), (291.1), (291.3), (343.1), (345.5)
39,472	2-16-99	1		App. A, § 11-27
39,480	2-23-99	1		32-2(e)
39,491	2-23-99	3	Added	25.1-129.1
39,494	2-23-99	1, 2		25.1-75, 25.1-75.1
39,497	2-23-99	1	Rpld	2-118(d)(3)
39,502	3- 9-99	1		25-651(6.6.1), (17.92)
39,505	3- 9-99	1		25-132(f), (h)
		2		25-132(i)
39,506	3- 9-99	1		25-12
39,507	3- 9-99	1		25-13
39,508	3- 9-99	1		25-14
39,511	3- 9-99	1		25-4
39,520	3-23-99	1	Rpld	25-652(40), (41)
		2	Added	25-652(41.5)
39,522	3-23-99	1		29-10
39,546	4-13-99	1		14.5-9
39,547	4-13-99	1		25-660(215.5), (215.51)

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39,590	5-18-99	1	Rpld	2-118(a), (c), (f), (g)
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			Rpld	32-3.14.5
		2		2-118(i), (j)
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		6		32-3.14.6—32-3.14.8
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39,591	5-18-99	1—4		12-266—12-269
		5		12-275
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39,592	5-18-99	1		24-3(4)
39,596	5-18-99	1	Rpld	2-53
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		3		2-53.1
39,610	6- 8-99	1, 2		27-52, 27-53
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39,618	6- 8-99	1		8-47
39,635	6-22-99	1	Rpld	25-653(85.2), (116.6)
		2		25-653(12.9), (126.3)
		3		25-654(31.1.5), (237.5.2), (341.3)
39,649	6-22-99	1	Rpld	27-4, 27-5, 27-10—27-13
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39,650	6-22-99	1	Rpld	36-2
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39,651	6-22-99	1		29-58
39,652	6-22-99	1		25-293
39,654	6-22-99	1		11.1-16
39,655	6-22-99	1		17.1-17.1
39,656	6-22-99	1		16-8.1
39,657	6-22-99	1		29-48
39,658	6-22-99	1		45-2(b)
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39,663	6-22-99	1		25-646(40.5)
39,665	6-22-99	1		46.1-32(a)—(c)
39,668	6-22-99	1		24-3(4)
39,669	6-22-99	1		24-332—24-341
39,684	8-17-99	1		App. A, § 11-28
39,696	8-17-99	1		App. A, §§ 11-29—11-29.4
39,700	8-17-99	1		2-327.2(i)

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		2 Rpld		25-653(71)
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		5		25-654(67.49.2)
		6		25-656(38.4), (64.5)
39,706	8-24-99	1		25-255
39,711	8-24-99	1		37-2(j)
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39,717	8-31-99	1 Rpld		6-1—6-6, 6-9—6-18, 6-59—6-61, 6-75—6-85, 6-102—6-111
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39,719	9-14-99	1	Added	App. A, § 11-30
39,721	9-14-99	1		37-65
39,722	9-14-99	1		24-25.2
		2		24-25.3(c)(2)
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39,723	9-14-99	1 Rpld		25.2-93, 25.2-142
39,726	9-14-99	1 Rpld		22-33
39,731	9-28-99	1		24-164
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39,741	10-26-99	1		25.2-48.1
39,746	10-26-99			12-137
39,749	10-26-99	1		25-651(17.757)
39,757	11- 9-99	1	Rpld	34-1—34-12, 34-12.1 34-13—34-15, 34-17—34-33, 34-50—34-54, 34-56, 34-71—34-73, 34-75, 34-77—34-87, 34-101—34-109
		2	Added	34.1—1—34.1-13, 34.1-13.1,

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39,758	11-9-99	1	Rpld	25-649(109.5)
		2	Rpld	25-653(87.5)

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		3		25-652(12.9)
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		5		25-656(89.7)
39,762	11- 9-99	1		25.1-115
39,767	11- 9-99	1		25.1-125
39,770	11- 9-99	1		6.1-81.1
39,772	11-16-99	1	Rpld	App. A, § 11-13.5(2)
39,782	11-23-99	1		App. A, § 11-20.4(f)(4)—(6)
		2		App. A, § 11-21.3(h)(1), (5)—(7)
39,788	11-23-99	1		23-2.1, 23-2.2
		2		23-3
39,798	11-23-99	1		37-62
39,803	12-14-99	1		App. A, § 11-2.10(a)
39,804	12-14-99	1		App. A, Table 6-5
39,819	12-14-99	1		25.2-58
39,820	12-14-99	1		24-334
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39,827	1-11-2000	1	Rpld	25.1-115(3)c.
		2	Added	25.1-115(2)p.—r.
39,830	1-11-2000	1		App. A, § 9-1.4(b)(6), (9)
39,846	2- 1-2000	1		25-660(116.5), (122)
39,848	2- 1-2000	1		25-660(37.5), (225.5)
39,855	2- 1-2000	1	Rpld	25-653(24), (136)
		2	Rpld	25-654(265.9), (267.5), (268.5), (268.7)
		3		25-654(71.3), (85.5), (90.3), (224.5), (232.2), (267.2), (267.4), (292.1), (293.6), (349.3)
39,856	2- 1-2000	1	Rpld	25-654(237.5.2)
		2		25-654(31.05), (33.7), (46.5), (67.46), (79.05), (95.3), (121.10), (121.11), (129.1), (146.7), (237.7)—(237.9), (341.4)
39,857	2- 1-2000	1		25.1-115
39,859	2- 1-2000	1	Rpld	25-654(93), (94), (197.1.03)
		2		25-650(32.8), (38)
		3		25-654(31.06), (91.5), (111.3), (138.5), (180.3), (190.1), (192.3), (246.7), (293.5), (302.43)
		4		25-656(84.7)
39,860	2- 1-2000	1		25-282(10)
39,865	2- 8-2000	1		30-265
39,892	3-14-2000	1		2-54.1

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39,911	4-11-2000	1	Rpld	25-653(16), (36.5), (123), (128.4)
		2	Rpld	25-654(79.5), (121.6), (121.8), (129.1), (237.9), (257), (293.5), (302.41), (302.43), (340.3)—(340.6)
		3		25-651(10.7)
		4		25-654(31.01), (31.02), (33.8), (67.42), (71.4), (79), (86.3), (95.1), (95.2), (95.2.1), (117.1), (121.10), (121.11), (129.2.1), (137.4), (137.4.1)—(137.4.3), (140.4), (140.4.1), (148.05), (148.2.1), (153.1), (161.4.1), (170.6), (179.6.1), (186.5.1), (196.3.1), (196.3.2), (206.1), (213.7), (235), (237.5.05), (237.5.1.1), (237.5.1.2), (254.1), (254.2), (271.1.1), (282.2), (292.1), (293), (302.4.1), (302.4.4), (302.4.5), (341.4), (341.5.1), (345.1)
39,912	4-11-2000	1		33.1-53(1)a.
39,914	4-11-2000	1		16-9
39,921	4-11-2000	1		29-8
39,924	4-25-2000	1		App. A, Table 8-6
39,927	4-25-2000	1		25-286.12
39,928	4-25-2000	1	Rpld	11.1-61—11.1-64
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39,932	4-25-2000	1		25-592
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39,934	4-25-2000	1		34.1-47
		2		34.1-48(3)
		3		34.1-60(a), (c)
39,951	5-16-2000	1		24-335(note)
39,956	5-16-2000	1		16-9.1
39,957	5-16-2000	1	Dltd	2-118(h)
39,958	5-16-2000	1	Rpld	2-460.2(a)
		2		15.2-3
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39,964	5-23-2000	1	Rpld	25-653(63), (118.5)
		2		25-650(33.9)
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		6		25-656(8.1), (24.1), (58.6), (61.1), (104.6)
39,965	5-23-2000	1		29-75
39,971	5-23-2000	1	Rpld	41-42—41-104
		2	Added	41-1—41-41
39,972	5-23-2000	1	Rpld	17.1-17.1,
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39,986	6-20-00	1		47-1
39,987	6-20-00	1		29-54
40,004	6-20-00	1		24-200(b)
40,011	6-20-00	1		24-252(b)—(h)
		2—4		24-253—24-255
40,016	6-27-00	1		17.1-28
40,023	6-27-00	1		25-52
40,024	6-27-00	1		25-593
40,025	6-27-00	1		25.1-62(d)
40,032	7-11-00	1		24-25.3(j)
40,033	7-11-00	1		24-338
40,076	8-15-00	1		25-285(4)
		2		25-285.1
40,081	8-15-00	1		25.1-75
		2		25.1-75.1
		3		25.1-86
		4		25.1-87(15)
40,088	8-22-00	1		25.1-75
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		3		25.1-88(16)
40,089	8-22-00	1		6.1-50
		2		6.1-77(3)
		3		6.1-80(b)
		4		6.1-81.1
40,092	8-22-00	1	Rpld	25-649(41)
		2	Rpld	25-652(39)
		3	Rpld	25-654(47.3), (47.3.5), (67.49.1)
		4	Added	25-650(11.3.1), (24.1)
		5	Added	25-651(17), (17.93)

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		6	Added	25-654(68.6), (71.5), (101.3.1), (121.50), (178.1), (186.8), (196.3.0), (214.4), (223.4), (276.04), (276.06), (277.5), (302.2.1), (352.6)
		7	Added	25-656(11.4), (47.1), (69.1)
40,096	8-29-00	1		25-282(11)
40,097	8-29-00	1		25.1-161.1
40,100	8-29-00	1		47-6
40,107	9-19-00	1		25.1-115(2)t.
40,114	9-19-00	1		42-196
		2—6		42-198—42-202
40,121	9-26-00	2		24-16
40,123	10-10-00	1		App. A, § 13-6.3(b)(1)
40,124	10-10-00	1		App. A, Table 10-8
40,127	10-10-00	1		24-213
		2		24-214(a)
40,128	10-10-00	1		24-342—24-348
40,133	10-10-00	1		27-10
40,134	10-10-00	1		27-6(b)
40,135	10-10-00	1		37-62(c)
40,140	10-17-00	1	Rpld	25-652(98)
		2	Rpld	25-653(62.6), (83), (87.3)
		3	Rpld	25-656(53)
		4	Added	25-656(101.5.1), (101.6.7), (115.6), (116.1), (151.7.0), (156.5), (161.59.1), (180.4), (190.7.0), (259.1), (275.1), (341.1)
		5	Rpld	25-656(93.1), (97.1)
40,149	11- 7-00	1		25-660(245.5)
40,150	11- 7-00	1		25-646(37), (40.5)
		2	Rpld	25-646(41), 25-650(34)
40,154	11- 7-00	1		2-326.3
40,160	11-21-00	1	Rpld	25-596(3)
40,161	11-28-00	1		App. A, Table 5-4
40,165	11-28-00	1		17.1-25.1
40,181	12-12-00	1, 2		29-74, 29-75
40,188	12-19-00	1		37-47
40,192	1- 9-01	1	Rpld	25-653(72)
		2	Rpld	25-654(237.8)
		3	Added	25-654(16.5), (108.8), (137.6), (162.6), (163.4), (163.6), (174.1), (174.2), (291.9)
40,200	1- 9-01	1		25-646(15.5)
40,212	2-13-01	1		42-52
		2		42-55
		3, 4		42-64, 42-65

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40,213	2-13-01	1		42-66
40,235	2-27-01	1		25-654(42.4), (44.4), (67.49.3), (79.5), (82.3), (82.4), (101.2), (121.5.1), (144.1), (170.5.1), (179.7.1.0), (181.6), (192.6.1), (233.6), (240.6), (344.2)
40,237	2-27-01	1		2-4
40,238	3- 6-01	1		App. A, §§ 2-3, 25-10.1
		2		App. A, Tables 5-4, 6-5, 7-6, 8-6, 9-5, 10-8, 11-20.3, 11-20.5, 11-24.6, 15-A
40,247	3-20-01	1	Rpld	25-653(140.1)
		2		25-654(282.2)
		3		25-651(10.3), (10.6.1), (12.4)
		4		25-653(62)
		5		25-654(18.1), (83.1), (121.22), (148.06), (179.7.1), (192.6.1), (219.1), (247.2), (282.4), (292.2), (302.3.2.0)
40,252	3-27-01	1		16-8.3
40,253	3-27-01	1		16-8.2
40,274	4-17-01	1		41-22
		2		41-29
40,278	4-24-01	1		25-255
40,279	4-24-01	1		25-256(1)
40,283	4-24-01	1		29-12
40,292	5- 8-01	1	Added	App. A, § 11-31
40,306	5-15-01	1		39.1-8(a)
40,312	5-15-01	1		25.1-75
		2		25.1-140
		3		25-285.1
		4		25.1-86(11)
40,313	5-15-01	1		25-302(a), (b)
40,314	5-15-01	1		17.1-49
40,315	5-15-01	1		12-266
		2		12-267
		3		12-268
		4		12-269
		5		12-290.1
		6		12-290.3(1)—(3)
		7		12-290.4
40,316	5-15-01	1		41-21(a)—(e)
40,317	5-15-01	1		24-25.9(e)(2), (f)(2)
		2	Added	24-25.9(h)
40,322	5-22-01	1	Added	17.1-21(d)
40,325	5-22-01	1	Added	25.2-76(d)
40,331	5-22-01	1		25-152
40,336	6- 5-01	1	Added	25-293.1
40,337	6- 5-01	1	Added	29-76

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40,338	6- 5-01	1	Rpld	25.1-27, 25.1-31, 25.1-88
		2		25.1-21
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		4		25.1-23
		5		25.1-33
		6		25.1-35(a)
		7		25.1-36(a)
		8		25.1-37(a)
		9		25.1-61(a)
		10		25.1-62(a), (d)
		11		25.1-115
		12		25.1-125(b)
40,339	6- 5-01	1		25-293
40,340	6- 5-01	1	Added	25-293.2
40,344	6- 5-01	1		12-8
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		12		12-213(4)
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		14		12-218(a)
		15		12-237(c)
		16		12-238
		17		12-248(a)
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40,344	6- 5-01	1	Added	12-135, 12-136
40,345	6- 5-01	1	Added	12-89.1.2
40,346	6- 5-01	1	Added	12-89.10, 12-89.11
40,347	6- 5-01	1	Rpld	12-289
40,348	6- 5-01	1	Added	12-195, 12-196
40,363	6-12-01	1	Added	25-649(21), (26)
		2	Added	25-651(20.7), (20.8)
		3	Added	25-652(15)
		4	Added	25-653(27.4), (91), (160.5)
		5	Added	25-654(124.5), (186.7.2), (237.06), (282.1.2)
		6	Added	25-655(1.1)
40,377	6-19-01	1		46.1-32(b)(1)—(3)
40,378	6-19-01	1	Added	2-327.2(k), (l)
		2		2-327.2(a)(1), (d)
		3		25-652(1), 25-660(1), 25-661(a), 25-662(1)
		4		42-53, 42-80, 42-89, 42-99
		5		App. A, § 15-5.1(i)
		6		App, A, § 15-6.1(c)
40,381	6-19-01	2	Added	37-43(e)

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		3		37-47(a)
		4		37-61(c), (d)
		6	Rpld	37-61(g)—(k)
		7		37-81(2)
		8	Added	37-81(3)
40,391	6-26-01	1	Added	25-656.1
40,392	6-26-01	1		37-22(a)(8)
		2	Added	37-22(a)(9)
40,393	6-26-01	1	Added	37-61(m), (n)
40,404	7-10-01	1	Added	App. A, § 4-0.10(f)
40,417	7-24-01	1		App. A, § 25-4
40,418	7-24-01	1		App. A, § 11-12.3
40,432	7-31-01	1	Rpld	25-652(19.6)
		2	Added	25-660(4.5)
40,435	7-31-01	1		25-293(b)(5)
		2, 3	Added	25-293(b)(6), (7)
40,452	8-28-01	1		29-36
40,453	8-28-01	1		25.1-33
40,454	8-28-01	1		25.1-75
		2	Added	25.1-86(17)
40,455	8-28-01	1		29-48
40,456	8-28-01	1		29-16.1
40,457	8-28-01	1		14.1-82
40,460	9-11-01	2	Rpld	25-653(71.8), (77.1)
		3	Rpld	25-654(82)
		4	Added	25-652(12), (52.8), (58.3), (58.4)
		5	Added	25-653(46), (63.5.0), (114.5), (116.4), (129.4)
		6	Added	26-654(148.07), (163.4.1), (173.4), (196.6), (233.7), (237.07), (240.5.1), (265.8.1)
		7	Added	25-656(34.1)
40,462	9-11-01	1		25.1-75
40,467	9-11-01	1		46.1-32(b)(4), (5)
		2		46.1-32(b)(1)—(3)
40,476	9-25-01	1		8-1
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		13	Added	8-47.6, 8-47.7, 8-48.5, 8-60
40,475	9-25-01	1—7		14.1-4—14.1-10
40,478	10- 2-01	1		25-256.1
40,495	10- 9-01	1	Rpld	14-31
		2	Rpld	14.1-68
		3	Rpld	14.1-97
		4	Rpld	14.1-134
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40,505	11- 6-01	1	Added	8-47.5
40,514	11-13-01	1		25-660
40,515	11-13-01	1		25-653
		2		25-654
40,520	11-27-01	1		App. A, Table 15A
40,521	11-27-01	1	Added	App. A, 11-32
40,532	11-27-01	1		33-43
40,536	11-27-01	1		27-8(b)
40,538	11-27-01	1		16-97
40,539	11-27-01	1		16-34(a), (b)
		2	Added	16-34(c)
40,541	12-11-01	1		App. A, 15-6.1 App. A, 17-3.1, 17-3.2, 17-4.2—17-4.4, 17-5, 17-7 17-9, 17-11, 17-12, 17-13.1
40,553	12-11-01	1	Added	11.1-110—11.1-122
40,554	12-11-01	1	Added	29-10.1
40,400	7-26-01	1—15	Added	2.1-1—1.1-7
40,571	12-18-01	1		2-53.1(c)
40,576	1- 8-02	1	Added	App. A, 11-33
40,578	1- 8-02	1(Att. A)		App. A, § 11-18.1
		2(Att. B)	Added	App. A, §§ 11-18.4.1—11-18.4.3
40,580	1- 8-02	1		42-20.2(e)
		2		42-20.3(d)
40,594	1-29-02	1		42-16
40,597	2- 5-02	1		29-5(a)
40,599	2-12-02	1	Added	App. A, 11-34
40,603	2-12-02	1	Added	2-156
40,606	2-19-02	1(Att. A)		App. A, §§ 16-1, 16-2, 16-5.2, 16-6.8, 16-6.19—16-6.22, 16-8.2, 16-8.3, 16-8.5, 16-8.6, 16-10.2, 11-20.4, 11-21, 11-24, 11-31
40,617	2-19-02	1	Rpld	14.1-29, 14.1-39, 14.1-61, 14.1-95, 14.1-105, 14.1-127
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40,623	2-26-02	1		16-92
40,626	2-26-02	1		25/1-75
		2		25/1-87(10)
		3		25-285.1
40,633	3-19-02	1	Rpld	25-646(49)
		2	Rpld	25-650(7), (8)
		3	Rpld	25-652(109)
		4	Rpld	25-653(44.5), (124), (132)
		5	Rpld	25-654(39.1)
		6	Added	25-646(32), (48.6), (48.7)
		7	Added	25-650(6.6)
		8		25-652(119)
		9		25-653(10.6), (95.3), (116.1)
		10		25-654(31.01.1), (31.01.2), (39.0), (45), (45.1), (76.6), (76.7), (112.1), (142.1.1.0), (191.4), (233.3), (341.5.4), (350.0)
		11		25-656(48.1), (52.1), (64.4)
40,628	3- 5-02	1	Rpld	37-22(h), (i)
		2		37-2(l)
		3		37-47(b)
		4		37-74(f)
40,640	3-19-02	1		25-293(d)
40,646	3-26-02	1	Rpld	25-646(30)
		2	Rpld	25-653(81), (140.5), (144.55)
		3	Rpld	25-654(179.7.1)
		4		25-646(48.6)
		5	Added	25-654(177.1), (179.6.2), (179.7.2), (186.7.3), (219.2), (237.8), 293.6.1), 293.7.1), 293.7.2), (302.3.2.2)
40,653	3-26-02	2		25.1-75
		2		25.1-87(10)
		3		25-285.1
40,664	4- 9-02	1(Exh. A)		App. A, § 2-3
		2	Added	App. A, § 25-10.1(7)
		3(Exh. B)		App. A, Table 6-5
		4(Exh. C)		App. A, Table 8-6
40,665	4- 9-02	1(Exh. A)		App. A, § 2-3
		2(Exh. B)	Dltd	App. A, § 11-3.14
		3(Exh. C)		App. A, § 26-4(f)
40,696	5-14-02	1	Added	41.1-6
40,697	5-14-02	1		27-8(e)
40,698	5-14-02	1	Added	11.1-80(o)

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40,708	5-21-02	1		24-234
40,709	5-21-02	1		24-253
40,710	5-21-02	1		24-215.1(a)
40,711	5-21-02	1		24-3(5)
40,712	5-21-02	1		24-25.9(h)(2)
40,724	5-21-02	1	Added	37-70(4)
		2		37-81(2)
40,725	5-21-02	1		2-42
40,733	6- 4-02	1		39.1-13
40,739	6- 4-02	1		2-49(e)
40,751	6-25-02	1	Rpld	Ch. 18
		2	Added	Ch. 18.1
40,767	7- 9-02	1	Rpld	App. A, § 11-2.12(c)
40,778	7-16-02	1	Added	42-18(d)
40,781	7-16-02	1		2-118(j)
40,783	7-30-02	1	Added	App. A, § 27-22
40,790	7-30-02	1	Added	25-660(51.4), (98)
40,791	7-30-02	1	Rpld	25-653(38)
		2	Added	25-649(81)
		3	Added	25-653(34.6), (39.4), (114.4)
		4	Added	25-654(67.41), (70.4), (85.1), (87.0), (88.2), (96.5.2), (115.5.1), (179.5.1), (179.9), (206.0), (221.1),(237.12), (256.0), (277.4), (277.5.1), (280.04), (350.2)
40,798	8-20-02	1	Added	App. A, § 27-21
40,800	8-20-02	1		6.1-86
40,801	8-20-02	1	Rpld	6.1-9
40,802	8-20-02	1		24-207(5)
		2		24-209
40,825	9-17-02	1		8-56
40,826	9-17-02	1		25.2-76
40,827	9-17-02	1		25.2-126
40,828	9-17-02	1		28-12(d)
40,834	9-17-02	1		24-3(5)
40,837	9-24-02	1		25-131.1
40,843	9-24-02	1		25-134.1(a)
40,848	9-24-02	1		24-253
40,858	10- 8-02	1		46.1-12(a), (d)
40,876	11- 5-02	1		6.1-5
40,877	11- 5-02	1	Added	6.1-8.1
40,878	11- 5-02	1	Added	6.1-14
40,883	11-12-02	1	Rpld	25-654(178), (276.5), (341.8)
		2	Added	25-653(16), (104.1)
		3	Added	25-654(67.48), (70.0), (72.4), (150.1), (178), (213.5.1), (213.9), (213.10), (237.11.1), (271.3), (276.56.1), (276.56.2), (285.9), (292.1.1), (341.0)

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40,893	11-19-02	1	Added	App. A, § 10-9
40,908	12-17-02	1	Dltd;	12-137
			Added	12-93
40,911	12-17-02	1	Added	12-138
40,924		1	Added	App. A, § 11-35
40,925	1-14-03	1	Rpld	25-653(15.5.1), (54.4), (70.7), (70.71), (134.7)
		2	Added	25-646(35)
		3	Added	25-652(42.1)
		4	Added	25-654(34.1), (45.2), (76.5.1), (76.8), (76.9), (87.6), (91.6), (108.1), (124.4), (136), (162.6.1), (196.3.3), (197.1.03), (197.1.04), (197.1.05), (238.1), (238.2), (274.1), (275.2), (291.6)
40,938	1-28-03	1	Added	25-293.2(g)
40,939	1-28-03	1		24-291
40,940	1-28-03	1		24-239
40,947	2- 4-03	1		24-258(a)
40,953	2- 4-03	1		24-203
40,954	2- 4-03	1	Added	24-203.1
40,958	2-11-03	1		25-601(a)
40,959	2-11-03	1		25-299
40,971	3-11-03	1	Added	App. A, § 11-36
40,972	3-11-03	1		App. A, § 4-0.9(a)
40,980	3-11-03	1		32-63
40,981	3-11-03	1		13-25
40,982	3-18-03	1		24-212.4
40,986	3-18-03	1		25-280
40,989	3-18-03	1		29-59
40,996	3-25-03	1		24-203
40,997	3-25-03	1		24-203.1
41,018	4- 8-03	1	Added	17.1-46
41-031	5- 6-03	1, 2		5-162.29
		3	Rpld	5-162.30—5-162.39
41,035	5-13-03	1(Exh. A)		App. A, Table 10-8
41,038	5-13-03	1	Rpld	25-654(156.30), (262.83)
		2	Added	25-654(78.6), (88.1.0), 115.5.0), (186.7.1.0), (254.3), (276.05.1), (276.5), (284.3), (284.4), (291.10)
41,045	5-20-03	1		16-9
41,047	5-20-03	7		37-81(2)
		8		24-215.1(a)
		9		24-309
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				12-275
		12		16-25(b)(4)
		13		39.1-8(a)

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		14		46.1-32(a), (b)(1), (2), (c)
		15	Rpld	46.1-32(b)(4)
		16		46.1-37(a)
41-049	6- 3-03	1(Exh. A)		App. A, Table 7-6
41,055	6- 3-03	1		2-48(11)
41,070	6-17-03	13		2.1-2-2.1-4
			Added	2.1-8, 2.1-9
41,075	6-24-03	1		24-203
41-076	6-24-03	1		24-203.1
41,082	7- 1-03	1	Added	2-48(a)(8.5)
41,084	7- 1-03	1		29-58(e)
41,088	7- 8-03	1	Added	25.2-168.1
41,092	7- 8-03	1		25-656.1(c)
41,093	7- 8-03	1		24-203
41,096	7-15-03	1		29-5(a)
41,100	7-15-03	1, 2		46.1-1-46.1-70
41,113	7-22-03	1	Rpld	25-653(103), (130)
		2	Added	25-647(5.6)
		3	Added	25-650(4), (6.4)
		4	Added	25-652(21.1), (76.1), (90.1), (90.2)
		5	Added	25-653(109.0) (131.5)
		6	Added	25-654(67.46.1), (67.49.1) (68.7), (70.6.1), (76.4), (109.3), (115.5.2), (121.6) (156.5.6), (161.59.2), (161.59.3), (173.3), (193.4), (207.1), (219.6), (223.4.1), (234.,7), (234.8), (254.2.1), (259.2), (273.1), (273.56.3), (281.1), (284.2), (302.3.2.0.1)
41,114	7-22-03	1		15.2-23
41,119	8-19-03	1		14.1-82
41,120	8-19-03	1		14.1-85
41,121		1		14.1-9
41,137	8-26-03	1	Added	App. A, §§ 11-36.4, 11-36.5
41,160	9- 9-03	1	Added	2-173
41,163	9- 9-03	1		2-49(a)
41,176	9-30-03	1		App. A, §§ 9-0.9, 9-4.7, 9-4.9, 9-4.10
41,184	9-30-03	1		32-68, 32-71
41,203	10-28-03	1		App. A, § 2-3
		2		App. A, Tables 8-6, 15A
		3		App. A, §§ 8-5.4, 8-5.7(a), (b), (e) 8-5.8, 8-5.9
41,207	10-28-03	1	Added	12-139, 12-140

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41,213	11- 4-03	1		App. A, Tables 11-24.3, 11-24.6
41,218	11- 4-03	1	Added	38-3(b)(10
		2		38-4(b)
41,231	11-18-03	1	Added	25-651(9.1)
		2	Added	25-654(96.7), (97.1) (117.7), (117.8), (167.6), (112.3), (202.8), (285.8.1), (291.2), (291.3.1)
41,260	12- 2-03	1	Rpld	29-68
		2	Added	29-67.1—29-67.14
41,261	12- 2-03	1		17.1-1—17.1-3 17.1-13, 17.1-15 17.1-16 17.1-22—17.1-24 17.1-44(10), 17.1-49 17.1-50, 17.1-60
41,292	1-27-04	1		App. A, §§ 4-11.4, 4-12.4
		2		App. A, §§ 4-12.4, 4-12.5
		3		App. A, §§ 4-11.6, 4-12.6
		4		App. A, Tables 4-16, 4-A, 15-A
41,296	1-27-04	1	Rpld	47-3
41,303	2- 3-04	1		37-2(j)
41,308	2-10-04	1	Added	25-286.13
41-310	2-10-04	1	Added	25-649(89), (89.16) (113)
		2	Added	26-650(9.1)
		3	Added	25-652(129.5)
		4	Added	25-653(121.1)
		5	Added	25-654(13.1), (97.2) (101.4.1), (108.2.1) (116.2), (117.6.1) (121.90), (143.1) (148.6), (148.7) (178.6), (193.6) (237.08), (259.1.1) (280.3), (291.0) (293.7.0), (341.5.2)
41,318	2-17-04	1		App. A, §§ 8-0.2, 8-0.12(b)(1) Table 8.6
		2	Added	App. A, §§ 8-6.1—8-6.8
41,329	2-24-04	1	Added	26-654(94), (96.5.1.1) (150.2), (341.5.3)
41,338	3-16-04	1		App. A, § 25-4
41,340	3-16-04	1		25.1-75
		3		25.1-86
		4		25.1-87
41,333	3- 2-04	1	Added	12-89.12
		2	Added	12-290.3(6)
41,337	3- 9-04	1	Rpld	32-40

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		2		32-35—32-38
41,345	3-23-04	1, 2	Added	32-72.1—32-72.5
		3		Ch. 32, Art. III(title)
41,357	4- 6-04	1		25-13
		2		25-14
		3		25-635
		4		33-40
41,358	4- 6-04	1	Rpld	25-651(12.5) (14)—(16), (17.7.57)
		2	Rpld	25-653(11), (13.5) (46.5), (51.5)
		3	Rpld	25-654(83)
		4	Rpld	25-655(24), (25)
		5	Added	25-649(104)
		6		25-651(9.1)
		7	Added	25-651(1.6)
		8		25-653(130.6), (130.7)
		9	Added	25-64(35.3), (67.45.1) (80.1), (121.12) (190.7.2), (192.4) (202.9) (254.2.2)—(254.2.5) (291.00), (342.1)
		10	Added	25-655(25.1)
		11	Added	25-656(11.3), (91.6)
41,359	4- 6-04	1		25-601(a)
41,368	4-13-04	1	Added	29-77
41,369	4-20-04	1	Added	App. A, § 11-37
41,374	4-20-04	1	Added	App. A, § 11-38
41,377	4-20-04	1	Rpld	25-649(17), (24) (25), (36), (39) (51), (65), (69) (79), (80), (89.5) (91), (99.5), (101) (106), (109)
		2		25-646(32.3), (48.5)
41,408	5-18-04	7		27-81(2)
		8		24-215.1(a)
		9		41-21(a)
		10		12-266—12-269 12-290.1, 12-290.3 12-290.4
		11		13-69—13-64.1 13-65.1
			Added	13-65.2
		12	Added	33-2
41,389	6-11-04	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, Table 6.5
41,410	5-18-04	1	Added	2-118.2
41,418	5-25-04	1(Exh. A)	Added	App. A, § 11-39
41,427	6- 8-04	1(Exh. A)		App. A, § 16-3
		2		App. A, § 16-6.5
41,441	6- 8-04	1	Added	37-43(f)
41,443	6-15-04	1		14.1-139
41,447	6-15-04	1		2-49(e)
41,450	6-22-04	1		25-646(48.1)
41,454	6-22-04	1		37-2(j)

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41,467	6-29-04	1		14.1-139
41,468	6-29-04	1		14.1-139
41,470	6-29-04	1		22-1
		2	Added	22-14
		3	Added	22-15
41,471	6-29-04	1		29-3
41,496	7-20-04	1	Added	24-212.5
41,520	8-17-04	1		14.1-111
		2		14.1-45
		3		14.1-75(15)
41,535	8-17-04	1		29-77
41,544	8-24-04	1		App. A, §§ 26-13.3, 26-13.4 26-13.7
41,547	8-24-04	1	Added	25-660(10.1), (153.1) (157.1), (214.1)
41,549	8-24-04	1		42.5-7(b), (e)(4)
41,550	8-24-04	1	Added	29-78
41,551	8-24-04	1		Ch. 8 title
		2	Rpld	8-55
		3		8-47
		4		8-52
		5		8-53
		6		8-54
41,568	8-31-04	1	Added	8-1(c)
41,589	9-28-04	1		25-655(88)
		2	Added	26-651(16.2) (20.9), (20.10)
		3	Added	26-652(76.0)
		4	Added	25-654(12.8) (104.1), (117.0) (177.2), (191.6) (265.4.1)
		5	Added	25-656(51.1)
		6	Rnbd as	26-654(104.1) (215)
41,606	10-19-04	1	Added	12-141
41,607	10-19-04	1	Added	12-89.13
		2	Added	12-290.3(7)
41,608	10-19-04	1	Added	47-2.1
41,614	10-26-04	1	Added	25-660(259.1)
41,616	11- 2-04	1		42-202(c)
41,637	11-16-04	1	Rpld	25-654(182) (183), (185)
		2	Added	25-654(25.1) (27.1), (31.0.1) (31.0.2), (183) (184), (218.7) (218.8), (218.9) (218.10)
		3	Rnbd as	25-654(184) (185)
			Rnbd as	(186) (182)
			Rnbd as	(218.5.5) 218.52)
41,639	11-16-04	1	Rpld	26-653(77.5)

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				(81.5), (140.6)
		2	Added	25-653(4), (39.7) (39.8)
		3	Added	25-654(35.4), (67.44.1) (67.44.2), (67.44.3) (80.2), (80.2.0) (138.6), (150.0.1) (150.0.2), (150.0.3) (161.5.0), (161.5.0.1) (170.7), (192.3.1) (206.0.1), (218.0) (236.2.1), (263.5.1) (265.4.0), (265.4.2) (265.4.3), (271.1.1) (276.2), (285) (302.3.2.1)
		4	Added	25-656(57.1)
		5	Rnbd as	26-654(271.1.1) (271.1.2)
			Rnbd as	(302.3.2.0) (302.3.2.2)
			Rnbd as	(302.3.2.0.1) (302.3.2.3)
			Rnbd as	(302.3.2.1) (302.3.4)
			Rnbd as	(302.3.2.2) (302.3.2.5)
41,641	11-16-04	1		49-4
		2		49-5
41,648	11-23-04	1(Exh. A)	Added	App. A, § 27-25
41,667	12-14-04	1		25-251.1
		2		25-252
		3		25-253
		4		25-255
		5		25-255.1
		6		25-256
		7		25-256.1
		8		25-256.2
		9		25-257
		10		25-258
41,684	1- 4-05	1	Rpld	24-164, 24-165 24-170, 24-172 24-173
		2	Added	24-174, 24-174.1
41,696	1-18-05	1		26-1(j), (k)
		2		26-3(a), (c)
41,709	2- 1-05	1	Added	25-286.14
41,714	2- 8-05	1	Added	34.1-31(d)
41,716	2- 8-05	1	Added	25-321—25-323
41,720	2-15-05	1		App. A, Table 10.8
41,722	2-15-05	1		App. A, § 11-2.2
		2		App. A, § 11-2.3
		3		App. A, § 11-2.6
		4		App. A, § 11-2.8
		5		App. A, § 11-2.9
		6		App. A, § 11-2.10

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		7	App. A, § 11-2.11
		8	App. A, § 11-2.12
		9	App. A, § 17-3.2
		10	App. A, § 22-7
		11	App. A, § 26-13.2
		12	App. A, § 26-13.4
		13	App. A, § 26-13.6
41,726	2-15-05	1	15-2
		2	15-4
		3	15-5
		4	15-6

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		5		15-8
		6		15-3
41,727	2-15-05	1		42.5-2
		2		42.5-3
		3		42.5-7(f)
		4		42.5-10(10)
		5		42.5-12(16)
41,728	2-15-05	1		45-1—45-31
41,730	3- 1-05	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 6-5
		3(Exh. C)		App. A, § 7-6
41,734	3- 1-05	1	Rpld	25-653(12.5),(28) (51), (57) (79), (131)
		2	Added	25-652(38)
		3	Added	25-654(33.10), (33.11) (67.45.0.1), (76.5.0) (80.0), (121.11.1) (123), (123.1) (140.3.1), (179.5.2) (281.0), (302.4.1.0) (341.5.2.1)
		4	Added	25-656(103.1)
41,738	3- 1-05	1		2-18
41,756	3-22-05	1		14.1-20
		2		14.1-80
		3		14.1-86
		4		14.1-89
		5		14.1-74(6)
41,762	3-22-05	1		24-159
		2		24-162
41,767	3-29-05	1(Exh. A)	Added	App. A, § 11-40
41,775	3-29-05	1	Added	25-286.15
41,776	3-29-05	1		25.2-48.1
41,782	3-29-05	1	Added	24-25.9(c)(14)
41,788	4- 5-05	1		24-25.2
41,828	5-10-05	1	Rpld	25-653(163)
		2	Added	25-647(4.6)
		3	Added	25-653(109.0.1)
		4	Added	25-654(37.0, (70.5.1) (70.5.2), (70.6.0) (101.06), (129.6) (159.6), (186.56) (192.3.2), (193.1) (202.7.1)—(202.7.4) (210.4), (228.1) (237.9), (237.9.0) (262.7.1), 262.7.2) (343.0) (350.3)—(350.5)
41,834	5-17-05	1	Added	25-286.16
41,839	5-17-05	7		17.1-49(c)
		8		24-184
		9		24-204, 24-206—24-209 24-211
		10	Added	24-209.1

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		11		29-69.1
		12		37-81(2)
			Added	(4), (5)
		13		41-21
		14	Added	2-585—2-593
41,842	5-17-05	12A	Rpld	2-66—2-114
				2-131—2-134
		12B		2-52
		12C	Added	2.1-1.1, 2.1-1.2
				2.1-2—2.1-4
			Added	2.1-10—2.1-45
		12D		37-26.1
41,847	5-24-05	1	Added	29-79
41,848	5-24-05	1	Added	24-233
41,849	5-24-05	1	Added	25-286.17
41,813	4-26-05	1	Added	32-17
41,861	6-14-05	1		App. A, § 11-2.9
		2		App. A, § 11-2.10
		3		App. A, § 11-2.11
41,862	6-14-05	1	Added	32-17
41,869	6-14-05	1		42-10
41,871	6-14-05	1	Rpld	2-545—2-550
41,880	6-14-05	1	Added	29-73.1
41,881	6-14-05	1	Rpld	29-71, 29-72
		2		29-73
41,890	6-14-05	1	Added	33.1-110—33.1-117
41,958	7-19-05	1		41-21
41,965	8-16-05	1	Rpld	25-653(134.5)
		2	Added	25-651(1.7), (1.8)
		3	Added	25-652(59.2)
		4	Added	25-653(36.5)
		5	Added	25-654(95.4), (95.4.1) (101.5.3), (101.5.4) (108.2.0), (180.3.1) (186.5.0), (202.8.1) (271.6), (271.7) (282.7)
41,974	8-16-05	1		37-82.1
41,980	8-23-05	1		25-286,1(g)(6)
		2		25-286.1(g)(2)
		3		25-286.2(g)(2), (4), (6)—(8)
		4		(h)(1)
42,005	8-30-05	1		25-302(a), (b)
		2		25-601(a)
42,007	8-30-05	1	Added	34.1-68—34.1-73
41,900	6-21-05	1	Added	25-286.2
		2	Rnbd as	25-286.2 25-286.2.1
		3	Added	25-286.18
41,935	7-19-05	1(Exh. A)	Added	App. A, § 27-23
41,939	7-19-05	1(Exh. A)	Added	App. A, § 27-24
41,986	8-30-05	1(Exh. A)		App. A, Table 4-16
42,048	10-18-05	1(Exh. A)	Added	App. A, § 11-41
42,052	10-18-05	1(Exh. A)		App. A, Table 6.5
42,059	10-25-05	1	Added	25-660(157.2)
42,063	10-25-05	1	Added	12-141.1

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42,071	11- 1-05	1		25.1-37
42,073	11- 8-05	1		14.1-100
42,080	11-15-05	1		24-14
42,086	11-29-05	1(Exh. A)		App. A, § 10-9.12
42-092	11-29-05	1		24-3
41,095	11-29-05	1	Rpld	25-653(98), (100 (100), (113 (129), (161)
		2	Rpld	25-654(95.4.1)
		3		25-652(79.8)
		4	Added	25-654(115.5.0.1) (180.3.1.2) (180.3.1.3) (204.1), (206.0) (206.0.1), (225.1) (276.04.1), (350.0)
		5	Added	25-656(34.1.1)
		6	Added	25-654(206.02), (206.0.3), (350.0.0)
			Rnbd as	(206.0.0) (206.0.2)
			Rnbd as	206.0.1) (206.0.3)
			Rnbd as	(350.0) (305.0.0)
42,098	11-29-05	1		2-42
42,101	12-13-05	1(Exh. A)	Added	App. A, § 9-1.4(c)
42,102	12-13-05	1(Exh. A)		App. A, § 11-21.3(b), (c)
42,104	12-13-05	1(Exh. A)	Added	App. A, § 11-42
42,124	12-20-05	1		2-48(a)(12)
42,126	12-20-05	1	Rpld	27-48, 27-50
		2		27-45
		3		27-46
		4		27-47
		5		27-49
42,133	1-10-06	1(Exh. A)		App. A, § 2-3
42,134	1-10-06	1		App. A, Table 10-8
42,135	1-10-06	1(Exh. A)		App. A, § 11-12
42,137	1-10-06	1		24-34
42,139	1-10-06	1(Exh. A)		App. A, § 11-27
42,151	1-24-06	1	Rpld	29-71.1, 29-71.2 29-72.1, 29-72.2
42,156	1-31-06	1(Exh. A)		App. A, § 11-32.1
42,162	1-31-06	1	Added	25-286.19
42,183	2-14-06	1(Exh. A)		24-26
42,199	3- 7-06	1		25-251
42,200	3- 7-06	1	Added	25-651(6.1)
		2	Added	25-653(39.5.1), (115)
		3	Added	26-654(35.5, (43.1) (137.4.4)—(137.4.6) (161,2,1), (193.5.1) (271.2.1), (271.3.1)
		4	Added	25-656(59.1)
42,218	3-28-06	1(Exh. A)	Added	App. A, § 10-10
42,244	4-11-06	1	Added	24-6.2—24-6.5
42,250	4-25-06	1(Exh. A)		App. A, § 7-2.4

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42,260	5- 9-06	1(Exhs. A—H)		App. A, § 2-3
		2(Exh. J)		App. A, § 3-1(g)
		3(Exh. L)		App. A, § 4-0.9(d)
		4(Exh. M)		App. A, § 4.0.10(f)
		5(Exh. NNN)		App. A, § 4-11.1
		6(Exh. N)		App. A, § 4-11.4
		7(Exh. O)		App. A, § 4-11.6
		8(Exh. OOO)		App. A, § 4-12.1
		9(Exh. P)		App. A, § 4-12.4
		10(Exh. Q)		App. A, § 4-12.6
		11(Exh. R)		App. A, § 4-13.4
		12(Exh. S)		App. A, § 4-14.4
		13(Exh. T)		App. A, § 4-15.4
		14(Exh. U)		App. A, § 4-16
		15(Exh. V)		App. A, Table 4-A, Note 3
		16(Exh. W)		App. A, § 6-5
		17(Exh. X)		App. A, § 8-0.5(b)
		18(Exh. Y)		App. A, § 8-0.10
		19(Exh. Z)		App. A, § 8-0.11
		20(Exh. AA)		App. A, § 8-1.2
		21(Exh. BB)		App. A, § 8-2.2
		22(Exh. CC)		App. A, § 8-3.2
		23(Exh. DD)		App. A, § 8-4.2
		24(Exh. EE)		App. A, § 8-5.2
		25	Rnbd as	App. A, § 8.6 8.7
		26(Exh. GG)		App. A, § 9-1.7
		27(Exh. HH)		App. A, § 9-2.7
		29(Exh. JJ)		App. A, § 10-2.5
		30(Exh. LL)		App. A, § 10-2.6
		31(Exh. MM)		App. A, § 11-14.3
		32(Exh. NN)		App. A, § 11-18.4
		33(Exh. OO)		App. A, § 11-33.2
		34(Exh. PP)		App. A, § 12-3
		35(Exh. QQ)		App. A, § 12-4
		36(Exh. RR)		App. A, § 12-5
		37(Exh. SS)		App. A, § 13-4.3
		38(Exh. TT)		App. A, § 13-5
		39(Exh. UU)		App. A, § 13-6.3
		40(Exh. VV)		App. A, § 13-6.7
		41(Exh. WW)		App. A, § 15-5.1(c)
		42(Exh. XX)		App. A, § 15-5.1(i)
		43(Exh. YY)		App. A, Table 15-A
		44(Exh. MMM)	Dltd	App. A, § 16-5.2(a)(11)
		45(Exh. ZZ)		App. A, § 16-6.16
		46(Exh. AAA)		App. A, § 16-8.1
		47(Exh. BBB)		App. A, § 16-8.2
		48(Exh. CCC)		App. A, § 16-8.6
		49(Exh. DDD)		App. A, § 16-6.19
		50	Dltd	App. A, Table 16-1
		51(Exh. EEE)		App. A, § 17-5.3(b)
		52(Exh. FFF)		App. A, § 19-3.1
		53(Exh. GGG)		App. A, § 23-4
		54(Exh. HHH)		App. A, § 25-5
		55(Exh. JJJ)		App. A, § 25-9.2

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		56(Exh. KKK)		App. A, § 25-9.7
		57(Exh. LLL)		App. A, § 25-11
42,265	5- 9-06	1		33.1-110—33.1-117
42,276	5-16-06	1		24-184
42,277	5-16-06	7	Added	37-81(6)
		8		39.1-8
		9		41-21
		10		41.1-23
		11		46.1-32(e)
		12		46.1-44
42,279	5-16-06	12		2-48(a)(12)
		13		2.1-1.2
42,280	5-16-06	1, 2	Added	24-211.1—24-211.7
42,281	5-16-06	1		24-207(3), (4)
		2		24-208
		3		24-209
		4		24-209.1
42,284	5-23-06	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, Table 6-5
42,287	5-23-06	1		25-300
42,296	6- 6-06	1		2-4(b), (c)
42,301	6-13-06	1	Rpld	25-660(241)
			Added	(32.1), (268)
42,308	6-13-06	1	Added	25-649(80.5)
		2	Added	25-654(143.5.1), (162.5.1) (196.5.1), (22.1) (292.0), (340.2)
42,312	6-20-06	1		14.1-36
		2		14.1-37
42,319	6-20-06	1		33-38
42,322	6-27-06	1(Exh. A)		App. A, § 11-3.2
		2(Exh. B)		App. A, § 11-3.4
		3(Exh. C)		App. A, § 11-3.15
42,341	7-11-06	1		25-321
		2	Added	25-322(e)
42,355	8-15-06	1	Rpld	25-653(87)
		2	Added	25-648(7.6)
		3	Added	25-651(23), (24)
		4	Added	25-654(34.2), (67.42.1) (95.2.1.0), (129.4) (137.7), (148.08) (181.7), (190.4.1) (340.2.1), (279.2) (282.4.1)
		5	Added	25-656(6.1), (73.1)
42,359	8-15-06	1		17.1-24
42,360	8-15-06	1		17.1-60
42,373	8-29-06	1(Exh. A)	Added	App. A, § 27-26
42,382	8-29-06	1	Added	2-49.1
47,384	8-29-06	1	Added	25-286.20
42,392	9-12-06	1		42-201
42,393	9-12-06	1		25-280
		2		25.1-24
		3		25.1-61
42,398	9-12-06	1		34.1-5

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		2	Added	34.1-16(e)
		3	Rpld	34.1-17
		4	Added	34.1-17.1
		5		34.1-36
		6		34.1-60(a)(1)
		7	Rpld	34.1-68—34.1-73
42,403	9-19-06	1(Exh. A)		App. A, § 27-21
42,404	9-19-06	1(Exh. A)		App. A, § 2-3
		2(Exh. B)	Added	App. A, § 25-100.9
		3(Exh. C)		App. A, Table 7-6
		4(Exh. D)	Added	App. A, Table 8-7
42,406	9-19-06	1	Rpld	29-64
		2	Added	43.1-1—43.1-23
42,426	10- 3-06	1	Rpld	25-653(137.5)
		2	Added	25-649f(45.0)
		3	Added	25-653(96.6) (140.1.0)
		4	Aded	25-654(31.0.3), (35.2.0) (101.05.0), (146.7.0) (206.2), (210.4.0) (293.7.0.1), (349.3.0)
42,439	10-24-06	1(Exh. A)		App. A, § 12-8
42,458	11-21-06	1(Exh. A)		App. A, Table 8-6
42,466	11-21-06	1		6.1-2
		2		6.1-8
		3		6.1-9
		4	Added	6.1-10.1
		5	Added	6.1-15
		6		6.1-75
		7		6.1-76
		8		6.1-77
		9	Added	6.1-78.1
		10		6.1-80
		11		6.1-82
42,467	11-28-06	1	Rpld	25-653(32.5), (108.5) (109.5), (116.5) (127.5)
		2	Added	25-652(62.6)
		3	Added	25-654(33.1), (36.1) (71.6), (87.2), (108.9) (128.6), (140.4.2) (152.6), (152.8) (163.3.1), (179.6.3) (180.3.1.4), (218.0.1) (219.3), (221.2) (237.09), (246.4) (265.8.0), (285.63)
		4	Added	25-656(21.1), (34.0) (66.1), (66.2) (89.7.1)
42-468	11-28-06	1	Added	25-658
42,503	1- 9-07	1(Exh. A)		App. A, § 11-20.3
42,508	1- 9-07	1(Exh. A)	Added	App. A, § 27-27
42,529	1-30-07	1(Exh. A)		App. A, §§ 17-1—17-13
			Added	App. A, § 17-14

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42,536	1-30-07	1		42-211
		2		42-212
		3		42-213
42,539	1-30-07	1	Rpld	25-653(18.6), (73.5) (99.5), (162.5)
		2		25-654(350.0), (315)
			Added	(67.49.94), (167.7) (201.5.0), (350.1)
			Rnbd as	(350.0.0)—(350.5) (350.2)—(350.7)
42,541	1-30-07	1		6.1-78.1
42,551	2-13-07	1(Exh. A)		App. A, § 16-8.4
42,552	2-13-07	1(Exh. A)	Added	App. A, § 4-0.15
		2(Exh. B)		App. A, § 2-3
42,556	2-13-07	1(Exh. A)	Added	App. A, § 27-28
42,589	3- 6-07	1	Rpld	25-653(165)
		2	Added	25-649(35.6)
		3	Added	25-650(25.5.5), (37.1)
		4		25-651(6.1)
			Added	(6.0), (6.50)
		5	Added	25-654(80.4), (87.5.0) (87.7), (88.0) (186.7.0), (276.6.0) (338.1), (338.2) (338.3), (350.0)
			Rnbd as	(350.0)—(350.7) (350.1)—(350.8)
			Added	(356), (357)
42,590	3- 6-07	1		33-43(d)(1), (2)
42,591	3- 6-07	1		24-203(a)
42,600	3-20-07	1(Exh. A)	Added	App. A, § 10-11
42,606	3-20-07	1		37-43(e)
		2		37-47(b)
42,611	3-27-07	1(Exhs. A—F)		App. A, § 2.3
		2(Exh. G)		App. A, §§ 8-1.2, 8-1.3
		3(Exh. H)		App. A, §§ 8-2.2, 8-2.3
		4(Exh. J)		App. A, §§ 8-3.2, 8-3.3
		5(Exh. K)		App. A, §§ 8-4.2, 8-4.3
		6(Exh. L)		App. A, § 8-5.2
		7(Exh. M)		App. A, §§ 8-7.2, 8-7.3
		8(Exh. N)		App. A, § 12.3
		9(Exh. O)		App. A, § 15-5.1(c)
		10		App. A, § 16-3
		11(Exh. P)		App. A, § 16-8.2(c)
		12(Exh. R)		App. A, § 16-8.3(c)
		13(Exh. S)		App. A, § 16-8.4(c)
42,612	3-27-07	1(Exh. A)		App. A, § 16-8.6(c)
42,615	3-27-07	1	Added	13-65.2
42,624	4-10-07	1(Exh. A)	Added	App. A, § 27-29
42,635	4-24-07	1	Rpld	25-654(294.3), (284.4)
			Added	(26.1), (30.1) (41.1), (42.1)

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				(67.42.0), (144.2)
				(206.0.2.5)
				(218.9.0), (262.7.0)
				(274.2), (302.4.0)
				(302.4.3.0)
				(344.0)
42,647	5- 1-07	1		25-74
42,655	5-15-07	1		29-5
42,661	5-15-07	1		24-207(3)
		2		24-209
42,662	5-15-07	7		24-3(1), 92)
		8		24-184
		9	Added	37-81(7)
		10		39.1-8(a)
		11		41-3(d), (q)
		12		41-18(a), (b)(1)
		13		41-19
		14		41-21
		15	Rpld	41-22(a)11.
		16		41-31(b)
		17		41-32(a)
		18		41-34
		19		41-35
		20		41-38
		21		41.1-23(a)
		22	Rpld	46.1(b)(1), (2)
42,666	5-15-07	1		24-25.8(b)(1)
42,671	5-22-07	1		24-309
42,676	5-22-07	12		2-46
				2-49
				2-49.1
				2-53.1
				2-54
42,677	6- 5-07	1		24-3(4)
42,720	6-26-07	1		25-191
42,709	6-26-07	1, 2	Rpld	App. A, § 27-23
42,713	6-26-07	1(Exh. A)	Added	App. A, § 11-44
42,731	7-10-07	1(Exh. A)		App. A, Table 6-5
42,733	7-10-07	1(Exh. A)		42.5-1—42.5-16
42,741	7-10-07	1		24-256
42,755	7-24-07	1(Exh. A)		App. A, Table 15-A
42,760	7-24-07	1	Rpld	15.2-18—15.2-24
		2	Added	24.1-1—24.1-8
42,765	7-24-07	1	Rpld	25-648(2), (3), (4)
		2	Rpld	25-654(95)
		3	Added	25-651(6.58), (6.59)
		4	Added	26-654(41.5), (67.1)
				(67.2), (72.3.1)
				(86.0), (104.0)
				(115.5.00), (129.2.0)
				(140.1), (142.1.0)
				(148.2.1.4), (150.2.3)
				(161.9), (170.6.5)
				(170.6.8), (192.3.1.2)
				(206.0.1.5), (223.3.5)
				(223.3.6), (223.3.7)
				(223.3.8), (223.3.9)

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				(223.4.0), (227.0) (254.2.0), (276.04.3) (287.1), (287.7) (291.4.5), (302.3.5) (340.5)
42,767	7-24-07	1	Added	12-141.2
42,768	7-24-07	1	Added	12-141.3
42,795	8-21-07	1		25-280
42,781	7-24-07	1		2-49.1(e), (f)
42,782	7-24-07	1		6.1-3
42,785	8-21-07	1(Exh. A)		App. A, Table 4-16
		2(Exh. B)	Added	App. A, § 25-10.10
42,789	8-21-07	1(Exh. A)		App. A, § 11-28.3
42,795	8-21-07	1		25-280
42,797	8-21-07	1	Rpld	25-653(13), (39.6)
		2	Rpld	25-654(101.5.4)
		3	Added	(67.45.15), (67.45.16) (67.45.17), (70.0.2) (70.0.8), (80.0.5) (101.5.5), (101.5.10) (101.5.15), (121.11.5) (121.12.10), (180.2) (186.7.1.00), (192.3.1.5) (192.4.8), (196.5.1.4) (254.2.2.6), (254.2.2.9) (263.3), (282.4.3) (282.4.5), (282.4.8) (285.8.0), (285.8.0.1) (285.8.0.2), 9285.8.0.3) (302.4.0), (302.4.1.2) (302.4.1.3)
42,814	8-28-07	1	Added	25-286.21
42,826	9-11-07	1(Exh. A)		App. A, § 12-3
42,834	9-18-07	1		41-15
		2		41-23
42,837	9-18-07	1(Exh. A)		App. A, Table 7-6
42,840	9-18-07	1		6.1-13
42,850	9-18-07	1	Added	25.2-177(d)
42,851	9-18-07	1	Rpld	4-14 25.2-41 47-1 47-4—47-7
		2		46.1-50(5)
42,853	10- 2-07	1		25-286.20(a)
42,870	10- 9-07	1	Added	2-118(k)
42,874	10-23-07	1	Added	25-656.2
49,882	10-23-07	1(Exh. A)		39.5-1—39.5-12
49,883	10-30-07	1(Exh. A)		App. A, § 27-29
42,890	10-30-07	1	Rpld	25-653(56.5), (62.5) (87.2)
		2	Added	25-649(28), (71)
		3	Added	25-651(6.52)
		4	Added	25-652(66.4.1), (73.6) (74.1)

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		5	Added	(45.1.1), (67.0) (67.1.0), (67.1.0.1) (67.2.0), (67.3) (67.3.1), (67.3.2) (67.3.3), (67.3.4) (67.49.2.1), (67.49.2.2) (67.49.3.1), (67.49.4.1) (67.49.4.2), (70.0.0) (70.0.1), (76.9.1) (85.1.1), (91.5.1) (140.2.1), (140.3.0) (151.5.0), (161.4.0) (161.4.0.1), (161.4.0.2) (161.59.4), (163.4.0) (167.6.1), (167.6.2) (179.6.0), (179.6.0.1) (179.6.0.2) (179.6.0.3) (181.5.1), (190.5.0) (197.0), (201.5.0.0) (201.5.1.0), (211.1) (232.3), (238.3) (247.1), (262.7.0.1) (262.7.02), (276.07) (342.2), (350.0.0) (350.1.1), (350.1.2) (350.2.1)
42,900	11- 6-07	1	Rpld	8-1, 8-47.6
		2		25-2
		3	Rpld	8-1—8-60
			Added	25-376—25-402
42,910	11-20-07	1	Added	25-654(67.49.03) (155.1), (155.2) (161.2.0), (278.1) (278.2), (278.6) (278.7), (278.8) (280.4.1), (341.5.6)
42,911	11-20-07	1		29-53
42,921	12- 4-07	1	Added	36.1-1—36.1-15
42,923	12- 4-07	1	Added	25-1.5
42,930	12- 4-07	1	Added	2-545—2-548
42,931	12- 4-07	1	Added	33-43.1
42,932	12- 4-07	1		2-118(k)
42,945	12-18-07		Added	26-654(31.01.3)Tc (87.5.1), (105.1) (109.1), (117.0.1) (210.4.0.1), (224.4) (238.2.1), (265.3) (350.3.9)
42,948	12-18-07	1		39.1-2 39.1-2 39.1-3 39.1-4 39.1-7

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				39.1-8
				39.1-11
				39.1-17
				39.1-18
				39.1-19
				39.1-20
				39.1-21
				39.1-23
		2	Added	39.1-24
				39/1-25
42,957	1- 8-08	1(Exh. A)		App. A, Table 7.6
42,958	1- 8-08	1(Exh. A)		App. A, § 12-9
42,964	1- 8-08	1	Rpld	25-653(20), (20.5)
				(77), (137)
			Rpld	25-654(70.0.8)
			Added	25-654(70.00.1)—
				(70.00.3)
				(146.9), (161.59.1.0)
				(169.59.1.1), (172.2.0)
				(173.1), (179.6.2.0)
				(179.6.2.1), (254.2.6)
				(273.6.3), (276.4)
				(282.1.1.0),
				(282.1.1.1)
				(293.6.0), (341.5.5.0)
42,974	1-15-08	1	Added	25-660(33.4), (36.5)
				(71.5)—(71.7)
				(74), (74.1)
				(184.7), (196)
				(212.5), (212.6)
				(214.0.1)—(214.0.3)
42,994	2-12-08	1	Rpld	25-654(49)
43,003	2-26-08	1(Exh. A)	Added	32-72.10—32-72.16
43,009	3- 4-08	1		24-203.1(b), (h)
43,010	3- 4-08	1		24-203(b), (h)
43,018	3-18-08	1	Rpld	25-653(5), (47.5)
				(127)
		2	Rpld	25-654(105.1), (240)
		3	Added	25-653(14.1)
			Added	25-64(11.10), (48.5)
				(67.42.5), (67.49.04)
				(90.1), (104.5)
				(117.9), (117.10)
				(119.1), (167.5.1),
				(186.7.1.01)
				(192.5.1), (197.1.01)
				(201.6.01), (202.1)
				(210.1), (223.1)
				(223.2), (223.2.1)
				(223.3.1)
				(265.4.7)—(265.4.9)
				(302.3.6), (341.5.5.1)
43,019	3-18-08	1	Added	25-651(9.4)
		2	Added	25-654(31.0.2.1)
				(32.0), (32.00)
				(142.1.1.1), (155.5)
				(178.0), (185.5)

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				(201.9), (221.1.1) (246.1), (249.3.3.1) (263.2), (265.11) (277.4.1), (293.7.00) (349.3.0.0), (349.3.0.1)
43,027	3-25-08	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. a, § 4-0.15
43,034	3-25-08	1		39.5-1—39.5-12
43,038	4- 8-08	1	Added	App. A, § 27-13
43,040	4- 8-08	1(Exh. A)	Added	App. A, § 11-45
43,044	4- 8-08	1(Exh. A)		App. A, § 16-3
		1(Exh. B)		App. A, § 16-3
		1(Exh. C)		App. A, § 16-3
		1(Exh. D)		App. A, § 16-4
		1(Exh. E)		App. A, § 16-6.21
		1(Exh. F)		App. A, § 16-6.22
43,069	4-29-08	1	Rpld	26-650(15), (16) (18)—(21), (22)
		2	Rpld	25-653(117.4)
		3	Rpld	25-654(265.4.48)
		4	Added	25-654(48.8), (128.7) (179.7.0)
43,070	4-29-08	1	Added	25-656(84.8)
43,078	5-13-08	1(Exhs. A—C)		App. A, § 2-3
		2(Exh. D)	Added	App. A, § 4-0.16
		3(Exh. E)		App. A, Table 5-4
		4(Exh. F)		App. A, Table 6-5
		5(Exh. G)		App. A, § 8-0.12(b)
		5(Exh. H)		App. A, § 8-0.16
		6(Exh. J)		App. A, § 8-36.
		7(Exh. K)		App. A, Table 8-6
		8(Exh. L)		App. A, § 11-3.2
		8(Exh. R)		App. A, § 0-0.7(b)
		9(Exh. M)		App. A, Table 15-A
		10(Exh. N)		App. A, § 15-5.2
		11(Exh. O)		App. A, § 26-3(c)
		12(Exh. P)		App. A, § 26-4(a)
43,090	5-22-08	1		24-207(3)
		2		24-209
43,105	6- 3-08	1	Added	25-660(86.5), (175.5)
43,139	6-24-08	1	Added	2.1-7(c)
43,143	7- 1-08	1(Exh. A)		App. A, § 2-3
43,155	7- 1-08	1		25-378(c)
43,156	7- 1-08	1	Rpld	25-292
		2	Rpld	25-649(19), (20) (27), (78), (90)
		3	Rpld	25-650(10), (15) (16), (18), (19) (21), (25), (28) (33.5)
		4	Added	25-651(17.5.5)
		5	Added	25-654(72.3.5), (117.6.5) (119.5), (197.5) (281.0.1), (339.8) (341.5.7)

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43,161	7- 1-08	1		34.1-60(a)
43,178	7-22-08	1	added	25-660(269)
43,181	7-22-08	1		17.1-19
		2		17.1-26
		3		17.1-28
		4		17.1-43
		5	Added	17.1-44(32)
43,186	8-19-08	1		25-302
		2		25-601
43,195	8-19-08	1		2-460.2(k)
43,203	8-19-08	1		29-17
43,211	9- 9-08	1	Rpld	25-654(354)
			Added	25-654(9), (67.46.0) (85.1.5), (87.3) (87.5.0.0)
43,223	9- 9-08	1		33.1-1
				33.1-2
				33.1-5
				33.1-38
				33.1-42
				33.1-44
		2	Added	33.1-57
			Added	33.1-59
			Added	33.1-92.1—33.1-92.3
43,228	9-16-08	1(Exh. A)		App. A, § 12-3
		1(Exh. B)		App. A, § 12-8
43,241	10- 7-08	1(Exh. A)		App. A, § 11-43
43,247	10- 7-08	1(Exh. A)		App. A, § 9-1.8
		2(Exh. B)		App. A, § 9-2.8
43,248	10- 7-08	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 9-0.4(h), (i)
43,259	10- 7-08	1		32-2(c)
		2		32-42
		3		32-70(a)(4)
				32-72(a)
		4		32-72.1—32-72.7
			Added	32-72.8, 32-72.9
43,261	10-28-08	1(Exh. A)		App. A, §§ 24-4.2, 24-4.3
		2(Exh. B)		App. A, §§ 25-5.2(g), 25-5.3
		3(Exh. C)	Added	App. A, § 26-4(s)
		4(Exh. D)		42.5-5
		4(Exh. E)		42.5-6
		5(Exh. F)		42.5-10(10)
			Added	42.5-10(11)
		6(Exh. G)	Added	App. A, §§ 28-1—28-4
		7(Exh. H)		App. A, § 6-0.3(d)
43,277	11-18-08	1(Exh. A)	Added	App. A, § 27-30
43,285	11-18-08	1	Rpld	25-652(1.4)
		2	Rpld	25-653(57.5)
		3	Added	25-651(12.5), (17.7)
		4	Added	25-653(134.7)
		5	Added	25-654(86.1.1), (140.3.3) (148.06.5), (218.0.5)
		6	Added	25-656.1(c)(3)

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43,288	11-18-08	1		12-22(b)
43,293	11-25-08	1	Rpld	25-652(21)
		2	Rpld	25-654(67.44), (86.1.1) (96.5). (129.3) (214), (262.8) (353)
		3	Added	25-648(3)
		4	Added	25-649(20)
		5	Added	25-649(17), (20.5) (20.9), (31), (37) (44), (45.0.1) (45.0.2), (79) (79.1)
		6	Added	25-652(129.7) (130.9), (131.1)
		7	Added	25-654(86.1.0) (114.0), (114.0.1)
		8	Added	25-660(1.5)
43,299	11-25-08	1		6.1-79
		2		25.2-32
43,312	12- 9-08	1		25-1.5
43,328	1-13-09	1(Exh. A)	Added	App. A, Table 27-21.7 Footnote (b)
43,354	2- 3-09	1(Exh. A)	Added	App. A, § 11-46
43,358	2- 3-09	1	Rpld	25-653(33), (127.6)
		2	Rpld	25-654(338.2)
		3		25-648(7)
		4		25-656.1(3)
		5	Added	25-653(113), (134.0)
		6	Added	25-654(18.0), (35.0) (80.00), (80.01) (87.4), (121.4) (223.0), (223.40) (230.1), (233.6.3) (259.1.5), 265.8.0.1) (265.8.0.3), (277.5.5) (291.6.1), (292.0.0) (302.4.1.4)
43,362	2- 3-09	1	Rpld	33-23.1
43,379	3- 3-09	1		12-22(a)
43,384	3- 3-09	1	Rpld	25-650(25.5.5)
43,387	3-24-09	1(Exh. A)	Added	App. A, § 10-12
43,391	3-24-09	1	Rpld	29-67.1—29-67.15
			Added	29-67.1
43,396	3-31-09	1(Exh. A)	Added	App. A, § 11-47
43,413	4-21-09	1		33.1-4
				33.1-26
				33.1-39
43,420	4-28-09	1(Exh. A)		App. A, § 6-0.3(a)
43,423	4-28-09	1(Exh. A)		App. A, Table 6-5
43,425	4-28-09	1		24-334
				24-337
43,426	4-28-09	1		26-1
				26-3
				26-4
				26-5

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				26-6
				26-12
43,430	5- 5-09	1		24-212.2
		2		24-212.4
43,434	5-12-09	1	Rpld	25-652(25)
		2	Added	25-648(7.5.1)
		3	Added	25-652(26.5)
		4	Added	25-653(45.2.1)
		5	Added	25-654(101.5.0)
43,435	5-12-09	1		24-203.1(d), (h)
43,441	5-12-09	1		41-21
43,445	5-19-09	1	Added	25-651(23.5)
		2	Added	25-652(79.6)
		3	Added	25-654(33.6), (197.0.01) (230.2), (231.0) (231.0.01)
43,447	5-19-09	7		46.1-32(d)
43,451	5-19-09	12		2-43.1
				2-48(a)(11)
43,453	5-19-09	1		25.1-75
43,455	5-19-09	1		24-203(h)
43,475	6-16-09	1(Exh. A)	Added	App. A, § 10-13
43,478	6-16-09	1		38-4(b)
		2		38-5.1
			Added	38-2.3—38-2.8
		3		38-87
		4		38-91
		5		38-92
43,482	6-16-09	1		24-207(4)
43,506	6-30-09	1	Added	27-70—27-77
43,511	7-14-09	1(Exh. A)		App. A, § 2.3
		2(Exh. B)		App. A, Table 4-16
		3(Exh. C)		App. A, Table 15-A
		4(Exh. D)		App. A, § 25-10.2
				App. A, § 25-10.2.1
43,515	7-14-09	1(Exh. A)	Added	App. A, § 11-49
43,518	7-14-09	1	Rpld	25-653(133)
		2	Added	25-654(70.4.1), (70.4.2) (191.4.1), (196.3.2.1) (196.3.2.2), (196.7) (196.7.1), (272.4) (272.4.1), (272.4.2) (282.3), (285.8.0.1.5)
43,525	7-21-09	1	Rpld	25-653(31), (35.1) (83.5), (102.1)
		2	Added	25-654(86.05). (91.7) (91.8), (100.5) (101.5.05), (173.4.0) (186.5.2), (206.0.9) (245.5)
		3	Added	25-656(26.5)
43,530	8-18-08	1(Exh. A)		App. A, § 11.3
43,531	8-18-09	1(Exh. A)		App. A, § 2.3
		2(Exh. B		App. A, Table 7-6
43,540	8-18-09	1	Added	25-648(4.25)

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43,541	8-18-09	1	Rpld	31-22—31-26
			Rpld	31-71—31-76
		2		25.2-43
		3		25.2-90
		4		25.2-139
				26-4
43,546	8-18-09	1		26-8
43,588	9-15-09	1(Exh. A)		App. A, § 2.3
		2(Exh. B)		App. A, Table 6-5
43,592	9-15-09	1		25-321
43,606	9-22-09	1		12-31
43,623	10-13-09	1	Added	25-660(32.0), (33.3) (109.5), (140.5) (167.0)
43,624	10-13-09	1	Rpld	25-653(18.5), (99), (162)
		2	Added	25-650(33.8.0)
		3	Added	25-654(67.49.2.3), (67.49.3.5) (67.49.4.0), (72.02) (167.6.5), (181.5.5) (197.0.05), (201.5.0.5) (201.5.0.6), (232.4) (232.4.1), (265.4.6) (350.1.3), (350.2.0)
		4	Added	25-658(9)
43,631	10-27-09	1(Exh. A)	Added	App. A, § 11.50
43,637	10-27-08	1	Added	42-52(i)
		2		42-58
43,645	10-27-09	1		24-195
43,654	11-17-09	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, Table 15-A
43,655	11-17-09	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 12-3
		3(Exh. C)		App. A, § 12-9
		3(Exh. D)	Added	App. A, § 25-10.11
43,659	11-17-09	1	Rpld	25-649(56)
		2	Rpld	25-653(135.7)
		3	Added	25-652(1.4.5), (106.5)
		4	Added	25-654(96.4.5), (161.8.1), (180.1), (292.1.0)
43,664	11-17-09	1		25.1-75
		2	Added	25.1-86(14)
		3		25.1-140
43,691	12- 8-09	1	Added	25-647(4.5.1), (5.7)
		2	Added	25-650(33.2)
43-692	12- 8-09	1		25-648(4.25)
43,694	12-15-09	1(Exh. A)		App. A, Table 8.6
		2	Rpld	App. A, Table 8.7
43,697	12-15-09	1		39.5-1—39.5-12
43,699	12-15-09	1		25-255.1
43,722	1-26-10	2		Ch. 24, Art. XII (tit.)
				24-334
				24-335
				24-338
				24-339

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				24-340
43,740	2-23-10	1(Exh. A)	Added	App. A, § 10-14
43,748	2-23-10	1		25.1-75
		2	Added	25.1-87(15), (16)
43,751	3- 2-10	1(Exh. A), 2		App. A, § 2-3
		3(Exh. B)		App. A, § 4-0.9(c)
		4(Exh. C)		App. A, § 6-0.3(a)(3)
		5(Exh. D)		App. A, Table 11-24.6
		6(Exh. E)		App. A, § 12-8
		7(Exh. F)	Rpld	App. A, § 15-5.1(d)
		8(Exh. G)		App. A, § 17-4.2
43,753	3- 2-10	1	Added	25-649(35.5.1)
		2	Added	25-654(121.11.6) (168.1), (181.5.2) (218.0.0)
43,809	4-27-10	1	Rpld	25-654(105) (106.5), (107)
		2	Added	(79.8), (148.2.0) (237.7.5), (282.0) (285.4)
43,815	5-11-10	1(Exh. A)		App. A, Table 9.5
43,820	5-11-10	1(Exh. A)		App. A, Table 9.5
43,834	5-11-10	1		29-77(b)(5)
		2		29-77(e)(6)
		3		29-77(g)
43,836	5-18-10	1		11.1-116
		2		46.1-13(a)—(g)
			Added	46.1-13(h)—(j)
		3		46.1-33(a), (b)
			Added	46.1-33(c)
43,841	5-18-10	1		25-286.22
43,842	5-18-10	1		24-25.9(d)
43,843	5-18-10	1		25-25.2
43,846	5-18-10	1		23-5(a)
43,848	5-18-10	1		12-266—12-275
		2		12-289—12-290.4
43,852	5-18-10	1		25-132(a)(1), (2)
43,853	5-18-10	1, 2		29-69.1(a)—(c)
			Added	29-69.1(d)—(h)
43,854	5-18-10	1		42.5-15
43,855	5-18-10	1		42-9(c)
		2		42-9(e)
			Added	42-9(f)
43,856	5-18-10	1		42-18(b)—(d)
43,857	5-18-10	1		42-62(a), (b)
			Added	42-62(c)—(g)
43,858	5-18-10	1	Rpld	24-164.1
			Rpld	24-166—24-169
			Rpld	24-171
		2		24-158—24-163
43,859	5-18-10	1		24-3(1)
43,861	5-25-10	2		24-3(1), (2)
43,883	6- 8-10	1		38-2.4
		2		38-4(a)—(d)
			Added	38-4(e), (f)
		3		38-5.1
43,891	6-15-10	1	Added	29-80

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43,893	6-15-10	1		12-211
43,894	6-15-10	1	Added	12-141.4
43,895	6-15-10	13	Added	36-61(o)
43,899	6-22-10	1(Exh. A)	Added	App. A, § 27-31
43,905	6-22-10	1	Rpld	25-650(35)
		2	Added	(36.4)
		3	Added	25-654(161.4.00) (200.2), (304.5)
		4	Added	24-656(11.1)
43,909	6-22-10	1		24-212.3
43,928	7-22-10	1(Exh. A)		App. A, § 25-10.8
43,939	8-17-10	1(Exh. A)		App. A, § 25-10.1(b)(4)
43,941	8-17-10	1(Exh. A)	Added	App. A, § 27-32
43,972	9-14-10	1(Exh. A)	Added	App. A, § 11-51
43,997	10- 5-10	1		37-61(b)
43,998	10- 5-10	1		25.2-31
44,000	10- 5-10	1		16-59
44,001	10- 5-10	1	Added	37-103.1
		2		37-45
		3		37-63
		4		37-70(1), (3), (4)
		5		37-71(a)(1)
		6		37-74(a), (b)
		7		37-75(a)
		8		37-103(a), (d)—(f)
		9		37-105
44,003	10-12-10	1(Exh. A)		App. A, § 2.3
		2(Exh. B)	Added	App. A, § 13-6.12
44,004	10- 5-10	1(Exh. A)		App. A, § 2.3
44,035	11- 2-10	1		25-321
44,037	11- 9-10	1	Rpld	25-651(22)
		2	Rpld	25-652(42.1)
		3	Added	25-649(36.5)
		4	Added	25-652(42.3)
		5	Added	25-654(31.0.4), (31.0.5) (67.3.01), (67.3.3.0) (67.3.3.2), (67.3.3.3) (167.04), (180.3.1.1) (276.04.4), (350.5.0)
44,039	11- 9-10	1	Added	12-211.1
44,060	12- 7-10	1	Rpld	45-30(3)e.
		2		45-28
		3		45-30(3)
44,066	12- 7-10	1		25-251—25-259
			Added	25-260
44,081	12-21-10	1		25-656
		2		25-650
		3		25-651
		4		25-656
44,084	12-21-10	1	Added	25-321(e)
44,098	1-11-11	1		25.2-32
44,102	1-11-11	1		2-4(b)
44,133	2- 8-11	1		25-152
44,134	2- 8-11	1		26-3(b)(1)
44,140	2-15-11	1(Exh. A)		App. A, § 2-3

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		2(Exh. B)		App. A, § 11-20.3
44,152	3- 1-11	1		29-58(c)
44,159	3- 8-11	1(Exh. A)		App. A, Table 11-24.3
44,161	3- 8-11	1(Exh. A)	Added	App. A, § 27-33
44,164	3- 8-11	1(Exh. A)	Added	App. A, § 27-34
44,169	3- 8-11	1		24-208
44,170	3-22-11	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, Table 4-16
		3(Exh. C)		App. A, Table 27-21.2
		4(Exh. D)		App. A, Table 27-26.3
		5(Exh. E)		App. A, Table 27-27.3
44,179	3-22-11	1		25-653
		2		25-654
44,191	3-29-11	1		45.5-2
		2		45.5-4
		3		45.5-5
44,197	4- 5-11	1		2-4
44,198	4-12-11	1(Exh. A)		App. A, Table 10-10.8
44,200	4-12-11	1(Exh. A)		App. A, § 2.3
		2(Exh. B)		App. A, Table 7.6
		3(Exh. C)		App. A, Table 8.6
		4(Exh. D)		App. A, § 11-11.7
		5(Exh. E)	Rpld	App. A, § 15-5.1(e)
				App. A, § 15-5.1(i)
		6(Exh. F)		App. A, § 16-8.1(c)
		7(Exh. G)		App. A, § 25-10.8(b)(2)
				App. A, § 25-10.9
		8(Exh. H)		App. A, §§ 25-5.3—25-5.8
		9(Exh. J)		App. A, § 26-4(g)
44,223	4-19-11	1	Added	2.1-26.5
44,224	4-19-11	1		37-75(b)
44,226	4-26-11	1	Added	29-70.1
44,229	5-10-11	1(Exh. A)		App. A, § 10-13.5
44,246	5-17-11	1		24-309
44,247	5-17-11	1		24-234
44,248	5-17-11	1		17.1-45
		2	Added	17.1-45.1
		3	Added	17.1-45.2
		4	Added	17.1-45.3
		5	Added	17.1-45.4
		6	Added	17.1-45.5
44,253	5-24-11	1		25-654
44,275	6-14-11	1(Exh. A)	Added	App. A, § 10-15
44,278	6-14-11	1		25-648
		2		25-649
		3		25-650
		4		25-651
		5		25-654
		6		25-656
44,297	4-28-11	20(A)	Added	2-595—2-598
		20(B)	Rpld	15.2-1—15.2-8
		20(C)		16-25.1
44,299	6-28-11	1		14.1-4
		2		14.1-5
		3		14.1-6

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		4		14.1-7
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		6		14.1-9
		7		14.1-10
44,303	7-12-11	1(Exh. A)		App. A, § 6.5
44,312	7-12-11	1	Added	34.2-1—34.2-10
44,316	7-12-11	1		25-653
		2, 5		25-654
		3		25-646
		4		25-652
		6		25-656
44,317	7-12-11	1, 2		25-653
		3		25-654
44,327	8-16-11	1		14.1-71
		2		14.1-72
		3	Added	14.1-68
		4	Added	14.1-134
		5		14.1-74(16)
		6	Added	14.1-75(30)
		7	Rpld	14.1-70
		8	Rpld	14.1-136
		9	Rpld	14.1-74(24)
44,334	8-23-11	1(Exh. A)		App. A, § 27-2
44,335	8-23-11	1(Exh. A)	Added	App. A, § 27-35
44,337	8-23-11	1(Exh. A)		App. A, § 4-11.4
		2(Exh. B)		App. A, § 4-12.4
		3(Exh. C)		App. A, § 4-12.5
		4(Exh. D)		App. A, Table 4-A
		5(Exh. E)		App. A, Table 15-A
44,367	9-13-11	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 6-0.3(f)
		3(Exh. C)		App. A, Table 6-5
		4(Exh. D)		App. A, § 7-0.3(d)
		5(Exh. E)		App. A, § 17-5.3(a)
		6(Exh. F)		App. A, § 17-8
		7(Exh. G)		App. A, § 25-10.1
44,381	9-13-11	1		24-25.10
44,400	10-11-11	1		22-14
44,395	10-11-11	1(Exh. A)	Rpld	App. A, § 4-0.5
44,409	10-25-11	1(Exh. A)		App. A, § 8-0.3
44,420	10-25-11	1		25-649
		2		25-648
		3		25-653
		4		25-654
44,423	10-25-11	1	Added	25-196
44,424	11-22-11	1(Exh. A)		App. A, § 16-3
		2(Exh. B)		App. A, § 16-8.5
44,425	11-22-11	1(Exh. A)		App. A, § 13-6.5
44,428	11-22-11	1(Exh. A)		App. A, Table 7-6
44,431	11-22-11	1(Exh. A)	Added	App. A, § 27-36
44,469	12-13-11	1		14.1-88
		2		14.1-96
44,470	12-13-11	1(Exh. A)		App. A, § 11-51.4
		2(Exh. B)	Added	App. A, § 11-51.6
44,471	12-13-11	1(Exh. A)		App. A, § 9-0.4(b)
		2(Exh. B)		App. A, § 9-0.6(a)
44,473	12-13-11	1	Added	38-145—39-148

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44,478	12-13-11	1		2-118(c)
44,483	12-13-11	1		37-74(c)
44-487	12-13-11	1		25-646
44,504	1-10-12	1	Added	25-286.23
44,510	1-10-12	1		16-92
44,511	1-10-12	1		25-660
44,513	1-10-12	1		24-7
44,540	1-24-12	1		25-654
44,554	2-14-12	1(Exh. A)	Added	App. A, § 13-6.13
		2(Exh. B)		App. A, § 14-4.4
		3(Exh. C)	Added	App. A, § 14-4.5
44,555	2-14-12	1(Exh. A)		App. A, § 6.5
44,556	2-14-12	1(Exh. A)		App. A, § 28-2(a), (b)
44,557	2-14-12	1(Exh. A)		App. A, § 3-2
44,558	2-14-12	1(Exh. A)		App. A, § 9-2.9
44,568	2-28-12	1		14.1-16
		2		14.1-23
		3		14.1-27
		4		14.1-34
		5		14.1-43
		6		14.1-45
		7		14.1-67
		8		14.1-82
		9		14.1-100
		10		14.1-109
		11		14.1-111
		12		14.1-133
		13		14.1-74(22)
		14		14.1-75(1), (13), (15)
			Rpld	14.1-17
		15	Rpld	14.1-25
		16	Rpld	14.1-28
		17	Rpld	14.1-33
		18	Rpld	14.1-42
		19	Rpld	14.1-44
		20	Rpld	14.1-83
		21	Rpld	14.1-91
		22	Rpld	14.1-94
		23	Rpld	14.1-99
		24	Rpld	14.1-108
		25	Rpld	14.1-110
		26	Rpld	14.1-74(11), (14)
		27	Rpld	14.1-75(2), (4), (12), (14)
44,580	2-28-12	1		45-13
44,583	2-16-12	1		26-5
		2		41-26
		3	Added	41-10.1
44,584	2-28-12	1		25-653
		2		25-649
		3		25-651
		4		25-652
		5		25-654
44,586	2-28-12	1	Added	2-599—2-603
44,593	3-27-12	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 4-12.5
		3(Exh. C)		App. A, Table 8.6

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		4(Exh. D)		App. A, § 13-16.12(a)
44,594	3-27-12	1		App. A, § 16-3
		2(Exh. A)		App. A, § 16-4(c)
		3(Exh. B)		App. A, § 16-6.21
			Rpld	App. A, § 16-6.22
44,596	3-27-12	1		11.1-5
				11.5-5.1
44,614	3-27-12	1	Added	37-44(b)
		2		37-74(f)
44,624	4-10-12	1		18.1-2
		2		18.1-10
44,635	4-24-12	1(Exh. A)		App. A, § 7-1.3
		2(Exh. B)		App. A, § 7-2.3
		3(Exh. C)		App. A, § 7-3.3
		4(Exh. D)		App. A, § 7-4.3
		5(Exh. E)		App. A, § 7-5.3
44,694	5-22-12	1	Added	34.3-1—34.3-30
44,695	5-22-12	8	Added	37-81(8)
		9	Added	23-4
		10		41.1-23
44,705	6-12-12	1(Exh. A)		App. A, § 25-10.1(c)
44,707	6-12-12	1		25-653
		2		25-649
		3		25-654
44,717	6-12-12	1	Rpld	2-523—2-529
		2	Added	2.1-1.3
		3	Added	2.1-46—2.1-55
44,719	6-12-12	1	Added	37-74(g)
44,720	6-12-12	1	Added	37-103.1(j)
44,727	6-26-12	1	Added	46.1-32(g)
44,741	6-26-12	11.1(a)		2-46(a)
				2-47(a)
				2-48(a)(12)
				2-49
				2-50
				2-54(d)
			Added	2-54.2
		(b)	Added	2.1-1.4, 2.1-1.5
		(c)		Ch. 2.1, Art. IV (tit.)
				2.1-8, 2.1-9
		(e)		2.1-22
44,787	8-28-12	1(Exh. A)		App. A, § 2-3
44,804	8-28-12	1		25-321
44,807	8-28-12	1		25-653
		2		25-654
		3		25-656
44,811	8-28-12	1	Rpld	25-377
			Rpld	25-379—25-385
		2		25-378
		3		25-398
44,822	8-28-12	1	Added	2.1-56—2.1-61, 2.1-62—2.1-67
44,823	8-28-12	1	Added	6.1-100
44,829	9-11-12	1(Exh. A)		App. A, § 12-9
44,838	9-11-12	1		39.1-1—39.1-25
		2	Added	39.1-26—39.1-38
44,851	10- 9-12	1(Exh. A)		App. A, § 25-10.1(c)

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44,870	10- 9-12	1		25.1-75
44,884	10-23-12	1, 3		25-654
		2		25-651
		4		25-656
44,896	10-23-12	1		27-6
		2		27-8
44,906	11-13-12	1(Exh. A)		App. A, § 6-4.3
		2(Exh. B)		App. A, § 6-5
44,975	1- 8-13	1, 4		25-654
		2		25-649
		3		25-653
		5		25-656
44,998	1-29-13	1, 2		6.1-100
45,007	2-12-13	1		24-204
		2		24-205
		3		24-206
		4		24-207
		5		24-208
		6		24-209
		7		24-209.1
		8	Added	24-209.2
45,009	2-26-13	1, 2(Exhs. A, B)		App. A, § 2-3
		3(Exh. C)		App. A, § 6-5
		4(Exh. D)		App. A, § 11-20.3
45,013	2-26-13	1		14.1-62
		2		14.1-75(29)
		3		14.1-85
		4		14.1-128
45,034	3-19-13	1		39.1-2
45,046	3-26-13	1(Exh. A)		App. A, § 10-10
45,049	3-26-13	1		25-653
		2		25-648
		3		25-650
		4		25-651
		5		25-652
		6		25-654
45,052	4- 9-13	1(Exh. A)		App. A, § 8-4.3
		2(Exh. B)		App. A, § 13-5.1(b)
		3(Exh. C)		App. A, § 25-10.2.1(b)
45,063	4- 9-13	1		33.1-110—33.1-118
45,066	4-23-13	1(Exh. A)	Added	App. A, § 11-52
45,071	4-23-13	1	Added	42-201(3)
45,080	5-14-13	1(Exh. A)		App. A, § 11-31.2
45,081	5-14-13	1(Exh. A)		App. A, § 24-3
45,084	5-14-13	14		2.1-38
		15		17.1-49(c)(3), (5), (6), (8)
		16		24-184
		17		25.1-26
		18		25.1-61
		19		25.1-75
		20		25.1-140
		21		33-43(d)(2)
		22		41.1-23(a)
		23		42.5-15
45,086	5-14-13	15		2.1-1.3
45,103	5-21-13	1(Exh. A)		App. A, § 2-3

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		2(Exh. B)		App. A, §§ 8-0—8-7
				App. A, Tables 8-A, 8-B
45,115	5-21-13	1		29-17
45,118	5-21-13	1	Rpld	24-203(h)
		2	Rpld	24-203.1(h)
45,119	5-21-13	1		42-36—42-51.1
		2	Rpld	18.1-30—18.1-37
45,141	6-11-13	1	Added	29-81
45,144	6-11-13	1	Added	12-89.4.1
45,145	6-11-13	1	Added	12-82.1
45,146	6-11-13	1	Added	12-89.7.1
45,156	6-25-13	1		14.1-117
45,167	6-25-13	1		33.1-115(e)(9)
		2		33.1-117
		3		33.1-118
45,176	7- 9-13	1(Exh. A)		App. A, § 13-3
		2(Exh. B)		App. A, § 13-6.3
		3(Exh. C)		App. A, § 19-1
45,180	7- 9-13	1		25-652
		2, 3		25-654
45,184	7-23-13	2(Exh. A)		App. A, § 2-3
		3(Exh. B)		App. A, §§ 3-1, 3-3
		4(Exh. C)		App. A, §§ 4-0—4-15
			Rpld	App. A, § 4-16
			Added	App. A, § 4-16
				App. A, Table 4-A
			Added	App. A, Table 4-B
		5(Exh. D)		App. A, §§ 5-0—5-3
			Rpld	App. A, § 5-4
			Added	App. A, Tables 5-A, 5-B
		6(Exh. E)		App. A, §§ 6-0—6-4
				App. A, Table 6-A
			Rpld	App. A, § 6-5
			Added	App. A, Table 6-B
		7(Exh. F)		App. A, §§ 7-0—7-5
				App. A, Table 7-A
			Rpld	App. A, § 7-6
			Added	App. A, Table 7-B
		8(Exh. G)		App. A, § 8-0.2
			Rpld	App. A, § 8-7
				App. A, Tables 8-A, 8-B
		9(Exh. H)		App. A, §§ 9-0—9-4
			Rpld	App. A, § 9-5
			Added	App. A, Table 9-A
		10(Exh. J)		App. A, §§ 10-0—10-7
			Rpld	App. A, § 10-8
				App. A, §§ 10-9—10-15
			Rpld	App. A, § 10-12
			Added	App. A, § 10-16
			Added	App. A, Tables 10-A, 10-B
		11(Exh. K)		App. A, § 11-11

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				App. A, §§ 11-20, 11-21
				App. A, § 11-24
				App. A, §§ 11-31, 11-33
				App. A, § 11-41
				App. A, §§ 11-43, 11-44
				App. A, § 11-51
			Rpld	App. A, Table 11-20.5
			Rpld	App. A, Table 11-24.3
			Rpld	App. A, Table 11-31.5
			Rpld	App. A, Table 11-41.5
			Rpld	App. A, Table 11-51.4
			Added	App. A, Table 11-21-A
			Added	App. A, Table 11-21-B
			Added	App. A, Table 11-24-A
			Added	App. A, Table 11-24-B
			Added	App. A, Table 11-31-A
			Added	App. A, Table 11-31-B
			Added	App. A, Table 11-33-A
			Added	App. A, Table 11-33-B
			Added	App. A, Table 11-41-A
			Added	App. A, Table 11-41-B
			Added	App. A, Table 11-51-A
		12(Exh. L)		App. A, § 13-6
		13(Exh. M)		App. A, § 25-2
				App. A, § 25-3
				App. A, § 25-5
				App. A, § 25-9
				App. A, § 25-10
		14(Exh. N)		App. A, § 27-13
				App. A, § 27-21
				App. A, § 27-22
				App. A, § 27-24
				App. A, §§ 27-26—27-36
			Added	App. A, Table 27-13-A
			Added	App. A, Table 27-21-A
			Added	App. A, Table 27-21-B
			Added	App. A, Table 27-22-A

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			Added	App. A, Table 27-24-A
			Added	App. A, Table 27-26-A
			Added	App. A, Table 27-26-B
			Added	App. A, Table 27-27-A
			Added	App. A, Table 27-28-A
			Added	App. A, Table 27-29-A
			Added	App. A, Table 27-30-A
			Added	App. A, Table 27-31-A
			Added	App. A, Table 27-32-A
			Added	App. A, Table 27-33-A
			Added	App. A, Table 27-34-A
			Added	App. A, Table 27-35-A
			Added	App. A, Table 27-36-A
45,211	8-27-13	1(Exh. A)		App. A, Table 8-A
45,221	8-27-13	1		25-321
		2		25-322
		3	Added	25-324
		4	Added	25-325
45,245	9-10-13	1	Added	25.1-125.1
45,248	9-10-13	1		6.1-7
45,260	10- 8-13	1(Exh. A)		App. A, Table 4-A
		2(Exh. B)		App. A, § 25-10.2.2
45,296	10-22-13	1	Added	25-637
45,305	11-26-13	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 11-3
45,309	11-26-13	1(Exh. A)		App. A, Table 10-A
45,310	11-26-13	1(Exh. A)		App. A, Table 6-A
45,362	12-10-13	1(Exh. A)		App. A, § 8-0.1, App. A, § 8-0.3, App. A, §§ 8-0.5—8-0.8, App. A, §§ 8-0.13—8-0.15
45,379	12-17-13	1(Exh. A)		App. A, § 11-29
45,382	12-17-13	2(Exh. A)		App. A, § 2-3
		3(a)(Exh. B)		App. A, § 5-0
		3(b)(Exh. B)		App. A, §§ 5-2.2, 5-3.2
		3(c)(Exh. B)		App. A, Table 5-A
		3(d)(Exh. B)		App. A, Table 5-B
		3(e)(Exh. B)	Rpld	App. A, §§ 5-0.7—5-0.9
			Rpld	App. A, §§ 5-1.2—5-1.5

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			Rpld	App. A, §§ 5-2.3—5-2.6
			Rpld	App. A, §§ 5-3.3—5-3.6
		4(a)(Exh. C)		App. A, § 6-0
		4(b)(Exh. C)		App. A, Table 6-A
		4(c)(Exh. C)		App. A, Table 6-B
		4(d)(Exh. C)	Rpld	App. A, §§ 6-0.7—6-0.9
			Rpld	App. A, §§ 6-1.2—6-1.5
			Rpld	App. A, §§ 6-2.2—6-2.5
			Rpld	App. A, §§ 6-3.2—6-3.5
			Rpld	App. A, §§ 6-4.2—6-4.5
		5(a)(Exh. D)		App. A, § 7-0
		5(b)(Exh. D)		App. A, Table 7-A
		5(c)(Exh. D)		App. A, Table 7-B
		5(d)(Exh. D)	Rpld	App. A, §§ 7-0.7, 7-0.8
			Rpld	App. A, §§ 7-1.2—7-1.5
			Rpld	App. A, §§ 7-2.2—7-2.5
			Rpld	App. A, §§ 7-3.2—7-3.5
			Rpld	App. A, §§ 7-4.2—7-4.5
			Rpld	App. A, §§ 7-5.2—7-5.5
		6(a)(Exh. E)		App. A, Table 8-A
		6(b)(Exh. E)		App. A, Table 8-B
		7(a)(Exh. F)	Rnbd	App. A, §§ 13-1, 13-2
			as	App. A, §§ 13-0, 13-1
		7(b)(Exh. F)	Added	App. A, § 13-2
		7(c)(Exh. F)		App. A, § 13-5.1
		7(d)(Exh. F)	Added	App. A, Table 13-A
		7(e)(Exh. F)	Rpld	App. A, § 13-6.3
		8(a)(Exh. G)		App. A, § 14-1
		8(b)(Exh. G)	Added	App. A, § 14-4.6
45,402	1-14-14	1(Exh. A)		App. A, § 11-11
		2(Exh. B)		App. A, § 11-41
		3(Exh. C)		App. A, Table 11-41-A
		4(Exh. D)		App. A, Table 11-41-B
45,403	1-14-14	1(Exh. A)		App. A, Table 10-A
45,415	1-14-14	1, 5		25-650
		2, 6		25-652
		3		25-653
		4		25-649
		7		25-654
		8		25-657
		9		25-660
45,420	2-11-14	1(Exh. A)	Added	App. A, § 27-37

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			Added	App. A, Table 27-37-A
45,422	2-11-14	1(Exh. A)		App. A, Table 5-A
45,423	2-11-14	1(Exh. A)		App. A, § 4-1.3
		2(Exh. B)		App. A, § 4-2.3
		3(Exh. C)		App. A, § 4-3.3
		4(Exh. D)		App. A, § 4-4.3
		5(Exh. E)		App. A, § 4-5.3
		6(Exh. F)		App. A, § 4-6.3
		7(Exh. G)		App. A, § 4-7.3
		8(Exh. H)		App. A, § 4-8.3
		9(Exh. J)		App. A, § 4-9.3
		10(Exh. K)		App. A, § 4-10.4
		11(Exh. L)		App. A, § 4-11.4
		12(Exh. M)		App. A, § 4-12.4
		13(Exh. N)		App. A, § 4-13.4
		14(Exh. O)		App. A, § 4-14.4
		15(Exh. P)		App. A, § 4-15.4
45,424	2-11-14	1(Exh. A)		App. A, § 12-3
		2(Exh. B)		App. A, § 12-9
		3(Exh. C)	Rpld	App. A, § 25-10.11
45,425	2-11-14	1(Exh. A)		App. A, § 11-24
		2(Exh. B)		App. A, Table 11-24-A
		3(Exh. C)		App. A, Table 11-24-B
45,448	2-11-14	1		24-203.1(d)
45,457	2-25-14	2(Exh. A)		App. A, § 2-3
		3(Exh. B)		App. A, § 3-1(f)
		4(Exh. C)		App. A, § 8-0.8
		5(Exh. D)		App. A, §§ 9-0—9-10, App. A, Tables 9-A, 9-B
		6(Exh. E)		App. A, § 10-9.10
		7(Exh. F)		App. A, § 10-10.5
		8(Exh. G)		App. A, §§ 11-4.4—11-4.6
			Added	App. A, §§ 11-4.7, 11-4.8
		9(Exh. H)		App. A, § 11-5
		10(Exh. J)	Added	App. A, § 15-5.3
		11(Exh. K)		App. A, § 18-5
		12(Exh. L)		App. A, § 18-6
		13(Exh. M)		App. A, § 25-10.10
45,460	2-25-14	4		32-61—32-72
		5		32-72.3
		6		32-72.7
		7	Rpld	32-72.10—32-72.15
45,470	3- 4-14	1(Exh. A)	Added	App. A, § 27-38
			Added	App. A, Table 27-38-A
45,484	3-18-14	1		2-18
45,488	3-18-14	1	Added	16-100
45,495	3-25-14	1(Exh. A)		App. A, § 16-3
		2(Exh. B)		App. A, § 16-6.15(a), (b), (l)

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45,496	3-25-14	2(Exh. A)		App. A, §§ 15-1—15-7, App. A, Tables 15-A—15-D
		3(Exh. B)		App. A, § 4-0.9(a)
		4(Exh. C)		App. A, § 10-15.5
		5(Exh. D)		App. A, § 25-10.4
		6(Exh. E)		App. A, § 25-10.8(b)
		7	Rpld	App. A, § 25-10.9(c)
		8(Exh. F)		App. A, § 25-10.10(h)
45,497	3-25-14	1(Exh. A)		App. A, § 16-8.7(a), (b)
45,499	3-25-14	1(Exh. A)		App. A, § 2.3
45,516	4- 8-14	1	Added	12-141.5
45,518	4- 8-14	1		11.1-16
45,521	4-22-14	2(Exh. A)	Rpld	App. A, § 4-10.3
				App. A, § 4-10.4
		3(Exh. B)		App. A, § 4-13.4
		4(Exh. C)		App. A, § 4-14.4
		5(Exh. D)		App. A, § 4-15.4
		6(Exh. E)		App. A, § 4-16.4
		7(Exh. F)		App. A, Table 4-A
		8(Exh. G)		App. A, Table 4-B
		9(Exh. H)		App. A, § 15-4.2(c)
			Added	App. A, § 15-4.2(d)
45,522	4-22-14	1(Exh. A)		App. A, Table 7-A
45,523	4-22-14	2(Exh. A)		App. A, § 2.3
		3(Exh. B)		App. A, § 4-0.5
		4(Exh. C)		App. A, Table 4-A
		5(Exh. D)		App. A, §§ 25-10.2, 25-10.2.1, 25-10.2.2
45,524	4-22-14	1(Exh. A)	Added	App. A, § 11-53
45,529	4-29-14	1		24-203(a)
		2		24-203.1(c)
45,531	5-13-14	1(Exh. A)		App. A, § 11-2.9(b)(5), (d), (e)
		2(a)(Exh. B)		App. A, §§ 26-2.1, 26-2.4
		2(b)(Exh. C)	Added	App. A, § 26-4(t)
		2(c)(Exh. D)		App. A, § 26-5
		2(d)(Exh. E)		App. A, § 26-8
		2(e)(Exh. F)		App. A, § 26-13.1
				App. A, § 26-13.5
				App. A, § 26-13.6(f)
45,534	5-13-14	1	Added	41.2-1—41.2-7
45,552	5-20-14	1(Exh. A)		App. A, Table 8-A
45,556	5-20-14	1		24-212.4
45,557	5-20-14	1, 4		25-653
		2, 5		25-654
		3		25-652
		6		25-656
		7		25-660
45,559	5-20-14	1	Added	46-1—46-5, 46-8, 46-9
45,563	5-20-14	15		24-205
		16		24-206
		17		24-208

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		18		24-209
		19		24-209.2
		20		24-309
		21		33-2
		22		37-103.1(a), (b), (h), (j)
		23		41-21
		24	Added	41.1-25
45,566	5-20-14	1	Added	37-84
45,589	6-10-14	19(a)	Added	2-54.3
		19(b)	Added	2.1-1.6
		19(c)	Rpld	2.1-37
		19(d)		37-61(o)
		19(e)		2-48
45,597	6-24-14	1(Exh. A)	Added	App. A, § 27-39
			Added	App. A, Table 27-39-A
45,600	6-24-14	1		15-2
		2		15-3
		3		15-5
		4		15-8
		5		15-9
45,604	6-24-14	1		37-96(b), (c)
45,606	7- 8-14	1		14.1-106
45,623	7- 8-14	1	Added	42-12.1
45,628	7-22-14	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, Table 5-A
		3(Exh. C)		App. A, Table 5-B
		4(Exh. D)		App. A, Table 6-A
		5(Exh. E)		App. A, Table 7-A
		6(Exh. F)		App. A, Table 8-A
		7(Exh. G)		App. A, Table 11-24-A
45,630	7-22-14	1		42.5-4
		2		42.5-5
		3		42.5-6
		4		42.5-15
45,631	7-22-14	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 13-2
		3(Exh. C)		App. A, § 13-3
		4(Exh. D)		App. A, Table 13-A
45,645	8-26-14	1(Exh. A)	Added	App. A, § 11-54
45,648	8-26-14	1(Exh. A)	Added	App. A, § 11-56
45,651	8-26-14	1(Exh. A)		App. A, § 10-16
		2(Exh. B)		App. A, Table 10-B
45,672	9- 9-14	1		14.1-56(tit.)
		2		14.1-75(24)
		3		14.1-122
45,703	10-14-14	1(Exh. A)		App. A, § 11-31
		2(Exh. B)		App. A, Table 11-31-A
		3(Exh. C)		App. A, Table 11-31-B
45,725	10-14-14	1		14.1-85
45,747	10-28-14	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, Table 6-A
		3(Exh. C)		App. A, Table 7-A

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		4(Exh. D)		App. A, Table 10-A
		5(Exh. E)	Added	App. A, § 25-10.11
45,748	10-28-14	1(Ehx. A)	Added	App. A, § 11-57
45,753	10-28-14	1		29-68
45,764	10-28-14	1		6.1-7(a)
45,767	11-25-14	1(Exh. A)		App. A, § 11-3
45,768	11-25-14	1(Exh. A)		App. A, § 25-10.3
		2	Rpld	App. A, § 25-10.7
45,769	11-25-14	1(Exh. A)		App. A, § 2-3
		2, 3(Exh. B)		App. A, § 16-3
		4(Exh. C)		App. A, §§ 16-4, 16-5
		5(Exh. D)		App. A, § 16-6.5
		6	Rpld	App. A, §§ 16-6.6, 16-6.16
		7(Exh. E)		App. A, § 16-6.18
		8(Exh. F)		App. A, § 16-8.1(a)
				App. A, § 16-8.2(a)
				App. A, § 16-8.3(a)
				App. A, § 16-8.4(a)
				App. A, § 16-8.5(b)
				App. A, § 16-8.6(a)
				App. A, § 16-8.7(a)
		9(Exh. G)	Added	App. A, § 16-8.8
		10(Exh. H)	Added	App. A, Table 16-T
45,781	11-25-14	1	Added	25-286.24
45,824	12-16-14	1		6.1-2
		2		6.1-3
		3		6.1-4
		4		6.1-6
		5		6.1-50
		6		6.1-80
		7		6.1-82
		8		6.1-85
		9		6.1-86
45,825	12-16-14	1	Added	2-155(k)
45,826	12-16-14	1	Added	2-155.1(l)
45,843	1-27-15	1(Exh. A)		App. A, § 10-13
		1(Exh. B)		App. A, Table 10-A
45,863	2-10-15	1, 4		25-651
		2		25-653
		3		25-649
		5		25-652
		6		25-654
45,867	2-24-15	1(Exh. A)		App. A, § 27-30
				App. A, Table 27-30-A
45,886	3-10-15	1		6.1-2
		2		6.1-77
45,910	4-14-15	1		38-106
45,915	4-28-15	1		14.1-121
45,946	5-19-15	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, §§ 22-1—22-12
45,947	5-19-15	1(Exh. A)		App. A, Table 6-A
45,954	5-19-15	18(A)		2.1-7
		18(B)	Rpld	32-3.5
		18(C)		37-84(d)

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45,955	5-19-15	15		12-91
		16		12-266(1), (2), (4), (5), (7), (8)
		17	Added	12-290.3(8), (9)
		18		24-25.2
		19		24-25.9(a), (b)
		20		24-160(b)—(e), (g)—(j)
		21		25-2(78)—(84)
		22		25-286.1(f), (g)
		23		25-286.2(g), (h)
		24		25.1-36(a)
		25		25.1-37(a), (c)
		26		25.1-102(b)
		27		25.1-125(a), (c)
		28		25.1-127(a)
		29		25.1-140
		30	Rpld	46.1-32(f)
45,984	6-23-15	1(Exh. A)		App. A, § 15-4.1
		2(Exh. B)		App. A, § 15-5
45,986	6-23-15	1(Exh. A)		App. A, Table 4-B
45,995	6-23-15	1	Added	42-10.1
46,011	7-21-15	1(Exh. A)		App. A, §§ 24-4.5, 24-4.6
		2(Exh. B)		App. A, § 24-7
		3(Exh. C)		App. A, § 25-5.6
46,012	7-21-15	1(Exh. A)		App. A, Table 11-33-A
46,018	7-21-15	1		2-600
46,044	8-25-15	1		38-106
46,046	9-15-15	1	Rpld	App. A, § 11-42
46,071	9-15-15	1		25-653
		2		25-654
46,077	9-15-15	1	Added	29-70.1(c)(11.5)
46,081	10-13-15	1	Added	34.1-60(f)
46,108	10-27-15	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 10-6.6
		(Exh. C)		App. A, § 11-20.4(f)(3)
		(Exh. D)		App. A, § 11-21.3(h)(4)
		(Exh. E)		App. A, § 11-24.4(g)(3)
		(Exh. F)		App. A, § 11-31.4(f)(3)
		(Exh. G)		App. A, § 11-33.3(g)(3)
		(Exh. H)		App. A, § 11-41.4(b)(5)(H)
		3(Exh. I)		App. A, §§ 16-1—16-11
				App. A, Table 16-A
				App. A, Table 16-B
46,113	10-27-15	1		25-646
		2		25-654
46,117	10-27-15	1	Added	33.1-119
46,136	12- 8-15	1(Exh. A)		App. A, § 4-0.5

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		2(Exh. B)		App. A, Table 4-A
46,139	12- 8-15	1		22-7
		2		22-31(c)
46,140	12- 8-15	1		6.1-77(d)
46,150	12- 8-15	1		4-11
46,171	12-15-15	1(Exh. A)		App. A, § 27-26
				App. A, Table 27-26-A
				App. A, Table 27-26-B
46,172	12-15-15	1		14.1-137
46,185	12-15-15	1	Added	25-321(i)
46,210	1-26-16	1		5-22.1
			Rpld	5-23
				5-24
			Rpld	5-26
				5-40
				5-42
46,252	2- 9-16	1		25.1-37
		2		25.1-75
		3		25.1-87
46,253	2- 9-16	1		2.1-58
46,257	2-23-16	1(Exh. A)		App. A, § 9-2.3(f)
46,259	2-23-16	1(Exh. A)		App. A, § 2.3
		2(Exh. B)		App. A, Table 4-B
		3(Exh. C)		App. A, § 15-4.1(b)(1)
		4(Exh. D)		App. A, § 15-4.2(c)
		5(Exh. E)		App. A, Table 15-A
		6(Exh. F)		App. A, Table 15-B
46,270	2-23-16	1		24-160(f)
		2		25-219
		3		42-34
		4		42-35(a)
46,271	2-23-16	1		25-646
		2		25-654
46,272	2-23-16	1		25-652
		2		25-654
46,293	3-22-16	1(Exh. A)		App. A, Table 6-A
		2(Exh. B)		App. A, § 25-10.9
46,303	3-22-16	1		28-11
		2		28-12(a)
46,349	4-26-16	1, 4		25-646
		2, 6		25-653
		3, 7		25-654
		5		25-652
		8		25-656
46,354	5-10-16	1(Exh. A)	Added	App. A, § 27-40
			Added	App. A, Table 27-40-A
46,383	5-10-16	1	Added	25-630.1
46,385	5-17-16	16		24-309
		17	Added	45.6-1—45.6-8
46,387	5-17-16	19		2-48(a)
46,390	5-24-16	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, Table 5-A
		3(Exh. C)		App. A, Table 6-A

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		4(Exh. D)		App. A, Table 7-A
		5(Exh. E)		App. A, Table 8-A
46,391	5-24-16	1(Exh. A)		App. A, § 2-3
46,392	5-24-16	1(Exh. A)		App. A, § 2-3
46,441	6-14-16	1	Rpld	16-176—16-184
46,445	6-14-16	1	Rpld	6.1-100
46,447	6-28-16	1		49-34—49-37
		3	Added	49-38—49-41
		4	Rpld	49-18—49-33
46,452	6-28-16	1(Exh. A)		App. A, § 14-4.2
46,462	6-28-16	1	Added	12-141.6
46,485	7-19-16	1(Exh. A), 2		App. A, § 2-3
		3(Exh. B)		App. A, § 4-1.3
		(Exh. C)		App. A, § 4-2.3
		(Exh. D)		App. A, § 4-3.3
		(Exh. E)		App. A, § 4-4.3
		(Exh. F)		App. A, § 4-5.3
		(Exh. G)		App. A, § 4-6.3
		(Exh. H)		App. A, § 4-7.3
		(Exh. J)		App. A, § 4-8.3
		(Exh. K)		App. A, § 4-9.3
		(Exh. L)		App. A, § 4-10.4
		4(Exh. M)		App. A, § 4-11.4
		(Exh. N)		App. A, § 4-12.4
		(Exh. O)		App. A, § 4-13.4
		(Exh. P)		App. A, § 4-14.4
		(Exh. R)		App. A, § 4-15.4
		5(Exh. S)		App. A, § 4-16.4
		6(Exh. T)		App. A, Table 4-A
		(Exh. U)		App. A, Table 4-B
		(Exh. V)		App. A, Table 10-A
		7(Exh. W)		App. A, Table 11-51-A
		8(Exh. X)		App. A, § 15-6.4(b)
		9(Exh. Y)		App. A, Table 27-22-A
46,487	7-19-16	1(Exh. A)		App. A, § 24-6
46,488	7-19-16	1	Rpld	App. A, § 11-54
46,545	8-23-16	1		24-203(a), (g)
		2	Added	24-203(h)
		3		24-203.1(a), (c), (g)
46,548	9-13-16	1(Exh. A)		App. A, § 27-27
				App. A, Table 27-27-A
46,558	9-13-16	1		25-653
		2		25-654
		3		25-656
46,608	10-25-16	1		45.5-4
46,629	11-15-16	1	Added	41.1-23(f)
46,651	11-22-16	1(Exh. A)	Rpld	App. A, § 25-10.9
46,652	11-22-16	1(Exh. A)		App. A, Table 4-A
46,653	11-22-16	1(Exh. A)		App. A, Table 8-A
46,675	12-13-16	1		25-653
		2		25-646
		3		25-654

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46,682	12-20-16	1(Exh. A)		App. A, § 11-3
46,690	12-20-16	1		42-201(1)
46,691	12-20-16	1		2.1-6(b)
46,731	2-28-17	1(Exh. A)		App. A, § 15-1.2
		2(Exh. B)	Added	App. A, § 15-5.5
46,732	2-28-17	1(Exh. A)		App. A, § 11-20.4(f)
		2(Exh. B)		App. A, § 11-21.3(h)
46,753	2-28-17	1		37-84(d)
46,754	2-28-17	1	Added	2.1-1.7
46,755	2-28-17	1		33.1-53
46,772	3-21-17	1	Added	42-199.1
46,790	3-28-17	1		25-646
46,791	4-11-17	1		14.1-11
		2		14.1-74(1)
		3		14.1-77
46,792	4-11-17	1		14.1-36
		2		14.1-75(7)
		3		14.1-102
46,804	4-11-17	1, 3		25-654
		2		25-649
		4		25-656
46,808	4-11-17	1		33.1-39
46,810	4-25-17	1(Exh. A)		App. A, § 11-3.7
		2(Exh. B)		App. A, § 11-3.12
46,817	4-25-17	1(Exh. A)	Added	App. A, § 4-17
		2(Exh. B)		App. A, Table 4-A
		3(Exh. C)		App. A, Table 4-B
46,822	5- 9-17	1(Exh. A)		App. A, § 11-27
46,848	5-23-17	1	Added	46-12, 46-13, 46-16, 46-17, 46-20, 46-21
46,854	5-23-17	18	Added	37-85
46,866	6-13-17	1	Added	12-141.7
46,881	6-27-17	1		25-302
		2		25-601
46,900	7-11-17	1—8		2-530—2-537
		9	Rnbd as	Ch. 2, Art. III.5 Ch. 2, Art. III
46,904	7-18-17	1(Exh. A)		App. A, § 2-3
		2(Exh. B)		App. A, § 13-6.7
46,921	8-22-17	1		14.1-23
		2		14.1-74(9)
		3		14.1-89
		4		14.1-24
		5		14.1-138
46,968	9-12-17	1, 4		25-649
		2, 7		25-653
		3, 8		25-654
		5		25-651
		6		25-652
46,969	9-12-17	1	Added	2.1-11(c)
47,014	10-10-17	1		42-53
		2		42-80
		3		42-89
		4		42-99
		5	Added	2-327.2(m)
47,015	10-10-17	1		29-36

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47,023	10-24-17	1(Exh. A)		App. A, § 27-40
47,039	10-24-17	1		24-174
47,062	11-21-17	1, 3		25-653
		2		25-651
		4		25-654
47,063	11-21-17	1	Added	23-8
47,085	12-12-17	1	Added	25-378(d)
47,086	12-12-17	1		33-61
47,094	1- 9-18	1		14.1-101
47,108	1- 9-18	1		2-4(b)
47,116	1-23-18	2	Rpld	App. A, §§ 1-1—1-7, 2-1—2-3, 3-1—3-3, 4-0—4-17, 5-0—5-4, 6-0—6-5, 7-0—7-6, 8-0—8-7, 9-0—9-10, 10-0—10-16, 11-0—11-57, 12-1—12-13, 13-0—13-6, 14-1—14-6, 15-0—15-7, 16-1—16-11, 17-1—17-14, 18-1—18-6, 19-1—19-4, 20-1—20-7, 21-1—21-5, 22-1—22-12, 23-1—23-5, 24-1—24-8, 25-1—25-13, 26-0—26-14, 27-1—27-40, 28-1—28-4
47,124	1-23-18	1	Added	2-604—2-611
47,155	2-27-18	1	Added	12-89.12.1
47,156	2-27-18	1		16-25(b)(4)
47,177	3-27-18	1		25-653
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47,210	4-24-18	1		18.1-2(a)
47,223	5- 8-18	1		34.1-1(f)
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47,229	5-22-18	16		11.1-3
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47,233	5-22-18	1		37-2(f)
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47,236	5-22-18	1		24-205
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47,241	5-22-18	1		25-654
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47,262	6-12-18	1		41-21(a), (e)
47,264	6-12-18	1		2-605
47,277	6-26-18	1		25-652
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47,279	6-26-18	1		2-7
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47,280	6-26-18	1		33.1-9(5)
47,289	7-10-18	1		2-326.3
47,294	7-24-18	1		14.1-9
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47,336	8-28-18	1		25-286.9
47,337	8-28-18	1		25-321
47,346	8-28-18	1	Rpld	14.1-2
47,362	9-11-18	1	Added	42-201(4)
47,373	9-11-18	1		49-6(c)
47,402	10- 9-18	1	Rpld	38-128—38-133
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47,478	12-11-18	1		25-646
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47,533	2-26-19	1		16-58
47,540	2-26-19	1		19-1(a)—(c)
47,541	2-26-19	1		24.1-6
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47,542	2-26-19	1		45.6-1—45.6-9
47,543	2-26-19	1		18.1-2
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47,549	3- 5-19	1		25-649
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47,578	3-26-19	1		24-233, 24-234
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47,621	5-14-19	1		24-212
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47,636	5-14-19	16		2-42
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47,663	6-11-19	1	Rpld	7-32
47,666	6-11-19	1	Added	25.1-88
47,667	6-11-19	1		2-7
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47,676	6-11-19	1	Added	45.7-1—45.7-10
47,681	6-11-19	1	Added	25-379—25-384
47,696	6-25-19	1		24-3(4)
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47,732	7-23-19	1	Added	2.1-1.8
47,735	7-23-19	1		34.3-1
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47,739	8-27-19	1		14.1-124
47,758	8-27-19	1		2-54.2
47,760	8-27-19	1		34.1-48(c)(6)
47,766	9-10-19	1	Added	2-8
47,796	10-22-19	1, 4		25-653
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47,798	10-22-19	1		2.1-47
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47,832	11-26-19	1		6.1-82(b)
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47,902	2-25-20	1, 7		25-656
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47,908	2-25-20	1		24-25.6
47,918	2-25-20	1		42-18(b), (c)
47,919	2-25-20	1		25-277.1
47,920	2-25-20	1		25.2-20
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47,939	3-24-20	1, 3		25-650
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47,947	3-24-20	1	Added	24-258(c)
47,972	4-28-20	1		42-57
47,975	4-28-20	1		22-14
47,999	5-19-20	16		24-3(4)
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48,012	6- 9-20	1	Added	45.8-1—45.8-7
48,057	6-23-20	1		2-48(a)
48,078	7-14-20	1, 2		25-653
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48,079	7-14-20	1		25-646
48,091	7-14-20	1	Added	2.1-1.9
48,130	9- 1-20	1		14.1-139
48,131	9- 1-20	1		25-646
48,182	10-13-20	1		34.1-22
48,193	10-27-20	1		2-48(b)
48,194	10-27-20	1		33.1-38
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48,197	10-27-20	1		2-48(a)
48,210	11-10-20	1	Rpld	29-20
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48,241	12- 8-20	1	Rpld	29-22
48,245	12- 8-20	1	Added	27-2(d)
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48,246	12- 8-20	1		33.1-11
48,260	12-22-20	1		2-49
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48,285	1-26-21	1	Added	49-3(12)
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48,300	2- 9-21	1		42-12.1
48,303	2- 9-21	1	Added	2.1-68
48,322	3- 9-21	1	Rpld	2-115—2-611
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48,351	4-13-21	1		2-41
48,352	4-13-21	1		25-646
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48,372	5-11-21	1	Added	12-189
48,373	5-11-21	1	Added	33-40.1
48,380	5-11-21	Exh. B, § 7	Added	37-61(p)
48,405	6- 8-21	1		25-654
48,418	6-22-21	1	Added	45.6-6(3)
48,419	6-22-21	1	Rpld	2-461—2-466
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48,436	7-13-21	1	Rpld	2.1-19
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48,476	8-24-21	1		25-650
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48,477	8-24-21	1		25-646
48,478	8-24-21	1	Added	12-89.4.2
48,485	8-24-21	1		24-26
48,503	9-14-21	1	Rpld	15.2-1—15.2-17
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48,512	9-28-21	1	Added	42-201(5)
48,513	9-28-21	1		17.1-2
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48,514	9-28-21	1		34.1-19
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48,524	10-12-21	1		25-652
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48,546	10-26-21	1		25-647
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48,547	10-26-21	1		25-646
48,585	12- 7-21	1	Rpld	29-77
48,586	12- 7-21	1	Added	25-233
48,606	12-14-21	1		2-48(a)
48,607	12-14-21	1		16-1—16-9.1, 16-25—16-41, 16-58—16-61, 16-82—16-100, 16-115, 16-116, 16-155—16-164
48,624	1-11-22	1		23-1—23-19, 23-24—23-29
48,634	1-25-22	1		25-646
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48,636	1-25-22	1	Added	45.1-1(9)
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48,669	2- 8-22	1	Added	14.1-140—14.1-142
48,670	2- 8-22	1		37-61
48,687	2-22-22	1	Added	2.1-69
48,715	3-22-22	1, 2		25-654
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48,719	3-22-22	1		46.1-6(a)
48,720	3-22-22	1		25.1-75
48,747	4-26-22	1		16-59—16-61
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48,752	5-10-22	16		2-48(a), (b)
		17	Added	2-50.1
48,758	5-10-22	1		23-3
48,763	5-10-22	1		14.1-4
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48,804	6-14-22	1		2.1-69
48,834	7-12-22	1		25-660
48,848	7-12-22	1		2-48(a)(16)
48,871	7-19-22	1		2.1-26.5
48,874	8-23-22	1		14.1-59
		2		14.1-75(27)
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48,879	8-23-22	1	Added	12-89.10.1
48,880	8-23-22	1	Added	12-86.3
48,881	8-23-22	1		24-7(a)
48,885	8-23-22	1		2-50
48,887	8-23-22	1	Added	15.1-1—15.1-56
48,905	9-13-22	1		25-653
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48,909	9-13-22	1		16-5
48,923	9-13-22	1		26-1—26-8
48,924	9-13-22	1		24-233—24-236
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48,954	10-11-22	1	Added	2-54.4
48,965	10-25-22	1	Added	12-94
48,976	10-25-22	1		37-84
49,007	11-29-22	1		25-653
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49,035	12-13-22	1	Added	2-54.5
49,044	1-10-23	1	Rpld	42-16
49,066	1-24-23	1	Added	24-211.1, 24-211.1
49,078	2-14-23	1		25-654
49,114	3-14-23	1		2-48(c)
49,122	3-28-23	1		2-420
49,131	3-28-23	1	Added	24-289(c)
49,155	4-25-23	1	Added	6.1-101
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49,158	4-25-23	1		42-12.1
49,169	5- 9-23	1	Rpld	34.1-22
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49,170	5- 9-23	1		25-653
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49,181	5- 9-23	1		15.1-4(a)
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49,189	5- 9-23	1		25-656.2(g)
49,220	6-13-23	15		12-266—12-270, 12-275, 12-276, 12-290.1—12-290.3
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49,258	7-11-23	1		2-490
49,259	7-11-23	1		2.1-58
49,273	8-29-23	1		14.1-123
49,298	8-29-23	1		25-656
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49,299	8-29-23	1		2-4(c)
49,314	9-12-23	1		25-654
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49,602	5-14-24	1		25-233
49,610	5-28-24	1		2-160
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49,629	6-11-24	1	Added	12-141.8
49,630	6-11-24	1	Added	12-290.5
49,631	6-11-24	1	Rpld	29-65
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49,645	6-25-24	1		32-3.4
49,646	6-25-24	1		Ch. 41.2(tit.)
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49,647	6-25-24	1		41.1-25
49,648	6-25-24	1		41.1-1
49,649	6-25-24	1		15-3(b)
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49,657	7- 9-24	1		25-653
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49,658	7- 9-24	1	Rpld	2-54.4
49,736	9-24-24	1		2-48
49,748	9-24-24	1	Added	25-179
49,807	12-10-24	1		24-3
49,809	12-10-24	1		24-288—24-296
49,810	12-10-24	1		32-73
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49,820	12-10-24	1		25-302
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49,843	1-28-25	1	Added	25-180
49,861	2-11-25	1		25-660
49,907	3-25-25	1		15.1-1—15.1-56
49,913	4- 8-25	1		14.1-59
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49,943	4-29-25	1		29-68
49,945	4-29-25	1		11.1-16
49,958	5-13-25	1	Added	29-11
49,961	5-13-25	1		2-160
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50,039	6-24-25	15		2.1-1.3
50,044	7- 8-25	1	Added	33.1-60
50,046	7-15-25	1		14.1-24
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50,127	9-23-25	1		33.1-20
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50,139	10- 7-25	1		24-234
50,211	12- 9-25	1		24-258
50,212	12- 9-25	1	Added	24-203.2
50,248	1-13-26	1	Added	30-102
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